SUPPLEMENT NO. 22
VOLUMES I AND II
June 2026

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5996, adopted March 9, 2026.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
T8:1—T8:5	T8:1—T8:5
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T11:1—T11:14	T11:1—T11:13
T11:17—T11:33	T11:17—T11:32
T11:65—T11:163	T11:65—T11:179
T11:207—T11:212.1	T11:207—T11:212.1
T11:251—T11:278	T11:251—T11:278.4
T11:283—T11:302	T11:283—T11:302.2
T11:316.9, T11:316.10	T11:316.9—T11:316.10.1
T11:316.17—T11:350	T11:317—T11:350.7
T11:409—T11:424	T11:409—T11:424.1
T11:431—T11:434	T11:431—T11:434
T11:505—T11:508	T11:505—T11:508
T11:651—T11:654	T11:651—T11:654
T11:705—T11:738	T11:705—T11:738
T11:747—T11:751	T11:747—T11:751
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T11:817—T11:837	T11:817—T11:838
CCT:7—CCT:12	CCT:7—CCT:14
I:1—I:40	I:1—I:40

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SUPPLEMENT NO. 21
VOLUMES I AND II
April 2026

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5997, adopted January 26, 2026.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T4:5—T4:10	T4:5—T4:10
T4:31—T4:34	T4:31—T4:34
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T11:61—T11:62.1	T11:61—T11:62.1
T11:67—T11:70.1	T11:67—T11:70.1
T11:79, T11:80	T11:79, T11:80
T11:97—T11:98.1	T11:97—T11:98.1
T11:113—T11:114.1	T11:113—T11:114.1
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T11:316.1—T11:316.11	T11:316.1—T11:316.20
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SUPPLEMENT NO. 20
VOLUMES I AND II
February 2026

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5962, adopted September 22, 2025.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T6:115—T6:118	T6:115—T6:118
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T11:95—T11:98.1	T11:95—T11:98.1
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T11:147—T11:158	T11:147—T11:163
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T11:257—T11:258.2	T11:257—T11:258.2
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SUPPLEMENT NO. 19
VOLUMES I AND II
September 2025

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5943, adopted June 2, 2025.

See the Code Comparative Table—Legislation for further information.

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T11:85—T11:90	T11:85—T11:90
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T11:803, T11:804	T11:803—T11:804.1
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SUPPLEMENT NO. 18
VOLUMES I AND II
June 2025

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5932, adopted February 24, 2025.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
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T11:114.1—T11:118	T11:115—T11:118.2
T11:122.1—T11:122.4	T11:122.1—T11:122.4
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T11:145—T11:148	T11:145—T11:148
T11:261—T11:264	T11:261—T11:264
T11:285, T11:286	T11:285, T11:286
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SUPPLEMENT NO. 17
VOLUMES I AND II
March 2025

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5905, adopted December 9, 2024.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ii.i	ii.i
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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T4:85—T4:88	T4:85—T4:88.1
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T11:79, T11:80	T11:79, T11:80
T11:93—T11:98.1	T11:93—T11:98.1
T11:109—T11:114	T11:109—T11:114
T11:121—T11:122.2	T11:121—T11:122.2
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T11:711, T11:712	T11:711—T11:712.1
T11:747, T11:748	T11:747—T11:752
T11:815—T11:828	T11:815—T11:828.2
T11:833, T11:834	T11:833, T11:834
CCT:7	CCT:7, CCT:8
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SUPPLEMENT NO. 16
VOLUMES I AND II
December 2024

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5883, adopted October 7, 2024.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
T1:23, T1:24	T1:23, T1:24
T5:42.1, T5:42.2	T5:42.1, T5:42.2
	VOLUME II
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T11:70.1—T11:72	T11:71—T11:72.1
T11:269—T11:272.1	T11:269—T11:272.2
CCT:7	CCT:7
I:1—I:41	I:1—I:41

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SUPPLEMENT NO. 15
VOLUMES I AND II
September 2024

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5863, adopted Jul8 8, 2024.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 14
VOLUMES I AND II
June 2024

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5850, adopted May 20, 2024.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xix, xx	xix, xx
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T11:825, T11:826	T11:825, T11:826
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SUPPLEMENT NO. 13
VOLUMES I AND II
February 2024

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5840, adopted December 11, 2023.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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SUPPLEMENT NO. 12
VOLUMES I AND II
August 2023

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5789, adopted June 19, 2023.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 11
VOLUMES I AND II
May 2023

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5775, adopted April 3, 2023.

See the Code Comparative Table—Legislation for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 10
VOLUMES I AND II
March 2023

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5766, adopted February 13, 2023.

See the Code Comparative Table—Legislation for further information.

Included in the Charter is:

Ordinance No. 5704 adopted November 8, 2022.

See the Charter Comparative Table, page CHTCT:3 for further information.

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T11:257, T11:258	T11:257, T11:258
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T11:297—T11:300	T11:297—T11:300.1
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SUPPLEMENT NO. 9
VOLUMES I AND II
October 2022

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5726, adopted September 12, 2022.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 8
VOLUMES I AND II
April 2022

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5666, adopted January 24, 2022.

See the Code Comparative Table—Legislation for further information.

Included in the Charter is:

Ordinance No. 5650, adopted November 15, 2021.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 7
VOLUMES I AND II
January 2022

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5646, adopted October 18, 2021.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 6
VOLUMES I AND II
July 2021

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5623, adopted May 17, 2021.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 5
VOLUMES I AND II
February 2021

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5601, adopted December 8, 2020.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 4
VOLUMES I AND II
October 2020

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5582, adopted August 24, 2020.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 3
VOLUMES I AND II
August 2020

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5577, adopted June 15, 2020.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
April 2020

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5559, adopted March 16, 2020.

See the Code Comparative Table—Legislation for further information.

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SUPPLEMENT NO. 1
VOLUMES I AND II
February 2020

CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5546, adopted December 9, 2019.

See the Code Comparative Table—Legislation for further information.

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REPUBLICATION
December 2019

CODE OF ORDINANCES

City of

MESA, ARIZONA

Looseleaf Supplement

This copy of the Mesa, Arizona Code of Ordinances is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ord. No. 5515, enacted July 8, 2019. See the Code Comparative Table for further information.

This copy replaces all existing copies of the Code. Future supplements will commence with "Supplement No. 1."

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CODE OF ORDINANCES

CITY OF

MESA, ARIZONA

VOLUME I

Published in 2019 by Order of the City Council

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CURRENT OFFICIALS
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MESA, ARIZONA

Mark Freeman
Mayor
Scott Somers, District 6
Vice-Mayor

Rich Adams, District 1
Dorean Taylor, District 2
Francisco Heredia, District 3
Jenn Duff, District 4
Alicia Goforth, District 5
City Council

Scott Butler
City Manager

Holly Moseley
City Clerk

OFFICIALS
of the
CITY OF
MESA, ARIZONA
AT THE TIME OF THIS REPUBLICATION

John Giles
Mayor
Mark Freeman, District 1
Vice-Mayor

Jeremy Whittaker, District 2
Francisco Heredia, District 3
Jen Duff, District 4
David Luna, District 5
Kevin Thompson, District 6
City Council

Christopher J. Brady
City Manager

Dee Ann Mickelsen
City Clerk

PREFACE

This Code constitutes a republication of the general and permanent ordinances of the City of Mesa, Arizona.

Source materials used in the preparation of the Code were the Code, as supplemented through March 31, 2019, and ordinances subsequently adopted by the City Council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the Code, as supplemented, and any subsequent ordinance included herein.

The Code has been conveniently arranged by titles, chapters and sections, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of three parts separated by a dash. The figure before the first dash refers to the title number, the figure before the second dash refers to the chapter number and the figure after the second dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 of title 1 is numbered 1-1-2, and the first section of chapter 6 of title 1 is 1-6-1. Under this system, each section is identified with its chapter and title, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 1-6-1 and 1-6-2 is desired to be added, such new section would be numbered 1-6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. The number to the left of the colon indicates title number. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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CHARTER COMPARATIVE TABLE	CHTCT:1

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SPECIAL ACTS COMPARATIVE TABLE SACT:1
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CODE INDEX CDi:1

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Peggy Lamar, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Dee Ann Mickelsen for her cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omits."

In addition, by adding to this table with each supplement, users of this County Code will be able to gain a more complete picture of the Code's historical evolution.

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5538	12- 2-19	Included	1
5539	12- 2-19	Included	1
5540	12- 2-19	Included	1
5541	12- 9-19	Included	1
5542	12- 9-19	Included	1
5543	12- 9-19	Included	1
5544	12- 9-19	Included	1
5546	12- 9-19	Included	1
5547	1-27-20	Included	2
5554	2-10-20	Included	2
5555	2-24-20	Included	2
5559	3-16-20	Included	2
5563	4-20-20	Included	3
5572	6- 1-20	Included	3
5576	6- 1-20	Included	3
5577	6-15-20	Included	3
5582	8-24-20	Included	4
5591	12- 1-20	Included	5
5592	12- 1-20	Included	5
5593	12- 1-20	Included	5
5594	12- 1-20	Included	5
5601	12- 8-20	Included	5
11603 (Res. No.)	11-16-20	Included	6
5609	3- 1-21	Included	6
5617	4-19-21	Included	6
5620	5- 3-21	Included	6
5621	5-17-21	Included	6

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5622	5-17-21	Included	6
5623	5-17-21	Included	6
5631	7- 8-21	Included	7
5632	7- 8-21	Included	7
5633	7- 8-21	Included	7
5637	8-30-21	Included	7
5644	9-13-21	Included	7
5646	10-18-21	Included	7
5651	11-15-21	Included	8
5659	12- 8-21	Included	8
5666	1-24-22	Included	8
5685	3-21-22	Included	9
5686	3-21-22	Included	9
5687	3-21-22	Included	9
5688	3-21-22	Included	9
5689	3-21-22	Included	9
5696	4-18-22	Included	9
5706	6- 6-22	Included	9
5710	7- 5-22	Included	9
5726	9-12-22	Included	9
5732	10- 3-22	Omitted	9
5703	11- 8-22	Included	10
5704	11- 8-22	Included	10
5733	10-17-22	Included	10
5734	10-17-22	Included	10
5735	10-17-22	Included	10
5747	11-21-22	Included	10
5750	12- 1-22	Included	10
5758	12- 8-22	Included	10
5759	12- 8-22	Included	10
5766	2-13-23	Included	10
5775	4- 3-23	Included	11
5783	6- 5-23	Included	12
5789	6-19-23	Included	12
5813	10-16-23	Included	13
5814	10-16-23	Included	13
5815	10-16-23	Included	13
5819	11-20-23	Included	13
5826	12- 4-23	Included	13
5839	12-11-23	Included	13
5840	12-11-23	Included	13
5845	2- 5-24	Included	14
5847	3- 4-24	Included	14
5850	5-20-24	Included	14
5858	7- 1-24	Included	15
5861	7- 8-24	Included	15

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5862	7- 8-24	Included	15
5863	7- 8-24	Included	15
5877	10- 7-24	Included	16
5883	10- 7-24	Included	16
5886	11-18-24	Included	17
5889	11- 4-24	Included	17
5890	11-18-24	Included	17
5891	12- 2-24	Included	17
5892	12- 2-24	Included	17
5904	12- 9-24	Included	17
5905	12- 9-24	Included	17
5928	2- 3-25	Included	18
5932	2-24-25	Included	18
12269 (Res. No.)	9-23-24	Included	19
5883	10- 7-24	Included	19
5935	4- 7-25	Included	19
5937	4-21-25	Included	19
5938	4-21-25	Included	19
5939	5-12-25	Included	19
5942	6- 2-25	Included	19
5943	6- 2-25	Included	19
5946	7- 1-25	Included	20
5947	7- 1-25	Included	20
5948	7- 1-25	Included	20
5949	7- 1-25	Included	20
5950	7- 8-25	Included	20
5957	7- 8-25	Included	20
5959	8-25-25	Included	20
5962	9-22-25	Included	20
5963	10- 6-25	Included	21
5967	10- 6-25	Included	21
5970	12- 1-25	Included	21
5976	1-12-26	Included	21
5978	12- 8-25	Included	21
5979	12- 8-25	Included	21
5980	12- 8-25	Included	21
5981	12- 8-25	Included	21
5982	12- 8-25	Included	21
5983	12- 8-25	Included	21
5984	12- 8-25	Included	21
5985	12- 8-25	Included	21
5986	12- 8-25	Included	21
5987	12- 8-25	Included	21
5988	12- 8-25	Included	21
5989	12- 8-25	Included	21
5994	1-12-26	Included	21

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5997	1-26-26	Included	21
5909	12- 9-24	Included	22
5996	3- 9-26	Included	22

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PREAMBLE TO MESA CITY CHARTER

We reaffirm our faith in the Declaration of Independence and the Constitution of the United States of America and especially in the conviction that the rights of man come from God and not government. This Charter, therefore, provides for officials and regulations for the government of the City of Mesa, Arizona, to which certain powers are given, and all powers not given - except those pre-empted by the United States of America and the State of Arizona - remain with the elected officials of this City and its citizens.

ARTICLE I
POWERS OF THE CITY

Section 101: NAME AND POWERS OF THE CITY

The existing municipal corporation known as the "City of Mesa" shall continue to be a body politic and corporate, with all powers possible under the Constitution and general laws of Arizona as fully as though they were enumerated in this Charter and all the rights and powers granted or to be granted to Charter cities and to cities and towns incorporated under the provisions of Title IX, A.R.S. and these further rights and powers, to-wit:

(A) To acquire by purchase, condemnation, or otherwise and to lease, within or without the City, land or other property necessary to establish and operate any lawful municipal function.

(B) To lease, sell, convey, exchange, and otherwise dispose of any real or personal property owned by the City in the manner, for such consideration, and upon such conditions as may be determined by the Council. (Amd. Charter Election 3-30-76)

(C) To receive bequests, donations, gifts, and grants of all kinds of property in fee simple or in trust for charitable or other purposes and to do all acts necessary to carry out the purposes thereof, with power to manage, sell, lease, or otherwise dispose of the same in accordance with the terms thereof or absolutely if such bequest, donation, gift, grant, or trust be unconditional.

(D) To join with the United States, State of Arizona, any political subdivision, board, commission, or agency, or any combination of them, in order to acquire and develop jointly sources of water, electricity, or gas and to construct works for their joint operation and to unite with such entities in bond issues therefor.

Section 101.1:

In addition to the zoning regulations authorized by the general laws of the State and pursuant to the procedures set forth therein, the Council by ordinance may adopt and enforce exterior design and landscaping guidelines for buildings, structures, and open spaces. (Amd. Charter Election 3-25-86)

Section 101.2: RESTRICTION ON USE OF EMINENT DOMAIN

Private property shall not be taken for any use, except as specifically provided for in the Arizona Constitution. The City shall not take any property through eminent domain without a public hearing and public vote of the City Council. In no event may any private real property acquired by the City through eminent domain be

dedicated, sold, leased or otherwise transferred to a private person, partnership, corporation or any other entity for a period of ten (10) years following the acquisition of the property by the City. (Amd. Charter Election 3-9-04/IN02-1)

Section 102: CONSTRUCTION

The powers of the City under this Charter shall be construed liberally in favor of the City. Mention of particular powers in the Charter shall not be construed as limiting in any way the general power stated in this Article.

Section 103: INTERGOVERNMENTAL RELATIONS

The City may exercise any of its powers or perform any of its functions and may participate in the financing thereof, jointly or in cooperation by contract or otherwise, with any one (1) or more states, political subdivisions, school districts, Indian tribal councils, or any board, commission, or agency, or combination of them, or with the United States or any department or agency thereof.

ARTICLE II
CITY COUNCIL

Section 201: COMPOSITION, ELIGIBILITY, TERMS, AND ELECTIONS

(A) **COMPOSITION.** There shall be a City Council consisting of a Mayor and six (6) other district Councilmembers elected by the qualified electors of the City as follows: (Amd. Charter Election 5-19-98)

1. The Mayor shall be elected from the City at large. (Amd. Charter Election 5-19-98)
2. The six (6) other Councilmembers shall be elected, one (1) from each of six (6) geographical districts within the City of Mesa. (Amd. Charter Election 5-19-98)
3. The initial district boundaries and all subsequent redistricting shall be established by a five- (5-) person nonpartisan Commission appointed by the City Council. The City Council shall approve the Commission's recommendations or if disapproved, send recommendations back to the Commission for reconsideration: the second recommendation from the Commission shall then be deemed final. (Amd. Charter Election 5-19-98)
4. For identification purposes, districts shall be numbered one (1) through six (6). (Amd. Charter Election 5-19-98)
5. The initial district boundaries shall be substantially equalized by geography and population according to the 1995 United States mid-decennial census, and thereafter, district boundaries shall be substantially equalized by geography and population according to each succeeding United States decennial census. The redrawing of district boundaries shall not remove the residence of an incumbent Councilmember from the district he was elected to represent during his term in that office. District boundaries shall not be redrawn between the first day nominating papers for Mayor and/or Councilmember may be filed and the date of the immediately following City General Election. (Amd. Charter Election 5-19-98)

(B) **ELIGIBILITY.** Only qualified electors of the City shall be eligible to hold the office of Mayor or Councilmember. (Amd. Charter Election 5-19-98)

1. Each candidate for Mayor must have been a resident of the City or annexed area for at least two (2) years immediately preceding his filing nomination papers, and shall continue residence in the City for the term for which such candidate is elected. (Amd. Charter Elections 3-29-94 & 5-19-98)

2. Each candidate for one (1) of the six (6) Council positions must have been a resident of his district within the City or annexed area for at least two (2) years immediately preceding his filing nomination papers, and shall continue such residence therein for the term for which such candidate is elected. (Amd. Charter Elections 3-29-94 & 5-19-98)

(C) **TERM OF COUNCILMEMBER.** The term of office of Councilmember shall commence at the first (1st) regular meeting of the City Council in June following their election and except as otherwise provided herein, shall be for a period of four (4) years or until their successors are elected and qualified.* (Amd. Charter Election 3-30-76)

(D) **TERM OF MAYOR.** The term of Mayor shall commence at the first (1st) regular meeting of the Council in June following the election and shall be for four (4) years or until a successor is elected and qualified.* (Amd. Charter Election 3-29-94)

(E) **LIMITATION OF TERMS.** No person shall be eligible to be elected to the office of Councilmember for more than two (2) consecutive four- (4- year terms, and no person shall be eligible to be elected to the office of Mayor for more than two (2) consecutive four- (4-) year terms. A person shall not be eligible to be elected to a combination of Councilmember and Mayor for more than sixteen (16) consecutive years. A person elected to two (2) consecutive four- (4-) year terms as Councilmember or two (2) consecutive four- (4-) year terms as Mayor or a combination of same as above set forth shall not be eligible to hold either office again until four (4) years have elapsed. Elected or appointed terms of less than four (4) years as Councilmember or Mayor shall not be counted in the above time limitations. A Councilmember or Mayor who resigns shall not be eligible for re-election or appointment until the second (2nd) succeeding City election following the date of tender of written resignation, except as provided in Section 205(A)1. (Amd. Charter Elections 3-30-76 & 3-29-94)

(F) **ELECTIONS.** Elections for Mayor and/or Councilmember shall be held in each even-numbered year as provided in Article VII. Districts that contain the residences of Councilmembers whose first four- (4-) year term expires in 2000 shall each elect one (1) district Councilmember in the 2000 City election cycle. A drawing by lot of the remaining districts shall be conducted, if necessary, to insure that there shall be elections in three (3) of the six (6) districts in the 2000 City election cycle. These three (3) districts shall hold district City Council elections every four (4) years. The remaining three (3) districts shall hold district City Council elections every four (4) years beginning in the 2002 City election cycle. (Amd. Charter Election 5-19-98)

1. Any candidate for the office of Mayor who shall receive at the primary election the number of votes constituting a majority of all of the valid ballots cast for the office of Mayor shall be declared

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* Pursuant to Section 701 (F) of this Charter and Ordinance 5292, the Mayoral and Council election dates were aligned with state elections under A.R.S. § 16-204; and under Ordinance 5292, adopted by the Mesa City Council on June 15, 2015, the term of office of the Office of Mayor and Councilmember shall commence on or after the first Monday in January in the year following the election.

elected. Any candidate for the office of district Councilmember who shall receive at the primary election the number of votes constituting a majority of all of the valid ballots cast for the office of Councilmember in that district shall be declared elected. If a voter votes for two (2) or more candidates for a certain office, that ballot and vote shall not count for that same office. Nothing on the ballot shall indicate the affiliation of any candidate with any other person, party, or group. (Amd. Charter Elections 11-8-94/2936 & 5-19-98)

2. A general election shall be held for those seats where no candidate was elected at the primary election. For the office of Mayor and for each district Councilmember seat, the two (2) persons (or more than two [2] in the event of a tie vote) receiving the highest number of valid votes cast for that office shall be the only persons named on the ballot at the general election. (Amd. Charter Elections 11-8-94/2936 & 5-19-98)

3. Electors shall vote for only one (1) district Councilmember candidate from the Council district in which the electors reside, and one candidate for Mayor from the City at large. (Amd. Charter Election 5-19-98)

Section 202: COMPENSATION

Effective at the commencement of the terms of the Councilmembers elected in 1968, the monthly salary of the Mayor shall be three hundred dollars ($300), and the monthly salary of each Councilmember shall be one hundred dollars ($100). The Council may by ordinance change the compensation of the Mayor or Councilmembers, but any ordinance increasing such salaries shall not become effective within six (6) months nor prior to the commencement of the terms of the Councilmembers elected at the next succeeding regular election. In addition to their salary, the Mayor and Councilmembers shall receive their actual and necessary expenses incurred in performing the duties of their office.* (See Ord. 2106, adopted 8-25-86, for change of Mayor's salary to one thousand six hundred dollars [$1,600] per month and each Councilmember's salary to eight hundred dollars [$800] per month.**) See Ord. 5196, adopted 12-9-2013, adjusting the salaries of the Mayor and Councilmembers and addressing vehicle and communication allowances and City benefits.****

Section 203: MAYOR AND VICE MAYOR

(A) **MAYOR.** The Mayor shall be a member of the Council and its presiding officer. He shall be recognized as head of the City government for all ceremonial purposes and by the Governor for purposes of military law and civil defense. Neither the Mayor nor any other Councilmember shall have any administrative duties. (Amd. Charter Election 3-30-76)

(B) **VICE MAYOR.** Within thirty (30) days after taking office, each Council shall elect from the Council a Vice Mayor who shall act as Mayor during absence or disability of the Mayor. Amd. Charter Election 11-6-2012/5104)

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* Pursuant to Ordinance 3937 adopted October 22, 2001, the Mayor and City Councilmembers shall be compensated $150.00 per month for the use of their vehicle while performing the duties of their office.
Pursuant to Ordinance 4343 adopted February 22, 2005, the Mayor and City Councilmembers shall select the option of receiving an allowance of up to $80.00 per month for the use of their personal cellular telephones while performing the duties of their office, or submitting the cost of the City business calls for reimbursement.

** Effective June 5, 2000, the salary for Mayor is $2,800 per month (or $33,600 per year), and the salary for Councilmember is $1,400 per month (or $16,800 per year), pursuant to Ordinance 3445. Effective July 1, 2001, and each year thereafter, the salary for Mayor and Councilmember shall be adjusted by the cost-of-living change, if any, made for City of Mesa employees for the applicable fiscal year. (3445)

*** Pursuant to Ordinance 5196 and effective at the beginning of Council terms in January 2015, the annual salary for Mayor is $73,545 and $36,832 for Councilmembers. The annual salary will be adjusted by a cost-of-living adjustment, if any, provided to Mesa City employees. Effective January 8, 2014, is a vehicle allowance of $550 per month for the Mayor and $350 per month for Councilmembers and a communication allowance of $80 per month for the Mayor and Councilmembers. The Mayor and Councilmembers are eligible for City benefits consistent with those provided to executive level City employees, which may be amended as employee benefits are amended.

**** Pursuant to Ordinance 5650 and effective at the beginning of Council terms in January 2023, the annual salary for Mayor is $74,745.16 and $41,782.10 for Councilmembers. The annual salary will be adjusted by a cost-of-living adjustment, if any, provided to Mesa City employees. Effective January 2017, is a vehicle allowance of $550 per month for the Mayor and $350 per month for Councilmembers and a communication allowance of $100 per month for the Mayor and Councilmembers. The Mayor and Councilmembers are eligible for City benefits consistent with those provided to executive level City employees, which may be amended as employee benefits are amended.

(C) **FILLING A VACANCY IN THE OFFICE OF MAYOR.**

1. If the office of Mayor becomes vacant with two (2) years or less remaining in the term, the Vice Mayor shall serve as Mayor for the remainder of the term. The Council shall elect a new Vice Mayor within thirty (30) days of when the office of Mayor became vacant. The district council office that becomes vacant due to the ascension of the Vice Mayor to Mayor will be filled as described in Section 206. (Amd Charter Election 11-6-2012/5104)
2. If the office of Mayor becomes vacant with more than two (2) years remaining in the term, the Vice Mayor shall become the Mayor Pro Tempore. The Council shall elect a new Vice Mayor within thirty (30) days of when the office of Mayor became vacant. (Amd Charter Election 11-6-2012/5104)
   (a) The Council shall call an election to fill the office of Mayor, to be held concurrent with the next Council election or by a special election. The election will be held not less than 120 days and not more than 365 days from the date the vacancy occurs. (Amd Charter Election 11-6-2012/5104)
   (b) All candidates for the office of Mayor must declare themselves a candidate for Mayor and file a Statement of Organization within ten (10) days from the date the vacancy occurs. If the Mayor Pro Tempore or a Councilmember declares himself a candidate for Mayor, he shall resign his district council office if required in Section 205. (Amd Charter Election 11-6-2012/5104)
   (c) If Council calls an election to fill a vacancy in the office of Mayor and one or more district council offices are also vacant, the Council may require that the vacancies in the council district offices be filled at the same election as the office of Mayor. (Amd Charter Election 11-6-2012/5104)
   (d) After filing a Statement of Organization, candidates for vacant positions shall be entitled to circulate nomination petitions for the office as soon as the vacancies occur. (Amd Charter Election 11-6-2012/5104)
   (e) The procedure for nomination and election shall be the same as for the regular Mayor and Council election to the extent possible. (Amd Charter Election 11-6-2012/5104)
   (f) If the Mayor Pro Tempore does not run for the office of Mayor, he will serve as Mayor Pro Tempore until a successor Mayor is elected and qualified. (Amd Charter Election 11-6-2012/5104)
      (i) The Council may appoint a person to serve as district Councilmember for the office that becomes temporarily unfilled due to the ascension of Vice Mayor to Mayor within thirty (30) days of when the office of Mayor becomes vacant. The appointed district Councilmember's term will end when the Mayor Pro Tempore resumes his position as district Councilmember. The original term of the district council office remains unchanged. (Amd Charter Election 11-6-2012/5104)

Section 204: GENERAL POWERS AND DUTIES

Policy making and all other powers of the City shall be vested in the Council, except as otherwise provided by law or in this Charter, and the Council shall provide for the exercise thereof and for the performance of all duties and obligations imposed on the City by law.

Section 205: PROHIBITIONS

(A) **HOLDING OTHER OFFICE.** During the term for which elected, neither the Mayor nor any Councilmember shall hold any City employment or elected public office except Precinct Committeeman. For the purposes of this Section, "elected public office" shall include both offices in which the incumbent receives a salary or compensation and in which the incumbent receives no salary or compensation and shall include, but not be limited to, any position which involves the exercise of some portion of the sovereign power. (Amd. Charter Elections 3-25-86 & 3-29-94)

1. To be eligible to run for the office of Mayor at any time other than the last year of the term for which elected, a Councilmember shall submit a written, irrevocable resignation to the City Clerk at least ninety (90) days prior to the primary election or other election to choose a Mayor, to be effective immediately. (Amd. Charter Election 3-29-94)

2. Neither the Mayor nor any Councilmember shall hold any compensated appointive City office or employment until one (1) year after the expiration of the term for which elected. (Amd. Charter Election 3-29-94)

(B) **APPOINTMENTS AND REMOVALS.** Neither the Mayor nor any Councilmember shall in any manner, except as provided in Section 303(B), dictate appointment or removal of any administrative officer or employee subject to appointment by the Manager or his subordinates, but the Council may express its views and discuss freely with the Manager such appointments and removals. (Amd. Charter Election 3-30-76)

(C) **INTERFERENCE WITH ADMINISTRATION.** Except for the purpose of inquiries, or investigations authorized under Section 208, the Council shall deal with City officers and employees who are subject to the direction and supervision of the Manager solely through the Manager, and neither the Council nor its members shall give any order to any such officer or employee, either publicly or privately.

(D) **BARGAINING PROHIBITED; MEET AND CONFER EXCEPTION; NO INTERFERENCE WITH CITY SERVICES.** The City shall not bargain collectively with any employee, group of employees, employee organizations, or any representative of any employee organization with respect to wages, hours, or working conditions, except:

1. The City Manager, or designee, is permitted to meet and confer with sworn public safety employee organizations to negotiate a memorandum of understanding with respect to only the following topics: Wages and other forms of direct monetary compensation, hours, non-health related benefits, and working conditions that are not covered under the city's personnel rules or state or federal law. For the purpose of this section, sworn public safety employee organizations shall mean organizations representing sworn police employees up to and including the rank of sergeant, and organizations representing sworn fire employees up to and including the rank of captain.

2. A memorandum of understanding becomes effective upon an annual appropriation of funds and approval by the City Council; provided, however, that the City Council may modify or terminate a memorandum of understanding if it determines that funds are not available during the fiscal year or if the funds are not included in the annual City Council approved budget.

3. Nothing in a memorandum of understanding shall modify or conflict with an existing ordinance or the City's personnel rules, and any such modification or conflict shall be void and unenforceable.

4. The City Manager may adopt policies to implement these Charter provisions that are not in conflict with these Charter provisions.

5. Notwithstanding any other provision in the Charter, the City shall determine appropriate staffing levels to provide City services.

6. Strikes, work stoppages, slow downs, or any other concerted efforts to interfere with City of Mesa services are contrary to the public good and strictly prohibited. Nothing in this Chapter shall permit any employee to engage in such acts.

(Ord. No. 5704, § 1, 5-16-22, election of 11-8-22)

Section 206: VACANCIES; FORFEITURE OF OFFICE; FILLING OF VACANCIES

(A) **VACANCIES.** The office of Mayor or Councilmember shall become vacant upon the member's death, resignation, forfeiture of office, or removal from office in any manner authorized by law. (Amd. Charter Election 3-14-00/3739)

(B) **FORFEITURE OF OFFICE; OTHER FORMS OF DISCIPLINE.**

1. The Mayor or a Councilmember shall forfeit their office if they (1) lack at any time during their term of office any qualification for the office prescribed by this Charter or by law, or (2) violate any express prohibition of this Charter. (Amd. Charter Election 3-14-00/3739)

2. In addition, it shall constitute grounds for forfeiture of office, suspension, censure, reprimand, monetary penalty, letter of warning, other form of discipline, or some combination of the foregoing penalties, at the sole discretion of the City Council, if five (5) or more City Councilmembers agree that a Councilmember, including the Mayor, or a citizen advisory board member appointed under Section 501 of this Charter, has: (Amd. Charter Election 3-14-00/3739)

   (a) Violated the mandatory code of ethics for Councilmembers and citizen advisory board members adopted by the Mesa City Council by resolution and in effect when the alleged conduct occurred; (Amd. Charter Election 3-14-00/3739)

   (b) Within two years before their first election or appointment, or during their term of office, been convicted, indicted, arrested, or the subject of a direct criminal complaint regarding a crime involving violence, dishonesty, or sexual misconduct; (Amd. Charter Election 3-14-00/3739)

   (c) Been absent from three (3) consecutive and duly noticed meetings without being excused for good cause; or (Amd. Charter Election 3-14-00/3739)

   (d) Engaged in any other conduct demonstrating a lack of fitness for office. (Amd. Charter Election 3-14-00/3739)

(C) **FILLING OF VACANCIES.** In the event of a vacancy in the Council which occurs ten (10) days or less prior to the final date for filing nomination petitions for the next succeeding election, the Council may

appoint a qualified person to serve for the unexpired term. If the vacancy occurs more than ten (10) days prior to the final date for filing nomination petitions for the next election, the Council may appoint a qualified person to serve until the office is filled at the election.

1. **ACTION IF COUNCIL FAILS TO APPOINT.** If the Council fails to make such an appointment within thirty (30) days following the occurrence of the vacancy, the Council shall call a special election to fill the vacancy. Such election shall be held not later than one hundred twenty (120) days following the occurrence of the vacancy and shall otherwise be governed by the provisions of Article VII hereof. The person elected to such office at the special election shall hold office for the entire unexpired term.

2. **REDUCTION BELOW A QUORUM.** Notwithstanding the requirements in Section 209(D) that a quorum of the Council consists of an absolute majority, if at any time the membership is reduced to less than an absolute majority, the remaining members may by majority action appoint additional members to raise the membership to an absolute majority. As used in this Charter, the term "absolute majority" shall mean a majority of the whole number of the Council, including the Mayor.

Section 207: JUDGE OF QUALIFICATIONS AND FITNESS

The Council shall be the judge of the election, qualification, and fitness of its members and of citizen advisory board members appointed under Section 501 of this Charter, and of the grounds for forfeiture of their office or other discipline. For that purpose the City Council, or its designees, if it so chooses, shall have power to subpoena witnesses, administer oaths, and require the production of evidence. A member charged with conduct constituting grounds for forfeiture of office shall be entitled to a public hearing upon request made within ten (10)

calendar days of receipt of the charge or charges. Notice of such hearing shall be published at least one (1) week in advance of the hearing. Decisions made by the City Council under this Section shall be subject to review by the courts. (Amd. Charter Election 3-14-00/3739)

Section 208: INVESTIGATIONS

The Council may make investigations into the affairs of the City and the conduct of any City department, office, or agency. For this purpose, it may subpoena witnesses, administer oaths, take testimony, and require the production of evidence. Any person who fails or refuses to obey a lawful order issued in the exercise of these powers by the Council shall be guilty of a misdemeanor and punishable as directed by Council ordinance.

Section 209: PROCEDURE

(A) **MEETINGS.** The Council shall hold a regular meeting at least twice in every month at such times and place as the Council may prescribe by ordinance. Special meetings may be held on the call of the Mayor or of an absolute majority of the Council and, whenever practicable, upon no less than twenty-four (24) hours' notice to each member and the public. News media located in the City shall be given prior notice of the time and place of such meetings. All such regular or special meetings shall be open to the public, provided, however, that the Council may recess and discuss in executive session any matter which might defame or prejudice the character or reputation of any person, matters relating to negotiations for the acquisition of real estate or public utilities or to the settlement of claims or litigation, or personnel matters, and provided that the final action thereon shall not be taken by the Council except at a public meeting. The Council may hold informal meetings in advance of any regular or special meetings for the purpose of discussing matters on the agenda or other matters pertaining to the welfare of the City. (Amd. Charter Election 3-29-94)

(B) **RULES AND JOURNAL.** The Council shall determine its own rules, order of business, and conduct of public meetings and shall provide for keeping a journal of its proceedings. This journal shall be a public record.

(C) **VOTING.** Voting on all ordinances and resolutions other than commendations and ceremonial resolutions shall be by written aye or nay on an individual ballot containing the name of the Councilmember. Voting on other matters may be by voice vote, provided that upon the request of any Councilmember, voting on any question shall be by written ballot as above set forth. Votes by written ballot shall be tabulated immediately by the Clerk and the ayes and nays made public and recorded. The Council may by ordinance adopt any other means of voting which requires each Councilmember to vote without knowledge of any other Councilmember's vote until the voting has been tabulated. No Councilmember shall abstain from voting except on matters involving his own official conduct or a conflict of his disclosed personal interest. (Amd. Charter Election 3-30-76)

(D) **QUORUM.** An absolute majority of the Council shall constitute a quorum, but fewer may adjourn and may compel the attendance of absent members in the manner and subject to the penalties prescribed by the rules of the Council. No action of the Council, except as otherwise provided in the preceding sentence and in Section 206(C)2, shall be valid or binding unless adopted by a vote of an absolute majority.

Section 210: ACTION REQUIRING AN ORDINANCE

In addition to other acts required by law or by specific provision of this Charter to be done by ordinance, those acts of the City Council shall be by ordinance which:

(A) Adopt or amend a City Code or establish, alter, or abolish any City department, office, or agency.

(B) Impose or provide for imposing a fine or other penalties.

(C) Regulate rates and fees charged by public utilities and fix rates and fees for City-owned utilities.

(D) Amend or repeal any ordinance previously adopted.

Section 211: ORDINANCES IN GENERAL

(A) **FORM.** Every proposed ordinance shall be introduced in writing and in the form required for adoption. No ordinance shall contain more than one (1) subject, which subject shall be clearly expressed in its title. The enacting clause shall be, "Be it ordained by the City Council of the City of Mesa . . . "

(B) **PROCEDURE.** An ordinance may be introduced by any Councilmember at any regular or special meeting. (Amd. Charter Elections 3-30-76 & 3-31-92)

1. Upon introduction of any ordinance, the City Clerk shall distribute a copy to each Councilmember. The Clerk shall file copies in his office to be made available to the public, shall post a copy in each of the three (3) public places designated for the posting of public meeting notices and agendas, and shall publish at least one (1) time a summary of the ordinance, together with a notice setting out the time and place for a public hearing thereon and for its consideration by the Council. (Amd. Charter Election 3-31-92)

2. The public hearing shall follow the publication by at least six (6) days and shall be held during a regular Council meeting. The public present shall have an opportunity to be heard. (Amd. Charter Election 3-31-92)

3. After the public hearing, the Council may adopt the ordinance or reject it. However, if the ordinance is amended in any manner, the Council shall not adopt it until the ordinance and its amended sections have been subjected to all the procedures required in the case of a newly introduced ordinance. (Amd. Charter Election 3-31-92)

4. All adopted ordinances shall be publicly posted as provided in Subsection (B)1 and shall be published in full within two (2) weeks following adoption as provided in Subsection (D). (Amd. Charter Election 3-31-92)

(C) **EFFECTIVE DATE.** Except as otherwise provided in Section 212, every ordinance shall become effective thirty (30) days after adoption or at any later date specified therein.

(D) **"PUBLISH" DEFINED.** As used in this Charter, the term "publish" means to print at least one (1) time in one (1) or more newspapers of general circulation in the City. (Amd. Charter Election 3-31-92)

(E) **DAY OF PUBLICATION.** Whenever not inconsistent with any other requirement of law, the City Council shall by resolution, designate two (2) days of the week on which legal notices may be published. The Council shall designate one (1) day as primary and one (1) day as secondary, that will be used if needed. (Amd. Charter Election 3-9-04/4131)

Section 212: EMERGENCY ORDINANCES

(A) **"EMERGENCY" DEFINED.** As used in this Section, an emergency ordinance is one necessary for the immediate preservation of the public peace, health, or safety.

(B) **MATTERS NOT TO BE CLASSIFIED AS "EMERGENCIES."** Ordinances levying taxes or granting, renewing, or extending a franchise or regulating the rate charged by any public utility for its services, except as otherwise provided in this Charter, shall not be classified as emergency measures.

(C) **PROCEDURE.** An emergency ordinance shall be introduced in the form and manner prescribed for ordinances generally, except that it shall be plainly designated as an emergency ordinance. The ordinance shall contain in one section after the enacting clause a declaration stating that an emergency exists and describing in clear and specific terms the necessity for declaring such ordinance to be an emergency measure required for the immediate preservation of the public peace, health, or safety. (Amd. Charter Election 3-31-92)

(D) **ADOPTION.** The Council may by a three-fourths (3/4) affirmative vote of its members adopt an emergency ordinance, with or without amendments, on the date of its introduction or at any regular or special meeting. It shall become effective upon adoption. After adoption, the ordinance shall be publicly posted and published as provided for ordinances in general. (Amd. Charter Election 3-31-92)

Section 213: CODES AND PUBLIC RECORDS

(A) **PROCEDURE.** The Council may adopt any standard Code or Public Record by reference thereto in an adopting ordinance in the manner set forth in the statutes of the State of Arizona. The procedure and requirements governing such an adopting ordinance shall otherwise be as prescribed for ordinances generally.

(B) **DISTRIBUTION.** Copies of any adopted standard Code or Public Record shall be made available by the City Clerk for distribution or for purchase at a reasonable price.

Section 214: AUTHENTICATION, RECORDING, CODIFICATION

(A) **AUTHENTICATION AND RECORDING.** The City Clerk shall authenticate by his signature and record in full in a properly indexed book all adopted ordinances and resolutions.

(B) **CODIFICATION.** The City Code shall be updated and made available to the public. All City ordinances and resolutions having the effect of law shall be codified. The name shall be "Mesa City Code."

ARTICLE III.
CITY MANAGER

Section 301: APPOINTMENT

The Council shall by vote of at least two-thirds (2/3) of its members appoint the City Manager for an indefinite term, and the Council shall fix his compensation. He shall be chosen on the basis of his qualifications

for the office, with first preference given to applicants who reside in Mesa. He shall within sixty (60) days after his appointment and thereafter during his tenure in office reside in the City of Mesa. He shall be a citizen of the United States of America.

Section 302: REMOVAL

The Council may remove the Manager at any regular or special meeting by a vote of at least two-thirds (2/3) of the Council. It may pay him severance pay not exceeding two (2) months' salary. A dismissed Manager shall, upon his request, have a public hearing; however, the action of the Council shall be final and not subject to review by any court or agency. This Charter vests all authority to suspend and remove the Manager in the Council.

Section 303: DUTIES

The Manager shall be the chief administrative officer of the City, responsible to the Council for the administration and coordination of all departments, boards, and affairs assigned to him by this Charter, by ordinance, or by resolution. He shall have authority and responsibility to:

(A) Attend Council meetings and present information and recommendations he deems necessary or as requested by any member of the Council, but he shall have no vote.

(B) Recommend and upon approval by the Council, appoint all City officers (except those subject to Council appointment pursuant to Section 401) and when deemed necessary suspend and after approval of the Council, remove them.

(C) Pursuant to the merit system regulations appoint, and when necessary remove, all employees of the City, except as he may authorize heads of departments and offices to appoint and remove their own subordinates. Any unexcused voluntary absence of any employee shall constitute resignation.

(D) Recommend to the Council personnel policies and assignments for efficient operation of the City government.

(E) Submit to the Council the annual budget and capital program.

(F) Supervise all expenditures and purchases of the City.

(G) See that all laws, provisions of this Charter, and acts of the Council subject to enforcement by him or by officers under his direction are faithfully executed.

(H) Execute, or cause to be executed by his designated representative, all contracts and other lawful documents authorized by the Council.

(I) Perform any other lawful duties required of him by the Council.

Section 304: RESTRICTIONS

(A) The Manager shall not engage in any other employment during his tenure of office.

(B) The Manager shall take no part in campaigns for election of Mayor or Councilmembers other than to cast his vote and express privately his opinions. (Amd. Charter Election 3-30-76)

(C) The Manager shall not exercise any policy making or legislative functions. All law enforcement policies shall be determined by the Council.

Section 305: ACTING CITY MANAGER

By letter filed with the City Clerk, the Manager shall designate a qualified City employee, and an alternate, to become Acting Manager in the event of his temporary absence or disability. The Council may revoke such designation and appoint another employee to serve as Acting Manager until the Manager shall return.

ARTICLE IV

DEPARTMENTS, OFFICES, AND AGENCIES

Section 401: APPOINTIVE OFFICERS

(A) **CITY CLERK.** Upon the recommendation of the Manager, the Council shall appoint a City Clerk and fix his compensation. The City Clerk shall give notice of formal Council meetings to its members and to the public, keep the journal of its proceedings, and perform any other lawful duties assigned by this Charter, the Council, or the Manager. The City Clerk shall serve at the pleasure of the Council.

(B) **CITY ATTORNEY.** The Council shall appoint a City Attorney and fix his compensation. He shall serve as the chief legal advisor to the Council, the Manager, and all City departments, offices, and agencies. He shall represent the City in all legal proceedings and shall perform any other duties prescribed by this Charter, law, or ordinance. The City Attorney shall serve at the pleasure of the Council.

(C) **CITY MANAGER.** There shall be a City Manager appointed in accordance with Article III of this Charter.

(D) **CITY MAGISTRATE.** The Council shall appoint one (1) or more City Magistrates, each of whom shall be a member of the Arizona Bar. Compensation of City Magistrates shall be fixed by the Council. Magistrates shall serve at the pleasure of the Council.

(E) **CITY AUDITOR.** The Council shall appoint a City Auditor and fix his compensation. He shall conduct all audits requested by the City Council or the Manager, to ensure that the City is functioning economically, efficiently and effectively in accordance with legislative and management directives. The City Auditor shall serve at the pleasure of the Council.

Section 402: GENERAL PROVISIONS

(A) **CREATION OF DEPARTMENTS AND OFFICES.** In addition to the offices and departments established by this Charter, the Council may establish by ordinance additional City departments, offices, or agencies and prescribe their functions.

(B) **DIRECTION BY MANAGER.** Except as otherwise provided by Section 401 of this Charter, each department, office, and agency shall be under the direction and supervision of the Manager.

Section 403: PERSONNEL SYSTEM

(A) **MERIT SYSTEM.** All appointments and promotions of City officers and employees shall be made solely on the basis of merit and fitness demonstrated by examination or other evidence of competence.

(B) **PERSONNEL DIRECTOR.** There shall be a Personnel Director, appointed by the Manager as provided in Section 303(B), who shall administer the personnel system of the City.

(C) **MERIT SYSTEM BOARD.** There shall be a Merit System Board consisting of three (3) or more members who shall hold no other City office.

(D) **PERSONNEL RULES.** The Personnel Director, the Merit System Board, and the Manager shall prepare personnel rules which shall be proposed to the Council, and the Council may by ordinance adopt them, with or without amendment.

Section 404: PERSONNEL APPEALS BOARD

There shall be a Personnel Appeals Board consisting of three (3) or more members, none of whom shall be members of the Merit System Board. The Personnel Appeals Board, assisted by the Personnel Director, shall prepare rules and provide for grievance procedures. The Manager shall submit these rules and procedures, with his recommendation, to the Council, which may by ordinance adopt them, with or without amendment. The Personnel Appeals Board, after a hearing, may render advisory opinions to the Manager, with a copy to the aggrieved employee.

Section 405: PLANNING DEPARTMENT

There shall be a Planning Department, headed by a Director, which department shall be responsible for planning the orderly development of the City.

Section 406: PLANNING AND ZONING BOARD

There shall be a Planning and Zoning Board. Members of the Board shall hold no other City office, but City officials may serve as advisors to the Board. The Board, with the assistance of the Planning Director, may make recommendations to the Manager and the Council on all matters pertaining to the physical development of the City. It shall be consulted on the comprehensive plan and the implementation thereof as provided in Sections 407 and 408 and shall perform such other functions as provided by law.

Section 407: COMPREHENSIVE PLAN

(A) **CONTENT.** The Council shall adopt, and may from time to time modify, a comprehensive plan setting forth in graphic and textual form policies to govern the future physical development of the City.

(B) **EFFECT.** The comprehensive plan shall serve as a guide to all future Council action concerning land use and development regulations and expenditures for capital improvements.

Section 408: IMPLEMENTATION OF THE COMPREHENSIVE PLAN

(A) **AREA IMPROVEMENT.** The Council may by ordinance provide for improvement, rehabilitation, and conservation programs for: (1) the alleviation or prevention of obsolescence, blight, or other conditions of

deterioration; (2) the achievement of the most appropriate use of land; and (3) expend for such purposes funds of the City and may issue bonds for such purposes in the manner provided by the laws of the State of Arizona.

(B) **HOUSING CODE.** No housing code shall be adopted by the Council without approval of the qualified electors of the City voting thereon at a general or special election.* The Council may implement an Individual Residential Rental Inspection program as authorized by State law. (Amd. Charter Election 11-4-08/4831)

* On March 14, 2000, the voters approved Proposition 400 (Ordinance No. 3478), which created a housing code for certain issues. See Title 8, Chapter 6 of the Mesa City Code.

Section 409: BOARD OF ADJUSTMENT

The Council shall, as required by state law, establish a Board of Adjustment, none of whose members shall be members of the Planning and Zoning Board or employees of the City, and shall provide standards and procedures for such Board. The Board shall hear and rule on appeals from administrative decisions, petitions for variances in the case of peculiar and unusual circumstances which would prevent the reasonable use of the land, and such other matters as may be required by the Council or by law.

Section 410: CITY COURT

There shall be a City Court of one (1) or more divisions, each presided over by a City Magistrate, with jurisdiction established by state law or by ordinance.

ARTICLE V
BOARDS AND COMMISSIONS

Section 501: BOARDS AND COMMISSIONS

(A) **CREATION.** The Council may by ordinance create such advisory boards or commissions as in its judgment are required or as now are provided by law and may grant to them such powers and duties as are consistent with this Charter. The Council may abolish any board or commission not required by law or by Charter. A civilian Police Review Board is prohibited by this Charter.

(B) **APPOINTMENT.** The Mayor shall appoint all board and commission members with the approval of the Council. Appointees shall be residents of the City. (Amd. Charter Election 3-29-94)

(C) **TERMS.** Terms of board and commission members shall be staggered terms of three (3) years, except as otherwise provided by law. No member shall serve more than two (2) complete consecutive terms; however, a person may be reappointed after the lapse of three (3) years.

ARTICLE VI
FINANCE AND TAXATION

Section 601: FISCAL POWERS

The powers of the City concerning budget, taxation, finance, and fiscal matters shall be limited only by the provisions of the Constitution and laws of the State and by this Charter.

Section 602: TAXES

(A) **TRANSACTION PRIVILEGE TAX.** The Council shall have the power to levy a transaction privilege tax (commonly called sales tax), provided that no such tax, if based on gross income, gross proceeds of sale, or gross receipts, shall be levied at a rate in excess of one percent (1%), unless such rate is approved by a majority of the qualified electors voting on the question at a general or special election.

(B) **INCOME TAX.** No tax shall be levied on incomes unless approved by a majority of the qualified electors voting thereon at a general or special election.

(C) **REAL ESTATE TAX.** No tax shall be levied on real estate unless approved by a majority of the qualified electors voting thereon at a general or special election. (Amd. Charter Election 3-14-00/IN99-2)

(D) **PERSONAL PROPERTY TAX.** No tax shall be levied on personal property unless approved by a majority of the qualified electors voting thereon at a general or special election. (Amd. Charter Election 3-14-00/IN99-2)

Section 603: CLAIMS OR DEMANDS AGAINST THE CITY

The Council shall prescribe by ordinance the manner in which claims or demands against the City shall be presented, audited, and paid and may impose reasonable requirements with regard to notice and prompt presentation as a condition of payment.

Section 604: SPECIAL FUNDS AND RESERVE ACCOUNTS

The Council may establish such cash basis funds, special funds, and reserve accounts as it deems necessary.

Section 605: CAPITAL PROGRAM

(A) **SUBMISSION TO COUNCIL.** Prior to the beginning of each fiscal year, the Manager shall prepare and submit to the Council a five- (5-) year capital program. (Amd. Charter Election 11-6-2012/5105)

(B) **CONTENTS.** The capital program shall include:

1. A clear, general summary of its contents.
2. A list of all capital improvements which are proposed to be undertaken during the next five (5) fiscal years, with appropriate supporting information as to the necessity for such improvements.
3. Cost estimates, method of financing, and recommended time schedules for each such improvement.
4. The estimated annual cost of operating and maintaining the facilities to be constructed or acquired.

The above information may be revised and extended each year with regard to capital improvements still pending or in process of construction or acquisition.

Section 606: COUNCIL ACTION ON CAPITAL PROGRAM

(A) **NOTICE AND HEARING.** Prior to adoption, the Council shall publish a general summary of the capital program and a notice stating:

1. The times and places where copies of the capital program are available for inspection by the public.

2. The time and place, not less than two (2) weeks after such publication, for a public hearing on the capital program.

(B) **ADOPTION.** The Council by resolution shall adopt the capital program, with or without amendment, on or before the date the annual budget is adopted. (Amd. Charter Election 3-25-86)

Section 607: INDEPENDENT ANNUAL AUDIT

Prior to the end of each fiscal year, the Council shall designate a Certified Public Accountant who shall prepare, as of the end of the fiscal year, an audit of the financial transactions of the City government. He shall submit a long-form report, including recommendations concerning policy and fiscal procedures, to the Council and to the Manager. Such Accountant shall have no personal interest, direct or indirect, in the fiscal affairs of the City government or of any of its officers.

Section 608: ORDINANCES AND RESOLUTIONS ON BUDGET

Notwithstanding any other provisions of this Charter, all ordinances or resolutions necessary in connection with the adoption of the annual budget may be adopted and go into effect immediately on the affirmative vote of at least two-thirds (2/3) of the members of the Council.

Section 609: PROCUREMENT

(A) **INTENT.** It is the general intent and policy that open, competitive procurement methods are followed in the purchase of materials, supplies, commodities, equipment, insurance and capital improvements (collectively the "materials") whenever possible. The City Council shall establish by ordinance a procedure to implement this policy and may determine exceptions thereto. For City Council approved purchases in Section 609(B), the City Council shall accept those procurement responses that, under all circumstances, appear to be in the best interest of the City unless all responses are rejected.

(B) **PROCUREMENT METHODS.** Procurement of materials exceeding twenty-five thousand dollars ($25,000) or other amount as City Council may establish by Ordinance are large dollar procurements requiring public notice and City Council approval; for all other procurements of materials, the City Manager or designee will determine the procurement methods that are the most practicable and advantageous to the City. The City Manager or designee shall adopt policies and procedures to provide for efficient and cost-effective purchasing practices.

(C) **EMERGENCY PROCUREMENTS.** Notwithstanding any other provisions of this Section, the City Manager or designee may make or authorize others to make emergency procurements of materials where necessary for the immediate preservation of the public peace, health, or safety and compliance with established procurement procedures are impracticable or contrary to the public interest. An emergency procurement shall be limited to those materials necessary to satisfy the emergency. Any emergency procurement exceeding the dollar limit for City Council approval shall be scheduled for ratification at the next reasonably available City Council meeting.

(D) **COOPERATIVE PURCHASING.** The City Manager or designee shall have the authority to participate in cooperative purchases for all procurements. Participation in cooperative purchases shall be deemed to comply with this Section. Any large dollar procurement using cooperative purchasing shall be approved by City Council prior to commencing any purchase.

(E) **ELECTRONIC PROCUREMENT METHODS.** Electronic procurement methods may be used for the purchase of materials using procedures developed and implemented by the City Manager or designee. If electronic procurement methods are used for the purchase of materials requiring City Council approval, public notice shall be given as defined in Section 609(F).

(F) **PUBLIC NOTICE.** For the purposes of this Section, "public notice" shall mean the distribution or dissemination of information to interested parties at least one (1) time using methods that are reasonably available. Such methods may include, but are not limited to, publication on the City's website or in newspapers of general circulation, mailing lists, or any other method providing widespread circulation.

(Amd. Charter Elections 3-30-76 and 3-9-04/4126; Ord. No. 5703, § 1, 5-16-22, election of 11-8-22)

Section 610: INSURANCE

(A) **GENERAL INSURANCE.** The City is empowered to insure any of its property against such risks as it may determine.

(B) **LIABILITY INSURANCE.** The City may:

1. Insure itself against all or part of any liability for any injury.
2. Insure any employee of the City against all or any part of his liability for injury resulting from an act or omission within the scope of his employment.
3. Insure against the expense of defending a claim against the City or its employees, whether or not liability exists on such claim.
4. The insurance hereby authorized may be provided by:
   (a) Self-insurance, which shall be funded by appropriations to establish and maintain a reserve fund for self-insurance purposes. This fund may be used for the payment of claims against the City or judgments rendered against the City or its employees. If a self-insurance plan is discontinued, the reserve funds shall revert to the general fund.
   (b) Insurance with any insurer authorized to transact insurance business in this state.
   (c) Any combination of insurance authorized by paragraphs (a) and (b) of this Subsection.

(C) **GROUP INSURANCE.** The City may participate to the extent determined by the Council in the cost of group insurance programs for City officers and employees.

Section 611: INVESTMENT OF CITY FUNDS

The Council may authorize the investment of any money subject to its control in any security authorized by the laws of the State of Arizona for the investment of sinking funds.

Section 612: LEVY AND ENFORCEMENT OF LIENS ON REAL PROPERTY

The Council may provide by ordinance for the levy and collection of assessments and the filing of liens on real property to enforce collection of reasonable amounts expended by the City in the abatement of any nuisance, the demolition and removal of any legally condemned building or structure, and the cleaning and renovating of vacant lots which are offensive to the sight or smell or hazardous to the public health.

Section 613: VOTER APPROVAL FOR CERTAIN PUBLIC EXPENDITURES

Notwithstanding any other provision of the Charter of the City of Mesa, the City shall not expend public funds, grant tax concessions or relief, or incur any form of debt in an amount greater than one million, five hundred thousand dollars ($1,500,000), and/or exchange or grant City-owned land of a fair market value in excess of one million, five hundred thousand dollars ($1,500,000) to construct or aid in the construction of any amphitheater, sports complex, cultural or entertainment facility, arena, stadium, convention facility, or multi-purpose facility without approval of the majority of the electorate voting thereon at the next ensuing election. (Amd. Charter Election 3-9-04/IN02-2)

ARTICLE VII
NOMINATIONS AND ELECTIONS

Section 701: CITY ELECTIONS

(A) **DATE OF ELECTION.** Except as provided below, the primary election shall be held on the last Tuesday of March of each even-numbered year, and the general election, if required, shall be held on the fifth (5th) Tuesday following the primary election.* (Amd. Charter Election 3-29-94)

(B) **QUALIFIED ELECTORS.** All residents of the City qualified by the Constitution and laws of the State of Arizona and registered to vote shall be qualified electors of the City.

(C) **REGISTRATION LISTS.** The Council may contract with the County to furnish registration lists of qualified electors and shall determine the date for closing registration for all City elections.

(D) **ABSENTEE VOTING.** Provisions for absentee voting shall apply to all general, primary, or special elections of the City and shall be exercised in the manner provided by general state law, provided that the Council may by ordinance prescribe absentee voting procedures.

(E) **CONDUCT OF ELECTIONS.** Except as otherwise provided by this Charter, the provisions of the election laws of the State of Arizona shall apply. The Council shall adopt by ordinance all necessary election regulations consistent with law and with this Charter.

(F) **ALIGNMENT OF ELECTION DATES.** Notwithstanding any other provision of this Charter, the City Council may by ordinance change the primary and general election dates set forth in this Charter in order to align City of Mesa elections with elections in other cities, the Mesa school district, the county, the state, or the federal government. (Amd. Charter Election 3-29-94)

* An election for the approval of an obligation or authorization of the assessment of secondary property taxes must be held on the first Tuesday after the first Monday in November, except as provided in Title 48 (see A.R.S. §16-204(F)(4)). Pursuant to Section 701(F) of this Charter and Ordinance 5292, the Primary election for the Offices of Mayor and Councilmember shall be held on the tenth Tuesday before the first Tuesday after the first Monday in November of even-numbered years. The General election shall be held on the first Tuesday after the first Monday in November of even-numbered years.

Section 702: WATCHERS AND CHALLENGERS

A regularly nominated candidate shall be entitled, upon written application to the City Clerk at least five (5) days before the election, to appoint one (1) person to represent him as watcher and challenger at each polling place. A person so appointed shall have all the rights and privileges prescribed for watchers and challengers by or under the election laws of the State of Arizona.

Section 703: BALLOTS FOR ORDINANCES AND CHARTER AMENDMENTS

An ordinance or Charter amendment requiring a vote of the electors shall be presented for voting by ballot title. The ballot title of a measure may differ from its legal title and shall be a clear, concise statement describing the substance of the measure without argument or prejudice. Below the ballot title shall appear the following question: "Shall the above-described (ordinance) (amendment) be adopted?" Immediately below such question shall appear the words "yes" and "no" and a square by each in which by making a cross (x) the elector may cast his vote. The Council may provide for the use of mechanical or other devices for voting or the counting of votes not inconsistent with law.

ARTICLE VIII
INITIATIVE, REFERENDUM, AND RECALL

Section 801: GENERAL AUTHORITY

(A) **INITIATIVE AND REFERENDUM.** There is reserved to the electors of the City the power of the initiative and the referendum as prescribed by state law, except that the required number of signatures on petitions shall be computed on the total vote for Mayor in the preceding election and provided that any initiative or referendum matter may be voted on at the next ensuing primary or general election or the Council may call a special election for such purposes.

(B) **RECALL.** Recall of elected officers is reserved to the electors of the City as prescribed by state law.

ARTICLE IX
GENERAL PROVISIONS

Section 901: PERSONAL FINANCIAL INTEREST

(A) **DISCLOSURE OF INTEREST.** Any City officer, board or commission member, or employee who has a substantial financial interest, direct or indirect, by reason of ownership of tangible or intangible property, supplies, or services to the City shall make known that interest and shall refrain from voting upon or otherwise participating in making such sales or contracts.

(B) **PENALTY FOR VIOLATIONS.** Any willful violation of this Section shall constitute malfeasance in office or position, and any person found guilty thereof shall thereby forfeit such office or position. Violation of this Section with the knowledge, express or implied, of the person or corporation contracting with the City shall render the contract voidable by the Council.

(C) **REMOTE INTEREST.** A City officer, board or commission member, or employee shall not be deemed to have a substantial financial interest, direct or indirect, in any contract or in the sale of land, materials, supplies, or services to the City if such person has only a remote interest therein as defined by state law, or in the absence of state law, it shall be defined by ordinance.

Section 902: PROHIBITIONS AND PENALTIES

(A) **ACTIVITIES PROHIBITED.**

1. No person shall be appointed to, removed from, favored in any way, or discriminated against with respect to any City position because of race, sex, political or religious affiliation or nonaffiliation, or membership or nonmembership in a union.

2. No person shall willfully make any false statement, certificate, mark, rating, or report or in any manner commit or attempt to commit any fraud preventing the impartial execution of the personnel provisions, rules, or regulations.

3. No person shall directly or indirectly give, render, or pay any money, service, or other valuable thing to any person for or in connection with his test, appointment, promotion, or proposed promotion. Nor shall any City officer or employee ask or receive anything of value for aid or offer of aid in connection with any City appointment, employment, or promotion.

4. No person elected or employed by the City shall orally, by letter, or otherwise solicit or assist in soliciting any assessment, subscription, or contribution for any political party or political purposes whatever from any person holding any compensated appointive City position.

5. No person shall solicit for such purposes from compensated City personnel during their working hours.

6. No person who holds any compensated appointive City position shall make, solicit, or receive any contribution to the campaign funds of any candidate for municipal office or take part in the management, affairs, or election campaign of any such candidate, but he may exercise any other rights of a qualified elector.

(B) **PENALTIES.** Any person who by himself or with others willfully violates any of the provisions of Section 902 shall upon conviction thereof be guilty of a misdemeanor and be punished as specified by City ordinance.

Section 902.1: ALCOHOLIC BEVERAGES; MESA COMMUNITY CENTER

The City of Mesa shall take such action as is necessary to enable any person, group, or organization hosting any function or event at the Mesa Community Center which desires to do so to make alcoholic beverages available to those attending the function or event in the manner prescribed by law. (Amd. Charter Election 3-30-82)

Section 903: CHARTER AMENDMENTS

(A) **PROPOSAL OF AMENDMENTS.** Amendments to this Charter may be framed and proposed:

1. By ordinance of the Council containing the full text of the proposed amendment to be effective upon adoption in the manner provided by Subsection (C) of this Section.

2. By report of a Charter Commission created by ordinance.

3. By the electors using the initiative procedure as provided in this Charter or by ordinance or by law, except that there shall be no limitation as to subject matter and the initiative petition must be signed by the qualified electors of the City equal in number to at least fifteen percent (15%) of the total votes cast for the office of Mayor at the preceding election. The petitioners may withdraw the petition before the fifteenth (15th) day prior to the date scheduled for the City vote on the amendment.

(B) **ELECTION.** After submission of a proposed amendment as above provided, the Council shall submit same to the electors. The complete text of the proposed amendment shall be published at least thirty (30) days prior to the election. The Council may submit such proposed amendment at the next primary or general election or may call a special election for such purpose. Such election shall be held not sooner than one hundred twenty (120) days after the submission of the proposed amendment. (Amd. Charter Elections 3-29-94 and 3-9-04/4127)

(C) **ADOPTION OF AMENDMENT.** If a majority of the qualified electors of the City voting upon the proposed Charter amendment vote in favor of it, the amendment shall become effective at the time fixed in the amendment, or if no time is fixed therein, thirty (30) days after its adoption by the electors and upon approval by the Governor of the State of Arizona.

Section 905: SEPARABILITY

If any provision of this Charter is held invalid, the other provisions of the Charter shall not be affected thereby. If the application of the Charter or any of its provisions to any person or circumstance is held invalid, the application of the Charter and its provisions to other persons or circumstances shall not be affected thereby.

Section 906: GENDER

In this Charter words of the masculine gender include the feminine.

ARTICLE X

SUCCESSION IN GOVERNMENT

Section 1001: RIGHTS OF OFFICERS AND EMPLOYEES PRESERVED

Nothing in this Charter, except as specifically provided, shall affect or impair: (1) the rights or privileges of officers or employees of the City; (2) the functions and responsibilities of any office, department, or agency existing at the time this Charter takes effect; (3) any provision of law in force at the time this Charter takes effect

and not inconsistent with the provisions of this Charter in relation to the personnel, appointment, rank, grades, tenure of office, promotion, removal, pension and retirement rights, civil rights, or any other privileges of officers or employees of the City or any office, department, or agency.

Section 1002: CONTINUANCE OF PRESENT OFFICERS

(A) **MAYOR AND COUNCILMEMBERS.** The Mayor and Councilmembers serving at the time this Charter takes effect shall serve until the Mayor and Councilmembers provided for in Article II of this Charter shall have been elected and qualified. (Amd. Charter Election 3-30-76)

(B) **APPOINTIVE OFFICERS.** All persons holding appointive office by the Council or the Manager at the time this Charter takes effect shall continue in office and in the performance of their duties unless relieved of office or until such office or duties are abolished or changed.

Section 1003: CONTINUANCE OF PRESENT OFFICES, DEPARTMENTS, AND AGENCIES

Continuity of certain powers and duties: Any office, department, or agency provided for in this Charter with powers and duties the same or substantially the same as those heretofore existing shall be deemed a continuation of such office, department, or agency and shall have powers to continue any business proceedings or other matters within the scope of the powers and duties prescribed by this Charter.

Section 1004: CONTINUANCE OF APPOINTIVE BOARDS AND COMMISSIONS

All existing appointive boards and commissions shall continue with existing powers and duties until changed or abolished by the Council as provided in this Charter.

Section 1005: TRANSFER OF RECORDS AND PROPERTY

All records and property of any existing office, department, or agency shall be transferred to the office, department, or agency assuming its power and duties under this Charter.

Section 1006: PENDING MATTERS

(A) **CONTINUANCE OF CONTRACTS.** All contracts entered into by the City or for its benefit prior to the time this Charter takes effect shall continue in full force and effect.

(B) **PENDING ACTIONS AND PROCEEDINGS.** The adoption of this Charter shall not abate or otherwise affect any pending action or proceedings, civil or criminal, brought by or against the City or any office, department, agency, or officer thereof.

(C) **ORDINANCES TO REMAIN IN FORCE.** All ordinances, resolutions, and regulations of the City in force at the time this Charter takes effect and not inconsistent with the provisions hereof are hereby ratified and affirmed as if the same had been adopted pursuant to a grant of power under this Charter.

Section 1007: CONFORMITY OF CHARTER WITH STATE LAW

This Charter is and shall be cumulative of all other laws of the state governing cities of more than three thousand five hundred (3,500) inhabitants not in conflict herewith. The enumeration of the powers made in this Charter shall not be construed to preclude, by implication or otherwise, the City from doing any and all things not

prohibited by the Constitution and laws of Arizona or by this Charter. Changes in state law concerning issues of statewide impact affecting the City and modifying this Charter may be reflected in this Charter through a footnote or other form of annotation. The City Council is authorized to direct the City Clerk to insert such footnotes or annotations. (Amd. Charter Election 3-29-94)

Section 1008: INAUGURATION OF GOVERNMENT UNDER THIS CHARTER

If a majority of the qualified electors of the City voting on the question vote to ratify this Charter, its provisions shall go into effect upon the approval of the Governor of the State of Arizona.

CERTIFICATE BY BOARD OF FREEHOLDERS

WHEREAS, the City of Mesa, in the County of Maricopa, State of Arizona, did on the 21st day of March 1967 at a special election duly called and held under and in accordance with the Constitution and laws of the State of Arizona elect WILLIAM J. ASHER, DILWORTH C. BRINTON, L. BLAIN CUMMARD, FRED E. EWART, JAMES E. GARDNER, HENRY H. HAWS, EARL N. HORLBECK, MAURICE I. JONES, G. LEE MUMFORD, LAWRENCE H. PACKARD, WEYMOUTH D. PEW, PATRICK G. POMEROY, LOUIS E. STRADLING and DAVID K. UDALL as a Board of Freeholders and qualified electors of said City to prepare and propose a Charter for said City.

BE IT KNOWN, that in pursuance of said provisions of the Constitution and laws of the State of Arizona, and within a period of ninety (90) days after said election, said Board of Freeholders did prepare and does propose the foregoing as and for the Charter of said City of Mesa.

DATED at Mesa, Arizona, this 2nd day of June 1967 and respectfully submitted.

CHARTER COMPARATIVE TABLE

This table shows the amendments of the City Charter.

Date	Docket No./Document No.
8-18-1967	Docket No. 6595, Pages 680—715
5- 3-1976	Docket No. 11667, Pages 597—600
8- 1-1978	Docket No. 13142, Pages 792—795
4-26-1982	Docket No. 16000, Pages 1027—1029
4-22-1986	Document No. 86-220518
5- 1-1992	Document No. 92-360980
6-21-1994	Document No. 94-540876
2-27-1995	Document No. 95-0196266
6-29-1998	Document No. 98-0584855
6- 2-2000	Document No. 00-0459480
4- 5-2004	Document No. 2004-0523658
6-30-2006	Document No. 2006-0984145
2-17-2009	Document No. 2009-0162235
3- 7-2013	Document No. 2013-0226014

CHARTER COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

Ordinance Number	Election Date	Section	Section this Charter
5650	11-15-21	3	202(note)
5703	11- 8-22	1	609
5704	11- 8-22	1	205(D)

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CHAPTER 1 ADOPTION OF OFFICIAL CODE

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1-1-2: ACCEPTANCE
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CHAPTER 2 SAVING CLAUSE

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CHAPTER 3 CITY LIMITS

1-3-1: CITY LIMITS

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1-4-1: CORPORATE SEAL

CHAPTER 5 THE COUNCIL

1-5-1: GENERAL POWERS
1-5-2: MEETINGS
1-5-3: VOTES OF MEMBERS
1-5-4: COMPULSORY ATTENDANCE
1-5-5: MISCONDUCT OF MEMBERS
1-5-6: VICE MAYOR AND MAYOR PRO TEM
1-5-7: AGENDA
1-5-8: COUNCIL PROCEDURE
1-5-9: REMOVAL OF BOARD AND COMMISSION MEMBERS; RESIGN TO RUN
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1-6-1: COUNCIL COMMITTEES
1-6-2: COMMITTEE MEMBERS
1-6-3: AGENDA
1-6-4—1-6-8: RESERVED

CHAPTER 7 CITY MAGISTRATES AND THE PRESIDING CITY MAGISTRATE

1-7-1: DEFINITIONS
1-7-2: APPOINTMENT AND COMPENSATION
1-7-3: TERM OF OFFICE

CHAPTER 8 QUALIFIED ELECTORS

1-8-1: QUALIFIED ELECTOR; DEFINITION
1-8-2: PETITION CIRCULATORS

CHAPTER 9 RECORDS

1-9-1: FORMS
1-9-2: RECORDS
1-9-3: FILES
1-9-4: MINUTES
1-9-5: SPECIAL ORDINANCES
1-9-6: APPROVED FORMS
1-9-7: REGULATORY AND DIRECTORY RESOLUTIONS

CHAPTER 10 PUBLICATION OF PROCEEDINGS

1-10-1: PUBLICATIONS
1-10-2: POSTING
1-10-3: BIENNIAL STATEMENT (REPEALED)

CHAPTER 11 RECALL

1-11-1: RECALL

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1-12-2: PROCEDURE OF POLICE COURT
1-12-3: COURT SUSTAINABILITY FEE
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1-12-6: COLLECTION AGENCY FEES AND CHARGES
1-12-7: PAYMENT OF COSTS OF CONFINEMENT
1-12-8: APPOINTMENT OF CIVIL TRAFFIC HEARING OFFICERS AND COURT COMMISSIONERS
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CHAPTER 13 PROPERTY IMPROVEMENT ASSESSMENT SALES

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1-13-2: LAND MAY AGAIN BE SOLD
1-13-3: NOTICE OF SALE BY REFERENCE TO PARCEL OF LAND
1-13-4: SALE OF PROPERTY TO THE CITY

CHAPTER 14 EMERGENCY POWERS OF MAYOR

1-14-1: EMERGENCY POWERS OF MAYOR

CHAPTER 15 SALARIES

1-15-1: SALARIES OF ELECTIVE OFFICERS
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CHAPTER 16 BONDS OF OFFICERS (REPEALED)

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CHAPTER 22 BUILDING INSPECTOR (REPEALED)

CHAPTER 23 PLUMBING INSPECTOR (REPEALED)

CHAPTER 24 HEALTH OFFICER (REPEALED)

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CHAPTER 28 CLAIMS AND DEMANDS AGAINST THE CITY (REPEALED)

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CHAPTER 30 EXECUTIVE CITY ADMINISTRATOR (REPEALED)

CHAPTER 31 CITY AUDITOR

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CHAPTER 32 COLLECTION OF DELINQUENT AMOUNTS OWED TO THE CITY

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1-32-600: INVOLUNTARY BUSINESS SUCCESSION; CREATION OF LIEN
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CHAPTER 1
ADOPTION OF OFFICIAL CODE

1-1-1: TITLE

This compilation and codification of the general ordinances of the City of Mesa is hereby declared to be and shall hereafter constitute the "Mesa City Code." Any reference made to the number of any section contained herein shall be understood to refer to the position of the same under its appropriate title heading, its chapter heading, and its section heading and to the general penalty clause relating thereto, as well as to the section itself, when reference is made to this Code by title in any legal document.
Charter references—See Charter; Article II, Section 214(B).

1-1-2: ACCEPTANCE

This City Code, as hereby presented in printed form, shall hereafter be received without further proof in all courts and in all administrative tribunals of this State as the ordinances of a general and permanent effect of the City. (1958 Code)

1-1-3: AMENDMENTS

Any ordinance amending this Code shall set forth the title, chapter, and section number of the section or sections to be amended, and this shall constitute a sufficient compliance with any statutory requirement pertaining to the amendment or revision by ordinance of any part of this Code. All such amendments or revisions by ordinance shall be immediately forwarded to the City Clerk, and the said ordinance material shall be prepared for insertion in its proper place in each copy of the City Code. Each such replacement page shall be properly identified and shall be inserted in each copy of the City Code within thirty (30) days from the date of its final passage. (1958 Code)

1-1-4: CONSTRUCTION OF WORDS

Whenever any word in any section of this City Code importing the plural number is used in describing or referring to any matters, parties, or persons, any single matter, party, or person shall be deemed to be included, although distributive words may not have been used. When any subject matter, party, or person is referred to in this City Code by words importing the singular number only or the masculine gender, several matters, parties, or persons and females as well as males and bodies corporate shall be deemed to be included. Provided, that these rules of construction shall not be applied to any section of this City Code which contains any express provision excluding such construction or where the subject matter or content may be repugnant thereto. (1958 Code)

1-1-5: DEFINITIONS

In this Code, unless the context otherwise requires:

CHILD, CHILDREN, MINOR, MINOR CHILD, AND MINOR CHILDREN: Means a person or persons under the age of eighteen (18) years. (1664)

KNOWINGLY: Imports only a knowledge that the facts exist which brings the act or omission within the provisions of this Code. It does not require any knowledge of the unlawfulness of such act or omission.

NEGLECT, NEGLIGENCE, NEGLIGENT, AND NEGLIGENTLY: Imports a want of such attention to the nature or probable consequences of the act or omission as a prudent man ordinarily bestows in acting in his own concern.

OFFICER: Shall include officers and boards in charge of departments and members of such boards. The word "City," "Clerk," "Treasurer," or other such title shall mean City, City Clerk, City Treasurer, or other City officer as the use may be applicable.

OWNER: Applied to a building or land, shall include any part owner, joint owner, tenant in common, joint tenant, or lessee of the whole or of a part of such building or land.

PERSON: Shall be deemed to include any "person, firm, association, or corporation" or any organization of any kind.

PERSONAL PROPERTY: Includes every description of money, goods, chattels, effects, evidence of rights in action, and all written instruments by which any pecuniary obligation, right, or title to property is created, acknowledged, transferred, increased, defeated, discharged, or diminished and every right or interest therein.

STREETS: Includes alleys, lanes, courts, boulevards, public ways, public squares, public places, and sidewalks.

TENANT OR **OCCUPANT:** Applied to a building or land, shall include any person who occupies the whole or any part of such building or land, whether alone or with others.

WILLFULLY: When applied to the intent with which an act is done or omitted, implies simply a purpose or willingness to commit the act or make the omission referred to. It does not require any intent to violate law or to injure another or to acquire an advantage.

WRITTEN AND IN WRITING: May include printing.

Words prohibiting anything being done, except in accordance with a license or permit or authority from a board or officer, shall be construed as giving such board or officer power to license or permit or authorize such thing to be done.

1-1-6: INTERPRETATIONS

In the determination of the provisions of each section of this Code, the following rules shall be observed: (1958 Code)

(A) Intent to Defraud. Whenever an intent to defraud is required in order to constitute an offense, it shall be sufficient if an intent appears to defraud any person. (1958 Code)

(B) Liability of Employers and Agents. When the provisions of any section of this Official Code prohibit the commission of an act, not only the person actually doing the prohibited act or omitting the directed act, but also the employer and all other persons concerned with or in aiding or abetting the said person shall be guilty of the offense described and liable to the penalty set forth. (1958 Code)

CHAPTER 2

SAVING CLAUSE

1-2-1: REPEAL OF GENERAL ORDINANCES

All general ordinances of the City passed prior to the adoption of this Code are hereby repealed, except such as are referred to herein as being still in force or are by necessary implication herein reserved from repeal (subject to the saving clause contained in the following section), from which are excluded the following ordinances which are not hereby repealed: tax levy ordinances; appropriation ordinances; ordinances relating to boundaries and annexations; franchise ordinances and other ordinances granting special rights to persons or corporations; contract ordinances and ordinances authorizing the execution of a contract or the issuance of warrants; salary ordinances; ordinances establishing, naming, or vacating streets, alleys, or other public places; improvement ordinances; bond ordinances; ordinances relating to elections; ordinances relating to the transfer or acceptance of real estate by or from the City; and all special ordinances.

1-2-2: PUBLIC UTILITY ORDINANCES

No ordinance relating to railroads or railroad crossings with streets and other public ways or relating to the conduct, duties, service, or rates of public utilities shall be repealed by virtue of the adoption of this Code or by virtue of the preceding Section, excepting as this Code may contain provisions for such matters, in which case this Code shall be considered as amending such ordinance or ordinances in respect of such provisions only.

1-2-3: PENDING SUITS

No new ordinance shall be construed or held to repeal a former ordinance, whether such former ordinance is expressly repealed or not, as to any offense committed against such former ordinance or as to any act done, any penalty, forfeiture, or punishment so incurred, or any right accrued or claim arising under the former ordinance or in any way whatever to affect any such offense or act so committed or so done or any penalty, forfeiture, or punishment so incurred or any right accrued or claim arising before the new ordinance takes effect, save only that the proceedings thereafter shall conform to the ordinance in force at the time of such proceeding, so far as practicable. If any penalty, forfeiture, or punishment be mitigated by any provision of a new ordinance, such provision may be, by the consent of the party affected, applied to any judgment announced after the new ordinance takes effect.

This Section shall extend to all repeals, either by express words or implication, whether the repeal is in the ordinance making any new provisions upon the same subject or in any other ordinance.

Nothing contained in this or the preceding Section shall be construed as abating any action now pending under or by virtue of any general ordinance of the City herein repealed or as discontinuing, abating, modifying, or altering any penalty accrued or to accrue or as affecting the liability of any person, firm, or corporation or as waiving any right of the City under any ordinance or provision thereof in force at the time of adoption of this Code. (1961 Code)

CHAPTER 3
CITY LIMITS

1-3-1: CITY LIMITS

All annexation ordinances heretofore adopted are hereby declared to be and remain in full force and effect, and the City limits of the City of Mesa are hereby declared to be as they were constituted as of the date of the adoption of this Municipal Code.

CHAPTER 4
CORPORATE SEAL

1-4-1: CORPORATE SEAL

The corporate seal of the City of Mesa shall be circular in form, not less than one inch (1") or more than two (2") in diameter, with the words "City of Mesa, Maricopa County, Arizona, Seal," engraved thereon. (1015)

CHAPTER 5
THE COUNCIL

1-5-1: GENERAL POWERS

All powers and authority conferred upon the City of Mesa by the laws of the State of Arizona and not delegated to other officers or expressly reserved to the people of the City shall be vested in the Council. All powers vested in the Council shall be exercised in such manner as may be directed or authorized by law; provided, however, that only such action of the Council shall be by ordinance as may be required by the statutes of the State. All other powers of the Council shall be exercised by resolution, order, or motion. (1957 Code)

1-5-2: MEETINGS

The regular meetings of the Mesa City Council will be held on the first and third Monday evenings of each month at five thirty (5:30) P.M. unless a notice providing otherwise is posted in accordance with the Arizona Open Meetings Act. Special meetings of the Council may be convened at any time by the Mayor or by the Clerk upon the written request of four (4) members. All meetings of the Council shall be held within the corporate limits of the City of Mesa (except that meetings with other governmental bodies may be held outside the City limits) and may be held at any place therein designated in the call of the meeting. Unless designated to be held at a place other than the Council Chambers, all meetings shall be held in the Council Chambers. (244, 314, 399, 429, 770, 1458, 2583)

1-5-3: VOTES OF MEMBERS

The meetings of the Council shall be public, and a journal of its proceedings shall be kept by the Clerk under its direction. The ayes and nays shall be taken and entered on the journal in the final action upon the granting of franchises; making of contracts; purchasing, disposing of, or leasing City property; or the passage of any

ordinance; and in all other cases, upon the call of any Councilman. Provided, however, that the Council may recess from time to time and meet in informal or executive sessions for the consideration of such matters as it may deem to be advisable or expedient.

1-5-4: COMPULSORY ATTENDANCE

Any member of the Council at any regular or specially called meeting may, in writing, demand the attendance of the absent members, which said demand shall be entered on record forthwith by the Clerk; and it shall thereupon be the duty of the Chief of Police, upon the entry of said demand, to bring the said member forthwith to attend the Council meeting, and upon failure or refusal of said member to forthwith attend the Council meeting, it shall be the duty of the Chief of Police to arrest said member and bring him to the City Hall for attendance on such meeting, there to remain until the meeting has performed the business thereof and has regularly adjourned.

1-5-5: MISCONDUCT OF MEMBERS

The Mayor shall be authorized to assess a fine of not more than twenty-five dollars ($25.00) upon any member for disorderly conduct at any meeting of the Council upon a concurring vote of three (3) members thereof and to hold and direct such to be imprisoned until the payment of such fine.

Any member of the Council may be expelled for any cause determined sufficient by the Council upon a vote of five (5) of the members.

The judgment of the Council as to the causes for fine or expulsion shall be conclusive. (131)

1-5-6: VICE MAYOR AND MAYOR PRO TEM

Upon the failure or refusal of the Mayor for five (5) days to sign any ordinance, resolution, contract, warrant, or other document or instrument requiring his signature, the Vice Mayor is authorized to sign such document or instrument, and his signature to such ordinance, resolution, contract, warrant, or other document or instrument shall have the same force and effect as that of the Mayor. In the absence of the Mayor and Vice Mayor at any meeting, the Clerk or any member may call the Council to order, and thereupon a Mayor Pro Tem shall be chosen who shall have, for the time necessary, the same powers and duties as the Mayor. (802)

1-5-7: AGENDA

(A) The City Manager will prepare and distribute all City Council meeting agendas. The City Manager will place such items on the agenda, and in such order, as necessary to accomplish the business of the City. (3213)

(B) The City Manager will also place an item on the agenda at the request of the Mayor or three (3) Councilmembers. (3213)

(C) At the request of any Councilmember, an item on a Council consent agenda will be removed from the consent portion of the agenda and will be separately considered. (3213)

1-5-8: COUNCIL PROCEDURE

(A) The Mayor or other presiding officer in the Mayor's absence will determine all questions of parliamentary or Council procedure not provided for by law. The Mayor will endeavor to conduct Council meetings so as to accomplish the public's business fairly, yet efficiently. (3213)

(B) Neither staff nor a member of the audience shall speak at a Council meeting until recognized for that purpose by the Mayor. The Mayor shall not unreasonably refuse to recognize a Councilmember to speak; the Mayor may choose whether to recognize all other speakers. In addition, the Mayor may: (3213)

1. Determine the order in which persons speak; (3213)
2. Require a group to designate a spokesperson; (3213)
3. Establish time limits for agenda items and speakers; and (3213)
4. Take such other action as the Mayor deems necessary and appropriate in presiding over the meeting. (3213)

All speakers at Council meetings shall address their remarks to the Mayor. (3213)

(C) The Mayor shall preserve order at all Council meetings. The Mayor may direct the sergeant-at-arms to remove persons from the meeting who, after warning: (3213)

1. Fail to address their remarks to the Mayor; (3213)
2. Fail to address the agenda item under consideration; (3213)
3. Make personal remarks about City Councilmembers or other persons; or (3213)
4. Disrupt the meeting in any way. (3213)

(D) A motion to reconsider a Council decision may be made only by a Councilmember who voted with the majority on that decision. (3213)

1. When the decision being reconsidered has an effective date, the motion to reconsider must be made before that effective date; otherwise, the motion is out of order. (3213)
2. When the decision being reconsidered has no effective date (such as a decision not to take action), a motion to reconsider must be made within two (2) weeks of the original Council decision. (3213)

(E) The Mayor's decision regarding parliamentary or Council procedure is final and nonappealable unless five (5) Councilmembers approve a motion to overrule the Mayor. A motion to overrule the Mayor is in order only if made at the same meeting as the Mayor's decision. If the Mayor's decision is overruled, that decision is final, nonappealable, and not subject to a motion for reconsideration. (3213)

Editor's note—Ord. No. 3213, amended section 1-5-8 in its entirety to read as herein set out. Former § 1-5-8 derived from Ord. No. 131.

1-5-9: REMOVAL OF BOARD AND COMMISSION MEMBERS; RESIGN TO RUN

(A) By a vote of five (5) members of the City Council, Board and Commission members appointed by the Mayor and approved by the City Council under Section 501 of the City Charter may be removed for any cause deemed sufficient by the City Council, such as: (3353)

1. Lacking at any time during the Board member's term any qualification, including but not limited to Mesa residency or professional licensure, prescribed by the City Charter or law for that office; (3353)

2. Violating any prohibition of the City Charter or Code pertaining to their office; (3353)

3. Being convicted while in office of a felony or crime involving moral turpitude; or (3353)

4. Being absent from three (3) consecutive meetings of the Board without being excused by the chairperson. (3353)

(B) A Council decision to remove a Board or Commission member shall be effective in accordance with its terms, and shall be final and nonappealable. (3353)

(C) Board and Commission members appointed by the Mayor and approved by the City Council under Section 501 of the City Charter shall resign before running for any elective public office. This paragraph is self-executing and requires no vote by the City Council. (3353)

1-5-10: MAYOR AND COUNCILMEMBER COMPENSATION

(A) Effective beginning the first full City employee pay period occurring after the date of the first City Council meeting in January 2025, the annual salary of the offices of the Mayor and Councilmembers will be increased by seven percent (7%).

(B) For the purposes of Subsection (C):

1. The annual salary, monthly vehicle allowance, and monthly communication allowance of the Mayor shall be referred to collectively as the "Mayor's Compensation."

2. The annual salary, monthly vehicle allowance, and monthly communication allowance of a Councilmember shall be referred to collectively as the "Councilmember's Compensation."

(C) Beginning in the year 2027, for any odd-numbered year in which the Mayor or a Councilmember will commence a term of office in January of such odd-numbered year, the Mayor's Compensation and the Councilmember's Compensation shall each be increased, effective beginning the first full City employee pay period occurring after the date of the first City Council meeting in January, by the lesser of either:

1. If there is an increase in the escalation factor for the preceding two (2) calendar years in the U.S. Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) or such other, similar consumer price index established by the United States Bureau of Labor Statistics, then the amount of such increase; or

2. The total percentage salary step pay increases adopted as a part of the budget during the preceding two (2) years that are applicable to nonrepresented employee groups, which are defined as those employees not covered under a Memorandum of Understanding (MOU).

(Ord. No. 5840, § 3, 12-11-23)

CHAPTER 6
COUNCIL COMMITTEES

1-6-1: COUNCIL COMMITTEES

The following Standing Council Committees are hereby established: (1459, 4675, 5022)

Audit, Finance and Enterprise Committee (4607, 5022)

Public Safety Committee (4675)

Economic Development Committee (2990, 3216, 4675, 5022)

Sustainability and Transportation Committee (4675, 5022)

Government Affairs Committee (4675, 5022)

Community and Cultural Development Committee (4675, 5022)

1-6-2: COMMITTEE MEMBERS

Each committee shall consist of three (3) members of the Council. The Committee members shall be appointed by the Mayor, with the concurrence of the City Council, at the first regular meeting of the Council following any regular City election or as soon thereafter as is practicable. (5022)

The City Manager shall be a nonvoting; ex-officio member of the Audit, Finance and Enterprise Committee. (5022)

The chair of each committee shall be responsible to the Council for the function of the committee. (1459, 3114, 3216, 4607, 4675, 5022)

1-6-3: AGENDA

Items may be placed on the Council Committee agenda by the Chairperson; the Mayor; 2 Councilmembers; or the City Manager. (4675, 5022)

1-6-4—1-6-8: RESERVED

Editor's note—Ord. No. 803 repealed §§ 1-6-4—1-6-8.

CHAPTER 7

CITY MAGISTRATES AND THE PRESIDING CITY MAGISTRATE*

1-7-1: DEFINITIONS

CITY MAGISTRATE: A City Magistrate, other than the presiding City Magistrate or a Magistrate Pro Tem, appointed to the Mesa Municipal Court by the Mesa City Council pursuant to Mesa City Code, Title 2, Chapter 3.

PRESIDING CITY MAGISTRATE: The presiding City Magistrate appointed to the Mesa Municipal Court by the Mesa City Council pursuant to Mesa City Code, Title 2, Chapter 3.
(Ord. No. 5577, § 1, 6-15-20)

***Editor's note—**Ord. No. 5577, § 1, adopted June 15, 2020, repealed the former Ch. 7, §§ 1-7-1, 1-7-2, and enacted a new Ch. 7 as set out herein. The former Ch. 7 pertained to City Magistrates and derived from Ords. 1959, 3714.

1-7-2: APPOINTMENT AND COMPENSATION

The City Council shall appoint one (1) or more City Magistrates and one (1) presiding City Magistrate, each of whom shall be a member of the Arizona Bar. Compensation of City Magistrates and the presiding City Magistrate shall be fixed by the City Council.
(Ord. No. 5577, § 1, 6-15-20)

1-7-3: TERM OF OFFICE

(A) The term of office for City Magistrates and the presiding City Magistrate are two (2) complete years from July 1 for the first term, two (2) years for the second term, and four (4) years each for any subsequent terms, and shall be determined as follows:

1. The first term of office for a City Magistrate and presiding City Magistrate appointed on July 1 shall commence July 1 and terminate on the second thirtieth day of June thereafter.
2. The first term of office for a City Magistrate and presiding City Magistrate appointed on a day other than July 1 shall commence on the date of appointment and terminate on the third thirtieth day of June thereafter.
3. The second term of office for a City Magistrate and presiding City Magistrate shall commence on July 1 of the year of reappointment and terminate on the second thirtieth day of June thereafter.
4. The third and any subsequent terms of office for a City Magistrate and presiding City Magistrate shall commence on July 1 of the year of reappointment and shall terminate on the fourth thirtieth day of June thereafter.

(B) If a current sitting City Magistrate is appointed to the position of presiding City Magistrate, the first term of office as presiding City Magistrate shall be governed by Subsections 1-7-3(A)(1) and (2), the second term of office as the presiding City Magistrate shall be governed by Subsection 1-7-3(A)(3), and any subsequent terms of office as the presiding City Magistrate shall be governed by Subsection 1-7-3(A)(4).
(Ord. No. 5577, § 1, 6-15-20)

CHAPTER 8
QUALIFIED ELECTORS

1-8-1: QUALIFIED ELECTOR; DEFINITION

(A) Every resident of the City is qualified to register and vote in City of Mesa elections if he or she: (3326)

1. Is a citizen of the United States; (3326)
2. Will be eighteen (18) years of age or more on or before the date of the next City election following registration; (3326)
3. Will have been a resident of the City and registered to vote prior to midnight of the twenty-ninth (29th) day preceding the date of the next City election; (3326)
4. Is able to write his or her name, or make a mark, unless prevented from so doing by physical disability; (3326)

5. Has not been convicted of treason or a felony, unless restored to civil rights; and (3326)

6. Has not been adjudicated an incapacitated person as defined in A.R.S. § 14-5101, or its successor statute. (3326)

(B) For purposes of this Chapter, "resident" means an individual who has actual physical presence in this City, combined with an intent to remain. A temporary absence does not result in a loss of residence if the individual has an intent to return following his or her absence. An individual has only one residence for purposes of this Chapter. (3326)

(Ord. No. 5498, § 1, 4-1-19)

1-8-2: PETITION CIRCULATORS

(A) All circulators of nomination petitions for Mayor or City Councilmember must be either a person: (3326)

1. Qualified to register to vote in Arizona; or
2. Who is not a resident of this state, but is otherwise qualified to register to vote in Arizona, and is registered as a circulator with the Secretary of State.

(B) All circulators of initiative or referendum petitions proposing to change the Mesa City Charter or Mesa City Code must be either a person: (3326)

1. Qualified to register to vote in Arizona; or
2. Who is not a resident of this state, but is otherwise qualified to register to vote in Arizona, and is registered as a circulator with the Secretary of State.

(Ord. No. 5498, § 1, 4-1-19)

CHAPTER 9

RECORDS

1-9-1: FORMS

The Council is authorized to designate, prescribe, and approve the form of all records of the City.

1-9-2: RECORDS

The public records of the City shall consist of minute records, resolutions and ordinance records, tax records, account records, form records, and such other records, books, and documents as the Council may prescribe.

The original ordinances, resolutions, and minutes of the City shall be recorded, at length, in books to be known, respectively, as the Mesa City Code Book, Resolution Record, and Minute Book and shall be deposited and kept by the Clerk.

1-9-3: FILES

Authenticated copies of all ordinances, resolutions, and orders, with affidavit of posting or publishing, if any there be, attached and all resolutions, notices, deeds, surveys, leases, paid and unpaid vouchers, inventories, letters, orders, and other documents of whatsoever nature shall be numbered and filed separately by the Clerk.

1-9-4: MINUTES

It shall be unnecessary to enter or record at length in the minutes of proceedings written ordinances, resolutions, or orders, unless expressly required to be so entered by the State statutes or the ordinances, resolutions, or orders of the City, but it shall be sufficient to refer to such by the number and name, the date of their passage, and such other facts as may be necessary to identify the same.

1-9-5: SPECIAL ORDINANCES

Ordinances passed regarding special matters, such as franchises, bonds, or other special matter, shall not be incorporated in the compiled ordinances of the City. Only general ordinances then in effect shall be therein compiled, but all such special or extraordinary ordinances shall be filed, entered, and authenticated as provided herein.

1-9-6: APPROVED FORMS

No blank or form shall be used in the transaction of business of the City until the same shall have been submitted for approval as to form to the City Attorney. It shall be the duty of the Clerk to keep all forms consecutively numbered and filed in his office.

1-9-7: REGULATORY AND DIRECTORY RESOLUTIONS

All resolutions or orders regulating or relating to the government use, control, or service of public utilities, streets, health, office routine, and other similar matters shall be typewritten, authenticated by the Mayor and Clerk, and filed together in a suitable binder for convenient use and reference. The Clerk shall keep all such resolutions and orders up to date.

CHAPTER 10

PUBLICATION OF PROCEEDINGS

1-10-1: PUBLICATIONS

Only such ordinances, resolutions, orders, motions, regulations, or proceedings of the City Council shall be published as may be required by the Mesa City Charter, Section 211; by the applicable statutes of the State of Arizona (A.R.S. §9-811, §9-812); or as expressly ordered by the Council. (1057)

1-10-2: POSTING

Every ordinance imposing any penalty, fine, forfeiture, or other punishment shall, after passage thereof, be posted by the Clerk in three (3) or more public places within the City, and a copy of said ordinance, with affidavit of posting attached, shall be filed in the office of the Clerk and shall be proof of said posting as provided by law.

1-10-3: BIENNIAL STATEMENT (Repealed)

Editor's note—Ord. No. 1057 repealed § 1-10-3.

CHAPTER 11
RECALL

1-11-1: RECALL

Elective officers of the City shall be subject to recall from offices by the qualified electors of the City under the proceedings and in the manner prescribed for the recall of such officers by the State statutes.

CHAPTER 12
COURTS AND PROCEDURES

1-12-1: CITY MAY MAINTAIN ACTION

The City may also, in addition to any and all prosecutions for violation of any and all laws, rules, and regulations of the City government, maintain an action in the Police Court of the City in any proper state, county, or precinct court for the recovery of any penalty, forfeiture, debt, tax, account, demand, right, or benefit due to said City. When such action is brought into the Police Court, said action shall be brought and conducted as nearly as possible in the same manner as civil actions in justice courts. Said Police Court shall have power to issue any and all writs and to make any and all orders and judgments which may be necessary and proper in the premises. (119)

1-12-2: PROCEDURE OF POLICE COURT

The service of processes and writs in civil actions in the Police Court shall be as nearly as practicable in the same manner as provided for the service of processes and writs in justice courts; in all other cases, proceedings, and matters (unless notices, processes, demands, and similar documents or writs are expressly required to be personally served upon the defendant, property owner, or party concerned), such notices, demands, and similar documents or writs may be served by posting a copy of the same at the door of the City Hall and by mailing a copy thereof to the person or party concerned at his last known post office address, and proof of service may be made by any person serving the same or causing the same to be served. (119)

1-12-3: COURT SUSTAINABILITY FEE

A court sustainability fee in the amount of fifteen dollars ($15.00) is hereby established. The Mesa Municipal Court shall direct a defendant to pay the court sustainability fee on all charges where the court imposes a fine, sanction, penalty, or assessment except for parking violations. The court sustainability fee shall be in addition to all other fines, sanctions, penalties, or assessments of whatever type. (3477, 3768, 4203, 5172, 5327)

1-12-4: DEFAULT FEE

A default fee in the amount of seventy dollars ($70.00) is hereby established. The Mesa Municipal Court shall direct a defendant to pay the default fee as part of each default judgment entered for failure to appear in a civil traffic violation case, for failure to satisfy in full a civil sanction imposed in a civil traffic violation case, and for failure to pay a court-ordered fine, restitution, or incarceration fees. The default fee shall not apply to parking violations. Default fees shall be deposited into the City's General Fund. (3477, 4204)

1-12-5: WAIVER OF FEES

Municipal Court Magistrates and Civil Traffic Hearing Officers are authorized to waive the court sustainability fee, the court capital construction fee, and the default fee when such waiver would be in the interest of justice. Civil Traffic Hearing Officer waivers are limited to fees imposed in civil traffic cases. (3477, 4027, 4416, 5172)

1-12-6: COLLECTION AGENCY FEES AND CHARGES

A defendant who defaults in his or her obligation for the payment of monies owed or due to the Mesa Municipal Court, including but not limited to, restitution, fines, sanctions, surcharges, assessments, penalties, bonds, costs, and fees, is liable for all fees and charges assessed by a collection agency that is licensed pursuant to the Arizona Revised Statutes, and that is engaged by the City to collect and enforce payment by the defendant. Collection agency fees and charges shall be added to the sum or sums due from and chargeable against the defendant. (3477)

1-12-7: PAYMENT OF COSTS OF CONFINEMENT

(A) Any person who is convicted of a misdemeanor criminal offense or misdemeanor criminal traffic offense in the Municipal Court, as part of any jail sentence imposed by the Municipal Court, shall be required to reimburse the City of Mesa for all expenses incurred by reason of such confinement. (3768)

(B) Municipal Court Magistrates are authorized to waive the costs of the confinement fee under this Section when the Magistrate finds such a waiver would be in the interests of justice. (3768)

1-12-8: APPOINTMENT OF CIVIL TRAFFIC HEARING OFFICERS AND COURT COMMISSIONERS

(A) The presiding City Magistrate may appoint one (1) or more Civil Traffic Hearing Officers and/or one (1) or more Court Commissioners when in the presiding City Magistrate's opinion, the appointment of such Civil Traffic Hearing Officers and/or Court Commissioners is necessary to assure prompt disposition of cases. Civil Traffic Hearing Officers and Court Commissioners shall serve for terms of two (2) years from the date of appointment and can be reappointed by the presiding City Magistrate. Civil Traffic Hearing Officers and Court Commissioners may be removed for good cause during their term by the presiding City Magistrate. (4027, 4947)

(B) Civil Traffic Hearing Officers may hear and dispose of Civil Traffic violation cases, vicious dog cases, and Mesa Civil Code violation cases filed in the Mesa Municipal Court. Court Commissioners may hear and dispose of civil offenses as well as criminal offenses. The judgment of the Civil Traffic Hearing Officers and Court Commissioners constitutes the judgment of the Court, which is appealable to the Superior Court as prescribed by State statute and rules promulgated by the Arizona Supreme Court. (4027, 4947)

1-12-9: COURT CAPITAL CONSTRUCTION FEE

(A) A court capital construction fee in the amount of sixteen dollars and fifty cents ($16.50) is hereby established. (4416, 4621)

(B) The Mesa Municipal Court shall direct a defendant to pay the court capital construction fee in all cases, except for parking violations. (4416)

(C) The court capital construction fee is for the purpose of offsetting costs associated with the construction, debt service, furniture, fixtures and equipment of a new Mesa Municipal Court facility and is not subject to state surcharges. (4416)

(D) The court capital construction fee shall be increased July 1, 2008 and every third year thereafter in the amount of three dollars ($3.00), and shall be discontinued upon retirement of debt associated with construction of the new court facility. (4416)

(E) The court capital construction fee and the applicable interest earned shall be deposited into the court construction fee fund (#465) and accounted for separately. (4416)

1-12-10: COURT MONITORING FEE

The Mesa Municipal Court will assess a court monitoring fee, as established in the current Schedule of Fees and Charges, for the following persons:

(1) Any person sentenced to probation.

(2) Any person convicted of an offense under Arizona Revised Statute § 28-1381 or § 28-1382.
(Ord. No. 5937, § 1, 4-21-25)

CHAPTER 13

PROPERTY IMPROVEMENT ASSESSMENT SALES

1-13-1: PROCEDURE FOR SALE

In any sale of property for nonpayment of public improvement assessments where there is no purchaser other than the City who will pay the entire amount of the assessment, penalty, and costs, including fifty cents ($0.50) to the Superintendent of Streets for a certificate of sale, the Superintendent shall sell the lot or portion thereof to the person who will take the least quantity of land and then and there pay the amount at the assessment then delinquent, including interest, penalty, and costs due, and fifty cents ($0.50) to the Superintendent of Streets for a certificate of sale, and deed shall issue to the purchaser, subject to redemption as provided by the statutes of the State. (162)

1-13-2: LAND MAY AGAIN BE SOLD

The lien of public improvement on the entire lot, piece, or parcel of land assessed shall continue to be in effect for the amount of the assessment or portion thereof, including said interest, penalty, and costs thereafter to become due, and the land may again be sold should the assessment again become delinquent. (162)

1-13-3: NOTICE OF SALE BY REFERENCE TO PARCEL OF LAND

When the right to sell a portion of any lot or any part thereof less than the whole is intended to be reserved, such fact shall be stated in the notice of sale by reference to this Chapter. (162)

1-13-4: SALE OF PROPERTY TO THE CITY

In any sale of property for nonpayment of public improvement assessments where there is no purchaser other than the City, the property shall be struck off to the Municipality as the purchaser, and the Treasurer shall pay into the Special Improvement Fund out of the General Fund only the sum required to pay the installment then due or to become due upon the bonds issued for the assessment; and thereupon the City shall become obligated to pay from the General Fund succeeding installments and interest on the bonds as are payable by the assessments on the lot. At any time before the execution and delivery of a deed therefor, the property owner shall have the right to redeem the lot by paying to the City the amount of any installments and interest paid by the City on the assessments on the lot, together with the penalties assessed and the costs incurred by the City. If the property owner redeems the lot by paying the amounts above specified, the lien of the assessments shall not be extinguished. (162, 1803)

CHAPTER 14
EMERGENCY POWERS OF MAYOR

1-14-1: EMERGENCY POWERS OF MAYOR

Whenever the Mayor of the City shall deem that an emergency exists due to fire, conflagration, flood, earthquake, explosion, war, bombing, acts of the enemy, or any other natural or manmade calamity or disaster or by reason of threats or occurrences of riots, routs, affrays, or other acts of civil disobedience which endanger life or property within the City, the Mayor is hereby authorized by proclamation to declare an emergency or a local emergency to exist, as defined in Title 26, Chapter 2, Article 1, Arizona Revised Statutes; and the Mayor is further authorized to exercise all of the rights, powers, and authorities granted to mayors pursuant to the provisions of said Article. (707, 1610)

CHAPTER 15
SALARIES

1-15-1: SALARIES OF ELECTIVE OFFICERS

The salaries of elective officers of the City shall be as fixed by the appropriate statutes of the State of Arizona.

1-15-2: SALARIES OF APPOINTIVE OFFICERS

The salaries for all appointive officers of the City shall be as fixed from time to time by the Council by motion noted in its minutes.

CHAPTER 16

BONDS OF OFFICERS (REPEALED)*

CHAPTER 17

CITY CLERK

1-17-1: APPOINTMENT

The City Council shall appoint a City Clerk and fix her compensation.
(Ord. No. 5540, § 1, 12-2-19)
Charter reference—Article IV, Section 401(A), Mesa City Charter.

1-17-2: DUTIES

The City Clerk shall give notice of City Council meetings to its members and to the public, keep the journal of its proceedings, and perform any other lawful duties assigned by the City Charter, City Ordinance, or the City Council. The City Clerk shall serve at the pleasure of and report to the City Council.
(Ord. No. 5540, § 1, 12-2-19)

1-17-3: AUTHORITY TO CORRECT SCRIVENER'S ERRORS

(A) The City Clerk is authorized to correct scrivener's errors in the City Code and to any ordinance or resolution adopted by the City Council, including exhibits thereto, without the need for re-adoption of the City Code provision, ordinance or resolution.

(B) As used in this section, a scrivener's error means an error resulting from a minor mistake or inadvertence that does not alter sense, meaning or effect. Scrivener's errors include the following types of errors: misspelling, grammatical, numbering, cross-referencing, capitalization, typographical, formatting, mistranscribing or omitting an obviously needed word, or inconsistency with the rules of style adopted for the City Code.

(C) A scrivener's error correction made under the authority granted by this section will be documented as follows:

(1) A correction to an ordinance or resolution will be accompanied by a scrivener's note on or attached to the corrected ordinance or resolution.

(2) A correction to the City Code will be noted with any explanatory or historical notes related to the document.

(Ord. No. 5540, § 1, 12-2-19)

***Editor's note**—Ord. No. 1070 repealed Chapter 16.

CHAPTER 18
CITY TREASURER

1-18-1: OFFICE CREATED

The office of City Treasurer is hereby created. (1028)

1-18-2: EX OFFICIO TREASURER

The duly appointed, qualified, and acting Finance Director of the City shall also be the City Treasurer of the City. (1393)

1-18-3: DUTIES OF CITY TREASURER

The City Treasurer shall have such duties as are provided by the statutes of the State of Arizona and by the provisions of the Mesa City Code and as shall be prescribed from time to time by the City Council by ordinance, resolution, or other adoptive action, together with such duties as may be delegated from time to time by the City Manager. (1028)

CHAPTER 19
CITY ATTORNEY

1-19-1: APPOINTMENT

The Council shall appoint a City Attorney and fix his compensation.
Charter reference—Article IV, Section 401(B), Mesa City Charter.

1-19-2: DUTIES

The City Attorney shall serve as the chief legal advisor to the Council, the Manager, and all City departments, offices, and agencies. The City Attorney shall represent the City in all legal proceedings, and shall perform any other duties prescribed by this Charter, law, or ordinance. The City Attorney shall serve at the pleasure of the Council. (5282)
Charter reference—Article IV, Section 401(B), Mesa City Charter.

1-19-3: ADDITIONAL AUTHORITY

The City Attorney, on behalf of the City, is authorized to file, pursue, defend, appeal, settle, dismiss, and resolve any and all civil lawsuits and claims and criminal misdemeanor cases. The City Attorney shall provide advice and information about cases and appeals to Council at the request of, or when needed by, the Council.
(5282; Ord. No. 5539, § 1, 12-2-19)

1-19-4: LITIGATION POLICIES AND TRUST FUND AUDIT

The processes for the payment of claims and lawsuits from the public property and liability trust fund will be subject to policies adopted by the City Attorney. The public property and liability trust fund shall be subject to audit by the City Auditor.
(Ord. No. 5539, § 2, 12-2-19)

1-19-5: SERVICE OF CLAIMS AND LAWSUITS

Claims against the City of Mesa shall be served in compliance with state and federal law and the rules of civil procedure.
(Ord. No. 5539, § 3, 12-2-19)

CHAPTER 20
CITY MANAGER

1-20-1: OFFICE CREATED

The office of City Manager is hereby created. (312)

1-20-2: APPOINTMENT

The Council shall by vote of at least two-thirds (⅔) of its members appoint the City Manager for an indefinite term, and the Council shall fix his compensation. He shall be chosen on the basis of his qualifications for the office, with first preference given to applicants who reside in Mesa. He shall within sixty (60) days after his appointment and thereafter during his tenure in office reside in the City. He shall be a citizen of the United States of America. (312)
Charter reference—Article III, Section 301, Mesa City Charter.

1-20-3: REMOVAL

The Council may remove the Manager at any regular or special meeting by a vote of at least two-thirds (⅔) of the Council. It may pay him severance pay not exceeding two (2) months' salary. A dismissed Manager shall, upon his request, have a public hearing; however, the action of the Council shall be final and not subject to review by any court or agency. This Chapter vests all authority to suspend and remove the Manager in the Council. (312)
Charter reference—Article III, Section 302, Mesa City Charter.

1-20-4: DUTIES

The Manager shall be the chief administrative officer of the City, responsible to the Council for administration and coordination of all departments, boards, and affairs assigned to him by this Chapter, by ordinance, or by resolution. He shall have authority and responsibility to:

(A) Attend Council meetings and present information and recommendations he deems necessary or as requested by any member of the Council, but he shall have no vote.

(B) Recommend to, and upon approval by the Council, appoint all City officers (except those subject to Council appointment pursuant to Section 401 of the Mesa City Charter), and when deemed necessary, suspend, and after approval of the Council, remove them.

(C) Pursuant to the merit system regulations, appoint, and when necessary remove, all employees of the City, except as he may authorize heads of departments and offices to appoint and remove their own subordinates. Any unexcused voluntary absence of any employee shall constitute resignation.

(D) Recommend to the Council personnel policies and assignments for efficient operation of the City government.

(E) Submit to the Council the annual budget and capital program.

(F) Supervise all expenditures and purchases of the City.

(G) See that all laws, provisions of this Chapter, and acts of the Council subject to enforcement by him or by officers under his direction are faithfully executed.

(H) Execute, or cause to be executed by his designated representative, all contracts and other lawful documents authorized by the Council.

(I) Grant, abandon, extinguish, or assign easements over, across, under, and upon city-owned property and private property that are non-roadway easements described in Title 28, Chapter 20, Article 8 of the Arizona Revised Statutes, including easements for public or private improvements, underground or overhead utilities such as electricity, gas, steam, communication, telecommunications, data transmission, cable TV, water, drainage, or sewage, sidewalks, landscaping, traffic signals, streetlights, and flood control. The grants, assignments, or extinguishments may be from City owned property, City rights-of-way, or other property for which the City has a property right that allows it to grant, assign, or Extinguish such easements.

(J) Dedicate rights-of-way and easements to the public and to other governmental entities from City owned property.

(K) Enter into and execute a grant agreement for the receipt of grant funds, in any amount, and from any source under the following conditions:

(1) When there is a declared national, state, or local emergency or when the grant is related to or intended to mitigate the effects of an emergency; or

(2) When the grant has a local match requirement of $100,000 or less, excluding matching funds satisfied from federal, state, or other entity funding sources and excluding non-monetary matching sources, and the grant does not require the City to hire additional full-time employees; or

(3) When the grant is for a capital improvement project; or

(4) When the grant is for a Falcon Field Airport Project; or

(5) The City Manager, or designee, will provide City Council with periodic updates on all grant agreements the City Manager enters into and executes pursuant to the authority in this section.

(L) Perform any other lawful duties required of him by the Council.

(Ord. No. 5733, § 1, 10-17-22; Ord. No. 5877, § 1, 10-7-24; Ord. No. 5938, § 1, 4-21-25)

Charter reference—Article III, Section 303, Mesa City Charter.

1-20-5: RESTRICTIONS

(A) The Manager shall not engage in any other employment during his tenure of office.

(B) The Manager shall take no part in campaigns for election of Mayor or Councilmen other than to cast his vote and express privately his opinions.

(C) The Manager shall not exercise any policy-making or legislative functions. All law enforcement policies shall be determined by the Council. (312)

Charter reference—Article III, Section 304, Mesa City Charter.

1-20-6: PUBLIC RELATIONS

In the discharge of his duties as City Manager, the person holding such position shall endeavor at all times to exercise the highest degree of tact, patience, and courtesy in his contacts with the public and with all City boards, departments, and employees and shall use his best efforts to establish and maintain a harmonious relationship between all personnel employed in the government of the City to the end that the highest possible standards of public service shall be continuously maintained. (312)

1-20-7: BOND

The City Manager shall furnish a surety bond to be approved by the Council in the sum of one thousand dollars ($1,000.00), said bond to be conditioned on the faithful performance of his duties. (312)

1-20-8: COMPENSATION

The City Manager shall receive such compensation as the Council shall fix from time to time by motion noted in its minutes. (312)

1-20-9: ACTING CITY MANAGER

By letter filed with the Clerk, the Manager shall designate a qualified City employee and an alternate to become Acting Manager in the event of his temporary absence or disability. The Council may revoke such designation and appoint another employee to serve as Acting Manager until the Manager shall return.
Charter reference—Article III, Section 305, Mesa City Charter.

CHAPTER 21
THE PROCUREMENT OF MATERIALS, NON-PROFESSIONAL CONTRACT SERVICES AND CAPITAL IMPROVEMENTS*

1-21-1: APPLICATION

(A) The provisions of this Chapter shall apply to the Procurements of Materials, Non-Professional Contract Services and Capital Improvements by the City using public funds, including state and federal assistance funds. This Chapter shall not apply to contracts for Professional Services as defined below, or contracts between the City and the State of Arizona or its political subdivisions or other Governmental Agencies or Governmental Organizations.

(B) Nothing in this Chapter shall prevent the City from complying with the terms and conditions of any grant, gift, bequest, or agreement.

(C) Except by mutual consent of the parties to the contract, this Chapter may not change any commitment, right or obligation of the City or of a contractor under a contract in existence on the effective date of this Chapter or any amendment thereto.

(Ord. No. 5775, § 1, 4-3-23)
Editor's note—Ord. No. 5089 repealed the former § 1-21-1, and enacted a new § 1-21-1 as set out herein. The former § 1-21-1 derived from Ord. Nos. 4215, 4683, 5019.

1-21-2: DEFINITIONS

(A) **A.R.S.:** Arizona Revised Statutes, as amended.

(B) **CAPITAL IMPROVEMENTS:** The construction, alteration, repair, improvement, or demolition of any public structure or building or public improvements of any kind to any public real property, such activities shall include, without limitation, paving, concrete, or other mortar work, streetlights, traffic signals, drainage facilities, pipes, grading, major improvements to landscaping, and other construction work. Capital improvements does not include the routine operation, routine repair or routine maintenance of existing facilities, structures, buildings, or real property.

(C) **CITY MANAGER:** The Mesa City Manager or their designee.

(D) **COMPETITIVE SELECTION:** Means as defined in Section 1-21-5.

(E) **GOVERNMENTAL AGENCY:** The State of Arizona or a political subdivision thereof, any other state of the United States or a political subdivision thereof, or any department of the federal government.

***Editor's note**—Ord. No. 5089 repealed and replaced Chapter 21 to read as herein set out. The former Ch. 21 derived from Ord. Nos. 727, 885, 897, 933, 1548, 4215, 4683, 5019.

(F) **GOVERNMENTAL ORGANIZATION:** An organization, the members of which are primarily Governmental Agencies.

(G) **LARGE DOLLAR PROCUREMENTS:** Procurements of materials and non-professional contract services that exceed one hundred thousand dollars ($100,000).

(H) **MATERIALS:** Materials, supplies, commodities, equipment, and insurance. Materials do not include land or an interest in real property.

(I) **NON-PROFESSIONAL CONTRACT SERVICES:** Services which are primarily provided through semi-skilled labor. The primary criteria in the selection process will be qualifications of the vendor and price.

(J) **PERSON:** Any individual, corporation or business entity of whatever legal form, union, committee, club, other organization or group of individuals or subsidiary thereof, their representatives or affiliates.

(K) **PROCUREMENT:** The purchase of Materials, Non-Professional Contract Services, or the contracting for Capital Improvements. Procurement includes the development of requirements, solicitation and selection of sources, and contract administration.

(L) **PROFESSIONAL SERVICES:** Services which require special knowledge, education, or training. The primary criteria in the selection process will be the qualifications of the vendors.

Professional services include, but are not limited to: advertising; appraisers; architects; attorneys; consultants; certified public accountants; engineers; entertainers; environmental studies; financial and operational audits; personnel and benefits studies; physicians and other health professionals; land surveyors; landscape architects; renewals of proprietary computer hardware and software licensing; trainers and teachers; and other technical or skilled registrants as defined in Arizona Revised Statutes.

(M) **PUBLIC NOTICE:** The distribution or dissemination of information to interested parties at least one (1) time using methods established by the City Manager which may include the posting on a city website. The failure of any Person to receive notice shall not constitute grounds for a protest or to invalidate the actions of the City as to the Procurement for which the notice was given.

(N) **RESPONSE:** A bid, proposal, or other reply submitted in response to a solicitation.

(O) **SMALL DOLLAR PROCUREMENTS:** Procurements of materials and non-professional contract services of one hundred thousand dollars ($100,000) or less.

(P) **SOLICITATION:** An Invitation for Bids, Request for Proposals, Request for Qualifications, or other procurement method that allows for competitive selection.

(Ord. No. 5775, § 1, 4-3-23)

1-21-3: PROCEDURES FOR PROCUREMENT OF CAPITAL IMPROVEMENTS

All Procurements for Capital Improvements, as defined herein, shall be awarded in accordance with the requirements of state law.

(A) Procurements for public improvements that exceed the amounts established in accordance with A.R.S. § 34-201(C) through (G) shall be awarded in accordance with the procedures established in A.R.S. Title 34, including the procedures for alternative contracting.

(B) Procurements for public improvements that do not exceed the amounts established in accordance with A.R.S. § 34-201(C) through (G) may be awarded in accordance with the requirements of Section 1-21-5 of the Mesa City Code or in accordance with the procedures established in A.R.S. Title 34 for alternative contracting.

(C) City Council Approved Procurements: Unless otherwise provided in this Chapter, procurements of, or change orders not prior approved as contingencies for, Capital Improvements that exceed one hundred thousand dollars ($100,000) must be approved by City Council. This applies to one-time procurements and annually for term procurements.

(Ord. No. 5775, § 1, 4-3-23)

1-21-4: PROCEDURES FOR PROCUREMENT OF MATERIALS AND NON-PROFESSIONAL CONTRACT SERVICES

(A) Small Dollar Procurements: Small Dollar Procurements shall be made in accordance with procedures established by the City Manager.

(B) Large Dollar Procurements: Unless otherwise provided in this Chapter, Large Dollar Procurements of, or change orders not prior approved as contingencies for, Materials and Non-Professional Contract Services shall be made by Competitive Selection, Sole Source Procurement, Cooperative Procurement or Emergency Procurement and must be approved by the City Council. This applies to one-time Procurements and annually for term Procurements.

(Ord. No. 5775, § 1, 4-3-23)

1-21-5: COMPETITIVE PROCUREMENTS

(A) Competitive Selection means a solicitation process that allows for competition between potential providers of the material or non-professional contract service that meets the requirements set forth in Section 1-21-5(B), examples of a competitive selection process include, without limitation, Invitation for Bids, Request for Proposals, and Request for Qualifications.

(B) Competitive Selection Solicitation requirements.

(1) The Solicitation must include a description of the material or non-professional contract service, major contractual terms and conditions applicable to the procurement, and the criteria for the evaluation of responses.

(2) The Solicitation shall be made by public notice and copies of the solicitation must be made available to the public upon request.

(C) Responses to Competitive Selection Solicitations.

(1) Responses shall be received from the public in the manner and at the time and place designated in the Solicitation. The results of the opening of the responses shall be recorded on an abstract and the abstract shall be open to public inspection.

(2) Any Response that is conditioned upon award to the respondent of both the particular contract being solicited and another contract shall be deemed non-responsive or unacceptable.

(3) The City may accept or reject any or all Responses.

(D) The requirement for a Competitive Selection will be satisfied if the City contracts with a broker to represent it (e.g., liability, and property insurance).

(E) The City Council by ordinance or resolution may adopt alternative procurement processes to satisfy competitive selection or approval requirements of this Chapter.

(Ord. No. 5775, § 1, 4-3-23)

1-21-6: SOLE SOURCE PROCUREMENTS

A contract may be awarded without Competitive Selection if the City Manager determines that there is only one source for the required Material or Non-Professional Contract Service and that no other type of Material or Non-Professional Contract Service will satisfy the requirements of the City. The City shall negotiate with the single supplier, to the extent practicable, a contract advantageous to the City.

Public notice inviting comment on the City's determination for a sole source procurement shall be given not less than seven (7) calendar days before the award.

(Ord. No. 5775, § 1, 4-3-23)

1-21-7: COOPERATIVE PROCUREMENTS

For any solicitation, the City Manager is authorized to participate with any Government Agency or Government Organization for the procurement of Materials or Non-Professional Contract Services in cooperative purchasing agreements, provided:

(A) The underlying contract was established with the intent to be used for cooperative procurements; and

(B) Procedures were used in the applicable Procurement, which are similar to the requirements of Section 1-21-3 or 1-21-5.

(Ord. No. 5775, § 1, 4-3-23)

1-21-8: EMERGENCY PROCUREMENTS

(A) The City Council or City Manager may authorize procurements without following the requirements of Sections l-21-3 and 1-21-4, or 1-21-5, or A.R.S. Title 34 for capital improvements as permitted by law, if they determine that:

(1) The Procurement is necessary for the immediate preservation of the public peace, health, or safety; and

(2) Compliance with the requirements of this Chapter or A.R.S. Title 34 is impracticable or contrary to the public interest, provided that the Procurement is limited to the Materials, Non-Professional Contract Services, or Capital Improvements necessary to preserve the public peace, health, or safety.

(B) Any Procurement authorized under this Section shall meet the requirements of Sections 1-21-3 and 1-21-5(A), or A.R.S. Title 34, as applicable, to the extent practicable or not contrary to the public interest.

(C) Any Large Dollar Procurement authorized under this Section shall be placed on the City Council agenda for ratification at the next reasonably available City Council meeting.

(Ord. No. 5775, § 1, 4-3-23)

1-21-9: DEBARMENT

(A) The City Manager may debar a Person from receiving an award or participating in City Procurements for a period of time not to exceed three (3) years.

(B) Grounds for debarment include but are not limited to the following:

(1) Conviction for commission of a criminal offense arising out of obtaining or attempting to obtain a public or private contract or subcontract, or in the performance of such contract or subcontract.

(2) Conviction under any statute, code, ordinance or regulation of the federal government, the State of Arizona, the City or any other state or Municipality for embezzlement, theft, fraudulent schemes and artifices, fraudulent schemes and practices, bid rigging, perjury, forgery, bribery, falsification or destruction of records, receiving stolen property or any other offense indicating a lack of business integrity or business honesty which affects responsibility as a City contractor.

(3) Conviction or civil judgment finding a violation under state or federal antitrust statutes, state or federal immigration statutes, procurement violations, or breach of contract.

(4) Violations of contract provisions of a character which are deemed to be so serious as to justify debarment action, such as, but not limited to:

(a) Knowingly fails to perform in accordance with the specifications or within the time limits provided in the contract without good cause.

(b) Failure to perform or unsatisfactory performance in accordance with the terms of one or more contracts, except that failure to perform or unsatisfactory performance caused by acts beyond the control of the contractor shall not be considered to be a basis for debarment.

(5) Any other cause deemed to affect responsibility as a City contractor, including debarment by another Governmental Agency for any cause listed herein.

(C) Persons being debarred shall receive proper notice and shall have the right to protest the decision.

(D) The City Manager may allow a Debarred Person to participate in City contracts on a limited basis if it is determined that participation is advantageous to the City.

(E) The City Manager may reinstate a Debarred Person if the cause upon which the Debarment is based no longer exists and that it is not likely to recur.

(Ord. No. 5775, § 1, 4-3-23)

1-21-10: PROTESTS AND APPEALS

The City Manager shall have the authority to resolve protests and appeals and shall establish by rule a process to allow protests and appeals of Procurement decisions.

(Ord. No. 5775, § 1, 4-3-23)

1-21-11: CONFLICTS OF INTEREST

Notice is hereby given of the applicability of the Arizona Revised Statute on Conflicts of Interest of officers and employees of the City of Mesa related to Procurement activities (A.R.S. Title 38, Chapter 3, Article 8).

(Ord. No. 5775, § 1, 4-3-23)

CHAPTER 22
BUILDING INSPECTOR (Repealed)*

CHAPTER 23
PLUMBING INSPECTOR (Repealed)†

CHAPTER 24
HEALTH OFFICER (Repealed)‡

CHAPTER 25
HOLIDAYS (Repealed)**

CHAPTER 26
GENERAL PENALTY

1-26-1: DEFINITIONS

In this Code, unless the context otherwise requires: (3363)

ENTERPRISE includes any corporation, company, partnership, association, firm, labor union, or other legal entity. (3363)

PERSON means an individual human being or any enterprise. (3363)

1-26-2: GENERAL PENALTY

All violations of this Code not expressly designated as civil violations shall be deemed misdemeanor violations. All misdemeanor violations shall be deemed to be a Class One (1) misdemeanor, unless a different misdemeanor designation is specifically set forth in this Code. Misdemeanors shall be punished as follows: (3363, 4820)

(A) Any person convicted of a Class One (1) misdemeanor shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00), by imprisonment not to exceed six (6) months, or by both a fine and imprisonment. The court may suspend imposition of part or all of a sentence and place a person on probation for up to three (3) years upon such terms and conditions as the court deems appropriate, including payment of a fine, a term of imprisonment, or both, up to the limits provided herein. (3363, 4820)

(B) Any person convicted of a Class Two (2) misdemeanor shall be punished by a fine not to exceed seven hundred fifty dollars ($750.00), by imprisonment not to exceed four (4) months, or by both a fine and imprisonment. The court may suspend imposition of part or all of a sentence and place a person on

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***Editor's note**—Ord. No. 727, repealed Chapter 22.
†**Editor's note**—Ord. No. 727, repealed Chapter 23.
‡**Editor's note**—Ord. No. 727, repealed Chapter 24.
****Editor's note**—Ord. No. 2610 repealed chapter 25 which derived from Ord. Nos. 128, 1241, 1414, 1570.

probation for up to two (2) years upon such terms and conditions as the court deems appropriate, including payment of a fine, a term of imprisonment, or both, up to the limits provide herein. (3363, 4820)

(C) Any person convicted of a Class Three (3) misdemeanor shall be punished by a fine not to exceed five hundred dollars ($500.00), by imprisonment not to exceed thirty (30) days, or by both a fine and imprisonment. The court may suspend imposition of part or all of a sentence and place a person on probation for up to one (1) year upon such terms and conditions as the court deems appropriate, including payment of a fine, a term of imprisonment, or both, up to the limits provided herein. (4820)

(D) The following fines apply to any enterprise convicted of a misdemeanor:

1. A fine not to exceed twenty thousand dollars ($20,000.00) for a Class One (1) misdemeanor;

2. A fine not to exceed ten thousand dollars ($10,000.00) for a Class Two (2) Misdemeanor;

3. A fine not to exceed two thousand dollars ($2,000.00) for a Class Three (3) Misdemeanor. (4820)

(E) The court may suspend imposition of part or all of a sentence and place an enterprise on probation as permitted in Subsections A, B, and C, upon such terms and conditions as the court deems appropriate, including payment of a fine up to the limits provided herein. (4820)

(F) An enterprise shall be liable for a misdemeanor violation of the City Code if the conduct constituting the offense is engaged in by an officer, director, or employee of the enterprise, or any other agent of the enterprise, while acting within the scope of their agency or employment on behalf of the enterprise. (3363, 4820)

(G) Where this Code prescribes a continuing duty or forbids any act of a continuing nature, each day such duty remains unperformed or such act continues, shall constitute a separate offense. (3363, 4820)

Editor's note—Ord. No. 3363 and Ord. No. 4820 amended § 1-26-2 in its entirety to read as herein set out. Former § 1-26-2 derived from 1958 code, 511, 530, 1411, 2466.

CHAPTER 27

CIVIL CODE VIOLATIONS

1-27-1: VIOLATIONS TREATED AS CIVIL MATTERS

Violations of this Code for which a civil sanction is imposed shall be treated as civil matters as provided in this Chapter. (2131)

1-27-2: COMMENCEMENT OF ACTION; JURISDICTION OF MESA CITY COURT

(A) A civil code violation case is commenced by issuance of a uniform civil code complaint as provided in this Chapter. A civil code violation case shall be commenced within one (1) year of the alleged violation. (2131)

(B) The Mesa City Court shall have jurisdiction over all civil violations of this Code except as provided in Section 1-27-8. (2131, 4074)

1-27-3: SERVICE OF UNIFORM CIVIL CODE COMPLAINT

(A) A uniform civil code complaint may be served by delivering a copy of the uniform civil code complaint citation to the person charged with the violation or by any means authorized by the Arizona Rules of Civil Procedure. (2131)

(B) The original complaint shall be filed in the Mesa City Court within five (5) days of the time that a complaint was issued. Any peace officer or duly authorized agent of the City may issue the complaint. (2131)

1-27-4: AUTHORITY TO DETAIN PERSONS TO SERVE CIVIL COMPLAINT; FAILURE TO PROVIDE EVIDENCE OF IDENTITY

(A) A peace officer or duly authorized agent of the City may stop and detain a person as is reasonably necessary to investigate an actual or suspected violation of this Chapter and to serve a copy of the complaint for any alleged civil violation of this Chapter. (2131)

(B) A person who fails or refuses to provide evidence of his/her identity to a peace officer or duly authorized agent of the City upon request, when such officer or agent has reasonable cause to believe the person has committed a violation of this Code, is guilty of a misdemeanor. (2131)

1-27-5: FORM FOR CIVIL VIOLATION COMPLAINTS

The civil violation complaint shall be in the form of the document marked Exhibit "A," following hereto and made a part hereof by reference, and shall contain the following notice: (2131)

If you fail to appear as directed in this complaint on a civil code violation, a default judgment will be entered against you and a civil sanction will be imposed. (2131)

1-27-5	UNIFORM CIVIL CODE COMPLAINT				EXHIBIT A
COMPLAINT NO.	DRIVER'S LICENSE NO.	STATE	SOCIAL SECURITY NO.	IN THE CITY COURT, CITY OF MESA ☐ OR BEFORE THE ADMINISTRATIVE HEARING OFFICER ☐	
CITY OF MESA VS. DEFENDANT:	FIRST	MIDDLE	LAST	THE UNDERSIGNED SAYS THE DEFENDANT NAMED HEREON	
RESIDENCE ADDRESS:	STREET	TOWN	STATE ZIP	ON DAY AT THE OF 19	AM PM
MAILING ADDRESS: SAME AS ABOVE	STREET	TOWN	STATE ZIP	DID THEN AND THERE AT (LOCATION)	
BUSINESS ADDRESS:	STREET	TOWN	STATE ZIP	IN MESA, ARIZONA	
RESIDENCE PHONE:	BUSINESS PHONE:			COMMIT A CIVIL INFRACTION IN VIOLATION OF MESA CODE SECTION AS FOLLOWS:	
OWNER OCCUPIED YES NO	OWNER'S NAME FIRST	MIDDLE	LAST		
OWNER'S ADDRESS:	STREET	TOWN	STATE ZIP		
YOUR DATE AND TIME TO APPEAR IS	MONTH DAY YEAR	TIME	AM PM		
MESA CITY COURT 245 WEST 2ND STREET MESA, ARIZONA 85201 ☐ OR ADMINISTRATIVE HEARING OFFICER LOCATED AT 245 WEST 2ND STREET MESA, ARIZONA 85201 ☐	IF I FAIL TO APPEAR AS DIRECTED IN THIS COMPLAINT ON A CIVIL CODE VIOLATION, A DEFAULT JUDGMENT WILL BE ENTERED AGAINST ME, AND A CIVIL SANCTION WILL BE IMPOSED _____ DEFENDANT'S SIGNATURE			I HEREBY CERTIFY THAT I HAVE REASONABLE GROUNDS TO BELIEVE AND DO BELIEVE THAT THE PERSON NAMED HEREIN COMMITTED THE CIVIL VIOLATION DESCRIBED HEREIN CONTRARY TO LAW _____ OFFICER'S OR AGENT'S SIGNATURE	

1-27-6: FALSE CERTIFICATION OF CIVIL VIOLATION COMPLAINTS

(A) A civil code violation complaint need not be sworn to if it contains a form of certification by the issuing officer in substance as follows: (2131)

"I hereby certify that I have reasonable grounds to believe and do believe that the person named herein committed the civil violation described herein contrary to law." (2131)

(B) A false certification under the provision of Subsection (A) constitutes perjury. (2131)

1-27-7: ADMISSION OR DENIAL OF ALLEGATION IN COMPLAINT; HEARINGS; FINDINGS OF COURT; CIVIL SANCTION

(A) A person with a civil code complaint shall appear at the time and place stated in the complaint or may appear prior to the time if so authorized by the court and upon the directions contained in the complaint and admit or deny the allegations of the complaint. Allegations not denied at the time of appearance are admitted. A fee shall not be charged for such appearance. (2131)

(B) If the allegations are admitted, the court shall enter judgment for the City and impose a civil sanction. Allegations may be admitted with an explanation. In such case the court shall enter judgment for the City and impose a civil sanction. In determining the civil sanction, the court shall consider the explanation submitted. (2131)

(C) If the person denies the allegations of the complaint, the court shall set the matter for hearing. All such hearings are informal and without a jury, and the City is required to prove the violation charged by preponderance of the evidence. Technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the person elects to be represented by counsel, the person shall so notify the court at least ten (10) days prior to the hearing date. Hearings may be recorded. If the court finds in favor of the person, the court shall enter an order dismissing the allegation. (2131)

If the court finds in favor of the City, the court shall enter judgment for the City and impose a civil sanction. (2131)

(D) If the person served with a civil code complaint fails to appear on or before the time directed to appear or at the time set for hearing by the court, the allegations in the complaint shall be deemed admitted, and the court shall enter judgment for the City and impose a civil sanction. (2131)

(E) A civil sanction imposed pursuant to this Chapter shall not exceed one thousand dollars ($1,000.00). (2131)

1-27-8: HEARING OFFICERS

The City Manager, or his designated representative, may appoint one (1) or more hearing officers to preside over civil code matters arising under the Mesa City Code or the Arizona Revised Statutes that are filed and processed as administrative cases with a City department other than the Mesa Municipal Court. The judgment of the Administrative Hearing Officers constitutes a judgment that is subject to special action relief in accordance with the Arizona Supreme Court's Rules of Procedure for Special Actions. (3879)

1-27-9: APPEAL

Any party may appeal the judgment of the court. The appeal may be to the Superior Court in the same manner as promulgated by the Supreme Court. The posting of an appeal bond stays enforcement of the judgment. Commissioners of the Superior Court may hear and determine appeals. (2131)

1-27-10: SUBPOENA OF WITNESSES; NONAPPLICABILITY OF RULES OF CIVIL PROCEDURE

(A) The City and the person charged with a civil code violation may subpoena witnesses as provided by Arizona Revised Statutes Section 13-4072. Such witnesses are not entitled to fees for appearing in connection with a civil violation proceeding. (2131)

(B) Except as otherwise provided in this Chapter, the rules of civil procedure do not apply. (2131)

1-27-11: FAILURE TO PAY CIVIL SANCTION; COLLECTION PROCEDURE

All civil sanctions shall be paid within thirty (30) days from entry of judgment, except that if payment within thirty (30) days will place an undue economic burden on the person, the court may extend the time for payment or may provide for installment payments. A civil sanction may be collected in the same manner as any other judgment in favor of the City. (2131)

1-27-12: PENALTY

That any person who shall violate any of the provisions of Section 1-27-4(B) hereof shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment. (2131, 2466)

CHAPTER 28
CLAIMS AND DEMANDS AGAINST THE CITY (Repealed)*

CHAPTER 29
DEPUTY CITY MANAGER (Repealed)†

CHAPTER 30
EXECUTIVE CITY ADMINISTRATOR (Repealed)‡

CHAPTER 31
CITY AUDITOR

1-31-1: APPOINTMENT

The Council shall appoint a City Auditor and set his/her compensation. (4608)
(Ord. No. 5555, § 1, 2-24-20)

1-31-2: DUTIES

The City Auditor shall conduct all audits requested by the City Council or the City Manager to ensure that the City is functioning economically, efficiently, and effectively in accordance with legislative and management directives. The City Auditor shall serve at the pleasure of the Council. (4608)

1-31-3: ANNUAL AUDIT PLAN

At least once per fiscal year, the City Auditor shall submit an audit plan to the City Council Audit, Finance, and Enterprise Subcommittee for consideration and direction, and to the City Council for consideration, direction, and approval. The audit plan shall provide the audits to be performed by the City Auditor for the upcoming fiscal year. When developing the audit plan, requests for audits shall be evaluated and prioritized by the City Auditor based on risk and criteria established by the City Auditor. The audit plan shall allow for additional, unscheduled audits to be conducted as directed by the city council, city manager, or as authorized by City Code.
(Ord. No. 5555, § 1, 2-24-20)

***Editor's note—**Ord. No. 2905 repealed Chapter 28 which derived from Ord. Nos. 566, 1125, 1427.
†Editor's note—Ord. No. 5293 repealed Chapter 29 which derived from Ord. Nos. 977, 3766.
‡Editor's note—Ord. No. 1611 repealed Chapter 30 which derived from Ord. No. 1242.

1-31-4: AUDITING STANDARDS

The City Auditor shall conduct all audits in accordance with generally accepted government auditing standards issued by the United States Government Accountability Office, or other, applicable, professional standards issued by the American Institute of Certified Public Accountants or the Institute of Internal Auditors.
(Ord. No. 5555, § 1, 2-24-20)

1-31-5: PUBLIC RECORDS EXEMPTION

Pursuant to Arizona Revised Statutes § 9-305, the City Auditor's working papers and audit files are not public records and are exempt from the requirements of Arizona Revised Statutes, Title 39, Chapter 1.
(Ord. No. 5555, § 1, 2-24-20)

CHAPTER 32
COLLECTION OF DELINQUENT AMOUNTS OWED TO THE CITY

1-32-1: APPLICABILITY

The provisions of this Chapter shall apply unless expressly precluded by law. (5005)

1-32-2: DEFINITIONS

For purposes of this Chapter, the following words and phrases shall have the meaning set forth herein: (5005)

(A) **BUSINESS** means all activities engaged in and caused to be engaged in with the object of gain, benefit or advantage, either direct or indirect. (5005)

(B) **COLLECTOR** means the Tax Collector or any City officer, manager or employee responsible for the collection of amounts owed to the City. (5005)

(C) **ORIGINAL BUSINESS** means the business activity, by whatever form conducted, that ceases operation, whether or not such cessation is by change in legal status, voluntary or involuntary cessation of activity, or transfer of assets, control or ownership to another person. (5005)

(D) **PERSON** means an individual, partnership, limited partnership, limited liability company, corporation, trust, joint venture, or any other association of two or more persons who have as their objective a common gain, benefit, or advantage. (5005)

(E) **RELATED PARTY** means any person who has a commonality of business interest with any other person through their status as an identified person liable under Section 1-32-300(D) within such other person. (5005)

(F) **SUCCESSOR BUSINESS** means that person who continues in a substantially similar manner the original business activity of another person through the acquisition and use, by any means, of ownership or control over the operational characteristics of the original business activity so as to enable it to carry on or continue such activity. (5005)

(G) **TRANSFER** means the change in ownership or control over the day-to-day activities of the business. (5005)

1-32-100: SINGULARITY OF DEBT; SET-OFF

A debt owed by a person to any City department or area of operation shall be subject to set-off against any credit, refund, deposit or payment owing to such person by the same or any other City department or area of operation. (5005)

1-32-200: LIMITATIONS ON OBTAINING NEW LICENSES, SERVICES OR BENEFITS UNTIL DEBT IS PAID

Any person who has a current debt related to any open or closed account maintained or formerly maintained with the City shall be ineligible to receive any new or additional licenses, services or benefits from the City until such debt has been resolved to the satisfaction of the City. (5005)

This limitation includes, but is not limited to, the following situations:

Establishing a commercial or residential utility account; (5005)

Obtaining any license issued pursuant to the Mesa City Code; (5005)

Obtaining or extending any building permit issued pursuant to Title 4 of the Mesa City Code; (5005)

Extending any application for a building permit pursuant to Title 4 of the Mesa City Code. (5005)

1-32-300: PERSONAL LIABILITY; PRESUMPTIONS

(A) Every person with a duty, at any time, to account for and pay over any tax or other amount owed the City, every person who has control or supervision over the payment of any tax or other amount owed the City and every person who has been charged with the responsibility to pay over any tax or other amount owed the City shall be personally liable, jointly and severally, for any additional monies not paid to the City. (5005)

(B) The dissolution, termination or withdrawal from the City of any person shall not affect or discharge the personal liability established by Subsection A. (5005)

(C) The cessation of business by any person shall not affect or discharge the personal liability created by Subsection A. (5005)

(D) For purposes of Subsection A, there shall be a rebuttable presumption that the following persons have a duty to account for and pay over tax and any other amount owed the City. (5005)

	BUSINESS FORM	PERSONS LIABLE
1.	Sole Proprietorship	The Proprietor
2.	Partnership	Each Partner
3.	Limited Partnership	General Partner
4.	Joint Venture	Each participant in the joint venture
5.	Corporation	Any officer with control over the activity giving rise to the debt
6.	Limited Liability Company	Each member, manager, or officer
7.	Trust	Any trustee
8.	Other Association	Any individual with control over the activity giving rise to the debt

1-32-400: LIMITATION ON RELATED PARTY OBTAINING LICENSES, SERVICES, OR BENEFITS

Any related party to any person liable for tax or any other amount owed to the City pursuant to Section 1-32-300 shall not obtain any additional licenses, services, or benefits until all underlying liabilities have been resolved to the City's satisfaction. (5005)

Regarding the administration of the above provision for Limited Liability Companies (LLC), once the LLC's account is delinquent, neither any member of such LLC nor any other LLC of which he may also be a member shall obtain new or addition City licenses, services, or benefits. (5005)

1-32-500: VOLUNTARY SUCCESSION; CREATION OF LIEN; TRANSFERRED LIABILITY; CONTINUED LIABILITY

(A) In the case of any succession in business activity that is accomplished by voluntary agreement between the original business and successor business, the agreement or mutual expression of intent to agree shall operate to immediately create a business succession lien in favor of the City in the total amount of such impositions. Such lien shall attach to all of the tangible and intangible assets of the original business. (5005)

(B) The lien created by Subsection A shall, upon completion of the transfer of effective control from the original to the successor business, attach to all assets of the successor business to the extent of any liability remaining unpaid by the original business as of the date of transfer. (5005)

(C) The business succession lien created by Subsection A shall not alter in any way the liability of the original business or the personal liability created in Section 1-32-300 of this Chapter. (5005)

(D) The business succession lien created in this Section is separate and apart from and in addition to any tax liability lien against the original or successor business that might have existed or come into being separately and apart from the operation of this Chapter. (5005)

(E) All business succession shall be deemed to be voluntary except as described in Section 1-32-600 below. (5005)

1-32-600: INVOLUNTARY BUSINESS SUCCESSION; CREATION OF LIEN

(A) The following transfers of business activity shall be considered involuntary:

1. Transfer to a receiver or trustee in bankruptcy. (5005)
2. Transfer to a receiver pursuant to the order of a Superior Court of this State or equivalent action by a court of general jurisdiction in a foreign state. (5005)
3. Transfer to an executor, administrator or personal representative by virtue of the death of a sole proprietor or partner, provided that the transfer by operation of law of partnership assets to a surviving partner or partners is considered a voluntary transfer as to such partners' partnership assets. (5005)
4. Transfer to a landlord by seizure or distraint for rent or similar remedy whether or not accompanied by judicial proceedings for recovery or redelivery of the demised premises. (5005)
5. Except as provided in Section 5-10-595 of the Mesa City Code, transfer to a secured party by operation of a mortgage, deed of trust or other security agreement, with or without judicial proceedings. (5005)
6. Voluntary or involuntary guardianship pursuant to Title 14, Arizona Revised Statutes, or equivalent proceedings under a foreign statute and foreign court of competent jurisdiction. (5005)

(B) In the event of any transfer described in Subsection A, a business succession lien shall immediately be created and shall attach as of the date of the first act or event that accomplishes the transfer. This lien shall attach to all remaining assets of the original business entity and any resulting estate. However, liabilities owed to the City as of such date covered by such lien shall be payable from the successor solely from the assets of the estate of the original business, subject to prior liens and court orders, and subject to any additional personal liability that may be imposed pursuant to Section 1-32-300. In the event that the debt owed to City exceeds the value of assets transferred, the successor will have no liability for the difference. (5005)

(C) Any transferee under Subsection A who continues to operate the business activity is liable for all taxes and other liability arising from the business activity conducted or carried on by the transferee. The transferee shall be subject to the personal liability provisions of Section 1-32-300. (5005)

1-32-700: NOTICE OF LIEN; RECORDING OF LIEN

Unless expressly precluded by law from recording a lien on the underlying debt or debtor, the collector shall provide thirty days advance written notice of "intent to file lien" to the named debtor(s). The collector shall

effectuate the filing of a business succession lien by recording a lien notice in the office of the County Recorder in any county in which the original business or successor business may have property, assets or conduct business activity. A lien may also be filed with the Arizona Secretary of State. The lien notice shall be labeled "Business Succession Lien Notice" and shall state the type and amount of any imposition including recording cost. When applicable, a single lien may be filed that names both the original business and successor business. Nothing in this Section shall be deemed to limit the authority of the City to file tax liens pursuant to Mesa City Code Section 5-10-590. (5005)

1-32-800: RELEASE OF LIEN; WAIVER OF RIGHT TO LIEN AGAINST SUCCESSOR IF CERTIFICATE PRODUCED

(A) Any lien, whether or not recorded, may be released in whole or in part by the collector, in his sole discretion. The release of any part of the lien shall not affect the remaining balance. (5005)

(B) The collector shall not record any lien against successor business if, prior to the expiration of the thirty day notice period set forth in Sec. 1-32-700, successor business produces a receipt from the collector showing that all amounts owed City have been paid or a certificate stating that no amount is due as then shown by the records of the collector. The collector shall respond to a request from the seller for a certificate within fifteen (15) days by either providing the certificate or a written notice stating why the certificate cannot be issued. (5005)

(C) If a subsequent investigation shows a deficiency arising before the sale of the business, the deficiency is an obligation of the seller and does not constitute a liability against a successor business who has received a certificate from the collector. (5005)

(D) A voluntary successor business who fails to obtain a certificate as provided by this Section is personally liable for payment of the amount required to be paid by the original business on account of the business so purchased. (5005)

1-32-900: CHANGE OF BUSINESS ENTITY FORM; CONTINUATION OF PRIOR LIABILITY

If any business entity changes its form of doing business, including but not limited to, a change from sole proprietorship to corporation or LLC, or dissolution of a partnership or corporation, while continuing to do business under substantially the same management and control, the liability of the original entity shall remain on such new entity, and shall further attach and become a lien upon the assets of and a liability of the new business entity. (5005)

1-32-1000: COLLECTION CHARGES

Any person who has a delinquent account maintained by the City will also be responsible for all costs incurred by the City in collecting those delinquent funds. This includes a reasonable charge for staff time and any direct costs incurred. (5005)

CHAPTER 33
CANDIDATE ELECTION DATES

1-33-1: DATE OF CANDIDATE ELECTIONS

The primary election for Candidates for the Offices of Mayor and Councilmember shall be held on the first Tuesday in August in any year in which a general election or special election is held and at which candidates for public office are to be elected. The general election, if required, shall be held on the first Tuesday after the first Monday in November of even-numbered years.
(5292; Ord. No. 5543, § 1, 12-9-19)

1-33-2: TERM OF MAYOR AND COUNCILMEMBER

The term of office for the Office of Mayor and Councilmember shall commence on or after the first Monday in January in the year following the election and shall be for a period of four (4) years or until their successors are elected and qualified. (5292)

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CHAPTER 1
PLANNING AND ZONING BOARD

2-1-1: MEMBERSHIP

There is hereby created a Planning and Zoning Board to consist of seven (7) regular members and three (3) alternate members. Members of the Board shall hold no other City office, shall reside within the limits of the City, and shall be appointed as provided in Subsection (B) of Section 501 of the City Charter. (167, 5588)
(Ord. No. 5997, § 1, 1-26-26)

2-1-2: TERM OF OFFICE

(A) Regular members of the Planning and Zoning Board shall serve a term of three (3) years, unless they submit a written resignation to the Mayor and City Council or are removed by City Council. At the time of the original appointment under this Chapter, the Mayor shall designate the length of the term of all of the members to provide for staggered terms. No regular member shall serve more than two (2) consecutive full terms.

(B) Alternate members of the Planning and Zoning Board shall serve a term of three (3) years, unless they submit a written resignation to the Mayor and City Council or are removed by the City Council. No alternate may serve more than two (2) consecutive full terms. However, an alternate may later be appointed by the Mayor and City Council to serve as a regular member of the Planning and Zoning Board, in which case the term-limit provisions of subsection (a) shall apply. (167, 558)

(Ord. No. 5997, § 1, 1-26-26)

2-1-3: VACANCIES; ABSENCE FROM MEETINGS

Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. Whenever a member of the Board ceases to reside in the City, a vacancy on the Board is created. (167, 558, 1620)

2-1-4: COMPENSATION

The members of the Planning and Zoning Board shall serve as such without compensation. (167, 558)

2-1-5: DUTIES

(A) The duties of the Board, in addition to any other matters directed by the City Council, shall be to study the development of the City and from time to time as may be necessary place before the Council recommendations for the better development of the City and contiguous areas surrounding the City with the intent that a complete and unified plan may be achieved. (4960)

(B) Such duties may include the ability to review and make recommendations concerning joint public/private projects in designated re-development areas and propose re-development actions to the City Council which are consistent with adopted plans and stated re-development goals and the objectives for the

downtown area. The Board shall hold public hearings on proposed re-development plans or amendments to adopted plans. Such recommendations shall be advisory only and shall not be binding upon the City Council. (4960)

(C) The Board shall also prepare and present to the Council a Zoning Ordinance and map recommending the boundaries of the various districts and appropriate regulations to be enforced therein. The Board shall make a preliminary report on such proposed Ordinance and map and shall hold public hearings thereon before submitting its final report. (167, 558, 4476, 4960)

2-1-6: HEARINGS; FINAL ACTION

(A) The Council shall take action on the recommendation(s) of the Planning and Zoning Board. The recommendation of the Planning and Zoning Board or the Planning Hearing Officer shall be forwarded to City Council, and shall be advisory only and shall not be binding upon the Council. (4960)

(B) The Council may also initiate any proposed amendment, change, or modification to such Zoning Ordinance and map. The Council may not approve the amendment, change or modification until it is noticed and heard by the Planning and Zoning Board, or Planning Hearing Officer. For public hearing and recommendation under same process as a zoning case filed by a property owner. The recommendation of the Planning and Zoning Board or the Planning Hearing Officer shall be forwarded to City Council, and shall be advisory only and shall not be binding upon the Council. (4960)

CHAPTER 2
HUMAN SERVICES ADVISORY BOARD (Repealed)*

CHAPTER 3
JUDICIAL ADVISORY BOARD†

2-3-1: CREATION OF BOARD

There is hereby created a citizen board to be known as the Judicial Advisory Board. Board members shall serve without salary or compensation.
(Ord. No. 5577, § 2, 6-15-20)

2-3-2: PURPOSE OF BOARD

The purpose of the Judicial Advisory Board is to recommend to the City Council the best qualified persons to become City Magistrates, to evaluate the performance of City Magistrates, and advise the City Council about retaining City Magistrates, and, if so elected by the City Council, to recommend the best person to become the Presiding City Magistrate, to evaluate the performance of the Presiding City Magistrate, and to advise the City Council regarding retention of the Presiding City Magistrate.
(Ord. No. 5577, § 2, 6-15-20)

***Editor's note—**Ord. No. 5123, repealed Chapter 2 which derived from Ord. Nos. 3220, 4414, 4757.
†Editor's note—Ord. No. 5577, § 2, adopted June 15, 2020, amended Ch. 3 in its entirety to read as herein set out. Former Ch. 3, §§ 2-3-1—2-3-9, pertained to similar subject matter, and derived from Ord. Nos. 3340, 3391.

2-3-3: DEFINITIONS

BOARD: The Judicial Advisory Board of the City of Mesa.

CITY MAGISTRATE: A City Magistrate, other than the Presiding City Magistrate or a Magistrate Pro Tem, appointed to the Mesa Municipal Court by the Mesa City Council.

MAGISTRATE PRO TEM: A Magistrate appointed by the Presiding City Magistrate to serve on the Mesa Municipal Court on an as-needed basis as determined by the Presiding City Magistrate.

PRESIDING CITY MAGISTRATE: The Presiding City Magistrate appointed to the Mesa Municipal Court by the Mesa City Council.
(Ord. No. 5577, § 2, 6-15-20)

2-3-4: MEMBERSHIP

(A) The Board shall be composed of seven (7) persons, as follows:

1. The Presiding Judge of the Arizona Superior Court for Maricopa County, or designee.

2. An Arizona Appellate Court Judge to be appointed by the Chief Justice of the Arizona Supreme Court.

3. An active member of the State Bar of Arizona who shall reside in the City of Mesa and who shall be appointed by the Mayor, with the concurrence of the City Council, from among three (3) nominees recommended by the State Bar's Board of Governors.

4. A member of the Maricopa County Bar Association who shall reside in the City of Mesa and who shall be appointed by the Mayor, with the concurrence of the City Council, from among three (3) nominees recommended by the Association's Board of Directors.

5. Three (3) Mesa electors who are not City employees, Judges in any official capacity, retired Judges, nor members of the State Bar of Arizona, but who have distinguished themselves through their public service, impartiality, and objectivity.

(B) Subject to the concurrence of the City Council, the Mayor shall appoint the members of the Board for staggered terms of three (3) years each. At the time of the initial appointment, the Mayor shall designate the length of term for each such member to provide for staggered terms.

(C) No member of the Board shall serve for more than two (2) complete consecutive terms; however, a member may be reappointed after the lapse of three (3) years from the end of the previous term.

(D) Absences of any member from meetings of the Board shall, at the discretion of the City Council, render such member liable for immediate removal from the Board by the City Council. Any member absent from three (3) consecutive meetings without being excused by the chairperson shall be considered as having vacated his or her appointment.
(Ord. No. 5577, § 2, 6-15-20)

2-3-5: BOARD OFFICERS

(A) The Board's officers shall consist of a chairperson and vice chairperson, each selected by the Board from the Board's members.

(B) Board officers shall serve one (1) year terms. No member shall serve more than two (2) terms as chairperson or two (2) terms as vice chairperson, not including any term filled for the remainder of another member's unexpired term.
(Ord. No. 5577, § 2, 6-15-20)

2-3-6: BOARD REPRESENTATION

(A) Pursuant to Administrative Order 2000-80 of the Arizona Supreme Court, and such subsequent orders as may issue which address this objective, in selecting Board members, the appointing authorities shall be sensitive to representation reflecting the racial, ethnic, gender, and political diversity of the community served by the Mesa Municipal Court.

(B) The appointing authority for each Board member shall advise each Board member they appoint that the Board member's responsibilities include recruitment of qualified City Magistrate applicants, including qualified minority and women applicants, who may not otherwise apply.

(Ord. No. 5577, § 2, 6-15-20)

2-3-7: BOARD MEETINGS

(A) Promptly upon learning of a vacancy, anticipated vacancy, or the expiration of the existing term of a City Magistrate or presiding City Magistrate, the chairperson of the Board shall issue a call for a meeting of the Board, except when the City Council uses the appointment or reappointment process of Subsection 2-3-8(A)(2), 2-3-8(C)(1)(a), or 2-3-8(C)(2)(a).

(B) All Board meetings shall comply with the Arizona Open Meeting Act (A.R.S. § 38-431 et seq.) and Public Records Law (A.R.S. § 39-121 et seq.), as amended.

(C) The City Clerk's Office and the Human Resources Department shall jointly act as secretary to the Board by preparing notices of meetings, minutes, sending information packets to members, and fulfilling all other clerical responsibilities of the Board.

(Ord. No. 5577, § 2, 6-15-20; Ord. No. 5710, § 1, 7-5-22)

2-3-8: APPOINTMENT AND REAPPOINTMENT PROCESS OF CITY MAGISTRATES, THE PRESIDING CITY MAGISTRATE, AND MAGISTRATES PRO TEM

(A) Appointment of City Magistrates. The City Council may appoint a City Magistrate based on merit by using either of the following processes and the City will notify the Board of which process will be used.

(1) Except as provided in Subsection 2-3-8(A)(2), the appointment process for a City Magistrate is as follows:

(a) The Board shall actively seek and encourage well-qualified individuals to apply to a City Magistrate vacancy. Through the City's Human Resources Department, the Board shall advertise notice to the public and licensed attorneys of a City Magistrate vacancy in a manner designed to provide reasonable notice of the opening but shall at least publish notice of the vacancy in a newspaper of general circulation once a week for two (2) successive weeks.

(b) All applicants shall complete an application containing such information as the Board and the Human Resources Department deem necessary and appropriate to comply with the law and to provide relevant information about the ability of the applicant to perform an outstanding job as a City Magistrate. The Board may use as a guide the "Application for Nomination to Judicial Office" formulated under Rule 4 of the Arizona Supreme Court's Uniform Rules of Procedure for Commissions on Appellate and Trial Court Appointments.

(c) Applicants shall be given a meaningful opportunity to supplement their applications with letters of recommendation.

(d) The Board shall not limit its investigation of applicants to the applications and any letters of recommendation received but shall also conduct personal interviews and investigations into the background, performance, and qualifications of the applicants. The Board shall personally interview at least six (6) applicants for initial appointment as a City Magistrate and may also hold public hearings related to the appointment of a City Magistrate as the Board deems necessary and appropriate.

(e) The Board is authorized to develop procedures and use such information it deems reasonable that are consistent with this Chapter to select City Magistrates on the basis of merit.

(2) The City Council may appoint a qualified applicant to a City Magistrate vacancy from a previous list of the three (3) best qualified applicants recommended by the Board and submitted to the City Council (See Subsection 2-3-9(D)(1)), provided the City Council previously appointed an applicant from that same list within the last six (6) months.

(B) Reappointment of City Magistrates. The reappointment process for a City Magistrate is as follows:

(1) Through the City' s Human Resources Department, the Board shall advertise notice to the public and licensed attorneys of the potential reappointment of a City Magistrate in a manner designed to solicit public and professional comment and elicit constructive appraisals of the performance of the City Magistrate but shall at least publish notice of the potential reappointment in a newspaper of general circulation once a week for two (2) successive weeks.

(2) All City Magistrates seeking reappointment shall complete an application containing such information as the Board and the Human Resources Department deem necessary and appropriate to comply with the law and to provide relevant information about the ability of the applicant to perform an outstanding job as a City Magistrate. The Board may use as a guide all surveys, questionnaires, data forms, and reports, formulated under Rule 6 of the Arizona Supreme Court's Rules of Procedure for Judicial Performance Review in Arizona.

(3) City Magistrates seeking reappointment shall be given a meaningful opportunity to supplement their applications with letters of recommendation.

(4) The Board shall not limit its investigation of City Magistrates seeking reappointment to the applications and any letters of recommendation received but shall also conduct personal interviews and investigations into the background, performance, and qualifications of the City Magistrate seeking reappointment. The Board shall conduct at least one (1) public hearing soliciting public input concerning a City Magistrate seeking reappointment and may hold additional public hearings related to the reappointment of a City Magistrate as the Board deems necessary and appropriate.

(5) The Board is authorized to develop procedures and use such information it deems reasonable that are consistent with this Chapter to retain City Magistrates on the basis of merit.

(C) Appointment and Reappointment of the Presiding City Magistrate.

(1) The City Council may appoint a Presiding City Magistrate based on merit by using either of the following processes and the City will notify the Board of which process will be used.

(a) The City Council may appoint a current sitting City Magistrate to fill a vacancy of the position of Presiding City Magistrate. The City Council may use such procedures and information as it deems reasonable to select a Presiding City Magistrate which may include considering all surveys, questionnaires, data forms, and reports formulated under Rule 6 of the Arizona Supreme Court's Rules of Procedure for Judicial Performance Review in Arizona.

(b) The City Council may determine that the appointment process for the Presiding City Magistrate will be the same as the process for City Magistrates set forth in Subsection 2-3-8(A)(l), except that Subsection 2-3-8(A)(2) is not applicable to the appointment process for the Presiding City Magistrate.

(2) The City Council may make a reappointment decision regarding the Presiding City Magistrate by using either of the following processes:

(a) The City Council may make a reappointment decision regarding the Presiding City Magistrate on the basis of merit. The City Council may use such procedures and information it deems necessary to make the reappointment decision, which may include any of the procedures of Subsection 2-3-8(B). If the City Council chooses this reappointment process, the City will notify the Board.

(b) If the City Council does not choose the reappointment process under Subsection 2-3-8(C)(2)(a), the reappointment process for the Presiding City Magistrate will be the same as the process for City Magistrates set forth in Subsection 2-3-8(B).

(D) Appointment of Magistrates Pro Tem.

(1) The Presiding City Magistrate, with approval from the City Manager, may appoint Magistrates Pro Tem on an as-needed basis, such as to fill in for City Magistrates who are unavailable or for temporary or part-time staffing of the Mesa Municipal Court.

(2) The duration of the appointment of a Magistrate Pro T em will be determined by the Presiding City Magistrate based on the needs of the Mesa Municipal Court.

(Ord. No. 5577, § 2, 6-15-20; Ord. No. 5710, § 2, 7-5-22)

2-3-9: RECOMMENDATION PROCESS

(A) All Board members shall consider all applicants in an impartial, objective manner, based only on the applicant's merit.

1. At the earliest possible opportunity, a Board member shall disclose to all members of the Board:

a. All relationships with an applicant (such as business, personal, or attorney-client) or any possible cause for conflict of interest, bias, or prejudice.

b. All efforts to recruit a specific applicant.

c. All applicants who constitute "relatives" under the Arizona Conflict of Interest Laws (A.R.S. § 38-501 et seq.), as amended, or those applicants who are at present, or have been in the last ten (10) years, a coworker in the same company or firm as the Board member or the Board member's spouse.

2. A Board member shall refrain from voting or otherwise participating in discussing all persons required to be disclosed in Subsection 2-3-9(A)(1)(a) and (c). Board members may discuss and vote on applications submitted by persons they recruit to apply, after having disclosed to all Board members the nature of their efforts to recruit the applicant.

(B) In considering initial appointments or reappointments, the Board shall consider comment from all interested members of the public at a public hearing or in writing. For reappointments, the Board shall also make inquiry of the Arizona Commission on Judicial Conduct for any adverse rulings against the City Magistrate or Presiding City Magistrate scheduled for reappointment consideration.

(C) Following Arizona Board of Regents v. Phoenix Newspapers, Inc., 167 Ariz. 254, 806 P.2d 348 (1991), or subsequent cases dealing with the same subject, the names of applicants and their applications shall not be disseminated to the public or the media. However, those applicants who both agree to be interviewed and who are selected to be interviewed shall become candidates whose names and applications, without the home addresses and telephone numbers, shall be made available, upon request, to the public and the media.

(D) The Board shall interview candidates in accordance with the Arizona Open Meeting Laws. The Board shall vote on the candidates in an open meeting.

1. As soon as possible after the vote of the Board, the Board shall deliver its written appointment recommendation to the Mayor and City Council, or an appropriate Subcommittee of the City Council. The Board shall identify in alphabetical order the three (3) best qualified candidates for each vacancy and summarize the relative strengths and weaknesses of each final candidate.

2. As soon as possible after the vote of the Board, the Board shall deliver its written reappointment recommendation to the Mayor and City Council, or an appropriate Subcommittee of the City Council. The Board shall state that the Board does or does not recommend reappointment, summarizing the reasons therefor.

(Ord. No. 5577, § 2, 6-15-20)

2-3-10: CITY COUNCIL DECISION

The City Council may accept or reject the Board's advice and recommendations. The City Council may also refer a specific appointment or reappointment back to the Board for more investigation and findings. The City Council may also refer any judicial matter or issue to the Board for such review as the City Council may direct.
(Ord. No. 5577, § 2, 6-15-20)

CHAPTER 4
LIBRARY ADVISORY BOARD

2-4-1: CREATION OF LIBRARY ADVISORY BOARD

There is hereby created a Board to be known as the Library Advisory Board of the City. Such Board shall be composed of nine (9) persons who shall be appointed by the Mayor with the approval of the Council. Members

of the Board shall serve for staggered terms of three (3) years, and no member shall serve more than two (2) complete consecutive terms, providing a person may be reappointed after the lapse of three (3) years from the end of his/her preceding term. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his/her appointment. (561, 1622, 4025)

2-4-2: RESPONSIBILITIES

The Library Advisory Board may:

(A) Recommend conditions for the acceptance of endowments, donations, or contributions for the benefit of the library; (1075, 1622, 4025)

(B) Recommend hours when the library shall be open to the public; (1075, 1622)

(C) Recommend policies for the operation of the library and the development and management of its collections; (1075, 1622, 4025)

(D) Advise the City Council on the operation and management of the library; and (1075, 1622, 4025)

(E) Perform such other duties as may be delegated by the City Council. (1622, 4025)

CHAPTER 5
MERIT SYSTEM BOARD

2-5-1: CREATING AND ESTABLISHING

There is hereby created and established a Merit System Board to consist of three (3) resident citizens and electors of the City who shall be appointed by the Mayor with the approval of the Council to serve for three- (3) year staggered terms. As of the effective date hereof, the Mayor shall designate the terms of the various members of the Board, which shall not be more than three (3) years in order to provide for staggered terms, with as nearly equal a number as possible to be appointed each year. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. Unless removed as herein provided, members of the Board shall serve until their term is expired and their successor appointed and qualified and shall select their own chairman from among their members to serve for a one- (1-) year term. (559, 1623, 2782)

2-5-2: PERSONNEL APPEALS BOARD (Repealed)

Editor's note—Ord. No. 1623, repealed the former § 2-5-2, and enacted a new Chapter 18. The former § 2-5-2 derived from Ord. No. 728.

2-5-3: AMENDING THE PERSONNEL SYSTEM

That Rule 4, Section 4; Rule 6, Section 3, paragraph 2; Rule 11, Section 2, paragraph 1; and Rule 13, Section 3(B)2 of the Personnel Rules and Regulations as contained in Resolution No. 4467, together with all the provisions of said Resolution No. 4467, three (3) copies of which resolution are on file in the office of the City Clerk, are hereby referred to, adopted, and made a part hereof as if set forth fully in this Section, and Resolution No. 4467, together with the Amendments and Personnel Rules and Regulations contained therein and above referred to, are declared to be a public record pursuant to the provisions of Section 9-801, Arizona Revised Statutes. (728, 1281, 1317)

CHAPTER 6
CIVIL DEFENSE DISASTER (Repealed)*

CHAPTER 7
PARKS AND RECREATION BOARD

2-7-1: CREATION OF PARKS AND RECREATION BOARD

There is hereby created a Board to be known as the Parks and Recreation Board. The Parks and Recreation Board shall be composed of eleven (11) persons. The members of the Board shall be appointed by the Mayor with the approval of the Council for staggered terms of three (3) years each. At the time of the initial appointment, pursuant to this Chapter, the Mayor shall designate the length of term for each member to provide for staggered terms. No member of the Parks and Recreation Board shall serve more than two (2) complete consecutive terms;

***Editor's note—**Ord. No. 706, repealed Chapter 6.

however, a member may be reappointed after the lapse of three (3) years from the end of the previous term. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his/her appointment. (563, 571, 1624, 2712, 4025)

2-7-2: POWERS AND DUTIES

The Parks and Recreation Board shall advise the Council on policy matters relating to the operation and development of all City parks and recreational facilities, including all City-owned or operated golf courses, and on the recreational program of the City. The Board shall elect one (1) of its members to serve as chairman for a one- (1-) year term. (563, 2712, 4025)

CHAPTER 8
TRANSPORTATION ADVISORY BOARD

2-8-1: CREATION OF BOARD

There is hereby created and established a Transportation Advisory Board to consist of eleven (11) resident citizens and electors of the City who shall be appointed by the Mayor with the approval of the Council to serve for three- (3-) year staggered terms. As of the effective date of this Chapter, the Mayor shall designate the terms of the various members of the Board, which shall not be more than three (3) years in order to provide for staggered terms, with as nearly equal a number as possible to be appointed each year. Members of the Board shall serve until their term expires and their successors appointed and qualified and shall select their own chairman from among their members to serve for a one- (1-) year term. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. The members of the Board shall serve without compensation. (1569, 1620, 3548)

2-8-2: PURPOSE OF BOARD

A Transportation Advisory Board for the City of Mesa will assist and advise the Council in developing a community-based, multi-modal surface transportation system that provides mobility for all, complements land use, and improves air quality. (3548)

2-8-3: MEMBERSHIP

The Board will be comprised of a diverse body of Mesa citizens committed to developing an efficient, effective, multi-modal surface transportation system. Members of the Board shall have a background or strong interest in transportation issues. (3548)

2-8-4: POWERS AND DUTIES

The powers and duties of the Board shall be as follows: (3548)

(A) Make studies of traffic problems within the limits of the City and make recommendations to the City Council from time to time with respect thereto. (3548)

(B) Advise, assist, and make recommendations to the City Council on matters relating to surface transportation, including, but not limited to, transportation plans, projects, and ordinances relating to the surface street system, bicycles, pedestrians, freeways, and transit. (3548)

(C) Create a forum for communication, education, and dialogue with Mesa citizens on transportation issues. (3548)

CHAPTER 9
DESIGN REVIEW BOARD

2-9-1: CREATION OF BOARD

There is hereby created a Board to be known as the Design Review Board. The Design Review Board shall be composed of seven (7) persons who are citizens and electors of the City. The members of the Board shall be appointed by the Mayor with the approval of the Council for staggered terms of three (3) years each. At the time of the initial appointment, pursuant to this Chapter, the Mayor shall designate the length of terms for each member to provide for staggered terms. No member of the Design Review Board shall serve more than two (2) complete consecutive terms; however, a member may be reappointed after the lapse of three (3) years from the end of the previous term. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. The membership of the Design Review Board shall include two (2) architects, two (2) other design professionals (i.e., landscape architecture, engineering, urban planning, interior design, or other design-related backgrounds), one (1) contractor/developer, and two (2) citizens. (2077, 3170)

2-9-2: POWERS AND DUTIES

The Design Review Board shall advise the Council on issues concerning exterior design and landscaping guidelines for buildings, structures, and open space; review and decide on design and architectural elements of development proposals as specified by ordinance; and perform such other functions as may be assigned to them by the Mayor or City Council. The Board shall elect one (1) of its members to serve as chairman, and each chairman so elected shall serve for a one- (1-) year term. (2077, 3170)

CHAPTER 10
PLUMBING, MECHANICAL, AND SOLAR ENERGY ADVISORY BOARD (Repealed)*

CHAPTER 11
BUILDING BOARD OF APPEALS†

2-11-1: PURPOSE

There shall be, and is hereby created, a Building Board of Appeals, consisting of nine (9) members who are qualified by experience and training to pass judgment upon matters pertaining to building and construction. The

***Editor's note—**Ord. No. 4207, repealed Chapter 10 and derived from Ord. Nos. 864, 1082, 1620.
†Editor's note—Ord. No. 4205, repealed the former Chapter 11, and enacted a new Chapter 11 as set out herein. The former Chapter 11 derived from Ord. Nos. 1024, 1620, 4205.

purpose of the Building Board of Appeals (Board) shall be to hear appeals from determinations made by the Building Safety Director and the Fire Marshal; to provide for reasonable interpretations of the provisions of the Mesa Municipal Code, Title 4 - Building Regulations (all Chapters) and Chapter 2 Fire Code of Title 7 - Fire Regulations; to determine the suitability of alternate materials and methods of construction; and to recommend changes of the various building and fire codes to the City Council. (4205)

2-11-2: MEMBERSHIP

The members of the Board shall be appointed by the Mayor with the approval of the City Council for staggered terms of three (3) years each. No member shall serve more than two (2) complete consecutive terms, provided, however, a person may be reappointed after a lapse of three (3) years from the end of their last term. The Mayor shall designate, at the time of the initial appointment under this Chapter, the length of time for each of the members to provide for three- (3-) year staggered terms, and thereafter appointments shall be for three (3) years. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent for three (3) consecutive meetings without being excused shall be considered as having vacated their appointment. Appointments to fill unexpired terms shall be made in the same manner as the vacated member. Members of the Board shall serve without pay. (4205)

The Building Safety Director or designee shall serve as Secretary to the Board but shall have no vote therein. (4205)

2-11-3: QUALIFICATIONS

The members of the Board shall consist of: one (1) architect licensed by the State of Arizona; one (1) general building contractor licensed by the State of Arizona and experienced in the construction of commercial/industrial buildings; one (1) homebuilder experienced in the construction of one- (1-) and two- (2-) family dwelling units; one (1) plumbing or mechanical contractor registered by the State of Arizona or one (1) mechanical engineer licensed by the State of Arizona; one (1) electrical contractor registered by the State of Arizona or one (1) electrical engineer licensed by the State of Arizona; one (1) person with experience in firefighting techniques or fire protection systems or one (1) fire protection engineer licensed by the State of Arizona; and three (3) general public members. It is encouraged that one (1) of the general public members be a person with disabilities as defined by the Americans with Disabilities Act of 1990. (4205)

Members shall have had at least five (5) years of recent experience in their respective trade or profession. No member shall be a current employee of the City of Mesa. Members shall comply with the City of Mesa Ethics Handbook for Elected Officials and Advisory Board Members. (4205)

2-11-4: PROCEDURES

The Board shall annually select one (1) of its members to serve as Chair and one (1) member to serve as Vice Chair. From time to time, the Board shall establish rules and regulations for its own procedures that are not inconsistent with the provisions of this Chapter. (4205)

An appeal of a determination of the Building Safety Director or the Fire Marshal shall be filed within thirty (30) days from the date of the determination. (4205)

The Board shall have the authority to overturn, uphold, or modify a determination of the Building Safety Director or the Fire Marshal, and shall have the same authority as the official in so doing. The Board shall be authorized to approve an alternate material or method of construction to that required by Title 4, provided the Board finds that the proposed design is satisfactory, complies with the intent of the requirements of Title 4, and the material, method, or work to be provided meets the intended purpose and is at least the equivalent to that prescribed in Title 4 in quality, strength, effectiveness, fire resistance, durability, and safety. (4205)

Appeals shall generally follow the following steps: (4205)

(A) The Building Safety Director or Fire Marshal, as appropriate, shall brief the Board on the key elements of the appeal, including the Code requirements and other pertinent information, (4205)

(B) The appellant may present further information explaining the facts and reasons for the appeal, (4205)

(C) Appropriate City staff may add additional information, and (4205)

(D) The Board shall deliberate the case and may hear additional testimony relevant to the appeal prior to reaching a decision. (4205)

The Board shall reach a decision without unreasonable or unnecessary delay. The Board shall render all decisions and findings in writing, signed by the Chair or Vice Chair. The Building Safety Director shall forward a notice of decision to the appellant by certified mail or personal delivery. Said notice of decision shall state the determination, reasons for the decision, conditions related to the granting of the determination as established by the Board, and whether or not the appeal meets the requirements of this Chapter. The decision of the Board shall be final, subject to court review only, and shall not be appealable to the City Council. (4205)

2-11-5: MEETINGS

The Board shall meet upon notice of the Building Safety Director or Fire Marshal, at the request of the Chair or Vice Chair, within thirty (30) calendar days after the receipt by the Building Safety Director or the Fire Marshal of an appeal, or at stated periodic meetings. Meetings and hearings of the Board shall be public and in the presence of a quorum. Meetings shall conform to the requirements of the Open Meeting Laws of the State of Arizona. Appellants and their representatives shall be given an opportunity to be heard. (4205)

Minutes of meetings shall be made, and after approval at a subsequent meeting, shall be signed by the Chair or Vice Chair and retained on file in the Building Safety Division. (4205)

2-11-6: QUORUM AND VOTING

Five (5) members of the Board shall constitute a quorum. In varying the application of any provision of the Building Code, Fire Code, or related codes of the City or in modifying an order of the Building Safety Director or the Fire Marshal, the affirmative vote of five (5) members shall be required. Failure to secure five (5) concurring votes shall be deemed a confirmation of the decision of the Building Safety Director or the Fire Marshal. Members shall be present to vote. (4205)

No member of the Board shall discuss or vote on any agenda item concerning a job or project in which they are engaged as a contractor, material dealer, or consultant, or in the preparation of drawings or specifications on any job or project in which they have any personal or financial interest. (4205)

2-11-7: COURT REVIEW

Any person aggrieved by the decision of the Board, whether or not a previous party to the decision, or any municipal officer or official department of the City may, at any time within thirty (30) days after the filing of the Board's decision in the office of the Building Safety Director, file an appeal in writing with the Superior Court of the County by following the methods of appeal or review procedures in Arizona as set forth by the applicable statutes of the State of Arizona. (4205)

2-11-8: ENFORCEMENT

The Building Safety Director is authorized to enforce decisions of the Board or, upon successful review, of the Superior Court. (4205)

2-11-9: FEES

The fee for each appeal to the Building Board of Appeals shall be as set forth in the schedule of fees and charges for the Development Services Department, Building Safety Division. Said fee shall be paid with the filing of the appeal and shall be refunded only if the Building Safety Director determines that the appeal cannot proceed. (4205)

CHAPTER 12
HUMAN RELATIONS ADVISORY BOARD*

2-12-1: BOARD CREATED

The City Council hereby creates a citizens advisory board to be known as the Human Relations Advisory Board. (3617)

2-12-2: PURPOSE AND FUNCTIONS

In addition to such functions as the City Council may delegate to it, the Human Relations Advisory Board shall advise the City Council about racial, religious, ethnic, cultural, disability, or other human relations issues affecting Mesa City government and the delivery of City services. The Board may recommend policies to eliminate discrimination and prejudice, and to promote mutual understanding and harmony. The Board may also serve as a public forum for citizen input on issues related to the purpose and functions of the Board. (3617)

2-12-3: MEMBERSHIP

(A) The Board shall be composed of eleven (11) persons who are residents and electors of the City. Subject to the concurrence of the City Council, the Mayor shall appoint Board members for staggered terms of three (3) years each. At the time of initial appointment, the Mayor shall designate the length of term for each Board member to provide for staggered terms. (3617)

(B) No Board member shall serve more than two (2) complete consecutive terms; however, a Board member may be reappointed after the lapse of three (3) years from the end of the previous term. (3617)

***Editor's note—**Ord. No. 3617, repealed the former Chapter 12, and enacted a new Chapter 12 as set out herein. The former Chapter 12 derived from Ord. Nos. 880, 902, 1620, 2712.

(C) Continued absence of any Board member shall, at the discretion of the City Council, render such member liable for immediate removal from office by the Council. Any Board member absent from three (3) consecutive meetings without being excused by the Board shall constitute abandonment of office and the Board member is deemed to have vacated his or her office without further action of the Board or Council. (3617)

(D) The Board's officers shall consist of a chairperson and a vice chairperson, each of whom shall be selected by the Board from the Board's members. Board officers shall serve a one- (1-) year term. No member shall serve more than two (2) full terms as chairperson and two (2) full terms as vice chairperson, not including partial terms in either capacity. (3617)

CHAPTER 13

ELECTRICAL ADVISORY BOARD (Repealed)*

CHAPTER 14

SOLICITATION AND LICENSE APPEAL BOARD (Repealed)†

CHAPTER 15

HUMAN SERVICES ADVISORY BOARD (Repealed)‡

CHAPTER 16

MUSEUM AND CULTURAL ADVISORY BOARD

SECTION:

2-16-1: CREATION OF MUSEUM AND CULTURAL ADVISORY BOARD

There is hereby created a Board to be known as the Museum and Cultural Advisory Board. The Museum and Cultural Advisory Board shall consist of eleven (11) persons who shall be appointed by the Mayor with the approval of the Council for staggered terms of three (3) years each. At the time of the initial appointment, pursuant to this Chapter, the Mayor shall designate the length of term for each member to provide for staggered terms. No member of the Museum and Cultural Advisory Board shall serve more than two (2) complete consecutive terms; however, a member may be reappointed after a lapse of three (3) years from the end of the previous term. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his/her appointment. (1051, 1620, 2352, 4025)

***Editor's note—**Ord. No. 4206 repealed Chapter 13 which derived from Ord. Nos. 945, 1068, 1621, 2582.
†Editor's note—Ord. No. 2383 repealed Chapter 14 which derived from Ord. Nos. 1275, 1620, 1816.
‡Editor's note—Ord. No. 3220 repealed Chapter 15 which derived from Ord. Nos. 1620, 2194.

2-16-2: POWERS AND DUTIES

The Museum and Cultural Advisory Board shall advise the Council regarding policies pertaining to the development of City museums, arts centers, cultural services, and the Public Arts Program and shall perform such other duties as delegated by the City Council from time to time. The Board shall elect one (1) of its members to serve as chairman for a one- (1-) year term. (1051, 2352, 4025)

CHAPTER 17

SELF-INSURANCE PROGRAM BOARD OF TRUSTEES

2-17-1: BOARD CREATED

There is hereby created a Self-Insurance Program Board of Trustees to consist of five (5) members, all of whom shall be residents of the City. One (1) of such Board members shall be a Councilmember; one (1) member of such Board shall be an employee of the City; and none of the other three (3) members shall be either Councilmembers or employees of the City. The Councilmember and the City employee shall be appointed by the Mayor with the approval of the Council, and these two (2) Board members shall serve at the pleasure of the Council. The other three (3) Board members shall be appointed by the Mayor with the approval of the Council for staggered terms of three (3) years each. At the time of the initial appointment of such members, the Mayor shall designate the length of term to provide for staggered terms. No member of the Self-Insurance Program Board of Trustees, excepting for the Councilmember and the City employee, shall serve more than two (2) complete consecutive terms; however, such member may be reappointed after a lapse of three (3) years from the end of the previous term. Continued absence of any member from meetings of the Board shall, at the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. (1260, 1620)

2-17-2: POWERS AND DUTIES

The Self-Insurance Program Board of Trustees shall act in an advisory role with regard to the financial viability of the Property and Public Liability, Employee Benefits, and Workers' Compensation Trust Funds, and shall perform such other duties and responsibilities set forth in the Restatements of Trust for the public and property liability and Employee Benefits Trust Funds, and the Restatement of Trust for the Workers' Compensation Trust Fund. The Board shall elect one (1) of its members to serve as chairman, and each chairman so elected shall serve for a one- (1-) year term. (1260, 5125)

CHAPTER 18

PERSONNEL APPEALS BOARD

2-18-1: MEMBERS OF BOARD, ALTERNATE MEMBERS

The Personnel Appeals Board created by Section 404 of the Mesa City Charter shall consist of five (5) members and shall have the qualifications set forth in the Charter. The members of the Personnel Appeals Board shall serve staggered terms of three (3) years each. Continued absence of any member from meetings of the Board shall, at

the discretion of the City Council, render any such member liable for immediate removal from office by the Council. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated his appointment. (1625, 2798, 5272)

2-18-2: BOARD HEARINGS AND PROCEDURAL RULES

(A) The Board shall conduct a hearing upon receiving notice from the Human Resources Department concerning a review of a grievance or appeal of a dismissal brought pursuant to the Personnel Rules. The Board shall make every effort to schedule the hearing at the earliest possible mutually convenient time. The Board shall provide the parties a written notice of the time, date, and place of hearing not less than ten (10) business days before the first date of such hearing. At least three (3) board members must be present to proceed with a hearing and for deliberations and voting. The executive session must be attended by at least three (3) board members that were present for the entire hearing. If five (5) board members were present for the entire hearing, all five board members may deliberate and vote on the recommendation to the City Manager. If only four (4) board members are present for the hearing, the last appointed board member may participate in the deliberations but may not vote. (3687, 4956, 5250, 5272)

(B) All Board hearings shall comply with the Arizona Open Meeting Law (A.R.S. § 38-431 et seq.) and Public Records Law (A.R.S. § 39-121 et seq.), as amended. All Board hearings shall further be conducted in accordance with the Personnel Appeals Board Hearing Procedural Rules for Classified Employees (excluding sworn law enforcement) or the Personnel Appeals Board Hearing Procedural Rules for Sworn Law Enforcement Employees, which were declared to be public records by resolution adopted on September 22, 2014, and to which reference is hereby made and which are incorporated herein, three copies of which are on file and available for public use and inspection in the Office of the City Clerk. (3687, 5250)

(C) The City Clerk's Office shall ensure that proper public notice, including an agenda, is provided for all Board hearings. The Personnel Office shall act as secretary to the Board in sending information packets to members and fulfilling other clerical responsibilities of the Board. (3687, 5250)

2-18-3: CITY MANAGER DECISION

(A) After receiving the written advisory opinion, the City Manager may contact the Board to seek additional advice or information concerning the matter. (3687, 5250)

(B) The City Manager may accept or reject the Board's advisory opinion. Within a reasonable period of time, not to exceed thirty (30) days, from receipt of the Board's advisory opinion, the City Manager shall notify the appellant, affected department head, and Personnel Director of the City Manager's decision. The thirty- (30-) day period may be extended should circumstances arise that preclude the City Manager from completing a review in a timely manner. Such decision shall be in writing and final for purposes of judicial review. (3687, 5250)

CHAPTER 19
CRIME PREVENTION ADVISORY BOARD (Repealed)*

CHAPTER 20
DOWNTOWN DEVELOPMENT COMMITTEE (Repealed)†

CHAPTER 21
ECONOMIC DEVELOPMENT ADVISORY BOARD

2-21-1: CREATION OF BOARD

There is hereby created a Board to be known as the Economic Development Advisory Board. The Economic Development Advisory Board shall be composed of nine (9) persons who are residents of the City and eight (8) nonvoting ex officio members.
(2705; 4216; Ord. No. 5637, § 1, 8-30-21)

2-21-2: MEMBERSHIP

The members of the Board shall be appointed by the Mayor with the approval of the City Council for staggered terms of three (3) years. All terms shall terminate on June 30 of the applicable year. No member shall serve more than two (2) complete consecutive terms; however, a member may be reappointed after the lapse of one (1) year from the ending of the previous term.

The membership of the Economic Development Advisory Board shall include: nine (9) voting members, and eight (8) ex officio nonvoting members. Three (3) of the ex officio members shall be the Mayor, City Manager, the President and Chief Executive Officer of the Mesa Chamber of Commerce, and five (5) may be members representing Mesa that are currently sitting on the Greater Phoenix Economic Council Board of Directors.

The Economic Development Advisory Board shall elect one (1) of its members to serve as chairperson and one (1) of its members to serve as vice chairperson. All members shall serve without compensation. Any member absent from three (3) consecutive meetings without being excused shall be considered as having vacated the appointment.
(2705, 4216; Ord. No. 5637, § 2, 8-30-21)

2-21-3: POWERS AND DUTIES

The Economic Development Advisory Board shall act as the advisory board to the Mesa City Council on matters pertaining to economic development. (2705, 4216)

Members of the Economic Development Advisory Board shall, among other duties, review and recommend to the City Council an annual work program, monitor such work program, and recommend changes to enhance economic development efforts. The Board shall also serve as a forum for economic development policy discussion and present findings and recommendations of such discussions to the City Council. The Board shall serve as

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***Editor's note—**Ord. No. 3945 repealed Chapter 19 which derived from Ord. Nos. 2351, 3361.
†Editor's note—Ord. No. 4960 repealed Chapter 20 which derived from Ord. Nos. 2461, 2481, 2744, 3114.

advisors to the Economic Development Director and assist in identifying assets, resources, and incentives appropriate for implementation of Mesa's economic development strategy. This Board shall serve as a contact for persons or companies seeking to invest in the City of Mesa. (2705, 4216)

Individual Board members may serve as representatives of the City of Mesa at state, regional, and local economic development forums. In working towards accomplishing the goal of providing enhanced economic development opportunities, the Board will work in collaboration with the Arizona Department of Commerce, Arizona State University, Arizona Technology Council, Business Coalition, Downtown Development Committee, East Valley Partnership, Falcon Field Area Alliance, Gilbert Public Schools, Greater Phoenix Economic Council, Maricopa Association of Governments, Mesa Chamber of Commerce, Mesa Community College, Mesa Convention and Visitors Bureau, Mesa Public Schools, Mesa Town Center Corporation, Williams Gateway Airport Authority, and other strategic partners. (4216)

CHAPTER 22
HISTORIC PRESERVATION COMMITTEE

2-22-1: CREATION OF COMMITTEE

The Historic Preservation Committee is hereby created, consisting of seven (7) members who are residents of the City at large to be appointed by the Mayor with the approval of the City Council within sixty (60) days of the adoption of this Chapter.* Members shall serve for three (3) years, except that the members of the first Committee shall serve as designated by the City Council for the following terms: three (3) members for one (1) year; two (2) members for two (2) years; and two (2) members for three (3) years.** Any vacancy shall be filled by the Mayor and City Council within a reasonable time after the vacancy occurs, for the unexpired term. Members shall serve until their successors are appointed. The members of the Committee shall serve without compensation. (3373)

2-22-2: MEMBERSHIP

Members of the Committee shall be selected from the areas of architecture, history, architectural history, planning, landscape architecture, archaeology, cultural geography or anthropology, or have demonstrated strong interest in past matters that involve historic preservation issues. (3373)

The Committee shall elect a chairman and vice chairman from among its members annually. (3373)

The Committee shall adopt rules for the conduct of its business. The Committee may, in such rules, delegate certain responsibilities and/or tasks to be performed by a Subcommittee or Subcommittees of the Committee. (3373)

2-22-3: POWERS AND DUTIES

The powers and duties of the Committee shall be as follows: (3373)

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*Ordinance 3373 was adopted On July 21, 1997.

**Ordinance 3373 was amended by Ordinance 3390 on September 15, 1997 to state that subject to Council concurrence under Section 501(B) of the City Charter, the Mayor is free to appoint, or not, the members of the former Subcommittee to the new Committee.

(A) Review and make recommendations on any matter or request or appeal that will appear on an agenda before the Downtown Development Committee or Planning and Zoning Board or City Council involving sites nominated or approved for Historic Landmark (HL) or Historic Preservation (HP) overlay district, or other matters involving general historic preservation issues as they pertain to Mesa. (3373)

(B) Hold public hearings and make recommendations to the Downtown Development Committee or Planning and Zoning Board on requests for amendments to the zoning map and Zoning Ordinance regarding Historic Preservation (HP) overlay districts and designation of Historic Landmarks (HL) within the corporate City limits. (3373)

(C) Hear and decide appeals from the decisions of the Historic Preservation Officer regarding proposed development, renovation, additions, alterations, or demolition of buildings and structures or sites designated or nominated Historic Landmark (HL) or within Historic Preservation (HP) overlay districts for the purpose of deciding whether clearance for a building permit should be issued. The review shall be limited to building size, scale, exterior elevation, design, color, and appearance to assure compatibility with the historic character of the property, neighborhood, and environment. (3373)

(D) Establish and maintain the Mesa Historic Property Register and periodically conduct studies for the purpose of assessing the potential of buildings, structures, or areas for designation as historic sites or districts. (3373)

(E) Hear and/or make recommendations to the City Council and periodically review guidelines to evaluate requests for development, renovation, alteration to historic districts, landmarks, and historic properties, or demolition of buildings and structures on sites designated as historic districts or historic landmarks. Such guidelines may include building location, minimum yard sizes, average heights, materials, color, architectural features, and other characteristics and cultural features found in the approved district. (3373)

(F) Hear and/or make recommendations to the City Council regarding acquisition by the City of structures or easements for maintenance or repair of structures for their preservation, where private preservation is not feasible. (3373)

(G) Hear and/or make recommendations on other matters as directed by the City Council. (3373)

CHAPTER 23
MESA HOUSING SERVICES GOVERNING BOARD

2-23-1: CREATION OF GOVERNING BOARD

There is hereby created a Board to be known as the Mesa Housing Services Governing Board. The Mesa Housing Services Governing Board shall be composed of eight (8) members, with such membership determined as provided in Section 2-23-2(A) hereof. (4146)

2-23-2: MEMBERSHIP

(A) The members of the Governing Board shall consist of: (4146)

1. One (1) Resident Board Member, as provided in Sections 2-23-2 and 2-23-4 hereof; (4146)

2. Six (6) Councilmembers, one (1) from each of the six (6) geographical districts within the City of Mesa; and (4146)

3. The Mayor. (4146)

(B) The Mayor and Councilmembers, while rightfully holding their respective offices, shall automatically be and act as a member of the Mesa Housing Services Governing Board. (4146)

2-23-3: RESIDENT BOARD MEMBER; APPOINTMENT, TERM

(A) The Resident Board Member shall be appointed as provided in Subsection (B) of Section 501 of the City Charter, based on the recommendation of the Housing Advisory Board as provided in Section 2-23-4. (4146, 4415)

(B) The Resident Board Member shall serve for a one- (1-) year term, beginning on January 1 and ending on December 31 of the same calendar year. (4146)

2-23-4: RESIDENT BOARD MEMBER; QUALIFICATIONS

(A) The Resident Board Member shall meet the qualifications, set forth in Subpart E of 24 C.F.R. Part 964, for being classified as an "Eligible Resident." (4146)

(B) The Housing Advisory Board shall review the eligibility of those who have applied for the Resident Board Member position. The Housing Advisory Board will forward to the Mayor the name of the applicant the Housing Advisory Board recommends for appointment as the Resident Board Member. (4146, 4415)

2-23-5: RESIDENT BOARD MEMBER; NOTIFICATION OF AVAILABLE POSITION, NO QUALIFIED APPLICANTS

(A) The Housing Services Director shall provide an annual notice to the Mesa Housing Services resident advisory board of the opportunity for residents to serve on the Mesa Housing Services Governing Board. This notice shall list the eligibility requirements, the reasons for removal from the Board, and the procedure for applying for the Resident Board Member Position. This notice shall be provided:

(i) not more than one hundred twenty (120) days and

(ii) not less than thirty (30) days before the January 1st beginning of the noticed term. (4146)

(B) In the event the Housing Services Director does not receive any applicants for the Resident Board Member position, which meet the qualifications set forth in Section 2-23-4 hereof, by the later of:

(i) the date which is thirty (30) days after the Housing Services Director provides the Housing Services resident advisory board with the notice set forth in Section 2-23-5(A) hereof, or

(ii) the date which is thirty (30) days before the January 1st beginning of the noticed term, the City shall be determined to meet the requirements for the exception to the requirement of having a Resident Board Member, set forth at 24 C.F.R. 964.425, for the noticed term. In such event, the Mayor may, but shall not be required to, appoint a Resident Board Member in accordance with the provisions of Section 2-23-3 hereof. (4146)

2-23-6: REMOVAL OF RESIDENT BOARD MEMBERS

(A) A Resident Board Member may be removed pursuant to the provisions of Section 1-5-9 of the Mesa City Code. (4146)

(B) A Resident Board Member, who ceases to be directly assisted by Mesa Housing Services, may be removed by a vote of five (5) members of the City Council. A Council decision to remove the Resident Board Member shall be effective in accordance with its terms, and shall be final and nonappealable. (4146)

2-23-7: POWERS AND DUTIES

The Mesa Housing Services Board shall have oversight responsibility for the administration, operation, and management of the City's Federal public housing programs and Section 8 tenant-based rental assistance programs, and the authority to make decisions related thereto. Such oversight responsibility does not extend to matters that: (4146)

(A) Exclusively relate to other types of housing assistance, such as State-financed housing assistance, or (4146)

(B) Do not involve housing assistance. (4146)

2-23-8: RESIDENT BOARD MEMBER; STATUS DOES NOT CREATE CONFLICT OF INTEREST

The Resident Board Member shall not be excluded from participating in any matter before the Mesa Housing Services Governing Board on the grounds that the Resident Board Member's lease with the public housing agency, or the Resident Board Member's status as a public housing resident or recipient of Section 8 tenant-based assistance, either results or may result in a conflict of interest, unless the matter is clearly applicable to the Resident Board Member only in a personal capacity and applies uniquely to that member and not generally to residents or to a subcategory of residents. (4146)

CHAPTER 24

HOUSING AND COMMUNITY DEVELOPMENT ADVISORY BOARD

2-24-1: CREATION OF THE BOARD

There shall be and is hereby created a board to be known as the Housing and Community Development Advisory Board. The Housing and Community Development Advisory Board shall be composed of eleven (11) persons who reside in the City of Mesa. All members shall serve without compensation. (4418, 5123)

2-24-2: PURPOSE OF THE BOARD

The purpose of the Housing and Community Development Advisory Board ("Board") shall be to advise the Mesa City Council on housing, community development, and social services priorities, funding, and planning. The intent is to appoint citizens of Mesa who will address housing, community development, and social services issues across the community. The Board will be formed and its members will act in accordance with the City of Mesa Charter and Code. (4418, 5123)

2-24-3: MEMBERSHIP

(A) The membership of the Board shall include:

1. One (1) person from a financial institution that has lending experience with all types of housing developments; (4418, 5123)
2. One (1) representative from nonprofit providers; (4418, 5123)
3. One (1) representative of manufactured housing (resident or owner of manufactured housing); (4418, 5123)
4. One (1) representative from Special Needs Providers; (4418, 5123)
5. One (1) representative from multi-family housing development providers; (4418, 5123)
6. One (1) representative from single-family housing development providers; and (4418, 5123)
7. Five (5) community representatives. The number of community representatives may be increased to ensure there are eleven (11) board members, but only if there are no qualified applicants for categories 1 through 6. The purpose, preference and intent are for the Board to consist of six (6) housing representatives as listed in paragraphs 1 through 6 and five (5) community representatives. (4418, 5123)

(B) The membership of the Board shall be appointed by the Mayor with the approval of the City Council for staggered terms of three (3) years each. For the initial 2012 Board appointments, the Mayor shall designate the length of service for each member to create staggered three (3) year terms. No member shall serve more than two (2) consecutive terms, provided, however a person may be reappointed after a lapse of three (3) years from the end of their last term. (4418, 5123)

(C) The Board shall annually elect one (1) of its members to serve as Chairperson and one (1) of its members to serve as Vice Chairperson. The Board shall establish rules and regulations for its own procedures that are consistent with the provisions of this Chapter. (4418, 5123)

(D) The Chairperson shall give notice to the City Council of excessive absences, constituting more than three (3) meetings in a year, of any member from meetings of the Board that shall, at the discretion of the City Council, render any such member liable for immediate removal from the Board by the City Council. Any member absent from three (3) consecutive meetings without notifying the Chairperson or Secretary shall be considered as having vacated the appointment. (4418, 5123)

2-24-4: MEETINGS

(A) The Board shall meet upon request by the Chairperson, or Housing and Community Development staff, at a minimum of four (4) times a year. (4418, 5123)

(B) Meetings and hearings of the Board shall be public and in the presence of a quorum. Meetings shall conform to the requirements of the Open Meetings Laws of the State of Arizona. Minutes of meetings shall be made, and after approval at a subsequent meeting, shall be signed by the Chairperson or vice Chairperson and retained on file in the Office of the Mesa City Clerk. (4418)

(C) The Housing and Community Development Department will assign staff that shall act as Secretary to the Board. (4418, 5123)

2-24-5: POWERS AND DUTIES

The Board shall:

(A) Review and make recommendations to the City Council regarding the City's General Plan Housing Element and Housing Master Plan. (4418, 5123)

(B) Provide requested assistance to City departments and divisions on housing issues to ensure compatibility with the City's General Plan Housing Element and Housing Master Plan. (5123)

(C) Review and make recommendations to the City Council on the operation of the housing programs managed by the City's Housing and Community Development Department as requested. (4418, 5123)

(D) Participate in the annual evaluation process and, with City Council approval, make final allocations of the applications for funds awarded to the City by the U.S. Department of Housing and Urban Development under the following programs: (5123)

1. Community Development Block Grant (CDBG); (5123)
2. Home Investment Partnerships (HOME); (5123)
3. Emergency Solutions Grant (ESG); and (5123)
4. Neighborhood Stabilization Program (NSP) (5123)

(E) Assess the human services needs of the community, determine any gaps in service, and utilize this information to develop priorities for human services funding, a better community funds, and any other grant or social service funds that may become available to the City. (5123)

(F) Participate in the annual evaluation process and, when directed by City Council, make final allocations of the applications for human services funds and a better community funds. (5123)

(G) Participate in the evaluation process and make final funding allocations of any other grant or social service funds that may become available to the City as directed by City Council or Housing and Community Development Department staff. (5123)

(H) Perform such other powers and duties as may be approved by City Council. (5123)

CHAPTER 25
INDEPENDENT COMMISSION ON COMPENSATION FOR ELECTED OFFICIALS (Repealed)*

***Editor's note—**Ord. No. 5840, § 2, adopted December 11, 2023, repealed §§ 2-25-1—2-25-3, which pertained to Independent Commission on Compensation for Elected Officials and derived from Ord Nos. 5109, 5365.

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CHAPTER 1

POLICE DEPARTMENT

3-1-1: ORGANIZATION

There is hereby established and created a regularly constituted police force to be known as the Mesa Police Department. The Mesa Police Department shall consist of a Chief of Police and all other classified service positions now existing or which in the future may be added or changed by Council action or personnel rules and regulations.

3-1-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Chief of Police and pursuant to the merit system regulations appoint, and when necessary remove, all other officers and members of the Police Department, except as the City Manager may authorize the Chief of Police to appoint and remove officers and employees in the Department. (1165)

3-1-3: CHIEF OF POLICE

The Chief of Police shall be the head of the Police Department under the direction of the City Manager and Council. All other members of the Department shall be under his immediate supervision, direction and control and it shall be his duty to see that all laws are kept, obeyed and executed. He shall have such other powers and perform such other duties as are now or may hereafter be prescribed. (1962 Code)

CHAPTER 2

FIRE DEPARTMENT

3-2-1: ORGANIZATION

The Mesa Fire and Medical Department is hereby established, and the office of Chief of the Fire Department is hereby created. The Department shall consist of the Chief and other service positions now existing, or which in the future may be added or changed by the City Manager, Council action or personnel rules and regulations.

The Mesa Fire and Medical Department shall serve the community through firefighting, fire prevention, medical response, community outreach, transportation, special teams (including aircraft rescue, firefighting, technical rescue, hazardous materials, and wildland), and in areas to assist in safeguarding against loss of life and property. The Department shall also educate and provide services to the public to create a safer community.

The Chief shall have immediate charge of the Department. In the absence of the Fire Chief from duty, a command officer, designated by the Fire Chief, shall have the same authority and responsibility as the Chief. (Ord. No. 5766, § 1, 2-13-23)

3-2-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Chief of the Fire Department, and pursuant to the merit system regulations appoint, and when necessary remove, all other officers and members of the Fire Department, except as the City Manager may authorize the Chief of the Fire Department to appoint and remove officers and employees in the Department. (1166)

CHAPTER 3
WATER RESOURCES, ENERGY RESOURCES, AND ENVIRONMENTAL MANAGEMENT & SUSTAINABILITY DEPARTMENTS*

3-3-1: DEFINITIONS

The below words and phrases, wherever used in this Chapter, shall be construed as defined in this Section 3-3-1 unless, clearly from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section 3-3-1 apply only to this Chapter and do not affect or are to be applied to any other City Codes.

(A) Department: The Water Resources Department, Energy Resources Department, and/or Environmental Management & Sustainability Department of the City.

(B) Department Director: The head of the Water Resources Department, Energy Resources Department, and/or Environmental Management & Sustainability Department.

(C) Improvement: The design, construction, extension, improvement, acquisition, reconstruction, retirement, replacement, equipping, enlargement or betterment of the utility system.

(D) Fiscal Year: The period of time commencing on July 1 and ending on June 30 of the following year.

(E) Rates: Rates, rate components, fees, charges, and surcharges established for the utility services provided by the City.

(F) Utility Assistance Program: City program to provide methods of assistance to certain utility services account holders including, by way of example, deferments, payment plans, reductions, and delayed disconnects.

(G) Utility fund: One or more enterprise funds and accounts, which are separate from other funds and accounts, into which the revenues from the utility system shall be credited, and as further described in Section 3-3-4(C) herein.

(H) Utility Services: The provision of utility services by the City, including electric, gas, district cooling, water, wastewater, solid waste, and recycling; and programs related to these services.

(I) Utility System: City assets and improvements of every nature now and hereafter owned by the City and used or useful in connection with the provision of the utility services as may be extended, improved,

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***Editor's note—**Ord. No. 5559, § 1, adopted March 16, 2020, repealed the former Ch. 3, §§ 3-3-1—3-3-3, and enacted a new Ch. 3 as set out herein. The former Ch. 3 pertained to Utilities Department and derived from Ord. 2491; Ord. 3455.

reconstructed, retired, enlarged, or bettered, including all real and personal property of every nature comprising part of, or used or useful in connection with, the City's provision of the utility services, and including all appurtenances, contracts, leases, franchises, working capital, and other intangibles.

(Ord. No. 5559, § 1, 3-16-20)

3-3-2: ORGANIZATION OF DEPARTMENTS

There shall be a Water Resources Department, an Energy Resources Department, and an Environmental Management & Sustainability Department, which will each be headed by a Department Director, and each department shall have such additional employees as needs of the department may demand. The City Manager shall appoint each Department Director.

(Ord. No. 5559, § 1, 3-16-20)

3-3-3: DUTIES OF DIRECTORS

The Department Directors shall: (i) supervise the provision of utility services as to their respective departments; (ii) have the authority to make conservation, resource, and planning decisions and investigations for the purpose of meeting the needs of the City; and (iii) perform such other duties and functions as may, from time to time, be delegated or assigned by the City Manager.

(Ord. No. 5559, § 1, 3-16-20)

3-3-4: RATES AND REVENUES

(A) Rates. Rates for the provision by the City of utility services shall be fixed and established by the City Council, comply with the requirements of the City's outstanding indebtedness or obligations secured by utility system revenues, and may include collection of funds to be expended for utility services in accordance with this Section 3-3-4. All rates established in compliance with the provisions of this Section are and shall be considered just and reasonable, and such rates shall be allowed and lawfully collected by the City.

(B) Utility Assistance Programs. In order to assist City residents who require financial assistance in paying their utility service bills and limit utility service shut-offs, the departments are authorized to establish a utility assistance program, including the programs set forth in this subsection (B). The departments may establish and adopt reasonable criteria for the availability of such programs, including income qualifications for participants, and may partner with nonprofit or other, third-party organizations to facilitate and manage such programs.

(1) Low Income, Senior Discount. In establishing rates, the City Council may establish reduced, fixed charge rate component discounts for qualifying, low-income, senior residential customers.

(2) Shutoff Limitation. The departments may institute a limitation on the disconnection of utility services for City residential utility service customers due to account delinquency during heat advisory periods or such other periods as may be directed by the City Council, authorized by the City Manager, or as may be required by law.

(3) Additional Assistance. The departments are authorized to institute additional assistance programs for utility service customers which may include, by way of example but not limitation or obligation, utility bill rebates, a payment voucher program, or repairs to residential utilities.

(C) Utility Fund. Revenue collected by the city in connection with its provision of utility services and its possession, management and control of the utility system shall be credited to the utility fund in compliance with the City's bond obligations, and the utility fund shall be held separately from the City's general fund. The City may, at any time, establish one or more special funds, accounts or subaccounts for the receipt and disbursement of utility system revenues, or any portion thereof, which are collectively referred to for convenience in this Chapter as the "utility fund."

(D) Use of Utility System Revenues. The money in the utility fund may be collected, appropriated, transferred and expended for any or all of the following purposes:

(1) Expenses for the provision of utility services.

(a) Operation and Maintenance. For the costs and expenses of operating and maintaining the utility system and as otherwise necessary for providing utility services.

(b) Interdepartmental Reimbursements. For reimbursement from a department to any other department or office of the City for costs or expenses related to the provision of utility services, including the reasonable value of support, personnel, materials, supplies, or equipment.

(c) Use of Public Streets, Alleys, and Other Public Grounds or Ways. In consideration of the use of the public streets, alleys, and other public grounds and ways for the utility system, an amount each fiscal year to be transferred to the City's general fund equal to three percent (3%) of the gas and electric and five percent (5%) of the water and wastewater gross revenues from the City's provision of utility services during the fiscal year within the present and any future corporate limits of the City.

(d) Utility Service Promotion and Education. For the promotion of or education related to any of the utility services including, but not limited to, information regarding the City's utility rate structure, ways to reduce a customer's utility bill, or how to request utility service.

(e) Promotion of Conservation. For the development, promotion, education or use of conservation and recycling methods, systems, equipment, services, or devices by the City or utility service customers.

(f) Employee Benefits. For defraying the expenses of any pension or retirement system and health or other benefits applicable to personnel.

(g) Utility Assistance Programs. For the creation, maintenance, and funding of the utility assistance programs described in subsection (b) above.

(2) Capital Investment and Retirement of Indebtedness.

(a) Development of the Utility System. For the costs and expenses of utility system improvements including, but not limited to, the design, construction, extension, improvement, acquisition, reconstruction, retirement, replacement, equipping, enlargement, or betterment of the utility system and the acquisition, purchase or condemnation of property and improvements for utility services, rights to water and energy, franchises or other rights to serve, for the purpose of or related to providing City utility services or the utility system or expansion thereto.

(b) Principal and Interest. For the payment of the principal and interest on the City's bonds, notes, agreements or indebtedness: (i) secured by or payable from utility system revenues or the utility system; or (ii) secured by secondary property taxes, excise taxes or other pledged or special funds of the City, provided such bonds or obligations were issued or incurred for improvement of the utility system.

(c) Bond Reserve Funds. For establishing and maintaining reserve funds to insure the payment at maturity of the principal and interest on all bonds now outstanding or hereafter issued, that are issued against and payable from the revenues of the applicable utility system, as well as bonds issued for the design, construction, acquisition, extension, improvement, reconstruction, retirement, replacement, enlargement, equipping or betterment of the utility system. Additionally, for establishing and maintaining reserve funds for contingencies and emergencies for the utility system and for maintaining reserves to facilitate a bond rating that lowers interest on bond issuances. The money set aside and placed in such reserve funds shall remain therein until expended and shall not be transferred to the general fund of the City, and shall otherwise be held in such reserve funds in accordance with the resolutions, ordinances, agreements or indentures of the City pertaining to the City's bonds or obligations secured by or payable from utility system revenues. Notwithstanding the foregoing, the City may utilize utility system revenues to purchase reserve fund guarantees, surety bonds, insurance policies, letters of credit or lines of credit in order to fulfill the reserve fund requirements in effect from time to time.

(d) Additional Funds. For the establishment and funding of other funds and accounts as may be necessary in connection with the City's utility system and the City's bonds or obligations including, without limitation: (i) a rebate fund for payments to the United States Treasury; (ii) a replacement fund for maintenance, repair, replacement, construction or acquisition of utility system; and (iii) construction, project or acquisition funds for the deposit of bond or obligation proceeds prior to expenditure on utility system.

(3) General Fund Transfers. For each fiscal year, fund deposits or transfers may be made from the utility fund in any or all of the following manners:

(a) Mesa Public Safety. The City Council may, in its discretion, deposit or transfer utility fund monies to the City's general fund for the purpose of funding public safety, including public safety costs and expenses related to personnel, training, benefits, and equipment, as well as paying for construction, capital expenses, and acquisition of real property, and other costs and expenses related to the provision of public safety services by the City, in an amount not to exceed twenty-five percent (25%) of the gross revenues from the City's provision of utility services during the fiscal year.

(b) General Use. The City Council may, in its discretion, deposit or transfer to the City's general fund, an additional amount above that set forth in subsection (D)(3)(a) of up to five percent (5%) of the gross revenues from the City's provision of utility services during the fiscal year.

(4) Bond or Secured Indebtedness; Priority. This Chapter shall not affect, limit, or alter payment obligations for or payment priorities of bonds or other indebtedness or obligations secured by or payable from utility system revenues. Accordingly, the City shall disburse utility system revenues

from the utility fund in the order of priorities as has been, or may be, established from time to time in the resolutions, ordinances, indentures, and agreements of the City related to indebtedness or obligations secured by or payable from utility system revenues.

(Ord. No. 5559, § 1, 3-16-20)

CHAPTER 4
DEVELOPMENT SERVICES DEPARTMENT

3-4-1: ORGANIZATION

The Department of Development Services is hereby created, which shall consist of the office of Development Services Manager, which office is hereby created, and such additional employees of the Department of Development Services as the needs of that Department may demand and are properly authorized. (3766)

3-4-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Development Services Manager, and pursuant to the merit system regulations appoint, and when necessary remove, all other employees of the Department, except as the Manager may authorize the Development Services Manager to appoint and remove employees in the Department. (1394, 3766)

3-4-3: DUTIES OF MANAGER

The Development Services Manager shall supervise all Development Services activities in the City; shall have the jurisdiction over Administrative Services, Engineering, Building Safety, Facilities Maintenance, Environmental Services, Real Estate Services, Planning, and Transportation of the City; shall have authority to make engineering and traffic investigations for the purpose of fixing reasonable and safe maximum speed limits; and shall perform such other duties and functions as may from time to time be delegated to him. (1421, 2491, 3766, 4250)

CHAPTER 5
RESERVE POLICE OFFICERS

3-5-1: RESERVE POLICE OFFICER SYSTEM ESTABLISHED

There is hereby established in and for the City a Police Reserve System.

3-5-2: PURPOSE OF RESERVE POLICE OFFICERS

The purpose of the appointment of reserve police officers is to preserve the public peace and to promote general welfare of the City by giving authority to certain persons to assist regular police officers of the City in enforcing City ordinances and State Statutes.

3-5-3: APPOINTMENT OF RESERVE POLICE OFFICERS BY CHIEF OF POLICE

The Chief of Police is hereby authorized to appoint adult persons to be reserve police officers. Such officers shall serve under rules and regulations herein contained and hereafter promulgated by the Chief of Police and approved by the City Council of the City of Mesa, but in no event shall such officers have powers superior to those of private citizens unless such officers be acting as reserve police officers under the general supervision of regular police officers of the City who are themselves on duty.

3-5-4: QUALIFICATIONS FOR APPOINTMENT; APPLICATIONS

The Chief of Police shall determine additional qualifications for appointment and duty as a reserve police officer, and shall pass on all applications for appointment as a reserve police officer.

3-5-5: OATH OF OFFICE

Every person appointed by the Chief of Police as a reserve police officer shall be sworn to faithful performance of his required duties as outlined by the Chief of Police.

3-5-6: PRE-ASSIGNMENT TRAINING

The Chief of Police shall conduct a period of pre-assignment training for reserve officers sufficient to enable said officers to properly and adequately perform their required duties, and the Chief of Police may require such additional continuing training as he may find necessary.

3-5-7: ASSIGNMENT TO SPECIFIED DUTIES

The Chief of Police shall have full discretionary authority to assign reserve police officers to such duties as shall be best suited to preserve the public peace and to promote the general welfare of the City.

3-5-8: SUPERVISION BY CHIEF OF POLICE

The Chief of Police shall be the sole supervisor of the duties of reserve police officers, but may delegate such authority to regular police officers as is necessary for the proper functioning of the police reserve system.

3-5-9: COMPLIANCE WITH POLICE DEPARTMENT REGULATIONS AND ACTS OF THE COUNCIL

Reserve police officers shall adhere to and be governed by the rules and regulations laid down for the guidance of regular police officers insofar as such rules and regulations are applicable to and consistent with the special class of duty prescribed for reserve police officers by the Chief of Police. Reserve police officers shall also comply with all other applicable ordinances, rules and regulations adopted by the City Council and as instructed by the Chief of Police.

3-5-10: OFFICIAL STATUS OF RESERVE POLICE OFFICERS; COMPENSATION

(A) Reserve police officers, while on duty in such capacity, shall have police powers equivalent to those of regular police officers, subject to such limitations as the Chief of Police may direct. Reserve police officers shall not be subject to or acquire any rights under the Personnel Rules and Regulations of the City or the Public Safety Personnel Retirement System of the State of Arizona.

(B) Reserve police officers shall receive no salary from the City or the Police Department.

3-5-11: BADGE AND UNIFORM

The Chief of Police shall specify the type of badge and the type and color of uniform to be worn by reserve police officers. Such officers shall conform to the specifications as made by the Chief.

3-5-12: DISMISSAL

The Chief of Police shall have the authority to dismiss reserve police officers when he finds such dismissal to be in the best interest of the City, or when such officers fail to maintain active reserve police officer status.

3-5-13: HONORARY APPOINTMENTS PROHIBITED

The Chief of Police shall not appoint any person as a reserve police officer who does not or will not serve as an active reserve police officer as specified herein.

3-5-14: RELATION TO OTHER POLICE OFFICERS

The provisions of this Chapter shall not be construed as altering, limiting or expanding the powers, duties and authority of regular police officers of the City. (1020)

CHAPTER 6

UNARMED POLICE AIDES AND TRAFFIC INVESTIGATORS

3-6-1: UNARMED POLICE AIDES

As authorized by A.R.S. § 28-627(E), and pursuant to the merit system regulations, the City Manager is authorized to appoint, and when necessary remove, except as he may authorize the Chief of Police to appoint and remove, unarmed police aides who shall be employed by the Police Department and shall be empowered to commence an action or proceeding before a court or judge for any violation of the ordinances of the City of Mesa

regulating the standing or parking of vehicles. The authority of unarmed police aides is to be strictly limited to the enforcement of ordinances of the City of Mesa regulating the standing or parking of vehicles, and in no way shall this Section be construed to grant other powers or benefits to which peace officers of this State are entitled.

3-6-2: TRAFFIC INVESTIGATORS

As authorized by A.R.S. § 28-627(E), and pursuant to the merit system regulations, the City Manager is authorized to appoint, and when necessary remove, except as he may authorize the Chief of Police to appoint and remove, traffic investigators who shall be employed by the Police Department, and who are authorized to investigate traffic accidents within the limits of the City of Mesa, and commence an action or proceeding before a court or judge for any violation of a State statute or ordinance of the City of Mesa relating to traffic laws, providing such violation is related to a traffic accident which occurred within the limits of the City of Mesa. Such traffic investigators shall be unarmed at all times during the course of their duties, be employees of the City of Mesa and file written reports as required by A.R.S. § 28-667, but in no way shall this Section be construed to grant other powers or benefits to traffic investigators to which peace officers of this State are entitled. (1168)

3-6-3: VOLUNTEER PARKING ENFORCEMENT

As authorized by A.R.S. § 28-886, the City Manager may authorize the Chief of Police to establish a volunteer parking enforcement program for parking for persons with physical disabilities. The Chief of Police or his designated representative is authorized to appoint volunteers to issue citations only to persons who violate A.R.S. § 28-884 or an ordinance regulating parking in parking spaces for persons with physical disabilities. (4186)

CHAPTER 7
GENERAL SERVICES DEPARTMENT

3-7-1: ORGANIZATION

A General Services Department is hereby created, which shall consist of the office of General Services Manager, which office is hereby created, and such additional employees of the General Services Department as the needs of that Department may demand and are properly authorized.

3-7-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the General Services Manager, and pursuant to the Merit System Regulations, appoint, and when necessary remove, all other employees of the Department except as the Manager may authorize the General Services Manager to appoint or remove employees in the Department. (1395)

3-7-3: DUTIES OF MANAGER

(A) Function. Under general direction plans, the General Services Manager controls and directs the overall activities of Purchasing, Warehouse, Personnel, Information Services, Printing, and Mail Services, and shall perform such other duties and functions as may from time to time be delegated to him. (3455)

(B) Representative Duties. The General Services Manager shall plan, organize and direct the functions of several divisions within the City; develop and implement policies and procedures applicable to adminis-

trative functions; direct the work of professional Purchasing personnel as well as staff engaged in Warehousing; Personnel and Human Resources, Information Services, Printing, and Mail Services; review general operation of divisions directed to determine efficiency; provide direction on major project or problem areas; oversee the preparation of General Services' administrative budget and review the subordinate division budgets; coordinate activities with other City departments to ensure effective working relationships; advise City Management and Council of departmental progress through oral and written reports; speak before public groups on the plans, programs, and goals of the Department. (1421, 3455)

CHAPTER 8

PARKS, RECREATION & COMMERCIAL FACILITIES DEPARTMENT

3-8-1: ORGANIZATION

A Parks, Recreation & Commercial Facilities Department is hereby created, which shall consist of the office of Parks, Recreation & Commercial Facilities Director, which office is hereby created, and such additional employees of the Parks, Recreation & Commercial Facilities Department as the needs of that Department may demand and are properly authorized. (5054)

3-8-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Parks, Recreation & Commercial Facilities Department Director, and pursuant to the Merit System Regulations appoint, and when necessary remove, all other employees of the Department except as the Manager may authorize the Parks, Recreation & Commercial Facilities Department Director to appoint or remove employees in the Department. (5054)

3-8-3: DUTIES OF PARKS, RECREATION & COMMERCIAL FACILITIES DIRECTOR OR DESIGNEE

(A) Function. Under general direction, the Parks, Recreation & Commercial Facilities Department Director or Designee plans, controls and directs the overall activities of Parks and Recreation, Mesa Convention Center, Mesa Amphitheatre, Mesa Cemetery, municipal Golf Courses, and HoHoKam Stadium, and shall perform such other duties and functions as may from time to time be delegated to him. (3766, 5054)

(B) Representative Duties. The Parks, Recreation & Commercial Facilities Department Director or Designee shall plan, organize, and direct the functions of the various activities under his general direction; develop and implement policies and procedures applicable to administrative functions; provide policy guidance thereto; review the general operation of the activities directed by him to determine efficiency; provide direction on major project or problem areas; oversee the preparation of the Parks, Recreation & Commercial Facilities Department budget and review the subordinate budgets; coordinate activities with other City departments to ensure effective work relationships; advise City Management and the Council of departmental progress through oral and written reports; speak before public groups on the plans, programs, and goals of the Department; and perform such other duties as may be delegated by the City Manager. (1396, 5054)

CHAPTER 9
FINANCIAL SERVICES DEPARTMENT

3-9-1: ORGANIZATION

The Department of Financial Services is hereby created, which shall consist of the office of Financial Services Manager, which office is hereby created, and such additional employees of the Financial Services Department as the needs of that Department may demand and are properly authorized. (4125)

3-9-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Financial Services Manager, and pursuant to the Merit System Regulations appoint, and when necessary remove, all other employees of the Department except as the Manager may authorize the Financial Services Manager to appoint or remove employees in the Department. (4125)

3-9-3: DUTIES OF MANAGER

(A) Function. Under general direction plans, the Financial Services Manager controls and directs the overall activities of Finance, Budget and Research, Customer Services and Collections, Cable TV, Tax and Business Licenses, and Telecommunications, and shall also perform related work as required. (2491, 3455, 4125)

(B) Representative Duties. The Financial Services Manager shall plan, organize and direct the functions of the various activities under his general direction; develop and implement policies and procedures applicable to administrative functions; provide policy guidance thereto; review the general operation of the activities directed by him to determine efficiency; provide direction on major project or problem areas; oversee the preparation of the Financial Services budget and review the subordinate budgets; coordinate activities with other City departments to ensure effective work relationships; advise City Management and the City Council of departmental progress through oral and written reports; speak before public groups on the plans, programs and goals of the Department; and perform such other duties as may be delegated by the City Manager. (1397, 4125)

CHAPTER 10
ELECTRIC DEPARTMENT (Repealed)*

CHAPTER 11
AIRPORT DEPARTMENT (Repealed)†

CHAPTER 12
NEIGHBORHOOD SERVICES DEPARTMENT

3-12-1: ORGANIZATION

A Neighborhood Services Department is hereby created which shall consist of the office of Neighborhood Services Manager, which office is hereby created, and such additional employees of the Neighborhood Services Department as the needs of that Department may demand and are properly authorized. (1441, 3766)

3-12-2: APPOINTMENT

The City Manager shall recommend to, and upon approval by the Council, appoint the Neighborhood Services Manager, and pursuant to the merit system regulations appoint, and when necessary remove, all other employees of the Department except as the Manager may authorize the Neighborhood Services Manager to appoint or remove employees in the Department. (3766)

3-12-3: DUTIES OF MANAGER

(A) Function. Under general direction plans, the Neighborhood Services Manager shall control and direct the overall activities of the Community Revitalization (e.g., Community Development Block Grant Program), Code Compliance, Housing, Neighborhood Outreach Office, and Falcon Field Airport. The Neighborhood Services Manager shall also perform related work as required. (2491, 3168, 3766)

(B) Representative Duties. The Neighborhood Services Manager shall plan, organize, and direct the functions of the various activities under his general direction; develop and implement policies and procedures applicable to administrative functions; provide policy guidance thereto; review the general operation of the activities directed by him to determine efficiency; provide direction on major project or problem areas; oversee the preparation of the Neighborhood Services Department's budget and review the subordinate budgets; coordinate activities with other City departments to ensure effective work relationships; advise the City Manager and the City Council of departmental progress through oral and written reports; speak before public groups on the plans, programs, and goals of the Department; and perform such other duties as may be delegated by the City Manager. (1441, 3766)

***Editor's note—**Ord. No. 3455 repealed Chapter 10 which derived from Ord. No. 1398.
†Editor's note—Ord. No. 3168 repealed Chapter 11 which derived from Ord. No. 1331.

TITLE 4 BUILDING REGULATIONS

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4-9-2: AMENDMENTS TO THE 2024 INTERNATIONAL ENERGY CONSERVATION CODE
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4-10-1: ADOPTED BY REFERENCE
4-10-2: AMENDMENTS TO THE 2024 INTERNATIONAL SWIMMING POOL AND SPA CODE
4-10-3: PENALTY CLAUSE

CHAPTER 1
MESA ADMINISTRATIVE CODE*

4-1-1: GENERAL

(A) Title. These regulations shall be known as the "Mesa Administrative Code," may be cited as such, and will be referred to herein, as "this Chapter." (4242)

(B) Scope. The provisions of this Chapter shall serve as the administrative, organizational, and enforcement rules and regulations for the technical codes which regulate site preparation and construction, alteration, movement, enlargement, replacement, demolition, repair, maintenance, use, and occupancy of buildings, structures, and building service equipment or appurtenances attached thereto within the City of Mesa, Arizona. The intent of the technical codes is to establish the minimum requirements to safeguard the public health, safety, and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide safety to firefighters and emergency responders during emergency operations. (4242)

(C) Technical Codes. The technical codes shall include all of the following codes applied as indicated, plus the codes and standards referenced in the technical codes shall be considered part of the requirements of the technical codes to the prescribed extent of each such reference. (4242)

1. Building Code. The provisions of the Mesa Building Code shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures. Refer to Chapter 4-2 for the requirements of the Mesa Building Code. (4242)

   EXCEPTIONS: (4242, 4579)

   (a) R-5 occupancies and their accessory structures shall comply with the Mesa Residential Code, Chapter 4-3. (4242, 4579)

   (b) Existing buildings undergoing repair, alteration, or additions and change of occupancy shall be permitted to comply with the Mesa existing Building Code, Chapter 4-8. (4242, 4579)

2. Residential Code. The provisions of the Mesa Residential Code shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of detached one- (1-) and two- (2-) family dwellings and multiple single-family dwellings (townhouses) not more than three (3) stories above grade plane in height with separate means of egress and their accessory structures. Such dwellings and occupancies shall be designated as R-5 occupancies. Refer to Chapter 4-3 for the requirements of the Mesa Residential Code. (4242, 4579)

***Editor's note**—Ord. No. 4242, repealed the former Chapter 1, and enacted a new Chapter 1 as set out herein. The former Chapter 1 derived from Ord. Nos. 1093, 1474, 1830, 2206, 2207, 2225, 2305, 2504, 2507, 2508, 2650, 2781, 3070, 3071, 3099, 3310, 3434, 3435, 3958, 4067, 4106.

3. Electrical Code. The provisions of the Mesa Electrical Code shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings, and appurtenances thereto. Refer to Chapter 4-4 for the requirements of the Mesa Electrical Code. (4242)

   EXCEPTION: Electrical work for R-5 occupancies and their accessory structures shall comply with the Mesa Residential Code, Chapter 4-3. (4242, 4579)

4. Plumbing Code. The provisions of the Mesa Plumbing Code shall apply to the installation, alteration, repair, replacement, and maintenance of plumbing systems, including equipment, appliances, fixtures, fittings, and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system. Refer to Chapter 4-5 for the requirements of the Mesa Plumbing Code. (4242)

   EXCEPTION: Plumbing work for R-5 occupancies and their accessory structures shall comply with the Mesa Residential Code, Chapter 4-3. (4242, 4579)

5. Mechanical Code. The provisions of the Mesa Mechanical Code shall apply to the installation, alterations, repairs, and replacement of mechanical systems, including equipment, appliances, fixtures, fittings, and/or appurtenances, including ventilating, heating, cooling, air-conditioning, and refrigeration systems, incinerators, and other energy-related systems. Refer to Chapter 4-6 for the requirements of the Mesa Mechanical Code. (4242)

   EXCEPTION: Mechanical work for R-5 occupancies and their accessory structures shall comply with the Mesa Residential Code, Chapter 4-3. (4242, 4579)

6. Fuel Gas Code. The provisions of the Mesa Fuel Gas Code shall apply to the installation of gas piping from the point of delivery, gas appliances, and related accessories as covered in Chapter 4-7. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories. Refer to Chapter 4-7 for the requirements of the Mesa Fuel Gas Code. (4242)

   EXCEPTIONS: (4242, 4579)

   (a) Fuel gas work for R-5 occupancies and their accessory structures shall comply with the Mesa Residential Code, Chapter 4-3. (4242, 4579)

   (b) Portable LP-gas equipment of all types not connected to a fixed fuel piping system. (4242)

   (c) Oxygen-fuel gas cutting and welding systems. (4242)

   (d) Industrial gas applications using gases such as acetylene and acetylenic compounds, hydrogen, ammonia, carbon monoxide, oxygen, and nitrogen. (4242)

   (e) Petroleum refineries, pipeline compressor or pumping stations, loading terminals, compounding plants, refinery tank farms, and natural gas processing plants. (4242)

   (f) Integrated chemical plants or portions of such plants where flammable or combustible liquids or gases are produced by, or used in, chemical reactions. (4242)

   (g) LP-gas installations at utility gas plants. (4242)

(h) Liquefied natural gas (LNG) installations. (4242)

(i) Fuel gas piping in power and atomic energy plants. (4242)

(j) Proprietary items of equipment, apparatus, or instruments such as gas-generating sets, compressors, and calorimeters. (4242)

(k) LP-gas equipment for vaporization, gas mixing, and gas manufacturing. (4242)

(l) Temporary LP-gas piping for buildings under construction or renovation not becoming part of the permanent piping system. (4242)

7. **Existing Building Code.** The provisions of the Mesa Existing Building Code shall apply to existing buildings undergoing repair, alteration, addition, relocation, and change of occupancy. Refer to Chapter 4-8 for the requirements of the Mesa Existing Building Code. (4242)

EXCEPTION: A building or portion of a building not previously occupied, used for its intended purpose, or for which a Certificate of Occupancy has not been issued shall comply with the Mesa Building Code, Chapter 4-2. (4242)

8. **Fire Code.** The provisions of the Mesa Fire Code shall apply to matters affecting or relating to structures, processes, and premises from the hazard of fire and explosion arising from the storage, handling, or use of structures, materials, or devices; from conditions hazardous to life, property, or public welfare in the occupancy of structures or premises; and from the construction, extension, repair, alteration, or removal of fire suppression and alarm systems or fire hazards in the structure or on the premises from occupancy or operation. (4242)

9. **Energy Conservation Code.** The provisions of the Mesa Energy Conservation Code shall apply to the energy efficiency of building thermal envelopes and installation of energy efficient mechanical, lighting, and power systems. Refer to the Mesa Energy Conservation Code, Chapter 4-9, for the requirements. (5055)

10. **Swimming Pool and Spa Code.** The provisions of the Mesa Swimming Pool and Spa Code shall apply to the construction, alteration, movement, renovation, replacement, repair and maintenance of aquatic recreation facilities, pools and spas. (5481)

(D) **Appendices.** Provisions in the appendices of the technical codes shall not apply unless specifically adopted. (4242)

(E) **Definitions.** Unless otherwise expressly stated, the following words and terms shall have the meanings as shown in this Chapter. Definitions located in the technical codes are hereby incorporated into this Chapter. (4242)

BUILDING: Any structure used or intended for supporting or sheltering any use or occupancy. (4242)

BUILDING, EXISTING: A building erected prior to the adoption of this Chapter* or one for which a legal certificate of occupancy has been issued for at least one (1) year. (4242)

BUILDING SAFETY DIRECTOR: The officer or other designated authority charged with the administration and enforcement of this Chapter and the technical codes, or a regularly authorized deputy or other designee. The Building Safety Director shall be appointed by the City Manager or his designee. When the

*Ordinance 4242 was adopted on August 14, 2004, with an effective date of September 18, 2004.

term or title administrative authority, Building Official, chief inspector, code enforcement officer, code official, gas official, plumbing official, mechanical official, responsible official, or other similar designation is used in this Chapter or in any of the technical codes, it shall be construed to mean the Building Safety Director. (4242)

BUILDING SERVICE EQUIPMENT: The plumbing, mechanical, electrical, and elevator equipment including piping, wiring, fixtures, and other accessories which provide sanitation, lighting, heating, ventilation, cooling, refrigeration, firefighting, and transportation facilities essential to the occupancy of the building or structure for its designated use. (4242)

JURISDICTION: The City of Mesa, Arizona. (4242)

OWNER: The person, firm, corporation, company, partnership, joint venture, association, estate, trust, receiver, or other legal entity, with legal or equitable interest in a property. (4242,5273)

PERMIT: The official document issued by the Building Safety Director authorizing performance of a specified, legal activity. (4242)

R-5 OCCUPANCIES: Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories above grade plane in height with separate means of egress and their accessory structures. (4579)

SHALL: As used in this Chapter and the technical codes is mandatory. (4242)

TENANT COMPLETION: The work performed by or on behalf of the initial tenant in a shell building, or space within a shell building, resulting in the completion and occupancy of the building or space. (4579)

TENANT IMPROVEMENT: Work performed by or on behalf of a tenant in a completed building, or space within a building, that has previously received a Certificate of Occupancy. (4579)

(Ord. No. 5979, § 2, 12-8-25)

4-1-2: APPLICABILITY

(A) **Effective Date.** This Chapter and the technical codes shall apply to, and shall govern, permit applications received and accepted by the Building Safety Director on or after January 8, 2026. Projects with applications submitted prior to January 8, 2026 shall be required to comply with all technical codes in effect on January 7, 2026, except the owner, at its discretion, may request such project be subject to the requirements of this Chapter and the technical codes. (4242, 4579, 4634, 4807, 5481)

EXCEPTION: This paragraph shall not affect the Building Safety Director's ability to take action in conformity with the provisions of Subsections 4-1-4(O), 4-1-6(C) of this chapter, as they relate to account delinquencies owed to the City and to Section 4-1-7, regardless of the permit application date. (4579, 4634, 5481)

(B) **Conflicting Provisions.** When conflicting provisions or requirements occur between this Chapter, the technical codes, and other codes or laws, the most restrictive shall govern. When conflicts occur between the technical codes, those provisions providing the greater safety to life as determined by the Building Safety Director and the Fire Marshal shall govern. In other conflicts where sanitation, life safety, or fire safety are not involved, the most restrictive provisions shall govern. Where in a specific case different

sections of the technical codes specify different materials, methods of construction, or other requirements, the most restrictive shall govern. When there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. (4242)

(C) **Other Laws.** The provisions of this Chapter and the technical codes shall not be deemed to nullify any provisions of the Mesa City Code, state, or federal laws. (4242)

(D) **Application of References.** References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this Chapter or the technical codes. (4242)

(E) **Referenced Codes and Standards.** The codes and standards referenced in this Chapter or the technical codes shall be considered part of the requirements of this Chapter and the technical codes to the prescribed extent of each reference. Where differences occur between provisions of this Chapter or the technical codes and the referenced codes and standards, the provisions of this Chapter and the technical codes shall apply. (4242)

(F) **International Codes References.** Within the technical codes and referenced codes and standards therein, specific references to the following International Family of Codes shall be deemed and interpreted to mean the specific City of Mesa codes as listed herein: (4242, 5481)

1. International Building Code = Mesa Building Code. (4242, 5481)
2. International Residential Code for One- and Two-Family Dwellings = Mesa Residential Code. (4242, 5481)
3. National Electrical Code = Mesa Electrical Code. (4242, 5481)
4. International Plumbing Code = Mesa Plumbing Code. (4242, 5481)
5. International Mechanical Code = Mesa Mechanical Code. (4242, 5481)
6. International Fuel Gas Code = Mesa Fuel Gas Code. (4242, 5481)
7. International Fire Code = Mesa Fire Code. (4242, 5481)
8. International Existing Building Code = Mesa Existing Building Code. (4242, 5481)
9. International Energy Conservation Code = Mesa Energy Conservation Code (5055, 5481)
10. International Swimming Pool and Spa Code = Mesa Swimming Pool and Spa Code (5481)

(G) **Partial Invalidity.** In the event any part or provision of this Chapter or the technical codes is held to be invalid, illegal, unconstitutional, or void, such ruling shall not affect the validity of the remaining portions of this Chapter or the technical codes. (4242)

(H) **Additions, Alterations, and Repairs.** Additions, alterations, or repairs may be made to a building or its building service equipment without requiring the existing building or its building service equipment to comply with all the requirements of this Chapter and the technical codes, provided the addition, alteration, or repair conforms to the requirements for a new building or building service equipment. Refer to Chapter 4-8 for additional options and requirements governing additions, alterations, and repairs. (4242)

EXCEPTION: Patio covers, as defined in the Mesa Residential Code, are exempted from the Mesa Energy Conservation Code. (5055)

EXCEPTION: The following need not comply with the Mesa Energy Conservation Code provided the energy use of the building is not increased: (5055)

1. Storm windows installed over existing fenestration. (5055)
2. Glass only replacements in an existing sash and frame. (5055)
3. Existing ceiling, wall or floor cavities exposed during construction provided that these cavities are filled with insulation. (5055)
4. Construction where an existing roof, wall or floor cavity is not exposed. (5055)
5. Reroofing for roofs where neither the sheathing nor the insulation is exposed. Roofs without insulation in the cavity and where the sheathing or insulation is exposed during reroofing shall be insulated either above or below the sheathing. (5055)
6. Alternatives that replace less than 50 percent of the luminaires in a space provided that such alterations do not increase the installed interior lighting power. (5055)
7. Alternatives that replace only the bulb and ballast within the existing luminaires in a space provided that the alteration does not increase the installed interior lighting power. (5055)

(I) **Existing Occupancy.** The legal occupancy of any building or structure existing on the date of the adoption of this Chapter* shall be permitted to continue without change, provided such continued use is not dangerous to life, health, and safety as determined by the Building Safety Director. (4242)

EXCEPTIONS:

1. Change in occupancy or use. Spaces undergoing a change in occupancy that would result in an increase in demand for either fossil fuel or electrical energy shall comply with this code. Where the use in a space changes from one use in Mesa Energy Code Table 505.5.2 to another use in Table 505.5.2, the installed lighting wattage shall comply with Section 505.5. (5055)
2. Change in space conditioning. Any nonconditioned space that is altered to become conditioned space shall be required to be brought into full compliance with this code. (5055)

(J) **Maintenance.** Buildings, structures, and building service equipment, existing and new, and parts thereof shall be maintained in a safe and sanitary condition. Devices or safeguards, required by the technical codes, shall be maintained in conformance with the technical code under which installed. The owner or the owner's designated agent shall be responsible for the maintenance of building structures and their building service equipment. To determine compliance with this Section, the Building Safety Director may cause a structure to be re-inspected. (4242)

(K) **Moved Buildings.** Buildings, structures, and their building service equipment moved into or within this jurisdiction shall comply with the provisions of the technical codes for new buildings or structures and their building service equipment. (4242)

(L) **Temporary Structures.** Temporary structures such as reviewing stands and other miscellaneous structures, sheds, canopies, or fences used for the protection of the public around and in conjunction with construction work may be erected by special permit from the Building Safety Director for a limited period of time

*Ordinance 4242 was adopted on August 14, 2004, with an effective date of September 18, 2004.

not to exceed one hundred eighty (180) days. Buildings or structures erected under a special permit need not comply with the type of construction or fire-resistive time periods required by the Building Code or energy efficiency measures required by the Mesa Energy Code. Temporary buildings or structures shall be completely removed upon the expiration of the time limit stated in the permit. (4242, 5055).

(M) **Mixed Occupancies.** Where a building contains both residential and commercial occupancies, each occupancy shall be separately considered and meet the applicable provision of the Mesa Energy Conservation Code for such occupancies. (5055)

(N) **Low Energy Use Buildings.** The following buildings, or portions thereof, separated from the remainder of the building by building thermal envelope assemblies complying with the Mesa Energy Conservation Code, shall be exempt from the thermal building envelope provisions of the Mesa Energy Conservation Code: (5055)

1. Those with a peak design rate of energy usage less than 3.4 BTU/H-FT^2 (10.7 W/M^2) or 1.0 WATT/FT^2 (10.7 W/M^2) of floor area for space conditioning purposes. (5055)

2. Those that do not contain conditioned space. (5055)

(O) **Historic Buildings.** Repairs, alterations, and additions necessary for the preservation, restoration, rehabilitation, or continued use of a building, structure, or its building service equipment may be made without conforming to the requirements of the technical codes when authorized by the Building Safety Director, provided: (4242, 5055)

1. The building or structure has been designated by official action of the legally constituted authority of this jurisdiction as having special historical or architectural significance, and (4242, 5055)

2. Unsafe conditions as described in this Chapter are corrected, and (4242, 5055)

3. The restored building or structure and its building service equipment will be no more hazardous based on life safety, fire safety, and sanitation than the existing building as determined by the Building Safety Director. (4242, 5055)

(P) **Historic Buildings.** The following is exempt from the Mesa Energy Code: any building or structure that is listed in the State or National Register of Historic Places; is designated as a historic property or under local or state designation law or survey; is certified as a contributing resource with a national register listed or locally designated historic district or with an opinion or certification that the property is eligible to be listed on the National or State Registers of Historic Places either individually or as a contributing building to a historic district by the State Historic Preservation Officer or the keeper of the National Register of Historic Places. (5055)

(Q) **Appeals.** Orders, decisions, or determinations made by the Building Safety Director may, within thirty (30) days of the receipt of the notice of the decision, be appealed to the Building Board of Appeals, Section 2-11 of the Mesa City Code. The request for an appeal shall be in writing, shall set forth the specific objections to the decision of the Building Safety Director, and this shall form the basis of the appeal. A hearing shall be set as soon as practicable. The decision of the Building Board of Appeals shall be based on the evidence presented. (4242, 5055)

(Ord. No. 5979, §§ 3—7, 12-8-25)

4-1-3: BUILDING SAFETY

(A) **Creation of Enforcement Agency.** There is hereby established a code enforcement agency of the Development Services Department of the City of Mesa known as the Building Safety Division under the administrative and operational charge of the Building Safety Director. (4242)

(B) **Duties and Powers.** The Building Safety Director is hereby authorized and directed to enforce the provisions of this Chapter and technical codes. The Building Safety Director shall have the authority to render interpretations of this Chapter and the technical codes and to adopt policies and procedures in order to clarify the application of their provisions. Such interpretations, policies, and procedures shall be in compliance with the intent and purpose of this Chapter and the technical codes. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this Chapter or the technical codes. (4242)

(C) **Deputies.** In accordance with any applicable City procedures, and with the concurrence of the Development Services Manager, the Building Safety Director shall have the authority to appoint deputy building safety directors, technical officers, inspectors, plan examiners, and other employees. Such employees shall have powers as delegated by the Building Safety Director. (4242)

(D) **Applications and Permits.** The Building Safety Director shall receive applications, review construction documents, and issue permits for the erection, and alteration, demolition, and moving of buildings and structures, inspect the premises where such permits have been issued, and enforce compliance with the provisions of this Chapter and the technical codes. The Building Safety Director shall issue all necessary notices or orders to ensure compliance with this Chapter and the technical codes. (4242)

(E) **Inspections.** The Building Safety Director shall make all of the required inspections, or the Building Safety Director shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The Building Safety Director is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the Development Services Manager. (4242)

(F) **Identification.** The Building Safety Director shall carry proper identification when inspecting structures or premises or otherwise in the performance of duties under this Chapter or the technical codes. (4242)

(G) **Right of Entry.** Where it is necessary to make an inspection to enforce the provisions of this Chapter or the technical codes, or where the Building Safety Director has reasonable cause to believe there exists in a structure or upon a premises a condition contrary to or in violation of this Chapter or the technical codes making the structure or premises unsafe, dangerous, or hazardous, the Building Safety Director is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this Chapter or the technical codes, provided that if such structure or premises be occupied, that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the Building Safety Director shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Building Safety Director shall have recourse to the remedies provided by law to secure entry. (4242)

(H) Department Records. The Building Safety Director shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention in the Division's approved retention schedule. (4242)

(I) Approved Materials and Equipment. Materials, equipment, and devices approved by the Building Safety Director shall be constructed and installed in accordance with such approval. The use of used materials meeting the requirements of this Chapter or the technical codes for new materials is permitted, subject to the approval of the Building Safety Director. (4242)

(J) Reasonable Modifications and Accommodations. An owner, representative of an owner, individual with a disability, or representative of an individual with a disability may request a reasonable modification or accommodation ("modification") from any provision of this Chapter or the technical codes. If a modification is requested by any person other than the owner, the owner's authorization evidenced by the owner's signature on the application for modification is required. Application for a modification must be submitted to the Building Safety Director. The Building Safety Director may approve, approve with stipulations, or deny the requested modification, or may approve an alternative modification which provides the applicant with an equivalent level of benefit. All of the following findings are required to approve a modification: (1) compliance with the strict letter of this chapter or the technical codes is impractical due to a specific, individualized reason described in the application; (2) the modification meets the purpose and intent of this Chapter and the technical codes; (3) the modification will not lessen the health, life safety, or fire safety requirements of this chapter or the technical codes; and (4) the modification does not result in an undue financial or administrative burden on the City or a fundamental alteration to the nature of a City Code, policy, or regulation. The Building Safety Director will issue a written decision stating the basis for the approval, approval with stipulations, or denial of the modification. The applicant will be notified of the decision and the decision will be maintained in the records of the Building Safety Division.

(K) Alternative Materials, Design, and Methods of Construction and Equipment. The provisions of this Chapter and the technical codes are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this Chapter or the technical codes, provided any such alternative is approved by the Building Safety Director. An alternative material, design, or method of construction may be approved where the Building Safety Director finds the proposed design is satisfactory and complies with the intent of the provisions of this Chapter and the technical codes, and the material, method, or work offered is, for the purpose intended, at least the equivalent of that prescribed in this Chapter and the technical codes in quality, strength, effectiveness, fire resistance, durability, and safety. Records of alternative materials, design, and methods of construction approvals shall be recorded and entered in the files of the Building Safety Division. Appeals of such determinations shall be to the Building Board of Appeals, Chapter 2-11, of the Mesa City Code. (4242)

1. Research Reports. Supporting data, where deemed necessary to assist in the approval of materials or assemblies not specifically provided for in this Chapter or the technical codes shall be provided and shall consist of valid research reports from approved sources. (4242)

2. Tests. Whenever there is insufficient evidence of compliance with the provisions of this Chapter or the technical codes, or evidence of material or method does not conform to the requirements of this Chapter or the technical codes, or in order to substantiate claims for alternative materials or

methods, the Building Safety Director shall have the authority to require tests as evidence of compliance to be made at no expense to the City. Test methods shall be as specified in this Chapter or the technical codes or by other recognized test standards. In the absence of recognized and accepted test methods, the Building Safety Director may approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the Building Safety Director for the period required in the Building Safety Division's approved record retention schedule. (4242)

(L) Stop Work Orders. Whenever the Building Safety Director finds any work regulated by this Chapter or the technical codes being performed in a manner either contrary to the provisions of this Chapter or the technical codes or dangerous or unsafe, the Building Safety Director is authorized to issue a stop work order. (4242)

1. Issuance. The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume. (4242)

2. Unlawful continuance. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by this Chapter and law. (4242)

3. Appeals. Any person aggrieved by a stop work order issued by the Building Safety Director may appeal such stop work order to the Building Board of Appeals in accordance with the requirements of Chapter 2-11, Mesa City Code. (4242)

(M) Occupancy Violations. When a building or structure or building service equipment therein regulated by this Chapter and the technical codes is being used contrary to the provisions of such codes, the Building Safety Director may order such use discontinued by written notice served on any person causing such use to be continued. Such person shall, after receipt of notice, discontinue the use within the time prescribed by the Building Safety Director and make the building, structure, or portion thereof, comply with the requirements of such codes. (4242)

(N) Authority to disconnect utilities. The Building Safety Director or authorized representative shall have the authority to disconnect a utility service or energy supplied to the building, structure, or building service equipment therein regulated by this Chapter or the technical codes in case of emergency where necessary to eliminate an immediate hazard to life or property. The Building Safety Director shall whenever possible notify the serving utility, the owner, and occupant of the building, structure, or building service equipment of the decision to disconnect prior to taking such action, and shall notify such serving utility, owner, and occupant of the building, structure, or building service equipment, in writing, of such disconnection, immediately thereafter. (4242)

(O) Authority to Condemn Building Service Equipment. When the Building Safety Director determines that building service equipment regulated in the technical codes has become hazardous to life, health, or property, or has become unsanitary, the Building Safety Director shall order in writing that such

equipment either be removed or restored to a safe or sanitary condition, as appropriate. The written notice shall fix a time limit for compliance with such order. Defective building service equipment shall not be used, operated, or maintained after receiving such notice. (4242)

1. When such equipment or installation is to be disconnected, a written notice of such disconnection and causes therefore shall be given within twenty-four (24) hours to the serving utility, the owner, and occupant of such building, structure, or premises. (4242)

2. When any building service equipment is used, operated, or maintained in violation of the technical codes and in violation of a notice issued pursuant to the provisions of this Section, the individual or individuals responsible for continued use, operation, or maintenance shall be subject to the penalties described in this Chapter and the Building Safety Director shall institute appropriate action to prevent, restrain, correct, or abate the violation. (4242)

(P) Connection After Order to Disconnect. Persons shall not make connections from an energy, fuel, or power supply nor supply energy or fuel to building service equipment that has been disconnected or ordered to be disconnected by the Building Safety Director or the use has been ordered to be discontinued by the Building Safety Director until the Building Safety Director authorizes the reconnection and use of such equipment. (4242)

(Ord. No. 5685, § 1, 3-21-22)

4-1-4: PERMITS

(A) Permits Required. Any owner or authorized agent who intends to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert, or replace any electrical, gas, mechanical, or plumbing system, the installation of which is regulated by this Chapter or the technical codes, or to cause such work to be done, shall first make application to the Building Safety Director and obtain the required permit or permits. (4242)

EXCEPTIONS: The following entities are exempt from the requirement to obtain permits: (4242)

1. Mesa Unified School District #4. (4242, 4579)

2. Gilbert Unified School District #41. (4242, 4579)

3. Higley Unified School District #60 (4579)

4. Queen Creek School District #95 (4579)

5. East Valley Institute of Technology District #401 (4579)

6. Governmental entities that are, as a matter of law, immune from having to obtain a permit. (4242)

7. Annual Facilities Permit Holders. In lieu of an individual permit for each alteration to an already approved electrical, gas, mechanical, or plumbing installation, the Building Safety Director is authorized to issue an Annual Facilities Permit. Such Annual Facilities Permit shall exempt its holder from obtaining individual permits for each project to be performed under the Annual Facilities Permit in accordance with Section 4-1-4(F). (4242)

(B) Work Exempt from Permit. Exemptions from permit requirements of this Chapter shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this Chapter or the technical codes or any other laws or ordinances of the City. Permits shall not be required for the following: (4242)

1. Building Permits. A building permit shall not be required for the following: (4242)

   (a) One- (1-) story detached accessory structures ancillary to R-3, R-4 and R-5 occupancies used as tool and storage sheds, playhouses, and similar uses, provided the floor area does not exceed two hundred (200) square feet (18.60m^2) and the property is not subject to the Desert Uplands Development Standards, is not located in a Historic Preservation Overlay District or on a site designated as a historic landmark. (4242, 4579, 4807)

   (b) Fences not more than six feet (6') (1,829 mm) high located on property zoned for single residence uses, provided the fence is not located on a property subject to the Desert Uplands Development Standards, is not located in a Historic Preservation Overlay District or on a site designated as a historic landmark and is not located on a public easement. (4242, 4579, 4807)

   (c) Oil derricks. (4242)

   (d) Retaining walls which are not over four feet (4') (1,219 mm) in height measured from the bottom of the footing to the top of the wall, provided the retaining wall is not supporting a surcharge, is not impounding Class I, II, or III-A liquids, or is not located on property subject to the Desert Uplands Development Standards, is not located in a Historic Preservation Overlay District or on a site designated as a historic landmark, and is not located on a public easement. (4242, 4807)

   (e) Water tanks supported directly on grade if the capacity does not exceed five thousand (5,000) gallons (18,925 L) and the ratio of height to diameter or width does not exceed two to one (2:1). (4242)

   (f) Sidewalks and driveways not more than thirty inches (30") (762 mm) above grade, not over any basement or story below, not part of an accessible route, is not located on property subject to the Desert Uplands Development Standards, is not located in a Historic Preservation Overlay District or on a site designated as a historic landmark, and is not located on a public easement. (4242, 4807)

   (g) Painting, papering, tiling, carpeting, cabinets, countertops, and similar finish work. (4242)

   (h) Temporary motion picture, television, and theater stage sets and scenery. (4242)

   (i) Prefabricated swimming pools accessory to detached one- (1-) and two- (2-) family dwellings, which are eighteen inches (18") (430 mm) or less deep, do not exceed five thousand (5,000) gallons (18,925 L), are installed entirely above ground, are not located on property subject to the Desert Uplands Development Standards, are not located in a Historic Preservation Overlay District or on a site designated as a historic landmark, and are not located on a public easement. (4242, 4579, 4807)

   (j) Shade cloth structures constructed for nursery or agricultural purposes and not including service systems. (4242)

(k) Swings and other playground equipment accessory to detached one- (1-) and two- (2-) family dwellings that are not located on property subject to the Desert Uplands Development Standards. (4242, 4579)

(l) Window awnings supported by an exterior wall projecting not more than fifty-four inches (54") (1,372 mm) from the exterior wall and not requiring additional support in detached one- (1-) and two- (2-) family dwellings and Group U occupancies. (4242)

(m) Movable cases, counters, and partitions not over five feet nine inches (5'9") (1,753 mm) in height. (4242)

(n) Replacement roof coverings, provided the replacement roof covering classification is equal to or greater than the existing roofing classification. (4242)

(o) Verification of City records for the issuance of a new Certificate of Occupancy when only the name of the owner or the business is changing. (4242, 4807)

(p) Light-gauge, pre-manufactured metal patio covers and awnings, and light-weight pre-manufactured metal frame fabric covered shade structures as an accessory to R-3, R-5 and Group U occupancies that are not located within a recreational vehicle park, are not located on property subject to the Desert Uplands Development Standards, and are not located in a Historic Preservation Overlay District or on a site designated as a historic landmark. (4242, 4579, 4807)

(q) In addition to items (a) through (p), the Building Safety Director is authorized to waive the requirement to obtain a building permit for additional items where it is found the nature of the work to be performed does not require a permit to obtain compliance with this Chapter, the technical codes and other ordinances of the City. (4807)

2. Electrical Permits. An electrical permit shall not be required for the following: (4242)

(a) Portable motors or other portable appliances energized by means of a cord or cable having an attachment plug end to be connected to an approved receptacle when that cord or cable is permitted by the Mesa Electrical Code. (4242)

(b) Repair or replacement of fixed motors, transformers, or fixed approved appliances of the same type and rating in the same location. (4242)

(c) Temporary decorative lighting. (4242)

(d) Repair or replacement of current-carrying parts of any switch, contactor, or control device. (4242)

(e) Installation of attachment plug receptacles, but not the outlets therefore. (4242)

(f) Repair or replacement of any over-current device of the required capacity in the same location. (4242)

(g) Repair or replacement of electrodes or transformers of the same size and capacity for signs or gas tube systems. (4242)

(h) Taping joints. (4242)

(i) Removal of electrical wiring. (4242)

(j) Temporary wiring for experimental purposes in suitable experimental laboratories. (4242)

(k) The wiring for temporary theater, motion picture, or television stage sets. (4242)

(l) Electrical wiring, devices, appliances, apparatus, or equipment operating at less than twenty-five (25) volts and not capable of supplying more than fifty (50) watts of energy. (4242)

(m) Low-energy power, control, and signal circuits of Class II and Class III as defined in the Electrical Code. (4242)

(n) Installation, alteration, or repair of electrical wiring, apparatus, or equipment or the generation, transmission, distribution, or metering of electrical energy or in the operation of signals or the transmission of intelligence by a public or private utility in the exercise of its function as a serving utility. (4242)

(o) Installation of portable generators for temporary events subject to inspection by Fire Prevention. (4242)

(p) Re-energizing an electric service by the serving electric supplier after a period of zero usage. (4242)

(q) Outdoor lighting fixture installations by Utility Companies under duly approved contracts with the City of Mesa, provided such fixture installations comply with Section 4-4-2 of the Mesa City Code. (4242)

(r) Photovoltaic power systems that are listed and labeled by a nationally recognized testing agency, under 10,000 square feet, and installed by an Arizona Licensed Contractor.

(s) In addition to items (a) through (r), the Building Safety Director is authorized to waive the requirement to obtain an electrical permit for additional items where it is found the nature of the work to be performed does not require a permit to obtain compliance with this Chapter, the technical codes and other ordinances of the City. (4807)

3. Fuel Gas Permits. A fuel gas permit shall not be required for the following: (4242)

(a) Portable heating appliance. (4242)

(b) Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe. (4242)

(c) Replacement of gas water heating appliances of equal or less Btu/cfh rating and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in R-1, R-2, R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit, provided the serving Gas Utility is notified prior to the appliance being energized. (4242, 4579)

(d) Replacement of gas pool and spa heating appliances of equal or less Btu/cfh rating, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in R-1, R-2, R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the pool or spa serves an individual dwelling unit, provided the serving Gas Utility is notified prior to the appliance being energized. (4242)

(e) Replacement of gas water heating appliances of equal or less Btu/cfh rating and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, provided the serving Gas Utility is notified prior to the appliance being energized. (4242, 4579)

(f) Re-energizing a gas service by the serving gas supplier after a period of zero usage. (4242)

(g) Replacement of gas air-conditioning units, direct-vented appliances, furnaces, and log lighters, of equal or less Btu/cfh, and minor modification to electrical, plumbing, and

mechanical connections necessary to serve the appliance in R-1, R-2, R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit, provided the serving Gas Utility is notified prior to the appliance being energized. (4242, 4579)

(h) Replacement of gas unit heaters, overhead radiant heaters, vented freestanding heaters, vented overhead heaters, direct gas-fired make-up air heaters, industrial air heaters, and furnaces of equal or less Btu/cfh rating and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, provided the serving Gas Utility is notified prior to the appliance being energized and not including appliances or appurtenances equipped with required fire detection, fire notification, or fire suppression systems. (4242, 4579)

(i) Replacement of gas air-conditioning units and heat pumps of equal or less Btu/cfh rating, same toxicity, and same flammability classification of refrigerants and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, provided the serving Gas Utility is notified prior to the appliance being energized and not including appliances or appurtenances equipped with required fire detection, fire notification, or fire suppression systems. (4242, 4579)

(j) In addition to items (a) through (i), the Building Safety Director is authorized to waive the requirement to obtain a fuel-gas permit for additional items where it is found the nature of the work to be performed does not require a permit to obtain compliance with this Chapter, the technical codes and other ordinances of the City. (4807)

4. Mechanical Permits. A mechanical permit shall not be required for the following: (4242)

(a) Portable heating appliance. (4242)

(b) Portable ventilation equipment. (4242)

(c) Portable cooling unit. (4242)

(d) Steam, hot, or chilled water piping within any heating or cooling equipment regulated by Mesa Mechanical Code. (4242)

(e) Replacement of any part not altering its approval or making it unsafe. (4242)

(f) Portable evaporative cooler. (4242)

(g) Self-contained refrigeration system containing ten (10) pounds (4.54 kg) or less of refrigerant and actuated by motors of one (1) horsepower (746 W) or less. (4242)

(h) In addition to items (a) through (g), the Building Safety Director is authorized to waive the requirement to obtain a mechanical permit for additional items where it is found the nature of the work to be performed does not require a permit to obtain compliance with this Chapter, the technical codes and other ordinances of the City. (4807)

5. Plumbing Permits. A plumbing permit shall not be required for the following: (4242)

(a) Stopping of leaks in drains, water, soil, waste, or vent pipe, not including defective concealed trap, drainpipe, water, soil, waste, or vent pipe requiring removal and replacement. (4242)

(b) Clearing of stoppages or the repairing of leaks in pipes, valves, or fixtures, and the removal and reinstallation of water closets, not including the replacement or rearrangement of valves, pipes, or fixtures. (4242)

(c) Replacement of electric water heating appliances of equal or less amperage rating, and minor modification to electrical, plumbing, and mechanical connections to serve the appliance in R-1, R-2, R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit. (4242, 4579)

(d) Replacement of electric water heating appliances of equal or less amperage rating, and minor modification to electrical, plumbing, and mechanical connections to serve the appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space. (4242, 4579)

(e) Equal replacement of boilers and water heaters regulated by the State of Arizona, except not including work not in the scope of State regulation in industries, premises, or activities regulated by Mesa City Code, Title 8, Chapters 1 and 4. (4242)

(f) Replacement of electric air-handling units, unit heaters, overhead radiant heaters, freestanding heaters, overhead heaters, and furnaces of equal or less amperage rating and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, not including appliances or appurtenances equipped with required fire detection, fire notification, or fire suppression systems. (4242, 4579)

(g) Replacement of electric air-conditioning units and heat pumps of equal or less Btu/cfu rating, same toxicity and same flammability classification of refrigerants, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, not including appliances or appurtenances equipped with required fire detection, fire notification, or fire suppression systems. (4242, 4579)

(h) Replacement or new installation of potable water conditioning or treating appliances, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the appliance in R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit. (4242, 4579)

(i) Replacement or new installation of potable water conditioning or treating appliances, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, not including industries, premises, or activities regulated by Mesa City Code, Title 8, Chapters 1 and 4. (4242, 4579)

(j) Replacement or new installation of solar domestic water heating appliances, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the appliance in R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit. (4242, 4579)

(k) Replacement or new installation of solar pool and spa heating appliances and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the pool or spa serves an individual dwelling unit. (4242, 4579)

(l) Equal replacement of exterior potable water supply line to a building, not including industries, premises, or activities regulated by Mesa City Code, Title 8, Chapters 1 and 4, and not including work in a PUE, PUFE, or City of Mesa right-of-way. (4242)

(m) Equal replacement of exterior sanitary drainage line from a building, not including industries, premises, or activities regulated by Mesa City Code, Title 8, Chapters 1 and 4 and not including work in PUE, PUFE, or City of Mesa right-of-way. (4242)

(n) Replacement of electric air-conditioning units, air-handling units, heating appliances, heat pumps, radiant heaters, and furnaces, of equal or less amperage, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in R-1, R-2, R3, R4 and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit. (4242, 4579)

(o) Replacement of evaporative coolers of equal or less cfm and amperage rating, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in R-3, R-4, and R-5 occupancies, manufactured homes, and recreational vehicles where the appliance serves an individual dwelling unit. (4242, 4579)

(p) Replacement of evaporative coolers of equal or less cfm and amperage rating, and minor modification to electrical, plumbing, and mechanical connections necessary to serve the new appliance in A-2, A-3, A-4, B, E, F-2, M, S-2, and U occupancies where the appliance serves an individual tenant space, not including appliances or appurtenances equipped with fire detection, fire notification, or fire suppression systems. (4242, 4579)

(q) Installation of a gray water system in compliance with Arizona Department of Environmental Quality Reclaimed Water Type 1 General Permit, and minor modifications to the plumbing system necessary to serve the gray water system in R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the system serves an individual dwelling unit. (4579)

(r) Installation of an automatic hot water circulating pump energized by means of a cord or cable having an attachment plug end for connection to a 115-volt receptacle, and minor modification to the electrical and plumbing system necessary to serve the pump in R-3, R-4 and R-5 occupancies, manufactured homes, and recreational vehicles where the system serves an individual dwelling unit. (4579)

(s) Installation of private sub-meters on an existing master-metered potable water supply system. (4807)

(t) In addition to items (a) through (s), the Building Safety Director is authorized to waive the requirement to obtain a plumbing permit for additional items where it is found the nature of the work to be performed does not require a permit to obtain compliance with this Chapter, the technical codes and other ordinances of the City. (4807)

(C) Emergency Repairs. Where equipment replacements and repairs requiring a permit must be performed in an emergency situation, the permit application shall be submitted within the next working business day. (4242)

(D) Ordinary Repairs. Application or notice to the Building Safety Director is not required for ordinary repairs to structures, replacement of lamps, or the connection of approved portable electrical equipment to approve permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition, or portion thereof, the removal or cutting of any structural beam or load-bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement, or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, soil, waste, vent, or similar piping, electrical wiring, or mechanical or other work affecting public health or general safety. (4242)

EXCEPTION: Work exempt from permits under Section 4-1-4(B) above. (4242)

(E) Public Service Agencies. A permit shall not be required for the installation, alteration, or repair of generation, transmission, distribution, or metering or other related equipment under the ownership and control of public service agencies by established right. (4242)

(F) Annual Facility Permits. (4242)

1. General. The Annual Facilities Permit is an administrative system intended to simplify the permitting and inspection process for qualified facilities by allowing inspectors to review plans and maintaining inspectors familiar with the construction history of such facilities. Qualified facilities electing to participate in this program are exempt from the requirement to obtain individual permits for the work regulated by this Chapter when such work does not increase the floor area, does not constitute a change of use or occupancy classification, and is performed on existing buildings, structures, and utilities associated with that qualified facility. This alternative permit process shall not exempt compliance with the technical requirements of this Chapter, the technical codes, or with other City, County, State, or Federal laws. (4242, 4579)

2. Definitions. For purposes of this Section, the following terms shall apply: (4242)

AGENT: A full-time or contract employee of a Qualified Facility, who is an architect or engineer registered and residing in the State of Arizona and who is responsible for complying with the substantive provisions of this Chapter. The agent, as authorized by rules established by the Arizona Board of Technical Registration, shall assure work has been performed in accordance with this Chapter and the technical codes. (4242)

QUALIFIED FACILITY: A firm, corporation, or political entity engaged in manufacturing, processing, service, or property management that occupies and controls specialized buildings and building service equipment to the extent that full-time personnel are required to manage, operate, or maintain such buildings and equipment in compliance with all the provisions of this Chapter and the technical codes. (4242)

3. Annual Facilities Permit Transferability. An Annual Facilities Permit is not transferable. (4242)

4. Annual Facilities Permit Renewal. An Annual Facilities Permit may be renewed every twelve (12) months by payment of a renewal fee as set forth in the City of Mesa Schedule of Fees and Charges. Renewal fees shall be due and payable prior to the permit expiration date, or a new initial application shall be required. Work performed after the permit expiration date shall be in violation of this Chapter and subject to penalty. (4242)

5. Annual Facilities Permit Operation. The agent shall notify the Building Safety Director prior to the start of any work involving alteration of the building structure system, alteration of any fire-resistive wall, floor, or ceiling assembly, alteration of any fire corridor system, or installation of any structural, mechanical, plumbing, or electrical work intended to be enclosed or concealed. The Building Safety Director shall determine the nature and extent of plan reviews and/or inspections required. The City of Mesa shall invoice the Qualified Facility and the Qualified Facility shall pay for the professional services rendered as set forth in the City of Mesa Schedule of Fees and Charges. (4242)

(G) Temporary Structures and Uses. The Building Safety Director is authorized to issue a permit for temporary structures and temporary uses. Such permits shall be limited as to time of service, but shall not be permitted for more than one hundred eighty (180) days. The Building Safety Director is authorized to grant extensions for demonstrated cause. Temporary structures and uses shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation, and sanitary requirements of this Chapter and the technical codes as determined by the Building Safety Director to ensure the public health, safety, and general welfare. The Building Safety Director is authorized to terminate such permit and to order the temporary structure or use to be discontinued. (4242)

(H) Application for Permit. (4242)

1. Requirements. To obtain a permit an applicant shall first file an application in writing on a form furnished by the Building Safety Division. Such application, at a minimum, shall contain the following: (4242)

   (a) Identification and description of the work to be covered by the permit. (4242)

   (b) Description of the land where the proposed work is to be done by legal description, street address, or similar description readily identifying and definitely locating the proposed building or work. (4242)

   (c) Indication of the use and occupancy of the proposed work. (4242)

   (d) Construction documents and other information as required in this Section. (4242)

   (e) The valuation of the proposed work. (4242)

   (f) Signature of the applicant, or the applicant's authorized agent. (4242)

   (g) Certification of the applicant that the documents submitted for permit are in accordance with Mesa City Code requirements, including Titles 4, 7, and 11, and all Planning and Zoning and Design Review Board stipulations, except that the Development Services Manager, after conferring with the Building Safety Director and the Planning Director, may accept applications prior to the completion of all planning processes where the applicant

acknowledges they are proceeding "At Risk." In proceeding "At-Risk," the applicant may be required to modify previously approved documents, may incur additional review submittals and fees, and permits shall not be issued until completion of the planning process and the submittal documents adequately demonstrate compliance with all codes, standards, stipulations and requirements. (4242, 4604)

(h) Proof of valid contractor's license and bond. When the issuance of a permit is required, as part of the application procedures, each applicant for a building permit shall affirm by affidavit compliance with ARS Title 32, Chapter 10, and ARS 42-5005. If the applicant claims an exemption from licensing requirements, the affidavit shall contain the basis of the exemption and the name and license number of contractors performing the work. These named contractors shall then affirm compliance with ARS 42-5005. (4579)

(i) Other data and information as required by the Building Safety Director. (4242)

2. Annual Facilities Permit Application. Every applicant for an Annual Facilities Permit shall submit an application on a form provided by the Building Safety Director and shall pay an application fee as set forth in the City of Mesa Schedule of Fees and Charges. Such application, at a minimum, shall contain the following: (4242)

(a) The name of the person authorized to act on behalf of the Qualified Facility owner(s). (4242)

(b) The name of the agent who will be responsible for code compliance of the work performed under the Annual Facilities Permit. When the agent is employed by contract, the agent and the person authorized to act on behalf of the Qualified Facility owner(s) cannot be the same individual. (4242)

(c) The location and total square footage of the entire facility at the site(s) intended to be included in the program. (4242)

3. Airport Approval. Permit applications for projects located on Williams Gateway Airport property or Falcon Field Airport property shall provide written documentation of appropriate airport authority approval of the work proposed in the application for permit prior to submission. (4242)

4. Action on Application. The Building Safety Director shall examine or cause to be examined applications for permits and related amendments within a reasonable time after filing. If the application or the construction documents do not conform to the requirements of pertinent laws, the Building Safety Director shall reject such application in writing, identifying the reasons for rejection. In the event that the applicant or the applicant's contractor is delinquent in the payment of privilege and excise taxes levied pursuant to the provisions of Title 5, Chapter 10, of the Mesa City Code or is delinquent in the payment of any other accounts owed to the City of Mesa, the Building Safety Director is authorized, upon notification by the Tax Collector or other City official, to withhold the issuance of permits until such delinquencies have been satisfactorily resolved. (4579)

If the Building Safety Director is satisfied that the proposed work conforms to the requirements of this Chapter, the technical codes and applicable laws and ordinances, the Building Safety Director shall issue a permit as soon as practicable, subject only to the payment of appropriate fees. Before

issuing a permit, the Building Safety Director is authorized to examine or cause to be examined buildings, structures, and sites where an application has been filed. If the application is rejected, the applicant may appeal the decision in accordance with Chapter 2-11 of the Mesa City Code. (4242, 4579)

5. Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned one hundred eighty (180) days after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except the Building Safety Director is authorized to grant one (1) or more extensions of time for additional periods not exceeding ninety (90) days each. Such extension shall be requested in writing with justifiable cause demonstrated. (4242)

(I) Submittal Documents. Plans, specifications, engineering calculations, diagrams, soil investigation reports, special inspection and structural observation programs, and other data as required by the Building Safety Director shall be submitted with each application for a permit. The construction documents shall be prepared by a registered design professional as required by State law and Section 4-1-4(J). Where special conditions exist, the Building Safety Director is authorized to require additional construction documents to be prepared by a registered design professional. (4242)

1. Information on Construction Documents. Construction documents shall be dimensioned and drawn upon suitable material. Electronic media documents are permitted to be submitted when approved by the Building Safety Director. Construction documents shall be of sufficient clarity to indicate the location, nature, and extent of the work proposed and show in detail that it will conform to the provisions of this Chapter, the technical codes, and relevant laws and ordinances. (4242)

2. Title Sheet Information. The construction documents shall contain a title sheet or title sheets indicating the name, address, and phone numbers of project owner(s), design professionals, and contractors (if known). The title sheet shall also contain information regarding the Code review as performed by the design professional, including the size of the building, type of construction, and type(s) of occupancy, area, and height modifications (if any), fire sprinklers (if any), deferred items (if any), and other information as directed by the Building Safety Director. (4242, 4807)

3. Screening. Submittal documents shall be subject to screening by the Building Safety Director for completeness and code compliance prior to being accepted for permit review, as determined by the Building Safety Director. Incomplete submittals or submittals containing readily apparent code violations shall be returned to the applicant without being accepted unless otherwise directed by the Building Safety Director. (4242, 4807)

4. Outdoor Lighting Compliance. Submittal documents for projects proposing outdoor lighting fixtures shall contain, but not be limited to, the following information: (4242)

(a) Plans indicating the type of illuminating devices, fixtures, lamps, supports, other devices, etc. and their location on the premises. (4242)

(b) Description of the illuminating devices, fixtures, lamps, supports, and other devices, etc., including manufacturers' catalog cuts. (4242)

(c) Photometric study, including a plan of the premises showing fixture locations; calculated light levels at various points inside the parking lot, along walkways, or other occupied outdoor areas; expected light levels at the property lines; and maximum, minimum, and average light levels. (4242)

(d) Certification that the design of the outdoor lighting system complies with Section 4-4-2 of the Mesa City Code. (4242)

5. Deferred Submittals. For the purposes of this Section, deferred submittals are defined as those portions of the design not submitted at the time of the application but are to be submitted to the Building Safety Director within a specified period. The deferral of submittal items shall have the prior approval of the Building Safety Director. The registered design professional of record shall list the deferred submittals on the construction documents for review by the Building Safety Director. All deferred submittals shall be subject to the same plan review and approval process as the original permit application and such approval shall be completed prior to the installation of or request for the inspection of the deferred item for the project. The approved documents shall be incorporated into the permit documents. (4242, 4493, 4807)

Deferred submittals may include: commercial fire sprinkler systems, residential fire sprinkler systems, commercial fire notification systems, commercial fire detection systems, fire standpipes, alternative fire suppression systems, commercial kitchen hoods, rack storage plans, elevators, elevator recall systems, refrigerant vapor alarm systems, prefabricated metal stairs, prefabricated metal storage systems, overhead cranes, industrial equipment, truss designs, and other deferred submittal items not listed herein, with the prior approval of the Building Safety Director. Items that shall not be deferred include: structural design of elements not included in the list above, building plumbing systems, building mechanical systems, building electrical systems, outdoor lighting systems and landscaping designs. (4807)

Deferred submittals are a special service of the Building Safety Division requiring additional processing and plan review time beyond that required for projects in which all of the required documents are submitted with the initial submission. This special service requires payment of an additional premium fee as established in the latest edition of the Schedule of Fees and Charges, except deferred truss designs shall not be subject to a premium fee. (4493, 4807)

Deferred submittals do not constitute the phasing of construction permits and may constitute an addendum to the original permit or application if the deferred submittal involves changes in the design or work meeting the definition of an addendum. (4242)

6. Review by Design Professional. Documents for deferred submittal items shall be submitted to the registered design professional of record who shall review them and forward them to the Building Safety Director with a notation indicating the deferred submittal documents have been reviewed and been found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the design and submittal documents have been approved by the Building Safety Director. (4242)

7. Standard plans. Standard plans are building construction drawings that are designed and intended for use on more than one site. These drawings are plan reviewed in advance of the regular submission for permits. Corrections are made until the standard plans have met all code require-

ments, except those related to a specific site. Standard plans are retained in Building Safety until needed. The applicant then submits the site drawings, application, and other documents as required for permits to construct the building in accordance with this code and the technical codes. (4493)

The Building Safety Director is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if it is found the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this Chapter, the technical codes, and other ordinances of the City. (4242)

(J) Design Professional of Record. When it is required that permit submittal documents be prepared by a registered design professional, the Building Safety Director shall be authorized to require the owner to engage and designate on the building permit application a registered design professional who shall act as the registered design professional of record. If the circumstances require, the owner shall designate a substitute registered design professional of record who shall perform the duties required of the original registered design professional of record. The Building Safety Director shall be notified in writing by the owner if the registered design professional of record is changed or is unable to continue to perform the duties. (4242)

The registered design professional of record shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items and equipment lists, for compatibility with the design of the building. Where structural observation is required by Title 4, Chapter 2, the Mesa Building Code, the inspection program shall name the individual or firms who are to perform structural observation and describe the stages of construction where the structural observation is to occur. (4242, 4807)

In accordance with the Code of the State Board of Technical Registration, permit documents shall be prepared by a qualified Arizona Registrant for the following: (4242)

1. New buildings or structures that: (4242)
   (a) Exceed two (2) stories in height (including basements); or (4242)
   (b) Exceed three thousand (3,000) square feet of floor area, measured as described in Section 4-1-8(E); or (4242)
   (c) Have structural elements with a span exceeding twenty feet (20'), not including wood or steel trusses or lintels designed by a registered engineer. (4242)
2. Additions or alterations to existing buildings or structures that: (4242)
   (a) Meet or exceed the requirements for new buildings or structures as listed in Section 4-1-4(J)1 above. (4242)
   (b) Exceed the three thousand- (3,000-) square-foot limitation for a one- (1-) time addition for the purpose of storage where the addition does not exceed fifteen hundred (1,500) square feet. (4242)
3. Buildings of any occupancy type resulting in an occupant load greater than twenty (20) persons, as required in Title 4, Chapter 2, Mesa Building Code, that have not been designed by a qualified Arizona registrant. (4242)

4. When deemed necessary by the Building Safety Director to ensure compliance with this Chapter and the technical codes. (4242)

EXCEPTIONS: The following are exempted from the above requirements and do not require preparation by an Arizona registrant: (4242)

(a) Landscaping planting plans, and (4242)

(b) Detached single-family dwellings constructed in accordance with the Mesa Residential Code. (4242)

(K) Examination of Documents. The Building Safety Director shall examine or cause to be examined the permit application and accompanying construction documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this Chapter, the technical codes, and other pertinent laws or ordinances. (4242)

1. Approval of Construction Documents. When the Building Safety Director issues a permit, the construction documents shall be approved, in writing or by stamp, as "Reviewed for Code Compliance." One (1) set of construction documents so reviewed shall be retained by the Building Safety Division as required by the approved Building Safety Division retention schedule. Other sets shall be returned to the applicant with one (1) to be kept at the site of work and open to inspection by the Building Safety Director. When the submittal documents include site and floor plan drawings produced electronically, the applicant shall provide an electronic copy of all site plan and floor plan drawings on compact disk or other approved media to the Building Safety Director. (4242)

2. Previous Approvals. This Chapter and the technical codes shall not require changes in the construction documents, construction, or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith and has not been abandoned. (4242)

3. Addenda and Revisions to Submittal Documents. The project owner may submit modifications of the application or the attached submittal documents at any time prior to the final completion of the work. Revisions (changes made prior to the issuance of the permit) and addenda (changes made after permit issuance) shall be subject to the same plan review and approval process as the original permit application. Upon approval, revised/modified documents shall supercede and shall be incorporated into the original submission or permit documents. The approved revisions and addenda shall not constitute a new permit request. The review and approval of revisions and addenda constitutes an additional service and is subject to the payment of a premium fee as established in the latest Schedule of Fees and Charges. Projects with revisions or addenda that increase the scope of work, as determined by the Building Safety Director, may be subject to a complete recalculation of fees or to obtaining an entirely new permit. (4242, 4493, 4579, 4807)

When addenda to the design drawings, construction documents or other data are submitted by applicants seeking to change the approved permit documents such that the scope of the original permit is not expanded, an additional fee shall be paid by the applicant in accordance with the latest Schedule of Fees and Charges established by the City. (4493, 4579, 4807)

4. Staged Approval. The project owner shall determine if the project is to be constructed under one permit for the entire project or under a series of permits (stages) for the project. The Building Safety Director is authorized to issue any number of separate permits for the construction of the site work, underground utilities, buildings and structures needed to complete the whole project in accordance with pertinent requirements of this chapter and the technical codes. The holder of a permit for the construction of any portion of a project shall proceed with the construction operation at the permit holder's own risk and without assurance that additional permits will be granted. Choosing to build in more than one stage will not result in a fee premium. (4493)

5. Phased Approval. The project owner shall determine if the building or structure is to be constructed under one (1) permit for the entire project or under a series of permits (phases) of the building. The Building Safety Director is authorized to issue separate permits for the construction of the building's shell and any number of tenant completion permits needed to complete the whole building in accordance with pertinent requirements of this chapter and the technical codes. The holder of a permit for the shell or other parts of a building or structure shall proceed with the construction operation at the permit holder's own risk and without assurance that additional permits will be granted. Refer to paragraph 6 for foundation permits. (4242, 4493, 4807)

   Choosing to build in more than one phase will result in an increase in the fees charged as established in the latest edition of the Schedule of Fees and Charges. A building constructed under a phased approach is not permitted to be occupied until all of the phases for the building, or portion thereof, have been successfully completed. A shell is an incomplete building and cannot be safely occupied. (4493)

   Separating a construction project in multiple permits (staging) for the construction of a project shall not be considered phasing and shall not trigger the assessment of a phasing fee premium. Refer to Section 4-1-8 (L) for information on fee calculations for phased projects. (4493, 4807)

6. Foundation Permits. The Building Safety Director is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided adequate information and detailed statements have been filed complying with pertinent requirements of this Chapter, the technical codes and the Mesa Zoning Code. The holder of a permit for the foundation or other parts of a building or structure shall proceed with the construction operation at the holder's own risk and without assurance that a permit for the entire structure will be granted. The granting of foundation permits is a special service that will result in an increase in the fees charged as established in the latest Schedule of Fees and Charges. (4493, 4579, 4807)

7. Expedited Plan Review. For projects on which the owner requests "expedited" or "super-expedited" plan review services (faster than normal turnaround times), and the Building Safety Director agrees to provide such services either in-house or through the use of an outside plan review contractor, the building permit shall be subjected to an additional premium fee as established in the latest Schedule of Fees and Charges. At the time of application, the owner shall request the expedited services and shall pay an additional expedited permit application deposit equal to 100% of the permit application deposit. The Building Safety Director will provide the plan review services needed for the initial review and up to two subsequent reviews within the City's stated plan review turnaround

times for expedited projects, or as otherwise agreed. The balance of the expedited premium shall be paid prior to the issuance of the permits. If for any reason the permit is not issued, the entire deposit is forfeited. In the event that the City fails to provide the requested expedited or super-expedited services within the City's stated plan review turnaround times, the expedited or super expedited premium is waived and the premium portion of the deposit will be refunded in accordance with Section 4-1-8(W). (4493, 4579, 4807)

The total expedited or super-expedited premium shall not be prorated even in the event that some of the plan review submissions for a project are not requested to be expedited. If only one submission is requested to be expedited or super-expedited for that project, the total premium fee shall be charged. (4493, 4807)

(L) Annual Facilities Permit Plan Reviews. Plans, drawings, diagrams, and/or other data describing the work to be performed shall be provided for review at the Qualified Facility. When such plans are required to be prepared by a registered architect or engineer or are of a nature that is too complex for on-site review, the Building Safety Director may choose to perform the plan review at a Building Safety Service Center. (4242)

(M) Validity of Permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this Chapter, the technical codes, or of any other ordinance of the jurisdiction. Permits presuming to give authority to violate or cancel the provisions of this Chapter, the technical codes, or other ordinances of the jurisdiction shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the Building Safety Director from requiring the correction of errors in the permit documents or in the construction. The Building Safety Director is also authorized to prevent occupancy or use of a structure where in violation of this Chapter, the technical codes, or of any other ordinances of this jurisdiction. Work shall be installed in accordance with the approved construction documents, and any changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents. (4242)

In addition, an Annual Facilities Permit shall be valid only for the time period the named agent remains in the employ of the Qualified Facility in an active capacity. If the named agent should leave the employ, the Qualified Facility shall notify the Building Safety Director within seven (7) calendar days. The Qualified Facility shall obtain a replacement agent within forty-five (45) days of such notification. If, within the prescribed period, the Building Safety Director is not provided with information that a new agent has been obtained, the Annual Facilities Permit will be deemed suspended until such agent is obtained. The acceptance of the new agent shall be subject to the approval of the Building Safety Director. (4242)

(N) Expiration of Permit. Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within one hundred eighty (180) days after its issuance, or if the work authorized on the site by such permit is declared suspended or abandoned by the owner for a period of one hundred eighty (180) days after the date the work is commenced, or if the Building Safety Director declares the permit suspended or abandoned after the expiration of one hundred eighty (180) days from the date of permit issuance. When requested by the permit holder within one hundred eighty (180) days after the expiration of the permit, the Building Safety Director is authorized to grant one (1) or more extensions of time, for periods not more than one hundred eighty (180) days each. The extension shall be requested in writing and justifiable cause demonstrated. Such extension, when granted, shall be in writing. (4242)

Refunds, if applicable, shall be in accordance with section 4-1-4(G). The fee for extending an expired permit shall be as established in the latest Schedule of Fees and Charges. (4493, 4579)

(O) Suspension or Revocation. The Building Safety Director is authorized to suspend or revoke a permit issued under the provisions of this Chapter wherever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this Chapter, the technical codes, or of any other ordinances of this jurisdiction, including, upon notification by the Tax Collector or other City official, delinquencies in the payment of privilege and excise taxes levied pursuant to the provisions of Title 5, Chapter 10, of the Mesa City Code or delinquencies in the payment of any other accounts owed to the City of Mesa. (4242, 4579)

(P) Suspension or Revocation of Annual Facilities Permit. The Building Safety Director may suspend or revoke an Annual Facilities Permit when the Qualified Facility fails to comply with any of the Annual Facilities Permit responsibilities or there exists a willful violation of any provisions of this Chapter. Violations that may result in annual permit revocation include, but are not limited to, one (1) or more of the following: (4242)

1. Performing construction work without an agent as required. (4242)
2. Performing construction work without the agent's knowledge or consent. (4242)
3. Concealing work without inspection approval or authorization. (4242)
4. Refusal to uncover concealed work. (4242)
5. Construction or installing work contrary to inspection orders. (4242)
6. Failure to report all work done under authority of the annual permit. (4242)
7. Refusal to eliminate unsafe hazards as required in this Chapter. (4242)

If the violation involves work performed, a separate permit as required under Section 4-1-4(A) shall be required. Such permit is subject to regular permit fees and an investigation fee as prescribed in Section 4-1-8. (4242)

An Annual Facilities Permit may be reinstated after all violations have been remedied to the satisfaction of the Building Safety Director. Reinstatement of an annual permit having been revoked requires payment of a new Annual Facilities Permit fee. (4242)

When the Building Safety Director suspends or revokes the Annual Facilities Permit, the Qualified Facility may appeal the decision in accordance with Chapter 2-11 of the Mesa City Code. (4242)

(Q) Placement of Permit. The building permit or copy thereof shall be kept on the site of the work until the completion of the project. (4242)

(R) Responsibility. It shall be the duty of every person who performs work for the installation or repair of building, structure, electrical, gas, mechanical, or plumbing systems, for which this Chapter or the technical codes are applicable, to comply with this Chapter and the technical codes. (4242)

(S) Digital / Electronic Drawing Submission. It shall be the responsibility of every permit holder to provide a digital file copy of the permit drawings as required in Section 7-2-3 to the Fire Department through the Building Safety Division prior to the issuance of the permit by the Building Safety Director. Such digital files shall be in accordance with the requirements of Section 7-2-3 as determined by the Fire Marshal, except drawings for permits related to R-3, R-4, and R-5 occupancies, and accessory structures located on the same lot as an R-3, R-4 or R-5 occupancy. (4579, 4807)

(T) Required Operational Permits. The Fire Code Official is authorized to issue operational permits as set forth in Title 7, Chapter 2, Mesa Fire Code. (4634)

(U) Permit-by-Inspection Program. The permit-by-inspection program (PBI) is a voluntary alternative to the standard Building Safety plan review and permit issuance processes for simple projects of certain occupancies and degree of complexity. P-B-I is intended to provide a simplified approach to permit review and issuance in which Building Safety Inspectors review permit applications and attached submittals and approve the issuance of the permit. The owner can choose to utilize this program or the standard approach, subject to acceptance of the Building Safety Director. The inspector then performs the required inspections as the work progresses on that permit. (4807)

1. Eligible projects. Projects eligible for consideration under the P-B-I shall comply with all of the following limitations:

   A. Tenant improvement or tenant completion permits involving Group B (Business), Group M (Mercantile), or Group S (Storage) occupancies; (4807)

   B. Not involving a change of occupancy, except changes between Group B and Group M occupancies; (4807)

   C. Not more than 10,000 square feet in floor area; (4807)

   D. Not involving high piled storage or hazardous materials; and (4807)

   E. Not requiring additional zoning approvals. (4807)

2. Exceptions. The Building Safety Director may accept projects for P-B-I consideration that do not comply with all of the eligible requirements under Subparagraph (T)1 above including remodeling or addition permits for Group R-5 occupancies. (4807)

3. Projects shall comply with all other requirements of Section 4-1-4. (4807)

(Ord. No. 5685, § 2, 3-21-22)

4-1-5: INSPECTIONS

(A) General. Construction or work for which a permit is required shall be subject to inspection by the Building Safety Director and such construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this Chapter, the technical codes, or of other ordinances of the jurisdiction. Inspections presuming to give authority to violate or cancel the provisions of this Chapter or the technical codes or of other ordinances of the jurisdiction shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the Building Safety Director nor the jurisdiction shall be liable for expense entailed in the removal or replacement of any material required to allow inspection. (4242)

It shall be the duty of the permit holder to provide an approved property address, including number and street name, at all construction sites. Such temporary premises identification shall be clearly visible from the street or roadway fronting the property, shall be installed prior to the first inspection, and shall be maintained until the permanent premises identification is installed and approved. (4242)

(B) **Required Inspections.** The Building Safety Director, upon notification, shall make the inspections set forth in this Section. (4242)

1. Footing and Foundation Inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, required forms shall be in place prior to inspection. Inspection shall be made prior to the placement of concrete. Materials for the foundation shall be on the site, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the site. (4242)

2. Concrete Slab and Under-floor Inspection. Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories, and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor. (4242, 4579)

3. Plumbing, Mechanical, Gas, and Electrical Systems Inspection. Rough inspection of these systems shall be made prior to covering or concealment, before fixtures or appliances have been set or installed, and prior to the framing inspection. (4242)

4. Lowest Floor Elevation. In flood hazard areas, upon placement of the lowest floor and prior to further vertical construction, a copy of the elevation certification required and approved by the Maricopa Flood Control District shall be submitted to the Building Safety Director. (4242, 4579)

5. Frame and Masonry Inspection. Framing inspections shall be made after the roof deck or sheathing, masonry, all framing, fireblocking, draftstopping, and bracing are in place and pipes, chimney, and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes, and ducts are approved, and after the roof is loaded with roof covering material. (4242)

6. Lath and Gypsum Board Inspection. Lath and gypsum board inspections are required when a part of a fire-resistance-rated assembly or a shear assembly and shall be made after lathing and gypsum board, interior and exterior, is in place, but before any plastering is applied or gypsum board joints and fasteners are taped and finished. (4242)

7. Fire-resistant Penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies shall not be concealed from view until inspected and approved. (4242)

8. Other Inspections. In addition to the inspections specified above, the Building Safety Director is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this Chapter or the technical codes and other laws enforced by the Building Safety Division. (4242)

9. Special Inspections. Special inspections and structural observations shall be as required in Title 4, Chapter 2, Mesa Building Code. (4242)

10. Energy Efficiency Inspections. Inspections shall be made to determine compliance with the Mesa Energy Conservation Code. (5055)

11. Final Inspection. The final inspection shall be made after all work required by the building permit is completed. (4242, 5055)

(C) **Building Service Equipment Inspections.** The Building Safety Director shall inspect building service equipment for which a permit is required by this Chapter or the technical codes. Building service

equipment intended to be concealed by a permanent portion of the building shall not be concealed until inspected and approved. When the installation of building service equipment is complete, an additional and final inspection shall be made. Building service equipment regulated by the technical codes shall not be connected to the water, fuel, or power supply, or sewer system until authorized by the Building Safety Director. The requirements of this Chapter shall not be considered as prohibiting the operation of building service equipment installed to replace existing building service equipment serving an occupied portion of the building provided an inspection of such building service equipment has been completed and approved. (4242)

(D) **Inspection Agencies.** The Building Safety Director is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability. (4242)

(E) **Inspections Requests.** It shall be the duty of the holder of the building permit or their duly authorized agent to notify the Building Safety Director when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of such work as required by this Chapter. (4242)

(F) **Approval Required.** Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the Building Safety Director. The Building Safety Director, upon notification, shall make the requested inspections and shall either indicate the portion of the construction is satisfactory as completed, or notify the permit holder or authorized representative wherein the same fails to comply with this Chapter or the technical codes. Portions not complying shall be corrected and shall not be covered or concealed until authorized by the Building Safety Director. Projects with failed inspections may be subjected to additional fees in accordance with the City's latest Schedule of Fees and Charges. There shall be final inspection and approval of all construction when the work is completed and prior to any occupancy or use. (4242, 4807)

(G) **Gas Certificates.** If, upon final gas piping inspection, the installation is found to comply with the provisions of this Chapter and the technical codes, a certificate of inspection shall be issued by the Building Safety Director. A copy of such certificate shall be issued to the serving gas supplier supplying gas to the premises. It shall be unlawful for any serving gas supplier, or person furnishing gas, to turn on, or cause to be turned on, any fuel gas or any gas meter or meters, until such certificate of final inspection, as herein provided, has been issued. (4242)

(H) **Tests.** Whenever insufficient evidence of compliance with the provisions of this Chapter or the technical codes or evidence that materials or construction do not conform to the requirements of the technical codes, the Building Safety Director may require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified by the technical codes or by other recognized test standards. In the absence of recognized and accepted test methods, the Building Safety Director shall determine test procedures. Said tests shall be made by an approved agency. Reports of test results shall be submitted to the Building Safety Director for approval and shall be retained by the Building Safety Division as required in the approved records retention schedule. (4242, 4579)

(I) **Connection to Utilities.** Persons shall not make connections from a source of energy, fuel, or power to building service equipment, regulated by the technical codes and for which a permit is required by this Chapter, until approved by the Building Safety Director. The Building Safety Director may authorize the temporary connection of the building service equipment to the source of energy, fuel, or power for testing

building service equipment or for use under a temporary certificate of occupancy. The Building Safety Director may also authorize the connection of the building electrical service equipment to supply construction power. Such authorizations shall be conditioned upon the owner or permit holder prohibiting the use of gas-fired generators on the site once the permanent power is operational, except as approved by the Building Safety Director. The use and safe maintenance of the building electrical service equipment during construction shall comply with all applicable local, state and federal regulations. The Building Safety Director may order the disconnection of any service not used or maintained safely, or operated in violation of Section 4-1-6(A). An unauthorized construction fee as established in the latest Schedule of Fees and Charges shall be assessed in the case of a violation of Section 4-1-6(A). (4242, 4807)

(J) **Annual Facilities Permit Inspections.** All structural, architectural, plumbing, mechanical, and electrical installations or constructions shall be inspected by the Building Safety Director prior to covering any such work. Work performed under the Annual Facilities Permit that is exposed and not required to be tested while witnessed by the Building Safety Director, shall be subject to inspection by the Building Safety Director at regular intervals not exceeding six (6) months. (4242)

For all work requiring specific inspections by the Building Safety Director, the Qualified Facility shall make plans available for inspections on-site. A brief outline of all work done under the Annual Facilities Permit shall be prepared by the named agent and shall be made available to the Building Safety Director during periodic inspections. At a minimum, the provided information shall include the location, date, and scope of work. (4242)

The agent and Qualified Facility owner(s) are jointly responsible for assuring all work performed at the Qualified Facility complies with this Chapter and the technical Codes, whether or not the work is specifically inspected by the Building Safety Director. (4242)

(Ord. No. 5979, § 9, 12-8-25)

4-1-6: CERTIFICATES

(A) **Use and Occupancy.** No building or structure shall be used or occupied, and no change in the existing occupancy classification of a building or structure or portion thereof shall be made until the Building Safety Director has issued a Certificate of Occupancy or other form of authorization therefore as provided herein. Issuance of a certificate of occupancy shall not be construed as an approval of a violation of the provisions of this Chapter, the technical codes, or other ordinances of the jurisdiction. (4242)

(B) **Certificate of Occupancy.** After the Building Safety Director or designee inspects the building or structure and finds no violations of the provisions of this Chapter, the technical, or other laws that are enforced by the Building Safety Division, including, upon notification by the Tax Collector or other City official, compliance with Section 4-1-4(S), the payment of privilege and excise taxes levied pursuant to the provisions of Title 5, Chapter 10 of the Mesa City Code, and the payment of any other accounts owed to the City of Mesa, the Building Safety Director is authorized to issue a Certificate of Occupancy that contains the following: (4242, 4579)

1. The building permit number. (4242)
2. The address of the structure. (4242)
3. The name and address of the owner. (4242)

4. A description of the portion of the structure for which the certificate is issued. (4242)

5. A statement that the described portion of the structure has been inspected for compliance with the requirements of this Chapter and the technical codes for the occupancy and division of occupancy and the use for which the proposed occupancy is classified. (4242)

6. The name and signature of the Building Safety Director or designee. (4242)

7. The edition of the code under which the permit was issued. (4242)

8. The occupancy, in accordance with the provisions of Title 4, Chapter 2. (4242)

9. The type of construction as defined in Title 4, Chapter 2. (4242)

10. The design occupant load. (4242)

11. If an automatic sprinkler system is provided, whether the sprinkler system is required. (4242)

12. Any special stipulations and conditions of the building permit. (4242)

EXCEPTION: Group R-3, R-5 and Group U occupancies, unless specifically requested by the permit holder. For such occupancies, occupancy and use is authorized upon the satisfactory completion of the final building inspection. (4242, 4579)

An original of the Certificate of Occupancy shall be provided to the permit holder at no added charge. Additional duplicate copies shall be provided for a fee as established in the latest Schedule of Fees and Charges. The Building Safety Director may require an inspection of an existing building prior to issuing a duplicate certificate of occupancy for any building more than one year after the issuance of the original certificate of occupancy. (4493, 4579, 4807)

A Certificate of Occupancy shall be provided for a partial occupancy approval by the Building Safety Director when requested by the permit holder. Such certificate shall clearly identify the portion or portions of the building that are approved for final occupancy. There shall be no premium fee for a partial Certificate of Occupancy for the occupancy of a tenant space in a shell building issued at the completion of the tenant completion permit. (4493)

(C) **Certificate of Completion.** After the Building Safety Director or designee inspects the building, structure, electrical, fire protection, plumbing, mechanical, gas, or similar system or structure that cannot be occupied, and finds no violations of the provisions of this Chapter, the technical codes, or other laws that are enforced by the Building Safety Division, including, upon notification by the Tax Collector or other City official, compliance with Section 4-1-4(S), the payment of privilege and excise taxes levied pursuant to the provisions of Title 5, Chapter 10 of the Mesa City Code, and the payment of any other accounts owed to the City of Mesa, the Building Safety Director is authorized to issue a Certificate of Completion. Such Certificate of Completion certifies that the work to be performed under the permit has been satisfactorily completed. The Certificate of Completion does not authorize the occupancy of an incomplete shell, building or structure. The Certificate of Completion shall contain the following: (4242, 4579)

1. The building permit number. (4242)

2. The address of the structure. (4242)

3. The name and address of the owner. (4242)

4. A description of the permitted work for which the certificate is issued. (4242)

5. A statement that the permitted work has been inspected for compliance with the requirements of this Chapter and the technical codes. (4242)

6. The name and signature of the Building Safety Director or designee. (4242)

7. The edition of the code under which the permit was issued. (4242)

8. Any special stipulations and conditions of the permit. (4242)

(D) Temporary Certificate of Occupancy. The Building Safety Director is authorized to issue a Temporary Certificate of Occupancy before the completion of the entire work covered by the permit, provided that such portion or portions shall be occupied safely. The Building Safety Director shall set the time period during which the Temporary Certificate of Occupancy is valid and the conditions, if any, for such temporary occupancy. Any use of a partially constructed building or structure, except for construction purposes, shall constitute occupancy that requires prior approval of the Building Safety Director. Each such subsequent use shall require separate approvals. (4242, 4493)

(E) Revocation. The Building Safety Director is authorized to suspend or revoke, in writing, a Certificate of Occupancy, Certificate of Completion, or Temporary Certificate of Occupancy issued under the provisions of this Chapter wherever such certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this Chapter or the technical codes. (4242)

4-1-7: UNSAFE STRUCTURES AND EQUIPMENT

(A) Conditions. Structures or existing equipment that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress facilities, inadequate light and ventilation, or that constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. A vacant or abandoned structure that is not secured against entry shall be deemed an unsafe condition. Unsafe conditions and structures shall be taken down and removed or made safe, as the Building Safety Director deems necessary and as provided in this Chapter. (4242, 4579)

For the purpose of this Chapter, a building or structure having any or all of the conditions or defects hereinafter described shall be deemed to be an unsafe building, provided such conditions or defects exist to the extent the life, health, property, or safety of the public or its occupants are endangered: (4242)

1. Whenever any door, aisle, passageway, stairway, or other means of exit is not of sufficient width or size or is arranged so as to not provide safe and adequate means of exit in case of fire or panic. (4242)

2. Whenever the walking surface of any aisle, passageway, stairway, or other means of exit is so warped, worn, loose, torn, or otherwise unsafe as to not provide safe and adequate means of exit in case of fire or panic. (4242)

3. Whenever the stress in any materials, member, or portion thereof, due to all dead and live loads, is more than one and one-half (1½) times the working stress or stresses allowed in Title 4, Chapter 2 or 3, as appropriate, for new buildings of similar structure, purpose, or location. (4242)

4. Whenever any portion thereof has been damaged by fire, earthquake, wind, flood, or by any other cause to such an extent the structural strength or stability thereof is materially less than it was before such catastrophe and is less than the minimum requirements of Title 4, Chapter 2 or 3, as appropriate, for new buildings of similar structure, purpose, or location. (4242)

5. Whenever any portion or member or appurtenance thereof is likely to fail, or to become detached or dislodged, or to collapse and thereby injure persons or damage properties. (4242)

6. Whenever any portion of a building, or any member, appurtenance, or ornamentation on the exterior thereof is not of sufficient strength or stability, or is not so anchored, attached, or fastened in place so as to be capable of resisting a wind pressure of one-half (½) of that specified in Title 4, Chapter 2 or 3, as appropriate, for new buildings of similar structure, purpose, or location without exceeding the working stresses permitted in Title 4, Chapter 2 or 3, as appropriate, for such buildings. (4242)

7. Whenever any portion thereof has wracked, warped, buckled, or settled to such an extent that walls or other structural portions have materially less resistance to winds or earthquakes than is required in the case of similar new construction. (4242)

8. Whenever the building or structure, or any portion thereof, because of: (4242)

   (a) Dilapidation, deterioration, or decay; (4242)

   (b) Faulty construction; (4242)

   (c) The removal, movement, or instability of any portion of the ground necessary for the purpose of supporting such building; (4242)

   (d) The deterioration, decay, or inadequacy of its foundation; or (4242)

   (e) Any other cause, (4242)

   Is likely to partially or completely collapse. (4242)

9. Whenever, for any reason, the building or structure, or any portion thereof, is manifestly unsafe for the purpose for which it is being used. (4242)

10. Whenever the exterior walls or other vertical structural members list, lean, or buckle to such an extent that a plumb line passed through the center of gravity does not fall inside the middle one-third (⅓) of the base. (4242)

11. Whenever the building or structure, exclusive of the foundation, shows thirty-three percent (33%) or more damage or deterioration of its supporting member or members, or fifty percent (50%) damage or deterioration of its nonsupporting members, enclosing, or outside walls or coverings. (4242)

12. Whenever the building or structure has been so damaged by fire, wind, earthquake, or flood, or has become so dilapidated or deteriorated as to become: (4242)

   (a) An attractive nuisance to children; (4242)

   (b) A harbor for vagrants, criminals, or immoral persons; or as to (4242)

   (c) Enable persons to resort thereto for the purpose of committing unlawful or immoral acts. (4242)

13. Whenever any building or structure has been constructed, exists, or is maintained in violation of any specific requirements or prohibition applicable to such building or structure provided by the building regulations of this jurisdiction, as specified in Title 4, Chapter 2 or 3, as appropriate, or of any law or ordinance of this state or jurisdiction relating to the condition, location, or structure of buildings. (4242)

14. Whenever any building or structure, whether or not erected in accordance with all applicable laws and ordinances, has in any nonsupporting part, member, or portion less than fifty percent (50%), or in any supporting part, member, or portion less than sixty-six percent (66%) of the: (4242)

    (a) Strength, (4242)

    (b) Fire-resisting qualities or characteristics, or (4242)

    (c) Weather-resisting qualities or characteristics required by law in the case of a newly constructed building of the like area, height, and occupancy in the same location. (4242)

15. Whenever a building or structure, used or intended to be used for dwelling purposes, because of inadequate maintenance, dilapidation, decay, damage, faulty construction or arrangement, inadequate light, air, or sanitation facilities, or otherwise, is determined by the health officer to be unsanitary, unfit for human habitation, or in such a condition that is likely to cause sickness or disease. (4242)

16. Whenever any building or structure, because of obsolescence, dilapidated condition, deterioration, damage, inadequate exits, lack of sufficient fire-resistive construction, faulty electric wiring, gas connection or heating apparatus, or other cause, is determined by the fire marshal to be a fire hazard. (4242)

17. Whenever any building or structure is in such a condition as to constitute a public nuisance known to the common law or in equity jurisprudence. (4242)

18. Whenever any portion of a building or structure remains on a site after the demolition or destruction of the building or structure or whenever any building or structure is abandoned for a period in excess of six (6) months so as to constitute such building or portion thereof an attractive nuisance or hazard to the public. (4242)

(B) Notice. If an unsafe condition, as described herein, is found, the Building Safety Director shall serve on the owner, agent, or person in control of the structure, a written notice describing the condition deemed unsafe and specifying the required repairs or improvements to be made to abate the unsafe condition, or requiring the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare as soon as possible but not later than seven (7) business days to the Building Safety Director the acceptance or rejection of the terms of the order. (4242)

(C) Method of Service. Such notice shall be deemed properly served if a copy thereof is: (4242)

1. Delivered to the owner or agent personally, (4242)

2. Sent by certified or registered mail addressed to the owner at the last known address with return receipt requested, or (4242)

3. Served in any manner permitted by state statute or by the Arizona Rules of Civil Procedure for service of process. (4242, 4579)

Service shall first be attempted through personal service. If the City is unable to personally serve the notice, other methods of service may be utilized and the notice shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner. (4242, 4579)

(D) Procedures. The Building Safety Director shall establish the necessary procedures to be utilized in the enforcement of this Section. Such procedures shall be consistent with the requirements of this Section and, if necessary, shall be enacted by resolution of the Mesa City Council. (4242)

(E) Hazard Marking System. The Building Safety Director, with the approval of the Fire Chief, is authorized to establish a hazard identification marking system to provide firefighters responding to a fire or other emergency with a visual identification marking that the property is vacant, abandoned, or contains hazards to firefighters. (4579)

(F) Restoration. The structure or equipment determined to be unsafe shall be permitted to be restored to a safe condition. To the extent repairs, alterations, or additions are made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of this Chapter and the technical codes, or the structure shall be demolished and the site cleaned. (4242, 4579)

(G) Emergency Repairs. In the event the property owner fails to take needed corrective action in the manner and time as acceptable to the Building Safety Director, the Building Safety Director is authorized to employ the necessary labor and materials to perform the required work as expeditiously as possible. Costs incurred in the performance of the emergency work shall be paid by the City of Mesa and the City may file an action to recover all fees and costs related to the emergency repairs. (4242, 4579)

(H) Demolition. The Building Safety Director shall order the owner of any premises upon which is located any structure that in the Building Safety Director's judgment is so old, dilapidated, or has become so out of repair as to be dangerous, unsafe, unsanitary, or otherwise unfit for human habitation or occupancy, and such that it is unreasonable to repair the structure, to demolish and remove such structure; or if such structure is capable of being made safe by repairs, to repair and make safe and sanitary or to demolish and remove at the owner's option; or where there has been a cessation of normal construction of any structure for a period of more than two (2) years, to demolish and remove such structure. (4242, 4579)

If the owner of a premises fails to comply with a demolition order within the time prescribed, the Building Safety Director shall cause the structure to be demolished and removed, either through an available public agency or by contract or arrangement with private persons, and the cost of such demolition and removal shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate. (4242)

(I) Record. The Building Safety Director shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition. (4242, 4579)

4-1-8: FEES

(A) Purpose. The purpose of the permit fees for the construction of buildings and structures in the City of Mesa is to ensure that the costs for providing enforcement and administration services are borne entirely by the construction activity prompting the need for such services. (4493)

(B) Schedule of Fees and Charges. The fee for each permit and other services provided by the Building Safety Division and other City departments and divisions shall be as set forth in the most recently adopted City schedule of fees and charges. Such fees shall be periodically reviewed and adjusted by the City Council to generate sufficient total revenue to offset the current estimated City costs for providing permit processing, plan review, field inspection, and other development related services, including necessary capital expenditures. The effective date for revisions to the schedule of fees and charges shall be as stated in the resolution adopted by the City Council. (4493)

(C) Permit Fees. Where the development of land and construction of buildings, structures, systems or other improvements require a building permit from the City of Mesa, fees for each building permit shall be paid as required and in accordance with the Schedule of Fees and Charges established by the City. (4493,4579)

Exceptions: The following entities are exempt from paying permit fees:

1. Governmental entities that are, as a matter of law, immune from having to submit to permit fees. (4493)

2. Utility companies and other entities whose permit fees have been waived by agreement or resolution of the Mesa City Council. (4493)

A building permit shall not be issued nor considered valid until all applicable fees established by the City have been paid, nor shall an amendment to a permit be released until the additional fee(s), if any, has been paid. (4493)

(D) Permit Application Deposits. When permits are required, a deposit fee shall be paid at the time of initial submittal of plans and documents for review. The deposit fee shall be calculated on the construction valuation according to the latest Schedule of Fees and Charges. Permit application deposit fees are a part of the building permit fee and the civil engineering fee and shall be credited against the total permit fees at permit issuance. (4493,4579,4807)

Permit application deposit fees pay for the initial plan review and two (2) subsequent re-submittals for the same project made within the prescribed time limitations. If more than three (3) plan reviews are required, or if the permit application shall expire by time limitation, additional fees may be assessed as determined appropriate by the Building Safety Director. At the time of permit issuance, additional fees for any increase in evaluation shall be assessed as a condition of permit issuance. (4493)

Exceptions. The following project types are exempted from the payment of permit deposit fees:

1. Recreational vehicle and manufactured housing; including awnings, storage sheds, etc. (4493)

2. Residential swimming pools and spas. (4493)

3. Master plans for single family residences. (4493)

4. Master site plans for single family residences. (4493)

5. Residential additions and remodels less than $25,000 in total valuation. (4493)

6. Standalone residential plumbing, mechanical and electrical permits. (4493)

Only the advance payment of the deposit is waived for the exceptions listed above. The total permit fee shall be assessed and collected at permit issuance, including applicable expedited, phasing and other premium fees. (4493)

(E) Building Permits. Permits for new construction, both residential and commercial, shall be a single combined permit covering all construction trade work for the project, including plumbing, mechanical, electrical, fire protection, and applicable civil engineering. (4493)

(F) Building Permit Fee Calculations - new commercial permits. The calculation of the required building permit fees for new commercial construction projects shall be as follows:

1. Occupancy type and construction type are applied to the most recent ICC table to obtain the construction cost per sq. foot [from ICC table] multiplied by the building area [in square feet] equals construction valuation [in dollars]. (4493)

2. Construction valuation is then applied to the commercial rate schedule [as established in the schedule of fees and charges] to obtain the building permit fee. (4493)

(G) Occupancy and Construction Types. The specific occupancy type and construction type for the project shall be as established in the Mesa Building Code. (4493)

(H) Construction Cost. The cost of construction per square foot of building shall be determined by applying the project specific occupancy type and construction type to the current square foot construction costs table as published by International Code Council (ICC). (4493)

Exceptions:

1. Non-livable areas of one and two family dwelling units shall be valued using 50% of the tabular amount for the project specific occupancy type and construction type. (4493)

2. Covered canopies fabricated entirely of metal or membrane-covered shall be valued at 50% of the tabular amount for construction type V-B and utility occupancy. (4493,4807)

Regional modifiers shall not be utilized in the calculation of valuation. Updated publications of the square foot construction cost table by the ICC shall be effective on the first Saturday of the second month following the month of publication. (4493)

(I) Building Area. For fee calculation purposes, the building area in square feet shall be the total area of all floors under roof and enclosed within the outer surfaces of the exterior surrounding walls or columns. Building area includes membrane-covered or metal-covered or other roofed patios, roofed porches, bay windows, basements, mezzanines, penthouses and other mechanical spaces. Building area does not include roof eaves not exceeding 3 feet in horizontal projection, overhangs not exceeding 3 feet in horizontal projection, courts open at the top, vent shafts open at the top, unroofed patios, unroofed porches, and areas covered by perforated or slatted or trellis coverings. (4493, 4807)

Building areas for new residential projects shall be comprised of two components - livable areas and non-livable areas. Livable areas shall be those spaces that are the total area of all floors under roof and

enclosed within the outer surfaces of the exterior surrounding walls or columns, minus non-livable areas. Non-livable areas include, but are not limited to, garages, carports, roofed patios, roofed porches, mechanical spaces accessed from the exterior, and similar areas. (4493)

(J) Construction Valuation. The valuation of construction for building permit fee calculation purposes shall be the product of the building area in square feet multiplied by the construction cost per square foot. Valuations include all design and construction work, including materials, labor and overhead, for which the permit is being issued, such as finish work, painting, roofing, electrical, gas, mechanical, plumbing equipment, heating, air-conditioning, elevators, fire extinguishing systems, other permanent systems/ equipment, grading, landscaping, and other site related improvements. Construction valuation shall be rounded to the nearest whole dollar before calculating the building permit fee (i.e. 8.50 rounds up to 9; 8.49 rounds down to 8). The City Manager or designee is authorized to adjust the resultant valuation amount when deemed necessary for establishing an equitable permit fee. (4493)

(K) Rate Schedules. The City of Mesa shall adopt appropriate rate tables for residential and commercial projects. Refer to the latest Mesa schedule of fees and charges to obtain the required rate for calculating the building permit and civil engineering permit fees. (4493)

(L) Phased Projects. When the applicant determines that a building is to be constructed under multiple permits (phases) as described in Section 4-1-4(K)5, the Building Safety Director shall utilize the following for calculating the shell permit and tenant completion permit fees:

1. Shell permit fee [in dollars] equals 100% of the building permit fee [in dollars] as calculated in 4-1-8(F). (4493, 4807)

2. Tenant completion permit fee [in dollars] equals 100% of the building permit fee [in dollars] as calculated in 4-1-8(O). (4493, 4807)

   The occupancy type for shells, or portions thereof, that are not specifically identified by the owner at the time of permitting shall be deemed to be group M (Mercantile) occupancy for the computation of the building permit fee. Any adjustment in the building permit fee required by a change in the occupancy, a change in the valuation of the construction of the building, or in the scope of the project after the issuance of the shell permit shall be assessed and paid in conjunction with the issuance of the tenant completion permit. (4493, 4807)

(M) Building Permit Fee Calculations - new residential permits. The calculation of the building permit fees for new residential projects shall be the same as for new commercial projects, with the following exceptions:

Exceptions:

1. The construction cost per square foot for non-livable building areas shall be determined by multiplying the construction cost per square foot as determined from the ICC table by fifty percent (50%). (4493)

2. The sum of the calculated valuation for livable and non-livable areas shall be applied to the residential rate schedule to obtain the building permit fee. (4493)

   The calculation of the required building permit fees for new residential construction projects shall be as follows:

   1. Occupancy type and construction type are applied to the most recent ICC table to obtain the construction cost per sq. foot [from ICC table] (4493)

2. Construction cost per sq. foot [from ICC table] is multiplied by the livable building area [in square feet] to obtain the livable construction valuation [in dollars]. (4493)

3. Fifty percent of the construction cost per sq. foot [from ICC table] is multiplied by the non-livable building area [in square feet] to obtain the non-livable construction valuation [in dollars]. (4493)

4. Livable construction valuation is added to the non-livable construction valuation to obtain the total construction valuation. (4493)

5. Total construction valuation is then applied to the residential rate schedule [as established in the schedule of fees and charges] to obtain the building permit fee. (4493)

(N) Building Permit Fee Calculations - additions permits. The calculation of the building permit and civil engineering permit fee for an addition to an existing building shall be the same as described in this section for commercial and residential projects, as appropriate. (4493)

(O) Building Permit Fee Calculations - renovations/remodeling permits. The calculation of the building permit fee for the renovation or remodeling of an existing building shall be the same as described in this code for commercial and residential projects, as appropriate, except as follows:

Exceptions:

The applicant for a permit shall provide an estimated construction valuation amount at the time of the initial permit application. The submitted valuation shall include the estimated costs of all of the items listed in construction valuation in Section 4-1-8(J). The submitted valuation shall be reviewed by the Plans Examiner for reasonableness and adequacy. The Plans Examiner may use published construction cost estimating guides to assist in the acceptance or adjustment of the submitted valuation. The valuation as approved or modified by the Plans Examiner shall be applied to the appropriate rate schedule to determine the building permit fee. (4493)

(P) Building Permit Fee Calculations - standalone permits. The calculation of the building permit fee for plumbing, mechanical, electrical, and fire protection permits for work that does not also require a building permit (standalone), and for shell up-grade permits not resulting in occupiable spaces or buildings, shall be the same as described in this section for commercial and residential projects, as appropriate, except as follows:

Exceptions:

The applicant for a permit shall provide an estimated construction valuation amount at the time of the initial permit application. The submitted valuation shall include the estimated costs of all the items listed in the construction valuation in Section 4-1-8(J). The submitted valuation shall be reviewed by the Plans Examiner for reasonableness and adequacy. The Plans Examiner may use published construction cost estimating guides to assist in the acceptance or adjustment of the submitted valuation. The valuation as approved or modified by the Plans Examiner shall be applied to the appropriate rate schedule to determine the building permit fee. (4493)

(Q) Civil Engineering Fees. The fees for the civil engineering work related to new construction shall be based upon the number of sheets of drawings related to the civil engineering and landscaping work, for both on-site and off-site, needed to accurately and completely depict the work. The amount of the fee to be

applied to the number of sheets involved shall also be dependent upon the size of the sheets and the information depicted upon the sheets. Civil engineering fees for on-site work only or off-site work only or for other portions of a project shall also be based upon the number, information shown, and size of sheets of the drawings needed to depict the work. The applicant shall pay all of the civil engineering fees established in the latest Schedule of Fees and Charges, and the subordinate permits for various engineering and landscaping trades, if any, shall be issued without additional fees. (4493, 4579)

Number of civil engineering and landscaping sheets is multiplied by the civil engineering rate schedule [in dollars/sheet; as published in the Schedule of Fees and Charges] to obtain the civil engineering permit fee [in dollars]. (4493)

For civil engineering work not requiring drawings, the civil engineering fee shall be the minimum civil engineering fee as shown in the latest Schedule of Fees and Charges. (4493, 4579)

(R) Total Permit Fee. The total permit fee shall be the sum of the Civil engineering fee to the building permit fee, plus applicable expedited, phasing or other premium fees. (4493)

(S) Miscellaneous Engineering Fees. Permits for the following engineering related work shall be required in addition to the civil engineering portion of the total permit fees:

1. "Onsite" grading permit shall be obtained prior to beginning any grading on private property at a proposed development site within the boundaries of Mesa's "Desert Uplands" area where native plant preservation is required, or located in a Historic Preservation Overlay District, or on a site designated as a historic landmark, or located in a flood plain as designated by Maricopa County Flood Control, or any areas required to comply with federal regulations regarding storm water pollution prevention. (4493, 4807)

2. Subdivision "at risk" grading permit shall be obtained prior to beginning any grading work/ activities for a subdivision. This permit is intended to provide notice to the City and adjacent property owners of the start of grading operations. Approved plans are not required as a condition of permit issuance. (4493)

3. Right-of-way encroachment permit shall be obtained in accordance with Section 9-2 of the Mesa City Code for all requests for encroachments into the public right-of-way or easements. (4493)

(T) Unauthorized Construction Fee. Any person who commences work within a City of Mesa ROW, PUE, PUFE; or on a building, structure, electrical, gas, mechanical, fire protection, plumbing system or grubbing, grading or any other disturbance of the site before obtaining the necessary building permits shall be subject to an unauthorized construction fee as established in the schedule of fees and charges that shall be in addition to the required permit fees. An unauthorized construction fee shall be collected whether or not a permit is then or subsequently issued. The payment of an unauthorized construction fee shall not exempt an applicant from compliance with all other provisions of this chapter and the technical codes or the penalties prescribed by Section 4-1-9. (4493, 4807)

The Building Safety Director may reduce the unauthorized construction fee percentage in the case of a cooperative homeowner that acts to resolve the violation within 30 days after receiving notice of the violation. (4493)

(U) Reduction of Fees. Notwithstanding any other section of the Mesa City Code, the City Manager or designee may, in accordance with established procedures, waive or reduce fees that are set forth in the most recent schedule of fees and charges. In so doing, the City Manager or designee shall make such waiver or reduction of fees in writing, identifying the project, owner and location, stating the amount of fees affected and describing the circumstances warranting the departure from requiring the standard fees. (4493)

(V) Refunds. The Building Safety Director or designee may authorize, in accordance with established procedures, refunding of a fee, or portion thereof, paid hereunder that was erroneously assessed and/or collected. The Building Safety Director may authorize refunding of thirty-five percent (35%) of the total permit fee paid for a permit issued in accordance with this code when no work has been started on that permit. The Building Safety Director shall only authorize the refunding of a permit fee paid upon receipt of a written request filed by the payer of the permit fee within one-hundred-eighty (180) days after the date of the payment. (4493)

(W) Refunds for Failure to Meet Plan Review Turnaround Times. The Building Safety Director or designee may authorize, in accordance with established procedures, a permit fee refund or credit against the total permit charges due at the time of issuance of the permit in the event that the City's stated plan review turn-around time performance goals are not achieved for the initial and two (2) subsequent re-submittals for that specific project. Such fee refund or credit shall be calculated as a percentage of the total permit fee (not including impact fees) in accordance with the following:

Time in Excess of Stated Goals	*Refund/Credit*
1—5 working days	1.0%
6—10 working days	2.0%
11+ working days	3.0%

The failure to meet the City's stated turnaround time for any one of the technical areas on any permit submission shall cause the authorization of the fee refund/credit. In the case of multiple plan review submissions, the failure to meet the City's stated turnaround time for any one of the technical areas on any one of the plan review submissions shall cause the authorization of the fee refund/credit. In the event of multiple failures to meet the stated turnaround times on any project, only one refund or credit shall be authorized and such refund/credit shall be calculated on the total of all of the days in excess of the stated goals as applied to the above schedule. (4493)

The City Manager may suspend refunds for failures to meet stated turnaround times following the occurrence of a catastrophic event. (4579)

The Building Safety Director may authorize refunding or not charging the expedited premium when BSD fails to provide the requested service within the stated expedited timelines. (4493)

The Building Safety Director or designee shall not authorize a refund or credit when the actions or inactions of the permit applicant result in delays causing the City's failure to meet the City's stated plan review turnaround times. (4493)

(X) Adjustments. The Building Safety Director is authorized to make corrections, refunds or other adjustments to fee assessments or collections that were erroneously assessed or collected within twenty-four (24) months of the date of permit issuance. (4579, 4807)

Exception: The Building Safety Director may extend the adjustment time limit beyond twenty-four (24) months when warranted by the size or complexity of the project. (4579)

(Y) **Building Permit Fee Calculations - Permit-By-Inspection Projects.** The calculation of the building permit fee for a project under the permit-by-inspection (P-B-I) program shall be the same as described in this code for commercial and residential projects, as appropriate, except as follows:

1. The applicant for a permit shall provide an estimated construction valuation amount at the time of the initial permit application. The submitted valuation shall include the estimated costs of all of the items listed in construction valuation in Section 4-1-8(J). The submitted valuation shall be reviewed by the Building Inspector for reasonableness and adequacy. The Building Inspector may use published construction cost estimating guides to assist in the acceptance or adjustment of the submitted valuation. The valuation as approved or modified by the Building Inspector shall be applied to the appropriate rate schedule to determine the building permit fee. (4807)

2. P-B-I projects shall be subject to a premium fee in addition to the building permit fee, as established in the latest Schedule of Fees and Charges of the City. (4807)

Editor's note—Ord. No. 4493, amended § 4-1-8 in its entirety to read as herein set out. Former § 4-1-8 derived from 4242.

4-1-9: PENALTIES

(A) **Unlawful Acts.** It shall be unlawful: (4242, 5273)

1. For any owner, person, firm, or corporation to erect, construct, alter, extend, repair, move, remove, demolish, or operate, any building, structure, or equipment regulated by this Chapter, or cause same to be done, in conflict with or in violation of any of the provisions of this Chapter and the technical codes. (5273)

2. For any owner, person, firm, or corporation to occupy, or for any owner to allow occupancy or fail to prevent occupancy of, any building or structure regulated by this Chapter, or cause same to be done, in conflict with or in violation of any of the provisions of this Chapter and the technical codes. (5273)

3. For an owner, person, firm, or corporation to fail to comply with a lawful written notice of violation or order to discontinue and abate a violation of any of the provisions of this Chapter and the technical codes. (5273)

(B) **Notice of Violation.** The Building Safety Director is authorized to serve a notice of violation or order on the person responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition, or occupancy of a building or structure in violation of the provisions of this Chapter, the technical codes, or in violation of a permit or certificate issued under the provisions of this Chapter. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation. (4242)

(C) **Prosecution of Violation.** If the notice of violation is not complied with in the time frame specified in the notice, the City may institute the appropriate proceeding at law or in equity to restrain, correct, or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of the provisions of this Chapter or of the technical codes or of the order or direction made pursuant thereto. (4242)

(D) **Remedies Not Exclusive.** Violations of this Chapter or the technical codes are in addition to any other violation established by law, and this Chapter shall not be interpreted as limiting the penalties, actions, or abatement procedures that may be taken by the City or other persons under the laws, ordinances, or rules. (4242)

(E) **Penalty Clause.** Any owner, person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be guilty of a class one misdemeanor and upon conviction shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment, and each day of violation continued shall be a separate offense, punishable as described above. (4242, 5273)

CHAPTER 2

MESA BUILDING CODE*

4-2-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12450, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-2-1:

2024 International Building Code and the following appendices to the 2024 International Building Code:

Appendix C - Group U - Agricultural Buildings

Appendix E - Supplemental Accessibility Requirements

Appendix I - Patio Covers

Appendix J - Grading

(Ord. No. 5980, § 1, 12-8-25)

4-2-2: AMENDMENTS TO THE 2024 INTERNATIONAL BUILDING CODE

The following sections of the 2024 International Building Code, adopted by reference as set forth in Section 4-2-1, are amended as follows:

CHAPTER 1 SCOPE AND ADMINISTRATION

101.1 Title. These regulations shall be known as the Mesa Building Code, hereinafter referred to as "this code."

***Editor's note—**Ord. No. 5980, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 2, §§ 4-2-1—4-2-3, and enacted a new Ch. 2 as set out herein. The former Ch. 2 pertained to similar subject matter and derived from Ord. Nos. 4243, 4635, 4790, 5482; Ord. No. 5686, §§ 1, 2, 3-21-22.

A new Section 101.1.1 International Code References is added as follows:

101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 116.5 are deleted in their entirety. Any reference to Sections 101.4 through 116.5 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 2 DEFINITIONS

A new Section 202 Definitions is added as follows:

EXISTING BUILDING. A building erected prior to the date of adoption of the appropriate code, or one for which Certificate of Occupancy has been issued for at least one year.

EXISTING STRUCTURE. A structure erected prior to the date of adoption of the appropriate code, or one for which a legal structure permit has been closed for at least one year.

CHAPTER 3 OCCUPANCY CLASSIFICATION AND USE

308.5.4 Ten or Fewer Persons Receiving Care in a Dwelling Unit. A facility such as the above within a dwelling unit and having 10 or fewer persons receiving custodial care shall be classified as a Group R-3 or R-5 occupancy as applicable.

310.1 Residential Group R. Residential Group R includes, among others, the use of a building or structure, or a portion thereof, for sleeping purposes when not classified as an Institutional Group I.

310.4 Residential Group R-3. Residential Group R-3 occupancies where the occupants are primarily permanent in nature and not classified as R-1, R-2, R-4, R-5 or I, including:

Buildings that do not contain more than 2 dwelling units

Care facilities that provide accommodations for five or fewer persons receiving care

Congregate living facilities (nontransient) with 16 or fewer occupants

Boarding houses (nontransient)

Convents

Dormitories

Emergency services living quarters

Fraternities and sororities

Monasteries

Congregate living facilities (transient) with 10 or fewer occupants

Boarding houses (transient)

Lodging houses (transient) with five or fewer guest rooms and 10 or fewer occupants

Hotels (nontransient) with five or fewer guest rooms

Motels (nontransient) with five or fewer guest rooms.

310.4.1. Care Facilities Within a Dwelling. Care facilities for five or fewer persons incapable of self-preservation receiving care that are within a single-family dwelling are permitting to comply with the International Residential Code and provide fire sprinklers in accordance with Section 903.3.1.3.

310.5 Residential Group R-4. Residential Group R-4 occupancies shall include buildings, structures or portions thereof for more than five but not more than 16 persons, excluding staff, who reside on a 24-hour basis in a supervised residential environment and receive custodial care. Building of Group R-4 shall be classified as one of the occupancy conditions indicated below. This group shall include, but not be limited to, the following:

Alcohol and drug centers

Assisted living facilities

Congregate care facilities

Group homes

Halfway houses

Residential board and care facilities

Social rehabilitation facilities

Group R-4 occupancies shall meet the requirements for construction as defined for Group R-3 or R-5, except as otherwise provided for in this code.

A new Section 310.6 Residential Group R-5 is added as follows:

310.6 Residential Group R-5. Residential Group R-5 occupancies where the occupants are primarily permanent as detached one- and two-family dwellings and multiple single-family dwellings (townhouses) and their accessory structures conforming with the Mesa Residential Code. R-5 occupancies may include:

Buildings that do not contain more than 2 dwelling units

Care facilities that provide accommodations for five or fewer persons receiving care

Congregate living facilities (nontransient) with 16 or fewer occupants

Boarding houses (nontransient)

Convents

Dormitories

Emergency services living quarters

Fraternities and sororities

Monasteries

Congregate living facilities (transient) with 10 or fewer occupants

Boarding houses (transient)

Lodging houses (transient) with five or fewer guest rooms and 10 or fewer occupants

Hotels (nontransient) with five or fewer guest rooms

Motels (nontransient) with five or fewer guest rooms.

310.6.1. Care Facilities Within a Dwelling. Care facilities for five or fewer persons incapable of self-preservation receiving care that are within a single-family dwelling are permitting to comply with the International Residential Code and provide fire sprinklers in accordance with Section 903.3.1.3.

A new Section 310.7 Security Standard is added as follows:

310.7 Security Standard.

310.7.1. Requirement. All main or front-entry doors of all dwelling units shall be arranged so that the occupant has a view of the area immediately outside the door without opening the door. Such view may be provided by a door viewer having a field of view of not less than one hundred eighty (180) degrees or through windows.

CHAPTER 4 SPECIAL DETAILED REQUIREMENTS BASED ON OCCUPANCY AND USE

402.5 Automatic Sprinkler System. Covered and open mall buildings and buildings connected shall be equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1, which shall comply with all of the following:

1. The automatic sprinkler system shall be complete and operative throughout occupied space in the mall building prior to occupancy of any of the tenant spaces. Unoccupied tenant spaces shall be similarly protected unless provided with approved alternative protection.
2. Sprinkler protection for the mall of a covered mall building shall be independent from that provided for tenant spaces or anchor buildings.
3. Sprinkler protection for the tenant spaces of an open mall building shall be independent from that provided for anchor buildings.
4. Sprinkler protection shall be provided beneath exterior circulation balconies located adjacent to an open mall.
5. Where tenant spaces are supplied by the same system, they shall be independently controlled.

404.3 Automatic Sprinkler Protection. An approved automatic sprinkler system shall be installed throughout the entire building.

Exceptions:

Where the ceiling of the atrium is more than 55 feet (16,764 mm) above the floor, sprinkler protection at the ceiling of the atrium is not required.

410.6 Automatic Sprinkler System. Stages shall be equipped with an automatic sprinkler system in accordance with Section 903.3.1.1. Sprinklers shall be installed under the roof and gridiron and under all catwalks and galleries over the stage. Sprinklers shall be installed in dressing rooms, performer lounges, shops and storerooms accessory to such stages.

Exceptions:

1. Sprinklers are not required under stage areas less than 4 feet (1,219 mm) in clear height that are utilized exclusively for storage of tables and chairs, provided that the concealed space is separated from the adjacent spaces by Type X gypsum board not less than ⅝-inch (15.9 mm) in thickness.
2. Sprinklers are not required within portable orchestra enclosures on stages.
3. Sprinklers are not required under catwalks and galleries where they are permitted to be omitted in accordance with Section 903.3.1.1.

420.4 Automatic Sprinkler System. Other than where preempted by Arizona State Law, Group I-1 and R occupancies shall be equipped throughout with an automatic sprinkler system in accordance with Section 903.2.1. Quick-response or residential automatic sprinklers shall be installed in accordance with Section 903.3.2. One- and two-family dwells shall be installed in accordance with Section 903.3.1.3.

CHAPTER 7 FIRE AND SMOKE PROTECTION FEATURES

708.3 Fire-resistance Rating. Fire partitions shall have a fire-resistance rating of not less than 1 hour except when required by Section 420.2 in a building that does not have an automatic sprinkler system the fire-resistance rating shall not be less than 2 hours.

Exceptions:

1. Corridor walls permitted to have a ½-hour fire-resistance rating by Table 1020.2.
2. Dwelling unit and sleeping unit separations in buildings of Types IIB, IIIB and VB construction shall have fire-resistance ratings of not less than ½ hour in buildings equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1.

CHAPTER 9 FIRE PROTECTION AND LIFE SYSTEMS

901.4.7.1 Access. Automatic sprinkler system risers, fire pumps and controllers shall be provided with ready access. Where located in a fire pump room or automatic sprinkler system riser room, an exterior door shall be provided, and permitted to be locked provided that the key is available at all times.

A new Section 901.6.1.1 Contractor Qualification is added as follows:

901.6.1.1 Contractor Qualification. The fire code official shall validate contractor qualification and training at least once every 3 years.

Sections 903.2 through 903.2.11.1.3 are deleted in their entirety.

A new Section 903.2 Where Required is added as follows:

903.2 Where Required. Approved automatic sprinkler systems shall be provided in the locations described in this Section.

903.2.1 New Buildings or Structures. All areas of new buildings or structures, and other locations required by this Chapter or the Mesa Fire Code, shall be provided with an automatic fire sprinkler system complying with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3 as applicable.

Exceptions:

Unless the use of the facility otherwise requires automatic fire sprinkler protection, fire sprinkler systems shall not be required for the following:

1. R-3 and R-5 other than care facilities with persons incapable of self-preservation in accordance Section 203.9.3.1.
2. R-4 condition 1.
3. Other buildings or structures accessory to and located on the same lot with R-3, R-4, or R-5 occupancies.
4. Detached non-residential buildings not exceeding 500 square feet (46.5 m^2) in floor area and not closer than 5 feet (1,524 mm) to any building or property line.
5. Detached gazebos, ramadas, and canopies not greater than 5,000 square feet (465 m^2) in roof area, with no combustible storage, portable heating devices, or cooking beneath, and not closer than 5 feet to any building, property line, or other shade canopy.
6. Detached non-combustible or NFPA 701 compliant gazebos, ramadas, and canopies not greater than 5,000 square feet (465 m^2) in roof area, with no combustible storage and not closer than 5 feet to any building, property line, or other shade canopies.
7. Detached restroom facilities associated with golf courses, parks and similar uses.
8. Noncombustible portable storage containers used for storage purposes.
9. Exterior covered/enclosed walkways of Type I, II or III construction, with no combustible storage beneath, and with enclosing walls that are at least 50 percent open with fire code official approval.

903.2.2 Group H-5 Occupancies. An automatic sprinkler system shall be installed throughout buildings containing Group H-5 occupancies. The design of the sprinkler system shall not be less than that required under the Mesa Building Code for the occupancy hazard classifications in accordance with Table 903.2.2. Where the design area of the sprinkler system consists of a corridor protected by one row of sprinklers, the maximum number of sprinklers required to be calculated is 13.

TABLE 903.2.2 GROUP H-5 AUTOMATIC SPRINKLER SYSTEM DESIGN CRITERIA	
Location	**Occupancy Hazard Classification**
Fabrication areas	Ordinary Hazard Group 2
Service corridors	Ordinary Hazard Group 2

TABLE 903.2.2 GROUP H-5 AUTOMATIC SPRINKLER SYSTEM DESIGN CRITERIA	
Location	**Occupancy Hazard Classification**
Storage rooms without dispensing	Ordinary Hazard Group 2
Storage rooms with dispensing	Extra Hazard Group 2
Corridors	Ordinary Hazard Group 2

903.2.3 Change of Occupancy. Where conditions exceed Section 102.3, an existing building or portion thereof undergoing a change of occupancy shall provide an automatic sprinkler system complying with the requirements of this chapter and Mesa Existing Building Code.

Exception:

Where approved by the fire code official, a change of occupancy shall be permitted without complying with the requirements of this code and the International Mesa Existing Building Code, provided that the new or proposed use or occupancy is less hazardous, based on life and fire risk, than the existing use or occupancy.

903.2.4 Additions. All additions to existing buildings shall be provided with an automatic fire protection system throughout the existing building and addition compliant with Section 903.3 as applicable.

Exceptions:

1. Additions of 1,000 sq. ft. (93 m^2) or less to existing buildings without fire sprinklers. The aggregate of multiple additions shall not exceed 1,000 sq. ft. (93 m^2).
2. Additions to R-3, R-4 Condition 1 and R-5 occupancies, not including care facilities with persons incapable of self-preservation in accordance Section 203.9.3.1.

Section 903.2.11.3 is deleted in its entirety.

903.3.1.1.1 Exempt Locations. With fire code official approval, automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from any room merely because it is damp, of fire-resistance rated construction or contains electrical equipment.

1. A room or space where sprinklers constitute a serious life or fire hazard because of the nature of the contents.
2. Generator and transformer rooms separated from the remainder of the building by walls and floor/ceiling or roof/ceiling assemblies having a fire-resistance rating of not less than 2 hours.
3. Rooms or areas that are of noncombustible construction with wholly noncombustible contents.
4. Fire service access elevator machine rooms and machinery spaces.
5. Machine rooms, machinery spaces, control rooms and control spaces associated with occupant evacuation elevators designed in accordance with Section 3008 of the International Building Code.

A new Section 903.3.1.1.4 Minimum Design Requirement is added as follows:

903.3.1.1.4 Minimum Design Requirement. The minimum design requirement for fire sprinkler systems shall be as determined by the Mesa Fire Code or as defined in Section 903.3.1.1.4 whichever is greater.

903.3.1.1.4.1 Shell Buildings. The minimum fire sprinkler system design for shell buildings shall be Ordinary Group II as defined in Section 903.3.1.1.

903.3.1.1.4.2 Buildings with Roof Structure over 20 feet (6,096 mm). The minimum design requirements for Group H, F and S-1 buildings with the roof structure over 20 feet (6,096 mm) above the finished floor shall be Extra Hazard Group I as defined in Chapter 32 and Section 903.3.1.1.

903.3.1.2.3 Attics. Attic protection shall be provided as follows:

1. Attics that are used or intended for living purposes or storage shall be protected by an automatic sprinkler system.
2. Where fuel-fired equipment is installed in an unsprinklered attic, not fewer than one quick response intermediate temperature sprinkler shall be installed above the equipment.
3. Attics not required by Item 1 to have sprinklers shall comply with one of the following:
   - 3.1. Provide automatic sprinkler system protection.
   - 3.2. Construct the attic using noncombustible materials.
   - 3.3. Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.
   - 3.4. Fill the attic with noncombustible insulation.

     The height of the roof assembly shall be determined by measuring the distance from the lowest required fire vehicle access road surface adjacent to the building to the eave of the highest pitched roof, the intersection of the highest roof to the exterior wall, or the top of the highest parapet, whichever yields the greatest distance. For the purpose of this measurement, required fire vehicle access roads shall include only those roads that are necessary for compliance with Section 503.
4. Group R4, Condition 2 occupancy attics not required by Item 1 to have sprinklers shall comply with one of the following:
   - 4.1. Provide automatic sprinkler system protection.
   - 4.2. Provide a heat detection system throughout the attic that is arranged to activate the building fire alarm system.
   - 4.3. Construct the attic using noncombustible materials.
   - 4.4. Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.
   - 4.5. Fill the attic with noncombustible insulation.

A new Section 903.3.1.2.4 Required Fire Protection Systems is added as follows:

903.3.1.2.4 Required Fire Protection Systems. For the purpose of inspection, testing, or maintenance of fire protection systems in R-1 and R-2 occupancies, there shall be an exterior door for access to the fire sprinkler riser. The dimensions of the door be a minimum of 30 inches (762 mm) wide and in no case require service personnel to enter a private dwelling or garage to access the riser.

903.3.1.3 NFPA 13D Sprinkler Systems. Automatic sprinkler systems installed in one- and two-family dwellings; Group R-3, R-4, and R-5, and townhouses shall be permitted to be installed throughout in accordance with NFPA 13D.

903.3.5 Water Supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referenced in Section 903.3.1. The potable water supply shall be protected against backflow as required by Mesa Standard Details. For connections to public waterworks systems, the water supply test used for design of fire protection systems shall be adjusted to account for seasonal and daily pressure fluctuations based on information from the water supply authority and as approved by the fire code official.

A new Section 903.3.5.3 Detectible Underground Locator Device is added as follows:

903.3.5.3 Detectible Underground Locator Device. Underground nonmetallic water and irrigation system piping larger than 2 inches (50.8 mm) in diameter shall be installed with insulated copper tracer wire or other approved conductor located adjacent to the piping. Access shall be provided to the tracer wire or the tracer wire shall terminate above ground at each end of the nonmetallic piping. The tracer wire size shall not be not less than 12 AWG and the insulation type shall be suitable for direct burial.

903.3.6 Hose Threads. Fire hose threads and fittings used in connection with automatic sprinkler systems shall be National Standard Thread.

A new Section 903.3.7.1. Fire Department Connection Sizing is added as follows:

903.3.7.1. Fire Department Connection Sizing. The size of the fire department connection and piping is dependent on the automatic sprinkler design flow. The maximum design flow for a 2-½ inch Siamese connection is 500 GPM (1892.71 LPM). For design flows greater than 500 GPM (1892.71 LPM) not including hose stream demands, install a single 2-½ inch (63.5 mm) Siamese connection and 5-inch (127 mm) Storz connection.

A new Section 903.3.10 Safety Factor is added as follows:

903.3.10 Safety Factor. All fire sprinkler designs shall have a 10 percent (pressure) safety margin.

A new Section 903.3.11 Remodel is added as follows:

903.3.11 Remodel. Fire sprinkler design drawings shall not be required for tenant improvements, other than Group H, high-pile, or rack storage, when 15 or less sprinklers are relocated or added where approved by the fire code official.

A new Section 903.3.12 Freeze Protection is added as follows:

903.3.12 Freeze Protection. Exterior sprinkler piping with a minimum of 2 inches (50.8 mm) may be used in lieu of freeze protection required by Section 903.3.1.1.

903.4.1 Electronic Supervision. Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressures and waterflow switches on all sprinkler systems shall be electrically supervised by a listed fire alarm control unit.

Exceptions:

1. Automatic sprinkler systems protecting one- and two-family dwellings, other than R-3 with incapable of self-preservation and R-4 Condition 1.

2. Backflow prevention devices, serving limited area sprinkler system supply piping shall be locked in the open position.

3. Remotely located backflow prevention devices, including test valves, shall be locked in the open position where approved by the fire code official.

4. Groups R-1 and R-2 occupancies containing 15 or less dwelling or sleeping units and not exceeding an aggregate area of 12,000 square feet.

5. Jockey pump control valves that are sealed or locked in the open position.

6. Trim valves to pressure switches in dry, preaction and deluge sprinkler systems that are sealed or locked in the open position.

7. Underground key or hub gate values in roadway boxes.

A new Section 903.4.1.1 Backflow Preventors is added as follows:

903.4.1.1 Backflow Preventors. In occupancies required to be equipped with a fire alarm system, the backflow preventer valves shall be electrically supervised by a tamper switch installed in accordance with NFPA 72 and separately annunciated.

905.5 Location of Class II standpipe hose connections. Where required by the fire code official, Class II standpipe hose connections shall be located so that all portions of the building are within 30 feet (9,144 mm) of a nozzle attached to 100 feet (30,480 mm) of hose. Class II standpipe hose connections shall be located where they will have ready access.

905.6 Location of Class III standpipe hose connections. Class III standpipe systems shall have hose connections located as required for Class I standpipes in Section 905.4. Where required by the fire code official, shall have Class II hose connections as required in Section 905.5.

912.3 Fire Hose Threads. Fire hose threads used in connection with standpipe systems shall be National Standard Thread (NST).

912.6 Backflow Protection. The potable water supply to automatic sprinkler and standpipe systems shall be protected against backflow as required by the Mesa Standard Details.

CHAPTER 10 MEANS OF EGRESS

1020.2.1 Hoistway Protection. Elevator hoistway doors in elevators hoistway enclosures required to be fire-resistance rated shall be protected in accordance with Section 716. Elevator hoistway doors shall also be protected in accordance with Section 3006.3.

CHAPTER 11 ACCESSIBILITY

1101.1 Scope. The provisions of this chapter and Arizona Revised statutes, ARS sections 41-1492 through 41-1492.12 shall control the design and construction of facilities for accessibility for individuals with disabilities.

Exceptions:

1. This Chapter shall not apply to private clubs or establishments exempted from coverage under Title II of the Civil Rights Act of 1964 (42 United States Code Section 2000[a][e]).

2. This Chapter shall not apply to religious functional areas of religious facilities owned, operated, and maintained by religious organizations or entities controlled by religious organizations, including altar areas, baptismal fonts and areas, choir lofts, etc., but not including main assembly areas such as naves and sanctuaries.

A new Section 1101.2 Public Accommodations is added as follows:

1101.2 Public Accommodations. Where the requirements of this Chapter or the ICC/ANSI A117.1 are at variance from the requirements set forth in Title 41, Chapter 9, Article 8, Arizona Revised Statutes and its implementing rules, the State Statute and implementing rules shall govern.

A new Section 1101.3 Provisions for Children is added as follows:

1101.3 Provisions for Children. Facilities and areas of facilities intended primarily for occupancy by children aged 3 through 12 shall be permitted to be designed and constructed as an equivalent facilitation in accordance with ADA guidelines for accessible design for children as promulgated in the Federal Register, Vol. 63, No. 8, Tuesday, January 13, 1998. Such equivalent facilitation shall be permitted without requiring approval of a modification.

A new Section 1101.4 Copy of Laws and Standards is added as follows:

1101.4 Copy of Laws and Standards. A copy of all laws, rules, guidelines, and standards cited by this Chapter shall be available in the office of the City Clerk in order to allow persons an adequate opportunity to be informed of the applicable requirements.

1102.1 Design. Buildings and facilities shall be designed and constructed to be accessible in accordance with this code and ICC A117.1 and in accordance with provisions State of Arizona Attorney General Administrative Rules R10-3-401 through R10-3-404 (2010 ADA Standards for Accessible Design, referred to as "2010 Standards", adopted by the U.S. Department of Justice), whichever standard provides the greatest degree of accessibility.

1103.2.5 Construction Sites. Structures, sites and equipment directly associated with the actual processes of construction including, but not limited to, scaffolding, bridging, materials hoists, materials storage or construction trailers are not required to comply with this chapter. The public portions of temporary sales offices/trailers are required to be accessible. There shall be accessible parking and an accessible route from the accessible parking aisle to the sales office/trailer and throughout the public portion of the sales office/trailer, including the design center. Accessible toilet rooms shall be provided according to this code.

CHAPTER 16 STRUCTURAL DESIGN

1609.3 Basic Design Wind Speed. The basic design wind speed, V, in mph, for the determination of the wind loads shall be determined by Figures 1609.3(1) through (8) or by using the following wind speeds: Risk Category - 100 mph; Risk Category II - 105 mph; Risk Category III - 110 mph; Risk Category IV - 115 mph.

The basic design wind speed, V, for use in the design of Risk Category I buildings and structures shall be obtained from Figures 1609.3(4) and 1609.3(1) or 100 mph.

The basic design wind speed, V, for use in the design of Risk Category II buildings and structures shall be obtained from Figures 1609.3(1) and 1609.3(2) or 105 mph.

The basic design wind speed, V, for use in the design of Risk Category III building and structures shall be obtained from Figures 1609.3(2) and 1609.3(3) or 110 mph.

The basic design wind speed, V, for use in the design of Risk Category IV buildings and structures shall be obtained from Figures 1609.3(3) and 1609.3(4) or 115 mph.

The basic wind speed, V, for the special wind regions indicated near mountainous terrain and near gorges shall be in accordance with local jurisdiction requirements. The basic design wind speeds, V, determined by the local jurisdiction shall be in accordance with Chapter 26 of ASCE 7.

CHAPTER 17 SPECIAL INSPECTIONS AND TESTS

1704.6.1 Structural Observations for Structures. Structural observations shall be provided for those structures where one or more of the following conditions exist:

1. The structure is classified as Risk Category III or IV.
2. The structure is a high-rise building.
3. The structure is assigned to Seismic Design Category E, and is greater than two stories above grade plane.
4. Such observation is required by the registered design professional responsible for the structural design.
5. Such observation is specifically required by the building official.
6. The structure contains elevated post-tensioned concrete floors or roofs.
7. The building height is greater than 75 feet (22,860 mm).
8. The structure is greater than three stories above grade plane.

A new Section 1704.6.2 Statement of Observations added as follows:

1704.6.2 Statement of Observations. Where observations are required, the construction documents shall show a statement of observations. This statement shall identify the frequency and extent of observations. The frequency and extent shall be acceptable to the building official based on the complexity and scope of work on the permit.

A new Section 1704.6.3 Procedures is added as follows:

1704.6.3 Procedures. The registered design professional responsible for structural observation shall personally visit the site prior to completion of the Certificate of Compliance and periodically during the course of construction requiring structural observation as set forth in the inspection and observation program for each project.

The registered design professional responsible for performing structural observation shall complete a signed written report after each site visit. A copy of each report shall be kept on the job site for review by an inspector at all times until the inspector has issued final approval. Any and all deviations from the approved plans or specifications shall be immediately reported to the contractor for correction and then, if uncorrected, shall be reported to the registered design professional in responsible charge and to the building official.

In addition to individual reports, the registered design professional responsible for structural observation shall file with the building official a written monthly progress report indicating the dates of each site visit, the observations performed, any deviations noted from approved plans and specifications and any resulting instructions or change orders issued to the contractor.

A new Section 1704.6.3 Procedures is added as follows:

1704.6.4 Certificate of Compliance. Upon completion of the portions of the work requiring structural observation, a Certificate of Compliance shall be issued to the building official under the seal and signature of the registered design professional responsible for such observation. A Certificate of Occupancy will not be issued until the building official receives all required observation reports and the Certificate of Compliance.

The Certificate of Compliance for structural observation shall read as follows:

"I certify to the best of my knowledge the structural requirements of the Mesa Building Code and approved plans and specifications have been complied with insofar as the portion of the work requiring structural observation is concerned, except for those deviations that have been previously reported. A guarantee that the contractor has constructed the building in full accord with the plans and specifications is neither intended nor implied."

A new Section 1704.7 Electrical Observations is added as follows:

1704.7 Electrical Observations. The owner shall employ the registered design professional responsible for the electrical design, or another registered design professional who is familiar with the electrical design and is acceptable to the building official to perform visual observation of complex electrical equipment and systems for general conformance to the approved plans and specifications, including but not limited to, placement and interconnection of equipment. Electrical observation shall be performed at significant stages of the construction and when the installation is complete and ready to be inspected. Electrical observations are in addition to the inspections required by Section 110 and the special inspections required by Section 1705.22, and shall be provided when one of the following conditions exist:

1. Installation or alteration of that portion of health care facility electrical systems which falls within the scope of Article 517 of the National Electrical Code, including such systems installed in facilities where outpatient surgical procedures are performed.
2. Installations or alteration of electrical systems over 600v.
3. Installation or alteration of electrical systems within locations classified as hazardous by provisions of the National Electrical Code, except for gasoline dispensing installations and systems located within storage garages, repair garages or lubritoriums.
4. When such observation is required by the registered design professional responsible for the electrical design.
5. When such observation is specifically required by the building official.

1704.7.1 Statement of Observations. Where observations are required, the construction documents shall show a statement of observations. This statement shall identify the frequency and extent of observations. The frequency and extent shall be acceptable to the building official based on the complexity and scope of work on the permit.

1704.7.2 Procedures. The registered design professional responsible for electrical observation shall personally visit the site prior to completion of the Certificate of Compliance and periodically during the course of construction requiring electrical observation as set forth in the inspection and observation program for each project.

The registered design professional responsible for performing electrical observation shall complete a signed written report after each site visit. A copy of each report shall be kept on the job site for review by an inspector at

all times until the inspector has issued final approval. Any and all deviations from the approved plans or specifications shall be immediately reported to the contractor for correction and then, if uncorrected, shall be reported to the registered design professional in responsible charge and to the building official.

In addition to individual reports, the registered design professional responsible for electrical observation shall file with the building official a written monthly progress report indicating the dates of each site visit, the observations performed, any deviations noted from approved plans and specifications and any resulting instructions or change orders issued to the contractor.

1704.7.3 Certificate of Compliance. Upon completion of the portions of the work requiring electrical observation, a Certificate of Compliance shall be issued to the building official under the seal and signature of the registered design professional responsible for such observation. A Certificate of Occupancy will not be issued until the building official receives all required observation reports and the Certificates of Compliance.

The Certificate of Compliance for electrical observation shall read as follows:

> "I certify to the best of my knowledge the electrical requirements of the Mesa Building Code and approved plans and specifications have been complied with insofar as the portion of the work requiring electrical observation is concerned, except for those deviations that have been previously reported. A guarantee that the contractor has constructed the building in full accord with the plans and specifications is neither intended nor implied."

A new Section 1705.21 Plumbing Special Inspections is added as follows:

1705.21 Plumbing Special Inspections. The types of equipment or installations noted below shall be tested or inspected by a special inspector.

1. Medical Gas and Vacuum Systems.
2. Special cases - Work which, in the opinion of the building official, involves unusual hazards or conditions.

Exception:

The building official may waive the requirement for special inspection if the construction is of a minor nature.

A new Section 1705.22 Electrical Special Inspections is added as follows:

Section 1705.22 Electrical Special Inspections. The types of equipment or installations noted below shall be tested or inspected by a special inspector.

1. Ground-fault protection performance tests for equipment provided with ground-fault protection.
2. Switchboards, panelboards, motor control centers and other equipment rated at 1,000 amperes or more, or over 600 volts.
3. Transformers rated 100 KVA or more, single phase; or 300 KVA or more, three phase.
4. Conductors that supply equipment rated at 1,000 amperes or more, or over 600 volts.
5. Emergency and standby power systems, including switchboards, panelboards, distribution boards, transfer equipment, power source, conductors, fire pumps and exhaust and ventilation fans.

6. Selective Coordination - This includes verification of the installation in accordance with the required selective coordination study.

7. Special cases - Work which, in the opinion of the building official, involves unusual hazards or conditions.

Exception: The building official may waive the requirement for special inspection if the construction is of a minor nature.

CHAPTER 18 SOILS AND FOUNDATIONS

A new Section 1803.5.13 Post-tensioned Slabs on Ground is added as follows:

1803.5.13 Post-tensioned Slabs on Ground. A geotechnical investigation is required for the design of all post-tensioned slabs on ground. The investigation report shall include all soil parameters as outlined in PTI DC-10.5. Information required on the drawings include, but is not limited to, slab type, soil parameters, bearing value and depth, coefficient of subgrade friction, soil subgrade modulus, e_m and y_m for expansive soils and all special inspection requirements.

CHAPTER 19 CONCRETE

A new Section 1907.1.1 Post-tensioned Slabs on Ground is added as follows:

1907.1 Post-tensioned Slabs on Ground. All post-tensioned slabs on ground shall be permanently stamped, marked or otherwise identified in a conspicuous location indicating the slab is a post-tensioned slab. Conspicuous locations include, but are not limited to, entrance porches, slabs at garage doors or patio slabs.

CHAPTER 21 MASONRY

A new Section 2111.15 Fireplace Restrictions added as follows:

2111.15 Fireplace Restrictions. Refer to the Mesa Mechanical Code, Section 932 for additional restrictions on masonry and factory-built fireplaces.

CHAPTER 29 PLUMBING SYSTEMS

Table 2902.1 Minimum Number of Required Plumbing Fixtures

Footnote e. For businesses and mercantile classifications with an occupant load of 100 or fewer, a service sink shall not be required.

2902.2 Separate Facilities. Exception 2 amended as follows:

Exception 2. Separate toilet facilities shall not be required in structures or tenant spaces with a total occupant load, including both employees and customers, of 25 or fewer.

2902.6 Small Occupancies. Drinking fountains shall not be required for an occupant load of 50 or fewer.

CHAPTER 30 ELEVATORS AND CONVEYING SYSTEMS

3005.2 Temperature Control. Elevator machine rooms, machinery spaces that contain the driving machine, and control rooms or spaces that contain the operation or motion controller for elevator operation shall be provided

with an independent air-conditioning system to protect against the overheating of the electrical equipment. The system shall be capable of maintaining temperatures not greater than 90 degrees to ensure safe and normal operation of the elevator.

3006.2 Elevator Hoistway Door Protection Required. Elevator hoistway doors shall be protected in accordance with Section 3006.3 where an elevator hoistway connects more than three stories, is required to be enclosed within a shaft enclosure in accordance with Section 712.1.1 and any of the following conditions apply:

1. The building is not protected throughout with an automatic sprinkler system in accordance with Section 903.1.1 or 903.1.2.
2. The building contains a Group I-1, Condition 2 occupancy.
3. The building contains a Group I-2 occupancy.
4. The building contains a Group I-3 occupancy.
5. The building is a high rise and the elevator hoistway is more than 75 feet (22,860 mm) in height. The height of the hoistway shall be measured from the lowest floor to the highest floor of the floors served by the hoistway.

Exceptions:

1. Protection of elevator hoistway doors is not required where the elevator serves only open parking garages in accordance with Section 406.5.
2. Protection of elevator hoistway doors is not required at the levels of exit discharge, provided that the levels of exit discharge is equipped with an automatic sprinkler system in accordance with Section 903.1.1.
3. Protection of elevator hoistway doors is not required on levels where the elevator hoistway doors open to the exterior.

Section 3006.2.1 is deleted in its entirety.

3006.3 Rated Corridors. Where corridors are required to be fire-resistance rated in accordance with Section 1020.2, elevator hoistway openings that open into such corridors shall be protected in accordance with Section 3006.4.

3006.4 Elevator Hoistway Door Protection. Where Section 3006.2 requires protection of the elevator hoistway doors, the protection shall be provided by one of the following:

1. An enclosed elevator lobby shall be provided at each floor to separate the elevator hoistway doors from each floor with fire partitions in accordance with Section 708. In addition, doors protecting openings in the fire partitions shall comply with Section 716.2.2.1. Penetrations of the fire partitions by ducts and air transfer openings shall be protected as required for corridors in accordance with Section 717.5.4.1.
2. An enclosed elevator lobby shall be provided at each floor to separate the elevator hoistway doors from each floor by smoke partitions in accordance with Section 710. In addition, doors protecting

openings in the smoke partitions shall comply with Sections 710.5.2.2, 710.5.2.3 and 716.2.6.1. Penetrations of the smoke partitions by ducts and air transfer openings shall be protected as required for corridors in accordance with Section 717.5.4.1.

3. Additional doors or other devices shall be provided at each elevator hoistway door in accordance with Section 3002.6. Such doors or other devices shall comply with the smoke and draft control door assembly requirements in Section 716.2.2.1.1 when tested in accordance with UL 1784 without an artificial bottom seal.

4. The elevator hoistway shall be pressurized in accordance with Section 909.21.

5. A smoke-protective curtain assembly for hoistways shall be provided at each elevator hoistway door opening in accordance with Section 3002.6. Such curtain assemblies shall comply with the smoke and draft control requirements in Section 716.2.2.1.1 when tested in accordance with UL 1784 without an artificial bottom seal. Such curtain assemblies shall be equipped with a control unit listed to UL 864. Such curtain assemblies shall comply with Section 2.11.6.3 of ASME A17.1/CSA B44. Installation and maintenance shall be in accordance with NFPA 105.

3006.5 Means of Egress. Elevator lobbies shall be provided with not less than one means of egress complying with Chapter 10 and other provisions in this code. Egress through an enclosed elevator lobby shall be permitted in accordance with Item 1 of Section 1016.2. Electrically locked exit access doors providing egress from elevator lobbies shall be permitted in accordance with Section 1010.2.14.

CHAPTER 32 ENCROACHMENTS INTO THE PUBLIC RIGHT-OF-WAY

3201.1 Scope. The provisions of the City of Mesa Code, Title 9, Public Ways and Property shall govern encroachments into the public right-of-way.

Sections 3201.2 through 3202.4 are deleted in their entirety.

CHAPTER 35 REFERENCED STANDARDS

NFPA (National Fire Protection Association):

11 - 24	Low Medium- and High-Expansion Foam
13 - 25	Installation of Sprinkler Systems
13D - 25	Installation of Sprinkler Systems in One- and Two-Family Dwellings and Manufactured Homes
13R - 25	Installation of Sprinkler Systems in Residential Occupancies up to and Including Four Stories in Height
14 - 24	Installation of Standpipe, Private Hydrants and Hose Systems
20 - 25	Installation of Stationary Pumps for Fire Protection
72 - 25	National Fire Alarm Code
110 - 25	Emergency and Standby Power Systems
111 - 25	Standard on Storage Electrical Energy Emergency and Standby Power Systems
211 - 24	Chimneys, Fireplaces, Vents and Solid Fuel-Burning Appliances

(Ord. No. 5980, § 2, 12-8-25)

4-2-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (5482)
(Ord. No. 5980, § 3, 12-8-25)

CHAPTER 3
MESA RESIDENTIAL CODE*

4-3-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12451, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-3-1:

2024 International Residential Code and the following appendices to the 2024 International Residential Code:

Appendix BB - Tiny Houses

Appendix BF - Patio Covers

Appendix NE - Electric Vehicle Charging Infrastructure
(Ord. No. 5981, § 1, 12-8-25)

4-3-2: AMENDMENTS TO THE 2024 INTERNATIONAL RESIDENTIAL CODE

The following sections of the 2024 International Residential Code, adopted by reference as set forth in Section 4-3-1, are amended as follows:

CHAPTER 1 ADMINISTRATION

R101.1 Title. These regulations shall be known as the Mesa Residential Code, hereinafter referred to as "this code."

A new Section R101.1.1 Reference Changes is added as follows:

R101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)

***Editor's note—**Ord. No. 5981, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 3, §§ 4-3-1—4-3-3, and enacted a new Ch. 3 as set out herein. The former Ch. 3 pertained to similar subject matter and derived from Ord. Nos. 4244, 4636, 5483; Ord. No. 5686, §§ 1, 2, 3-21-22; Ord. No. 5890, § 1, 11-18-2024.

5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)

6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)

7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)

8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)

9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections R101.4 through R114.4 are deleted in their entirety. Any reference to R101.4 through R114.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 2 DEFINITIONS

R202 Definitions

FIRE SEPARATION DISTANCE. The shortest distance measured at a right angle from the face of the wall framing to one of the following:

1. To the closest interior lot line.

2. To the center line of a street, an alley or public way.

3. To an imaginary line between two buildings on the lot or townhouse units on the lot.

R-5 OCCUPANCIES. Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories above grade plane in height with separate means of egress and their accessory structures.

CHAPTER 3 BUILDING PLANNING

A new Section R301.1.6 Lot Corner Identification is added as follows:

R301.1.6 Lot Corner Identification. In construction applications where legally surveyed lot corner identification markers are not readily verifiable or are missing, the building official, when deemed necessary, shall require lot boundary markers to be surveyed and permanently identified in accordance with State law at the owner's or applicant's expense. The survey shall be executed by a registrant licensed to do such work by the Arizona State Board of Technical Registration.

TABLE R301.2 CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

Ground Snow Load	Wind Speed (mph) (e, k, i)	Seismic Design Category (g)	Subject to Damage From				Winter Design Temp (f)	Ice Shield Underlay-ment Required (h)	Flood Hazards (h)	Air Freezing Index (j)	Mean Annual Temp (k)
			Weathering (a)	Frost line depth (b)	Termite (c)	Decay (d)					
0	105	B	Negligible	0	Moderate to Heavy	None to Slight	+32°F	N/A	See Maricopa County	0	+71.2°F

Table R301.5 is partially amended as follows:

TABLE R301.5 MINIMUM UNIFORMLY DISTRIBUTED LIVE LOADS (in pounds per square foot)		
USE	UNIFORM LOAD (psf)	CONCENTRATED LOAD (lb)
Habitable attics and attics served with fixed stairs	40	-
Sleeping rooms	40	-

R306.1 General. Buildings, structures, appliances, equipment and system installations located in flood hazard areas shall comply with all Maricopa County Planning and Development Department regulations. No reference to flood hazard requirements in this chapter, or the technical codes, shall be construed as allowing installations in violation of Maricopa County Planning and Development Department regulations. Where conflicts exist between the requirements of this chapter and the Maricopa County Planning and Development Department regulations, the Maricopa County Planning and Development regulations shall govern.

R309.1 Townhouse Automatic Sprinkler Systems. Other than where preempted by Arizona State Law, an automatic sprinkler system shall be installed in townhouses.

Exception:

An automatic sprinkler system shall not be required where additions or alterations are made to existing townhouses that do not have an automatic sprinkler system installed when not required in accordance with the Mesa Fire Code.

R309.2 is deleted in its entirety.

R310.6 Power Source. Smoke alarms shall receive their primary power from the building wiring where such wiring is served from a commercial power source and, where primary power is interrupted, shall receive power from a battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection.

Exceptions:

1. Smoke alarms shall be permitted to be battery operated where installed in buildings without commercial power.

2. Smoke alarms installed in accordance with Section R310.2.2 shall be permitted to be battery powered where alteration or repairs do not result in the removal of interior wall or ceiling finishes unless there is an attic or crawl space or basement available which could provide access for hardwiring of smoke alarms.

R311.6 Power Source. Carbon monoxide alarms shall receive their primary power from the building wiring where such wiring is served from a commercial power source and, where primary power is interrupted, shall receive power from a battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection.

Exceptions:

1. Carbon monoxide alarms shall be permitted to be battery operated where installed in buildings without commercial power.

2. Carbon monoxide alarms installed in accordance with Section R311.2.2 shall be permitted to be battery powered where alteration or repairs do not result in the removal of interior wall or ceiling finishes unless there is an attic or crawl space or basement available which could provide access for hardwiring of smoke alarms.

A new Section R322.4 No-Step Entrance is added as follows:

R322.4 No-Step Entrance. At least one model home dwelling unit in every model home complex, as defined in the City of Mesa Zoning Ordinance, shall have a no-step entrance to serve as a demonstration of the builder's method of providing a no-step entry as an option for new home construction. Model dwellings selected to demonstrate this option, and all dwelling units providing this option, shall be served by a route of travel meeting the following requirements:

1. A continuous no-step path connecting each subdivision sales office or public way to an entrance of the unit.
2. A route of travel that consists of a firm stable, and slip-resistant surface with a minimum continuous width of 36 inches and a minimum clear height of 7 feet above the route.
3. The running slope of such route shall not exceed one to twelve (1:12).
4. A minimum 48 inches by 48 inches maneuvering space on the exterior side of the door constructed with less than 2 slope in any direction.
5. A minimum 32-inch clear-opening door with a threshold not exceeding ½-inch.
6. Identification by readily viewable signage.

A new Section R322.5 Model Home Sales Office Restrooms is added as follows:

R322.5 Model Home Sales Office Restrooms. If public restrooms are provided for residential development models, such restroom facilities shall be accessible and shall be provided by either of the following methods:

1. Converting one ground-floor model home restroom into an ADA-accessible unisex facility; or
2. Providing one ADA-accessible unisex portable toilet and hand-washing unit located on an accessible route. The accessible portable toilet facility shall be removed when the Sales Office is permanently closed.

A new Section R333 Security Standard is added as follows:

R333 Security Standard.

R333.1 Requirement. All main or front-entry doors of all dwelling units shall be arranged so that the occupant has a view of the area immediately outside the door without opening the door. Such view may be provided by a door viewer having a field of view of not less than 180 degrees or through windows.

A new Section R334 Fire Department Access and Water Supply is added as follows:

R334 Fire Department Access and Water Supply.

R334.1 General. Buildings and structures shall have fire department access in accordance with the Mesa Fire Code Section 503 and fire protection water supply in accordance with the Mesa Fire Code Section 507.

CHAPTER 4 FOUNDATIONS

Table R401.4.1(1) is partially amended to read as follows:

In lieu of a complete geotechnical evaluation, the presumptive load-bearing values in Table R401.4.1(1) and the soil classifications in Table R401.4.1(2) shall be assumed.

Table R401.4.1(1) PRESUMPTIVE LOAD-BEARING VALUES OF FOUNDATION MATERIALS[a]

CLASS OF MATERIAL	LOAD-BEARING PRESSURE (POUNDS PER SQUARE FOOT)
Sand, silty sand, clayey sand, silty gravel and clayey gravel (SW, SP, SM, SC, GM and GC)	1,500[b]

* For SI: 1 pound per square foot = 0.0479 kPa

R403.1 General. All exterior walls shall be supported on continuous solid or fully grouted masonry or concrete footings, crushed stone footings, wood foundations, or other approved structural systems which shall be of sufficient design to accommodate all loads according to Section R301 and to transmit the resulting loads to the soil within the limitations as determined from the character of the soil. Footings shall be supported on undisturbed natural soils or engineered fill. Concrete footings shall be designed and constructed in accordance with the provisions of Section R403 or in accordance with ACI 332.

Exception:

Existing patio and carports, 400 square feet or less, that are enclosed and occupied as livable and/or non-livable areas are not required to provide a continuous exterior footing when the existing load bearing post and beam construction remains in place.

R403.1.4 Minimum Depth. Exterior footings shall be placed not less than 18 inches (457 mm) below the undisturbed ground surface. Where applicable, the depth of footings shall also conform to Section R403.1.4.1. Deck footings shall be in accordance with Section R507.3.

CHAPTER 10 CHIMNEYS AND FIREPLACES

A new Section R1001.14 Fireplace Restrictions is added as follows:

R1001.14 Fireplace Restrictions. Refer to the Mesa Mechanical Code Section 930 for additional restrictions on masonry fireplaces.

A new Section R1004.6 Fireplace Restrictions is added as follows:

R1004.6 Fireplace Restrictions. Refer to the Mesa Mechanical Code Section 930 for additional restrictions on masonry fireplaces.

CHAPTER 11 ENERGY EFFICIENCY

A new Section N1101.4.1 RESNET Testing and Inspection Protocol is added as follows:

N1101.4.1 RESNET Testing and Inspection Protocol. The Residential Energy Services Network (RESNET) Home Energy Rating System Standard (RESNET HERS) for third party testing and inspections shall be deemed to meet the requirements of sections N12102.5.1, N1102.5.1.2 and N1103.3.7 and shall meet the following conditions:

1. Third Party Testing and Inspections shall be completed by RESNET certified Raters or Rating Field Inspectors and shall be subject to RESNET Quality Assurance Field Review Provider.
2. Sampling in accordance with Chapter 6 of the RESNET HERS standards shall be performed by Raters or Rating Field Inspectors working under a RESNET Accredited Sampling Provider.
3. Third Party Testing is required for the following items:
    a. N1102.5.1 - Building Envelope - Thermal and Air Barrier Checklist
    b. N1102.5.1.2 - Testing - Air Leakage Rate
    c. N1103.3.7 - Sealing - Duct Tightness
    d. Any other testing and inspections required under this code.
4. Alternate testing and inspection programs and protocols shall be allowed when approved by the Building Code Official.

N1103.6.3 (R403.6.3) Testing. Mechanical ventilation systems shall be tested and verified to provide the minimum ventilation flow rates required by Section N1103.6, in accordance with ANSI/RESNET/ICC 380. Where required by the code official, testing shall be conducted by an approved third party. A written report of the results of the test shall be signed by the party conducting the test and provided to the code official.

Exceptions:

1. Kitchen range hoods that are ducted to the outside with ducting having a diameter of 6 inches (152 mm) or larger, a length of 10 feet (3028 mm) or less, and not more than two 90-degree (1.57 rad) elbows or equivalent shall not require testing.
2. A third-party test shall not be required where the ventilation system has an integrated diagnostic tool used for airflow measurement, and a user interface that communicates the installed airflow rate.
3. Local exhaust systems.

Sections N1104.2 and N1104.3 are deleted in their entirety.

CHAPTER 24 FUEL GAS

G2404.7 (301.11) Flood Hazard. For structures located in flood hazard areas, the appliance, equipment and system installations regulated by this code shall be located at or above the elevation required by Section R306 for utilities and attendant equipment. Buildings, structures, appliances, equipment and system installations located in flood hazard areas shall comply with the Maricopa County Planning and Development Regulations. No reference to flood hazard requirements in this Chapter or the technical codes shall be construed as allowing installations in

violation of Maricopa County Planning and Development Regulations. Where conflicts exist between the requirements of this Chapter and the Maricopa County Planning and Development Regulations, the Maricopa County Planning and Development Regulations shall govern.

G2417.4.1 (406.4.1) Test Pressure. The test pressure to be used shall be not less than 10 pounds per square inch (68.9 kPa) gauge pressure, or where approved by the building official, the piping and valves may be tested at a pressure of at least 6 inches (152.4 mm) of mercury, measured with a manometer or slope gauge. For welded piping, and for piping carrying gas at pressures in excess of 14 inches (355.6 mm) water column pressure, the test pressure shall not be less than sixty 60 pounds per square inch (413.4 kPa). Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50% of the specified minimum yield strength of the pipe.

CHAPTER 26 GENERAL PLUMBING REQUIREMENTS

P2603.5.1 Sewer Depth. Building sewers that connect to private sewage disposal systems shall meet the requirements of the Maricopa County Environmental Services Department. Building sewers shall not be less than 12 inches (305 mm) below grade.

A new Section P2603.6 Underground Nonmetallic Water Piping is added as follows:

P2603.6 Underground Nonmetallic Water Piping. Underground nonmetallic water piping larger than 2 inches (50.8 mm) in diameter shall be installed with insulated copper tracer wire or other approved conductor located adjacent to the piping. Access shall be provided to the tracer wire or the tracer wire shall terminate above ground at each end of the nonmetallic piping. The tracer wire size shall be not less than 14 AWG and the insulation type shall be suitable for direct burial.

CHAPTER 29 WATER SUPPLY AND DISTRIBUTION

P2903.2 Maximum Flow and Water Consumption. The maximum water consumption flow rates and quantities for all plumbing fixtures and fixture fittings shall be in accordance with Table P2903.2.

Exception:

Replacement of existing fixtures that do not require a permit.

TABLE P2903.2 MAXIMUM FLOW RATES AND CONSUMPTION FOR PLUMBING FIXTURES AND FITTINGS[b]

PLUMBING FIXTURE OR FIXTURE FITTING	MAXIMUM FLOW RATE OR QUANTITY[b]
Lavatory faucet	1.5 gpm at 60 psi
Shower head[a]	2.0 gpm at 80 psi
Sink faucet	1.8 gpm at 60 psi
Water closet	1.28 gallons per flushing cycle [c, d]

*For SI: 1 gallon per minute = 3.785 L/m, 1 pound per square inch = 6.895 kPa

a. A hand-held shower spray shall be considered a shower head.

b. Consumption tolerances shall be determined from referenced standards.

c. For a dual-flush water closet, the full-flush volume shall not exceed 1.28 gallons.

d. A 1.6 gallon per flushing cycle is permitted where a water closet is connected to an existing building's sanitary drainage piping.

A new Section P2910.4.1 Conflicts is added as follows:

P2910.4.1 Conflicts. No reference to requirements for gray water recycling systems in this appendix or the technical codes shall be construed as allowing installations in violation of Arizona Department of Environmental Quality requirements. Where conflicts exist between the requirements of this appendix and the Arizona Department of Environmental Quality requirements, the Arizona Department of Environmental Quality requirements shall govern.

CHAPTER 30 SANITARY DRAINAGE

A new Section P3001.4 Tracer Wire is added as follows:

P3001.4 Tracer Wire. Underground nonmetallic sanitary drainage piping larger than 2 inches in diameter shall be installed with insulated copper tracer wire or other approved conductor located adjacent to the piping. Access shall be provided to the tracer wire or the tracer wire shall terminate above ground at each end of the nonmetallic piping. The tracer wire size shall be not less than 14 AWG and the insulation type shall be suitable for direct burial.

CHAPTER 36 SERVICES

E3601.2 Number of Services. One- and two-family dwellings shall be supplied by only one service. Two-family dwelling units shall be supplied by a single service or two separate services. When more than one service is installed, a permanent plaque or directory shall be installed at each service-equipment location denoting the other service on the structure and the area served by each service.

CHAPTER 39 POWER AND LIGHTING DISTRIBUTION

E3901.4.2 Island and Peninsular Countertops and Work Surfaces. At least one receptacle shall be installed at each island and peninsular countertop space with a long dimension of 24 inches (610 mm) or greater and a short dimension of 12 inches (305 mm) or greater. A peninsular countertop is measured from the connected perpendicular wall.

E3901.4.3 Receptacle Outlet Location. Receptacle outlets rendered not readily accessible by appliances fastened in place, appliance garages, sinks, or rangetops as covered in the exception to Section E3901.4.1, or appliances occupying assigned spaces shall not be considered as these required outlets. Required receptacle outlets shall be located in one or more of the following:

1. On or above, but not more than 20 inches (508 mm) above, the countertop or work surface.
2. In a countertop using receptacle outlet assemblies listed for the use in countertops.
3. In a work surface using receptacle outlet assemblies listed for use in work surfaces or listed for use in countertops.

Exception:

1. Receptacle outlets shall be permitted to be mounted not more than 12 inches (305 mm) below the countertop or work surface where the countertop or work surface extends 6 inches (152 mm) or less beyond its base cabinet support.
2. Receptacle outlets for the physically impaired.

E3901.9 Basements, Garages and Accessory Buildings. Not less than one receptacle outlet, in addition to any provided for specific equipment, shall be installed in each separate unfinished portion of a basement; in each vehicle bay at not less than 18 inches (457.2 mm) and not more than 5.5 feet (1,676 mm) above the floor in attached garages; in each vehicle bay at not less than 18 inches (457.2 mm) and not more than 5.5 feet (1,676 mm) above the floor in detached garages that are provided with electric power and in accessory buildings that are provided with electric power. Receptacles supplying only a permanently installed premises security system shall not be considered as meeting these requirements.

E3902.2 Garage and Accessory Building Receptacles. 125-volt through 250-volt receptacles installed in garages and grade-level portions of unfinished accessory buildings used for storage or work areas and supplied by single-phase branch circuits rated 150 volts or less to ground shall have ground-fault circuit-interrupter protection for personnel.

Exception:

1. Ceiling mounted receptacles for garage door openers.

E3902.14 Outdoor Outlets. All outdoor outlets, including outlets installed in the following locations, and supplied by single-phase branch circuits rated 150 volts or less to ground, 50 amperes or less, shall be provided with GFCI protection:

1. Garages that have floors located at or below grade level.
2. Accessory buildings.
3. Boathouses.

Exceptions:

1. GFCI protection shall not be required on lighting outlets other than those covered in Section 210.8(F) of NFPA 70.
2. GFCI protection shall not be required for receptacles that are not readily accessible and are supplied by a branch circuit dedicated to electric snow-melting, deicing, or pipeline and vessel heating equipment where such equipment is protected as required by NFPA 70.
3. GFCI protection shall not be required for listed HVAC equipment.

CHAPTER 44 REFERENCED STANDARDS

ASHRAE (American Society of Heating, Refrigerating and Air-Conditioning Engineers):

34 - 24	Designation and Safety Classification of Refrigerants

NFPA (National Fire Protection Association):

13 - 25	Installation of Sprinkler Systems
13D - 25	Installation of Sprinkler Systems in One- and Two-Family Dwellings and Manufactured Homes
13R - 25	Installation of Sprinkler Systems in Low-Rise Residential Occupancies
72 - 25	National Fire Alarm and Signaling Code
211 - 25	Chimneys, Fireplaces, Vents and Solid Fuel-Burning Appliances

APPENDIX AD ACCESSIBILITY is added as follows:

The provisions of this appendix are not mandatory.

AD101 Purpose. Provide optional accessibility provisions for new one- and two-family dwellings or sleeping units.

AD102 Accessibility Design. Dwelling and sleeping units with accessibility provisions shall comply with Section AD102.

AD102.1 Entrance. At least one dwelling unit entrance shall be accessible and on an accessible route from the street or sidewalk, the dwelling unit's driveway, or the dwelling unit's garage or carport in compliance with ICC A117.1 Chapter 4. The required accessible entrance shall not be to a bedroom.

Exceptions:

1. Doors and gates in the accessible route and the one accessible entrance need only comply with ICC A117.1 Sections 404.2.1, 404.2.2, 404.2.3 and 404.2.4 as well as section AD102.4.
2. The clear width need not exceed 36 inches minimum.
3. Ramps need not be provided with handrails, maximum ramp rise, intermediate landings, and edge protection where the sides of the ramp have a maximum vertical drop of ½-inch within 10 inches horizontally.

AD102.2 Interior Circulation Path. An interior circulation path shall connect the accessible entrance, Section AD102.7 toilet room or bathroom, and one habitable space with an area of 70 square feet minimum. This Interior circulation path shall have a clear width of 36 inches minimum as measured between fixed or built-in elements. Exceptions in ICC A117.1 Section 1104.4.1 are permitted to be used.

AD102.3 Circulation Path Doors. User passage doors in the Section AD101.2 circulation path shall have a clear opening width of 32 inches minimum; measured on a swinging door between the face of the door open to 90 degrees and the door stop.

AD102.4 Door Hardware. Door hardware for user passage doors on the entire floor level that contain the accessible entrance shall have a shape easily operated with one hand and does not require tight grasping, pinching, or twisting of the wrist to operate. Operable parts of hardware shall be 34 inches minimum and 48 inches maximum above the floor.

Exceptions:

1. Locks used only for security and not used for normal operation.
2. Pocket doors.
3. Where the door serves as part of a required pool or spa barrier, the height of the hardware shall not apply.

AD102.5 Operable Parts. Lighting controls, electrical switches and receptacle outlets, user controls for thermostats, and user controls for security or intercom systems shall be placed 15 inches minimum and 48 inches maximum above the floor.

Exceptions:

1. Receptacle outlets serving a dedicated use.

2. Controls and switches that can be remotely operated.

3. Where manufacturer's installation instructions specify a required height.

4. Floor receptacle outlets.

5. Controls mounted on ceiling fans.

6. Controls mounted on appliances.

7. Controls mounted on smoke detectors and carbon monoxide detectors.

AD102.6 Toilet Room and Bathroom Wall Reinforcement. Toilet rooms and bathrooms on the floor level that contains the accessible entrance shall be provided with wall reinforcements for future grab bars where walls occur around toilets, showers, and bathtubs in compliance with ICC A117.1 Section 1104.11.1.

AD102.7 Toilet Room or Bathroom Contents and Floor Clearance. One bathroom on the floor level that contains the accessible entrance shall be provided with a bathtub or a shower and shall contain a lavatory and a water closet. This bathroom shall be provided with floor clearance space that complies with ICC A117.1 Section(s) 304 or 1104.11.2 and 1104.11.3.

Exceptions:

1. Where there are no spaces used for sleeping purposes on the level that contains the accessible entrance, the bathroom is not required to be provided with a bathtub or a shower.

2. A toilet room or bathroom is not required where a dwelling unit or sleeping unit contains less than 150 square feet of habitable space on the level that contains the accessible entrance.

(Ord. No. 5981, § 2, 12-8-25)

4-3-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (5483)
(Ord. No. 5981, § 2, 12-8-25)

CHAPTER 4

MESA LIGHTING AND ELECTRICAL CODE*

4-4-1: LIGHTING CONTROL ORDINANCE

(A) **Purpose.** This Section is intended to restrict the permitted use of outdoor artificial illuminating devices emitting undesirable rays into the night sky which have a detrimental effect on astronomical observations. (4245)

***Editor's note**—Chapter 4 is amended to read as herein set out. Former chapter derived from Ord. Nos. 1685, 1736, 3571.

(B) **Conformance with Applicable Regulations.** All outdoor artificial illuminating devices shall be designed and installed in conformance with the provisions of this Section and all other Sections of Chapter 4-4. Where provisions of the Arizona State Statutes, or of the Federal laws, or other regulation of the City conflicts with the requirements of this Section, the most restrictive shall govern. (4245)

(C) Public street lighting shall be in conformance with the City of Mesa engineering and design standards. (4245, 4637)

(D) **Definitions.** The following definitions shall apply to this chapter: (4245, 4637)

AMBIENT LIGHT LEVEL: The measured light level at night when all the lights associated with a facility are off. (4245)

FILTERED: Outdoor light fixtures whose transmission is less than five percent (5%) total emergent flux at wavelengths less than three thousand nine hundred (3,900) angstroms. Total emergent flux is defined as that between wavelengths of three thousand (3,000) and seven thousand (7,000)-angstrom units. (4245)

FULLY SHIELDED: Those fixtures designed and erected in such a manner that light rays emitted by the fixture, either directly from the lamp or indirectly from the fixture, are only projected below a horizontal plane running through the lowest point on the fixture where light is emitted. (4245)

INSTALLED: The initial installation of outdoor light fixtures defined herein, provided the date of such installation is on or after September 18, 2004. (4245)

OUTDOOR LIGHT FIXTURES: Outdoor artificial illuminating devices, outdoor fixtures, lamps, and other devices, permanent or portable, used for illumination or advertisement. Such devices shall include, but are not limited to, lighting for buildings and structures, recreational areas, parking lots, landscape areas, billboards and other signage, and private street lighting.

PARTIALLY SHIELDED: Those fixtures designed and erected in such a manner that the bottom edge of the shield is below the plane of the centerline of the light source (lamp), minimizing the light emitted above the horizontal. (4245)

(E) **Shielding and Filtering.** All exterior illuminating devices, except those exempt from this Section, shall be fully or partially shielded and filtered as required in the following table: (4245)

TABLE 4-4-1(F)
REQUIREMENTS FOR SHIELDING AND FILTERING

FIXTURE LAMP TYPE	SHIELDED	FILTERED (4)
Low-Pressure Sodium (1)	Partially	None
High-Pressure Sodium	Partially	None
Metal Halide	Fully	Yes
Fluorescent	Partially (3)	Yes (5)
Quartz (2)	Partially	None
Incandescent Greater than 150W	Partially	None
Incandescent 150W or less	None	None
Fossil Fuel	None	None
Glass Tubes Filled with Neon, Argon, Krypton	None	None

FIXTURE LAMP TYPE	SHIELDED	FILTERED (4)
Other Lamp Types	As Approved by the Building Safety Director	
Footnotes:		
(1) This is the preferred lamp type to minimize undesirable light into the night sky, negatively affecting astronomical observations.		
(2) For the purposes of this Section, quartz lamps shall not be considered as an incandescent light source.		
(3) Outdoor advertising signs of the type constructed of translucent materials and wholly illuminated from within do not require shielding.		
(4) Glass, acrylic, or translucent enclosures shall be deemed to satisfy filter requirements.		
(5) Warm White and Natural Lamps are recommended to minimize detrimental effects.		

(4245, 4637)

(F) **Visibility.** No fixture, with a lamp size greater than 150W incandescent, shall be designed or erected where the lamp is directly visible to a person standing at the property line. (4245)

(G) **Light Spillage.** The light level at any property line, measured thirty-six inches (36") above ground level, shall be not more than 0.5 footcandles (5 Lux) above ambient light level, except for property lines adjacent to residential use property, the light level shall be not more than 0.3 footcandles (3 Lux) above ambient light level. Where the property is adjacent to a public street, the property line may be considered to be the centerline of the street. (4245)

(H) **Prohibitions.** The following fixture types shall not be used within the City of Mesa: (4245)

1. Searchlights. The operation of searchlights for advertising purposes is prohibited between the hours of eleven (11:00) p.m. and sunrise. (4245)

2. Mercury Vapor. The installation of mercury vapor fixtures is prohibited. (4245)

3. Maximum lamp wattage shall be limited in relation to mounting height as set forth in the following table, except for special use as approved: (4245)

TABLE 4-4-1(H)
MAXIMUM WATTAGE FOR MOUNTING HEIGHT

WATTAGE	HEIGHT
1,000	40 ft.
400	25 ft.
250	20 ft.
150	15 ft.
Fixtures with lamps less than 150 watts shall be permitted to be installed at any height, subject to conformance with other adopted codes. Lamp wattages in this table are for HID arc lamps; other lamp types shall be limited to equivalent lumen output.	

(4245, 4637)

(I) **Nonconforming Fixtures.** Outdoor light fixtures existing and fully installed prior to September 18, 2004 that complied with all applicable codes at installation may remain as "nonconforming;" provided, however, that no change in use, replacement, structural alteration, or restoration after abandonment of the outdoor light fixtures shall be made unless it thereafter conforms to the provisions of these regulations. (4245, 4637)

EXCEPTION: No outdoor recreational facility, public or private, shall be illuminated by nonconforming means after eleven (11:00) p.m., except that a specific recreational or sporting event or other similar activity conducted at a ballpark, outdoor amphitheater, arena, or similar facility in progress prior to eleven (11:00) p.m. may continue until concluded. (4245)

(J) **Fossil Fuel Lights (Gas).** Lighting produced by the combustion of natural gas or other utility-type fossil fuels shall be exempt from the requirements of this Section, except lighting produced indirectly from combustion of natural gas or other utility-type fossil fuels, such as through the use of electricity to produce lighting shall not be exempted from compliance. (4245)

(K) **Federal and State Facilities.** Facilities and lands owned, operated, or protected by the U.S. Federal Government or the State of Arizona are exempted by law from all requirements of this Section. Voluntary compliance with the intent of this Section at such facilities is encouraged. (4245)

(L) **Special Exemption.** The Building Safety Director may grant a special exemption to the requirements of this Section only upon finding, in writing, that there are extreme geographic or geometric conditions warranting such exemption and that there are no conforming fixtures that can comply. (4245)

(M) **Outdoor Advertising Lighting.** Upward-emitting lighting located upon existing outdoor advertising shall be exempt from compliance with this Section, provided that such lighting is equipped with a permanent automatic shutoff device and will not be operated between the hours of eleven (11:00) p.m. and six (6:00) a.m. (4245)

(N) **Automatic Shutoff Device.** In addition to the specific exemptions provided in this Section, outdoor light fixtures not meeting the provisions of this Section shall be allowed to remain, provided such fixtures are extinguished between the hours of eleven (11:00) p.m. and sunrise by an automatic shutoff device. (4245)

(O) **Temporary Exemptions.** The Building Safety Director may grant a temporary exemption to the requirements of this Section, for a period of up to thirty (30) days, renewable at the discretion of the Building Safety Director. (4245)

The request for temporary exemption shall be submitted by the property owner and shall contain the following information, at a minimum: (4245)

1. Specific exemptions requested. (4245)
2. Type and use of exterior lighting involved. (4245)
3. Type of shielding and filtering of fixtures, if any. (4245)
4. Duration of time for the requested exemption. (4245)
5. Type of lamp and calculated lumens for all fixtures involved. (4245)
6. Total wattage of lamps for all fixtures involved. (4245)
7. Proposed location of exterior lighting. (4245)

8. Previous temporary exemptions, if any. (4245)

9. Other data and information as required by the Building Safety Director. (4245)

Within five (5) working days from the receipt of a properly completed request for temporary exemption, the Building Safety Director shall approve or reject the request. Such action shall be in writing. If rejected, the applicant shall have the right of appeal to the Building Board of Appeals, pursuant to Title 2 Chapter 11 of the Mesa City Code. (4245, 4637)

(P) **Flagpole Lighting.** Upward emitting lighting whose purpose is to illuminate a flag on a flagpole at night shall be exempt from compliance with this section provided all of the following provisions are met:

1. The flag flown on the flagpole shall be permitted under Title 11, Mesa Zoning Ordinance. (4790)

2. The fixtures used to illuminate the flag shall be of a light source permitted by this Chapter with lamps rated at not more than 75 watts. (4790)

3. The fixture used to illuminate the flag shall be limited to not more than three fixtures, ground or building mounted, aimed upwards, with no fixture exceeding the light level or lamp visibility requirements shown in Subparagraph (G) or (H) above. (4790)

(Ord. No. 5538, §§ 1—3, 12-2-19)

4-4-2: ADOPTED BY REFERENCE

The following publication, which was made a public record on December 1, 2025, by Resolution No. 12452, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, is hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-4-2:

2023 National Electrical Code

(Ord. No. 5982, § 1, 12-8-25)

4-4-3: AMENDMENTS TO THE 2023 NATIONAL ELECTRICAL CODE

The following articles of the 2023 National Electrical Code, adopted by reference as set forth in Section 4-4-1, are amended as follows:

ARTICLE 80 TITLE AND ADMINISTRATION is added as follows:

80.1 Title. These regulations shall be known as the "Mesa Electrical Code," may be cited as such, and will be referred to herein as "this Code." For administration of this Code, refer to Title 4, Chapter 1, Mesa Administrative Code.

ARTICLE 100 DEFINITIONS

AUTHORITY HAVING JURISDICTION (AHJ). The Authority Having Jurisdiction shall be construed to be the Building Safety Director or designee who is responsible for administering and enforcing the Mesa Electrical Code.

ELEVATOR DISCONNECT ROOM OR CLOSET. An enclosed room or closet, with full height door, located outside the hoistway, intended to be accessed with or without full bodily entry that is dedicated to electrical and/or mechanical equipment used directly in connection with the elevator when the elevator controller is located in the

hoistway. The elevator disconnect required in 620.51(A), and the other elevator related disconnects, overcurrent devices, lighting, receptacles, etc. required by 620.22, 620.23, and 620.25 shall be located in this room or closet. In other than one- and two-family dwellings, and unless special permission is granted, the room or closet shall be located on the same level as the controller, within 50 feet of travel distance from the hoistway, shall be accessed directly from the corridor, and shall be accessible to qualified persons only. A label shall be provided at the elevator controller location identifying the location of the elevator disconnect room or closet. In one- and two-family dwellings only, an elevator disconnect room or closet shall not be required where the disconnecting means is located outside the hoistway in a readily accessible location and accessible to qualified persons only by being lockable in both the open and closed position and labeled in accordance with 110.22(A). The provisions for locking shall remain in place with or without the lock installed. The other disconnects, overcurrent devices, lighting, and receptacles required by 620.22, 620.23, and 620.25 shall be located adjacent to the disconnect required in 620.51(A).

ARTICLE 210 BRANCH CIRCUITS NOT OVER 1000 VOLTS AC, 1500 VOLTS DC, NOMINAL

210.52(C)(2) Island and Peninsular Countertops and Work Surfaces. At least one receptacle shall be installed at each island and peninsular countertop space with a long dimension of 24 inches (610 mm) or greater and a short dimension of 12 inches (305 mm) or greater. A peninsular countertop is measured from the connected perpendicular wall.

210.53(C)(3) Receptacle Outlet Location. Receptacle outlets shall be located in one or more of the following:

1. On or above, but not more than 20 inches (508 mm) above, a countertop or work surface.
2. In a countertop using receptacle outlet assemblies listed for use in countertops.
3. In a work surface using receptacle outlet assemblies listed for use in work surfaces or listed for use in countertops.

Receptacle outlets rendered not readily accessible by appliances fastened in place, appliance garages, sinks, or rangetops as covered in 210.52(C)(1), Exception No. 1, or appliances occupying assigned spaces shall not be considered as these required outlets.

Exceptions:

1. Construction for the physically impaired.
2. Receptacle outlets shall be permitted to be mounted not more than 12 inches (305 mm) below the countertop or work surface where the countertop or work surface extends 6 inches (152 mm) or less beyond its base cabinet support.

210.52(G)(1) Garages. In each attached garage and in each detached garage with electric power, at least one receptacle outlet shall be installed in each vehicle bay at not less than 18 inches and not more than 66 inches (1,677 mm) above the floor.

Exception:

Garage spaces not attached to an individual dwelling unit of a multifamily dwelling shall not require a receptacle outlet in each vehicle bay.

ARTICLE 230 SERVICES

230.70(B) Marking. Each service disconnect shall be permanently marked to identify it as a service disconnect. Markings shall be of sufficient durability to withstand the environment involved. Identifying labels required for disconnecting means shall have engraved or raised letters and be secured by screws or rivets (plastic tape shall not be considered durable material).

ARTICLE 250 GROUNDING AND BONDING

Article 250.118(A) Permitted is partially amended as follows:

250.118(A) Permitted. The equipment grounding conductor run with or enclosing the circuit conductors shall be one or more or a combination of the following:

4. Electrical metallic tubing with an additional equipment grounding conductor.

ARTICLE 620 ELEVATORS, DUMBWAITERS, ESCALATORS, MOVING WALKS, PLATFORM LIFTS, AND STAIRWAY CHAIRLIFTS

620.6(B) Machine Rooms, Control Spaces, Machinery Spaces, Control Rooms, Elevator Disconnect Rooms or Closets, and Truss Interiors. All 125-volt, single-phase, 15- and 20- ampere receptacles installed in machine rooms, control spaces, machinery spaces, control rooms, elevator disconnect rooms or closets, and truss interiors shall have listed Class A ground-fault circuit-interrupter protection for personnel.

620.22(A) Car Light Receptacles, Auxiliary Lighting, and Ventilation. A separate branch circuit shall supply the car lights. The car lights branch circuit shall be permitted to supply receptacles (alarm devices, emergency responder radio coverage (ERRC), car ventilation purification systems, monitoring devices not part of the control system), auxiliary lighting power source, car emergency signaling, communications devices (including their associated charging circuits), and ventilation on each elevator car or inside the operation controller. The overcurrent device protecting the branch circuit shall be located in the elevator machine room, control room, machinery space, or control space. Where there is no machine room, control room, machinery space, or control space outside the hoistway, the overcurrent device shall be located outside the hoistway in an elevator disconnect room or closet and accessible to qualified persons only.

Required lighting shall not be connected to the load side of a ground-fault circuit interrupter.

620.22(B) Air-Conditioning and Heating Source. A separate branch circuit shall supply the air conditioning and heating units on each elevator car. The overcurrent device protecting the branch circuit shall be located in the elevator machine room, control room, machinery space, or control space. Where there is no machine room, control room, machinery space, or control space outside the hoist way, the overcurrent device shall be located outside the hoist way in an elevator disconnect room or closet and accessible only to qualified persons.

620.23(A) Separate Branch Circuits. The branch circuits supplying the lighting for machine rooms, control rooms, machinery spaces, control spaces, elevator disconnect rooms or closets, or truss interiors, where required, shall be separate from the branch circuits supplying the receptacles in those places. These circuits shall supply no other loads.

Required lighting shall not be connected to the load side of a ground-fault circuit interrupter.

620.23(B) Lighting Switch. The machine room, control room/machinery space, or control space, or elevator disconnect room or closet lighting switch shall be located at the point of entry.

620.23(C) Duplex Receptacle. At least one 125-volt, single-phase, 15- or 20-ampere duplex receptacle shall be provided in each machine room, control room and machinery space, control space, elevator disconnect room or closet, and in truss interiors where required.

620.25(B) Overcurrent Devices. The overcurrent devices protecting the branch circuit(s) shall be located in the elevator machine room, control room, machinery space, or control space. Where there is no machine room, control room, machinery space, or control space outside the hoist way, or for escalator and moving walk applications, the overcurrent device shall be located outside the hoist way in an elevator disconnect room or closet and accessible only to qualified persons.

620.51(C) Location. The disconnecting means shall be located where it is readily accessible to qualified persons.

620.51(C)(1) On Elevators Without Generator Field Control. On elevators without generator field control, the disconnecting means shall be located within sight of the motor controller. Where the motor controller is located in the elevator hoist way, the disconnecting means required by 620.51(A) shall be located outside the hoist way in an elevator disconnect room or closet and accessible to qualified persons only. An additional fused or non-fused, enclosed, externally operable motor-circuit switch that is lockable open in accordance with 110.25 to disconnect all ungrounded main power-supply conductors shall be located within sight of the motor controller. The additional switch shall be a listed device and shall comply with 620.91(C).

Driving machines or motion and operation controllers not within sight of the disconnecting means shall be provided with a manually operated switch installed in the control circuit to prevent starting. The manually operated switch(es) shall be installed adjacent to this equipment.

Where the driving machine of an electric elevator or the hydraulic machine of a hydraulic elevator is located in a remote machine room or remote machinery space, a single means for disconnecting all ungrounded main power-supply conductors shall be provided and be lockable open in accordance with 110.25.

ARTICLE 625 ELECTRIC VEHICLE POWER TRANSFER SYSTEM

625.43 Disconnecting Means. For EVSE and WEPT rated more than 60 amperes or more than 150 volts to ground, the disconnecting means shall be provided and installed not less than 15 feet (4,572 mm) or more than 50 feet (9,144 mm) from the equipment, a plaque shall be installed on the equipment denoting the location of the disconnecting means. The disconnecting means shall be lockable open in accordance with 110.25.
(Ord. No. 5982, § 2, 12-8-25)

4-4-4: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (4245, 4637, 5484)
(Ord. No. 5982, § 3, 12-8-25)

CHAPTER 5
MESA PLUMBING CODE*

4-5-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12453, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-5-1:

2024 International Plumbing Code and the following appendices to the 2024 International Plumbing Code:

Appendix C - Structural Safety

Appendix E - Sizing of Water Piping System

4-5-2: AMENDMENTS TO THE 2024 INTERNATIONAL PLUMBING CODE

The following sections of the 2024 International Plumbing Code, adopted by reference as set forth in Section 4-5-1, are amended as follows:

CHAPTER 1 ADMINISTRATION

101.1 Title. These regulations shall be known as the Mesa Plumbing Code, hereinafter referred to as "this code."

101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 115.4 are deleted in their entirety. Any reference to Sections 101.4 through 115.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

***Editor's note—**Ord. No. 5983, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 5, §§ 4-5-1—4-5-3, and enacted a new Ch. 5 as set out herein. The former Ch. 5 pertained to similar subject matter and derived from Ord. Nos. 4246, 4579, 4638, 4579, 5485; Ord. No. 5687, § 1, 3-21-22.

CHAPTER 3 GENERAL REGULATIONS

305.4.1 Sewer Depth. Building sewers that connect to private sewage disposal systems shall be installed not less than 12 inches (304.8 mm) below finished grade at the point of septic tank connection. Building sewers shall be installed not less than 12 inches (304.8 mm) below grade.

CHAPTER 4 FIXTURES, FAUCETS AND FIXTURE FITTINGS

Table 403.1 Minimum Number of Required Plumbing Fixtures. Footnote E is amended to read as follows:

> **Footnote e.** For businesses and mercantile classifications with an occupant load of 100 or fewer, a service sink shall not be required.

403.2 Separate Facilities. Exception 2 is amended to read as follows:

> **Exceptions:**
>
> 2. Separate toilet facilities shall not be required in structures or tenant spaces with a total occupant load, including both employees and customers, of 25 or fewer.

Section 410.2 Small Occupancies. Drinking fountains shall not be required for an occupant load of 50 or fewer.

CHAPTER 6 WATER SUPPLY AND DISTRIBUTION

TABLE 604.4 Maximum Flow Rates and Consumption for Plumbing Fixtures and Fixture Fitting

PLUMBING FIXTURE OR FIXTURE FITTING	MAXIMUM FLOW RATE OR QUANTITY
Lavatory, private	1.5 gpm at 60 psi
Lavatory, public (metering)	0.25 gallon per metering cycle
Lavatory, public (other than metering)	0.5 gpm at 60 psi
Shower head[a, c]	2.0 gpm at 80 psi
Sink faucet	1.5 gpm at 60 psi
Urinal	0.5 gallon per flushing cycle
Water closet	1.28 gallons per flushing cycle

For SI: 1 gallon = 3.785 L, 1 gallon per minute = 3.785 L/m, 1 pound per square inch = 6.895 kPa.

a. A hand-held shower spray is a shower head.

b. Consumption tolerances shall be determined from referenced standards.

c. Shower heads shall comply with all requirements for high-efficiency showerheads in ASME A112.18.1-2020/CSA B125.1.

TABLE 608.1 Application of Backflow Preventers is partially amended to delete the following portions:

DEVICE	DEGREE OF HAZARD[a]	APPLICATION	APPLICABLE STANDARDS
Backflow prevention assemblies:			
~~**Double check detector fire protection backflow prevention assemblies**~~	~~**Low hazard**~~	~~**Backpressure or backsiphonage Sizes 1"-16"**~~	~~**ASSE 1048**~~

DEVICE	DEGREE OF HAZARD[a]	APPLICATION	APPLICABLE STANDARDS
~~Reduced pressure detector fire protection backflow prevention assemblies~~	~~High or low hazard~~	~~Backsiphonage or backpressure (automatic sprinkler systems)~~	~~ASSE 1047~~

Section 608.17.4 Connections to Automatic Fire Sprinkler Systems and Standpipe Systems. The potable water supply to automatic fire sprinkler and standpipe systems shall be protected against backflow, in accordance with Mesa Standard Details.

Exceptions:

1. Where systems are installed as a portion of the water distribution system in accordance with the requirements of this code and are not provided with a fire department connection, isolation of the water supply system shall not be required.

2. Isolation of the water distribution system is not required for deluge, preaction or dry pipe systems.

CHAPTER 7 SANITARY DRAINAGE

Section 701.2 Connection to Sewer Required. Sanitary drainage piping from plumbing fixtures in buildings and sanitary drainage piping systems from premises shall be connected to a public sewer. Where a public sewer is not available, the sanitary drainage piping and systems shall be connected to a private sewage disposal system in compliance with state or local requirements. Every building in which plumbing fixtures are installed and all premises having drainage piping shall be connected to a public sewer. The public sewer may be considered as not being available only when so determined by the Maricopa County Environmental Services Department (MCESD), by authority granted by delegation from the Arizona Department of Environmental Quality (ADEQ) as stated in the Arizona Administrative Code § R18-9-A309.

Exception:

Sanitary drainage piping and systems that convey only the discharge from bathtubs, showers, lavatories, clothes washers and laundry trays shall not be required to connect to a public sewer or to a private sewage disposal system provided that the piping or systems are connected to a system in accordance with Chapters 13 or 14.

CHAPTER 10 TRAPS, INTERCEPTORS AND SEPARATORS

Section 1003.2 Approval. The size, type and location of each interceptor and of each separator shall be designed and installed in accordance with the manufacturer's instructions and the requirements of Wastes that do not require treatment, or separation shall not be discharged into any interceptor or separator.

CHAPTER 11 STORM DRAINAGE

Section 1106.1 General. The size of the vertical conductors and leaders, building storm drains, building storm sewers, and any horizontal branches of such drains or sewers shall be based on an hourly rainfall rate of 3 inches per hour.
(Ord. No. 5983, § 2, 12-8-25)

4-5-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (4246, 4638, 5485)
Ord. No. 5515, § 1, 7-8-19; Ord. No. 5983, § 3, 12-8-25)

CHAPTER 6
MESA MECHANICAL CODE*

4-6-1: ADOPTED BY REFERENCE

The following publication, which was made a public record on December 1, 2025, by Resolution No. 12454, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, is hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-6-1:

2024 International Mechanical Code
(Ord. No. 5984, § 1, 12-8-25)

4-6-2: AMENDMENTS TO THE 2024 INTERNATIONAL MECHANICAL CODE

The following sections of the 2024 International Mechanical Code, adopted by reference as set forth in Section 4-6-1, are amended as follows:

CHAPTER 1 ADMINISTRATION

101.1 Title. These regulations shall be known as the Mesa Mechanical Code, hereinafter referred to as "this code."

A new Section 101.1.1 is added as follows:

101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)

***Editor's note—**Ord. No. 5984, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 6, §§ 4-6-1—4-6-3, and enacted a new Ch. 6 as set out herein. The former Ch. 6 pertained to similar subject matter and derived from Ord. Nos. 4247, 4639, 5055, 5486.

8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)

9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 109.3 are deleted in their entirety. Any reference to Sections 101.4 through 109.3 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

Sections 111 through 115.4 are deleted in their entirety. Any reference to Sections 111 through 115.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 4 VENTILATION

A new Section 408 is added as follows:

408 Marijuana Related Occupancies.

408.1 General. Any building used to cultivate, produce, or infuse marijuana shall be designed such that there shall be no emission of dust, fumes, vapors, or odors into the environment from the premise. A ventilation system shall be designed to prevent the distribution of odors to other occupied parts of the building or adjacent properties. Design of the odor control system shall be based on accepted engineering practices. All equipment and filter media shall be listed and labeled for the application. Exhaust systems used in odor control systems shall meet the requirements of Section 501.

408.1.1 Exhaust Outlets. The termination point for exhaust outlets shall be in accordance with Section 501.3. Exhaust from cultivation and production facilities shall be in accordance with Section 501.3.1(2).

CHAPTER 5 EXHAUST SYSTEMS

To **Section 509.2 Where Required**, a new exception 2 is added as follows:

Exceptions:

2. Type I hoods serving an individual electric or gas conveyor pizza oven unit or stack of units, unless the oven manufacturer requires a fire suppression system.

CHAPTER 6 DUCT AND TRANSFER OPENINGS

607.2 Installation. Fire dampers, smoke dampers, combination fire/smoke dampers and ceiling radiation dampers located within air distribution and smoke control systems shall be installed in accordance with the manufacturer's instructions, the dampers' listing and Sections 607.2.1 through 607.2.3. Dampers shall be tested by an approved testing agency or a qualified third-party special inspector. The special inspector/testing agency shall be an independent third-party individual or firm and shall not be the installing contractor. Special inspections shall be as specified in Chapter 17 of the Mesa Building Code.

CHAPTER 9 SPECIFIC APPLIANCES, FIREPLACES AND SOLID FUEL-BURNING EQUIPMENT

A new Section 928.2 Water Conservation is added as follows:

928.2 Water Conservation. Evaporative cooling systems shall be provided with a recirculating water system. Any bleed off rate used by the system shall be limited to that recommended by the manufacturer. Once-through evaporative cooling systems using potable water shall not be permitted.

A new Section 932 Fireplace Restrictions is added as follows.

932 Fireplace Restrictions.

932.1 Definitions. For purposes of this section, the following words and terms shall have the meaning ascribed thereto:

Solid fuel: Includes but is not limited to, wood, coal, or other nongaseous or nonliquid fuels, including those fuels listed as "inappropriate fuel" as defined by the Residential Woodburning Restriction Ordinance of Maricopa County where not associated with the Mesa Residential Code.

Wood stove: A solid-fuel-burning heating appliance including a pellet stove, which is either freestanding or designed to be inserted into a fireplace.

A new Section 932.2 General is added as follows:

932.2 General. On or after December 31, 1998, no person, firm, or corporation shall construct or install a fireplace or a woodstove, and the city shall not approve or issue a permit to construct or install a fireplace or a woodstove, unless the fireplace or woodstove complies with one of the following:

1. A fireplace which has permanently installed a gas or electric log insert;
2. A fireplace, woodstove, or other solid-fuel-burning appliance which has been certified by the United States Environmental Protection Agency as conforming to 40 Code of Federal Regulations part 60, subpart AAA;
3. A fireplace, woodstove, or other solid-fuel-burning appliance that has been tested and listed by a nationally recognized testing agency to meet performance standards equivalent to those adopted by 40 Code of Federal Regulations part 60, subpart AAA; or
4. A fireplace, woodstove, or other solid-fuel-burning appliance that has been determined by the Maricopa County Air Pollution Control Officer to meet performance standards equivalent to those adopted by 40 Code of Federal Regulations part 60, subpart AAA; or
5. A fireplace that has a permanently installed woodstove insert that complies with paragraphs 2, 3, or 4 above.

Exceptions:

The following are not regulated and are not prohibited by this section:

1. Furnaces, boilers, incinerators, kilns, and other similar space-heating or industrial process equipment;
2. Cook stoves, barbecue grills, and similar appliances designed primarily for cooking; and
3. Fire pits, barbecue grills, and other outdoor fireplaces.

A new Section 932.2.1 Flammable Materials is added as follows:

932.2.1 Flammable Materials. Fireplaces constructed or installed on or after December 31, 1998, that contain a gas or electric log insert or a woodstove insert, shall not be altered to directly burn wood or any other solid fuel.

On or after December 31, 1998, no person, firm, or corporation shall alter a fireplace, woodstove, or other solid fuel-burning appliance in any manner that would void its certification or operational compliance with the provisions of this section.

A new Section 932.2.2 Fireplace Permitting is added as follows:

932.2.2 Fireplace Permitting. Fireplaces constructed or installed on or after December 31, 1998, shall not be altered without first obtaining a permit from the building safety director to ensure compliance with this section.

CHAPTER 11 REFRIGERATION

1109.2.5 Refrigerant Pipe Shafts. Refrigerant piping that penetrates two or more floor/ceiling assemblies shall be enclosed in a fire-resistance-rated shaft enclosure. The fire-resistance-rated shaft enclosure shall comply with Section 713 of the International Building Code.

Exceptions:

1. Refrigeration systems using R-718 refrigerant (water).
2. Piping in a direct refrigeration system where the refrigerant quantity does not exceed the limits of Table 1103.1 for the smallest occupied space through which the piping passes.
3. Piping located on the exterior of the building where vented to the outdoors.

1109.3.2 Shaft ventilation. Required refrigerant pipe shafts with systems using Group A2L or B2L refrigerant shall be naturally or mechanically ventilated. Refrigerant pipe shafts with one or more systems using any Group A2, A3, B2 or B3 refrigerant shall be continuously mechanically ventilated and shall include a refrigerant detector. The shaft ventilation exhaust outlet shall comply with Section 501.3.1. Naturally ventilated shafts shall have a pipe, duct or conduit not less than 4 inches (102 mm) in diameter that connects to the lowest point of the shaft and extends to the outdoors. The pipe, duct or conduit shall be level or pitched downward to the outdoors. Mechanically ventilated shafts shall have a minimum airflow velocity in accordance with Table 1109.3.2. The mechanical ventilation shall be continuously operated or activated by a refrigerant detector. Systems utilizing a refrigerant detector shall activate the mechanical ventilation at a maximum refrigerant concentration of 25 percent of the lower flammable limit of the refrigerant. The detector, or a sampling tube that draws air to the detector, shall be located in an area where refrigerant from a leak will concentrate. The shaft shall not be required to be ventilated for doublewall refrigerant pipe where the interstitial space of the double-wall pipe is vented to the outdoors.

For refrigeration systems used in residential occupancies serving only a single dwelling unit or sleeping unit, shaft ventilation shall not be required where the pipe or tube is continuous without fittings in the shaft.

CHAPTER 15 REFERENCED STANDARDS

ASHRAE (American Society of Heating, Refrigerating and Air-Conditioning Engineers):

15 - 24	Safety Standard for Refrigeration Systems
34 - 24	Designation and Safety Classification of Refrigerants

NFPA (National Fire Protection Association):

72 - 25	National Fire Alarm and Signaling Code

211 - 24 Standards for Chimneys, Fireplaces, Vents and Solid Fuel-Burning Appliances
(Ord. No. 5984, § 2, 12-8-25)

4-6-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (4247, 4639, 5486)
(Ord. No. 5984, § 2, 12-8-25)

CHAPTER 7
MESA FUEL GAS CODE*

4-7-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12455, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-7-1:

2024 International Fuel Gas Code and the following appendices to the 2024 International Fuel Gas Code:

Appendix A - Sizing and Capacities of Gas Piping

Appendix B - Sizing of Venting Systems Serving Appliances Equipped with Draft Hoods, Category 1 Appliances, and Appliances Listed for Use with Type B Vents
(Ord. No. 5985, § 1, 12-8-25)

4-7-2: AMENDMENTS TO THE 2024 INTERNATIONAL FUEL GAS CODE

The following sections of the 2024 International Fuel Gas Code, adopted by reference as set forth in Section 4-7-1, are amended as follows:

CHAPTER 1 ADMINISTRATION

101.1 Title. These regulations shall be known as the Mesa Fuel Gas Code, hereinafter referenced to as "this code."

A new Section R101.1.1 Reference Changes is added as follows:

R101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)

***Editor's note—**Ord. No. 5985, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 7, §§ 4-7-1—4-7-3, and enacted a new Ch. 7 as set out herein. The former Ch. 7 pertained to similar subject matter and derived from Ord. Nos. 4248, 4640, 5055, 5487.

4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)

5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)

6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)

7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)

8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)

9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 114.4 are deleted in their entirety. Any reference to Sections 101.4 through 114.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 4 GAS PIPING INSTALLATIONS

404.12 Minimum Burial Depth. Underground piping systems shall be installed a minimum depth of 12 inches (305 mm) below grade for metal piping and 18 inches (457 mm) for plastic piping.

Section 404.12.1 is deleted in its entirety.

406.4 Test Pressure Measurement. Test pressure shall be measured with a manometer or with a pressure-measuring device designed and calibrated to read, record, or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure shall be isolated before the pressure tests are made.

406.4.1 Test Pressure. The test pressure to be used shall be not less than 10 pounds per square inch (68.9 kPa) gauge pressure, or where approved by the building official, the piping and valves may be tested at a pressure of at least 6 inches (152.4 mm) of mercury, measured with a manometer or slope gauge. For welded piping, and for piping carrying gas at pressures in excess of 14 inches (355.6 mm) water column pressure, the test pressure shall not be less than 60 pounds per square inch (413.4 kPa). Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50% of the specified minimum yield strength of the pipe.

A new Section 406.4.3 Test Gauges is added as follows:

406.4.3 Test Gauges. Tests required by this code that are performed utilizing dial gauges shall be limited to gauges having the following pressure graduations or incrementations:

1. Pressure tests of 10 pounds (69 kPa) or less shall be performed with gauges of one-tenth pound (0.7 kPa) incrementation or less.

2. Pressure tests exceeding 10 pounds (69 kPa) but less than 100 pounds (689 kPa) shall be performed with gauges of 1 pound (6.9 kPa) incrementation or less.

3. Pressure tests exceeding 100 pounds (689 kPa) shall be performed with gauges incremented for 2% or less of the required test pressure.

406.4.3.1 Pressure Range. Test gauges shall have a pressure range not greater than twice the test pressure applied.

A new Section 406.8 Connection of Service Utilities is added as follows:

406.8 Connection of Service Utilities. A person shall not make connections from a utility, source of energy, fuel or power to any building or system that is regulated by this code for which a permit is required until authorized by the code official.

CHAPTER 8 REFERENCED STANDARDS

NFPA (National Fire Protection Association):

37 - 24	Installation and Use of Stationary Combustion Engines and Gas Turbines
82 - 24	Incinerators and Waste and Linen Handling Systems and Equipment
211 - 24	Chimneys, Fireplaces, Vents and Solid Fuel-Burning Appliances
853 - 25	Installation of Stationary Fuel Cell Power Systems

(Ord. No. 5985, § 2, 12-8-25)

4-7-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (4248, 4640, 5487)
(Ord. No. 5985, § 3, 12-8-25)

CHAPTER 8
MESA EXISTING BUILDING CODE*

4-8-1: GENERAL

The owner or agent shall select one (1) option, and the entire project shall comply with the requirements of the selected option. In addition, the owner shall comply with Title 4, Chapter 1, Mesa Administrative Code.
(Ord. No. 4249; Ord. No. 5488; Ord. No. 5986, § 1, 12-8-25)

4-8-2: OPTION A - INTERNATIONAL BUILDING CODE

Option A requires compliance with Title 4, Chapter 2, Mesa Building Code. (4249, 4641, 5488)

4-8-3: OPTION B - INTERNATIONAL EXISTING BUILDING CODE, ADOPTED BY REFERENCE

The following publication, which was made a public record on December 1, 2025, by Resolution No. 12456, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, is hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-8-3:

2024 International Existing Building Code
(Ord. No. 5986, § 1, 12-8-25)

***Editor's note**—Ord. No. 4641 amended Chapter 8 in its entirety to read as herein set out. Former Chapter 8 derived from 4112.

4-8-4: OPTION B - AMENDMENTS TO THE 2024 INTERNATIONAL EXISTING BUILDING CODE

The following sections of the 2024 International Existing Building Code, adopted by reference as set forth in Section 4-8-3, are amended as follows:

CHAPTER 1 SCOPE AND ADMINISTRATION

101.1 Title. These regulations shall be known as the Mesa Existing Building Code, hereinafter referred to as "this code." For administration of this Section, refer to Title 4, Chapter 1, Mesa Administrative Code.

A new Section 101.1.1 International Code References is added as follows:

101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 101.6 are deleted in their entirety. Any reference to Sections 101.4 through 101.6 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

A new Section 101.4 Existing Occupancy is added as follows:

101.4 Existing Occupancy. The legal occupancy of any building or structure existing on the date of the adoption of this Chapter shall be permitted to continue without change, provided such continued use is not dangerous to life, health, and safety as determined by the Building Safety Director.

A new Section 101.5 Maintenance is added as follows:

101.5 Maintenance. Buildings, structures, and building service equipment, existing and new, and parts thereof shall be maintained in a safe and sanitary condition. Devices or safeguards, which are required by the technical codes, shall be maintained in conformance with the technical code under which installed. The owner or the owner's designated agent shall be responsible for the maintenance of building structures and their building service equipment. To determine compliance with this Section, the Building Safety Director may cause a structure to be re-inspected.

Sections 102.1 through 117.4 are deleted in their entirety.

CHAPTER 2 DEFINITIONS

EXISTING BUILDING. A building erected prior to the date of adoption of the appropriate code, or one for which a Certificate of Occupancy has been issued for at least one year.

CHAPTER 3 PROVISIONS FOR ALL COMPLIANCE METHODS

306.7.12 Toilet Rooms. Where it is technically infeasible to alter existing toilet rooms to be accessible, one accessible single-user toilet room or one accessible family or assisted-use toilet room constructed in accordance with Section 1110.2.1 of the International Building Code is permitted. This toilet room shall be located on the same floor and in the same area as the existing toilet rooms. At the inaccessible toilet rooms, directional signs indicating the location of the nearest such toilet room shall be provided. These directional signs shall include the International Symbol of Accessibility, and sign characters shall meet the visual character requirements in accordance with ICC A117.1. One of two or more fixtures (water closets and/or urinals) may be removed to create space for one wheelchair accessible toilet compartment in each existing toilet room. The resulting reduction in water closets is permitted to create a conforming wheelchair accessible toilet compartment in each existing toilet room. Alterations under this section shall not reduce other accessibility requirements including, but not limited to, required clear floor spaces and clearances.

CHAPTER 10 CHANGE OF OCCUPANCY

A new **Section 1001.1 Occupancy Comparison** is added as follows:

The following occupancy comparison table is added as guidance for determining the appropriate Change of Occupancy or use classification for an existing building that has a legal Certificate of Occupancy based on City adopted Codes.

Table 1001.1 Occupancy Comparison (Building Code year and Occupancies)

2018	2006	2003	1994	1988	1985	1982	1979
A1	A1	A1	A1, A2, A2.1	A1, A2	A1, A2	A1, A2	A1, A2
A2	A2	A2	A2.1, A3	A1, A2, A2.1, A3, B2 (Food/Drink Occupancy Under 50)	A1, A2, A2.1, A3, B2 (Food/Drink Occupancy Under 50)	A1, A2, A2.1, A3, B2 (Food/Drink Occupancy Under 50)	A1, A2, A2.1, A3, B2 (Food/Drink Occupancy Under 50)
A3	A3	A3	A2.1, A3	A2.1, A3	A2.1, A3	A2.1, A3	A2.1, A3
A4	A4	A4	A2.1, A3	A4	A4	A4	A4
		A5	A4	A4	A4	A4	A4
B	B	B	B (Food/Drink Occupancy Under 50)	B2 (Offices, Police/Fire) B (Food/ Drink Occupancy Under 50)	B2 (Offices, Police/Fire) B (Food/Drink Occupancy Under 50)	B2 (Offices, Police/Fire) B (Food/Drink Occupancy Under 50)	B2 (Offices, Police/Fire) B (Food/Drink Occupancy Under 50)
E	E	E	E1, E2, E3	E1, E2, E3	E1, E2, E3	E1, E2, E3	E1, E2, E3
F1	F1	F1	F1	B4 (Power Plants) B2 (Printing Plants)	B4 (Power Plants) B2 (Printing Plants)	B4 (Power Plants) B2 (Printing Plants)	B4 (Power Plants) B2 (Printing Plants)
F2	F2	F2	F2	B4 (Ice Plants/Factories) B2 Factories/Work Shops	B4 (Ice Plants/Factories) B2 Factories/Work Shops	B4 (Ice Plants/Factories) B2 Factories/Work Shops	B4 (Ice Plants/Factories) B2 Factories/Work Shops
H1	H1	H1	H1	H1	H1	H1	H1
H2	H2	H2	H2	H2, B2 (Wood-working)	H2, H3, B2 (Wood-working)	H2, H3, B2 (Wood-working)	H2, H3, B2 (Wood-working)
H3	H3	H3	H3	H3	None	None	None
H4	H4	H4	H7	H7	None	None	None
H5	H5	H5	H6	H6	H6	None	None
I-1	I-1	I-1	R1/R3 Greater Than 16	None	None	None	None
I-2	I-2	I-2	I-1.2, I-2, I-3	I-1, I-2, I-3	I-1, I-2, I-3	I-1, I-2, I-3	I-1, I-2, I-3
I-3	I-3	I-3	I-3	I-3 (Jail)	I-3 (Jail)	I-3 (Jail)	I-3 (Jail)
I-4	I-4	I-4 Day Care Facilities	E3 & R3	E3 & R3	E3 & R3	E3 & R3	E3 & R3
I-4	I-4	Adult Care Facility	R3 & R4	R3 & R4	R3 & R4	R3 & R4	R3 & R4
I-4	I-4	Child Care Facility	R3 & E3	R3 & E3	R3 & E3	R3 & E3	R3 & E3
M	M	M	M	B2 Retail Stores, Paint Stores	B2 Retail Stores, Paint Stores	B2 Retail Stores, Paint Stores	B2 Retail Stores, Paint Stores
R1	R1	R1	R1 (Hotel)	R1 (Hotel/Motel)	R1 (Hotel/Motel)	R1 (Hotel/Motel)	R1 (Hotel/Motel)

2018	2006	2003	1994	1988	1985	1982	1979
			R3 Lodging/Boarding House/ Transient	R3 Lodging/Board- ing House/ Transient	R3 Lodging/Board- ing House/ Transient	R3 Lodging/Board- ing House/ Transient	R3 Lodging/Board- ing House/ Transient
R2	R2	R2		R1 (Convent/ Monasteries)	R1 (Convent/ Monasteries)	R1 (Convent/ Monasteries)	R1 (Convent/ Monasteries)
R3	R3	R3	R3	R3	R3	R3	R3
I-2	I-2	I-2	R4 Nonambulatory	R4 Non-ambulatory	R4 Non-ambulatory	R4 Non-ambulatory	R4 Non-ambulatory
R4	R4	R4	R4 Ambulatory	R4 Ambulatory	R4 Ambulatory	RA Ambulatory	R4 Ambulatory
S1	S1 Moderate Hazard Storage	S1 Moderate Hazard Storage	H4 & H5 H5 (Aircraft Repair Hangars) S1, S3 Aircraft Hangar Parking S5	B1 (Service Stations), B3 & H5 (Aircraft Hangars) H4 (Repair Garages) B2 Storage	B1 (Service Stations), B3 & H5 (Aircraft Hangars) H4 (Repair Garages) B2 Storage	B1 (Service Stations), B3 & H5 (Aircraft Hangars) H4 (Repair Garages) B2 Storage	B1 (Service Stations), B3 & H5 (Aircraft Hangars) H4 (Repair Garages) B2 Storage
S2	S2	S2 Low-hazard Storage	S2, S4 (Parking Garages) & S5	B3 (Parking Garages)	B3 (Parking Garages)	B3 (Parking Garages)	B3 (Parking Garages)
				B4 (Cold Storage/ Storage Noncombustible)	B4 (Cold Storage/ Storage Noncombustible)	B4 (Cold Storage/ Storage Noncombustible)	B4 (Cold Storage/ Storage Noncombustible)
U	U	U	U1, U2	M1, M2	M1, M2	M1, M2	M1, M2
*IRC/R5	*IRC/R5	*IRC/R5	R3	R3 (Dwellings)	R3 (Dwellings)	R3 (Dwellings)	R3 (Dwellings)

* The occupancy classification of one- and two-family dwellings and townhomes will be designated as R5.

CHAPTER 11 ADDITIONS

To **Section 1103.3 Flood Hazard Areas**, a new sub-paragraph 5 is added as follows:

5. Buildings, structures, appliances, equipment and system installations located in flood hazard areas shall comply with all Maricopa County Planning and Development Department regulations. No reference to flood hazard requirements in this chapter or the technical codes shall be constructed as allowing installations in violation of Maricopa County Planning and Development regulations. Where conflicts exist between the requirements of this chapter and the Maricopa County Planning and Development Department regulations, the Maricopa County regulations shall govern.

CHAPTER 12 HISTORIC BUILDINGS

A new Section 1201.6 Energy Efficiency is added as follows:

1201.6 Energy Efficiency. Exterior alterations to a historic building shall be exempt from the provisions of the International Energy Conservation Code. New construction within designated historic districts shall be subject to the provisions of the International Energy Conservation Code.

CHAPTER 16 REFERENCE STANDARDS

NFPA (National Fire Protection Association):

72 - 25 National Fire Alarm Code
(Ord. No. 5986, § 3, 12-8-25)

4-8-5: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (4249, 4641, 5488)
(Ord. No. 5986, § 4, 12-8-25)

CHAPTER 9
MESA ENERGY CONSERVATION CODE*

4-9-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12457, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-9-1:

2024 International Energy Conservation Code and the following appendix to the 2024 International Energy Code:

Appendix RE - Electric Vehicle Charging Infrastructure
(Ord. No. 5987, § 1, 12-8-25)

***Editor's note—**Ord. No. 5987, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 9, §§ 4-9-1—4-9-3, and enacted a new Ch. 9 as set out herein. The former Ch. 9 pertained to similar subject matter and derived from Ord. Nos. 5055, 5489; Ord. No. 5688, §§ 1, 2, 3-21-22; Ord. No. 5890, § 2, 11-18-24.

4-9-2: AMENDMENTS TO THE 2024 INTERNATIONAL ENERGY CONSERVATION CODE

The following sections of the 2024 International Energy Conservation Code, adopted by reference as set forth in Section 4-9-1, are amended as follows:

CHAPTER 1 [CE] ADMINISTRATION

C101.1 Title. These regulations shall be known as the "Mesa Energy Code," hereinafter referred to as "this code."

A new Section C101.1.1 International Code References is added as follows:

C101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections C101.4 through C110.4 are deleted in their entirety. Any reference to C101.4 through C110.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 4 COMMERCIAL ENERGY EFFICIENCY

C401.2.1 International Energy Conservation Code. Commercial buildings shall comply with one of the following:

1. Prescriptive Compliance. The Prescriptive Compliance option requires compliance with Sections C402 through C406 and Section C408. Dwelling units and sleeping units in Group R-2 buildings shall be deemed to be in compliance with this chapter, provided that they comply with Section R406.
2. Simulated Building Performance. The Simulated Building Performance option requires compliance with Section C407.

Exceptions:

1. Additions, alterations, repairs and changes of occupancy to existing buildings complying with Chapter 5.
2. Compliance with the provisions of Section C408 is optional.

C401.2.2 ASHRAE 90.1. Commercial buildings shall comply with the requirements of ANSI/ASHRAE/IES 90.1.

Exception: Compliance with the provisions of Section C408 is optional.

A new Section C401.2.3 Industrial Buildings is added as follows:

C401.2.3 Industrial Buildings. Industrial buildings containing unique uses and processes that may conflict with the Energy Conservation Code. The Building Official may grant exemptions from Mesa Energy Conservation Code requirements for buildings or improvements due to unique or specialized processing systems or components, such as prefabricated paint booths or assembly line enclosures.

Sections C405.12 through C405.15 are deleted in their entirety.

C406.1 Compliance. Buildings shall comply as follows:

1. Buildings with greater than 50,000 square feet (4,645 m^2) of conditioned floor area shall comply with Section C406.1.1.
2. Buildings with greater than 100,000 square feet (9,290 m^2) of conditioned floor area shall comply with Sections C406.1.1 and C406.1.2.
3. Build-out construction greater than 50,000 square feet (4,645 m^2) of conditioned floor area that does not have final lighting or final HVAC systems installed under a prior building permit shall comply with Section C406.1.1.2.

Exceptions: Core and shell buildings where not less than 20 percent of the net floor area is without final lighting or final HVAC that comply with all of the following:

1. Buildings with greater than 5,000 square feet (465 m^2) of conditioned floor area shall comply with Section C406.1.2.
2. Portions of the building where the net floor area is without final lighting or final HVAC shall comply with Section C406.1.1.2.
3. Portions of the building where the net floor area has final lighting and final HVAC systems shall comply with Section C406.1.1.

CHAPTER 5 [CE] EXISTING BUILDINGS

C502.2 Change in Space Conditioning. Any nonconditioned or low-energy space that is altered to become conditioned space shall be required to comply with Section C502.

Exceptions: Core and shell buildings where not less than 20 percent of the net floor area is without final lighting or final HVAC that comply with all of the following:

1. Where the component performance alternative in Section C402.1.4 is used to comply with this section, the proposed UA shall be not greater than 110 percent of the target UA.
2. Where the simulated building performance option in Section C407 is used to comply with this section, the annual energy cost of the proposed design shall be not greater than 110 percent of the annual energy cost otherwise permitted by Section C407.2.

3. A lawfully occupied space with evaporative cooling being converted to air conditioning when the roof assembly is fully insulated.

C502.3.7 Additional Energy Efficiency Credit Requirements. Additions shall comply with sufficient measures from Sections C406.2 and C406.3 to achieve not less than 50 percent of the number of required efficiency credits from Table C406.1.1(1) based on building occupancy group and climate zone. Where a project contains multiple occupancies, credits from Table C406.1.1(1) for each building occupancy shall be weighted by the gross floor area to determine the project weighted average energy credits required. Accessory occupancies shall be included with the primary occupancy group for purposes of this section. Alterations to the existing building that are not part of the addition, but are permitted with an addition, shall be permitted to be used to achieve the required credits.

Exceptions:

1. Buildings in Group U (Utility and Miscellaneous), Group S (Storage), Group F (Factory), Group H (High-Hazard).
2. Additions less than 50,000 square feet (4,645 m^2) and less than 50 percent of existing floor area.
3. Additions that do not include the addition or replacement of equipment covered by Tables C403.3.2(1) through C403.3.2(16) or Section C404.2.
4. Additions that do not increase conditioned space.
5. Where the addition alone or the existing building and addition together comply with Section C407.

CHAPTER 1 [RE] ADMINISTRATION

R101.1 Title. These regulations shall be known as the "Mesa Energy Conservation Code," hereinafter referred to as "this code."

R101.2 Scope. This code applies to the design and construction of detached one- and two-family dwellings and multiple single-family dwellings (townhouse) and Group R-2, R-3, R-4 and R-5 buildings.

Sections R101.4 through R110.4 are deleted in their entirely.

A new Section R102 Testing and Inspection Protocol is added as follows:

R102 Testing and Inspection Protocol

R102.1 RESNET Testing and Inspection Protocol. The Residential Energy Services Network (RESNET) Home Energy Rating System Standard (RESNET HERS) for third party testing and inspections shall be deemed to meet the requirements of sections R402.5.1, R402.5.1.2 and R403.3.7 and shall meet the following conditions:

1. Third party testing and inspection shall be completed by RESNET certified Raters or Rating Field Inspectors and shall be subject to RESNET Quality Assurance Field Review Procedures.
2. Sampling in accordance with Chapter 6 of the RESNET HERS standards shall be performed by Raters or Rating Field Inspectors Working under a RESNET Accredited Sampling Provider.
3. Third Party Testing is required for the following items:
   a. R402.5.1 - Building Envelope - Thermal and Air Barrier Checklist.
   b. R402.5.1.2 - Testing - Air Leakage Rate.

c. R403.3.7 - Sealing - Duct Tightness.

d. Any other testing and inspections required under the code.

4. Alternate testing and inspection programs and protocols shall be allowed when approved by the Building Code Official.

CHAPTER 4 [RE] RESIDENTIAL ENERGY EFFICIENCY

Table R402.5.1.1 Air Barrier, Air Sealing and Insulation Installation[a] is partially amended to read as follows:

TABLE R402.5.1.1 AIR BARRIER, AIR SEALING AND INSULATION INSTALLATION[a]		
COMPONENT	**AIR BARRIER CRITERIA INSULATION**	**INSTALLATION CRITERIA**
Rim joists	Rim joists shall include an air barrier. The junctions of the rim board to the sill plate and the rim board and the subfloor shall be air sealed, unless the air barrier is provided elsewhere.	Rim joists shall be insulated so that the insulation maintains permanent contact with the exterior rim board.

R403.6.3 Testing. Mechanical ventilation systems shall be tested and verified to provide the minimum ventilation flow rates required by Section R403.6, in accordance with ANSI/RESNET/ICC 380. Where required by the code official, testing shall be conducted by an approved third party. A written report of the results of the test shall be signed by the party conducting the test and provided to the code official.

Exceptions:

1. Kitchen range hoods that are ducted to the outside with ducting having a diameter of 6 inches (152 mm) or larger, a length of 10 feet (3028 mm) or less, and not more than two 90-degree (1.57 rad) elbows or equivalent shall not require testing.

2. A third-party test shall not be required where the ventilation system has an integrated diagnostic tool used for airflow measurement, and a user interface that communicates the installed airflow rate.

3. Where tested in accordance with Section R403.6.4, testing of each mechanical ventilation system is not required.

4. Local exhaust systems.

Sections R404.2 through R404.3.1 are deleted in their entirety.

CHAPTER 5 [RE] EXISTING BUILDINGS

R501.2 Compliance. Additions, alterations, repairs or changes of occupancy to, or relocation of, an existing building, building system or portion thereof shall comply with Section R502, R503, R504 or R505, respectively, in this code and the provisions for alterations, repairs, additions and changes of occupancy or relocation, respectively, in the International Building Code, International Existing Building Code International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Residential Code and NFPA 70, as applicable. Changes where unconditioned space is changed to conditioned space shall comply with Section R501.6.

APPENDIX RE ELECTRIC VEHICLE CHARGING INFRASTRUCTURE

RE101.2.1 Quantity. New one- and two-family dwellings and townhouses with a designated attached or detached garage or other on-site private parking provided adjacent to the dwelling unit shall be provided with one EV capable, EV ready or EVSE space per dwelling unit. R-2 occupancies or allocated parking for R-2 occupancies in mixed-use buildings shall be provided with 15 percent EV capable spaces, or EV ready spaces and 5 percent EVSE spaces of the dwellings units or automobile parking spaces, whichever is less.

Exceptions:

1. Where the local electric distribution entity certifies in writing that it is not able to provide 100 percent of the necessary distribution capacity within 2 years after the estimated certificate of occupancy date, the required EV charging infrastructure shall be reduced based on the available existing electric distribution capacity.
2. Where substation is approved that meeting the requirements of Section RE101.2.5 will alter the local utility infrastructure design requirements on the utility side of the meter so as to increase the utility side cost to the builder or developer by more than $450 per dwelling unit.

(Ord. No. 5987, § 2, 12-8-25)

4-9-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (5055, 5489)
(Ord. No. 5987, § 3, 12-8-25)

CHAPTER 10
SWIMMING POOL AND SPA CODE*

4-10-1: ADOPTED BY REFERENCE

The following publication, which was made a public record on December 1, 2025, by Resolution No. 12458, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, is hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 4-10-1:

2024 International Swimming Pool and Spa Code
(Ord. No. 5988, § 1, 12-8-25)

4-10-2: AMENDMENTS TO THE 2024 INTERNATIONAL SWIMMING POOL AND SPA CODE

The following sections of the 2024 International Swimming Pool and Spa Code, adopted by reference as set forth in Section 4-10-1, are amended as follows:

101.1 Title. These regulations shall be known as the Mesa Swimming Pool and Spa Code, hereinafter referred to as "this code."

***Editor's note**—Ord. No. 5988, §§ 1—3, adopted December 8, 2025, repealed the former Ch. 10, §§ 4-10-1—4-10-3, and enacted a new Ch. 10 as set out herein. The former Ch. 10 pertained to similar subject matter and derived from Ord. No. 5490; Ord. No. 5689, § 1, 3-21-22.

101.1.1 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

Sections 101.4 through 114.4 are deleted in their entirety. Any reference to Sections 101.4 through 114.4 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

CHAPTER 2 DEFINITIONS

202 Definitions

ONGROUND STORABLE POOL: A pool that can be disassembled for storage or transport including any structure intended for swimming or recreational bathing that is capable of holding water over 18 inches (457 mm) deep. This includes portable pools with flexible or nonrigid walls that achieve their structural integrity by means of uniform shape, a support frame or a combination thereof, and that can be disassembled for storage or relocation.

RESIDENTIAL SWIMMING POOL (Residential Pool): A pool intended for use that is accessory to a residential setting and available only to the household and its guests including any structure intended for swimming or recreational bathing that contains water over 18 inches (457 mm) deep. This includes in-ground, above ground and on-ground swimming pools, hot tubs, spas and fixed in place wading pools. All other pools shall be considered public pools for purposes of this code.

Type 0. A nondiving residential pool.

Types 1-V. Residential pools suitable for the installation of diving equipment by type.

CHAPTER 3 GENERAL COMPLIANCE

305.1 General. The provisions of this section shall apply to the design of barriers for restricting entry into areas having pools and spas. Where spas or hot tubs are equipped with a lockable safety cover complying with ASTM F1346 and swimming pools are equipped with a powered safety cover that complies with ASTM F1346, the areas where those spas, hot tubs, or pools are located shall not be required to comply with Sections 305.2 through 305.7. In addition, it is the responsibility of the property owner and any other person in responsible charge of a

swimming pool to ensure that the required swimming pool barrier, including all gates, doors, locks, latches and other portions of the barrier are maintained safe and in good working order at all times. No person shall alter or remove any portion of a swimming pool barrier except to repair, reconstruct, or replace the barrier in compliance with the provisions of this section. All barriers shall be installed, inspected and approved prior to plastering or filling with water.

305.1.1 Construction Fencing Required. The construction sites for in-ground swimming pools and spas shall be provided with construction to surround the site from the time that any excavation occurs up to the time that the permanent barrier is completed. The fencing shall not be less than 60 inches (1,524 mm).

In Section 305.2.1 Barrier Height and Clearances, exception 1 is amended as follows:

Exceptions:

1. The top of the barrier shall not be not less than 60 inches (1,524 mm) above grade where measured on the side of the barrier that faces away from the pool or spa. Such height shall exist around the entire perimeter of the barrier and for a distance of 4 feet (1,219 mm) measured horizontally from the outside of the required barrier.

305.2.8 Chain Link Dimensions. The maximum opening formed by a chain link fence shall be not more than 1¾ inches (44 mm). Where the fence is provided with slats fastened at the top and bottom that reduce the openings, such openings shall be not greater than 1¾ inches (44 mm). The mesh shall not be less than 11 wire gauge.

305.3.2 Double or Multiple Gates. If a set of double gates or multiple gates is the only access to the yard area where the pool is located, they shall have not fewer than one leaf secured in place and the adjacent leaf shall be self-closing and be secured with a self-latching device.

The gate and the barrier shall not have openings larger than ½-inch (12.7 mm) within 18 inches (457 mm) of the latch release mechanism. The self-latching device shall comply with the requirements of Section 305.3.3. If a pedestrian gate is present in conjunction with the double or multiple gates, the double or multiple gates need not be self-closing or self-latching and shall be equipped with a padlock or similar locking device. Where the release mechanism of the selflatching device is located less than 54 inches (1,372 mm) from the bottom of the gate, the release mechanism and openings shall comply with the following:

1. The release mechanism shall be located on the pool side of the gate at least 3 inches (76 mm) below the top of the gate, and;
2. The gate and barrier shall have no openings greater than ½-inch (12.7 mm) within 18 inches (457 mm) of the release mechanism.

305.4 Structure Wall as a Barrier. Where a wall of a dwelling or structure serves as part of the barrier and where doors or windows provide direct access to the pool or spa through that wall, one of the following shall be required:

1. The pool shall be equipped with a key operated powered safety cover in compliance with ASTM F1346. The keyed pool cover switch shall be located not less than 54 inches (1,372 mm) above the floor adjacent ground level and where the entire pool cover can be visually inspected; or
2. All doors leading from the dwelling unit or guest room, with direct access to the swimming pool, shall swing away from the pool, shall be self-closing and self-latching, and shall be equipped with a locking device. The release mechanism for the latch or a secondary locking device, shall be located

not less than 54 inches (1,372 mm) above the floor. A locking latch which uses a key, electronic opener, or integral combination lock may be located at any height on the door. Sliding doors shall not form any part of a required barrier unless the self-closing and self-latching mechanism is approved.

3. Multi panel sliding doors or walls shall meet the requirements of ISPSC 305.4(1) or 305.4(2) or shall be secured in place by a permanent fastening method that requires a tool to remove. If a sliding glass door or panel is the only door to the pool area it shall meet the requirements of ISPSC 305.4(1) or 305.4(2).

4. Windows used for emergency escape or rescue which face into a yard with a swimming pool shall be equipped with a latching device located not less than 54 inches (1,372 mm) above the floor. All other operable dwelling unit windows facing into a yard with a swimming pool shall be equipped with a screwed in place wire mesh screen, a keyed lock that prevents opening the window more than 4 inches (102 mm), or a latching device not less than 54 inches (1,372 mm) above the floor.

5. A safety cover that is listed and labeled in accordance with ASTM F1346 is installed for the pools and spas.

6. An approved means of protection, such as self-closing doors with self-latching devices, is provided. Such means of protection shall provide a degree of protection that is not less than the protection afforded by Item 1 or 2.

A new Section 305.4.1 is added as follows:

305.4.1 Pet Doors. Pet doors are not allowed in the barrier wall.

A new Section 305.9 is added as follows:

305.9 Barrier Exceptions.

1. An existing swimming pool or other body of water lawfully constructed prior to April 20, 1998, but which does not conform to these regulations, shall become subject to these regulations as a result of any alteration, addition, or expansion of a dwelling unit or guest room having access to such pool, that increases the livable floor area, and contains door openings providing direct access to the pool area.

2. The enclosure requirements specified in Section 305 of this Section shall not apply to any existing subdivision perimeter fence, golf-course-view fence, or similar boundary fence lawfully constructed prior to April 20, 1998, in accordance with an approved Planned Area Development (PAD), or Development Master Plan (DMP).

307.2.2 Materials and Structural Design. Pools and spas shall conform to one or more of the standards indicated in Table 307.2.2. The structural design of pools and spas shall be in accordance with the International Building Code or the International Residential Code, as applicable in accordance with Section 102.7.1 of this code.

Exception: A minimum compressive strength of 2,500 pounds per square inch (175.8 kg/cm^2) shall be permitted for all reinforced concrete and reinforced shotcrete pools and spas when designed by a registered design professional and approved by the building official.

(Ord. No. 5988, § 2, 12-8-25)

4-10-3: PENALTY CLAUSE

Any person, firm, or corporation who shall violate any of the provisions of this Chapter of the Mesa City Code as amended shall be subject to all penalties and provisions of Section 4-1-9. (5490)
(Ord. No. 5988, § 3, 12-8-25)

TITLE 5 BUSINESS REGULATIONS

CHAPTER 1 SPECIAL EVENTS

5-1-1: PURPOSE AND ADMINISTRATION
5-1-2: DEFINITIONS
5-1-3: LICENSING REQUIREMENTS
5-1-4: LICENSE CONDITIONS; VIOLATIONS; REVOCATION
5-1-5: PENALTIES
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CHAPTER 2 OFF TRACK BETTING

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CHAPTER 1
SPECIAL EVENTS*

5-1-1: PURPOSE AND ADMINISTRATION

(A) The City Council acknowledges that special events enhance the lifestyle of the citizens of Mesa and create unique venues for expression, entertainment, and business that may not otherwise be available to the public. The purpose of this Chapter is to protect the public health, safety, and welfare by establishing a process for licensing and regulating certain temporary activities and events conducted on public or private property and to promote safe and orderly special events within the City. This Chapter is intended to provide fair and reasonable regulations governing the time, place, and manner in which a special event may take place.

(B) It is the duty and responsibility of the Licensing Administrator to administer the provisions of this Chapter. The Licensing Administrator will issue, deny, and revoke licenses as required by this Chapter as well as enforce civil violations in accordance with Section 5-1-5(B). An application for a license will be granted or denied within the timeframes established by the Licensing Administrator. Pursuant to these duties, the Licensing Administrator has the authority to create rules, regulations, and policies related to special events and licenses consistent with the purpose of this Chapter.

(Ord. No. 5622, § 1, 5-17-21)

5-1-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section 5-1-2 apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

APPLICANT: A person who applies for a license pursuant to this Chapter and who, upon approval of the application, will be the licensee.

A.R.S.: Arizona Revised Statutes.

CITY: The City of Mesa, Arizona.

DIRECTOR: The City's Business Services Director or designee.

LICENSE: A special event license issued to a person in accordance with the provisions of this Chapter.

LICENSEE: The person who applied for a license pursuant to this Chapter and in whose name such license was issued by the City pursuant to this Chapter.

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator, or other such City employee who supervises the Licensing Office or designee.

***Editor's note**—Ord. No. 5622, § 1, adopted May 17, 2021, repealed the former Ch. 1, §§ 5-1-1—5-1-7, and enacted a new Ch. 1 as set out herein. The former Ch. 1 pertained to special event license and derived from Ord. Nos. 2383, 2736, 2864, 3572.

PERSON: An individual, firm, partnership, joint venture, association, corporation, any other group or combination acting as a unit, or any other entity of whatever kind or nature.

SCHEDULE OF FEES AND CHARGES: The City's then current schedule of fees and charges approved by the City Council.

SPECIAL EVENT: As defined by Mesa City Code Title 11, Chapter 87.

VENDOR: Any person engaged or continuing in the business of sale of personal property, good, merchandise, ware, thing, or service at a special event.

VENDOR LIST: A written list on the form prescribed by the Licensing Administrator of every vendor scheduled to participate in the proposed special event, and upon completion of the special event, every vendor that did participate in the special event, including the business name, address, and current transaction privilege tax license numbers issued by the City and the State of Arizona to each vendor.
(Ord. No. 5622, § 1, 5-17-21)

5-1-3: LICENSING REQUIREMENTS

(A) It is unlawful for a person to conduct a special event within the City without a valid license.

(B) A license is only valid for the specific location, date, time, and special event for which the license was issued. A license is non-transferable and non-assignable. Any attempted transfer or assignment will void the license and all fees paid will be forfeited.

(C) A person desiring to obtain a license must apply to the City by presenting a complete application on the forms prescribed by the Licensing Administrator and accompanied by the applicable fees prescribed in the schedule of fees and charges to the Licensing Administrator by the deadlines set forth in this Subsection.

(1) Application for a license for a small-scale special event must be submitted no later than fourteen (14) calendar days prior to the first day of the special event.

(2) Application for a license for a large-scale special event must be submitted no later than thirty (30) calendar days prior to the first day of the special event, except that when the large-scale special event requires closure of an "arterial street" as that term is defined in Mesa City Code Title 11, Chapter 87, the application must be submitted no later than ninety (90) calendar days prior to the first day of the special event.

(3) An applicant who fails to timely submit an application pursuant to this Subsection (C) will be assessed fees as prescribed in the schedule of fees and charges.

(4) The Licensing Administrator has the authority to establish rules used in determining whether a special event is small-scale or large-scale. The rules established by the Licensing Administrator to determine whether a special event is small-scale or large-scale will be published and readily available to the public.

(D) An application must include, but not be limited to, the following information regarding the proposed special event:

(1) Names, addresses, and contact information of the applicant, event organizers, and event planners;

(2) Location of the special event, assembly areas, display areas, and travel routes, and permission of private property owner to locate the special event on that private property;

(3) Date, time, and description;

(4) Site plan with map or diagram depicting the area to be used and the location of specific uses within the area (e.g., booths, stands, stages, tents, restroom facilities);

(5) Description of any closure of a "right-of-way" as that term is defined by Mesa City Code 9-1-1;

(6) Estimated number of individuals, animals, vehicles, equipment, vendors, and temporary facilities;

(7) Vendor list;

(8) Insurance, as set forth in Subsection (F) below; and

(9) The following information, as applicable: description of signage to be used; plan for overnight accommodations of vehicles and trailers; description of open flame devices, flammable or combustible liquids, gases, fireworks, pyrotechnic materials to be used.

(E) An event located in a "park," as that term is defined by Mesa City Code 6-10-2, is subject to additional regulations set forth in Mesa City Code Title 6, Chapter 10.

(F) The Licensing Administrator has the authority to determine whether insurance is required for a special event. If required by the Licensing Administrator, the applicant must obtain insurance from an insurance company duly licensed by the State of Arizona, naming the City as an additional insured in amounts as required by the City. The specific policy form, limits, and endorsements must reflect the type of activity anticipated by the license and must be approved by the City's risk manager prior to issuance of a license.

(G) A license must be posted in a conspicuous place at the special event and must be available for inspection upon demand of any City official, at all times while the special event is ongoing.

(H) A licensee must submit an updated and revised vendor list to the Licensing Administrator, containing every vendor that participated in the special event, no later than seven (7) calendar days after the final day of the special event.

(I) The Licensing Administrator may refuse to issue a license for any of the following reasons:

(1) The application was incomplete, the applicant made false or misleading statements to City staff during the application process, the application contains false or misleading statements, or fees required by the schedule of fees and charges were not paid;

(2) The proposed area for the special event is previously reserved or otherwise unavailable for use or the special event will unreasonably interfere with a previously scheduled special event or City event;

(3) The special event will unreasonably interfere with or detract from the promotion of public health, safety, or welfare;

(4) The special event has a documented history of police calls for service or citations for violation of applicable law;

(5) The applicant, within the ten (10) year period immediately preceding the submission of the application, was convicted of a crime involving moral turpitude; or

(6) Within the eighteen (18) month period immediately preceding the submission of the application; the applicant or the proposed special event failed to obtain a license required by this Chapter; the applicant failed to submit an updated vendor list required by Section 5-1-3(H); the applicant, a vendor, or the special event violated or failed to comply with a condition set forth in Section 5-1-4(B); or the applicant or the proposed special event had a license revoked.

(Ord. No. 5622, § 1, 5-17-21)

5-1-4: LICENSE CONDITIONS; VIOLATIONS; REVOCATION

(A) It is unlawful for a person to violate or fail to comply with any of the conditions or prohibitions of this Section 5-1-4.

(B) The following conditions and prohibitions are applicable to every special event:

(1) An applicant must not make a false or misleading statement to City staff or officials during the application process or on an application form, and a licensee must not make a false or misleading statement to City staff or officials while a special event is ongoing;

(2) A licensee and every vendor must conduct the business of a special event in compliance with all applicable federal, state, county, and local laws, including Mesa City Code Title 5, Chapter 10, the Model City Tax Code, and laws regarding the sale or offering for sale of goods or services;

(3) A special event must not unreasonably interfere with or detract from the promotion of public health, safety, or welfare and must not cause undue hardship on nearby residents or businesses;

(4) A special event must not create or result in unsafe or dangerous conditions for attendees or members of the public, as reasonably determined by the Licensing Administrator, such as substantial interruptions to the safe and orderly movement of traffic, inadequate security or crowd control, inadequate parking control measures, inadequate restroom facilities or trash receptacles;

(5) A special event must not incite violence or crime;

(6) The licensee and attendees of a special event must not engage in conduct that would constitute disorderly conduct under A.R.S. § 13-2904, as amended;

(7) A special event must not interfere with the operations of a police department, fire department, or other emergency personnel and must not interfere with City maintenance or construction;

(8) A special event must comply with the noise regulations of Mesa City Code Title 6, Chapter 12 unless an exemption is obtained;

(9) A special event must comply with the fire regulations of Mesa City Code Title 7; and

(10) A licensee and special event must comply with all conditions of approval of the license and must not materially deviate from the approved plans and specifications for the special event.

(C) The Licensing Administrator, policer officer, fire inspector, code compliance officer, or other City official may, at any time, revoke a license for violation of or noncompliance with any provisions of this Chapter including the conditions listed in Subsection (B) above. Upon revocation of a license, the special event

must immediately cease, the licensee and vendors must immediately remove or properly dispose of all property and trash of the special event, and the licensee, vendors, and attendees must immediately disperse.
(Ord. No. 5622, § 1, 5-17-21)

5-1-5: PENALTIES

(A) Each calendar day any violation of any provision of this Chapter continues will constitute a separate offense.

(B) Civil Penalty. Among other penalties that may apply, including revocation of a license, a violation of any provision of this Chapter that is not designated in this Chapter as unlawful will be a civil code offense which may be adjudicated and enforced by the appeals process set forth in Section 5-1-6.

(C) Criminal Penalty. Among other penalties that may apply, including revocation of a license, any person who violates any provision of this Chapter that is designated as unlawful will be charged with a Class One Misdemeanor. If found guilty, such person may be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment.
(Ord. No. 5622, § 1, 5-17-21)

5-1-6: APPEALS

(A) An applicant or licensee aggrieved by a decision of the Licensing Administrator may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of the decision. The appeal must be in writing, state the grounds for the appeal, and be sent to the Director. The Director may deny an appeal without further review if the requirements of this Subsection are not met.

(B) If an appeal meets the requirements of Subsection (A), the Director will issue a decision to sustain, modify, or overrule the Licensing Administrator's decision.

(C) A decision of the Licensing Administrator, if not appealed, will be the City's final decision on a matter pursuant to this Chapter. If the decision of the Licensing Administrator is appealed, the decision of the Director will be the City's final decision on the matter.
(Ord. No. 5622, § 1, 5-17-21)

CHAPTER 2

OFF TRACK BETTING*

5-2-1: PURPOSE

The purpose of this Chapter is to protect the health, safety and welfare of residents of the City of Mesa ("City") by means of regulation of Off Track Betting operators. (5100)

***Editor's note**—Former Chapter 2 Group Home for the Handicapped and Supervised Living Facility License was repealed by Ordinance 4844, which was adopted on May 19, 2008. Previous ordinances impacting Chapter 2: 1007, 1027, 1706, 1934, 2181, 2430, 2658, 3394, 3746.

5-2-2: DEFINITIONS

For the purposes of this Chapter, the following words and phrases, wherever used in this Chapter, shall have the meaning as defined in this Section, Mesa City Code 11-86-4, A.R.S. § 5-101, and Arizona Administrative Code Section R19-2-401: (5100)

ADDITIONAL WAGERING FACILITY: A facility which is not the enclosure in which authorized racing takes place but which meets the requirements of A.R.S. § 5-111, Subsection (A) and is used by an Arizona racetrack permittee for handling pari-mutuel wagering. (5100)

DOG RACING: Racing in which Greyhound dogs chase a mechanical lure. (5100)

HARNESS RACING: Horse racing in which the horses are harnessed to a sulky, carriage or similar vehicle and driven by a driver. (5100)

HORSE RACING: Racing in which horses are mounted and ridden by jockeys. For purposes of county fair racing meetings, "horse racing" means racing in which horses or mules are mounted and ridden by jockeys. (5100)

OFF TRACK BETTING ESTABLISHMENT: An additional wagering facility which simulcasts horse, harness or dog racing events for the purpose of pari-mutuel wagering that is operated as an accessory use to an eating and drinking establishment as defined by Mesa City Code Section 11-86-4, and is authorized by issuance of a teletrack wagering permit in accordance with A.R.S. § 5-112 and Arizona Administrative Code Title 19, Chapter 2, Article 4. (5100)

OFF TRACK BETTING OPERATOR: Any person who holds a teletrack wagering permit for horse, harness or dog racing events within Arizona and who accepts bets or wagers on the results of any pari-mutuel race at a location which is not the enclosure in which authorized racing takes place. (5100)

PARI-MUTUEL WAGERING: A system of betting which provides for the distribution among the winning patrons of a least the total amount wagered less the amount withheld under A.R.S. § 5-111. (5100)

PERSON: Any individual, partnership, limited partnership, firm, corporation, association, or any other group acting as a unit. (5100)

RACING PROGRAM: Live races conducted at an authorized track, approved dark-day simulcasts and any simulcast races shown to the public in conjunction with live racing on which pari-mutuel wagering is allowed. (5100)

TELETRACKING: Telecast of live audio and visual signals of live or simulcast horse, mule, or Greyhound racing programs conducted at an authorized enclosure within Arizona to an authorized additional wagering facility within Arizona, by an Arizona racetrack permittee for the purpose of pari-mutuel wagering. (5100)

TELETRACK FACILITY: An additional wagering facility owned or leased by an Arizona racetrack permittee which is used for handling legal wagers. (5100)

TELETRACK WAGERING: Pari-mutuel wagering conducted at a teletrack facility within Arizona on a racing program which is conducted at an authorized track within Arizona. (5100)

TELETRACK WAGERING PERMIT: Permit issued by the Arizona Racing Commission authorizing an Arizona racetrack permittee to telecast a racing program to single or multiple teletrack wagering facilities within the state of Arizona for the purpose of pari-mutuel wagering. (5100)

5-2-3: ADMINISTRATION; BUSINESS LICENSING AND REVENUE COLLECTIONS ADMINISTRATOR; DUTIES, APPEALS

(A) It is the duty and responsibility of the Business Licensing and Revenue Collections Administrator to administer the provisions of this Chapter. Pursuant to this duty, the Business Licensing and Revenue Collections Administrator will issue, renew, suspend, or revoke the off track betting license in accordance with this Chapter, provided the decision to issue an off track betting license will be made by City Council following the hearing provided in Section 5-2-11. (5100)

(B) Any party aggrieved by a decision of the Business Licensing and Revenue Collections Administrator to revoke, suspend or deny renewal of a license under this Chapter may appeal within ten (10) calendar days after being sent, by registered or certified mail, notice of such decision. The appeal must be in writing, state the grounds for the appeal, and be sent to the Business Services Director, or designated representative, within thirty (30) calendar days of receipt of the appeal. A hearing officer designated by the City will render a decision within sixty (60) calendar days of the hearing. (5100)

5-2-4: LICENSE APPLICATION; FEE; TIMELINE

(A) Any off track betting operator desiring to obtain an off track betting license must apply to the licensing office. Each application must be accompanied by all required application fees in accordance with the current Schedule of Fees and Charges. (5100)

(B) Upon approval, and prior to issuance of the off track betting license, the applicant must pay all required fees in accordance with the current Schedule of Fees and Charges. (5100)

(C) An application will be granted or denied within the schedule of administrative and substantive review timeframes, as established by the Business Licensing and Revenue Collections Administrator. (5100)

5-2-5: OFF TRACK BETTING LICENSE REQUIRED

(A) It is unlawful for any person to conduct or operate as an off track betting operator or off track betting establishment in the City without first obtaining and maintaining in effect a current, unrevoked and unsuspended off track betting license as required by this Chapter. (5100)

(B) It is unlawful for any person to conduct or operate as an off track betting operator or off track betting establishment without obtaining and maintaining in effect a current, unrevoked and unsuspended teletrack wagering permit as required by the Arizona Racing Commission in accordance with A.R.S. § 5-112 and Arizona Administrative Code Title 19, Chapter 2, Article 4. (5100)

(C) The license required by this Chapter is in addition to any other licenses or permits required by any governmental authority necessary to lawfully conduct business. (5100)

(D) It is unlawful for any person licensed as provided in this Chapter to conduct business at any location not specified on such license. (5100)

(E) It is unlawful for any person licensed as provided in this Chapter to conduct teletrack wagering on any type of racing not specified on such license. (5100)

(F) Licenses issued pursuant to this Chapter are nontransferable. (5100)

5-2-6: OFF TRACK BETTING LICENSE APPLICATION; CONTENTS

Each application for an off track betting license must, at a minimum, contain all of the information contained in this section. (5100)

(A) Applicant Information: legal name, physical address, mailing address, email address, business telephone number, fax number, type of ownership and statutory agent, if applicable. (5100)

(B) Information on the Mesa eating and drinking establishment that is the proposed location for which off track betting will be an accessory use: physical address, name of primary business at proposed location, and name and telephone number of representative of proposed location. (5100)

(C) If the applicant is a business entity, the full legal name, date of birth and residence address of all persons who participate in management, control or policy direction of the applicant, including, with respect to a corporation, the corporation's officers, directors and stockholders holding twenty (20) percent or more of the outstanding shares of the corporation's stock. (5100)

(D) Disclosure of information regarding the persons identified pursuant to subsections (A) and (C) of this section as to any:

1. Felony conviction of such persons within the preceding five (5) years; (5100)

2. Judicial ruling or administrative finding of violation of any law or regulation relating to racing, wagering or gaming, in any jurisdiction; and (5100)

3. Any revocation or suspension of a license or permit relating to pari-mutuel betting or teletracking activities. (5100)

(E) Proof the applicant holds a valid permit from the Arizona Racing Commission to conduct pari-mutuel races within the state of Arizona. (5100)

(F) Accurate drawings to scale indicating the floor plan of the proposed location for which off track betting will be an accessory use that include the precise location of all off track betting facilities and activities. (5100)

(G) Copy of the plan of operation submitted to the Arizona Racing Commission, in accordance with the specifications of Arizona Administrative Code Section R19-2-404. (5100)

(H) If applicant is an individual, proof the applicant's presence in the United States is authorized under federal law, pursuant to A.R.S. § 41-1080. (5100)

(I) Any other identification and information as stated in the application. (5100)

5-2-7: LOCATION OF OFF TRACK BETTING ESTABLISHMENT

(A) An off track betting license will not be granted unless located in an eating a drinking establishment in an approved commercial district in accordance with Mesa City Code Section 11-6-2 and 11-7-2. (5100)

(B) The provisions of this Section will not be construed as permitting any use or activity which is otherwise prohibited or made punishable by law. (5100)

5-2-8: PAYMENT OF FEES AND TAXES

An application for the off track betting license will not be processed or renewed if the applicant is delinquent in payment of any City taxes, fees, renewals or other City payments due in accordance with Mesa City Code Section 1-32-400. (5100)

5-2-9: FEES

(A) An application for an off track betting license must be accompanied by an application fee in accordance with the current Schedule of Fees and Charges and any other fees required by this Chapter. (5100)

(B) In order for an application to be administratively complete, all fees must be submitted according to the current Schedule of Fees and Charges. (5100)

(C) Submission of the annual renewal form must include the annual fee in accordance with the current Schedule of Fees and Charges before it will be processed. (5100)

(D) Fees are not prorated, transferable or refundable unless otherwise provided by law. (5100)

5-2-10: TERM OF LICENSE

The off track betting license, issued pursuant to the provisions of this Chapter, will be issued for a term of one (1) year from the issue date. (5100)

5-2-11: PUBLIC HEARING ON OFF TRACK BETTING LICENSE; NOTICE

(A) The City Council will hold a public hearing on an application for an off track betting license. Notice of the hearing will be given at least twenty (20) calendar days prior to the hearing and will be posted on the property of the proposed off track betting location. (5100)

(B) Council's decision to approve or deny the application will be based on the criteria set forth in Section 16 of this Chapter. (5100)

(C) Within seven (7) calendar days of the public hearing the applicant will be notified in writing of the Council's decision to approve or deny the application. The applicant must communicate the decision to the Arizona Racing Commission. (5100)

5-2-12: INFORMATION UPDATE

(A) Except as otherwise provided herein, any change in the information provided in the application required to be submitted for the issuance of a license in accordance with this Chapter must be submitted to the licensing office in writing within ten (10) calendar days of such change. (5100)

(B) Altering the services offered, the site plan, number or pari-mutuel windows or tote machines, or type of racing conducted without written approval from the licensing office is unlawful. (5100)

5-2-13: SPECIAL PROVISIONS

(A) Any person employed by an off track betting establishment in Mesa must be at least eighteen (18) years of age. (5100)

(B) A licensee will not knowingly allow a person who is under twenty-one (21) years of age to be a patron of the pari-mutuel system of wagering. (5100)

(C) The licensee of the off track betting establishment must take all reasonable measures, including but not limited to requiring identification from persons placing bets or wagers at an off track betting establishment, to prevent unlawful gambling by anyone under the age of twenty-one (21) years of age. (5100)

(D) Teletrack wagering may be conducted only between the hours of 7:00 A.M. and 12:00 A.M. (5100)

(E) Revocation or suspension of a state permit from the Arizona Racing Commission to conduct pari-mutuel races within the state of Arizona will constitute automatic revocation or suspension of the corresponding City license. (5100)

(F) It is unlawful for an off track betting establishment to receive a simulcast race from an unlicensed teletrack operator. (5100)

5-2-14: RENEWAL

(A) Within one (1) year of the issue date for the previously effective license, all licensees under this Chapter wishing to remain licensed must apply for renewal on a form established by the licensing office. The renewal form must be submitted no later than forty-five (45) calendar days prior to the expiration date with the applicable renewal fee, as set forth in the current Schedule of Fees and Charges. No license shall be renewed unless the licensee complies with all provisions of this Chapter. (5100)

(B) A licensee who fails to timely apply for renewal shall be subject to a penalty in accordance with the current Schedule of Fees and Charges. If the licensee fails to start the renewal process at least thirty (30) calendar days prior to the license expiration date, the license shall expire and become null and void. Licensees who fail to apply to renew their license, yet wish to continue operating an off track betting establishment, must file a new application for license and may not operate an establishment until a new license is issued. Granting of a license under this Chapter does not confer an entitlement to or presumption of renewal of the license. (5100)

5-2-15: INSPECTION OF PREMISES, PROPERTY AND RECORDS

To ensure compliance with this Chapter and other applicable laws, the business premises of any person required to be licensed under this Chapter, including any property on the premises related to the off track betting license, must be open to inspection by representatives of the City upon request at any time during the licensee's regular business hours, or reasonable hours as agreed upon by the licensee and the City. (5100)

5-2-16: GROUNDS FOR DENIAL, REVOCATION, SUSPENSION, OR NON-RENEWAL OF LICENSE

The City Council may deny a license application and the Business Licensing and Revenue Collections Administrator may revoke, suspend or deny renewal of a license in accordance with this Chapter for the following grounds: (5100)

(A) Violation of the laws governing wagering within the state of Arizona, in accordance with Arizona Administrative Code Title 19, Chapter 2; (5100)

(B) Repeated acts of violence or disorderly conduct on the off track betting premise; (5100)

(C) False or misleading testimony by the licensee in an investigation or other proceeding related to wagering; (5100)

(D) Delinquency for more than thirty (30) calendar days in the payment of any taxes or fees owed to the City; (5100)

(E) Failure to operate an off track betting establishment in compliance with the plans submitted and approved pursuant to Section 5-2-6(G) of this Chapter. (5100)

(F) Failure to maintain a current Arizona teletrack wagering permit; (5100)

(G) Falsification of information submitted on an off track betting license application or renewal application; (5100)

(H) Violation of any of the provisions of this Chapter; or (5100)

(I) Violation of any Mesa City Code. (5100)

5-2-17: POSTING AND DISPLAY OF LICENSE

Any off track betting operator licenses under this Chapter must have the City Off Track Betting License and the state Teletrack Wagering Establishment Permit posted in public view at the licensed Mesa location. (5100)

5-2-18: PENALTY

Whenever in this Chapter any act or the failure to do any act is declared to be unlawful, the violation of any such provision of this Chapter is a class one misdemeanor. Each day any such violation continues shall constitute a separate offense. Revocation or suspension of a license shall not be a defense against prosecution. (5100)

CHAPTER 3

PARK AND SWAP OPERATIONS

5-3-1: DEFINITIONS

In this Chapter, unless the context otherwise requires, the following definitions shall apply:

OWNER OR OPERATOR: The owner or operator of a park and swap lot or park and swap meet is the person or persons who control the admission, directly or through agents, of persons and merchandise into the trading area.

PARK AND SWAP LOT: A building, structure, enclosure, lot, or other area into which persons are admitted to display, exchange, barter, buy, sell, or bargain for new and used merchandise, excluding those places normally engaged in the business of making sales at retail.

PARK AND SWAP MEET: The activity carried on at the park and swap lot and consists of the admitting of persons into a park and swap lot for the purpose of displaying, exchanging, bartering, buying, selling, or bargaining for new and used merchandise.

PARK AND SWAP MEET PARTICIPANT: Any person other than an owner or operator who brings goods, wares, and merchandise, both new and secondhand, to a park and swap meet for the purpose of displaying, exchanging, bartering, buying, selling, or bargaining these goods, wares, and merchandise.

POLICE CHIEF: The Chief of the Mesa Police Department.

5-3-2: LICENSES REQUIRED

It shall be unlawful for any owner or operator to operate within the corporate limits of the City a park and swap lot without first having obtained a license as provided in this Chapter, together with a privilege license pursuant to Section 5-10-2, for reporting and paying monthly to the City all privilege license taxes due by reason of the operator's operations. (4100)

5-3-3: DISPLAY OF LICENSES; DURATION AND RENEWAL; TRANSFER

(A) All licenses issued under the provisions of this Chapter shall be displayed in a conspicuous place.

(B) All licenses, unless specifically excepted, shall be issued for a period of one (1) year and shall run from January 1 in each calendar year to December 31 next following, when they may be renewed, provided that no license shall be renewed unless the licensee conforms with the provisions of this Chapter. Licenses issued under this Chapter shall not be transferable.

5-3-4: FEE SCHEDULE

The following fees shall be charged for applications and licenses for the operation of a park and swap lot: (1050, 4982)

Application fee	As established in the current Schedule of Fees and Charges.
License Fee	Due annually, as established in the current Schedule of Fees and Charges

(1050, 4982)

5-3-5: APPLICATIONS; FORMS; REFUSAL TO ISSUE

(A) An application for a license under this Chapter shall be made on forms furnished by the City. Every application shall be accompanied by an application fee in the amount provided in Section 5-3-4. In the event a license is not issued, the application fee shall not be returned to the applicant but shall be applied to cover the cost of processing the application.

(B) The Finance Director shall have the power to refuse to issue a license for any of the following causes:

1. Fraud, misrepresentation, or a false statement made in the course of applying for the license.
2. Conviction of any crime or misdemeanor involving moral turpitude within the last ten (10) years.
3. Any previous violation of this Chapter. (1613)

5-3-6: REVOCATION OR SUSPENSION OF LICENSE; APPEAL

Whenever the Finance Director has knowledge or it is brought to the attention of said Director that any person licensed under this Chapter has violated, or is violating, any of the provisions of this Chapter, such person shall be cited to appear before the Finance Director and such City officials as the Director may deem necessary on a day certain to show cause why his license should not be suspended or revoked. Such citation shall state the duty of the person cited to appear personally at the time and place and shall be served by an officer of the Police Department in the manner provided for personal service of civil summons. It shall be the duty of the person cited to appear personally at the time and place named in the citation. He shall have the right at such hearing to be represented by counsel, to introduce witnesses on his behalf, and, at his own expense, to have the testimony given at such hearing transcribed. If, after such hearing, the Finance Director determines that there is a good and sufficient reason for the suspension or revocation of the cited person's license, the Finance Director shall enter an order effective immediately to such effect and so notify the cited person by registered mail. If the person cited is dissatisfied with the order of the Finance Director, he may appeal to the City Manager within five (5) days, excluding weekends and legal holidays, after receipt of the decision of the Finance Director. The City Manager may designate a Hearing Officer to hear the appeal. (2383)

5-3-7: POLICE REPORTS REQUIRED

(A) On each day of operation of a park and swap lot, the owner or operator shall, on forms provided by the City, obtain the following information on each park and swap meet participant:

1. Name and address.
2. Date and time of entry.

3. Vehicle description and license plate number, if any.

4. A general description of all property brought into the trading area. For any item of property with an initial asking price of twenty-five dollars ($25.00) or more or which has or did have a serial number, a complete description shall be furnished including the name, make, and any identifying number.

5. Signature of park and swap meet participant.

6. Driver's license number and the state where issued, if any.

7. Social security number, if available.

8. Whether the person has a valid City of Mesa secondhand dealer's license and the number thereof.

These forms and admission records shall be available for police inspection during normal business hours and may be filled out by the park and swap meet participant and turned over to the owner, operator, or his designated employee. The owner or operator shall be responsible for forwarding these reports to the Police Chief at the close of each business day.

(B) Each park and swap meet participant shall submit daily to the owner, operator, or his designated employee a list giving the complete description of each item of property traded, bartered, or sold by him which had an initial asking price of twenty-five dollars ($25.00) or more or a sale price of twenty-five dollars ($25.00) or more or had or did have a serial number and the name and address of the person receiving said property. The owner or operator shall be responsible for forwarding these reports to the Police Chief at the close of each day's business. Forms for these reports will be provided to the owner or operator by the City of Mesa.

5-3-8: PRIVILEGE LICENSE REPORTS AND COLLECTION OF TAXES (Repealed)

Editor's note—Ord. No. 4100 repealed § 5-3-8.

5-3-9: TRADING AREA; VISIBILITY OF MERCHANDISE

The swap meet activities shall be conducted only in a building, structure, or other area which is sufficiently enclosed to enable the owner or operator or his employees to control effectively all persons and merchandise and only in an area zoned for this type of activity. All merchandise, both new and secondhand, for which the park and swap participant asks, or intends to ask, an initial price of twenty-five dollars ($25.00) or more shall at all times be visible to the general public and officials of the City.

5-3-10: EXEMPTION

The provisions of this Chapter shall not be applied to any charitable organization having a valid solicitation's permit for this activity from the City. This Chapter shall not apply to activities carried on by charitable organizations established and operated exclusively for a religious or charitable purpose if conducted solely among its members and guests by other members serving without remuneration or if such activities are conducted at the assemblies or services of the organization. (1050)

CHAPTER 4
MOBILE FOOD VENDORS

5-4-1: PURPOSE AND ADMINISTRATION

(A) The purpose of this Chapter is to protect the public health, safety, and welfare by establishing reasonable regulations of mobile food units and mobile food vendors and their employees, agents, and independent contractors, requiring compliance with minimum safety and security standards as well as health and sanitation rules, and to promote the safe and orderly operations of mobile food vendors in the City.

(B) It is the duty and responsibility of the Licensing Administrator to administer the provisions of this Chapter. The Licensing Administrator will issue, deny, suspend, and revoke licenses as required by this Chapter as well as issue notices in accordance with Section 5-4-7(D) and enforce civil violations in accordance Section 5-4-8(B). An application for a license will be granted or denied within the timeframes established by the Licensing Administrator. Pursuant to these duties, the Licensing Administrator has the authority to create rules, regulations, and policies related to mobile food vendors, mobile food units, and licenses consistent with the purpose of this Chapter.

(Ord. No. 5623, § 1, 5-17-21)

5-4-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

APPLICANT: A person who applies for a license pursuant to this Chapter and who, upon approval of the application, will be the licensee.

A.R.S.: Arizona Revised Statutes.

CONTROLLING PERSON: A natural person who either (1) has a ten percent (10%) or greater interest in the ownership or earnings of the business, or (2) is any of the following:

(A) An officer, director, or any stockholder who owns ten percent (10%) or more of a corporation licensee/applicant;

(B) A general partner of a limited partnership licensee/applicant or partner of a non-limited partnership licensee/applicant;

(C) A member of a limited liability company/corporation licensee/applicant; or

(D) The sole proprietor of a sole proprietorship licensee/applicant.

CITY: The City of Mesa, Arizona.

DESIGNATED AGENT: The person designated by the licensee/applicant to receive notices from the City pursuant to this Chapter.

DIRECTOR: The City's Business Services Director or designee.

HEARING OFFICER: The City staff person responsible for hearing appeals under this Chapter, or other such individual contracted with the City to hear appeals under this Chapter.

LEGAL PARKING SPACE: An area in the City right-of-way that is designated or permitted by law for vehicle parking, whether paved or unpaved and whether or not delineated by road surface markings. Legal parking space does not include a parking space in a parking lot on property owned by the City.

LICENSE: A mobile food vendor license issued to a person in accordance with the provisions of this Chapter.

LICENSEE: The person who applied for a license pursuant to this Chapter and in whose name such license was issued by the City pursuant to this Chapter.

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator, or such City employee who supervises the Licensing Office.

MOBILE FOOD UNIT: A food establishment that is licensed by this state, that is readily movable, and that dispenses food or beverages for immediate service and consumption and other incidental retail items from any "vehicle" as that term is defined by A.R.S. § 28-101.

MOBILE FOOD VENDOR: A person who owns, controls, manages, or leases a mobile food unit or a person who contracts with another person to prepare food from, vend from, drive, or operate a mobile food unit.

OPERATIONAL ITEM: Any item or equipment used or associated with the operation of a mobile food unit including, but not limited to, trash receptacle, queue, lighting, shade structure, display, signage, and any dining area including, but not limited to, table, chair, booth, bar stool, bench, and standup counter.

PERSON: An individual, firm, partnership, joint venture, association, corporation, any other group or combination acting as a unit, or any other entity of whatever kind or nature.

RIGHT-OF-WAY: As defined by Mesa City Code Section 9-1-1.

SCHEDULE OF FEES AND CHARGES: The City's then current schedule of fees and charges approved by the City Council.
(Ord. No. 5623, § 1, 5-17-21; Ord. No. 5659, §§ 1, 2, 12-8-21)

5-4-3: COMPLIANCE WITH STATE LICENSING REQUIREMENTS

It is unlawful for a person to operate a mobile food unit or act as a mobile food vendor without a valid license from the Arizona Department of Health Services pursuant to A.R.S. § 36-1761.
(Ord. No. 5623, § 1, 5-17-21)

5-4-4: LICENSING REQUIREMENTS

(A) It is unlawful for a person to operate a mobile food unit or act as a mobile food vendor at any location within the City without a valid license issued pursuant to this Chapter and all other licenses and permits required for the lawful operation of such business.

(B) A separate license is required for each mobile food unit; however only one (1) license is required for multiple mobile food units, provided that: (1) the controlling persons for all of those mobile food units are the same, and (2) all of those mobile food units operate under the same business entity and conduct the same business activity.

(C) A license is valid for a period of one (1) year from the date of issuance/renewal so long as the licensee and every applicable mobile food unit are in compliance with this Chapter. A license is non-transferable and non-assignable. Any attempted transfer or assignment will void the license and all fees paid will be forfeited.

(D) A person desiring to obtain a new or renewal license must apply to the City by presenting a complete application on the forms prescribed by the Licensing Administrator and accompanied by the applicable fees prescribed in the schedule of fees and charges to the Licensing Administrator. The application must include, but not be limited to:

(1) The names, addresses, and contact information for the applicant and for each controlling person and designated agent;

(2) A general description of the goods to be sold;

(3) A description, license plate number, and photograph of each mobile food unit;

(4) A valid driver's license issued to the applicant;

(5) The transaction privilege tax license numbers issued to the applicant by the City and the State of Arizona;

(6) A copy of the commercial vehicle registration required by the Arizona Department of Transportation for each mobile food unit; and

(7) A copy of all permits required by the Maricopa County Environmental Services Department.

(E) Following receipt of the required documents and fees, all applications will be submitted to the City Police Department for investigation and criminal record review on behalf of the City Licensing Office. The Police Department will receive and review the criminal history record information resulting from the criminal records check, including conviction and non-conviction data, of each applicant and controlling person for the purpose of evaluating the fitness of licensees and controlling persons in connection with the issuance, renewal, suspension, and revocation of a license. The Police Department evaluation and the criminal information obtained must be used only for the purpose of supporting or defending a denial, non-renewal, suspension, or revocation of a license.

(F) Complete renewal applications must be submitted to the Licensing Administrator no later than forty-five (45) calendar days prior to the expiration of a license; otherwise, the license will be deemed expired and non-renewable. If the renewal application is not received as stated above, the licensee must submit an application for a new license and provide all information and fees required for a new license application.

(G) A licensee must update the Licensing Administrator in writing of any change to any information provided in an application including, but not limited to, the information listed in Subsection (D) above, within ten (10) calendar days of occurrence of the change. If a controlling person is added, an investigation and criminal record review will be performed pursuant to Subsection (E) above.

(H) The Licensing Administrator may refuse to issue a new or renewal license for any of the following reasons:

(1) The application was incomplete, the application was not timely submitted, the applicant made false or misleading statements to City staff during the application process, the application contains false or misleading statements, or a fee required by the schedule of fees and charges was not paid;

(2) The applicant or a controlling person, within the one (1) year period immediately preceding the submission of the application, failed to update application information pursuant to Subsection (G) above;

(3) The applicant or a controlling person is currently in violation of this Chapter;

(4) The applicant has a current debt related to any open or closed account maintained or formerly maintained with the City;

(5) The applicant or a controlling person failed to comply with any federal or state law or regulation applicable to the operation of a mobile food vendor or mobile food unit including, but not limited to, those promulgated by the Arizona Department of Health Services, Maricopa County, or the Mesa City Code; or

(6) The applicant or a controlling person, within the ten (10) year period immediately preceding the submission of the application, was convicted of any of the following:

(a) Felony involving trafficking in stolen property, fraud, forgery, theft, burglary, robbery, extortion, conspiracy to defraud, or any preparatory offenses of the aforementioned crimes;

(b) Felony involving a fraudulent or dishonest act;

(c) Felony involving the sale, manufacture, or transportation of any dangerous drug as defined in A.R.S. § 13-3401, a "violent crime" under A.R.S. Title 13, Chapters 11, 12, or 13, a "sexual offense" under A.R.S. Title 13, Chapter 14, or for conduct in another jurisdiction which if carried out in Arizona would constitute an offense under one of the statutory provisions enumerated in this Subsection; or

(d) Felony or misdemeanor involving moral turpitude.

(I) The requirement for a City-issued license in this Section 5-4-4 shall not apply to the operation of a mobile food unit by a mobile food vendor at a special event in the City that meets all the following requirements:

(1) The mobile food unit is operating at a special event that is either:

(a) Licensed pursuant to Mesa City Code Title 5, Chapter 1, and the mobile food vendor is listed as a vendor on the vendor list provided to the City; or

(b) Permitted pursuant to Mesa City Code Title 6, Chapter 10.

(2) The mobile food vendor does not operate a mobile food unit in the City at more than four (4) special events per calendar year.

(3) If the mobile food unit is equipped with cooking equipment or an appliance that produces smoke or grease-laden vapors, the mobile food unit received an annual fire inspection meeting the requirements of Section 5-4-5(C) in the preceding twelve (12) month period before operating at a special event.

(Ord. No. 5623, § 1, 5-17-21; Ord. No. 5659, § 3, 12-8-21)

5-4-5: OPERATIONAL REQUIREMENTS

(A) It is unlawful for a person to operate a mobile food unit or act as a mobile food vendor at any location within the City in violation of this Section 5-4-5 or the City Zoning Ordinance set forth in Mesa City Code Title 11.

(B) Fire Safety. A licensee must operate all its mobile food units in compliance with the Mesa Fire Code set forth in Mesa City Code Title 7 and state law relating to fire and explosion safety standards.

(C) Annual Inspection. A mobile food unit equipped with cooking equipment or an appliance that produces smoke or grease-laden vapors, consistent with Section 319 of the International Fire Code, must be inspected annually by the City Fire Department for compliance with the Mesa Fire Code, or the licensee must provide evidence the mobile food unit passed such a fire inspection by a fire department of another municipality in this state within the preceding twelve (12) months.

(D) Location.

(1) Area Zoned for Residential Use. A mobile food vendor shall not operate in an area zoned for residential use or within two hundred fifty (250) feet of an area zoned for residential use. For the purpose of this Section 5-4-5(D)(1), an "area zoned for residential use" shall refer to a lot containing a single residence as defined in the Mesa Zoning Ordinance, Title 11, Article 8, Chapter 86, Section 2 (see Single Residence). The location restrictions in this Section 5-4-5(D)(1) do not apply to the operation of a mobile food unit that meets the requirements in one of the below subsections:

(a) The mobile food unit is operating on private property and any of the following are true:

(i) Operation of the mobile food unit is in accordance with an ordinance or resolution of the City Council authorizing mobile food units at the location based upon a site plan or development agreement; or

(ii) There are not more than three (3) mobile food units operating on the property at one time, and mobile food units do not operate on the property on more than a total of four (4) days per calendar year.

(b) The operation of the mobile food unit is pursuant to a special event license or permit, or a special use permit issued by the City in accordance with the Mesa City Code.

(c) The mobile food unit is vending primarily ice cream products or similar frozen food novelties, is operating in a right-of-way in compliance with Subsection (E) below or on a private street in a manner that does not impede the flow of traffic, and is not parked within three hundred (300) feet of the same location for more than one (1) hour at a time during an eight (8) hour period.

(d) The mobile food unit is parked directly adjacent to a private property, either in a right-of-way in compliance with Subsection (E) below or on a private street in a manner that does not impede the flow of traffic, with the express permission of that private property owner for not more than a total of four (4) days per calendar year.

(2) Private Property. A mobile food vendor must obtain the express permission of the private property owner to operate a mobile food unit on any private property.

(3) City Property. A person must operate a mobile food unit in a legal parking space in a right-of-way, unless:

(a) The mobile food vendor has a separate licensing for use, services contract, or similar agreement, which will be entered into at the City's sole discretion and in accordance with applicable law; or

(b) The mobile food vendor has a special event permit or similar permission in accordance with the Mesa City Code.

(4) Airports and Public Transit. A person must not operate a mobile food unit at any City airport or public transit facility unless the mobile food vendor has entered into separate licensing for use agreement or similar services agreement with the City, which will be entered into at the City's sole discretion and in accordance with applicable law.

(5) Measurement. The measured distance required for Section 5-4-5(D)(1) shall be made:

(a) In a straight line, without regard to intervening features; and

(b) Shall be made from the nearest point of the mobile food unit or any operational item to either:

(i) If the lot containing the single residence is located in a residential zoning district (Mesa Zoning Ordinance Title 11, Article 2, Chapter 5), then the distance shall be measured to all points along the lot; or

(ii) If the lot containing the single residence is located in any type of zoning district other than a residential zoning district (as defined in Subsection (i) above), then the distance shall be measured to the single residence structure.

(E) Parking. This Subsection applies to a mobile food unit operating in the right-of-way.

(1) A mobile food unit must operate and park in a legal parking space in a location that allows for parking.

(2) A mobile food unit and any operational item collectively must not use more than one (1) marked legal parking space when such lines are drawn unless the mobile food vendor has a separate agreement with the City to use additional marked legal parking spaces.

(3) A mobile food unit exceeding twenty-four (24) feet in length must not park diagonally in a diagonal parking space and must not park in any manner that occupies more than one (1) diagonal parking space.

(4) A mobile food unit must not operate with the serving window facing street traffic.

(5) A mobile food unit must abide by all parking regulations, including posted time limits. If there are no time restrictions on the use of a marked legal parking space, a mobile food unit must not occupy a legal parking space for more than six (6) hours in a twenty-four (24) hour period. "Occupy" within this Subsection means within one thousand (1,000) feet of the place in which the mobile food unit was initially parked.

(6) A mobile food unit must not occupy a legal parking space at a site with insufficient parking capacity as prescribed by applicable law and in compliance with A.R.S. Title 9, Chapter 4, Article 7.2 and includes that a mobile food unit must not occupy a legal parking space at a site when the occupation reduces the number of available parking spaces required for the principal use or uses of the site.

(7) A mobile food vendor must not claim or attempt to establish any exclusive right to park at a particular location unless the parking space is part of a City permitted event.

(F) Refuse, Trash, and Litter Maintenance. A mobile food vendor must:

(1) Provide a minimum of one (1) fifteen (15) gallon trash receptacle within fifteen (15) feet of each individual mobile food unit for customers and employees;

(2) Ensure the area around the mobile food unit is clear of litter, garbage, rubble, and debris; and

(3) Transport the trash from the area of operation of the mobile food unit to an authorized waste disposal location.

(G) Noise Restrictions. A mobile food vendor and each mobile food unit must comply with the noise regulations set forth in Mesa City Code Title 6, Chapter 12.

(H) Security.

(1) A mobile food unit, all operational items, and the surrounding vending area must be maintained in a safe and clean manner at all times.

(2) A mobile food unit must have adequate lighting to ensure customer safety in the surrounding vending area. Lighting must be directed downwards and away from the street, right-of-way, and adjacent property.

(3) A mobile food unit, all operational items, and its customers must not obstruct the movement of pedestrians or other vehicles using the sidewalk, street, alley, or right-of-way.

(I) Signs. A mobile food vendor and each mobile food unit must comply with the sign ordinance in Mesa City Code Title 11, Article 5.

(J) Insurance.

(1) If a mobile food unit operates at an event sponsored by the City or operates on public property, including right-of-way or property owned by the City, the mobile food vendor must obtain insurance naming the City as an additional insured in amounts required by the City and in compliance with A.RS. Title 9, Chapter 4, Article 7.2.

(2) The insurance company issuing the policy required under Subsection (1) must be authorized to issue commercial liability policies in Arizona by the Arizona Department of Insurance.

(3) The policy must designate, by manufacturer's serial or identification number, all mobile food units for which coverage is granted.

(4) The policy must insure the person named in the policy and any other person using the mobile food unit with the express or implied permission of the named insured against any liability arising out of the ownership, maintenance, or use of the mobile food unit in Arizona.

(Ord. No. 5623, § 1, 5-17-21; Ord. No. 5659, § 4, 12-8-21)

5-4-6: FEES

The following new and renewal licensing and application fees must be paid for each mobile food unit in the amounts prescribed in the schedule of fees and charges: (1) application fee; and (2) annual license fee.
(Ord. No. 5623, § 1, 5-17-21)

5-4-7: VIOLATIONS; SUSPENSION; REVOCATION

(A) It is a violation of this Chapter for any person to provide false information on any license application.

(B) It is a violation of this Chapter for a person to operate a mobile food unit that fails to meet all the requirements of this Chapter.

(C) It is a violation of this Chapter for a mobile food vendor to fail to display the license or any other required document, including proof of insurance, fire inspection, permit from Maricopa County Environmental Services Department, and license from Arizona Department of Health Services, to a police officer or other City official on demand.

(D) The Licensing Administrator must give written notice of a violation to the licensee or designated agent that may result in the suspension or revocation of the license and/or a civil penalty. The notice must include a description of the violation, the statutory or code reference, how the licensee can comply with the requirements, a description of the process whereby a hearing may be requested, the time limit for requesting a hearing, and a warning that failure to timely request a hearing may result in suspension or revocation of the license. The notice must be served on the licensee or designated agent by either personal service or registered/certified mail. Service of the notice will be deemed complete upon mailing to, or personal service on, the licensee or designated agent.

(E) The licensee or designated agent receiving a notice under this Section may request a hearing pursuant to Section 5-4-9 below. If the licensee fails to comply with the requirements of this Chapter by the date provided in the notice and does not request a hearing, then the Licensing Administrator may suspend or revoke the license as provided in this Section.

(F) In addition to any penalties set forth in this Chapter, a license will be suspended if, during the term of the license, the licensee or a controlling person has violated any of the provisions of this Chapter. During the suspension period, the licensee must not operate any mobile food unit associated with the suspended license. If a fine is associated with the violation that is the basis for suspension, the suspension may continue beyond the period set forth in this Subsection until the fine is paid. The penalty for a suspension of a license will be:

(1) For the first suspension of a license during a twenty-four (24) month period, the license will be suspended up to fourteen (14) calendar days and a fine will be imposed in the amount prescribed in the schedule of fees and charges.

(2) For the second suspension of a license during a twenty-four (24) month period, the license will be suspended a minimum of fifteen (15) calendar days up to a maximum of thirty (30) calendar days and a fine will be imposed in the amount prescribed in the schedule of fees and charges.

(3) For the third suspension of a license during a twenty-four (24) month period, the license will be revoked.

(G) In addition to a revocation for a third suspension as set forth in Subsection (F) above, the Licensing Administrator may revoke a license if the Licensing Administrator or other City official determines that:

(1) A mobile food unit associated with a suspended license was operated in the City during the suspension period;

(2) A licensee, designated agent, or controlling person, following the issuance of a license, is convicted of any offense listed in Section 5-4-4(H)(6);

(3) A licensee, designated agent, or controlling person operated or attempted to operate a mobile food unit without a valid license;

(4) A licensee or designated agent was previously issued three (3) or more notices of suspension or violation within a twenty-four (24) month period;

(5) A licensee, designated agent, or controlling person has not complied with a provision of this Chapter or has failed to provide information as required by this Chapter;

(6) The application fee or license fee prescribed in the schedule of fees and charges or any transaction privilege tax has not been paid; or

(7) A licensee failed to pay outstanding fines or resolve any violations.

(H) If a license is revoked pursuant to this Section, the licensee and each controlling person must not apply for a license for a period of one (1) year from the date of revocation.

(Ord. No. 5623, § 1, 5-17-21)

5-4-8: PENALTIES

(A) Each calendar day any violation of any provision of this Chapter continues will constitute a separate offense.

(B) Civil Penalty. Among other penalties that may apply, including revocation or suspension of a license (when applicable), a violation of any provision of this Chapter that is not designated in this Chapter as unlawful will be a civil code offense which may be adjudicated and enforced by the City civil hearing process set forth in Section 5-4-9.

(C) Criminal Penalty. Among other penalties that may apply, including revocation or suspension of a license (when applicable), any person who violates any provision of this Chapter that is designated as unlawful will be charged with a Class One Misdemeanor. If found guilty, such person may be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment.

(Ord. No. 5623, § 1, 5-17-21)

5-4-9: APPEALS

(A) Any party aggrieved by a decision of the Licensing Administrator may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of the decision. The appeal must be in writing, state the grounds for the appeal, and be sent to the Director. The failure of an appeal to meet the requirements of this Subsection will entitle the Director to deny the appeal without further review.

(B) If an appeal meets the requirements of Subsection (A), the Director will schedule a hearing with a Hearing Officer. The hearing will be held within thirty (30) calendar days of receipt of the appeal and the Hearing Officer will render a decision within sixty (60) calendar days of the hearing. The filing of an appeal meeting the requirements of Subsection (A) will suspend the decision of the Licensing Administrator until the Hearing Officer has rendered their decision. Any suspended decision of the Licensing Administrator, if upheld by the Hearing Officer, will be reinstituted and dated as of the original date the decision was issued by the Licensing Administrator; however, if the decision pertained to a period of suspension and such period of time has already passed, in whole or in part, the Hearing Officer may designate the period of suspension in accordance with this Chapter.

(C) All proceedings before a Hearing Officer will be informal and without a jury, except that testimony must be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. Prehearing discovery will not be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the appeal at hand.

(D) If either party to the appeal is aggrieved by the decision of the Hearing Officer, the aggrieved party may file a complaint of special action in an Arizona Superior Court with the proper jurisdiction to review the Hearing Officer's decision within thirty (30) calendar days after a final decision of the Hearing Officer has been rendered. Failure to bring the action within thirty (30) calendar days will constitute a waiver of any right to judicial review of the Hearing Officer's decision.

(E) A decision of the Licensing Administrator, if not appealed, will be the City's final decision on a matter pursuant to this Chapter. If the decision of the Licensing Administrator is properly appealed to a Hearing Officer, the decision of the Hearing Officer will be the City's final decision on the matter pursuant to this Chapter.

(Ord. No. 5623, § 1, 5-17-21)

CHAPTER 5
BUSINESS LICENSE

5-5-1: PURPOSE AND ADMINISTRATION

(A) The purpose of this Chapter is to promote the public health, safety, and welfare by providing the City with names, addresses, and other data of persons conducting business within the City, enabling the City to form a database of businesses in Mesa, AZ which may be used to: (1) assist businesses in locating, relocating, and expanding by providing information regarding the location of similar businesses and clustering of certain businesses in specific areas of the City; (2) assist the City in implementing programs benefitting businesses, such as grant programs for businesses; (3) assist the police department, fire department, and other emergency personnel in their efforts to enforce laws, respond to emergencies, and prevent crimes, fires, and accidents; (4) provide a system of cross-reference of businesses in the City for :use in locating responsible parties during emergency situations; (5) enforce applicable tax and zoning laws; (6) accumulate demographic data for use by the City in adopting ordinances, resolutions, and other legislation; and (7) establish responsibility for assessment of fines and other enforcement actions.

(B) It is the duty and responsibility of the Licensing Administrator to administer the provisions of this Chapter. Pursuant to this duty, the Licensing Administrator will issue and renew licenses in accordance with this Chapter and will maintain a record for each license issued. An application for a license will be granted or denied within the timeframes established by the Licensing Administrator.

(Ord. No. 5651, § 1, 11-15-21)

5-5-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

APPLICANT: The person who applies for a license pursuant to this Chapter and who, upon approval of the application, will be the licensee.

A.R.S.: Arizona Revised Statutes.

CITY: The City of Mesa, Arizona.

CONDUCT BUSINESS: Engaging in any activity upon which a transaction privilege tax license is required pursuant to the Mesa City Tax Code or maintaining within the City a fixed business location such as an office, distribution house, sales house, warehouse, developed commercial real property ownership, or other place of business, whether located at a residential or commercial location.

DESIGNATED AGENT: The person designated by the applicant or licensee as the point of contact to receive correspondence from the City related to the application, license, and the provisions of this Chapter.

DIRECTOR: The City's Business Services Director or designee.

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator, or such City employee who supervises the Licensing Office, or designee.

PERSON: An individual, firm, partnership, joint venture, association, company, corporation, estate, trust, or any other group or combination acting as a unit.

LICENSE: A business license issued to a person in accordance with the provisions of this Chapter.

LICENSEE: The person who applied for a license pursuant to this Chapter and in whose name such license was issued by the City pursuant to this Chapter.

SCHEDULE OF FEES AND CHARGES: The City's then current schedule of fees and charges approved by the City Council.

(Ord. No. 5651, § 1, 11-15-21)

5-5-3: LICENSING REQUIREMENTS

(A) A person shall not conduct business within the City without a valid license for the business issued pursuant to this Chapter.

(B) A license will be issued in the legal name of the licensee. Issuance of a license will in no way be construed as permission to operate a business in violation of any applicable law, rule, or regulation. A license is valid for one (1) year from the date of issuance or renewal. A license is non-transferable from one owner to another owner, from one entity to another entity, and from one location to another location. Attempted transfer of a license will void the license and any fees paid will be forfeited.

(C) Every person subject to the requirements of this Chapter who conducts business at more than one fixed location within the City shall pay the fees prescribed in the schedule of fees and charges for each location.

(D) To obtain a new or renewal license, a person must submit a complete application to the City on the forms prescribed by the Licensing Administrator accompanied by the fees prescribed in the schedule of fees and charges. An application must include, at a minimum and where applicable, all the following:

(1) Name, address, and contact information for the applicant, designated agent, and the owner(s) of the applicant business, including each partner if a general partnership, manager and member if a limited liability company, and chief executive officer and chief financial officer if a corporation.

(2) Description of the business including, state where incorporated or formed, trade name, address for all fixed business locations within the City, mailing address, telephone number, number of employees, and business activity to be conducted.

(3) Date on which the business began or will begin operating in the City.

(4) The transaction privilege tax license :number and location code issued to the applicant by the Arizona Department of Revenue for each fixed business location.

(5) Certification by the applicant that statements contained in the application and made to City staff during the application process are true and correct.

(E) A complete renewal application must be submitted to the City no later than thirty (30) calendar days prior to the expiration of the subject license; otherwise, the license will be deemed expired and non-renewable. If the renewal application is not received by the above deadline, the licensee must apply for a new license and provide all information and fees required for a new license application.

(F) A licensee must inform the City in writing of any changes to the information submitted during the application process within ten (10) calendar days of occurrence of the change.

(G) If a licensee no longer conducts business in the City, the licensee must cancel their license by informing the City in writing of the effective date of the cancellation and the reason for the cancellation. The fees paid for any cancelled license shall not be prorated or otherwise repaid by the City. A licensee who cancels their license and thereafter applies for a license must submit a new license application and fees as prescribed in the schedule of fees and charges.

(H) A person, whether or not required by this Chapter, may voluntarily obtain a license through the process described in this Chapter.

(Ord. No. 5651, § 1, 11-15-21)

5-5-4: EXEMPTIONS

The following persons are exempt from the requirements of this Chapter:

(A) Any person exempted by Arizona state law from business licensing requirements including, but not limited to, those exempted by A.R.S. §§ 3-563, 9-491.01, 9-491.02, 9- 1304, 20-1098.17, and 41-2052.

(B) A federal, state, county, city, or town governmental agency engaging in business in its governmental capacity.

(C) A religious, veteran, or civic service organization that on four (4) or fewer occurrences during a calendar year conducts business in the City for a bona fide nonprofit purpose and maintains an exempt status under Section 501 of the Internal Revenue Code.

(D) A person who conducts solely casual business activity. For purposes of this Subsection (D), "casual business activity" means engaging in a transaction of an isolated nature, such as the private sale of a personal automobile, handmade good, or garage sale item, in the City on four (4) or fewer occurrences during a calendar year.

(E) A person who provides solely educational lessons or tutoring, such as music, language, cooking, swimming, on an individual basis and from a non-commercial location.

(F) A person who provides solely caregiving, childcare, or babysitting services and who is not required to be licensed by the State of Arizona pursuant to A.R.S. Title 36.

(G) An independent contractor or sales representative who is not registered as a separate legal entity and only offers products or services on behalf of a parent organization such as health and beauty products, kitchen utensils, jewelry, beautician services, or other services or products.

(H) A person conducting business solely at a "special event," as that term is defined in Mesa City Code Title 11, Chapter 87, with a valid permit issued pursuant to Mesa City Code Title 5, Chapter 1 and the subject business is included on the "vendor list," as that term is defined in Mesa City Code 5-1-2.

(I) A person who has a valid license issued pursuant to any of the following Chapters of Title 5 of the Mesa City Code: Chapter 4, "Mobile Food Vendors"; Chapter 8, "Peddlers and Solicitors"; and Chapter 22, "Automated Kiosks."

(Ord. No. 5651, § 1, 11-15-21)

5-5-5: ENFORCEMENT AND PENALTY; APPEAL

(A) Any City official may inspect a business during regular business hours to ensure compliance with the provisions of this Chapter. The license or a copy thereof must be kept at every fixed location of the business and must be displayed upon demand of any City official.

(B) Any person required to be licensed under this Chapter who fails to obtain or maintain a license in compliance with this Chapter will be subject to the license fee and late fee prescribed in the schedule of fees and charges, The fees imposed by this Chapter will be deemed a debt owed to the City and the City may take any legally permissible action to collect the debt. A license will not be issued until all fees prescribed in the schedule of fees and charges are paid in full.

(C) A person assessed a late fee pursuant to Subsection (B) above may appeal the late fee within thirty (30) calendar days of notice of the late fee. The appeal must be in writing, state the grounds for the appeal, and be sent to the Director. The Director may deny an appeal without further review if the requirements of this Subsection (C) are not met. If an appeal meets the requirements of this Subsection (C), the Director will issue a decision to sustain or waive the late fee. A late fee may be waived by the Director upon a finding by the Director that the subject business has consistently obtained and maintained a license in compliance with this Chapter throughout the twenty-four (24) month period immediately preceding the late fee assessment, or upon a finding by the Director that reasonable cause exists for the failure to obtain and maintain the license in the circumstances resulting in the late fee. A late fee, if not appealed, is final. If a late fee is appealed, the decision of the Director is the City's final decision on the late fee.

(D) The penalties prescribed in Subsections (B) and (C) above are the sole and exclusive penalties provided in the Mesa City Code for a violation of this Chapter. No other penalty or enforcement action under the Mesa City Code shall apply to a violation of this Chapter, whether civil or criminal in nature, including the general penalty of Mesa City Code Title 1, Chapter 26 and the civil code violations of Mesa City Code Title 1, Chapter 27.

(Ord. No. 5651, § 1, 11-15-21)

CHAPTER 6
HANDBILLS AND CIRCULARS

5-6-1: DEFINITIONS

The following words, terms, and phrases when used in this Chapter shall have the meanings ascribed to them, except where the context clearly indicates a different meaning. (Res. 1006)

COMMERCIAL HANDBILL: Shall mean and include any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise produced original or copies of any matter of literature: (Res. 1006)

(A) Which advertises for sale any merchandise, product, commodity, or thing; or (Res. 1006)

(B) Which directs attention to any business or mercantile or commercial establishment or other activity for the purpose of either directly or indirectly promoting the interests thereof by sales; or (Res. 1006)

(C) Which directs attention to or advertises any meeting, theatrical performance, exhibition, or event of any kind for which an admission fee is charged for the purpose of private gain or profit; but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition, or event of any kind when either of the same is held, given, or takes place in connection with the dissemination of information which is not restricted under the ordinary rules of decency, good morals, public peace, safety, and good order. Provided, that nothing contained in this clause shall be deemed to authorize the holding, giving, or taking place of any meeting, theatrical performance, exhibition, or event of any kind without a license where such license is or may be required by any law of this State or under any laws of this City; or (Res. 1006)

(D) Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement and is distributed or circulated for advertising purposes or for the private benefit and gain of any person so engaged as advertiser or distributor. (Res. 1006)

NEWSPAPER: Shall mean and include any newspaper of general circulation as defined by general law, any newspaper duly entered with the Post Office Department of the United States in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law and in addition thereto shall mean and include any periodical or current magazine regularly published with not less than four (4) issues per year and sold to the public. (Res. 1006)

NONCOMMERCIAL HANDBILL: Shall mean and include any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter or literature not included in the aforesaid definitions of a commercial handbill or a newspaper. (Res. 1006)

PRIVATE PREMISES: Shall mean and include any dwelling, house, building, or other structure designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule, or mailbox belonging or appurtenant to such dwelling, house, building, or other structure. (Res. 1006)

PUBLIC PLACE: Shall mean and include any and all streets, boulevards, avenues, lanes, alleys, or other public ways and any and all public parks, squares, spaces, plazas, grounds, and buildings. (Res. 1006)

5-6-2: POSTING NOTICE, PLACARD, BILLS PROHIBITED IN CERTAIN PLACES

No person shall post, stick, stamp, paint, or otherwise fix or cause the same to be done by any person any notice, placard, bill, card, poster, advertisement, or other paper or device calculated to attract the attention of the public, except such as may be authorized or required by the laws of the United States, this State, or of this City. (Res. 1006)

5-6-3: THROWING HANDBILLS BROADCAST IN PUBLIC PLACES PROHIBITED

It shall be unlawful for any person to deposit, place, scatter, or cast any commercial handbill in or upon any public place within this City, and it shall be also unlawful for any person to hand out or distribute or sell any commercial handbill in any public place. Provided, however, that it shall not be unlawful for any person to hand out or distribute, without charge to the receiver thereof, any noncommercial handbill in any public place to any person willing to accept such. (Res. 1006)

5-6-4: PLACING IN VEHICLES

It shall be unlawful for any person to distribute, deposit, place, throw, scatter, or cast any commercial or noncommercial handbill in or upon any automobile or other vehicle. The provisions of this Section shall not be deemed to prohibit the handing, transmitting, or distributing of any noncommercial handbill to the owner or other occupant of any automobile or other vehicle who is willing to accept the same. (Res. 1006)

5-6-5: DISTRIBUTION ON UNINHABITED OR VACANT PRIVATE PREMISES

It shall be unlawful for any person to distribute, deposit, place, throw, scatter, or cast any commercial or noncommercial handbill in or upon any private premises which are temporarily or continuously uninhabited or vacant. (Res. 1006)

5-6-6: PROHIBITING DISTRIBUTION WHERE PROPERTY POSTED

It shall be unlawful for any person to distribute, deposit, place, throw, scatter, or cast any commercial or noncommercial handbill upon any premises if requested by anyone thereon not to do so or if there is placed on said premises in a conspicuous position near the entrance thereof a sign bearing the words "No Trespassing," "No Peddlers or Agents," "No Advertisements," or any similar notice indicating in any manner that the occupants of said premises do not desire to be molested or to have their right of privacy disturbed or to have any such handbills left upon such premises. (Res. 1006)

5-6-7: DISTRIBUTION ON INHABITED PRIVATE PREMISES

No person shall distribute, deposit, place, throw, scatter, or cast any commercial or noncommercial handbill in or upon any private premises which are inhabited except by handing or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises; provided, however, that in case of inhabited private premises which are not posted as provided herein, the aforesaid person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such inhabited private premises if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or elsewhere, except that mailboxes may not be so used when so prohibited by federal postal laws or regulations. (Res. 1006)

5-6-8: HANDBILLS INCITING TO RIOT PROHIBITED

It shall be unlawful for any person to post, hand out, transmit, distribute, or place any sign or any commercial or noncommercial handbill which may reasonably tend to incite riot or other public disorder or which advocates disloyalty to or overthrow of the government of the United States or of this State and is directed to producing or inciting imminent lawless action or is likely to produce or incite such action. (1612)

5-6-9: POSTING OF OBJECTIONABLE MATTER OR MATERIAL PROHIBITED

It shall be unlawful for the owner, lessee, occupant, or agent of premises to permit any person to post, affix, or otherwise attach to any building, structure, or fixture located upon such premises, whether such fixtures be natural or artificial, any poster or handbill containing any matter prohibited by this Chapter. (Res. 1006)

CHAPTER 7
AUCTIONEERS, PAWNBROKERS, SCRAP METAL DEALERS, AND SECONDHAND DEALERS

5-7-1: DEFINITIONS

The terms of this Chapter have the below meanings unless the context otherwise requires. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The definitions prescribed in A.R.S. § 44-1601, 44-1621, and 44-1641 apply to this Chapter, where applicable, unless a term is specifically defined in this Chapter. All citations to specific statutes in this Chapter shall include the law as amended. (5465)

(1) **APPLICANT:** A person who applies for a license pursuant to this Chapter who, upon approval of the application, will be the licensee. (5465)

(2) **ARTICLE:** A particular item, thing, good, asset or other movable or transferable piece of property. (5465)

(3) **AUCTIONEER:** Any person who is the controlling person operating a business of auctioning articles or offering any articles for sale by public outcry, where such items offered for auction are sold immediately to the highest bidder. (2993, 5465)

(4) **BUSINESS DAY:** Any day between and including Monday through Friday. (5465)

(5) **BUSINESS LICENSING ADMINISTRATOR:** The Business Licensing and Revenue Collections Administrator of the City or their designee. (5465)

(6) **BUSINESS SERVICES DIRECTOR:** The Business Services Director of the City or their designee. (5465)

(7) **CITY:** City of Mesa, Arizona. (2993, 5465)

(8) **CITY MANAGER:** The City Manager pursuant to Chapter 20 of Title 1 of the Mesa City Code or their designee. (2993, 5465)

(9) **CONTROLLING PERSON:** Any individual (natural person) who is any of the following: (5465)

(a) Stockholder who owns ten percent (10%) or more of a corporation; (5465)

(b) General partner of a limited partnership or any partner of a non-limited partnership; (5465)

(c) Managing member of a limited liability company/corporation; or (5465)

(d) Sole proprietor of a sole proprietorship. (5465)

(10) **DESIGNATED AGENT:** The individual (natural person) designated by the licensee to be the party who receives City notices pursuant to this Chapter. If a licensee is an individual (natural person) the licensee may name themselves as the designated agent. (5465)

(11) **HEARING OFFICER:** The Business Services Department Director or their designee. (2993, 5465)

(12) **LICENSE:** A license issued to an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer in accordance with this Chapter. (5465)

(13) **LICENSEE:** Any person to whom the City has issued a license under this Chapter or any person acting on behalf of such person. (2993, 5465)

(14) **LICENSING OFFICE:** Business Licensing and Revenue Collections Division of the City under the supervision of the Business Licensing Administrator. (5465)

(15) **PAWNBROKER:** A person engaged in the business of advancing money on the security of pledged goods or engaged in the business of purchasing tangible personal property on the condition that it may be redeemed or repurchased by the seller for a fixed or variable price within a fixed or variable period of time. (5465)

(16) **PERSON:** Any corporation, company, partnership, firm, association, organization, joint venture, business entity, trust, proprietor, agent, or society, as well as an individual (natural person). (2993, 5465)

(17) **POLICE DEPARTMENT:** The Police Department for the City pursuant to Title 3, Chapter 1 of the Mesa City Code. (2993, 5465)

(18) **SCHEDULE OF FEES AND CHARGES:** The current City schedule of fees and charges as approved by the City Council. (5465)

(19) **SCRAP METAL DEALER:** Each person (except "automotive recyclers" as defined and licensed pursuant to A.R.S. Title 28, Chapter 10) whose primary business is the dismantling, selling or disposing of parts or accessories of motor vehicles engaged in the business of purchasing, trading, bartering, or otherwise receiving secondhand or castoff material of any kind which is commonly known as scrap metal. Scrap metal includes insulated and uninsulated metallic cables. (5465)

(20) **SECONDHAND:** Any new or used property (article) that has been sold, traded, exchanged, consigned or otherwise disposed of by the original owner. The definition of secondhand includes, but is not limited to:

(i) old stamps; (ii) old coins and money; (iii) "precious item" as defined in A.R.S. § 44-1601; and (iv) used automotive components when purchased by a "used automotive components dealer" as that term is defined in A.R.S. § 44-1321. The definition of secondhand does not include "numismatic coin" as defined in A.R.S. § 44-1801. (2993, 5465)

(21) **SECONDHAND DEALER:** Any person engaged in conducting, managing, facilitating, or carrying on the business of buying, selling, trading, exchanging, receiving on consignment, or otherwise dealing in any of the following secondhand items: goods, wares, merchandise, or articles. This definition applies whether such business is the principal or sole business carried on, managed, or conducted or is merely incidental to or in connection with a branch or department of some other business. (2993, 3600, 4916, 5465)

(22) **STATE:** State of Arizona. (5465)

5-7-2: ADMINISTRATION; LICENSES

(A) It is the duty and responsibility of the Business Licensing Administrator to administer the provisions of this Chapter. Pursuant to this duty, the Business Licensing Administrator will issue, renew, deny, suspend, or revoke auctioneers, pawnbrokers, scrap metal dealers, and secondhand dealer licenses in accordance with this Chapter. (5465)

(B) Any party aggrieved by a decision of the Business Licensing Administrator under this Chapter may appeal within ten (10) calendar days of issuance of the decision. The appeal must meet the requirements set forth in Section 5-7-9. (5465)

(C) Any person who operates a business in the City as an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer must obtain a license from the Licensing Office as provided in this Chapter. A person who operates as an antiques dealer is a secondhand dealer under this Chapter. Antiques dealers will be issued a license governed by the requirements of this Chapter pertaining to secondhand dealers; however, the title on the license will be that of "Antiques Dealer." For the purposes of this Subsection (C), an "antiques dealer" means a person who is primarily engaged in the business of buying and selling items collected or desirable due to age, rarity, condition or some other unique feature. (5465)

(D) A person must obtain a separate license for each location in the City where they operate as an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer, except a separate license is not required for each location for firearms transactions by a pawnbroker acting as a federally licensed firearms dealer at an organized gun show in accordance with A.R.S. § 44-1627. (5465)

(E) All licenses will be issued for a period of one (1) year. Licenses cannot be sold or transferred. (5465)

(F) A licensee must display its license in a conspicuous place at the business location. (5465)

(G) A licensee must at all times be in compliance with local, state, and federal law applicable to the licensed activity which could include, but is not limited to, the laws set forth in A.R.S. Title 44. If the language of this Chapter is preempted and conflicts with the language of state law, then the state law will control. (5465)

5-7-3: LICENSE APPLICATION; FEE

(A) Any person desiring to obtain an auctioneer, pawnbroker, scrap metal dealer or secondhand dealer license must apply to the Licensing Office. An applicant for a license must present to the Licensing Office the

completed application, containing all information requested on the application and corresponding documents, along with the required application fee and fingerprint records. The application fee is non-refundable unless otherwise required by law. (5465)

(B) Following receipt from the applicant of a complete application, fingerprints, and application fee as set forth in the Schedule of Fees and Charges, the Licensing Office will refer the application to the Police Department for investigation and criminal record review in accordance with this Chapter. (5465)

(C) The Licensing Office will grant a license to an applicant unless it determines that the application is subject to denial in accordance with Section 5-7-8. (5465)

(D) Upon approval, and prior to the issuance of a license, the applicant must: (i) pay a first-year license fee in accordance with the Schedule of Fees and Charges, and (ii) provide the Licensing Office with a designated agent if that person was not named in the application. (5465)

(E) A person must apply for a license on forms furnished or approved by the City. The forms will include requests for information deemed necessary by the City consistent with the requirements of this Chapter and applicable law. (5465)

5-7-4: FINGERPRINTING REQUIREMENTS

(A) Each person applying for a license must submit a full set of fingerprints to the City in a manner approved by the Licensing Office, including fingerprints for all controlling persons of the applicant. The fingerprints will be submitted to the Arizona Department of Public Safety to be used to obtain a state and federal criminal records check in accordance with A.R.S. § 41-1750 and Public Law 92-544. The Arizona Department of Public Safety is authorized to exchange this fingerprint data with the Federal Bureau of Investigation. (5465)

(B) The Police Department, on behalf of the Licensing Office, will receive and review the criminal history record information resulting from the criminal records check set forth above, including conviction and non-conviction data of license applicants and controlling persons, for the purpose of evaluating the fitness of licensees and controlling persons in connection with the issuance, renewal, suspension or revocation of a license. Such information will be used only for the purpose of such evaluation or for the purpose of supporting and defending a denial, non-renewal, suspension, or revocation of a license. (5465)

(C) The Police Department will have a reasonable time within which to investigate the application and background of the applicant and controlling persons. Based on such investigation, the Police Department will recommend to the Licensing Office approval or denial of the license. (5465)

5-7-5: LICENSE RENEWAL

(A) A license, unless revoked, may be renewed by a licensee and such renewal will be valid for a term of one (1) year. The completed renewal application must be submitted by the licensee no later than forty-five (45) calendar days prior to the expiration of the license along with the applicable renewal fee in the Schedule of Fees and Charges. The Licensing Office is authorized to obtain necessary information to update the original license application and to determine whether the license should be renewed in accordance with the requirements of this Chapter. (5465)

(B) If a licensee fails to submit a complete renewal application and renewal fee at least forty-five (45) calendar days prior to the expiration of the term of the license, the license will expire at the end of the term of the license and will be deemed non-renewable. Licensees who fail to renew their license, but who wish to continue operating as an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer, must file a new application for a license pursuant to Section 5-7-3 and may not operate as an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer in the City until a new license is issued. (5465)

(C) An application for renewal of a license may be denied based on the standards set forth in Section 5-7-8. (5465)

5-7-6: RECORDKEEPING AND REPORTING REQUIREMENTS; INSPECTIONS

(A) Pawnbrokers. Pawnbrokers must file a true, complete and accurate report with the Police Department of each article the pawnbroker receives subject to the reporting requirements set forth in A.R.S. Title 44, Chapter 11, Article 3. (5465)

(1) Reports filed with the Police Department will be consistent with the requirements contained in A.R.S. § 44-1625. Reports will be filed on forms approved by the Police Department. The form will contain a statement in which the seller will be required to attest to the accuracy of the information contained in the report and the authority to enter into the transaction. The pawnbroker must collect a fingerprint from the right index finger of the pledgor or seller as required on the approved forms. The pawnbroker must purchase the transaction report forms in a manner required by the City at the rate set forth in the Schedule of Fees and Charges. (5465)

(2) No article will be sold or exchanged by any pawnbroker until it has been in the custody of the pawnbroker for twenty (20) calendar days after the transaction date. Any article held in custody pursuant to this Subsection (A)(2) must not be altered or transformed in any way, but must be held in the same condition in which it was delivered to the pawnbroker. This Subsection (A)(2) does not apply to the redemption of pawned or pledged articles. (5465)

(B) Secondhand Dealers. (5465)

(1) Reportable Transactions and Records. (5465)

(a) Secondhand dealers must file a true, complete and accurate report with the Police Department of each article the secondhand dealer receives on deposit, consignment, trade, exchange, or purchase that meets any of the following requirements (hereafter "Reportable Transaction"): (5465)

(i) Bears a serial number; (5465)

(ii) Bears an owner applied number (O.A.N.); (5465)

(iii) Has a fair market value in excess of one hundred dollars ($100.00); (5465)

(iv) Any item that meets the definition of a "precious item" as that term is defined in A.R.S. § 44-1601; or (5465)

(v) Any coin fabricated from a metal meeting the definition of a "precious item" as set forth in A.R.S. § 44-1601 and that does not meet the definition of "numismatic coin" as that term is defined in A.R.S. § 44-1801. (5465)

(b) Reports must be filed on forms approved by the Police Department within two (2) business days of the Reportable Transaction. The form will contain a statement in which the seller will be required to attest to the accuracy of the information contained in the report and the authority to enter into the transaction. The secondhand dealer must collect a fingerprint of the right index finger of the pledgor or seller of an article in a Reportable Transaction as required on the approved forms and verify the identity of the seller as required by A.R.S. § 44-1602. The secondhand dealer must purchase the transaction report forms in a manner required by the City at the rate set forth in the Schedule of Fees and Charges. (5465)

(c) A secondhand dealer will retain in its custody any article obtained in a Reportable Transaction at its place of business or other storage location approved by the Police Department for a period of twenty (20) calendar days after filing a completed report form with the Police Department. Any article held in custody must not be altered or transformed in any way, but will be held in the same condition in which it was delivered to the secondhand dealer. (5465)

(d) The provision of Subsection 5-7-6(B)(1) do not apply to any of the following: (5465)

(i) Purchases by a secondhand dealer from a business with a fixed business location of either business inventory or business equipment, provided the secondhand dealer acquires, by the time of the transaction, the secondhand dealer has documentation of: (5465)

a. The name and address of the business; (5465)

b. The state and local privilege (sales) tax license number of the business, if applicable; and (5465)

c. A copy of the invoice or other document showing the business's bona fide purchase of or right to possess the articles sold to the secondhand dealer and, where applicable, a copy of a completed report required by Subsection 5-7-6(B)(1) filed with the Police Department by the business. (5465)

(ii) Secondhand dealer purchases of household items from a place of residence provided all the below requirements are met. (5465)

a. The purchase is made by the secondhand dealer by check or other negotiable instrument made payable to the seller, or the purchase is made in cash and the secondhand dealer has obtained a receipt for that cash payment from the seller bearing the seller's name and address verified to be accurate by the secondhand dealer. (5465)

b. The seller produced for the secondhand dealer's inspection documentation establishing the seller is either the lawful occupant or the premises from which the household items are being sold or the seller had the legal right to sell the items offered for sale. The secondhand dealer must either retain a copy of the documentation produced or record from the documentation a description of the document, including the name or nature of the document, and, to the extent available, its date, the seller's name and address thereon, and any account number. (5465)

(iii) Consignments to secondhand dealers, other than a firearm, provided that no payment is made by the secondhand dealer to the consignor for a period of ten (10) calendar days after the date of consignment. (5465)

(iv) Articles received by a secondhand dealer in trade, exchange, or by purchase which are: (1) used clothing or furniture; (2) from a business engaged in the lawful liquidation of its business; or (3) from an auctioneer or pawnbroker possessing a valid license. (5465)

(e) All documentation required to substantiate any of the exclusions set forth in Subsection (d) above must be retained on the business premises of the secondhand dealer for a period of twenty-four (24) months from the day the article is acquired by the secondhand dealer. (5465)

(2) Dealers of Precious Items. (5465)

(a) In addition to the requirements set forth in Subsection 5-7-6(B)(1) above, secondhand dealers who deal in "precious item[s]" as defined in A.R.S. § 44-1601 must maintain the records, file the reports and meet all requirements of A.R.S. Title 44, Chapter 11, Article 1. (5465)

(b) Reports filed with the Police Department will be consistent with the requirements contained in A.R.S. § 44-1602. Reports will be filed on forms approved by the Police Department. The secondhand dealer must collect a fingerprint of the right index finger of the seller of a precious item as required on the approved forms. (5465)

The secondhand dealer must purchase the transaction report forms in a manner required by the City at the rate set forth in the Schedule of Fees and Charges. The form will contain a statement in which the seller will be required to attest to the accuracy of the information contained in the report and the authority to enter into the transaction. (5465)

(3) Used Automotive Components Dealer. (5465)

"Used automotive component dealers", as that term is defined in A.R.S. § 44-1321, must maintain the records and file the reports set forth in A.R.S. Title 44, Chapter 9, Article 9. (5465)

(C) Auctioneers. Auctioneers must file a true, complete and accurate report with the Police Department of all articles received by the auctioneer except for clothing, books, records, compact discs, and audio tapes. Reports will be made on forms approved by the Police Department. The form will contain a statement in which the seller will be required to attest to the accuracy of the information contained in the report and the authority to enter into the transaction. The auctioneer must collect a fingerprint of the seller of the article as required on the approved forms. The auctioneer must purchase the transaction report forms in a manner required by the City at the rate set forth in the Schedule of Fees and Charges. The reports must be delivered or postmarked within twenty-four (24) hours after receipt of the article. An auctioneer will describe the article using either of the following methods: (5465)

(1) By attaching a legible copy of the auctioneer's consignment agreement, purchase receipt, purchase invoice, or other similar document containing a description of the article; or (5465)

(2) For groups of articles that are received as part of one business transaction that are not readily distinguishable or identifiable as individual items, by furnishing on one (1) report a general description of the group of articles. (5465)

(D) Scrap Metal Dealers. Scrap metal dealers must file a true, complete and accurate record within twenty-four (24) hours of receipt of scrap metal in accordance with A.R.S. Title 44, Chapter 11, Article 3.1. (5465)

(E) If a licensee comes into possession of abandoned property, the licensee must turn over such property to the Police Department who will hold the property in accordance with Police Department policy. For this Subsection (E), "abandoned property" is defined as property that was voluntarily discarded, left behind or otherwise intentionally relinquished by the owner. (5465)

(F) It will not be considered a violation of Section 5-7-6 if the violation is the result of a bona fide error, provided the auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer maintains procedures reasonably adapted to avoid the occurrence of such bona fide error. For the purpose of this Subsection (F), bona fide error means clerical, calculation, computer malfunction, programming, printing, and other similar errors. (5465)

(G) Inspections. The business premises of any licensee, along with their transaction records and stock of goods (articles) will be open to reasonable inspection by any peace officer of any governmental unit within or of this state when the business premises are open during regular business hours. Each licensee must maintain a current copy of this Chapter on the premises and will make it available upon request to any employee, customer, and law enforcement. (5465)

(H) All auctioneers, pawnbrokers, scrap metal dealers, and secondhand dealers must maintain at their place of business a copy of any reports or transaction records required under this Chapter or applicable law for a period of at least two (2) years after the date the transaction occurred. (5465)

5-7-7: FRUITS OF A CRIME; POLICE HOLD

(A) Upon notification by any peace officer that the peace officer has probable cause to believe property received on deposit or consignment, in pawn, pledge, trade, exchange, or purchase are the fruits of a crime, the peace officer may place a Police Hold (as defined herein) on such article and no auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer will dispose of such article (sell, trade, return to consignor, or otherwise relinquish possession of) until notified by the law enforcement agency of which the peace officer placing the hold is a member. (5465)

(B) A peace officer may place a hold on property requiring an article not to be disposed of in any manner (hereafter "Police Hold"). A Police Hold must be requested with a written notice; however, an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer will honor a Police Hold made in person, via telephone, or by other reasonable means of communication for five (5) business days after which time the Police Hold will no longer be valid unless written notice is received continuing the Police Hold during the five (5) business day period. A written notice for a Police Hold will include all the following information: (5465)

(1) The date the Police Hold; (5465)

(2) A description of the property, including serial number if applicable; (5465)

(3) The name and, if applicable, badge number of the peace officer requesting the Police Hold; (5465)

(4) The telephone number of the peace officer requesting the Police Hold; and (5465)

(5) The law enforcement agency's report number. (5465)

(C) If a peace officer declares a Police Hold on any article, the auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer must attach a tag supplied by the Police Department to the article. The tag will include the information required on the written notice of the Police Hold as set forth in Subsection (B) above. The tag must remain on the article until the law enforcement agency releases the Police Hold or until the Police Hold expires pursuant to Subsection (D) below. (5465)

(D) A Police Hold will expire ninety (90) calendar days after the date of the Police Hold. For the purpose of criminal investigation or for use in any judicial proceeding, a Police Hold may be extended by the law enforcement agency in ninety (90) day increments by written notification to the auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer if the notification is received prior to the expiration of the Police Hold. (5465)

(E) Interest upon articles pawned or pledged will cease to accrue during a Police Hold. (5465)

(F) Upon receiving a receipt from any peace officer, the auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer must turn over articles on a Police Hold to the peace officer. (5465)

5-7-8: LICENSE DENIAL, SUSPENSION, OR REVOCATION

(A) In addition to any penalties set forth in this Chapter, an application for a license may be denied for any of the following reasons: (5465)

(1) Police Department recommends denial of an application based upon applicant's failure to meet the requirements set forth in this Chapter or applicable state law. (5465)

(2) Applicant or a controlling person was convicted within the ten (10) year period immediately preceding the date of application of any of the following: (5465)

(a) A felony or misdemeanor offense having a reasonable relationship to the functions of an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer, as applicable; (5465)

(b) A felony offense involving trafficking in stolen property, fraudulent schemes, forgery, theft, extortion or conspiracy to defraud; or (5465)

(c) A felony or misdemeanor offense of a crime involving moral turpitude. (5465)

(3) Applicant failed to pay the application processing fee or, upon approval of the license, failed to pay the applicable license fee. (5465)

(4) Applicant or a controlling person has an outstanding warrant for his or her arrest. (5465)

(5) Application contained false statements or material misrepresentations. (5465)

(6) Applicant failed to provide all the information and documentation required for the application. (5465)

(7) Applicant or a controlling person is currently in violation of any provision of this Chapter. (5465)

(8) Applicant currently owes a debt to the City and therefore cannot be issued a license as set forth in Mesa City Code Title 1, Chapter 32. (5465)

(9) Applicant failed to meet a requirement set forth in this Chapter or state law for the issuance of a license by the City. (5465)

(10) Applicant, within the one (1) year period immediately preceding the date of application, had an application for a license denied or had a license revoked. (5465)

(B) In addition to any penalties set forth in this Chapter, an application for renewal of a license may be denied for any of the following reasons: (5465)

(1) Applicant failed to submit the renewal application within the required time frame or pay the applicable fee. (5465)

(2) For any reason set forth in Subsection (A) above except a renewal license may be issued if the licensee or controlling person has any felony or misdemeanor charge of the type set forth in Subsection (A) pending in a trial court (defined as a court of original jurisdiction where the evidence is first received and considered); however, the issuance of such renewal license will not prevent the City from taking any action prescribed in this Chapter against the licensee should the licensee or controlling person be convicted of the pending charge including, but not limited to, suspension or revocation of the license. (5465)

(C) In addition to any penalties set forth in this Chapter, a license will be suspended if during the term of the license: (5465)

(1) Licensee or a controlling person for the licensee is convicted of a criminal offense: (5465)

(a) Having a reasonable relationship to the functions of an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer; (5465)

(b) Involving trafficking in stolen property, fraudulent schemes, forgery, theft, extortion or conspiracy to defraud; or (5465)

(c) A crime involving moral turpitude. (5465)

(2) The application upon which the license was awarded was found to contain false statements or material misrepresentations, or the licensee failed to meet any of the requirements for the issuance of a license. (5465)

(3) Licensee or a controlling person for the licensee knows or should have known that trafficking in stolen property is occurring or has occurred in the operation of the licensed establishment. (5465)

(4) The licensee ceased to use the license for purposes of the business of an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer. The failure of a licensee to operate in the business of an auctioneer, pawnbroker, scrap metal dealer, or secondhand dealer under the license for thirty (30) consecutive calendar days will create a rebuttable presumption the licensee has ceased to use the license. (5465)

(5) If on two (2) or more occasions within an eighteen (18) month period, the licensee or an employee, agent or representative of the licensee, while in the conduct of business at the licensed establishment, commits a criminal offense of the type set forth in Subsection 5-7-8(C)(1). For the purposes of this Subsection (C)(5): (5465)

(a) a person will be deemed to have committed an offense upon conviction; (5465)

(b) in applying the eighteen (18) month provision, the date of the commission of the offense will be the determining factor; and (5465)

(c) the two (2) or more offenses subjecting the license to suspension do not have to be committed by the same person and do not have to be violations of the same statute or ordinance so long as they are offenses of the type listed in Subsection 5-7-8(C)(1). (5465)

(6) The penalty for a suspension under Subsection (C) will be: (5465)

(a) For the first suspension of a license during an eighteen (18) month period, licensee will pay a fine of $250 and the license will be suspended up to fourteen (14) calendar days. (5465)

(b) For the second suspension of a license during an eighteen (18) month period, licensee will pay a fine of $500 and the license will be suspended a minimum of fifteen (15) calendar days up to a maximum of thirty (30) calendar days. (5465)

(c) For the third suspension of a license during an eighteen (18) month period, the license will be revoked. (5465)

(D) In applying the eighteen (18) month period provision of Subsection 5-7-8(C)(6) the date the decision was issued by the Business Licensing Administrator for the first of the three (3) suspensions will constitute the beginning of the eighteen (18) month period. (5465)

5-7-9: APPEALS

(A) Any party aggrieved by a decision of the Business Licensing Administrator may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of the decision. The appeal must be in writing, state the grounds for the appeal, and be sent to the Business Services Director; the failure of an appeal to meet the requirements of this Subsection will entitle the Business Services Director to deny the appeal without further review. (5465)

(B) If an appeal meets the requirements of Subsection (A), the Business Services Director will schedule a hearing with a Hearing Officer within thirty (30) calendar days of receipt of the appeal and the Hearing Officer will render a decision within sixty (60) calendar days of the hearing. The filing of an appeal meeting the requirements of Subsection (A) will suspend the decision of the Business Licensing Administrator until the Hearing Officer has rendered their decision. Any suspended decision of the Business Licensing Administrator, if upheld by the Hearing Officer, will be reinstituted and dated as of the original date the decision was issued by the Business Licensing Administrator; however, if the decision pertained to a period of suspension and such period of time has already passed, in whole or in part, the Hearing Officer may designate the period of suspension in accordance with this Chapter. (5465)

(C) All proceedings before a Hearing Officer will be informal and without a jury, except that testimony will be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory

provisions relating to privileged communications. No prehearing discovery will be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. (5465)

(D) If either party to the appeal is aggrieved by the decision of the Hearing Officer, the aggrieved party may file a complaint of special action in an Arizona Superior Court with proper jurisdiction to review the Hearing Officer's decision at any time within thirty (30) calendar days after final decision of the Hearing Officer has been rendered. Failure to bring the action within thirty (30) calendar days, or such other time as is agreed upon in writing by the parties to the hearing, will constitute a waiver of any right to judicial review of the Hearing Officer's decision. (5465)

(E) The decision of the Business Licensing Administrator, if not appealed, will be the City's final determination on a matter pursuant to this Chapter. If the decision of the Business Licensing Administrator is appealed to a Hearing Officer, the decision of the Hearing Officer will be the City's final decision on the matter unless appealed in accordance with this Chapter. (5465)

5-7-10: EXEMPTIONS

The requirements of this Chapter do not apply to any of the following: (5465)

(1) Any person who deals exclusively with clothing, phonograph records, books, audio cassette tapes, videotapes, compact discs, or digital video discs. (5465)

(2) Any person who deals exclusively in titled vehicles or titled articles, the transfer of title to which is governed by the laws of the state, must be evidenced by written instrument, and recorded as a public record. (5465)

(3) The operator of any self-service storage facility foreclosing its lien in accordance with A.R.S. § 33-1704. For this Subsection (3), the terms "operator" and "self-service storage facility" have the meanings prescribed in A.R.S. § 33-1701. (5465)

(4) Garage sales, rummage sales, or similar nonrecurring sales between individuals. (5465)

(5) Any organization exempt from federal income tax under Section 501 of the Internal Revenue Code. (5465)

(6) Any business dealing in rent-to-own merchandise where the business is the original owner of the merchandise. (5465)

(7) Any person who deals exclusively in "numismatic coins" as that term is defined in A.R.S. § 44-1801. (5465)

(8) Any operator of an Automated Kiosk who is issued an Automated Kiosk license by the City pursuant to Mesa City Code Title 5, Chapter 22. (5465)

(9) Any persons who engage strictly and solely in the selling of secondhand goods, wares, merchandise, or articles.

(Ord. No. 5935, § 1, 4-7-25)

5-7-11: PENALTY

Among other penalties that may apply, a person that violates any provision of this Chapter will be guilty of a class one misdemeanor. Upon conviction, an individual (natural person) will be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by such fine and imprisonment. Upon conviction, a business entity will be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00). Each day in which a violation continues will constitute a separate criminal offense, punishable as described above. (5465)

CHAPTER 8
PEDDLERS AND SOLICITORS*

5-8-1: PURPOSE AND ADMINISTRATION

(A) The purpose of this Chapter is to protect the public health, safety, and welfare by establishing reasonable regulations for peddlers and solicitors who operate throughout the City and interact with the public both in public locations and at private homes and businesses and to promote the safe and orderly operations of peddlers and solicitors in the City.

(B) It is the duty and responsibility of the Licensing Administrator to administer the provisions of this Chapter. The Licensing Administrator will issue, deny, suspend, and revoke licenses as required by this Chapter as well as issue notices in accordance with Section 5-8-7(D) and enforce civil violations in accordance with Section 5-8-8(B). An application for a license will be granted or denied within the timeframes established by the Licensing Administrator. Pursuant to these duties, the Licensing Administrator has the authority to create rules, regulations, and policies related to peddlers, solicitors, and licenses consistent with the purpose of this Chapter.

(Ord. No. 5621, § 1, 5-17-21)

5-8-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section 5-8-2 apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

APPLICANT: A natural person who applies for a license pursuant to this Chapter and who, upon approval of the application, will be the licensee.

A.R.S.: Arizona Revised Statutes.

CITY: The City of Mesa, Arizona.

DIRECTOR: The City's Business Services Director or designee.

***Editor's note—**Ord. No. 5621, § 1, adopted May 17, 2021, repealed the former Ch. 8, §§ 5-8-1—5-8-16, and enacted a new Ch. 8 as set out herein. The former Ch. 8 pertained to peddlers, solicitors, and transient merchants and derived from Ord. Nos. 1016, 1043, 1428, 1605, 1629, 1815, 1844, 1891, 1981, 2383.

HEARING OFFICER: The City staff person responsible for hearing appeals under this Chapter, or other such individual contracted with the City to hear appeals under this Chapter.

LICENSE: A peddler and solicitor license issued to a natural person in accordance with the provisions of this Chapter.

LICENSEE: The natural person who applied for a license pursuant to this Chapter and in whose name such license was issued by the City pursuant to this Chapter.

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator, or other such City employee who supervises the Licensing Office or designee.

MOBILE FOOD VENDOR: As defined by Mesa City Code Section 5-4-2.

PEDDLE: To sell and make immediate delivery, or offer for sale and immediate delivery, any personal property, good, merchandise, ware, or thing, in possession of the seller, at any place within the City other than from a fixed place of business.

PEDDLER: A natural person who peddles.

SCHEDULE OF FEES AND CHARGES: The City's then current schedule of fees and charges approved by the City Council.

SOLICIT: To sell or take orders, or offer to sell or take orders, for any personal property, good, merchandise, ware, or thing for future delivery, or for services to be performed in the future.

SOLICITOR: A natural person who solicits.
(Ord. No. 5621, § 1, 5-17-21)

5-8-3: LICENSING REQUIREMENTS

(A) It is unlawful for a person to peddle or solicit within the City without a valid license.

(B) A license is valid for a period of one (1) year from the date of issuance/renewal so long as the licensee is in compliance with this Chapter. A license is non-transferable and non-assignable. Any attempted transfer or assignment will void the license and all fees paid will be forfeited. A license does not create an exclusive right for a licensee to peddle or solicit in a specific area or location on public property.

(C) A person desiring to obtain a new or renewal license must apply to the City by presenting a complete application on the forms prescribed by the Licensing Administrator and accompanied by the applicable fees prescribed in the schedule of fees and charges to the Licensing Administrator. The application must include, but not be limited to:

(1) The name, address, and contact information of the applicant including a history of residential addresses of the applicant;

(2) A general description of the nature of the business and the goods and services to be sold;

(3) If engaging in business from a "vehicle" as that term is defined in A.R.S. § 28-101(77), a description, including make, model, year, and color, license plate number, photograph, proof of insurance, and proof of registration for the vehicle;

(4) If required by Subsection (E) below, the fingerprints of the applicant; and

(5) A certification from the applicant stating whether the applicant has been convicted of any crime or violation of law (excluding civil traffic convictions), the nature of the offense, and the punishment and penalty assessed.

(D) Following receipt of the required documents and fees, all applications will be submitted to the City Police Department for investigation and criminal record review on behalf of the City Licensing Office. The Police Department will receive and review the criminal history record information resulting from the criminal records check, including conviction and non-conviction data, of the applicant for the purpose of evaluating the fitness of the applicant in connection with the issuance, renewal, suspension, or revocation of a license. The Police Department evaluation and the criminal information obtained must be used only for the purpose of supporting and defending a denial, non-renewal, suspension, or revocation of a license.

(E) An applicant who intends to use the license to peddle or solicit by traveling door to door, whether to residential or commercial locations, must submit, with the application, a full set of fingerprints in the manner prescribed by the Licensing Administrator.

(1) The fingerprints will be submitted to the Arizona Department of Public Safety to obtain a state and federal criminal records check in accordance with A.R.S. § 41-1750 and Public Law 92-544. The Arizona Department of Public Safety is authorized to exchange this fingerprint data with the Federal Bureau of Investigation.

(2) The City Police Department, on behalf of the City Licensing Office, will receive and review the criminal history record information resulting from the criminal records check set forth above, including conviction and non-conviction data, of the applicant for the purpose of evaluating the fitness of the applicant in connection with the issuance, renewal, suspension, or revocation of a license. Such information must be used only for the purpose of such evaluation or for the purpose of supporting and defending a denial, non-renewal, suspension or revocation of a license.

(F) A complete renewal application must be submitted to the Licensing Administrator no later than forty-five (45) calendar days prior to the expiration of a license; otherwise, the license will be deemed expired and non-renewable. If the renewal application is not received as stated above, the licensee must submit an application for a new license and provide all information and fees required for a new license application.

(G) A licensee must update the Licensing Administrator in writing of any change to any information provided in an application, including but not limited to the information listed in Subsection (C) above, within ten (10) calendar days of occurrence of the change.

(H) The Licensing Administrator may refuse to issue a new or renewal license for any of the following reasons:

(1) The application was incomplete, the application was not timely submitted, the applicant made false or misleading statements to City staff during the application process, the application contains false or misleading statements, or the fees required by the schedule of fees and charges were not paid;

(2) The applicant, within one (1) year period immediately preceding the submission of the application, failed to update application information pursuant to Subsection (G) above;

(3) The applicant is currently in violation of this Chapter;

(4) The applicant failed to comply with any federal or state law applicable to a peddler or solicitor;

(5) The applicant has a current debt related to any open or closed account maintained with the City; or

(6) The applicant, within the ten (10) year period immediately preceding the submission of the application, was convicted of any of the following crimes or the applicant has any outstanding warrants or any pending cases in any court of competent jurisdiction involving such crimes:

(a) Felony or misdemeanor involving trafficking in stolen property, fraud, forgery, theft, burglary, robbery, extortion, conspiracy to defraud, or any preparatory offenses of the aforementioned crimes;

(b) Felony or misdemeanor involving a fraudulent or dishonest act;

(c) Felony or misdemeanor involving the sale, manufacture, or transportation of any dangerous drug as defined in A.RS. § 13-3401, a "violent crime" under A.RS. Title 13, Chapters 11, 12, or 13, a "sexual offense" under A.R.S. Title 13, Chapter 14, or for conduct in another jurisdiction which if carried out in Arizona would constitute an offense under one of the statutory provisions enumerated in this Subsection; or

(d) Felony or misdemeanor involving moral turpitude.

(Ord. No. 5621, § 1, 5-17-21)

5-8-4: EXEMPTIONS

The following persons are exempt from the requirements of this Chapter:

(A) A person who peddles or solicits solely on behalf of a nonprofit organization exempt from federal income tax under Section 501 of the Internal Revenue Code;

(B) A person who peddles or solicits solely at a special event and is listed on the vendor list for the special event and the special event has a valid license issued pursuant to Mesa City Code Title 5, Chapter 1. For purposes of this Subsection, "special event" means as defined in Mesa City Code Title 11, Chapter 87 and "vendor list" means as defined in Mesa City Code Section 5-1-2;

(C) A mobile food vendor with a valid license issued pursuant to Mesa City Code Title 5, Chapter 4;

(D) A "producer" of a "food product" as those terms are defined by A.R.S. § 3-561 and any employee, agent, family member, or other person in the service of the producer, when the food products are sold or disposed of on behalf of and for the benefit of the producer;

(E) A person who peddles or solicits solely newspapers;

(F) A person who peddles or solicits solely goods they made by hand and solely at a fair, bizarre, market, or similar event;

(G) An individual under the age of eighteen (18); and

(H) A person who is exempted from the licensing requirements of this Chapter by state law.

(Ord. No. 5621, § 1, 5-17-21)

5-8-5: OPERATIONAL REQUIREMENTS

(A) It is unlawful for a person to peddle or solicit in violation of this Section 5-8-5.

(B) A licensee must keep the license on their person or post the license in a conspicuous place in the vehicle or facility from which the licensee conducts business at all times while they peddle or solicit, and the license must be made available for inspection upon the demand of any City official.

(C) A licensee must comply with the City Zoning Ordinance set forth in Title 11 of the Mesa City Code.

(D) A peddler and solicitor must not:

(1) Operate in any area congested by either traffic or people where operation might unreasonably impede or inconvenience the public. For purposes of this Subsection, the good faith judgment of a police officer is conclusive as to whether an area is congested and as to whether the public is impeded or inconvenienced;

(2) Yell, shout, cry out, blow a horn, ring a bell, or use any sound-amplifying devices or systems such as loudspeakers, microphones, radios, or any other similar devices for the purpose of attracting attention to themselves or their business if the sound emitted or produced is of sufficient volume that it can be plainly heard upon the thoroughfares;

(3) Peddle or solicit by travelling door to door, whether to residential or commercial locations, from dusk or 8:00 P.M. of any day, whichever occurs earlier, to dawn or 8:00 A.M. of the following day, whichever occurs earlier; or

(4) Peddle, solicit, ring the doorbell, knock, or otherwise attempt to gain the attention of any person at a property whereon a sign bearing the words "no soliciting" or "no peddling" or language with a similar meaning is exposed to public view.

(Ord. No. 5621, § 1, 5-17-21)

5-8-6: FEES

The following new and renewal licensing and application fees must be paid in the amounts prescribed in the schedule of fees and charges: (1) application fee; and (2) annual license fee.
(Ord. No. 5621, § 1, 5-17-21)

5-8-7: VIOLATIONS; SUSPENSION; REVOCATION

(A) It is a violation of this Chapter for a person to provide false information on any license application.

(B) It is a violation of this Chapter for a person to peddle or solicit without meeting all the requirements in this Chapter.

(C) It is a violation of this Chapter for a peddler or solicitor to fail to display the license or other required documents to any City official upon demand.

(D) The Licensing Administrator must give written notice of a violation to the licensee which may result in the suspension or revocation of the license and/or a civil penalty. The notice must include a description of the violation, the statutory or code reference, how the licensee can comply with the requirements, a description of the process whereby a hearing may be requested, the time limit for requesting a hearing, and a warning that failure to timely request a hearing may result in suspension or revocation of the License. The notice must be served on the licensee by either personal service or registered/certified mail. Service of the notice will be deemed complete upon mailing to, or personal service on, the licensee.

(E) The licensee receiving a notice under this Section may request a hearing pursuant to Section 5-8-9 below. If the licensee fails to comply with the requirements of this Chapter by the date provided in the notice and does not request a hearing, then the Licensing Administrator may suspend or revoke the license as provided in this Section.

(F) In addition to any penalties set forth in this Chapter, a license will be suspended if, during the term of the license, the licensee violates any of the provisions of this Chapter. During the suspension period, the licensee must not peddle or solicit. If a fine is associated with the violation that is the basis for suspension, the suspension may continue beyond the period set forth in this Subsection until such time as the licensee pays the fine. The penalty for a suspension of a license will be:

(1) For the first suspension of a license during a twenty-four (24) month period, the license will be suspended up to fourteen (14) calendar days and a fine will be imposed in the amount prescribed in the schedule of fees and charges.

(2) For the second suspension of a license during a twenty-four (24) month period, the license will be suspended a minimum of fifteen (15) calendar days up to a maximum of thirty (30) calendar days and a fine will be imposed in the amount prescribed in the schedule of fees and charges.

(3) For the third suspension of a license during a twenty-four (24) month period, the license will be revoked.

(G) In addition to revocation for a third suspension as set forth in Subsection (F) above, the Licensing Administrator may revoke a license if the Licensing Administrator or other City official determines that:

(1) The licensee was convicted of a criminal offense listed in Section 5-8-3(H)(6);

(2) The licensee peddled or solicited without a valid license;

(3) The licensee was previously issued three (3) or more notices of suspension or violation within a twenty-four (24) month period;

(4) The licensee failed to comply with a provision of this Chapter or failed to provide information required by this Chapter;

(5) The application upon which a license was issued contained false or misleading information or an application or license fee was not paid; or

(6) The Licensing Administrator has reasonable cause to believe that the licensee committed fraud or made misrepresentations or false statements while peddling or soliciting.

(H) If a license is revoked pursuant to this Section, the licensee may not be issued a license under this Chapter for a period of one (1) year from the date of the revocation.

(Ord. No. 5621, § 1, 5-17-21)

5-8-8: PENALTIES

(A) Each calendar day any violation of any provision of this Chapter continues will constitute a separate offense.

(B) Civil Penalty. Among other penalties that may apply, including revocation or suspension of a license (when applicable), a violation of any provision of this Chapter that is not designated in this Chapter as unlawful will be a civil code offense which may be adjudicated and enforced by the City civil hearing process set forth in Section 5-8-9.

(C) Criminal Penalty. Among other penalties that may apply, including of a license, any person who violates any provision of this Chapter that is designated as unlawful will be charged with a Class One Misdemeanor. If found guilty, such person may be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment.

(Ord. No. 5621, § 1, 5-17-21)

5-8-9: APPEALS

(A) Any party aggrieved by a decision of the Licensing Administrator may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of the decision. The appeal must be in writing, state the grounds for the appeal, and be sent to the Director. The failure of an appeal to meet the requirements of this Subsection will entitle the Director to deny the appeal without further review.

(B) If an appeal meets the requirements of Subsection (A), the Director will schedule a hearing with a Hearing Officer. The hearing will be held within thirty (30) calendar days of receipt of the appeal and the Hearing Officer will render a decision within sixty (60) calendar days of the hearing. The filing of an appeal meeting the requirements of Subsection (A) will suspend the decision of the Licensing Administrator until the Hearing Officer has rendered their decision. Any suspended decision of the Licensing Administrator, if upheld by the Hearing Officer, will be reinstituted and dated as of the original date the decision was issued by the Licensing Administrator; however , if the decision pertained to a period of suspension and such period of time has already passed, in whole or in part, the Hearing Officer may designate the period of suspension in accordance with this Chapter.

(C) All proceedings before a Hearing Officer will be informal and without a jury, except that testimony must be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. Prehearing discovery will not be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the appeal at hand.

(D) If either party to the appeal is aggrieved by the decision of the Hearing Officer, the aggrieved party may file a complaint of special action in an Arizona Superior Court with the proper jurisdiction to review the Hearing Officer's decision within thirty (30) calendar days after a final decision of the Hearing Officer has been rendered. Failure to bring the action within thirty (30) calendar days will constitute a waiver of any right to judicial review of the Hearing Officer's decision.

(E) A decision of the Licensing Administrator, if not appealed, will be the City's final decision on a matter pursuant to this Chapter. If the decision of the Licensing Administrator is properly appealed to a Hearing Officer, the decision of the Hearing Officer will be the City's final decision on the matter pursuant to this Chapter.

(Ord. No. 5621, § 1, 5-17-21)

CHAPTER 9
REGULATING THE SALE OF ALCOHOLIC BEVERAGES

5-9-1: DEFINITION

In this Chapter, unless the context otherwise requires, all words and phrases shall have the same meaning as is provided in A.R.S. Title 4, Chapter 1, and amendments thereto. (919, 4338)

5-9-2: POWERS AND DUTIES OF THE COUNCIL

The Council shall administer and enforce provisions of this Chapter and shall have power to prescribe necessary rules and regulations for carrying out such provisions. (919)

5-9-3: MANUFACTURE OR SALE WITHOUT LICENSE ILLEGAL

It shall be unlawful for any person to buy, sell, or deal in spirituous liquors within the City under any circumstances which would require a license from the State without first having procured a license issued by the Business Licensing and Revenue Collections Administrator as herein provided. Such license shall be displayed by the licensee at a conspicuous place in the business. (1606, 4338)

5-9-4: APPLICATION FOR LICENSE

(A) Any person desiring a license to manufacture, sell, or deal in spirituous liquor shall file an application on forms prescribed and furnished by the Arizona State Department of Liquor Licenses and Controls.

Each application, except a qualifying organization requesting a special event liquor license, shall pay to the Special Licensing Office at the time of making application an application fee in accordance with the current Schedule of Fees and Charges, no part of which shall be returned whether the application is granted or not.

(B) The Special Licensing Office shall immediately file one (1) copy of the application in the office and post the other for a period of twenty (20) days in a conspicuous place on the front of the premises wherein the business is proposed to be conducted, with a statement requiring any person who is a bona fide resident residing, owning, or leasing property within a one- (1-) mile radius from the premises proposed to be licensed and who is in favor of or opposed to the issuance of the license to file written arguments in favor of or opposed to the issuance of the license with the City Clerk within twenty (20) days after the date of posting. The City Clerk shall forward all written arguments to the Business Licensing and Revenue Collections Administrator.

(C) The Council, except as provided for in City Code Section 5-9-4(D), shall then enter an order recommending approval or disapproval within sixty (60) days after filing of the application and shall file a certified copy of the order with the State Liquor Board. If the recommendation is for disapproval, then a statement of the specific reasons containing a summary of the testimony or other evidence supporting the recommendation for disapproval shall be attached to the order. All petitions submitted to the City Council within the twenty- (20-) day period for filing protests shall be transmitted to the State Liquor Board with the certified copy of the order. Upon approval of the application by the State Liquor Board, the Business Licensing and Revenue Collections Administrator shall issue a license to the applicant.

(D) The City Manager or their designee is authorized to recommend approval or denial of all special event liquor licenses in conformance with state and city law requirements for issuance of a special event liquor license.

(Ord. No. 5877, § 2, 10-7-24)

5-9-5: QUALIFICATIONS OF LICENSEE

No applicant shall be issued a spirituous liquor license from the City unless such applicant meets all of the requirements set forth in the A.R.S. Title 4, Chapter 2, Article 1, as amended, for the issuance of a State liquor license. (4338)

5-9-6: ISSUANCE OF LICENSES

Every person applying for a license under this Chapter shall pay the application fee provided for in Section 5-9-4 hereof and shall also pay the issuance fee and the license fee described in this Chapter for each place of business maintained by such applicant. (1673)

5-9-7: ISSUANCE; LICENSE AND TRANSFER FEES

The issuance fees and annual fees for licenses to be paid to the City shall in accordance with the current Schedule of Fees and Charges. (4338)

The issuance fee shall be paid at the time of making application for the license, and if the license is not issued, shall be returned to the applicant. The first annual fee shall be paid with the application, and if the license is not issued, it shall be returned to the applicant. The renewal fee shall be paid annually in advance on or before the thirty-first (31) day of December of each year, and if not paid when due, an additional twenty percent (20%) penalty shall immediately become due and owing. Every license shall expire on December 31 of each year. (919, 2127, 2139)

Each application for a transfer of license, whether a transfer from person to person, location to location, change of agent for a corporation, or any other type of transfer, shall for the purposes of this Chapter be treated as if the application were for the issuance of an original license, and the application fee, the issuance fee, and the annual fee shall be paid with such application, notwithstanding that the annual fees may have been paid with respect to that license elsewhere. (919)

5-9-8: SANITATION AND COMPLIANCE WITH OTHER LAWS AND ORDINANCES

It shall be unlawful for any person to sell spirituous liquors in the City without first having provided this place of business or establishment adequate toilet and sanitation conveniences and without having first complied with all the requirements of any law or ordinance of the City or any law of the State which may be applicable thereto. (919, 4338)

CHAPTER 10
PRIVILEGE AND EXCISE TAXES

GENERALLY

5-10-1: CODE ADOPTED

That certain document known as "Chapter 10, Privilege and Excise Taxes of the City of Mesa, Arizona," three (3) copies of which are on file in the office of the City Clerk of the City, which document was made a public record by Resolution No. 5831 of the City, is hereby referred to, adopted and made a part hereof as if fully set out in this Chapter, the provisions thereof to become effective on April 8, 1987. (2175)

5-10-2: VIOLATION, PENALTY

Any person convicted of a violation of any provision of Title 5, Chapter 10, Mesa City Code shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a term not to exceed six (6) months, or by both fine and imprisonment. (2447, 2466)

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57			1	Telecommunication services definition
58			2	Gross income definition
58		(B)		Resale telecommunication services
58		(C)		Interstate transmissions
58		(D)		(Reserved)
58		(E)		(Reserved)
58		(F)		Prepaid calling cards
58		(G)		Internet access services
58	475			Transporting for hire (Reg. 475.1)
58		(A)		Railroads
59		(B)		Pipelines
59		(C)		Aircraft (freight only)
59		(D)		(Reserved)
59		(E)		(Reserved)
59		(F)		Deductions or Exemptions
59		(G)		Exception
59	480			Utility services
59		(A)		Measure of tax; rate
59			1	Services to in-City residents

Page	*Section*	*Letter*	*No.*	*Description*
59			2	Municipal utility services to out-of-City customers
59		(B)		Sales of natural gas to Public Utilities for generation of electricity deemed retail sales
59		(C)		Resale utility services
60		(D)		(Reserved)
60		(E)		Sales to qualifying hospital, health center, or health care organization
60		(F)		Sales of natural gas or liquefied petroleum gas for motor vehicles
60		(G)		Contributions received in aid of construction
60		(H)		Sales of alternative fuel to used oil fuel burner
60		(I)		Sales or other transfers of renewable energy credits
60	485			Wastewater Removal Services
ARTICLE V - ADMINISTRATION				
61	500			Administration of this Chapter; rule making
61		(A)		Administration vested in the Tax Collector
61		(B)		Tax Collector shall prescribe forms and procedures
61		(C)		City Council approves Regulations
61		(D)		(Reserved)
61		(E)		Unified Audit Committee guidelines
61	510			Divulging of information prohibited; exceptions
61		(A)		Divulging information prohibited except as provided here
61		(B)		City Council authorized examination by another U.S. jurisdiction
61		(C)		Tax Collector can provide information to another Arizona privilege tax administration
61		(D)		Successors, receivers, trustees, etc.
61		(E)		City Attorney authorized disclosure to collection agencies
62		(F)		Other Arizona City when tax paid to wrong city
62		(G)		Others involved in allocation of publishing tax
62		(H)		By agreement approved by City Council with another jurisdiction
62	515			Duties of Taxpayer Resolution Officer
62		(A)		Assistance to taxpayers
62		(B)		Duties of officer
63		(C)		Review of actions
63		(D)		Quarterly report
63	516			Taxpayer assistance orders
63		(A)		Taxpayer hardship
63		(B)		Release of lien; suspending action
63		(C)		Modification, reversal, or rescinding of order
63		(D)		Statute of limitations; interest on tax obligation
63		(E)		Prohibitions on use
63			1	Contest of merits of tax liability
63			2	Substitute for review actions

Page	*Section*	*Letter*	*No.*	*Description*
64	517			Basis for evaluating employee performance
64		(A)		Evaluations from taxpayers
64		(B)		Limitation on evaluation due to taxes assessed or collected
64	520			Reporting and payment of tax
64		(A)		Returns (Reg. 520.1)
64		(B)		Payment
64		(C)		Requirement of security
64		(D)		Method of reporting: "cash basis" or "accrual basis" (Reg. 520.2)
64			1	All income to be reported by same method
64			2	Special considerations for construction contractors:
64				(a) Construction contractors
64				(b) Speculative builders
64				(c) Other owner-builders
64	530			When tax due; when delinquent; verification of return; extensions
64		(A)		Report monthly - due 20th of following month, except:
64			1	Quarterly returns if annual taxable sales greater than $5,000 but less than $50,000
65			2	Annual returns if annual taxable sales less than $5,000
65		(B)		Special requirements of taxpayers filing quarterly or annual returns
65		(C)		Delinquency date
65		(D)		Jeopardy reporting
65		(E)		Extensions
65	540			Interest and civil penalties
65		(A)		Interest
66		(B)		Civil penalties
66			1	5% per month (progressive) for late filing (to 25%)
66			2	10% for failure to pay timely
66			3	25% for failure to file upon demand
66			4	10% for negligence
66			5	50% for civil fraud or evasion
66		(C)		Interest and penalties due and payable upon notice
66		(D)		Taxpayer explanation
67		(E)		Some penalties require specific Tax Collector approval
67		(F)		Tax Collector may waive penalties (B)(1) and (B)(2)
68		(G)		Time limitations for request to waive penalties
68		(H)		Definition of reasonable cause
68		(I)		Definition of negligence
68	541			Erroneous advice of misleading statements by Tax Collector; abatement of penalties and interest; definition
68		(A)		Prohibition of interest or penalty on deficiency assessments
68			1	Attributable to erroneous written advice

Page	*Section*	*Letter*	*No.*	*Description*
68			2	Misleading statement on tax return form
68		(B)		Oral advice not binding
68		(C)		Tax return form defined
69	542			Prospective application of new law or interpretation or application of law
69		(A)		Prohibition of retroactive application of tax
69		(B)		New or additional category or type of business
69			1	Applies prospectively only
69			2	No retroactive assessment based on new interpretation or application
69		(C)		Includes policies and procedures which differ from established interpretations
69		(D)		Reserved
69	545			Deficiencies; when inaccurate return is filed; when no return is filed; estimates
69		(A)		Tax Collector may recompute or estimate:
69			1	When not satisfied with return filed
69			2	When no return filed
69		(B)		Estimates; Presumption
70	546			Closing agreements
70		(A)		Terms and conditions for closing agreements
70		(B)		Approval required for agreement
70		(C)		Agreement final except under certain circumstances; binding nature
70		(D)		Annual report required
71	550			Limitation periods
71		(A)		When return filed
71			1	4 years from due date/filing date
71			2	6 years if taxable under-reported by more than 25%
71			3	Time of delay from taxpayer tolls limitation period
71			4	Assessment made when notice mailed (certified)
71		(B)		Suspension of limitation if:
71			1	Assets of taxpayer in control of court
71			2	Taxpayer and Tax Collector agree in writing to extend limitation period
71		(C)		No limitation if no return filed; fraud
71		(D)		Special provisions relating to owner-builders
71	553			Examination of taxpayer records; joint audits
71		(A)		Waiver of joint audit
72		(B)		Tax jurisdiction acceptance of joint audit
72	555			Tax Collector may examine books and other records; failure to provide records
72		(A)		Tax Collector can examine books and records
72		(B)		Tax Collector may issue Administrative Request (Reg. 555.1)
72		(C)		Failure to provide records can result in 25% penalty

Page	*Section*	*Letter*	*No.*	*Description*
72		(D)		Tax Collector may use any generally accepted auditing standards or procedures
72		(E)		Failure to keep or provide adequate records allows Tax Collector to estimate
72		(F)		When assessment final
73	556			No additional audits or proposed assessments; exceptions
73		(A)		Limitations on audits after determination of deficiency; exceptions
73		(B)		Audit by other taxing jurisdiction not included in prohibition
73		(C)		Increases in deficiency prohibited with certain exceptions
73	560			Erroneous payment of tax; credits and refunds; limitations
73		(A)		Tax Collector may authorize credits and refunds; credits cancelled within 1 year after issuance
74		(B)		No credit or refund except:
74			1	Per Section 565
74			2	Per Section 550
74			3	After audit; limitation period calculated from date taxpayer's request is received
74			4	Submission of written claim for excess taxes
74		(C)		Excess taxes; remitting to taxpayer
74		(D)		Interest on credits or refunds; calculation
74		(E)		Appeal of Tax Collector determination
75		(F)		Refunds made from privilege tax revenue accounts
75		(G)		Written Notice of Determination
76		(H)		Appeal of Determination
76		(I)		Provisions of Claim enacted by Ordinance # 4582
76		(J)		Payment of Claim from Privilege Tax Revenue Accounts
76	565			Payment of tax by the incorrect taxpayer or to the incorrect Arizona city or town
76		(A)		Transfer of tax paid by wrong taxpayer
76		(B)		Assignment and waiver requirements
77		(C)		Tax paid to wrong city will be remitted to correct city upon signed assignment and waiver
77		(D)		A.R.S. § 42-6003 will govern
77		(E)		"Other city" means State Department of Revenue if city in State collection program
77	567			(Reserved)
77	570			Administrative review; petition for hearing or for redetermination; finality of order
77		(A)		Informal conference with auditor to assessment
77		(B)		Administrative review
77			1	Filing a petition

Page	*Section*	*Letter*	*No.*	*Description*
78			2	Extension to file a petition
78			3	Requirements for petition
78			4	Transmittal to the Hearing Officer
78			5	Hearings
78			6	Redetermination
78			7	Hearing ruling
78			8	Notice of refund or adjusted assessment
79		(C)		Stipulations that future tax is also protested
79		(D)		When assessment final
79			1	Lacking timely-filed petition
79			2	After taxpayer received notice, unless appealed
79		(E)		(Reserved)
79	571			Jeopardy assessments (Reg. 571.1)
79		(A)		If jeopardy assessment, Tax Collector will notify taxpayer at time of assessment and demand immediate payment
79		(B)		Taxpayer must file request for administrative review together with posting bond or collateral within 10 days
79		(C)		Bond or collateral
80		(D)		If all these conditions are not met, tax may be treated as final
80		(E)		Jeopardy requirements deemed satisfied
80	572			Expedited review of jeopardy assessments
80		(A)		Request for review; determination; time deadlines
80		(B)		Civil action on determination of jeopardy assessment
80	575			Judicial review
80		(A)		Taxpayer's appeal
80		(B)		Tax Collector's appeal
80		(C)		Time for appeal
80		(D)		Trial de novo; limitation on Tax Collector
81		(E)		Burden of proof
81		(F)		No estoppel
81		(G)		Counterclaims
81	577			Refunds of taxes paid under protest
81	578			Reimbursement of fees and other costs; definitions
81		(A)		Grounds for reimbursement
81		(B)		Circumstances for denial of reimbursement
82		(C)		Itemization of fees and other costs by taxpayer; determination of validity
82		(D)		Payment within 30 days if no appeal
82		(E)		Limit on amount of reimbursement; exception
82		(F)		Definition of "reasonable fees and other costs"
82	580			Criminal penalties
82		(A)		It is unlawful to knowingly or willfully:

Page	*Section*	*Letter*	*No.*	*Description*
82			1	Fail/refuse to file a return
82			2	Fail/refuse to pay tax when due
82			3	Make false/fraudulent return
82			4	Make false/fraudulent statement to claim tax exemption
82			5	Fail/refuse to permit lawful examination of books or records
82			6	Fail/refuse to remit taxes collected from customer
82			7	Advertise that tax is not a consideration of price
83			8	Fail/refuse to obtain a Privilege License
83			9	Falsify/forge document to obtain an exemption
83		(B)		Such acts constitute a Class One misdemeanor
83		(C)		In addition, knowingly swearing to a false statement subject to laws of perjury
83	590			Civil actions
83		(A)		Liens
83			1	City can file a lien for tax, penalty, or interest due
83			2	Lien recording and filing
83			3	Filing a lien does not preclude any other collection methods
83			4	Liens can be released in whole or in part upon payment
83		(B)		Actions to recover tax
83			1	Cannot begin until tax actually assessed
84			2	Must begin:
84				(a) Within six years after assessment is final
84				(b) Prior to any written agreement between taxpayer and Tax Collector, if one exists
84				(c) At any time upon a lien
84	595			Collection of taxes when there is succession in and/or cessation of business
84		(A)		This is in addition to any other provisions in the City Code
84		(B)		Taxes due are lien on property
84		(C)		Foreclosure or similar transfer of improved real property
85		(D)		Back taxes due are liability of:
85			1	Seller if received certificate at time of sale
85			2	Buyer otherwise
85	596			Agreement for installment payments of tax
85		(A)		Agreement allowed; financial report
85		(B)		Alteration, modification, or termination of agreement
85		(C)		Offset of tax refunds; tax liens; collection
86		(D)		Termination of agreement if collection in jeopardy
86		(E)		Changed financial condition and agreements
86		(F)		Term of agreement fixed except as provided
86		(G)		Refusal to enter into agreement; petition to Resolution Officer
86		(H)		Modifications upon mutual agreement

Page	*Section*	*Letter*	*No.*	*Description*
86	597			Private taxpayer rulings; request; revocation or modification; definition
86		(A)		Issuance of ruling; prerequisites
86		(B)		Revoking or modifying ruling
87		(C)		Limitations on retroactive revocation
87		(D)		Application of ruling to other taxpayers
87		(E)		Appeal of retroactive application of revoked or modified ruling
87		(F)		Effect of ruling
87		(G)		Prospective nature of ruling
87		(H)		Time limit on issuance
87		(I)		Ruling is public record after 30 days
87		(J)		Definition of private taxpayer ruling
87		(K)		State ruling in absence of town ruling on same wording
ARTICLE VI - USE TAX				
88	600			Use tax: definitions
88				Acquire (for storage or use)
88				Retailer
88				Storage (within the City)
88				Use (of tangible personal property)
88	601			(Reserved)
88	602			(Reserved)
88	610			Use tax: imposition of tax; presumption
88		(A)		Imposition of tax
88		(B)		Measure of tax; rate
88			1	Cost of goods stored or used in the City
88			2	Gross income by an out-of-City retailer who collects use tax
88			3	Parts used in warranty contracts at cost
88			4	Cost of complementary items
88			5	Cost of employee meals
89		(C)		Presumption
89		(D)		Exclusions
89			1	Stocks, bonds, etc.
89			2	Lottery tickets
89			3	Platinum; bullion and monetized bullion
89		(E)		(Reserved)
89		(F)		Additional imposition
89	620			Use tax: liability for tax
89		(A)		Any person who uses or stores in the City tangible personal property acquired from a retailer
89		(B)		Any retailer not located in the City who is licensed to collect use tax
89		(C)		Any agent of a retailer not maintaining a place of business within the City who sells or leases tangible personal property within the City

Page	*Section*	*Letter*	*No.*	*Description*
89		(D)		Any purchaser or lessor of tangible personal property within the City who claimed exemption from tax at time of purchase/lease from a retailer
89		(E)		Any person using parts to fulfill a warranty contract
89	630			Use tax; record keeping requirements
90	640			Use tax; credit for equivalent excise taxes paid to another jurisdiction
90	650			Use tax; exclusion when acquisition subject to use tax is taxed or taxable elsewhere in this Chapter; limitation
90	660			Use tax; exemptions
90		(A)		Property brought into the City by a nonresident for personal use
90		(B)		Property less than $1,000 brought into the City by a resident for personal use
90		(C)		Delivery, installation, or other direct customer services
90		(D)		Repair services
90		(E)		Warranty service contracts
90		(F)		Prosthetics
90		(G)		Income-producing capital equipment
90		(H)		Rental equipment and rental supplies
90		(I)		Mining and metallurgical supplies
90		(J)		Fuels subject to Arizona fuel use tax
90		(K)		Building materials used by a construction contractor in construction contracting
91		(L)		Motor vehicle sales to nonresidents for use outside State
91		(M)		Component or ingredient parts purchased by job printers, manufacturers, or publishers
91		(N)		Leases of motion picture film, etc. to an amusement business, etc. to generate income
91		(O)		Food served to patrons by restaurants
91		(P)		Purchases/leases by qualifying hospital, health center, or health care organization
91		(Q)		Food for home consumption
95		(R)		Purchases by farmers, ranchers, etc. of:
95			1	Seed and agricultural chemicals
95			2	Animal feed
95			3	Animals for slaughter
95			4	(Reserved)
95		(S)		Groundwater measuring devices
96		(T)		Works of fine art
96		(U)		Fly-away aircraft purchased/leased for use out of State
96		(V)		Sales of food products by producers
96		(W)		(Reserved)

Page	*Section*	*Letter*	*No.*	*Description*
96		(X)		Sales of food and drink to a person engaged in business under the restaurant classification
96		(Y)		(Reserved)
96		(Z)		Use tax liability of the City
96		(AA)		Personal property used in remediation contracting
96		(BB)		Printed or electronic materials sold to libraries
96		(CC)		Food and accessories sold to commercial airlines
96		(DD)		Wireless telecommunications equipment; inducements
96		(EE)		(Reserved)
96		(FF)		Sales of alternative fuel; used oil fuel burners
96		(GG)		Food and accessories sold to educational facilities
97		(HH)		Personal hygiene items; hotels
97		(II)		Fueling compressor equipment
97		(JJ)		Food and accessories sold to nonprofit charitable organizations
97		(KK)		Sales of alternative fuel vehicles
97		(LL)		Storage, use or consumption of tangible personal property by a school district or charter school
97		(MM)		Sales or other transfers of renewable energy credits
97		(NN)		Sales of magazines
97		(OO)		Sales of paper machine clothing
97		(PP)		Sales of overhead materials
97		(QQ)		Sales of coal, petroleum, coke etc.
97		(RR)		Sales or gross income from sales
ARTICLE VII - ACCESS TO CARE PROGRAM				
98	700			Legislative Intent
98		(A)		Establishing a funding source for the non-federal share of AHCCCS payments
98		(B)		Establishing a funding source for the non-federal share of the cost of an expansion
98		(C)		Promoting access to health care
98		(D)		Promoting economic development
98	701			Definitions
100	705			Creation of Access to Care Fund
100		(A)		Access to Care Fund is created as a restricted subfund
100			1	Process from ATC payments
100			2	Penalties and interest
100			3	Monies repaid by AHCCCS
100		(B)		No monies in ATC fund shall revert or lapse into any other fund
100	710			Imposition of Access to Care Tax and Rate
100		(A)		ATC tax
100		(B)		Inpatient discharges

Page	*Section*	*Letter*	*No.*	*Description*
100		(C)		Data required to calculate the ATC tax
100	715			Collection of Tax
100		(A)		Due and payable on the due date
101		(B)		If UC payment period is longer than one year
101		(C)		Each participating hospital shall file an ATC tax form with the City
101		(D)		If any hospital fails to remit the full amount
101		(E)		Tax Collector shall adjust the due dates for any ATC tax payments
101		(F)		Tax Collector shall account of all ATC tax payments
101	720			Use of Access to Care Tax Fund
101		(A)		Amount of collected tax payments each quarter may be used by the City
101		(B)		Transfer funds to AHCCCS
101			1	Uncompensated care payments
101			2	Expanded health care coverage
101		(C)		Refund to participating hospitals any ATC tax overpayment
101		(D)		Refund to participating hospitals any amounts repaid by AHCCCS
101		(E)		Penalties and interest collected
102	725			Transfer to AHCCCS
102		(A)		Tax Collector shall retain administrative costs
102		(B)		From ATC Fund Remainder, Tax Collector shall transfer to AHCCCS
102		(C)		Tax Collector shall not transfer funds greater than the ATC Fund Remainder
102		(D)		Tax Collector transfer pro rata share of ATC Fund Remainder
102		(E)		If participating hospital owes a shortfall
102	730			No Impact on Patients or Payers
102	735			Requirements for Implementation
102		(A)		CMS approves uncompensated care payments
102		(B)		AHCCCS agrees to return non-federal share of uncompensated care payments recouped
102		(C)		IGA with AHCCCS
103	740			Termination
103		(A)		ATC tax shall terminate unless the UC payment period extends
103			1	Date AHCCCS authorization to make uncompensated care payments ends
103			2	Date AHCCCS authorization to accept City funds ends
103			3	December 31, 2013
103		(B)		ATC tax shall terminate prior to Subsection A upon any of the following:
103			1	ATC tax is not a permissible source of non-federal share funding
103			2	ATC tax is determined to be unlawful under city, state or federal law
103			3	Statewide hospital tax or assessment is adopted
103	745			Impact of Termination or Recoupment
103		(A)		If AHCCCS refunds all or part of any transfers
103		(B)		If the ATC tax terminates

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103	750			Interest and Penalties
103		(A)		Interest on shortfall amount
103		(B)		Two percent civil penalties
103		(C)		Penalties not applicable
103		(D)		Penalties and interest due upon notice by Tax Collector
104	755			Examination of Books and Records; Failure to Provide Records
104		(A)		Tax Collector and participating hospitals rights and obligations
104		(B)		Nothing may be read as a waiver of any rights of the Tax Collector
104		(C)		All other Code and Charter provisions are applicable
R1	100.1			Brokers
R1	100.2			Delivery, installation, or other direct customer services
R3	100.3			Retailers
R3	100.4			Out-of-City/out-of-State sales; Sales to Native Americans
R3	100.5			Remediation contracting
R4	110.1			(Repealed by 2977/Reso. 6722)
R4	110.2			(Repealed by 2977/Reso. 6722)
R4	115.1			Computer hardware, software, and data services
R6	120.1			(Reserved)
R6	200.1			When deposits are includable in gross income
R7	250.1			Excess tax collected
R7	270.1			Proprietary activities of municipalities are not considered activities of a governmental entity
R7	270.2			Proprietary clubs
				300.1 - 360.2 (Repealed by 5259)
R8	405.1			Local advertising examples
R9	405.2			Advertising activity within the City
R11	407.1			(Reserved)
R11	415.1			Distinction between the categories of construction contracting
R11	415.2			Distinction between construction contracting and certain related activities
R12	415.3			Construction contracting; tax rate effective date
R13	416.1			Speculative builders; homeowner's bona fide nonbusiness sale of a family residence
R13	416.2			Reconstruction contracting
R14	425.1			Distinction between job printing and certain related activities
R14	435.1			Distinction between publication of periodicals and certain related activities
R15	435.2			Advertising income of publishers and distributors of newspapers and other periodicals
R15	445.1			When the rental, leasing, and licensing of real property is exempt as "casual"
R15	445.2			(Repealed by 2977/Reso. 6722)

Page	*Section*	*Letter*	*No.*	*Description*
R15	445.3			Rental, leasing, and licensing of real property as lodging: room and board; furnished lodging
R16	447.1			Gross income from rental, leasing, and licensing for use of real property as lodging or lodging space to transients
R16	450.1			Distinction between rental, leasing, and licensing for use of tangible personal property and certain related activities
R17	450.2			Rental, leasing, and licensing for use of tangible personal property; membership fees; other charges
R17	450.3			Rental, leasing, and licensing for use of equipment with operator
R17	450.4			Rental, leasing, and licensing for use of tangible personal property; semi-permanently or permanently installed tangible person a property
R18	450.5			Rental, leasing and licensing for use of tangible personal property; delivery, installation, repair, and maintenance charges
R18	455.1			Gratuities related to restaurant activity
R18	460.1			Distinction between retail sales and certain other transfers of tangible personal property
R19	460.2			Retail sales; trading stamp company transactions
R20	460.3			Retail sales; membership fees of retailers
R20	460.4			Retail sales; professional services
R21	460.5			Retail sales; monetized bullion; numismatic value of coins
R21	460.6			Retail sales; consignment sales
R21	465.1			Retail sales; repair services
R22	465.2			Retail sales; warranty, maintenance, and similar service contracts
R22	465.3			Retail sales; sale of containers, paper products, and labels
R23	465.4			Retail sales; aircraft acquired for use outside the State
R23	470.1			Telecommunication services
R24	475.1			Distinction between transporting for hire and certain related activities
R24	520.1			Reports made to the City
R25	520.2			Change of method of reporting
R25	555.1			Administrative request for the attendance of witnesses or the production of documents; service thereof; remedies and penalties for failure to respond
R26	571.1			Collection of tax in jeopardy

TAX CODE

ARTICLE I GENERAL CONDITIONS AND DEFINITIONS

5-10-1: WORDS OF TENSE, NUMBER, AND GENDER; CODE REFERENCES

(A) For the purposes of this Chapter, all words of tense, number, and gender shall comply with A.R.S. § 1-214 as amended.

(B) For the purposes of this Chapter, all Code references, unless specified otherwise, shall:

1. Refer to this City Code.

2. Be deemed to include all amendments to such Code references.

5-10-100: GENERAL DEFINITIONS

For the purposes of this Chapter, the following definitions apply:

ASSEMBLER: A person who unites or combines products, wares, or articles of manufacture so as to produce a change in form or substance of such items without changing or altering component parts.

BROKER: Any person engaged or continuing in business who acts for another for a consideration in the conduct of a business activity taxable under this Chapter and who receives for his principal all or part of the gross income from the taxable activity.

BUSINESS: Includes all activities or acts, personal or corporate, engaged in or caused to be engaged in with the object of gain, benefit, or advantage, either directly or indirectly, but does not include either: casual activities or sales; or the transfer of electricity from a solar photovoltaic generation system to an electric utility distribution system. (5190)

BUSINESS DAY: Any day of the week when the Tax Collector's Office is open for the public to conduct the Tax Collector's business.

CASUAL ACTIVITY OR SALE: A transaction of an isolated nature made by a person who neither represents himself to be nor is engaged in a business subject to a tax imposed by this Chapter. However, no sale, rental, license for use, or lease transaction concerning real property or any activity entered into by a business taxable by this Chapter shall be treated, or be exempt, as casual. This definition shall include sales of used capital assets provided that the volume and frequency of such sales do not indicate that the seller regularly engages in selling such property.

COMBINED TAXES: The sum of all applicable Arizona Transaction Privilege and Use Taxes; all applicable transportation taxes imposed upon gross income by this County as authorized by A.R.S. Title 42, Chapter 6, Article 3; and all applicable taxes imposed by this Chapter. (3729/Reso. 7458)

COMMERCIAL PROPERTY: Any real property or portion of such property used for any purpose other than lodging or lodging space, including structures built for lodging but used otherwise, such as model homes, apartments used as office, etc. (2977/Reso. 6722)

COMMUNICATIONS CHANNEL: Any line, wire, cable, microwave, radio signal, light beam, telephone, telegraph, or any other electromagnetic means of moving a message.

CONSTRUCTION CONTRACTING: The activity of a construction contractor.

CONSTRUCTION CONTRACTOR: A person who undertakes to or offers to undertake to, or purports to have the capacity to undertake to, or submits a bid to, or does himself or by or through others construct, alter, repair, add to, subtract from, improve, move, wreck, or demolish any building, highway, road, railroad, excavation, or other structure, project, development, or improvement to real property, or to do any part thereof. "Construction contractor" includes subcontractors, specialty contractors, prime contractors, and any person receiving consid-

eration for the general supervision and/or coordination of such a construction project except for remediation contracting. This definition shall govern without regard to whether or not the construction contractor is acting in fulfillment of a contract. (3420/Reso. 7134)

DELIVERY (OF NOTICE) BY THE TAX COLLECTOR: Receipt (of notice) by the taxpayer.

DELIVERY, INSTALLATION, OR OTHER DIRECT CUSTOMER SERVICES: Services or labor, excluding repair labor, provided by a taxpayer to or for his customer at the time of transfer of tangible personal property; provided further that the charge for such labor or service is separately billed to the customer and maintained separately in the taxpayer's books and records.

ENGAGING: When used with reference to engaging or continuing in business, includes the exercise of corporate or franchise powers.

EQUIVALENT EXCISE TAX:

1. A Privilege or Use Tax levied by another Arizona municipality upon the transaction in question and paid either to such Arizona municipality directly or to the vendor;

2. An excise tax levied by a political subdivision of a state other than Arizona upon the transaction in question and paid either to such jurisdiction directly or to the vendor; or

3. An excise tax levied by a Native American government organized under the laws of the federal government upon the transaction in question and paid either to such jurisdiction directly or to the vendor. (2977/Reso. 6722)

FEDERAL GOVERNMENT: The United States government, its departments and agencies; but not including national banks or federally chartered or insured banks, savings and loan institutions, or credit unions.

FOOD: Any items intended for human consumption as defined by rules and regulations adopted by the Department of Revenue, State of Arizona, pursuant to A.R.S. § 42-1387. Under no circumstances shall "food" include alcoholic beverages or tobacco or food items purchased for use in conversion to any form of alcohol by distillation, fermentation, brewing, or other process. Under no circumstances shall "Food" include an edible product, beverage, or ingredient infused, mixed, or in any way combined with Medical Marijuana or an active ingredient of Medical Marijuana. (5059)

HOTEL: Any public or private hotel, inn, hostelry, tourist home, house, motel, rooming house, apartment house, trailer, or other place within the City offering lodging wherein the owner thereof, for compensation, furnishes lodging to any transient, except foster homes, rest homes, sheltered care homes, nursing homes, or primary health care facilities.

JET FUEL: Jet fuel as defined in A.R.S. § 42-5351. (3729/Reso. 7458)

JOB PRINTING: The activity of copying or reproducing an article by any means, process, or method. "Job printing" includes engraving of printing plates, embossing, copying, micrographics, and photo reproduction.

LESSEE: Includes the equivalent person in a rental or licensing agreement for all purposes of this Chapter.

LESSOR: Includes the equivalent person in a rental or licensing agreement for all purposes of this Chapter.

LICENSING (FOR USE): Any agreement between the user ("licensee") and the owner or the owner's agent ("licensor") for the use of the licensor's property whereby the licensor receives consideration, where such agreement does not qualify as a "sale" or "lease" or "rental" agreement.

LODGING (LODGING SPACE): Any room or apartment in a hotel or any other provider of rooms, trailer spaces, or other residential dwelling spaces; or the furnishings or services and accommodations accompanying the use and possession of said dwelling space, including storage or parking space for the property of said tenant.

MANUFACTURED BUILDING: A manufactured home, mobile home, or factory-built building as defined in A.R.S. § 41-2142. (2977/Reso. 6722)

MANUFACTURER: A person engaged or continuing in the business of fabricating, producing, or manufacturing products, wares, or articles for use from other forms of tangible personal property, imparting to such new forms qualities, properties, and combinations.

MEDICAL MARIJUANA: Means "Marijuana" used for a "Medical Use" as those terms are defined in A.R.S. § 36-2801. (5059)

MINING AND METALLURGICAL SUPPLIES: All tangible personal property acquired by persons engaged in activities defined in Section 5-10-432 for such use. This definition shall not include: (2977/Reso. 6722)

1. Janitorial equipment and supplies.
2. Office equipment, office furniture, and office supplies.
3. Motor vehicles licensed for use upon the highways of the State.

MODIFIER: A person who reworks, changes, or adds to products, wares, or articles of manufacture.

NONPROFIT ENTITY: Any entity organized and operated exclusively for charitable purposes or operated by the federal government, the State, or any political subdivision of the State.

OCCUPANCY (OF REAL PROPERTY): Any occupancy or use or any right to occupy or use real property, including any improvements, rights, or interests in such property.

OUT-OF-CITY SALE: The sale of tangible personal property and job printing if all of the following occur:

1. Transference of title and possession occur without the City; and
2. The stock from which such personal property was taken was not within the corporate limits of the City; and
3. The order is received at a permanent business location of the seller located outside the City; which location is used for the substantial and regular conduct of such business sales activity. In no event shall the place of business of the buyer be determinative of the situs of the receipt of the order.

For the purpose of this definition it does not matter that all other indicia of business occur within the City, including, but not limited to, accounting, invoicing, payments, centralized purchasing, and supply to out-of-City storehouses and out-of-City retail branch outlets from a primary storehouse within the City.

OUT-OF-STATE SALE: The sale of tangible personal property and job printing if all of the following occur:

1. The order is placed from without the State of Arizona; and (4835)

2. The property is delivered to the buyer at a location outside the State; and (4835)

3. The property is purchased for use outside the State. (4835)

OWNER-BUILDER: An owner or lessor of real property who, by himself or by or through others, constructs or has constructed or reconstructs or has reconstructed any improvement to real property.

PERSON: An individual, firm, partnership, joint venture, association, corporation, estate, trust, receiver, syndicate, broker, the federal government, this State, or any political subdivision or agency of this State. For the purposes of this Chapter, a person shall be considered a distinct and separate person from any general or limited partnership or joint venture or other association with which such person is affiliated. A subsidiary corporation shall be considered a separate person from its parent corporation for purposes of taxation of transactions with its parent corporation.

PROSTHETIC: Means any of the following tangible personal property if such items are prescribed or recommended by a licensed podiatrist, chiropractor, dentist, physician or surgeon, naturopath, optometrist, osteopathic physician or surgeon, psychologist, hearing aid dispenser, physician assistant, nurse practitioner, or veterinarian: (2977, 5190/Reso. 6722)

1. Any man-made device for support or replacement of a part of the body or to increase acuity of one of the senses. Such items include: prescription eyeglasses; contact lenses; hearing aids; artificial limbs or teeth; neck, back, arm, leg, or similar braces.

2. Insulin, insulin syringes, and glucose test strips sold with or without a prescription. (3270/Reso. 6970)

3. Hospital beds, crutches, wheelchairs, similar home health aids, or corrective shoes.

4. Drugs or medicine, including oxygen.

5. Equipment used to generate, monitor, or provide health support systems, such as respiratory equipment, oxygen concentrator, dialysis machine.

6. Durable medical equipment which has a federal Health Care Financing Administration Common Procedure Code, is designated reimbursable by Medicare, can withstand repeated use, is primarily and customarily used to serve a medical purpose, is generally not useful to a person in the absence of illness or injury, and is appropriate for use in the home. (3270/Reso. 6970)

7. Orthodontic devices dispensed by a dental professional who is licensed under Title 32, Chapter 11 to a patient as part of the practice of dentistry. (5059, 5190)

8. Under no circumstances shall "prosthetic" include medical marijuana regardless of whether it is sold or dispensed pursuant to a prescription, recommendation, or written certification by any authorized person. (5190)

QUALIFYING COMMUNITY HEALTH CENTER:

1. An entity that is recognized as nonprofit under Section 501(c)3 of the United States Internal Revenue Code, that is a community-based, primary care clinic that has a community-based board of directors and that is either: (3476,4616/Reso. 7209,4169/Reso. 8205)

   (a) The sole provider of primary care in the community. (3476,4616/Reso. 7209)

(b) A nonhospital-affiliated clinic that is located in a federally designated medically underserved area in this State. (3476,4616/Reso. 7209)

2. Includes clinics that are being constructed as qualifying community health centers. (4169, 4616/Reso. 8205)

QUALIFYING HEALTH CARE ORGANIZATION: An entity that is recognized as nonprofit under Section 501(c)3 of the United States Internal Revenue Code and that uses, saves, or invests at least eighty percent (80%) of all monies that it receives from all sources each year only for health- and medical-related educational and charitable services, as documented by annual financial audits prepared by an independent certified public accountant, performed according to generally accepted accounting standards and filed annually with the Arizona Department of Revenue. Monies that are used, saved, or invested to lease, purchase, or construct a facility for health- and medical-related education and charitable services are included in the eighty percent (80%) requirement. (3476/Reso. 7209, 4169/Reso. 8205)

QUALIFYING HOSPITAL: Means any of the following: (3476/Reso. 7209, 4169/Reso. 8205)

1. A licensed hospital which is organized and operated exclusively for charitable purposes, no part of the net earnings of which inures to the benefit of any private shareholder or individual. (3476/Reso. 7209)

2. A licensed nursing care institution or a licensed residential care institution or a residential care facility operated in conjunction with a licensed nursing care institution or a licensed kidney dialysis center, which provides medical services, nursing services, or health-related services and is not used or held for profit. (3476/Reso. 7209)

3. A hospital, nursing care institution, or residential care institution which is operated by the federal government, this State, or a political subdivision of this State. (3476/Reso. 7209)

4. A facility that is under construction and that on completion will be a facility under Subdivision 1, 2, or 3 of this paragraph. (4169/Reso. 8205)

RECEIPT (OF NOTICE) BY THE TAXPAYER: The earlier of actual receipt or the first attempted delivery by certified United States mail to the taxpayer's address of record with the Tax Collector.

REMEDIATION: Those actions that are reasonable, necessary, cost-effective, and technically feasible in the event of the release or threat of release of hazardous substances into the environment such that the waters of the State are or may be affected, such actions as may be necessary to monitor, assess, and evaluate such release or threat of release, actions of remediation, removal, or disposal of hazardous substances, or taking such other actions as may be necessary to prevent, minimize, or mitigate damage to the public health or welfare or to the waters of the State which may otherwise result from a release or threat of release of a hazardous substance that will or may affect the waters of the State. Remediation activities include the use of biostimulation with indigenous microbes and bioaugmentation using microbes that are nonpathogenic, nonopportunistic, and that are naturally occurring. Remediation activities may include community information and participation costs and providing an alternative drinking water supply. (3420/Reso. 7134)

RENTAL EQUIPMENT: Tangible personal property sold, rented, leased, or licensed to customers to the extent that the item is actually used by the customer for rental, lease, or license to others; provided that:

1. The vendee is regularly engaged in the business of renting, leasing, or licensing such property for a consideration; and (2321, 4616)
2. The item so claimed as "rental equipment" is not used by the person claiming the exemption for any purpose other than rental, lease, or license for compensation to an extent greater than fifteen percent (15%) of its actual use. (4616)

RENTAL SUPPLY: An expendable or nonexpendable repair or replacement part sold to become part of "rental equipment," provided that:

1. The documentation relating to each purchased item so claimed specifically itemizes to the vendor the actual item of "rental equipment" to which the purchased item is intended to be attached as a repair or replacement part; and
2. The vendee is regularly engaged in the business of renting, leasing, or licensing such property for a consideration; and (2321)
3. The item so claimed as "rental equipment" is not used by the person claiming the exemption for any purpose other than rental, lease, or license for compensation to an extent greater than fifteen percent (15%) of its actual use.

REPAIRER: A person who restores or renews products, wares, or articles of manufacture.

RESIDES WITHIN THE CITY: In cases other than individuals whose legal addresses are determinative of residence, the engaging, continuing, or conducting of regular business activity within the City.

RESTAURANT: Any business activity where articles of food, drink, or condiment are customarily prepared or served to patrons for consumption on or off the premises, also including bars, cocktail lounges, the dining rooms of hotels, and all caterers. For the purposes of this Chapter, a "fast food" business, which includes street vendors and mobile vendors selling in public areas or at entertainment or sports or similar events, who prepares or sells food or drink for consumption on or off the premises is considered a "restaurant" and not a "retailer."

RETAIL SALE (SALE AT RETAIL): The sale of tangible personal property, except the sale of tangible personal property to a person regularly engaged in the business of selling such property.

RETAILER: Any person engaged or continuing in the business of sales of tangible personal property at retail.

SALE: Any transfer of title or possession, or both, exchange, barter, conditional or otherwise, in any manner or by any means whatsoever, including consignment transactions and auctions of property for a consideration. "Sale" includes any transaction whereby the possession of such property is transferred but the seller retains the title as security for the payment of the price. "Sale" also includes the fabrication of tangible personal property for consumers who, in whole or in part, furnish either directly or indirectly the materials used in such fabrication work.

SOLAR DAYLIGHTING: Ad device that is specifically designed to capture and redirect the visible portion of the solar beam, while controlling the infrared portion, for use in illuminating interior building spaces in lieu of artificial lighting. (4835)

SOLAR ENERGY DEVICE: A system or series of mechanisms designed primarily to provide heating, to provide cooling, to produce electrical power, to produce mechanical power, to provide solar daylighting or to provide any combination of the foregoing by means of collecting and transferring solar generated energy into such uses either by active or passive means, including wind generator systems that produce electricity. Solar energy systems may also have the capability of storing solar energy for future use. Passive systems shall clearly be designed as a solar energy device, such as a Trombe wall, and not merely as a part of a normal structure, such as a window. (4835)

SPECULATIVE BUILDER: Either: (3729/Reso. 7458)

1. An owner-builder who sells or contracts to sell at any time improved real property (as provided in Section 5-10-416) consisting of:
   (a) Custom, model, or inventory homes, regardless of the stage of completion of such homes; or
   (b) Improved residential or commercial lots without a structure; or (3729/Reso. 7458)
2. An owner-builder who sells or contracts to sell improved real property, other than improved real property specified in Subsection (1) above: (3729/Reso. 7458)
   (a) Prior to completion; or
   (b) Before the expiration of twenty-four (24) months after the improvements of the real property sold are substantially complete. (2535)

SUBSTANTIALLY COMPLETE: The construction contracting or reconstruction contracting:

1. Has passed final inspection or its equivalent;
2. Certificate of Occupancy or its equivalent has been issued; or
3. Is ready for immediate occupancy or use. (2535)

SUPPLIER: Any person who rents, leases, licenses, or makes sales of tangible personal property within the City, either directly to the consumer or customer or to wholesalers, jobbers, fabricators, manufacturers, modifiers, assemblers, repairers, or those engaged in the business of providing services which involve the use, sale, rental, lease, or license of tangible personal property.

TAX COLLECTOR: The Finance Director or his designee or agent for all purposes under this Chapter.

TAXPAYER: Any person liable for any tax under this Chapter.

TAXPAYER PROBLEM RESOLUTION OFFICER: The individual designated by the City to perform the duties identified in Section 5-10-515 and 5-10-516. In cities with a population of fifty thousand (50,000) or more, the Taxpayer Problem Resolution Officer shall be an employee of the City. In cities with a population of less than fifty thousand (50,000), the Taxpayer Problem Resolution Officer need not be an employee of the City. Regardless of whether the Taxpayer Problem Resolution Office is or is not an employee of the City, the Taxpayer Problem Resolution Officer shall have substantive knowledge of taxation. The identity of and telephone number for the Taxpayer Problem Resolution Officer can be obtained from the Tax Collector. (3270/Reso. 6970)

TELECOMMUNICATION SERVICE: Any service or activity connected with the transmission or relay of sound, visual image, data, information, images, or material over a communications channel or any combination of communications channels.

TRANSIENT: Any person who either at the person's own expense or at the expense of another obtains lodging space or the use of lodging space on a daily or weekly basis, or on any other basis for less than thirty (30) consecutive days. (4616)

UTILITY SERVICE: The producing, providing, or furnishing of electricity, electric lights, current, power, gas (natural or artificial), or water to consumers or ratepayers.

5-10-110: DEFINITIONS; INCOME-PRODUCING CAPITAL EQUIPMENT

(A) The following tangible personal property, other than items excluded in Subsection (D) below, shall be deemed "income-producing capital equipment" for the purposes of this Chapter:

1. Machinery or equipment used directly in manufacturing, processing, fabricating, job printing, refining, or metallurgical operations. The terms "manufacturing," "processing," "fabricating," "job printing," "refining," and "metallurgical" as used in this paragraph refer to and include those operations commonly understood within their ordinary meaning. "Metallurgical operations" includes leaching, milling, precipitating, smelting, and refining. (2977/Reso. 6722)

2. Mining machinery or equipment used directly in the process of extracting ores or minerals from the earth for commercial purposes, including equipment required to prepare the materials for extraction and handling, loading, or transporting such extracted material to the surface. "Mining" includes underground, surface, and open pit operations for extracting ores and minerals. (2977/Reso. 6722)

3. Tangible personal property sold to persons engaged in business classified under the telecommunications classification, consisting of central office switching equipment; switchboards; private branch exchange equipment; microwave radio equipment, and carrier equipment including optical fiber, coaxial cable, and other transmission media which are components of carrier systems. (2977/Reso. 6722)

4. Machinery, equipment, or transmission lines used directly in producing or transmitting electrical power, but not including distribution. Transformers and control equipment used at transmission substation sites constitute equipment used in producing or transmitting electrical power. (2977/Reso. 6722)

5. Pipes or valves four inches (4") in diameter or larger and related equipment, used to transport oil, natural gas, artificial gas, water, or coal slurry. For the purpose of this Section, related equipment includes: compressor units, regulators, machinery and equipment, fittings, seals, and any other parts that are used in operating the pipes or valves. (2977/Reso. 6722, 3729/Reso. 7458)

6. Aircraft, navigational and communication instruments, and other accessories and related equipment sold to: (2977/Reso. 6722)

   (a) A person holding a federal certificate of public convenience and necessity or foreign air carrier permit for air transportation for use as or in conjunction with or becoming a part of aircraft to be used to transport persons, property, or United States mail in intrastate, interstate, or foreign commerce. (2977/Reso. 6722)

   (b) Any foreign government for use by such government outside of this State. (2977/Reso. 6722)

(c) Persons who are not residents of this State and who will not use such property in this State other than in removing such property from this State. This subdivision also applies to corporations that are not incorporated in this State, regardless of maintaining a place of business in this State, if the principal corporate office is located outside this State and the property will not be used in this State other than in removing the property from this State. (2977/Reso. 6722)

7. Machinery, tools, equipment, and related supplies used or consumed directly in repairing, remodeling, or maintaining aircraft, aircraft engines, or aircraft component parts by or on behalf of a certificated or licensed carrier of persons or property. (2977/Reso. 6722)

8. Railroad rolling stock, rails, ties, and signal control equipment used directly to transport persons or property. (2977/Reso. 6722, 3729/Reso. 7458)

9. Machinery or equipment used directly to drill for oil or gas or used directly in the process of extracting oil or gas from the earth for commercial purposes. (2977/Reso. 6722)

10. Buses or other urban mass transit vehicles which are used directly to transport persons or property for hire or pursuant to a governmentally adopted and controlled urban mass transportation program and which are sold to bus companies holding a federal certificate of convenience and necessity or operated by a city, town, or other governmental entity or by any person contracting with such governmental entity as part of a governmentally adopted and controlled program to provide urban mass transportation. (2977/Reso. 6722)

11. Metering, monitoring, receiving, and transmitting equipment acquired by persons engaged in the business of providing utility services or telecommunications services; but only to the extent that such equipment is to be used by the customers of such persons and such persons separately charge or bill their customers for use of such equipment.

12. Groundwater-measuring devices required under A.R.S. § 45-604. (2977/Reso. 6722)

13. Machinery or equipment used in research and development. In this paragraph, "research and development" means basic and applied research in the sciences and engineering and designing, developing, or testing prototypes, processes, or new products, including research and development of computer software that is embedded in or an integral part of the prototype or new product or that is required for machinery or equipment otherwise exempt under this Section to function effectively. Research and development do not include manufacturing quality control, routine consumer product testing, market research, sales promotion, sales service, research in social sciences or psychology, computer software research that is not included in the definition of research and development, or other nontechnological activities or technical services. (2977/Reso. 6722)

14. (Reserved)

15. Included in income-producing capital equipment are liquid, solid, or gaseous chemicals used in manufacturing, processing, fabricating, mining, refining, metallurgical operations, research and development, or job printing, if using or consuming the chemicals, alone or as part of an integrated system of chemicals, involving direct contact with the materials from which the product is produced for the purpose of causing or permitting a chemical or physical change to occur in the materials as part of the production process. This Subsection does not include chemicals that are used or

consumed in activities such as packaging, storage, or transportation, but does not affect any deduction for such chemicals that is otherwise provided by this Code. Chemicals meeting the requirements of this Subsection are deemed not to be expendable under Subsection (D) of this Section. (2977/Reso. 6722, 3476/Reso. 7209, 3729/Reso. 7458)

16. Cleanrooms that are used for manufacturing, processing, fabrication, or research and development, as defined in paragraph 13 of this Subsection, of semiconductor products. For purposes of this paragraph, "cleanroom" means all property that comprises or creates an environment where humidity, temperature, particulate matter, and contamination are precisely controlled within specified parameters, without regard to whether the property is actually contained within that environment or whether any of the property is affixed to or incorporated into real property. Cleanroom:* (3476/Reso. 7209)

    (a) Includes the integrated systems, fixtures, piping, movable partitions, lighting, and all property that is necessary or adapted to reduce contamination or to control airflow, temperature, humidity, chemical purity, or other environmental conditions or manufacturing tolerances, as well as the production machinery and equipment operating in conjunction with the cleanroom environment. (3476/Reso. 7209)

    (b) Does not include the building or other permanent, nonremovable component of the building that houses the cleanroom environment. (3476/Reso. 7209)

17. Machinery and equipment that are purchased by or on behalf of the owners of a soundstage complex and primarily used for motion picture, multimedia, or interactive video production in the complex. This paragraph applies only if the initial construction of the soundstage complex begins after June 30, 1996 and before January 1, 2002 and the machinery and equipment are purchased before the expiration of five (5) years after the start of initial construction. For purposes of this paragraph: (3476/Reso. 7209)

    (a) "Motion picture, multimedia, or interactive video production" includes products for theatrical and television release, educational presentations, electronic retailing, documentaries, music videos, industrial films, CD-Rom, video game production, commercial advertising and television episode production, and other genres that are introduced through developing technology. (3476/Reso. 7209)

    (b) "Soundstage complex" means a facility of multiple stages including production offices, construction shops, and related areas, property, and costume shops, storage areas, parking for production vehicles, and areas that are leased to businesses that complement the production needs and orientation of the overall facility. (3476/Reso. 7209)

18. Tangible personal property that is used by either of the following to receive, store, convert, produce, generate, decode, encode, control, or transmit telecommunications information: (3476/Reso. 7209)

    (a) Any direct broadcast satellite television or data transmission service that operates pursuant to 47 Code of Federal Regulations Parts 25 and 100. (3476/Reso. 7209)

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*Pursuant to Ordinance 3476/Reso. 7209, Section 5-10-110, Subsection (A), paragraph 16 is retroactive to April 1, 1987.

(b) Any satellite television or data transmission facility, if both of the following conditions are met: (3476/Reso. 7209)

i. Over two-thirds (⅔) of the transmissions, measured in megabytes, transmitted by the facility during the test period were transmitted to or on behalf of one (1) or more direct broadcast satellite television or data transmission services that operate pursuant to 47 Code of Federal Regulations Parts 25 and 100. (3476/Reso. 7209)

ii. Over two-thirds (⅔) of the transmissions, measured in megabytes, transmitted by or on behalf of those direct broadcast television or data transmission services during the test period were transmitted by the facility to or on behalf of those services. (3476/Reso. 7209)

For purposes of Subdivision (b) of this paragraph, "test period" means the three hundred sixty-five- (365-) day period beginning on the later of the date on which the tangible personal property is purchased or the date on which the direct broadcast satellite television or data transmission service first transmits information to its customers. (3476/Reso. 7209)

19. Machinery and equipment that is used directly in the feeding of poultry, the environmental control of housing for poultry, the movement of eggs within a production and packaging facility, or the sorting or cooling of eggs. This exemption does not apply to vehicles used for transporting eggs. (3729/Reso. 7458)

20. Machinery or equipment, including related structural components, that is employed in connection with manufacturing, processing, fabricating, job printing, refining, mining, natural gas pipelines, metallurgical operations, telecommunications, producing or transmitting electricity, or research and development that is used directly to meet or exceed rules or regulations adopted by the Federal Energy Regulatory Commission, the United States Environmental Protection Agency, the United States Nuclear Regulatory Commission, the Arizona Department of Environmental Quality, or a political subdivision of this State to prevent, monitor, control, or reduce land, water, or air pollution. (3729/Reso. 7458)

21. Machinery or equipment that enables a television station to originate and broadcast or to receive and broadcast digital television signals and that was purchased to facilitate compliance with the Telecommunications Act of 1996 (P.L. 104-104; 110 Stat. 56; 47 United States Code Section 336) and the Federal Communications Commission order issued April 21, 1997, 47 Code of Federal Regulations Part 73. This paragraph does not exempt any of the following: (3729/Reso. 7458)

(a) Repair or replacement parts purchased for the machinery or equipment described in this paragraph. (3729/Reso. 7458)

(b) Machinery or equipment purchased to replace machinery or equipment for which an exemption was previously claimed and taken under this paragraph. (3729/Reso. 7458)

(c) Any machinery or equipment purchased after the television station has ceased analog broadcasting, or purchased after November 1, 2009, whichever occurs first. (3729/Reso. 7458)

(B) The term "income-producing capital equipment" shall further include ancillary machinery and equipment used for the treatment of waste products created by the business activities which are allowed to purchase "income-producing capital equipment" defined in Subsection (A) above.

(C) The term "income-producing capital equipment" shall further include repair and replacement parts, other than the items in Subsection (D) below, where the property is acquired to become an integral part of another item itemized in Subsection (A) or (B) above.

(D) The tangible personal property defined as "income-producing capital equipment" in this Section shall not include:

1. Expendable materials. For purposes of this paragraph, expendable materials do not include any of the categories of tangible personal property specified in Subsection (A), (B), or (C) of this Section regardless of the cost or useful life of that property. (2977/Reso. 6722, 3729/Reso. 7458)
2. Janitorial equipment and hand tools. (2977/Reso. 6722)
3. Office equipment, furniture, and supplies.
4. Tangible personal property used in selling or distributing activities.
5. Motor vehicles required to be licensed by the State of Arizona, except buses or other urban mass transit vehicles specifically exempted pursuant to Subsection (A)10 above without regard to the use of such motor vehicles. (2977/Reso. 6722)
6. Shops, buildings, docks, depots, and all other materials of whatever kind or character not specifically included as exempt. (2977/Reso. 6722)
7. Motors and pumps used in drip irrigation systems. (2977/Reso. 6722)

E. For the purposes of this Section: (2977/Reso. 6722)

1. "Aircraft" includes: (2977/Reso. 6722)
   (a) An airplane flight simulator that is approved by the Federal Aviation Administration for use as a Phase II or higher flight simulator under Appendix H, 14 Code of Federal Regulations Part 121. (2977/Reso. 6722)
   (b) Tangible personal property that is permanently affixed or attached as a component part of an aircraft that is owned or operated by a certificated or licensed carrier of persons or property. (2977/Reso. 6722)
2. "Other accessories and related equipment" includes aircraft accessories and equipment such as ground service equipment that physically contact aircraft at some point during the overall carrier operation. (2977/Reso. 6722)

5-10-115: DEFINITIONS; COMPUTER SOFTWARE, CUSTOM COMPUTER PROGRAMMING

(A) **COMPUTER SOFTWARE:** Any computer program, part of such a program, or any sequence of instructions for automatic data processing equipment. Computer software which is not "custom computer programming" is deemed to be tangible personal property for the purposes of this Chapter regardless of the method by which title, possession, or right to use the software is transferred to the user.

(B) **CUSTOM COMPUTER PROGRAMMING:** Any computer software which is written or prepared exclusively for a customer and includes those services represented by separately stated charges for the modification of existing prewritten programs when the modifications are written or prepared exclusively for a customer.

1. The term does not include a prewritten program which is held or existing for general or repeated sale, lease, or license, even if the program was initially developed on a custom basis for in-house or for a single customer's use.

2. Modification to an existing prewritten program to meet the customer's needs is "custom computer programming" only to the extent of the modification and only to the extent that the actual amount charged for the modification is separately stated on invoices, statements, and other billing documents supplied to the customer.

5-10-120: RESERVED

ARTICLE II DETERMINATION OF GROSS INCOME

5-10-200: DETERMINATION OF GROSS INCOME; IN GENERAL

(A) Gross income includes:

1. The value proceeding or accruing from the sale of property, the providing of service, or both.

2. The total amount of the sale, lease, license for use, or rental price at the time of such sale, rental, lease, or license.

3. All receipts, cash, credits, barter, exchange, reduction of or forgiveness of indebtedness, and property of every kind or nature derived from a sale, lease, license for use, rental, or other taxable activity.

4. All other receipts whether payment is advanced prior to, contemporaneous with, or deferred in whole or in part subsequent to the activity or transaction.

(B) Barter, exchange, trade-outs, or similar transactions are includable in gross income at the fair market value of the service rendered or property transferred, whichever is higher, as they represent consideration given for consideration received.

(C) No deduction or exclusion is allowed from gross income on account of the cost of the property sold, the time value of money, expense of any kind or nature, losses, materials used, labor or service performed, interest paid, or credits granted.

(D) For the purposes of this Chapter the total amount of gross income, gross receipts or gross proceeds of sales for nuclear fuel shall be deemed to be the value of the purchase price of uranium oxide used in producing the fuel. The tax imposed by this Chapter may be imposed only once for any one quantity or batch of nuclear fuel regardless of the number of the transactions or financing arrangements which may occur with respect to that nuclear fuel. (5190)

5-10-210: DETERMINATION OF GROSS INCOME; TRANSACTIONS BETWEEN AFFILIATED COMPANIES OR PERSONS

In transactions between affiliated companies or persons or in other circumstances where the relationship between the parties is such that the gross income from the transaction is not indicative of the market value of the subject matter of the transaction, the Tax Collector shall determine the "market value" upon which the City Privilege and Use Taxes shall be levied. "Market value" shall correspond as nearly as possible to the gross income from similar transactions of like quality or character by other taxpayers where no common interest exists between the parties, but otherwise under similar circumstances and conditions.

5-10-220: DETERMINATION OF GROSS INCOME; ARTIFICIALLY CONTRIVED TRANSACTIONS

The Tax Collector may examine any transaction, reported or unreported, if, in his opinion, there has been or may be an evasion of the taxes imposed by this Chapter and to estimate the amount subject to tax in cases where such evasion has occurred. The Tax Collector shall disregard any transaction which has been undertaken in an artificial manner in order to evade the taxes imposed by this Chapter.

5-10-230: DETERMINATION OF GROSS INCOME BASED UPON METHOD OF REPORTING

The method of reporting chosen by a taxpayer, as provided in Section 5-10-520, necessitates the following adjustments to gross income for all purposes under this Chapter:

(A) Cash basis. When a person elects to report and pay taxes on a cash basis, gross income for the reporting period shall include:

1. The total amounts received on "paid in full" transactions, against which are allowed all applicable deductions and exclusions; and

2. All amounts received on accounts receivable, conditional sales contract, or other similar transactions, against which no deductions and no exclusions from gross income are allowed. Interest on finance contracts may be deducted if separately itemized on all books and records. (3270/Reso. 6970)

(B) Accrual basis. When a person elects to report and pay taxes on an accrual basis, gross income shall include all gross income for the applicable period regardless of whether receipts are for cash, credit, conditional, or partially deferred transactions and regardless of whether or not any security document or instrument is sold, assigned, or otherwise transferred to another. Persons reporting on the accrual basis may deduct bad debts, provided that:

1. The amount deducted for the bad debt must be deducted from gross income of the month in which the actual charge-off was made and only to the extent that such amount was actually charged-off, and also only to the extent that such amount is or was included as taxable gross income; and

2. If any amount is subsequently collected on such charged-off account, it shall be included in gross income for the month in which it was collected, without deduction for expense of collection.

5-10-240: EXCLUSION OF CASH DISCOUNTS, RETURNS, REFUNDS, TRADE-IN VALUES, VENDOR-ISSUED COUPONS, AND REBATES FROM GROSS INCOME

(A) The following items are not included in gross income:

1. Cash discounts allowed by the vendor for timely payment, but only discounts allowed against taxable gross income.

2. The value of property returned by customers to the extent of the amount actually refunded either in cash or by credit and the amount refunded was included in taxable gross income.

3. The trade-in allowance for tangible personal property accepted as payment, not to exceed the full sales price for any tangible personal property sold, when the full sales price is included in taxable gross income. Trade-in allowances are not allowed for manufactured buildings taxable under Section 5-10-427. (2977/Reso. 6722)

4. When coupons issued by a vendor are later accepted by the vendor as a discount against the transaction, the discount may be excluded from gross income as a cash discount. Amounts credited or refunded by a vendor for redemption of coupons issued by any person other than the vendor may not be excluded from gross income.

5. Rebates issued by the vendor to a customer as a discount against the transaction may be excluded from gross income as a cash discount. Rebates issued by a person other than the vendor may not be excluded from gross income, even when the vendee assigns his right to the rebate to the vendor.

6. In computing the tax base, gross proceeds of sales or gross income does not include a manufacturer's cash rebate on the sales price of a motor vehicle if the buyer assigns the buyer's right in the rebate to the retailer. (3270/Reso. 6970)

(B) If the amount specified in Subsection (A) above is credited by a vendor subsequent to the reporting period in which the original transaction occurs, such amount may be excluded from the taxable gross income of that subsequent reporting period, but only to the extent that the excludable amount was reported as taxable gross income in that prior reporting period.

5-10-250: EXCLUSION OF COMBINED TAXES FROM GROSS INCOME; ITEMIZATION; NOTICE; LIMITATIONS

(A) When Tax is Separately Charged and/or Collected. The total amount of gross income shall be exclusive of combined taxes only when the person upon whom the tax is imposed shall establish to the satisfaction of the Tax Collector that such tax has been added to the total price of the transaction. The taxpayer must provide to his customer and also keep a reliable record of the actual tax charged or collected, shown by cash register tapes, sales tickets, or other accurate record, separating net transaction price and combined tax. If at any time the Tax Collector cannot ascertain from the records kept by the taxpayer the total or amounts billed or collected on account of combined taxes, the claimed taxes collected may not be excluded from gross income unless such records are completed and/or clarified to the satisfaction of the Tax Collector.

1. Remittance of all Tax Charged and/or Collected. When an added charge is made to cover City (or combined) Privilege and Use Taxes, the person upon whom the tax is imposed shall pay the full

amount of the City taxes due, whether collected by him or not, and in the event he collects more than the amount due he shall remit the excess to the Tax Collector. In the event the Tax Collector cannot ascertain from the records kept by the taxpayer the total or amounts of taxes collected by him and the Tax Collector is satisfied that the taxpayer has collected taxes in an amount in excess of the tax assessed under this Chapter, the Tax Collector may determine the amount collected and collect the tax so determined in the manner provided in this Chapter.

2. Itemization. A taxpayer, in order to be entitled to exclude from his gross income any amounts paid to him by customers for combined taxes passed on to the customer, must prove that he has provided his customer with a written record of the transaction showing at a minimum the price before the tax, the combined taxes, and the total cost. This shall be in addition to the record required to be kept under Subsection (A) above.

(B) When Tax has been Neither Separately Charged nor Separately Collected. When the person upon whom the tax is imposed shall establish by means of invoices, sales tickets, or other reliable evidence that no added charge was made to cover combined taxes, the taxpayer may exclude tax collected from such income by dividing such taxable gross income by 1.00 plus a decimal figure representing the effective combined tax rate expressed as a fraction of 1.00.

5-10-260: EXCLUSION OF FEES AND TAXES FROM GROSS INCOME; LIMITATIONS

(A) There shall be excluded from gross income of vendors of motor vehicles those motor vehicle registration fees, license fees and taxes, and lieu taxes imposed pursuant to A.R.S. Title 28, in connection with the initial purchase of a motor vehicle, but only to the extent that such taxes or fees, or both, have been separately itemized and collected from the purchaser of the motor vehicle by the vendor, actually remitted to the proper registering, licensing, and taxing authorities, and the provisions of Article III regarding record keeping are met. For the purpose of the exclusion provided by this Subsection only, the terms vendor and vendee shall also apply to a lessor and lessee, respectively, of a motor vehicle if, in addition to all other requirements of this Subsection, the lease agreement specifically requires the lessee to pay such fees or taxes and such amounts are separately itemized in the documentation provided to the lessee.

(B) There shall be excluded from gross income of vendors at retail of heavy trucks and trailers the amount attributable to Federal Excise Taxes imposed by 26 U.S.C. Section 4051, but only to the extent that the provisions of Article III relating to record keeping have been met.

(C) There shall be excluded from gross income the following fees, taxes, and lieu taxes, but only to the extent that such taxes or fees or both have been separately itemized and collected from the purchaser by the vendor, actually remitted to the proper registering, licensing, and taxing authorities, and the provisions of Article III regarding record keeping are met: (3270/Reso. 6970)

1. Emergency telecommunication services excise tax imposed pursuant to A.R.S. § 42-1472. "Emergency telecommunications services" means telecommunication services or systems that use Number 911 or a similarly designated telephone number for emergency calls; (3270/Reso. 6970)

2. The telecommunication devices for the deaf and the severely hearing and speech impaired excise tax imposed pursuant to A.R.S. § 42-1472; (3270/Reso. 6970)

3. Federal excise taxes on communications services as imposed by 26 U.S.C. § 4251; (3270/Reso. 6970)

4. Car rental surcharge imposed pursuant to A.R.S. § 48-4234; (3270/Reso. 6970)

5. Federal excise taxes on passenger vehicles as imposed by 26 U.S.C. § 4001(.01); (3270/Reso. 6970)

6. Waste tire disposal fees imposed pursuant to A.R.S. § 44-1302. (3270/Reso. 6970,4169/Reso. 8205)

(D) There shall be excluded from gross income of vendors of motor vehicles dealer documentation fees, but only to the extent that such fees have been separately itemized and collected from the purchaser of the motor vehicle by the vendor. (3270/Reso. 6970)

5-10-265: RESERVED

Editor's note—Ord. No. 2977/Reso. 6722 repealed § 5-10-265.

5-10-266: EXCLUSION OF MOTOR CARRIER REVENUES FROM GROSS INCOME

There shall be excluded from gross income the gross proceeds of sale or gross income derived from any of the following: (2977/Reso. 6722)

(A) A motor carrier's use on the public highways in this State if the motor carrier is subject to a fee prescribed in A.R.S. Title 28, Chapter 15, Article 4 or A.R.S. Title 28, Chapter 16. (2977, 4616/Reso. 6722, 3476/Reso. 7209)

(B) Leasing, renting, or licensing a motor vehicle, subject to and upon which the fee has been paid under A.R.S. Title 28, Chapter 16. (2977/Reso. 6722, 3476/Reso. 7209)

(C) The sale of a motor vehicle, and any repair and replacement parts and tangible personal property becoming a part of such motor vehicle, to a motor carrier who is subject to a fee prescribed in A.R.S. Title 28, Chapter 16 and who is engaged in the business of leasing, renting, or licensing such property. (2977/Reso. 6722, 3476/Reso. 7209)

(D) For the purposes of these exclusions, "motor carrier" includes a motor vehicle weighing twenty-six thousand (26,000) pounds or more, a lightweight motor vehicle which weighs twelve thousand one (12,001) pounds to twenty-six thousand (26,000) pounds, and a light motor vehicle weighing twelve thousand (12,000) pounds or less, which pay the fee prescribed in A.R.S. Title 28, Chapter 15, or A.R.S. Title 28, Chapter 16. (3476, 4616/Reso. 7209)

5-10-270: EXCLUSION OF GROSS INCOME OF PERSONS DEEMED NOT ENGAGED IN BUSINESS

(A) For the purposes of this Section, the following definitions shall apply:

1. **FEDERALLY EXEMPT ORGANIZATION:** An organization which has received a determination of exemption or qualifies for such exemption under 26 U.S.C. § 501(c) and rules and regulations of the Commissioner of Internal Revenue pertaining to same, but not including a "governmental entity," "nonlicensed business," or "public educational entity."

2. **GOVERNMENTAL ENTITY:** The federal government, the State of Arizona, any other state, or any political subdivision, department, or agency of any of the foregoing; provided further that persons contracting with such a governmental entity to operate any part of a governmentally adopted and controlled program to provide urban mass transportation shall be deemed a governmental entity in all activities such person performs when engaged in said contract.

3. **NONLICENSED BUSINESS:** Any person conducting any business activity for gain or profit, whether or not actually realized, which person is not required to be licensed for the conduct or transaction of activities subject to the tax imposed under this Chapter.

4. **PROPRIETARY CLUB:** Any club which has qualified or would otherwise qualify as an exempt club under the provisions of 26 U.S.C. §§ 501(c)(7), (8), and (9), notwithstanding the fact that some or all of the members may own a proprietary interest in the property and assets of the club.

5. **PUBLIC EDUCATIONAL ENTITY:** Any educational entity operated pursuant to any provisions of A.R.S. Title 15.

(B) Transactions which, if conducted by any other person, would produce gross income subject to tax under this Chapter shall not be subject to the imposition of such tax if conducted entirely by a public educational entity; governmental entity, except "proprietary activities" of municipalities as provided by regulation; or nonlicensed business.

(C) Transactions which, if conducted by any other person, would produce gross income subject to the tax under this Chapter shall not be subject to the imposition of such tax if conducted entirely by a federally exempt organization or proprietary club with the following exceptions:

1. Transactions involving proprietary clubs and organizations exempt under 26 U.S.C. §§ 501(c)(7), (8), and (9), where the gross revenue of the activity received from persons other than members and bona fide guests of members is in an amount in excess of fifteen percent (15%) of total gross revenue as prescribed by regulation. In the event this fifteen percent (15%) limit is exceeded, the entire gross income of such entity shall be subject to the applicable tax.

2. Gross income from unrelated business income as that term is defined in 26 U.S.C. § 512, including all statutory definitions and determinations, the rules and regulations of the Commissioner of Internal Revenue, and his administrative interpretations and guidelines.

3. (Reserved)

(D) Except as may be provided elsewhere in this Chapter, transactions where customers are exempt organizations, proprietary clubs, public educational entities, governmental entities, or nonlicensed businesses shall be deemed taxable transactions for the purpose of the imposition of taxes under this Chapter, notwithstanding that property so acquired may in fact be resold or leased by the acquiring person to others. In the case of sales, rentals, leases, or licenses to proprietary clubs or exempt organizations, the vendor may be relieved from the responsibility for reporting and paying tax on such income only by obtaining from its vendee a verified statement that includes:

1. A statement that when the property so acquired is resold, rented, leased, or licensed, the otherwise exempt vendee chooses, or is required, to pay City Privilege Tax or an equivalent excise tax on its gross income from such transactions and does in fact file returns on same;

2. The Privilege License number of the otherwise exempt vendee; and

3. Such other information as the Tax Collector may require.

(E) Franchisees or concessionaires operating businesses for or on behalf of any exempt organization, governmental entity, public educational entity, proprietary club, or nonlicensed business shall not be

considered to be such an exempt organization, club, entity, or nonlicensed business but shall be deemed to be a taxpayer subject to the provisions of this Chapter, except as provided in the definition of governmental entity regarding urban mass transit.

(F) In any case, if a federally exempt organization, proprietary club, or nonlicensed business rents, leases, licenses, or purchases any tangible personal property for its own storage or use and no City Privilege or Use Tax or equivalent excise tax has been paid on such transaction, said organization, club, or business shall be liable for the Use Tax upon such acquisitions or use of such property.

5-10-280: RESERVED
(Ord. No. 3729/Reso. 7458)

5-10-285: RESERVED

5-10-290: RESERVED

Editor's note—Ord. No. 3039 repealed § 5-10-290.

ARTICLE III LICENSING AND RECORD KEEPING

5-10-300: LICENSING REQUIREMENTS

(A) The following persons shall make application to the Tax Collector for a Transaction Privilege and Use Tax License and no person shall engage or continue in business or engage in such activities until he shall have such a license: (2533, 2910, 4037, 4852, 5259)

1. Every person engaging or continuing in business activities within the city or town upon which a Transaction Privilege Tax is imposed by this Chapter. (5259)

2. Every person engaging or continuing in business within the city or town and storing or using tangible personal property in this municipality upon which a Use Tax is imposed by this Chapter. (5259)

3. (Reserved)

(B) For the purpose of determining whether a Transaction Privilege and Use Tax License is required, a person shall be deemed to be "engaging or continuing in business" within the city or town if: (4037, 4852, 5259)

1. Engaging in any activity as a principal or broker, the gross receipts of which may be subject to Transaction Privilege Tax under Article IV of this Chapter, or (5259)

2. Maintaining within the city or town directly, or if a corporation by a subsidiary, an office, distribution house, sales house, warehouse or other place of business; maintaining within the city or town directly, or if a corporation by a subsidiary, any real or tangible personal property; or having any agent or other representative operating within the city or town under the authority of such person, or if a corporation by a subsidiary, irrespective of whether such place of business, property, or agent or other representative is located here permanently or temporarily, or (5259)

3. Soliciting sales, orders, contracts, leases, and other similar forms of business relationships, within the city or town from customers, consumers, or users located within the city or town, by means of

salesmen, solicitors, agents, representatives, brokers, and other similar agents or by means of catalogs or other advertising, whether such orders are received or accepted within or without this city or town. (5259)

4. A person shall also be deemed to be "engaging or continuing in business" if engaging in any activity subject to Use Tax under Article VI of this Chapter for business purposes. Individuals who acquire items subject to Use Tax for their own personal use or their family's personal use are not required to obtain a license. (5259)

5. (Reserved)

(C) A person engaging in more than one activity subject to Transaction Privilege Tax at any one business location is not required to obtain a separate license for each activity, provided that, at the time such person makes application for a license, he shall list on such application each category of activity in which he is engaged. (4037, 5259)

(D) The licensee shall inform the Tax Collector of any changes in his business activities, location, or mailing address within thirty (30) days. (2977/Reso. 6722, 4037, 5259)

E. Limitation. The issuance of a Transaction Privilege and Use Tax License by the Tax Collector shall in no way be construed as permission to operate a business activity in violation of any other law or regulation to which such activity may be subject. (4037, 5259)

(F) Casual activity. For the purposes of this Chapter, individuals engaging in a "casual activity or sale" are not subject to the license requirements imposed under this Article provided that they are only engaged in private sales activities, such as the sale of a personal automobile or garage sale, on no more than three separate occasions during any calendar year. (5259)

5-10-310: LICENSING: SPECIAL REQUIREMENTS

(A) Partnerships. Application for a Transaction Privilege and Use Tax License for a partnership engaging or continuing in business shall provide, as a minimum, the names and addresses of all general partners. Licenses issued to persons engaging in business as partners, limited or general, shall be in the name of the partnership. (5259)

(B) Limited Liability Companies. Application for a Transaction Privilege and Use Tax License for a Limited Liability Company (LLC) engaging or continuing in business shall provide, as a minimum, the names and addresses of all members and the manager. Licenses issued to persons engaging in business as Limited Liability Companies, shall be in the name of the LLC. (5259)

(C) Corporations. Application for a Transaction Privilege and Use Tax License for a corporation engaging or continuing in business shall provide, as a minimum, the names and addresses of both the Chief Executive Officer and Chief Financial Officer of the corporation. Licenses issued to persons engaging in business as corporations shall be in the name of the corporation. (5259)

(D) Multiple Locations or Multiple Business Names. A person engaging or continuing in one or more businesses at two (2) or more locations or under two (2) or more business names shall procure a license for each such location or business name. A "location" is a place of a separate business establishment. (2321,5259)

(E) Real Property Rental, Leasing, and Licensing for Use. In all cases the Transaction Privilege and Use Tax License shall be issued only to the owner of the real property regardless of the owner engaging a property manager or other broker to oversee the owner's business activity including filing tax returns on behalf of the owner. Each rental property that can be independently sold or transferred is deemed to be a separate business establishment. Each platted parcel of real property subject to the tax imposed by this Chapter is deemed to be a separate business establishment and requires a separate license, regardless of the number of rental units located on that platted parcel. If one structure is located on multiple parcels in a manner such that ownership of an individual parcel cannot be sold or transferred without requiring alteration to divide the structure, one license shall be required for all affected parcels. (5259)

5-10-320: LICENSE FEES; ANNUAL RENEWAL; RENEWAL FEES

(A) The Transaction Privilege and Use Tax License shall be valid upon receipt of a non-refundable license fee of twenty dollars ($20.00), except for a license to engage in the business activity of residential or commercial real property rental, leasing, and licensing for use as separately identified in this Section. The Transaction Privilege and Use Tax License shall be valid only for the calendar year in which it is issued unless renewed each year by filing the appropriate application for license renewal and paying an annual license renewal fee of twenty dollars ($20.00) for each license, subject to the limitations in A.R.S. § 42-5005. Such annual renewal fee shall be due and payable on January 1 of each year and shall be considered delinquent if not paid and received on or before the last business day of January. (2533, 2785, 2910, 4852, 4927, 5259)

(B) The Transaction Privilege and Use Tax License to engage in the business activity of residential real property rental, leasing, and licensing for use shall be valid only upon receipt of a non-refundable license fee of twenty dollars ($20.00). The Transaction Privilege and Use Tax License shall be valid only for the calendar year in which it is issued unless renewed each year by filing the appropriate application for license renewal and paying an annual license renewal fee of twenty dollars ($20.00) for each license, subject to the limitations in A.R.S. § 42-5005. Such fee shall be due and payable on January 1 of each year and shall be considered delinquent if not paid and received on or before the last business day of January. (5259)

(C) The Transaction Privilege and Use Tax License to engage in the business activity of commercial real property rental, leasing, and licensing for use shall be valid only upon receipt of a non-refundable license fee of twenty dollars ($20.00). The Transaction Privilege and Use Tax License shall be valid only for the calendar year in which it is issued unless renewed each year by filing the appropriate application for license renewal and paying an annual license renewal fee of twenty dollars ($20.00) for each license, subject to the limitations in A.R.S. § 42-5005. Such fee shall be due and payable on January 1 of each year and shall be considered delinquent if not paid and received on or before the last business day of January. (5259)

5-10-330: LICENSING: DURATION; TRANSFERABILITY; DISPLAY; PENALTIES; PENALTY WAIVER; RELICENSING; FEES COLLECTIBLE AS IF TAXES

(A) The Transaction Privilege and Use Tax License shall be valid only for the calendar year in which it is issued unless renewed each year by filing the appropriate application for license renewal and paying the applicable license renewal fee for each license, subject to the limitations in A.R.S. § 42-5005. Such fee shall be due and

payable on January 1 of each year and shall be considered delinquent if not paid and received on or before the last business day of January. Application and payment of the annual fee must be received in the Tax Collector's office to be deemed paid and received. (5259)

(B) The Transaction Privilege and Use Tax License shall be nontransferable between owners or locations, and shall be on display to the public in the licensee's place of business. (5259)

(C) Any person required to be licensed under this Chapter who fails to obtain a license on or before conducting any business activity requiring such license shall be subject to the license fees due for each year in business plus a penalty in the amount of fifty percent (50%) of the applicable fee for each period of time for which such fee would have been imposed, from and after the date on which such activity commenced until paid. This penalty shall be in addition to any other penalty imposed under this Chapter and must be paid prior to the issuance of any license. License fee penalties may be waived by the Tax Collector subject to the same terms as the waiver of tax penalties as provided for in Section 5-10-540. (5259)

(D) Any licensee who fails to renew his license on or before the due date shall be deemed to be operating without a license following such due date, and shall be subject to all penalties imposed under this Chapter against persons required to be licensed and operating without a license. The non-licensed status may be removed by payment of the annual license fee for each year or portion of a year he operated without a license, plus a license penalty of 50% of the license fee due for each year. License fee penalties may be waived by the Tax Collector subject to the same terms as the waiver of tax penalties as provided for in Section 5-10-540. (5259)

(E) Any licensee who permits his license to expire through cancellation as provided in Section 5-10-340, by his request for cancellation, by surrender of the license, or by the cessation of the business activity for which the license was issued, and who thereafter applies for a license, shall be granted a new license as a new applicant and shall pay the current license fee imposed under Section 5-10-320. (5259)

(F) Any licensee who needs a copy of his Transaction Privilege and Use Tax License which is still in effect shall be charged the current license fee for each reissuance of a license. (5259)

(G) Any person conducting a business activity subject to licensing without obtaining a Transaction Privilege and Use Tax License shall be liable to the city for all applicable fees and penalties and shall be subject to the provisions of Sections 5-10-580 and 5-10-590, to the same extent as if such fees and penalties were taxes and penalties under such Sections. (5259)

5-10-340: LICENSING; CANCELLATION; REVOCATION

(A) Cancellation. The Tax Collector may cancel the Transaction Privilege and Use Tax License of any licensee as "inactive" if the taxpayer, required to report monthly, has neither filed any return nor remitted any taxes imposed by this Chapter for a period of six (6) consecutive months; or, if required to report quarterly, has neither filed any return nor remitted any taxes imposed by this Chapter for two (2) consecutive quarters; or, if required to report annually, has neither filed any return nor remitted any taxes imposed by this Chapter when such annual report and tax are due to be filed with and remitted to the Tax Collector. (5259)

(B) Revocation. If any licensee fails to pay any tax, interest, penalty, fee, or sum required to be paid under this Chapter, or if such licensee fails to comply with any other provisions of this Chapter, the Tax Collector may revoke the Transaction Privilege and Use Tax License of said licensee. (5259)

(C) Notice and Hearing. The Tax Collector shall deliver notice to such licensee of cancellation or revocation of the Transaction Privilege and Use Tax License. If the licensee requests a hearing within twenty (20) days of receipt of such notice, he shall be granted a hearing before the Tax Collector. (5259)

(D) After cancellation or revocation of a taxpayer's license, the taxpayer shall not be issued a new license until all reports have been filed; all fees, taxes, interest, and penalties due have been paid; and he is in compliance with all provisions of this Chapter. (5259)

5-10-350: OPERATING WITHOUT A LICENSE

It shall be unlawful for any person who is required by this Chapter to obtain a Transaction Privilege and Use Tax License to engage in or continue in business without a license. The Tax Collector shall assess any delinquencies in tax, interest, and penalties which may apply against such person upon any transactions subject to the taxes imposed by this Chapter. (5259)

5-10-360: RECORD KEEPING REQUIREMENTS

(A) It shall be the duty of every person subject to the tax imposed by this Chapter to keep and preserve suitable records and such other books and accounts as may be necessary to determine the amount of tax for which he is liable under this Chapter. The books and records must contain, at a minimum, such detail and summary information as may be required by this Article; or when records are maintained within an electronic data processing (EDP) system, the requirements established by the Arizona Department of Revenue for privilege tax filings will be accepted. It shall be the duty of every person to keep and preserve such books and records for a period equal to the applicable limitation period for assessment of tax, and all such books and records shall be open for inspection by the Tax Collector during any business day. (3270/Reso. 6970, 5259)

(B) The Tax Collector may direct, by letter, a specific taxpayer to keep specific other books, records, and documents. Such letter directive shall apply:

1. Only for future reporting periods, and

2. Only by express determination of the Tax Collector that such specific record keeping is necessary due to the inability of the taxing jurisdiction to conduct an adequate examination of the past activities of the taxpayer, which inability resulted from inaccurate or inadequate books, records, or documentation maintained by the taxpayer. (5259)

5-10-362: RECORD KEEPING; INCOME

The minimum records required for persons having gross income subject to, or exempt or excluded from, tax by this Chapter must show: (5259)

(A) The gross income of the taxpayer attributable to any activity occurring in whole or in part in the City. (5259).

(B) The gross income taxable under this Chapter, divided into categories as stated in the official City tax return. (5259)

(C) The gross income subject to Arizona Transaction Privilege Taxes, divided into categories as stated in the official State tax return. (5259)

(D) The gross income claimed to be exempt, and with respect to each activity or transaction so claimed: (5259)

1. If the transaction is claimed to be exempt as a sale for resale or as a sale, rental, lease or license for use of rental equipment: (5259)

   a. the City Privilege License number and State Transaction Privilege Tax License number of the customer (or the equivalent city, if applicable, and state tax numbers of the city and state where the customer resides), and (5259)

   b. the name, business address, and business activity of the customer, and (5259)

   c. evidence sufficient to persuade a reasonable prudent businessman that the transaction is believed to be in good faith a purchase for resale, or a purchase, rental, lease, or license for use of rental equipment, by the vendee in the ordinary and regular course of his business activity, as provided by Regulation. (5259)

2. If the transaction is claimed to be exempt for any other reason: (5259)

   a. the name, business address, and business activity of the customer, and (5259)

   b. evidence which would establish the applicability of the exemption to a reasonably prudent businessman acting in good faith. Ordinary business documentation which would reasonably indicate the applicability of an exemption shall be sufficient to relieve the person on whom the tax would otherwise be imposed from liability therein, if he acts in good faith as provided by Regulation (5259)

(E) With respect to those allowed deductions or exclusions for tax collected or charges for delivery or other direct customer services, where applicable, evidence that the deductible income has been separately stated and shown on the records of the taxpayer and on invoices or receipts provided to the customer. All other deductions, exemptions, and exclusions shall be separately shown and substantiated. (5259)

(F) With respect to special classes and activities, such other books, records and documentation as the Tax Collector, by regulation, shall deem necessary for specific classes of taxpayer by reason of the specialized business activity of any such class. (5259)

(G) In all cases, the books and records of the taxpayer shall indicate both individual transaction amounts and totals for each reporting period for each category of taxable, exempt, and excluded income defined by this Chapter. (5259)

5-10-364: RECORDKEEPING: EXPENDITURES

The minimum records required for persons having expenditures, costs, purchases and rental or lease or license expenses subject to, or exempt or excluded from, tax by this Chapter are: (5259)

(A) The total price of all goods acquired for use or storage in the City. (5259)

(B) The date of acquisition and the name and business address of the seller or lessor of all goods acquired for use or storage in the City. (5259)

(C) Documentation of taxes, freight, and direct customer service labor separately charged and paid for each purchase, rental, lease, or license. (5259)

(D) The gross price of each acquisition claimed as exempt from tax, and with respect to each transaction so claimed, sufficient evidence to satisfy the Tax Collector that the exemption claimed is applicable. (5259)

(E) As applicable to each taxpayer, documentation sufficient to the Tax Collector, so that he may ascertain:

1. All construction expenditures and all Privilege and Use Taxes claimed paid, relating to owner-builders and speculative builders. (5259)

2. Disbursement of collected gratuities and related payroll information required of restaurants. (5259)

3. (Reserved)

4. The validity of any claims of proof of exemption. (5259)

5. A claimed alternative prior value for reconstruction. (5259)

6. All claimed exemptions to the Use Tax imposed by Article VI of this Chapter. (5259)

7. Costs used to compute the "computed charge" claimed for retail service and repair. (5259)

8. (Reserved)

9. (Reserved)

(F) Any additional documentation as the Tax Collector, by Regulation, shall deem necessary for any specific class of taxpayer by reason of the specialized business activity of specific exemptions afforded to that class of taxpayer. (5259)

(G) In all cases, the books and records of the taxpayer shall indicate both individual transaction amounts and totals for each reporting period for each category of taxable, exempt, and excluded expenditures as defined by this Chapter. (5259)

5-10-366: RECORDKEEPING: OUT-OF-CITY AND OUT-OF-STATE SALES

(A) Out-of-City Sales. Any person engaging or continuing in a business who claims out-of-City sales shall maintain and keep accounting records or books indicating separately the gross income from the sales of tangible personal property from such out-of-City branches or locations. (5259)

(B) Out-State-Sales. Persons engaged in a business claiming out-of-State sales shall maintain accounting records or books indicating for each out-of-State sale the following documentation: (5259)

1. Documentation of location of the buyer at the time of the order placement; and (5259)

2. Shipping, delivery, or freight documents showing where the buyer took delivery; and (5259)

3. Documentation of intended location of use or storage of the tangible personal property sold to such buyer. (5259)

5-10-370: RECORDKEEPING: CLAIM OF EXCLUSION, EXEMPTION, DEDUCTION, OR CREDIT; DOCUMENTATION; LIABILITY

(A) All deductions, exclusions, exemptions, and credits provided in this Chapter are conditional upon adequate proof and documentation of such as may be required either by this Chapter or Regulation. (5259)

(B) Any person who claims and receives an exemption, deduction, exclusion, or credit to which he is not entitled under this Chapter, shall be subject to, liable for, and pay the tax on the transaction as if the vendor subject to the tax had passed the burden of the payment of the tax to the person wrongfully claiming the exemption. A person who wrongfully claimed such exemption shall be treated as if he is delinquent in the payment of the tax and shall be subject to interest and penalties upon such delinquency. However, if the tax is collected from the vendor on such transaction it shall not again by collected from the person claiming the exemption, or if collected from the person claiming the exemption it shall not also be collected from the vendor. (5259)

5-10-372: PROOF OF EXEMPTION: SALE FOR RESALE; SALE, RENTAL, LEASE, OR LICENSE OF RENTAL EQUIPMENT

A claim of purchase for resale or of purchase, rental, lease, or license for rent, lease, or license is valid only if the evidence is sufficient to persuade a reasonably prudent businessman that the particular item is being acquired for resale or for rental, lease, or license in the ordinary course of business. The fact that the acquiring person possesses a Privilege License number, and makes a verbal claim of "sale for resale or lease" or "lease for re-lease" does not meet this burden and is insufficient to justify an exemption. The "reasonable evidence" must be evidence which exists objectively, and not merely in the mind of the vendor, that the property being acquired is normally sold, rented, leased or licensed by the acquiring person in the ordinary course of business. Failure to obtain such reasonable evidence at the time of the transaction will be a basis for disallowance of any claimed deduction on returns filed for such transactions. (5259)

5-10-380: INADEQUATE OR UNSUITABLE RECORDS

In the event the records provided by the taxpayer are considered by the Tax Collector to be inadequate or unsuitable to determine the amount of the tax for which such taxpayer is liable under the provisions of this Chapter, it is the responsibility of the taxpayer either: (5259)

(A) To provide such other records required by this Chapter or Regulation; or (5259)

(B) To correct or to reconstruct his records, to the satisfaction of the Tax Collector. (5259)

ARTICLE IV PRIVILEGE TAXES

5-10-400: IMPOSITION OF PRIVILEGE TAXES; PRESUMPTION

(A) There are hereby levied and imposed, subject to all other provisions of this Chapter, the following Privilege Taxes for the purpose of raising revenue to be used in defraying the necessary expenses of the City, such taxes to be collected by the Tax Collector:

1. Privilege Tax upon persons on account of their business activities to the extent provided elsewhere in this Article, to be measured by the gross income of persons, whether derived from residents of the City or not or whether derived from within the City or from without.

2. (Reserved)

3. A privilege tax upon persons for the privilege of selling jet fuel, whether derived from residents of the City or not, or whether derived from within the City or from without, in accordance with the provisions of Section 5-10-400. (3729/Reso. 7458)

(B) Taxes imposed by this Chapter are in addition to others. Except as specifically designated elsewhere in this Chapter, each of the taxes imposed by this Chapter shall be in addition to all other licenses, fees, and taxes levied by law, including other taxes imposed by this Chapter.

(C) Presumption. For the purpose of proper administration of this Chapter and to prevent evasion of the taxes imposed by this Chapter, it shall be presumed that all gross income, or gallons sold, is subject to the tax until the contrary is established by the taxpayer. (3729/Reso. 7458)

(D) Limitation of exemptions, deductions, and credits allowed against the measure of taxes imposed by this Chapter. All exemptions, deductions, and credits set forth in this Chapter shall be limited to the specific activity or transaction described and not extended to include any other activity or transaction subject to the tax.

5-10-405: ADVERTISING

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of local advertising by billboards, direct mail, radio, television, or by any other means. However, commission and fees retained by an advertising agency shall not be includable in gross income from local advertising. All delivery or disseminating of information directly to the public or any portion thereof for a consideration shall be considered "local advertising," except the following: (3491, 4553, 5478)

1. The advertising of a product or service which is sold or provided both within and without the State by more than one (1) "commonly designated business entity" within the State and in which the advertisement names either no "commonly designated business entity" within the State or more than one (1) "commonly designated business entity."

   COMMONLY DESIGNATED BUSINESS ENTITY: Any person selling or providing any product or service to its customers under a common business name or style even though there may be more than one (1) legal entity conducting business functions using the same or substantially the same business name or style by virtue of a franchise, license, or similar agreement.

2. The advertising of a facility or of a service or activity in which neither the facility nor a business site carrying on such service or activity is located within the State.

3. The advertising of a product which may only be purchased from an out-of-State supplier.

4. Political advertising for United States Presidential and Vice Presidential candidates only.

5. Advertising by means of product purchase coupons redeemable at any retail establishment carrying such product, but not product coupons redeemable only at a single commonly designated business entity.

6. Advertising transportation services where a substantial portion of the transportation activity of the business entity advertised involves interstate or foreign carriage.

(B) (Reserved)

5-10-407: RESERVED
(Ord. No. 2321/Res. 5979)

5-10-410: AMUSEMENTS, EXHIBITIONS, AND SIMILAR ACTIVITIES

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of providing amusement that begins in the City or takes place entirely within the City, which includes the following type or nature of businesses: (2977, 4616/Reso. 6722, 3491, 4553, 5478)

1. Operating or conducting theaters, movies, operas, shows of any type or nature, exhibitions, concerts, carnivals, circuses, amusement parks, menageries, fairs, races, contests, games, billiard or pool parlors, bowling alleys, skating rinks, tennis courts, golf courses, video games, pinball machines, public dances, dance halls, sports events, jukeboxes, batting and driving ranges, animal rides, or any other business charging admission for exhibition, amusement, or entertainment. (2977/Reso. 6722)

2. (Reserved)

(B) Deductions or Exemptions. The gross proceeds of sales or gross income derived from the following sources is exempt from the tax imposed by this section: (4616)

1. (Reserved)

2. Amounts retained by the Arizona Exposition and Arizona State Fair Board from ride ticket sales at the annual State Fair. (4616)

3. Income received from a hotel business subject to tax under Section 5-10-444, if all of the following apply:

   (a) The hotel business receives gross income from a customer for the specific business activity otherwise subject to amusement tax. (4616)

   (b) The consideration received by the hotel business is equal to or greater than the amount to be deducted under this subsection. (4616)

   (c) The hotel business has provided an exemption certificate to the person engaging in business under this section. (4616)

4. Income that is specifically included as the gross income of a business activity upon which another section of this article imposes a tax, that is separately stated to the customer and is taxable to the person engaged in that classification not to exceed consideration paid to the person conducting the activity. (4616)

5. Income from arranging transportation connected to amusement activity that is separately stated to the customer, not to exceed consideration paid to the transportation business. (4616)

(C) The tax imposed by this section shall not include arranging an amusement activity as a service to a person's customers if that person is not otherwise engaged in the business of operating or conducting an amusement themselves or through others. This exception does not apply to businesses that operate or

conduct amusements pursuant to customer orders and send the billings and receive the payments associated with that activity, including when the amusement is performed by third party independent contractors. For the purposes of this paragraph, "arranging" includes billing for or collecting amusement charges from a person's customers on behalf of the persons providing the amusement. (4616)

5-10-415: CONSTRUCTION CONTRACTING; CONSTRUCTION CONTRACTORS

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business upon every construction contractor engaging or continuing in the business activity of construction contracting within the City. (3491, 4553, 5478)

1. However, gross income from construction contracting shall not include charges related to ground-water-measuring devices required by A.R.S. § 45-604.

2. (Reserved)

3. Gross income from construction contracting shall not include gross income from the sale of manufactured buildings taxable under Section 5-10-427. (2977/Reso. 6722)

4. For taxable periods beginning from and after July 1, 2008, the portion of gross proceeds of sales or gross income attributable to the actual direct costs of providing architectural or engineering services that are incorporated in a contract is not subject to tax under this Section. For the purposes of this Subsection, "direct costs" means the portion of the actual costs that are directly expended in providing architectural or engineering services. (4835)

(B) Deductions and Exemptions. (3729/Reso. 7458)

1. Gross income derived from acting as a "subcontractor" shall be exempt from the tax imposed by this Section.

2. All construction contracting gross income subject to the tax and not deductible herein shall be allowed a deduction of thirty-five percent (35%).

3. The gross proceeds of sales or gross income attributable to the purchase of machinery, equipment, or other tangible personal property that is exempt from or deductible from privilege or use tax under: (3729/Reso. 7458)

   (a) Section 5-10-465, Subsections (G) and (P) (3729/Reso. 7458)

   (b) Section 5-10-660, Subsections (G) and (P) (3749/Reso. 7458)

   shall be exempt or deductible, respectively, from the tax imposed by this Section.* (3729/Reso. 7458)

4. The gross proceeds of sales or gross income that is derived from a contract entered into for the installation, assembly, repair, or maintenance of income-producing capital equipment, as defined in Section 5-10-110, that is deducted from the retail classification pursuant to Section 5-10-465(g), that does not become a permanent attachment to a building, highway, road, railroad, excavation, or manufactured building or other structure, project, development, or improvement shall be exempt from the tax imposed by this Section. If the ownership of the realty is separate from the ownership

*Pursuant to Ordinance 3729/Reso. 7458, Section 5-10-415, Subsection (B)3 is retroactive to January 1, 1999.

of the income-producing capital equipment, the determination as to permanent attachment shall be made as if the ownership was the same. The deduction provided in this paragraph does not include gross proceeds of sales or gross income from that portion of any contracting activity which consists of the development of, or modification to, real property in order to facilitate the installation, assembly, repair, maintenance, or removal of the income-producing capital equipment. For purposes of this paragraph, "permanent attachment" means at least one (1) of the following: (3729/Reso. 7458, 3954/Reso. 7756)

(a) To be incorporated into real property. (3729/Reso. 7458)

(b) To become so affixed to real property that it becomes part of the real property. (3729/Reso. 7458)

(c) To be so attached to real property that removal would cause substantial damage to the real property from which it is removed. (3729/Reso. 7458)

5. The gross proceeds of sales or gross income received from a contract for the construction of an environmentally controlled facility for the raising of poultry for the production of eggs and the sorting, or cooling and packaging of eggs shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

6. The gross proceeds of sales or gross income that is derived from the installation, assembly, repair, or maintenance of cleanrooms that are deducted from the tax base of the retail classification pursuant to Section 5-10-465, Subsection (G) shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

7. The gross proceeds of sales or gross income that is derived from a contract entered into with a person who is engaged in the commercial production of livestock, livestock products, or agricultural, horticultural, viticultural, or floricultural crops or products in this State for the construction, alteration, repair, improvement, movement, wrecking or demolition, or addition to or subtraction from any building, highway, road, excavation, manufactured building, or other structure, project, development, or improvement used directly and primarily to prevent, monitor, control, or reduce air, water, or land pollution shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

8. The gross proceeds of sales or gross income received from a post-construction contract to perform post-construction treatment of real property for termite and general pest control, including wood-destroying organisms, shall be exempt from tax imposed under this Section. (3954/Reso. 7756)

9. Through December 31, 2009, the gross proceeds of sales or gross income received from a contract for constructing any lake facility development in a commercial enhancement reuse district that is designated pursuant to A.R.S. § 9-499.08 if the contractor maintains the following records in a form satisfactory to the Arizona Department of Revenue and to the City:

(a) The certificate of qualification of the lake facility development issued by the City pursuant to A.R.S. § 9-499.08, Subsection D. (4616)

(b) All state and local transaction privilege tax returns for the period of time during which the contractor received gross proceeds of sales or gross income from a contract to construct a lake facility development in a designated commercial enhancement reuse district, showing the amount exempted from state and local taxation. (4616)

(c) Any other information considered to be necessary. (4616)

10. Any amount attributable to development fees that are incurred in relation to the construction, development or improvement of real property and paid by the taxpayer as defined in the Model City Tax Code or by a contractor providing services to the taxpayer. For the purposes of this paragraph: (4616, 4979)

(a) The attributable amount shall not exceed the value of the development fees actually imposed. (4979)

(b) The attributable amount is equal to the total amount of development fees paid by the taxpayer or by a contractor providing services to the taxpayer and the total development fees credited in exchange for the construction of, contribution to or dedication of real property for providing public infrastructure, public safety or other public services necessary to the development. The real property must be the subject of the development fees. (4979)

(c) "Development Fees" means fees imposed to offset capital costs of providing public infrastructure, public safety or other public services to a development and authorized pursuant to A.R.S. § 9-463.05, A.R.S. § 11-1102 or A.R.S. Title 48 regardless of the jurisdiction to which the fees are paid. (4979, 5059)

11. For taxable periods beginning from and after July 1, 2008 and ending before January 1, 2017, the gross proceeds of sale or gross income derived from a contract to provide and install a solar energy device. The contractor shall register with the Department of Revenue as a Solar Energy Contractor. By registering, the contractor acknowledges that it will make its books and records relating to sales of solar energy devices available to the Department of Revenue and the City, as applicable, for examination. (4835, 5059)

(C) **SUBCONTRACTOR:** A construction contractor performing work for either:

1. A construction contractor who has provided the subcontractor with a written declaration that he is liable for the tax for the project and has provided the subcontractor his City Privilege License number. (2535)

2. An owner-builder who has provided the subcontractor with a written declaration that:

(a) The owner-builder is improving the property for sale; and

(b) The owner-builder is liable for the tax for such construction contracting activity; and

(c) The owner-builder has provided the contractor his City Privilege License number. (2535)

3. A person selling new manufactured buildings who has provided the subcontractor with a written declaration that he is liable for the tax for the site preparation and setup and has provided the subcontractor his City privilege license number. (2977/Reso. 6722)

Subcontractor also includes a construction contractor performing work for another subcontractor as defined above. (2535)

5-10-416: CONSTRUCTION CONTRACTING; SPECULATIVE BUILDERS

(A) The tax shall be equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in business as a speculative builder within the City. (3491, 4553, 5478)

1. The gross income of a speculative builder considered taxable shall include the total selling price from the sale of improved real property at the time of closing of escrow or transfer of title.

2. **IMPROVED REAL PROPERTY:** Any real property:

   (a) Upon which a structure has been constructed; or

   (b) Where improvements have been made to land containing no structure (such as paving or landscaping); or

   (c) Which has been reconstructed as provided by regulation; or

   (d) Where water, power, and streets have been constructed to the property line.

3. **SALE OF IMPROVED REAL PROPERTY:** Includes any form of transaction, whether characterized as a lease or otherwise, which in substance is a transfer of title of, or equitable ownership in, improved real property and includes any lease of the property for a term of thirty (30) years or more (with all options for renewal being included as a part of the term). In the case of multiple unit projects, "sale" refers to the sale of the entire project or to the sale of any individual parcel or unit.

4. **PARTIALLY IMPROVED RESIDENTIAL REAL PROPERTY:** As used in this Section, means any improved real property as defined in Subsection (A)2 above being developed for sale to individual homeowners, where the construction of the residence upon such property is not substantially complete at the time of the sale. (2321)

(B) Exclusions.

1. In cases involving reconstruction contracting, the speculative builder may exclude from gross income the prior value allowed for reconstruction contracting in determining his taxable gross income as provided by regulation.

2. Neither the cost nor the fair market value of the land which constitutes part of the improved real property sold may be excluded or deducted from gross income subject to the tax imposed by this Section.

3. (Reserved)

4. A speculative builder may exclude gross income from the sale of partially improved residential real property as defined in Subsection (A)4 above to another speculative builder only if all of the following conditions are satisfied:

   (a) The speculative builder purchasing the partially improved residential real property has a valid City Privilege License for construction contracting as a speculative builder; and (2535)

(b) At the time of the transaction, the purchaser provides the seller with a properly completed written declaration that the purchaser assumes liability for and will pay all Privilege Taxes which would otherwise be due the City at the time of sale of the partially improved residential real property; and (2535)

(c) The seller also:

i. Maintains proper records of such transactions in a manner similar to the requirements provided in this Chapter relating to sales for resale; and

ii. Retains a copy of the written declaration provided by the buyer for the transaction; and

iii. Is properly licensed with the City as a speculative builder and provides the City with the written declaration attached to the City Privilege Tax return where he claims the exclusion. (2321, 2535)

5. For taxable periods beginning from and after July 1, 2008, the portion of gross proceeds of sales or gross income attributable to the actual direct costs of providing architectural or engineering services that are incorporated in a contract is not subject to tax under this Section. For the purposes of this Subsection, "direct costs" means the portion of the actual costs that are directly expended in providing architectural or engineering services. (4835)

(C) Tax liability for speculative builders occurs at close of escrow or transfer of title, whichever occurs earlier, and is subject to the following provisions, relating to exemptions, deductions, and tax credits: (3729/Reso. 7458)

1. Exemptions. (3729/Reso. 7458)

(a) The gross proceeds of sales or gross income attributable to the purchase of machinery, equipment, or other tangible personal property that is exempt from or deductible from privilege or use tax under:

i. Section 5-10-465, Subsections (G) and (P) (3729/Reso. 7458)

ii. Section 5-10-660, Subsections (G) and (P) (3729/Reso. 7458)

shall be exempt or deductible, respectively, from the tax imposed by this Section.* (3729/Reso. 7458)

(b) The gross proceeds of sales or gross income received from a contract for the construction of an environmentally controlled facility for the raising of poultry for the production of eggs and the sorting, or cooling and packaging of eggs shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

(c) The gross proceeds of sales or gross income that is derived from the installation, assembly, repair, or maintenance of cleanrooms that are deducted from the tax base of the retail classification pursuant to Section 5-10-465, Subsection (G) shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

(d) The gross proceeds of sales or gross income that is derived from a contract entered into with a person who is engaged in the commercial production of livestock, livestock products, or

*Pursuant to Ordinance 3729/Reso. 7458, Section 5-10-416, Subsection (C)1(a) is retroactive to January 1, 1999.

agricultural, horticultural, viticultural, or floricultural crops or products in this State for the construction, alteration, repair, improvement, movement, wrecking or demolition, or addition to or subtraction from any building, highway, road, excavation, manufactured building, or other structure, project, development, or improvement used directly and primarily to prevent, monitor, control, or reduce air, water, or land pollution shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

(e) Any amount attributable to development fees that are incurred in relation to the construction, development or improvement of real property and paid by the taxpayer as defined in the Model City Tax Code or by a contractor providing services to the taxpayer shall be exempt from the tax imposed under this Section. For the purposes of this paragraph: (4616,4979).

(i) The attributable amount shall not exceed the value of the development fees actually imposed. (4979)

(ii) The attributable amount is equal to the total amount of development fees paid by the taxpayer or by a contractor providing services to the taxpayer and the total development fees credited in exchange for the construction of, contribution to or dedication of real property for providing public infrastructure, public safety or other public services necessary to the development. The real property must be the subject of the development fees. (4979)

(iii) "Development Fees" means fees imposed to offset capital costs of providing public infrastructure, public safety or other public services to a development and authorized pursuant to A.R.S. § 9-463.05, A.R.S. § 11-1102 or A.R.S. Title 48 regardless of the jurisdiction to which the fees are paid. (4979, 5059)

2. Deductions. (3729/Reso. 7458)

(a) All amounts subject to the tax shall be allowed a deduction in the amount of thirty-five percent (35%). (3729/Reso. 7458)

(b) The gross proceeds of sales or gross income that is derived from a contract entered into for the installation, assembly, repair, or maintenance of income-producing capital equipment, as defined in Section 5-10-110, that is deducted from the retail classification pursuant to section 5-10-465(g), that does not become a permanent attachment to a building, highway, road, railroad, excavation, or manufactured building or other structure, project, development, or improvement shall be exempt from the tax imposed by this Section. If the ownership of the realty is separate from the ownership of the income-producing capital equipment, the determination as to permanent attachment shall be made as if the ownership was the same. The deduction provided in this paragraph does not include gross proceeds of sales or gross income from that portion of any contracting activity which consists of the development of, or modification to, real property in order to facilitate the installation, assembly, repair, maintenance, or removal of the income-producing capital equipment. For purposes of this paragraph, "permanent attachment" means at least one (1) of the following: (3729/Reso. 7458, 3954/Reso. 7756)

(i) To be incorporated into real property. (3729/Reso. 7458)

(ii) To become so affixed to real property that it becomes part of the real property. (3729/Reso. 7458)

(iii) To be so attached to real property that removal would cause substantial damage to the real property from which it is removed. (3729/Reso. 7458)

(c) For taxable periods beginning from and after July 1, 2008 and ending before January 1, 2017, the gross proceeds of sales or gross income derived from a contract to provide and install a solar energy device. The contractor shall register with the Department of Revenue as a Solar Energy Contractor. By registering, the contractor acknowledges that it will make its books and records available to the Department of Revenue and the City, as applicable, for examination. (4835, 5059)

3. Tax Credits. (3729/Reso. 7458)

The following tax credits are available to owner-builders or speculative builders, not to exceed the tax liability against which such credits apply, provided such credits are documented to the satisfaction of the Tax Collector. (3729/Reso. 7458)

(a) A tax credit equal to the amount of City privilege or use tax, or the equivalent excise tax, paid directly to a taxing jurisdiction or as a separately itemized charge paid directly to the vendor with respect to the tangible personal property incorporated into the said structure or improvement to real property undertaken by the owner-builder or speculative builder. (3729/Reso. 7458)

(b) A tax credit equal to the amount of privilege taxes paid to this City, or charged separately to the speculative builder, by a construction contractor, on the gross income derived by said person from the construction of any improvement to the real property. (3729/Reso. 7458)

(c) No credits provided herein may be claimed until such time that the gross income against which said credits apply is reported. (3729/Reso. 7458)

5-10-417: CONSTRUCTION CONTRACTING; OWNER-BUILDERS WHO ARE NOT SPECULATIVE BUILDERS

(A) At the expiration of twenty-four (24) months after improvement to the property is substantially complete, the tax liability for an owner-builder who is not a speculative builder shall be at an amount equal to two percent (2.00%) of: (3491, 4553, 5478)

1. The gross income from the activity of construction contracting upon the real property in question which was realized by those construction contractors to whom the owner-builder provided written declaration that they were not responsible for the taxes as prescribed in Subsection 5-10-415(C)2; and

2. The purchase of tangible personal property for incorporation into any improvement to real property, computed on the sales price.

(B) For taxable periods beginning from and after July 1, 2008, the portion of gross proceeds of sales or gross income attributable to the actual direct costs of providing architectural or engineering services that are

incorporated in a contract is not subject to tax under this Section. For the purposes of this Subsection, "direct costs" means the portion of the actual costs that are directly expended in providing architectural or engineering services. (4835)

(C) The tax liability of this Section is subject to the following provisions relating to exemptions, deductions, and tax credits: (3729, 4835/Reso. 7458)

1. Exemptions. (3729/Reso. 7458)

(a) The gross proceeds of sales or gross income attributable to the purchase of machinery, equipment, or other tangible personal property that is exempt from or deductible from privilege or use tax under: (3729/Reso. 7458)

i. Section 5-10-465, Subsections (G) and (P) (3729/Reso. 7458)

ii. Section 5-10-660, Subsections (G) and (P) (3729/Reso. 7458)

shall be exempt or deductible, respectively, from the tax imposed by this Section.* (3729/Reso. 7458)

(b) The gross proceeds of sales or gross income received from a contract for the construction of an environmentally controlled facility for the raising of poultry for the production of eggs and the sorting, or cooling and packaging of eggs shall be exempt from the tax imposed by this Section. (3729/Reso. 7458)

(c) The gross proceeds of sales or gross income that is derived from the installation, assembly, repair, or maintenance of cleanrooms that are deducted from the tax base of the retail classification pursuant to Section 5-10-465, Subsection (G) shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

(d) The gross proceeds of sales or gross income that is derived from a contract entered into with a person who is engaged in the commercial production of livestock, livestock products, or agricultural, horticultural, viticultural, or floricultural crops or products in this State for the construction, alteration, repair, improvement, movement, wrecking or demolition, or addition to or subtraction from any building, highway, road, excavation, manufactured building, or other structure, project, development, or improvement used directly and primarily to prevent, monitor, control, or reduce air, water, or land pollution shall be exempt from the tax imposed under this Section. (3729/Reso. 7458)

(e) Any amount attributable to development fees that are incurred in relation to the construction, development or improvement of real property and paid by the taxpayer as defined in the Model City Tax Code or by a contractor providing services to the taxpayer shall be exempt from the tax imposed under this Section. For the purposes of this paragraph: (4616,4979).

(i) The attributable amount shall not exceed the value of the development fees actually imposed. (4979)

(ii) The attributable amount is equal to the total amount of development fees paid by the taxpayer or by a contractor providing services to the taxpayer and the total devel-

*Pursuant to Ordinance 3729/Reso. 7458, Section 5-10-417, Subsection (B)1(a) is retroactive to January 1, 1999.

opment fees credited in exchange for the construction of, contribution to or dedication of real property for providing public infrastructure, public safety or other public services necessary to the development. The real property must be the subject of the development fees. (4979)

(iii) "Development Fees" means fees imposed to offset capital costs of providing public infrastructure, public safety or other public services to a development and authorized pursuant to A.R.S. § 9-463.05, A.R.S. § 11-1102 or A.R.S. Title 48 regardless of the jurisdiction to which the fees are paid. (4979, 5059)

2. Deductions. (3729/Reso. 7458)

(a) All amounts subject to the tax shall be allowed a deduction in the amount of thirty-five percent (35%). (3729/Reso. 7458)

(b) The gross proceeds of sales or gross income that is derived from a contract entered into for the installation, assembly, repair, or maintenance of income-producing capital equipment, as defined in Section 5-10-110, that is deducted from the retail classification pursuant to Section 5-10-465(g), that does not become a permanent attachment to a building, highway, road, railroad, excavation, or manufactured building or other structure, project, development, or improvement shall be exempt from the tax imposed by this Section. If the ownership of the realty is separate from the ownership of the income-producing capital equipment, the determination as to permanent attachment shall be made as if the ownership was the same. The deduction provided in this paragraph does not include gross proceeds of sales or gross income from that portion of any contracting activity which consists of the development of, or modification to, real property in order to facilitate the installation, assembly, repair, maintenance, or removal of the income-producing capital equipment. For purposes of this paragraph, "permanent attachment" means at least one (1) of the following: (3729/Reso. 7458, 3954/Reso. 7756)

(i) To be incorporated into real property. (3729/Reso. 7458)

(ii) To become so affixed to real property that it becomes part of the real property. (3729/Reso. 7458)

(iii) To be so attached to real property that removal would cause substantial damage to the real property from which it is removed. (3729/Reso. 7458)

(c) For taxable periods beginning from and after July 1, 2008 and ending before January 1, 2017, the gross proceeds of sales or gross income derived from a contract to provide and install a solar energy device. The contractor shall register with the Department of Revenue as a Solar Energy Contractor. By registering, the contractor acknowledges that it will make its books and records relating to sales of solar energy devices available to the Department of Revenue and the City, as applicable, for examination. (4835, 5059)

3. Tax Credits. (3729/Reso. 7458)

The following tax credits are available to owner-builders and speculative builders, not to exceed the tax liability against which such credits apply, provided such credits are documented to the satisfaction of the Tax Collector. (3729/Reso. 7458)

(a) A tax credit equal to the amount of City privilege or use tax, or the equivalent excise tax, paid directly to a taxing jurisdiction or as a separately itemized charge paid directly to the vendor with respect to the tangible personal property incorporated into the said structure or improvement to real property undertaken by the owner-builder or speculative builder. (3729/Reso. 7458)

(b) A tax credit equal to the amount of privilege taxes paid to this City, or charged separately to the speculative builder, by a construction contractor, on the gross income derived by said person from the construction of any improvement to the real property. (3729/Reso. 7458)

(c) No credits provided herein may be claimed until such time that the gross income against which said credits apply is reported. (3729/Reso. 7458)

(D) The limitation period for the assessment of taxes imposed by this Section is measured based upon when such liability is reportable, that is, in the reporting period that encompasses the twenty-fifth (25th) month after said unit or project was substantially complete. Interest and penalties, as provided in Section 5-10-540, will be based on reportable date.

(E) (Reserved)

5-10-418: RESERVED

Editor's note—Ord. No. 3729/Reso. 7458 repealed § 5-10-418.

5-10-420: RESERVED

5-10-422: JET FUEL SALES

(A) The tax rate shall be at an amount of three (3) cents per gallon sold from the business activity upon every person engaging or continuing in the business of selling jet fuel. (3729/Reso. 7458)

1. Gallons sold includes all gallons sold, bartered, exchanged, included as part or whole of a trade-out, or similar transactions regardless of the type or form of payment. (3729/Reso. 7458)

2. For purposes of this Section the following terms are substitutable in Articles III and V of this Chapter, and corresponding regulations: (3729/Reso. 7458)

(a) "Gallons" for "gross income." (3729/Reso. 7458)

(b) "Gallon(s)" for "amount(s)." (3729/Reso. 7458)

(B) The burden of proving that a sale of jet fuel is not a taxable sale shall be upon the person who made the sale. (3729/Reso. 7458)

(C) Except as provided in Section 5-10-567, when this City and another Arizona city or town with an equivalent excise tax could claim nexus for taxing a jet fuel sale, the city or town where the permanent business location of the seller at which the order was received shall be deemed to have precedence, and for the purposes of this Chapter such city or town has sole and exclusive right to such tax. (3729/Reso. 7458)

(D) The appropriate tax liability for any jet fuel sale where the order is received at a permanent business location of the seller located in this City or in an Arizona city or town that levies an equivalent excise tax shall be at the rate of the city or town of such seller's location. (3729/Reso. 7458)

(E) Exemptions. Notwithstanding Section 5-10-400(D), the exemptions in Sections 5-10-465(A), (B), and (D) through (Z) will apply to sales of jet fuel taxed under this Section. (3729/Reso. 7458)

5-10-425: JOB PRINTING

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of job printing, which includes engraving of printing plates, embossing, copying, micrographics, and photo reproduction. (3491, 4553, 5478)

(B) The tax imposed by this Section shall not apply to:

1. Job printing purchased for the purpose of resale by the purchaser in the form supplied by the job printer.

2. Out-of-City sales.

3. Out-of-State sales.

4. Job printing of newspapers, magazines, or other periodicals or publications for a person who is subject to the tax imposed by Subsection 5-10-435(A) or an equivalent excise tax; provided further that said person is properly licensed by the taxing jurisdiction at the location of publication.

5. Sales of job printing to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when the property sold is for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512. (2321, 3476/Reso. 7209)

6. (Reserved) (2977/Reso. 6722)

5-10-427: MANUFACTURED BUILDINGS

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income, including site preparation, moving to the site, and/or setup, upon every person engaging or continuing in the business activity of selling manufactured buildings within the City. Such business activity is deemed to occur at the business location of the seller where the purchaser first entered into the contract to purchase the manufactured building. (2977, 4553, 5478, Reso. 6722, 3491)

(B) The sale of used manufactured buildings is not taxable. (2977/Reso. 6722)

(C) The sales price of furniture, furnishings, fixtures, appliances, and attachments that are not incorporated as component parts of or attached to a manufactured building are exempt from the tax imposed by this Section. The sale of such items is subject to the tax under Section 5-10-460. (2977/Reso. 6722)

(D) Under this Section, a trade-in will not be allowed for the purpose of reducing the tax liability. (2977/Reso. 6722)

5-10-430: TIMBERING AND OTHER EXTRACTION

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the following businesses: (3491, 4553, 5478)

1. Felling, producing, or preparing timber or any product of the forest for sale, profit, or commercial use. (2977/Reso. 6722)

2. Extracting, refining, or producing any oil or natural gas for sale, profit, or commercial use. (2977/Reso. 6722)

(B) The rate specified in Subsection (A) above shall be applied to the value of the entire product extracted, refined, produced, or prepared for sale, profit, or commercial use when such activity occurs within the City, regardless of the place of sale of the product or the fact that delivery may be made to a point without the City or without the State. (2977/Reso. 6722)

(C) If any person engaging in any business classified in this Section ships or transports products, or any part thereof, out of State without making sale of such products or ships his products outside the State in an unfinished condition, the value of the products or articles in the condition or form in which they existed when transported out of State and before they enter interstate commerce shall be the basis for assessment of the tax imposed by this Section.

(D) (Reserved) (2977/Reso. 6722)

5-10-432: MINING

(A) The tax rate shall be at an amount equal to one-tenth of one percent (.1%), not to exceed one-tenth of one percent (.1%), of the gross income from the business activity upon every person engaging or continuing in the business of mining, smelting, or producing for sale, profit, or commercial use any copper, gold, silver, or other mineral product, compound, or combination of mineral products; but not including the extraction, removal, or production of sand, gravel, or rock from the ground for sale, profit, or commercial use. (2977/Reso. 6722)

(B) The rate specified in Subsection (A) above shall be applied to the value of the entire product mined, smelted, or produced for sale, profit, or commercial use when such activity occurs within the City, regardless of the place of sale of the product or the fact that delivery may be made to a point without the City or without the State. (2977/Reso. 6722)

(C) If any person engaging in any business classified in this Section ships or transports products, or any part thereof, out of State without making sale of such products or ships his products outside the State in an unfinished condition, the value of the products or articles in the condition or form in which they existed when transported out of State and before they enter interstate commerce shall be the basis for assessment of the tax imposed by this Section. (2977/Reso. 6722)

5-10-435: PUBLISHING AND PERIODICALS DISTRIBUTION

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business activity of: (3491, 4553, 5478)

1. Publication of newspapers, magazines, or other periodicals when published within the City, measured by the gross income derived from notices, subscriptions, and local advertising as defined

in Section 5-10-405. In cases where the location of publication is both within and without this State, gross income subject to the tax shall refer only to gross income derived from residents of this State or generated by permanent business locations within this State.

2. Distribution or delivery within the City of newspapers, magazines, or other periodicals not published within the City, measured by the gross income derived from subscriptions.

(B) "Location of publication" is determined by:

1. Location of the editorial offices of the publisher, when the physical printing is not performed by the publisher; or

2. Location of either the editorial offices or the printing facilities if the publisher performs his own physical printing.

(C) "Subscription income" shall include all circulation revenue of the publisher except amounts retained by or credited to carriers or other vendors as compensation for delivery within the State by such carriers or vendors, and further, except sales of published items directly or through distributors for the purpose of resale to retailers subject to the Privilege Tax on such resale.

(D) "Circulation," for the purpose of measurement of gross income subject to the tax, shall be considered to occur at the place of delivery of the published items to the subscriber or intended reader irrespective of the location of the physical facilities or personnel of the publisher. However, delivery by the United States mails shall be considered to have occurred at the location of publication.

(E) Allocation of Taxes Between Cities and Towns. In cases where publication or distribution occurs in more than one (1) city or town, the measurement of gross income subject to tax by the City shall include:

1. That portion of the gross income from publication which reflects the ratio of circulation within this City to circulation in all incorporated cities and towns in this State having substantially similar provisions; plus

2. Only when publication occurs within the City, that portion of the remaining gross income from publication which reflects the ratio of circulation within this City to the total circulation of all incorporated cities or towns in this State within which cities the taxpayer maintains a location of publication.

(F) The tax imposed by this Section shall not apply to sales of newspapers, magazines, or other periodicals to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when the property sold is for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512. (2321, 3476/Reso. 7209)

5-10-440: RESERVED

5-10-444: HOTELS

The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of operating a hotel charging for lodging and/or lodging space furnished to any: (3491, 4553, 5478)

(A) Person. (2535)

(B) Exclusions. The tax imposed by this section shall not include: (2535, 4616)

1. Income derived from incarcerating or detaining prisoners who are under the jurisdiction of the United States, this State or any other State or a political subdivision of this State or of any other State in a privately operated prison, jail or detention facility. (4616)

2. Gross proceeds of sales or gross income that is properly included in another business activity under this article and that is taxable to the person engaged in that business activity, but the gross proceeds of sales or gross income to be deducted shall not exceed the consideration paid to the person conducting the activity. (4616)

3. Gross proceeds of sales or gross income from transactions or activities that are not limited to transients and that would not be taxable if engaged in by a person not subject to tax under this article. (4616)

4. Gross proceeds of sales or gross income from transactions or activities that are not limited to transients and that would not be taxable if engaged in by a person subject to taxation under Section 5-10-410 or Section 5-10-475 due to an exclusion, exemption or deduction. (4616)

5. Gross proceeds of sales or gross income from commissions received from a person providing services or property to the customers of the hotel. However, such commissions may be subject to tax under Section 5-10-445 or Section 5-10-450 as rental, leasing or licensing for use of real or tangible personal property. (4616)

6. Income from providing telephone, fax or Internet services to customers at an additional charge, that is separately stated to the customer and is separately maintained in the hotel's books and records. However, such gross proceeds of sales or gross income may be subject to tax under Section 5-10-470 as telecommunication services. (4616)

5-10-445: RENTAL, LEASING, AND LICENSING FOR USE OF REAL PROPERTY

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of leasing or renting real property located within the City for a consideration to the tenant in actual possession or the licensing for use of real property to the final licensee located within the City for a consideration, including any improvements, rights, or interest in such property; provided further that: (2977, 4553, 5478/Reso. 6722, 3476/Reso. 7209, 3491)

1. Payments made by the lessee to, or on behalf of, the lessor for property taxes, repairs, or improvements are considered to be part of the taxable gross income.

2. Charges for such items as telecommunications, utilities, pet fees, or maintenance are considered to be part of the taxable gross income.

3. However, if the lessor engages in telecommunication activity, as evidenced by installing individual metering equipment and by billing each tenant based upon actual usage, such activity is taxable under Section 5-10-470.

(B) If individual utility meters have been installed for each tenant and the lessor separately charges each single tenant for the exact billing from the utility company, such charges are exempt.

(C) Charges by a qualifying hospital, qualifying community health center, or a qualifying health care organization to patients of such facilities for use of rooms or other real property during the course of their treatment by such facilities are exempt. (3476/Reso. 7209)

(D) Charges for joint pole usage by a person engaged in the business of providing or furnishing utility or telecommunication services to another person engaged in the business of providing or furnishing utility or telecommunication services are exempt from the tax imposed by this Section.

(E) (Reserved)

(F) A person who has less than two (2) apartments, houses, trailer spaces, or other lodging spaces rented, leased, or licensed or available for rent, lease, or license within the State and no units of commercial property for rent, lease, or license within the State is not deemed to be in the rental business and is therefore exempt from the tax imposed by this Section on such income. However, a person who has one (1) or more units of commercial property is subject to the tax imposed by this Section on rental, lease, and license income from all such lodging spaces and commercial units of real estate, even though said person may have fewer than two (2) lodging spaces. (2535, 2977, 4841/Reso. 6722)

(G) (Reserved)

(H) (Reserved)

(I) (Reserved)

(J) Exempt from the tax imposed by this Section is gross income derived from the activities taxable under Section 5-10-444 of this Code. (2535)

(K) (Reserved)

(L) (Reserved) (2977/Reso. 6722)

(M) (Reserved) (2977/Reso. 6722)

(N) Notwithstanding the provisions of Section 5-10-200(B), the fair market value of one (1) apartment in an apartment complex provided rent free to an employee of the apartment complex is not subject to the tax imposed by this Section. For an apartment complex with more than fifty (50) units, an additional apartment provided rent free to an employee for every additional fifty (50) units is not subject to the tax imposed by this Section. (2977/Reso. 6722)

(O) Income derived from incarcerating or detaining prisoners who are under the jurisdiction of the United States, this State, or any other state or a political subdivision of this State or of any other state in a privately operated prison, jail, or detention facility is exempt from the tax imposed by this Section. (3729/Reso. 7458)

(P) Charges by any hospital, any licensed nursing care institution, or any kidney dialysis facility to patients of such facilities for the use of rooms or other real property during the course of their treatment by such facilities are exempt. (3954/Reso. 7756)

(Q) Charges to patients receiving "personal care" or "directed care," by any licensed assisted living facility, licensed assisted living center, or licensed assisted living home as defined and licensed pursuant to A.R.S. Chapter 4, Title 36, and Title 9 of the Arizona Administrative Code are exempt. (3954/Reso. 7756)

(R) Income received from the rental of any "low-income unit" as established under Section 42 of the Internal Revenue Code, including the low-income housing credit provided by IRC Section 42, to the extent that the collection of tax on rental income causes the "gross rent" defined by IRC Section 42 to exceed the income limitation for the low-income unit is exempt. This exemption also applies to income received from the rental of individual rental units subject to statutory or regulatory "low-income unit" rent restrictions similar to IRC Section 42 to the extent that the collection of tax from the tenant causes the rental receipts to exceed a rent restriction for the low-income unit. This subsection also applies to rent received by a person other than the owner or lessor of the low-income unit, including a broker. This subsection does not apply unless a taxpayer maintains the documentation to support the qualification of a unit as a low-income unit, the "gross rent" limitation for the unit and the rent received from that unit. (4582)

(S) Leasing real property between affiliated companies, businesses, persons or reciprocal insurers. For the purposes of this paragraph: (5059, 5190)

1. "Affiliated companies, businesses, persons or reciprocal insurers" means the lessor holds a controlling interest in the lessee, the lessee holds a controlling interest in the lessor, an affiliated entity holds a controlling interest in both the lessor and the lessee or an unrelated person holds a controlling interest in both the lessor and the lessee. (5059, 5190)

2. "Controlling interest" means direct or indirect ownership of a least eighty per cent of the voting shares of a corporation or of the interests in a company, business or person other than a corporation. (5059, 5190)

3. "Reciprocal Insurer" has the same meaning prescribed in A.R.S. § 20-762. (5059, 5190)

5-10-446: RESERVED

Editor's note—Ord. No. 2321 repealed § 5-10-446.

5-10-447: RENTAL, LEASING, AND LICENSING FOR USE OF REAL PROPERTY; ADDITIONAL TAX UPON TRANSIENT LODGING

In addition to the taxes levied as provided in Section 5-10-444, there is hereby levied and shall be collected an additional tax in an amount equal to five percent (5%) of the gross income from the business activity of any hotel engaging or continuing within the City in the business of charging for lodging and/or lodging space furnished to any transient. (3175, 4192, 4616, 5018)

5-10-450: RENTAL, LEASING, AND LICENSING FOR USE OF TANGIBLE PERSONAL PROPERTY

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of leasing, licensing for use, or renting tangible personal property for a consideration, including that which is semi-permanently or permanently installed within the City as provided by regulation. (3491, 4553, 5478)

(B) Special Provisions Relating to Long-Term Motor Vehicle Leases: A lease transaction involving a motor vehicle for a minimum period of twenty-four (24) months shall be considered to have occurred at the location of the motor vehicle dealership, rather than the location of the place of business of the lessor, even if the lessor's interest in the lease and its proceeds are sold, transferred, or otherwise assigned to a lease financing institution; provided further that the city or town where such motor vehicle dealership is located levies a Privilege Tax or an equivalent excise tax upon the transaction.

(C) Gross income derived from the following transactions shall be exempt from Privilege Taxes imposed by this Section:

1. Rental, leasing, or licensing for use of tangible personal property to persons engaged or continuing in the business of leasing, licensing for use, or rental of such property.

2. Rental, leasing, or licensing for use of tangible personal property that is semi-permanently or permanently installed within another city or town that levies an equivalent excise tax on the transaction.

3. Rental, leasing, or licensing for use of film, tape, or slides to a theater or other person taxed under Section 5-10-410 or to a radio station, television station, or subscription television system.

4. Rental, leasing, or licensing for use of the following:

   (a) Prosthetics.

   (b) Income-producing capital equipment.

   (c) Mining and metallurgical supplies.

   These exemptions include the rental, leasing, or licensing for use of tangible personal property which, if it had been purchased instead of leased, rented, or licensed by the lessee or licensee, would qualify as income-producing capital equipment or mining and metallurgical supplies. (2977/Reso. 6722)

5. Rental, leasing, or licensing for use of tangible personal property to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when the property so rented, leased, or licensed is for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512 or rental, leasing, or licensing for use of tangible personal property in this State by a nonprofit charitable organization that has qualified under Section 501(c)3 of the United States Internal Revenue Code and that engages in and uses such property exclusively for training, job placement, or rehabilitation programs or testing for mentally or physically handicapped persons. (3476/Reso. 7209)

6. Separately billed charges for delivery, installation, repair, and/or maintenance as provided by regulation.

7. Charges for joint pole usage by a person engaged in the business of providing or furnishing utility or telecommunication services to another person engaged in the business of providing or furnishing utility or telecommunication services.

8. The gross income from coin-operated washing, drying, and dry cleaning machines or from coin-operated car washing machines. This exemption shall not apply to suppliers or distributors renting, leasing, or licensing for use of such equipment to persons engaged in the operation of coin-operated washing, drying, dry cleaning, or car washing establishments.

9. Rental, leasing, or licensing of aircraft that would qualify as aircraft acquired for use outside the State as prescribed by regulation if such rental, leasing, or licensing had been a sale. (2977/Reso. 6722)

10. Rental, leasing, or licensing for use an alternative fuel vehicle if such vehicle was manufactured as a diesel fuel vehicle and converted to operate on alternative fuel and equipment that is installed in a conventional diesel fuel motor vehicle to convert the vehicle to operate on an alternative fuel, as defined in A.R.S. § 1-215. (3729, 4616/Reso. 7458, 3921)

11. Rental, leasing, and licensing for use of solar energy devices, for taxable periods beginning from and after July 1, 2008. The lessor shall register with the Department of Revenue as a solar energy retailer. By registering, the lessor acknowledges that it will make its books and records relating to leases of solar energy devices available to the Department of Revenue and City, as applicable, for examination. (4979)

5-10-452: RESERVED

Editor's note—Ord. No. 2535 repealed § 5-10-452.

5-10-455: RESTAURANTS AND BARS

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of preparing or serving food or beverage in a bar, cocktail lounge, restaurant, or similar establishment where articles of food or drink are prepared or served for consumption on or off the premises, including also the activity of catering. Cover charges and minimum charges must be included in the gross income of this business activity. (3491, 4553, 5478)

(B) Caterers and other taxpayers subject to the tax who deliver food and/or serve such food off premises shall also be allowed to exclude separately charged delivery, setup, and cleanup charges, provided that the charges are also maintained separately in the books and records. When a taxpayer delivers food and/or serves such food off premises, his regular business location shall still be deemed the location of the transaction for the purposes of the tax imposed by this section. (2321)

(C) The tax imposed by this section shall not apply to sales to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when sold for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512. (2321, 3476/Reso. 7209)

(D) The tax imposed by this Section shall not apply to sales of food, beverages, condiments and accessories used for serving food and beverages to a commercial airline, as defined in A.R.S. § 42-5061(A)(49) that serves the food and beverages to its passengers, without additional charge, for consumption in flight. (3476, 4616/Reso. 7209)

(E) The tax imposed by this Section shall not apply to sales of prepared food, beverages, condiments, or accessories to a public educational entity, pursuant to any of the provisions of A.R.S. Title 15, to the extent such items are to be prepared or served to individuals for consumption on the premises of a public educational entity during school hours. (3476/Reso. 7209)

(F) For the purposes of this Section, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks or other disposable containers, or other items which facilitate the consumption of the food. (3476/Reso. 7209)

5-10-460: RETAIL SALES; MEASURE OF TAX; BURDEN OF PROOF; EXCLUSIONS

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of selling tangible personal property at retail. (3491, 4553, 5478)

(B) The burden of proving that a sale of tangible personal property is not a taxable retail sale shall be upon the person who made the sale.

(C) Exclusions. For the purposes of this Chapter, sales of tangible personal property shall not include:

1. Sales of stocks, bonds, options, or other similar materials.
2. Sales of lottery tickets or shares pursuant to A.R.S. Article 1, Chapter 5, Title 5.
3. Sales of platinum, bullion, or monetized bullion, except minted or manufactured coins transferred or acquired primarily for their numismatic value as prescribed by regulation.
4. Gross income derived from the transfer of tangible personal property which is specifically included as the gross income of a business activity upon which another Section of this Article imposes a tax shall be considered gross income of that business activity and are not includable as gross income subject to the tax imposed by this Section.
5. Sales by professional or personal service occupations where such sales are inconsequential elements of the service provided.

(D) (Reserved)

(E) When this City and another Arizona city or town with an equivalent excise tax could claim nexus for taxing a retail sale, the city or town where the permanent business location of the seller at which the order was received shall be deemed to have precedence, and for the purposes of this Chapter such city or town has sole and exclusive right to such tax. (3270/Reso. 6970)

(F) The appropriate tax liability for any retail sale where the order is received at a permanent business location of the seller located in this City or in an Arizona city or town that levies an equivalent excise tax shall be at the tax rate of the city or town of such seller's location.

(G) Retail sales of prepaid calling cards or prepaid authorization numbers for telecommunications services, including sales of reauthorization of a prepaid card or authorization number, are subject to tax under this Section. (3729/Reso. 7458)

5-10-465: RETAIL SALES; EXEMPTIONS

Income derived from the following sources is exempt from the tax imposed by Section 5-10-460:

(A) Sales of tangible personal property to a person regularly engaged in the business of selling such property.

(B) Out-of-City sales or out-of-State sales. (2977/Reso. 6722)

(C) Charges for delivery, installation, or other direct customer services as prescribed by regulation.

(D) Charges for repair services as prescribed by regulation when separately charged and separately maintained in the books and records of the taxpayer.

(E) Sales of warranty, maintenance, and service contracts when separately charged and separately maintained in the books and records of the taxpayer.

(F) Sales of prosthetics.

(G) Sales of income-producing capital equipment.

(H) Sales of rental equipment and rental supplies.

(I) Sales of mining and metallurgical supplies.

(J) Sales of motor vehicle fuel and use fuel which are subject to a tax imposed under the provisions of A.R.S. Title 28, Chapter 16, Article I or II; or sales of use fuel to a holder of a valid single-trip use fuel tax permit issued under A.R.S. § 28-5739; or sales of natural gas or liquefied petroleum gas used to propel a motor vehicle. (3270/Reso. 6970, 3476/Reso. 7209)

(K) Sales of tangible personal property to a construction contractor who holds a valid Privilege Tax License for engaging or continuing in the business of construction contracting where the tangible personal property sold is incorporated into any structure or improvement to real property as part of construction contracting activity.

(L) Sales of motor vehicles to nonresidents of this State for use outside this State if the vendor ships or delivers the motor vehicle to a destination outside this State. (3270/Reso. 6970)

(M) Sales of tangible personal property which directly enters into and becomes an ingredient or component part of a product sold in the regular course of the business of job printing, manufacturing, or publication of newspapers, magazines, or other periodicals. Tangible personal property which is consumed or used up in a manufacturing, job printing, publishing, or production process is not an ingredient or component part of a product.

(N) Sales made directly to the federal government to the extent of: (2447)

1. One hundred percent (100%) of the gross income derived from retail sales made by a manufacturer, modifier, assembler, or repairer. (2447)

2. Fifty percent (50%) of the gross income derived from retail sales made by any other person. (2447)

(O) Sales to hotels, bars, restaurants, dining cars, lunchrooms, boarding houses, or similar establishments of articles consumed as food, drink, or condiment, whether simple, mixed, or compounded, where such

articles are customarily prepared or served to patrons for consumption on or off the premises, where the purchaser is properly licensed and paying a tax under Section 5-10-455 or the equivalent excise tax upon such income. (2977/Reso. 6722)

(P) Sales of tangible personal property to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when the property sold is for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512 or sales of tangible personal property purchased in this State by a nonprofit charitable organization that has qualified under Section 501(c)3 of the United States Internal Revenue Code and that engages in and uses such property exclusively for training, job placement, or rehabilitation programs or testing for mentally or physically handicapped persons. (3476/Reso. 7209)

(Q) Sales of Food. (IN98-1/Election 3-14-00)

Definitions. (IN98-1/Election 3-14-00)

For the purpose of these rules, unless the context requires otherwise, the following definitions will apply: (IN98-1/Election 3-14-00)

1. "Accessory food items" means coffee, tea, cocoa, carbonated and uncarbonated drinks, candy, condiments and spices, and other nonstaple foods. (IN98-1/Election 3-14-00)

2. "Attendant" means a person, generally the employee of the retailer, who waits on the customers, or tends to their needs. (IN98-1/Election 3-14-00)

3. "Automatic retailer" means a coin-operated mechanical device or system which sells tangible personal property. Such device or system must itself vend or sell the items, i.e., a device or system which delivers the subject of the sale, or by automatic action physically delivers the thing sold. Vending machines are considered automatic retailers. (IN98-1/Election 3-14-00)

4. "Caterer" means a person engaged in the business of serving meals, food, and drinks on the premises used by his customer, but does not include employees hired by the hour or day. (IN98-1/Election 3-14-00)

5. "Delicatessen" means a business which sells specialty food items, such as prepared cold meats, perishable food, and grocery items kept under refrigeration. (IN98-1/Election 3-14-00)

6. "Facilities for the consumption of food" means appropriate furniture, tableware, or parking areas for sitting both in or on the premises of the business, either in or out of a motor vehicle. (IN98-1/Election 3-14-00)

7. "Food." (IN98-1/Election 3-14-00)

   (a) Food is defined as those items that may be purchased from an eligible grocery business with food coupons, but in no event may such definition of food include food for consumption on the premises, alcoholic beverages, or tobacco. Even though alcoholic beverages and food for consumption on the premises may be intended for human consumption, such items are not considered food by the statutory provisions. In these rules, items that are considered food by the statutes, and therefore tax exempt if sold by a qualified retailer, shall be referred to as

"tax-exempt foods." Other items that may be intended for human consumption but are excluded from the definition of food by the statute, and are therefore subject to the sales tax, shall be referred to herein as "taxable foods." (IN98-1/Election 3-14-00)

(b) "Food" means: Items intended for human consumption. Food is deemed to be intended for human consumption when its intended or ordinary use is as a food for human consumption or is an ingredient used in preparing food for human consumption. For example, even though animal food may be used by some humans, its ordinary or intended use is not for human consumption. Also, even though vitamins and other medication may be ingested, its intended or ordinary use is as a health aid or therapeutic agent or a deficiency corrector and is not intended for use as food. Following is a numeration of items which the City does not consider food for human consumption: (IN98-1/Election 3-14-00)

i. Pet food and supplies. (IN98-1/Election 3-14-00)

ii. Cosmetics and grooming items. (IN98-1/Election 3-14-00)

iii. Tobacco products. (IN98-1/Election 3-14-00)

iv. Soaps and paper products and household supplies. (IN98-1/Election 3-14-00)

v. Dietary supplements such as vitamins or protein supplements. (IN98-1/Election 3-14-00)

vi. Medicines. (IN98-1/Election 3-14-00)

vii. Fertilizer. (IN98-1/Election 3-14-00)

8. "Food for Consumption on the Premises." (IN98-1/Election 3-14-00)

(a) "Food for consumption on the premises" means the following: (IN98-1/Election 3-14-00)

i. Hot prepared food, including products, items, or ingredients of food which are prepared and sold or intended to be sold in a heated condition. This also includes a combination of hot and cold food items or ingredients if a single price is charged by the retailer. (IN98-1/Election 3-14-00)

ii. Hot or cold sandwiches including frozen sandwiches. (IN98-1/Election 3-14-00)

iii. Food served by an attendant to be eaten at tables, chairs, benches, booths, stools, counters, and within parking areas (for in-car consumption). (IN98-1/Election 3-14-00)

iv. Food served with trays, glasses, dishes, or other tableware. Food which is generally selected by the customer from available displays and then taken by the customer to a checkout stand for payment is not considered to be served by the retailer. (IN98-1/Election 3-14-00)

v. Beverages sold in cups, glasses, or open containers. Beverages shall include items such as milk shakes and ice cream floats. (IN98-1/Election 3-14-00)

vi. Food sold by caterers. (IN98-1/Election 3-14-00)

vii. Food sold within the premises of theaters, exhibitions, fairs, amusement parks, bowling alleys, athletic events, and other shows or contests and any businesses which charge admission, entrance, or cover fees for exhibition, amusement, entertainment,

or instruction. While food for consumption on the premises includes any food sold within the premises of certain businesses, including businesses that charge admission, entrance, or cover fees for exhibition, amusement, entertainment, or instruction, food for consumption on the premises does not include sales of tax-exempt food by a qualified retailer within the premises of a full-time educational institution that charges tuition for a full course of studies. (IN98-1/Election 3-14-00)

(b) Any item enumerated in subparagraph (a) which is sold on a take-out or to-go basis is still considered to be food for consumption on the premises and therefore taxable. (IN98-1/Election 3-14-00)

9. "Food intended for home consumption" means food, other than food for consumption on the premises, which is usually intended to be consumed at home. Unless the taxpayer can establish to the contrary, food delivered by a retailer to an office or other business establishment shall not be considered food intended for home consumption. (IN98-1/Election 3-14-00)

10. "Home" means a natural person's usual or habitual dwelling place, including rest homes, nursing homes, jails, and other such institutions. (IN98-1/Election 3-14-00)

11. "Premises" means the total space and facilities, including buildings, grounds, and parking lot that are made available for use by the retailer for the purpose of consuming food sold by such retailer. (IN98-1/Election 3-14-00)

12. "Qualified Retailer." (IN98-1/Election 3-14-00)

(a) A qualified retailer or qualified retail business is one that may be eligible to sell tax-exempt food without including the sale of tax-exempt food items in its taxable base. A retailer other than a qualified retailer must pay a tax measured by the sale of otherwise exempt food even though the sale of such items would be exempt if sold by a qualified retailer. (IN98-1/Election 3-14-00)

(b) Qualified retailers are: (IN98-1/Election 3-14-00)

i. An eligible grocery business, which includes retailers who are eligible to participate in the United States Department of Agriculture Food Stamp Program, whether such retailer actually participates in the Food Stamp Program. If a retailer is eligible to participate in the Food Stamp Program, but does not participate in such program, such retailer may only be an eligible grocery business if the retailer first makes application to the Arizona Department of Revenue (and is approved by the State) to sell food tax exempt. Examples of retailers that might be considered eligible grocery businesses include: (IN98-1/Election 3-14-00)

(1) Grocery stores; (IN98-1/Election 3-14-00)

(2) Convenience stores; (IN98-1/Election 3-14-00)

(3) Butcher shops; (IN98-1/Election 3-14-00)

(4) Bakeries; (IN98-1/Election 3-14-00)

(5) Dairy stores; (IN98-1/Election 3-14-00)

(6) Cheese stores; (IN98-1/Election 3-14-00)

(7) Farmer's markets. (IN98-1/Election 3-14-00)

ii. Retailers whose primary business is not the sale of food, but who sell food in a manner similar to grocery stores. This category includes stores such as department stores, drug stores, and gas stations. (IN98-1/Election 3-14-00)

iii. Retailers who sell food and who do not provide any facilities for consumption of food on the premises. This category may include certain health food stores, and certain outlets retailing soda and other similar beverages in bottles or cans, but not cups. (IN98-1/Election 3-14-00)

iv. Delicatessen business, if such retailer conducts his business so that the sale of tax-exempt foods and other taxable items may be separately accounted for, through, for example, the use of two (2) cash registers, or a cash register with at least two (2) tax-computing keys which are used to record taxable and tax-exempt sales. (IN98-1/Election 3-14-00)

v. A retailer who is a street or sidewalk vendor who uses a pushcart, mobile facility, motor vehicle, or other such conveyance. Such retailers include: (IN98-1/Election 3-14-00)

(1) Snackmobile; (IN98-1/Election 3-14-00)

(2) Chuck wagon; (IN98-1/Election 3-14-00)

(3) Mobile hot dog stands. (IN98-1/Election 3-14-00)

vi. Vending machines and other automatic retailers. (IN98-1/Election 3-14-00)

13. "Staple food" means those food items intended for home preparation and consumption, which includes meats, poultry, fish, bread and bread stuffs, cereals, vegetables, fruits, fruit and vegetable juices, and dairy products. (IN98-1/Election 3-14-00)

14. "Taxable foods" are items which may be intended for human consumption, but are still subject to the sales tax when sold. Examples of taxable foods would be alcoholic beverages, and food for consumption on the premises. (IN98-1/Election 3-14-00)

15. Tax-Exempt Foods. (IN98-1/Election 3-14-00)

(a) "Tax-exempt foods" are generally those items of food intended for home consumption which, if purchased from an eligible grocery business, would be eligible as of January 1, 1998, to be purchased with food coupons issued by the United States Department of Agriculture. (IN98-1/Election 3-14-00)

(b) Tax-exempt foods shall also include any new items of food intended for human consumption which would have been eligible for purchase with food coupons issued by the United States Department of Agriculture if such items would have existed for sale on January 1, 1998. (IN98-1/ Election 3-14-00)

(c) The following are examples of items which the City will consider as tax-exempt food: (IN98-1/Election 3-14-00)

Bread and flour products

Vegetables and vegetable products

Candy and confectionery

Sugar, sugar products and substitutes

Cereal and cereal products

Butter, oleomargarine, shortening, and cooking oils

Cocoa and cocoa products

Coffee and coffee substitutes

Milk and milk products

Eggs and egg products

Tea

Meat and meat products

Spices, condiments, extracts, and food colorings

Fish and fish products

Frozen foods

Soft drinks and soda (including bottles on which a deposit is required to be paid)

Fruit and fruit products

Packaged ice cream products

Dietary substitutes

Ice cubes and bottled water including carbonated and mineral water

Purchases of seed and plants for use in gardens to produce food items for personal consumption

16. "Two tax-computing keys" shall mean the mechanical or electronic function in a cash register which can separately record and accumulate taxable and nontaxable items without having the items presorted. (IN98-1/Election 3-14-00)

(R) Sales of the following to persons engaging or continuing in the business of farming, ranching, or feeding livestock, poultry, or ratites: (2977/Reso. 6722)

1. Seed, fertilizer, fungicides, seed treating chemicals, and other similar chemicals.

2. Feed for livestock, poultry, or ratites, including salt, vitamins, and other additives to such feed. (2977/Reso. 6722)

3. Livestock, poultry, or ratites purchased or raised for slaughter, but not including livestock purchased or raised for production or use, such as milch cows, breeding bulls, laying hens, riding or work horses. (2977/Reso. 6722)

4. (Reserved)

This exemption shall not be construed to include machinery, equipment, fuels, lubricants, pharmaceuticals, repair and replacement parts, or other items used or consumed in the running, maintenance, or repair of machinery, equipment, buildings, or structures used or consumed in the business of farming, ranching, or feeding of livestock, poultry, or ratites. (2977/Reso. 6722)

(S) Sales of groundwater-measuring devices required by A.R.S. § 45-604.

(T) Sales of paintings, sculptures, or similar works of fine art, provided that such works of fine art are sold by the original artist; and provided further that sales of "art creations," such as jewelry, macramé, glasswork, pottery, woodwork, metalwork, furniture, and clothing, when such "art creations" have a dual purpose, both aesthetic and utilitarian, are not exempt, whether sold by the artist or by another.

(U) Sales of aircraft acquired for use outside the State as prescribed by regulation. (2977/Reso. 6722)

(V) Sales of food products by producers as provided for by A.R.S. § 3-561, § 3-562, and § 3-563. (3270, 4616/Reso. 6970)

(W) (Reserved)

(X) Sales of food and drink to a person who is engaged in business that is classified under the restaurant classification and that provides such food and drink without monetary charge to its employees for their own consumption on the premises during such employees' hours of employment. (5190)

(Y) (Reserved)

(Z) Gross income received for tangible personal property consisting of manufactured items destroyed by being subjected to destructive stress, strain, or similar testing for the purpose of developing engineering information or for the purpose of quality control, but only to the extent that a sale of said property would otherwise be exempt by the provisions of this Chapter.

(AA) The sale of tangible personal property used in remediation contracting as defined in Section 5-10-100 and Regulation 5-10-100.5. (3420/Reso. 7134)

(BB) Sales of materials that are purchased by or for publicly funded libraries including school district libraries, charter school libraries, community college libraries, state university libraries, or federal, state, county, or municipal libraries for use by the public as follows: (3476/Reso. 7209)

1. Printed or photographic materials. (3476/Reso. 7209)

2. Electronic or digital media materials. (3476/Reso. 7209)

(CC) Sales of food, beverages, condiments, and accessories used for serving food and beverages to a commercial airline, as defined in A.R.S. § 42-5061(A)(49), that serves the food and beverages to its passengers, without additional charge, for consumption in flight. For the purposes of this Subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks or other disposable containers, or other items which facilitate the consumption of the food. (3476, 4616/Reso. 7209)

(DD) In computing the tax base in the case of the sale or transfer of wireless telecommunication equipment as an inducement to a customer to enter into or continue a contract for telecommunication services that are taxable under Section 5-10-470, gross proceeds of sales or gross income does not include any sales commissions or other compensation received by the retailer as a result of the customer entering into or continuing a contract for the telecommunications services. (3476/Reso. 7209)

(EE) For the purposes of this Section, a sale of wireless telecommunication equipment to a person who holds the equipment for sale or transfer to a customer as an inducement to enter into or continue a contract for telecommunication services that are taxable under Section 5-10-470 is considered to be a sale for resale in the regular course of business. (3476/Reso. 7209)

(FF) Sales of alternative fuel as defined in A.R.S. § 1-215, to a used oil fuel burner who has received a Department of Environmental Quality permit to burn used oil or used oil fuel under A.R.S. § 49-426 or § 49-480. (3476/Reso. 7209)

(GG) Sales of food, beverages, condiments, and accessories to a public educational entity, pursuant to any of the provisions of A.R.S. Title 15, including a regularly organized private or parochial school that offers an educational program for grade twelve or under which may be attended in substitution for a public school pursuant to A.R.S. § 15-802; to the extent such items are to be prepared or served to individuals for consumption on the premises of a public educational entity during school hours. For the purposes of this Subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks or other disposable containers, or other items which facilitate the consumption of the food. (3476, 5190/Reso. 7209)

(HH) Sales of personal hygiene items to a person engaged in the business of and subject to tax under Section 5-10-444 of this Code if the tangible personal property is furnished without additional charge to and intended to be consumed by the person during his occupancy. (3476/Reso. 7209)

(II) For the purposes of this Section, the diversion of gas from a pipeline by a person engaged in the business of operating a natural or artificial gas pipeline, for the sole purpose of fueling compressor equipment to pressurize the pipeline, is not a sale of the gas to the operator of the pipeline. (3729/Reso. 7458)

(JJ) Sales of food, beverages, condiments, and accessories to a nonprofit charitable organization that has qualified as an exempt organization under 26 U.S.C. Section 501(c)(3) and regularly serves meals to the needy and indigent on a continuing basis at no cost. For purposes of this Subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks, or other disposable containers, or other items which facilitate the consumption of food. (3729/Reso. 7458)

(KK) Sales of motor vehicles that use alternative fuel if such vehicle was manufactured as a diesel fuel vehicle and converted to operate on alternative fuel and sales of equipment that is installed in a conventional diesel fuel motor vehicle to convert the vehicle to operate on an alternative fuel, as defined in A.R.S. § 1-215. (3729, 4616/Reso. 7458, 3921)

(LL) Sales of solar energy devices, for taxable periods beginning from and after July 1, 2008. The retailer shall register with the Department of Revenue as a Solar Energy Retailer. By registering, the retailer acknowledges that it will make its books and records relating to sales of solar energy devices available to the Department of Revenue and City, as applicable, for examination. (4835)

(MM) Sales or other transfers of renewable energy credits or any other unit created to track energy derived from renewable energy resources. For the purposes of this paragraph, "renewable energy credit" means a unit created administratively by the Corporation Commission or governing body of a public power utility to track kilowatt hours of electricity derived from a renewable energy resource or the kilowatt hour equivalent of conventional energy resources displaced by distributed renewable energy resources. (5190)

(NN) Sales of magazines or other periodicals or other publications by this state to encourage tourist travel. (5190)

(OO) Sales of paper machine clothing, such as forming fabrics and dryer felts, sold to a paper manufacturer and directly used or consumed in paper manufacturing. (5190)

(PP) Sales of overhead materials or other tangible personal property that is used in performing a contract between the United States government and a manufacturer, modifier, assembler or repairer, including property used in performing a subcontract with a government contractor who is a manufacturer, modifier, assembler or repairer, to which title passes to the government under the terms of the contract or subcontract. (5190)

(QQ) Sales of coal, petroleum, coke, natural gas, virgin fuel oil and electricity sold to a qualified environmental technology manufacturer, producer or processor as defined in A.R.S. § 41-1514.02 and directly used or consumed in the generation or provision of on-site power or energy solely for environmental technology manufacturing, producing or processing or environmental protection. This paragraph shall apply for twenty full consecutive calendar or fiscal years from the date the first paper manufacturing machine is placed in service. In the case of an environmental technology manufacturer, producer or processor who does not manufacture paper, the time period shall begin with the date the first manufacturing, processing or production equipment is placed in service. (5190)

(RR) Sales or gross income derived from sales of machinery, equipment, materials and other tangible personal property used directly and predominantly to construct a qualified environmental technology manufacturing, producing or processing facility as described in A.R.S. § 41-1514.02. This Subsection applies for ten full consecutive calendar or fiscal years after the start of initial construction. (5190)

5-10-470: TELECOMMUNICATION SERVICES

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of providing telecommunication services to consumers within this City. (3491, 4553, 5478)

1. Telecommunication services shall include:

   (a) Two-way voice, sound, and/or video communication over a communications channel.

   (b) One-way voice, sound, and/or video transmission or relay over a communications channel.

   (c) Facsimile transmissions.

   (d) Providing relay or repeater service.

   (e) Providing computer interface services over a communications channel.

   (f) Time-sharing activities with a computer accomplished through the use of a communications channel.

2. Gross income from the business activity of providing telecommunication services to consumers within this City shall include:

   (a) All fees for connection to a telecommunication system.

(b) Toll charges, charges for transmissions, and charges for other telecommunications services; provided that such charges relate to transmissions originating in the City and terminating in this State.

(c) Fees charged for access to or subscription to or membership in a telecommunication system or network.

(d) Charges for monitoring services relating to a security or burglar alarm system located within the City where such system transmits or receives signals or data over a communications channel.

(e) Charges for telephone, fax or Internet access services provided at an additional charge by a hotel business subject to taxation under Section 5-10-444. (4616)

(B) Resale Telecommunication Services. Gross income from sales of telecommunication services to another provider of telecommunication services for the purpose of providing the purchaser's customers with such service shall be exempt from the tax imposed by this Section; provided, however, that such purchaser is properly licensed by the City to engage in such business.

(C) Interstate Transmissions. Charges by a provider of telecommunication services for transmissions originating in the City and terminating outside the State are exempt from the tax imposed by this Section.

(D) (Reserved)

(E) (Reserved)

(F) Prepaid Calling Cards. Telecommunications services purchased with a prepaid calling card that are taxable under Section 5-10-460 are exempt from the tax imposed under this Section. (3729/Reso. 7458)

(G) Internet Access Services. The gross income subject to tax under this Section shall not include sales of Internet access services to the person's subscribers and customers. For the purposes of this Subsection: (3954/Reso. 7756)

1. "Internet" means the computer and telecommunications facilities that comprise the interconnected worldwide network of networks that employ the transmission control protocol or internet protocol, or any predecessor or successor protocol, to communicate information of all kinds by wire or radio. (3954/Reso. 7756)

2. "Internet access" means a service that enables users to access content, information, electronic mail, or other services over the Internet. Internet access does not include telecommunication services provided by a common carrier. (3954/Reso. 7756)

5-10-475: TRANSPORTING FOR HIRE

The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of providing the following forms of transportation for hire from this City to another point within the State: (3491, 4553, 5478)

(A) Transporting of persons or property by railroad; provided, however, that the tax imposed by this Subsection shall not apply to transporting freight or property for hire by a railroad operating exclusively in this State if the transportation comprises a portion of a single shipment of freight or property, involving

more than one (1) railroad, either from a point in this State to a point outside this State or from a point outside this State to a point in this State. For purposes of this paragraph, "a single shipment" means the transportation that begins at the point at which one of the railroads first takes possession of the freight or property and continues until the point at which one of the railroads relinquishes possession of the freight or property to a party other than one of the railroads. (3729/Reso. 7458)

(B) Transporting of oil or natural or artificial gas through pipe or conduit.

(C) Transporting of property by aircraft.

(D) (Reserved)

(E) (Reserved)

(F) Deductions or Exemptions. The gross proceeds of sales or gross income derived from the following sources is exempt from the tax imposed by this section:

1. Income that is specifically included as the gross income of a business activity upon which another section of Article IV imposes a tax, that is separately stated to the customer and is taxable to the person engaged in that classification not to exceed consideration paid to the person conducting the activity. (4616).

2. Income from arranging amusement or transportation when the amusement or transportation is conducted by another person not to exceed consideration paid to the amusement or transportation business. (4616)

(G) The tax imposed by this section shall not include arranging transportation as a convenience to a person's customers if that person is not otherwise engaged in the business of transporting persons, freight or property for hire. This exception does not apply to businesses that dispatch vehicles pursuant to customer orders and send the billings and receive the payments associated with that activity, including when the transportation is performed by third party independent contractors. For the purposes of this paragraph, "arranging" includes billing for or collecting transportation charges from a person's customers on behalf of the persons providing the transportation. (4616)

5-10-480: UTILITY SERVICES

(A) The tax rate shall be at an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of producing, providing, or furnishing utility services, including electricity, electric lights, current, power, gas (natural or artificial), or water to: (3491, 4553, 5478)

1. Consumers or ratepayers who reside within the City.

2. Consumers or rate payers of this City, whether within the City or without, to the extent that this City provides such persons utility services, excluding consumers or rate payers who are residents of another city or town which levies an equivalent excise tax upon this City for providing such utility services to such persons.

(B) Exclusion of Certain Sales of Natural Gas to a Public Utility. Notwithstanding the provisions of Subsection (A) above, the gross income derived from the sale of natural gas to a public utility for the

purpose of generation of power to be transferred by the utility to its rate payers shall be considered a retail sale of tangible personal property subject to Sections 5-10-460 and 5-10-465 and not considered gross income taxable under this Section.

(C) Resale Utility Services. Sales of utility services to another provider of the same utility services for the purpose of providing such utility services either to another properly licensed utility provider or directly to such purchaser's customers or rate payers shall be exempt and deductible from the gross income subject to the tax imposed by this Section, provided that the purchaser is properly licensed by all applicable taxing jurisdictions to engage or continue in the business of providing utility services, and further provided that the seller maintains proper documentation, in a manner similar to that for sales for resale, of such transactions.

(D) (Reserved)

(E) The tax imposed by this Section shall not apply to sales of utility services to a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when sold for use in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512. (2321, 3476/Reso. 7209)

(F) The tax imposed by this Section shall not apply to sales of natural gas or liquefied petroleum gas used to propel a motor vehicle. (3270/Reso. 6970)

(G) The tax imposed by this Section shall not apply to: (3270/Reso. 6970)

1. Revenues received by a municipally owned utility in the form of fees charged to persons constructing residential, commercial, or industrial developments or connecting residential, commercial, or industrial developments to a municipal utility system or systems if the fees are segregated and used only for capital expansion, system enlargement, or debt service of the utility system or systems. (3270/Reso. 6970)

2. Revenues received by any person or persons owning a utility system in the form of reimbursement or contribution compensation for property and equipment installed to provide utility access to, on, or across the land of an actual utility consumer if the property and equipment become the property of the utility. This exclusion shall not exceed the value of such property and equipment. (3270/Reso. 6970)

(H) The tax imposed by this Section shall not apply to sales of alternative fuel as defined in A.R.S. § 1-215, to a used oil fuel burner who has received a Department of Environmental Quality permit to burn used oil or used oil fuel under A.R.S. § 49-426 or § 49-480. (3476/Reso. 7209)

(I) The tax imposed by this Section shall not apply to sales or other transfers of renewable energy credits or any other unit created to track energy derived from renewable energy resources. For the purposes of this paragraph, "renewable energy credit" means a unit created administratively by the Corporation Commission or governing body of a public power utility to track kilowatt hours of electricity derived from a renewable energy resource or the kilowatt hour equivalent of conventional energy resources displaced by distributed renewable energy resources. (5190)

5-10-485: WASTEWATER REMOVAL SERVICES

(A) The tax rate shall be an amount equal to two percent (2.00%) of the gross income from the business activity upon every person engaging or continuing in the business of providing wastewater removal services by means of sewer lines or similar pipelines to: (4990, 5190, 5478)

1. Consumers or ratepayers who reside within the city. (5190)

2. Consumers or ratepayers of this city, whether within the city or without, to the extent that this city provides such persons wastewater removal services, excluding consumers or ratepayers who are residents of another city or town which levies an equivalent excise tax upon this city for providing such wastewater removal services to such persons. (5190)

(B) The tax imposed by this Section shall not apply to gross income relating to the providing of wastewater removal services from a qualifying hospital, qualifying community health center or a qualifying health care organization. (4990)

Editor's note—Ord. No. 4990 amended § 5-10-485 to read as herein set out. Former § 5-10-485 derived from 2535.

ARTICLE V ADMINISTRATION

5-10-500: ADMINISTRATION OF THIS CHAPTER; RULE MAKING

(A) The administration of this Chapter is vested in the Tax Collector, except as otherwise specifically provided, and all payments shall be made to the Tax Collector.

(B) The Tax Collector shall prescribe the forms and procedures necessary for the administration of the taxes imposed by this Chapter.

(C) Except as provided in this Section, no rule or regulation shall be adopted until approved by formal action of the City Council.

(D) (Reserved) (3270/Reso. 6970)

(E) The Unified Audit Committee shall publish uniform guidelines that interpret the model city tax code and that apply to all cities and towns that have adopted the Model City Tax Code as provided by A.R.S. § 42-6005. (3954/Reso. 7756)

1. Prior to finalization of uniform guidelines that interpret the Model City Tax Code, the Unified Audit Committee shall disseminate draft guidelines for public comment. (3954/Reso. 7756)

2. Pursuant to A.R.S. § 42-6005(D), when the State statutes and the Model City Tax Code are the same and where the Arizona Department of Revenue has issued written guidance, the Department's interpretation is binding on cities and towns. (3954/Reso. 7756)

5-10-510: DIVULGING OF INFORMATION PROHIBITED; EXCEPTIONS ALLOWING DISCLOSURE

(A) Except as specifically provided, it shall be unlawful for any official or employee of the City to make known information obtained pursuant to this Chapter concerning the business financial affairs or operations of any person.

(B) The City Council may authorize an examination of any return or audit of a specific taxpayer made pursuant to this Chapter by authorized agents of the federal government, the State of Arizona, or any political subdivisions.

(C) The Tax Collector may provide to an Arizona county, city, or town any information concerning any taxes imposed in this Chapter relative to the taxing ordinances of that county, city, or town.

(D) Successors, receivers, trustees, personal representatives, executors, guardians, administrators, and assignees, if directly interested, may be given information by the Tax Collector as to the items included in the measure and amounts of any unpaid tax, interest, and penalties required to be paid.

(E) Upon a written direction by the City Attorney or other legal advisor to the City designated by the City Council, officials or employees of the City may divulge the amount and source of income, profits, leases, or expenditures disclosed in any return or report and the amount of such delinquent and unpaid tax, penalty, or interest to a private collection agency having a written collection agreement with the City.

(F) The Tax Collector shall provide information to appropriate representatives of any Arizona city or town to comply with the provisions of A.R.S. § 42-6003, A.R.S. § 42-6005, and A.R.S. § 42-6056. (3921)

(G) The Tax Collector may provide information to authorized agents of any other Arizona governmental agency involving the allocation of taxes imposed by Section 5-10-435 upon publishing and distribution of periodicals.

(H) The Tax Collector may provide information regarding the enforcement and collection of taxes imposed by this Chapter to any governmental agency with which the City has an agreement.

5-10-515: DUTIES OF TAXPAYER PROBLEM RESOLUTION OFFICER

(A) The Taxpayer Problem Resolution Officer shall assist taxpayers in: (3270/Reso. 6970)

1. Obtaining easily understandable tax information and information on audits, corrections, and appeals procedures of the City. (3270/Reso. 6970)

2. Answering questions regarding preparing and filing the returns required under this Chapter. (3270/Reso. 6970)

3. Locating documents filed with or payments submitted to the Tax Collector by the taxpayer. (3270/Reso. 6970)

(B) The Taxpayer Problem Resolution Officer shall also: (3270/Reso. 6970)

1. Receive and evaluate complaints of improper, abusive, or inefficient service by the Tax Collector or any of his designees, employees, or agents and recommend to the City Manager or, for a City without a City Manager, the Chief Administrative Officer, appropriate action to correct such service. (3270/Reso. 6970)

2. Identify policies and practices of the Tax Collector or any of his designees, employees, or agents that might be barriers to the equitable treatment of taxpayers and recommend alternatives to the City Manager or, for a City without a City Manager, the Chief Administrative Officer. (3270/Reso. 6970)

3. Provide expeditious service to taxpayers whose problems are not resolved through normal channels. (3270/Reso. 6970)

4. Negotiate with the Tax Collector, his designees, employees, or agents to resolve the most complex and sensitive taxpayer problems. (3270/Reso. 6970)

5. Take action to stop or prohibit the Tax Collector from taking an action against a taxpayer. (3270/Reso. 6970)

6. Participate and present taxpayers' interests and concerns in meetings formulating the City's policies and procedures under and interpretation of this Chapter. (3270/Reso. 6970)

7. Compile data each year on the number and type of taxpayer complaints and evaluate the actions taken to resolve those complaints. (3270/Reso. 6970)

8. Survey taxpayers each year to obtain their evaluation of the quality of service provided by the Tax Collector, his designees, employees, and agents. (3270/Reso. 6970)

9. Perform other functions which relate to taxpayer assistance as prescribed by the City Manager or, for a City without a City Manager, the Chief Administrative Officer. (3270/Reso. 6970)

(C) Actions taken by the Taxpayer Problem Resolution Officer may be reviewed and/or modified only by the City Manager or, for a City without a City Manager, the Chief Administrative Officer upon request of the Tax Collector or a taxpayer. (3270/Reso. 6970)

(D) The Mayor and Council of the City shall be provided with a report quarterly which identifies: (3270/Reso. 6970)

1. Any complaints of improper, abusive, or inefficient service received by the Taxpayer Problem Resolution Officer since the date of the last report. (3270/Reso. 6970)

2. Any recommendations made, action taken, or surveys obtained by the Taxpayer Problem Resolution Officer pursuant to Subsection (B)1-9 above since the date of the last report. (3270/Reso. 6970)

5-10-516: TAXPAYER ASSISTANCE ORDERS

(A) The Taxpayer Problem Resolution Officer, with or without a formal written request from a taxpayer, may issue a taxpayer assistance order that suspends or stays an action or proposed action by the Tax Collector if, in the Problem Resolution Officer's determination, a taxpayer is suffering or will suffer a significant hardship due to the manner in which the Tax Collector is administering the tax laws. (3270/Reso. 6970)

(B) A taxpayer assistance order may require the Tax Collector to release any lien perfected under this Chapter or cease any action or refrain from taking any action to enforce against the taxpayer any section of this Chapter pending resolution of the issue giving rise to the taxpayer assistance order. (3270/Reso. 6970)

(C) The Taxpayer Problem Resolution Officer, City Manager, or, for a City without a City Manager, the Chief Administrative Officer may modify, reverse, or rescind a taxpayer assistance order. A taxpayer assistance order is binding on the Tax Collector until it is reversed or rescinded. (3270/Reso. 6970)

(D) The running of the applicable statute of limitations for any action that is the subject of a taxpayer assistance order is suspended from the date the taxpayer applies for the order or the date the order is issued,

whichever is earlier, until the order's expiration date, modification date, or revision date, if any. Interest that would otherwise accrue on an outstanding tax obligation is not affected by the issuance of a taxpayer assistance order. (3270/Reso. 6970)

(E) A taxpayer assistance order may not be used: (3270/Reso. 6970)

1. To contest the merits of a tax liability. (3270/Reso. 6970)

2. To substitute for informal protest procedures or administrative or judicial proceedings to review a deficiency assessment, collection action, or denial of a refund claim. (3270/Reso. 6970)

5-10-517: BASIS FOR EVALUATING EMPLOYEE PERFORMANCE

(A) The Tax Collector shall solicit evaluations from taxpayers and include such evaluations in the performance appraisals of his employees, where applicable. (3270/Reso. 6970)

(B) The Tax Collector shall not evaluate an employee on the basis of taxes assessed or collected by that employee. (3270/Reso. 6970)

5-10-520: REPORTING AND PAYMENT OF TAX

(A) Returns. The returns required under this Chapter shall be made upon forms prescribed or approved by the Tax Collector and shall be considered filed only when the accuracy of the return has been attested to, by signature upon the form, by an authorized agent of the taxpayer and when such form has been received by the Tax Collector.

(B) Payment. If payment is made in any form other than United States legal tender, the tax obligation shall not be satisfied until the payment has been honored in funds.

(C) Requirement of Security. If a taxpayer has remitted payment in the form of a check or other form of draw upon a bank or third party and such remittance has not been honored in funds, the Tax Collector may demand security for future payments.

(D) Method of Reporting. Each taxpayer shall elect to report on either a cash receipts basis or an accrual basis and shall indicate the choice on the Privilege License application. A taxpayer shall not change his reporting method without receiving prior written approval by the Tax Collector.

1. Taxpayers must report all gross income subject to the tax using the same basis of reporting.

2. Taxes imposed upon construction contracting shall be reported as follows:

(a) Construction contractors shall report on either a progressive billing ("accrual") basis or cash receipts basis.

(b) Speculative builders shall report the gross income derived from sale of improved real property at close of escrow or at transfer of title or possession, whichever occurs earlier.

(c) Owner-builders who are not speculative builders shall report taxable amounts as provided in Section 5-10-417.

5-10-530: WHEN TAX DUE; WHEN DELINQUENT; VERIFICATION OF RETURN; EXTENSIONS

(A) Except as provided elsewhere in this Section, the taxes shall be due and payable monthly on or before the twentieth (20th) day of the month next succeeding the month in which the tax accrues.

1. Quarterly Returns. The Tax Collector may authorize a taxpayer whose reporting history indicates an estimated annual City Privilege and Use Tax liability on taxable gross income in excess of five thousand dollars ($5,000.00) but less than fifty thousand dollars ($50,000.00) to file returns on a calendar-quarterly basis. The taxes for each calendar quarter shall be due and payable on or before the twentieth (20th) day of the month next succeeding the end of each calendar quarter.

2. Annual Returns. The Tax Collector may authorize a taxpayer whose reporting history indicates an estimated annual City Privilege and Use Tax liability on taxable gross income of not more than five thousand dollars ($5,000.00) to file returns for such taxes on a calendar-annual basis. The taxes for each calendar year shall be due and payable on or before the twentieth (20th) day of January of the following year.

(B) Special Requirements of Taxpayers Filing Quarterly or Annual Returns. No taxpayer may report on a quarterly or annual basis until he has established, to the Tax Collector's satisfaction, six (6) months' reporting history. It is the taxpayer's responsibility to notify the Tax Collector and increase his reporting frequency (to quarterly or monthly as applicable) when his taxable income or tax due exceeds the maximum limits for his current reporting frequency. Failure to do so may be deemed negligence or evasion, and penalties may apply. Failure to file returns timely, without good cause shown to the satisfaction of the Tax Collector, is sufficient cause for the Tax Collector to deny future filings by the taxpayer on a quarterly or annual basis.

(C) Delinquency Date. Except as provided in Subsection (D) below, all returns and remittances received within the Tax Collector's office on or before the last business day of the month when due shall be regarded as timely filed. The start of business of the first business day following the month when due shall be the delinquency date. It shall be the taxpayer's responsibility to cause his return and remittance to be timely received. Mailing the return or remittance on or before the due date or delinquency date does not relieve the taxpayer of the responsibility of causing his return or remittance to be received by the last business day of the month when due. (2535)

(D) Jeopardy Reporting. If the Tax Collector determines that the collection of any tax due to the City is in jeopardy, the Tax Collector may direct the taxpayer to file his return and remit the tax on a weekly, daily, or transaction-by-transaction basis. Such return and remittance shall be due upon the date fixed by the Tax Collector, and the "delinquency date" shall be the following day.

(E) Extensions. The Tax Collector may extend the time for filing a return, for good cause shown, and only when requested in writing and received by the Tax Collector prior to the tax due date. However, the time for filing such return shall not be extended beyond the last business day of the month next succeeding the due date of such return. In such cases, only the penalties for late filing and late payment may be waived by the Tax Collector for filing and payment within the extension period. Notwithstanding the granting of an extension, the interest payable for late payment of taxes shall be paid for the period commencing upon the original delinquency date and ending on the date the tax is paid. The interest may not be waived by the Tax Collector. (2977/Reso. 6722)

5-10-540: INTEREST AND CIVIL PENALTIES

(A) Any taxpayer who failed to pay any of the taxes imposed by this Chapter which were due or found to be due before the delinquency date shall be subject to and shall pay interest upon such tax until paid. From and after October 1, 2005, the interest rate shall be determined in the same manner and at the same times as prescribed by Section 6621 of the United States Internal Revenue Code and compounded annually under the method described in Subsection (1) below. The rate of interest for both overpayments and underpayments for all taxpayers is the federal short-term rate, determined pursuant to Section 6621 (B) of the Internal Revenue Code, plus three percentage points. The interest rate prior to October 1, 2005 shall be one percent (1%) per month. Said interest may be neither waived by the Tax Collector nor abated by the Hearing Officer except as it might relate to a tax abated as provided by Section 5-10-570. (3270, 4582/Reso. 6970)

1. On January 1 of each year any interest outstanding as of that date that was accrued from and after October 1, 2005 is thereafter considered as part of the principal amount of the tax and accrues interest pursuant to this section. (4582)

2. Interest accrued prior to October 1, 2005 shall not be added to the principal. (4582)

(B) In addition to interest assessed under Subsection (A) above, any taxpayer who failed to pay any of the taxes imposed by this Chapter which were due or found to be due before the delinquency date shall be subject to and shall pay any or all of the following civil penalties, in addition to any other penalties prescribed by this Chapter:

1. A taxpayer who fails to timely file a return for a tax imposed by this Chapter shall pay a penalty of five percent (5%) of the tax for each month or fraction of a month elapsing between the delinquency date of the return and the date on which it is filed unless the taxpayer shows that the failure to timely file is due to reasonable cause and not due to willful neglect. This penalty shall not exceed twenty-five percent (25%) of the tax due. (3270/Reso. 6970)

2. A taxpayer who fails to pay the tax within the time prescribed shall pay a penalty of ten percent (10%) of the unpaid tax unless the taxpayer shows that the failure to timely pay is due to reasonable cause and not due to willful neglect. If the taxpayer is also subject to a penalty under Subsection (B)1 above for the same tax period, the total penalties under Subsection (B)1 and this Subsection shall not exceed twenty-five percent (25%) of the tax due. (3270/Reso. 6970)

3. A taxpayer who fails or refuses to file a return within thirty (30) days of having received a written notice and demand from the Tax Collector shall pay a penalty of twenty-five percent (25%) of the tax unless the taxpayer shows that the failure is due to reasonable cause and not due to willful neglect or the Tax Collector agrees to a longer time period. (3270/Reso. 6970)

4. If the cause of a tax deficiency is determined by the Tax Collector to be due to negligence but without regard for intent to defraud, the taxpayer shall pay a penalty of ten percent (10%) of the amount of deficiency. If the taxpayer is also subject to a penalty under Subsection (B)1 or (B)2 above for the same tax period, the total penalties imposed under Subsections (B)1, (B)2, and this Subsection shall not exceed twenty-five percent (25%) of the tax due. (3270/Reso. 6970)

5. If the cause of a tax deficiency is determined by the Tax Collector to be due to civil fraud or evasion of the tax, the taxpayer shall pay a penalty of fifty percent (50%) of the amount of deficiency.

(C) Penalties and interest imposed by this Section are due and payable upon notice by the Tax Collector.

(D) If, following an audit, penalties attributable to the audit period are to be assessed pursuant to Subsection (B)1 or (B)2 above, the Tax Collector, before assessing such penalties, must take into consideration any information or explanations provided by the taxpayer as to why the return was not timely filed and/or the tax was not timely paid. If such information and/or explanations are provided by the taxpayer and the Tax Collector nevertheless decides to assess penalties pursuant to Subsection (B)1 or (B)2 above, then, at the time the penalties are assessed, the Tax Collector must provide the taxpayer with a detailed written explanation of the basis for the Tax Collector's determination that the information and/or explanations provided by the taxpayer did not constitute reasonable cause. (3270/Reso. 6970)

(E) The assessment of the penalties prescribed by Subsections (B)3 through (B)5 above must be approved on a case-by-case basis by the Tax Collector prior to such assessment. In addition, any assessment which includes penalties based upon Subsection (B)3, (B)4 or (B)5 above must be accompanied by a statement signed by the Tax Collector setting forth in detail the basis for the Tax Collector's determination that the penalties are warranted under the circumstances. (3270/Reso. 6970)

(F) The Tax Collector shall waive or adjust penalties imposed by Subsections (B)1 and (B)2 above upon a finding that: (3270/Reso. 6970)

1. In the past, the taxpayer has consistently filed and paid the taxes imposed by this Chapter in a timely manner;

2. The amount of the penalty is greatly disproportionate to the amount of the tax; or

3. The failure of a taxpayer to file a return and/or pay any tax by the delinquency date was caused by any of the following circumstances which must occur prior to the delinquency date of the return or payment in question: (3270/Reso. 6970)

   (a) The return was timely filed but was inadvertently forwarded to another taxing jurisdiction.

   (b) Erroneous or insufficient information was furnished the taxpayer by the Tax Collector or his employee or agent.

   (c) Death or serious illness of the taxpayer, member of his immediate family, or the preparer of the reports immediately prior to the due date.

   (d) Unavoidable absence of the taxpayer immediately prior to the due date.

   (e) Destruction by fire or other casualty of the taxpayer's place of business or records.

   (f) Prior to the due date, the taxpayer made application for proper forms which could not be furnished in sufficient time to permit a timely filing.

   (g) The taxpayer was in the process of pursuing an active protest of the tax in question in another taxing jurisdiction at the time the tax and/or return was due. (3270/Reso. 6970)

   (h) The taxpayer establishes through competent evidence that the taxpayer contacted a tax advisor who is competent on the specific tax matter, and after furnishing necessary and relevant information, the taxpayer was incorrectly advised that no tax was owed and/or the filing of a return was not required. (3270/Reso. 6970)

(i) The taxpayer has never been audited by a City for the tax or on the issue in question and relied, in good faith, on a State exemption or interpretation. (3270/Reso. 6970)

(j) The taxpayer can provide some public record (court case; report in a periodical, professional journal, or publication; etc.) stating that the transaction is not subject to tax. (3270/Reso. 6970)

(k) The Arizona Department of Revenue, based upon the same facts and circumstances, abated penalties for the same filing period. (3270/Reso. 6970)

A taxpayer may also request a waiver or adjustment of penalty for a reason thought to be equally substantive to those reasons itemized above. All requests for waiver or adjustment of penalty must be in writing and shall contain all pertinent facts and other reliable and substantive evidence to support the request. In all cases, the burden of proof is upon the taxpayer.

(G) No request for waiver of penalty under Subsection (F) above may be granted unless written request for waiver is received by the Tax Collector within forty-five (45) days following the imposition of penalty. Any taxpayer aggrieved by the refusal to grant a waiver under Subsection (F) above may appeal under the provisions of Section 5-10-570 provided that a petition of appeal or request for an extension is submitted to the Tax Collector within forty-five (45) days of the taxpayer's receipt of notice by the City that waiver has been denied. (3270/Reso. 6970)

(H) For the purpose of this Section, "reasonable cause" shall mean that the taxpayer exercised ordinary business care and prudence, i.e., had a reasonable basis for believing that the tax did not apply to the business activity or the storage or use of the taxpayer's tangible personal property in this City. (2321, 3270/Reso. 6970)

(I) For the purpose of this Section, "negligence" shall be characterized chiefly by inadvertence, thoughtlessness, inattention, or the like, rather than an "honest mistake." Examples of negligence include: (3270/Reso. 6970)

1. The taxpayer's failure to maintain records in accordance with Article III of this Chapter; (3270/Reso. 6970)

2. Repeated failures to timely file returns; or (3270/Reso. 6970)

3. Gross ignorance of the law. (3270/Reso. 6970)

5-10-541: ERRONEOUS ADVICE OR MISLEADING STATEMENTS BY THE TAX COLLECTOR; ABATEMENT OF PENALTIES AND INTEREST; DEFINITION

(A) Notwithstanding Section 5-10-540(A), no interest or penalty may be assessed on an amount assessed as a deficiency if either: (3270/Reso. 6970)

1. The deficiency assessed is directly attributable to erroneous written advice furnished to the taxpayer by an employee of the City acting in an official capacity in response to a specific request from the taxpayer and not from the taxpayer's failure to provide adequate or accurate information. (3270/Reso. 6970)

2. All of the following are true: (3270/Reso. 6970)

(a) A tax return form prepared by the Tax Collector contains a statement that, if followed by a taxpayer, would cause the taxpayer to misapply this Chapter. (3270/Reso. 6970)

(b) The taxpayer reasonably relies on the statement. (3270/Reso. 6970)

(c) The taxpayer's underpayment directly results from this reliance. (3270/Reso. 6970)

(B) Each employee of the Tax Collector, at the time any oral advice is given to any person, shall inform the person that the Tax Collector is not bound by such oral advice. (3270/Reso. 6970)

(C) For purposes of this Section, "tax return form" includes the instructions that the Tax Collector prepares for use with the tax return form. (3270/Reso. 6970)

5-10-542: PROSPECTIVE APPLICATION OF NEW LAW OR INTERPRETATION OR APPLICATION OF LAW

(A) Unless expressly authorized by law, the Tax Collector shall not apply any newly enacted legislation retroactively or in a manner that will penalize a taxpayer for complying with prior law. (3954/Reso. 7756)

(B) If the Tax Collector adopts a new interpretation or application of any provision of this Chapter or determines that any provision applies to a new or additional category or type of business and the change in interpretation or application is not due to a change in the law: (3954/Reso. 7756)

1. The change in interpretation or application applies prospectively only unless it is favorable to taxpayers. (3954/Reso. 7756)

2. The Tax Collector shall not assess any tax, penalty, or interest retroactively based on the change in interpretation or application. (3954/Reso. 7756)

(C) For purposes of Subsection (B), "new interpretation or application" includes policies and procedures which differ from established interpretations of this Chapter. (3954/Reso. 7756)

(D) (Reserved)

5-10-545: DEFICIENCIES; WHEN INACCURATE RETURN IS FILED; WHEN NO RETURN IS FILED; ESTIMATES

(A) If the taxpayer has failed to file a return or if the Tax Collector is not satisfied with the return and payment of the amount of tax required and additional taxes are determined by the Tax Collector to be due, the Tax Collector shall deliver written notice of his determination of a deficiency to the taxpayer, and such deficiency, plus penalties and interest, shall be due and payable forty-five (45) days after receipt of the notice and demand. Such additional taxes shall bear any applicable civil penalties and interest as provided in Section 5-10-540, and every such notice of a determination of an additional amount due shall be assessed within the limitation period provided in Section 5-10-550.

1. When a Return is Filed. If the Tax Collector is not satisfied with a return and payment of the amount of tax required by this Chapter to be paid to the City, he may examine the return or examine the records of the taxpayer and redetermine the amount of tax, penalties, and interest

required to be paid for any periods available to the Tax Collector under Section 5-10-550, based upon the information contained in the return or records or based upon any information within his possession or which comes into his possession.

2. When No Return is Filed. If any person fails to make a return, the Tax Collector may make an estimate of the amount of tax due under this Chapter and compute any applicable penalties and interest due, based upon any information within his possession or which comes into his possession.

(B) Estimates by the Tax Collector. Any estimate made by the Tax Collector is to be made on a reasonable basis. The existence of another reasonable basis of estimation does not in any way invalidate the Tax Collector's estimate. It is the responsibility of the taxpayer to prove that the Tax Collector's estimate is not reasonable and correct by providing sufficient documentation of the type and form required by this Chapter or satisfactory to the Tax Collector.

5-10-546: CLOSING AGREEMENTS IN CASES OF EXTENSIVE TAXPAYER MISUNDERSTANDING OR MISAPPLICATION; CITY ATTORNEY APPROVAL; RULES

(A) If the Tax Collector determines that noncompliance with tax obligations results from extensive misunderstanding or misapplication of provisions of this Chapter, it may enter into closing agreements with those taxpayers under the following terms and conditions: (3270/Reso. 6970)

1. Extensive misunderstanding or misapplication of the tax laws occurs if the Tax Collector determines that more than sixty percent (60%) of the persons in the affected class have failed to properly account for their taxes owing to the same misunderstanding or misapplication of the tax laws. (3270/Reso. 6970)

2. The Tax Collector shall publicly declare the nature of the possible misapplication and the proposed definition of the class of affected taxpayers and shall conduct a public hearing to hear testimony regarding the extent of the misapplication and the definition of the affected class. (3270/Reso. 6970)

3. If after the public hearing the Tax Collector determines that a class of affected taxpayers has failed to comply with their tax obligations because of extensive misunderstanding or misapplication of the tax laws, it shall issue a tax ruling announcing that finding and publish the ruling in a newspaper of general circulation in the City and through the next two Model City Tax Code updates. (3270/Reso. 6970)

4. A closing agreement under this Section may abate some or all of the penalties, interest, and tax that taxpayers have failed to remit, or the agreement may provide for the prospective treatments of the matter as to the class of affected taxpayers. All taxpayers in the class shall be offered the opportunity to enter into a similar agreement for the same tax periods. (3270/Reso. 6970)

5. Taxpayers in the affected class who have properly accounted for their tax obligations for these tax periods shall be offered the opportunity to enter into an equivalent closing agreement providing for a pro rata credit or refund of their taxes previously paid. (3270/Reso. 6970)

6. The closing agreement shall require the taxpayers to properly account for and pay such taxes in the future. If a taxpayer fails to adhere to such a requirement, the closing agreement is voidable by the Tax Collector, and he may assess the taxpayer for the delinquent taxes. The Tax Collector may issue

such a proposed assessment within six (6) months after the date that he declares that closing agreement void or within the period prescribed by Section 5-10-550 of this Chapter. (3270/Reso. 6970)

(B) Before entering into closing agreements pursuant to this Section, the Tax Collector shall secure such approval as required by Charter, ordinance, or administrative regulation. (3270/Reso. 6970)

(C) After a closing agreement has been signed pursuant to this Section, it is final and conclusive except on a showing of fraud, malfeasance, or misrepresentation of a material fact. The case shall not be reopened as to the matters agreed upon, or the agreement shall not be modified by any officer, employee, or agent of the City. The agreement or any determination, assessment, collection, payment, abatement, refund, or credit made pursuant to the agreement shall not be annulled, modified, set aside or disregarded in any suit, action, or proceeding. (3270/Reso. 6970)

(D) The Tax Collector shall report in writing its activities under this Section to the Mayor and City Council on or before February 1 of each year. (3270/Reso. 6970)

5-10-550: LIMITATION PERIODS

(A) Limitation When a Return Has Been Filed.

1. Except as provided elsewhere in this Section, the Tax Collector may assess additional tax due at any time within four (4) years after the date on which the return is required to be filed or within four (4) years after the date on which the return is filed, whichever period expires later. (3270/Reso. 6970)

2. However, if a taxpayer does not report an amount properly reportable which is in excess of twenty-five percent (25%) of the taxable amount stated on the return, the Tax Collector may assess additional tax due at any time within six (6) years after the date on which the return was filed. (2535,3270/Reso. 6970)

3. Any delay in commencement or completion of any examination by the Tax Collector which is requested or agreed to in writing by the taxpayer shall be excluded from the computation of any limitation period prescribed by this Section; the Tax Collector shall be entitled to make a determination for taxes due without exclusion of any such time period, and any limitation period shall be extended for a length of time equivalent to the period of the agreed-upon delay. (3270/Reso. 6970)

4. Any assessment by the Tax Collector of additional tax due shall be deemed to have been made by mailing a copy of a notice of audit assessment by certified mail to the taxpayer's address of record with the Tax Collector or by personal delivery of a copy of a notice of audit assessment to the taxpayer or his authorized agent.

(B) Suspension of Limitation Period. The limitation period on assessment shall be suspended for any period: (3270/Reso. 6970)

1. The assets of the taxpayer are in the control or custody of the court in any proceeding before any court of jurisdiction within the United States of America, and for one hundred eighty (180) calendar days thereafter; or

2. Which the taxpayer and the Tax Collector agree upon in writing. (3270/Reso. 6970)

(C) When No Return Filed; Fraudulent Return. In the case of a fraudulent return with the intent to evade tax or the failure or refusal to file a return for any month, the Tax Collector may assess the amount of taxes payable for that month at any time without any reliance by the taxpayer upon any time limitation provided elsewhere in this Chapter. (3270/Reso. 6970)

(D) Special Provisions Relating to Owner-Builders. The limitation for an owner-builder subject to the tax as prescribed in Section 5-10-417 shall be based upon the date such tax liability is reportable or was reported as provided in Section 5-10-417.

5-10-553: EXAMINATION OF TAXPAYER RECORDS; JOINT AUDITS

(A) Waiver of Joint Audit. A taxpayer that does not authorize a joint audit to be conducted for a tax jurisdiction is subject to audit by that tax jurisdiction at any time subject to the limitation provisions provided in Section 5-10-550. (3921)

(B) Tax Jurisdiction Acceptance of Joint Audit. If the Arizona Department of Revenue intends to conduct an audit of a taxpayer, the cities or towns for whom a joint audit is being conducted may accept the audit by the Arizona Department of Revenue or may elect to have a representative participate, provided that no more than two (2) city or town representatives in total may participate. (3921)

1. If a city or town does not accept the audit as a joint audit, the city or town may not conduct an audit of the taxpayer for forty-two (42) months from the close of the last tax period covered by the audit unless an exception applies to that taxpayer pursuant to A.R.S. § 42-2059. (3921)

2. If a joint audit is performed by a city or town, the Arizona Department of Revenue is not prohibited from conducting an audit that does not violate the provisions of A.R.S. § 42-2059. (3921)

5-10-555: TAX COLLECTOR MAY EXAMINE BOOKS AND OTHER RECORDS; FAILURE TO PROVIDE RECORDS

(A) The Tax Collector may require the taxpayer to provide and may examine any books, records, or other documents of any person who, in the opinion of the Tax Collector, might be liable for any tax under this Chapter for any periods available to him under Section 5-10-550.

(B) In order to perform any examination authorized by this Chapter, the Tax Collector may issue an Administrative Request for the attendance of witnesses or for the production of documents as provided by regulation.

(C) If within sixty (60) days of receiving a written request for information in the possession of the taxpayer, the taxpayer fails or refuses to furnish the requested information, the Tax Collector may, in addition to penalties prescribed under Section 5-10-540, impose an additional penalty of twenty-five percent (25%) of the amount of any tax deficiency which is attributable to the information which the taxpayer failed to provide, unless the taxpayer shows that the failure was due to reasonable cause and not due to willful neglect. (3270/Reso. 6970)

(D) The Tax Collector may use any generally accepted auditing procedures, including sampling techniques, to determine the correct tax liability of any taxpayer. The Tax Collector shall ensure that the procedures used are in accordance with generally accepted auditing standards. (3270/Reso. 6970)

(E) The fact that the taxpayer has not maintained or provided such books and records which the Tax Collector considers necessary to determine the tax liability of any person does not preclude the Tax Collector from making any assessment. In such cases, the Tax Collector is authorized to use estimates, projections, or samplings to determine the correct tax. The provisions of Section 5-10-545(B) concerning estimates shall apply.

(F) The Tax Collector shall give the taxpayer written notice of his determination of a deficiency by certified mail to the taxpayer's address of record with the Tax Collector, and the tax deficiency, plus interest and penalties, is final forty-five (45) days from the date of receipt of the notice by the taxpayer unless an appeal is taken pursuant to the provisions of Sections 5-10-570 through 5-10-575. (2977/Reso. 6722)

5-10-556: NO ADDITIONAL AUDITS OR PROPOSED ASSESSMENTS; EXCEPTIONS

(A) Once the Tax Collector completes an examination authorized by Section 5-10-555 and a written notice of the determination of a deficiency has been issued to the taxpayer pursuant to Section 5-10-545(A) or 5-10-555(F), the taxpayer's liability for the time period subjected to the examination is fixed and determined, and no additional audit or examination may be conducted by the Tax Collector with respect to such time period except under the following circumstances: (3270/Reso. 6970)

1. If a taxpayer files a claim for refund under Section 5-10-560, the Tax Collector may conduct an examination limited to the issues presented in the refund claim. (3270/Reso. 6970)

2. If the taxpayer failed to disclose material information during the initial examination, falsified books or records, or otherwise engaged in conduct which prevented the Tax Collector from conducting an accurate examination. The applicability of this Subsection and the Tax Collector's right to proceed thereunder may be raised and contested by the taxpayer in a subsequent administrative review brought pursuant to Section 5-10-570. (3270/Reso. 6970)

(B) An audit or examination conducted by any other taxing jurisdiction will not preclude the Tax Collector from conducting an audit or examination for the same time period. (3270/Reso. 6970)

(C) If the Tax Collector issues a notice of deficiency pursuant to either Section 5-10-545(A) or Section 5-10-555(F), the Tax Collector may not increase the proposed deficiency except in one (1) or more of the following circumstances: (3270/Reso. 6970)

1. The taxpayer made a material misrepresentation of fact. (3270/Reso. 6970)

2. The taxpayer failed to disclose a material fact. (3270/Reso. 6970)

3. The Tax Collector submitted a written request for information prior to issuance of the assessment, and the taxpayer, despite possessing or having access to such information, failed to provide it within sixty (60) days as required by Section 5-10-555(C). (3270/Reso. 6970, 3476/Reso. 7209)

4. After issuing the notice of determination of deficiency but before the deficiency became final, the Arizona Tax Court, Court of Appeals, or Supreme Court issued a decision, the applicability of which causes the deficiency initially proposed to increase. (3270/Reso. 6970)

5-10-560: ERRONEOUS PAYMENT OF TAX; CREDITS AND REFUNDS; LIMITATIONS

(A) The Tax Collector may authorize either credits or payments of refunds for any taxes, penalties, or interest paid in excess of the amount actually due. Any credit authorized by the Tax Collector shall be cancelled from the accounts of the City if no timely filed request for credit or refund is made by the claimant claiming same within one (1) year following the date of determination and notice by the Tax Collector of the excess payment. For purposes of this section, "claimant" means a taxpayer that has paid a tax imposed under this article and has submitted a credit or refund claim under this section. Except where the taxpayer has granted a customer a power of attorney to pursue a credit or refund claim on the taxpayer's behalf, claimant does not include any customer of such taxpayer, whether or not the claimant collected the tax from customers by separately stated itemization. (3270, 4582/Reso. 6970)

(B) No credit shall be allowed or refund paid except under one (1) of the following conditions: (3270/Reso. 6970)

1. As provided in Section 5-10-565.

2. Upon examination of filed returns for any period not excluded by Section 5-10-550 and not to exceed the tax, penalty, or interest actually paid with such returns. (3270/Reso. 6970)

3. Upon audit or other examination of the books and records of the taxpayer, but only for periods as provided in Section 5-10-550. In the case of an examination performed at the taxpayer's request, credit shall be allowed or refund paid only for any excess taxes, penalties, or interest actually paid within the limitation period provided in Section 5-10-550, such period to be calculated from the date of receipt of the taxpayer's request by the Tax Collector. Requests by taxpayers for audits to authorize credits shall be honored unless, in the opinion of the Tax Collector, the taxpayer has made excessive requests for audits. (3270/Reso. 6970)

4. Upon the claimant's submission of a written claim for credit or refund of any taxes, penalties, or interest paid to the City by the claimant. (3270,4582/Reso. 6970)

(C) A credit or refund claim submitted by a claimant pursuant to subsection (B)(4) of this section must:

1. Identify the name, address and city tax identification number of the taxpayer; and (4582)

2. Identify the dollar amount of the credit or refund requested; and (4582)

3. Identify the specific tax period involved: and (4582)

4. Identify the specific grounds upon which the claim is based. (4582)

(D) When a written claim for credit or refund is submitted pursuant to subsection (B)(4) of this section, no credit shall be allowed or refund paid except for those taxes, penalties, or interest paid in excess of the amount due within the limitation period provided in Section 5-10-550. The credit or refund limitation period shall be calculated from the date the Tax Collector receives the claimant's written claim meeting the requirements of Subsection (C) of this section. (3270, 4582/Reso. 6970)

(E) The following additional requirements apply to the Tax Collector and the claimant for claims for credit or refund submitted pursuant to Subsection (B)(4) of this section: (3270, 4582/Reso. 6970)

1. The Tax Collector shall notify the claimant that the claim for credit or refund has been received and shall indicate whether the claim meets the requirements of Subsection (C) of this section. If the

claim does not meet the requirements of Subsection (C) of this section, the Tax Collector shall identify the deficiency in writing. Any claim that does not meet the requirements of Subsection (C) of this section shall not secure the limitation period pursuant to section 5-10-550. (4582)

2. The Tax Collector may request, in writing, additional information or documentation from the claimant to support the requested credit or refund. Such information or documentation must be reasonably related to the claim and required to be maintained under this chapter in the normal course of business. (4582)

   (a) The claimant may request in writing one or more extensions to supply the requested information or documentation. The Tax Collector may reject an extension request only by denying the claim in whole or in part, subject to appeal by the claimant pursuant to Section 5-10-570 (4582)

   (b) A claimant aggrieved by a request for information or documentation under this subsection may file an appeal in the manner provided for in Section 5-10-570 regarding the scope of the request for information or documentation. Such petition must be filed no later than the last day by which requested information or documentation must be provided to the Tax Collector, including any extensions. The decision of the Hearing Officer regarding a request for information or documentation may not be appealed by either party until the claim has been approved or denied, in whole or in part, under Subsection (H) of this section or through subsections (E)(3) or (E)(4) of this section. A claimant shall not be barred from raising the issue of the reasonableness of the Tax Collector's information or documentation request in an appeal filed under Subsection (H) of this section or through subsections (E)(3) or (E)(4) of this section through a lack of filing a petition under this subsection. (4582)

3. If the Tax Collector fails to request additional information or documentation pursuant to this section and fails to issue a determination on any claim for credit or refund within six (6) months after the claim is filed, the claimant may consider the claim denied and may file an appeal pursuant to Section 5-10-570. (4582)

4. If the Tax Collector fails to issue a determination within six (6) months of receiving all requested additional information or documentation, the claimant may consider the claim for credit or refund denied and may file an appeal pursuant to Section 5-10-570. (4582)

5. The burden of proof to show that a notice, request, determination or other communication was received by the claimant in this section is on the Tax Collector, and will be satisfied by receipt of notice. The burden of proof to show that a claim or additional information or documentation was received by the Tax Collector is on the claimant and will be satisfied by receipt of notice. (4582)

(F) Interest shall be allowed on the overpayment of tax for any credit or refund authorized pursuant to Subsections (B)(3) or (B)(4) of this section. Such interest shall be allowed on the overpayment of tax at the rate and in the manner set forth in Section 5-10-540 (A), as follows: (3270, 4582/Reso. 6970)

1. For credits or refunds authorized pursuant to Subsection (B) (3) of this section, interest shall be calculated from the date the Tax Collector receives the claimant's written claim following the date of notice to the claimant authorizing the credit or refund. (4582)

2. For credits or refunds authorized pursuant to Subsection (B)(4) of this section, interest shall be calculated from the date the Tax Collector receives the claimant's written claim meeting the requirements of subsection (C) of this section. (4582)

(G) The Tax Collector shall give the claimant a written notice of determination for a claim made under Subsection (B) of this section. If the determination is a denial of a claim, in whole or in part, the determination must state that the claim for credit or refund has been denied in whole or in part, with the reason for denial, and must include the claimant's rights of appeal pursuant to section 5-10-570. (4582)

(H) A determination by the Tax Collector under this section, whether an approval of a claim or a denial of a claim, in whole or in part, shall become final forty-five (45) days from the date of receipt of the notice by the claimant, unless an appeal is made pursuant to Section 5-10-570. If the claimant is the prevailing party in an appeal of a determination under this section, Section 5-10-578 shall apply, except that reasonable fees and other costs may be awarded either by the Hearing Officer or court and are not subject to the monetary limitations of Subsection 5-10-578(E) if the tax collector's position was not substantially justified or was brought for the purpose of harassing the claimant, frustrating the credit or refund process or delaying the credit or refund. For the purposes of this section, "reasonable fees and other costs" means fees and other costs that are based on prevailing market rates for the kind and quality of the furnished services, not to exceed the amounts actually paid for expert witnesses, the cost of any study, analysis, report, test, project or computer program that is found to be necessary to prepare the claimant's case and necessary fees for attorneys or other representatives. (4582)

(I) The amendments to this section as enacted in Ordinance #4582 shall be effective as follows:

1. For any claim for refund or credit received by the Tax Collector before October 1, 2005, (4582)

   (a) The provisions of this section as it existed prior to the adoption of Ordinance #4582 shall apply, except that interest shall be allowed from and after October 1, 2005 as provided in Subsection (F) of this section as enacted by Ordinance #4582. (4582)

   (b) Except as noted in Subsection (1)(A) above, the amendments to this section as enacted in Ordinance #4582 shall not be cited or considered in the construction or the interpretation of the city tax refund or credit provisions, interest provisions, or appeal provisions in effect prior to October 1, 2005. (4582)

2. The provisions of this section enacted by ordinance #4582 shall apply to all claims for refund or credit, for any periods as determined by subsections (D) or (E) of this section, received by the Tax Collector from and after October 1, 2005, except for claims that, in whole or in part, had been received by the collector prior to October 1, 2005. (4582)

(J) Any refund paid under the provisions of this section shall be paid from the privilege tax revenue accounts. (4582)

5-10-565: PAYMENT OF TAX BY THE INCORRECT TAXPAYER OR TO THE INCORRECT ARIZONA CITY OR TOWN

(A) When it is determined that taxes have been reported and paid to the City by the wrong taxpayer, any taxes erroneously paid shall be transferred by the City to the privilege tax account of the person who actually

owed and should have paid such taxes, provided that the City receives an assignment and waiver signed by both the person who actually paid the tax and the person who should have paid the tax. (3270/Reso. 6970)

(B) An assignment and waiver provided under this Section must: (3270/Reso. 6970)

1. Identify the name and City privilege license number of the person who erroneously paid the tax and the person who should have paid the tax. (3270/Reso. 6970)
2. Provide that the person who erroneously paid the tax waives any right such person may have to a refund of the taxes erroneously paid. (3270/Reso. 6970)
3. Authorize the City treasurer to transfer the erroneously paid tax to the privilege tax account of the person who should have paid the tax. (3270/Reso. 6970)

(C) When it is determined that taxes have been reported and paid to the wrong Arizona city or town, such taxes shall be remitted to the correct city or town, provided that the city or town to whom the taxes were erroneously paid receives an assignment and waiver signed by both the person who actually paid the tax and the person who should have paid the tax. Where the person who actually paid the tax and the person who should have paid the tax are one and the same, no assignment and waiver need be provided. The City shall neither pay nor charge any interest or penalty on any overpayment or underpayment except such interest and penalty actually paid by the taxpayer relating to such tax. (3270/Reso. 6970)

(D) This Section in no way limits or restricts the applicability of any remedies which may otherwise be available under A.R.S. § 42-1452. The limitations and procedures set forth in A.R.S. § 42-1452 shall apply to all payments under this Section. (3270/Reso. 6970)

(E) When reference is made in this Section to this City or an Arizona city or town and payments made to or requested from this City or an Arizona city or town, the provisions shall be applicable to the Arizona Department of Revenue when it is acting for or on behalf of this City or an Arizona city or town. (3270/Reso. 6970)

5-10-567: RESERVED

Editor's note—Ord. No. 3270/Reso. 6970 repealed § 5-10-567.

5-10-570: ADMINISTRATIVE REVIEW; PETITION FOR HEARING OR FOR REDETERMINATION; FINALITY OF ORDER

For purposes of this section, "Municipal Tax Hearing Office" means the administrative offices of the Municipal Tax Hearing Officer. (3921)

(A) Informal Conference. A taxpayer shall have the right to discuss any proposed assessment with the auditor prior to the issuance of any assessment, but any such informal conference is not required for the taxpayer to file a petition for administrative review.

(B) Administrative Review. (3270/Reso. 6970)

1. Filing a Petition. Other than in the case of a jeopardy assessment, a taxpayer may contest the applicability or amount of any tax, penalty, or interest imposed upon or paid by him pursuant to this Chapter by filing a petition for a hearing or for redetermination with the Tax Collector as set forth below:
   (a) Within forty-five (45) days of receipt by the taxpayer of notice of a determination by the Tax Collector that a tax, penalty, or interest amount is due or that a request for refund or credit has been denied;

(b) By voluntary payment of any contested amount when accompanied by a timely filed return and a petition requesting a refund of the protested portion of said payment;

(c) By petition accompanying a timely filed return contesting an amount reported but not paid; or

(d) By petition requesting review of denial of waiver of penalty as provided in Subsection 5-10-540(G). (3270/Reso. 6970)

2. Extension to File a Petition. In all cases, the taxpayer may request an extension from the Tax Collector. Such request must be in writing, state the reasons for the requested delay, and must be filed with the Tax Collector within the period allowed above for originally filing a petition. The Tax Collector shall allow a forty-five (45) day extension to file a petition, when such written request has been properly and timely made by the taxpayer. The Tax Collector may grant an additional extension and may determine the corresponding time of any such extension at his sole discretion. (4979)

3. Requirements for Petition.

(a) The petition shall be in writing and shall set forth the reasons why any correction, abatement, or refund should be granted and the amount of reduction or refund requested. The petition may be amended at any time prior to the time the taxpayer rests his case at the hearing or such time as the Hearing Officer allows for submitting of amendments in cases of redeterminations without hearings. The Hearing Officer may require that amendments be in writing, and in that case, he shall provide a reasonable period of time to file the amendment. The Hearing Officer shall provide a reasonable period of time for the Tax Collector to review and respond to the petition and to any written amendments.

(b) The taxpayer, as part of the petition, may request a hearing which shall be granted by the Hearing Officer. If no request for hearing is made, the petition shall be considered to be submitted for decision by the Hearing Officer on the matters contained in the petition and in any reply made by the Tax Collector.

(c) The provisions of this Section are exclusive, and no petition seeking any correction, abatement, or refund shall be considered unless the petition is timely and properly filed under this Section.

4. Transmittal to the Hearing Officer. The City shall designate a Hearing Officer, who may be other than an employee of the City. The Tax Collector, if designated to receive petitions, shall forward any petition to the Municipal Tax Hearing Office (MTHO) within twenty (20) days after receipt, accompanied by documentation as to timeliness. In cases where the Hearing Officer determines that the petition is not timely or not in proper form, he shall notify both the taxpayer and the Tax Collector; and in cases of petitions not in proper form only, the Hearing Officer shall provide the taxpayer with an extension up to forty-five (45) days to correct the petition. (2535, 3270/Reso. 6970, 3921)

5. Hearings shall be conducted by a Hearing Officer and shall be continuous until the Hearing Officer closes the record. The taxpayer may be heard in person or by his authorized representative at such hearing. Hearings shall be conducted informally as to the order of proceeding and presentation of

evidence. The Hearing Officer shall admit evidence over hearsay objections where the offered evidence has substantial probative value and reliability. Further, copies of records and documents prepared in the ordinary course of business may be admitted, without objection as to foundation, but subject to argument as to weight, admissibility, and authenticity. Summary accounting records may be admitted subject to satisfactory proof of the reliability of the summaries. In all cases, the decision of the Hearing Officer shall be made solely upon substantial and reliable evidence. All expenses incurred in the hearing shall be paid by the party incurring the same. (2535)

6. Redeterminations upon a "petition for redetermination" shall follow the same conditions, except that no oral hearing shall be held.

7. Hearing Ruling. In either case, the Hearing Officer shall issue his ruling not later than forty-five (45) days after the close of the record by the Hearing Officer.

8. Notice of Refund or Adjusted Assessment. Within sixty (60) days of the issuance of the Hearing Officer's decision, the Tax Collector shall issue to the taxpayer either a notice of refund or an adjusted assessment recalculated to conform to the Hearing Officer's decision. (3270/Reso. 6970)

(C) Stipulations That Future Tax is Also Protested. A taxpayer may enter into a stipulation with the Tax Collector that future taxes of similar nature are also at issue in any protest or appeal. However, unless such stipulation is made, it is presumed that the protest or appeal deals solely and exclusively with the tax specifically protested and no other. When a taxpayer enters into such a stipulation with the Tax Collector that future taxes of similar nature will be included in any redetermination, hearing, or court case, it is the burden of that taxpayer to identify, segregate, and keep record of such income or protested taxable amount in his books and records in the same manner as the taxpayer is required to segregate exempt income. (3270/Reso. 6970)

(D) When an Assessment is Final. (3270/Reso. 6970)

1. If a request for administrative review and petition for hearing or redetermination of an assessment made by the Tax Collector is not filed within the period required by Subsection (B) above, such person shall be deemed to have waived and abandoned the right to question the amount determined to be due, and any tax, interest, or penalty determined to be due shall be final as provided in Subsections 5-10-545(A) and 5-10-555(F).

2. The decision made by the Hearing Officer upon administrative review by hearing or redetermination shall become final thirty (30) days after the taxpayer receives the notice of refund or adjusted assessment required by Subsection (B)8 above, unless the taxpayer appeals the order or decision in the manner provided in Section 5-10-575. (3270/Reso. 6970)

(E) (Reserved)

5-10-571: JEOPARDY ASSESSMENTS

(A) If the Tax Collector believes that the collection of any assessment or deficiency of any amounts imposed by this Chapter will be jeopardized by delay, he shall deliver to the taxpayer a notice of such finding and demand immediate payment of the tax or deficiency declared to be in jeopardy, including interest, penalties, and additions.

(B) Jeopardy assessments are immediately due and payable, and the Tax Collector may immediately begin proceedings for collection. The taxpayer, however, may stay collection by filing, within ten (10) days after receipt of notice of jeopardy assessment or within such additional time as the Tax Collector may allow, by bond or collateral in favor of the City in the amount Tax Collector declared to be in jeopardy in his notice.

(C) Bond or Collateral.

1. "Bond or collateral" shall mean either:

   (a) A bond issued in favor of the City by a surety company authorized to transact business in this State and approved by the Director of Insurance as to solvency and responsibility; or

   (b) Collateral composed of securities or cash which are deposited with, and kept in the custody of, the Tax Collector.

2. Shall be of such form that it may, at any time without notice, be applied to any tax, penalties, or interest due and payable for the purposes of this Chapter. Securities held as collateral by the Tax Collector must be of a nature that they may be sold at public or private sale without notice to the taxpayer.

(D) If bond or collateral is not filed within the period prescribed by Subsection (B) above, the Tax Collector may treat the assessment as final for purposes of any collection proceedings. The taxpayer nevertheless shall be afforded the appeal rights provided in Sections 5-10-570 and 5-10-575. The filing of a petition by the taxpayer under Section 5-10-570, however, shall not stay the Tax Collector's rights to pursue any collection proceedings. (2321)

(E) If the taxpayer timely files sufficient bond or collateral, the jeopardy requirements are deemed satisfied, and the taxpayer may avail himself of the provisions of Section 5-10-570, including requests for additional time to file a petition.

5-10-572: EXPEDITED REVIEW OF JEOPARDY ASSESSMENTS

(A) Within thirty (30) days after the day on which the Tax Collector furnishes the written notice required by Section 5-10-571(A), the taxpayer, pursuant to Section 5-10-570, may request the Tax Collector to review the action taken. Within fifteen (15) days after the request for review, the Tax Collector shall determine whether both the jeopardy determination and the amount assessed are reasonable. (3270/Reso. 6970)

(B) Within thirty (30) days after the Tax Collector notifies the taxpayer of the determination he reach pursuant to Subsection (A) above, the taxpayer may bring a civil action in the appropriate court. If the taxpayer so requests, the City shall stipulate to an accelerated and expedited resolution of the civil action. If the court determines that either the jeopardy determination or the amount assessed is unreasonable, the court may order the Tax Collector to abate the assessment, to predetermine any part of the amount assessed, or to take such other action as the court finds to be appropriate. A determination made by the court under this Subsection is final except as provided in A.R.S. § 12-170. (3270/Reso. 6970)

5-10-575: JUDICIAL REVIEW

(A) A taxpayer may seek judicial review of all or any part of a Hearing Officer's decision by initiating an action against the City in the appropriate Court of this County. A taxpayer is not required to pay any tax, penalty, or interest upheld by the Hearing Officer before seeking such judicial review. (3270/Reso. 6970)

(B) The Tax Collector may seek judicial review of all or any part of a Hearing Officer's decision by initiating an action in the appropriate Court of this County.

(C) An action for judicial review cannot be commenced by either the taxpayer or the Tax Collector more than thirty (30) days after receipt by the taxpayer of notice of any refund or assessment recalculated or reduced to conform to the Hearing Officer's decision, unless the time to commence such an action is extended in writing signed by both the taxpayer and the Tax Collector. Failure to bring the action within thirty (30) days or such other time as is agreed upon in writing shall constitute a waiver of any right to judicial review, except as provided in Subsection (F) below. (3270/Reso. 6970)

(D) The court shall hear and determine the appeal as a trial de novo; however, the Tax Collector cannot raise in the court any grounds or basis for the assessment not asserted before the Hearing Officer. Nothing in this Subsection, however, shall preclude the Tax Collector from responding to any arguments which are raised by the taxpayer in the appeal. (3270/Reso. 6970)

(E) The City has the burden of proof by a preponderance of the evidence in any court proceeding regarding any factual issue relevant to ascertaining the tax liability of a taxpayer. This Subsection does not abrogate any requirement of this Chapter that requires a taxpayer to substantiate an item of gross income, exclusion, exemption, deduction, or credit. This Subsection applies to a factual issue if a preponderance of the evidence demonstrates that: (3729/Reso. 7458)

1. The taxpayer asserts a reasonable dispute regarding the issue. (3729/Reso. 7458)

2. The taxpayer has fully cooperated with the Tax Collector regarding the issue, including providing within a reasonable period of time, access to and inspection of all witnesses, information, and documents within the taxpayer's control, as reasonably requested by the Tax Collector. (3729/Reso. 7458)

3. The taxpayer has kept and maintained records as required by the City. (3729/Reso. 7458)

(F) The issuance of an adjusted or corrected assessment or notice of refund due to the taxpayer, where made by the Tax Collector pursuant to the decision of the Hearing Officer, shall not be deemed an acquiescence by the City or the Tax Collector in said decision, nor shall it constitute a bar or estoppel to the institution of an action or counterclaim by the City to recover any amounts claimed to be due to it by virtue of the original assessment. (3729/Reso. 7458)

(G) After the initiation of any action in the appropriate court by either party, the opposite party may file such counterclaim as would be allowed pursuant to the Arizona Rules of Civil procedure. (3729/Reso. 7458)

5-10-577: REFUNDS OF TAXES PAID UNDER PROTEST

In the event the Hearing Officer's decision or a final judgment by the Court is rendered in favor of the taxpayer to recover protested taxes, it shall be the duty of the Tax Collector, upon receipt of such decision or of a certified copy of such final judgment, to authorize a warrant in favor of the taxpayer in an amount equal to the amount of the tax found by such decision or by the final judgment to have been paid under protest, and such warrant shall include the amount of interest or other cost that may have been recovered against the City by the final judgment in such action in the courts, to be paid from the Privilege Tax revenue accounts.

5-10-578: REIMBURSEMENT OF FEES AND OTHER COSTS; DEFINITIONS

(A) A taxpayer who is a prevailing party may be reimbursed for reasonable fees and other costs related to any administrative proceeding brought by the taxpayer pursuant to Section 5-10-570(B). For purposes of this Section, a taxpayer is considered to be the prevailing party only if both of the following are true: (3270/Reso. 6970)

1. The Tax Collector's position was not substantially justified. (3270/Reso. 6970)

2. The taxpayer prevails as to the most significant issue or set of issues. (3270/Reso. 6970)

(B) Reimbursement under this Section may be denied if any of the following circumstances apply: (3270/Reso. 6970)

1. During the course of the proceeding the taxpayer unduly and unreasonably protracted the final resolution of the matter. (3270/Reso. 6970)

2. The reason that the taxpayer prevailed is due to an intervening change in the applicable law. (3270/Reso. 6970)

(C) The taxpayer shall present an itemization of the reasonable fees and other costs to the Taxpayer Problem Resolution Officer within thirty (30) days after receipt by the taxpayer of a notice of refund or recalculated assessment issued by the Tax Collector pursuant to Section 5-10-570(B)8. The Taxpayer Problem Resolution Officer shall determine the validity of the fees and other costs within thirty (30) days after receiving the itemization. The Taxpayer problem Resolution Officer's decision is considered a final decision. Either the taxpayer or the Tax Collector may seek judicial review of the Taxpayer Problem Resolution Officer's decision. An action for judicial review, however, shall not be commenced more than thirty (30) days after receipt of the Resolution Officer's decision. (3270/Reso. 6970)

(D) In the event judicial review is not sought pursuant to Subsection (C) above, the City shall pay these fees and other costs awarded as provided in this Section within thirty (30) days after demand by a person who has received an award pursuant to this Section. (3270/Reso. 6970)

(E) Reimbursement to a taxpayer under this Section shall not exceed twenty thousand dollars ($20,000.00) or actual monies spent, whichever is less. The reimbursable attorney or representative fees shall not exceed one hundred dollars ($100.00) per hour or actual monies spent, whichever is less, unless the Taxpayer Problem Resolution Officer determines that an increase in the cost of living or a special factor such as the limited availability of qualified attorneys or representatives for the proceeding involved justifies a higher fees. (3270/Reso. 6970)

(F) For purposes of this Section, "reasonable fees and other costs" means fees and other costs that are based on prevailing market rates for the kind and quality of the furnished services, but not exceeding the amounts actually spent for expert witnesses; the cost of any study, analysis, report, test, or project that is found to be necessary to prepare the party's case; and necessary fees for attorneys or other representatives. (3270/Reso. 6970)

5-10-580: CRIMINAL PENALTIES

(A) It is unlawful for any person to knowingly or willfully:

1. Fail or refuse to make any return required by this Chapter.
2. Fail to remit as and when due the full amount of any tax or additional tax or penalty and interest thereon.
3. Make or cause to be made a false or fraudulent return.
4. Make or cause to be made a false or fraudulent statement in a return, in written support of a return, or to demonstrate or support entitlement to a deduction, exclusion, or credit or to entitle the person to an allocation or apportionment or receipts subject to tax.
5. Fail or refuse to permit any lawful examination of any book, account, record, or other memorandum by the Tax Collector.
6. Fail or refuse to remit any tax collected by such person from his customer to the Tax Collector before the delinquency date next following such collection.
7. Advertise or hold out to the public in any manner, directly or indirectly, that any tax imposed by this Chapter, as provided in this Chapter, is not considered as an element in the price to the consumer.
8. Fail or refuse to obtain a Privilege License or to aid or abet another in any attempt to intentionally refuse to obtain such a license or evade the license fee.
9. Reproduce, forge, falsify, fraudulently obtain or secure, or aid or abet another in any attempt to reproduce, forge, falsify, or fraudulently obtain or secure an exemption from taxes imposed by this Chapter.

(B) The violation of any provision of Subsection (A) above shall constitute a Class 1 Misdemeanor.

(C) In addition to the foregoing penalties, any person who shall knowingly swear to or verify any false or fraudulent statement, with the intent aforesaid, shall be guilty of the offense of perjury and on conviction thereof shall be punished in the manner provided by law.

5-10-590: CIVIL ACTIONS

(A) Liens.

1. Any tax, penalty, or interest imposed under this Chapter which has become final as provided in this Chapter shall become a lien when the City perfects a notice and claim of lien setting forth the name of the taxpayer; the amount of the tax, penalty, and interest; the period or periods for which the same is due and the date of accrual thereof; the amount of the recording costs by the County Recorder in any county in which the taxpayer owns real property; and the documentation and lien processing fees imposed by the City Council; and further stating that the City claims a lien therefor. (2977/Reso. 6722)
2. The notice and claim of lien shall be signed by the City Manager under his official seal or the official seal of the City, and with respect to real property, shall be recorded in the office of the County Recorder of any county in which the taxpayer owns real property, and with respect to personal

property, shall be filed in the office of the Secretary of State. After the notice and claim of lien is recorded or filed, the taxes, penalties, interest, and recording costs and lien processing fees referred to above in the amounts specified therein shall be a lien on all real property of the taxpayer located in such county where recorded and all tangible personal property of the taxpayer within the State, superior to all other liens and assessments recorded or filed subsequent to the recording or filing of the notice and claim of lien. (2977/Reso. 6722)

3. Every tax and any increases, interest, penalties, and recording costs and lien processing fees referred to above shall become from the time the same is due and payable a personal debt from the person liable to the City, but shall be payable to and recoverable by the Tax Collector and may be collected in the manner set forth in Subsection (B) below. (2977/Reso. 6722)

4. Any lien perfected pursuant to this Section shall, upon payment of the taxes, penalties, interest, recording costs and lien processing fees referred to above, and lien release fees imposed by the County Recorder in any county in which the lien was recorded, thereby be released by the Tax Collector in the same manner as mortgages and judgments are released. The Tax Collector may, at his sole discretion, release a lien in part, that is, against only specified property for partial payment of monies due the City. (2977/Reso. 6722)

(B) Actions to Recover Tax. An action may be brought by the City Attorney or other legal advisor to the City designated by the City Council at the request of the Tax Collector in the name of the City to recover the amount of any taxes, penalties, interest, recording costs, lien processing fees, and lien release fees due under this Chapter; provided that: (2977/Reso. 6722)

1. No action or proceeding may be taken or commenced to collect any taxes levied by this Chapter until the amount thereof has been established by assessment, correction, or reassessment and

2. Such collection effort is made or the proceedings begun:

   (a) Within six (6) years after the assessment of the tax;

   (b) Prior to the expiration of any period of collection agreed upon in writing by the Tax Collector and the taxpayer before the expiration of such six- (6-) year period, or any extensions thereof; or

   (c) At any time for the collection of tax arising by reason of a tax lien perfected, recorded, or possessed by the City under this Section.

5-10-595: COLLECTION OF TAXES WHEN THERE IS SUCCESSION IN AND/OR CESSATION OF BUSINESS

(A) In addition to any remedy provided elsewhere in this City Code that may apply, the Tax Collector may apply the provisions of Subsections (B) through (D) below concerning the collection of taxes when there is succession in and/or cessation of business.

(B) The taxes imposed by this Chapter are a lien on the property of any person subject to this Chapter who sells his business or stock of goods or quits his business if the person fails to make a final return and payment of the tax within fifteen (15) days after selling or quitting his business.

(C) Any person who purchases or who acquires by foreclosure, by sale under trust deed or warranty deed in lieu of foreclosure, or by any other method improved real property or a portion of improved real property for which the Privilege Tax imposed by this Chapter has not been paid shall be responsible for payment of such tax as a speculative builder or owner builder as provided in Sections 5-10-416 and 5-10-417.

(1) Any person who is a creditor or an affiliate of creditor, who acquires improved real property directly or indirectly from the creditor's debtor by any means set forth in this Subsection, shall pay the tax based on the amount received by the creditor or its affiliate in a subsequent sale of such improved real property to a party unrelated to the creditor, regardless of when such subsequent sale takes place. Such tax shall be due in the month following the month in which the sale of the improved real property by the creditor or its affiliate occurs. Notwithstanding the foregoing, if the real property meets the definition of partially improved residential real property in Section 5-10-416(A)(4) and all of the requirements of Section 5-10-416(B)(4) are met by the parties to the subsequent sale transaction, then the tax shall not apply to the subsequent sale. (5017)

(2) In the event a creditor or its affiliate uses the acquired improved real property for an business purpose, other than operating the property in the manner in which it was operated, or was intended to be operated, before the acquisition or in any other manner unrelated to selling the property, the tax shall be due. The gross income upon which the tax shall be determined pursuant to Sections 5-10-416 and 5-10-417 shall be the fair market value of the improved real property as of the date of acquisition. The tax shall be due in the month following the month in which such first business use occurs. When applicable, the credit bid shall be deemed to be the fair market value of the property as of the date of acquisition. (5017)

(3) Once the subsequent sale by the creditor or its affiliate has occurred and the creditor or its affiliate has paid the tax due from it pursuant to this Subsection, neither the creditor nor its affiliate, nor any future owner, shall be liable for any outstanding tax, penalties or interest that may continue to be due from the debtor based on the transfer from the debtor to the creditor or its affiliate. (5017)

(4) If the tax liability imposed by either Section 5-10-416 or Section 5-10-417 on the transfer of the improved real property to the creditor or its affiliate, or any part thereof, is paid to the Tax Collector by the debtor subsequent to payment of the tax by the creditor or its affiliate, the amount so paid may constitute a credit, as equitably determined by the Tax Collector in good faith, against the tax imposed on the creditor or its affiliate by either Paragraph 1 or Paragraph 2 of this Subsection. (5017)

(5) Notwithstanding anything in this Chapter to the contrary, if a creditor or its affiliate is subject to tax as described in Paragraph 1 or Paragraph 2 of this Subsection and such creditor or affiliate has not previously been required to be licensed, such creditor or affiliate shall become licensed no later than the date on which the tax is due. (5017)

(D) A person's successors or assignees shall withhold from the purchase money an amount sufficient to cover the taxes required to be paid and interest or penalties due and payable until the former owner produces a receipt from the Tax Collector showing that all City tax has been paid or a certificate stating that no

amount is due as then shown by the records of the Tax Collector. The Tax Collector shall respond to a request from the seller for a certificate within fifteen (15) days by either providing the certificate or a written notice stating why the certificate cannot be issued.

1. If a subsequent audit shows a deficiency arising before the sale of the business, the deficiency is an obligation of the seller and does not constitute a liability against a buyer who has received a certificate from the Tax Collector.

2. If the purchaser of a business or stock of goods fails to obtain a certificate as provided by this Section, he is personally liable for payment of the amount of taxes required to be paid by the former owner on account of the business so purchased with interest and penalties accrued by the former owner or assignees. (2321)

5-10-596: AGREEMENT FOR INSTALLMENT PAYMENTS OF TAX

(A) The City may enter into an agreement with a taxpayer to allow the taxpayer to satisfy a liability for any tax imposed by this Chapter by means of installment payments. The Tax Collector may require a taxpayer who requests an installment payment agreement to complete a financial report in such form and manner as the Tax Collector may prescribe. (3270/Reso. 6970)

(B) The Tax Collector, without notice, may alter, modify, or terminate an installment payment agreement if the taxpayer: (3270/Reso. 6970)

1. Fails to pay an installment at the time the installment payment is due under the agreement. (3270/Reso. 6970)

2. Fails to pay any other tax liability at the time the liability is due. (3270/Reso. 6970)

3. Fails to file any tax report or return at the time the report or return is due. (3270/Reso. 6970)

4. Fails to furnish any information requested by the Tax Collector within thirty (30) days after receiving a written request for such information. (3270/Reso. 6970)

5. Fails to notify the Tax Collector of a material improvement in the taxpayer's financial condition above the income previously reported in the most recent income statement within thirty (30) days after the material improvement.

6. Provides inaccurate, false, or incomplete information to the Tax Collector. (3270/Reso. 6970)

(C) Notwithstanding any installment payment agreement, the Tax Collector may offset any tax refunds against the liabilities provided for in the installment payment agreement, may file and perfect any tax liens, and in the event the taxpayer breaches any term or provision of the installment payment agreement, may engage in collection activities. (3270/Reso. 6970)

(D) The Tax Collector, without notice, may terminate an installment payment agreement if the Tax Collector believes that the collection of tax to which the payment agreement pertains is in jeopardy. (3270/Reso. 6970)

(E) If the Tax Collector determines that the financial condition of a taxpayer has improved, the Tax Collector may alter, modify, or terminate the agreement by providing notice to the taxpayer at least thirty (30) days before the effective date of the action. The notice shall include the reasons why the Tax Collector believes the alteration, modification, or termination is appropriate. (3270/Reso. 6970)

(F) An installment payment agreement shall remain in effect for the term of the agreement except as otherwise provided in this Section. (3270/Reso. 6970)

(G) A taxpayer who is aggrieved by a decision of the Tax Collector to refuse to enter into an installment payment agreement or to alter, modify, or terminate an agreement entered into pursuant to this Section may petition the Taxpayer Problem Resolution Officer to review that determination. The Taxpayer Problem Resolution Officer may stay such alteration, modification, or termination pending its review and may modify or nullify the determination. (3270/Reso. 6970)

(H) The City and the taxpayer may modify any installment payment agreement at any time by entering into a new or modified agreement. (3270/Reso. 6970)

5-10-597: PRIVATE TAXPAYER RULINGS; REQUEST; REVOCATION OR MODIFICATION; DEFINITION

(A) The Tax Collector shall issue private taxpayer rulings to taxpayers and potential taxpayers on request. Each request shall be in writing and shall: (3270/Reso. 6970)

1. State the name, address, and if applicable, taxpayer identifying number of the taxpayer or potential taxpayer who requests the ruling. (3270/Reso. 6970)

2. Describe all facts that are relevant to the requested ruling. (3270/Reso. 6970)

3. State whether, to the best knowledge of the taxpayer or potential taxpayer, the issue or related issues are being considered by the Tax Collector or any other taxing jurisdiction in connection with an active audit, protest, or appeal that involves the taxpayer or potential taxpayer and whether the same request has been or is being submitted to another taxing jurisdiction for a ruling. (3270/Reso. 6970)

4. Be signed by the taxpayer or potential taxpayer who makes the request or by an authorized representative of the taxpayer or potential taxpayer. (3270/Reso. 6970)

(B) A private taxpayer ruling may be revoked or modified by either: (3270/Reso. 6970)

1. A change or clarification in the law that was applicable at the time the ruling was issued, including changes or clarifications caused by regulations and court decisions. (3270/Reso. 6970)

2. Actual written notice by the Tax Collector to the last known address of the taxpayer or potential taxpayer of the revocation or modification of the private taxpayer ruling. (3270/Reso. 6970)

(C) With respect to the taxpayer or prospective taxpayer to whom a private taxpayer ruling is issued, the revocation or modification of a private taxpayer ruling shall not be applied retroactively to tax periods or

tax years before the effective date of the revocation or modification, and the Tax Collector shall not assess any penalty or tax attributable to erroneous advice that is furnished to the taxpayer or potential taxpayer in the private taxpayer ruling if: (3270/Reso. 6970)

1. The taxpayer reasonably relied on the private taxpayer ruling. (3270/Reso. 6970)

2. The penalty or tax did not result either from a failure by the taxpayer to provide adequate or accurate information or from a change in the information. (3270/Reso. 6970)

(D) A private taxpayer ruling may not be relied upon, cited, or introduced into evidence in any proceeding by any taxpayer other than the taxpayer who received the ruling. (3270/Reso. 6970)

(E) A taxpayer may appeal the propriety of a retroactive application of a revoked or modified private taxpayer ruling by filing a written petition with the Tax Collector pursuant to Section 5-10-570 within forty-five (45) days after receiving written notice of the intent to retroactively apply a revoked or modified private taxpayer ruling. (3270/Reso. 6970)

(F) A private taxpayer ruling constitutes the Tax Collector's interpretation of the sections of this Chapter only as they apply to the taxpayer making, and the particular facts contained in, the request. (3270/Reso. 6970)

(G) A private taxpayer ruling which addresses a taxpayer's ongoing business activities will apply only to transactions that occur or tax liabilities that accrue from and after the date of the taxpayer's ruling request. (3270/Reso. 6970)

(H) The Tax Collector shall attempt to issue private taxpayer rulings within forty-five (45) days after receiving the written request and on receiving the facts that are relevant to the ruling. If the ruling is expected to be delayed beyond the forty-five (45) days, the Tax Collector shall notify the requester of the delay and the proposed date of issuance. (3270/Reso. 6970)

(I) Within thirty (30) days after being issued, the Tax Collector shall maintain the private taxpayer ruling as a public record and make it available at a reasonable cost for public inspection and copying. The text of private taxpayer rulings are open to public inspection subject to the confidentiality requirements prescribed by Section 5-10-510. (3270/Reso. 6970)

(J) In this Section, "private taxpayer ruling" means a written determination by the Tax Collector issued pursuant to this Section that interprets and applies one (1) or more sections contained in this Chapter and any applicable regulations. (3270/Reso. 6970)

(K) A private taxpayer ruling issued by the Arizona Department of Revenue pursuant to A.R.S. § 42-139.21 may be relied upon by the taxpayer to whom the ruling was issued and must be recognized and followed by any City in which such taxpayer has obtained a privilege license if the City has not issued a ruling addressing the facts described in the taxpayer's ruling request and the statute at issue in the taxpayer's ruling request is in essence worded and written the same as the applicable section hereunder. (3270/Reso. 6970)

ARTICLE VI USE TAX

5-10-600: USE TAX; DEFINITIONS

For the purposes of this Article only, the following definitions shall apply, in addition to the definitions provided in Article I:

ACQUIRE (FOR STORAGE OR USE): Purchase, rent, lease, or license for storage or use.

RETAILER: Means any person selling, renting, licensing for use, or leasing tangible personal property under circumstances which would render such transactions subject to the taxes imposed in Article IV if such transactions had occurred within this City.

STORAGE (WITHIN THE CITY): The keeping or retaining of tangible personal property at a place within the City for any purpose, except for those items acquired specifically and solely for the purpose of sale, rental, lease, or license for use in the regular course of business or for the purpose of subsequent use solely outside the City.

USE (OF TANGIBLE PERSONAL PROPERTY): Consumption or exercise of any other right or power over tangible personal property incident to the ownership thereof, except the holding for the sale, rental, lease, or license for use of such property in the regular course of business.

5-10-601: RESERVED

Editor's note—Ord. No. 2321 repealed § 5-10-601.

5-10-602: RESERVED

Editor's note—Ord. No. 2321 repealed § 5-10-602.

5-10-610: USE TAX; IMPOSITION OF TAX; PRESUMPTION

(A) There is hereby levied and imposed, subject to all other provisions of this Chapter, an excise tax on the storage or use in the City of tangible personal property for the purpose of raising revenue to be used in defraying the necessary expenses of the City, such taxes to be collected by the Tax Collector.

(B) The tax rate shall be at an amount equal to two percent (2.00%) of the: (3491, 4553, 5478)

1. Cost of tangible personal property, except jet fuel, acquired from a retailer upon every person storing or using such property in this City. (3729/Reso. 7458)

2. Gross income from the business activity upon every person meeting the requirements of Subsection 5-10-620(B) or (C) who is engaged or continuing in the business activity of sales, rentals, leases, or licenses of tangible personal property to persons within the City for storage or use within the City, to the extent that tax has been collected upon such transaction.

3. Cost of the tangible personal property provided under the conditions of a warranty, maintenance, or service contract.

4. Cost of complimentary items provided to patrons without itemized charge by a restaurant, hotel, or other business.

5. Cost of food consumed by the owner or by employees or agents of the owner of a restaurant or bar subject to the provisions of Section 5-10-455 of this Chapter.

(C) It shall be presumed that all tangible personal property acquired by any person who at the time of such acquisition resides in the City is acquired for storage or use in this City until the contrary is established by the taxpayer.

(D) Exclusions. For the purposes of this Article, the acquisition of the following shall not be deemed to be the purchase, rental, lease, or license of tangible personal property for storage or use within the City:

1. Stocks, bonds, options, or other similar materials.

2. Lottery tickets or shares sold pursuant to A.R.S. Article I, Chapter 5, Title 5.

3. Platinum, bullion, or monetized bullion, except minted or manufactured coins transferred or acquired primarily for their numismatic value as prescribed by regulation.

(E) (Reserved)

(F) Additional Imposition. The tax rate shall be at an amount equal to three (3) cents per gallon of jet fuel upon every person storing or using such property in this City. (3729/Reso. 7458)

5-10-620: USE TAX; LIABILITY FOR TAX

The following persons shall be deemed liable for the tax imposed by this Article, and such liability shall not be extinguished until the tax has been paid to this City, except that a receipt from a retailer separately charging the tax imposed by this Chapter is sufficient to relieve the person acquiring such property from further liability for the tax to which the receipt refers:

(A) Any person who acquires tangible personal property from a retailer, whether or not such retailer is located in this City, when such person stores or uses said property within the City.

(B) Any retailer not located within the City selling, renting, leasing, or licensing tangible personal property for storage or use of such property within the City may obtain a license from the Tax Collector and collect the use tax on such transactions. Such retailer shall be liable for the use tax to the extent such use tax is collected from his customers.

(C) Every agent within the City of any retailer not maintaining an office or place of business in this City, when such person sells, rents, leases, or licenses tangible personal property for storage or use in this City, shall at the time of such transaction collect and be liable for the tax imposed by this Article upon the storage or use of the property so transferred, unless such retailer or agent is liable for an equivalent excise tax upon the transaction.

(D) Any person who acquires tangible personal property from a retailer located in the City and such person claims to be exempt from the City privilege or use tax at the time of the transaction and upon which no City privilege tax was charged or paid, when such claim is not sustainable.

(E) Every person storing or using tangible personal property under the conditions of a warranty, maintenance, or service contract.

5-10-630: USE TAX; RECORD KEEPING REQUIREMENTS

All deductions, exclusions, exemptions, and credits provided in this Article are conditional upon adequate proof of documentation as required by Article III or elsewhere in this Chapter.

5-10-640: USE TAX; CREDIT FOR EQUIVALENT EXCISE TAXES PAID TO ANOTHER JURISDICTION

In the event that an equivalent excise tax has been levied and paid upon tangible personal property which is acquired to be stored or used within this City, full credit for any and all such taxes so paid shall be allowed by the Tax Collector, but only to the extent use tax is imposed upon that transaction by this Article.

5-10-650: USE TAX; EXCLUSION WHEN ACQUISITION SUBJECT TO USE TAX IS TAXED OR TAXABLE ELSEWHERE IN THIS CHAPTER; LIMITATION

The tax levied by this Article does not apply to the storage or use in this City of tangible personal property acquired in this City, the gross income from the sale, rental, lease, or license of which were included in the measure of the tax imposed by Article IV of this Chapter; provided, however, that any person who has acquired tangible personal property from a vendor in this City without paying the City privilege tax because of a representation to the vendor that the property was not subject to such tax, when such claim is not sustainable, may not claim the exclusion from such use tax provided by this Section.

5-10-660: USE TAX; EXEMPTIONS

The storage or use in this City of the following tangible personal property is exempt from the Use Tax imposed by this Article:

(A) Tangible personal property brought into the City by an individual who was not a resident of the City at the time the property was acquired for his own use if the first actual use of such property was outside the City, unless such property is used in conducting a business in this City.

(B) Tangible personal property, the value of which does not exceed the amount of one thousand dollars ($1,000) per item, acquired by an individual outside the limits of the City for his personal use and enjoyment.

(C) Charges for delivery, installation, or other customer services as prescribed by regulation.

(D) Charges for repair services as prescribed by regulation.

(E) Separately itemized charges for warranty, maintenance, and service contracts.

(F) Prosthetics.

(G) Income-producing capital equipment.

(H) Rental equipment and rental supplies.

(I) Mining and metallurgical supplies.

(J) Motor vehicle fuel and use fuel which are used upon the highways of this State and upon which a tax has been imposed under the provisions of A.R.S. Article I or II, Chapter 9, Title 28.

(K) Tangible personal property purchased by a construction contractor, but not an owner-builder, when such person holds a valid privilege license for engaging or continuing in the business of construction contracting and where the property acquired is incorporated into any structure or improvement to real property in fulfillment of a construction contract.

(L) Sales of motor vehicles to nonresidents of this State for use outside this State if the vendor ships or delivers the motor vehicle to a destination outside this State.

(M) Tangible personal property which directly enters into and becomes an ingredient or component part of a product sold in the regular course of the business of job printing, manufacturing, or publication of newspapers, magazines, or other periodicals. Tangible personal property which is consumed or used up in a manufacturing, job printing, publishing, or production process is not an ingredient nor component part of a product.

(N) Rental, leasing, or licensing for use of film, tape, or slides by a theater or other person taxed under Section 5-10-410 or by a radio station, television station, or subscription television system.

(O) Food served to patrons for a consideration by any person engaged in a business properly licensed and taxed under Section 5-10-455, but not food consumed by owners, agents, or employees of such business.

(P) Tangible personal property acquired by a qualifying hospital, qualifying community health center, or a qualifying health care organization, except when the property is in fact used in activities resulting in gross income from unrelated business income as that term is defined in 26 U.S.C. Section 512. (3476/Reso. 7209)

(Q) Sales of Food. (IN98-1/Election 3-14-00)

Definitions. (IN98-1/Election 3-14-00)

For the purpose of these rules, unless the context requires otherwise, the following definitions will apply: (IN98-1/Election 3-14-00)

1. "Accessory food items" means coffee, tea, cocoa, carbonated and uncarbonated drinks, candy, condiments and spices, and other nonstaple foods. (IN98-1/Election 3-14-00)

2. "Attendant" means a person, generally the employee of the retailer, who waits on the customers, or tends to their needs. (IN98-1/Election 3-14-00)

3. "Automatic retailer" means a coin-operated mechanical device or system which sells tangible personal property. Such device or system must itself vend or sell the items, i.e., a device or system which delivers the subject of the sale, or by automatic action physically delivers the thing sold. Vending machines are considered automatic retailers. (IN98-1/Election 3-14-00)

4. "Caterer" means a person engaged in the business of serving meals, food, and drinks on the premises used by his customer, but does not include employees hired by the hour or day. (IN98-1/Election 3-14-00)

5. "Delicatessen" means a business which sells specialty food items, such as prepared cold meats, perishable food, and grocery items kept under refrigeration. (IN98-1/Election 3-14-00)

6. "Facilities for the consumption of food" means appropriate furniture, tableware, or parking areas for sitting both in or on the premises of the business, either in or out of a motor vehicle. (IN98-1/Election 3-14-00)

7. "Food." (IN98-1/Election 3-14-00)

(a) Food is defined as those items that may be purchased from an eligible grocery business with food coupons, but in no event may such definition of food include food for consumption on the premises, alcoholic beverages, or tobacco. Even though alcoholic beverages and food for consumption on the premises may be intended for human consumption, such items are not considered food by the statutory provisions. In these rules, items that are considered food by the statutes, and therefore tax exempt if sold by a qualified retailer, shall be referred to as "tax-exempt foods." Other items that may be intended for human consumption but are excluded from the definition of food by the statute, and are therefore subject to the sales tax, shall be referred to herein as "taxable foods." (IN98-1/Election 3-14-00)

(b) "Food" means: Items intended for human consumption. Food is deemed to be intended for human consumption when its intended or ordinary use is as a food for human consumption or is an ingredient used in preparing food for human consumption. For example, even though animal food may be used by some humans, its ordinary or intended use is not for human consumption. Also, even though vitamins and other medication may be ingested, its intended or ordinary use is as a health aid or therapeutic agent or a deficiency corrector and is not intended for use as food. Following is a numeration of items which the City does not consider food for human consumption: (IN98-1/Election 3-14-00)

i. Pet food and supplies. (IN98-1/Election 3-14-00)

ii. Cosmetics and grooming items. (IN98-1/Election 3-14-00)

iii. Tobacco products. (IN98-1/Election 3-14-00)

iv. Soaps and paper products and household supplies. (IN98-1/Election 3-14-00)

v. Dietary supplements such as vitamins or protein supplements. (IN98-1/Election 3-14-00)

vi. Medicines. (IN98-1/Election 3-14-00)

vii. Fertilizer. (IN98-1/Election 3-14-00)

8. "Food for Consumption on the Premises." (IN98-1/Election 3-14-00)

(a) "Food for consumption on the premises" means the following: (IN98-1/Election 3-14-00)

i. Hot prepared food, including products, items, or ingredients of food which are prepared and sold or intended to be sold in a heated condition. This also includes a combination of hot and cold food items or ingredients if a single price is charged by the retailer. (IN98-1/Election 3-14-00)

ii. Hot or cold sandwiches including frozen sandwiches. (IN98-1/Election 3-14-00)

iii. Food served by an attendant to be eaten at tables, chairs, benches, booths, stools, counters, and within parking areas (for in-car consumption). (IN98-1/Election 3-14-00)

iv. Food served with trays, glasses, dishes, or other tableware. Food which is generally selected by the customer from available displays and then taken by the customer to a checkout stand for payment is not considered to be served by the retailer. (IN98-1/Election 3-14-00)

v. Beverages sold in cups, glasses, or open containers. Beverages shall include items such as milk shakes and ice cream floats. (IN98-1/Election 3-14-00)

vi. Food sold by caterers. (IN98-1/Election 3-14-00)

vii. Food sold within the premises of theaters, exhibitions, fairs, amusement parks, bowling alleys, athletic events, and other shows or contests and any businesses which charge admission, entrance, or cover fees for exhibition, amusement, entertainment, or instruction. While food for consumption on the premises includes any food sold within the premises of certain businesses, including businesses that charge admission, entrance, or cover fees for exhibition, amusement, entertainment, or instruction, food for consumption on the premises does not include sales of tax-exempt food by a qualified retailer within the premises of a full-time educational institution that charges tuition for a full course of studies. (IN98-1/Election 3-14-00)

(b) Any item enumerated in subparagraph (a) which is sold on a take-out or to-go basis is still considered to be food for consumption on the premises and therefore taxable. (IN98-1/Election 3-14-00)

9. "Food intended for home consumption" means food, other than food for consumption on the premises, which is usually intended to be consumed at home. Unless the taxpayer can establish to the contrary, food delivered by a retailer to an office or other business establishment shall not be considered food intended for home consumption. (IN98-1/Election 3-14-00)

10. "Home" means a natural person's usual or habitual dwelling place, including rest homes, nursing homes, jails, and other such institutions. (IN98-1/Election 3-14-00)

11. "Premises" means the total space and facilities, including buildings, grounds, and parking lot that are made available for use by the retailer for the purpose of consuming food sold by such retailer. (IN98-1/Election 3-14-00)

12. "Qualified Retailer." (IN98-1/Election 3-14-00)

(a) A qualified retailer or qualified retail business is one that may be eligible to sell tax-exempt food without including the sale of tax-exempt food items in its taxable base. A retailer other than a qualified retailer must pay a tax measured by the sale of otherwise exempt food even though the sale of such items would be exempt if sold by a qualified retailer. (IN98-1/Election 3-14-00)

(b) Qualified retailers are: (IN98-1/Election 3-14-00)

i. An eligible grocery business, which includes retailers who are eligible to participate in the United States Department of Agriculture Food Stamp Program, whether such retailer actually participates in the Food Stamp Program. If a retailer is eligible to participate in the Food Stamp Program, but does not participate in such program, such retailer may only be an eligible grocery business if the retailer first makes application to the Arizona Department of Revenue (and is approved by the State) to sell food tax exempt. Examples of retailers that might be considered eligible grocery businesses include: (IN98-1/Election 3-14-00)

(1) Grocery stores; (IN98-1/Election 3-14-00)

(2) Convenience stores; (IN98-1/Election 3-14-00)

(3) Butcher shops; (IN98-1/Election 3-14-00)

(4) Bakeries; (IN98-1/Election 3-14-00)

(5) Dairy stores; (IN98-1/Election 3-14-00)

(6) Cheese stores; (IN98-1/Election 3-14-00)

(7) Farmer's markets. (IN98-1/Election 3-14-00)

ii. Retailers whose primary business is not the sale of food, but who sell food in a manner similar to grocery stores. This category includes stores such as department stores, drug stores, and gas stations. (IN98-1/Election 3-14-00)

iii. Retailers who sell food and who do not provide any facilities for consumption of food on the premises. This category may include certain health food stores, and certain outlets retailing soda and other similar beverages in bottles or cans, but not cups. (IN98-1/Election 3-14-00)

iv. Delicatessen business, if such retailer conducts his business so that the sale of tax-exempt foods and other taxable items may be separately accounted for, through, for example, the use of two (2) cash registers, or a cash register with at least two (2) tax-computing keys which are used to record taxable and tax-exempt sales. (IN98-1/Election 3-14-00)

v. A retailer who is a street or sidewalk vendor who uses a pushcart, mobile facility, motor vehicle, or other such conveyance. Such retailers include: (IN98-1/Election 3-14-00)

(1) Snackmobile; (IN98-1/Election 3-14-00)

(2) Chuck wagon; (IN98-1/Election 3-14-00)

(3) Mobile hot dog stands. (IN98-1/Election 3-14-00)

vi. Vending machines and other automatic retailers. (IN98-1/Election 3-14-00)

13. "Staple food" means those food items intended for home preparation and consumption, which includes meats, poultry, fish, bread and bread stuffs, cereals, vegetables, fruits, fruit and vegetable juices, and dairy products. (IN98-1/Election 3-14-00)

14. "Taxable foods" are items which may be intended for human consumption, but are still subject to the sales tax when sold. Examples of taxable foods would be alcoholic beverages, and food for consumption on the premises. (IN98-1/Election 3-14-00)

15. Tax-Exempt Foods. (IN98-1/Election 3-14-00)

(a) "Tax-exempt foods" are generally those items of food intended for home consumption which, if purchased from an eligible grocery business, would be eligible as of January 1, 1998, to be purchased with food coupons issued by the United States Department of Agriculture. (IN98-1/Election 3-14-00)

(b) Tax-exempt foods shall also include any new items of food intended for human consumption which would have been eligible for purchase with food coupons issued by the United States Department of Agriculture if such items would have existed for sale on January 1, 1998. (IN98-1/Election 3-14-00)

(c) The following are examples of items which the City will consider as tax-exempt food: (IN98-1/Election 3-14-00)

Bread and flour products

Vegetables and vegetable products

Candy and confectionery

Sugar, sugar products and substitutes

Cereal and cereal products

Butter, oleomargarine, shortening, and cooking oils

Cocoa and cocoa products

Coffee and coffee substitutes

Milk and milk products

Eggs and egg products

Tea

Meat and meat products

Spices, condiments, extracts, and food colorings

Fish and fish products

Frozen foods

Soft drinks and soda (including bottles on which a deposit is required to be paid)

Fruit and fruit products

Packaged ice cream products

Dietary substitutes

Ice cubes and bottled water including carbonated and mineral water

Purchases of seed and plants for use in gardens to produce food items for personal consumption

16. "Two tax-computing keys" shall mean the mechanical or electronic function in a cash register which can separately record and accumulate taxable and nontaxable items without having the items presorted. (IN98-1/Election 3-14-00)

(R) The following tangible personal property purchased by persons engaging or continuing in the business of farming, ranching, or feeding livestock, poultry, or ratites: (2977/Reso. 6722)

1. Seed, fertilizer, fungicides, seed treating chemicals, and other similar chemicals.

2. Feed for livestock, poultry, or ratites, including salt, vitamins, and other additives to such feed. (2977/Reso. 6722)

3. Livestock, poultry, or ratites purchased or raised for slaughter, but not including livestock purchased or raised for production or use, such as milch cows, breeding bulls, laying hens, riding or work horses. (2977/Reso. 6722)

4. (Reserved)

This exemption shall not be construed to include machinery, equipment, fuels, lubricants, pharmaceuticals, repair and replacement parts, or other items used or consumed in the running, maintenance, or repair of machinery, equipment, buildings, or structures used or consumed in the business of farming, ranching, or feeding of livestock, poultry, or ratites. (2977/Reso. 6722)

(S) Groundwater-measuring devices required by A.R.S. § 45-604.

(T) Paintings, sculptures, or similar works of fine art, provided that such works of fine art are purchased from the original artist and provided further that "art creations," such as jewelry, macramé, glasswork, pottery, woodwork, metalwork, furniture, and clothing, when such "art creations" have a dual purpose, both aesthetic and utilitarian, are not exempt, whether purchased from the artist or from another.

(U) Aircraft acquired for use outside the State as prescribed by regulation. (2977/Reso. 6722)

(V) Sales of food products by producers as provided for by A.R.S. § 3-561, § 3-562, and § 3-563. (4616)

(W) (Reserved)

(X) Sales of food and drink to a person who is engaged in business that is classified under the restaurant classification and that provides such food and drink without monetary charge to its employees for their own consumption on the premises during such employees' hours of employment. (5190)

(Y) (Reserved)

(Z) Tangible personal property used or stored by this City.

(AA) Tangible personal property used in remediation contracting as defined in Section 5-10-100 and Regulation 5-10-100.5. (3420/Reso. 7134)

(BB) Materials that are purchased by or for publicly funded libraries including school district libraries, charter school libraries, community college libraries, state university libraries, or federal, state, county, or municipal libraries for use by the public as follows: (3476/Reso. 7209)

1. Printed or photographic materials. (3476/Reso. 7209)

2. Electronic or digital media materials. (3476/Reso. 7209)

(CC) Food, beverages, condiments and accessories used for serving food and beverages to a commercial airline, as defined in A.R.S. § 42-5061(A)(49), that serves the food and beverages to its passengers, without additional charge, for consumption in flight. For the purposes of this Subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks or other disposable containers, or other items which facilitate the consumption of the food. (3476,4616/Reso. 7209)

(DD) Wireless telecommunication equipment that is held for sale or transfer to a customer as an inducement to enter into or continue a contract for telecommunication services that are taxable under Section 5-10-470. (3476/Reso. 7206)

(EE) (Reserved)

(FF) Alternative fuel as defined in A.R.S. § 1-215, by a used oil fuel burner who has received a Department of Environmental Quality permit to burn used oil or used oil fuel under A.R.S. § 49-926 or § 49-480. (3476/Reso. 7209)

(GG) Food, beverages, condiments and accessories to a public educational entity pursuant to any of the provisions of A.R.S. Title 15, including a regularly organized private or parochial school that offers an educational program for grade twelve or under which may be attended in substitution for a public school pursuant to A.R.S. 15-802; to the extent such items are to be prepared or served to individuals for consumption on the premises of a public educational entity during school hours. For the purposes of this subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks or other disposable containers, or other items which facilitate the consumption of the food. (3476, 5190/Reso. 7209)

(HH) Personal hygiene items purchased by a person engaged in the business of and subject to tax under Section 5-10-444 of this Code if the tangible personal property is furnished without additional charge to and intended to be consumed by the person during his occupancy. (3476/Reso. 7209)

(II) The diversion of gas from a pipeline by a person engaged in the business of operating a natural or artificial gas pipeline, for the sole purpose of fueling compressor equipment to pressurize the pipeline, is not a sale of the gas to the operator of the pipeline. (3729/Reso. 7458)

(JJ) Food, beverages, condiments, and accessories purchased by or for a nonprofit charitable organization that has qualified as an exempt organization under 26 U.S.C. Section 501(c)(3) and regularly serves meals to the needy and indigent on a continuing basis at no cost. For purposes of this Subsection, "accessories" means paper plates, plastic eating utensils, napkins, paper cups, drinking straws, paper sacks, or other disposable containers, or other items which facilitate the consumption of food. (3729/Reso. 7458)

(KK) Sales of motor vehicles that use alternative fuel if such vehicle was manufactured as a diesel fuel vehicle and converted to operate on alternative fuel and equipment that is installed in a conventional diesel fuel motor vehicle to convert the vehicle to operate on an alternative fuel, as defined in A.R.S. § 1-215. (3729, 4616/Reso. 7458, 3921)

(LL) The storage, use or consumption of tangible personal property in the city or town by a school district or charter school. (5059)

(MM) Sales or other transfers of renewable energy credits or any other unit created to track energy derived from renewable energy resources. For the purposes of this paragraph, "renewable energy credit" means a unit created administratively by the Corporation Commission or governing body of a public power utility to track kilowatt hours of electricity derived from a renewable energy resource or the kilowatt hour equivalent of conventional energy resources displaced by distributed renewable energy resources. (5190)

(NN) Sales of magazines or other periodicals or other publications by this state to encourage tourist travel. (5190)

(OO) Sales of paper machine clothing, such as forming fabrics and dryer felts, sold to a paper manufacturer and directly used or consumed in paper manufacturing. (5190)

(PP) Sales of overhead materials or other tangible personal property that is used in performing a contract between the United States government and a manufacturer, modifier, assembler or repairer, including property used in performing a subcontract with a government contractor who is a manufacturer, modifier, assembler or repairer, to which title passes to the government under the terms of the contract or subcontract. (5190)

(QQ) Sales of coal, petroleum, coke, natural gas, virgin fuel oil and electricity sold to a qualified environmental technology manufacturer, producer or processor as defined in A.R.S. § 41-1514.02 and directly used or consumed in the generation or provision of on-site power or energy solely for environmental technology manufacturing, producing or processing or environmental protection. This paragraph shall apply for twenty full consecutive calendar or fiscal years from the date the first paper manufacturing machine is placed in service. In the case of an environmental technology manufacturer, producer or processer who does not manufacture paper, the time period shall begin with the date the first manufacturing, processing or production equipment is placed in service. (5190)

(RR) Sales or gross income derived from sales of machinery, equipment, materials and other tangible personal property used directly and predominantly to construct a qualified environmental technology manufacturing, producing or processing facility as described in A.R.S. § 41-1514.02. This Subsection applies for ten full consecutive calendar or fiscal years after the start of initial construction. (5190)

ARTICLE VII ACCESS TO CARE PROGRAM

5-10-700: LEGISLATIVE INTENT

This ordinance is adopted for the purpose of promoting the health, safety and general welfare of the residents of the City of Mesa by:

(A) Establishing a funding source for the non-federal share of Arizona Health Care Cost Containment System (AHCCCS) payments to acute care hospitals within the City of Mesa that provide significant amounts of uncompensated care to uninsured and low income patients, pursuant to S.B. 1357; (5150)

(B) Establishing a funding source for the non-federal share of the cost of an expansion of coverage through the AHCCCS program to uninsured individuals, pursuant to S.B. 1357; (5150)

(C) Promoting access to health care for residents of the City of Mesa, including low-income, uninsured and otherwise vulnerable populations, by ensuring the financial stability and viability of acute care hospital systems in the City; and (5150)

(D) Promoting economic development and protecting and expanding jobs in the health sector and related fields within the City of Mesa. (5150)

5-10-701: DEFINITIONS

For the purposes of this Article only, the following definitions shall apply: (5150)

ACCESS TO CARE FUND: means the fund established pursuant to Section 5-10-705. (5150)

ACCESS TO CARE FUND REMAINDER ("ATC FUND REMAINDER"): means the amount remaining in the Access to Care Fund after reservation of the administrative costs pursuant to Section 5-10-725 (A). (5150)

ACCESS TO CARE TAX ("ATC TAX"): means the tax imposed pursuant to Section 5-10-710. (5150)

ACCESS TO CARE PROGRAM: means the program consisting of the ATC tax, the uncompensated care payments, and related expanded AHCCCS coverage, to be established by AHCCCS and approved by CMS. (5150)

ADMINISTRATIVE COSTS: means the costs to the tax collector of the collecting, administering, enforcing and transferring the ATC tax, which may include: time, materials, overhead, and litigation costs. (5150)

AHCCCS: means the Arizona Health Care Cost Containment System, an agency of the state, which administers the medicaid program in Arizona under Title XIX of the SSA. (5150)

CFR: means the Code of Federal Regulations. (5150)

CMS: means the Centers for Medicare and Medicaid Services, a federal agency within the U.S. Department of Health and Human Services. (5150)

COVERAGE AMOUNT: means an amount specified by AHCCCS to pay for the non-federal share of the expanded coverage that is part of the Access to Care Program. (5150)

DELINQUENCY DATE: means the day after the due date. (5150)

DUE DATE: means that day that is 30 days prior to the end of each quarter during the UC payment period, unless otherwise specified pursuant to Section 5-10-715 (E). (5150)

EFFECTIVE DATE: means 30 days after the date of passage of this ordinance. (5150)

INPATIENT DISCHARGES: means the annual number of days of inpatient hospital care provided to patients, calculated pursuant to Section 5-10-710. (5150)

MEDICARE COST REPORT: means the hospital cost report required for hospitals participating in the Medicare Program under Title XVIII of the SSA, using CMS form 2552-96. (5150)

NON-FEDERAL SHARE: means the portion of AHCCCS expenditures that are not reimbursed by the federal government pursuant to Section 1903 of the SSA and are required to be paid for from state or local sources, pursuant to Section 1903(A)(2) of the SSA. (5150)

PARTICIPATING HOSPITAL: means a health care institution located in the City of Mesa that is licensed as a hospital by the Arizona Department of Health Services under A.R.S. Title 36, Chapter 4, Article 2. (5150)

QUARTER: means a three month period from January to March, April to June, July to September, or October to December. (5150)

S.B. 1357: means Senate Bill 1357, enacted by the Arizona Legislature, during its Fiftieth Legislature, First Regular Session of 2011. (5150)

SAFETY NET CARE POOL: means the funding pool established pursuant to the AHCCCS demonstration project authorized under Section 1115 of the SSA. (5150)

SHORTFALL AMOUNT: means the amount of any ATC tax payment that a participating hospital owes but does not pay by the due date. (5150)

SSA:: means the Social Security Act. (5150)

TRANSFER DATE: means the date that is 15 days prior to the end of each quarter during the UC payment period, unless AHCCCS specifies a different date, for transfer of funds from the City to AHCCCS pursuant to Section 5-10-725. (5150)

TRANSFER FUNDS: means the funds to be transferred to AHCCCS as specified in Section 5-10-725(B). (5150)

UNCOMPENSATED CARE PAYMENTS: means payments, to be administered by AHCCCS and approved by CMS, to participating hospitals to reimburse some or all of their uncompensated care costs of treating AHCCCS and uninsured patients. (5150)

UC PAYMENT TRANSFER AMOUNT: means the ATC fund remainder minus the coverage amount, to be used to pay for the non-federal share of uncompensated care payments to participating hospitals for the current quarter, except that the UC payment transfer amount shall not exceed the amount specified by AHCCCS as required to fund uncompensated care payments for the quarter. (5150)

UC PAYMENT PERIOD: means the period beginning on the first day of the period for which CMS approves uncompensated care payments for participating hospitals and ending on the last day of the period for which AHCCCS is authorized by state statute and CMS to make uncompensated care payments to participating hospitals. (5150)

5-10-705: CREATION OF ACCESS TO CARE FUND

(A) An Access to Care Fund is created as a restricted subfund within the City. The fund shall be sued to account for the Access to Care Program monies and shall contain only the following: (5150)

1. Proceeds from ATC tax payments; (5150)
2. Penalties and interest for late ATC tax payments; and (5150)
3. Monies repaid to the City by AHCCCS in connection with the ATC tax or the uncompensated care payments. (5150)

(B) No monies in the Access to Care Fund shall revert to, or lapse into any other fund, including the City General Fund, except the amounts for administrative costs as provided for in Section 5-10-720 (A) and amounts from penalties and interest as provided for in Section 5-10-720 (E). (5150)

5-10-710: IMPOSITION OF ACCESS TO CARE TAX AND RATE

(A) As of the effective date, there is hereby levied and imposed an ATC tax equal to $461.91 per inpatient discharge for each participating hospital. (5150)

(B) Inpatient discharges for each participating hospital is calculated as the sum of the following lines from Worksheet S-3, Part I, Column 15, of the participating hospital's Medicare cost report lines 12, 14 & 14.01. (5150)

(C) All data required to calculate the ATC tax and its application shall be derived from each participating hospital's Medicare cost reports for the hospital fiscal year ending between April 1, 2010 and March 31, 2011. (5150)

5-10-715: COLLECTION OF TAX

(A) Except as specified in (E) and Section 5-10-735, the ATC tax shall be due and payable on the due date on a quarterly basis with a tax payment for each quarter within the UC payment period. Each tax payment shall equal one-fourth of the total amount calculated pursuant to Section 5-10-710 (A), except that the tax payment amount shall be prorated if the UC payment period begins on a day other than the first day of a quarter or ends on a day other than the last day of a quarter, based on the number of days in such quarter that are within the UC payment period. (5150)

(B) If the UC payment period is longer than one year, additional quarterly tax payments shall be due, calculated in the manner specified in (A). (5150)

(C) Each participating hospital shall file an ATC tax form with the City in such form and on such date as the Tax Collector shall specify, providing the data required to determine the amount of the ATC tax payment due. The Tax Collector may require the tax form to be submitted prior to the date on which all conditions specified in Section 5-10-735 have occurred. (5150)

(D) If any participating hospital fails to remit the full amount of the tax payment owed by the due date, the Tax Collector shall promptly notify the participating hospital of the shortfall amount. The participating hospital shall remit to the Tax Collector forthwith the shortfall amount along with penalties and interest due pursuant to Section 5-10-750. (5150)

(E) The Tax Collector shall adjust the due date(s) for any ATC tax payments due within the UC payment period prior to CMS approval as necessary to implement the Access to Care Program as soon as practicable after CMS approval described in Section 5-10-735 and as agreed to with AHCCCS. The Tax Collector shall provide written notice to the participating hospitals indicating the due date(s) for the applicable tax payments at least 5 days prior to such due date(s). (5150)

(F) The Tax Collector shall account for all ATC tax payments and all shortfall amounts remitted pursuant to Section 5-10-715 (D) in the Access to Care Fund. (5150)

5-10-720: USE OF ACCESS TO CARE TAX FUND

Monies in the Access to Care Fund may be utilized for the following purposes: (5150)

(A) Up to $6,250.00 of the collected tax payments each quarter may be used by the City to cover the administrative costs. Such amount may be increased by the City upon written notice to the participating hospitals 30 days prior to the next transfer date if the City incurs unanticipated costs including costs for administration, litigation or bankruptcy proceedings related to the tax. (5150)

(B) To transfer funds to AHCCCS pursuant to Section 5-10-725 and an intergovernmental agreement for the purpose of providing local funding for the non-federal share of: (5150)

1. Uncompensated care payments to participating hospitals; and (5150)

2. Expanded health care coverage to individuals through AHCCCS. (5150)

(C) To refund to participating hospitals any ATC tax overpayment or amounts otherwise collected in error; (5150)

(D) To refund to participating hospitals pursuant to Section 5-10-745 any amounts repaid by AHCCCS to the Tax Collector after recoupment of uncompensated care payments funded by tax proceeds transferred by the City; (5150)

(E) With respect only to penalties and interest collected pursuant to Section 5-10-750, to transfer to the City's General Fund to be used for any City-authorized purpose or any budgeted purpose consistent with the General Fund rules. (5150)

5-10-725: TRANSFER TO AHCCCS

(A) From the ATC tax payments collected each quarter, the Tax Collector shall retain the administrative costs. (5150)

(B) From the ATC Fund Remainder, the Tax Collector shall transfer to AHCCCS each quarter on the transfer date the transfer funds, except as provided under Subsections (C) or (D). The transfer funds are equal to the sum of: coverage amount + UC payment transfer amount. (5150)

(C) Under no circumstances shall the Tax Collector be required to transfer a total amount of transfer funds greater than the ATC Fund Remainder. If the transfer funds required under Subsection (B) exceed the fund remainder, the UC payment transfer amount shall be reduced such that the amount of the transfer funds equals the ATC Fund Remainder. (5150)

(D) In the event that the ATC Fund Remainder is greater than the transfer funds such that there are amounts remaining in the fund after a quarterly transfer, the Tax Collector shall return to the participating hospitals within 15 days after the transfer date their pro rata share of the ATC Fund Remainder based on the ATC quarterly tax amounts paid under Section 5-10-715 (A). The pro-rata share shall be based on the prior quarter. Additionally, in the event a participating hospital owes the Tax Collector monies for the previous or current quarter, the Tax Collector shall offset that participating hospital's pro-rata share by the amount owed. (5150)

(E) In the event that a participating hospital owes a shortfall amount pursuant to Section 5-10-715 (D), the Tax Collector shall not transfer to AHCCCS any such shortfall amounts paid until 95 business days after receipt of the shortfall amount from the participating hospital. The Tax Collector shall transfer shortfall amounts to AHCCCS on the next transfer date after the 95 day period along with the transfer funds for the then-applicable quarter. In the case of shortfall amounts from the last ATC tax payment owed before the ATC tax terminates, the Tax Collector shall transfer the shortfall amounts within 15 days after the 95 day period. (5150)

5-10-730: NO IMPACT ON PATIENTS OR PAYERS

Participating hospitals shall not pass the cost of the tax on to patients or third party payers liable to pay for the care on a patient's behalf. (5150)

5-10-735: REQUIREMENTS FOR IMPLEMENTATION

The tax shall not be due or payable unless and until all of the following occurs: (5150)

(A) CMS approves the uncompensated care payments and the ATC tax; and (5150)

(B) AHCCCS agrees to return to the City the non-federal share of any uncompensated care payments recouped by AHCCCS from participating hospitals, unless such recouped payments are redistributed by AHCCCS to other participating hospitals pursuant to the terms and conditions of the federal approval of the uncompensated care payments; and (5150)

(C) The City enters into an intergovernmental agreement with AHCCCS. (5150)

5-10-740: TERMINATION

(A) The ATC tax shall terminate on September 30, 2013, unless the UC payment period extends beyond that date due to an extension of AHCCCS' authorization to make uncompensated care payments to participating hospitals and AHCCCS' authorization to accept City funds for the non-federal share of AHCCCS payments pursuant to S.B. 1357. In the event that the ATC tax extends beyond September 30, 2013, the ATC tax shall terminate on the earliest of: (5150)

1. The date on which AHCCCS' authorization to make uncompensated care payments to participating hospitals ends; or (5150)

2. The date on which AHCCCS' authorization to accept City funds for the non-federal share of AHCCCS payments pursuant to S.B. 1357 expires; or (5150)

3. December 31, 2013. (5150)

(B) The ATC tax shall terminate prior to the date in Subsection (A) upon any of the following conditions: (5150)

1. The ATC tax is determined not to be a permissible source of non-federal share funding; or (5150

2. The ATC tax is otherwise determined to be unlawful under city, state or federal law; or (5150)

3. A statewide hospital tax or other assessment is adopted and takes effect. (5150)

5-10-745: IMPACT OF TERMINATION OR RECOUPMENT

(A) In the event that the AHCCCS refunds all or part of any transfers made to it pursuant to Section 5-10-725 (B), the City shall return to the participating hospitals, within 15 days of return of the funds from AHCCCS, their pro rata share of the returned funds based on ATC tax amounts paid under Section 5-10-710. (5150)

(B) In the event that the ATC tax terminates under Section 5-10-740, the Tax Collector shall refund to each participating hospital within 15 days of termination the pro rata portion of any monies remaining in the ATC fund that have not been spent or irrevocably allocated for their designated purposes. (5150)

5-10-750: INTEREST AND PENALTIES

(A) In the event a participating hospital owes a shortfall amount to the Tax Collector pursuant to Section 5-10-715 (D), the participating hospital must pay interest on such shortfall amount from the delinquency date until it is remitted to the Tax Collector. The interest rate shall be determined pursuant to Section 5-10-540. (5150)

(B) In addition to interest being assessed under Subsection (A), any participating hospital that fails to pay any of the ATC tax imposed by this Article which were due or found to be due before the delinquency date shall be subject to and shall pay two (2) percent civil penalties on the shortfall amount. (5150)

(C) Penalties provided for under Section 5-10-540 are not applicable. (5150)

(D) Penalties and interest imposed by this Section are due and payable upon notice by the Tax Collector. (5150)

5-10-755: EXAMINATION OF BOOKS AND RECORDS; FAILURE TO PROVIDE RECORDS

(A) The Tax Collector and the participating hospitals shall have all the rights and obligations as stated in Section 5-10-510. (5150)

(B) Nothing in this ordinance may be read as a waiver of any rights the Tax Collector may have under the Code or by City Charter with regards to the ability to enforce and/or collect all monies owed by the participating hospitals except where expressly stated. (5150)

(C) All other provisions in the Code or City Charter are applicable unless expressly stated otherwise. (5150)

TAX REGULATIONS

5-10-100.1: BROKERS

(A) For the purposes of proper administration of this Chapter and to prevent evasion of taxes imposed, brokers shall wherever necessary be treated as taxpayers for all purposes and shall file a return and remit the tax imposed on the activity on behalf of the principal. No deduction shall be allowed for any commissions or fees retained by such broker, except as provided in Section 5-10-405 relating to advertising commissions.

(B) Brokers for Vendors. A broker acting for a seller, lessor, or other similar person deriving gross income in a category upon which this Chapter imposes a tax shall be liable for such tax, even if his principal would not be subject to the tax if he conducted such activity in his own behalf by reason of the activity being deemed a "casual" one. For example:

1. An auctioneer or other sales agent of tangible personal property is subject to the tax imposed upon retail sales, even if such sales would be deemed "casual" if his principal had sold such items himself.

2. A property manager is subject to the tax imposed upon rental, leasing, or licensing of real property, even if such rental, leasing, or licensing would be deemed "casual" if his principal managed such real property himself.

(C) Brokers for Vendees. A broker acting solely for a buyer, lessee, tenant, or other similar person who is a party to a transaction which may be subject to the tax shall be liable for such tax and for filing a return in connection with such tax only to the extent his principal is subject to the tax.

(D) The liability of a broker does not relieve the principal of liability, except upon presentation to the Tax Collector of proof of payment of the tax, and only to the extent of the correct payment. The broker shall be relieved of the responsibility to file and pay taxes upon the filing and correct payment of such taxes by the principal.

(E) (Reserved) (2321)

(F) Location of Business. Retail sales by brokers acting for another person shall be deemed to have occurred at the regular business location of the broker, in a manner similar to that used to determine "out-of-city sales"; provided, however, that an auctioneer is deemed to be engaged in business at the site of each auction. (2321)

5-10-100.2: DELIVERY, INSTALLATION, OR OTHER DIRECT CUSTOMER SERVICES

(A) Delivery charges exist only when the total charges to the ultimate customer or consumer include, as separately charged to the ultimate customer, charges for delivery to the ultimate consumer, whether the place of delivery is within or without the City, and when the taxpayer's books and records show the separate delivery charges.

1. Identification to the customer or consumer that the listed price has "delivery included" or other similar expression is insufficient to show the delivery as a separate charge. Only the separately stated charge for the delivery shall be deemed a "delivery charge."

2. Freight-In. Charges for delivery from place of production or the manufacturer to the vendor, either directly or through a chain of wholesalers or jobbers or other middlemen, are deemed "freight-in" and are not considered delivery.

(B) "Installation," as used in this definition, relates only to tangible personal property. Installation to real property is deemed construction contracting in this Chapter. Examples of installation relating to tangible personal property are: installing a radio in an automobile; applying sun screens on the windows of a boat; installing cabinets, carpeting, or "built-in appliances" to a camper or motorized recreational vehicle.

(C) Repair of tangible personal property is not included in this definition. See Regulation 5-10-465.1.

(D) "Direct customer services" are services other than repair rendered directly to the customer. Services or labor provided by any person prior to the transfer of tangible personal property to the customer or consumer are not included in this definition. In the following examples, the requirements of Subsection (E) below are referred to by the words identify or identification.

1. A retailer sells a customer a one hundred-dollar ($100.00) "plug-in" appliance, with a twenty-five-dollar ($25.00) delivery and installation charge. If the retailer identifies the twenty-five-dollar ($25.00) delivery and installation charge, it is a charge for direct customer services.

2. A caterer charges his customer one thousand dollars ($1,000.00) for the food and drink served, three hundred dollars ($300.00) for setup and site cleanup, and five hundred dollars ($500.00) for bartender and waiters. If all charges are properly identified, only the three hundred dollars ($300.00) for setup and cleanup is a charge for direct customer services, and the one thousand five hundred dollars ($1,500.00) for food and service is restauranting gross income.

3. Persons engaged in engraving on wood, metal, stone, etc. or persons engaged in retouching photographs or paintings may consider such charges for labor as direct customer services.

4. All charges by a photographer resulting in the sale of a photograph (sitting charges, developing, making enlargements, retouching, etc.) for services that occur prior to transfer of tangible personal property are not direct customer services.

5. An equipment rental company charging twenty-five dollars ($25.00) for delivery may consider such delivery charge as a charge for direct customer service only if such charge is properly identified.

6. Even if identified, charges for labor incurred in the production of any manufactured article or of a custom-made article (jewelry, artwork, tailoring, draperies, etc.) are not included in this definition, as such labor occurs prior to the transfer of property.

(E) Record Keeping Requirements.

1. Any person who engages in transactions involving these services must:

(a) Separately bill, invoice, or charge the customer for such services in a manner by which the customer or consumer may readily identify the specific dollar amount of the service charge; and

(b) Maintain business books and records in a manner in which the separate charge for such services can be clearly identified to the satisfaction of the Tax Collector.

2. Rendering a statement to a customer for a transaction involving such services and the transfer of tangible personal property which only indicates the total amount of the charges with words such as "services included" or "charge includes labor and parts" or a similar expression does not satisfy the requirements of this Subsection.

5-10-100.3: RETAILERS

When in the opinion of the Tax Collector it is necessary for efficient administration of this Chapter, he may regard any salesman, representative, peddler, canvasser, or agent of any dealer, distributor, supervisor, or employer under whom he operates or from whom he obtains tangible personal property for sale, rental, lease, or license as a retailer for the purposes of this Chapter, irrespective of whether he is making sales, rentals, leases, or licenses on his own behalf or on behalf of others. The Tax Collector may also regard such dealer, distributor, supervisor, or employer as a retailer for the purposes of this Chapter.

5-10-100.4: OUT-OF-CITY/OUT-OF-STATE SALES; SALES TO NATIVE AMERICANS

Sales to Native Americans or tribal councils by vendors located within the City shall be deemed sales within the City, unless all of the following conditions exist: (3729/Reso. 7458)

1. The vendor has properly accounted for such sales, in a manner similar to the record keeping requirements for out-of-City sales; and

2. All of the following elements of the sale exist:

(a) Solicitation and placement of the order occurs on the reservation;

(b) Delivery is made to the reservation; and

(c) Payment originates from the reservation. (2321)

5-10-100.5: REMEDIATION CONTRACTING

The following activities are considered remediation contracting and are exempt: (3420/Reso. 7134)

1. Excavation, transportation, treatment, and/or disposal of contaminated soil for purposes of site remediation (rather than characterization); (3420/Reso. 7134)
2. Installation of groundwater extraction and/or injection wells for purposes of groundwater remediation; (3420/Reso. 7134)
3. Installation of pumps and piping into groundwater extraction wells for remediation purposes; (3420/Reso. 7134)
4. Installation of vapor extraction wells for the purpose of soil or groundwater remediation; (3420/Reso. 7134)
5. Construction of remediation systems, such as groundwater treatment plants, vapor extraction systems, or air injection systems; (3420/Reso. 7134)
6. Connection of remediation systems to utilities; (3420/Reso. 7134)
7. Abandonment of groundwater or vapor extraction wells; (3420/Reso. 7134)
8. Removal/demolition of remediation systems; (3420/Reso. 7134)
9. Capping/closure construction activities; and (3420/Reso. 7134)
10. Service or handling charges for subcontracted remediation contracting activities. (3420/Reso. 7134)

5-10-110.1: RESERVED

Editor's note—Ord. No. 2977/Reso. 6722 repealed § 5-10-110.1.

5-10-110.2: RESERVED

Editor's note—Ord. No. 2977/Reso. 6722 repealed § 5-10-110.2.

5-10-115.1: COMPUTER HARDWARE, SOFTWARE, AND DATA SERVICES

(A) Definitions.

1. **COMPUTER HARDWARE:** (Also called computer equipment or peripherals.) The components and accessories which constitute the physical computer assembly, including but not limited to: central processing unit, keyboard, console, monitor, memory unit, disk drive, tape drive or reader, terminal, printer, plotter, modem, document sorter, optical reader and/or digitizer, network.
2. **COMPUTER SERVICES AGREEMENT:** (Also called data services agreement.) Any agreement allowing access to a computer through a third-party operator.
3. **COMPUTER SOFTWARE:** (Also called computer program.) Tangible personal property, and includes:
   (a) **OPERATING PROGRAM (SOFTWARE):** (Also called executive program {software}.) The programming system or technical language upon which or by means of which the basic

operating procedures of the computer are recorded. The operating program serves as an interface with user applied programs and allows the user to access the computer's processing capabilities.

(b) **APPLIED PROGRAM (SOFTWARE):** The programming system or technical language (including the tape, disk, cards, or other medium upon which such language or program is recorded) designed either for application in a specialized use or upon which or by means of which a plan for the solution of a particular problem is based. Typically, applied programs can be transferred from one computer to another via storage media. Examples of applied programs include: payroll processing, general ledger, sales data, spreadsheet, word processing, and data management programs.

4. **STORAGE MEDIUM:** Any hard disk, compact disk, floppy disk, diskette, disk pack, magnetic tape, cards, or other medium used for storage of information in a form readable by a computer, but not including the memory of the computer itself.

5. **TERMINAL ARRANGEMENT:** (Also called on-line arrangement.) Any agreement allowing access to a remote central processing unit through telecommunications via hardware.

(B) For the purposes of this Chapter, transfer of title and possession of the following are deemed sales of tangible personal property, and any other transfer of title, possession, or right to use for a consideration of the following is deemed rental, leasing, or licensing of tangible personal property:

1. Computer hardware or storage media. Rental, leasing, or licensing for use of computer hardware or storage media includes the lessee's use of such hardware or storage media on the lessor's premises.

2. Computer software which is not custom computer programming. Such prewritten ("canned") programs may be transferred to a customer in the form of punched cards, magnetic tape, or other storage medium or by listing the program instructions on coding sheets. Transfer is deemed to have occurred whether title to the storage medium upon which the program is recorded, coded, or punched passes to the customer or the program is recorded, coded, or punched on storage medium furnished by the customer. Gross income from the transfer of such prewritten programs includes:

(a) The entire amount charged to the customer for the sale, rental, lease, or license for use of the storage medium or coding sheets on which or into which the prewritten program has been recorded, coded, or punched.

(b) The entire amount charged for the temporary transfer or possession of a prewritten program to be directly used or to be recorded, coded, or punched by the customer on the customer's premises.

(c) License fees, royalty fees, or program design fees; any fee present or future, whether for a period of minimum use or of use for extended periods, relating to the use of a prewritten program.

(d) The entire amount charged for transfer of a prewritten (canned) program by remote telecommunications from the transferor's place of business to or through the customer's computer.

(e) Any charge for the purchase of a maintenance contract which entitles the customer to receive storage media on which prewritten program improvements or error corrections have been recorded or to receive telephone or on-site consultation services, provided that:

i. If such maintenance contract is not optional with the customer, then the charges for the maintenance contract, including the consultation services, are deemed gross income from the transfer of the prewritten program.

ii. If such maintenance contract is optional with the customer but the customer does not have the option to purchase the consultation services separately from the storage media containing the improvements or error corrections, then the charges for the maintenance contract, including the consultation services, are deemed gross income from the transfer of the prewritten program.

iii. If such maintenance contract is optional with the customer and the customer may purchase the consultation services separately from the storage media containing the improvements or error corrections, then only the charges for such improvements or error corrections are deemed gross income from the transfer of a prewritten program, and charges for consultation are deemed to be charges for professional services.

(C) Producing the following by means of computer hardware is deemed to be the activity of job printing for the purposes of this Chapter:

1. Statistical reports, graphs, diagrams, microfilm, microfiche, photorecordings, or any other information produced or compiled by a computer; except as provided in Subsection (E) below.

2. Additional copies of records, reports, manuals, tabulations, etc. "Additional copies" are any copies in excess to those produced simultaneously with the production of the original and on the same printer, whether such copies are prepared by running the same program, by using multiple printers, by looping the program, by using different programs to produce the same output, or by other means.

(D) Charges for the use of communications channels in conjunction with a terminal arrangement or data services agreement are deemed gross income from the activity of providing telecommunication services.

(E) The following transactions are deemed direct customer services, provided that charges for such services are separately stated and maintained as provided by Regulation 5-10-100.2(E):

1. "Custom (computer) programming," which is any computer software written or prepared for a single customer, including those services represented by separately stated charges for the modification of existing prewritten programs.

(a) Custom computer programming is deemed a professional service regardless of the form in which the programming is transferred. (3954/Reso. 7756)

(b) Custom programming includes such programming performed in connection with the sale, rental, lease, or license for use of computer hardware, provided that the charges for such are separately stated from the charges for the hardware.

(c) Custom computer programming includes a program prepared to the special order of a customer who will use the program to produce copies of the program for sale, rental, lease, or license. The subsequent sale, rental, lease, or license of such a program is deemed the sale, rental, lease, or license of a prewritten program.

2. Training services related to computer hardware or software, provided further that:

   (a) The provider of such training services is deemed the ultimate consumer of all tangible personal property used in training others or provided to such trainees without a separately itemized charge for the materials provided.

   (b) Training deemed a direct customer service does not include:

      i. Training materials, books, manuals, etc. furnished to customers for a charge separate from the charge for training services.

      ii. Training provided to customers without separate charge as part of the sale, rental, lease, or license of computer hardware or software or as part of a terminal arrangement or data services agreement.

3. The use of computer time through the use of a terminal arrangement or a data service agreement, but not charges for computer hardware located at the customer's place of business (for example, the terminal, a printer attached to the terminal, a modem used to communicate with the remote central processing unit over a telephone line).

4. Compiling and producing as part of a terminal arrangement or computer services agreement original copies of statistical reports, graphs, diagrams, microfilm, microfiche, photorecordings, or other information for the same person who supplied the raw data used to create such reports.

(F) The purchase, rental, lease, or license for use of computer hardware, storage media, or computer software which is not deemed custom programming is deemed the use or storage of tangible personal property for the purpose of this Chapter, and the amount which may be subject to Use Tax shall be determined in the same manner as the determination of the gross income from the sale, rental, lease, or license for use of such.

5-10-120.1: RESERVED

5-10-200.1: WHEN DEPOSITS ARE INCLUDABLE IN GROSS INCOME

(A) Refundable deposits shall be includable as gross income of the taxpayer for the month in which the deposits are forfeited by the lessee. (2977/Reso. 6722)

(B) Nonrefundable deposits for cleaning, keys, pet fees, maintenance, or for any other purpose are deemed gross income upon receipt. (2977/Reso. 6722)

5-10-250.1: EXCESS TAX COLLECTED

If a taxpayer collects taxes in excess of the combined tax rate from any customer in any transaction, all such excess tax shall be paid to the taxing jurisdictions in proportion to their effective rates. The right of the taxpayer to charge his customer for his own liability for tax does not allow the taxpayer to enrich himself at the cost of his customers. Tax paid on an activity that is not subject to tax or that qualifies for an exemption, deduction, exclusion or credit is not excess tax collected. (4582)

5-10-270.1: PROPRIETARY ACTIVITIES OF MUNICIPALITIES ARE NOT CONSIDERED ACTIVITIES OF A GOVERNMENTAL ENTITY

The following activities, when performed by a municipality, are considered to be activities of a person engaged in business for the purposes of this Chapter, and not excludable by reason of Section 5-10-270:

(A) Rental, leasing, or licensing for use of real property to other than another department or agency of the municipality.

(B) Producing, providing, or furnishing electricity, electric lights, current, power, gas (natural or artificial), or water to consumers or ratepayers.

(C) Sale of tangible personal property to the public, when similar tangible personal property is available for sale by other persons, as, for example, at police or surplus auctions.

(D) Providing wastewater removal to consumers or ratepayers, by means of sewers or pipeline, or by any other method. (4990)

5-10-270.2: PROPRIETARY CLUBS

(A) Equity Requirements. In order to qualify for exclusion under Section 5-10-270, a proprietary club must actually be owned by the members. For the purposes of qualification, a club will be deemed to be member-owned if at least eighty-five percent (85%) of the equity of the total amount of club-owned property is owned by bona fide individual members whose membership is represented in the form of shares, certificates, bonds, or other indicia of capital interest. A corporation may be considered an individual owner provided that it owns a membership solely for the benefit of one (1) or more of its employees and it is not engaged in any business activity connected with the operation of the club.

(B) Gross Revenue Requirements. In computing gross revenue for the computation of this fifteen percent (15%) rule of Subsection 5-10-270(C)1,

1. The following shall be excluded:
   (a) Membership dues.
   (b) Membership fees which relate to the general admission to the club on a periodic (or perpetual) basis.
   (c) Assessments.
   (d) Special fund-raising events, raffles, etc.
   (e) Donations, gifts, or bequests.
   (f) Gate receipts, admissions, and program advertising for not more than one (1) tournament in any calendar year.
2. The following must be included:
   (a) Green fees, court use fees, and similar charges for the actual use of a facility or part thereof.
   (b) Pro shop sales if the shop is owned by the club.
   (c) Golf cart rental if the carts are owned by the club.

(d) Rentals, percentages, or commissions received for permitting the use of the premises or any portion thereof by a caterer, concessionaire, professional, or any other person for sales, rental, leasing, licensing, catering, food or beverage service, or instruction.

(e) All receipts from food or beverage sales, room use or rental charge, corkage and catering charges, and similar receipts.

(f) Locker and locker room fees and attendants' charges if paid to the club.

(g) Tournament entry fees other than entry fees for the one (1) annual tournament exempt under Subsection (B)1(f) above.

5-10-405.1: LOCAL ADVERTISING EXAMPLES

For the purposes of illustration only, and not by way of limitation, the following are provided as examples of local advertising subject to the tax:

1. Retail sales and rental establishments doing business within the State when only one (1) commonly designated business entity is identified by name in the advertisement.
2. Financial institutions doing business within the State, whether part of a national chain or local business only.
3. Sales of real estate located within the State.
4. Health care facilities located within the State.
5. Hotels, motels, and apartments, whether a national chain or local, so long as the advertisement identifies any location within the State.
6. Brokers doing business within the State, whether stockbrokers, real estate brokers, insurance brokers, etc.
7. Nonprofit organizations which even though tax exempt, have an office, whether national, local, or branch, within the State.
8. Political activity, except United States Presidential and Vice Presidential candidates.
9. Restaurants or food service establishments which have one (1) or more branches, outlets, or franchises within the State, even though the local franchisee or licensee may not be responsible for the placement of the advertisement.
10. Services provided by individuals or entities within the State such as doctors, lawyers, architects, hairdressers, auto repair shops, counseling services, utilities, contractors, auction houses, etc.
11. Coupons redeemable only at a single commonly designated business entity within the State.
12. Theater, sports, and other entertainment events held at locations within the State.

5-10-405.2: ADVERTISING ACTIVITY WITHIN THE CITY

(A) In General. Except as provided elsewhere in this Regulation, a person engaged in advertising activity shall be considered to be doing business entirely within the City if all or a major portion of the dissemination

facilities, such as broadcasting studios, printing plants, or distribution centers, are located within the City limits. Remote studios patched to an in-City studio and subject to engineering modulation or control at the in-City studio are considered studios doing business in the City. (2321)

(B) Billboards and other outdoor advertising companies shall be considered to be doing business within the City to the extent they have billboards or similar displays within the City. (2321)

(C) Publishers and distributors of newspaper and other periodicals shall be subject to the tax upon advertising imposed by Section 5-10-405, and such tax shall be allocated in the manner prescribed by Subsection (E) of Section 5-10-435. (2321)

Form A (5-10-360.2)

INVALID UNLESS COMPLETED IN FULL

VENDOR'S NAME _____ Sales Invoice No. _____

Customer's Exemption Claim

City of Mesa Privilege License (Sales) Tax

Customer's Business Name: _____

Customer's Business Address: _____

Specific Business Activity: (e.g., if retailer, lessor, or manufacturer, specify items leased, sold, or made, i.e., cars, computers, clothes, etc.) _____

Customer's License Nos: City: _____ State: _____

ITEMS CLAIMED AS EXEMPT FROM TAX

_____ : All Items on this Invoice or Purchase Order

or

_____ : Only Those Items Marked with an "E"

REASON FOR CLAIMED EXEMPTION:

: The items claimed as exempt are sold, rented, leased, or licensed by the above named customer in the normal course of its business activity

or

: The items claimed as exempt are exempt from the City of Mesa Privilege Tax for the following specific reason(s):

CUSTOMER'S CERTIFICATE

I certify that the above information is accurate to the best of my information and belief, and that I am authorized by the Customer above to acquire the items claimed as exempt on a tax-free basis on its behalf. I further understand that the making of a false or fraudulent claim to obtain a tax exemption is a Class One Misdemeanor under City Code Section 5-10-580.

Name _____ Date _____

Title _____

5-10-407.1: RESERVED

Editor's note—Ord. No. 2321 repealed § 5-10-407.1.

5-10-415.1: DISTINCTION BETWEEN THE CATEGORIES OF CONSTRUCTION CONTRACTING

For the purposes of this Chapter, transactions involving improvements to, or sales of, real property are designated into one (1) of the following categories, and these categorizations shall apply whether or not a person designates himself as a contractor, construction manager, developer, or otherwise:

(A) A person performing improvements to real property is one (1) of the following:

1. An "owner-builder" when the work is performed by the owner or lessor or lessee-in-possession. An "owner-builder" may also be a "speculative builder."

2. A "construction contractor" when performing work for the owner or lessor or lessee-in-possession of the real property, unless that person has provided a written declaration stating that: (2535)

   (a) The owner-builder is improving the property for sale;

   (b) The owner-builder is liable for the tax for such construction contracting activity; and

   (c) The owner-builder has provided the contractor his City Privilege License number. (2535)

3. A "subcontractor" (as provided in Section 5-10-415(C). (2535)

(B) An owner or lessor ("owner-builder") of improved real property is one (1) of the following:

1. A "speculative builder" as provided in Section 5-10-100; or (2535)

2. An "owner-builder who is not a speculative builder" in all other cases.

(C) The terms "owner," "lessor," and "lessee-in-possession" shall be deemed to include any authorized agent for such person.

5-10-415.2: DISTINCTION BETWEEN CONSTRUCTION CONTRACTING AND CERTAIN RELATED ACTIVITIES

(A) Certain Rentals, Leases, and Licenses for Use in Connection with Construction Contracting. Rental, leasing, or licensing of earthmoving equipment with an operator shall be deemed construction contracting activity. Rental, leasing, or licensing of any other tangible personal property (with or without an operator) or of earthmoving equipment without an operator shall be deemed rental, leasing, or licensing of tangible personal property. For example:

1. Rental of a backhoe, bulldozer, or similar earthmoving equipment with operator is construction contracting. Rental of these items without an operator is rental of tangible personal property.

2. Rental of scaffolding, temporary fences, or barricades is rental of tangible personal property.

3. Rental of pumps or cranes is rental of tangible personal property, whether or not an operator is provided with the equipment rented.

(B) Distinction Between Construction Contracting, Retail, And Certain Direct Customer Service Activities.

1. When an item is attached or installed on real property, it is a construction contracting activity, and any subsequent repair, removal, or replacement of that item is construction contracting.

2. Items attached or installed on tangible personal property are retail sales.

3. Transactions where no tangible personal property is attached or installed are considered direct customer service activities (for example: carpet cleaning, lawn mowing, landscaping maintenance).

4. Demolition, earth moving, and wrecking activities are considered construction contracting.

(C) Sale of consumable goods incorporated into or applied to real property is considered a retail sale and not construction contracting. Examples of consumable goods are lubricants, faucet washers, and air conditioning coolant, but not paint. (2977/Reso. 6722)

(D) Installation or removal of tangible personal property which has independent functional utility is considered a retail activity. (2977/Reso. 6722)

1. "Tangible personal property which has independent functional utility" must be able to substantially perform its function(s) without attachment to real property. "Attachment to real property" must include more than connection to water, power, gas, communication, or other service. (2977/Reso. 6722)

2. Examples of tangible personal property which has independent functional utility include artwork, furnishings, "plug-in" kitchen equipment, or similar items installed by bolts or similar fastenings. (2977/Reso. 6722)

3. Examples of tangible personal property which does not have independent functional utility include wall-to-wall carpeting, flooring, wallpaper, kitchen cabinets, or "built-in" dishwashers or ranges. (2977/Reso. 6722)

4. The installation of window coverings (drapes, mini-blinds, etc.) is always a retail activity. (2977/Reso. 6722)

5-10-415.3: CONSTRUCTION CONTRACTING; TAX RATE EFFECTIVE DATE

(A) In the event of a tax rate change, the rate imposed on gross income from construction contracting shall be computed based upon the rate in effect when the contract was executed, subject to the "enactment date" as defined in this Section. Gross income from a contract executed prior to the enactment date shall not be subject to the tax rate change, provided the contract contains no provision that entitles the construction contractor to recover the amount of the tax. (4169/Reso. 8205)

(B) In the event of a rate increase, in order to qualify for the lower rate, the construction contractor shall, upon request, provide sufficient documentation, in a manner and form prescribed by the Tax Collector, to verify that a contract was entered into before the enactment date. (4169/Reso. 8205)

(C) For purposes of this Section, "enactment date" shall be: (4169/Reso. 8205)

1. In the event an election is held, the date of the election. (4169/Reso. 8205)

2. In the event no election is held, the date of final adoption by the Mayor and Council. (4169/Reso. 8205)

3. Notwithstanding the above, nothing in this Section shall be construed to prevent the City from establishing a later enactment date. (4169/Reso. 8205)

5-10-416.1: SPECULATIVE BUILDERS; HOMEOWNER'S BONA FIDE NONBUSINESS SALE OF A FAMILY RESIDENCE

(A) A sale of a custom home, regardless of the stage of completion of such home, shall be considered a "homeowner's bona fide nonbusiness sale" and not subject to the tax on speculative builders if: (2977/Reso. 6722)

1. The property was actually used as the principal place of family residence or vacation residence by the immediate family of the seller for the six (6) months next prior to the offer for sale;

2. The seller has not sold more than two (2) such residences (or if the residence is a vacation residence, two [2] such vacation residences) within the thirty-six (36) months immediately prior to the offer for sale; and

3. The seller has not licensed, leased, or rented the sold premises for any period within twenty-four (24) months prior to the offer for sale. (2977/Reso. 6722)

(B) In the event that a homeowner of a family residence contracts with a licensed construction contractor for improvements to a residence, the construction contracting on a family residence shall be presumed to be for an owner's bona fide nonbusiness purpose, and all construction contractors shall be required to report and pay the tax imposed on all such improvements. (2977/Reso. 6722)

(C) Purchases by a homeowner of tangible personal property for inclusion in any construction, alteration, or repair of his residence shall be subject to tax as retail sales to the ultimate consumer.

(D) "Owner" and "homeowner" as used in this regulation shall only mean an individual, and no other entity, association, or representative shall qualify; except that an administrator, executor, personal representative, or guardian in guardianship or probate proceedings for the estate of a deceased or incompetent person or a minor may claim "homeowner" status for such person if such person would have otherwise qualified with respect to the specific property involved.

5-10-416.2: RECONSTRUCTION CONTRACTING

(A) "Reconstruction (of real property)" shall mean the subdividing of real property and, in addition, all construction contracting activities performed upon said real property; provided, however, that each of the following conditions are met:

1. A structure existed on said real property prior to the reconstruction activity;

2. The "prior value" of said structure exceeds fifteen percent (15%) of the "prior value" of the integrated property (land, improvements, and structure);

3. The total cost of all construction contracting activities performed on said real property in the twenty-four- (24-) month period prior to the sale of any part of the real property exceeds fifteen percent (15%) of the "prior value" of the real property; and

4. The structure which existed on the real property prior to the reconstruction activity still exists in some form upon the property and is included, in whole or in part, in the property sold.

(B) Except as provided in Subsection (C) below, "prior value" means the total integrated property, with improvements, as existing immediately prior to any reconstruction activity. Where, according to A.R.S. Title 42, a property's full cash value for secondary tax purposes is intended to represent the property's fair market value, "prior value" shall be the property's full cash value for secondary property tax purposes as determined by the County Assessor in the year immediately preceding the year in which the reconstruction improvement(s) are or could have been included in the County Assessor's valuation. If the County Assessor's valuation is contested or appealed, the final determination at either the administrative or judicial level shall apply. Where according to A.R.S. Title 42 a property's full cash value for secondary property tax purposes is not intended to represent the property's fair market value, "prior value" shall be the property's fair market value prior to the reconstruction improvement(s). (3270/Reso. 6970)

(C) "Alternative prior value" shall mean that as an alternative to the "prior value" defined above, the taxpayer may use his actual cost of the reconstructed property prior to reconstruction, provided that evidence of such cost is presented to the Tax Collector and is determined by the Tax Collector, in his sole discretion, to be satisfactory. Such evidence shall consist, as a minimum, of proof of the actual, arms-length acquisition price, accompanied by a full appraisal of all property involved, which appraisal shall have been performed by a real estate broker or MAI appraiser specifically for the purpose of assisting in the acquisition and further shall have been performed on behalf of the seller or a lending institution which has lent at least sixty-five percent (65%) of the acquisition price. (Only long-term lending - not interim or construction financing-will be considered.) This alternative value shall be used only if the property was acquired by the reconstruction taxpayer not more than thirty-six (36) months prior to a "sale" as defined below. (2977/ Reso. 6722)

(D) A "sale" for the purpose of determining "alternative prior value" or "reconstruction" only shall be deemed to have occurred as of the date of the execution of a contract of sale or a deed (joint tenancy or warranty), whichever is earlier, to a purchaser or grantee of any single-residential or other occupancy unit. In addition to the foregoing, a lease with option to purchase a single-residential unit shall be considered a "sale" at the date of execution of such lease if said option is exercisable by the lessee in not later than nine (9) months. Further, in the case of cooperative apartments, the sale date shall be the date of execution of the contract selling (subject or not to encumbrances, liens, or security interests) of a share or a sufficient number of shares which entitle the purchaser to the occupancy of a residential unit. In all cases, a person shall include a husband and wife as a community or any co-occupants of a single unit as joint tenants.

5-10-425.1: DISTINCTION BETWEEN JOB PRINTING AND CERTAIN RELATED ACTIVITIES

(A) Computerized Printing. Computerized versions of all items which would be taxable under Section 5-10-425 if performed without computerized assistance are considered taxable under that Section and therefore are not exempt services.

(B) Book Publishing. The printing of books shall be deemed job printing. Sales of books shall be deemed retail sales.

(C) Publication of newspapers, magazines, or other periodicals shall not be considered job printing for the purposes of this Chapter.

5-10-435.1: DISTINCTION BETWEEN PUBLISHING OF PERIODICALS AND CERTAIN RELATED ACTIVITIES

(A) Book publishing shall not be considered publication of newspapers, magazines, or other periodicals for purposes of this Chapter. Sales of books shall be deemed retail sales. The printing of books shall be deemed job printing.

(B) Publication of newspapers, magazines, or other periodicals shall not be considered job printing for the purposes of this Chapter.

5-10-435.2: ADVERTISING INCOME OF PUBLISHERS AND DISTRIBUTORS OF NEWSPAPERS AND OTHER PERIODICALS

Publishers and distributors of newspapers and other periodicals shall be subject to the tax upon advertising imposed by Section 5-10-405 and such tax shall be allocated in the manner prescribed by Subsection (E) of Section 5-10-435. (2321)

5-10-445.1: WHEN THE RENTAL, LEASING, AND LICENSING OF REAL PROPERTY IS EXEMPT AS "CASUAL"

(A) The person who has less than two (2) apartments, houses, trailer spaces, or other lodging spaces rented, leased, or licensed or available for rent, lease, or license within the State and no units of commercial property for rent, lease, or license within the State is deemed not to be in the business of renting, leasing, or licensing real property and is therefore exempt from the tax imposed by Section 5-10-445 on such income. However, a person who has one (1) or more units of any other real property is deemed to be in the business of renting, leasing, or licensing real property, and subject to the tax imposed by Section 5-10-445 on rental, lease, and license income from all such lodging spaces and commercial units of real estate even though said person may have fewer than two (2) lodging spaces within the State. (2535,2977,4841/Reso. 6722)

(B) (Reserved)

5-10-445.2: RESERVED

Editor's note—Ord. No. 2977/Reso. 6722 repealed § 5-10-445.2.

5-10-445.3: RENTAL, LEASING, AND LICENSING OF REAL PROPERTY AS LODGING; ROOM AND BOARD; FURNISHED LODGING

(A) Room and Board.

1. Rooming houses, lodges, or other establishments providing both lodging and meals shall maintain a record of the separate charges made for the lodging and the meals.

2. The charge for lodging shall be subject to the tax imposed by Section 5-10-444 or Section 5-10-445. The charge for meals is subject to the tax upon restaurants and bars prescribed by Section 5-10-455. (2977/Reso. 6722)

(B) Furnished Lodging. A person who provides lodging with furnishings shall be deemed to be only in the business of rental, leasing, and licensing of lodging and not in the business of rental, leasing, and licensing of such furnishings as tangible personal property unless:

1. Any tenant of any lodging space may choose to rent, lease, or license such lodging space either furnished or unfurnished;

2. The lessor separately charges tenants for lodging and for furnishings; and

3. The lessor separately maintains his gross income from lodging and from furnishings separately in his accounting books and records.

If all of the above conditions are met, such person shall report both sources of income separately to the City.

5-10-447.1: GROSS INCOME FROM RENTAL, LEASING, AND LICENSING FOR USE OF REAL PROPERTY AS LODGING OR LODGING SPACE TO TRANSIENTS

(A) If the charge made by a hotel to a transient includes any charge for services or accommodations in addition to that of lodging and/or the use of lodging space, then such portion of the total charge as represents only the charge for the use of the room and/or lodging space shall be distinctly set out and billed to such transient by such hotel as a separate item, or the entire charge shall be deemed charge for use of lodging space subject to the tax imposed by Section 5-10-447. (3175)

(B) A separately itemized charge for use of the furnishings contained in lodging or lodging space rented, leased, or licensed to a transient shall be deemed gross income from the business of renting, leasing, and licensing lodging to a transient. Furthermore, in regard to such tangible personal property, such person is deemed not in the business of rental, leasing, and licensing of tangible personal property for all purposes of this Chapter. (3175)

(C) Complimentary Food and Drink. Persons engaged in the business of rental, leasing, and licensing of lodging to transients shall include charges for complimentary food and drink as gross income from the business of rental, leasing, and licensing of lodging to transients and shall not be deemed in the restaurant business for all purposes of this Chapter, unless such charges: (3175)

1. Are made only at the request of the transient or as a separate, optional charge for consuming specific food or drink (for example, "room service" charges); and (3175)

2. Are commensurate with charges for like quantity and type of food consumed by patrons of persons engaged in the restaurant business. (3175)

5-10-450.1: DISTINCTION BETWEEN RENTAL, LEASING, AND LICENSING FOR USE OF TANGIBLE PERSONAL PROPERTY AND CERTAIN RELATED ACTIVITIES

(A) Certain Rentals, Leases, and Licenses For Use in Connection With Construction Contracting. Rental, leasing, or licensing of earthmoving equipment with an operator shall be deemed construction contracting

activity. Rental, leasing, or licensing of any other tangible personal property (with or without an operator) or of earthmoving equipment without an operator shall be deemed rental, leasing, or licensing of tangible personal property. For example:

1. Rental of a backhoe, bulldozer, or similar earthmoving equipment with operator is construction contracting. Rental of these items without an operator is rental of tangible personal property.

2. Rental of scaffolding, temporary fences, or barricades is rental of tangible personal property.

3. Rental of pumps or cranes is rental of tangible personal property, regardless of whether or not an operator is included with the equipment rented.

(B) Distinction Between Equipment Rental, Leasing, or Licensing for Use and Transporting for Hire. The hiring of mobile equipment (cranes, airplanes, limousines, etc.) is considered rental, leasing, or licensing of tangible personal property whenever the charge is for a fixed sum or hourly rate. By comparison, the activity of a common carrier conveying goods or persons for a fee based upon distance, and not time, shall be considered transporting for hire.

5-10-450.2: RENTAL, LEASING, AND LICENSING FOR USE OF TANGIBLE PERSONAL PROPERTY; MEMBERSHIP FEES; OTHER CHARGES

(A) Membership, admission, or other fees charged by any rental club or limited access lessor are considered part of taxable gross income.

(B) Gross income from rental, leasing, or licensing for use of tangible personal property must include all charges by the lessor to the lessee for repair, maintenance, or other service upon the tangible personal property rented, leased, or licensed.

(C) Sale of a warranty, maintenance, or service contract as a requirement of, or in conjunction with, a rental, leasing, or licensing contract is considered part of gross income from rental, leasing, or licensing of tangible personal property subject to tax. However, if the contract is optional and is a separate business transaction, the sale of a warranty, maintenance, or service contract is exempt from the tax imposed by Section 14-450.

5-10-450.3: RENTAL, LEASING, AND LICENSING FOR USE OF EQUIPMENT WITH OPERATOR

In cases where the tangible personal property is rented, leased, or licensed with an operator provided by the lessor, the charge for the operator shall not be includable in the gross income from the rental, lease, or license of such tangible personal property if the charge for the operator and the charge for the use of the equipment are separately itemized to the lessee and separately maintained on the books and records of the lessor.

5-10-450.4: RENTAL, LEASING, AND LICENSING FOR USE OF TANGIBLE PERSONAL PROPERTY; SEMI-PERMANENTLY OR PERMANENTLY INSTALLED TANGIBLE PERSONAL PROPERTY

(A) The term "semi-permanently or permanently installed" means that the item of tangible personal property has and is expected to have at the time of installation a permanent location at the site installed, as under

a long-term lease agreement, except that the person using or applying said property may eventually replace it because it has become worn out or has become obsolete or the person ceases to have the right to possession of said property.

(B) An item of tangible personal property is deemed permanently installed if its installation requires alterations to the premises.

(C) Examples of "semi-permanently or permanently installed tangible personal property" include, but are not limited to: computers, duplicating machines, furniture not of portable design, major appliances, store fixtures.

(D) The term does not include mobile transportation equipment or tangible personal property designed for regular use at different locations or customarily used at different locations, as under numerous short-term rental, lease, or license agreements, whether or not such property is in fact so used.

1. For example, use of a mobile crane, trencher, automobile, or other similar equipment shall be considered a rental, lease, or license transaction subject to taxation only by the city or town in which such business office of the lessor is based.

2. Other similar examples include, but are not limited to: camping equipment, contracting equipment, chain saw, fork lift, household items, invalid needs, janitorial equipment, reducing equipment, furniture of portable design, trucks or trailers, tools, towbars, sump pumps, arc welders.

(E) A rental, lease, or license agreement which specifies that the item in question shall remain, under the terms of the agreement, located within the same city or town for more than one hundred eighty (180) consecutive days shall be sufficient evidence that such rented, leased, or licensed item is "permanently or semi-permanently installed" in said city or town, except when the item is mobile transportation equipment or one (1) of the other types of portable equipment or property described in Subsection (D) above.

5-10-450.5: RENTAL, LEASING, AND LICENSING FOR USE OF TANGIBLE PERSONAL PROPERTY; DELIVERY, INSTALLATION, REPAIR, AND MAINTENANCE CHARGES

(A) Delivery and installation charges in connection with the rental, leasing, and licensing of tangible personal property are exempt from the tax imposed by Section 5-10-450, provided that the provisions of Regulation 5-10-100.2 have been met.

(B) Gross income from the sale of a warranty, maintenance, or similar service contract in connection with the rental, leasing, and licensing of tangible personal property shall be exempt. (3270/Reso. 6970)

(C) Separately stated charges for repair not included as part of a warranty, maintenance, or similar service contract relating to the rental, leasing, or licensing of tangible personal property are exempt from the tax imposed by Section 5-10-450; however, such income is subject to the provisions of Sections 5-10-460 and 5-10-465; and the provisions of Regulation 5-10-465.1. (2321)

5-10-455.1: GRATUITIES RELATED TO RESTAURANT ACTIVITY

Gratuities charged by or collected by persons subject to the tax imposed by Section 5-10-455 may be excluded from gross income if:

(A) Such charge is separately stated upon the bill, invoice, etc. provided the customer and such amounts are maintained separately in the books and records of the taxpayer and

(B) Such gratuities are distributed in total to employees of the taxpayer in addition to customary and regular wages.

5-10-460.1: DISTINCTION BETWEEN RETAIL SALES AND CERTAIN OTHER TRANSFERS OF TANGIBLE PERSONAL PROPERTY

(A) Charges for transfer of tangible personal property included in the gross income of the business activity of persons engaged in the following business activities shall be deemed only as gross income from such business activity and not sales at retail taxed by Section 5-10-460:

1. Tangible personal property incorporated into real property as part of reconstruction or construction contracting, per Sections 5-10-415 through 5-10-418.
2. (Reserved)
3. Job printing per Section 5-10-425.
4. Mining, timbering, and other extraction, but not sales of sand, gravel, or rock extracted from the ground per Section 5-10-430.
5. Publication of newspapers, magazines, and other periodicals per Section 5-10-435.
6. Rental, leasing, and licensing of real or tangible personal property per Sections 5-10-445 or 5-10-450.
7. Restaurants and bars per Section 5-10-455.
8. Telecommunications services per Section 5-10-470.
9. Utility services per Section 5-10-480.
10. Wastewater removal services per Section 5-10-485. (4990)

(B) Distinction between construction contracting, retail, and certain direct customer service activities.

1. When an item is attached or installed on real property, it is a construction contracting activity, and any subsequent repair, removal, or replacement of that item is construction contracting.
2. Items attached or installed on tangible personal property are retail sales.
3. Transactions where no tangible personal property is attached or installed are considered direct customer service activities (for example: carpet cleaning, lawn mowing, landscape maintenance).
4. Demolition, earth moving, and wrecking activities are considered construction contracting.

(C) The sale of sand, rock, and gravel extracted from the ground shall be deemed a sale of tangible personal property and not mining or metallurgical activity.

(D) Sale of consumable goods incorporated into or applied to real property is considered a retail sale and not construction contracting. Examples of consumable goods are lubricants, faucet washers, and air conditioning coolant, but not paint.

(E) Installation or removal of tangible personal property which has independent functional utility is considered a retail activity.

1. "Tangible personal property which has independent functional utility" must be able to substantially perform its function(s) without attachment to real property. "Attachment to real property" must include more than connection to water, power, gas, communication, or other service.

2. Examples of tangible personal property which has independent functional utility include artwork, furnishings, "plug-in" kitchen equipment, or similar items installed by bolts or similar fastenings.

3. Examples of tangible personal property which does not have independent functional utility include wall-to-wall carpeting, flooring, wallpaper, kitchen cabinets, or "built-in" dishwashers or ranges.

4. The installation of window coverings (drapes, mini-blinds, etc.) is always a retail activity.

5-10-460.2: RETAIL SALES; TRADING STAMP COMPANY TRANSACTIONS

A trading stamp transaction is defined as follows: the trading stamp company issues stamps to a vendor; the vendor then provides them to its customers; and the customer then exchanges the stamps for merchandise from the trading stamp company.

The exchange transaction for the merchandise shall be deemed a retail sale, and the trading stamp company a retailer. All taxes imposed by this Chapter applicable to retail transactions are therefore applicable to such exchange transactions.

The rate of tax shall be the retail rate based upon the retail dollar value of the redeemed merchandise as expressed in the redemption dollar value per book of stamps or portion thereof. The tax imposition described herein is in lieu of any privilege or use tax upon the business of issuing stamps, redeeming the same, or using or storing property redeemed.

5-10-460.3: RETAIL SALES; MEMBERSHIP FEES OF RETAILERS

Membership, admission, or other fees charged by limited access retailers are considered part of taxable gross income of the business activity of selling tangible personal property.

5-10-460.4: RETAIL SALES; PROFESSIONAL SERVICES

(A) "Professional services" refers to services rendered by such persons as doctors, lawyers, accountants, architects, etc. for their customers or clients where the services meet particular needs of a specific client and only apply in the factual context of the client and the final product has no retail value in itself. For example, opinion letters, work papers, reports, etc. are not in a form which would be subject to retail sales to customers. However, transfer of items in a form which would be subject to retail sales (e.g., artwork, forms, manuals, etc.) would not be considered professional services. The issue is one of fact which must be resolved in each situation.

(B) Creative ("idea") labor and design labor that do not result in tangible personal property that will be or can be sold are deemed professional services and, if charged separately and maintained separately in the taxpayer's books and records, are not includable in gross income.

(C) "Professional services" shall be deemed to include those items of tangible personal property which are incidental to the services rendered, provided such tangible personal property is "inconsequential."

1. Incidental transfers of tangible personal property shall be regarded as "inconsequential" if:

   (a) The purchase price of the tangible personal property to the person rendering the professional services represents less than fifteen percent (15%) of the charge, billing, or statement rendered to the purchaser in connection with the transaction and

   (b) The tangible personal property transferred is not itself in a form which is subject to retail sale.

2. In cases where the tangible personal property transferred is deemed inconsequential, the provider of the tangible personal property so transferred is deemed the ultimate consumer of such tangible personal property and subject to all applicable taxes imposed by this Chapter upon such transfer.

(D) Examples:

1. The transfer of paper embodying the result or work product of the services rendered by an attorney or certified public accountant is regarded as inconsequential to the charges for professional services.

2. An appraisal report issued by an appraiser, reflecting such appraiser's efforts to appraise real estate, is regarded inconsequential.

3. Use of a hair care product on a client's hair by a barber or beautician in connection with performing professional services is usually inconsequential. On the other hand, if the barber or beautician supplies the customer with a bottle of the product for the client's use thereafter and without the professional's assistance, the transfer of the bottle of hair care product is deemed not inconsequential.

4. If a mortician properly segregates his professional services from other taxable activities on his bill (invoice, contract), his gross income would include only the income derived from the sale of tangible personal property (casket, cards, flowers, etc.) and rental, leasing, or licensing of real and tangible personal property. His charges for professional services (embalming, cosmetic work, etc.) would not be includable in gross income.

5-10-460.5: RETAIL SALES; MONETIZED BULLION; NUMISMATIC VALUE OF COINS

(A) Monetized Bullion: Coins or other forms of money manufactured or minted from precious metals or other metals and issued as legal tender or a medium of exchange by or for any government authorized to do so.

(B) Any coin shall be considered to have been transferred or acquired primarily for its "numismatic value" if the sale or acquisition price:

1. Is equal to or greater than twice (two {2} times) the value of the metallic content of the coin as of the date of transfer or acquisition and

2. Is equal to or greater than twice (two {2} times) its face value in the case of a coin which, at the time of transfer or acquisition, was legal tender or a medium of exchange of the government issuing or authorizing its issuance.

5-10-460.6: RETAIL SALES; CONSIGNMENT SALES

Sales of merchandise acquired on consignment are taxable as retail sales. In cases where the merchant is acting as an agent on behalf of another dealer, sales of the consigned merchandise are taxable to the principal, provided the merchant makes full disclosure to customers that he is acting only as an agent for the named principal. However, when the principal is not deemed to be a dealer, such sales are considered to be those of the merchant and are taxable to him.

5-10-465.1: RETAIL SALES; REPAIR SERVICES

(A) Fair Market Value of Parts and Labor Charges. The Tax Collector may examine the reporting of all transactions covered by this Section to determine if an "arms-length" price is charged for the parts and materials. The applicable tax may not be avoided by pricing a part which ordinarily sells to the customer at ten dollars ($10.00), at five dollars ($5.00) and including the difference as "service" or "labor." In the absence of satisfactory evidence supplied by the taxpayer as to industry or business practice, the Tax Collector may use the cost of the part or materials to the taxpayer marked up by a reasonable profit to estimate the gross income subject to tax.

(B) Notwithstanding Regulation 5-10-350.1(E):

1. In the case where the taxpayer does not normally and regularly sell items of tangible personal property apart from a repair transaction, the taxpayer may determine the sale price of the tangible personal property transferred by means of a "computed charge." The "computed charge" shall be the sum of the cost of the item of tangible personal property transferred, plus a "reasonable markup." The "reasonable markup" shall be that amount needed to achieve a representative retail price for which such items of tangible personal property are normally sold at retail by comparable businesses within the State (not under circumstances involving the combination of such sale with the providing of repair services). The taxpayer shall have the initial responsibility of determining such reasonable markup and providing to the Tax Collector, if requested, the basis for his determination.

2. In the event that there is a disagreement between the Tax Collector and the taxpayer as to the proper determination of the "computed charges," the burden shall be upon the taxpayer to satisfy the Tax Collector, the Hearing Officer in the event of a hearing, or the court in any subsequent court action involving an assessment of the validity of the taxpayer's method of determination of such "computed charges." The determination by the Tax Collector as to the proper "computed charge" shall be considered valid and shall be sustained unless it is proven by the taxpayer that such determination is arbitrary and unreasonable.

5-10-465.2: RETAIL SALES; WARRANTY, MAINTENANCE, AND SIMILAR SERVICE CONTRACTS

(A) Gross income from sales of warranty, maintenance, and service contracts is exempt from the tax imposed by Section 5-10-460.

(B) Transfers of tangible personal property in connection with a service, warranty, guaranty, or maintenance agreement between a vendor and a vendee shall be subject to tax under Section 5-10-460 only to the extent of gross income received from separately itemized charges made for the items of property transferred.

(C) The gross income derived from a maintenance insurance agreement, which agreement is entered into between the purchaser and any person other than the seller, is not subject to tax imposed by Section 5-10-460. If the provider of the maintenance insurance agreement pays for tangible personal property on behalf of the insured in the performance of the agreement, such sales are subject to all applicable taxes imposed by this Chapter.

(D) Charges for tangible personal property provided under the terms of a warranty, maintenance, or service contract exempted under Section 5-10-465 are subject to tax as retail sales.

(E) However, gross income received by a dealer from a manufacturer for work performed under a manufacturer's warranty is not taxable under Section 5-10-460.

5-10-465.3: RETAIL SALES; SALE OF CONTAINERS, PAPER PRODUCTS, AND LABELS

(A) The sale of a container or similar packaging material which contains personal property and which is transferred to the customer with the sale of the product is not taxable as a sale for resale. Examples of such nontaxable containers include, but are not limited to: (2977/Reso. 6722)

1. Packaging materials sold to a manufacturer of video equipment for containment of the product during shipment.

2. Cellophane-type wrap sold to a meat department or butcher for containment of the individually wrapped or contained meat.

3. Bags used to contain loose fungible goods such as fruits, vegetables, and other products sold in bulk, where such bags or containers are used to contain and measure the amount purchased by the customer. (2977/Reso. 6722)

4. Shopping bags and similar merchandising bags sold to grocery stores, department stores, or other retailers. (2977/Reso. 6722)

5. Gift wrappings and gift boxes sold to department stores or other retailers. (2977/Reso. 6722)

(B) Sales of nonreturnable or disposable paper (and similar products such as plastic or styrofoam) cups, lids, plates, bags, napkins, straws, knives, forks, and other similar food accessories to a restaurant or others taxable under Section 5-10-455 for the transfer by the restaurant to its customer to contain or facilitate the consumption of the food, drink, or condiment are sales for resale and not taxable. (2977/Reso. 6722)

(C) Where a retailer imposes a charge for gift wrapping and the charge includes the container, paper, and other appropriate materials, the wrapping charge shall be considered a sale. (2977/Reso. 6722)

(D) Charges for returnable containers, where the charges are imposed on the customer, are subject to tax at the time of the transaction. A credit may be taken for the amount of refund after such refund is made. (2977/Reso. 6722)

(E) The sale of labels to a purchaser who affixes them to a primary container is a sale for resale and not taxable. Directional or instructional material included with products sold are considered to be part of the product and a sale for resale. However, the sale of items such as price tags, shipping tags, and advertising matter delivered to the customer in connection with the retail sale is taxable to the retailer as a retail sale to it and is not exempt as a sale for resale. (2977/Reso. 6722)

5-10-465.4: RETAIL SALES; AIRCRAFT ACQUIRED FOR USE OUTSIDE THE STATE

AIRCRAFT ACQUIRED FOR USE OUTSIDE THE STATE: means aircraft, navigational and communication instruments, and other accessories and related equipment sold to: (2977/Reso. 6722)

(A) Any foreign government for use by such government outside of this State. (2977/Reso. 6722)

(B) Persons who are not residents of this State and who will not use such property in this State other than in removing such property from this State. This Subsection also applies to corporations that are not incorporated in this State, regardless of maintaining a place of business in this State, if the principal corporate office is located outside this State and the property will not be used in this State other than in removing the property from this State. (2977/Reso. 6722)

5-10-470.1: TELECOMMUNICATION SERVICES

(A) Gross income from the business activity of providing telecommunication services to consumers within this City shall not include:

1. Charges for installation, maintenance, and repair of telecommunication equipment which are subject to the provisions of Sections 5-10-415, 5-10-416, or 5-10-417 (construction contracting); 5-10-445 (real property rental); 5-10-450 (tangible personal property rental); or 5-10-460 (retail sales); depending upon the nature of the work performed.

2. Separately billed advertising charges which are subject to the provisions of Section 5-10-405 or 5-10-435.

(B) Mobile Equipment. In cases where the customer is being provided telecommunication services to receiving/transmission equipment designed to be mobile in nature (for example, mobile telephones; portable hand-held, two-way radios; paging devices, etc.), the provider shall, for the purposes of the tax imposed by this Section, determine whether such provider's customers are "within this City" as follows:

1. By the billing address of the customer, provided that such address is a permanent residence or business location of the consumer within the State.

2. In all other cases, the business location of the telecommunications provider.

5-10-475.1: DISTINCTION BETWEEN TRANSPORTING FOR HIRE AND CERTAIN RELATED ACTIVITIES

The hiring of mobile equipment (cranes, airplanes, limousines, etc.) is deemed rental, leasing, or licensing for use of tangible personal property whenever the charge is for a fixed sum or hourly rate. By comparison, the activity of a common carrier conveying goods or persons for a fee based upon distance, and not time, shall be considered transporting for hire.

5-10-520.1: REPORTS MADE TO THE CITY

(A) Each taxpayer shall provide, as a minimum, all of the following when reporting taxes due as provided in this Chapter:

1. Legal business name of the taxpayer or his agent.

2. Mailing address of the taxpayer.

3. City privilege license number of the taxpayer.

4. Period of time for which the report is intended.

5. For each category of income to which the taxpayer is subject for the reporting period as provided on the official City tax return:

   (a) All amounts subject to, excluded from, exempt from, or deductible from the tax imposed upon that category of business activity, summarized in total as "gross receipts" of that category of business activity.

   (b) The total amount claimed as excludable, exempted, or deducted from such "gross receipts," itemized as provided on the official City tax return and summarized in total as "total deductions" for that category.

   (c) The difference between such "gross receipts" and "total deductions" as "net taxable" for that category.

   (d) The tax due and payable for that category.

6. That total amount subject to use tax, summarized as "net taxable," and the use tax due and payable for that reporting period.

7. Any excess tax collected which is due and payable.

8. Any claimed tax credits against taxes due and payable.

9. Total amount remitted with the return.

10. A statement verifying that the information provided on the return is accurate to the best of the preparer's knowledge. Such statement must be accompanied by a dated signature of the preparer and also show the preparer's title or relationship to the taxpayer.

11. The Tax Collector may prescribe and will notify taxpayers of alternative methods for signing, subscribing, or verifying any report or statement required to be filed, including but not limited to electronic signatures and/or security codes, and such methods shall have the same validity and consequence as the actual signature or written declaration of the taxpayer or other person required to sign, subscribe, or verify the return, statement, or other document. (4169/Reso. 8205)

5-10-520.2: CHANGE OF METHOD OF REPORTING

(A) Any taxpayer electing to change his reporting method shall be permitted to do so only upon filing a written request to the Tax Collector and after receiving written approval of the Tax Collector. The approval shall state the effective date of the change.

(B) The Tax Collector may postpone such approval to allow for examination of the records of the taxpayer and may further require that all tax liability be satisfied up to the effective date of the change.

(C) Failure of the taxpayer to notify the Tax Collector and await approval before changing the method of reporting will subject the taxpayer to interest and penalties if his original method of reporting would

produce higher taxes due the City. When a person makes such change without the consent of the Tax Collector, the Tax Collector may audit his books and records to verify the tax liability as of the date of the change.

(D) Any taxpayer who has failed to indicate a choice of reporting method upon the application for a privilege license shall be deemed to have chosen the accrual method of reporting.

5-10-555.1: ADMINISTRATIVE REQUEST FOR THE ATTENDANCE OF WITNESSES OR THE PRODUCTION OF DOCUMENTS; SERVICE THEREOF; REMEDIES AND PENALTIES FOR FAILURE TO RESPOND

(A) If a taxpayer refuses or fails to comply in whole or in part with a request to provide records authorized by Section 5-10-555, the Tax Collector may issue his written administrative request which shall:

1. Designate the individual to provide information.
2. Describe specifically or generally the information to be provided and any documents sought to be examined.
3. State the date, time, and place in which the individual shall appear before the Tax Collector to provide the information and to produce the documents sought.
4. Be directed to:
   (a) Any director, officer, employee, agent, or representative of the person sought to be examined;
   (b) Any independent accountant, accounting firm, or bookkeeping or financial service retained or employed by such person for any purpose connected with business activity subject to taxation; or
   (c) Any other person who, in the opinion of the Tax Collector, has knowledge of facts bearing upon any tax liability of the person or taxpayer from whom information is sought.

(B) The failure of a taxpayer to comply with reasonable requests for records without good reason or cause may, in the exercise of judicial discretion by a court, be held to constitute a failure to exhaust administrative remedies.

5-10-571.1: COLLECTION OF TAX IN JEOPARDY

Evidence that collection of tax due is in jeopardy shall include documentation that:

(A) The taxpayer is going out of business.

(B) The taxpayer has no City privilege license or has no permanent business location in the State.

(C) The taxpayer has failed to timely pay any tax (or penalties and interest thereon) due to the City on three (3) or more occasions within the previous thirty-six (36) calendar months.

(D) The taxpayer has remitted payment by check which has been dishonored.

(E) The taxpayer has failed to comply with a formal written request of the Tax Collector made pursuant to Regulation 5-10-555.1.

CHAPTER 11
TEENAGE DANCE HALLS

5-11-1: DEFINITION

The term "teenage dance hall" whenever used in this Chapter shall, unless a different meaning appears from the context, mean an establishment open to persons under nineteen (19) years of age unaccompanied by adults where music is furnished for the purpose of dancing, at which an admission or minimum fee is charged, and includes the building or pavilion or other place provided for dancing, together with all surrounding premises used for parking or any other activity or purpose related to the dancing operation. This definition shall not include an establishment operated or conducted exclusively by and under the auspices of one (1) or more bona fide charitable, fraternal, or religious organizations or schools and the proceeds of which do not inure to the benefit of any private person or individual. (541, 1188)

5-11-2: HOURS OF OPERATION

It shall be unlawful for a teenage dance hall to be operated except during the following hours: (541, 1188)

Four thirty (4:30) P.M. to twelve (12:00) midnight on any day Monday through Thursday; (541, 1188)

Four thirty (4:30) P.M. Friday to one (1:00) A.M. the following Saturday; (541, 1188)

Four thirty (4:30) P.M. Saturday to one (1:00) A.M. the following Sunday. (541, 1188)

5-11-3: AGE OF PATRONS

It shall be unlawful for a person under the age of fifteen (15) years to be admitted to or to be present at a teenage dance hall while it is in operation. The owner, manager, or other person operating a teenage dance hall shall be presumed to know the age of those seeking admission thereto and of those present thereat. (541)

5-11-4: ALCOHOLIC BEVERAGE OR TOBACCO

It shall be unlawful for any alcoholic beverage or tobacco in any form to be consumed, dispensed, or possessed by or to any person at a teenage dance hall. (541)

5-11-5: PERSONS UNDER THE INFLUENCE OF ALCOHOL

It shall be unlawful for a person to be admitted to or be present at a teenage dance hall who is under the influence of alcohol or who has consumed any alcoholic beverage in any form within the twelve (12) hours immediately preceding or who is disorderly or boisterous. (541)

5-11-6: LOITERING

It shall be unlawful for a person to loiter on or around the parking area or other premises of a teenage dance hall, except for persons who are then presently lawfully admitted thereto. (541)

5-11-7: LIGHTING

Teenage dance halls shall at all times during the operation thereof be illuminated with the following minimum lighting: (541)

(A) On the dance floor or pavilion and in all places inside an enclosed structure which are used by patrons, at least one (1) footcandle per square foot. (541)

(B) On all outside premises, at least three (3) footcandles per square foot. (541)

5-11-8: SUPERVISION AND SECURITY

The owner, manager, operator, or other person in charge of a teenage dance hall shall at all times during the operation thereof provide adequate security and adult supervision to keep all patrons thereof orderly. As a minimum, at least two (2) responsible persons over the age of twenty-one (21) years shall be present at all times, and one regular or reserve police officer of the City, approved in advance by the Chief of Police, shall be present at all times deemed necessary by the Chief of Police. (541, 1188)

5-11-9: POSTING REGULATIONS

A copy of Chapter 11 of Title 5 of this Code, printed in at least ten (10) point type, shall at all times be posted in a conspicuous place at each teenage dance hall. (541, 1188)

5-11-10: LICENSE

It shall be unlawful for any person to conduct, operate, or carry on a teenage dance hall without first procuring from the Finance Director a license to do so, which license shall be issued only upon approval of the Council. Each and every day or fractional part of a day that a teenage dance hall is conducted or carried on without such license shall constitute a violation of this Chapter. (541, 1605, 1195, 2034)

(A) A person applying for a teenage dance hall license shall make payment of the application fee established in the current Schedule of Fees and Charges and shall make written application filed with the Finance Director on such form as he may prescribe, setting forth the following information: (541, 1195, 1605, 4982)

1. The name and address of the applicant and of each owner, manager, and operator connected with the proposed teenage dance hall. (541, 1195, 2034)

2. The place where such proposed teenage dance hall is to be located. (541, 1195, 2034)

3. Whether the applicant or any owner, manager, or operator connected with the proposed teenage dance hall has ever previously been issued a teenage dance hall license which has been revoked, suspended, or forfeited. (541, 1195, 2034)

4. Any other information called for on the application to aid in determining the moral character of the applicant, owner, principal, agent, or their employees, relating to the proposed dance hall. (541, 1195, 2034)

A teenage dance hall license shall not be approved or issued unless the location for which it is to be issued is zoned "C-3" or less restrictive zoning and unless said location is a distance of more than three hundred feet (300') from any area having more restrictive zoning. (541, 1195, 2034)

A teenage dance hall license shall not be assignable or transferable from the person or place set forth in the application, and any attempted assignment or transfer thereof shall be void and shall work a forfeiture of such license and all license fees and taxes paid therefor. (541, 1195, 2034)

(B) A first year license fee as established by the current Schedule of Fees and Charges shall be paid at the time of application. Additionally, an annual renewal fee as established by the current Schedule of Fees and Charges shall be payable in advance by the applicant at the office of the Finance Director for subsequent years. Every license shall expire on December 31 of each year. Failure to pay the license renewal fee prior to the beginning of each calendar year shall automatically cause the license to be revoked. (541, 1195, 1605, 2034, 4982)

(C) Every person having a teenage dance hall license shall at all times keep it posted in a conspicuous place on the premises to which it applies. (541, 1195, 2034)

(D) The Finance Director shall have the power to revoke at any time a license granted in accordance with this Chapter for any of the following causes: (541, 1195, 1605, 2034)

1. Fraud, misrepresentation, or false statement contained in the application for license; (541, 1195, 2034)

2. Fraud, misrepresentation, or false statement made in the course of carrying on his business; (541, 1195, 2034)

3. Any violation of this Chapter; (541,1195,2034)

4. Conviction of any crime or misdemeanor involving moral turpitude; (541, 1195, 2034)

5. Conducting business in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety, or general welfare of the public. (541, 1195, 2034)

(E) Within five (5) days, excluding weekends and legal holidays, a licensee may appeal to the City Manager from the revocation by the Finance Director of any license granted in accordance with this Chapter. The City Manager may appoint a Hearing Officer to hear the appeal. (1195, 2034, 2383)

CHAPTER 12

MASSAGE AND BODYWORK ESTABLISHMENT OPERATIONS*

5-12-1: PURPOSE; DEFINITIONS

(A) It is the purpose and intent of this Chapter to protect the health, safety, and welfare of the residents of the City of Mesa by providing for the uniform regulation of massage establishments and bodywork establishments, and landlords and property owners of business complexes where massage establishments and bodywork establishments are located, in order to prevent illegal activity from occurring on the premises under the appearance of massage therapy or bodywork, and to establish sanitation, health, and operational standards.

***Editor's note**—Ord. No. 5644, § 1, adopted September 13, 2021, repealed the former Ch. 12, §§ 5-12-1—5-12-21, and enacted a new Ch. 12 as set out herein. The former Ch. 12 pertained to massage establishment operations and derived from Ord. No. 4957, 5031, 5285.

(B) The below words and phrases wherever used in this Chapter, whether or not the term is capitalized, shall be construed as defined in Section 5-12-1 unless, from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number.

(1) **APPLICANT:** Means a person who applies for a massage establishment or bodywork establishment license.

(2) **BODYWORK:** Means the practice of a person using touch to manipulate tissue in the course of treatment or therapy provided to another person that does not constitute massage as defined in A.R.S. Title 32, Chapter 42. Bodywork may include the affectation of the human energy system or acupoints or QI meridians of the human body.

(3) **BODYWORK ESTABLISHMENT:** Means a place where bodywork is offered.

(4) **BUSINESS COMPLEX:** Means real property improvements that are (i) on the same parcel of property; (ii) attached by walls or rooflines; or (iii) part of a group C-O-I development as defined in Chapter 87 of the City Zoning Ordinance and as interpreted by the City Zoning Administrator, and that is owned by the same property owner.

(5) **CITY:** Means the City of Mesa, Arizona.

(6) **CLIENT:** Means a customer or patron who offers to pay for or receive massage therapy or bodywork.

(7) **CONTROLLING PERSON:** Means (i) any individual who has a ten percent (10%) or greater interest in the ownership or the earnings of the massage establishment or bodywork establishment, or (ii) any of the following persons for a licensee or applicant:

(a) The president or other executive officer of a corporation;

(b) Each general partner of a limited partnership or any partner of a non-limited partnership;

(c) The managing members or officers of a limited liability company/corporation; or

(d) A sole proprietor.

(8) **DESIGNATED AGENT:** Means the individual designated by the applicant to receive City notices under this Chapter.

(9) **EMPLOY:** Means to hire, engage, or authorize the services of any individual on a full-time, part-time, or contract basis, without regard to compensation, whether or not the person employed, hired or engaged is denominated an employee or independent contractor.

(10) **EMPLOYEE:** Means any person who performs any service at a massage establishment or bodywork establishment on a full-time, part-time or contract basis, whether or not the person is designated an employee or independent contractor. Employee does not include a person exclusively at the massage establishment or bodywork establishment for repair or maintenance or for the delivery of goods.

(11) **HEARING OFFICER:** Means the Business Services Department Director or his/her designee.

(12) **KNOWINGLY:** Means with respect to conduct or a circumstance described in this Chapter, that a person is aware of or believes that his or her conduct is of that nature or that the circumstances exists. It does not require any knowledge of the unlawfulness of the act or omission.

(13) **LANDLORD:** Means the lessor, lessee, property manager, managing agent, licensee or any person, other than the property owner, who has legal care or control of the business complex where a massage establishment or bodywork establishment is located. The term landlord does not include the applicant or licensee.

(14) **LICENSE:** Means a license issued pursuant to this Chapter.

(15) **LICENSEE:** Means the person who receives a massage establishment or bodywork establishment license, and in whose name the license has been issued by the Licensing Office pursuant to this Chapter.

(16) **LICENSING OFFICE:** Means the division of the City's Business Services Department under the supervision of the City's Business Licensing and Revenue Collections Administrator.

(17) **MASSAGE ESTABLISHMENT:** Means a place where massage therapy is offered.

(18) **MASSAGE THERAPIST:** Means a person who is licensed under A.R.S. Title 32, Chapter 42 to engage in the practice of massage therapy as defined in A.R.S. § 32-4201(6).

(19) **MASSAGE THERAPY:** Means as defined in A.R.S. § 32-4201(5).

(20) **PERSON:** Means an individual, corporation, firm, partnership, association, organization or any other group acting as a unit as well as a trustee, receiver, assignee, or similar representative.

(21) **PROPERTY OWNER:** Means the person indicated on the records of the Maricopa County Assessor, or other official body, as the owner of record of the business complex. The term property owner does not include the applicant or licensee.

(22) **POLICE DEPARTMENT:** Means the City of Mesa Police Department. The Chief of Police refers to the Chief of the Mesa Police Department or their designee.

(23) **PRIVATE ANATOMICAL AREAS:** Means the areola and nipple of any female person, and the genitals, anus or perineum of any person.

(24) **RESPONSIBLE PARTY:** Means any person who violates a provision of this Chapter subject to a civil violation as set forth in Section 5-12-19.

(25) **SCHEDULE OF FEES AND CHARGES:** Means the then current adopted City of Mesa Schedule of Fees and Charges.

(26) **TOUCH:** Means to make physical contact with an individual. The term shall include physical contact that occurs through clothing or by means of any object.

(Ord. No. 5644, § 1, 9-13-21)

5-12-2: ADMINISTRATION; BUSINESS LICENSING AND REVENUE COLLECTIONS ADMINISTRATOR; DUTIES; APPEALS

(A) It shall be the duty and responsibility of the Business Licensing and Revenue Collections Administrator to administer the provisions of this Chapter. Pursuant to this duty, the Business Licensing and Revenue Collections Administrator or his/her designee shall issue, renew, deny, suspend, or revoke licenses in accordance with this Chapter.

(B) Any party aggrieved by a decision of the Business Licensing and Revenue Collections Administrator or his/her designee under this Chapter may appeal within ten (10) calendar days after being sent notice of such decision by mail. The appeal shall be in writing, shall state the grounds for the appeal, and shall be sent to the Business Services Director. The Business Services Director, or a designated representative, shall schedule a hearing with a Hearing Officer within thirty (30) calendar days of receipt of the appeal and the Hearing Officer will render a decision within sixty (60) calendar days of the hearing. A hearing under Section 5-12-2(B) will occur in the same manner as set forth in Section 5-12-19 below.

(Ord. No. 5644, § 1, 9-13-21)

5-12-3: NEW LICENSE APPLICATION; FEE

(A) Any person desiring to obtain a license shall apply to the Licensing Office, who shall refer such application to the Chief of Police for appropriate investigation. Each application shall be accompanied by the fee required in accordance with the Schedule of Fees and Charges.

(B) Upon approval, prior to the issuance of a license, the applicant shall pay a first-year license fee in accordance with the Schedule of Fees and Charges.

(Ord. No. 5644, § 1, 9-13-21)

5-12-4: MASSAGE THERAPISTS; LICENSING OF A MASSAGE ESTABLISHMENT AND BODYWORK ESTABLISHMENT REQUIRED; EXCLUSIONS

(A) A person desiring to practice or in any manner to claim to practice massage therapy must first obtain and maintain in effect a current, unrevoked, and unsuspended massage therapist license as required by Arizona Revised Statutes and issued by the Arizona State Board of Massage Therapy.

(B) A person desiring to conduct or operate a massage establishment or bodywork establishment must first obtain and maintain in effect an unrevoked and unsuspended license as required by this Chapter.

(C) Any person licensed as provided in this Chapter must operate under the name or conduct business under the designation specified in such license.

(D) Any massage establishment or bodywork establishment licensed as provided in this Chapter must only conduct business at the location(s) specified in such license.

(Ord. No. 5644, § 1, 9-13-21)

5-12-5: MASSAGE ESTABLISHMENT AND BODYWORK ESTABLISHMENT LICENSE APPLICATION; CONTENTS; BUSINESS HOURS

Each applicant for a license to operate a massage establishment or bodywork establishment shall furnish the following information:

(1) Applicant's full legal name, business name, current business and residential phone numbers, legal form of applicant, current residence or legal address of the applicant, and current email address.

(2) If applicant is a natural person or sole proprietorship, applicant's physical description, and date and place of birth.

(3) Any other names by which the applicant is or has been known by at any time.

(4) The address of the proposed massage establishment or bodywork establishment.

(5) The mailing address for the purpose of receiving City notices and other licensing correspondence relating to the applicant, the licensee, or the enforcement of this Chapter.

(6) The name and mailing address of the landlord and property owner for purposes of receiving City notices relating to enforcement under this Chapter.

(7) A copy of any lease, license or other rental or occupancy agreement for the massage establishment or bodywork establishment location.

(8) Business hours of the massage establishment or bodywork establishment. The business hours submitted pursuant to this Chapter must be in accordance with Section 5-12-9(M).

(9) Applicant's addresses of primary residence and the dates of residence at each address for the ten (10) year period immediately preceding the date of the application.

(10) The name and address of the designated agent. The designated agent must be able to receive correspondence at the address set forth in Section 5-12-5(5) above.

(11) The name of all controlling persons for the applicant.

(12) Applicant's business, occupation, and employment history for the ten (10) year period immediately preceding the date of the application, including addresses and dates of employment.

(13) A valid government issued identification such as a driver's license, identification card, or passport demonstrating the applicant is at least eighteen (18) years of age.

(14) The business license history of the applicant indicating whether the applicant, while operating under a business license or permit issued by any city, county, state or federal agency, or any professional or vocational organization, had its license or permit revoked or suspended, and the reason for such suspension or revocation.

(15) Applicant's felony arrest and felony and misdemeanor convictions for the ten (10) year period immediately preceding the date of application, including dismissals, expungements, or convictions that have been set aside, but excluding those for civil traffic offenses, and the dates and jurisdictions of the convictions.

(16) The articles of incorporation, articles of organization, or certificate of limited partnership, or similar formation document, together with any amendments thereto, for an applicant that is a business entity.

(17) Residential and business addresses and telephone numbers for all controlling persons of the massage establishment or bodywork establishment.

(18) The following information for each controlling person of a massage establishment or bodywork establishment: the individual's business occupation and employment history for ten (10) years

preceding the date of the application; and the name and address of any massage establishment or bodywork establishment or similar business currently owned or operated by the individual whether inside or outside of the United States.

(19) From all controlling persons, a valid and current driver's license or identification issued by a state or federal governmental agency or other photographic identification bearing a bona fide seal by a foreign government.

(20) A signed statement from all controlling persons, the landlord, and property owner acknowledging that it is a class 3 misdemeanor under A.R.S. § 13-2908 to, by conduct either unlawful in itself or unreasonable under the circumstances, recklessly create or maintain a condition which endangers the safety or health of others, or to knowingly conduct or maintain any premises, place, or resort where persons gather for purposes of engaging in unlawful conduct.

(21) A schedule or list of services to be offered at the massage establishment or bodywork establishment.

(22) A clearly legible sketch or diagram showing the configuration of the overall business premises of the massage establishment or bodywork establishment that includes, at a minimum, all the following:

(a) The location of all interior doors, walls, curtains and room dividers.

(b) A description of the use of each interior space or room, including a designation, by type of use, of each room or space available for bodywork or massage therapy.

(c) A designation of each room or space that is being, or is intended to be, leased, subleased, or licensed for use by any person other than the applicant and a description of its intended and actual use.

The sketch or diagram need not be professionally prepared but shall be drawn on one (1) page measuring 8 ½ inches x 11 inches with marked dimensions of the interior of the premises to an accuracy of plus or minus six (6) inches. For purposes of this Section 5-12-5(22) a "wall" shall include any interior barrier, including transparent glass, which extends more than fifty-four (54) inches from the level of the finished floor.

(23) Such other identification and information as the Licensing Office may require.

(Ord. No. 5644, § 1, 9-13-21)

5-12-6: MANAGER, LANDLORD AND PROPERTY OWNER RESPONSIBILITY

No manager, landlord or property owner that has a massage establishment or bodywork establishment occupant, shall knowingly permit or negligently fail to take reasonable actions to prevent criminal activity from occurring in or on the premises of the massage establishment or bodywork establishment. A violation of this Section is a civil violation.

(Ord. No. 5644, § 1, 9-13-21)

5-12-7: EMPLOYEE AND CONTRACTOR INFORMATION; UPDATES

(A) Within ten (10) calendar days of a licensed establishment opening, the licensee shall provide a list to the City of all employees and independent contractors who will provide massage therapy or bodywork, their

employment position, date of hire, and a copy of their state issued massage therapist license if they will be performing massage therapy. Thereafter, the licensee shall submit a quarterly report to the City updating the information provided pursuant to this Section to include all employees and independent contractors who provide massage therapy or bodywork at the establishment.

(B) A licensee shall report to the Licensing Office within ten (10) calendar days any of the following:

(1) Arrests or citations of any employees, independent contractors or controlling person of the massage establishment or bodywork establishment for any offense other than a civil traffic violation;

(2) Resignations, terminations or transfers of any employees or independent contractors of the massage establishment or bodywork establishment; and

(3) Any changes to the information provided to the Licensing Office pursuant to Sections 5-12-4 and 5-12-5.

(C) Except as otherwise provided in this Chapter, any change in the information required to be submitted by this Chapter shall be submitted to the Licensing Office on the form prescribed by the Licensing Office for that purpose.

(Ord. No. 5644, § 1, 9-13-21)

5-12-8: LICENSE APPLICATION INVESTIGATION

(A) Any applicant for a license shall present the completed application to the Licensing Office containing all the information requested on the application and corresponding documents as prescribed in this Chapter.

(B) Each person applying for a license shall submit a full set of fingerprints to the City in a manner approved by the Licensing Office, including fingerprints for all controlling persons. The fingerprints will be submitted to the Arizona Department of Public Safety to be used to obtain a state and federal criminal records check in accordance with A.R.S. § 41-1750 and Public Law 92-544. The Arizona Department of Public Safety is authorized to exchange this fingerprint data with the Federal Bureau of Investigation.

(C) The Police Department, on behalf of the Licensing Office, will receive and review the criminal history record information resulting from the criminal records check set forth above, including conviction and non-conviction data, of license applicants and controlling persons for the purpose of evaluating the fitness of licensees and controlling persons in connection with the issuance, renewal, suspension or revocation of a license. Such information shall be used only for the purpose of such evaluation or for the purpose of supporting and defending a denial, non-renewal, suspension or revocation of a license.

(D) The Police Department shall have a reasonable time within which to investigate the application and background of the applicant and controlling persons. Based on such investigation, the Police Department shall recommend to the Licensing Office approval or denial of the license in accordance with this Chapter.

(Ord. No. 5644, § 1, 9-13-21)

5-12-9: MASSAGE ESTABLISHMENT AND BODYWORK ESTABLISHMENT LICENSES; SPECIAL REQUIREMENTS

(A) No license shall be issued: (i) if the applicant or a controlling person has been convicted during the ten (10) year period immediately preceding the date of application of any felony or misdemeanor offense having a reasonable relationship to a massage establishment; (ii) if the application was falsified; (iii) if the applicant or a controlling person has an outstanding warrant for his or her arrest; (iv) if the applicant or controlling person had a massage establishment or bodywork establishment license revoked during the three (3) year period immediately preceding the date of application; (v) if an applicant or controlling person had a massage establishment or bodywork establishment license denied within one (1) year preceding the date of application; (vi) if within three (3) years immediately preceding the date of the application, the license of any massage establishment or bodywork establishment was revoked that was located at the same physical address or within the same business complex; or (vii) if the applicant or a controlling person is not in compliance with any provision of this Chapter.

(B) No license shall be issued if the applicant or controlling person was convicted during the ten (10) year period immediately preceding the date of the application of any offense: (i) prescribed by A.R.S. Title 13, Chapters 14, 32, 23, or 35.1; (ii) prescribed by Mesa City Code, Title 6, Police Regulations; or (iii) any offense committed outside this state or City that, if committed in this state or City, would constitute a violation of any offense prescribed by A.R.S. Title 13, Chapters 14, 32, 23, or 35.1, or Title 6 of the Mesa City Code.

(C) No license shall be issued if the applicant or controlling person has any felony or misdemeanor charge pending in a court of competent jurisdiction having a reasonable relationship to the functions of a massage establishment or bodywork establishment. A renewal license may be issued if the licensee or controlling person has a felony or misdemeanor charge pending in a court of competent jurisdiction having a reasonable relationship to the functions of a massage establishment or bodywork establishment; however, the issuance of such renewal license shall not prevent the City from taking any action prescribed in this Chapter against the licensee should the licensee or controlling person be convicted of the pending charge.

(D) A licensee shall permit representatives of the Police Department and Mesa City code enforcement, and any other federal, state, county, or local agency in the performance of any function connected with the enforcement of any code, statute or regulation relating to human health, safety or welfare or structural safety, normally and regularly conducted by such agency, to inspect the premises of a massage establishment or bodywork establishment for the purpose of ensuring compliance with the law, at any time it is lawfully occupied or open for business. Personal effects of a client shall stay in the room within eyesight of the client or, at the client's request, shall be placed in a locker to which the client has the key.

(E) A licensee shall comply with the following requirements at all times:

(1) A readable sign shall be permanently affixed to or immediately next to the main entrance of the massage establishment or bodywork establishment and shall identify the licensee's trade name or business name as it appeared on the license application.

(2) Lighting of ten (10) foot candles, measured at a height of thirty (30) inches at the approximate center of the room or enclosure, shall be provided in each room or enclosure where services are performed on clients.

(3) Ventilation shall be provided in accordance with Title 4 of the Mesa City Code.

(4) Adequate equipment shall be provided for disinfecting and sterilizing instruments used in administering or practicing massage therapy or bodywork.

(5) Hot and cold running water, tempered by means of a mixing valve faucet.

(6) Closed cabinets shall be provided and used for the storage of clean linens.

(7) Notwithstanding any other requirement of this Chapter, a minimum of one (1) shower or tub shall be provided for any establishment offering any hydrotherapy services including whirlpool baths, saunas, steam baths, and herbal wraps.

(8) Any pool or spa shall be issued a permit and inspected as required by Title 4 of the Mesa City Code or Maricopa County Code, as applicable.

(9) All walls, ceilings, floors, showers, bathtubs, steam rooms, and all other physical facilities within the establishment must be in good repair and maintained in a clean and sanitary condition. Wet and dry heat rooms, steam or vapor rooms or cabinets, toilets and wash basins shall be thoroughly cleaned each day business is in operation. Shower compartments and bathtubs, where provided, shall be thoroughly cleaned after each use.

(10) Clean and sanitary sheets and towels shall be provided for each client of the establishment. The head rest of each table shall be provided with a clean and sanitary covering for each client.

(11) All wash basins within an establishment shall: (i) have hot and cold running water, tempered by means of a mixing valve faucet; (ii) provide sanitary towels placed in permanently installed dispensers or upon a permanently attached roll dispenser; and (iii) provide soap in a soap dispenser that is placed on or near the wash basin. A hand wash basin shall be provided in each treatment room providing hydrotherapy services, including whirlpool baths, saunas, steam baths and herbal wraps.

(12) A massage establishment or bodywork establishment shall not have any entrance or exit way providing a direct passageway to any type of sleeping or living quarters.

(13) A massage establishment or bodywork establishment must have a public entrance door, or a window made of glass or transparent material with an unobstructed line of sight connected to the sales transaction area of the massage establishment or bodywork establishment, unless the establishment has no doors or windows on the exterior of the building in which the massage establishment or bodywork establishment is located. The line of sight may not be obstructed by any means, including the use of furnishings, window dressing, plywood, paper, or other opaque materials.

(a) The unobstructed line of sight must permit a view of and from the sales transaction area through all exterior windows and public entrance and exit doors located in the sales transaction area.

(b) The unobstructed line of sight must, at a minimum, extend from four (4) feet above the ground to at least seven (7) feet above the ground.

(c) Any substance or material in conjunction with glazing material (i.e. window tint) placed on a transparent door or window required under Section 5-12-9(E)(13) to be unobstructed

must have a light transmission of more than thirty-three percent (33%) plus or minus three percent (3%) and a luminous reflectance no greater than thirty-five percent (35%) plus or minus three percent (3%).

(d) The requirements set forth in Section 5-12-9(E)(13) do not apply to doors and windows within a massage establishment or bodywork establishment adjoining rooms where massage therapy is performed.

(e) A licensee does not have to meet the requirements of Section 5-12-9(E)(13) if the licensee:

(i) Operates a massage establishment or bodywork establishment in which the licensee is the only massage therapist performing massage therapy or bodywork; and

(ii) The massage establishment or bodywork establishment consists of only one (1) room, not including any shower/bathing or bathroom facilities, as demonstrated in the sketch or diagram required to be submitted to the Licensing Office pursuant to Section 5-12-5(22).

(14) A massage establishment or bodywork establishment shall keep posted an unobscured multilanguage notice in the employee work area to be furnished by the City which outlines the crimes of sex trafficking (A.R.S. § 13-1307) and prostitution (A.R.S. § 13-3211) and provides contact information for the Police Department.

(15) A massage establishment or bodywork establishment shall not offer any massage therapy or bodywork services on a table shower.

(16) A massage establishment or bodywork establishment shall not advertise itself as a sexually oriented business as defined in Title 6 of the Mesa City Code.

(17) A massage establishment or bodywork establishment shall not permit massage therapy or bodywork to be performed in any area that shares any wall with any part of a day care center as defined in Mesa City Code Section 11-64-4(D).

(F) The name of any person provided to the Licensing Office pursuant to Section 5-12-9(L) whose employment at the massage establishment or bodywork establishment has terminated shall be reported to the Licensing Office, on the form prescribed by the Licensing Office for that purpose, within ten (10) calendar days after termination.

(G) An applicant and licensee shall be in compliance with Titles 4, 11, and 7 of the Mesa City Code.

(H) Any massage establishment or bodywork establishment application that is not in full compliance with this Chapter sixty (60) calendar days after initial filing of the application shall be denied, provided the Licensing Office may grant an additional period of up to ninety (90) calendar days upon written request of the applicant, prior to the expiration of the (60) sixty-day period, if applicant demonstrates the occurrence of circumstances that were beyond the applicant's control or other, similar good cause. Nothing in this Section 5-12-9(H) shall be construed to prevent the Licensing Office from denying a license as soon as a legal basis exists to do so.

(I) A licensee shall not operate under any name or conduct business under any designation not specified in such license and the application submitted for such license.

(J) A licensee shall not conduct business at any location not specified on such license.

(K) A licensee shall not implement changes in the services offered by a massage establishment or bodywork establishment, change the use or configuration of the premises of the massage establishment or bodywork establishment, change the designated agent, or change the business hours of the massage establishment or bodywork establishment without providing written notice to the Licensing Office and receiving written approval from the Licensing Office of such change.

(L) A licensee shall not employ a massage therapist whose true name and Arizona state-issued massage therapist license number has not previously been provided to the Licensing Office on the form prescribed by the Licensing Office for that purpose.

(M) No massage establishment or bodywork establishment shall remain open for business, provide massage therapy or bodywork services, dispatch massage therapists or bodywork providers, or permit employees or independent contractors to work off the premises on behalf of the massage establishment or bodywork establishment at any time between the hours of 10:00 p.m. to 6:00 a.m. Clients cannot be on the premises of the massage establishment or bodywork establishment after 10:30 p.m. All massage therapy and bodywork must be concluded by 10:00 p.m., however other business activities related to the massage establishment or bodywork establishment may continue until 10:30 p.m. A massage establishment or bodywork establishment may only be open for business during hours that have been approved by the Licensing Office as required by this Chapter.

(N) The ownership or control of the licensee shall not change during the term of the license such that a person, other than those listed on the application, would be deemed a controlling person for the licensee and either: (i) the new controlling person was not reported to the Licensing Office within ten (10) calendar days after he/she became a controlling person; or (ii) the new controlling person fails to meet the requirements that must be met by a controlling person as set forth in this Chapter.

(O) The licensee must maintain in the records of the Licensing Office, the name of an individual as a designated agent.

(P) No licensee shall knowingly permit, or negligently fail to take reasonable actions to prevent, criminal activity to occur in or on a massage establishment or bodywork establishment.

(Q) Any person performing bodywork shall wear a tag displaying their name and any person performing massage therapy shall wear a tag displaying their name and massage therapy license number issued by the State of Arizona.

(Ord. No. 5644, § 1, 9-13-21)

5-12-10: PUBLIC NUISANCE

Any massage establishment or bodywork establishment operated contrary to the provisions of this Chapter may be considered a public nuisance as defined in A.R.S. § 13-2917. The City may, in addition to any criminal prosecution that may occur, initiate proceedings for abatement, removal or enjoinment of the business in any manner authorized by law.

(Ord. No. 5644, § 1, 9-13-21)

5-12-11: APPLICATIONS; ADDITIONAL REQUIREMENTS

Every license shall be issued in accordance with applicable law, including A.R.S. § 41-1080. No license shall be issued to an individual if the individual does not present one or more of the documents listed in A.R.S. § 41-1080, indicating the individual's presence in the United States is authorized under federal law and complies with the Arizona Legal Workers Act.
(Ord. No. 5644, § 1, 9-13-21)

5-12-12: DISPLAY OF LICENSE; IDENTIFICATION; RETENTION AND INSPECTION OF RECORDS

(A) A licensee shall post their license in a conspicuous place upon the business premises of the massage establishment or bodywork establishment in a location that is clearly visible to the general public upon entry into the business. Every on duty person to whom an Arizona state-issued massage therapist license has been granted shall: (i) display the license or a clearly legible copy of the license in a conspicuous place upon the business premises in which they perform massage therapy that is clearly visible to the general public upon entry to the business; or (ii) maintain the license or a clearly legible copy of the license inside the massage establishment or bodywork establishment in a manner that allows for the license to be made readily available for inspection by the general public. The massage establishment or bodywork establishment licensee is responsible for ensuring all state-issued massage therapist licenses are properly displayed and current for any persons performing massage therapy on the premises of the massage establishment or bodywork establishment.

(B) A licensee shall maintain on the business premises all the following records for each employee or independent contractor providing services from the day of first employment or contracting through a period of ninety (90) calendar days after the date of last employment or contracting:

(1) For employees or independent contractors providing massage therapy, a copy of the state-issued massage therapist license.

(2) For all employees or independent contractors, a copy of a government issued identification document with photo of the massage therapist or bodywork provider. The copy of the government issued identification must clearly depict the photo of the individual and all information must be legible.

(C) A licensee shall maintain on the licensed business premises a copy of the most recent sketch or diagram required to be submitted to the Licensing Office pursuant to Section 5-12-5(22).

(D) A licensee or employee of a massage establishment or bodywork establishment shall make the records required to be maintained by Section 5-12-12 available for inspection upon demand by any law enforcement officer, code enforcement officer, or City regulatory license inspection official during any period of time that the establishment is open to the public or lawfully occupied.

(Ord. No. 5644, § 1, 9-13-21)

5-12-13: REQUIRED LOGS

A licensee shall ensure a secure and confidential log, written clearly in English, is maintained at the massage establishment or bodywork establishment of all massage therapy or bodywork administered. the log shall contain the following information: date, time, service provider's full name, home address, phone number, Arizona massage

therapy license number (as applicable), and type of each massage therapy or bodywork administered. The log shall be updated prior to the therapy or bodywork being administered. The log shall be retained for a minimum of one (1) year following any massage therapy or bodywork. The log shall be subject to inspection upon request by an agent or representative of the City. The inspection of the log will occur at the Police Department or other mutually agreeable location.
(Ord. No. 5644, § 1, 9-13-21)

5-12-14: LOCATION

A separate license shall be required for each massage establishment or bodywork establishment location in the City. A change of location of a massage establishment or bodywork establishment shall be approved by the Licensing Office and will necessitate the issuance of a new license that will be issued to the licensee provided that the licensee is in compliance with all City ordinances and regulations, completes the appropriate location change application, and submits a fee in accordance with the Schedule of Fees and Charges. Notwithstanding any other provision of this Chapter, no massage establishment or bodywork establishment shall be operated or maintained at a location until approved by the Licensing Office and the establishment has a current unsuspended and unrevoked license with the correct name and address posted in a conspicuous place in the establishment as required in Section 5-12-12.
(Ord. No. 5644, § 1, 9-13-21)

5-12-15: NON-TRANSFERABILITY OF LICENSE

Licenses issued pursuant to this Chapter are non-transferable; upon the sale or transfer of a massage establishment or bodywork establishment from person to person, the establishment license shall become null and void.
(Ord. No. 5644, § 1, 9-13-21)

5-12-16: TERM OF LICENSE; LICENSE RENEWAL

(A) Any license issued pursuant to this Chapter shall be valid for a term of one (1) year from the date of issuance. Any license issued pursuant to this Chapter, unless revoked, may be renewed by a licensee in accordance with this Chapter and such renewal shall be valid for a term of one (1) year. The completed renewal application must be submitted by the licensee no later than forty-five (45) calendar days prior to the expiration of the license along with the applicable renewal fee as set forth in the Schedule of Fees and Charges. The Licensing Office is authorized to obtain necessary information to update the original license application and to determine whether the license should be renewed.

(B) If a licensee fails to submit a complete renewal application with the applicable fee at least forty-five (45) calendar days prior to the expiration of the term of the license, the license shall expire at the end of the term of the license and will be deemed non-renewable. Licensees who fail to apply to renew their license, who wish to continue operating a massage establishment or bodywork establishment, must file a new application for license and may not operate a massage establishment or bodywork establishment until a new license has been issued.

(Ord. No. 5644, § 1, 9-13-21)

5-12-17: FEES

All fees are nonrefundable, are not prorated, and are set forth in the Schedule of Fees and Charges. (Ord. No. 5644, § 1, 9-13-21)

5-12-18: CRIMINAL VIOLATIONS

(A) It is unlawful:

(1) For any person to knowingly conduct or operate a massage establishment or bodywork establishment on the same business premises, as established under Section 5-12-5(22), whereon is also conducted or operated a sexually oriented business (as defined in Title 6 of the Mesa City Code), bar, cocktail lounge, photography studio, model studio, art studio, motion picture studio/theater, or telephone answering service.

(2) For any person to fail or refuse to permit a lawful inspection authorized by this Chapter immediately upon request.

(3) For any person to conduct massage therapy or bodywork services behind a locked door. It is not a violation of Section 5-12-18(A)(3) for a licensee to perform massage therapy or bodywork services behind a locked door if the licensee either:

(a) Utilizes a locking system approved in writing by the Police Department which provides the Police Department with the ability to unlock the doors during regular business hours of the massage establishment or bodywork establishment for the purpose of conducting a lawful inspection authorized by this Chapter.

(b) Meets both of the following requirements:

(i) Operates a massage establishment or bodywork establishment in which the licensee is the only person performing massage therapy or bodywork at the establishment; and

(ii) The massage establishment or bodywork establishment consists of only one room, not including any shower/bathing or bathroom facilities, as demonstrated in the sketch or diagram required to be submitted to the Licensing Office pursuant to Section 5-12-5(22).

(4) For any person to administer massage therapy or bodywork for a gratuity or compensation of any kind to a person whose genital organs or anus are not covered by opaque material.

(5) For any person, while on the premises of a massage establishment or bodywork establishment, to knowingly provide or offer to provide any service:

(a) In a manner or under circumstances intended to arouse, appeal to, or gratify sexual desires;

(b) In such a manner that the person touches the private anatomical areas of the individual receiving the treatment; or

(c) While the person providing the treatment is clothed in a manner that fails to cover his or her private anatomical areas with an opaque material.

(6) For any person on the premises of a massage establishment or bodywork establishment to intentionally view a completely or partially disrobed client if the viewing is not related to treatment under current practice standards and is intended to appeal to the prurient interest of the person or client.

(7) For any person, while on the premises of a massage establishment or bodywork establishment, to knowingly ask or direct a person to:

(a) Touch his or her own anus, genitals or breasts;

(b) Touch the anus, genitals, or breasts of any person on the premises; or

(c) Expose his or her genitals, anus or breasts to any person on the premises with the intention of appealing to the prurient interest.

(8) For any person, while on the premises of a massage establishment or bodywork establishment, to knowingly place any part of the body of a client in direct or indirect contact with the anus, genitals or breasts of any other person on the premises.

(9) For any person to knowingly operate or maintain a massage establishment or bodywork establishment at a location that has not been licensed by the Licensing Office.

(10) For any applicant for a license or renewal to fail to disclose all controlling persons on an application or, in the event the controlling person(s) changes, to fail to update said information with the Licensing Office.

(11) For any person to knowingly use a massage establishment or bodywork establishment as living or sleeping quarters.

(12) For any person to practice or in any manner to claim to practice massage therapy without first obtaining and maintaining in effect a current, unrevoked and unsuspended massage therapist license as required by the Arizona Revised Statutes and this Chapter.

(13) For any person to conduct or operate a massage establishment or bodywork establishment without first obtaining and maintaining in effect a current, unrevoked and unsuspended license as required by this Chapter.

(14) For any person to knowingly employ any other person to offer massage therapy who does not hold a current, unrevoked and unsuspended massage therapy license issued by the State of Arizona.

(15) For any person to offer bodywork or massage therapy in any room or space of the business that has not been specifically identified as a room or space available for those services on the sketch or diagram required to be submitted to the Licensing Office pursuant to Section 5-12-5(22).

(16) For any person to offer bodywork or massage therapy in a room or space designated as leased, subleased or licensed for use by any other person on the sketch or diagram required to be submitted to the Licensing Office pursuant to Section 5-12-5(22).

(17) For any person to provide massage therapy or bodywork services at any time between the hours of 10:00 p.m. to 6:00 a.m. at a massage establishment or bodywork establishment or at any location on behalf of a massage establishment or bodywork establishment.

(18) For any person to photograph a massage establishment or bodywork establishment client while the client is on the premises of the establishment and located within any treatment room, restroom, locker room, or dressing room without the express, written permission of that client. For purposes of Section 5-12-18(A)(18) the word "photographed" shall mean the use of any electronic or mechanical device to record, reproduce or transmit an optical image.

(19) A licensee shall not operate under any name or conduct business under any designation not specified in such license and the application submitted for such license.

(B) Habitual offender:

(1) A person who commits a civil violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on three (3) separate dates within a thirty-six (36) month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be a habitual offender guilty of a class 1 criminal misdemeanor. The Mesa City Prosecutor is authorized to file class 1 criminal misdemeanor complaints in the Mesa City Court against habitual offenders. For purposes of calculating the thirty-six (36) month period, the dates of the commission of the offenses are the determining factor.

(2) Upon conviction of a violation of this Section, the court may impose a sentence authorized by the laws of the State of Arizona for a class 1 misdemeanor, including incarceration not to exceed six (6) months in jail or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law, or both. The court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than $500 for each count upon which a conviction has been obtained and be placed on probation for up to 36 months.

(C) Whenever in this Chapter any act is declared to be unlawful, any person convicted of such a violation shall be guilty of a class 1 misdemeanor and shall be punished by a fine not less than $500 and not to exceed two thousand five hundred dollars ($2,500.00), by imprisonment not to exceed six (6) months, or by both fine and imprisonment. Each day any such violation continues shall constitute a separate offense. Revocation or suspension of a license shall not be a defense against prosecution. Every action or proceeding under this Chapter shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure.

(Ord. No. 5644, § 1, 9-13-21)

5-12-19: CIVIL VIOLATIONS

(A) A violation of any of the following Sections of this Chapter shall be a civil violation subject to the provisions of this Section 5-12-19:

(1) Section 5-12-6 [manager, landlord and property owner person responsibility];

(2) Section 5-12-9(E)(1) [signage];

(3) Section 5-12-9(E)(2) [lighting];

(4) Section 5-12-9(E)(3) [ventilation];

(5) Section 5-12-9(E)(4) [disinfecting and sterilizing equipment];

(6) Section 5-12-9(E)(5) [hot and cold running water];

(7) Section 5-12-9(E)(6) [linen storage];

(8) Section 5-12-9(E)(7) [shower or tub requirement];

(9) Section 5-12-9(E)(8) [pool or spa permit];

(10) Section 5-12-9(E)(9) [repair and maintenance of facility];

(11) Section 5-12-9(E)(10) [clean and sanitary sheets, towels, and head rest covering];

(12) Section 5-12-9(E)(11) [wash basins];

(13) Section 5-12-9(E)(13) [unobstructed line of sight];

(14) Section 5-12-9(F) [employee information provided to Licensing Office];

(15) Section 5-12-9(L) [employment of licensed massage therapists];

(16) Section 5-12-9(P) [failure to take reasonable action to prevent criminal activity];

(17) Section 5-12-12 [display of license; identification; retention and inspection of records];

(18) Section 5-12-13 [massage therapy log]; or

(19) Section 5-12-20(A)(1) [falsified application information].

(B) Any responsible party, whether by admission, default, or after a hearing, found responsible for a civil violation of this Chapter, shall pay a civil sanction of:

(1) $250 for the first violation in an eighteen (18) month period;

(2) $500 for the second violation in an eighteen (18) month period; and

(3) $750 for the third violation and each subsequent violation in an eighteen (18) month period.

(4) In applying the eighteen (18) month provision set forth in Section 5-12-19(B), the date of the commission of the offense shall be the determining factor.

(C) Each day in which a civil violation set forth in Section 5-12-19 continues shall constitute a separate civil offense.

(D) A civil action for violations of this Chapter may be commenced by issuance of a citation by any police officer, code enforcement officer, or City employee designated by the City Manager. The citation will be substantially in the form established by the City Manager or designee. The citation shall be served pursuant to the Arizona Rules of Civil Procedure.

(1) The citation shall advise the responsible party of the violation(s) committed, either by written description of the violations or by designation of the Mesa City Code section violated. The citation shall direct the responsible party to, within ten (10) calendar days of the issuance of the citation, pay the civil sanction or request a hearing before the Hearing Officer.

(2) The Hearing Officer may permit amendments to the citation to correct a technical defect made in good faith.

(E) If the responsible party pays the civil sanction, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If a responsible party served with a civil citation

fails to pay the civil sanction, request a hearing, or the request for a hearing is denied in accordance with Section 5-12-19(F), the violation in the civil citation shall be deemed admitted and the civil sanction may be collected as any other civil judgment, fine or fee due and payable to the City.

(F) Upon receipt of a citation for a civil sanction, a person may request a hearing. The request for hearing must meet the following requirements: (i) the request must be mailed to the Business Services Director and be postmarked no later than ten (10) calendar days after the issuance of the citation; and (ii) the request must set forth the grounds upon which the person is appealing the citation. Failure to meet the aforementioned requirements shall entitle the Business Services Director to deny the request for hearing.

(G) All proceedings before a Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. No prehearing discovery shall be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand.

(H) If the City or responsible party is aggrieved by a decision of a Hearing Officer, the aggrieved party may file a complaint of special action in Superior Court to review the Hearing Officer's decision at any time within thirty (30) calendar days after a final decision of the Hearing Officer has been rendered. Failure to bring the action within thirty (30) calendar days, or such other time as is agreed upon in writing by the City and the responsible party, shall constitute a waiver of any right to judicial review.

(Ord. No. 5644, § 1, 9-13-21)

5-12-20: DENIAL, SUSPENSION, REVOCATION, NONRENEWAL OF LICENSE

(A) In addition to any penalties set forth in this Chapter, an application for a license may be denied for any of the following reasons:

(1) Applicant submits an application with falsified information.

(2) Applicant fails to pay the required fee in accordance with the Schedule of Fees and Charges.

(3) Applicant or a controlling person for the applicant was convicted of a felony offense having a reasonable relationship to the functions of a massage establishment, massage therapist, or bodywork establishment during the ten (10) year period immediately preceding the date of application.

(4) Applicant or a controlling person for the applicant was convicted of untrue, fraudulent, misleading, or deceptive advertising during the ten (10) year period immediately preceding the date of application.

(5) Applicant or a controlling person for the applicant was engaged in the business of a massage therapist or person performing bodywork under a false or assumed name or was found to be impersonating another therapist, or person performing bodywork of a like or different name during the ten (10) year period immediately preceding application.

(6) Applicant or a controlling person for the applicant is currently in violation of this Chapter. Section 5-12-20(A)(6) shall apply regardless of the location at which the violation occurred.

(7) Any grounds for denial set forth in Section 5-12-9.

(8) Applicant failed to meet a requirement set forth in this Chapter or state law for the issuance of a license by the City.

(B) In addition to any penalties set forth in this Chapter, a license renewal application may be denied for any of the following reasons:

(1) For any of the grounds for denial set forth in Section 5-12-20(A).

(2) Applicant failed to submit the renewal application within the time frames prescribed by Section 5-12-16.

(C) In addition to any penalties set forth in this Chapter, a license shall be suspended if during the term of the license:

(1) Licensee or a controlling person for the licensee is convicted of a felony or misdemeanor criminal offense:

(a) Involving fraud in conducting the business of a massage establishment or bodywork establishment, or of fraud or deceit in obtaining the license;

(b) Involving prostitution, indecent exposure, or pornography;

(c) Involving untrue, fraudulent, misleading, or deceptive advertising; or

(d) Having a reasonable relationship to the functions of a massage establishment, massage, or bodywork establishment.

(2) The application upon which the license was awarded was found to contain false or misleading information, or the applicant failed to meet any of the requirements for the issuance of a license set forth in this Chapter.

(3) Licensee or a controlling person for the licensee knows or should have known that prostitution, indecent exposure, or pornographic acts are occurring or have occurred in the operation of the licensed massage establishment or bodywork establishment.

(4) The licensee ceased to use the license for the purposes of offering massage therapy or bodywork. The failure to offer massage therapy or bodywork at a licensed establishment for thirty (30) consecutive calendar days shall create a rebuttable presumption that the licensee has ceased to use the license for purposes of offering massage therapy or bodywork.

(5) If on two (2) or more occasions within an eighteen (18) month period, the licensee or a controlling person, employee, agent, representative or independent contractor of the licensee is convicted of an offense on the premises of any massage establishment or bodywork establishment owned, controlled, or operated by the licensee or a controlling person:

(a) Prescribed by Chapters 14 (Sexual Offenses), 32 (Prostitution), and 35.1 (Sexual Exploitation of Children) of the Arizona Criminal Code (A.R.S. Title 13);

(b) Prescribed by Mesa City Code, Title 6, Police Regulations; or

(c) Outside this state or City that, if committed in this state or City, would constitute a violation of any offense prescribed by Chapters 14, 23, 32, or 35.1 of Title 13 of the Arizona Criminal Code or Title 6 of the Mesa City Code.

(6) Licensee or a controlling person for the licensee is found to be a responsible party for a civil violation set forth in Section 5-12-19 through a hearing, default, or admittance.

(7) The penalty for a suspension under Section 5-12-20(C) shall be:

(a) For the first suspension of a license during an eighteen (18) month period, the license will be suspended up to fourteen (14) calendar days.

(b) For the second suspension of a license during an eighteen (18) month period, the license will be suspended a minimum of fifteen (15) calendar days up to a maximum of thirty (30) calendar days.

(c) For the third suspension of a license during an eighteen (18) month period, the license shall be revoked in accordance with Section 5-12-20(D).

(D) In addition to any penalty for a violation set forth in this Chapter, a license shall be revoked if the license was suspended in accordance with this Chapter on three (3) or more occasions during an eighteen (18) month period, or if any person is convicted of a criminal offense involving human trafficking or organized crime that was committed at or related to the massage establishment or bodywork establishment.

(E) Pursuant to Section 5-12-2, the Business Licensing and Revenue Collections Administrator or his/her designee has the authority to issue, renew, deny, suspend, or revoke licenses in accordance with this Chapter. Any party aggrieved by a decision of the Business Licensing and Revenue Collections Administrator, or his/her designee, may appeal the decision by requesting a hearing within ten (10) days of receipt of notice of the Business Licensing and Revenue Collections Administrator or his/her designee.

(1) The request for hearing must meet the following requirements: (i) the request must be mailed to the Business Services Director and be postmarked no later than ten (10) calendar days after the issuance of the notice of the decision of the Business Licensing and Revenue Collections Administrator or his/her designee; and (ii) the request must set forth the grounds upon which the person is appealing the decision. Failure to meet the aforementioned requirements shall entitle the Business Services Director to deny the request for hearing.

(2) Any appeal hearing shall be subject to the rules set forth in Section 5-12-19(G). Any request for judicial review of a Hearing Officer's decision shall be subject to the rules set forth in Section 5-12-19(H).

(3) The filing of an appeal will suspend the decision of the Business Licensing and Revenue Collections Administrator or his/her designee, or the Licensing Office until such time as the Hearing Officer has rendered their decision.

(4) Unless timely appealed, the suspension or revocation is effective ten (10) calendar days after the date on the notice.

(Ord. No. 5644, § 1, 9-13-21)

5-12-21: EXEMPTIONS

The provisions of this Chapter shall not apply to:

(1) Establishments whose employees are licensed pursuant to the laws of the State of Arizona to practice in the medical field or practice acupuncture, or that provide instruction in the medical field or acupuncture at an accredited school.

(2) Establishments whose employees are acting as trainers for any bona fide amateur, semiprofessional, or professional athletic team or athlete.

(3) Establishments whose employees are authorized by the laws of this state as barbers, cosmetologists, or aestheticians provided their activity is limited to the scope of their barber, cosmetology, or aesthetician license.

(4) Establishments whose employees are providing colon irrigation only.

(5) Businesses that are operating solely as a school approved by the Arizona State Board of Massage Therapy or cosmetology.

(Ord. No. 5644, § 1, 9-13-21)

5-12-22: LICENSES; CUMULATIVE REGULATION

(A) The licenses required in this Chapter are in addition to any business or transaction privilege tax license required by the Mesa City Code or applicable law.

(B) A state issued massage therapist license does not authorize one to operate a massage establishment or bodywork establishment in the City without first obtaining a license pursuant to this Chapter where applicable.

(C) An applicant for a massage establishment license need not have a massage therapist license. However, a massage establishment shall employ only Arizona state-licensed massage therapists to perform massage therapy.

(Ord. No. 5644, § 1, 9-13-21)

CHAPTER 13
RESIDENTIAL DEVELOPMENT FEE

5-13-1: DEFINITIONS

The following words and phrases, whenever used in this Chapter, shall have meanings respectively ascribed to them in this Section unless from the content a different meaning is clearly intended: (748, 756)

DWELLING UNIT: A room or group of rooms within a building containing cooking accommodations and designed to be used for living purposes, exclusive of units designed to be used primarily for transient occupancy purposes. For purposes of this definition, transient occupancy shall mean occupancy by any one (1) person or group of persons for a period of less than thirty (30) calendar days. (748, 756, 1773, 3501)

MANUFACTURED HOME: Same as "mobile home." A structure transportable in one (1) or more sections which, (1) in the traveling mode, is eight (8) body feet or more in width or forty (40) body feet or more in length

or, when erected on site, is three hundred twenty (320) or more square feet, (2) is built on a permanent chassis, (3) is designed to be used as a dwelling, with or without permanent foundation, when connected to utilities, and (4) is located on a manufactured home or recreational vehicle space, and not on a separate platted lot. This term shall not include a recreational vehicle as defined in this Chapter. (748, 756, 1773, 3501)

MULTI-RESIDENCE DWELLING: A dwelling unit in a building containing two (2) or more dwelling units, including units that are situated over one another, which are located within a Multiple Residence zoning district as outlined in Chapter 5, Title 11, Mesa City Code. (3501)

PERSON: An individual, firm, corporation, partnership, joint venture, association, estate, trust, or any other group or combination acting as a unit, and the plural as well as the singular number. (748, 756)

RECREATIONAL VEHICLE: A vehicle-type unit that is one (1) of the following: (1) a portable camping trailer mounted on wheels and constructed with collapsible partial side walls that fold for towing by another vehicle and unfold for camping; (2) a motor home designed to provide temporary living quarters for recreational, camping, or travel use, and built on or permanently attached to a self-propelled motor vehicle chassis or on a chassis cab or van that is an integral part of the completed vehicle; (3) a park trailer built on a single chassis, mounted on wheels, designed to be connected to utilities necessary for operation of installed fixtures and appliances, and having a gross trailer area of not less than three hundred twenty (320) square feet and not more than four hundred (400) square feet when it is set up, but excluding fifth wheel trailers; or (4) a travel trailer mounted on wheels, designed to provide temporary living quarters for recreational, camping, or travel use, or a size or weight that may or may not require special highway movement permits when towed by a motorized vehicle, and having a trailer area of less than three hundred twenty (320) square feet, and specifically including fifth wheel trailers. If a unit described in Subsection (5) requires a size or weight permit, it shall be manufactured to the standards of park trailers outlined in A119.5 of the American National Standards Institute Code. (3501)

SINGLE-RESIDENCE ATTACHED DWELLING: A one- (1-) family dwelling in a row of at least two (2) such units in which each unit is separated from any other unit by one (1) or more vertical common fire-resistant walls extending from ground to roof, each unit has its own front and rear access to the outside, and no unit is situated over another unit. (3501)

SINGLE-RESIDENCE DETACHED DWELLING: A building containing one (1) dwelling unit and that is not attached to any other dwelling by any means and is surrounded by open space or yards on all four (4) sides. This term shall include a manufactured home situated on a separately platted lot. (3501)

5-13-2: LEVY OF SOLID WASTE RESIDENTIAL DEVELOPMENT FEE

There is hereby levied and shall be collected by the Building Safety Director, for the purpose of defraying costs of solid waste collection equipment required by the City as a result of residential development, an occupations fee upon every person constructing any dwelling unit or units or establishing manufactured home spaces or lots or recreational vehicle spaces or lots both inside and outside the City limits where the City of Mesa is the solid waste service provider. The fees shall be in the amounts as set forth in the current schedule of fees and charges. (748, 1773, 2081, 2442, 3501, 3902, 4851, 5223)
(Ord. No. 5942, § 1, 6-2-25)

5-13-3: COLLECTION OF RESIDENTIAL DEVELOPMENT FEE

(A) The fee imposed by this Chapter shall be collected by the Building Safety Director, who shall be charged with the administration thereof. The fee for each unit listed in Section 5-13-2(A) and (B) shall be collected in conjunction with the issuance of a building permit for the construction of any of the listed units. The collection of fees for multi-residence dwelling units may be phased commensurate with the number of dwelling units approved for construction by means of a phased building permit. The fee for a manufactured home shall be collected in conjunction with the issuance of a building permit for the placement of that manufactured home in a manufactured home park or subdivision. The fee with respect to recreational vehicle spaces or lots shall be collected in conjunction with the issuance of a construction permit for the development of a recreational vehicle park or subdivision. The Building Safety Director shall not issue a building or construction permit until the fees required by this Chapter have been paid. (748, 756, 1266, 1773, 3041, 3501, 3902, 5223)

(B) If at the time of annexation to the City a current building permit has been issued by a jurisdiction other than Mesa, and is still valid for the construction of any dwelling unit or a current building permit has been issued and is still valid for the placing of a manufactured home in a manufactured home park or subdivision or a current construction permit has been issued and is still valid for the development of a recreational vehicle park or subdivision, the fee imposed by this Chapter shall not be collected. If a building permit for the construction of any dwelling unit has expired and has not been renewed at the time of annexation to the City, the developer of the dwelling unit shall be required to obtain a City of Mesa building permit and pay the fee imposed by this Chapter in conjunction with the issuance of said City building permit. (1266, 1773, 3041, 3501, 3902, 5223)

5-13-4: ESTABLISHMENT OF A CAPITAL IMPROVEMENT FUND AND USE OF FUNDS

All funds collected by the Building Safety Director pursuant to this Chapter shall be deposited in a nonlapsing fund called "Solid Waste Development Fund." All funds deposited in the Solid Waste Development Fund shall be used exclusively for the purchase of solid waste collection equipment. (748, 3501, 3902, 5223)

5-13-5: VIOLATION; PENALTY

Any person who shall construct a single-residence attached or detached dwelling unit or multi-residence dwelling unit(s) or place a manufactured home in a manufactured home subdivision or develop a manufactured home park or recreational vehicle park or subdivision without payment of the prescribed fee or who shall violate any of the provisions of the Mesa City Code as hereby amended shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment. Upon conviction, firms or corporations shall be punished by a fine not to exceed twenty thousand dollars ($20,000.00). Each violation continued shall be a separate offense, punishable as described above. (756, 1773, 2466, 3501)

CHAPTER 14
NATURAL GAS REGULATIONS*

5-14-1: PURPOSE AND INTENT

The following terms, conditions, limitations, regulations, and other requirements, which the City Council has determined are in the best interests of the City, shall be applicable to natural gas (gas) distribution by the City of Mesa (City) and the Department, except to the extent this Council may hereafter authorize exceptions to these rules in particular instances due to special circumstances. The Council shall require an application for such variation with justification for same to be presented in writing for consideration.
(Ord. No. 5706, § 2, 6-6-22)

5-14-2: DEFINITIONS

CUSTOMER: The person(s) or entity(ies) in whose name service is rendered, as evidenced by the request for such service by the applicant(s), or by the receipt and/or payment of bills regularly issued in their name regardless of the identity of the actual user of the service.

DEPARTMENT: The City Energy Resources Department or any successor identified by the City, which is responsible for enforcing the requirements of this Chapter.

DIRECTOR: Means the Director of the Department or designee.

GENERAL SERVICE CUSTOMERS: Customers not qualifying as Residential Customers.

MASTER METER CUSTOMERS: Customers who operate Master Meter Systems as defined by the Code of Federal Regulations Title 49, Section 191.

MCF: Thousand (1,000) cubic feet.

PUBLIC UTILITY FACILITIES EASEMENT OR PUBLIC UTILITY EASEMENT: Land granted or Dedicated to the City for utility related uses and improvements and associated appurtenances and facilities, as applicable.

RESIDENTIAL CUSTOMERS: Customers who utilize gas service in individually metered dwelling units for non-commercial purposes.

RIGHT-OF-WAY: Land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved for or dedicated to the City for street, highway, alley, public utility, or pedestrian walkway purposes.

SYSTEM: Municipal mains, valves, gate stations, service lines, meters, and other facilities used or useful in the distribution and provision of gas utility service by City.

TERMS AND CONDITIONS: The Terms and Conditions for the Sale of Utilities, as adopted and amended from time to time by Ordinance by the City.

THERM: That amount of gas having a heating value of 100,000 British Thermal Units (BTU).

***Editor's note**—Ord. No. 5706, §§ 1, 2, adopted June 6, 2022, repealed the former Ch. 14, §§ 5-14-1—5-14-8, and enacted a new Ch. 14 as set out herein. The former Ch. 14 pertained to similar subject matter, and derived from Ord. Nos. 1455, 1946, 2985, 3012, 3834.

UNAUTHORIZED USE OF GAS: Unauthorized use of gas shall mean:

(A) For any Customer, taking unmetered gas by bypassing the meter or modifying the gas meter so as to cause loss or reduction of registration of metered gas flows.

(B) For any Customer subjected to curtailment during a curtailment period, taking gas in excess of 2% greater than the quantity specified by the City.

(C) For any Customer with a maximum quantity specified in the gas service agreement between the City and the Customer, taking gas in any billing period in excess of the maximum quantity.

(D) For any Customer with a maximum connected load specified in a gas service agreement, the connection of equipment or appliances that cause the connected load to exceed the specified maximum.

(Ord. No. 5706, § 2, 6-6-22)

5-14-3: GENERAL PROVISIONS

(A) All Customers and persons receiving or using gas service from the System are subject to, must comply with, and are deemed to have consented to the provisions of this Chapter, the Terms and Conditions and the provisions of applicable rate schedules adopted by ordinances, and to such conditions of pressure and supply as the City may provide from time to time through the System and at the property and location served.

(B) All Customers and persons receiving and using gas service further take and use such service subject to, and agree to hold the City harmless from, any damages, losses or claims of any kind arising from loss, suspension or curtailment of service and shortage or insufficiency of supply.

(C) The City shall make all System connections, set all meters, and own all meters. All repairs on mains, meters, service lines to the meter, and service regulators must be made by the Department or as approved by the Director.

(D) The Department may require written agreements as a condition precedent to service:

1. Pursuant to the provisions of an adopted rate or this Chapter;
2. In connection with System extension or installation of other System facilities; or
3. When the Department, in its discretion, requires such an agreement due to other special circumstances of service as determined by the Director.

(Ord. No. 5706, § 2, 6-6-22)

5-14-4: MINIMUM REQUIREMENTS FOR GAS SERVICE

(A) The Customer will provide, at no cost to the City, Right-of-Way, a Public Utility Facilities Easement, or a Public Utility Easement, all in a form acceptable to the City, and as needed for the purpose of constructing, maintaining and operating the System, and for the service laterals and other facilities required on the Customer's property up to the point of delivery, which is generally the outlet side of metering equipment.

(B) As a condition of receiving service, all Customers grant a license to the City and an unconditional right of access to the premises of the Customer at all reasonable times for the purposes of meter reading, connection and disconnection of service as well as installing, removing, inspecting, operating, maintaining, repairing and replacing the System up to the point of delivery.

(C) The City may require that a Customer provide, at the Customer's own expense, suitable equipment necessary to reasonably limit fluctuations in flow and pressure caused by the Customer's equipment or operations where, in the sole judgment of the Department, such intermittent or fluctuating use of gas may result in either impairment of service to other Customers or damage to the System.

(D) All extensions of the System, however provided for, shall become the property of the City under control of the City. Clear title to any System facilities constructed by others shall be tendered to the City at no cost

prior to City providing service through such facilities. The City's approval and acceptance of any extension facilities shall be within the City's sole discretion, and subject to demonstration of construction in accordance with applicable engineering standards.

(E) When vegetation (trees, shrubs, vines, etc.) on a Customer's premises encroaches upon any part of the System and interferes or threatens to interfere with the ability to safely operate, maintain and protect the System, the City may prune or remove the vegetation and may charge the Customer for such costs. The City shall not be liable to Customer for any damages associated with the pruning or removal of such vegetation, including, but not limited to, the value of or replacement cost of such vegetation.

(F) A Customer shall not construct or install any structure (including walls, fences, mailboxes and other permanent objects) or excavate or place fill near any City facilities or part of the System in such a manner that such structure, excavation or fill interferes with the Department's ability to safely operate, maintain and protect the System. The City reserves the right to remove or modify any structure, fill any excavation, or remove any fill that interferes with the ability to safely operate, maintain and protect the System and may charge the Customer for such costs. The City shall not be liable to Customer for any loss or damage to Customer's property resulting from such action. The Department may also require the installation of bollards at the Customer's expense to protect metering and other City equipment.

(G) In accordance with AAC R14-5-202.I, any Customer or property owner that installs a source of ignition, an opening into a building, an air intake into a building or any electrical source that is not intrinsically safe on or within three feet of an existing or planned System component or facility (including the pressure regulator and its vent or source of release or any other source of release) shall be responsible for the timely remediation of the condition, which may include the removal or relocation of the electrical facilities, or payment to the City for the relocation of the gas facilities (where possible).

(H) Any Customer that allows or causes a condition that accelerates the corrosion of the System shall be responsible for the costs associated with the remediation of such condition.

(Ord. No. 5706, § 2, 6-6-22)

5-14-5: RATES

(A) The rates, fees and charges for gas service are those approved and adopted by ordinance of the City. For service where there are multiple available optional rates or provisions, the applicant shall designate the rates or provisions, or City may designate the rate or provision until the applicant makes such designation. The City is not required to notify existing Customers of available optional rates or provisions, and because of varying Customer usage patterns, the City cannot guarantee that a Customer's designated rate is the most economical. The City will not make any refunds if the Customer would have paid less for service had the Customer been billed on an alternate rate.

(B) Should a Customer elect to change to another available optional rate or provision, the change will become effective for the billing cycle commencing after the Customer has requested the change. Where optional rates or provisions are available, only one change requested by the Customer will be allowed in any twelve (12) month period unless otherwise specified by the rate or rate rider or as approved by the Director. The preceding limitation shall not apply where Customer operational changes result in ineligibility under a rate or rate rider.

(Ord. No. 5706, § 2, 6-6-22)

5-14-6: SERVICE, DISRUPTIONS, AND LIMITATION OF LIABILITY

(A) The City will, considering the existing circumstances and conditions and without undue preference or obligation to any Customer, make reasonable efforts to provide satisfactory service and to avoid unreasonable loss, suspension or curtailment of service. The City cannot, and does not, warrant or guarantee a continuous or uninterrupted level of service or delivery of gas to Customers. Service may at any time be suspended or curtailed due to emergencies, performing maintenance, making repairs, extending or replacing the System, other necessary work, or pursuant to the provisions of this Chapter. The Department will endeavor to provide notice of outages where reasonable and practicable. The City shall not be liable, however, for damages, losses or claims of any kind arising from the loss, suspension or curtailment of service.

(B) Customers who have any machinery, material, process or plant which requires a constant supply, flow, or pressure of gas shall at the Customer's own expense install upon their property such facilities as will prevent any damage in case service may, for any reason, be lost.

(C) The City will make reasonable efforts to reestablish lost service considering in all cases the Customer's needs and capacity required, the existing circumstances and conditions, and its obligations to other Customers. The restoration of service will be performed by the Department in the manner which, in the opinion of the Department, will result in the greatest public benefit.

(D) The City will also make reasonable efforts to complete the installation of new or replacement System mains and facilities within a reasonable time period, also considering the Customer's needs and capacity required, the existing circumstances and conditions, and its obligations to other Customers, but shall not be liable for any delays in completion of such installation.

(Ord. No. 5706, § 2, 6-6-22)

5-14-7: CURTAILMENT PRIORITIES

(A) In times of shortages of gas deliveries to the City which have or may have the effect of impairing the City's ability to render service, the City will make reasonable efforts to request conservation of Customers' gas use, prior to requiring curtailment of Customers' gas use or curtailing gas use by restricting or shutting off gas service.

(B) During a curtailment period, the Customer may utilize its allotted gas in the manner it desires provided the requested load curtailment is met.

(C) In establishing a procedure to affect curtailments in accordance with the terms of this Chapter, the Department may develop a plan whereby it may administer curtailments to customers on a basis other than strictly pro rata, provided that the burden of such curtailments on an aggregate basis shall be reasonably equitable as among similarly situated Customers.

(D) In the event of a partial or total failure in gas transmission or supply or a partial or total failure in the facilities or System of the City which threatens to impair the ability of the City to maintain the integrity of its System, the City may apportion its available supply of gas or capacity between and among Customers

or a portion thereof in a reasonable and practical manner as determined by City. In such event the City shall have the right to shut off, discontinue, re-establish, or continue service to any class or combination of classes of Customers, or a portion thereof.

(Ord. No. 5706, § 2, 6-6-22)

5-14-8: EXTENSIONS OF GAS MAINS, SERVICES AND METERING

The following governs the extension of the System for service to Customers whose requirements are usual and reasonable as determined by the Department.

(A) General Conditions for all Extensions of System Facilities for Service and Metering:

1. Extensions of the System, in all circumstances, are subject to the availability of (i) adequate capacity, (ii) suitable pressure, and (iii) the ability to meet the forecasted load requirements based upon the City's present and anticipated gas supply and transmission capacity.

2. Extensions must be designed and constructed for operation at those pressures as are determined by the Department for the area in which the extension is located.

3. The addition of new services must not cause an unacceptable reduction in capacity or pressure availability to existing or committed Customers, as determined by the Department based upon its present, anticipated, or designed infrastructure and forecasted load requirements.

(B) Cost of Extension of System Facilities for Service and Metering:

1. The Department will undertake an economic feasibility analysis to demonstrate the financial impact for the addition of proposed Customers, or for any upgrade required to an existing service. The methodology employed by the Department shall be applied uniformly and consistently to each customer class requiring a main extension.

2. The City and Customer may be required, based on the economic feasibility analysis, to enter an agreement for the extension of System facilities whereby funds are provided to the City which assure that the City will adequately recover the costs and expenses of extending service over a period not to exceed ten (10) years.

3. For any service or metering upgrades with fees and pricing specifically set forth in the City's Utility Service Fee Schedule or the Terms and Conditions of Service, unless otherwise specifically provided therein, the City may impose such adopted fees as an alternative to performing the analysis as set forth in this Section.

(Ord. No. 5706, § 2, 6-6-22)

5-14-9: NO VIOLATION OF PUBLIC SERVICE OBLIGATIONS

The foregoing rules are applicable to Customers in the City and for those Customers receiving City gas utility service outside its corporate boundaries and are adopted by order of the Mesa City Council. The City shall have no liability or obligation arising out of any refusal or curtailment or interruption or cessation of service effected or refused in accordance with the foregoing rules.

(Ord. No. 5706, § 2, 6-6-22)

5-14-10: NOTICE TO CUSTOMERS AND SAFETY RULES

To the extent practicable, the City shall attempt to give notice of pending curtailments or interruptions of gas service and re-establishment or recommencement of gas service following curtailments or interruptions; the City will comply with all applicable safety rules, regulations, standards, and procedures, including those in effect under the National Pipeline Safety Act.
(Ord. No. 5706, § 2, 6-6-22)

5-14-11: EMERGENCY SITUATION; PRIORITIES

In emergencies or disasters arising from unforeseen causes beyond the City's reasonable control, which threaten the operation or integrity of the System, including decrease or interruption of gas supply to or within the City's system or any part thereof due to line breaks; line freezes; equipment malfunctions; Acts of God, fire, flood, or other similar natural catastrophes; the imposition of any governmental codes, ordinances, laws, rules, regulations or restrictions; national emergencies, insurrections, pandemics, riots, or wars; or other similar casualty, the City shall take whatever steps it deems necessary or appropriate, and without notice or liability, may curtail service to any Customer or Customers if, in its sole judgment, such action will prevent or alleviate the emergency condition or protect the public health and safety. In such a case, the Department may apportion its available supply of gas among its Customers in the manner that appears equitable and of the greatest public benefit under conditions then prevailing and with due consideration for public health, safety, and welfare.
(Ord. No. 5706, § 2, 6-6-22)

5-14-12: PENALTIES

(A) If unauthorized use of gas occurs under the terms contained herein, the Customer shall be subject to the section and title "Unauthorized Use of Utilities" in the Terms and Conditions for the Sale of Utilities.

(B) Any person that violates any provision of this Chapter shall be guilty of a misdemeanor. Upon conviction, individuals shall be punished by a fine not to exceed $2,500, or by imprisonment for a period not to exceed six (6) months, or by such fine and imprisonment. Each instance of violation continued shall be a separate offense, punishable as described above.

(Ord. No. 5706, § 2, 6-6-22)

CHAPTER 15
SHORT-TERM RENTALS

5-15-1: PURPOSE; ADMINISTRATION; ENFORCEMENT

A. This Chapter is adopted to protect the health, safety, and welfare of the City's residents and visitors by enacting reasonable regulations of short-term rentals consistent with A.R.S. § 9-500.39 to help mitigate harmful abuses associated with short-term rentals while preserving property owners' rights to rent their property in a manner that does not disturb the peace or harm public health, safety, or welfare. Such reasonable regulations include requiring: (1) licensing of short-term rentals; (2) compliance with zoning, safety, and nuisance standards; (3) disclosure of contact information of the property owner or owner's designee responsible for responding to complaints, incidences, and emergencies associated with a short-term rental; (4) notification to neighboring properties that a property will be used as a short-term rental;

(5) prohibition, of the use of short-term rentals for illegal and harmful purposes; and (6) implementation of an administrative process to suspend short-term rental licenses and reasonable civil penalties for the misuse of short-term rentals.

B. It is the responsibility of the Licensing Administrator to administer the provisions of this Chapter, including the issuance, denial, and suspension of licenses. Pursuant to these responsibilities, the Licensing Administrator has the authority to create rules, regulations, and policies consistent with the purpose of this Chapter. The Mesa Police Department, Code Compliance, and any other City department, division, or official designated by the City Manager is authorized to enforce the provisions of this Chapter.

(Ord. No. 5734, § 1, 10-17-22)

5-15-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The term "including" means "including but not limited to" or "including without limitation." The term "shall" means a requirement or mandate. All references to laws or regulations mean such laws and regulations as amended or replaced. Definitions set forth in this Section apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

A.R.S.: Arizona Revised Statutes.

CIVIL HEARING OFFICER: The individual designated by the City Manager or their designee to conduct hearings and make rulings related to this Chapter on short-term rental license suspensions, civil violations, and citations issued.

EMERGENCY POINT OF CONTACT: The owner or owner's designee responsible for responding to complaints, incidences, and emergencies associated with the short-term rental in compliance with Subsection 5-15-5(A).

LICENSE: A short-term rental license issued to a person in accordance with the provisions of this Chapter.

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator, or such City employee who supervises the Licensing Office, or their designee.

ONLINE LODGING MARKETPLACE: As defined by A.R.S. § 42-5076.

OWNER: Any person who, alone or with other persons, has title to or interest in a short-term rental, with or without actual possession of the short-term rental.

OWNER'S DESIGNEE: An agent or representative of the short-term rental owner, such as a landlord, statutory agent, or property manager, or other designee, agent, executor, administrator, or guardian acting on behalf of the short-term rental owner, who controls or otherwise regulates the occupancy or use of the short-term rental.

PERSON: An individual, firm, partnership, joint venture, association, corporation, any other group or combination acting as a unit, or any other entity of whatever kind or nature.

SHORT-TERM RENTAL: Any individually or collectively owned residential unit, dwelling unit, or individual unit or group of units in a condominium, cooperative, or timeshare that is also a transient public lodging establishment or owner-occupied residential home offered for transient use that is not classified for property taxation under A.R.S. § 42-12001. A "short-term rental" is also commonly referred to as a "vacation rental."

SPECIAL EVENT: As defined by Mesa City Code Title 11, Chapter 87.

TIMELY MANNER: Within one (1) hour of the initiation of contact with the emergency point of contact regarding a complaint, incident, or emergency associated with a short-term rental for which public safety personnel are dispatched; and within twenty-four (24) hours of the initiation of contact with the emergency point of contact regarding all other complaints, incidences, and emergencies associated with a short-term rental. "Initiation of Contact" means the first actual contact or documented attempt to contact, such as leaving a voicemail at the designated number for the emergency point of contact or sending an email to the designated email address for the emergency point of contact.

TRANSIENT: As defined by A.R.S. § 42-5070.
(Ord. No. 5734, § 1, 10-17-22)

5-15-3: LICENSING REQUIREMENTS

A. A person shall not offer for rent or rent a short-term rental within the City without a valid license issued pursuant to this Chapter. Each day a short-term rental is operated without a valid license constitutes a separate offense.

B. A separate license is required for each short-term rental. A license is valid for one (1) year from the date of issuance or renewal. A license is non-transferable and non-assignable. Attempted transfer or assignment will void the license and all fees paid will be forfeited.

C. To obtain a new or renewal license, a person must submit to the City a complete application on the forms prescribed by the Licensing Administrator. A complete application shall include, at a minimum:

1. Name, address, phone number, and email address for the owner or, if the owner is a business entity, the name of the business entity, and the name, address, phone number, and email address of the business entity's statutory agent.

2. Address of the short-term rental.

3. The transaction privilege tax license number issued for the short-term rental by the State of Arizona, including the location code (where applicable).

4. Name, address, phone number, and email address for the emergency point of contact.

5. Acknowledgement of agreement to comply with all applicable laws, regulations, and ordinances in the operation of the short-term rental.

6. The fees prescribed in the City's then current schedule of fees and charges.

D. Complete renewal applications must be submitted to the Licensing Administrator no later than forty-five (45) calendar days prior to the expiration of a license; otherwise, the license will be deemed expired and

non-renewable. If a complete renewal application and the applicable renewal fee are not received by the required date, an application for a new license must be submitted and must include all information and fees required for a new license application.

E. The owner or owner's designee must update the Licensing Administrator in writing of any change to the application information listed in Subsection 5-15-3(C) within ten (10) calendar days of occurrence of the change.

F. The Licensing Administrator may deny issuance of a new or renewal license only for any of the following reasons:

1. Failure to provide the information and fees required by Subsections 5-15-3(C)(1)—(5).
2. Failure to pay the fees required in the City's then current schedule of fees and charges.
3. At the time of applying, the owner has a suspended license for the same short-term rental.
4. The applicant provides false information.
5. Within the five (5) year period immediately prior to submission of the new or renewal application, the owner or owner's designee was registered as a sex offender or was convicted of any felony act that either resulted in death or serious physical injury or involved the use of a deadly weapon.

(Ord. No. 5734, § 1, 10-17-22)

5-15-4: NOTIFICATION TO NEIGHBORS

A. Prior to offering for rent or renting a short-term rental within the City, the owner or owner's designee must provide notice in writing that the property will be used as a short-term rental as follows:

1. If the short-term rental is a single-residence unit, notice shall be provided to the owners or residents of all single-residence units and lots located (a) adjacent to the lot on which the short-term rental is located, (b) directly across the street from the lot on which the short-term rental is located, and (c) diagonally across the street from the lot on which the short-term rental is located. The requirements of this Subsection 5-15-4(A)(l) may be met by providing notice to all owners or residents of single-residence units and lots located within two hundred feet (200') of the property line of the lot on which the short-term rental is located.
2. If the short-term rental is a multiple-residence unit, notice shall be provided to the owners or residents of all residential units located on the same floor of the same building as the short-term rental.

B. The notification required by Subsection 5-15-4(A) must include the short-term rental license number issued by the City, short-term rental address, and the emergency point of contact information required by Subsection 5-15-3(C)(4).

C. Within ten (10) calendar days of request by the Licensing Administrator, the owner or owner's designee must submit to the Licensing Administrator an attestation of compliance with Section 5-15-4 that includes, at a minimum, all the following:

1. The license number for the short-term rental.
2. The address of each property notified.

3. A description of the manner in which the owner or owner's designee provided written notice to each property requiring notification.

4. The name and contact information of the person attesting to compliance with Section 5-15-4.

D. If the emergency point of contact information provided in a notification changes, the owner or owner's designee must, within ten (10) calendar days of occurrence of the change, provide additional notification in compliance with Section 5-15-4 of the updated emergency point of contact information.

(Ord. No. 5734, § 1, 10-17-22)

5-15-5: OPERATIONAL REQUIREMENTS

A. The emergency point of contact must affirmatively respond in a timely manner, no matter the time of day, to all complaints, incidences, and emergencies associated with the short-term rental and (1) shall respond in person if requested by public safety personnel, including the Mesa Police Department and the Mesa Fire and Medical Department, and (2) may respond in person or by phone or email in all other instances.

B. The owner or owner's designee must post the emergency point of contact information required by Subsection 5-15-3(C)(4) in a conspicuous place in the short-term rental that is clearly visible upon entry through the primary entrance to the short-term rental, in a form determined by the Licensing Administrator.

C. The owner or owner's designee must display the license number on each advertisement for the short-term rental.

D. The owner or owner's designee must maintain liability insurance covering bodily injury and property damage for each short-term rental in an amount determined appropriate by an insurance company but in no case may the amount be less than five hundred thousand dollars ($500,000) in the aggregate. The requirements of this Subsection 5-15-5(D) may be met by offering for rent and renting a short-term rental through an online lodging marketplace which provides insurance coverage equal to or greater than the insurance coverage required by this Subsection 5-15-5(D). Within ten (10) calendar days of request by the Licensing Administrator, the owner or owner's designee must provide to the Licensing Administrator commercially reasonable proof, as determined by the Licensing Administrator, of compliance with this Subsection 5-15-5(D).

E. Owners and owners' designees must at all times comply with federal, state, and local laws, rules, and regulations applicable to the short-term rental that are related to public health, safety, sanitation, solid waste, hazardous waste, tax privilege licensing (including advertising requirements), property tax registration, traffic control, pollution control, noise, property maintenance, and nuisance abatement.

F. The owner or owner's designee must maintain with the Maricopa County Assessor all information required pursuant to A.R.S. §§ 33-1901 through 33-1907.

G. In operating, renting, occupying, and using a short-term rental, all persons must comply with Mesa City Code Title 6, Chapter 12 regarding offensive, excessive, and prohibited noises; Mesa City Code Title 8, Chapter 6 regarding public nuisance, property maintenance, neighborhood preservation and animal regulations; and the Mesa Zoning Ordinance found in Mesa City Code Title 11.

H. A short-term rental may not be rented or used for any of the following uses or purposes:

1. Housing sex offenders.
2. Operating or maintaining a sober-living home.
3. Operating or maintaining an adult-oriented business including nude or topless dancing.
4. Selling or offering for sale, consideration, or entrance fee, liquor or illegal drugs.
5. Commercial display or production of pornography.
6. Obscenity as prohibited by A.R.S. Title 13, Chapter 35.
7. Special event requiring a special event license pursuant to Mesa City Code Title 5, Chapter 1.
8. Retail business, restaurant, banquet space, or other similar use.

(Ord. No. 5734, § 1, 10-17-22)

5-15-6: SUSPENSION

A. The Licensing Administrator shall suspend a license for up to twelve (12) months for any of the following reasons:

1. One (1) violation of this Chapter associated with a short-term rental that results in or constitutes any of the following:
   a. A felony offense committed by the owner or owner's designee (i) at the short-term rental, or (ii) within the area in which notification is required by Subsection 5-15-4(A)(1) or (2).
   b. A serious physical injury or wrongful death at or related to the short-term rental resulting from the knowing, intentional, or reckless conduct of the owner or owner's designee.
   c. The owner or owner's designee knowingly or intentionally renting or allowing the use of a short-term rental in violation of Subsection 5-15-5(H).
2. Three (3) violations of this Chapter associated with the same short-term rental within a twelve (12) month period; except not including violations that are for an aesthetic, solid waste disposal, or vehicle parking violation, unless the City demonstrates that the subject violation was also a serious threat to public health and safety. The twelve (12) month period shall be calculated starting on the date on which the first violation occurred.
3. If multiple violations arise out of the same response to an incident associated with a short-term rental, those violations shall be considered one (1) violation for the purpose of suspending a license pursuant to Subsection 5-15-6(A).

B. The following process shall apply to the suspension of a license by the Licensing Administrator:

1. The Licensing Administrator must give written notice to the owner or owner's designee of a violation that may result in the suspension of the license. The notice must include a description of the violation, the statutory or code reference, notification that a hearing may be requested, the time limit for requesting a hearing, and a warning that failure to timely request a hearing may result in suspension of the license. The notice must be served on the owner or owner's designee by either

personal service or registered/certified mail using the address provided pursuant to Subsection 5-15-3(C)(4). Service of the notice will be deemed complete upon mailing to, or receipt of personal service on, the owner or owner's designee.

2. The owner or owner's designee receiving a notice under Subsection 5-15-6(B) may request a hearing. If requested, the hearing will be conducted in the same manner as set forth in Mesa City Code Section 8-6-8. Requesting a hearing will stay the decision of the Licensing Administrator to suspend a license until the Civil Hearing Officer has rendered their decision. If the decision to suspend the license is upheld by the Civil Hearing Officer, and the original period of suspension has passed, in whole or in part, the Civil Hearing Officer may designate the period of suspension for up to twelve (12) months.

3. If the owner or owner's designee does not request a hearing, the Licensing Administrator may suspend the license for up to twelve (12) months.

C. In addition to Subsections 5-15-6(A)(l) and (2), judicial relief in the form of a suspension of the property's use as a short-term rental may be granted in accordance with Subsection 5-15-7(F)(3).

D. If a license is .suspended pursuant to this Chapter, the short-term rental is prohibited from operating during the suspension period and, if the suspension is for a period beyond the term of the license, then, in order to operate the short-term rental, the owner will be required to obtain a new license pursuant to Section 5-15-3 after the completion of the suspension period. A person may not apply for a new license for a short-term rental until the suspension period is over.

(Ord. No. 5734, § 1, 10-17-22)

5-15-7: CIVIL VIOLATIONS AND PENALTIES

A. No person shall operate, offer for rent, rent, occupy, or use a short-term rental in violation of any provision of this Chapter or other applicable law, rule, or regulation.

B. The owner shall be subject to the suspensions, civil violations, and penalties set forth in this Chapter for the owner's designee's violation of any provision of this Chapter or failure to perform any act or duty required by this Chapter.

C. Each day a violation of any provision of this Chapter continues shall constitute a separate violation.

D. Any person who violates a provision of this Chapter will be subject to a civil code offense in accordance with Mesa City Code Section 8-6-8. Except as set forth in Subsections 5-15-7(E) and (F), a person found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, shall pay a penalty of two hundred and fifty dollars ($250).

E. The owner shall be subject to the following penalties if any person causes, permits, facilitates, aides, or abets any violation of a provision of this Chapter or fails to perform any act or duty required by this Chapter:

1. Five hundred dollars ($500) for the first violation.

2. One thousand dollars ($1,000) for the second violation related to the same short-term rental within the same twelve (12) month period.

3. Two thousand dollars ($2,000) for the third violation related to the same short-term rental within the same twelve (12) month period.

4. If multiple violations arise out of the same response to an incident at a short-term rental, those violations shall be considered one (1) violation for the purpose of imposing civil penalties pursuant to Subsection 5-15-7(E).

F. In addition to any penalty or suspension that may be imposed pursuant to this Chapter, the penalties and suspension set forth in this Subsection 5-15-7(F) may be imposed. Before imposing the initial penalty under Subsection 5-15-7(F)(l) or (2), the City must provide owner or owner's designee thirty (30) calendar days written notice of the failure to comply.

1. The owner shall be subject to the following penalties for each month the owner or owner's designee fails to submit a complete application as set forth in Subsection 5-15-3(C) for a license for the same short-term rental:

   a. Two hundred and fifty dollars ($250) for the first month.

   b. Five hundred dollars ($500) for the second month.

   c. Seven hundred fifty dollars ($750) for the third month.

   d. Nine hundred dollars ($900) for the fourth month and each subsequent month thereafter.

2. The owner shall be subject to the following penalties for each month the owner or owner's designee fails to provide accurate and complete contact information required by Subsection 5-15-3(C)(4) for the same short-term rental:

   a. Two hundred and fifty dollars ($250) for the first month.

   b. Five hundred dollars ($500) for the second month.

   c. Seven hundred fifty dollars ($750) for the third month.

   d. Nine hundred dollars ($900) for the fourth month and each subsequent month thereafter.

3. Any attempted or completed felony act arising from the occupancy or use of the short-term rental that results in a death or actual or attempted serious physical injury may result in the suspension of the property's use as a short-term rental. The City Prosecutor or their designee may initiate proceedings in the Mesa Municipal Court or other court of competition jurisdiction to enforce the provisions of this Subsection 5-15-7(F)(3). If proven by a preponderance of the evidence, the Court shall suspend the property's use as a short-term rental for a period of time not to exceed twelve (12) months.

(Ord. No. 5734, § 1, 10-17-22)

CHAPTER 16
USE TAX*

CHAPTER 17
DEVELOPMENT IMPACT FEES†

5-17-1: FINDINGS AND PURPOSE

The City Council of Mesa, Arizona, finds that: (3502)

(A) Both population and employment within the City continue to grow creating demands for new residential and nonresidential development. (3502)

(B) New development often overburdens existing public facilities, including water and wastewater systems, parks, libraries, fire facilities and equipment, public safety facilities and equipment, and stormwater drainage systems. (3502, 4234, 4239, 4240, 5071)

(C) The protection of the health, safety, and general welfare of the citizens of the City requires that the public facilities of the City be expanded and improved to meet the demands of new development. (3502)

(D) Under the City's current laws, taxes, fees, utility charges, and other forms of revenue collected from new development do not generate sufficient funds to provide those public facilities required to serve the new development. (3502)

(E) An equitable development impact fee system, as established by this chapter, enables the City to impose a more proportionate share of the costs of required improvements to the water and wastewater systems, parks, libraries, fire facilities and equipment, public safety facilities and equipment, and stormwater drainage systems on those developments that create the need. (3502, 4039, 4234, 4239, 4240, 4706, 5071)

(F) All types of development that are not explicitly exempted from the provisions of this ordinance generate demand for the types of facilities for which impact fees are being imposed pursuant to this Chapter. (3502, 3875, 4039)

(G) The Impact Fee Study, as defined herein, sets forth reasonable methodologies and analyses for determining the impacts of various types of development on the City's public facilities, and for determining the cost of acquiring land and the cost of acquiring or constructing facilities and equipment necessary to serve new development. (3502, 3875, 4706, 5071)

(H) The assumptions and service levels referenced in the Impact Fee Study were those in existence at the time the Impact Fee Study was completed. (3502, 3875, 4039, 4706)

(I) The Pledged Debt Analysis for Continuation of Impact Fees, as defined herein, sets forth the basis and analysis for the continuation of the City's current impact fees (as determined in the Impact Fee Study) for

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***Editor's note—**Ord. No. 2175 repealed Chapter 16.

†Editor's note—Chapter 17 is amended to read as herein set out and derived from Ord. Nos. 1471, 1790, 1838, 2100, 2241, 2356, 2596, 2658, 2786, 2909, 3003, 3041, 3100, 4706, 5071, 5189.

Water, Wastewater, Parks, Library, Fire, Public Safety and Storm Water facilities until sufficient funds have been collected to repay all of the debt amounts for which the fees were pledged, as authorized by SB 1525, Fiftieth Legislature, First Regular Session (2011). (5189)

(J) The impact fees described in this Chapter are based on the Impact Fee Study and the Pledged Debt Analysis for Continuation of Impact Fees. (3502, 3875, 4039, 5189)

(K) The types of improvements to each type of public facility considered in the Impact Fee Study and the Pledged Debt Analysis will benefit all new development in the City, and it is therefore appropriate to treat the entire City as a single service area for purposes of assessing, collecting, and expending the impact fees for each type of facilities. (3502, 3875, 4039, 4706, 5189)

(L) There is both a rational nexus and a rough proportionality between the development impacts created by each type of new development covered by this Chapter and the impact fees that each such development will be required to pay. (3502, 3875, 4039, 4706, 5189)

(M) This Chapter allows for the continuation of development impact fees that the City adopted prior to January 1, 2012, and that were, and hereby are again, pledged to repay debt service obligations related to the construction of impact fee eligible facilities for Water, Wastewater, Parks, Library, Fire, Public Safety and Storm Water facilities as allowed by A.R.S. § 9-463.05. (3502, 3875, 4039, 5189)

(N) This Chapter creates a system of impact fees in compliance with the requirements of A.R.S. § 9-463.05. (3502, 3875, 4039, 5189)

5-17-2: AUTHORITY AND APPLICABILITY

(A) This Chapter is enacted pursuant to the City's general police power, the authority granted to the City by the Arizona State Constitution, and A.R.S. § 9-463.05. (3502, 3875, 5189)

(B) The provisions of this Chapter shall apply to all of the territory within the corporate limits of the City, and within the City's water and wastewater service areas. (3502, 3875)

(C) The City Manager or his designee is authorized to make determinations regarding the application, administration and enforcement of this Chapter. The application, administration, and enforcement of this Chapter shall comply with any applicable requirements of A.R.S. § 9-463.05. (4706, 5189)

5-17-3: INTENT:

(A) The intent of this Chapter is to ensure that new development bears a proportionate share of the cost of improvements to the City's water and wastewater systems, parks, libraries, fire facilities and equipment, public safety facilities and equipment, and stormwater drainage systems as allowed by the Arizona State Constitution and A.R.S. § 9-463.05. (3502, 3875, 4039, 4234, 4239, 4240, 5071, 5189)

(B) This Chapter provides for the continuation of development impact fees (adopted by the City prior to January 1, 2012) for Water, Wastewater, Parks, Library, Fire, Public Safety and Storm Water facilities until sufficient funds have been collected to repay all of the debt amounts for which the fees were pledged as identified in the Pledged Debt Analysis for Continuation of Impact Fees, at such time, the collection of the

impact fee for such impact fee category (each impact fee category being treated separately) shall automatically cease until a new or updated development impact fee is adopted in compliance with A.R.S. § 9-463.05. (3502, 3875, 4039, 5189)

(C) It is not the intent of this Chapter that any monies collected from any impact fee and deposited in an impact fee fund shall ever be commingled with monies from a different impact fee fund or ever be used for a type of public facility different from that for which the impact fee was paid. (3502, 3875, 4039, 4706)

5-17-4: DEFINITIONS

The following words and phrases, whenever used in this Chapter, shall have the meanings respectively ascribed to them in this Section unless from the context a different meaning is clearly intended: (3502, 4039)

APPLICANT: A person who applies to the City for a permit. (4039)

BUILDING AREA: For fees assessed on the basis of square feet, building area shall be calculated as follows:

Building area shall include all areas within the surrounding exterior walls, measured to the outside of such walls, exclusive of vent shafts and courts. Building area shall also include areas of buildings within the horizontal projection of the roof or floor above, which do not have surrounding exterior walls but exceed three feet (3') in horizontal dimension. Building area shall also include basements, if provided, and outdoor patios without roofs for restaurants, bars or similar occupancies (per Title 4 Chapter 2 of the Mesa City Code). (4706, 5189)

CHANGE IN USE: A development that modifies the housing type, meter size, or land use type applicable to the lot. (3547, 3875, 4039, 5189)

CONNECTION: The physical tie-in of a private water or wastewater service or system to the City's public water or wastewater system. (3502, 3875)

DEVELOPMENT: Any construction or expansion of a building, structure, or use, any change in use of a building or structure, or any change in the use of land. (3502, 4039)

DWELLING UNIT: A room or group of rooms within a building containing cooking accommodations and designed to be used for living purposes. The term dwelling unit shall include an apartment, but shall not include a hotel room, guest room in a boarding house, or other transient occupancy by any one (1) person or group of persons for a period of less than thirty (30) calendar days or accessory living quarters. (3502, 4706)

HOTEL/MOTEL: A facility containing 6 or more commercial guest rooms utilized for short term transient occupancy which provides continuous on-site management. The term shall include those facilities subject to the Transient Lodging Tax provided in Sections 5-10-444 and 5-10-447 of the Mesa City Code, but shall not include nursing or convalescent homes, boarding houses, bed and breakfast establishments, or apartment buildings. (3875, 5189)

HOUSING TYPE: The categories of housing types as set forth in Table 1 attached to this Chapter. (4039, 4706)

IMPACT FEES: The water impact fee, wastewater impact fee, park impact fee, library impact fee, fire impact fee, public safety impact fee, and stormwater impact fee. (3502, 4234, 4239, 4240, 5071)

IMPACT FEE FUNDS: The water impact fee fund, wastewater impact fee fund, park impact fee fund, library impact fee fund, fire impact fee fund, public safety impact fee fund, and stormwater drainage impact fee fund. (3502, 4234, 4239, 4240, 5071)

IMPACT FEE STUDY: The Impact Fee Study for the City of Mesa, Arizona prepared by Duncan-Associates dated May, 2007. (3875, 4039, 4234, 4239, 4240, 4706)

IMPACT FEE TABLES: Table 1 attached to this Chapter and included in this Chapter by reference. (3502, 3875, 5071)

IMPROVEMENT: Planning, land acquisition, engineering design, construction inspection, on-site construction, off-site construction, equipment purchases, and financing costs associated with new or expanded facilities, buildings, and equipment that expand the capacity of a key public facility. (3502)

KEY PUBLIC FACILITY: One (1) or more elements of the City's water and wastewater systems, parks, libraries, fire facilities, public safety facilities, and stormwater drainage systems included in the calculations of the development impact fees in the Impact Fee Study. (3502, 3875, 4234, 4239, 4240, 5071)

LAND USE TYPE: The categories of land use type as set forth in Table 1 attached to this Chapter. (4039, 4359, 4706)

LOT: A piece or parcel of land separated from other pieces or parcels by description, as in a subdivision or on a recorded survey map, or by metes and bounds, for purposes of sale, lease or separate use. (4039, 5189)

MANUFACTURED HOME: Same as "mobile home." A structure transportable in one (1) or more sections which, (1) in the traveling mode, is eight (8) body feet or more in width or forty (40) body feet or more in length or, when erected on site, is three hundred twenty (320) or more square feet, (2) is built on a permanent chassis, and (3) is designed to be used as a dwelling, with or without permanent foundation, when connected to utilities. This term shall not include a recreational vehicle as defined in this Chapter. (3502, 3875, 4706)

METER SIZE: The category of meter size as set forth in Table 1 and Table 2 attached to this Chapter. (4039)

MULTI-RESIDENCE DWELLING: A dwelling unit in a building containing two (2) or more dwelling units, including units that are situated over one another. (3502, 5189)

NON-RESIDENTIAL: All land uses (which includes commercial and industrial), except single residence detached dwellings, single residence attached dwellings, multi-residence dwellings, manufactured homes, recreational vehicles or similar uses. (4706, 5189)

PERSON: Any person, partnership, firm, company, limited liability entity or corporation. (4039, 5189)

PERMIT: Any permit authorized to be issued pursuant to the provisions of Chapter 1, of Title 4 and Chapters 6 and 8 of Title 9 of the Mesa City Code. (4039, 4706)

PLEDGED DEBT ANALYSIS FOR CONTINUATION OF IMPACT FEES: The Pledged Debt Analysis for Continuation of Impact Fees for the City of Mesa, Arizona prepared by Duncan-Associates dated April 16, 2013. (5189)

RECREATIONAL VEHICLE: A vehicle-type unit that is one (1) of the following: (1) a portable camping trailer mounted on wheels and constructed with collapsible partial side walls that fold for towing by another vehicle and unfold for camping; (2) a motor home designed to provide temporary living quarters for recreational, camping, or travel use, and built on or permanently attached to a self-propelled motor vehicle chassis or on a chassis cab or van that is an integral part of the completed vehicle; (3) a park trailer built on a single chassis, mounted on wheels, designed to be connected to utilities necessary for operation of installed fixtures and appliances, and having a

gross trailer area of not less than three hundred twenty (320) square feet and not more than four hundred (400) square feet when it is set up, but excluding fifth wheel trailers; or (4) a travel trailer mounted on wheels, designed to provide temporary living quarters for recreational, camping, or travel use, or a size or weight that may or may not require special highway movement permits when towed by a motorized vehicle, and having a trailer area of less than three hundred twenty (320) square feet, and specifically including fifth wheel trailers. (3502, 4706)

SINGLE-RESIDENCE ATTACHED DWELLING: A one- (1-) family dwelling in a row of at least two (2) such units in which each unit is separated from any other unit by one (1) or more vertical common fire-resistant walls extending from ground to roof, each unit has its own front and rear access to the outside, and no unit is situated over another unit. (3502)

SINGLE-RESIDENCE DETACHED DWELLING: A building containing one (1) dwelling unit and that is not attached to any other dwelling by any means and is surrounded by open space or yards on all four (4) sides. This term shall include a manufactured home situated on a separately platted lot. (3502)

STORMWATER DRAINAGE IMPACT FEE MAP: The Stormwater Drainage Impact Fee Map attached to this Chapter and included herein. (4706)

SQUARE FEET: Each unit of building area equal to one hundred and forty-four (144) square inches. (3875, 4234, 4706)

5-17-5: IMPOSITION OF IMPACT FEES

(A) Impact Fees Required. Any person who obtains a building permit, a right-of-way permit, or any other permit, is required to pay the applicable water impact fee, wastewater impact fee, park impact fee, library impact fee, fire impact fee, public safety impact fee, and stormwater drainage impact fee unless the type of development described in the permit is specifically exempted by this Chapter. In addition, any person who seeks a connection to the City water system shall pay a water impact fee, and any person who seeks a connection to the City wastewater system shall pay a wastewater impact fee, regardless of whether the development to be connected requires a building permit or other permit. (3502, 3875, 4039, 4234, 4239, 4240, 4706, 5071)

(B) Timing of Payment. Any person required by this Chapter to pay one (1) or more impact fees, shall pay each impact fee required by this Chapter to the City prior to, or in conjunction with, the issuance of any such permit, or prior to the completion of any connection to the City's water and wastewater systems; and no such permits shall be issued and no such connections shall be made until each impact fee required by this Chapter has been paid. All impact fees paid pursuant to this Chapter shall be promptly deposited in the appropriate impact fee funds described in Section 5-17-7. (3502, 3875, 4039, 4706)

(C) Calculation of Impact Fees from Impact Fee Tables.

1. The City Manager, or his designee, shall determine the amount of each required impact fee through the use of the impact fee table set forth in this Chapter. (3502, 3875, 4706, 5189)

2. Land Use Type. The City Manager, or his designee, shall determine the land use type for each development based on the land use or land uses applicable to the lot to be developed in its entirety. If a lot consists of two (2) or more separate areas with different land uses applicable to each

separate area, then the impact fee shall be determined by adding up all the fees that would be applicable for each land use type in each separate area. Determinations of the land use type may be appealed to the City Manager or his designee. (3502, 4039, 4234, 4706, 5189)

3. Meter Size. The City Manager, or his designee, shall determine the meter size for each lot based on the actual meter size installed on each lot. If the exact meter size is not listed in a table, then the City shall use the next largest meter size in such table. If a lot consists of two (2) or more separate areas with separate meters in each separate area, then the impact fee shall be determined by adding up all the fees that would be applicable for each meter size in each separate area. (3502, 4039, 4706, 5189)

4. Calculation of Square Footage. In assessing the development impact fees for the nonresidential land use type, any determination of square footage shall be in whole units, with any fractions thereof being rounded up to the next square foot. (4234, 4706)

5. Existing development credits. Impact fees for development projects involving an addition to or remodeling of an existing facility, change of use, change of housing type, change of meter size or other modification or redevelopment of a previously developed lot or building with a valid certificate of occupancy shall be calculated as follows:

   The applicable impact fees for each proposed housing type, land use type and meter size as set forth in the current impact fee tables minus the applicable impact fees for each existing or previous housing type, land use type and meter size as set forth in the current impact fee tables. Calculated amounts equal to or less than zero dollars ($0.00) shall result in no additional impact fee for that specific impact fee or fees. Unused credit amounts shall not be refunded to the owner or applicant, but shall run with the land until utilized in full. (4706)

6. If a manufactured home housing type is located on a separately platted lot, the impact fees shall be calculated as for single residence detached dwelling. If a manufactured home housing type is located on a recreational vehicle park space, the impact fees shall be calculated as for manufactured home/recreational vehicle. (4706)

5-17-6: EXEMPTIONS FROM IMPACT FEES

(A) General Exemptions. The following types of development shall be exempt from payment of specified impact fees otherwise due pursuant to this Chapter. Except for claim(s) resulting from unforeseen conditions, the City Manager, or his designee, shall evaluate every permit application for applicability of the exemption criteria as follows: (3502, 3547, 3875, 4039, 4359, 4706, 5189)

1. Facilities located within the City and owned by the City will be exempt from payment of impact fees if the proposed facility will produce no additional demand for a specific necessary public service. The City Manager, or his designee, will evaluate such proposed facilities for applicability of the demonstration of no additional demand pursuant to this Chapter. (3502, 4706, 5189)

2. Public schools, school districts and Charter Schools located within Mesa shall be exempt from payment of all impact fees in accordance with A.R.S. § 9-500.18, except applicable water and wastewater impact fees. (4706, 5189)

3. Water and wastewater impact fees shall not be charged for the installation of fire protection systems or lines, provided that such system or line is not served by a water meter. (3502, 4039, 4706)

4. Separate water meters installed for irrigation purposes only shall not be included in the calculation of the wastewater impact fee. (3502, 4706)

5. Separate water meters installed for irrigation purposes only that meet one (1) of the following conditions shall not be included in the calculation of the water impact fee: (3502, 4039, 4706)

   (a) dwelling units for which applicable impact fees were assessed and paid on a dwelling-unit basis; or (3502, 4039)

   (b) dwelling units for which first connection preceded the assessment of development fees; or (3502, 4039)

   (c) residential subdivision developments where water meters are installed in common areas of said developments to provide landscape irrigation; or (4234)

   (d) commercial or industrial developments for which water development fees were assessed and paid prior to July 1, 1993; or (3502, 4039, 4234)

   (e) commercial or industrial developments for which first connection preceded the assessment of development fees. (3502, 4039, 4234)

6. Separate water meters installed in a residential subdivision development that is: (4234, 4706)

   (a) used for common amenities (i.e., swimming pools, clubhouses, recreation buildings, etc.) and (4234)

   (b) solely dedicated for the noncommercial use of the subdivision residents shall not be included in the calculation of the water impact fees when applicable impact fees for dwelling units were assessed and paid on a dwelling/unit or space/lot basis. (4234)

7. A development shall be exempt from stormwater drainage impact fees if the development is located within the areas of the "Stormwater Drainage Impact Fee Map" designated either as "exempt" or "potentially exempt" from stormwater drainage impact fees. (4706, 5189)

(B) Demonstration of No Additional Demand for Facilities. A development may be exempted from payment of specific impact fees otherwise due pursuant to this Chapter if the proposed development will produce no additional demand for a specific key public facility than what was generated from such lot or location prior to the proposed development. The City Manager, or his designee, shall evaluate every permit application for applicability of the demonstration of no additional demand for facilities for the types of impact fees pursuant to this Chapter. (3502, 3875, 4039, 4359, 4706, 5189)

(C) Exemption Determination. The City Manager, or his designee, shall determine the validity of any claim for exemption pursuant to the criteria set forth in this Section. (3502, 3766, 3875, 4039, 4706)

5-17-7: IMPACT FEE FUNDS

(A) Creation of Impact Fee Funds. The following impact fee funds are hereby created as interest-bearing accounts separate and distinct from the general fund of the City: (3502, 3875, 5189)

1. Water Impact Fee Fund. (3502, 5189)

2. Wastewater Impact Fee Fund. (3502, 5189)

3. Park Impact Fee Fund. (3502, 5189)

4. (RESERVED) (5071)

5. Library Impact Fee Fund. (3502, 5189)

6. Fire Impact Fee Fund. (3502, 4039, 5189)

7. Police Impact Fee Fund. (3502, 4234, 5189)

8. (RESERVED) (5071)

9. Stormwater Drainage Impact Fee Fund. (4240, 5189)

(B) Each such impact fee fund shall contain only those impact fees collected pursuant to this Chapter for the types of key public facilities reflected in the title of the fund plus any interest which may accrue from time to time on such amounts. (3502, 3875, 4039, 4706)

(C) The monies in each impact fee fund shall be used only: (3502, 3875)

1. To repay all of the debt amounts for which the fees have been pledged as described in the Pledged Debt Analysis for Continuation of Impact Fees; (5189)

2. As described in Section 5-17-8 (refunds); or (3502, 5189)

3. As described in Section 5-17-9 (credits). (3502, 5189)

5-17-8: REFUNDS OF DEVELOPMENT IMPACT FEES PAID

(A) The City Manager, or his designee, is hereby authorized and directed to correct any error in the assessment and collection of impact fees detected within twenty-four months of the date of the payment of the impact fees, including assessing additional impact fee amounts or issuing a refund from the appropriate impact fee fund(s). (3502, 4706, 5189)

(B) If an applicant has paid an impact fee required by this Chapter and has obtained any of the types of permits listed in Section 5-17-5, and the permit for which the impact fee was paid later expires or is revoked, then the applicant who paid such impact fee shall be entitled to a refund of the impact fee paid. A refund will include interest to the extent required by A.R.S. § 9-463.05. In order to be eligible to receive such refund, the applicant who paid such impact fee shall be required to submit a request for such refund within thirty (30) days after the expiration or revocation of the permit for which the impact fee was paid. (3502, 3875, 4039, 4706, 5189)

(C) After an impact fee has been paid pursuant to this Chapter, no refund of any part of such impact fee shall be made if the development for which the impact fee was paid is later demolished, destroyed, or is altered, reconstructed, or reconfigured so as to reduce the size of the development, the number of units in the development, or the amount of traffic generated by the development. (3502, 3875, 4039)

5-17-9: CREDITS AGAINST IMPACT FEES

(A) Credits Against Impact Fees. (3502, 5189)

1. Impact Fee Credits. The City will provide a credit toward the payment of a development impact fee for a required or agreed upon dedication of public sites, improvements and other necessary public services or facility expansions included in the City's infrastructure improvement plan and for which

the fee is assessed. The credit will be provided to the extent the public sites, improvements and other necessary public services or facility expansions are provided by the developer requesting the credits. The City will provide credits or reimbursements from development impact fees under A.R.S § 9-463.05(B)(7)(c)(i). The City will provide credits when required by A.R.S. § 9-463.05. Credits will only be provided if and to the extent such credits comply with A.R.S. § 9-463.05. (3502, 3875, 5189)

2. Oversized Water and Wastewater Improvements. Credits shall not be issued for water and wastewater oversize improvements. Oversized improvements may be handled using development agreements as outlined in Sections 9-6-4(F) and 9-8-3(I) of the Mesa City Code. (3502, 3547, 4706, 5189)

(B) Procedure. In order to obtain a credit against an impact fee otherwise due, an applicant must submit a written offer to dedicate to the City specific parcels of qualifying land or to acquire or construct specific key public facilities in accordance with all applicable State or City design and construction standards, identify the project in the City's Infrastructure Improvement Plan for which the credit is sought and must specifically request a credit against such impact fee. Such written request must be made on a form provided by the City, must contain a statement under oath of the facts that qualify the applicant to receive a credit, must be accompanied by documents evidencing those facts, and must be filed not later than the time when an applicant applies for the first permit of a type listed in Section 5-17-5(A) that creates an obligation to pay the type of impact fee against which the credit is requested, or the applicant's claim for the credit shall be waived. (3502, 5189)

(C) Calculation of Credit. The credit due to an applicant shall be calculated and documented as follows: (3502, 5189)

1. The value of land dedicated or donated shall, at the applicant's option, be valued at (a) one hundred percent (100%) of the most recent assessed value for such land as shown in the records of the County Assessor, or (b) that fair market value based on the appraised land value of the parent parcel on the date of transfer of ownership to the City, as determined by a certified appraiser who was selected and paid for by the applicant, and who used generally accepted appraisal techniques. If the City disagrees with the appraised value, the City may engage another appraiser at the City's expense, and the value shall be an amount equal to the average of the two (2) appraisals. If either party rejects the average of the two (2) appraisals, a third appraisal shall be obtained, with the cost of such third appraisal being shared equally by the property owner and the City. The third appraiser shall be selected by the first two (2) appraisers, and the third appraisal shall be binding on both parties. Credits may not exceed the cost identified in the Infrastructure Improvement Plan for which a development fee was assessed. (3502, 5189)

2. In order to receive credit for qualifying acquisition or construction of eligible public facilities, the applicant shall comply with the public bidding process as required by Section 5-17-9(H) of the Mesa City Code. Credits may not exceed the cost identified in the Infrastructure Improvement Plan for which a development fee was assessed and may not exceed the actual costs the applicant incurred in acquisition or construction. (3502, 3547, 4706, 5189)

(D) Effective Date. Approved credits shall become effective at the following times: (3502, 5189)

1. Approved credits for land dedications shall become effective when the land has been conveyed to the City in a form acceptable to the City and at no cost to the City and has been accepted by the City. When such conditions have been met, the City shall note that fact in its records. Upon request of the applicant, the City shall issue a letter stating the amount of credit available. (3502)

2. Approved credits for the acquisition or construction of key public facilities shall generally become effective when (1) all required construction has been completed and has been accepted by the City, (2) a suitable maintenance and warranty bond has been received and approved by the City, (3) all design, construction, inspection, testing, bonding, and acceptance procedures have been completed in compliance with all applicable City and State procedures. When such conditions have been met, the City shall note that fact in its records. Upon request of the applicant, the City shall issue a letter stating the amount of credit available. (3502, 3875)

(E) Credits Used for Same Impact Fee Category. Approved credits may be used only to reduce the amount of impact fees due from the applicant for the same impact fee category for which the applicant dedicated land or acquired or constructed a key public facility until the amount of the credit is exhausted. Approved credits shall not be paid to the applicant in cash or in credits against any impact fee for a different type impact fee category or against any other monies due from the applicant to the City, and shall not constitute a liability of the City, except as described in Section 5-17-9(G). Each time a request to use approved credits is presented to and approved by the City, the City shall reduce the amount of the applicable impact fee otherwise due from the applicant, and shall note in the City records the amount of credit remaining, if any. Upon request of the applicant, the City shall issue a letter stating the number of credits available. (3502, 5189)

(F) Sale of the Development. In the event that the development for which credits have been issued is sold to different owners, the credits usable by each new owner shall be calculated in terms of a percentage of the impact fees that would otherwise be due from the entire development. If the total amount of development is not known, the maximum potential development under existing development regulations shall be assumed. This percentage reduction will be applied to all impact fees assessed within the development until the total amount of the credits is exhausted or the development is completed, whichever occurs first. In the event that the impact fee tables are amended to increase the fees prior to completion of the development, the percentage reduction shall be applied only to the impact fees that were in place at the time the credits were issued, and the adjusted impact fee to be charged shall be the sum of the reduced original impact fee plus the amount by which the fees were increased. (3502, 4039, 5189)

(G) Rights to Credits. Except as provided below in this Subsection, the right to claim credits shall run with the land and may be claimed only by owners of property within the development for which the land was dedicated or the key public facility of the same type was acquired or constructed. Credits issued for a particular development shall not be transferable or assignable to another development, except the City may agree to a transfer or assignment as allowed in A.R.S. § 9-463.05(B)(7)(c)(iii) in a signed development agreement between the City and the original developer. (3502, 3547, 3875, 5189)

(H) Use of Public Bidding Process. In order to receive a credit for the acquisition or construction of eligible public improvements (other than land dedication), the developer shall comply with A.R.S. § 34-101 et seq. and the City of Mesa's public bidding process as administered by the City. (3502, 4706, 5189)

5-17-10: MISCELLANEOUS PROVISIONS

(A) Interest. Interest earned on monies in any impact fee fund shall be considered part of such fund, and shall be subject to the same restrictions on use applicable to the impact fees deposited in such fund. (3502)

(B) First-In/First-Out Accounting. Monies in each impact fee fund shall be considered to be spent in the order collected, on a first-in/first-out basis. (3502)

(C) Maintenance. Monies from any impact fee fund shall not be spent for periodic or routine maintenance of any facility of any type or to cure deficiencies in public facilities existing on November 1, 1998. (3502, 3875, 4039)

(D) No Restriction on Development Conditions. Nothing in this Chapter shall restrict the City from requiring an applicant to construct reasonable project improvements required to serve the applicant's development, whether or not such improvements are of a type for which credits are available under Section 5-17-9. (3502, 3875, 4039)

(E) Records. The City shall maintain accurate records of the impact fees paid, including the name of the person paying such impact fees, the development for which the impact fees were paid, the date of payment of each impact fee, the amounts received in payment for each impact fee, and any other matters that the City deems appropriate or necessary to the accurate accounting of such impact fees. Records shall be available for review by the public during normal business hours and with reasonable advance notice. (3502, 4039)

(F) Temporary Rate Freeze for New and Increased Fees in the Future. If the City adopts new or increased development impact fees, the new impact fee or the increased portion of the modified impact fee shall not be assessed against a development for the period of the time as provided for and defined in A.R.S. § 9-463.05(F) and (T)(4). (3502, 3875, 4706, 5189)

(G) Mistake or Misrepresentation. If a development impact fee has been calculated and paid based on a mistake or misrepresentation, it shall be recalculated. Any amounts overpaid by an applicant shall be refunded by the City to the applicant within thirty (30) days after the City's acceptance of the recalculated amount, with interest earned by the City since the date of such overpayment. Any amounts underpaid by the applicant shall be paid to the City within thirty (30) days after the City's acceptance of the recalculated amount, with interest that would have been earned by the City from the date of such underpayment. In the case of an underpayment to the City, the City shall not issue any additional permits or approvals for the development for which the impact fee was previously underpaid until such underpayment is corrected, and if amounts owed to the City are not paid within such thirty- (30-) day period, the City may also rescind any permits issued in reliance on the previous payment of such impact fee and refund such fee to the then current owner of the land. (3502, 4039, 5189)

(H) Discretion to Reduce Impact Fees. In order to promote the economic development of the City or the public health, safety, and general welfare of its residents, the City Council may agree to pay some or all of the impact fees imposed on a proposed development from other funds of the City that are not restricted to other uses. Any such decision to pay impact fees on behalf of an applicant shall be at the discretion of the City Council and shall be made pursuant to goals and objectives expressed by the City Council to promote such development. (3502, 4039, 5189)

(I) Appeals. Any determination made by any official of the City charged with the administration of any part of this Chapter may be appealed to the City Manager, or his designee. The determination of the City Manager, or his designee, may be appealed to the City Council committee that is designated by the City to hear such appeals. All appeals must include a written notice of appeal that contains an explanation of why

the appellant feels that the determination was in error. The written notice of appeal must be filed with the City Clerk within thirty (30) days after the determination for which the appeal is being filed. The determination of the City Council committee shall be final. (3502, 3547, 3875, 5189)

(J) Biennial Audit. The City shall conduct a biennial certified audit in accordance with A.R.S. § 9-463.05(G)(2) if and to the extent applicable to the continuation of the impact fees for the payment of pledged debt amounts and as required for any future adopted impact fees. (3502, 3875, 5189)

(K) Annual Report. Within 90 days of the end of each fiscal year, the City shall file with the City Clerk an annual report accounting for the collection and use of the fees for each service area and shall post the report on its website in accordance with A.R.S. § 9-463.05(N) and (O), as amended. (3502, 3547, 3875, 4706, 5071, 5189)

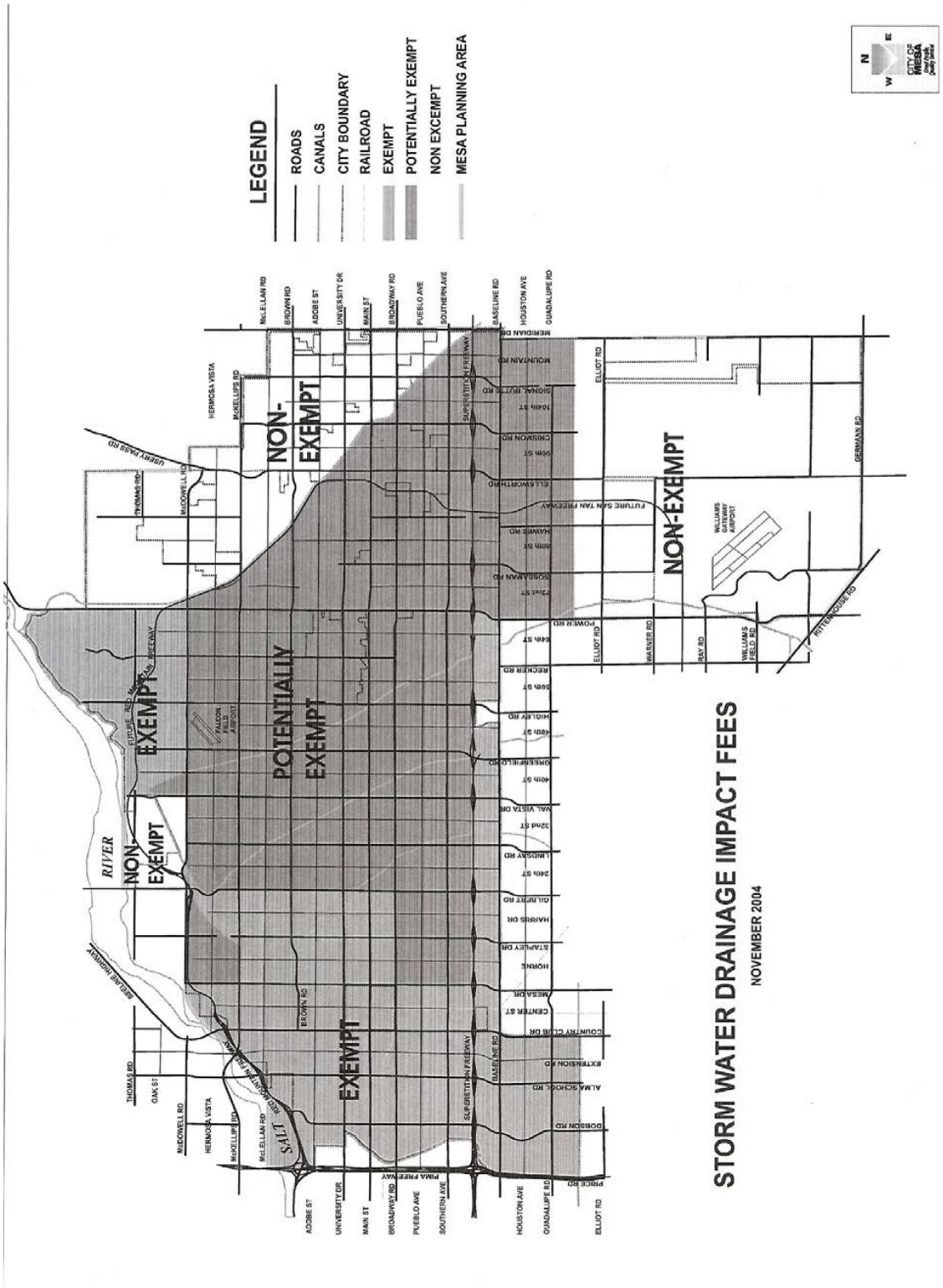
5-17-11: VIOLATION; PENALTY

Furnishing false information to any official or agent of the City charged with the administration of this Chapter on any matter relating to the administration of this Chapter, including without limitation the furnishing of false information regarding the expected size, use, or impacts from a proposed development, shall be a violation of this Chapter. Any person, firm, or corporation that violates any of the provisions of this Chapter shall be guilty of a misdemeanor. Upon conviction, persons shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500), or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment. Upon conviction, firms or corporations shall be punished by a fine not to exceed twenty thousand dollars ($20,000). Each violation shall be considered a separate offense, punishable as described above. (3502, 3875)

TABLE 1 MESA DEVELOPMENT IMPACT FEES

IMPACT FEE CATEGORIES			
Description	**Unit**	**Public Safety**	**Total**
RESIDENTIAL LAND USES:			
Single Residence Detached	dwelling	$402	$402
Manufactured Home (on platted lot)	dwelling	$402	$402
Single Residence Attached	dwelling	$388	$388
Multi-Residence	dwelling	$388	$388
Manufactured Home or Recreational Vehicle	pad/space	$84	$84
NON-RESIDENTIAL LAND USES:			
Hotel/Motel	room	$159	
Non-Residential	1 sq. ft.	$0.318	

(Ord. No. 5696, § 1, 4-18-22; Ord. No. 5789, § 2(Att. 1), 6-19-23; Ord. No. 5839, § 2(Att. 1), 12-11-23; Ord. No. 5932, § 2(Att. 1), 2-24-25)


LEGEND
ROADS
CANALS
CITY BOUNDARY
RAILROAD
EXEMPT
POTENTIALLY EXEMPT
NON EXCEMPT
MESA PLANNING AREA
NON-EXEMPT
POTENTIALLY EXEMPT
EXEMPT
NON-EXEMPT
EXEMPT
RIVER
SALT
STORM WATER DRAINAGE IMPACT FEES
NOVEMBER 2004

CHAPTER 18
TRANSIENT OCCUPANCY TAX*

CHAPTER 19
FORTUNE TELLING

5-19-1: PURPOSE OF THIS CHAPTER

The purposes of this Chapter shall be to protect the health, safety, and welfare of residents of the City by means of investigation and regulation of fortunetellers. (1846)

5-19-2: LICENSE REQUIRED

It shall be unlawful for any clairvoyant, astrologer, seer, palmist, soothsayer, fortune teller, spiritualist, or spirit medium to engage in such business and charge or receive fees, rewards, or anything of value therefor without first obtaining a license therefor in compliance with the provisions of this Chapter. If more than one (1) person is associated in any of the above categories at the same place of business, each person so engaging shall be required to obtain a separate license. (1846)

5-19-3: APPLICATION

Applicants for a license under this Chapter must file with the Finance Director a sworn application in writing on a form to be furnished by the Finance Director which shall contain, but not necessarily be limited to, the following information: (1846)

(A) Name and description of the applicant. (1846)

(B) Address (legal and local). (1846)

(C) If employed, the name and address of the employer, together with credentials establishing the exact relationship. (1846)

(D) The length of time for which the right to do business is desired. (1846)

(E) If a vehicle is to be used, a description of the same, together with license number or other means of identification. (1846)

(F) A photograph of the applicant taken within sixty (60) days immediately prior to the date of the filing of the application, which picture shall be two inches by two inches (2" x 2"), showing the head and shoulders of the applicant in a clear and distinguishing manner. (1846)

(G) The fingerprints of the applicant and the names of at least two (2) reliable property owners of the City who will certify as to the applicant's good character and business responsibility or in lieu of the names of references, any other available evidence as to the good character and business responsibility of the applicant as will enable an investigator to properly evaluate such character and business responsibility. (1846)

***Editor's note—**Ord. No. 3175 repealed Chapter 18.

(H) A statement as to whether or not the applicant has been convicted of any crime, misdemeanor, or violation of any municipal laws, the nature of the offense, and the punishment or penalty assessed therefor. (1846)

(I) No license issued hereunder shall be transferable. (1846)

5-19-4: INVESTIGATION OF APPLICANT; ISSUANCE OF LICENSE

Upon receipt of such application, the Finance Director shall cause an investigation to be made to determine whether the applicant or any officer, director, trustee, or partner or any agent, employee, or other person associated with the applicant: (1846)

(A) Has been convicted of a felony involving a transaction in securities or consumer fraud in any state of federal jurisdiction within the seven- (7-) year period immediately preceding the filing of the application; (1846)

(B) Has been convicted of a felony, the essential elements of which consisted of fraud, misrepresentation, or theft by false pretenses, in any state or federal jurisdiction within the seven- (7-) year period immediately preceding the filing of the application; (1846)

(C) Has been or is presently subject to an injunction, judgment, decrees, or permanent order of any federal court entered within the seven- (7-) year period immediately preceding the filing of the application of such injunction, judgment, decree, or permanent order: (1846)

1. Involving the violation of fraud or registration provisions of the securities laws of that jurisdiction; or (1846)

2. Involving the violation of the consumer fraud laws of that jurisdiction. (1846)

(D) Has been convicted of a felony involving moral turpitude or burglary, robbery, or theft as defined in Arizona Revised Statutes or a crime of violence in any state or federal jurisdiction within the seven- (7-) year period immediately preceding the filing of the application. (1846)

If as a result of such investigation it is determined that any of the items set forth above as (A), (B), (C), and (D) are determined to exist, the Finance Director shall deny the application. If not, the license shall be issued by the Finance Director upon payment of the required fee. (1846)

5-19-5: FEES

The license fee for any clairvoyant, astrologer, seer, palmist, soothsayer, fortune teller, spiritualist, or spirit medium shall be three hundred dollars ($300.00) per calendar year or part of a calendar year, and all annual fees shall be paid in advance. (1846)

5-19-6: LICENSE TO BE POSTED

The license issued to the licensee hereunder by the Finance Director shall be posted in a conspicuous place if the licensee is using a vehicle or building in his business, and otherwise must be kept by the person and exhibited at any time upon request. (1846)

5-19-7: RENEWALS

Licenses which are continually renewed shall pay the annual fee prescribed in Section 5-19-5. Licenses which are not continuously renewed shall be treated as an original application upon application for renewal. (1846)

5-19-8: SUSPENSION AND REVOCATION

Whenever the Finance Director has reason to believe that any licensee is guilty of any of the following acts: (1846)

(A) Fraud, misrepresentation, or false statement contained in the application for license; (1846)

(B) Fraud, misrepresentation, or false statement made in the course of carrying on the business; (1846)

(C) Violation of any of the provisions of this Chapter; (1846)

(D) Conviction of any crime described in Items (A), (B), (C), and (D) of Section 5-19-4; (1846)

(E) Conducting business in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety, or general welfare of the public; (1846)

The Finance Director shall immediately suspend the license and give the licensee notice by registered mail of the suspension and of a hearing to be held within ten (10) days to determine whether or not the permit should be revoked. The notice shall contain a statement of the purported reason for the suspension. At the hearing the licensee shall have the right to be represented by counsel, to introduce witnesses on his behalf and at his own expense, and to have the testimony given at the hearing transcribed. Within the next three (3) days after the hearing, excluding weekends and legal holidays, if the Finance Director determines that there is a good and sufficient reason for revocation of the licensee's license, the Finance Director shall enter an order revoking the license effective immediately and notify the licensee by registered mail. (1846)

5-19-9: APPEAL

Within five (5) days, excluding weekends and legal holidays, an applicant for a license or a licensee may appeal to the City Manager from either the refusal of the Finance Director to issue a license under this Chapter or from the revocation of any license granted in accordance with this Chapter. The City Manager may appoint a Hearing Officer to hear the appeal. (2383)

CHAPTER 20
PAYMENTS IN LIEU OF THE RESIDENTIAL DEVELOPMENT TAX*

CHAPTER 21
RESERVED†

CHAPTER 22
AUTOMATED KIOSKS

5-22-1: DEFINITIONS

The below words and phrases, wherever used in this Chapter, shall be construed as defined in this section unless, clearly from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. (5466)

(A) **APPLICANT:** means the person who applies for a license pursuant to this Chapter. (5466)

(B) **AUTOMATED KIOSK:** means an interactive device that is installed within a retail space at which used consumer electronic devices are sold, traded, recycled, or otherwise received by a person. (5466)

(C) **AUTOMATED KIOSK LICENSE:** means a license issued pursuant to this Chapter authorizing a person to operate one or more automated kiosk(s) within the boundaries of the City. (5466)

(D) **CONSUMER ELECTRONIC DEVICE:** means any portable electronic or digital device designed to be purchased and used by end users or consumers for daily, non-commercial purposes; examples of consumer electronic devices include, but are not limited to, cellular telephones, touch screen tablets, laptop computers, smart watches, and digital media players. (5466)

(E) **CONTROLLING PERSON:** means a person who either (A) has a ten percent (10%) or greater interest in the ownership or earnings of the business, or (B) is any of the following: (5466)

(1) An officer, director, or any stockholder who owns ten percent (10) or more, of a corporation licensee/applicant; (5466)

(2) A general partner of a limited partnership licensee/applicant or partner of a non-limited partnership licensee/applicant; (5466)

(3) An officer, president, or secretary of a limited liability company/corporation licensee/applicant; or (5466)

(4) The sole proprietor of a sole proprietorship licensee/applicant. (5466)

***Editor's note**—Ord. No. 3502 repealed Chapter 20 which derived from Ord. Nos. 2210, 2240, 2443, 2466, 2908.
†**Editor's note**—Section 7 of Ord. No. 5458, states "This Chapter of the Mesa City Code is automatically repealed upon the Arizona Department of Health Services finalizing the rules relating to the licensure of sober living homes pursuant to Title 36, Chapter 18, Article 4, Arizona Revised Statutes." AZDHS finalized the rules on July 1, 2019.

(F) **DESIGNATED AGENT:** means the person designated by the applicant or licensee to receive notices from the City pursuant to this Chapter. (5466)

(G) **ESN:** means a unique number assigned by the manufacturer to identify a mobile phone or device, commonly referred to as an electronic serial number. (5466)

(H) **IMEI:** means a unique number used by wireless carriers and cell phone manufacturers to identify mobile phones and devices, commonly referred to as an international mobile equipment identity. (5466)

(I) **LICENSEE:** means the person who applied for a license pursuant to this Chapter and in whose name such license was issued by the City pursuant to this Chapter. (5466)

(J) **MEID:** means a unique identifier used by wireless carriers and cell phone manufacturers to identify a mobile phone, commonly referred to as a mobile equipment identifier. (5466)

(K) **PERSON:** means an individual, partnership, corporation, association or any other entity of whatever kind or nature. (5466)

5-22-2: LICENSING AND OPERATION

(A) It shall be unlawful for a person to operate an automated kiosk at any location within the City without obtaining a license pursuant to this Chapter. (5466)

(B) A license issued pursuant to this Chapter is valid for a period of one (1) year from the date of issuance. (5466)

(C) The automated kiosk(s) shall operate only at the location(s) designated on the license. Each automated kiosk location to be operated by the licensee under the license must be approved by the City. Approval of an automated kiosk location will be determined at the best interest of the community based on the history for the past five (5) years of criminal activity at the proposed location. The license shall designate all locations where property belonging to the licensee is processed and stored. Property of the licensee may be processed and stored at locations not designated on the license only with the written and signed consent of the City. (5466)

[The next page is T5:257]

(D) Any person desiring to obtain a new or renewal license must apply to the City by presenting a complete application, the applicable fee, and fingerprint records to the City Licensing Office. (5466)

(1) The application shall include, but not be limited to, the following information: (5466)

(a) The names, addresses, and contact information for all controlling persons and designated agents of the applicant. (5466)

(b) All locations within the City at which the applicant intends to operate an automated kiosk and the number of automated kiosks that will be at each such location. (5466)

(c) The location(s) where property obtained at the automated kiosk may be processed and stored. (5466)

(2) Fingerprint records are required: (5466)

(a) On all new applications, for all applicants and controlling persons; and (5466)

(b) For renewal applicants, for any new controlling person(s) for the license. (5466)

(3) Fingerprints shall be submitted in a form approved by the City. The fingerprints shall be submitted the Arizona Department of Public Safety to be used to obtain a state and federal criminal records check in accordance with A.R.S. § 41-1750 and Public Law 92-544. The Arizona Department of Public Safety is authorized to exchange this fingerprint data with the United States Federal Bureau of Investigation. (5466)

(E) Following receipt of the required documents and fees, all new applications shall be submitted to the City Police Department for investigation and criminal record review in accordance with this Chapter. The City Police Department, on behalf of the City Licensing Office, shall receive and review the criminal history record information resulting from the criminal records check set forth above, including conviction and non-conviction data, of license applicants and controlling persons for the purpose of evaluating the fitness of licensees and controlling persons in connection with the issuance, renewal, suspension or revocation of a license. Such information shall be used only for the purpose of such evaluation or for the purpose of supporting and defending a denial, non-renewal, suspension, or revocation of a license. (5466)

(F) Complete renewal applications must be submitted to the City Licensing Office no later than forty-five (45) calendar days prior to the expiration of a license, otherwise the license shall be deemed expired and non-renewable. If the renewal application is not received as stated above, the licensee shall submit an application for a new license and provide all information and fees required for a new license application. (5466)

(G) A new or renewal license shall be issued to an applicant pursuant to this Chapter unless: (5466)

(1) The applicant failed to provide a completed application, the required fee, or the fingerprint records; (5466)

(2) The applicant or a controlling person has been convicted during the ten (10) year period prior to submission of the application of a felony involving trafficking in stolen property, fraud, forgery, theft, burglary, robbery, extortion, conspiracy to defraud, any preparatory offenses of the aforementioned crimes, a felony involving fraudulent or dishonest act, or a misdemeanor involving moral turpitude; (5466)

(3) The applicant fails to pay the applicable license and reporting fee for a new license when the license is submitted for approval; (5466)

(4) The applicant or a controlling person is currently in violation of this Chapter or City Code; (5466)

(5) The application contains false or misleading information; or (5466)

(6) The applicant has a current debt related to any open or closed account maintained or formerly maintained with the City. (5466)

(H) A licensee may operate an automated kiosk in the City only if the automated kiosk performs all of the functions set forth in this subsection: (5466)

(1) Uses a live representative to remotely monitor the automated kiosk during all hours of operation; (5466)

(2) Verifies a seller's identity via a valid motor vehicle operator's license, valid motor vehicle non-operating identification license, valid armed forces identification card or other valid government issued photo identification, including the serial or identification number of such valid document sufficient to verify the information required to be reported in Section 5-22-3(A); (5466)

(3) Secures storage of consumer electronic devices accepted by the automated kiosk and adheres to the storage and retention requirements pursuant to Section 5-22-4; (5466)

(4) Captures and stores images during each transaction of (i) the seller, (ii) the identification required in Section 5-22-2(H)(2), and (iii) the consumer electronic device; (5466)

(5) Electronically reports all transactions to law enforcement pursuant to Section 5-22-3; (5466)

(6) Reads and records ESN, IMEI, or MEID, subject to Section 5-22-3(B)(7); and (5466)

(7) Only buys consumer electronic devices. (5466)

(I) The City shall give written notice of a violation to the licensee or designated agent that may result in the suspension or revocation of the license. The notice shall include a description of the violation, the statutory or code reference, how the licensee can comply with the requirements, a description of the process whereby a hearing may be requested, the time limit for requesting a hearing, and a warning that failure to timely request a hearing may result in suspension or revocation of the license. The notice shall be personally served on the licensee or mailed to the licensee's last known address. Service of the notice shall be deemed complete upon mailing or personal service on the licensee. (5466)

(J) The licensee or designated agent receiving a notice under this section may request a hearing pursuant to Section 5-22-7. If the licensee fails to comply with the requirements of this Chapter by the date provided in the notice, the City may suspend or revoke the license as provided in this section. (5466)

(K) The City may suspend a license for a period of time not to exceed thirty (30) calendar days if the City determines that the licensee or the designated agent or a controlling person of the licensee has violated or is not in compliance with any provision of this Chapter. During the suspension period, the licensee shall not transact any business through the automated kiosk(s) associated with the suspended license(s). If a fine is associated with the violation that is the basis for the suspension, the suspension may continue beyond the period set forth in this Subsection (K) until such time as the licensee pays the fine. (5466)

(L) The City may revoke a license issued pursuant to this Chapter if the City determines: (5466)

(1) A licensee or designated agent operated the business during a period of time when the license was suspended; (5466)

(2) A licensee, designated agent or controlling person is convicted of a felony involving trafficking in stolen property, fraud, forgery, theft, burglary, robbery, extortion, conspiracy to defraud, any preparatory offenses of the aforementioned crimes, a felony involving fraudulent or dishonest act, or a misdemeanor involving moreal turpitude; (5466)

(3) The licensee or designated agent has operated, or has attempted to operate, an automated kiosk at a location that is unlicensed; (5466)

(4) The City previously issued three (3) or more notices of suspension within an eighteen (18) month period; (5466)

(5) The licensee or designated agent has not complied with a provision of this Chapter or has failed to provide information as required by this Chapter; (5466)

(6) The application fee, annual license fee(s), reporting fee, or any transaction privilege tax has not been paid; or (5466)

(7) The licensee fails to pay outstanding fines or resolve any violations. (5466)

(M) It is a violation of this Chapter for any person to provide false information on any license application. (5466)

(N) It is a violation of this Chapter for a person to operate an automated kiosk that either fails to meet all of the requirements in this Chapter or when the person does not have a license issued pursuant to this Chapter. (5466)

(O) If a license is revoked pursuant to this section, the licensee and its controlling person(s) may not apply for a license under this Chapter for a period of one (1) year from the date of revocation. (5466)

5-22-3: REPORTS TO LAW ENFORCEMENT

(A) At the time of each transaction whereby a consumer electronic device is received at an automated kiosk, a licensee shall prepare a true, complete, legible and accurate report of the transaction, including a description of the consumer electronic device received. The report shall be submitted to the City within twenty-four (24) hours after receipt of the consumer electronic device. The report shall be in a form designated by the City Police Department. Submission of the report to the City is deemed accepted when the report is delivered in person to the address designated by the City Police Department, or when the report is sent electronically to the City Police Department utilizing software approved by the City Police Department. The reporting party shall retain a copy of the report for a minimum of two (2) years from the date of the transaction. (5466)

(B) Each report shall, at a minimum, contain for each consumer electronic device received all the following information: (5466)

(1) The name, current address and date of birth of the seller as shown on the identification requirements pursuant to Section 5-22-2(H)(2). (5466)

(2) A legible color copy of the photo identification used to verify the seller's identity in Section 5-22-2(H)(2). (5466)

(3) A digital color photograph of the consumer electronic device purchased by the licensee. (5466)

(4) A digital color photograph of the seller. (5466)

(5) An electronic signature and fingerprint of the seller. (5466)

(6) An accurate and legible description of each consumer electronic device item purchased or received, including, as applicable, the manufacturer's name, model number and serial number. (5466)

(7) The ESN, IMEI or the MEID of the consumer electronic device purchased. If the ESN, IMEI or MEID is not available at the time of purchase or receipt, the report filed pursuant to this subsection must be updated with the ESN, IMEI or MEID as soon as known by the licensee, but no later than fifteen (15) calendar days after the transaction. The hold requirement outlined in Section 5-22-4(A) shall not begin until all required contents of the report are complete and submitted to the City Police Department. (5466)

(8) The amount paid for the consumer electronic device. (5466)

(9) The date and time when the consumer electronic device was received. (5466)

(10) The location of the automated kiosk where the consumer electronic device was sold or collected; and (5466)

(11) Require the seller to agree to a statement, using verbiage provided to the licensee by the City, in which the seller attests to the accuracy of the information provided as a part of the sale and the authority of the seller to sell the consumer electronic device. (5466)

(C) It is a violation of this Chapter for any person to provide false information on reports required by this section. (5466)

5-22-4: STORAGE, RETENTION AND RETRIEVAL

(A) A licensee shall retain consumer electronic devices received at an automated kiosk at a secure location designated on the license for at least thirty (30) calendar days after submitting the complete report to the City required under Section 5-22-3. Any consumer electronic device held in custody pursuant to this section shall not be altered or transformed in any way, but shall be held in the same condition in which it was received by the automated kiosk. (5466)

(B) Consumer electronic devices retained at a designated location(s) under this section are subject to return and inspection by the City during regular business hours of the location or, at a minimum, during the hours of 9:00 a.m. to 5:00 p.m., Monday through Friday. (5466)

(C) Within twenty-four (24) hours of a request by the City Police Department or other law enforcement agency, the licensee shall comply with a request to open the automated kiosk during the automated kiosk's regular operating hours to allow the law enforcement agency the opportunity to inspect the accessory bin and review any data that records transactions. (5466)

(D) Upon being advised by a representative of the City Police Department or other law enforcement agency that there is probable cause to believe a consumer electronic device in the possession of the licensee is stolen or was used in the perpetration of a crime, the licensee operating the automated kiosk shall, upon request by the City Police Department or other law enforcement agency: (5466)

(1) Within three (3) calendar days, surrender such consumer electronic device to the law enforcement agency and the law enforcement agency shall provide a seized property receipt for the consumer electronic device; or (5466)

(2) At the sole discretion of the requesting law enforcement agency, the consumer electronic device may be retained within the place of business on an investigative hold for a period not to exceed ninety (90) calendar days. During that time period, law enforcement may seize the consumer electronic device upon providing the licensee appropriate notification of the seizure and making arrangements to take physical custody of the consumer electronic device. The licensee shall produce the consumer electronic device at reasonable times and places, or may deliver the consumer electronic device to a representative of the law enforcement agency. (5466)

(E) The investigative hold shall be effective immediately upon oral or written notice to the licensee. If the hold is placed orally, it shall be followed by a written notice mailed to the licensee operating the automated kiosk within five (5) calendar days. (5466)

(F) A licensee shall not sell, transfer, exchange or otherwise dispose of any consumer electronic devices in violation of this section. (5466)

5-22-5: FEES

The following licensing and reporting fees shall be paid in amounts approved by the City Council as set forth in the City's then current schedule of fees and charges: (5466)

(1) Initial application fee. (5466)

(2) Annual license and reporting fee for each automated kiosk location. (5466)

5-22-6: FINES; PENALTIES

(A) Each day any violation of any provision of this Chapter shall continue shall constitute a separate offense, except when the violation is from a bona fide error that occurred provided that the licensee maintains adopted procedures reasonably anticipated to avoid the occurrence of bona fide errors. (5466)

(B) A violation of this Chapter that is not a bona fide error, whether or not specifically designated as being unlawful, shall be a class one misdemeanor and upon conviction shall be punished as provided in Title One, Chapter 26 of the City Code. (5466)

(C) For the purposes of this section, "bona fide error" includes clerical, calculation, computer malfunction, programming, and printing errors and other, similar errors. (5466)

(D) A licensee or designated agent who does not comply with a request by a law enforcement agency to inspect an automated kiosk pursuant to Section 5-22-4(C), or refuses to return a consumer electronic device to law

enforcement that is identified as stolen or involved in the perpetration of a crime pursuant to Section 5-22-4(D) shall be issued a notice stating that the licensee or designated agent shall comply with the request by the law enforcement agency within five (5) calendar days of receipt of the notice. (5466)

(E) The notice issued pursuant to Subsection (D) above shall include a description of the violation, the statutory or code reference, how the licensee can comply with the requirements, a description of how a hearing may be requested, the time limit for requesting a hearing, and a warning that failure to timely request a hearing may result in revocation of the license. (5466)

(F) A licensee or designated agent receiving a notice under this section may request a hearing pursuant to Section 5-22-7. If the licensee fails to comply with the requirements under Subsection (A) of this section by the date provided in the notice, the City Police Department may: (1) disable the automated kiosks by removing the automated kiosks from the power source and placing a notice on the machines that the automated kiosk is not operational; and (2) revoke the license pursuant to Section 5-22-2(L). The licensee is responsible for the cost incurred by law enforcement to disable the automated kiosks in accordance with this subsection and any fines or fees assessed by the court. (5466)

(G) Once an automated kiosk is disabled, the City shall issue a notice to the licensee or its designated agent by certified mail that describes the action taken pursuant to this section. The notice shall include a description of the violation, the statutory or code reference, a description of how a hearing may be requested, and the time limit for requesting a hearing. A person receiving the notice under this subsection may request a hearing pursuant to Section 5-22-7. If a licensee or designated agent fails to request a hearing, the automated kiosks shall remain disabled. (5466)

(H) The City Police Department shall take every reasonable precaution in the event the City finds it necessary to disable the automated kiosks and the City shall incur no liability by such action. (5466)

5-22-7: APPEALS

(A) It is the duty and responsibility of the Business Licensing Administrator or his/her designee ("Licensing Administrator") to administer the provisions of this Chapter. Pursuant to this duty, the Licensing Administrator will issue, renew, deny, suspend, or revoke licenses in accordance with this Chapter. (5466)

(B) Any party aggrieved by ta decision of the Licensing Administrator may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of the decision. The appeal shall be in writing, state the grounds for the appeal, and be sent to the Business Services Director or his/her designee ("Director"); the failure of an appeal to meet the requirements of this subsection will entitle the Director to deny the appeal without further review. (5466)

(C) If an appeal meets the requirements of Subsection (B), the Director shall schedule a hearing with a hearing officer who will be the Director or a person designated by the Director ("Hearing Officer"). The hearing will be held within thirty (30) calendar days of receipt of the appeal and the Hearing Officer will render a decision within sixty (60) calendar days of the hearing. The filing of an appeal meeting the requirements of Subsection (B) will suspend the decision of the Licensing Administrator until the Hearing Officer has rendered their decision. Any suspended decision of the Licensing Administrator, if upheld by the Hearing Officer, shall be reinstituted and dated as of the original date the decision was issued by the Business

Licensing Administrator; however, if the decision pertained to a period of suspension and such period of time has already passed, in whole or in part, the Hearing Officer may designate the period of suspension in accordance with this Chapter. (5466)

(D) All proceedings before a Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. No prehearing discovery shall be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. (5466)

(E) If either party to the appeal is aggrieved by the decision of the Hearing Officer, the aggrieved party may file a complaint of special action in an Arizona Superior Court with the proper jurisdiction to review the Hearing Officer's decision at any time within thirty (30) calendar days after a final decision of the Hearing Officer has been rendered. Failure to bring the action within thirty (30) calendar days, or such other time as is agreed upon in writing by the parties to the hearing, shall constitute a waiver of any right to judicial review of the Hearing Officer's decision. (5466)

(F) The decision of the Licensing Administrator, if not appealed, shall be the City's final determination on a matter pursuant to this Chapter. If the decision of the Licensing Administrator is appealed to a Hearing Officer, the decision of the Hearing Officer shall be the City's final decision on the matter unless appealed in accordance with this Chapter. (5466)

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CHAPTER 1
GENERAL OFFENSES

6-1-1: AID TO AN OFFENSE AND ATTEMPT

(A) It shall be unlawful to aid, counsel, agree to aid, or attempt to aid another person or persons in planning or engaging in the commission of any offense set forth in Title 6 of the Mesa City Code. (1635)

(B) It shall be unlawful for a person to: (1635)

1. Intentionally engage in conduct which would constitute an offense pursuant to said Title 6 if the attendant circumstances were as such person believes them to be; or (1635)

2. Intentionally do or omit to do anything which, under the circumstances as such person believes them to be, is any step in a course of conduct planned to culminate in commission of an offense pursuant to said Title 6. (1635)

(C) It is no defense that it was impossible for the person to aid the other party's commission of the offense, provided such person could have done so had the circumstances been as the person believed them to be. (1635)

6-1-2: BARBED WIRE, CONCERTINA WIRE, RAZOR WIRE, AND ELECTRIC FENCES

Editor's note—Ord. No. 2568 repealed § 6-1-2 which derived from Ord. Nos. 1480, 1635.

6-1-3: CONDUCT OF PERSONS WITHIN CITY OF MESA CEMETERY

(A) Automobiles. Automobiles shall not be driven through the cemetery at a greater speed than fifteen (15) miles per hour and shall be kept on the right side of the roadway. (971, 1635)

(B) Bicycles and Motorcycles. Bicycles and motorcycles are not permitted in the cemetery except when in attendance at funerals or on cemetery business. (971, 1635)

(C) Children. Children under twelve (12) years of age shall not be permitted within the cemetery or its buildings unless accompanied by persons responsible for them. (971, 1635)

(D) Dogs. Dogs shall not be permitted on the cemetery grounds. (971, 1635)

(E) Flowers and Plants. No person shall gather flowers or damage or remove shrubbery or plants. (971, 1635)

(F) Rubbish. Depositing of rubbish on the walkways, roads, grounds, graves, or gravesites or in the buildings is prohibited. (971, 1635)

(G) Desecration of Marker or Burial Place. No person shall willfully or maliciously deface, break, destroy, disturb, or remove a tomb, monument, or grave stone erected for a dead person or mark, deface, injure, destroy, disturb, or remove any fence post, rail, or wall of the cemetery. (971, 1635)

(H) Loitering and Boisterousness. No person shall congregate within the cemetery; no automobiles shall be driven in the cemetery except for purposes directly associated with the cemetery; and no persons shall congregate within the cemetery except for such purposes. (971, 1635)

6-1-4: EXPECTORATING ON SIDEWALK OR IN PUBLIC BUILDINGS

It shall be unlawful for any person to expectorate upon any of the sidewalks or upon the floor of any theatre, public building, church, or room used for public assemblies. (1957 Code, 1635)

6-1-5: KEEPING OF JUNK RESTRICTED

Editor's note—Ord. No. 2568 repealed § 6-1-5 which derived from Ord. Nos. 1635, 1952.

6-1-6: LUG WHEELS PROHIBITED

It shall be unlawful for any vehicle with wheels injurious to pavement to be permitted upon the public thoroughfares. (1957 Code, 1635)

6-1-7: WILLFUL FAILURE TO RETURN LIBRARY PROPERTY

It shall be unlawful for any person to willfully fail to return any book, pamphlet, record, magazine, or other property of the City of Mesa Public Library within five (5) days after the receipt of notice from the library demanding return of such property. (1635)

6-1-8: NUISANCE DEFINED

Editor's note—Ord. No. 2568 repealed § 6-1-8 which derived from Ord. Nos. 1635, 1952.

6-1-9: DESTRUCTION OF BUILDINGS

Editor's note—Ord. No. 2568 repealed § 6-1-9 which derived from 1957 Code, Ord. No. 1635.

6-1-10: PROPERTY OWNER OR OCCUPANT TO ABATE

Editor's note—Ord. No. 2568 repealed § 6-1-10 which derived from 1957 Code, Ord. Nos. 1635, 1952.

6-1-11: CITY TO ABATE

Editor's note—Ord. No. 2568 repealed § 6-1-11 which derived from 1957 Code, Ord. Nos. 1635, 1952.

6-1-12: UNLAWFUL ACT

It shall be unlawful for any person to create or maintain any nuisance or cause the same to exist or to knowingly permit a nuisance to be created or maintained on the premises or property owned, leased, occupied, maintained, used, or controlled by such person. (1957 Code, 1635, 1952)

6-1-13: OBSCENE CONDUCT

It shall be unlawful for any person to urinate or stool in any place open to public view. (1635)

6-1-14: WATER FLOWING UPON STREETS

Editor's note—Ord. No. 4145 repealed § 6-1-14 and derived from Ord. Nos. 1065, 1635.

6-1-15: WEAPONS

It shall be a misdemeanor for any person to negligently or purposely discharge any firearm, BB gun, or slingshot within the corporate limits, except: (394, 1635)

(A) In necessary self-defense. (394, 1635)

(B) A law enforcement officer in necessary performance of his duty. (394, 1635)

(C) For the purpose of target shooting or practice on a range operated by qualified personnel. Qualified personnel shall consist of either a certified firearms safety instructor, rifle or pistol marksmanship instructor certified by the National Rifle Association, or person designated by a rifle or pistol club, public or private school, or military agency. (394, 1635)

(D) Target shooting on private premises with air or CO2-operated BB or pellet guns or slingshots, providing: (394, 1635)

1. The target area is enclosed in such manner and with materials that will stop the projectiles. (394, 1635)

2. Such target shooting is supervised by an adult at all times. (394, 1635)

3. Any safety precautions recommended by the Police Chief are complied with. (394, 1635)

(E) In an area recommended as a hunting area by the Arizona Game and Fish Commission and approved by the Police Chief. Such area must be posted as required by the Police Chief and may be closed at any time by the Police Chief or the Director of the Game Department. (394, 1635)

(F) Where a permit is issued by the Police Chief. (394, 1635)

(G) In defense of property from damage by animals or birds, providing the property owner obtains a permit from the Arizona Game Department or U.S. Fish and Wildlife Service and the taking of such animals or birds is properly supervised by the Game Department or the Fish and Wildlife Service or a person designated by either of those agencies to assure the safety of surrounding property owners. (394, 1635)

(H) Definition. For the purpose of this Section, a firearm is defined as any device that expels a projectile or projectiles by means of expanding gases. (394, 1635)

6-1-16: OBSCENITY; LIVE SHOWS

(A) Legislative Finding and Purpose. The City Council finds that the crass commercial exploitation of explicit sexual conduct through the public exhibition of obscene films, live obscene shows, and the sale of obscene publications and devices constitutes a debasement and distortion of sensitive key relationships of human existence central to family life, community welfare, and the development of human personality; is indecent and offensive to the senses and to the public morals; and interferes with the comfortable enjoyment of life and property in that such interferes with the interest of the public in the quality of life and total community environment, the tone of commerce in the City, property values, and public safety; that the State Legislature has heretofore adopted A.R.S. Title 13, Chapter 35; that the provisions contained therein prohibit obscenity and should be diligently enforced by the administration of the City; that such enactments by the State Legislature do not prohibit live obscene productions, and the live obscene productions should be prohibited; and that the carrying on of any of the activities prohibited by those

portions of the laws of the State of Arizona hereinabove referred to and in this Section hereafter referred to is detrimental to the best health, safety, convenience, good morals, and general welfare of the City of Mesa and the residents, citizens, inhabitants, and businesses thereof. Accordingly, the City Council hereby declares that the activities prohibited in those portions of Title 13 above set forth and hereinafter set forth are, and are hereby declared to be and constitute, a public nuisance. (1129, 1635, 3740)

(B) Definitions. In this Section the following definitions shall apply: (1129,1635)

KNOWINGLY: Having knowledge of the character and content of the material involved or failure on notice to exercise reasonable inspection which would disclose the content and character of same. (1129,1635)

OBSCENE: That which is determined as obscene, applying the following guidelines: (1129, 1635)

1. The average person, applying contemporary State standards, would find that the subject matter, taken as a whole, appeals to the prurient interest; and
2. The subject matter depicts or describes patently offensive sexual activity; and (3740)
3. The subject matter, taken as a whole, lacks serious literary, artistic, political, or scientific value.

PATENTLY OFFENSIVE SEXUAL ACTIVITY: So offensive on its face as to affront current standards of decency and shall be deemed to include any of the following described forms of sexual activities, if they are depicted, represented, or described so as to affront current standards of decency: (1129, 1635, 3740)

1. The fondling or other erotic touching of human genitals, pubic region, buttocks, anus, or female breasts, directly and not through clothing. (3740)
2. Sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, or sodomy. (3740)
3. Masturbation, actual or simulated. (3740)
4. Flagellation or torture by or upon a person clad in undergarments, a mask, or bizarre costume or the condition of being fettered, bound, or otherwise physically restrained on the part of one so clothed. (1129, 1635, 3740)
5. Excretory functions as part of or in connection with any of the activities set forth in (1) through (4) above. (3740)

(C) Participation in Obscene Performance Prohibited. No person shall knowingly produce, present, or direct any obscene performance or participate in the portion thereof which is obscene. (1129, 1635, 3740)

(D) Obscene Performance on Premises Prohibited. No person being the owner of any premises or having control thereof shall knowingly permit within or upon said premises any obscene performance. (1129, 1635, 3740)

6-1-17: PROHIBITED USE OF PUBLIC RIGHT-OF-WAY

It shall be unlawful for any person to use a public street, highway, alley, lane, parkway, sidewalk, or other right-of-way, whether such right-of-way has been dedicated to the public in fee or by easement, for lying, sleeping, or remaining in a sitting position thereon, except in the case of a physical emergency or the administration of medical assistance. (1659)

6-1-18: PENALTY

Any person convicted of a violation of any provision of Title 6, Chapter 1, Mesa City Code, shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (1635, 1659, 2466)

6-1-19: PROBATION

If a person convicted of a violation of any section of Title 6, Mesa City Code, is found eligible for probation by the City Police Court, the Court may suspend the imposition of execution of sentence for a period of time not to exceed three (3) years and if so, shall without delay place such person on supervised or unsupervised probation. If the court imposes probation, it may also impose a fine not to exceed two thousand five hundred dollars ($2,500.00) and may require the convicted person to make restitution to the victim of the crime in such amount and manner as the court may order. (1635, 1659, 2466)

6-1-20: UNLAWFUL POSSESSION OF FIREARMS BY MINOR

(A) Definitions. (2750)

FIREARM: Any loaded or unloaded pistol, revolver, rifle, shotgun, or other weapon which will or is designed to or may readily be converted to expel a projectile by the action of an explosive or expanding gases; except that it does not include an air rifle, air pistol, BB gun, or firearm in permanently inoperable condition. (2750)

MINOR: A person who is under the age of eighteen (18) years. (2750)

WRITTEN CONSENT: Written approval or permission to possess a firearm which is on a form prescribed by the Police Department, signed by the child's parent or legal guardian and notarized, which specifically describes the firearm by (a) type, (b) manufacturer, (c) caliber, and (d) serial number. (2750)

(B) Unlawful Possession of Firearm. It shall be unlawful for a minor to possess any firearm within the City limits without written consent of the minor's parent or legal guardian. (2750)

(C) Possession of Consent Form; Keeping of Records. (2750)

1. The original written consent form shall be carried by the minor any time the minor is in possession of a firearm outside the minor's residence. (2750)

2. The Police Department shall not maintain a file or register of executed written consent forms. (2750)

(D) Forfeiture of a Firearm. Any firearm possessed by a minor in violation of this Section may be subject to forfeiture in the same manner as authorized by A.R.S. Chapter 39 of Title 13. (2750)

6-1-21: SALE AND DISPLAY OF PSEUDOEPHEDRINE PRODUCTS

Definitions. (4558)

In this article, unless the context otherwise requires:

PSEUDOEPHEDRINE PRODUCT: means any product containing ephedrine or pseudoephedrine and includes any compound, mixture or preparation that contains any detectable quantity of ephedrine, pseudoephedrine,

norpseudoephedrine, or phenyl-propanolamine or their salts, optical isomers or salts of optical isomers. Product packaging that lists ephedrine, pseudoephedrine, norpseudoephedrine, or phenylpropanolamine as an active ingredient shall constitute prima facie evidence that the product is a pseudoephedrine product. (4558)

RETAIL ESTABLISHMENT: means any place of business that offers any pseudoephedrine product for sale at retail. (4558)

PHARMACIST: means a person registered pursuant to A.R.S. Title 32, Chapter 18, to dispense medicinal substances. (4558)

(A) No retail establishment shall sell any pseudoephedrine product unless staffed with a pharmacist on the premises at the time of the sale except as exempted by order of the Attorney General of the United States or his designee, pursuant to federal law. (4558)

(B) A person making a retail sale of a product containing pseudoephedrine shall only complete such a transaction upon display by the purchaser of a government-issued photo identification, and shall record the purchaser's name, quantity of pseudoephedrine product purchased, transaction date and the identity of the seller. At the discretion of the retail establishment, the information may be recorded in written tabulation or by electronic means. (4558)

(C) The information required to be obtained by paragraph B will be retained by the retail establishment for a period of two (2) years, and will be considered a confidential document that will only be available to the operator of the retail establishment and certified Arizona peace officers. (4558)

(D) Display of pseudoephedrine products. (4558)

1. The operator of a retail establishment shall keep all pseudoephedrine products in a manner that is inaccessible to customers without the assistance of a pharmacist or employee acting under the direct supervision of a pharmacist; (4558)

2. Any pseudoephedrine product displayed in violation of this ordinance shall constitute a nuisance which, if not abated, shall subject the pseudoephedrine products to forfeiture; (4558)

3. Upon an initial discovery of any pseudoephedrine product displayed in violation of this ordinance, the operator of the retail establishment, upon written notification by any law enforcement officer of the nuisance, shall immediately remove the pseudoephedrine products and thereby avoid their forfeiture; (4558)

4. Any pseudoephedrine products displayed in violation of this ordinance within one year of written notice of the nuisance shall be immediately seized by any law enforcement officer discovering them; (4558)

5. Upon the seizure of any pseudoephedrine products for violation of this ordinance, the law enforcement officer shall give written notice of the intent to forfeit the seized products. The notice shall include the date and time of the seizure, an inventory of the items seized, and directions on how a post-seizure hearing may be demanded to challenge the forfeiture of the items. (4558)

6. Within fifteen (15) days of the seizure, the operator of a retail establishment may request the appointment of a hearing officer to preside over the post-seizure hearing in accordance with Mesa City Code Title 1, Chapter 27, Section 8. If no written demand for a post-seizure hearing is filed, the

items seized shall be forfeited and destroyed. If a demand for a post-seizure hearing is timely filed, a hearing shall be held pursuant to the procedures set forth in Mesa City Code 8-6-8 (E) to determine if the seized pseudoephedrine products were displayed in violation of this ordinance. If it is determined that the pseudoephedrine products were displayed in violation of this ordinance, the items shall be ordered forfeited and destroyed. (4558)

6-1-22: INTERFERING WITH A PEACE OFFICER

(A) It is unlawful for any person to willfully hinder, resist, delay, obstruct or prevent a peace officer in the discharge of their official duties, or refuse to obey any lawful order issued by a peace officer engaged in the discharge of their official duties. Words and recording alone do not constitute hindering, resisting, delaying, obstructing or preventing official duties of a peace officer for purposes of this Section.

(B) Any person violating any provision of this Section and any amendment to it shall be guilty of a Class 3 Misdemeanor, punishable by a fine not to exceed five hundred dollars ($500) or by imprisonment in the City jail for a period not to exceed thirty (30) days, or by both such fine and imprisonment; and each day of violation continued shall be a separate offense, punishable as described.

(Ord. No. 5747, § 1, 11-21-22)

6-1-23: URBAN CAMPING

(A) The use of City property for camping purposes or storage of personal property without the express permission of the City interferes with the rights of others to use the areas for which they were intended and can constitute a public health and safety hazard that adversely impacts surrounding property. The purpose of this section is to maintain City property in a clean, sanitary and accessible condition, and to adequately protect the health, safety, and welfare of the community, while recognizing that certain temporary camping associated with emergencies or special events or activities can be beneficial. Nothing in this Section is intended to interfere with otherwise lawful and ordinary uses of public property.

(B) The definitions contained in this Subsection (B) shall only govern the construction, meaning, and application of words and phrases used in this Section.

"CAMP" or **"CAMPING:** means to establish temporary or permanent living accommodations on City Property. Indications of camping include laying down bedding, using camp paraphernalia, erecting temporary structures for shelter, sleeping, storing personal belongings, burning a fire, cooking or preparing food, or living in a parked motor or recreational vehicle. An activity shall constitute camping when it reasonably appears, in light of all the circumstances, the person, in conducting the activity, are in fact using the area for the purpose of living accommodations, regardless of the intent of the participants or the nature of any other activities in which they may also be engaging. For the purposes of clarity, the term "Camp" or "Camping" in this Section does not refer to the mere possession or transportation of Camping Paraphernalia, or the use of a blanket for resting, absent other evidence of living accommodations.

CAMPING PARAPHERNALIA: any accessory, equipment, or item commonly used to assist someone to camp, including tarpaulins, cots, beds, bedding, sleeping bags, hammocks, tents, blankets, and cooking equipment.

CITY PROPERTY: means property owned or controlled by the City and all public improvements located therein including, but not limited to, public plazas, transportation facilities, bus stops, streets, sidewalks, alleys, and City improved or unimproved land.

ESTABLISH: setting up or moving equipment, supplies, or materials to camp or operate camp facilities.

PARK: means a park owned by the City as defined in Mesa City Code Section 6-10-2.

RIGHT-OF-WAY: means as defined in Mesa City Code Section 9-1-1.

STORE: means to put aside or accumulate for use when needed, to put for safekeeping, to place or leave in a location.

(C) It is unlawful for any person on City property to camp, establish or maintain camping facilities, or use or store camping paraphernalia.

(D) This section does not apply to:

(1) Camping or activities in a park which is governed by Mesa City Code Title 6, Chapter 10.

(2) Temporary structures or camps set up by a government agency or relief workers during a disaster or emergency situation.

(3) Activities approved by the City that receive a special event license, special use permit, lease, license, or other permit or permission.

(E) Any person convicted of a violation of this Section shall be guilty of a class 3 criminal misdemeanor. Each day of violation continued shall be a separate offense, punishable as described.

(Ord. No. 5892, § 1, 12-2-24)

CHAPTER 2
GRAFFITI

6-2-1: GRAFFITI

(A) For purposes of this Section, the term "graffiti" shall mean the etching, scratching, painting, covering, drawing upon, or otherwise placing of a mark, symbol, figure, inscription, word, design, drawing, or name upon public or private property. (2920)

(B) For purposes of this Section, the term "graffiti implements" shall mean an aerosol paint container, a felt tip marker, a paint stick, an etching tool, or any article, substance, solution, or other compound designed or commonly used to make graffiti. (2920)

(C) For purposes of this Section, the term "invitee" shall mean a person on land of another if (1) he enters by invitation, express or implied, (2) his entry is connected with the owner's business or with an activity the owner conducts or permits to be conducted on his land, and (3) there is mutuality of benefit or benefit to the owner. (2920)

(D) It is unlawful to make graffiti of any type on any building, public or private, or any other property, real or personal, owned by any person, firm, or corporation or any public agency or instrumentality without the express permission of the owner, manager, or other person responsible for said property. (2920)

(E) It is unlawful to possess graffiti implements with the intent to place graffiti upon any building, public or private, or any other property, real or personal, owned by any person, firm, or corporation or any public agency or instrumentality without the express permission of the owner, manager, or other person responsible for said property. (2920)

(F) Possession of any graffiti implement in any public place, including any building, park facility, or alley or on any private property, unless an invitee, gives rise to an inference of intent to use the graffiti implement in violation of this Chapter. (2920)

CHAPTER 3
AIRCRAFT REGULATIONS

6-3-1: DEFINITIONS

AIRCRAFT: As used in this Chapter means any aeroplane, airplane, gas bag, flying machine, balloon, or any contrivance now known or hereafter invented, used, or designed for navigation of or flight in the air, except a parachute or other contrivance used primarily as safety equipment. (1520)

6-3-2: MINIMUM HEIGHT LIMITS FOR AIRCRAFT; EXEMPTIONS

(A) Subject to the exemptions set forth in paragraph (B) below, no person shall fly or permit any aircraft to be flown within the corporate limits of the City of Mesa except at a height sufficient to permit a reasonably safe emergency landing, which in no case shall be less than one thousand feet (1,000'). (2370)

(B) Situations exempted from the minimum height limits established in paragraph (A) above include: (2370)

1. Takeoffs or landings at an established landing field or airport; (2370)
2. Operation of helicopters pursuant to Section 6-3-6 of this Chapter; (2370)
3. When special circumstances render a deviation necessary to avoid immediate danger or when such deviation is required because of stress of weather conditions or other unavoidable causes; (2370)
4. Operation of aircraft being used on agricultural lands for agricultural dusting or spraying; (2370)
5. Contemporaneous flight of five (5) or more hot air balloons operating from an established airport or landing field pursuant to a Federal Aviation Administration (F.A.A.) permit. (2370)

6-3-3: LANDING OTHER THAN AT AN ESTABLISHED AIRPORT PROHIBITED

Except in case of emergency and except for special provisions pertaining to helicopters contained in Section 6-3-6 hereof, no person shall land any aircraft within the corporate limits of the City except upon a regularly established airport field or landing place. (1520)

6-3-4: LIGHTS FOR NIGHT OPERATION OF AIRCRAFT

All aircraft when flying within or over the corporate limits of the City at night shall have lights and other equipment required by the rules, regulations, or orders of the Federal Aviation Administration for such flying. (1520)

6-3-5: DROPPING OBJECTS FROM AIRCRAFT PROHIBITED; EXCEPTION

No person in any aircraft shall cause or permit to be thrown out, discharged, or dropped within the corporate limits of the City any dust, spray, object, or thing, except loose water or loose sand ballast when absolutely essential to the safety of the occupants and except as herein provided; excepting that aircraft used for dusting or spraying on agricultural lands for agricultural purposes may dust or spray agricultural crops. (1520)

6-3-6: SPECIAL REGULATIONS PERTAINING TO HELICOPTERS

(A) Except as provided in Subsections (B), (C), and (D) of this Section, no person shall take off or land on any area within the limits of the City in a helicopter except on a regularly established heliport or landing place without first obtaining a permit to do so from the Chief of Police or his designee. The Chief of Police or his designee may issue such a permit if the following conditions are met: (1520, 2653)

1. The pilot is duly licensed by the F.A.A. (1520)
2. The helicopter to be used is licensed by the F.A.A. (1520)
3. The safety of lives of the inhabitants of the City will not be endangered by the proposed flight or landing. (1520)

4. The noise attendant upon the flight or landing will not be detrimental to the neighborhood. (1520)

5. Public liability and property damage insurance in limits of not less than one hundred thousand dollars ($100,000.00) for each person injured or three hundred thousand dollars ($300,000.00) for each occurrence and fifty thousand dollars ($50,000.00) for property damage has been obtained and is in effect. (1520)

(B) Helicopter takeoffs and landings for the purposes hereafter enumerated may be made without a permit issued by the Chief of Police provided all other conditions of Subsection (A) of this Section have been met. (1520)

1. A takeoff or landing by an authorized representative of a news media. (1520)

2. A takeoff or landing to assist in investigating an accident or to remove persons or property from the scene of an accident. (1520)

3. A takeoff or landing to assist the Police Department in any investigation being conducted by the Police Department. (1520)

(C) The provisions of Subsection (A) of this Section shall not apply to helicopter takeoffs or landings made necessary by an emergency. (1520)

(D) Helicopters may take off from and land on private property for pesticide application purposes without a permit issued by the Chief of Police provided that: (2653)

1. The pesticide applicator is properly licensed by the F.A.A. and the Arizona Department of Agriculture; and (2653)

2. The property owner of the landing site has given permission for the landing and takeoff; and (2653)

3. The landing and takeoff do not endanger people's safety and do not occur within five hundred feet (500') of a residence, unless the occupants of all residences within five hundred feet (500') consent to the landing and takeoff. (2653)

6-3-7: PENALTY

Any person who shall violate any of the provisions of this Ordinance or of the Mesa City Code as amended herein shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed three (3) months, or by both such fine and imprisonment. (1520, 2466)

CHAPTER 4
ANIMAL CONTROL ORDINANCE WITH LEASH LAW*

6-4-1: DEFINITIONS

As used in this Chapter, unless the context otherwise indicates, the following terms shall have the meanings herein ascribed to them. (1980)

***Editor's note**—Chapter 4 derived from Ord. No. 4845.

ANIMAL: Any animal of a species that is susceptible to rabies, except man. (1980)

AT LARGE: On or off premises of owner and not under control of owner or other persons acting for the owner. Any dog in a suitable enclosure which actually confines the dog shall not be considered to be running at large. (1980)

ATTACK: A violent or aggressive physical contact or violent or aggressive behavior that confines the movement of a person or domestic animal. An attack on a domestic animal must include biting or an attempt to bite. (2287)

DEPARTMENT: The State Department of Health Services. (1980)

ENFORCEMENT AGENT: That person or persons designated by the City who is responsible for the enforcement of this Chapter and any regulations promulgated thereunder. (1980)

IMPOUND: The act of taking or receiving into custody by the enforcement agent any dog or other animal for the purpose of confinement in an authorized pound in accordance with the provisions of this Chapter. (1980)

KENNEL: An enclosed controlled area, inaccessible to other animals, in which a person keeps, harbors, or maintains five (5) or more dogs under controlled conditions. (1980)

OWNER: Any person or legal entity having a possessory property right in an animal or who harbors, cares for, exercises control over, or knowingly permits any animal to remain on premises occupied by them. (2287)

POUND: Any establishment authorized for the confinement, maintenance, safekeeping, and control of dogs and other animals that come into custody of the enforcement agent in the performance of official duties. (1980)

RABIES QUARANTINE AREA: Any area in which a state of emergency has been declared to exist due to the occurrence of rabies in animals in or adjacent to this area. (1980)

RABIES VACCINATION CERTIFICATE: A method of recording and duplicating rabies information that is in compliance with the County enforcement agent's licensing system and/or County enforcement agent's prescribed forms. (2259)

STRAY DOG: Any dog four (4) months of age or older running at large that is not wearing a valid license tag. (1980)

VACCINATION: The administration of an anti-rabies vaccine to animals by a veterinarian or in authorized pounds by employees properly trained by a veterinarian. (1980)

VETERINARIAN: Unless otherwise indicated, veterinarian means licensed to practice in this State or any veterinarian employed in this State by a governmental agency. (1980)

VETERINARY HOSPITAL: Any establishment operated by a veterinarian licensed to practice in this State that provides clinical facilities and houses animals or birds for dental, medical, or surgical treatment. A veterinary hospital may have adjacent to it or in conjunction with it or as an integral part of it pens, stalls, cages, or kennels for quarantine, observation, or boarding. (1980)

VICIOUS ANIMAL: Any animal, excluding a dog, of the order Carnivore that has a propensity to bite human beings without provocation and has been so declared after a hearing before a Justice of the Peace or City Magistrate. (2287)

VICIOUS DOG: Any dog, except one assisting a peace officer engaged in law enforcement duties, which:

(A) When unprovoked, in a vicious or terrorizing manner approaches any person or domestic animal in an apparent attitude of attack upon the streets, sidewalks, or any public or private grounds or places; or

(B) The owner thereof knows, or should reasonably know, possesses a propensity, tendency, or disposition to attack unprovoked, to cause injury, or to otherwise endanger the safety of human beings or domestic animals; or

(C) Bites, inflicts injury, assaults, or otherwise attacks a human being or domestic animal without provocation on public or private property; or

(D) Is owned or harbored primarily or in part for the purpose of dog fighting; or any dog trained for dog fighting.

Notwithstanding the definition of a vicious dog above, no dog may be declared vicious if an injury or damage is sustained by a person who, at the time such injury or damage was sustained, had entered upon the premises of another without license, invitation, or other right. (2287)

6-4-2: POWERS AND DUTIES OF ENFORCEMENT AGENT

(A) The enforcement agent shall:

1. Enforce the provisions of this Chapter and the regulations promulgated thereunder. (1980)

2. Issue citations for the violation of the provisions of this Chapter and the regulations promulgated thereunder. The procedure for the issuance of notices to appear shall be as provided for peace officers in A.R.S. § 13-3903, except that the enforcement agent shall not make an arrest before issuing the notice. (1980)

3. Be responsible for declaring a rabies quarantine area within an area of jurisdiction. When a quarantine area has been declared, the enforcement agent shall meet with the State veterinarian and representatives from the Department of Health Services and the Game and Fish Department to implement an emergency program for the control of rabies within an area. Any regulations restricting or involving movements of livestock within an area shall be subject to approval by the State veterinarian. (1980)

(B) The issuance of citations pursuant to this Section shall be subject to the provisions of A.R.S. § 13-3899. (1980)

(C) The enforcement agent may designate deputies. (1980)

6-4-3: LICENSE FEES FOR DOGS; ISSUANCE OF DOG TAGS; RECORDS; PENALTIES

(A) A license fee shall be paid for each dog four (4) months of age or over that is kept, harbored, or maintained within the boundaries of the City for at least thirty (30) consecutive days of the calendar year. The license fee shall be established and collected by the Maricopa County Animal Control Services with approval by the Maricopa County Board of Supervisors. An applicant for a license for a dog claimed to be incapable of procreation shall furnish a proof-of-surgical-sterilization certificate signed by a licensed veterinarian as proof that the dog has been surgically altered to be permanently incapable of procreation. License fees

shall be paid within ninety (90) days. A penalty not to exceed four dollars ($4.00) shall be added to the license fee in the event that application is made subsequent to the date on which the dog is required to be licensed under the provisions of this Chapter. This penalty shall not be assessed against applicants who furnish adequate proof that the dog to be licensed has been in their possession less than thirty (30) consecutive days. (1980, 2113, 2552, 2986, 3831)

(B) Each dog licensed under the terms of this Chapter shall receive at the time of the licensing such a tag on which shall be inscribed the name of the county, the number of the license, and the date on which it expires. The tag shall be attached to a collar or harness which shall be worn by the dog at all times while running at large, except as otherwise provided in this Chapter. Whenever a dog is lost, a duplicate tag shall be issued upon application by the owner and a payment of one dollar ($1.00) to the enforcement agent. (1980)

(C) Any person who fails within fifteen (15) days after written notification from the enforcement agent to obtain a license for a dog required to be licensed; counterfeits or attempts to counterfeit an official dog tag; removes such tag from any dog for the purpose of willful and malicious mischief; or places a dog tag upon a dog, unless the tag was issued for that particular dog, is guilty of a misdemeanor. (1980)

6-4-4: KENNEL PERMIT; FEE; VIOLATION; CLASSIFICATION

(A) A person operating a kennel shall obtain a permit issued by the Board of Supervisors of the county where the kennel is located, except if each individual dog is licensed. (1980)

(B) The annual fee for the kennel permit is seventy-five dollars ($75.00). (1980)

(C) A dog remaining within the kennel is not required to be licensed individually. A dog leaving the controlled kennel conditions shall be licensed, except if the dog is only being transported to another kennel which has a permit issued under this Section. (1980)

(D) A person who fails to obtain a kennel permit under this Section is subject to a penalty of twenty-five dollars ($25.00) in addition to the annual fee. (1980)

(E) A person who knowingly fails within thirty (30) days after written notification from the enforcement agent to obtain a kennel permit is guilty of a misdemeanor. (1980)

6-4-5: ANTI-RABIES VACCINATION; VACCINATION AND LICENSE STATIONS

(A) Before a license is issued to any dog, the owner must present a vaccination certificate signed by a veterinarian stating the owner's name and address and giving the dog's description; date of vaccination; type, manufacturer, and serial number of the vaccine used; and the date re-vaccination is due. A duplicate of each rabies vaccination certificate issued shall be transmitted to the enforcement agent on or before the tenth day of the month following the month during which the dog was vaccinated. No dog shall be licensed unless it is vaccinated in accordance with the provisions of this Chapter and the regulations promulgated thereunder. (1980)

(B) A dog vaccinated in any other state prior to entry into Arizona may be licensed in Arizona provided that at the time of licensing, the owner of such dog presents a vaccination certificate, signed by a veterinarian licensed to practice in that state or a veterinarian employed by the governmental agency in that state,

stating the owner's name and address and giving the dog's description; date of vaccination; and type, manufacturer, and the serial number of the vaccine used. The vaccination must be in conformity with the provisions of this Chapter and the regulations promulgated thereunder. (1980)

(C) The enforcement agent shall make provisions for vaccination clinics as deemed necessary. The vaccination shall be performed by a veterinarian. (1980)

6-4-6: RABIES CONTROL FUND

(A) The enforcement agent or his authorized representative shall place the monies collected by him under the provisions of this Chapter in a special fund to be known as the rabies control fund to be used for the enforcement of the provisions of this Chapter and the regulations promulgated thereunder. (1980)

(B) Any unencumbered balance remaining in the rabies control fund at the end of a fiscal year shall be carried over into the following fiscal year. (1980)

6-4-7: DOGS NOT PERMITTED AT LARGE; WEARING LICENSES

(A) In a rabies quarantine area, no dog shall be permitted at large. Each dog shall be confined within an enclosure on the owner's property or secured so that the dog is confined entirely to the owner's property or on a leash not to exceed six feet (6') in length and directly under the owner's control when not on the owner's property. (1980)

(B) Any dog over the age of four (4) months running at large shall wear a collar or harness to which is attached a valid license tag. Dogs used for the control of livestock or while being used or trained for hunting, dogs while being exhibited or trained at kennel club events, or dogs while engaged in races approved by the Arizona Racing Commission, and such dogs while being transported to and from such events, need not wear a collar or harness with a valid license attached provided that they are properly vaccinated, licensed, and controlled. (1980)

(C) If any dog is at large on the public streets, public parks, or public property, then said dog's owner or custodian is in violation of this Chapter. (1980)

(D) Any person whose dog is at large is in violation of this Chapter. A dog is not at large: (1980)

1. If said dog is restrained by a leash, chain, rope, or cord of not more than six feet (6') in length of sufficient strength to control the actions of said dog or is confined entirely to the owner's property by adequate fence or other method. (1980)

2. If said dog is used to control livestock or while being used or trained for hunting or being exhibited or trained at a kennel club event or while engaged in races approved by the Arizona Racing Commission. (1980)

3. While said dog is actively engaged in dog obedience training, accompanied by and under the control of his owner or trainer, provided that the person training said dog has in his possession a dog leash of not more than six feet (6') in length and of sufficient strength to control said dog; and further, that said dog is actually enrolled in or has graduated from a dog obedience training school. (1980)

4. If said dog, whether on or off the premises of the owner or person acting for the owner, is controlled as provided in Subsection (D)1 of this Section or within a suitable enclosure which actually confines the dog. (1980)

(E) Any dog(s) at large shall be apprehended and impounded by an enforcement agent. (1980)

1. Said agent shall have the right to enter upon private property when it becomes necessary to do so in order to apprehend any dog that has been running at large. Such entrance upon private property shall be in reasonable pursuit of such dog(s) and not include entry into a domicile or enclosure which confines a dog unless it is at the invitation of the occupant. (1980)

2. Said agent may issue citation(s) to the dog owner or the person acting for the owner when the dog is at large. The procedure of the issuance of notice to appear shall be provided for peace officers in A.R.S. § 13-3903, except the enforcement agent shall not make an arrest before issuing the notice. The issuance of citation(s) pursuant to this Chapter shall be subject to the provisions of A.R.S. § 13-3899. (1980)

3. In the judgement of the enforcement agent, if any dog at large or any other animal that is dangerous or fierce and a threat to human safety cannot be safely impounded, it may be slain. (1980)

6-4-8: IMPOUNDING AND DISPOSING OF DOGS AND CATS; RECLAIMING IMPOUNDED DOGS AND CATS; POUND FEES

(A) Any stray dog or cat shall be impounded. All dogs and cats impounded shall be given proper care and maintenance. (1980)

(B) Each stray dog or cat impounded shall be kept and maintained at the pound for a minimum of seventy-two (72) hours unless claimed by the owner. Any person may purchase such dog or cat upon expiration of the impoundment period, provided such person pays all pound fees and complies with the licensing and vaccinating provisions of the Chapter. If the dog or cat is not claimed within the impoundment period, the enforcement agent shall take possession and may place the dog or cat for sale or may dispose of the dog or cat in a humane manner. If such dog or cat is used for medical research, no license or vaccination is required. The enforcement agent may destroy impounded sick or injured dogs or cats whenever such destruction is necessary to prevent such dog or cat from suffering or to prevent the spread of disease. (1980)

(C) Any impounded licensed dog or any cat may be reclaimed by its owner or such owner's agent, provided that the person reclaiming the dog or cat furnishes proof of right to do so and pays all pound fees. If the dog or cat is not reclaimed within the impound period, the enforcement agent shall take possession and may place the dog or cat for sale or dispose of the dog or cat in a humane manner. Any person purchasing such a dog or cat shall pay all pound fees. (1980)

6-4-9: HANDLING OF BITING ANIMALS; RESPONSIBILITY FOR REPORTING ANIMAL BITES; AUTHORITY TO DESTROY ANIMALS

(A) An unlicensed or unvaccinated dog or cat that bites any person shall be confined and quarantined in an authorized pound or, upon request of and at the expense of the owner, at a veterinary hospital for a period

of not less than ten (10) days. A dog properly licensed and vaccinated pursuant to this Chapter that bites any person may be confined and quarantined at the home of the owner or wherever the dog is harbored and maintained with the consent of and in a manner prescribed by the enforcement agent. (1980,3830)

(B) Any animal, other than a dog or cat, that bites any person shall be confined and quarantined in an authorized pound or, upon the request of and at the expense of the owner, at a veterinary hospital for a period of not less than fourteen (14) days, provided that livestock shall be confined and quarantined for the fourteen- (14-) day period in a manner regulated by the Arizona Livestock Board. If the animal is a caged rodent, it may be confined and quarantined at the home of the owner or where it is harbored or maintained for the required period of time with the consent of and in a manner prescribed by the enforcement agent. (1980)

(C) Any wild animal which bites any person may be killed and submitted to the enforcement agent or his deputies for transmission to an appropriate diagnostic laboratory. (1980)

(D) Whenever an animal bites any person, the incident shall be reported to the enforcement agent immediately by any person having direct knowledge. (1980)

(E) The enforcement agent may destroy any animal confined and quarantined pursuant to this prior to the termination of the minimum confinement period for laboratory examination for rabies if: (1980)

1. The animal shows clear clinical signs of rabies. (1980)

2. The owner of such animal consents to its destruction. (1980)

(F) Any animal subject to licensing under this Chapter found without a tag identifying its owner shall be deemed unowned. (1980)

(G) The enforcement agent shall destroy a vicious animal, except a dog found to be vicious under Section 6-4-16, upon an order of a Justice of the Peace or a City Magistrate. A Justice of the Peace or City Magistrate may issue such an order after notice to the owner, if any, and a hearing. (2287)

6-4-10: UNLAWFUL INTERFERENCE WITH ENFORCEMENT AGENT

It is unlawful for any person to interfere with the enforcement agent in the performance of his duties. (1980)

6-4-11: REMOVING IMPOUNDED ANIMALS

No person may remove or attempt to remove an animal which has been impounded or which is in the possession of the enforcement agent except in accordance with the provisions of this Chapter and the regulations promulgated thereunder. (1980)

6-4-12: UNLAWFUL KEEPING OF DOGS

It is unlawful for a person to keep, harbor, or maintain a dog within the City except as provided by the terms of this Chapter. (1980)

6-4-13: DOGS; LIABILITY

Injury to any person or damage to any property by a dog while at large shall be the full responsibility of the dog owner or person or persons responsible for the dog when such damages were inflicted. (1980)

6-4-14: PROPER CARE, MAINTENANCE, AND DESTRUCTION OF IMPOUNDED ANIMALS

(A) Any animal impounded in a county, city, or town pound shall be given proper and humane care and maintenance. (1980)

(B) Any dog or cat destroyed while impounded in a county, city, or town pound shall be destroyed only by the use of one of the following: (1980)

1. Sodium pentobarbital or a derivative of sodium pentobarbital. (1980)

2. Nitrogen gas. (1980)

3. T-61 euthanasia solution or its generic equivalent. (1980)

(C) If an animal is destroyed by means specified in Subsection (B)1 or 3 of this Section, it shall be done by a licensed veterinarian or in accordance with procedures established by the State veterinarian pursuant to A.R.S. § 24-153. (1980)

6-4-15: RESPONSIBILITY

An owner whose dog fits the definition of a vicious dog in Section 6-4-1 must comply with this ordinance, register the dog with the Police Chief or his designee, confine and control the dog in accordance with Section 6-4-17, and post warning signs. (2287)

6-4-16: DETERMINATION OF A VICIOUS DOG

(A) In the event that the Police Chief or his designee has reasonable grounds to believe that a dog may be vicious, a hearing may be convened. Dog owners are guaranteed due process hearings in the initial determination and in the completion of any appeal process with regard to said determination that their animal is a vicious dog as defined by this ordinance. (2287, 4027)

(B) Written notice informing the owner of the charged viciousness and of the hearing shall be served by the Police Chief or his designee pursuant to the Rules of Civil Procedure. A hearing date shall be held not later than ten (10) calendar days from the date notice was served to the owner. (2287)

(C) Hearing Officer. The due process hearing will be conducted by a City Magistrate or Hearing Officer. The City Magistrate or Hearing Officer will make findings of fact and conclusions of law. The City Magistrate or Hearing Officer shall provide the owner with a written copy of the findings. (2287, 4027)

(D) The hearing shall be informal and shall be open to the public. At the hearing, both oral and documentary evidence may be taken from any interested person and considered in determining whether the dog is vicious. Any owner who fails to appear after notice is given without obtaining a continuance from the appointed Hearing Officer or City Magistrate may be deemed to have waived any right to introduce evidence or object to any order made by the City Magistrate or Hearing Officer. The City Magistrate or Hearing Officer's decision shall be based on the preponderance of evidence. (2287)

(E) Notice. If the animal is deemed to be a vicious dog, the City Magistrate or Hearing Officer will advise the owner of the decision at the hearing or send a registered letter advising the owner of such within ten (10) days. (2287)

(F) In the event that the enforcement agent or law enforcement officer has probable cause to believe that the dog in question is vicious and may pose a threat of serious harm to human beings or other domestic animals, the enforcement agent or law enforcement officer may require the seizing and impoundment of the dog pending the hearing. (2287)

6-4-17: CONTROL OF A VICIOUS DOG

Once a dog is declared vicious, the following steps will be required to continue ownership of such an animal: (2314)

(A) Immediate steps that must be completed within one (1) calendar day upon completion of notification of a determination of viciousness: (2314)

1. Leash and muzzle. No person shall permit a vicious dog to go outside its kennel or pen unless such dog is securely leashed with a leash no longer than six feet (6') in length. No person shall permit a vicious dog to be kept on a chain, rope, or other type of leash outside confinement unless a person is in physical control of the leash. Such dogs may not be leashed to inanimate objects such as trees, posts, buildings, etc. In addition, all vicious dogs on a leash outside the animal's kennel must be muzzled by a muzzling device sufficient to prevent such dog from biting persons or other animals. Any kennel or pen must meet the requirements of Section 6-4-17(B)1. (2314)

2. Confinement Indoors. No vicious dog may be kept on a porch, patio, or in any part of a house or structure that would allow the dog to exit such building on its own volition. (2314)

(B) Reporting Requirements. The following types of information must be reported by the owner of the dog to the Police Chief or his designee within ten (10) calendar days of occurrence: (2314)

1. Death of dog. A written notice from a veterinarian confirming the death of the dog must be provided to the Police Chief or his designee. (2314)

2. Yearly renewal of liability insurance. (2314)

3. The new address of a registered vicious dog owner should the owner move within the City limits. (2314)

4. The new address of a registered vicious dog that has been moved permanently outside the City limits. (2314)

(C) A time schedule for completion of the following steps is to be set by the Hearing Officer, but in no case will it be longer than thirty (30) calendar days from the date of the City Magistrate or Hearing Officer's decision. (2314)

1. Confinement. All vicious dogs shall be securely confined indoors or in a securely enclosed and locked pen or kennel, except when leashed and muzzled. Such pen, kennel, or structure must have secure sides and a secure top attached to the sides. (2314)

(a) All structures used to confine vicious dogs must be locked when such animals are within the structure. Such structure must have a secure bottom or floor attached to the sides of the pen, or the sides of the pen must be embedded in the ground no less than two feet (2'). (2314)

(b) The pen or kennel may not share common fencing with the area of perimeter fence. (2314)

(c) All structures erected to house vicious dogs must comply with all zoning and building regulations of the City. All such structures must be adequately lighted, ventilated, and kept in a clean and sanitary condition and any other condition that provides for humane care. (2314)

2. Registration. A declared vicious dog shall not only be routinely licensed yearly but shall also be permanently registered as a vicious dog with the Mesa Police Department. (2314)

3. Signs. All owners of vicious dogs within the City shall display in a prominent place on their premises a sign in three-inch (3") letters, easily readable by the public, using the words "Vicious Dog." In addition, a similar sign is required to be posted on the kennel or pen of such animal. (2314)

4. Insurance. All owners of vicious dogs must obtain public liability insurance in a single incident amount of one hundred thousand dollars ($100,000) for bodily injury to or death of any person or persons or for damage to property or animals owned by any persons resulting from the ownership of a dog. All owners must provide proof of insurance and effective dates to the Police Chief or his designee. Cancellation of liability insurance by the dog's owner is allowed only in the event that the dog dies. The owner of a dog must notify the Police Chief or his designee within ten (10) days if insurance coverage is cancelled by the insurance carrier and provide proof that substitute insurance coverage has been obtained. (2314)

5. Failure to Comply. The purpose of complying with these guidelines for a dog declared vicious is to prevent attacks, injuries, or deaths by mandating the use of control methods. Owners have the opportunity to keep their dogs if this article is complied with. (2314)

(a) It shall be unlawful for the owner of a vicious dog registered in the City of Mesa to fail to comply with the requirements and conditions set forth in this ordinance. Any dog determined to be a vicious dog pursuant to Section 6-4-15 or Section 6-4-16 that is found to be in violation of this ordinance shall be subject to immediate seizure and impoundment and may be destroyed upon order of a City Magistrate. (2314)

(b) Any dog that has been determined to be a vicious dog pursuant to Section 6-4-15 or Section 6-4-16 that injures or kills a human being or a domestic animal and is in violation of this ordinance shall be destroyed. (2314)

6-4-18: PENALTIES

(A) Any owner of a dog that has been declared vicious pursuant to Section 6-4-15 or Section 6-4-16 who violates or permits the violation of any provision of this article shall, upon conviction in the City of Mesa Court, be fined a sum of not less than two hundred fifty dollars ($250.00) and not more than two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (2314, 2466)

(B) In addition, the Court may order the vicious dog impounded and destroyed. (2314)

(C) The Court may order any person who violates this article to pay all expenses related to the impounding of the vicious dog, including shelter, food, handling, and veterinary care, to the City. (2314)

(D) The Court may also order any person who violates this article to pay restitution to any victim or victims whose person or animal was injured or killed or property damaged. (2314)

(E) In the event that the owner of the vicious dog is a minor, the parent or guardian in physical control of such minor at the time of the acts giving rise to the determination of viciousness shall be liable: (1) for all injuries and property damage sustained by a person or domestic animal caused by an unprovoked attack by said vicious dog; and (2) all violations of this Chapter. (2314)

6-4-19: POLICE DOGS

Dogs utilized by the Mesa Police Department are exempt from the requirements of this ordinance. (2287)

CHAPTER 5
GENERAL REGULATIONS RELATING TO ANIMALS

6-5-1: UNLAWFUL FOR ANIMALS TO RUN AT LARGE

Any person owning, keeping, possessing, harboring, or maintaining any cattle, horses, mules, swine, sheep, goats, or other livestock commits an unlawful act if such animal is at large within the corporate limits. (1505, 1635)

6-5-2: PLACE WHERE BIRDS AND ANIMALS ARE KEPT FOR SALE AND EXHIBITED TO BE KEPT SANITARY

No person shall keep, operate, or conduct any place of business at which birds, pigeons, dogs, cats, or other animals are kept for exhibition or sale or are offered for sale, unless such place shall be kept in a clean and sanitary condition and subject at all times to the inspection of the Board of Health, and the Board of Health is hereby authorized and empowered to close such place of business if the same shall not be kept clean and sanitary and keep the same closed until the same shall be placed in a clean and sanitary condition. (1957 Code, 1635)

6-5-3: UNLAWFUL TO TAKE ANY ANIMAL FROM PERSON IN CHARGE

It shall be unlawful for any person to take his own animal or that of any other person out of the custody of the person holding the same for any damage done by it or out of the pound by stealth or by force or to interrupt or hinder the pound master in the discharge of his duties. (1957 Code, 1635)

6-5-4: CONVEYANCE OF LIVESTOCK

All livestock shall be conveyed in motor vehicles within the City, and it shall be unlawful for any person to drive any domestic animal or animals through or upon any public thoroughfare of the City. (1957 Code, 1635)

6-5-5: SELLING CHICKENS, DUCKS, OR RABBITS THAT HAVE BEEN ARTIFICIALLY COLORED

(A) It is unlawful for any person: (3877)

1. To sell, offer for sale or barter, or to give away chickens, ducks, or rabbits that have been dyed, colored, stained, or whose natural color has been artificially changed; or (3877)

2. To bring or transport these artificially colored animals into the City. (3877)

(B) This Section does not apply to a person who finds abandoned animals that have been artificially colored, or who is given such animals that the owner no longer wants and such person tries to find a new home for the abandoned or unwanted animal. (3877)

6-5-6: PENALTY

Any person convicted of a violation of any provision of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (1635, 2466, 3877)

CHAPTER 6
CURFEW

6-6-1: CURFEW FOR MINORS

(A) It is unlawful for a minor under the age of sixteen (16) years to be in, on, or upon a public street, sidewalk, alley, right-of-way, or other public place in the City between the hours of ten (10:00) P.M. and five (5:00) A.M. It is unlawful for a minor between the ages of sixteen (16) years and eighteen (18) years to be in, on, or upon a public street, sidewalk, alley, right-of-way, or other public place in the City between the hours of twelve (12:00) midnight and five (5:00) A.M. (2585, 2825)

(B) It is unlawful for a parent, guardian, or other person having legal care and custody of a minor to knowingly allow or permit the minor to be in, on, or upon a public street, sidewalk, alley, right-of-way, or other public place in violation of the provisions of this Section, except as expressly provided herein. (2585)

(C) The provisions of this Section do not apply: (2585)

1. To legally emancipated minors, whether the emancipation be through marriage, military service, or other legally sufficient grounds. (2585)

2. To minors who are accompanied by a parent, guardian, or other person having legal care and custody of the minor. (2585)

3. To minors who would otherwise be in violation of the terms of this Section when: (2585)

   (a) Their presence is reasonably required in the pursuit of a lawful trade, occupation, work, business, or profession in which the minor is then engaged, with the permission of a parent, guardian, or other person having legal care or custody of the minor; or (2585)

   (b) Their presence is necessitated by an emergency, medical or otherwise, involving themselves or another; or (2585)

   (c) Their presence is occasioned by their attendance at or return from functions sponsored by or related to religious, school, civic, or nonprofit organizations, including but not limited to, services, classes, meetings, dances, social events, dramatic or musical performances, and sporting events, with the permission of a parent, guardian, or other person having legal care or custody of the minor. (2585)

4. To a minor, if it is established that a parent, guardian, or other person having legal care or custody of a minor gave permission to the minor, prior to the date and time of the offense, authorizing the

minor to be at a specific location or authorizing the minor to perform a legitimate errand or activity, and the minor was at that location, was traveling to or from that location, or was performing that errand or activity. (383, 1635, 2585)

6-6-2: RESPONSIBILITY OF PARENTS

Editor's note—Ord. No. 2585 repealed § 6-6-2.

6-6-3: PENALTY

Any person convicted of a violation of any provision of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (1635, 2466, 2585)

CHAPTER 7

REGISTRATION OF CONVICTED PERSONS

6-7-1: REGISTRATION REQUIRED

Every person who, subsequent to January 1, 1950, has been or who is hereafter convicted of a felony under the laws of the United States, of the State of Arizona, or of any other state or any other government or country; who has violated any national or state law relating to the possession, sale, or transportation of any narcotic; who is a habitual user of narcotics and who is residing in the City on the effective date of this Chapter; or who comes into the City from any point outside the City, whether in transit through the City or otherwise, shall report to the Chief of Police of the City within five (5) days of the effective date of this Chapter if residing in the City on said effective date or within forty-eight (48) hours after his arrival within the City if coming into the City after said effective date and shall furnish to the Chief of Police a written statement signed by such person, giving the following information: (365, 1635)

(A) His true name and all aliases which he has used or under which he may have been known. (365, 1635)

(B) A full and complete description of his person. (365, 1635)

(C) The kind, character, and nature of each crime of which he has been convicted. (365, 1635)

(D) The place where such crime was or crimes were committed and the place of conviction of the same. (365, 1635)

(E) The name under which he was convicted in each instance and the date thereof. (365, 1635)

(F) The name, if any, and the location of each prison, reformatory, jail, or other penal institution in which he was confined or to which he was sentenced. (365, 1635)

(G) The location and address of his residence, stopping place, living quarters, or place of abode in the City. If he has more than one (1) residence, stopping place, or place of abode, that fact must be stated and the location and address of each given. (365, 1635)

(H) A statement of the kind of residence, stopping place, or place of abode in which he resides, whether the same is temporary or permanent, and whether the same is a private residence, hotel, apartment house, or other building or structure. (365, 1635)

(I) The length of time he has occupied each such place of residence, stopping place, or place of abode and the length of time he expects or intends to remain in the City. (365, 1635)

(J) Such other information as the Chief of Police shall find reasonably necessary to carry out the intent of this Subsection. (365, 1635)

6-7-2: FULL PAROLEES EXCEPTED

This Chapter shall not be construed to apply to any person who has received a full pardon for each crime whereof he shall have been convicted. (365, 1635)

6-7-3: PHOTOGRAPHS AND FINGERPRINTS

At the time of furnishing such information as required above, the person registering shall be photographed and fingerprinted by the Chief of Police, and photographs and fingerprints shall be made a part of the permanent record herein provided for. (365, 1635)

6-7-4: FALSE INFORMATION

It shall be unlawful for any person required by any provision of this Chapter to furnish any such report to furnish in such report any false or fictitious address or any address other than a true address or intended address or to furnish in making any such report any false, untrue, or misleading information or statement relating to any information required by any provision of this Chapter to be made or furnished. (365, 1635)

6-7-5: RECORDS CONFIDENTIAL

The statements herein required shall at all times be kept by the Chief of Police in a file separate and apart from other files and records maintained and kept by the Police Department of the City and shall not be open to inspection by the public or by any person other than a regular member of the Police Department of the City. (365, 1635)

6-7-6: RECORDS AVAILABLE TO POLICE OFFICIALS

The Chief of Police shall have the authority to transmit copies of records required herein to the Sheriff of any county of the State, to the head of any organized police department of any municipality in the State, to the head of any department of the State engaged in the enforcement of any criminal law of the State, to the head of any federal law enforcement agency, to any sheriff or chief of police of a municipality, or to the head of any other law enforcement agency of any state in any state or territory outside of the State when request is made in writing by such sheriff or other head of a law enforcement agency asking for the record of a certain person named therein and stating that such record is deemed necessary for the use of such law enforcement officer or agency for the investigation of any crime, any person who is accused of committing a crime, or any crime which is reported to have been committed, and further stating that the record will be used only for such purpose. (365, 1635)

6-7-7: DISCLOSURE OF INFORMATION ILLEGAL

It shall be unlawful for any police officer or employee of the Police Department to disclose to any person any information contained in a statement required hereunder. (365, 1635)

6-7-8: CHANGE OF ADDRESS

Whenever any person who is required by this Chapter to register shall move and change his address within the City of Mesa, such person shall report such change of address and location of his residence to the Chief of Police within forty-eight (48) hours. (365, 1635)

6-7-9: PENALTY

Any person convicted of a violation of any provision of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (1635, 2466)

CHAPTER 8

PREVENTION AND SUPPRESSION OF RIOTS

6-8-1: GOVERNMENT BY PROCLAMATION

In the event of the threat of or occurrence of acts of riot, rout, or affray sufficient to constitute great danger to the City and its residents, the Mayor shall take command of the Police Force of the City and govern by proclamation. (580, 1635)

6-8-2: ESTABLISHMENT OF A CURFEW

In such areas of the City as shall be designated by the Mayor by proclamation under the conditions set forth in Section 6-8-1 of this Chapter and within the area within all or any part of the City so designated by the Mayor, a curfew shall be in effect the hours of each day designated in the proclamation. All persons living or residing within any such designated area shall go immediately to their homes and remain there until the curfew is lifted by order of the Mayor, and all other persons not residing within the designated area shall immediately leave. (580, 1635)

6-8-3: SALE OF ALCOHOLIC BEVERAGES

During the imposition of any curfew as set forth in Section 6-8-2, all business establishments in the designated curfew area having on their premises intoxicating beverages shall be closed during the state of emergency and until the curfew is lifted. (580, 1635)

6-8-4: PENALTY

Any person convicted of a violation of any provision of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (1635, 2466)

CHAPTER 9
BANNERS AND SIGNS ON POLES*

CHAPTER 10
PUBLIC PARK REGULATIONS†

6-10-1: PURPOSE AND ADMINISTRATION

(A) The purpose of this Chapter is to protect the health, safety, and welfare of the City's residents and the general public in the use of parks and to promote recreation in the parks.

(B) It is the duty and responsibility of the Director to administer the provisions of this Chapter. Pursuant to this duty, the Director shall have the authority to create rules, regulations, and policies related to the use of parks consistent with the purpose of this Chapter.

(Ord. No. 5617, § 1, 4-19-21)

6-10-2: DEFINITIONS

The terms of this Chapter have the below meanings, whether or not the term is capitalized, unless the context requires otherwise. Words in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

ADA: Americans with Disabilities Act of 1990 (42 U.S.C §§ 12101 through 12213), as amended.

ADJACENT RIGHT-OF-WAY: means right-of-way (as defined in Mesa City Code 9-1-1) adjacent to a park.

ADMINISTRATOR: The City's Parks, Recreation & Community Facilities staff person(s) responsible for permits issued pursuant to this Chapter.

A.R.S.: Arizona Revised Statutes.

AzDA: Arizonans with Disabilities Act of 1992 (A.R.S. §§ 41-1492 through 41-1492.12), as amended.

BEER: As defined in A.R.S. § 4-101, as amended.

CAMP or **CAMPING:** means to establish temporary or permanent living accommodations in a park or adjacent right-of-way. Indications of camping include laying down bedding, using camp paraphernalia, erecting temporary structures for shelter, sleeping, storing personal belongings, burning a fire, cooking or preparing food, living in a parked motor or recreational vehicle, or remaining for prolonged or repetitious periods of time in a manner not associated with ordinary recreational use of a park. An activity shall constitute camping when it reasonably appears, in light of all the circumstances, the person, in conducting the activity, are in fact using the area for the purpose of living accommodations, regardless of the intent of the participants or the nature of any other activities

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***Editor's note—**Ord. No. 1654 repealed Chapter 9 in its entirety.

†Editor's note—Ord. No. 5617, § 1, adopted April 19, 2021, repealed the former Ch. 10, §§ 6-10-1—6-10-9, and enacted a Ch. 10 as set out herein. The former Ch. 10 pertained to similar subject matter and derived from Ord. Nos. 786, 1635, 2455, 2763, 3212, 4271, 4317, 5054.

in which they may also be engaging. For the purposes of clarity, the term "camp" or "camping" in this Chapter 10 does not refer to the mere use of city-installed cooking facilities or equipment, the possession or transportation of camping paraphernalia, or the use of a blanket for resting absent other evidence of living accommodations.

CAMPING PARAPHERNALIA: Any accessory, equipment, or item commonly used to assist someone to camp, including tarpaulins, cots, beds, bedding, sleeping bags, hammocks, tents, blankets, and cooking equipment.

CITY: The City of Mesa, Arizona.

DIRECTOR: The City's Parks, Recreation & Community Facilities Director or their designee.

ELECTRIC BICYCLE: A vehicle having two or three wheels, with fully operable pedals, and an electric motor not exceeding seven hundred fifty (750) watts of power. Electric bicycles are further defined by one of three classes as follows:

(A) Class 1 electric bicycle: An electric bicycle equipped with an electric motor that provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle reaches a speed of twenty miles per hour (20 mph).

(B) Class 2 electric bicycle: An electric bicycle equipped with an electric motor that provides assistance regardless of whether the rider is pedaling and ceases to provide assistance when the bicycle reaches a speed of twenty miles per hour (20 mph).

(C) Class 3 electric bicycle: An electric bicycle equipped with an electric motor that provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle reaches a speed of twenty-eight miles per hour (28 mph).

ESTABLISH: Setting up or moving equipment, supplies, or materials to camp or operate camp facilities.

MOBILE FOOD VENDOR: As defined by A.R.S. § 9-485, as amended.

MOBILITY DEVICE: Any "electric personal assistive mobility device" (as defined by A.R.S. § 28-101, as amended), wheelchair, scooter, or other mobility device, whether power-driven or manual, used by a person with a disability for mobility.

MOTOR VEHICLE: A self-propelled vehicle or, for the purposes of the laws relating to the imposition of a tax on motor vehicle fuel, a vehicle that is operated on the highways of this state and that is propelled by the use of motor vehicle fuel. Motor vehicle includes any off-highway vehicle as defined in A.R.S. § 28-1171(6)(A)—(C) and further includes, but is not limited to, a fuel powered automobile or truck, gas powered moped, motorcycle, and motor driven cycle as defined in A.R.S. § 28-101.

MOTORIZED ELECTRIC VEHICLE: A vehicle including, but not limited to, auto cycle, class 1 electric bicycle, class 2 electric bicycle, class 3 electric bicycle, electric standup scooter, electric miniature scooter, electric mobility device, electric powered automobile or truck, electric golf cart, electric powered moped, motorized wheelchair, motorized quadricycle, motorized skateboard, neighborhood electric shuttle, neighborhood electric vehicle, personal mobile cargo carrying device, or utility cart.

PARK: A City-owned, leased, or licensed park, Maricopa County Flood Control Trail Corridor, playground, retention basin, cemetery, golf course, multi use shared-use path, recreation or community center, land designated

for future park development, swimming pool, splashpad, athletic stadium or venue, or any other area that is owned, leased, or licensed by the City that accommodates active or passive recreation and entertainment, including the parking lots, roadways, sidewalks, and pathways of a park.

PEDDLER: As defined by Mesa City Code Title 5, Chapter 8, as amended.

PEDESTRIAN: Any person afoot or operating a human-powered device, such as a bicycle, roller skates, inline skates, or skateboard, or a person using a mobility device.

PERMIT: A permit, license, or reservation issued by the Administrator pursuant to this Chapter.

PERMITTED USE: The specific use or event for which a permit is issued.

PERMITTEE: A person issued a permit pursuant to this Chapter.

PERSON: An individual, firm, partnership, joint venture, association, corporation, or any other group or combination acting as a unit.

REFUSE: Any glass or plastic bottles or containers, broken glass, ashes, paper, boxes, cans, rubbish, waste, trash, garbage, household appliances or furniture, construction or landscaping materials, animal waste, human waste, or other discarded items.

SHARED-USE PATH: A surfaced path which may be separated from motorized vehicle traffic by an open space or barrier and has been designated or designed by the City for public use for human powered travel or movement, such as by walking, jogging, running, skating, bicycling, or by use of a mobility device.

SHOPPING CART: As defined by A.R.S. § 44-1799.31, as amended.

SOLICITOR: As defined by Mesa City Code Title 5, Chapter 8, as amended.

SPECIAL EVENT: A temporary use, event, or activity in a park beyond the normal scope of visitor use such as reservation of an area or facility, conducting business whether for-profit or not-for-profit, an activity which could impact public access or enjoyment, or a request for exemption from a park rule or regulation. A special event includes, but is not limited to, sporting event, parade, circus, fair, carnival, festival, procession, wedding, street dance, concert, rodeo, race, farmers market, religious revival, political rally, vehicle show and display.

SPIRITUOUS LIQUOR: As defined by A.R.S. § 4-101, as amended.

STORE: To put aside or accumulate for use when needed, to put for safekeeping, to place or leave in a location.

WINE: As defined by A.R.S. § 4-101, as amended.
(Ord. No. 5617, § 1, 4-19-21; Ord. No. 5891, § 1, 12-2-24; Ord. No. 5994, § 1, 1-12-26)

6-10-3: HOURS OF USE; CLOSURE AND RESTRICTIONS

(A) Parks shall be open to the general public every day of the year from sunrise until 10:00 p.m., unless otherwise posted or due to unusual or unforeseen circumstances or emergencies. It is unlawful to remain in or enter a park outside of a park's designated hours unless a permit is obtained pursuant to Section 6-10-6.

(B) The Director shall have the authority to modify the hours of use of parks and declare closed or restricted a park or area within a park, either temporarily or at regular or stated intervals (daily or otherwise), and

either entirely or to certain uses, as the Director finds reasonably necessary. It is unlawful to enter or use any closed or restricted area of a park if such entry or use is prohibited unless a permit is obtained pursuant to Section 6-10-6.

(Ord. No. 5617, § 1, 4-19-21)

6-10-4: PROHIBITED ACTIVITIES AND RESTRICTIONS

It is a violation of this Chapter for a person in a park to engage in any of the prohibited activities or to violate any of the restrictions set forth in this Section, unless otherwise allowed pursuant to the Subsections below:

(A) **Pollution of Water.** No person shall throw, discharge, or otherwise place or cause to be placed in the water of any fountain, pond, lake, stream, swimming pool, splashpad, or other body of water in or adjacent to a park, or any stream, storm, sewer, or drain flowing into such water any refuse or substance, matter, liquid, or solid, that may result in the pollution of water.

(B) **Refuse.** No person shall dump, deposit, abandon, or leave refuse in a park except within an appropriate receptacle.

(C) **Items for Donation or Distribution.** No person shall dump, deposit, abandon, or leave unattended in a park any food, beverage, clothing, or any item intended for donation or distribution.

(D) **Restroom Facilities.** No person shall urinate or defecate in a park except in a urinal or toilet provided for such purposes within a designated restroom facility.

(E) **Bathing, Swimming, or Wading.** No person shall bathe, swim, or wade in any water or waterway, splashpad, or any restroom facility in or adjacent to a park except at places designated by the Director for such purposes and in compliance with the regulations determined by the Director.

(F) **Boating.** No person shall bring or operate any boat, raft, or other watercraft, whether motor-powered or not, upon any water in a park except at places designated for boating by the Director and in accordance with applicable regulations determined by the Director, which may include separate requirements or allowances for motorized and nonmotorized watercrafts.

(G) **Golfing.** No person shall use any portion of a park for golfing purposes except at places designated for golfing by the Director and in compliance with the regulations determined by the Director.

(H) **Prohibited Vehicles, exceptions.** No person shall drive, ride, or operate a motor vehicle in a park except upon public roadways running through the park or to park in designated parking areas within the park; or within areas designated for such purposes by the Director.

(1) The prohibition in this Subsection shall not apply to City-owned or other governmental vehicles, construction or maintenance vehicles authorized by the City to operate in a park, emergency and public safety vehicles, class 1 electric bicycles, class 2 electric bicycles, electric standup scooters, electric miniature scooters, mobility devices, and motorized vehicles operating under a special event license at a park or granted express written permission by the director to operate at a park.

(2) Class 3 electric bicycles and any other motor vehicle or motorized electric vehicle not set forth in subsection (H)(l) above are not allowed to be driven, ridden, or operated in a park except on public roadways running through the park or to park in designated parking areas within the park.

(I) **Safe operation of Vehicles, Mobility Devices.** No person shall drive, ride, or operate a mobility device, an authorized motor vehicle or motorized electric vehicle as set forth in (H)(l) above, or a human powered skateboard, roller skates, inline skates, bicycle, scooter, or any other type of rolling vehicle, in a park: (1) where such activity is specifically prohibited by posted notice; (2) on any brickwork, paver work, ornamental surface, picnic table, bench, playground, equipment, surface or area specifically designed for ADA access, fountain area, planter, or sculpture; (3) in an unsafe manner or speed so as to infringe upon or endanger the safety of themselves or the general public; or (4) in or on any portion of park when it is flooded or contains standing water. A person operating a vehicle in a park shall yield the right-of-way to any pedestrian walking, jogging, running, or using a mobility device and shall obey all posted traffic control signs and notices.

(J) **Parked Vehicles, Vehicle Maintenance and Repair.** No person shall perform any maintenance or repair to any motorized vehicle or non-motorized vehicle within a park, including assembly, disassembly, washing, waxing, oil change, and engine tune-up, except for emergency maintenance or repair to remove the vehicle from the park. An unattended vehicle left in a park between the hours of 10:00 p.m. and sunrise may be impounded.

(K) **Horses.** No person shall bring a horse into a park except on a designated bridle trail or path, equestrian area, or other area designated by the Director for horses. If horses are permitted in an area of a park, a horse shall: (1) be thoroughly broken, properly restrained, ridden with due care, and shall not be allowed to graze or go unattended, and (2) not be hitched to any rock, tree, shrub, fence, or park improvement not intended for hitching horses. This Subsection shall be interpreted, applied, and enforced in compliance with the ADA and AzDA, with legally required exceptions made for miniature horses.

(L) **Dogs.** A person with a dog in their care or custody in a park shall: (1) keep the dog under their physical control and restrain the dog on a leash not greater than six feet (6') in length, except when the dog is otherwise under the control of a person and (a) the dog is within a fully enclosed and designated off-leash area of a designated dog park, or (b) the dog is actively engaged in obedience training during a session, class," or program the dog is currently enrolled in, or (c) a dog that is engaged in obedience training previously graduated from an obedience training school; (2) immediately dispose of the dog's waste in an appropriate receptacle; (3) immediately remove the dog from the park if it exhibits aggressive behavior that evidences a threat of injury; (4) ensure the dog is vaccinated against rabies in accordance with A.R.S. § 11-1010 and wearing tags in accordance with A.R.S. § 11-1008; and (5) comply with the animal control laws of the Mesa City Code Title 6, Chapter 4. The prohibitions in this Subsection shall not apply to dogs utilized by the Mesa Police Department. This Subsection shall be interpreted, applied, and enforced in compliance with the ADA and AzDA, with legally required exceptions made for a "service animal" as that term is defined by the ADA.

(M) **Other Animals.** Except with respect to horses and dogs as provided in Subsections 6-10-4(K) and 6-10-4(L), no person shall bring into a park any animal except in designated areas clearly marked by signs permitting such use or in areas approved by the Director, such as an animal show, petting zoo, educational event, or obedience or training class. In all cases, if animals are permitted in a park, they shall be under the control of a person at all times.

(N) **Models and Drones.** No person shall use or operate in a park any drone or radio controlled or non-radio-controlled model, including a model aircraft, model boat, and model motorized car, except at places

designated for such use by the Director and in accordance with the applicable regulations determined by the Director, which may have separate requirements or allowances for radio-controlled or non-radio controlled models or drones. The provisions of this Subsection shall be interpreted, applied, and enforced in compliance with the applicable State laws for the specific activity occurring in a park.

(O) **Glass Containers.** No person in a park shall possess or have custody of a glass container of any kind or description.

(P) **Disfiguration or Removal of Improvements.** No person shall damage, deface, disfigure, injure, tamper with, displace, or remove any equipment or improvements owned or maintained by the City in a park, including, but not limited to, turf grass, landscape material, electrical equipment, wiring, playground equipment, picnic table, bench, fire pit, grill, paving, water fountain, public utility line, sign, monument, marker, fencing, and restroom fixture.

(Q) **Disfiguration or Removal of Natural Resources.** No person shall disfigure, displace, remove, or excavate, as applicable, any soil, rock, stone, sand, tree, shrub, cactus, plant material, or other natural resource of any description in a park.

(R) **Harming, Removing, or Releasing Animals.** No person shall harm, remove from, or release into a park any animal or wildlife.

(S) **Fires.** No person shall start or sustain a fire in a park except for the combustion of charcoal in a fire pit, grill, or other improvement as designated and approved for such use by the Director. This Subsection shall not prohibit the burning of wood in a fireplace located at Falcon Field park.

(T) **Iceblocking and Water Sliding.** No person shall engage in iceblocking or erect or engage in any water sliding activity in a park except as designated and approved for such use by the Director.

(U) **Shopping Carts.** No person shall operate, maintain, possess, store, abandon, or leave unattended a shopping cart in a park.

(V) **Camping.** No person shall camp, establish or maintain camping facilities, or use or store camping paraphernalia in a city park or adjacent right-of-way.

(1) This Section does not apply to:

(A) Temporary structures or camps set up by a government agency or relief workers during a disaster or emergency situation.

(B) Activities approved by the Director or city that receive a special event license, special use permit, or other permit or permission.

(2) If any camping paraphernalia or item used for camping is left unattended or abandoned in a park, the City may confiscate and discard the item in accordance with applicable law.

(3) Nothing in this Subsection is intended to interfere with otherwise lawful and ordinary uses of park property or adjacent right-of-way.

(W) **Fishing.** No person shall fish in a body of water in a park that is not designated by the Director for fishing. A person fishing in a park shall comply with the regulations of the Arizona Department of Game and Fish including licensure and bag limit requirements. No person shall use a magnetic fishing device in a park.

(X) **Marijuana.** No person shall acquire, possess, consume, purchase, sell, cultivate, manufacture, produce, store, transfer, or distribute marijuana or marijuana products in a park. The terms used in this Subsection that are not defined in this Chapter shall have the definitions prescribed by Mesa City Code Section 6-25-2, as amended, as applicable.

(Y) **Engaging in Business Activities.** No person shall engage in any business activity of a peddler, solicitor, mobile food vendor, or other vendor offering for sale or selling any goods or services in a park unless: (1) the person is engaging in the business activity at a special event with a permit issued pursuant to Section 6-10-6, and (2) the person has all required licenses for the lawful operation of the business activity, including applicable licenses issued pursuant to Title 5 of the Mesa City Code, and all required health permits from the Maricopa County Health Department. The provisions of this Subsection shall be interpreted, applied, and enforced in compliance with the applicable State laws for the specific business activity occurring in a park.

(Z) **Miscellaneous.** No person shall bring into or use in a park a sling shot, BB gun, pellet gun, paint ball gun, firework, rocket, ignition or combustion-powered launching device, hot air balloon, javelin, shot-put, discus, paraglider, windsailing equipment, jousting equipment, archery equipment, or fencing equipment, unless a permit is obtained for that specific use.

(AA) **Endangerment of or Interference with Health, Safety, Welfare, and Recreation.** No person shall commit any act in a park which endangers the health, safety, or welfare of themselves or of the general public or that unreasonably interferes with a person's reasonable and lawful recreation, use, or enjoyment of a park.

(BB) **Interference with City Duties and Events.** No person shall interfere with the Director, Administrator, police officer, park ranger, or City staff in the performance of their duties or in the enforcement of any provision of this Chapter. No person shall unreasonably interfere with a permitted use or any City-approved event in a park.

(Ord. No. 5617, § 1, 4-19-21; Ord. No. 5783, § 1, 6-5-23; Ord. No. 5891, § 2, 12-2-24; Ord. No. 5994, § 2, 1-12-26)

6-10-5: SPIRITUOUS LIQUOR

It is unlawful for a person in a park to consume, possess, or have in their custody any spirituous liquor unless:

(A) The sale, consumption, possession of spirituous liquor is governed by and in compliance with the requirements of a "liquor license" or a "special event license" issued by the Arizona Department of Liquor License and Control and by an alcohol permit issued pursuant to Subsection 6-10-S(B), and the sale, consumption, possession of spirituous liquor is in compliance with Mesa City Code Title 5, Chapter 9.

(B) The consumption and possession of beer or wine is a permitted use authorized under and in compliance with the requirements of an alcohol permit issued by the Administrator pursuant to Subsection 6-10-6(B)(5).

(1) An alcohol permit may be issued only to a person at least twenty-one (21) years of age.

(2) Every person consuming or possessing beer or wine pursuant to an alcohol permit, whether the permittee or a guest of the permittee, must be at least twenty-one (21) years of age.

(3) An alcohol permit authorizes the consumption and possession in a park of beer and wine only and not of any other type of spirituous liquor.

(4) The authority an alcohol permit confers to consume or possess beer or wine in a park does not authorize the sale of beer or wine.

(5) The permittee must remain on-site at the park at all times during which beer or wine is consumed or possessed by the permittee or their guest.

(6) Violation or non-compliance with any requirement of this Subsection is grounds for the revocation of an alcohol permit.

(Ord. No. 5617, § 1, 4-19-21)

6-10-6: PERMITS

(A) It is unlawful for a person to violate or fail to comply with any provision of this Section.

(B) **Permit Required.** A permit is required for each of the uses in a park listed in this Subsection.

(1) Any special event. If a special event will take place in a manner that will impact a "right-of-way" as that term is defined by Mesa City Code Section 9-1-1, then the applicant must also obtain a license pursuant to Mesa City Code Title 5, Chapter 1.

(2) Any event involving the sale, distribution, or service to the public of food, beverage, or any other article or good if the event is intended, will, or is likely to attract ten (10) or more members of the public. In the case of the sale, distribution, or service of food or beverage, all required health permits must be obtained from the Maricopa County Health Department prior to the issuance of a permit.

(3) Reserving a designated area or facility such as a ramada, sports field or court, or pool for an event or use to the exclusion of others.

(4) Remaining in or entering a park outside of the park's hours of use or entering or using any closed or restricted area of a park.

(5) Consuming or possessing beer or wine in accordance with Subsection 6-10-5(B).

(6) Any activity, use, or event in Section 6-10-4 requiring a permit.

(7) Any activity, use, or event reasonably determined by the Director to require a permit as set forth in City policy, rule, or regulation.

(C) **Application.** A person seeking a permit shall submit a complete application to the Administrator on the forms prescribed by the Administrator and accompanied by the fees set forth in the City's then current schedule of fees and charges.

(D) **Grounds for Denial.** The Administrator may deny an application for a permit for any of the reasons listed in this Subsection.

(1) The submitted application was incomplete, contained fraudulent or misleading statements, or a required fee for the permit or application was not paid.

(2) The requested park area or facility is previously reserved or otherwise unavailable for use or the proposed permitted use will unreasonably interfere with another permitted use or City-approved event.

(3) The proposed permitted use will unreasonably interfere with or detract from the promotion of public health, safety, welfare, or recreation, or will disturb the peace of or cause undue hardship on neighboring residents or businesses.

(4) The proposed permitted use will entail unusual, extraordinary, or burdensome City expense or public safety supervision by the City. In making this determination, the Administrator may consider whether the applicant will pay for off-duty police officers or other security required by the City to ensure the safety of participants.

(5) Within the eighteen (18) month period immediately preceding submittal of the application, the applicant or the proposed permitted use violated or failed to comply with any of the permit conditions of Subsection 6-10-6(E) or failed to obtain a permit required by this Chapter.

(6) Within the eighteen (18) month period immediately preceding submittal of the application, the applicant or the proposed permitted use had a permit revoked pursuant to Subsection 6-10-6(1).

(E) **Permit Conditions.**

(1) The permitted use shall not unreasonably interfere with or detract from the promotion of public health, safety, welfare, or recreation.

(2) The permittee and participants of the permitted use shall not engage in conduct that would constitute disorderly conduct under A.R.S. § 13-2904, as amended.

(3) The permitted use shall not incite violence or crime.

(4) The permitted use shall not result in food, beverage, clothing, or any item intended for donation or distribution dumped, deposited, abandoned, or left unattended in a park.

(5) The permitted use shall not cause any unsanitary or unsafe condition in a park, such as the overwhelming of a park restroom or locker room facility with people or refuse, the overloading of a trash or recycling receptacle with refuse, or refuse being left or abandoned in a park outside of the appropriate receptacles.

(6) All refuse from the permitted use shall be immediately removed from the park or properly disposed of in the appropriate receptacles. All personal property utilized for the permitted use shall be immediately removed from the park or properly disposed of in the appropriate receptacles upon expiration of the permit.

(7) The permitted use shall not unreasonably interfere with any other permitted use or City-approved event and shall not unreasonably interfere with a person's reasonable and lawful use of a park.

(8) The permitted use shall not disturb the peace of or cause undue hardship on neighboring residents or businesses.

(9) The permitted use shall not interfere with the operation of a police department, fire department, or other emergency personnel and shall not interfere with the maintenance of a park.

(F) **Appeal of Permit Denial.** If the Administrator denies an application for a permit, the applicant may appeal the denial to the Director within ten (10) days of issuance of the Administrator's decision. The Director will issue a decision to sustain, modify, or overrule the Administrator's decision. The Director may summarily deny an untimely appeal. The Director's decision is final.

(G) **Limitations.** A permit is valid only for the specified location, date, time, and permitted use. If the location, date, time, or permitted use is changed after a permit is issued, the applicant must submit a new application and fees, and obtain a new permit.

(H) **Inspection.** A permit shall, at all times while the permitted use is ongoing, be on-site at the permitted use and made available for inspection upon demand of any City official.

(I) **Non-transferability.** A permit is not transferable and not assignable. Any attempted transfer or assignment will void a permit and any fees paid will be forfeited.

(J) **Revocation.**

(1) The Director, Administrator, a park ranger, or a police officer may revoke a permit at any time for any of the reasons stated in this Subsection.

(a) Violation of or non-compliance with any permit condition listed in Section 6-10-6(E).

(b) The Director, Administrator, a park ranger, a police officer, or other City official determines, at any time, that a ground for denial listed in Section 6-10-6(D) exists.

(2) Upon revocation, the permitted use shall immediately cease, the permittee shall immediately remove from the park or properly dispose of in the appropriate receptacles all refuse of the permitted use and personal property utilized for the permitted use, and the permittee shall ensure that all participants immediately disperse and leave the park.

(Ord. No. 5617, § 1, 4-19-21)

6-10-7: SHARED-USE PATHS

(A) Shared-use paths are for the exclusive use of pedestrians, except that, unless otherwise prohibited, dogs are permitted on shared-use paths subject to the restrictions of Subsection 6-10-4(L).

(B) A person is allowed to drive, ride, or operate a human-powered device or vehicle such as a bicycle, skateboard, roller skates, inline skates, mobility device, class 1 electric bicycle, class 2 electric bicycle, electric standup scooter, motorized skateboard, or shared active transportation vehicle upon a shared-use path but shall yield the right-of-way to any pedestrian walking, jogging, running, or using a mobility device.

(C) City-owned or other governmental vehicles, construction or maintenance vehicles authorized by the City to operate in a shared-use path, emergency or public safety vehicles, and motor vehicles and motorized electric vehicles operating under a special event license or granted express written permission by the director are allowed upon a shared-use path but shall yield the right of way to any pedestrian walking, jogging, running, or using a mobility device.

(D) All other motor vehicles and motorized electric vehicles are prohibited on a shared-use path.

(E) A pedestrian on a shared-use path shall travel at a rate of speed which is reasonable and prudent under the prevailing conditions, in a consistent and predictable manner, shall obey all instructions of any applicable traffic control device, warning sign, or pavement marking, and shall refrain from entering any portion of a shared-use path when it is flooded or contains standing water.

(Ord. No. 5617, § 1, 4-19-21; Ord. No. 5994, § 3, 1-12-26)

6-10-8: ENFORCEMENT AND PENALTY

(A) The Director, Administrator, park rangers, and police officers shall, in connection with their duties imposed by law, diligently enforce the provisions of this Chapter. Each day the violation continues shall be a separate offense, punishable as described, whether or not the provision states that the violation is unlawful.

(B) Civil Offenses.

(1) A violation of Sections 6-10-4(B), (F), (G), (H), (I), (O), or (T) is a civil offense. A violation of Section 6-10-4(L) is a civil offense if the violation is for the failure to immediately dispose of dog waste in an appropriate receptacle.

(2) Civil offenses are punishable by a fine of two hundred and fifty dollars ($250) for each violation.

(C) Class 3 misdemeanors. A violation of Sections 6-10-4(C), (E), (J), (K), (M), (U), or (V) is a class 3 misdemeanor.

(D) Class 2 misdemeanors. A violation of Section 6-10-4(W) is a Class 2 misdemeanor.

(E) Class 1 misdemeanors.

(1) Any violation of this Chapter that is not classified as a civil violation, class 3 misdemeanor, or class 2 misdemeanor is a class 1 misdemeanor.

(2) A violation of Section 6-10-4(L) is a class 1 misdemeanor if not of the type specifically classified as a civil violation in Subsection (B)(l) above.

(F) The Director, park rangers, and police officers shall have the authority to direct to leave from a park a person who, while in a park, violates any provision of this Chapter or any other law or regulation, or who engages in any disorderly or disruptive behavior. It is unlawful for a person to remain in a park or return to the same park within twenty-four (24) hours after being directed to leave. A person directed to leave shall be informed at the time of the request to leave that re-entry into the park is prohibited for at least twenty-four (24) hours.

(G) Park rangers and police officers shall have the authority to issue citations and warnings for violations of this Chapter, except that park rangers shall not make an arrest. Pursuant to A.R.S. § 9-500.03, park rangers are empowered to issue citations for violations of this Chapter.

(Ord. No. 5617, § 1, 4-19-21; Ord. No. 5891, § 3, 12-2-24; Ord. No. 5994, § 4, 1-12-26)

CHAPTER 11
SMOKING AND VAPING REGULATIONS AND HEALTHIER SMOKEFREE AND VAPORFREE ENVIRONMENTS*

ARTICLE I. IN GENERAL

6-11-1: PURPOSE

Since the active smoking of tobacco, vaping of a vaping substance and the inhalation of environmental tobacco smoke are dangers to human health and the most prevalent cause of preventable death, disease, and disability, as well as are annoyances, inconveniences, discomforts, and general health hazards to those who are involuntarily exposed to such, and in order to serve the public health, safety, and welfare, the declared purpose of this Chapter is to protect people from dangerous, unnecessary, and/or involuntary health risks by prohibiting the smoking of tobacco, vaping of vaping substances or any other plant based materials in the City or public places and places of employment, as defined in this Chapter.
(Ord. No. 5546, § 2, 12-9-19)

6-11-2: DEFINITIONS

ACCESSORY BAR: A place within a restaurant for the incidental service of alcoholic beverages and associated snacks, appetizers, and other products for on-site consumption. For purposes of this paragraph, "incidental" means that the gross annual receipts, for every consecutive twelve-month period, from the sale of alcoholic beverages, associated snacks, appetizers, and other products for consumption at the accessory bar are no greater than twenty-five percent (25%) of the gross annual receipts of the entire restaurant, for the same period of time. (3287)

BAR: Those business premises where the Arizona Department of Liquor Licenses and Control has licensed the retail sale and on-site consumption of alcoholic beverages, and fifty percent (50%) or more of the business' gross annual revenues, for every consecutive twelve-month period, are derived from the sale of alcoholic beverages. (2112, I95-1, 3287)

BUILDING SAFETY DIRECTOR: The public officer appointed to that position by the City Manager, or such other person as the City Manager shall designate. (3287, 4252)

DESIGNATED SMOKING AREA: Means: (3287)

(A) An indoor area where smoking is allowed under this Chapter that is physically separated and independently ventilated from smokefree areas, so that air within designated smoking areas allowed under this Chapter does not drift or get vented into any smokefree areas. The Building Safety Director is authorized

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***Editor's note—**Ord. No. 5546, §§ 1—6, adopted December 9, 2019, amended Chapter 11 in its entirety to read as herein set out. Former Chapter 11, §§ 6-11-1—6-11-8, 6-11-10—6-11-14, 6-11-21—6-11-23, pertained to smoking regulations and healthier smokefree environments, and derived from Ords. 2112, I95-1 - approved 3-26-96, 3204, 3205, 3218, 3287, 3649, 3715, 4252.

to make reasonable requirements, consistent with the Mesa Building Code and this Chapter, including the use of self-closing and tight-fitting doors, applying the terms "physically separated" and "independently ventilated" to accomplish this goal. (3649, 3715, 4252)

However, under no circumstances shall the designated smoking area exceed in size the smokefree area in that facility. Moreover, the smoking area shall not include the entry lobby, waiting areas, rest rooms, or areas where minors may customarily congregate in that facility. The designated smoking area shall be constructed so that nonsmoking customers can receive all services provided by that business without walking through the smoking area and without exposure to tobacco smoke. Repeated and confirmed violations pertaining to the infiltration of smoke particulates into nonsmoking areas may result in recision of any alternatives to a smokefree environment offered in this Section, or annulment of the privilege to allow any smoking within the establishment. (3287, 3649)

(B) A designated smoking area may also include the grounds of a building or other facility required to be smokefree under this Chapter when the designated outdoor smoking area is at least fifteen feet (15') away from nonsmoking patrons and the public entrances and exits of the facility. (3287)

ELECTRONIC OR E-CIGARETTE: A battery-operated or electronic device that emits doses of vaporized nicotine, or non-nicotine aerosols, for the user to inhale. It aims to provide a similar sensation to inhaling tobacco, nicotine containing products or non-nicotine vapors, without the smoke.

EMPLOYEE: Any person who is employed by any "employer" for direct or indirect monetary wages or profits. (2112, I95-1, 3287)

EMPLOYER: Any person or entity employing the service of an "employee." (2112, I95-1, 3287)

PLACE OF EMPLOYMENT: Any area under control of a private or public employer that is used as a workplace for employees. (2112, I95-1, 3287)

PUBLIC PLACE: Any area available to, and customarily used by, the public, including areas closed in by a roof and walls with openings for ingress and egress, and any areas used for public gatherings where persons are seated, standing, or otherwise there for a common purpose such as attendance at or waiting lines for events in a park, amphitheater, stadium, or other assembly area so designated or allowed by the City of Mesa for a legal event. Public places regulated by this Chapter shall include, but not be limited to: grocery and other retail stores, waiting rooms, public and private schools, doctors' office buildings, pharmacies, hospitals and nursing homes, community centers, child care centers, any group meeting places for children's clubs, scout troops, or other child-/youth-centered organizations, public rest rooms, lobby and public service areas of hotels, motels, sports/recreational facilities, restaurants, and all public places regulated by A.R.S. § 36-601.01. A public place shall also include all places identified under Arizona or federal law as a place of public accommodation. (I95-1, 3287)

RESTAURANT: A facility regularly open for the primary purpose of serving food prepared for consumption, either on or off the premises, to customers for compensation, including those that also serve alcoholic beverages from an accessory bar. For purposes of this Chapter only, a "restaurant" shall have annual gross revenue from the sale of food exceeding fifty percent (50%) for every consecutive twelve-month period, excluding, however, food such as appetizers, snacks, and other food products consumed in an accessory bar which the owner chooses to designate as a smoking area under this Chapter. (2112, I95-1, 3287)

SMOKE OR SMOKING: Means and includes: (2112, I95-1, 3287)

(A) Carrying or placing of a lighted cigarette, lighted cigar, or lighted pipe or any other lighted smoking equipment in one's mouth for the purpose of inhaling and exhaling smoke or blowing smoke rings; (2112, I95-1, 3287)

(B) Placing of a lighted cigarette, cigar, or pipe or any other lighted smoking equipment in an ashtray or other receptacle and allowing smoke to diffuse in the air; (2112, I95-1, 3287)

(C) Carrying or placing of a lighted cigarette, cigar, or pipe or any other lighted smoking equipment in one's hands or any appendage or devices and allowing smoke to diffuse in the air. (2112, I95-1, 3287)

SMOKEFREE: No tobacco or other plant smoke and freedom from inhaling environmental tobacco smoke or passive smoke, including secondhand smoke generated by an active smoker or sidestream smoke or fumes from any such burning material, device, or ashtray that continues to emit such tobacco smoke or fumes from lighted or extinguished smoking materials.

TOBACCO AND/OR VAPING SHOP: Means:

(A) An exclusively retail business,

(B) That is not part of a larger store,

(C) That derives at least ninety percent (90%) of its gross annual revenue, for every consecutive twelve-month period, from the retail sale of vaping and or tobacco products and smoking equipment.

VAPE OR VAPING: The act of inhaling and exhaling the aerosol, often referred to as vapor, which is produced by an e-cigarette or similar device, through one's mouth for the purpose of inhaling and exhaling vapors or blowing vapor rings.

VAPING DEVICE: Any device, including component parts or accessories to that device, that delivers or is capable of delivering nicotine to the person inhaling from the device, including, but not limited to, an electronic cigarette, electronic cigar, electronic pipe, electronic hookah, e-cigarette, vape-pen, or any other device that delivers nicotine, non-nicotine, other tobacco products, e-juice, e-liquid, oils or waxes to a person.

VAPING PRODUCTS: Means vaping device and includes advanced personal vaporizers (also known as "mods"). The e-liquid in vaporizer products usually contains a propylene glycol or vegetable glycerin-based liquid with nicotine, flavoring and other chemicals and metals, but not tobacco.

VAPING SUBSTANCE: Means any e-liquid used in any vaping device containing propylene glycol, oils, nicotine, non-nicotine, plant or vegetable glycerin-based liquid with nicotine or non-nicotine, flavoring and other chemicals and metals, but not tobacco.

VAPORFREE: Freedom from inhaling vapors generated by an active e-cigarette or any vaping device.
(Ord. No. 5546, § 3, 12-9-19)

6-11-3: REGULATION OF SMOKING AND VAPING ON CITY PROPERTY

All buildings and vehicles owned, leased, or occupied by the City of Mesa shall be subject to the provisions of this Chapter, as well as outdoor areas or facilities, the primary intended use of which requires persons to assemble,

such as group seating or standing or waiting in lines, thus exposing them to inhalation of environmental tobacco smoke, or vapors from a vaping device or an e-cigarette, excepting designated smoking and/or vaping areas as per Section 6-11-5(A)3.
(Ord. No. 5546, § 4, 12-9-19)

6-11-4: REGULATION OF SMOKING AND VAPING IN PUBLIC PLACES

No person shall smoke or vape in any public place when the public gathers together for any purpose or event, except in a bar whose owner chooses to allow smoking and/or vaping, in a designated smoking and/or vaping area meeting all the requirements of this Chapter.
(Ord. No. 5546, § 4, 12-9-19)

6-11-5: REGULATION OF SMOKING AND VAPING IN PLACES OF EMPLOYMENT

(A) Each employer in each place of employment within the city shall adopt, implement, maintain, and announce to its employees a smoking and vaping policy containing at a minimum the following requirements:

1. Except as set forth below, all workplace areas shall be "vaporfree" and "smokefree" as previously defined in Section 6-11-2.

2. Smoking and vaping is prohibited in conference rooms, meeting rooms, classrooms, auditoriums, cafeterias, kitchens, lunchrooms, employees' lounges, rest rooms provided by employers for employee use, and in waiting areas, including outdoor waiting lines, hallways, stairways, elevators, and areas common to all employees.

3. A separate smoking and vaping area outdoors which does not require others to walk through it upon entering or a smoking and vaping area indoors which is separately constructed and negatively pressure ventilated using a separate cooling and/or heating ventilation system may be provided at the option of the employer. However, if an employee complains to the employer or the City that smoke or aerosole from a vaping device is drifting or being vented out of the designated smoking area and interfering with nonsmokers, and the employer or the City confirm that as a fact, the employer shall repair, relocate, or eliminate the designated smoking and vaping area.

4. Nothing in Chapter 11 shall require an employer to construct, purchase, or otherwise provide or facilitate any smoking or vaping area, and nothing in Chapter 11 shall preclude the designation of the total premises as smokefree and vaporfree at the option of the employer.

(B) No employee shall be retaliated against in any fashion, nor subject to termination or to disciplinary action as a result of his complaint about smoking or vaping violations in the workplace.
(Ord. No. 5546, § 4, 12-9-19)

6-11-6: WHERE SMOKING AND VAPING IS ALLOWED

(A) A private residence or public housing dwelling unit, but the common areas and common open space, as defined in Title 11, Mesa City Code, of public housing projects and private multiple- and single-residence developments that are accessible to the public or the residents of the project or development (such as lobbies, playgrounds or "tot lots," elevators, and recreation areas, whether located indoors or outdoors) are

required to be smokefree and vaporfree when the public or residents gather in those areas, as are private residences required to be smokefree and vaporfree when used as commercial child care or health care facilities.

(B) Hotel and motel rooms rented to guests which may include rooms specified as permitting smoking and/or vaping within rooms so designated.

(C) Private clubs, including fraternal lodges, meeting the definition of private clubs rather than places of public accommodation under the 1964 Civil Rights Act, as amended, conducting private functions where the public is not invited, welcomed, or served, hence not charged for services, will be expected to set their own policies relative to smoking and vaping control within their private facilities. Private clubs do not include establishments holding public liquor licenses from the Arizona Department of Liquor Licenses and Control, or clubs formed to circumvent this Chapter where persons pay nominal dues or the "members" do not control the operation of the "club."

(D) Where smoking, smoking materials, vaping, vaping devices and vaping products are being used to exercise protected First Amendment activity, such as for bona fide religious purposes.

(E) Tobacco and/or vaping shops. However, if a tobacco and/or vaping shop shares a common ventilation system with an area required to be smokefree and vaporfree under this Chapter, the tobacco and/or vaping shop must meet the requirements of a designated smoking area before smoking and/or vaping can occur there.

(F) Hotel, motel, wedding chapel, reception center, restaurant, and any other bona fide conference or meeting rooms while these are being used exclusively for, or leased exclusively for, private meeting functions to which the public is not invited or allowed to attend. However, if a conference or meeting room shares a common ventilation system with an area required to be smokefree and vaporfree under this Chapter, the conference or meeting room where smoking and/or vaping is allowed must meet the requirements of a designated smoking and/or vaping area before smoking and/or vaping can occur there.

(G) In a designated smoking and/or vaping area meeting the requirements of this Chapter.

(H) In any building, facility, or area not required to be smokefree and vaporfree under this Chapter.

(Ord. No. 5546, § 4, 12-9-19)

6-11-7: SIGN POSTING

(A) "No Smoking" signs, "Smokefree" signs, "vaporfree" signs, "no vaping" signs, "This is a Nonsmoking Establishment" sign, or the international "No Smoking" symbol shall be clearly and conspicuously posted by the owner/operator/manager/employer or other person in control in enclosed areas where smoking and vaping is prohibited by this Chapter, including each entry point. The owner, manager, operator, or other person having control of a business or facility shall remove all ashtrays and other smoking paraphernalia from all areas required to be smokefree under this Chapter.

(B) Where smoking and vaping is permitted indoors under this Chapter, the owner shall conspicuously post a sign stating "Designated Smoking and Vaping Area" at all entrances to that area. All bars that choose to allow smoking and vaping throughout their facility shall post a sign on all outside entry doors stating "This is a Smoking and Vaping Establishment, and Does Not Provide a Nonsmoking or Vaporfree Area." All

signs designating smoking and vaping areas or smoking and/or vaping establishments under this Chapter shall also state that "Minors May Not Enter Unless Accompanied and Supervised by a Parent or Legal Guardian." It is unlawful for an owner, manager, operator, or other person in control of a business or facility to allow minors to enter any area where smoking and/or vaping is permitted under this Chapter unless each minor is accompanied and supervised by a parent or legal guardian.

(C) If a building or facility has both smokefree and vaporfree areas and a designated smoking and vaping area, the owner, manager, operator, or other person in control of that building shall conspicuously post a sign at all initial entry points clearly indicating that "This Establishment Provides Both Smoking and vaping and Nonsmoking and vaporfree Areas." The owner, manager, operator, or other person in control of such a building or facility shall also clearly indicate inside the building or facility, through the signs required in paragraphs (A) and (B) above, in which areas smoking and vaping is permitted and in which areas smoking and vaping is prohibited.

(D) All signs and symbols required under this Chapter shall have letters or symbols no smaller than three inches (3") in height. (I95-1, 3287)

(Ord. No. 5546, § 4, 12-9-19)

6-11-8: BARS AND RESTAURANTS

(A) Smoking and/or vaping is allowed throughout all bars and their grounds (other than accessory bars in restaurants) providing it does not affect nonsmoking and/or vaporfree areas.

(B) All restaurants shall be smokefree and vapor free, except the restaurant owner may choose to allow smoking and/or vaping:

1. In an accessory bar if it is a designated smoking and/or vaping area meeting all the requirements of this Chapter.

2. If the restaurant owner applies for, is granted, and complies with a hardship exception or phase-in under this Chapter. (3287)

(Ord. No. 5546, § 4, 12-9-19)

Editor's note—Ord. No. 3287, amended § 6-11-18 in its entirety to read as herein set out. Former § 6-11-8 derived from 3204, 3218.

6-11-9: RESERVED

Editor's note—Ord. No. 3287 repealed § 6-11-9.

6-11-10: CHAPTER NOT TO EXCUSE NONCOMPLIANCE WITH OTHER MEASURES

Nothing in this Chapter excuses noncompliance with any Mesa Code (including the Mesa Zoning Code), county, state, or federal law (such as Occupational Safety and Health Administration standards), or any rule or regulation adopted pursuant thereto.

(Ord. No. 5546, § 4, 12-9-19)

Editor's note—Ord. No. 5546, § 4, adopted December 9, 2019, repealed § 6-11-10 and renumbered § 6-11-11 as § 6-11-10. Formerly § 6-11-10 pertained to hardship situations and derived from 3287; 4252.

6-11-11: ENFORCEMENT

(A) Against the Smoker or user of a vaping device. Any person who smokes or uses a vaping device in an area required to be smokefree or vaporfree under this Chapter shall be subject to citation for a petty offense, adjudicated in the Mesa Municipal Court. For the first petty offense, the fine shall not be less than $150 and not more than $1,500. For the second petty offense, the fine shall not be less than $250 and not more than $2,500. For the third petty offense, the fine shall not be less than $500 and not more than $2,500. For each petty offense thereafter, the violator shall be subject to Class One criminal misdemeanor prosecution in the Mesa Municipal Court as an habitual offender. For each violation as an habitual offender, the defendant is subject to a minimum fine of $500, a maximum fine of $2,500, six (6) months in jail, or both such fine and imprisonment.

(B) Against the Owner, Manager, and Tenant of a Facility. All owners, managers, operators, tenants, or other persons in control of an establishment or area regulated under this Chapter ("responsible party") are jointly and individually liable for compliance with this Chapter.

1. Upon a determination of reasonable cause that a responsible party has failed to fulfill a requirement of this Chapter or to maintain a smokefree and/or a vaporfree environment where required under this Chapter, the city manager, or designee, or police officer may issue and serve upon the responsible party a notice of civil violation stating the nature of the violation. The notice shall be in the form established by the City Manager or designee. Service shall be made by mailing a copy thereof to the place of business by certified or registered mail. Service shall be deemed completed when so mailed.

2. Within ten (10) days of service of said notice, the responsible party shall either pay the fine to the City as designated on the notice of civil violation, or request a hearing on the violation by filing a written request for hearing with the Civil Hearing Officer as defined in the Mesa City Code Section 8-6-2 or the Mesa Municipal Court. If the responsible party pays the fine, the allegations in the notice shall be deemed admitted, and such person shall be deemed responsible for having committed the offenses described in the notice. If a hearing is requested, the Civil Hearing Officer or the Mesa Municipal Court shall schedule a hearing.

3. Failure to respond timely to a notice of violation shall result in a default judgment finding the party responsible for the violations described in the notice and imposing the penalties provided for in this Chapter. Unpaid judgments, whether by default or after hearing, may be recorded as liens against the responsible party's property. (2112, I95-1, 3287)

4. Each instance of noncompliance with this Chapter or each instance of failure to maintain a smokefree and/or vaporfree environment where required under this Chapter shall constitute a separate civil offense. For the first civil offense, the fine shall not be less than $150 and not more than $1,500. For the second civil offense, the fine shall not be less than $250 and not more than $2,500. For the third civil offense, the fine shall not be less than $500 and not more than $2,500. For each offense thereafter, the violator shall be subject to criminal misdemeanor prosecution in the Mesa Municipal Court as an habitual offender. For each violation as an habitual offender, the defendant is subject to a minimum fine of $500, a maximum fine of $2,500, six (6) months in jail, or both such fine and imprisonment.

5. If the Civil Hearing Officer or Mesa Municipal Court determines that a violation of this Chapter has occurred, they shall issue an order imposing a sanction in accordance with paragraph 4 above and in addition, shall assess against the responsible party the City's personnel, mailing, and other costs incurred in investigating and hearing the case.

(C) Inspection and Investigation. To the maximum extent allowed by law, the City Manager, or designee, is authorized to inspect for compliance with all requirements of this Chapter and the Mesa City Code, including all technical requirements the City Manager or designee is authorized to develop under this Chapter and any hardship order the City Manager or designee may issue under this Chapter. The City Manager's authority includes, but is not limited to, requiring information from persons subject to the Mesa City Code and investigating the truth of that information, as necessary to determine compliance with the City Code. Persons regulated under this Chapter shall retain for at least three (3) years all information necessary to validate compliance with this Chapter.

(Ord. No. 5546, § 4, 12-9-19)

Note—Formerly, § 6-11-12.

6-11-12: NONRETALIATION

No person or employer shall discharge, refuse to hire, or in any manner retaliate against any employee, applicant for employment, customer, or other person because such person exercises any right to a smokefree and vaporfree environment afforded by this Chapter.

(Ord. No. 5546, § 4, 12-9-19)

Note—Formerly, § 6-11-13.

6-11-13: CITY MANAGER IMPLEMENTATION DECISIONS

Any affected person with questions about the implementation of this Chapter and desiring written guidance indicating how the City will apply this Chapter may write to the Mesa City Manager, P.O. Box 1466, Mesa, AZ. The City Manager is authorized to provide binding, written direction in response to such requests. Such direction shall be consistent with the purposes of this Chapter, as reflected in Section 6-11-1, and the preamble circulated

among the voters as part of Proposition 200 (Initiative 95-1)*. The City Manager's directions shall also be consistent with the City Charter's requirement that the City Manager faithfully execute all laws of the City, the City Charter, and all acts of the City Council. The City Manager's directions under this Section are subject to challenge in the Maricopa County Superior Court under the special action provisions, Volume 17B, A.R.S., to the extent and in the manner provided therein.
(Ord. No. 5546, § 4, 12-9-19)
Note—Formerly, § 6-11-14.

6-11-14—6-11-20: RESERVED

ARTICLE II STORAGE AND DISPLAY OF TOBACCO AND/OR VAPING PRODUCTS

6-11-21: DEFINITIONS

In this Article, unless the context otherwise requires: (3563)

PERSON: Means the State, the County, a political subdivision of the State, other governmental entities, a corporation, firm, partnership, association, organization, and any other group acting as a unit, as well as an individual. "Person" also includes a trustee, receiver, an assignee, or similar representative. (3563)

TOBACCO PRODUCT: Means any tobacco cigarette, cigar, pipe tobacco, smokeless tobacco, snuff, or any other form of tobacco which may be utilized for smoking, chewing, inhalation, or other manner of ingestion. (3563)

VAPING PRODUCTS: Means as defined in Section 6-11-2.
(Ord. No. 5546, § 5, 12-9-19)

6-11-22: STORAGE AND DISPLAY OF TOBACCO AND/OR VAPING PRODUCTS

(A) No person who owns, conducts, operates, or maintains a business where tobacco and/or vaping products are sold, nor any person who sells or offers for sale tobacco and/or vaping products, shall store or display, or cause to be stored or displayed, such tobacco and vaping products in an area or manner that is accessible to the public without employee assistance.

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*The text of Proposition 200 (Initiative I95-1) contained the following preamble:
WHEREAS the city of Mesa adopted Ordinance 2112 Sept. 8, 1986, and since that time much more scientific and medical research is reported from the U.S. Environmental Protection Agency (EPA), the U.S. Surgeon General and other researchers, more fully documenting the health risks and health effects of both active and passive smoking; and
WHEREAS smoking is the most prevalent and preventable cause of death in the U.S.A., leading to more than twice as many deaths as the other leading causes combined (including alcohol, illegal drugs, motor vehicles, murders, suicide, AIDS, fires, firearms, etc.); and
WHEREAS the EPA has determined that "widespread exposure to environmental tobacco smoke (ETS) in the United States presents a serious and substantial public health impact" and that ETS contains many harmful chemicals and carcinogens and is a serious health risk to human beings, especially to infants, children, and pregnant women; and
WHEREAS in children, in the U.S.A., ETS exposure is causally associated with hundreds of thousands of respiratory infections and up to a million cases of increased severity of asthma, as well as being a serious risk factor for new cases of asthma in children; and
WHEREAS an increasing majority of voters in Mesa (nearly 75%) "support a complete ban on smoking in public places" as reported by O'Neil Associates' Valley Monitor Poll, in a public opinion survey of Mesa registered voters, October 1994.

(B) A person is exempt from the requirement of this Section if both:

1. The business where tobacco and vaping products are sold prohibits entry of individuals under the age of eighteen (18) at all times; and

2. Photographic identification is required from any individual who appears to be twenty-six (26) years of age or younger prior to entering the business where tobacco and/or vaping products are sold.

(Ord. No. 5546, § 6, 12-9-19)

6-11-23: PENALTY

Each instance of violation of this Article shall constitute a separate civil offense. Any person who violates this Article shall be subject to citation for a petty offense to be adjudicated in the Mesa Municipal Court. For the first civil offense at a retail site, the fine shall not be less than $150 and not more than $1,500. For the second civil offense at the retail site, the fine shall not be less than $250 and not more than $2,500. For the third civil offense at a retail site, the fine shall not be less than $500 and not more than $2,500. However, if more than three (3) violations occur at a retail site in any consecutive twelve- (12-) month period, the person or entity operating such retail site shall be subject to a minimum fine of $500 or a maximum fine of $2,500. The City will follow the civil offense procedures set forth in Section 6-11-11(B).

(Ord. No. 5546, § 6, 12-9-19)

CHAPTER 12
OFFENSIVE, EXCESSIVE, AND PROHIBITED NOISES*

6-12-1 PURPOSE

It is the purpose of this Chapter to regulate and prevent excessive, unnecessary, or offensive sound, noise, and vibration that disrupts, jeopardizes, or is detrimental to the health, welfare, safety, comfort, repose, and quality of life of the citizens of Mesa.

(Ord. No. 5750, § 1, 12-1-22)

6-12-2: DEFINITIONS

The following words, terms, and phrases, when used in this Chapter, whether or not the term is capitalized, shall have the meanings noted below. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section apply only to this Chapter and do not affect and are not to be applied to any other Mesa City Code.

CITY MANAGEMENT: The City Manager or an Assistant City Manager or Deputy City Manager.

EMERGENCY VEHICLE: Any vehicles of (i) a governmental entity related to police, fire, public safety or public works, or (ii) a public service corporation, or fire, medical, water or sewer district.

***Editor's note**—Ord. No. 5750, § 1, adopted December 1, 2022, repealed the former Ch. 12, §§ 6-12-1—6-12-10, and enacted a new Ch. 12 as set out herein. The former Ch. 12 pertained to similar subject matter and derived from Ords. 4942, 4962.

EMERGENCY WORK: Any work performed (i) to prevent or alleviate physical trauma or property damage threatened or caused by an emergency, (ii) to restore or maintain utility services, or (iii) which is necessary to protect the health, welfare, or safety of persons or property.

RESIDENTIAL PROPERTY: Any real property developed and used for human habitation containing improvements with living facilities, including provisions for sleeping, eating, cooking, and sanitation, unless such improvements are actually occupied and used for purposes other than human habitation.

RESIDENTIAL STRUCTURE: Any structure or dwelling developed and used for human habitation containing improvements with living facilities, including provisions for sleeping, eating, cooking, and sanitation, unless such improvements are actually occupied and used for purposes other than human habitation.
(Ord. No. 5750, § 1, 12-1-22)

6-12-3: GENERAL PROHIBITIONS

(A) It is a violation of this Chapter for any person to make, assist in making, permit, continue, cause to be made or continued, or permit the continuance of any loud, unnecessary, or unusual sound or noise that disturbs, injures, or endangers the comfort, repose, health, peace, or safety of a reasonable person. In determining whether a sound or noise is loud, unnecessary, or unusual, the following factors will be considered in addition to any other relevant information:

(1) Volume and intensity of the sound or noise;

(2) Proximity of the source of the sound or noise to residential structures on residential property;

(3) The zoning and permitted land uses of the property or area from which the sound or noise emanates;

(4) Whether the sound or noise is recurrent, intermittent, or constant;

(5) Time of day, especially a sound or noise occurring between 10:00 p.m. and 6:00 a.m.;

(6) The volume and intensity of background noise, if any;

(7) Whether the sound or noise is enhanced in volume or range by any type of electronic or mechanical means; and

(8) Whether the sound or noise is subject to being controlled without unreasonable effort or expense to the creator thereof.

(B) The general prohibition set forth in this Section is in addition to and independent of any specific prohibitions against sound or noise set forth in this Chapter.
(Ord. No. 5750, § 1, 12-1-22)

6-12-4: ANIMALS

It is a violation of this Chapter for any person to own, harbor, possess; care for, permit, or keep any animal that causes or makes frequent or long and continued sound that unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of a reasonable person.
(Ord. No. 5750, § 1, 12-1-22)

6-12-5: MOTOR VEHICLES

(A) It is a violation of this Chapter to operate or cause to be operated any motor vehicle that creates any noise that unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of a reasonable person including such unreasonable sounds created by grating, grinding, or rattling; or the exhaust system or engine; or other unreasonable motor vehicle sounds.

(B) It is a violation of this Chapter to operate or permit the operation of any sound amplification system in or on a motor vehicle in such a manner or with such volume that, when operated, either: (i) unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of a reasonable person; or (ii) is plainly audible at a distance of fifty (50) feet from the vehicle from which the sound is emanating.

(Ord. No. 5750, § 1, 12-1-22)

6-12-6: GENERAL EXEMPTIONS

The following types of sound and sound generating activities are not a violation of this Chapter:

(A) Sound produced by emergency work or emergency vehicles.

(B) Sound made to alert persons to the existence of an emergency, danger, or attempted crime.

(C) Activities or operations of governmental units or agencies.

(D) Activities approved by the City for a temporary use or limited duration that receive a special event license, special use permit, or similar permit or permission, but only to the extent such license, permit, or permission specifically exempts the activity from this Chapter and subject to any limitations or conditions of the license, permit or permission.

(E) Athletic, musical or cultural activities or events (including practices and rehearsals) conducted by or under the auspices of public or private schools, including public or private colleges or universities.

(F) Construction, repair, remodeling, demolition, drilling, landscape maintenance, landscaping, lawn or yard work, wood cutting, including crafts and hobbies, or excavation work conducted between 6:00 a.m. through 8:00 p.m. Monday through Friday. A person may engage in or permit such activities at that person's residence between 6:00 a.m. and 8:00 p.m. on Saturday or Sunday. Landscape maintenance and landscaping at golf courses and private parks between 5:00 a.m. and 8:00 p.m. on all days is also exempted.

(Ord. No. 5750, § 1, 12-1-22)

6-12-7: TEMPORARY EXEMPTIONS

(A) City Management is authorized to grant a temporary exemption from the requirements established by this Chapter if such temporary exemption for an activity would be in the public interest and there is either no feasible and prudent alternative to the activity, or method of conducting the activity.

(B) A temporary exemption request must be in writing and submitted to the Code Compliance Administrator. City Management may require the requestor to provide notice to potentially impacted property. If the exemption is granted, it shall be signed by City Management and must set forth the activity granted the exemption, the conditions and limitations of the exemption, the location, and the date(s) and time(s) for which the exemption is effective. Any approved exemption shall be on file with the Code Compliance Unit.

(C) A temporary exemption may be granted only for the period of time that is reasonably necessary to conduct the activity.

(D) The following factors shall be considered by City Management in determining whether to grant a temporary exemption:

(1) Adverse effects of granting the exemption;

(2) Proximity to residential structures;

(3) Level of the sound to be generated by the activity;

(4) Whether the type of sound to be produced by the activity is usual or unusual for the location;

(5) Density of population of the area in which the event or activity is to take place;

(6) Time of day when the activity will take place; and

(7) Nature of the sound to be produced, including whether the sound will be recurrent, intermittent, or constant.

(E) The granting of a temporary exemption is at the sole discretion of City Management and the decision of City Management shall be final.

(Ord. No. 5750, § 1, 12-1-22)

6-12-8: PERSONS RESPONSIBLE FOR NOISE VIOLATIONS

(A) Any person that makes, assists in making, permits, continues, causes to be made or continued, or permits the continuance of sound or noise that violates this Chapter shall be deemed responsible for or guilty of the violation.

(B) If the person responsible pursuant to Subsection (A) cannot be determined, there shall be a rebuttable presumption that the owner, property manager, sponsor of the event, lessee, or occupant of the property on which the sound or noise is emanating from is responsible for or guilty of the violation.

(C) Any person in attendance who engages in conduct causing a sound or noise in violation of this Chapter shall be deemed responsible for or guilty of die violation.

(Ord. No. 5750, § 1, 12-1-22)

6-12-9: ENFORCEMENT

The City's Police Officers, Code Compliance Officers, Animal Control Officers, Park Rangers and any other City employee or official as authorized by City Management to enforce the provisions of this Chapter.

(Ord. No. 5750, § 1, 12-1-22)

6-12-10: PENALTY

(A) Any person who violates the provisions of this Chapter shall be responsible for a civil infraction except that habitual offenders shall be responsible for a criminal violation as provided in Section 6-12-11.

(B) Any person found responsible for a civil violation of this Chapter, whether by admission, default, or judgment after hearing, shall pay a civil sanction of not less than $250 or more than $1,500. A second

finding of responsibility within twenty-four (24) months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $500 or more than $2,500. A third finding of responsibility within twenty- four (24) months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $750 or more than $2,500.

(C) Each violation shall be a separate offense, punishable as described herein.
(Ord. No. 5750, § 1, 12-1-22)

6-12-11: HABITUAL OFFENDER

(A) A person who commits a violation of this Chapter after previously having been found responsible for committing a civil violation of this Chapter on three (3) separate dates within a twelve (12) month period, whether by admission, by payment of the fine, default, or judgment after hearing, shall be guilty of a class 1 criminal misdemeanor as a habitual offender. The Mesa City Prosecutor is authorized to file a class 1 criminal misdemeanor complaint in the Mesa City Court against habitual offenders. For purposes of calculating the twelve (12) month period under this Subsection (A), the dates of the commission of the offenses are the determining factor.

(B) Upon conviction of a violation as a habitual offender pursuant to Subsection (A), the court may impose a sentence or incarceration not to exceed six (6) months in jail or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law, or both. The court shall order a person convicted as a habitual offender to pay a fine of not less than $500 for each count upon which a conviction is obtained.
(Ord. No. 5750, § 1, 12-1-22)

CHAPTER 13

ABANDONED MOTOR VEHICLES (REPEALED)*

CHAPTER 14

NON-DISCRIMINATION†

6-14-1: DEFINITIONS

The below words and phrases, wherever used in this Chapter 14, shall have the definition set forth in this Section unless, from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number:

AGE means to discriminate against an individual because the individual is forty (40) years of age or older.

***Editor's note**—Ord. No. 2568, repealed Chapter 13. Formerly, such chapter derived from Ord. Nos. 1185, 1635, 2132.

†**Editor's note**—Ord. No. 5609, § 1, adopted March 1, 2021, repealed the former Ch. 14, §§ 6-14-1—6-14-4, and enacted a new Ch. 14 as set out herein. The former Ch. 14 pertained to fair housing and derived from Ord. Nos. 1278, 1635, 2671, 3712.

BONA FIDE PRIVATE MEMBERSHIP CLUB means a private club not open to the public that is supported by membership fees, dues, and assessments, and qualifies for exemption by the Internal Revenue Service; and, that is not organized for the purpose of evading compliance with this article.

CITY CONTRACTOR or **CITY VENDOR** means a person or firm in the business of selling or otherwise providing products, materials or services, that has gone through a competitive solicitation process with the City of Mesa, and been awarded a contract with the City of Mesa through a formal award by the City Council. This does not include a cooperative procurement conducted by, or on behalf of, more than one eligible public procurement unit.

COMPLAINANT means an individual claiming to be aggrieved by a violation of this Chapter and that files a complaint under this Chapter.

DWELLING means any building, structure, or portion thereof which is occupied, or designed or intended for occupancy, as a residence by one or more families and any vacant land which is offered for sale or lease for the construction or location thereon of any such residential building, structure, or portion thereof.

DISABILITY means a physical or mental impairment, except any impairment caused by current use of illegal drugs, that substantially limits one or more major life activities of the individual, a record of such physical or mental impairment, or being regarded as having such physical or mental impairment.

Disability and disability discrimination shall be interpreted in a manner consistent with the Americans with Disabilities Act of 1990 (as amended), the Federal regulations promulgated thereunder, and judicial decisions construing them.

DISCRIMINATE and **DISCRIMINATION** means to make any distinction with respect to any individual or individuals based on the actual or perceived race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, genetic information, or familial status of an individual except as required by Federal or state law or court order.

EMPLOYEE means an individual employed for pay to perform services for an employer covered by this Chapter and whose activities are controlled and directed by the employer for whom services are being performed and who is economically dependent upon the employer.

EMPLOYER means a person doing business within the City who has five or more employees for each working day in each of twenty (20) or more calendar weeks in the current or preceding calendar year, and any agent of such person. This definition excludes a bona fide private membership club (other than a labor organization) that is exempt from taxation under the Internal Revenue Code of 1986 (as amended).

FAMILIAL STATUS means the state of having one or more minor children under the age of eighteen (18) being domiciled with: a parent, guardian or another person having legal custody; the designee of such parent, guardian or another person having legal custody with written permission; or, a foster parent or other person with whom a minor child is placed by court order. This definition includes pregnant women and people securing custody of children under the age of eighteen (18) or that have a disability.

GENDER IDENTITY means the actual or perceived gender-related identity, expression, appearance, or mannerisms, or other gender-related characteristics of an individual, regardless of the individual's designated sex at birth.

MARITAL STATUS means the status of a person being unmarried, married, separated, widowed, or divorced.

NATIONAL ORIGIN means the country or nation of origin of an individual or any of his/her forebears and characteristics generally identified with individuals so originating.

PLACE OF PUBLIC ACCOMMODATION means facilities, establishments, accommodations, services, commodities or use offered to or enjoyed by the general public, but does not include any dwelling, any bona fide private club, or any place that is in its nature distinctly private. Place of public accommodation includes, but is not limited to:

1. Hotels, motels, trailer courts and boardinghouses, which shall include any establishments offering lodging to transient guests for compensation.

2. Restaurants, which shall include lunch counters, coffee shops, lunchrooms, luncheonettes, cafes, cafeterias, tearooms, snack bars or stands, mobile food service facilities, grills, sandwich shops, supper clubs, soft drink fountains, ice cream parlors or stands, and other places which offer food, ice cream parlors or stands, and other places which offer food, ice cream or beverages for purchase and consumption on or off the premises.

3. Taverns, which shall include bars, barrooms, saloons, roadhouses and like establishments, wherein spiritous or malt liquors or wines are offered for sale or consumption on or off the premises.

4. Theaters, which shall include places, whether indoors or outdoors, at which any theatrical performance, moving picture show, musical concert or recital, dramatic reading or monologue, circus, carnival or other like entertainment or amusement is offered.

5. Retail establishments, which shall include retail stores, garages, automobile and gasoline service stations, and other like establishments serving the public.

6. Places of public amusement and recreation, which shall include bowling alleys, billiard halls and poolrooms, dance halls, race courses, shooting galleries, sports arenas or fields, gymnasiums, exhibitions, skating rinks and other like establishments.

7. Educational facilities, which shall include a private academy, college, university, elementary or secondary school, kindergarten, extension course, nursery school system, and a business, nursing, professional, secretarial, technical or vocational school located or operating in the City. An educational facility shall not include any religious educational institution, as set forth in Section 6-14-4(A) of this Chapter, any public school or any charter school.

8. Public conveyances, which shall include all transportation facilities operated on land, air or water as well as the stations and terminals thereof.

9. Funeral parlors and places of burial, including any cemetery, mausoleum, crypt, or any establishment for the embalming, processing or interment of corpses.

RESPONDENT means the person alleged by the Complainant to have violated a provision of this Chapter.

SEX means male or female and shall be interpreted broadly to include all distinctions based on pregnancy, childbirth or related medical conditions.

SEXUAL ORIENTATION means actual or perceived homosexuality, heterosexuality, or bisexuality.

VETERAN'S STATUS has the same meaning as set forth under federal law at 38 U.S.C. § 101(2).
(Ord. No. 5609, § 1, 3-1-21)

6-14-2: POLICY

It is declared to be the policy for the citizens of Mesa, Arizona, to be free from discrimination in public accommodations, employment, and housing, and contrary to public policy and unlawful to discriminate against any person on the basis of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status in places of public accommodation, employment, and housing; and contrary to the policy of the City and unlawful for vendors and contractors doing business with the City to discriminate, as set forth in this Chapter.
(Ord. No. 5609, § 1, 3-1-21)

6-14-3: UNLAWFUL PRACTICES

The following, within the City of Mesa, shall constitute a violation of this Chapter:

(A) Public Accommodation. For any owner, operator, lessor, manager, agent or employee of any place of public accommodation to discriminate against any person, including to restrict or refuse access or service on the basis of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status.

(B) Employment. For an employer, because of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status to refuse to hire or employ or bar or discharge from employment any person, or to discriminate against such person in compensation, conditions, or privileges of employment.

(C) Housing. For any owner or lessor to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities therewith, or to refuse to negotiate for the sale or rental because of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status.

(1) This Subsection shall not exclude or deny housing designated for senior living or for individuals with disabilities, or as otherwise designated or directed by the United States Department of Housing and Urban Development or the State of Arizona.

(2) This Subsection shall not apply to the rental of rooms within a single residential dwelling or single residential lot (such as accessory dwelling units or duplexes) if the owner or lessor resides therein or thereon.

(D) Labor Organizations. For a labor organization, because of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status, to exclude, expel, limit or restrict from its membership any person, or to provide segregated membership or otherwise discriminate in any manner against any of its members, applicants or employers.

(E) City Contracts. For a city contractor or city vendor, or a grantee, because of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status, or familial status, to refuse to hire or employ or bar or discharge from employment any person, or to discriminate against such person in compensation, conditions, or privileges of employment.

(Ord. No. 5609, § 1, 3-1-21)

6-14-4: EXCLUSIONS

(A) This Chapter shall not apply to:

(1) A place of public accommodation to afford beneficial pricing or policies to senior citizens, veterans, students or individuals with disabilities.

(2) A place of public accommodation operating solely as a single-sex fitness center or gymnasium as long as the fitness center or gymnasium does not include any other place of public accommodation as defined in this Chapter and does not discriminate against any other protected group identified in Section 6-14-2.

(3) A place of public accommodation that includes single-sex designated areas within the place of public accommodations, as long as the place of public accommodation does not discriminate against any other protected group identified in Section 6-14-2.

(4) A religious corporation, association or society; or a school, college or university or other educational institution or institution of learning if the institution is in whole or substantial part controlled, managed, owned, or supported by a religious corporation, association or society; or the curriculum of the institution is directed toward the propagation of religion, except this Chapter

shall apply to the employment or an employment opportunity with a religious organization, wherein the duties of the position pertain solely to activities of the organization that generate unrelated business taxable income subject to taxation under Section 511(a) of the Internal Revenue Code of 1986.

(5) An expressive association whose membership of a person protected by this Chapter would significantly burden the association's rights of expressive association under the First Amendment, federal or state statutes, as interpreted in binding judicial decisions, that would preempt or preclude enforcement of this Chapter.

(6) Speech and expressive activities and the free exercise of religion protected under the First Amendment and other applicable federal and state statutes, as interpreted in binding judicial decisions, that would preempt or preclude enforcement of this Chapter.

(7) An employer who observes the conditions of a bona fide affirmative action plan authorized pursuant to federal or state law or a bona fide seniority system that is not a pretext to evade the purposes of this Chapter.

(8) The right of a place of public accommodation to remove or cause to be removed from such place any person under the influence of alcohol or other drugs, or who is engaged in boisterous conduct or conduct that would constitute criminal activity under any state or federal criminal law, or who violates any regulation of any place of public accommodation that applies to all persons, regardless of race, color, ethnicity, national origin, age, disability, religion, sex, sexual orientation, gender, gender identity, veteran's status, marital status or familial status.

(9) The United States government, any of its departments or agencies, or any corporation wholly owned by it; an Indian tribe; the state of Arizona or any of its departments, agencies, or political subdivisions; and any community college district or high school or elementary school district or public school, including charter schools, but excluding the City of Mesa.

(Ord. No. 5609, § 1, 3-1-21)

6-14-5: ENFORCEMENT PROVISIONS

(A) Administrative Responsibilities

(1) The City Manager has the authority and responsibility for administering this Chapter. The City Manager may delegate any of the City Manager's authority or responsibilities to designees who shall have the same authority as the City Manager, as set forth in this Chapter.

(2) The City Manager shall be responsible for the investigation, mediation, and conciliation of complaints filed pursuant to this Chapter.

(3) The City Manager shall have the authority to issue citations for violations of this Chapter pursuant to this Chapter. For a first violation under Section 6-14-7(A)(l), the City Manager shall seek resolution through mediation or alternative means before issuing a citation. For second, third or subsequent violations, the City Manager may seek resolution through mediation or alternative means before issuing a citation.

(4) Upon issuance of a citation, the City Manager is authorized to take such actions as appropriate to carry out the enforcement of this Chapter.

(5) Nothing in this Chapter shall preclude the City Manager from seeking voluntary compliance with the provisions of this Chapter, or from enforcing this Chapter through notices or warnings of violations or through other informal means designed to achieve compliance in the most efficient and effective manner under the circumstances.

(B) Civil Violation Procedures

(1) Within ninety (90) days of an alleged violation of this Chapter, a Complainant must file with the City Clerk a written verified complaint signed by the Complainant. The complaint shall set forth facts upon which it is based and shall identify the person alleged to have violated this Chapter.

(2) To avoid multiple legal actions, if the Complainant has filed a complaint with a federal or state agency or court alleging the same facts, the City of Mesa complaint will be dismissed to allow the federal or state agency or court to address the allegations.

(3) If the complaint states a claim that would be a violation of existing state or federal law or is within the jurisdiction of a federal or state agency, the City Manager shall refer the Complainant to the appropriate agency or tribunal and dismiss the complaint.

(4) The City Manager will dismiss the complaint if it was untimely filed or if the location of the alleged violation of this Chapter did not occur within the City of Mesa. The City Manager may dismiss the complaint on procedural or substantive grounds including, but not limited to, there is insufficient evidence to establish reasonable cause that a violation of this Chapter occurred.

(5) If the complaint is not dismissed, the City Manager shall furnish the Respondent with a copy of the complaint. The Respondent may file, no later than thirty (30) days following receipt of the complaint, a written verified answer. The City Manager may grant an extension, upon a good faith request of the Respondent. If the Respondent fails to timely answer the complaint, the allegations in the complaint shall be deemed admitted, such person shall be deemed responsible for having committed the offenses described in the complaint, and a civil penalty shall be imposed pursuant to this Chapter.

(6) At any time prior to a finding of responsible, whether by admission, default, or after a hearing, the City Manager may seek resolution through mediation. A resolution resulting from mediation shall not automatically be considered an admission.

(7) If the complaint is not dismissed and mediation attempts are unsuccessful, the City Manager shall investigate the allegations of the discriminatory practices set forth in the complaint to determine if there is sufficient evidence to establish reasonable cause that there was a violation of this Chapter. If the City Manager determines that there is sufficient evidence to establish reasonable cause that the Respondent violated this Chapter, the City Manager shall issue a citation pursuant to Section 6-14-6 of this Chapter.

(Ord. No. 5609, § 1, 3-1-21)

6-14-6: CIVIL VIOLATION CITATION

(A) The citation will be substantially in the form established by the City Manager. It shall advise the Respondent of the violations committed, either by written description of the violations or by designation of the City Code Section that was violated. The Civil Hearing Officer may permit amendments to the citation if substantial rights of the Respondent are not thereby prejudiced. The citation shall direct the Respondent to pay the civil sanction and all applicable fees as specified in Section 6-14-7 within the time period specified on the citation. The citation shall be served by personal service, or pursuant to A.R.S. § 9-500.21.

(B) The Respondent shall, within the time period specified on the citation, either pay the civil sanction and the fees, or appear in person or through an attorney before the Civil Hearing Officer and admit or deny the allegations contained in the citation. If the Respondent timely pays the fine and fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offenses described in the citation. If the Respondent appears and admits the allegations, the Civil Hearing Officer shall enter judgment against the Respondent and enter an appropriate sanction. If the Respondent appears and denies the allegations contained in the citation, the Civil Hearing Officer shall set the matter for hearing.

(C) If the person served with a citation fails to pay the fine or fails to appear on or before the time directed to appear or at the time set for hearing by the Civil Hearing Officer, the allegations in the complaint shall be deemed admitted and the Civil Hearing Officer shall enter a finding of responsible and impose the applicable sanction as specified in Section 6-14-7.

(D) All proceedings before the Civil Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. Pre-hearing discovery shall be permitted as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand including, but not limited to, issuing subpoenas.

(E) An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Procedure for Special Actions. Appeals must include the basis for the appeal and be filed within 20 days of the final judgement.

(F) Any judgment for civil fines or penalties pursuant to this Chapter may be collected as any other civil judgment.

(Ord. No. 5609, § 1, 3-1-21)

6-14-7: CIVIL PENALTIES

(A) Any person who is found responsible for a violation of this Chapter, whether by admission, default, or after a hearing shall be issued a civil sanction as follows:

(1) First Violation. A person found responsible for a first violation of this Chapter shall be fined a penalty of $300 per civil offense.

(2) Second Violation. A person found responsible for a violation of this Chapter within twelve (12) months of being held responsible for a prior violation of this Chapter shall be fined not less than $300 nor more than $2,500 per civil offense.

(3) Third Violation. A person found responsible for a violation of this Chapter within twenty-four (24) months of being held responsible for two prior violations of this Chapter, shall be fined not less than $600 nor more than $2,500 per civil offense.

(Ord. No. 5609, § 1, 3-1-21)

6-14-8: GENERAL PROVISIONS

(A) This Chapter does not create a private cause of action.

(B) It shall be a violation of this Chapter for a person who with the intent to promote or facilitate the commission of an offense under this Chapter: (i) solicits or commands another person to commit the offense; or (ii) aids, counsels, agrees to aid or attempts to aid another person in planning or committing an offense. A violation under this Section shall be subject to the same enforcement provisions and civil sanctions as all other violations under this Chapter.

(Ord. No. 5609, § 1, 3-1-21)

CHAPTER 15
ALARM SYSTEMS*

6-15-1: APPLICABILITY

This Chapter is intended to regulate the activities and responsibilities of those persons who purchase, lease, or rent and those persons who own or conduct the business of selling, leasing, renting, maintaining, or monitoring alarm systems, devices, or services. It is further intended to encourage the improvement in reliability of those systems, devices, and services and to ensure that Police Department personnel will not be unduly diverted from responding to actual criminal activity as a result of responding to false alarms. This Chapter specifically encompasses "burglar alarms" and "robbery/panic" alarms, both audible and inaudible (silent). Specific exclusions and exceptions will be detailed within this Chapter. (4111, 5079)

6-15-2: DEFINITIONS

Except where otherwise indicated by the context, the following definitions shall apply in the interpretations and enforcement of this Chapter: (4111)

ALARM OR ALARM SYSTEM: Any mechanical or electrical device which is used to detect unauthorized entry into a building or other premises or to alert others of the occurrence of the commission of an unlawful act against a person or within a building or other premises, and that may be designed to emit an audible alarm, and/or transmit a signal or message when activated. Alarm or alarm system includes, but is not limited to, silent, panic, holdup, robbery, duress, burglary, and proprietor alarms. (4111, 5079)

ALARM AGENT: Any person who is employed by an alarm business, either directly or indirectly, whose duties include any of the following: maintaining, servicing, or repairing any alarm or alarm system in or on any building, place, or premises. Any person whose duties consist solely of resetting an alarm following activation shall not be deemed to be an alarm agent. (4111)

ALARM BUSINESS: The business by an individual, partnership, corporation, or other entity of selling, leasing, maintaining, servicing, repairing, altering, replacing, moving, installing, or monitoring an alarm or alarm system in or on any building, structure, or facility. (4111)

ALARM SITE: A single fixed premises or location served by an Alarm System or Systems. Each Unit, if served by a separate Alarm System in a multi-unit building or complex, shall be considered a separate Alarm Site unless owned and/or operated by one entity. (5079)

ALARM USER: Any person, firm, partnership, corporation, or business who (which) leases, rents, purchases, or uses any monitored or proprietor alarm, alarm system, device, or service. (4111)

AUDIBLE ALARM: A device designed for the detection of an unauthorized entry of premises and which, when activated, generates an audible sound on the premises. (4111)

AUTOMATIC DIALER: Any electrical, electronic, mechanical or other device capable of being programmed to send a prerecorded voice message, when activated or if self-activated, over a telephone line, radio or other communication system, to the City of Mesa. (5079)

***Editor's note**—Ord. No. 4111 amended Chapter 15 in its entirety to read as herein set out. Former Chapter 15 derived from Ord. Nos. 1758, 1993, 2466, 2540, 3106.

COMMON CAUSE: A common technical difficulty or malfunction which causes an alarm system to generate a series of false alarms, all of which occur within a twenty-four (24) hour period. The series of false alarms shall be counted as one false alarm only if the cause of the series of false alarms is repaired within 72 hours and/or before it generates additional false alarms, documentation of the repair is provided to the Coordinator, and during the thirty-day period following the repair, the alarm system generates no additional false alarms from the documented cause. (4111, 5079)

COORDINATOR: The Chief of Police of the Mesa Police Department or the individual designated by the Chief of Police to enforce the provisions of this Chapter. (4111)

ENHANCED CALL VERIFICATION: A monitoring procedure requiring that a minimum of two calls be made prior to making an alarm dispatch request. The two calls must be made to different phone numbers where a responsible party can typically be reached. (5079)

FALSE ALARM: An alarm notification to the Police Department when the responding officer finds no evidence of a criminal offense or attempted criminal offense. Excluded from this definition are: (4111)

(A) Alarms occurring during electrical storms, hurricanes, tornados, blizzards, and acts of God; or (4111)

(B) The intermittent disruption or disruption of the telephone circuit beyond the control of the alarm company and/or alarm user; or (4111)

(C) Electrical power disruption or failure; (4111)

LICENSING AUTHORITY: The City of Mesa Tax and Licensing Division or the Police Department, as applicable, who has the authority to issue licenses or permits pursuant to this Chapter or the reciprocal alarm Licensing ordinance of another city or town. (4111)

MOBILE PANIC ALARM/BUTTON: Any mobile, mechanical or electronic device that can be worn or carried by a person, designed so that a person may intentionally activate it to summon police assistance. (5079)

MONITORED ALARM: A device designed for the detection of an unauthorized entry into premises and which, when activated, generates an audible or inaudible signal to a monitoring station. (4111, 5079)

PERSON: An individual, firm, partnership, joint venture, association, corporation, estate, trust, or any other group or combination acting as a unit and the plural as well as the singular number. (4111)

PRIMARY ALARM BUSINESS LICENSE: A license issued by the licensing authority of a city or town that has adopted the Reciprocal Alarm Licensing Ordinance to an alarm business that has its headquarters, main office, corporate office, or designated branch of the alarm business located within this State. In the event that an alarm business has its headquarters, main office, corporate office, or designated branch in a city or town that does not require the licensing of alarm businesses, the alarm business may apply for a primary alarm business license from any city or town in this State that has adopted the Reciprocal Licensing Ordinance. (4111)

PROPRIETOR ALARM: Any alarm or alarm system which is not leased or rented from or owned or maintained under contract by an alarm business. (4111)

RECIPROCAL ALARM BUSINESS LICENSE: A license issued by the licensing authority of a city or town that has adopted the Reciprocal Alarm Licensing Ordinance, and in which that alarm business conducts business. This license shall be issued only to an alarm business that has a valid primary alarm business license from a similar licensing authority within this State that has adopted the Reciprocal Alarm Licensing Ordinance. (4111)

RECIPROCAL ALARM LICENSING ORDINANCE: An ordinance that is substantially the same in its material terms to the reciprocal alarm licensing provisions codified in this Article and that is intended by the adopting jurisdiction to be recognized as being reciprocal with alarm licensing ordinances adopted by other cities and towns in this State. Minor or non-material variations that are enacted in a particular city or town to accommodate local conditions or needs shall not affect the reciprocal nature of the ordinance. (4111)

RESPONSIBLE PARTY: A person to be notified when an alarm system is activated, as designated by an alarm user. (5079)

ROBBERY/PANIC ALARM OR BURGLARY ALARM SYSTEM: Any mechanical or electrical device designed so that a person may intentionally activate it to summon Police assistance. (4111)

6-15-3: ALARM BUSINESS DUTIES

The duties of an alarm business shall be as follows: (4111)

(A) To install an alarm system compatible with the environment, to take reasonable measures to prevent the occurrence of false alarms, and, if it has agreed to provide maintenance or repair service to the system, to service the system within seventy-two (72) hours of a request for service. The alarm business shall not install a single action non-recessed button as a device to activate a panic alarm. (4111)

(B) To instruct each of its alarm users and/or the principal occupants of the buildings or premises protected by an alarm system in the proper operation of the system. Such instruction will specifically include all necessary instructions in turning the system on and off and in avoiding false alarms. (4111)

(C) To provide each purchaser and user with a City of Mesa alarm user permit application. (4111)

(D) Upon leasing or renting an alarm system: (4111)

1. To conspicuously place on the premises a tag identifying the pertinent alarm business, including the telephone number to call when the alarm has been activated. (4111)

2. To maintain current records of the location of these alarm systems, devices, or services and the name and telephone number of the persons and alternate to be notified whenever the alarm is activated. (4111)

3. To inactivate or cause to be inactivated any audible alarm within twenty (20) minutes of the notification of its activation. (4111)

(E) Upon monitoring an alarm system: (4111)

1. To establish a central receiving station in order to monitor these alarm systems. (4111)

2. To organize its central receiving station in order to be able to readily and positively identify the type of alarm, i.e., burglary, or robbery, and the location of the alarm if there is more than one (1) system. (4111)

3. The central receiving station shall attempt to contact the alarmed location and/or the alarm user, and two (2) attempts shall be made either to different numbers or locations, by telephonic or other electronic means on every alarm signal - except that no attempts shall be required on a robbery/ panic alarm activation - whether or not actual contact with a person is made, before requesting police response to an alarm system signal. (4419)

4. To maintain current records as to each of these alarms or alarm systems, which shall include the alarm permit number, the name of the owner or occupant of the premises, the name and telephone number of the user or primary person and at least one (1) alternate responsible for responding to the premises when the alarm is activated, and information concerning whether the alarm system includes an audible alarm. (4111,4419)

5. To make notification of activated alarm systems in the manner prescribed by the Coordinator, including the alarm permit number, suite or apartment number, and such other reasonable information concerning the alarm system as the Coordinator may request. (4111,4419)

6. To arrange, upon request, for either the alarm user, alarm agent, or other responsible representative to go to the premises of an activated alarm system in order to be available to assist the police in determining the reason for activation and securing the premises. In no event shall there be unreasonable delay in arriving at the location of the alarm. (Thirty [30] minutes shall be deemed as reasonable.) If the Police depart the premises prior to the arrival of the user, alarm agent, or other responsible representative, then the user, alarm business, or proprietor may document their required response through telephonic notification of the Police Department upon their arrival at the location of the alarm signal. In the event this requirement is not met and the police are unable to determine the reason for the activation, such activation shall be deemed a false alarm. (4111, 4419, 5079)

(F) To cease responsibility for an alarm system pursuant to this Chapter, the alarm business shall promptly notify the Police Department in the event the alarm business ceases to lease, rent, maintain, service, or monitor any alarm system. Said notice shall be sent within ten (10) days. (4111)

(G) Alarm businesses which sell alarms but do not monitor, maintain, lease, service, or install alarms or alarm systems shall not be subject to Subsections (A), (B), (C), (D), (E), or (F) of this Section but shall be responsible for instructing each person who purchases an alarm or alarm system in the proper use and operation of the alarm. Each instruction will specifically include all necessary instructions in turning off said alarm(s) and in avoiding false alarms. (4111)

(H) An Alarm Company shall provide the Alarm Coordinator with a customer list in a format acceptable to the Alarm Coordinator, upon request, to assist the Alarm Coordinator with creating the law enforcement's tracking data. (5079)

(I) The Alarm Business shall complete and sign the City of Mesa Alarm Information Checklist with the proprietor or alarm user and submit the form as required below. The form must be signed by an alarm company representative and the alarm user or proprietor before submission to the Police Department. The Alarm Business shall submit the form, in the manner prescribed by the Coordinator, to the Police Department within 10 days of commencement of service for the alarm system. (5079)

6-15-4: ALARM USER DUTIES

The duties of an alarm user shall be as follows: (4111)

(A) To instruct all personnel who are authorized to place the system or device into operation in the appropriate method of operation. (4111)

(B) To inform personnel who are authorized to place the alarm system into operation of the provisions of this Chapter, emphasizing the importance of avoiding false alarms. A current copy of the provisions of this Chapter shall be maintained on the premises and be made available to persons who are authorized to place an alarm system into operation. (4111)

6-15-5: PROPRIETOR'S ALARM RESPONSIBILITIES

The duties of a proprietor shall be as follows: (4111)

(A) To be familiar with the provisions of this Chapter. (4111)

(B) To maintain the alarm or alarm system in good working order and take reasonable measures to prevent the occurrence of false alarms. (4111)

(C) To notify the Police Department of the name, address, and telephone number of the primary person and at least one (1) alternate to be notified in case the alarm is activated, unless the alarm system is not audible and is monitored at a remote location. (4111)

(D) Upon the purchase of any alarm system device or service which includes an audible alarm: (4111)

1. To notify the Police Department of the name, address, and telephone number of the primary person and at least one (1) alternate who should be notified when the alarm is activated. (4111)

2. To inactivate or cause to be inactivated the alarm system within twenty (20) minutes of notification of its activation. (4111)

6-15-6: ALARM USER PERMIT REQUIREMENTS

(A) Every alarm user shall apply for and receive an alarm permit from the Mesa Police Department. Application shall be made to the Mesa Police Department Alarm Unit for a permit within 30 days of the installation date of an alarm system. Users of alarm systems having both robbery/panic and burglary alarm capabilities shall obtain one (1) permit per alarm site. The application for an alarm user's permit shall be made on a form approved by the Coordinator and shall be accompanied by the permit fee as prescribed in Appendix A. All permits issued pursuant to this Section shall be for a period of three hundred and sixty-five calendar days from the date of issue and shall be renewable annually, three hundred and sixty-five calendar days from the original date of issue or renewal, as applicable, and subject to a permit renewal fee as prescribed in Appendix A. An alarm user's permit shall be available within the premises protected by the alarm and shall be available for inspection by the Mesa Police Department. Permits are not transferable from one user to another user or from one address to another address. (4111, 4419, 5079)

(B) Alarm systems operated by the County, State, or Federal government and installed on premises such entity occupies or uses for governmental purposes, and State public school (non-charter and charter) buildings and facilities, as well as accredited private schools offering curriculum between kindergarten and twelfth (12th) grade, shall not be subject to payment of fees pursuant to this Section. (4111, 4339)

6-15-7: ALARM BUSINESS LICENSE REQUIREMENTS; ADMINISTRATION; DURATION; DUPLICATE LICENSE

(A) It shall be unlawful for any person to conduct, operate, or engage in or carry on an alarm business, or to engage in the occupation of alarm agent, or represent oneself as an alarm agent, without first having obtained such licenses as are required. A separate license is required for each business name under which an alarm business conducts business or advertises. In the event that the licensing authority has reasonable cause to believe that an alarm business does not have a valid alarm business license as required or that a person is engaged in the alarm business without a valid alarm business license, the licensing authority or its designee, with the assistance of the Police Department, shall issue a warning to the alarm business stating that it is in violation of the Mesa City Code ordinance. The warning shall direct the alarm business to apply for an alarm business license within ten (10) calendar days of the date of the warning. The alarm business receiving such a notice shall not engage in the alarm business until an alarm business license is issued. (4111)

(B) The duty of prescribing forms is vested in the licensing authority. License application shall be submitted to the licensing authority, which shall have the authority to issue, deny, suspend, or revoke a license. (4111)

(C) The license required shall be in addition to any other licenses or permits required by the City, County, or State in order to engage in business, including the City zoning laws, as may be required to be licensed. Failure of any applicant or licensee, as applicable, to meet the requirements of Subsection (C) shall be grounds for denial, suspension, or revocation of a license. (4111)

(D) All licenses issued pursuant to this Chapter shall be for a period of one (1) year from the date of issue and shall be renewable annually, one (1) year from the original date of issue or renewal, and be renewed in accordance with provisions of Section 6-15-12: Renewal of License. (4111)

(E) Upon written request and the payment of a fee as prescribed in Appendix A, the licensing authority shall issue a duplicate license to a licensee whose license has been lost, stolen, or destroyed. (4111, 5079)

(F) It shall be unlawful for an alarm business to use or to contract with for purposes of using the service of an unlicensed alarm business or alarm agent. (4111)

6-15-8: TYPES OF LICENSES; RECIPROCITY

(A) The types of licenses issued pursuant to this Chapter are as follows: (4111)

1. Primary Alarm Business License. A primary alarm business license may be applied for by an alarm business that is physically located within this City, in a jurisdiction that has not adopted this reciprocal alarm License Ordinance, or in a jurisdiction outside this State. (4111)

2. Reciprocal Alarm Business License. An alarm business, whether physically located within or outside the State of Arizona, that has a valid primary alarm business license issued by a jurisdiction

within this State that has adopted the reciprocal alarm license Ordinance shall be entitled to the issuance of a reciprocal alarm business license upon compliance with the requirements of this Section. (4111)

3. Alarm Agent License. A person desiring to engage in the business or occupation of alarm agent shall apply for and receive an alarm agent license from the jurisdiction that issues the primary alarm business license for the alarm business for which the alarm agent is or will be working. A person holding a valid alarm agent license, who desires to work for an alarm business holding a reciprocal alarm license, does not have to obtain a separate license, but shall provide a copy of his or her license, upon request, to the jurisdiction in which the reciprocal license has been issued. (4111)

6-15-9: ALARM BUSINESS LICENSE APPLICATIONS; CONTENTS

(A) All applications for alarm business licenses(s) shall include the following: (4111)

1. The name, business address, mailing address, and telephone number of the alarm business. If the applicant is a corporation, general or limited partnership, limited liability company, or other legal entity, the name of the applicant shall be set forth exactly as shown in its articles of incorporation, charter, certificate of limited partnership, articles of organization, or other organizational documents, as applicable, together with the state and date of incorporation and the names, residence addresses, and dates of birth of each controlling person. If one (1) or more of the partners, members, or shareholders of the applicant is a corporation or other legal entity, the provisions of this Subsection relating to the information required of a corporation shall apply. (4111)

2. In the event that the applicant is a corporation, general or limited partnership, limited liability company, or other legal entity, the applicant shall designate one (1) of its officers, general partners, or members to act as its responsible managing officer. Such designated person shall complete and sign all application forms required of an individual applicant under this Article. The applicant shall provide a copy of their corporation, partnership, or limited liability company formation documents. (4111)

3. The name of the applicant and each controlling person, any alias or other name used or by which the applicant or any controlling person has been previously known, his or her current residence and business addresses, telephone numbers, including facsimile numbers and e-mail addresses, if applicable. (4111)

4. The names and addresses of the alarm agents employed by the alarm business. (4111)

5. The residence and business address of the applicant and each controlling person for the five-year period immediately preceding the date of filing of the application and the inclusive dates of each such address. (4111)

6. Proof that the applicant, and each controlling person, is at least eighteen (18) years of age, as indicated on a current driver's license with picture, or other picture identification document issued by a governmental agency. (4111)

7. Height, weight, color of eyes and hair, and date of birth of the applicant and each controlling person. (4111)

8. Two (2) current two-inch by two-inch (2" x 2") photographs of the applicant and each controlling person. (4111)

9. The employment history of the applicant and each controlling person for the five- (5-) year period immediately preceding the date of the filing of the application. (4111)

10. Information as to whether the applicant or any controlling person, or the business on behalf of which the license is being applied for, has ever been refused or denied any similar license or permit, or has had any similar permit or license revoked, canceled, or suspended, and the reason(s) for the revocation, cancellation, or suspension. (4111)

11. Whether or not the applicant or any controlling person has ever been convicted of a crime, regardless of whether the conviction was later set aside or expunged, in any domestic, foreign, or military court. "Crime" means any and all felonies, misdemeanors, and serious driving offenses, including driving under the influence of intoxicating liquor or drugs, reckless driving, driving on a suspended, revoked, canceled, or refused driver's license, or any driving offense for which the possible penalty includes jail time. "Crime" does not include minor or civil traffic offenses. "Convicted" means having plead guilty or nolo contrendre to a crime, having been found guilty of a crime, or having been sentenced for a crime, whether incarcerated, placed on probation, fined, or having received a suspended sentence. An applicant or controlling person shall also answer "yes" to this question, even though he or she has not been convicted of a crime, if the applicant or controlling person is presently pending trial or other court proceeding for a crime. (4111)

12. For initial and renewal applications for primary alarm business licenses only, one (1) full set of fingerprints on fingerprint cards, or fingerprint data, as specified in Section 6-15-19: Background Investigation; Fingerprints, for the applicant and each controlling person. Fingerprints or fingerprint data must be submitted on fingerprint cards provided or approved by the licensing jurisdiction, but may be taken by any law enforcement or other government agency. (4111)

13. Copies of the State of Arizona Registrar of Contractor's C-11, C-12, or L-67 license, as applicable, or a copy of the K-67 license for combined residential and commercial, issued to the alarm business applicant, and copy of the State of Arizona transaction privilege tax license, if applicable. (4111)

14. A list of all Arizona counties, cities, and/or towns where the applicant conducts business. (4111)

15. An express agreement by the alarm business that any and all records of the alarm business, whether written or recorded, electronically or otherwise, or in any other form, relating to information required to be supplied to the Police Department in case of an alarm, shall be immediately made available at any time upon request for inspection by agents of the Police Department. (4111)

16. A copy of a valid primary alarm business license if the application is made for an original or renewal reciprocal alarm business license. (4111)

17. Such other information, evidence, statements, or documents as may be deemed by the licensing authority to be reasonably necessary to process and evaluate the application or renewal. (4111)

(B) Applicants for primary or reciprocal alarm business licenses, or applicants for renewal of any such licenses, shall notify the licensing authority, in writing, of any change in the information contained in the license application or renewal application. Notification shall be given to the licensing authority within fifteen (15) calendar days of the occurrence of the change. (4111)

6-15-10: ALARM AGENT LICENSE APPLICATIONS

(A) An alarm agent license application and an alarm agent license renewal application shall include the following information about the applicant: (4111)

1. The name of the applicant and any alias or other name, used by the applicant or by which the applicant has previously been known, his or her current residence and business addresses, telephone numbers, including facsimile numbers, and e-mail addresses, if applicable. (4111)

2. The name, business address, and business telephone number of the alarm business where the applicant is or will be employed. (4111)

3. Proof that the applicant is at least eighteen (18) years of age, as indicated on a current driver's license with picture, or other picture identification document issued by a governmental agency. (4111)

4. Height, weight, color of eyes and hair, and date of birth of the applicant. (4111)

5. Two (2) current two-inch by two-inch (2" × 2") photographs of the applicant. (4111)

6. The applicant's business and/or employment history for the five- (5-) year period immediately preceding the date of the filing of the application. (4111)

7. Information as to whether, in this City or elsewhere, the applicant has ever been refused or denied any similar license or permit, or has had any similar permit or license revoked, canceled, or suspended and the reason(s) for the revocation, cancellation, or suspension. (4111)

8. Whether or not the applicant has ever been convicted of a crime, regardless of whether the conviction was later set aside or expunged, in any domestic, foreign, or military court. "Crime" means any and all felonies, misdemeanors, and serious driving offenses, including driving under the influence of intoxicating liquor or drugs, reckless driving, driving on a suspended, revoked, canceled, or refused driver's license, or any driving offense for which the possible penalty includes jail time. "Crime" does not include minor or civil traffic offenses. "Convicted" means having plead guilty or nolo contendre to a crime, having been found guilty of a crime, or having been sentenced for a crime, whether incarcerated, placed on probation, fined, or having received a suspended sentence. An applicant shall also answer "yes" to this question, even though he or she has not been convicted of a crime, if the applicant is presently pending trial or other court proceeding for a crime. (4111)

9. One (1) full set of fingerprints on fingerprint cards, or fingerprint data, as provided in Section 6-15-19: Background, Investigation; Fingerprints. Fingerprints or fingerprint data must be submitted on fingerprint cards provided or approved by the licensing jurisdiction, but may be taken by any law enforcement or authorized government agency. (4111)

10. A list of all Arizona counties, cities, or towns where the applicant conducts business. (4111)

11. Such other information, evidence, statements, or documents as may be deemed by the licensing authority to be reasonably necessary to process and evaluate the application or renewal. (4111)

(B) Applicants for alarm agent licenses, or applicants for renewal of such licenses, shall notify the licensing authority, in writing, of any change in the information contained in the license application or renewal application. Notification shall be given to the licensing authority within fifteen (15) calendar days of the occurrence of the change. (4111)

6-15-11: FEES; DISPLAY OF LICENSES

(A) All license application fees, as prescribed in Appendix A, shall accompany the initial application or renewal application. All licensing fees are non-refundable, non-transferable, and will not be separated. (4111, 5079)

(B) Alarm business licenses shall state whether they are primary alarm business licenses, or reciprocal alarm business licenses. The primary alarm business license or reciprocal alarm business license, as applicable, shall be at all times conspicuously displayed at the alarm business's central office or station. (4111)

(C) Alarm agent licenses shall be carried on the person of an alarm agent at all times while so employed and the alarm agent shall display the license to any police officer or authorized representative of this City upon request. (4111)

6-15-12: RENEWAL OF LICENSE

(A) The holder of a primary alarm business license, reciprocal alarm business license or alarm agent license shall renew the license annually by submitting a renewal application containing the information listed in Section 6-15-9: Alarm Business License Applications; Contents, and Section 6-15-10: Alarm Agent License Applications, as applicable, and paying the required renewal fee and the costs for a criminal history investigation. The holder of a reciprocal alarm business license, as a condition of renewal, shall also submit a copy of the approved primary alarm business license upon which reciprocity is based. (4111)

(B) Applications for license renewal shall be filed with the licensing authority not later than ninety (90) days prior to the expiration of the license currently in effect. Applications for license renewal shall not be accepted after ninety (90) days prior to the expiration date of the license. In the event that a license expires without the licensee having submitted a timely application for renewal, the holder of the expired license must file a new application for initial license and shall comply with all of the requirements provided herein for obtaining an initial license. (4111)

6-15-13: ISSUANCE; GROUNDS FOR DENIAL

(A) The licensing authority will issue a license provided for by this Article to an applicant, or renew a license, if applicable, when the following conditions of the applicable licensing provisions have been fully satisfied: (4111)

1. All application requirements have been met, including any criminal history background checks and fingerprint requirements. (4111)

2. All fees have been paid in full. (4111)

3. No grounds for denial listed in this Section exist. (4111)

(B) The licensing authority shall deny a license or deny the renewal of a license if, at the time of the filing of an original application or a request for renewal, the licensing authority has reasonable grounds to believe that an applicant, licensee, or controlling person: (4111)

1. Has been previously convicted, in any jurisdiction, of a felony; or a misdemeanor involving fraud, theft, dishonesty, moral turpitude, physical violence, assault, indecent exposure, illegal use or possession of a deadly weapon, or a violation of A.R.S. Title 13, Chapter 34 (drug offenses, including but not limited to those relating to possession, sale, or other conduct involving marijuana, narcotic drugs, precursor chemicals, and prescription drugs), or offenses committed in another jurisdiction, which if committed in Arizona would be in violation of A.R.S. Title 13, Chapter 34, within the five- (5-) year period immediately preceding the filing of an original application or a request for renewal, whether or not the conviction(s) have been expunged from court records pursuant to law. (4111)

2. Has prepared or filed an application or request for renewal which contains false or misleading information, submitted false or misleading information in support of such application or request, or failed or refused to make full disclosure of all information required by this Section. (4111)

3. Has had a license relating to alarm businesses or agents, as applicable, or a license of similar character, issued by the city of another authority, suspended, canceled, or revoked within the five- (5-) year period immediately preceding the date of the filing of the application. (4111)

4. Is not a United States citizen or lawful permanent resident alien or an alien who is authorized to work by the United States Department of Justice Immigration and Naturalization Service. (4111)

5. Has violated a provision of this Article, or has committed any act, which if committed by a licensee, would be grounds for the denial or revocation of a license pursuant to this Section. (4111)

(C) Notice shall be given of any denial of a license application, or a request for renewal, in writing, and either by hand-delivery or by mail, to the address of record. The notice shall include the reasons for denial of the license or license renewal. (4111)

6-15-14: LICENSE SUSPENSION OR REVOCATION; GROUNDS

(A) The licensing authority may suspend or revoke any primary or reciprocal alarm business or alarm agent license, when the licensing authority has reasonable grounds to believe any of the following: (4111)

1. The licensee, or any controlling person, has violated any of the grounds for denial of a license, as described in Section 6-15-13(B): Issuance; Grounds for Denial. (4111)

2. The licensee or any controlling person has failed to comply with the requirements of this Section, including failure to provide changes in license information, as required. (4111)

3. The licensee has failed to comply with the requirements of Section 6-15-3: Alarm Business Duties, as specified for alarm business or alarm agent responsibilities and false alarms. (4111)

4. The licensee has failed to maintain in good standing all licenses or permits that are required pursuant to this Section to hold a primary or reciprocal alarm business license, or alarm agent license, as applicable. (4111)

6-15-15: LICENSE SUSPENSION OR REVOCATION PROCEDURE

(A) The licensing authority shall give notice of its intent to suspend or revoke a license. Notice shall be given in writing, either by hand-delivery or by mail, to the address of record. The notice shall include the reasons for the suspension or revocation. (4111)

(B) The licensing authority shall transmit, by facsimile, notice of the suspension or revocation, when such action is final, to all counties, cities, and towns listed on the licensee's application. The suspension or revocation of a primary alarm business license shall result in the same action being taken as to all reciprocal alarm business licenses, which are derived from that primary alarm business license. (4111)

6-15-16: LICENSE REVIEW AND APPEALS

(A) Any person wanting to appeal a decision with respect to either the denial of an application for a license, or renewal, or the suspension or revocation of a license, which is subject to this Section, is entitled to the review and appeal procedures in accordance with this Code. (4111)

6-15-17: APPLICATION AFTER DENIAL OR REVOCATION OF LICENSE

(A) No person, association, firm, corporation, or other legal entity may apply for any license required under this Chapter within one (1) year from the denial of any such license to such applicant, or from the non-renewal or revocation of any such license, unless the cause of such denial, revocation, or non-renewal has been, to the satisfaction of the licensing authority, removed within such time. This Section shall be inapplicable to denials of applications or renewal when the reason for denial was for an administrative, technical, or otherwise non-material reason. (4111)

6-15-18: TERMINATION AND/OR CANCELLATION OF LICENSE; NOTICE

(A) An alarm agent who terminates employment with an alarm business shall immediately surrender his or her alarm agent license to the licensing authority. (4111)

(B) An alarm agent who terminates his employment with an alarm business to change employment to another alarm business licensee shall notify the licensing authority of the transfer, in writing, within fifteen (15) calendar days of the change in employment. (4111)

(C) An alarm business may cancel an alarm business license by filing a notice of cancellation of the license with the licensing authority. The notice of cancellation shall include the effective date of the cancellation. In the event of the cancellation of a primary alarm business license, notice shall be given to all jurisdictions in which reciprocal alarm business licenses have been issued and are active. Reciprocal alarm business licenses shall be canceled as of the effective date of the cancellation of the primary alarm business license, unless the licensee requests the license be canceled sooner. (4111)

6-15-19: BACKGROUND INVESTIGATION; FINGERPRINTS

(A) As a condition of the issuance of licenses pursuant to this Chapter, the licensing authority shall require each applicant and controlling person to furnish one (1) full set of fingerprints, or fingerprint data, to enable the licensing authority to conduct a criminal background investigation to determine the suitability of the applicant or controlling person. (4111)

(B) The licensing authority shall submit or electronically transmit all completed fingerprint cards to the Department of Public Safety to conduct a statewide criminal history check. The applicant or controlling person shall bear the cost of conducting the criminal background investigation. The cost shall not exceed the actual cost of obtaining the criminal history information. Criminal history records checks shall be conducted pursuant to A.R.S. § 41-1750, and Public Law 92-544, as amended. The Department of Public Safety is authorized to exchange the submitted fingerprint card information with the Federal Bureau of Investigation for a national criminal history records check. (4111)

6-15-20: FALSE ALARMS; PENALTY ASSESSMENTS AND PERMIT REVOCATION

(A) Any robbery/panic alarm system, whether permitted or not, which has more than one (1) false alarm within a three hundred and sixty-five-calendar-day-period shall be subject to penalty assessments as prescribed in Appendix A. (4111, 5079)

1. If a second false alarm within a three hundred and sixty-five-calendar-day-period for any robbery/panic alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A, within sixty (60) days of receipt of the notice of excessive false robbery/panic alarms. (4111, 5079)

2. If a third and/or any subsequent false alarm within the same three hundred and sixty-five-calendar-day-period for any robbery/panic alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment per occurrence, as prescribed in Appendix A, within sixty (60) days of receipt of the notice of excessive false robbery/panic alarms. (4111, 5079)

(B) Any burglary alarm system that has one recorded false alarm within a three hundred and sixty-five-calendar-day-period shall be subject to penalty assessments as follows: (4111, 4419, 5079)

1. On the first recorded false alarm within a three hundred and sixty-five-calendar-day-period for any burglary alarm system, the Alarm Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A, within sixty (60) days of the receipt of the false alarm notice. This assessment shall be waived if the alarm user successfully completed the City of Mesa Alarm Awareness class prior to the first recorded false alarm, or if the alarm user successfully completes the class within sixty (60) days after the first recorded false alarm. (4111, 4419, 5079)

2. If a second false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment as prescribed in Appendix A, within sixty (60) days of receipt of the notice of excessive false alarms. (4111, 4419, 5079)

3. If a third false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A, within sixty (60) days of receipt of the notice of excessive false alarms. (4111, 4419, 5079)

4. If a fourth false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A, within sixty (60) days of receipt of the notice of excessive false alarms. (4111, 4419, 5079)

5. If a fifth false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A within sixty (60) days of receipt of the notice of excessive false alarms. (4419, 5079)

6. If a sixth false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A within sixty (60) days of receipt of the notice of excessive false alarms. (4419, 5079)

7. If a seventh false alarm within the same three hundred and sixty-five-calendar-day-period for any burglary alarm system is recorded, the Coordinator shall notify the alarm user by regular mail and direct that the user pay to the City a penalty assessment, as prescribed in Appendix A within sixty (60) days of receipt of the notice of excessive false alarms. Any subsequent false alarms within the same three hundred and sixty-five-calendar-day-period shall be assessed, as prescribed in Appendix A for each occurrence. (4419, 5079)

(C) Multiple false alarms generated in a twenty-four- (24-) hour period by a common cause shall be deemed to be one (1) false alarm for assessment purposes. (4111)

(D) Any alarm system which has ten (10) or more false alarms within a three hundred and sixty-five-calendar-day-period shall also be subject to permit revocation. (4111, 5079)

1. If ten (10) or more false alarms within a three hundred and sixty-five-calendar-day-period for any alarm system are recorded, the Coordinator shall notify the alarm user by certified mail of such fact and shall direct that the alarm user, within ten (10) days of receipt of the notice of excessive false alarms, submit a report to the Coordinator describing the actions taken or to be taken to discover and eliminate the cause of the false alarms. A copy of the notification shall be sent by regular mail to the alarm business providing service or inspection to the user. (4111, 5079)

(E) If the alarm user submits a report as directed, the Coordinator shall determine if the actions taken or to be taken will prevent the reoccurrence of false alarms. The Coordinator shall notify the alarm user in writing that the permit will not be revoked at that time and that if subsequent false alarms occur within the three hundred and sixty-five-calendar-day-period, the permit may be summarily revoked. (4111, 5079)

(F) If no report is submitted as required or if the Coordinator determines that the actions taken or to be taken by the alarm user will not prevent the reoccurrence of false alarms, the Coordinator shall give notice by certified mail to the alarm user that the permit will be revoked without further notice on the tenth (10th) day after the date of the notice. (4111)

(G) If the alarm user fails to pay the penalty assessment within the time provided after receipt of written notification from the Coordinator as provided in this Section, the Coordinator may summarily revoke the alarm user's permit through written notification mailed to the alarm user by certified mail, which

notification shall be effective on the third (3rd) day following the mailing of said notice of revocation. The Coordinator shall have the authority to summarily revoke an alarm user's permit for failure to pay a penalty assessment. (4111)

(H) An alarm user whose permit has been revoked shall be immediately furnished written notification by certified mail of such revocation and shall within three (3) days after the furnishing of such written notification discontinue the use of the alarm system with respect to which a permit has been revoked. It shall be unlawful for any alarm user to fail to disconnect such system within three (3) days after written notification has been furnished advising the alarm user of the revocation of the alarm user permit, and such failure shall subject the alarm user to the penalties hereinafter provided. (4111)

(I) For purposes of any written notification to be provided under the terms of this Chapter, such notice shall be effective if the same is mailed by certified mail addressed to the alarm user at the address furnished to the Coordinator in connection with a permit application or at such other address as the alarm user may furnish in writing to the Mesa Police Department, and such notice shall be effective if mailed to the alarm business at the address provided to the Coordinator in connection with the filing of alarm user instructions or, alternatively, to the last known address of said alarm business. Any notice required hereunder shall be effective on the third (3rd) day after the notice has been deposited in the United States Certified Mails with sufficient postage attached. Failure to mail notice to an alarm business shall not impair or invalidate any notice furnished to the alarm user. (4111)

(J) An alarm user whose alarm permit has been revoked may have it reinstated by paying all overdue assessments, submitting a corrective report detailing the corrective action taken with proof of inspection for malfunctions attached, and paying a reinstatement fee as prescribed in Appendix A. (4111, 5079)

(K) Any alarm company that fails to comply with alarm business duties as outlined in this Chapter is subject to penalty assessments as prescribed in Appendix A. (5079)

(L) Any alarm user that is found to be operating an alarm system without a valid alarm permit is subject to penalty assessments as prescribed in Appendix A. (5079)

6-15-21: GENERAL REGULATIONS

(A) Each alarm system shall be inspected and serviced by the permittee at least once in each twelve (12) month period. Records shall be maintained by the permittees for each system showing dates of inspection and the name of the person making such inspection. Records shall be kept for a minimum of two (2) years and be open to the Police Chief or his designee on his request upon twenty-four (24) hours' notice. (4111, 5079)

(B) It shall be unlawful for any person to intentionally activate any robbery panic or robbery alarm for any reason other than to warn of an actual robbery or to intentionally activate any burglar alarm for any reason other than to warn of an unauthorized entry into an alarm-protected premises. This Subsection shall not apply to the testing of alarm systems when the testing has been done in accordance with the prescribed guidelines set by the Police Department and when the Police department has been given advance notice of such testing. (4111)

(C) No person or business who (which) purchases, leases, rents, or uses an audible alarm system, device, or service which is not connected to a central receiving station (of an alarm business) shall allow said alarm to sound in excess of twenty (20) minutes. (4111)

(D) No person shall use or cause to be used any Automatic dialing device or device attachment that automatically selects a public primary telephone trunk line of the City of Mesa and then reproduces any prerecorded message or signal. (5079)

1. Within sixty (60) days after the effective date of this Chapter, all existing automatic dialing devices programmed to select a public primary telephone trunk line of the City of Mesa and then reproduce any prerecorded message or signal shall be disconnected. (5079)

6-15-22: UNLAWFUL ACTS AND PENALTIES

(A) In addition to the unlawful acts hereinabove specified, it shall be unlawful for any alarm user to install an alarm system for use within the City without obtaining a permit as required by this Chapter. It shall be unlawful for any alarm user to fail to disconnect an alarm system after the revocation of an alarm user's permit in accordance with the terms and provisions of this Chapter. It shall be unlawful to operate an alarm system without a permit. (4111, 5079)

(B) Penalty. Any person convicted of a violation of any provision of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment not to exceed six (6) months, or by both fine and imprisonment. (4111)

6-15-23: APPEALS PROCEDURES

(A) Any party aggrieved by a decision of the Coordinator made pursuant to Section 6-15-20 may, within ten (10) days of receipt of notice of the decision, appeal to a Hearing Officer so designated by the City Manager. A copy of the appeal request shall be sent to the Coordinator. (4111)

(B) The request for an appeal shall set forth the specific objections to the decision of the Coordinator, which form the basis of the appeal. (4111)

(C) The Hearing Officer shall set a time and place for the hearing as soon as practicable. (4111)

(D) The decision of the Hearing Officer shall be based upon the evidence presented and it shall: (4111):

1. Affirm the decision of the Coordinator, in which case any assessment imposed shall be sustained; or (4111, 5079)

2. Reverse the decision of the Coordinator, in whole or part, in which case no assessment shall be imposed. (4111)

6-15-24: LIABILITY OF CITY LIMITED

The Police Department shall take every reasonable precaution to assure that alarm notifications received are given appropriate attention and are acted upon with dispatch. Nevertheless, the City shall not be liable for any failure or neglect to respond appropriately upon receipt of an alarm notification or the failure or neglect of any person with a license issued pursuant to the Chapter or with a franchise in connection with the installation and operation of equipment, the transmission of alarm signals, or the relaying of such signals and messages. In the event the City finds it necessary to order the revocation or disconnection of an alarm device, the City shall incur no liability by such action. (4111)

APPENDIX A: FINES, FEES AND ASSESSMENTS

	Amount
Alarm Permit	
Burglary Function	$10
Panic/Holdup Function	$10
Burglary Function and Panic/Holdup Function	$20
Revoked Permit Reinstatement Fee	$25
Operating an Alarm System without a permit	$100
False Alarm Assessments - Burglary	
1st False Burglary Alarm	$50
2nd False Burglary Alarm	$100
3rd False Burglary Alarm	$150
4th False Burglary Alarm	$200
5th False Burglary Alarm	$250
6th False Burglary Alarm	$300
7th False Burglary Alarm and each subsequent False Alarm	$400
False Alarm Assessments - Panic and/or Hold-Up	
1st False Panic and/or Hold-Up Alarm	$0
2nd False Panic and/or Hold-Up Alarm	$100
3rd False Panic and/or Hold-Up Alarm and each subsequent False Alarm	$200
Alarm Company Licensing - Initial License Fees	
Primary Alarm Business	$200
Reciprocal Alarm Business	$75
Alarm Agent	$70
Criminal History Investigation - Cost determined by DPS	Current Cost
Alarm Company Licensing - Renewal License Fees	
Primary Alarm Business	$20
Reciprocal Alarm Business	$10
Alarm Agent	$20
Criminal History Investigation - Cost determined by DPS	Current Cost
Duplicate Licensee Fee	$10
Alarm Company Assessments	
Failure to ECV (civil citation)	$50
Failure to provide permit number when asking for police response	$15
Request Dispatch to a location in error	$75
Failure to Provide Cancel/New Subscriber Lists as required	$50

(Ord. No. 5079)

CHAPTER 16
SEXUALLY ORIENTED BUSINESSES

6-16-1: DEFINITIONS

ADULT ARCADE (also known as "peep show"): Any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images to persons in booths or viewing rooms where the images so displayed exhibit "specified sexual activities" or "specified anatomical areas." (2618, 3740)

ADULT BOOKSTORE, ADULT NOVELTY STORE, OR ADULT VIDEO STORE: A commercial establishment which offers sexually explicit material for sale or rental, for any form of consideration, and meets any one (1) or more of the following criteria: (2618, 3740)

(A) That has thirty percent (30%) or more of its inventory, stock, or merchandise on hand at any time that is comprised of sexually explicit material; or (2618, 3740)

(B) That has a substantial or significant portion of its inventory, stock, or merchandise on hand at any time that is comprised of sexually explicit material; or (2618, 3740)

(C) That derives thirty percent (30%) or more of its gross income for any one (1) calendar month from the sale or rental, for any form of consideration, of sexually explicit material; or (3740)

(D) That derives a substantial or significant portion of its gross income for any one (1) calendar month from the sale or rental, for any form of consideration, of sexually explicit material; or (3740)

(E) That at any time displays sexually explicit material either in a display area that is thirty percent (30%) or more of its total display area or on a floor area equal to at least two hundred (200) square feet. For purposes of calculating the floor area, the business premises shall be viewed from above in two (2) dimensions and all areas that are reserved for foot traffic shall be included; or (3740)

(F) That displays a substantial or significant amount of sexually explicit material in its display area. (3740)

ADULT CABARET: A nightclub, bar, restaurant, or other commercial establishment which during any part of any two (2) or more days within any continuous thirty- (30-) day period features, exhibits, or displays: (2618, 3740)

(A) Persons who appear in a state of nudity or semi-nude; or (2618)

(B) Live performances which are characterized by the exposure of "specified anatomical areas" or by "specified sexual activities"; or (2618)

(C) Films, motion pictures, videocassettes, video reproductions, slides, or other reproductions offered in photographic, electronic, magnetic, digital, or other imaging medium or other visual representations that are distinguished or characterized by an emphasis on matters which depict or describe "specified sexual activities" or "specified anatomical areas." (2618, 3740)

ADULT MOTEL: A hotel, motel, or similar commercial establishment that: (2618)

(A) Offers accommodations to the public for any form of consideration; provides patrons with closed-circuit television transmissions, films, motion pictures, videocassettes, video reproductions, slides, or other

reproductions offered in photographic, electronic, magnetic, digital, or other imaging medium or other visual representations that are distinguished or characterized by an emphasis on matters that depict or describe "specified sexual activities" or "specified anatomical areas" and has a sign visible from the public right-of-way which advertises the availability of adult, nude, sex, or "XXX" movies, videos, films, or other similar reproductions; or (2618, 3740)

(B) Offers a sleeping room for rent for a period of time that is less than ten (10) hours; or (2618)

(C) Allows a tenant or occupant of a sleeping room to subrent the room for a period of time that is less than ten (10) hours. (2618)

ADULT MOTION PICTURE THEATER: A commercial establishment that features, exhibits, or displays during any part of two (2) or more days within any continuous thirty- (30-) day period for any form of consideration films, motion pictures, videocassettes, video reproductions, slides, or other reproductions offered in photographic, electronic, magnetic, digital, or other imaging medium or other visual representations that are distinguished or characterized by an emphasis on matters that exhibit "specified sexual activities" or "specified anatomical areas." (2618, 3740)

ADULT THEATER: A theater, concert hall, auditorium, or similar commercial establishment which during any part of any two (2) or more days within any continuous thirty- (30-) day period features, exhibits, or displays persons who appear in a state of nudity or semi-nude or live performances that expose or exhibit "specified anatomical areas" or "specified sexual activities." (2618, 3470)

BOARD OF ADJUSTMENT: The board established pursuant to ARS § 9-462.06 and Mesa City Code Section 11-18-5. (2618)

CHIEF OF POLICE: The Chief of Police of the City of Mesa or the designated agent of the Chief of Police. (2618)

EMPLOY, EMPLOYEE, AND EMPLOYMENT: Describe and pertain to any person who performs any service on the premises of a sexually oriented business on a full-time, part-time, or contract basis, whether or not the person is denominated an employee, independent contractor, agent, or otherwise. Employee does not include a person exclusively on the premises for repair or maintenance of the premises or for the delivery of goods to the premises. (2618)

ESTABLISHMENT: Means and includes any of the following: (2618)

(A) The opening or commencement of any sexually oriented business as a new business; or (2618)

(B) The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business; or (2618)

(C) The addition of any sexually oriented business to any other existing sexually oriented business; or (2618)

(D) The relocation of any sexually oriented business. (2618)

LICENSEE: In the case of a business, a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application for a license, and in the case of an employee, a person in whose name a license has been issued authorizing employment in a sexually oriented business. (2618)

NUDE MODEL STUDIO: Any place where a person who appears semi-nude, in a state of nudity, or who displays "specified anatomical areas" is provided to be observed, sketched, drawn, painted, sculptured, photographed, or similarly exhibited, before other persons who pay money or any form of consideration. Nude model studio shall not include a proprietary school licensed by the State of Arizona or a college, junior college, or university supported entirely or in part by public taxation; a private college or university which maintains and operates educational programs in which credits are transferable to a college, junior college, or university supported entirely or partly by taxation; or a structure: (2618, 3740)

(A) That has no sign visible from the exterior of the structure and no other advertising that indicates a nude or semi-nude person is available for viewing; and (2618)

(B) Where in order to participate in a class, a student must enroll at least three (3) days in advance of the class; and (2618)

(C) Where no more than one (1) nude or semi-nude model is on the premises at any one time. (2618)

NUDITY OR A STATE OF NUDITY:

(A) The appearance of a human anus, male genitals, female genitals, or female breast; or (2618)

(B) A state of dress which fails to opaquely cover a human anus, male genitals, female genitals, or areola of the female breast. (2618)

OPERATES OR CAUSES TO BE OPERATED: To cause to function or to put or keep in operation. A person may be found to be operating or causing to be operated a sexually oriented business whether or not that person is an owner, part owner, or licensee of the business. (2618)

PERSON: An individual, proprietorship, partnership, corporation, association, or other legal entity. (2618)

RESIDENTIAL DISTRICT: The Single Residence districts, the Multiple Residence districts, and the Town Center Residence districts described and defined in the Mesa Zoning Ordinance. (2618)

RESIDENTIAL USE: All uses allowed in residential districts under the Mesa Zoning Ordinance. (2618)

SEMI-NUDE: A state of dress which shows the female breast below a horizontal line across the top of the areola at its highest point, or which shows the male or female buttocks. This definition shall not include any portion of the cleavage of the female breast exhibited by a dress, blouse, leotard, bathing suit, or other wearing apparel, provided that the areola is not exposed in whole or in part. (2618, 3740)

SEXUAL ENCOUNTER CENTER: A business or commercial enterprise that offers for any form of consideration or features, displays, exhibits, or permits: (3740)

(A) Physical contact in the form of wrestling or tumbling between two (2) or more persons when one (1) or more of the persons is in a state of nudity or semi-nude; or (2618, 3740)

(B) Two (2) or more persons engaging in "specified sexual activities" or exposing "specified anatomical areas." (3740)

SEXUALLY EXPLICIT MATERIAL: Books, magazines, periodicals, or other printed matter or photographs, films, motion pictures, videocassettes, video reproductions, slides, or other products offered in photographic, electronic, magnetic, digital, or other imaging medium, or other visual representations that are distinguished or

characterized by an emphasis on matters that depict, describe, or exhibit "specified sexual activities" or "specified anatomical areas," or instruments, devices, or paraphernalia, excluding condoms and other birth control and disease prevention products, that are designed for use in connection with "specified sexual activities." (3740)

SEXUALLY ORIENTED BUSINESS: An adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult motel, adult motion picture theater, adult theater, nude model studio, sexual encounter center, or any combination of the foregoing. (2618, 3740, 5367)

SPECIFIED ANATOMICAL AREAS: Means (a) Human genitals in a state of sexual arousal; (b) the appearance of the cleft of the buttocks, anus, male or female genitals, or areola of the female breast; or (c) a state of dress which fails to opaquely cover the cleft of the buttocks, anus, male or female genitals, or the areola of the female breast. (2618, 3740)

SPECIFIED SEXUAL ACTIVITIES: Means and includes any of the following: (2618)

(A) The fondling or other erotic touching of human genitals, pubic region, buttocks, anus, or female breasts, that occurs directly and not through clothing; or (2618, 3740)

(B) Sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, or sodomy; or (2618)

(C) Masturbation, actual or simulated; or (2618)

(D) Excretory functions as part of or in connection with any of the activities set forth in (A) through (C) above. (2618)

SUBSTANTIAL ENLARGEMENT: Of a sexually oriented business, the increase in floor area occupied by the business by more than twenty-five percent (25%) as the floor area exists on August 1, 1991. (2618)

TAX AND LICENSING ADMINISTRATOR: The City of Mesa Tax and Licensing Administrator or the designated agent of the Tax and Licensing Administrator. (2618)

TRANSFER OF OWNERSHIP OR CONTROL: Of a sexually oriented business, means and includes any of the following: (2618)

(A) The sale, lease, or sublease of the business; (2618)

(B) The transfer of securities which constitute a controlling interest in the business, whether by sale, exchange, or similar means; or (2618)

(C) The establishment of a trust, gift, or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control. (2618)

6-16-2: CLASSIFICATION

Sexually oriented businesses are classified as follows: (2618)

(A) Adult arcades; (2618)

(B) Adult bookstores or adult video stores; (2618)

(C) Adult cabarets; (2618)

(D) Adult motels; (2618)

(E) Adult motion picture theaters; (2618)

(F) Adult theaters; (2618)

(G) Nude model studios; (2618, 5367)

(H) Sexual encounter centers; (2618, 3740, 5367)

(I) Adult novelty stores; and (3740, 5367)

(J) Any combination of classifications set forth above. (2618, 3740, 5367)

6-16-3: LICENSE REQUIRED

(A) It is unlawful: (2618)

1. For any person to operate a sexually oriented business without a valid sexually oriented business license issued by the Tax and Licensing Administrator pursuant to this Chapter. (2618)

2. For any person who operates a sexually oriented business to employ a person to work for the sexually oriented business who is not licensed as a sexually oriented business employee by the Tax and Licensing Administrator pursuant to this Chapter. (2618)

3. For any person to obtain employment with a sexually oriented business without having secured a sexually oriented business employee license pursuant to this Chapter. (2618)

(B) An application for a license must be made on a form prescribed by the Chief of Police. An application for a sexually oriented business license must be accompanied by a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches (+/-6"). (2618)

(C) All applicants must be qualified according to the provisions of this Chapter. The application may request and the applicant shall provide such information (including fingerprints) as to enable the Chief of Police and the Tax and Licensing Administrator to determine whether the applicant meets the qualifications established in this Chapter. (2618)

(D) If a person who wishes to operate a sexually oriented business is an individual, the person must sign the application for a license as applicant. If a person who wishes to operate a sexually oriented business is other than an individual, each individual who has a ten percent (10%) or greater interest in the business must sign the application for a license as applicant. Each applicant must be qualified under Section 6-16-4 and each applicant shall be considered a licensee if a license is granted. (2618)

6-16-4: ISSUANCE OF LICENSE

(A) Within thirty (30) days after receipt of a completed application, the Tax and Licensing Administrator will approve or deny the issuance of a license to an applicant for a sexually oriented business license and to an

applicant for a sexually oriented business employee license. The Tax and Licensing Administrator will approve the issuance of a license to an applicant unless the Chief of Police finds one (1) or more of the following to be true: (2618)

1. An applicant is under eighteen (18) years of age. (2618)

2. An applicant has been employed in a sexually oriented business in a managerial capacity in Mesa or any other jurisdiction within the preceding twelve (12) months and has demonstrated an inability to operate or manage a sexually oriented business in a peaceful and law-abiding manner, thus necessitating action by law enforcement officers. (2618)

3. The application and investigation fee or the license fee required by this Chapter have not been paid. (2618)

4. An applicant or an applicant's spouse is overdue in payment to the City of taxes, fees, fines, or penalties assessed against or imposed upon the applicant or the applicant's spouse in relation to a sexually oriented business. (2618)

5. An applicant has failed to provide information required in order to determine the qualifications of the applicant under this Chapter for issuance of the license or has falsely answered a question or request for information on the application form. (2618)

6. An applicant or the proposed establishment is in violation of or is not in compliance with this Chapter or the Mesa City Code. (2618)

7. An applicant or an applicant's spouse has been convicted of a violation of a provision of this Chapter, other than the offense of operating a sexually oriented business without a license, within two (2) years immediately preceding the application. The fact that a conviction is being appealed shall have no effect. (2618)

8. An applicant or an applicant's spouse has been convicted of a crime: (2618)

    (a) Involving: (2618)

        (i) Any of the following offenses as described in Chapter 14 of the Arizona Criminal Code: (2618)

            (aa) Indecent exposure; (2618)

            (bb) Public sexual indecency; (2618)

            (cc) Public sexual indecency to a minor; (2618)

            (dd) Sexual abuse; (2618)

            (ee) Sexual conduct with a minor; (2618)

            (ff) Sexual assault; (2618)

            (gg) Sexual assault of a spouse; (2618)

            (hh) Molestation of a child; (2618)

            (ii) Lewd and lascivious acts. (2618)

        (ii) Any of the prostitution or pandering offenses described in Chapter 32 of the Arizona Criminal Code; (2618)

(iii) Any of the following offenses as described in Chapter 35 of the Arizona Criminal Code: (2618)

(aa) Production, publication, sale, possession, and presentation of obscene items; (2618)

(bb) Coercing acceptance of obscene articles or publications; (2618)

(cc) Furnishing obscene or harmful items to minors; (2618)

(dd) Public display of explicit sexual materials; (2618)

(ee) Creation, transportation, or distribution of obscene films, photographs, or motion pictures of minors; (2618)

(ff) Obscene or indecent telephone communications to minors for commercial purposes; (2618)

(iv) Any of the following offenses described in Chapter 35.1 of the Arizona Criminal Code: (2618)

(aa) Commercial sexual exploitation of a minor; (2618)

(bb) Sexual exploitation of a minor; (2618)

(cc) Admitting minors to public displays of sexual conduct; (2618)

(v) Any of the following offenses described in Chapter 36 of the Arizona Criminal Code: (2618)

(aa) Incest; (2618)

(bb) Contributing to delinquency and dependency; (2618)

(cc) Permitting life, health, or morals of a minor to be imperiled by neglect, abuse, or immoral associations; (2618)

(vi) Any offense described in Chapter 1 of Title 6 of the Mesa City Code pertaining to obscene live performances; (2618)

(vii) Any similar offenses to those described above under the criminal or penal code of Arizona, other states, Mesa, other cities, or other countries; (2618)

(viii) Facilitation, attempt, conspiracy, or solicitation to commit any of the foregoing offenses; (2618)

(b) For which: (2618)

(i) Less than two (2) years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense; (2618)

(ii) Less than five (5) years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or (2618)

(iii) Less than five (5) years have elapsed since the date of the last conviction or the date of release from confinement for the last conviction, whichever is the later date, if the convictions are of two (2) or more misdemeanor offenses or combination of misdemeanor offenses occurring within any twenty-four- (24-) month period. (2618)

(B) The fact that a conviction is being appealed shall have no effect on the disqualification of the applicant or applicant's spouse. (2618)

(C) An applicant who has been convicted or whose spouse has been convicted of an offense listed above may qualify for a sexually oriented business license only when the time period required by this Section has elapsed. (2618)

(D) The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the classification or classifications of sexually oriented business for which it is granted, the expiration date, and the address of the sexually oriented business. All licenses, both those pertaining to the business as well as those applicable to employees, shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that they may be easily read at any time. (2618)

6-16-5: FEES

(A) Every application for a sexually oriented business license (whether for a new license or for renewal of an existing license) shall be accompanied by a five hundred dollar ($500.00) nonrefundable application and investigation fee. (2618)

(B) In addition to the application and investigation fee required above, every sexually oriented business that is granted a license (new or renewal) shall pay to the Tax and Licensing Administrator an annual nonrefundable license fee of five hundred dollars ($500.00) within thirty (30) days of license issuance or renewal. (2618)

(C) Every application for a sexually oriented business employee license (whether for a new license or for renewal of an existing license) shall be accompanied by a fifty dollar ($50.00) nonrefundable application and investigation fee. (2618)

(D) All license applications and fees shall be submitted to the Tax and Licensing Administrator. (2618)

6-16-6: INSPECTION

(A) A business license applicant or licensee shall permit representatives of the Police Department or any other city, county, state, or federal department, division, or agency that enforces codes, regulations, or statutes relating to human health, safety, or welfare or structural safety to inspect the premises of a sexually oriented business for the purpose of ensuring compliance with the law at any time it is occupied or open for business. (2618)

(B) A person who operates a sexually oriented business or his agent or employee commits an offense if such person refuses to permit a lawful inspection of the premises by the persons designated above. (2618)

(C) The provisions of this Section do not apply to areas of an adult motel which are currently being rented by a customer for use as a permanent or temporary habitation. (2618)

6-16-7: EXPIRATION OF LICENSE

All licenses shall expire one (1) year from the date of issuance and may be renewed only by making application as provided in Section 6-16-3. Application for renewal should be made at least thirty (30) days before the expiration date, and when made less than thirty (30) days before the expiration date, the expiration of the license will not be affected. (2618)

6-16-8: SUSPENSION

The Tax and Licensing Administrator is authorized to, and will, suspend a sexually oriented business license and a sexually oriented business employee license for a period not to exceed thirty (30) days if the Chief of Police determines that a business licensee or an employee has: (2618)

(A) Violated or is not in compliance with this Chapter or with the Uniform Codes adopted by the City in Title 4 of the Mesa City Code, including those relating to buildings, electricity, plumbing, fire safety, and mechanical equipment; or (2618)

(B) Engaged in excessive use of alcoholic beverages while on the sexually oriented business premises; or (2618)

(C) Refused to allow an inspection of the sexually oriented business premises as authorized by this Chapter; or (2618)

(D) Permitted illegal gambling by any person on the sexually oriented business premises; or (2618)

(E) Demonstrated an inability to operate or manage a sexually oriented business in a peaceful and law-abiding manner, thus necessitating action by law enforcement officers. (2618)

6-16-9: REVOCATION

(A) The Tax and Licensing Administrator is authorized to, and will, revoke a license if a cause of suspension in Section 6-16-8 occurs and the license has been suspended within the preceding twelve (12) months. (2618)

(B) The Tax and Licensing Administrator is authorized to, and will, revoke a sexually oriented business license and a sexually oriented business employee license if the Chief of Police determines that a business licensee or an employee: (2618)

1. Gave false or misleading information in the material submitted to the City during the application process; or (2618)

2. Has allowed the possession, use, or sale of controlled substances on the premises; or (2618)

3. Has allowed prostitution on the premises; or (2618)

4. Has operated or worked in the sexually oriented business during a period of time when the licensee's license was suspended; or (2618)

5. Has been convicted of an offense listed in Section 6-16-4(A)8(a) for which the time period required in Section 6-16-4(A)8(b) has not elapsed; or (2618)

6. On two (2) or more occasions within a twelve- (12-) month period, a person or persons committed an offense occurring in or on the licensed premises of a crime listed in Section 6-16-4 for which a conviction has been obtained and the person or persons were employees of the sexually oriented business at the time the offenses were committed; or (2618)

7. Has allowed any act of sexual intercourse, sodomy, oral copulation, masturbation, or oral sexual contact to occur in or on the licensed premises. The term "oral sexual contact" shall have the same meaning as defined in Section 13-1401, Arizona Criminal Code; or (2618)

8. Is delinquent in payment to the City of hotel occupancy taxes, ad valorem taxes, sales taxes, or the annual license fee or any other fee or tax related to the sexually oriented business or other business of the licensee. (2618)

(C) The fact that a conviction is being appealed shall have no effect on the revocation of the license. (2618)

(D) Subsection (B)7 (above) does not apply to adult motels as a grounds for revoking the license unless the business licensee or employee allowed the act of sexual intercourse, sodomy, oral copulation, masturbation, or sexual contact to occur in a public place or within public view. (2618)

(E) When the Tax and Licensing Administrator revokes a license, the revocation shall continue for one (1) year, and the licensee shall not be issued a sexually oriented business or employee license for one (1) year from the date revocation became effective. If, subsequent to revocation, the Tax and Licensing Administrator finds that the basis for the revocation has been corrected or abated, the licensee may be granted a license if at least ninety (90) days have elapsed since the date the revocation became effective. If the license was revoked under Subsection (B)5 (above), an applicant may not be granted another license until the appropriate number of years required under Section 6-16-4(A)8(b) has elapsed. (2618)

6-16-10: APPEAL

If the City denies the issuance of a license or suspends or revokes a license, the City will send to the applicant or licensee by certified mail, return receipt requested, written notice of the action and the right to an appeal. Upon receipt of written notice of the denial, suspension, or revocation, the person whose application for a license has been denied or whose license has been suspended or revoked shall have the right to appeal to the State Superior Court. An appeal to the Arizona Superior Court must be filed within thirty (30) days after the receipt of notice of the decision of the City. Licensee's filing of an appeal or other legal action, in good legal order, challenging the City's decision to suspend or revoke a license under this Chapter shall have the effect of maintaining the status quo until a judge hears and decides the merits of the matter. Applicant's filing of an appeal or other legal action, in good legal order, challenging the City's decision not to issue a license under this Chapter shall result in the City issuing a temporary license to applicant to operate until a judge hears and decides the merits of the matter. The licensor shall bear the burden of proof in court. (2618, 3740)

6-16-11: TRANSFER OF LICENSE

A licensee shall not transfer a license to another nor shall a business licensee operate a different classification of a sexually oriented business than that designated in the application or operate a sexually oriented business under the authority of a license at any place other than the address designated in the application. No sexually oriented business shall be operated under any name or conducted under any designation or classification not specified in the license for that business. (2618)

6-16-12: LOCATION OF A SEXUALLY ORIENTED BUSINESS

(A) A person commits an offense if that person operates or causes to be operated a sexually oriented business in any zoning district other than the C-3 district (General Commercial), the M-1 district (Limited Industrial), the M-2 district (General Industrial), or the PEP district (Planned Employment Park) as defined and described in the Mesa Zoning Ordinance. (2618)

(B) A person commits an offense if the person operates or causes to be operated a sexually oriented business within one thousand feet (1,000') of: (2618)

1. A church; or (2618)
2. A public or private elementary or secondary school; or (2618)
3. A public or private day care center, preschool, nursery, kindergarten, or similar use; or (2618)
4. A boundary of a residential district as defined in this Chapter; or (2618)
5. A public park; or (2618)
6. The property line of a lot devoted to a residential use as defined in this Chapter; or (2618)
7. An establishment having an Arizona Spirituous Liquor License with any of the following classifications: Bar License (Series #06), Beer and Wine Bar License (Series #07), or the equivalent of such licenses. (2618)

(C) A person commits an offense if that person causes or permits the operation, establishment, substantial enlargement, or transfer of ownership or control of a sexually oriented business within one thousand feet (1,000') of another sexually oriented business. (2618)

(D) A person commits an offense if the person causes or permits the operation, establishment, or maintenance of more than one (1) sexually oriented business in the same building, structure, or portion thereof or the increase of floor area of any sexually oriented business in any building, structure, or portion thereof containing another sexually oriented business. (2618)

(E) For the purposes of Subsection (B) (above), measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as a part of the premises where a sexually oriented business is conducted to the nearest property line of the premises of a church, a public or private elementary or secondary school, a public or private day care center, preschool, nursery, kindergarten or similar use, or establishment having the designated Spirituous Liquor License or to the nearest boundary of an affected public park, residential district, or residential lot. The presence of city, county, or other political boundaries shall be irrelevant for purposes of calculating and applying the distance requirements of this Chapter. (2618)

(F) For purposes of Subsection (C) of this Section, the distance between any two (2) sexually oriented businesses shall be measured in a straight line, without regard to intervening structures or objects or political boundaries, from the closest exterior wall of the structure in which each business is located. (2618)

(G) Any sexually oriented business that fails to comply with Subsections (A), (B), or (C) of this Section but was lawfully operating before this Chapter took effect shall not be deemed to be in violation of this Chapter when this Chapter takes effect. However, such business will only be permitted to continue in noncompliance with Subsections (A), (B), or (C) (above) for a period not to exceed three (3) years from the effective date of this Chapter, unless sooner terminated for any reason or voluntarily discontinued for a period of thirty (30) days or more. In addition, during those three (3) years, such business shall not be increased, enlarged, extended, or altered, except that the business may be changed so as to fully comply with this Chapter. (2618)

(H) A sexually oriented business lawfully operating is not rendered in violation of this Chapter by the location, subsequent to the granting or renewal of the sexually oriented business license, of a church, public or private elementary or secondary school, public park, residential district, or residential lot within one thousand feet (1,000') of the sexually oriented business. This provision applies only to the renewal of a valid license and does not apply when an application for a license is submitted after a license has expired or has been revoked. (2618)

6-16-13: EXEMPTION FROM LOCATION RESTRICTIONS

(A) If the City denies the issuance of a license to an applicant because the location of the sexually oriented business establishment is in violation of Section 6-16-12 of this Chapter, then the applicant may, not later than ten (10) calendar days after receiving notice of the denial, file with the City Clerk a written request for an exemption from the locational restrictions of Section 6-16-12. (2618)

(B) If the written request is filed with the City Clerk within the ten- (10-) day limit, the Board of Adjustment shall hear and consider the request. The Board of Adjustment shall set a date for the hearing within sixty (60) days from the date the written request is received. (2618)

(C) The Board shall hear and consider evidence offered by any interested person. The formal rules of evidence do not apply. (2618)

(D) The Board of Adjustment may, in its discretion, grant an exemption from the locational restrictions of Section 6-16-12 if it makes the following findings: (2618)

1. That the location of the proposed sexually oriented business will not have a detrimental effect on nearby properties or be contrary to the public safety or welfare; and (2618)

2. That the granting of the exemption will not violate the spirit and intent of this Chapter of the City Code; and (2618)

3. That the location of the proposed sexually oriented business will not downgrade the property values or quality of life in the adjacent areas or encourage the development of blight; and (2618)

4. That the location of an additional sexually oriented business in the area will not be contrary to any program of neighborhood conservation nor will it interfere with any efforts of neighborhood renewal or restoration; and (2618)

5. That all other applicable provisions of this Chapter and the Mesa City Code will be observed. (2618)

(E) If the Board grants the exemption, the exemption is valid for one (1) year from the date of the Board's action. Upon the expiration of an exemption, the sexually oriented business is in violation of the locational restrictions of Section 6-16-12 until the applicant applies for and receives another exemption. (2618)

(F) If the Board denies the exemption, the applicant may not reapply for an exemption until at least twelve (12) months have elapsed since the date of the Board's action. (2618)

(G) The granting of an exemption does not exempt the applicant from any provisions of this Chapter other than the locational restrictions of Section 6-16-12. (2618)

6-16-14: HOURS OF OPERATION

No sexually oriented business, except for an adult motel, may remain open at any time between the hours of one (1:00) A.M. and six (6:00) A.M. on weekdays and Saturdays and one (1:00) A.M. and ten (10:00) A.M. on Sundays. (2618)

6-16-15: RESERVED

Editor's note—Ord. No. 5367 repealed § 6-16-15.

6-16-16: ADDITIONAL REGULATIONS FOR NUDE MODEL STUDIOS

(A) A nude model studio shall not employ any person under the age of eighteen (18) years. (2618)

(B) A person under the age of eighteen (18) years commits an offense if the person appears semi-nude or in a state of nudity in or on the premises of a nude model studio. It is a defense to prosecution under this Subsection if the person under eighteen (18) years was in a rest room not open to public view or persons of the opposite sex. (2618)

(C) A person commits an offense if the person appears semi-nude or in a state of nudity or knowingly allows another to appear semi-nude or in a state of nudity in an area of a nude model studio premises which can be viewed from the public right-of-way. (2618)

(D) A nude model studio shall not place or permit a bed, sofa, or mattress in any room on the premises, except that a sofa may be placed in a reception room open to the public. (2618)

6-16-17: ADDITIONAL REGULATIONS FOR ADULT THEATERS AND ADULT MOTION PICTURE THEATERS

(A) A person commits an offense if the person knowingly allows a person under the age of eighteen (18) years to appear semi-nude or in a state of nudity in or on the premises of an adult theater or adult motion picture theater. (2618)

(B) A person under the age of eighteen (18) years commits an offense if the person knowingly appears semi-nude or in a state of nudity in or on the premises of an adult theater or adult motion picture theater. (2618)

(C) It is a defense to prosecution under Subsections (A) and (B) of this Section if the person under eighteen (18) years was in a rest room not open to public view or to persons of the opposite sex. (2618)

6-16-18: ADDITIONAL REGULATIONS FOR ADULT MOTELS

(A) Evidence that a sleeping room in a hotel, motel, or similar commercial establishment has been rented and vacated two (2) or more times in a period of time that is less than ten (10) hours creates a rebuttable presumption that the establishment is an adult motel as that term is defined in this Chapter. (2618)

(B) A person commits an offense if, as the person in control of a sleeping room in a hotel, motel, or similar commercial establishment that does not have a sexually oriented business license, such person rents or subrents a sleeping room to another and within ten (10) hours from the time the room is rented, such person rents or subrents the same sleeping room again. (2618)

(C) For purposes of Subsection (B) of this Section, the terms "rent" or "subrent" mean the act of permitting a room to be occupied for any form of consideration. (2618)

6-16-19: REGULATIONS PERTAINING TO EXHIBITION OF SEXUALLY EXPLICIT FILMS OR VIDEOS

(A) A person who operates or causes to be operated a sexually oriented business, other than an adult motel, which exhibits on the premises in a viewing room of less than one hundred fifty (150) square feet of floor space a film, video cassette, or other video reproduction which depicts "specified sexual activities" or "specified anatomical areas" shall comply with the following requirements: (2618)

1. Upon application for a sexually oriented business license, the application shall be accompanied by a diagram of the premises showing a plan thereof specifying the location of one (1) or more manager's stations and the location of all overhead lighting fixtures and designating any portion of the premises in which patrons will not be permitted. A manager's station may not exceed thirty-two (32) square feet of floor area. The diagram shall also designate the place at which the license will be conspicuously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram should be oriented to the north or to some designated street or object and should be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches (±6"). The Chief of Police may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared. (2618)

2. The application shall be sworn to be true and correct by the applicant(s). (2618)

3. No alteration in the configuration or location of a manager's station may be made without the prior approval of the Chief of Police or his designee. (2618)

4. It is the duty of the owners and operator of the premises to ensure that at least one (1) licensed employee is on duty and situated in each manager's station at all times that any patron is present inside the premises. In the case of an adult arcade (or "peep show"), it is the duty of the owners and operator of the premises and the licensed employees who are present to ensure that no more than one (1) person occupies a viewing room or "peep" booth at any time and that all other entrances to peep booths or other viewing areas (and to the aisles, walkways, and hallways leading to peep booths or other viewing areas) are maintained free of any obstruction such as a door, curtain, panel, board, slat, ribbon, cord, rope, chain, or other device. (2618)

5. The interior of the premises shall be configured in such a manner that there is an unobstructed view from a manager's station of every area of the premises to which any patron is permitted access for any purpose, excluding rest rooms. Rest rooms may not contain video reproduction equipment. If the premises have two (2) or more manager's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one (1) of the manager's stations. The view required in this Subsection must be by direct line of sight from the manager's station. (2618)

6. It shall be the duty of the owners and operator, and it shall also be the duty of all employees present in the premises, to ensure that the line of sight and view area specified in Subsection 5 (above) remains unobstructed by any doors, walls, merchandise, display racks, or other materials at all times that any patron is present in the premises and to ensure that no patron is permitted access to any area of the premises which has been designated as an area in which patrons will not be permitted in the application filed pursuant to Subsection (1) of this Section. (2618)

7. The premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one (1) footcandle as measured at the floor level. (2618)

8. It shall be the duty of the owners and operator, and it shall also be the duty of all employees present on the premises, to ensure that the illumination described above is maintained at all times that any patron is present in the premises. (2618)

9. No operator, owner, or employee shall allow openings of any kind to exist between viewing rooms or booths. (2618)

10. No person shall make or attempt to make an opening of any kind between viewing booths or rooms. (2618)

11. The operator or owner shall, during each business day, regularly inspect the walls between the viewing booths to determine if any openings or holes exist. (2618)

12. The owner or operator shall cause all floor coverings in viewing booths to be nonporous, easily cleanable surfaces, with no rugs or carpeting. (2618)

13. The owner or operator shall cause all wall surfaces and seating surfaces in viewing booths to be constructed of, or permanently covered by, nonporous, easily cleanable material. No wood, plywood, composition board, or other porous material shall be used within forty-eight inches (48") of the floor. (2618)

(B) A person having a duty under Subsections 1 through 13 of Subsection (A) (above) commits an offense if the person fails to fulfill that duty. (2618)

6-16-20: CRIMINAL PENALTY

Any person who violates any provision of this Chapter or of the Mesa City Code as amended by this ordinance shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a term not to exceed six (6) months, or by both such fine and imprisonment. (2618)

6-16-21: CIVIL INJUNCTION

Any person who violates this Chapter or the Mesa City Code as amended by this Ordinance is subject to a civil suit for injunction as well as prosecution for criminal violations and liability for licensing sanctions such as suspension or revocation. (2618)

6-16-22: LIABILITY AND LIABILITY FOR THE CONDUCT OF OTHERS

(A) The offenses and violations described in this Chapter require proof, direct or indirect, of culpable mental state. (2618, 3740)

(B) A licensee of a sexually oriented business is jointly and individually liable for violations of and offenses under this Chapter by the employees of the sexually oriented business and for all civil and criminal sanctions or remedies for such violations and offenses, including but not limited to, license suspension or revocation, prescribed herein, when that licensee knew, or a reasonable licensee would have known, of those violations and offenses. (2618, 3740)

6-16-23: EXCLUSIONS

The licensing requirements of this Chapter shall have no application, no effect upon, and shall not be construed as applying to escorts, escort assistants or escort bureaus with a valid, unsuspended license to operate issued pursuant to Mesa City Code Title 6, Chapter 24. (5367)

CHAPTER 17

TATTOOING AND BODY PIERCING

6-17-1: DEFINITIONS

For the purposes of this Section, the term "tattoo" shall mean a permanent mark or design made on the skin by a process of pricking and ingraining an indelible pigment into or under the skin or by raising scars. The term "body piercing" shall mean cutting, injecting, poking, or inserting instruments upon or under the skin for the purpose of attaching earrings, rings, jewelry, jeweled studs, or other metallic, glass, or plastic object for the purpose of wearing such object. (2981, 3425)

6-17-2: UNLAWFUL ACT

It is unlawful for anyone to body pierce or cause a body pierce or to place a tattoo or cause a tattoo to be placed on any other person under the age of eighteen (18) years except with the consent of a parent or legal guardian. The parent or guardian must be present at the time of body piercing and/or tattooing. (2981, 3425)

6-17-3: PENALTY

Among other penalties that may apply, any person, firm, or corporation that violates any provision of this ordinance shall be guilty of a misdemeanor. Upon conviction, persons shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500) or by imprisonment for a period not to exceed six (6) months, or by such fine and imprisonment. Upon conviction, firms or corporations shall be punished by a fine not to exceed twenty thousand dollars ($20,000). Each violation continued shall be a separate offense, punishable as described above. (2981, 3425)

CHAPTER 18
CONTESTED PROPERTY DISPUTES

6-18-1: DISPUTES INVOLVING PROPERTY IN THE POSSESSION OF THE POLICE DEPARTMENT

(A) When the Police Department possesses property that it has obtained in the normal course of work but no longer needs, the Police Department shall determine whether disposal of the property is provided for by law. (2993)

(B) If disposal of the property described in Subsection (A) of this Section is not provided for by law, then the Police Department shall determine whether a dispute exists over the ownership of the property. If no dispute exists, then the Police Department may return the property to the person claiming ownership. (2993)

(C) If property described in Subsection (A) of this Section is claimed by more than one (1) person, then the Police Department shall send a request to the Mesa City Court for a hearing to be conducted to determine the ownership of the property. The Police Department shall mail copies of the request to each person who is claiming ownership. (2993)

(D) Upon receiving a request, the City Court shall schedule a hearing on the matter and shall provide written notification of the hearing date, time, and location to each person who is claiming ownership of the property. The hearing shall be informal. The technical rules of evidence shall not apply; decisions shall be based upon the preponderance of the evidence. The City Court shall allow testimony to be given orally or through sworn written affidavits. (2993)

(E) Final decisions of the City Court are subject to appeal to Superior Court pursuant to A.R.S. Title 12, Chapter 6, Article 6. When the time for appeal has expired or, if the decision of the City Court is appealed, when a final order is issued by the Superior Court, the City Court shall notify the party awarded the property that they may obtain the property from the Police Department. (2993)

CHAPTER 19
RECOVERY OF COSTS FOR POLICE SERVICES (REPEALED)*

CHAPTER 20
OPERATING A MOTOR VEHICLE ON UNPAVED SURFACE

6-20-1: DEFINITIONS

For purposes of this Section, unless the context otherwise requires:

(A) **MOTOR VEHICLE** means every motorized, electric, or other self-propelled conveyance by which any person or property is or may be transported or drawn upon the ground, excepting devices moved by human power or used exclusively upon stationary rails or tracks. Motor vehicle includes all on and off-road vehicles, all-terrain vehicles and off-road recreational vehicles. (4820)

***Editor's note**—Ord. No. 4942 repealed Chapter 19.

(B) **UNPAVED ROAD** means any road, equipment path, or driveway that is not covered by asphalt, asphaltic concrete, or concrete pavement. (4820)

(C) **UNSTABILIZED SURFACE** means any surface that is not covered by:

1. Asphaltic concrete,
2. Cement concrete,
3. Penetration treatment of bituminous material and seal coat of bituminous binder and a mineral aggregate, or
4. A stabilization method approved by the City Manager or Designee. (4820)

6-20-2: VIOLATIONS

It is unlawful to operate or drive or leave any motor vehicle, on an unpaved road or unstabilized surface that is:

(A) Not a public or private road, street or lawful easement; and

(B) That is closed by the landowner by rule or regulation of a federal agency, this state, a county or a municipality or by a proper posting. (4820)

6-20-3: EXCEPTIONS

(A) This Chapter 20 shall not apply to the operation of vehicles used in the normal course of business or the normal course of government operations. (4820)

(B) This Chapter 20 shall not apply to operations directed by utilities for operation, distribution and transmission systems provided that both of the following conditions are satisfied:

1. Operations are performed with a marked company vehicle; and
2. If operations are performed with a personal vehicle, then identification of the company shall be visible and readable by the public. (4820)

6-20-4: PENALTIES

(A) As mandated by A.R.S. § 9-500.27, a person who violates this Chapter 20 of the ordinance is guilty of a Class 3 Misdemeanor. (4820)

(B) As mandated by A.R.S. § 9-500.27, if a person is deemed to have violated this Chapter 20 in addition to or in lieu of a fine, a judge may order the person to perform at least eight (8) but not more than twenty-four (24) hours of community restitution or to complete an approved safety course related to the off-highway operation of motor vehicles, or both. (4820)

CHAPTER 21
FIREWORKS AND PERMISSIBLE CONSUMER FIREWORKS*

6-21-1: PURPOSE

The intent of this Chapter is to protect the health, safety, and welfare of the citizens of Mesa from the use and sale of fireworks and permissible consumer fireworks to the fullest extent authorized by Arizona Revised Statutes (A.R.S.) § 36-1601 et seq.
(Ord. No. 5735, § 1, 10-17-22)

6-21-2: DEFINITIONS

(A) The following words, terms, and phrases, when used in this Chapter, have the meanings ascribed to them in this Section except where the context clearly indicates a different meaning:

(1) **DISPLAY FIREWORK:** Means as defined by A.R.S. § 36-1601.

(2) **FIREWORKS:** Means as defined by A.R.S. § 36-1601.

(3) **PERMISSIBLE CONSUMER FIREWORKS:** Means as defined by A.R.S. § 36-1601.

(4) **SUPERVISED PUBLIC DISPLAY:** Means a monitored performance of display fireworks open to the public and authorized by permit by the City of Mesa Fire and Medical Chief or designee.

(B) All references to Arizona Revised Statutes in this Chapter refer to the statute as amended or replaced.
(Ord. No. 5735, § 1, 10-17-22)

6-21-3: FIREWORKS AND PERMISSIBLE CONSUMER FIREWORKS PROHIBITED; EXCEPTIONS

(A) The use or possession of fireworks within the City of Mesa corporate limits is unlawful except as authorized by Arizona Revised Statutes, Title 36, Chapter 13, Article 1, or other applicable state law.

(B) The use of permissible consumer fireworks within the City of Mesa corporate limits is prohibited on all days and at all times except that permissible consumer fireworks may be used on all the following days and times each year:

(1) May 4th through May 6th between the hours of 8:00 a.m. and 11:00 p.m.

(2) June 24th through July 6th between the hours of 8:00 a.m. and 11:00 p.m., and between the hours of 11:00 p.m. on July 4th and 1:00 a.m. on July 5th.

(3) December 24th through January 3rd between the hours of 8:00 a.m. and 11:00 p.m., and between the hours of 11:00 p.m. on December 31 st and 1:00 a.m. on January 1st.

(4) Second and third days of Diwali.

(5) Any other days and times the use of permissible consumer fireworks cannot be prohibited by the City of Mesa as set forth in A.R.S. § 36-1606(A).

***Editor's note**—Ord. No. 5735, § 1, adopted October 17, 2022, repealed the former Ch. 21, §§ 6-21-1—6-21-5, and enacted a new Ch. 21 as set out herein. The former Ch. 21 pertained to fireworks and derived from Ords. 5021, 5260.

(C) Notwithstanding Subsection (B), the use of permissible consumer fireworks is prohibited, including on the days and times the use is authorized in Subsection (B), during a stage one or higher fire restriction within a one-mile radius of the border of any municipal or county mountain preserve, desert park, regional park, designated conservation area, national forest, or wilderness area.

(D) The use of permissible consumer fireworks is prohibited on property that is owned and controlled by the City of Mesa, excluding public right-of-way, except for supervised public displays of fireworks.

(E) Display fireworks are allowed in the City of Mesa only as supervised public displays receiving a permit granted by the City of Mesa Fire and Medical Chief or designee.

(1) A permit may be denied or revoked during time periods of high fire danger warnings or if the City of Mesa Fire and Medical Chief or designee reasonably determines that a supervised public display of fireworks poses a threat to the health or safety of the public or property.

(2) The City of Mesa Fire and Medical Chief or designee has authority to impose reasonable rules and regulations for granting permits, and conditions on any permits granted.

(3) In addition to permitting requirements, every public display of fireworks shall meet the requirements of A.R.S. § 36-1603 and be of a character and so located, discharged, and fired only after proper inspection and in a manner that does not endanger persons, animals, or property.

(4) It is a violation of this Chapter to: (i) fail to obtain a permit for a supervised public display of fireworks, (ii) fail to meet the requirements of a supervised public display permit, or (iii) use display fireworks in violation of this Chapter or state law.

(F) Nothing in this Section shall be construed to prohibit the use of federally deregulated novelty items, known as snappers, snap caps, party poppers, glow worms, snakes, toy smoke devices, or sparklers, and certain types of toy devices as set forth in A.R.S. § 36-1601(4)(b)(iii).

(Ord. No. 5735, § 1, 10-17-22)

6-21-4: SALE OF FIREWORKS AND PERMISSIBLE CONSUMER FIREWORKS

(A) It is unlawful to sell, offer or expose for sale fireworks within the City of Mesa corporate limits except as authorized by Arizona Revised Statutes, Title 36, Chapter 13, Article 1, or other applicable state law.

(B) No person shall sell permissible consumer fireworks to a person who is under 16 years of age.

(C) No person shall sell permissible consumer fireworks in conflict with state law.

(D) It is unlawful to sell permissible consumer fireworks within the City of Mesa corporate limits on all days except that permissible consumer fireworks may be sold on the following days each year: April 25th through May 6th, May 20th through July 6th, December 10th through January 3rd, two days before the first day of Diwali through the third day of Diwali, and on days and times sales cannot be prohibited by the City of Mesa as set forth in A.R.S. § 36-1606(A).

(Ord. No. 5735, § 1, 10-17-22)

6-21-5: POSTING OF SIGNS BY PERSONS ENGAGED IN THE SALE OF PERMISSIBLE CONSUMER FIREWORKS

(A) Prior to the sale of permissible consumer fireworks, every person engaged in such sales shall prominently display signage that (i) is eight and one-half inches by eleven inches in size, (ii) is on cardstock paper in landscape orientation, and (iii) contains the specific language set forth in A.R.S. § 36-1606(B) for additional signage printed on a contrasting background.

(B) Signs required under this Section shall be placed at each cash register and in each area where permissible consumer fireworks are displayed for sale.

(C) The City of Mesa Fire and Medical Chief or designee shall develop a model sign. The model sign shall be filed with the Mesa City Clerk's Office.

(Ord. No. 5735, § 1, 10-17-22)

6-21-6: AUTHORITY TO ENFORCE VIOLATIONS; PENALTY

(A) The City of Mesa Fire and Medical Chief and Mesa Police Chief, or their designees, each has the authority to issue civil complaints to enforce civil violations of this Chapter. A peace officer and the City Prosecutor, or their designee, each has the authority to issue criminal complaints to enforce criminal violations of this Chapter.

(B) A violation of Sections 6-21-3(A), 6-21-3(C), 6-21-3(E)(3), 6-21-3(E)(4), or 6-21-4 is a class 1 misdemeanor that is subject to a sentence of incarceration not to exceed six (6) months in jail and/or a fine not to exceed twenty-five hundred dollars ($2,500), exclusive of penalty assessments prescribed by law, for each count upon which a conviction, is obtained. The court shall order a person convicted of a violation of Sections 6-21-3(A), 6-21-3(C), 6-21-3(E)(3), 6-21-3(E)(4), or 621-4 to pay a fine not less than one thousand dollars ($1,000) for each conviction.

(C) A violation of Sections 6-21-3(B), 6-21-3(D), 6-21-5(A), or 6-21-5(B) is a civil offense punishable by a fine of five hundred dollars ($500) for each violation.

(D) Habitual Offender.

(1) A person who commits a civil violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on three (3) separate dates within a thirty-six (36) month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be guilty of a class 1 criminal misdemeanor as a habitual offender. For purposes of calculating the thirty-six (36) month period under this Subsection (D), the dates of the commission of the offenses are the determining factor.

(2) Upon conviction of a violation as a habitual offender pursuant to Subsection (D)(1), the court may impose a sentence of incarceration not to exceed six (6) months in jail and/or a fine not to exceed twenty-five hundred dollars ($2,500), exclusive of penalty assessments prescribed by law, for each count upon which a conviction is obtained. The court shall order a person who has been convicted of a violation as a habitual offender to pay a fine not less than one thousand dollars ($1,000) for each conviction.

(E) All owners, managers, operators, or other persons in control of a business offering fireworks or permissible consumer fireworks for sale are jointly and individually liable for compliance with this Chapter.

(F) The penalties provided for in this Section are in addition to any other enforcement remedies the City of Mesa may have under City ordinances and state law.

(Ord. No. 5735, § 1, 10-17-22)

CHAPTER 22
CONVENIENCE STORES

6-22-1: PURPOSE OF CHAPTER

The purpose of this Chapter is to protect the health, safety, and welfare of the citizens of the City of Mesa by reducing the occurrence of crime, preventing the escalation of crime, and increasing the successful prosecution of crime that occurs in convenience stores in the City. To this end, this Chapter establishes a registration program for convenience stores and provides requirements relating to security of the stores. (5056)

6-22-2: DEFINITIONS

In this Chapter, the following words and phrases shall have the meanings stated in this Section unless the context otherwise requires: (5056)

(A) **AGGREGATE AREA:** Means the area contained within the perimeter of the inside surface of the exterior walls. (5279)

(B) **CERTIFICATE OF REGISTRATION:** Means a certificate of registration issued by the Chief under this Chapter to the owner or operator of a convenience store. (5056)

(C) **CHIEF:** Means the Chief of Police of the City of Mesa or the designated agents of the Chief of Police. (5056)

(D) **CONVENIENCE STORE:** Means retail establishments that sell a limited line of groceries, prepackaged food items, tobacco and tobacco products, magazines, and other household goods, primarily for off-premises consumption and typically having extended hours of operation in a small building of less than 7,500 square feet. This definition includes small retail stores located on the same parcel as, or operated in conjunction with, a service station. (5056)

(E) **DROP SAFE:** Means a cash management device in which money can be deposited without the depositor having immediate access to the contents. (5056)

(F) **EMPLOYEE:** Means any person who performs any service on the premises of a convenience store on a full-time, part-time, temporary or contract basis (including managers), whether or not the person is denominated an employee, independent contractor, agent, or otherwise. Employee does not include a person exclusively on the premises for repair, maintenance or cleaning of the premises or for the delivery of goods to the premises. (5056)

(G) **GRANDFATHERED CONVENIENCE STORE:** Means a convenience store constructed and in existence prior to September 12, 2011 that has not been remodeled since September 12, 2011. (5279)

(H) **HEIGHT MARKER:** Means a measuring strip that may be attached on or near a door frame of a convenience store to aid in identifying the height of a person entering or exiting the convenience store. (5056)

(I) **MANAGER:** Means the person designated in the registration application filed under this Chapter as being responsible for the daily operation of a convenience store. (5056)

(J) **NEWLY CONSTRUCTED CONVENIENCE STORE:** means a convenience store built on vacant land or rebuilt on the existing foundation of a demolished building whose permit applications for the newly constructed convenience store were received and accepted by the City of Mesa Building Official on or after September 12, 2011. (5279)

(K) **NOTICE:** Means any written notice that the Chief is required to give an applicant or registrant under this Chapter. (5056)

(L) **PERSON:** Means any individual, corporation, organization, partnership, association, or any other legal entity. (5056)

(M) **POLICE CALLS FOR SERVICE:** Means the number of calls to the Mesa Police Department for criminal or suspected criminal activity. (5056)

(N) **REGISTERED AGENT:** Means the person identified in the registration application filed under this Chapter who is authorized to receive on behalf of the convenience store any legal process or notice required or provided for in this Chapter. (5056)

(O) **REGISTRANT:** Means a person issued a certificate of registration for a convenience store under this Chapter and includes all owners, lessees and operators of the convenience store identified in the registration application filed under this Chapter. (5056)

(P) **REMODELED:** Means any convenience store undergoing either of the following on or after September 12, 2011: (I) an increase in the floor area of an existing convenience store by fifty percent (50%) or more; or (II) alterations where the work area exceeds fifty percent (50%) of the aggregate area of the building. (5279)

6-22-3: AUTHORITY OF CHIEF

The Chief shall implement and enforce this Chapter and may establish rules, regulations, or procedures as necessary to carry out the purpose of this Chapter. (5056)

6-22-4: DELIVERY OF NOTICES

A notice is deemed to be delivered: (1) on the date the notice is hand delivered to the applicant, registrant, or the registered agent of the applicant or registrant; or (2) when placed in the United States mail with postage affixed thereto and addressed to the applicant, registrant, or the registered agent of the applicant or registrant at the address provided for in the registration applicant. Delivery of the notice to any applicant or registrant on the application or the registered agent shall constitute sufficient notice to all registrants. (5056)

6-22-5: REGISTRATION REQUIRED

(A) Each convenience store within the City of Mesa must have a valid certificate of registration within thirty (30) calendar days after it has opened for business. (5056)

(B) A registrant shall obtain a new certificate of registration within thirty (30) calendar days after any change in the information contained in the application for a certificate of registration for a convenience store, including, but not limited to, any changes in ownership of the convenience store, and any changes in the registered agent, manager, or emergency contact person for the convenience store. If the convenience store holds an Alternative Security Plan at the time that the change of information is provided, the Chief shall review the Plan to determine whether it shall remain effective. (5056)

6-22-6: CERTIFICATE OF REGISTRATION

(A) To obtain a certificate of registration for a convenience store, a person must submit to the Chief a notarized application on a form provided by the Mesa Police Department. The applicant must be the person who will own, operate, or manage the convenience store. (5056)

(B) Convenience stores that are not required to implement the security measures identified in Section 6-22-10(D) shall include a listing of any security measures under 6-22-10(D) that are in place in their stores. (5056, 5279)

6-22-7: ISSUANCE, DENIAL, AND DISPLAY OF CERTIFICATE OF REGISTRATION

(A) The Chief shall issue to the applicant a certificate of registration for a convenience store if the Chief determines that the applicant has complied with all requirements for issuance of the certificate of registration. (5056)

(B) If the Chief determines that the requirements of Section 6-22-6 have not been met, the Chief shall deliver written notice to the applicant that the application is denied and shall include in the notice the reason for denial and a statement informing the applicant of the right of appeal pursuant to Section 6-22-13. (5056)

(C) A certificate of registration must be displayed in a conspicuous manner and location in the convenience store that is visible to the public inside the store. The certificate of registration must be presented upon request to the Chief or any other peace officer or regulatory officer or official having responsibility for enforcement of this Code for examination. (5056)

6-22-8: EXPIRATION AND RENEWAL OF CERTIFICATE OF REGISTRATION

(A) A certificate of registration for a convenience store expires two (2) years after the date of issuance. (5056)

(B) A certificate of registration may be renewed by making application in accordance with Section 6-22-6. A registrant shall apply for renewal at least thirty (30) calendar days before the expiration of the certificate of registration. (5056)

6-22-9: REVOCATION OF CERTIFICATE OF REGISTRATION

(A) The Chief may revoke a certificate of registration for a convenience store if the Chief determines that any registrant made a false statement as to a material matter in the application or in a hearing concerning the certificate of registration. The Chief may also revoke a certificate of registration for a convenience store if any registrant, agent or employee, at registrant's convenience store has been found responsible (whether by admission, default or after a hearing) of three or more violations of this Chapter within a period of thirty-six months. (5056, 5279)

(B) A Notice of Revocation shall be sent to the registrant. The Notice shall include the reason for the revocation, the date the Chief orders the revocation, and a statement informing the registrant of the right to appeal pursuant to Section 6-22-13. The revocation is final unless the registrant files an appeal with the City Manager or designee within ten (10) calendar days after Notice of Revocation is delivered to the registrant. The appeal shall be in writing and shall state the grounds for the appeal. The City Manager, or designee, shall schedule a hearing within thirty (30) calendar days of receipt of the appeal and render a decision within sixty (60) calendar days of the hearing. The revocation is stayed pending a final determination following the appeal. (5056, 5279)

6-22-10: ASSESSMENT; SECURITY MEASURES APPLICABILITY; GRANDFATHERED CONVENIENCE STORES

(A) Assessment. The Police Department shall have the authority to assess every convenience store in every odd year to determine the number of calls for police service per year. (5056, 5279)

(B) Applicability of Security Measures. In addition to all other requirements of this Chapter, newly constructed convenience stores and remodeled convenience stores shall comply with the security measures set forth in this Section. (5279)

(C) Grandfathered Convenience Stores. A grandfathered convenience store is not required to comply with the security measures set forth in this Section unless the store has had an average of thirty (30) or more calls for police service per year for the four (4)-year period immediately preceding an assessment by the Police Department. If a grandfathered convenience store required to comply with the security measures in this Section due to calls for service is determined not to have had an average of thirty (30) or more calls for police service per year for the four (4)-year period immediately preceding a subsequent assessment, then the requirement that the grandfathered convenience store comply with the security measures in this Section is suspended. If the grandfathered convenience store is again determined to have had an average of thirty (30) or more calls for police service in the four (4)-year period immediately preceding an assessment subsequent to suspension of the requirement to comply with the security measures, then the grandfathered convenience store shall forever be required to comply with the security measures. (5279)

(D) Security Measures: Newly constructed convenience stores, remodeled convenience stores, and grandfathered convenience stores identified under Paragraph C of this Section shall comply with the following security measures: (5056, 5279)

1. Security Signs: (5056, 5279)

   (a) Metal "NO TRESPASSING" signs shall be posted on each of the exterior sides of the building. Each sign shall state "NO TRESPASSING" in both English and Spanish with letters that are at least two inches tall. Each NO TRESPASSING sign must also state "A.R.S. 13-1502." The signs may contain additional language as required by law and must be in a format approved by the Chief. For convenience stores located in a strip mall and not having more than two (2) exterior walls, one (1) of the above-mentioned metal "NO TRESPASSING" signs shall be affixed to the back door side of the building. (5279)

   (b) NO TRESPASSING signs shall be posted at each public entrance and exit of a convenience store. Each sign shall state "NO TRESPASSING" in both English and Spanish with letters that are at least one inch tall. Each "NO TRESPASSING" sign must also state "A.R.S. 13-1502." The signs may contain additional language as required by law and must be in a format approved by the Chief. (5279)

   (c) One (1) current Trespass Enforcement Program sticker provided by the Mesa Police Department shall be affixed to the glass front door next to or below the entrance door handle. (5279)

   (d) A sign stating "Store is Under Video Surveillance" in letters at least one (1) inch high must be posted at each public entrance and exit of the convenience store and must be readable from inside and outside the store. (5279)

   (e) A sign indicating that an alarm system is in use must be posted at each public entrance and exit of the convenience store. (5279)

   (f) A sign indicating that employees cannot open the drop safe and that employees have minimum cash on hand must be posted at each public entrance and exit of the convenience store. (5279)

2. Height Marker: A height marker must be posted at each public exit door of a convenience store depicting the actual height of an individual exiting the store. (5056)

3. Store Visibility: A registrant shall provide for and maintain visibility in a convenience store as follows: (5056)

   (a) An unobstructed line of sight that allows a view of and from the cash register and sales transaction area through all windows and public entrance and exit doors must be maintained in the convenience store at all times. The unobstructed line of sight must, at a minimum, extend from four (4) feet above the ground to at least seven (7) feet above the ground. For purposes of measurements in this Subsection only, measurements shall be made from the inside of the store, starting at the floor and measuring upward. (5056, 5279)

   (b) All public entrance and exit doors of a convenience store must be made of glass or another transparent material. (5056)

4. Employee Safety Training: (5056, 5279)

   (a) A registrant shall ensure that safety training is provided for and completed by employees of the convenience store in compliance with this Section. The safety training shall consist of completing a safety training program offered by the City of Mesa Police Department or a comparable training program approved by the Mesa Police Department. (5056, 5279)

   (b) Each employee of a convenience store (with the exception of temporary employees) must complete the safety training program within thirty (30) calendar days after beginning employment with the convenience store. (5056, 5279)

   (c) Each employee of a convenience store (with the exception of temporary employees) shall complete the safety training program every twenty-four (24) months or as otherwise directed by the Chief. (5279)

   (d) If the convenience store hires temporary employees (either directly or through a temporary agency), those employees must complete the safety training program prior to beginning work. (5056, 5279)

   (e) Each employee shall sign the "Mesa Police Department Approved Convenience Store Employee Safety Training Completion Statement" provided by the Mesa Police Department, which indicates the date and time of completion of the safety training. The employee's supervisor shall also sign the Training Completion Statement verifying that the employee completed the required safety training. Copies of each employee's statements must be maintained on file in the convenience store or electronically for six (6) months after the employee leaves employment with the convenience store or until the next bi-annual training is completed by that employee. The statements must be made available to the Chief or any other peace officer immediately upon request. (5056, 5279)

5. Telephone Access: Landline telephone access must be provided at each convenience store for use by employees to contact law enforcement or other emergency response if needed. (5056)

6. Trespass Enforcement Program Affidavit:

   (a) A registrant shall execute a Trespass Enforcement Program affidavit, on a form provided by the Chief, which authorizes the police department to enforce, on behalf of the registrant, all applicable trespass laws on the premises of the convenience store. This form expires two (2) years from the date of the application. A renewal application for this affidavit shall be submitted thirty (30) calendar days prior to the expiration date. (5056)

   (b) A Trespass Enforcement Log will be kept in the premises at all times out of public view, but accessible to staff and representatives of the Mesa Police Department on request. This log is a form provided by the Mesa Police Department where the trespassed individuals, along with their pertinent information, are listed for future reference in case of any further violations. (5056, 5279)

7. General Safety Conditions:

   (a) Exterior entrances to the convenience store shall be illuminated with a minimum of five (5) foot candles, which equals five (5) lumens per square foot, of light at ground level to six (6) feet vertical from dusk to dawn. (5056)

(b) Existing exterior lamps provided on the building and in the parking areas for security of patrons and employees shall be repaired within forty-eight (48) hours when the light is not operational to maximize the lighting efficiency. (5056)

(c) If the convenience store has outdoor pay phones, they must be lit from dusk to dawn with a minimum of five (5) foot candles, which equals five (5) lumens per square foot, of light. (5056)

(d) The exterior refuse area of the store must have lighting from dusk to dawn that has a minimum of five (5) foot candles, which equals five (5) lumens per square foot of light. In lieu of having such lighting, a convenience store may employ one of the following measures: (i) have a fully functioning and operational professional grade automatic motion detector; or (ii) have a company policy in writing, acknowledged in writing by store employees, which prohibits employees from going to and from the exterior refuse area during hours of darkness. The written policy and all written employee acknowledgments of such policy must be made available to the Chief or any other police officer immediately upon request. (5279)

(e) Any graffiti that may appear on the registrant's property shall be removed or covered within forty-eight (48) hours of discovery or when notice is given by the Police Department. (5056)

(f) Anytime the lobby or area open to the public is unattended and void of customers, the lock on the entry doors must be engaged. A "Reopen in 10 Minutes" or similar sign shall be placed on the customer entrance door during this time. An audible door alarm on entry doors that can be heard in each individual area of the store can serve as an alternative to locking the entry doors. Employees are then required to make every effort to return to the lobby or area open to the public as soon as the door alarm is activated, so as not to leave the area unattended when occupied by customers. (5056, 5279)

(g) Eight (8) inch tall address numbers must be installed in the form of paint, vinyl, plastic or other manmade material, wood or metal and maintained 1) on each street facing side of building; 2) on a stand-alone sign; or 3) posted above each entrance door for emergency address identification. (5056, 5279)

(h) Coolers containing beer or other alcoholic beverages will be secured or locked from public access from 2:00 a.m. to 6:00 a.m. (Monday through Sunday). (5056, 5279)

8. Surveillance Camera System: (5056, 5279)

(a) A registrant shall provide, maintain, and operate a minimum of two (2) color digital high resolution surveillance cameras inside the convenience store. (5279)

(b) A registrant shall provide, maintain, and operate a minimum of two (2) color or black and white digital high resolution surveillance cameras on the exterior of the building viewing the parking lot and/or gas pump area. (5279)

(c) Each camera must be capable of providing a digital image that clearly depicts the facial features of the person being filmed. The recorded image must be of such clarity, quality, and detail that it is useful in identifying a person suspected of committing a crime. (5056, 5279)

(d) One (1) interior camera must be positioned to provide coverage of the person operating the cash register and shall be positioned to provide a clear, full facial view of any person who approaches the cash register.

(e) One (1) interior camera must be positioned to provide a clear view of each individual entering or exiting the main public entrance of the store. The coverage of the cameras required by this Subsection must remain unobstructed by any display, sign, or other item. (5056, 5279)

(f) All cameras must remain unobstructed by any display sign or other item. (5279)

(g) Each camera must be operating and recording at all times, including hours when the store is not open for business. (5056, 5279)

(h) Each camera must be operated in a fixed position and not in a panning motion. (5279)

(i) Each camera must display the correct date and time of each recording. (5056, 5279)

9. Video Recording and Storage:

(a) One (1) or more digital video recording devices must be used to record images from each surveillance camera in the convenience store. Each recording device must be kept in a secured location that is remote from the surveillance cameras. (5056)

(b) The video recording devices must be designed, equipped, and operated, at a minimum, to digitally record images from the surveillance cameras every time motion occurs in the convenience store, whether or not the store is open for business. (5056)

(c) All digital video recordings must be maintained for a least fifteen (15) calendar days. (5056)

(d) A digital video recording must be made available to the Chief or any other peace officer for viewing as soon as possible but no later than seventy-two (72) hours after being requested. (5056)

10. Alarm System: A registrant shall provide, maintain, and operate an alarm system in the convenience store. (5056)

(a) A convenience store must have a silent panic or holdup alarm system for which a valid alarm license is held in compliance with Title VI, Chapter 15 of this Code. The system must, at a minimum, include a panic button located within reach of the cash register and out of view of the customer. The panic button must generate a silent alarm signal indicating a holdup or other life-threatening emergency requiring an immediate police department response. (5056)

11. Drop Safes: A registrant shall provide and maintain drop safes and signs indicating the use of drop safes in the convenience store. (5056)

(a) A convenience store shall have a cash accountability policy mandating the maximum amounts of cash that can be kept in cash registers. (5056)

(b) A drop safe must be bolted to the floor of the convenience store. A drop safe may have a time-delay mechanism to allow small amounts of change to be removed. (5056)

12. Right to Require Additional Security Measures: The Chief shall continue to monitor the number of calls for police service of those convenience stores that have implemented the security measures

required in Section 6-22-10. If the Chief determines that a convenience store continues to have excessive calls for police service despite compliance with all security measures identified in 6-22-10, the Chief may order the convenience store to take additional security measures targeted at the specific criminal act(s) or suspected criminal activity(s) occurring at the convenience store by issuing a Notice to the registrant of additional measures required. Any such measures must be implemented in accordance with the timeframes set forth in the Notice. (5056, 5279)

6-22-11: INSPECTIONS

Property Inspections: Newly constructed convenience stores, remodeled convenience stores, and grandfathered convenience stores required to comply with the security measures under Section 10 of this Chapter pursuant to 6-22-10(C) shall permit, without notice during business hours and at other reasonable times upon request, representatives of the Police Department to inspect the interior and exterior of the convenience store, including but not limited to surveillance camera systems (if applicable), for the purpose of ensuring compliance with this Chapter. (5056, 5279)

6-22-12: ALTERNATIVE SECURITY PLAN

(A) Grandfathered convenience stores that are required to comply with the security measures set forth in Section 10 of this Chapter may request that the Chief approve an alternative Safety and Security Plan in lieu of one or more of the security measures required by Section 6-22-10. The Alternative Security Plan will (1) outline which security measures described in Section 6-22-10 will be implemented; (2) outline what alternative safety and security measures the registrant will implement and (3) explain how this Alternative Security Plan will meet the goals of this ordinance, including reducing crime; preventing the escalation of crime; and increasing the successful prosecution of crime that does occur. (5056, 5279)

(B) If the Chief determines that the Alternative Security Plan will meet the goals of this ordinance, he may approve the Alternative Security Plan. In determining whether to approve or disapprove the request for an Alternative Security Plan, the Chief will consider the following criteria: (5056)

1. The proposed security measures; (5056)
2. The number of calls for police service from the registrant's convenience store; (5056)
3. They types of calls for police service from the registrant's convenience store; (5056)
4. The cost of compliance with the security measures required by Section 6-22-10; and (5056)
5. The overall safety and security issues in the surrounding neighborhood. (5056)

(C) The Chief may grant an Alternative Security Plan subject to such terms and conditions as the Chief deems reasonably necessary to protect the health and safety of employees and the public, in light of the "Purpose" section of this Chapter. (5056)

(D) Eligibility

1. Convenience stores constructed or remodeled after the effective date of this Chapter are not eligible for an Alternative Security Plan. (5056)

2. A person who owns or operates a convenience store subject to this Chapter may request an Alternative Security Plan at any time. Forms for requesting an Alternative Security Plan will be provided by the Mesa Police Department. (5056)

(E) Review of Alternative Security Plan: If a registrant notifies the City of a change of registration information or if a registrant or convenience store receives a citation and the convenience store holds an Alternative Security Plan, the Chief shall review the Plan to determine whether it shall remain effective. Any changes to the Plan that are deemed necessary by the Chief to protect the health and safety of employees and the public, in light of the "Purpose" section of this Chapter shall be made within the timeframe set forth by the Chief. (5056)

6-22-13: APPEALS

If the Chief denies issuance or renewal of a certificate of registration, denies or modifies an Alternative Security Plan, or revokes a certificate of registration, this action is final unless the applicant or registrant files an appeal with the City Manager or designee within ten (10) calendar days after Notice of such decision is delivered to the applicant or registrant. The appeal shall be in writing and shall state the grounds for the appeal. The City Manager, or designee, shall schedule a hearing within thirty (30) calendar days of receipt of the appeal and render a decision within sixty (60) calendar days of the hearing. A revocation of the Certificate of Registration is stayed pending a final determination following the appeal. (5056, 5279)

6-22-14: VIOLATIONS; PENALTIES

(A) A person who violates a provision of this Chapter, or who fails to perform an act required of the person by this Chapter, commits a civil offense. (5056)

(B) All owners, managers, operators, tenants or other persons in control of a convenience store regulated under this Chapter are jointly and individually liable for compliance with this Chapter. (5056)

(C) Any police officer or City employee designated by the City Manager is authorized to commence an enforcement action under the provisions of this Chapter by issuing a uniform civil code complaint citation in substantially the form authorized under Title I of the Mesa City Code. (5056)

(D) When a violation of this Chapter is discovered, a person shall be given a written warning and shall have fourteen (14) days to correct the violation. If the violation is not corrected within fourteen (14) days, a person may be given a citation for a violation of this Chapter after evaluation of the circumstances. Only one warning for a particular violation need be given. Once a person has been given a warning for a particular violation, the person may be repeatedly cited for the same violation without any additional warnings. Once any person has been found responsible (whether by admission, default or after a hearing) for committing violations of this Chapter on three (3) separate dates and within a thirty-six (36) month time period, no additional warnings need be given for any violations of this Chapter. (5056, 5279)

(E) When any person is found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, the court shall order the person to pay a mandatory civil sanction in the amount of one hundred and fifty dollars ($150.00) per violation. When any person is found responsible for any violation of this Chapter, whether by admission, default, or after a hearing, for a second time within thirty-six (36) months of any prior violations of this Chapter, the court shall order the person to pay an enhanced civil

sanction of two hundred and fifty dollars ($250.00) per violation. When any person is found responsible for any violation of this Chapter, whether by admission, default, or after a hearing, for a third time within thirty-six (36) months of any prior violation(s) of this Chapter, the court shall order the person to pay an enhanced civil sanction of five hundred dollars ($500.00) per violation. (5056, 5279)

(F) A person who commits a violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on three (3) separate dates within a thirty-six (36) month period, whether by admission, default, or after a hearing, shall be subject to Class One Criminal Misdemeanor prosecution in the Mesa Municipal Court as a habitual offender. For each violation as a habitual offender, the court may impose a sentence authorized by the laws of the State of Arizona for a Class One Misdemeanor, including incarceration not to exceed six (6) months in jail, a fine not to exceed two thousand five hundred dollars ($2,500.00), and up to three (3) years of unsupervised probation. The court shall order a person who has been convicted of a violation of this Section to pay a fine in the amount of at least five hundred dollars ($500.00) for each violation for which a conviction has been obtained. (5279)

(G) The thirty-six (36) month provision of this Section shall be calculated by the dates the violations were committed. The responsible person shall receive the enhanced sanction upon a finding of responsibility for any violation of this Chapter that was committed within thirty-six (36) months of the commission of another violation for which the responsible party was convicted or otherwise found responsible, irrespective of the order in which the violations occurred or whether the prior violation was civil or criminal. (5279)

(H) Each day in which a violation of this Chapter continues shall constitute a separate offense. (5279)

(I) The penalties provided for in this Section are in addition to any other enforcement remedies that the City may have under City ordinances and state law. Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (5279)

CHAPTER 23
HOTEL REGISTRATION AND RECORDS

6-23-1: DEFINITIONS

In this Chapter the following words and phrases shall have the meanings stated in the Section unless the context otherwise requires:

HOTEL: Any public or private space or structure, building or part of a building or group of buildings including but not limited to any hotel, inn, hostelry, tourist home, house, motel, rooming house, apartment house, trailer, hostel, youth hostel or other place within the City offering lodging designed for or primarily occupied by transients for a fee, rent or in exchange for any form of consideration including money or any other thing of value. It does not include foster homes, rest homes, sheltered care homes, nursing homes, licensed health care facilities, jails, half-way houses, hospitals, asylums, sanitariums, orphanages, prisons or detention facilities. (5033)

OPERATOR: Any person, partnership, corporation or association who owns, leases, controls, manages, operates or is employed by a hotel. (5033)

PRE-APPROVED IDENTIFICATION SYSTEM: A database of information maintained by a hotel's corporate office, such as a gold club membership or frequent stay rewards program, that requires a registrant to register online and identify him-or herself in exchange for certain benefits or perquisites offered by the hotel. (5033)

REGISTRANT: A least one person over the age of eighteen who shall occupy the available lodging at a hotel. In the event of a family or youth group activity requiring the reservation of multiple rooms under one adult name, that adult shall be the registrant for all such rooms. (5033)

REGISTRATION RECORDS: A register maintained by a hotel containing the name and method of payment of every person who rents, pays a fee, or exchanges anything of value to occupy a room in the hotel, for any period of time. Such register shall include all information required by this Chapter. (5033)

RESPONSIBLE PARTY: Any operator who violates provisions of this Chapter or has control over any operator who violates a provision of this Chapter. (5033)

OCCUPANT: A person other than the registrant, who occupies, dwells in, controls or takes possession of available lodging at a hotel for any period of time. (5033)

TRANSIENT: Any person who obtains lodging or the use of any lodging on a temporary basis. (5033)

6-23-2: REGISTRATION AND RECORDS REQUIREMENTS

(A) Operators shall require every registrant to provide evidence of identity: (5033)

1. Through a pre-approved identification system; or (5033)
2. Through credit card payment; and/or (5033)
3. Through a government issued identification or other identification, which contains the following information (5033)
   - (a) Person's full name; (5033)
   - (b) Person's date of birth or age; (5033)
   - (c) Person's residence address; and (5033)
   - (d) Photograph of the person (5033)

(B) Operators shall keep a record of all registrants of the hotel which shall include the name and residence or billing address of the registrant, in addition to the following information: (5033)

1. The day, month, year and time of arrival of the registrant; (5033)
2. The number or location of the room(s) assigned to the registrant; (5033)
3. The date that the registrant and occupant(s) are scheduled to depart; (5033)
4. The rate charged and amount collected for the lodging; and (5033)
5. The method of payment for the lodging. (5033)

(C) In addition, if evidence of identity is provided under Section (A) (3) above, and the registrant pays by cash to occupy the room, operators shall take reasonable steps to verify the identification presented by the registrant and operators shall keep a record of items (A) (3) (b) and (A) (3) (c). (5033)

(D) Operators may request that all registrants provide the make, model and license plate number and state of any vehicle parked on hotel premises, and this information, if provided, shall be kept with the registration records of the hotel. (5033)

6-23-3: MAINTENANCE AND INSPECTION OF RECORDS

(A) Operators shall keep and maintain all registration records required by this Chapter for a period of 30 calendar days from the date of departure. (5033)

(B) No registration record(s) as defined in this Chapter shall be altered, erased or defaced so as to interfere with any inspection of the record. The registration records may be maintained in an electronic format, so long as the records comply with other provisions of this Chapter. (5033)

(C) The Mesa Police Department is hereby authorized to make inspections of the registration records to determine compliance with the provisions of this Chapter, in connection with any lawful investigation or for any other lawful purpose. (5033)

(D) Information contained in the registration records remains the property of the hotel and shall not be subject to public disclosure or considered public record unless such registration records become part of a City record; in such event, such information shall only be disclosed in accordance with public records laws. (5033)

(E) It is unlawful for any operator of a hotel to fail to maintain the registration records required by this Chapter or to fail to make the records available to the Mesa Police Department for inspection or investigation or any other law enforcement purpose upon demand. (5033)

6-23-4: COMMENCEMENT OF AN ENFORCEMENT ACTION; CIVIL VIOLATIONS

(A) Any police officer or City employee designated by the City Manager is authorized to commence an enforcement action under the provisions of this Chapter by issuing a uniform civil code complaint citation in substantially the form authorized under Title 1 of the Mesa City Code. (5033)

(B) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter, or from enforcing this Chapter through notices of violation, warnings or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (5033)

(C) The responsible party shall, within ten (10) days of the issuance of the citation, either pay the civil sanction and the fees, or appear in person or through an attorney before the Civil Hearing Officer and admit or deny the allegations contained in the citation. If the responsible party pays the civil sanction and the fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears and admits the allegations, the Civil Hearing Officer shall enter judgment against the responsible party in the amount of the civil sanction, plus any applicable fees designated in 6-23-5. If the responsible party appears and denies the allegations contained in the citation, the Civil Hearing Officer shall set the matter for hearing. (5033)

(D) If a responsible party served with a citation fails to pay the civil sanction and the fees or to appear on or before the time directed to appear or at the time set for hearing by the Civil Hearing Officer, the allegations in the complaint shall be deemed admitted, and the Civil Hearing Officer shall enter a finding of responsible and a judgment for the City and impose a civil sanction plus the applicable fees and charges in accordance with Section 6-23-5 of this Chapter. (5033)

(E) All proceedings before the Civil Hearing Officer shall be non-adversarial, informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. No prehearing discovery shall be permitted, unless the Hearing Officer determines good cause exists otherwise. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Rules of Procedure for Special Actions of the Arizona Supreme Court, Volume 17B of the Arizona Revised Statutes. (5033)

(F) Any judgment issued pursuant to this Article may be collected as any other civil judgment. (5033)

6-23-5: CIVIL PENALTIES

(A) Any operator who is found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, shall pay a civil sanction of not less than two hundred fifty dollars ($250.00) or more than one thousand five hundred dollars ($1,500.00). A second finding of responsibility for a violation of this Chapter shall result in a civil sanction of not less than two hundred and fifty dollars ($250.00) or more than two thousand five hundred dollars ($2,500.00). A third finding of responsibility for a violation of this Chapter shall result in a civil sanction of not less than five hundred dollars ($500.00) or more than two thousand five hundred dollars ($2,500.00). (5033)

(B) The Hearing Officer may take mitigating factors into consideration such as the size of the hotel to include the number of units and previous calls for police service in determining the amount of the sanction. (5033)

(C) The Hearing Officer may grant cost recovery for law enforcement services and/or establish a surcharge. (5033)

(D) Each subsequent violation shall be a separate offense, punishable as hereinabove described. (5033)

CHAPTER 24

ESCORT SERVICES

6-24-1: PURPOSE AND INTENT

It is the purpose and intent of the City Council, by the adoption of this Chapter, to regulate the escort industry: (1) for the protection of the public from criminal activity (such as prostitution, assault, sex trafficking of adults and children, and human trafficking) and health risks through the spread of sexually transmitted diseases; and (2) for the preservation of the peace and welfare of the community. (5367)

6-24-2: DEFINITIONS

The below words and phrases, wherever used in this Chapter, shall be construed as defined in this Section unless, clearly from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. (5367)

APPLICANT: A person who applies for a license issued pursuant to this Chapter and who, upon approval of the application, will be licensee. (5367)

BUSINESS SERVICES DIRECTOR: The City's Business Services Director or his/her designee. (5367)

CITY: The City of Mesa, Arizona. (5367)

CONSIDERATION: Money or money's worth, payment, reward, fee, salary, commission, profit or anything regarded as a return given or suffered by one for the act or promise of another. (5367)

CONTROLLING PERSON:

(A) Any individual who has a ten percent (10%) or greater interest in the ownership or the earning of the business of a licensee/applicant, and

(B) Any of the following persons for a licensee/applicant: (5367)

1. The president or other executive officers of a corporation; (5367)
2. Each general partner of a limited partnership or any partner of a non-limited partnership; (5367)
3. The managing members or officers of a limited liability company/corporation; or (5367)
4. A sole proprietor. (5367)

ESCORT: Any person, who for consideration acts as, advertises as, or is held out to the public as available for hire to consort with or to accompany another person(s) to social affairs, places of amusement or entertainment, within any place of public or private resort, including within any private quarters. (5367)

ESCORT ASSISTANT: Any person, not an escort, who for consideration: (5367)

1. Assists an escort in the escort's services, including a person who drives an escort, provides scheduling or referral services, provides security services, offers or furnishes an escort, or introduces patrons to escorts; or (5367)
2. Acting as the agent for either an escort bureau or a patron, contacts or meets with patrons or escort bureaus at any location, whether that person is employed by the escort bureau or any other business, or is self-employed. (5367)

ESCORT BUREAU: Any person, who for consideration, furnishes, refers or offers to furnish or refer escorts, or provides, or offers to introduce, patrons to escorts; the definition includes, but is not limited to, services provided by an escort agency or escort service. (5367)

HEARING OFFICER: The Business Services Director or an independent contractor hired by the City to serve as a hearing officer to conduct a hearing and make an impartial determination on an appeal requested by a licenses/applicant pursuant to this Chapter. (5367)

LICENSE: A license issued pursuant to this Chapter. (5367)

LICENSEE: A person who is the holder of a valid license under this Chapter. A licensee includes an agent, servant, employee, controlling person or other person, while acting on behalf of that licensee, whenever such licensee is or would be prohibited from doing or performing an act or acts under this Chapter. (5367)

LICENSING ADMINISTRATOR: The City's Business Licensing and Revenue Collections Administrator or his/her designee. (5367)

LICENSING OFFICE: The division of the City's Business Services Department under the supervision of the City's Licensing Administrator. (5367)

OFFER TO PROVIDE ACTS OF SEXUAL CONDUCT: To offer, propose or solicit to provide sexual conduct to a patron including, but not limited to, conversations, advertisements and acts which would lead a reasonable person to conclude that such acts were to be provided or engaged in. (5367)

PATRON: Any person who agrees, arranges, contacts, pays or attempts to hire the services of an escort, escort assistant or escort bureau. (5367)

PERSON: A corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual (natural person). The definition includes a trustee, receiver, assignee or similar representative. (5367)

POLICE DEPARTMENT: The City of Mesa Police Department. (5367)

PROSTITUTION: Engaging in or agreeing or offering to engage in sexual conduct with another person under a fee arrangement with that person or any other person. (5367)

SEXUAL CONDUCT: Includes any of the following committed by or on a person: (5367)

1. Oral contact with the penis, vulva, breast or anus. This definition does not include an act of breast-feeding by a mother. (5367)
2. Flagellation or torture by or on a person who is nude or clad in undergarments or in revealing or bizarre costume or the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed. (5367)
3. Any direct or indirect fondling or manipulating of any part of the genitals, anus or female breast. (5367)
4. Penetration into the penis, vulva or anus by any part of the body or by any object. (5367)

SEXUALLY ORIENTED ESCORT: An escort who: (5367)

1. Works for (as an agent, employee or independent contractor) or is referred to a patron by a sexually oriented escort bureau; (5367)
2. Engages in advertising to make a reasonable person believe that acts of sexual conduct or sexual stimulation will be provided; (5367)
3. Solicits, offers, agrees to provide or does provide acts of sexual conduct to a patron; or (5367)
4. Accepts an offer or solicitation to provide acts of sexual conduct for a fee, in addition to the fee charged by the escort bureau. (5367)

SEXUALLY ORIENTED ESCORT BUREAU: An escort bureau which: (5367)

1. Engages in advertising to make a reasonable person believe that acts of sexual conduct or sexual stimulation will be provided by an escort; (5367)
2. Uses as escorts persons known to have violated the law regarding prostitution; (5367)
3. Solicits, offers or agrees to provide or does provide escorts who perform acts of sexual conduct to a patron; or (5367)
4. Employs, contracts with, refers or provides to a patron, a sexually oriented escort. (5367)

SEXUAL STIMULATION: To excite or arouse the prurient interest, or to offer or solicit acts of sexual conduct as defined under "offer to provide acts of sexual conduct." (5367)

6-24-3: ADMINISTRATION

It shall be the duty and responsibility of the Licensing Administrator to administer the provision of this Chapter. Pursuant to this duty, the Licensing Administrator shall issue, renew, deny, suspend, or revoke licenses in accordance with this Chapter. (5367)

6-24-4: LICENSE REQUIRED

(A) Any person desiring to engage in, conduct or carry on, in or upon any premises or real property located or situated within the City, the activities of an escort, must first obtain and maintain in effect a current, unrevoked and unsuspended license issued pursuant to the provisions of this Chapter. (5367)

(B) Any person desiring to work or perform services as, conduct, manage, operate, or maintain an escort bureau located or situated within the City, or whose escorts or escort assistants will work in the City, must first obtain and maintain in effect a current, unrevoked and unsuspended license issued pursuant to this Chapter. (5367)

(C) Any person desiring to work or perform services as an escort assistant upon any premises or real property located or situated within the City must first obtain and maintain in effect a current, unrevoked and unsuspended license issued pursuant to this Chapter. (5367)

6-24-5: TERM OF LICENSE; LICENSE RENEWAL

(A) Any license issued pursuant to this Chapter: (i) is non-transferable; (ii) shall be valid for a term of one (1) year from the date of issuance; and (iii) may be renewed by a licensee in accordance with this Chapter and such renewal shall be valid for a term of one (1) year. (5367)

(B) To renew a license, the completed renewal application must be submitted by the licensee, with the applicable fee, no later than forty-five (45) calendar days prior to the expiration of the license; failure to do so shall mean that the license will expire at the end of the term of the license and will be deemed non-renewable. Licensees who fail to apply to renew their license must file a new application for a license and, if their license has expired, may not operate until a new license has been issued. The Licensing Office is authorized to obtain necessary information to update the original license application and to determine whether the license should be renewed. (5367)

6-24-6: LICENSE APPLICATION AND FEES

(A) Any person desiring to obtain a license or renew an existing license to operate as an escort, escort assistant or escort bureau shall make application to the Licensing Office. An application must be accompanied by the applicable application or renewal fee established by the City. All fees are nonrefundable and are not prorated, except as otherwise required by law. Neither the filing of an application for a license, nor payment of an application or renewal fee, shall authorize the conducting of the business of an escort, escort assistant or escort bureau until such license has been granted or renewed. (5367)

(B) Each application for a license shall consist of the information set forth in the Subsection (B). Each applicant must provide, at a minimum, all of the following information, as applicable, in order to obtain a license: (5367)

1. Applicant's full legal name, business name, all telephone numbers and email addresses under which applicant will be doing business or advertising, website(s), business entity information, and legal (business) address of the applicant (which may not be a P.O. Box). (5367)

2. If the applicant is an individual (natural person) or sole proprietorship: (5367)

   (a) Applicant's physical description, and date and place of birth; (5367)

   (b) Applicant's addresses of primary residence and the dates of residence at each address for the ten (10) year period immediately preceding the date of the application; (5367)

   (c) Applicant's business, occupation, and employment history for the ten (10) year period immediately preceding the date of the application, including addresses and dates of employment; and (5367)

   (d) A current picture identification document, issued by a governmental agency, demonstrating applicant has reached the age of eighteen (18) years. (5367)

3. If applicant is applying for a license to operate as an escort bureau: (5367)

   (a) The address at which the applicant desires to do business that is open to the public or patrons; (5367)

   (b) The true names and residential addresses of all persons employed or intended to be employed as escorts; and (5367)

   (c) All business names, trade names or fictitious names under which the escort bureau is doing business or advertising. (5367)

4. The names and contact information of all controlling persons for the applicant. (5367)

5. Any other names by which the applicant or a controlling person is or has been known. (5367)

6. The mailing address for the purpose of receiving City notices and other licensing correspondence relating to the applicant/licensee or the enforcement of this Chapter. (5367)

7. The business or regulatory license history of the applicant for the ten (10) year period immediately preceding the date of application; whether the applicant, while operating under a business or regulatory license issued by a governmental jurisdiction, has had such license revoked or suspended, the reason therefore, and the business activity or occupation subsequent to such suspension or revocation. (5367)

8. Applicant's felony and misdemeanor convictions for the ten (10) year period immediately preceding the date of application, excluding those for civil traffic offenses, and the grounds for such convictions. (5367)

9. For an applicant that is a business entity, the Articles of Incorporation, Articles of Organization or Certificate of Limited Partnership, together with any amendments thereto. (5367)

10. A detailed description of the exact nature of the business to be conducted. (5367)

11. Such other identification or information as the Police Department or Licensing Office may require: (i) in order to discover the truth of the matters required to be set forth in the application; or (ii) that is relevant to the issuance of a license pursuant to the requirements of this Chapter. (5367)

6-24-7: LICENSE APPLICATION INVESTIGATION

(A) Any applicant for a license shall present the completed application to the Licensing Office containing all of the information requested on the application and corresponding documents as prescribed in this Chapter. (5367)

(B) Each person applying for a license and the controlling persons for the applicant shall submit a full set of fingerprints to the City in a manner approved by the Licensing Office. The fingerprints will be submitted to the Arizona Department of Public Safety to be used to obtain a state and federal criminal records check in accordance with A.R.S. § 41-1750 and Public Law 92-544. The Arizona Department of Public Safety is authorized to exchange this fingerprint data with the Federal Bureau of Investigation. (5367)

(C) The Police Department, on behalf of the Licensing Office, will receive and review the criminal history record information resulting from the criminal records check set forth above, including conviction and non-conviction data, of license applicants and controlling persons for the purpose of evaluating the fitness of applicants/licensees and controlling persons in connection with the issuance, renewal, suspension or revocation of a license. Such information shall be used only for the purpose of such evaluation or for the purpose of supporting and defending a denial, non-renewal, suspension or revocation of a license. (5367)

(D) The Police Department shall have a reasonable time within which to investigate the application and background of the applicant and controlling persons. Based on such investigation, the Police Department shall recommend to the Licensing Office approval or denial of the license in accordance with this Chapter. (5367)

6-24-8: ISSUANCE OF LICENSE; CHANGE IN INFORMATION

(A) Every license shall be issued in accordance with the applicable law including, but not limited to, A.R.S. § 41-1080 and A.R.S. Title 9, Chapter 7, Article 4 (Municipal Regulations). No license shall be issued to an individual if the individual does not present one (1) or more of the documents listed in A.R.S. § 41-1080, indicating the individual's presence in the United States is authorized under federal law and complies with the Arizona Legal Workers Act. (5367)

(B) When any change occurs regarding the written information provided to the City required in an application, the applicant/licensee shall give written notification of such change to the Licensing Office within ten (10) calendar days after such change. (5367)

6-24-9: ADDITIONAL REGULATIONS

(A) Any person licensed as provided in this Chapter must operate under the name or conduct business under the designation specified in such license. (5367)

(B) Any escort bureau licensed as provided in this Chapter must only conduct business at the location specified in such license and post their license in a conspicuous place upon the business premises. (5367)

(C) No escort bureau shall employ as an escort any person under eighteen (18) years of age. (5367)

(D) No escort, escort assistant or escort bureau shall furnish any escort or accept employment from any patron or person to be escorted or introduced, who is under eighteen (18) years of age. (5367)

(E) No person is permitted to operate or perform services as a sexually oriented escort or sexually oriented escort bureau, regardless of license. (5367)

(F) Each licensee operating as an escort or escort assistant shall carry their issued license upon his or her person when acting as an escort or escort assistant, and produce the same for inspection upon request, along with a government issued photo identification. (5367)

(G) Escorts are prohibited from: (i) sexual conduct with patrons; (ii) groping the clothing covering a patron's genitals or groping the clothing covering the breasts of a female patron; (iii) touching himself or herself, or asking a patron to himself or herself, on the genitals, buttocks or breasts (of a female patron); or (iv) requesting that a patron take off his or her clothing so as to expose the patron's genitals or breasts (female patron). (5367)

6-24-10: ESCORT BUREAU DUTIES

(A) The escort bureau shall provide to each patron a written contract and receipt of payment for services. The contract shall clearly state the type of services to be performed, the length of time such services shall be performed, the total amount of money such services shall cost the patron, and any special terms or conditions relating to the service to be performed. (5367)

(B) The escort bureau, in terms of permitting consequences, is responsible and liable for the acts of all its employees, independent contractors and agents while working for the escort bureau including, but not limited to, telephone receptionists and escorts who are referred by the escort bureau with the escort is with the patron. (5367)

(C) An escort bureau shall not advertise, offer, solicit, or agree to provide escorts for sexual conduct. An escort bureau shall employ or provide only escorts who possess an escort license issued pursuant to this Chapter. (5367)

(D) No escort bureau may use, do business under, or advertise a telephone number until that number has first been reported to the Licensing Office on a form prescribed by the Licensing Office for that purpose. (5367)

(E) No escort bureau may use a business name, trade name or fictitious name until that name has first been reported to the Licensing Office on a form prescribed by the Licensing Office for that purpose. (5367)

6-24-11: ADVERTISING

No person is permitted to advertise or hold out to the public the availability of an escort, escort assistant or escort bureau without first obtaining a license therefore as provided in this Chapter, whether the actual business of an escort, escort assistant or escort bureau, as defined in this Chapter, is performed. The license number must be prominently displayed in such advertisements and prefaced with the letters "COM" to indicate a City of Mesa license number. This number must be included in all written, audio or electronic media advertisements. (5367)

6-24-12: DENIAL, REVOCATION AND SUSPENSION OF LICENSE

(A) Denial. In addition to any penalties set forth in this Chapter, a license issued pursuant to this Chapter (renewal or new) will only be granted if all of the below requirements of this Subsection (A) are met; the failure to meet any of the requirements will result in denial of the application. (5367)

1. The required fees have been paid. (5367)

2. The application, applicant and activities conform in all respects to the provisions of this Chapter, the ordinances of the City and laws of the State of Arizona. (5367)

3. The applicant has not made a material misrepresentation of fact in the application. (5367)

4. The applicant has provided in a timely manner all information required herein or reasonably necessary for issuance of the license. (5367)

5. Neither the applicant or a controlling person has been convicted, in a court of competent jurisdiction, within the last ten (10) years, of a felony or misdemeanor, involving fraud, prostitution, pimping pandering, lewd conduct, indecent exposure, pornography, sexual misconduct or sexual assault, or any other offense involving moral turpitude. (5367)

6. The applicant has not had a license similar to the one issued pursuant to the provisions of this Chapter issued by another governmental authority, revoked within the ten (10) year period immediately preceding the date of the filing of the application. (5367)

7. The applicant or a controlling person does not owe a current debt to the City related to any open or closed account maintained or formerly maintained with the City (see Mesa City Code Title 1, Section 32). (5367)

8. Applicant or a controlling person does not have: (5367)

   (a) An outstanding warrant for his or her arrest; or (5367)

   (b) Pending charges in a court of competent jurisdiction of the type listed in Section 6-24-12(A)(5). A renewal license may be issued if the licensee or a controlling person has a felony or misdemeanor charge of the aforementioned type pending in a court of competent jurisdiction; however, the issuance of such renewal license shall not prevent the City from taking any action prescribed in this Chapter against the licensee should the licensee or controlling person be convicted of the pending charge. (5367)

(B) Suspension. (5367)

1. In addition to any penalties set forth in this Chapter, a license shall be suspended if, during the term of the license, the Licensing Administrator determines that a licensee or controlling person has

violated any of the provisions of this Chapter; however, the violation of certain provisions of this Chapter, as specifically set forth in Subsection (C) below, will result in revocation, rather than suspension, of a license. (5367)

2. The penalty for a suspension of a license shall be: (5367)

(a) For the first suspension of a license during a twenty-four (24) month period, the license will be suspended up to fourteen (14) calendar days. (5367)

(b) For the second suspension of a license during a twenty-four (24) month period, the license will be suspended a minimum of fifteen (15) calendar days up to a maximum of thirty (30) calendar days. (5367)

(c) For the third suspension of license during a twenty-four (24) month period, the license will be revoked in accordance with Subsection (C) below. (5367)

(C) Revocation. (5367)

1. In addition to any penalties set forth in this Chapter, a license shall be revoked if during the term of the license, the Licensing Administrator determines: (5367)

(a) Licensee or a controlling person is convicted of a felony or misdemeanor criminal offense: (5367)

(i) Involving fraud, prostitution, pimping, pandering, lewd conduct, indecent exposure, pornography, sexual misconduct or sexual assault, or any other offense involving moral turpitude; (5367)

(ii) Involving untrue, fraudulent, misleading, or deceptive advertising; or (5367)

(iii) Having a reasonable relationship to functions of an escort, escort assistant or escort bureau. (5367)

(b) On two (2) or more occasions within a twenty-four (24) month period, an employee, independent contractor or agent of the licensee, while working for the licensee, is convicted of a felony or misdemeanor offense involving fraud, prostitution, pimping, pandering, lewd conduct, indecent exposure, pornography, sexual misconduct or sexual assault, or any other offense involving moral turpitude. For the purpose of this Section 6-24-12(C)(1)(b): (5367)

(i) In applying the twenty-four (24) month provision, the date of the commission of an offense will be used to calculate the time period; and (5367)

(ii) The two (2) or more offenses subjecting the license to revocation do not have to be: (a) violations of the same statute or ordinance so long as they are offenses of the type listed above in Section 6-24-12(C)(1)(b); or (b) committed by the same person, so long as they are committed by an employee, independent contractor or agent of the licensee while working for the licensee. (5367)

2. If a license is revoked, the licensee and controlling persons may not apply for a license for a period of one (1) year from the date of revocation. (5367)

(D) A licensee will be notified of any denial, suspension or revocation of the license via a mailing method capable of tracking delivery. The cause for such denial, revocation or suspension shall be set forth in the notice. The decision to deny, suspend or revoke a license may be appealed in accordance with Section 6-24-13 (Appeals). (5367)

6-24-13: APPEALS

(A) Any party aggrieved by a decision of the Licensing Administrator under this Chapter may appeal the decision by requesting a hearing within ten (10) calendar days of issuance of a notice of the decision from the Licensing Administrator or Licensing Office. Service of any notice issued pursuant to this Chapter shall be complete upon mailing to the address of record for the licensee or applicant on file in the Licensing Office. If a hearing is not requested within ten (10) calendar days of issuance of the notice, the decision of the Licensing Administrator will be deemed final, the aggrieved party having waived their right to appeal the decision by failing to request a hearing. (5367)

(B) The appeal must meet the following requirements: (i) it must be mailed to the Licensing Office and be postmarked no later than ten (10) calendar days after the issuance of the notice of the decision; and (ii) it must set forth the grounds upon which the person is appealing the decision. If an appeal meets the requirements of this Subsection (B), a hearing with a Hearing Officer will be scheduled within thirty (30) calendar days of receipt of the appeal, or at such later time agreed upon by the aggrieved party and the City. The failure of an appeal to meet the aforementioned requirements shall entitle the Business Services Director to deny the appeal, making the decision of the Licensing Administrator final. (5367)

(C) All proceedings before a Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. No prehearing discovery shall be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. The filing of an appeal will suspend the decision of the Licensing Administrator, except for decisions to deny a new application, until such time as the Hearing Officer has rendered their decision. (5367)

(D) The Hearing Officer will render a decision within sixty (60) calendar days of a hearing, unless the Hearing Officer provides notice to the parties that additional time is needed, but in no event shall a Hearing Officer take longer than one hundred twenty (120) calendar days to render a decision. The decision of the Hearing Officer is final. An appeal of the Hearing Officer's decision may be made in accordance with A.R.S. Title 12, Chapter 7, Article 6 (Judicial Review of Administrative Decisions). (5367)

6-24-14: PENALTIES

(A) Among other penalties that may apply, any person who violates any provision of this Chapter, whether or not the act is specifically stated as being unlawful, shall be guilty of a class one misdemeanor. Upon conviction, persons shall be punished by a fine not to exceed the amounts set forth in the Section 6-24-14(A) and may also be punished by an imprisonment for a period not to exceed six (6) months. (5367)

1. A person convicted of any offense listed in this Chapter shall pay a fine not less than five hundred dollars ($500.00). (5367)

2. If within a period of thirty-six (36) months a person is convicted of a second violation of this Chapter, the person shall pay a fine not less than one thousand dollars ($1,000.00). (5367)

3. If within a period of thirty-six (36) months a person is convicted of three or more times of a violation of this Chapter, the person shall pay a fine not less than one thousand five hundred dollars ($1,500.00). (5367)

(B) In addition to the fines set forth in Subsection (A), in accordance with A.R.S. § 13-803, upon conviction of a violation of this Chapter, an enterprise (as that term is defined in A.R.S. § 13-105) may be punished by additional fines, so long as the total amount of fines for the conviction of a violation does not exceed twenty thousand dollars ($20,000). (5367)

(C) Each violation continued shall be a separate offense, punishable as described herein. (5367)

(D) The denial, suspension or revocation of a license is not a defense to prosecution. (5367)

6-24-15: EXCLUSIONS

The requirements of this Chapter shall have no application, no effect upon, and shall not be construed as applying to any of the following: (5367)

(A) Employment agency services, except that any employment agency which provides escorts as defined herein, must obtain a license as required by this Chapter. (5367)

(B) A sexually oriented business with a valid, unsuspended license to operate issued pursuant to Mesa City Code Title 6, Chapter 16. (5367)

(C) An organization which is qualified for exemption from taxation of income under A.R.S § 43-1201. (5367)

(D) The participants in an auction held for the purpose of raising funds for a charitable cause or organization at which individuals, who personally receive no consideration, are auctioned off to serve as an escort on a one-time-only basis and where no sexual conduct is advertised to or does in fact take place between the participants; such events are commonly referred to as a date auction. (5367)

CHAPTER 25

MARIJUANA PROHIBITION

6-25-1: PURPOSE

It is the purpose of this Chapter to protect the health, safety, and welfare of the general public. Nothing in this Chapter is intended to promote or condone the sale, cultivation, manufacture, transport, production, distribution, possession, storage, or use of marijuana or marijuana products in violation of any law. It is the intent of the City that this Chapter be read and interpreted in conjunction and compliance with state law pertaining to marijuana.
(Ord. No. 5601, § 1, 12-8-20)

6-25-2: DEFINITIONS

The below words and phrases, wherever used in this Chapter, shall be construed as defined in this Section unless, clearly from the context, a different meaning is intended. Words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. Definitions set forth in this Section apply only to this Chapter and do not affect any other City Codes.

(1) "Arizona Medical Marijuana Program and Adult-Use Marijuana Program" means the rules and regulations established by the Arizona Department of Health Services pursuant to Arizona Revised Statutes, Title 36, Chapters 28.1 and 28.2.

(2) "CITY" means the City of Mesa, Arizona.

(3) "CONSUME," "CONSUMING," and "CONSUMPTION" means the act of ingesting, inhaling, or otherwise introducing marijuana into the human body.

(4) "CONSUMER" means an individual who is at least twenty-one (21) years of age and who purchases marijuana or marijuana products.

(5) "CULTIVATE" and "CULTIVATION" means to propagate, breed, grow, prepare, and package marijuana.

(6) "DELIVER" and "DELIVERY" means the transportation, transfer, or provision of marijuana or marijuana products to a consumer at a location other than the designated retail location of a marijuana establishment.

(7) "DUAL LICENSEE" means an entity that holds both a nonprofit medical marijuana dispensary registration and a marijuana establishment license issued by the Arizona Department of Health Services.

(8) "MANUFACTURE" and "MANUFACTURING" means to compound, blend, extract, infuse or otherwise make or prepare a marijuana product.

(9) "MARIJUANA" means all parts of the plant of the genus cannabis, whether growing or not, as well as the seeds from the plant, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds or resin.

(a) Includes cannabis as defined in Arizona Revised Statutes section 13-3401.

(b) Does not include industrial hemp, the fiber produced from the stalks of the plant of the genus cannabis, oil or cake made from the seeds of the plant, sterilized seeds of the plant that are incapable of germination, or the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink or other products.

(10) "MARIJUANA CONCENTRATE" means resin extracted from any part of a plant of the genus cannabis and every compound, manufacture, salt, derivative, mixture or preparation of that resin or tetrahydrocannabinol. Marijuana Concentrate does not include industrial hemp or the weight of any other ingredient combined with cannabis to prepare topical or oral administrations, food, drink or other products.

(11) "MARIJUANA ESTABLISHMENT" means an entity licensed by the Arizona Department of Health Services to operate all of the following:

(a) A single retail location at which the licensee may sell marijuana and marijuana products to consumers, cultivate marijuana and manufacture marijuana products.

(b) A single off-site cultivation location at which the licensee may cultivate marijuana, process marijuana and manufacture marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

(c) A single off-site location at which the licensee may manufacture marijuana products and package and store marijuana and marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

(12) "MARIJUANA PRODUCTS" means marijuana concentrate and products that are composed of marijuana and other ingredients and that are intended for consumption, including edible products, ointments, and tinctures.

(13) "MARIJUANA TESTING FACILITY" means the Arizona Department of Health Services or other entity that is licensed by the department to analyze the potency of marijuana and test marijuana for harmful contaminants.

(14) "NONPROFIT MEDICAL MARIJUANA DISPENSARY" means as defined in Arizona Revised Statutes Section 36-2801(12).

(15) "PROCESS" and "PROCESSING" means to harvest, dry, cure, trim or separate parts of the marijuana plant.

(Ord. No. 5601, § 1, 12-8-20; Ord. No. 5947, § 1, 7-1-25)

6-25-3: MARIJUANA PROHIBITED ON PUBLIC PROPERTY

It is unlawful to acquire, possess, consume, purchase, sell, cultivate, manufacture, produce, store, transfer, or distribute marijuana or marijuana products on property that is owned and controlled by the City.

(Ord. No. 5601, § 1, 12-8-20)

6-25-4: MARIJUANA ESTABLISHMENT PROHIBITED; EXCEPTION

The operation of a marijuana establishment is prohibited in the City. The prohibition in this Section 6-25-4 does not apply to a dual licensee who:

(1) Is permitted by the State of Arizona to operate both a nonprofit medical marijuana dispensary and a marijuana establishment at a shared location, and

(2) Has not terminated its status as a dual licensee with the Arizona Department of Health Services by forfeiting either its marijuana establishment license or nonprofit medical marijuana dispensary registration.

(Ord. No. 5601, § 1, 12-8-20)

6-25-5: MARIJUANA TESTING FACILITIES PROHIBITED

The operation of a marijuana testing facility is prohibited in the City.
(Ord. No. 5601, § 1, 12-8-20)

6-25-6: MARIJUANA DELIVERY PROHIBITED; EXCEPTION

It is unlawful to facilitate or accept orders for delivery, or to deliver marijuana or marijuana products in the City. The prohibition in this Section 6-25-6 does not apply to a Nonprofit Medical Marijuana Dispensary or Dual Licensee Facility in compliance with Arizona Department of Health Services codified rules and requirements governing the Arizona Medical Marijuana Program and Adult-Use Marijuana Program.
(Ord. No. 5601, § 1, 12-8-20; Ord. No. 5947, § 2, 7-1-25)

6-25-7: CONSUMPTION OF MARIJUANA ON PROHIBITED PROPERTY

It is unlawful, where reasonable notice prohibiting marijuana or marijuana product consumption has been provided, to knowingly consume marijuana or marijuana products in or on property where an individual, partnership, limited liability company, private corporation, private entity or private organization of any character that occupies, owns or controls the property has prohibited consumption of marijuana or marijuana products on the premises.
(Ord. No. 5601, § 1, 12-8-20)

6-25-8: CONSUMPTION OF MARIJUANA IN TRANSPORTATION

It is unlawful to consume marijuana or marijuana products while driving, operating or riding in the passenger seat or compartment of an operating motor vehicle, boat, vessel, aircraft or another vehicle used for transportation.
(Ord. No. 5601, § 1, 12-8-20)

6-25-9: PENALTIES

A violation of this Chapter is a petty offense and shall be adjudicated in the Mesa Municipal Court. For the first petty offense, the fine shall not be less than $150 and not more than $1,500. For the second petty offense, the fine shall not be less than $250 and not more than $2,000. For the third and each subsequent petty offense, the fine shall not be less than $500 and not more than $2,500.
(Ord. No. 5601, § 1, 12-8-20)

6-25-10: ENFORCEMENT

The Mesa Police Department is authorized to enforce the provisions of this Chapter.
(Ord. No. 5601, § 1, 12-8-20)

TITLE 7 FIRE REGULATIONS

CHAPTER 1 FIRE PREVENTION STANDARDS

7-1-1: ASSUMING JURISDICTION OF FIRE PREVENTION STANDARDS

CHAPTER 2 FIRE CODE

7-2-1: ADOPTED BY REFERENCE
7-2-2: AMENDMENTS TO THE 2024 INTERNATIONAL FIRE CODE
7-2-3: PENALTY CLAUSE
7-2-4: DIGITAL/ELECTRONIC DRAWING FILE SUBMISSIONS

CHAPTER 3 FIRE CALLS OUTSIDE CITY LIMITS

7-3-1: FIRE CALLS OUTSIDE CITY LIMITS

CHAPTER 4 COST RECOVERY

7-4-1: PURPOSE
7-4-2: DEFINITIONS
7-4-3: BILLABLE COSTS AND RATES
7-4-4: PROCEDURE FOR BILLING

CHAPTER 1
FIRE PREVENTION STANDARDS

7-1-1: ASSUMING JURISDICTION OF FIRE PREVENTION STANDARDS

Pursuant to the provisions of A.R.S. § 37-1383(A)(5), the City of Mesa, having in effect a nationally recognized fire code, does hereby assume jurisdiction from the State Fire Safety Committee for prescribing and enforcing fire prevention standards throughout the City. Such standards shall not supersede or exempt State or County owned and operated buildings and public schools from the State Fire Safety Committee's established fire prevention standards. (2211)
(Ord. No. 5978, § 2, 12-8-25)

CHAPTER 2
FIRE CODE*

7-2-1: ADOPTED BY REFERENCE

The following publications, which were made a public record on December 1, 2025, by Resolution No. 12444, of the City of Mesa, Arizona, one paper copy and one electronic copy of which are on file and available for public use and inspection with the City Clerk, are hereby adopted by reference and made a part hereof as if fully set forth in this Mesa City Code Section 7-2-1:

2024 International Fire Code and the following appendices to the 2024 International Fire Code:

Appendix B - Fire-Flow Requirements for Buildings

Appendix C - Fire Hydrant Locations and Distribution

Appendix E - Hazard Categories

Appendix F - Hazard Ranking

Appendix I - Fire Protection Systems - Noncompliant Conditions

Appendix L - Requirements for Fire Fighter Air Replacement Systems

Appendix N - Indoor Trade Shows and Exhibitions

Appendix O - Valet Trash and Recycling Collection in Group R-2 Occupancies
(Ord. No. 5978, § 3, 12-8-25)

7-2-2: AMENDMENTS TO THE 2024 INTERNATIONAL FIRE CODE

The following sections of the 2024 International Fire Code, adopted by reference as set forth in Section 7-2-1, are amended as follows:

CHAPTER 1 ADMINISTRATION

101.1 Title. These regulations shall be known as the *Mesa Fire Code*, hereinafter referred to as "this code."

***Editor's note**—Ord. No. 5491 amended Chapter 2 in its entirety to read as herein set out. Former Chapter 2 derived from Ord. Nos. 3076, 3695, 3766, 3767, 4552, 4789, 5021, 5352, 5364.

102.3 Change of Use or Occupancy. A change of occupancy shall not be made unless the use or occupancy is made to comply with the requirements of this code and the Mesa Existing Building Code.

Exception:

Where approved by the fire code official, a change of occupancy shall be permitted without complying with the requirements of this code and the Mesa Existing Building Code, provided that the new or proposed use or occupancy is less hazardous, based on life and fire risk, than the existing use or occupancy.

102.4 Application of Building Code. The design and construction of new structures shall comply with the Mesa Building Code, and any alterations, additions, changes in use or changes in structures required by this code, which are within the scope of the Mesa Building Code, shall be made in accordance therewith.

A new Section 102.7.3 is added as follows:

102.7.3 International Code References. Within the technical codes and the referenced codes and standards therein, specific references to the following International Codes shall be deemed and interpreted to mean the specific City of Mesa Codes as listed herein:

1. International Building Code (IBC) is redefined as Mesa Building Code (MBC)
2. International Fire Code (IFC) is redefined as Mesa Fire Code (MFC)
3. International Residential Code (IRC) is redefined as Mesa Residential Code (MRC)
4. International Mechanical Code (IMC) is redefined as Mesa Mechanical Code (MMC)
5. International Fuel Gas Code (IFGC) is redefined as Mesa Fuel Gas Code (MFGC)
6. International Existing Building Code (IEBC) is redefined as Mesa Existing Building Code (MEBC)
7. International Plumbing Code (IPC) is redefined as Mesa Plumbing Code (MPC)
8. International Swimming Pool and Spa Code (ISPSC) is redefined as Mesa Swimming Pool and Spa Code (MSPSC)
9. International Energy Conservation Code (IECC) is redefined as Mesa Energy Conservation Code (MECC).

103.1 Creation of Agency. The Mesa Fire and Medical Department is hereby created and the official in charge thereof shall be known as the fire code official. The function of the agency shall be the implementation, administration, and enforcement of the provisions of this code.

105.1.2 Types of Permits. There shall be two types of permits as follows:

1. **Operational Permit.** An operational permit allows the applicant to conduct an operation or a business for which a permit is required by Section 105.5 for either:
   1.1 A prescribed period.
   1.2 Until renewed or revoked.
2. **Construction Permit.** A construction permit allows the applicant to install or modify systems and equipment for which a permit is required by Section 105.6.

3. **Fire Safety Operational Permit.** A Fire Safety operational permit is required for any inspectable occupancy within the City of Mesa and requires the applicant to provide contact information annually as required by the fire code official. The permit is valid for one year from date of issuance.

Exception:

Home-based businesses are not required to obtain a Fire Safety Operational Permit.

105.6 Required Construction Permits. The Mesa Administrative Code shall apply to construction permits for work as set forth in Sections 105.6.1 through 105.6.13. Any conflicts with the provisions of Sections 105.6.1 through 105.6.13 and the Mesa Administrative Code, the Mesa Administrative Code shall take precedence.

106.1 Submittals. Construction documents and supporting data shall be submitted electronically for a permit and in such form and detail as required by fire code official. The construction documents shall be prepared by a registered design professional registered by the State of Arizona.

Exception:

The fire code official is authorized to waive the submission of construction documents and supporting data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

112.1 Board of Appeals. Orders, decisions, or determinations made by the fire code official may, within thirty (30) days of the receipt of the notice of the decision, be appealed to the Building Board of Appeals, Section 2-11 of the Mesa City Code. The request for an appeal shall be in writing and shall set forth the specific objections to the decision of the fire code official. This shall form the basis of the appeal. A hearing shall be set as soon as practicable. The decision of the Building Board of Appeals shall be based on the evidence presented.

Sections 112.2 and 112.3 are deleted in their entirety. Any reference to Sections 112.2 through 112.3 shall comply with the Mesa Administrative Code (Mesa City Code, Title 4, Chapter 1).

Sections 113.4 and 114.4 are deleted in their entirety.

Additions to **Section 202 Definitions** are as follows:

GAZEBO. Detached, open-sided, roofed structure.

BATTERY MODULE. Groups of battery cells connected in series or parallel and encapsulated in a protective casing to form an intermediate energy storage unit.

BATTERY MODULE ARRAY. System of battery modules arranged and interconnected in a series and/or parallel configuration to form a larger battery system.

R-5 OCCUPANCIES. As defined by Mesa Building Code 310.6, R-5 occupancies shall comply with the Mesa Residential Code.

RAMADA. See definition for Gazebo.

CHAPTER 3 GENERAL REQUIREMENTS

A new Section 315.3.5 Storage Under Stairways is added as follows:

315.3.5 Storage Under Stairways. Storage is prohibited under stairways.

Exception:

Storage is allowed under interior or exterior stairways when spaces are protected below by one-hour fire-resistance-rated construction as specified in the MBC or are protected by fire sprinklers.

CHAPTER 5 FIRE SERVICE FEATURES

503.1.1 Buildings and Facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45,720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exceptions:

1. The fire code official is authorized to increase the dimension to 300 feet (91,400 mm) where any of the following conditions occur:
    1.1 The building is equipped throughout with approved automatic sprinkler system in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3. (This is an exception the applicant may select and is not intended to be a direct or indirect requirement to install automatic fire sprinklers.)
    1.2 Fire Apparatus access roads cannot be installed because of location on property, topography, waterways, nonnegotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.
    1.3 Group R-3/R-5 or Group U occupancies.
2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

A new 503.1.4 Storage Yards is added as follows:

503.1.4 Storage Yards. Approved fire access shall be provided where required by the fire official for all new and existing, outdoor storage areas. This includes, but is not limited to, storage piles throughout automotive wrecking yards, junkyards, and recycling facilities.

503.2.1 Dimensions. Fire apparatus access roads shall have an unobstructed width of not less than 20 feet (6,096 mm), exclusive of shoulders, except for approved security gates in accordance with Section 503.6, and an unobstructed vertical clearance of not less than 15 feet (4,572 mm).

503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced so as to provide all-weather driving capabilities as determined by the fire code official.

503.2.7 Grade. Whether temporary or permanent, fire apparatus access roads with grades equal to or less than 6% may be designed with materials such as compacted ABC or compacted decomposed granite. All fire apparatus access roads that exceed 6% shall be paved with materials such as concrete or asphalt. All fire apparatus access roads with grades that exceed 12% shall be subject to the approval of the fire code official.

A new Section 503.7 Commercial and Industrial Developments is added as follows:

503.7. Commercial and Industrial Developments.

503.7.1 Building Exceeding Three Stories or 30 Feet in Height. Buildings or facilities exceeding 30 feet (9,144 mm) or three stories in height shall have not fewer than two means of fire apparatus access for each structure.

503.7.2 Buildings Exceeding 124,000 Square Feet in Area. Buildings or facilities having a gross building area of more than 124,000 square feet (11,520 m^2) shall be provided with two separate and approved fire apparatus access roads.

503.7.3 Remoteness. Where two fire apparatus access roads are required, they shall be placed a distance apart equal to not less than one-half of the length of the maximum overall diagonal dimension of the lot or area to be served, measured in a straight line between accesses.

A new Section 503.8 Aerial Fire Apparatus Access Roads is added as follows:

503.8 Aerial Fire Apparatus Access Roads.

503.8.1 Where Required. Where the vertical distance between the grade plane and the highest roof surface exceeds 30 feet (9,144 mm), approved aerial fire apparatus access roads shall be provided. For purposes of this section, the highest roof surface shall be determined by measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of parapet walls, whichever is greater.

Exception:

Where approved by the fire code official, buildings of Type IA, Type IB or Type IIA construction equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 and having firefighter access through an enclosed stairway with a Class I standpipe from the lowest level of fire department vehicle access to all roof surfaces.

503.8.2 Width. Aerial fire apparatus access roads shall have a minimum unobstructed width of 26 feet (7,925 mm), exclusive of shoulders, in the immediate vicinity of the building or portion thereof.

503.8.3 Proximity to Building. One or more of the required access routes meeting this condition shall be located not less than 15 feet (4,572 mm) and not greater than 30 feet (9,144 mm) from the building, and shall be positioned parallel to one entire side of the building. The side of the building on which the aerial fire apparatus access road is positioned shall be approved by the fire code official.

503.8.4 Obstructions. Overhead utility and power lines shall not be located over the aerial fire apparatus access road or between the aerial fire apparatus road and the building. Other obstructions shall be permitted to be placed with the approval of the fire code official.

A new Section 503.9 Residential Access Roads is added as follows:

503.9 Residential Access Roads. Access to residential developments shall comply with this section. A residential development may have public or private streets.

503.9.1 Multiple Access Roads. Residential developments where the number of dwelling units exceed 30 shall be provided with a minimum of two separate and approved fire apparatus access roads.

503.9.2 Parking. Fire department access shall have an unobstructed width of not less than 20 feet (6,096 mm). Road widths shall be as follows:

1. No parking on either side of the roadway when the road is at least 20 feet (6,096 mm) to less than 28 feet (8,534 mm) wide.
2. No parking on one side of the roadway when the road is between at least 28 feet (8,534 mm) and less than 34 feet (10,363 mm) wide.
3. Parking is not restricted when a road is 34 feet (10,363 mm) wide or greater.

503.9.2.1 Maintenance of Parking Restrictions. Maintenance of Mesa Fire and Medical Department access parking restrictions as initiated by Mesa Fire and Medical Department will be the responsibility of the homeowners' association or individual property owner of the property affected by the restriction. Maintenance includes posting and maintaining approved signage and/or red painted curb marking in accordance with Mesa Fire Detail. If there is not a homeowners' association or individual property owner, the City of Mesa shall be responsible for the maintenance of the fire department access parking restrictions.

503.9.3 Queuing Distance. The queuing distance between the open gate swing and arterial roadway shall be no less than 50 feet (15,240 mm) in length to accommodate a fire apparatus. This distance is not required for automatic gates when no manual action is required to close and lock the gate. R-2 occupancies shall provide a minimum of one approved automatic gate.

A new Section 503.9.4 Fire Lane Turning Radius is added as follows:

503.9.4 Fire Lane Turning Radius. Residential developments shall comply with Mesa Fire and Medical Details.

A new Section 503.10 Multiple-Family Residential Developments is added as follows:

503.10 Multiple-Family Residential Developments. Where required by the fire code official, multiple-family residential projects having more than 30 dwelling units shall be equipped throughout with two separate and approved fire apparatus access roads.

505.1 Address Identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background and be illuminated or reflective. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall be a minimum of 12 inches (304.8 mm) high with a minimum stroke width of 2 inches (50.8 mm). Numbers shall not be spelled out. Each character shall not be less than 12 inches (304.8 mm) high with a minimum stroke width of 2 inches (50.8 mm). Address identification shall be approved, and where required by the fire code official, shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.

A new Section 505.1.1 Residential Addressing is added as follows:

505.1.1 Residential Addressing. R-3, R-4 and R-5 address numbers shall be a minimum of 4 inches (101.6 mm) high with a minimum stroke width of ½-inch (12.7 mm).

A new Section 505.1.2 Suite identification is added as follows:

505.1.2 Suite Identification. New and existing buildings shall be provided with approved suite identification. Suite identification shall be legible and stenciled on or near the outside portion of all entrance and exit doors. Suite identification characters shall contrast with their background and shall be Arabic numbers or alphabetical letters. Numbers shall be a minimum of 3 inches (76.2 mm) high with a minimum stroke width of ½-inch (12.7 mm). Numbers shall not be spelled out. Suite identification shall be approved, and where required by the fire code official, shall be provided in additional approved locations to facilitate emergency response.

A new Section 505.1.3 Multiple Tenant Buildings is added as follows:

505.1.3 Multiple Tenant Buildings. Strip malls and other multiple tenant buildings shall have their address and suite number posted on all doors of each tenant space.

A new Section 507.2.1.1. Detectible Underground Locator Device is added as follows:

507.2.1.1 Detectible Underground Locator Device. Underground nonmetallic water piping larger than 2 inches (50.8 mm) in diameter shall be installed with insulated copper tracer wire or other approved conductor located adjacent to the piping. Access shall be provided to the tracer wire or the tracer wire shall terminate above ground at each end of the nonmetallic piping. The tracer wire size shall be not less than 12 AWG, and the insulation type shall be suitable for direct burial.

507.3 Fire flow. Fire flow requirements for buildings or portions of buildings and facilities shall be determined in accordance with Appendix B.

510.1 Emergency Responder Radio Coverage in New Buildings. New buildings shall have approved radio coverage for emergency responders within the building based on the existing coverage levels of the public safety communication systems utilized by the City of Mesa, measured at the exterior of the building. This section shall not require improvement of the existing public safety communication systems. New and existing buildings and structures with the following characteristics shall comply with Section 510:

1. Buildings or structures more than three (3) stories above ground level;
2. Buildings or structures totaling 45,000 square feet (4,181 m^2) or more on any single floor;
3. Buildings or structures that include a basement or other subterranean space totaling 250 square feet (23.2 m^2) or more; or
4. Buildings or structures where the fire code official has determined to have been constructed in a manner or with materials likely to limit the ability of emergency response personnel to effectively use radio communication while within that building or structure.

Exceptions:

1. Where approved by the building official and the fire code official, a wired communication system in accordance with Section 907.2.13.2 shall be permitted to be installed or maintained in lieu of an approved radio coverage system.
2. Where it is determined by the fire code official that the radio coverage system is not needed.

3. In facilities where emergency responder radio coverage is required and such systems, components or equipment required could have a negative impact on the normal operations of that facility, the fire code official shall have the authority to accept an automatically activated emergency responder radio coverage system.

4. Group R-3, R-4, R-5, and U occupancies.

5. Buildings and structures utilizing only wood framing.

6. Buildings and structures less than 35 feet (10,668 mm) above ground level and do not utilize any metal framing or metal roofing.

510.4.1.1 Minimum Signal Strength into the Building. The minimum inbound signal strength shall be sufficient to provide usable voice communications throughout the coverage area as specified by the fire code official. The inbound signal level shall be sufficient to provide not less than a minimum signal strength of -95 dBm in 95% of the area on each floor when transmitting to and from a Public Safety Radio System applicable to the technology for either analog or digital signals.

A new Section 510.4.1.1.1 Minimum Delivered Audio Quality (DAQ) is added as follows:

510.4.1.1.1 Minimum Delivered Audio Quality (DAQ). A minimum DAQ of 3.4 for signal strength and intelligibility when utilizing the Public Safety Radio System. For public safety, the accepted objective is to provide DAQ 3.4 over the service area. DAQ 3.4 is defined as "speech understandable with repetition only rarely required, and with some noise and/or distortion" and represents a Bit Error Rate (BER) of 2%.

510.4.1.1.1.1 Existing Buildings. Where required by the fire code official in existing buildings, emergency responder radio coverage testing must be conducted. If results do not meet minimum signal requirement of Section 510.4.1.1.1, emergency responder radio system shall be installed.

510.4.1.2 Technical Criteria. The fire code official shall maintain a document providing the specific technical information and requirements for the emergency responder communications coverage system. This document shall contain, but not be limited to, the various frequencies required, the location of radio sites, the effective radiated power of radio sites, the maximum propagation delay in microseconds, the applications being used and other supporting technical information necessary for system design.

1. The Topaz Regional Wireless Cooperative (TRWC) will provide which donor site will be utilized for any installation of a 700/800 MHz BDA/DAS system that will be using the TRWC public safety network.

2. The TRWC Administration Manager will approve any enhancements for Simplex VHF Hazard Zone Fire network.

CHAPTER 9 FIRE PROTECTION AND LIFE SYSTEMS

901.4.7.1 Access. Automatic sprinkler system risers, fire pumps and controllers shall be provided with ready access. Where located in a fire pump room or automatic sprinkler system riser room, an exterior door shall be provided, and permitted to be locked provided that the key is available at all times.

A new Section 901.6.1.1 Contractor Qualification is added as follows:

901.6.1.1 Contractor Qualification. The fire code official shall validate contractor qualification and training at least once every 3 years.

Sections 903.2 through 903.2.11.1.3 are deleted in their entirety.

A new Section 903.2 Where Required is added as follows:

903.2 Where Required. Approved automatic sprinkler systems shall be provided in the locations described in this Section.

903.2.1 New Buildings or Structures. All areas of new buildings or structures, and other locations required by this Chapter or the Mesa Fire Code, shall be provided with an automatic fire sprinkler system complying with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3 as applicable.

Exceptions:

Unless the use of the facility otherwise requires automatic fire sprinkler protection, fire sprinkler systems shall not be required for the following:

1. R-3 and R-5 other than care facilities with persons incapable of self-preservation in accordance Section 203.9.3.1.
2. R-4 condition 1.
3. Other buildings or structures accessory to and located on the same lot with R-3, R-4, or R-5 occupancies.
4. Detached non-residential buildings not exceeding 500 square feet (46.5m^2) in floor area and not closer than 5 feet (1,524 mm) to any building or property line.
5. Detached gazebos, ramadas, and canopies not greater than 5,000 square feet (465 m^2) in roof area, with no combustible storage, portable heating devices, or cooking beneath, and not closer than 5 feet to any building, property line, or other shade canopy.
6. Detached non-combustible or NFPA 701 compliant gazebos, ramadas, and canopies not greater than 5,000 square feet (465 m^2) in roof area, with no combustible storage and not closer than 5 feet to any building, property line, or other shade canopies.
7. Detached restroom facilities associated with golf courses, parks and similar uses.
8. Noncombustible portable storage containers used for storage purposes.
9. Exterior covered/enclosed walkways of Type I, II or III construction, with no combustible storage beneath, and with enclosing walls that are at least 50 percent open with fire code official approval.

903.2.2 Group H-5 Occupancies. An automatic sprinkler system shall be installed throughout buildings containing Group H-5 occupancies. The design of the sprinkler system shall not be less than that required under the Mesa Building Code for the occupancy hazard classifications in accordance with Table 903.2.2. Where the design area of the sprinkler system consists of a corridor protected by one row of sprinklers, the maximum number of sprinklers required to be calculated is 13.

TABLE 903.2.2 GROUP H-5 AUTOMATIC SPRINKLER SYSTEM DESIGN CRITERIA	
LOCATION	**OCCUPANCY HAZARD CLASSIFICATION**
Fabrication areas	Ordinary Hazard Group 2
Service corridors	Ordinary Hazard Group 2
Storage rooms without dispensing	Ordinary Hazard Group 2
Storage rooms with dispensing	Extra Hazard Group 2
Corridors	Ordinary Hazard Group 2

903.2.3 Change of Occupancy. Where conditions exceed Section 102.3, an existing building or portion thereof undergoing a change of occupancy shall provide an automatic sprinkler system complying with the requirements of this chapter and Mesa Existing Building Code.

Exception:

Where approved by the fire code official, a change of occupancy shall be permitted without complying with the requirements of this code and the International Mesa Existing Building Code, provided that the new or proposed use or occupancy is less hazardous, based on life and fire risk, than the existing use or occupancy.

903.2.4 Additions. All additions to existing buildings shall be provided with an automatic fire protection system throughout the existing building and addition compliant with Section 903.3 as applicable.

Exceptions:

1. Additions of 1,000 sq. ft. (93 m^2) or less to existing buildings without fire sprinklers. The aggregate of multiple additions shall not exceed 1,000 sq. ft. (93 m^2).
2. Additions to R-3, R-4 Condition 1 and R-5 occupancies, not including care facilities with persons incapable of self-preservation in accordance Section 203.9.3.1.

Section 903.2.11.3 is deleted in its entirety.

903.3.1.1.1 Exempt Locations. With fire code official approval, automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from any room merely because it is damp, of fire-resistance rated construction or contains electrical equipment.

1. A room or space where sprinklers constitute a serious life or fire hazard because of the nature of the contents.
2. Generator and transformer rooms separated from the remainder of the building by walls and floor/ceiling or roof/ceiling assemblies having a fire-resistance rating of not less than 2 hours.
3. Rooms or areas that are of noncombustible construction with wholly noncombustible contents.
4. Fire service access elevator machine rooms and machinery spaces.
5. Machine rooms, machinery spaces, control rooms and control spaces associated with occupant evacuation elevators designed in accordance with Section 3008 of the International Building Code.

A new Section 903.3.1.1.4 Minimum Design Requirement is added as follows:

903.3.1.1.4 Minimum Design Requirement. The minimum design requirement for fire sprinkler systems shall be as determined by the Mesa Fire Code or as defined in Section 903.3.1.1.4 whichever is greater.

903.3.3.1.1.4.1 Shell Buildings. The minimum fire sprinkler system design for shell buildings shall be Ordinary Group II as defined in Section 903.3.1.1.

903.3.3.1.1.4.2 Buildings with Roof Structure over 20 feet (6,096 mm). The minimum design requirements for Group H, F and S-1 buildings with the roof structure over 20 feet (6,096 mm) above the finished floor shall be Extra Hazard Group I as defined in Chapter 32 and Section 903.3.1.1.

903.3.1.2.3 Attics. Attic protection shall be provided as follows:

1. Attics that are used or intended for living purposes or storage shall be protected by an automatic sprinkler system.

2. Where fuel-fired equipment is installed in an unsprinklered attic, not fewer than one quick response intermediate temperature sprinkler shall be installed above the equipment.

3. Attics not required by Item 1 to have sprinklers shall comply with one of the following:

   3.1. Provide automatic sprinkler system protection.

   3.2. Construct the attic using noncombustible materials.

   3.3. Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.

   3.4. Fill the attic with noncombustible insulation.

   The height of the roof assembly shall be determined by measuring the distance from the lowest required fire vehicle access road surface adjacent to the building to the eave of the highest pitched roof, the intersection of the highest roof to the exterior wall, or the top of the highest parapet, whichever yields the greatest distance. For the purpose of this measurement, required fire vehicle access roads shall include only those roads that are necessary for compliance with Section 503.

4. Group R4, Condition 2 occupancy attics not required by Item 1 to have sprinklers shall comply with one of the following:

   4.1. Provide automatic sprinkler system protection.

   4.2. Provide a heat detection system throughout the attic that is arranged to activate the building fire alarm system.

   4.3. Construct the attic using noncombustible materials.

   4.4. Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.

   4.5. Fill the attic with noncombustible insulation.

A new Section 903.3.1.2.4 Required Fire Protection Systems is added as follows:

903.3.1.2.4 Required Fire Protection Systems. For the purpose of inspection, testing, or maintenance of fire protection systems in R-1 and R-2 occupancies, there shall be an exterior door for access to the fire sprinkler riser. The dimensions of the door be a minimum of 30 inches (762 mm) wide and in no case require service personnel to enter a private dwelling or garage to access the riser.

903.3.1.3 NFPA 13D Sprinkler Systems. Automatic sprinkler systems installed in one- and two-family dwellings; Group R-3, R-4, and R-5, and townhouses shall be permitted to be installed throughout in accordance with NFPA 13D.

903.3.5 Water Supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referenced in Section 903.3.1. The potable water supply shall be protected against backflow as required by Mesa Standard Details. For connections to public waterworks systems, the water supply test used for design of fire protection systems shall be adjusted to account for seasonal and daily pressure fluctuations based on information from the water supply authority and as approved by the fire code official.

A new Section 903.3.5.3 Detectible Underground Locator Device is added as follows:

903.3.5.3 Detectible Underground Locator Device. Underground nonmetallic water and irrigation system piping larger than 2 inches (50.8 mm) in diameter shall be installed with insulated copper tracer wire or other approved conductor located adjacent to the piping. Access shall be provided to the tracer wire or the tracer wire shall terminate above ground at each end of the nonmetallic piping. The tracer wire size shall not be not less than 12 AWG and the insulation type shall be suitable for direct burial.

903.3.6 Hose Threads. Fire hose threads and fittings used in connection with automatic sprinkler systems shall be National Standard Thread.

A new Section 903.3.7.1 Fire Department Connection Sizing is added as follows:

903.3.7.1 Fire Department Connection Sizing. The size of the fire department connection and piping is dependent on the automatic sprinkler design flow. The maximum design flow for a 2½ inch Siamese connection is 500 GPM (1892.71 LPM). For design flows greater than 500 GPM (1892.71 LPM) not including hose stream demands, install a single 2½ inch (63.5 mm) Siamese connection and 5-inch (127 mm) Storz connection.

A new Section 903.3.10 Safety Factor is added as follows:

903.3.10 Safety Factor. All fire sprinkler designs shall have a 10 percent (pressure) safety margin.

A new Section 903.3.11 Remodel is added as follows:

903.3.11 Remodel. Fire sprinkler design drawings shall not be required for tenant improvements, other than Group H, high-pile, or rack storage, when 15 or less sprinklers are relocated or added where approved by the fire code official.

A new Section 903.3.12 Freeze Protection is added as follows:

903.3.12 Freeze Protection. Exterior sprinkler piping with a minimum of 2 inches (50.8 mm) may be used in lieu of freeze protection required by Section 903.3.1.1.

903.4.1 Electronic Supervision. Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressures and waterflow switches on all sprinkler systems shall be electrically supervised by a listed fire alarm control unit.

Exceptions:

1. Automatic sprinkler systems protecting one- and two-family dwellings, other than R-3 with incapable of self-preservation and R-4 Condition 1.
2. Backflow prevention devices, serving limited area sprinkler system supply piping shall be locked in the open position.
3. Remotely located backflow prevention devices, including test valves, shall be locked in the open position where approved by the fire code official.
4. Groups R-1 and R-2 occupancies containing 15 or less dwelling or sleeping units and not exceeding an aggregate area of 12,000 square feet.
5. Jockey pump control valves that are sealed or locked in the open position.
6. Trim valves to pressure switches in dry, preaction and deluge sprinkler systems that are sealed or locked in the open position.
7. Underground key or hub gate values in roadway boxes.

A new Section 903.4.1.1 Backflow Preventors is added as follows:

903.4.1.1 Backflow Preventors. In occupancies required to be equipped with a fire alarm system, the backflow preventer valves shall be electrically supervised by a tamper switch installed in accordance with NFPA 72 and separately annunciated.

905.5 Location of Class II standpipe hose connections. Where required by the fire code official, Class II standpipe hose connections shall be located so that all portions of the building are within 30 feet (9,144 mm) of a nozzle attached to 100 feet (30,480 mm) of hose. Class II standpipe hose connections shall be located where they will have ready access.

905.6 Location of Class III standpipe hose connections. Class III standpipe systems shall have hose connections located as required for Class I standpipes in Section 905.4. Where required by the fire code official, shall have Class II hose connections as required in Section 905.5.

912.3 Fire Hose Threads. Fire hose threads used in connection with standpipe systems shall be National Standard Thread (NST).

912.6 Backflow Protection. The potable water supply to automatic sprinkler and standpipe systems shall be protected against backflow as required by the Mesa Standard Details.

CHAPTER 12 ENERGY SYSTEMS

1207.8.1 Remote Outdoor Installations. For the purpose of Table 1207.8, to be deemed, and to be regulated as, a remote outdoor installation, an ESS shall be located more than 100 feet (30 480 mm) from buildings, lot lines, public ways, stored combustible materials, hazardous materials, high-piled stock and other exposure hazards. Additionally, remote outdoor installations shall comply with UL 9540 and UL 9540A.

A new Section 1207.8.5 Fire Access to Outdoor Installations is added as follows:

1207.8.5 Outdoor Installation Fire Apparatus Access. ESS located outdoors shall comply with all the following:

1. Modular battery arrays shall not exceed 300 feet (91,440 mm) in length or depth.
2. A fire apparatus access road that has a minimum unobstructed width of 20 feet (6096 mm) and complies with Section 503.2 shall be provided adjacent to all perimeter sides of a modular battery array.
3. In addition to the requirement in subpart (2), for modular battery arrays that exceed 150 feet (45,720 mm) in either length or depth, at least one of the fire apparatus access roads adjacent to a perimeter side of the modular battery array shall be an aerial fire apparatus access road that has a minimum unobstructed width of 26 feet (7925 mm) and complies with Section 503.8.
4. The configuration of the ESS, the modular battery arrays, the fire apparatus access roads, and if required, the aerial fire apparatus access road, shall be subject to review and approval by the fire code official.

CHAPTER 24 FLAMMABLE FINISHES

A new Section 2404.12 Exterior Finishing Operations is added as follows:

2404.12 Exterior Finishing Operations. Flammable spray-finishing operations shall not be conducted outside of approved structures.

CHAPTER 28 LUMBER YARDS AND AGRO-INDUSTRIAL, SOLID BIOMASS AND WOODWORKING FACILITIES

2809.5 Fire Protection. An approved hydrant or portable fire-extinguishing equipment suitable for the fire hazard involved shall be provided for open storage yards. Hydrant systems shall be installed in accordance with NFPA 24. Portable fire extinguishers complying with Section 906 shall be located so that the travel distance to the nearest unit does not exceed 75 feet (22,860 mm).

CHAPTER 31 TENTS, TEMPORARY SPECIAL EVENT STRUCTURES AND OTHER MEMBRANE STRUCTURES

3103.2 Approval Required. Tents and membrane structures having an area in excess of 400 square feet (37 m^2) and tents without walls (canopies) in excess of 1,200 square feet (111.5 m^2) shall not be erected, operated or maintained for any purpose without first obtaining a permit and approval from the fire code official.

Exceptions:

1. Tents used exclusively for recreational camping purposes.
2. Tents open on all sides that comply with all of the following:
   - 2.1 Individual tents having a maximum size of 700 square feet (65 m^2) total.
   - 2.2 The aggregate area of multiple tents placed side by side without a fire break clearance of 12 feet (3,658 mm), not exceeding 700 square feet (65 m^2) total.
   - 2.3 A minimum clearance of 12 feet (3,658 mm) to all structures and other tents.

Section 3103.8.1 Water-Filled Vessels is deleted in its entirety.

CHAPTER 32 HIGH-PILED COMBUSTIBLE STORAGE

A new Section 3206.4.2 Identification of Sprinkler System Capabilities and Limitations is added as follows:

3206.4.2 Identification of Sprinkler System Capabilities and Limitations. An adhesive label shall be permanently installed at or adjacent to each sprinkler riser. When a building contains more than four risers, the sign shall be located at an approved location inside the building. When sprinkler risers are located outside of the building, the sign shall be stamped metal. The minimum sign dimension is 6-inches (152.4 mm) high by 4-inches (101.6 mm) wide. The sign shall specify the capabilities and limitations of the automatic sprinkler system. The sign shall include the following information:

1. The design base or basis, including the edition used.
2. A statement indicating if the sprinkler design is control mode density area method, control mode specific application, suppression mode, or any combination thereof.
3. When used, all of the storage conditions stipulated NFPA 13, Section 12.7 for special designs.
4. The maximum storage height.
5. The minimum required aisle width.
6. If storage is in racks, the maximum rack width and minimum transverse and longitudinal flue widths.
7. Commodities that can be protected by the automatic sprinkler system.
8. Commodities that cannot be protected by the automatic sprinkler system.
9. Limits on storage heights of idle wood and plastic storage.
10. Limits on storage heights of miscellaneous Group A plastic, tire and rolled paper storage.
11. Locations where in-rack sprinklers are required.
12. Locations where horizontal and/or vertical barriers are required.
13. Information explaining the manufacturer, sprinkler identification number, K-factor, and operating temperature of the overhead sprinklers protecting the high pile storage.

The following example illustrates a suggested format label or sign:

Automatic Sprinkler System Capabilities & Limitations

Stored Commodity	Class I water miscible flammable liquid in 1 & 5 gallon polyethylene containers in fiberboard cartons
Design Documents	NFPA 13, 2025 edition & NFPA 30, 2024 edition, Sections 29.4.3, A.29.4 and A.29.6
Design Type	25 feet
Min. Aisle Width	8 feet
Max. Rack Width	9 feet
Flue Dimensions	Longitudinal: min. 6 inches Transverse: Min. 3 inches
System Capabilities	Class I-IV commodities, stored commodity, solid pile or palletized Group A plastics to 12 feet; rack storage of Group A plastics to 25 feet.
System Limitations	No level 2 or 3 aerosols, Class 2, 3, or 4 oxidizers
Idle Pallets	6 feet maximum storage height
Tire Storage	5 feet maximum storage height
Roll Paper Storage	5 feet maximum storage
In-Rack Sprinklers	In-rack sprinklers are required at each of 3 rack tiers containing the storage commodity. In-rack sprinklers are Tyco/Central FS-B, 17/32-inch orifice, QR 155°F elements, SIN TY0041
Horizontal Barriers	Required at each rack tier containing the stored commodity.
Ceiling Sprinklers	Tyco ELO-231B, ¾-inch orifice, SR 286°F element, upright, SIN TY0030

CHAPTER 33 FIRE SAFETY DURING CONSTRUCTION AND DEMOLITION

3307.1 Required Access. Approved vehicle access for firefighting shall be provided to all construction or demolition sites and shall comply with Mesa Fire and Medical Department Standard Details.

3307.1.2 Stairways Required. Where building construction exceeds 40 feet (12,192 mm) in height above the lowest level of fire department vehicle access, no fewer than two temporary or permanent stairways shall be provided. As construction progresses, such stairway shall be extended to within one floor of the highest point of construction having secured decking or flooring. Stairways shall be located diametrically from one another.

3307.2.1 Combustible Building Materials. When combustible building materials of the building under construction are delivered to a site, a minimum fire flow of 1,500 gallons per minute at 20 PSI shall be provided. The fire hydrant used to provide this fire-flow supply shall be within 500 feet (152,400 mm) of the combustible building materials, as measured along an approved fire apparatus access lane. Where the site configuration is such that one fire hydrant cannot be located within 500 feet (152,400 mm) of all combustible building materials, additional fire hydrants shall be required to provide coverage in accordance with this section.

CHAPTER 50 HAZARDOUS MATERIALS - GENERAL PROVISIONS

A new Section 5001.5.2.1 Changes to Hazardous Materials Inventory Statements is added as follows:

5001.5.2.1 Changes to Hazardous Materials Inventory Statements. An amended hazardous materials inventory statement shall be provided to the fire official by facilities that store or handle hazardous materials within 30 days of a change or addition of hazard class, or in amounts sufficient to cause an increase or decrease in the aggregate quantity that exceeds 5 percent for any physical or health class, or when required by the fire code official.

CHAPTER 56 EXPLOSIVES AND FIREWORKS

5601.1.3 Fireworks. The possession, manufacture, storage, sale, handling and use of fireworks are prohibited.

Exceptions:

1. Storage and handling of fireworks as allowed in Section 5604.
2. Manufacture, assembly and testing of fireworks as allowed in Section 5605.
3. The use of fireworks for fireworks displays as allowed in Section 5608.
4. The possession, storage, sale, handling and use of specific types of Division 1.4G fireworks where allowed by applicable laws, ordinances and regulations, provided that such fireworks and facilities comply with the 2013 edition of NFPA 1124, CPSC 16 CFR Parts 1500 and 1507, and DOTn 49 CFR Parts 100—185, as applicable for consumer fireworks.
5. The use, discharge or ignition of fireworks are prohibited except as allowed under Mesa City Code 6-21.

A new Section 5601.9 Abandonment is added as follows:

5601.9 Abandonment. Explosive materials shall not be abandoned per Sections 311.4 and 5001.6.

CHAPTER 57 FLAMMABLE AND COMBUSTIBLE LIQUIDS

A new Section 5706.5.1.19 Time Limit for Unloading is added as follows:

5706.5.1.19 Time Limit for Unloading. Tank vehicles and tank cars shall be unloaded as soon as possible after arrival at point of delivery and shall not be used as storage tanks. Tank cars shall be unloaded only on private sidings or railroad siding facilities equipped for transferring the liquid between tank cars and permanent storage tanks. Unless otherwise approved, a tank car shall not be allowed to remain on a siding at the point of delivery for more than 24 hours while connected for transfer operations.

CHAPTER 80 REFERENCED STANDARDS

NFPA (National Fire Protection Association):

10 - 26	Portable Fire Extinguishers
11 - 24	Low Medium- and High-Expansion Foam
12 - 25	Carbon Dioxide Fire-Extinguisher System
12A - 25	A Halon 1301 Fire-Extinguisher System
13 - 25	Installation of Sprinkler Systems

13D - 25	Installation of Sprinkler Systems in One- and Two-Family Dwellings and Manufactured Homes
13R - 25	Installation of Sprinkler Systems in Residential Occupancies up to and Including Four Stories in Height
14 - 24	Installation of Standpipe, Private Hydrants and Hose Systems
17 - 24	Dry-Chemical Extinguishing Systems
17A - 24	Wet-Chemical Extinguishing Systems
20 - 25	Installation of Stationary Pumps for Fire Protection
24 - 25	Installation of Private Fire Service Mains and their Appurtenances
25 - 26	Water-Based Fire Protection Systems
52 - 26	Compressed Natural Gas (CNG) Vehicular Fuel Systems
58 - 24	Liquified Petroleum Gas Code
72 - 25	National Fire Alarm Code
105 - 25	Smoke Dampers
110 - 25	Emergency and Standby Power Systems
111 - 25	Standard on Storage Electrical Energy Emergency and Standby Power Systems
204 - 24	Smoke and Heat Vents
660 - 25	Standard for combustible dusts and particulate solids
855 - 26	Standard for Installation of Stationary Energy Storage Systems
1225 - 25	Standard for Emergency Services Communications
2001 - 25	Clean-Agent Extinguishing Systems
2010 - 25	Aerosol Fire-Extinguishing Systems
UL (Underwriter Laboratory):	
9540 - 23	Standard for Energy Storage Systems and Equipment
9540A - 25	Test Method for Evaluating Thermal Runway Fire Propagation in Battery Energy Storage Systems

APPENDIX B FIRE-FLOW REQUIREMENTS FOR BUILDINGS:

Table B105.2: Required Fire Flow for Buildings Other Than One- and Two-Family Dwellings, Group R-3, R-4, and R-5 Buildings and Townhouses		
AUTOMATIC SPRINKLER SYSTEM (Design Standard)	**MINIMUM FIRE FLOW (gallons per minute)**	**FLOW DURATION (hours)**
No automatic sprinkler system	Value in Table B105.1(2)	Duration in Table B105.1(2)
Section 903.3.1.1 of the Mesa Fire Code	50% of the value in Table B105.1(2)[a]	Duration in Table 105.1(2) at the reduced flow rate
Section 903.3.1.2 of the Mesa Fire Code	50% of the value in Table B105.1(2)[b]	Duration in Table 105.1(2) at the reduced flow rate

Footnote a. The reduced fire flow shall be not less than 1,000 gallons (3,785.41 L) per minute.

Footnote b. The reduced fire flow shall be not less than 1,500 gallons (5,678.12 L) per minute.

APPENDIX C FIRE HYDRANT LOCATIONS AND DISTRIBUTION

Table C102.1 Required Number and Spacing of Fire Hydrants:

Footnote c. Where new water mains are extended along streets where hydrants are not needed for protection of structures or similar fire problems, fire hydrants shall be provided at spacing not to exceed 500 feet (152,400 mm) to provide for transportation hazards.

Footnote g. A 25-percent spacing increase shall be permitted where the building is equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.2 or 903.3.1.3 of the Mesa Fire Code.

APPENDIX L REQUIREMENTS FOR FIREFIGHTER AIR REPLENISHMENT SYSTEMS

Section L104.1.1 When Required added as follows:

L104.1.1 When Required. In high-rise buildings and structures as defined by the Mesa Building Code; or underground buildings and structures, or components thereof, totaling 10,000 square feet (929 m^2) or more that are either more than 2 floors below grade or more than 30 feet (9,144 mm) below grade.

L104.13.1 Location. Fill stations for refilling breathing air cylinders shall be located as follows:

1. Fill stations shall be provided at the fifth floor above and below the ground level floor and every third level floor thereafter.
2. On floor levels requiring fill stations, one fill station shall be provided adjacent to a required exit stair at a location designated by the fire code official. In buildings required to have multiple exits, additional fill stations shall be provided at every stairways.

A new **Section L108 Records** is added as follows:

L108 Records

L108.1 Markings. The fire department air connection panel and the remote air fill panels shall be clearly identified by means of permanently installed signage which says: "FIREFIGHTER AIR SYSTEM" in minimum letters 1½-inch high with a ¼-inch stoke and be located where plainly visible.

(Ord. No. 5978, § 4, 12-8-25)

7-2-3: PENALTY CLAUSE

(A) **Violation Penalties.** Persons who shall violate a provision of Section 7-2-1 or Section 72-2 or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair, or do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate used under provisions of this code, shall be guilty of Class 1 misdemeanor, punishable by a fine of not more than $2,500.00 and/or by imprisonment not exceeding 6 months, or both such fine and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

(B) **Failure to Comply.** Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than $500.00 or more than $2,500.00.

(Ord. No. 5978, § 5, 12-8-25)

7-2-4: DIGITAL/ELECTRONIC DRAWING FILE SUBMISSIONS

(A) **General.** Projects requiring a construction permit from Development Services, including projects performed under annual facilities permits, shall be submitted in digital/electronic format. Other than construction permits, drawing shall not be required for the following:

1. R-3, R-4, and R-5 occupancies.
2. Other buildings or structures accessory to and located on the same lot with one- and two-family dwellings.
3. Projects not required to submit drawings to obtain a permit. (Refer to Title 4, Chapter 1, Mesa Administrative Code).

The digital/electronic copy of the permit drawings shall be submitted to the Mesa Fire and Medical Department (MFMD) through the Development Services DIMES database for approval by MFMD Technical Services prior to the issuance of the certificate of occupancy/completion by the Development Services Director.

(B) **Required Format.** Submittals shall be digital/electronic files in one of the following formats: (.dwg) or (.dxf). If submitted files are embedded with external references (example: .xref), such drawings shall also be uploaded in DIMES. Cryptic naming of layers/files shall include a "definition key." All digital/electronic files shall be drawn in "feet" at a 1:1 scale.

New buildings three stories or more when required by the Fire Code Official shall provide: 3D object-oriented software shall comply with interoperability standards capable of data exchange with coordination and collaboration software. Modeling must represent real axonometric dimensions and accurately define project site with X, Y, Z coordinates. Refer to Fire Details for software and formatting specifics.

1. **Required Information.** At minimum, each file shall contain the following information:
   (a) Floor Plans:
      i. One floor plan with exterior and interior walls for each building floor.
      ii. All door locations (ingress/egress) throughout the building, including roll up doors and roof hatch/doors.
      iii. Stairs and elevator locations.
      iv. Room/suite names and/or numbers.
      v. Utility shutoff locations (water, electric and gas).
      vi. Special hazards and high-piled stock/racks, if any.
      vii. Fire protection items shall include at minimum, standpipes, fire sprinkler risers, alarm panels, fire department connections, and Knox boxes.
      viii. Building elevations with height dimensions.
   (b) Site Plan: Including parking lots, building numbers, parking garages, fire lanes, and hydrants.
   (c) Roof Plan: Layout and access (ladder/hatch locations).

2. **Not Required.** Layers listing furnishings, floor coverings, ceiling styles/grids, plumbing fixtures, electrical (lights, switches, outlets), wall coverings, or landscape information.

(Ord. No. 5978, § 6, 12-8-25)

CHAPTER 3
FIRE CALLS OUTSIDE CITY LIMITS

7-3-1: FIRE CALLS OUTSIDE CITY LIMITS

The Fire Chief of the City is hereby authorized and directed, at his or her discretion, to respond to fire calls outside the City limits with such equipment and personnel, either regular firefighters or volunteer, as may be necessary or reasonable under the circumstances.

(Ord. No. 5978, § 7, 12-8-25)

CHAPTER 4
COST RECOVERY*

7-4-1: PURPOSE

The purpose of this Chapter is to allow the City of Mesa, by and through its Fire and Medical Department to recover costs associated with the provision of medical services, including transport services to and between health care facilities. (5239, 5357)

(Ord. No. 5978, § 9, 12-8-25)

7-4-2: DEFINITIONS

In this Chapter, the following words and phrases shall have the meanings stated in this section unless the context otherwise requires:

(A) **BILLABLE COSTS** means the reasonable costs incurred in providing medical services including, but not limited to, labor, equipment usage, disposable supplies, medical supplies, medications, oxygen-related costs, mileage, fuel, and any other costs not prohibited by state or federal law. (5239, 5357)

(B) **MEDICAL SERVICES** means services provided when responding to an emergency medical situation or a 911 call for on-site emergent or low-acuity medical care; initial care; follow-up care; and/or preliminary treatment procedures by emergency medical treatment providers, including, but not limited to, emergency medical technicians, paramedics, licensed nurses, nurse practitioners, physician assistants, and behavioral health crisis counselors; and/or transport services to and between health care facilities. (5357)

(C) **THIRD PARTY PAYER** means an insurance carrier or other coverage provider, including a private insurance carrier, Medicare or Medicaid. (5239, 5357)

(Ord. No. 5978, § 9, 12-8-25)

***Editor's note—**Ord. No. 5978, § 8, adopted December 8, 2025, repealed Ch. 4, § 7-4-1, which pertained to fire investigators - duties; powers; limitation and derived from Ord. Nos. 2589, 3042, 4478. Section 9 of same ordinance renumbered Ch. 5, §§ 7-51—7-5-4 as §§ 7-4-1—7-4-4.

7-4-3: BILLABLE COSTS AND RATES

(A) The Mesa Fire and Medical Department is authorized to bill individuals and third party payers for all reasonable billable costs incurred in or related to the provision of medical services. (5239, 5357)

(B) At the time service is provided or as soon as practicable thereafter, the Mesa Fire and Medical Department shall obtain all pertinent insurance and payment information from the individual to whom service is provided, or from the individual's family member, agent, or other representative, to facilitate billing for such services. (5239, 5357)

(C) The Mesa Fire and Medical Department may adopt billing rates set by a state agency or a state or federal insurance program, as applicable, set billing rates through contracts with third party payers, or establish reasonable rates to recover billable costs, so long as such rates do not violate state or federal laws or regulations. Such rates shall be set forth in a Schedule of Fees and Charges and adopted by a resolution of the City Council. (5239, 5357)

(Ord. No. 5978, § 9, 12-8-25)

7-4-4: PROCEDURE FOR BILLING

(A) The City of Mesa, through its Fire and Medical Department, is authorized to enter into a contract with a third party billing agency for performance of the billing authorized under this Chapter; provided, however, that the following standards for such third party billing contracts are met: (5239)

1. All third party billing services are to be provided at an amount consistent with fair market value for services rendered. The City may contract for such services on a percentage of collections basis or other manner consistent with the third party billing agency's practice. (5239)
2. The third party billing agency has in place a compliance program conforming to standards set forth in the Office of Inspector General's Compliance Program Guidance for Third Party Medical Billing Companies, 63 Federal Register 70138, as amended. (5239)
3. Funds payable to the City of Mesa by third party payers and/or carriers are not negotiated by billing agencies but are instead deposited directly into a designated City of Mesa account, through lock box or similar arrangement. (5239)
4. Neither the billing agency nor any of its employees are subject to exclusion from any state or federal health care program. (5239)
5. The billing agency is bonded and/or insured in amounts satisfactory to the City of Mesa. (5239)

(B) Nothing in this Section shall prohibit the City of Mesa, through its Fire and Medical Department, from performing the billing services set forth herein in lieu of contracting with a third party billing agency. (5239)

(Ord. No. 5978, § 9, 12-8-25)

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CHAPTER 1 BACKFLOW PREVENTION AND CROSS-CONNECTION CONTROL

8-1-1: DEFINITIONS

The following words, terms, and phrases, when used in this Chapter, shall have the meanings ascribed to them in this Section, unless otherwise expressly stated:

AIR GAP (AG): A physical separation between the free-flowing discharge end of a potable water supply line and an open or non-pressure receiving vessel. An air gap must be at least twice the diameter of the supply pipe measured vertically above the overflow rim of the receiving vessel, and in no event less than 1 inch (2.54 cm), to serve as backflow protection. This method is required for backflow protection of sewage or reclaimed water.

AUXILIARY WATER SUPPLY: Any source of water other than from the City public water system or the potable water system of a public utility regulated by the Arizona Corporation Commission, including but not limited to, water from a well, spring, river, stream, or canal.

BACKFLOW: The reversal of flow in the public water system such that water or mixtures of water and other liquids, gases, or other substances are introduced into the public water system from any source other than the public water system.

BACKFLOW PREVENTION ASSEMBLY: An assembly used to prevent backflow into a potable water system. The types of backflow prevention assemblies are:

Double Check Valve Backflow Prevention Assembly (DCVA)
Pressure Vacuum Breaker Backsiphonage Prevention Assembly (PVB)
Reduced Pressure Principle Backflow Prevention Assembly (RPA)
Spill-Resistant Pressure Vacuum Breaker Backsiphonage Prevention Assembly (SVB)

BACKFLOW PROTECTION: A backflow prevention assembly, air gap, or any combination thereof acting in concert.

BACKPRESSURE: Any elevation of pressure in a customer water system, above the supply pressure at the service connection/point of delivery, which might cause or contribute to backflow. Examples of conditions which may cause backflow include use of a pump, elevation of piping, steam pressure, or air pressure, etc.

BACKSIPHONAGE: Backflow, which causes a sub-atmospheric pressure condition in a water system.

CERTIFIED TESTER: A natural person with a current certification and approval to conduct testing on Backflow Prevention Assemblies by an entity engaged in the business of certifying backflow assembly testers and which is approved by the Water Resources Department.

CITY: The City of Mesa, an Arizona Municipal Corporation and political subdivision, of the State of Arizona.

COMPLIANCE DUE DATE: The seventh day after of installation of backflow protection or the seventh day after discovery of an installed backflow protection which has not been tested in conformance with this Chapter in the 12 months preceding such discovery. Thereafter, the 1-year anniversary of the most recent compliance due date.

CONTAMINATION: Any impairment in the quality of potable water, by sewage, industrial fluids, waste liquids, compounds or other solids, gases, or fluids.

CROSS-CONNECTION: Any direct or indirect connection in a customer water system through which it is possible to introduce any substance other than the intended potable water with which the system is supplied, including but not limited to industrial fluids, gas, auxiliary water and wastewater. Bypass arrangements, jumper connections, removable sections, swivel or change-over devices and other temporary or permanent devices through or because of which backflow can occur are cross-connections. A direct cross-connection is a cross-connection which is subject to both backsiphonage and backpressure. An indirect cross-connection is a cross-connection which is subject to backsiphonage only.

CUSTOMER: The owner, tenant, trustee, mortgagee, receiver or occupier, whether person, corporation, firm, or municipality, of property which is connected to the public water system, including but not limited to, the person, persons or entity in whose name a City water service account is established and that is responsible for payment of the water rates, fees and charges.

CUSTOMER WATER SYSTEM: A privately-owned potable water system, or any portion thereof, lying between the service connection and the point of use. This system includes all pipes, conduits, tanks, receptacles, fixtures, equipment and appurtenances used to convey, store or utilize the potable water.

DEGREE OF HAZARD: The level of actual or potential risk (either a non-health hazard or health hazard) derived from the assessment of the substances which may come into a customer water system through a cross-connection, as set forth in Section 8-1-4.

DEPARTMENT: The City Water Resources Department, or any successor identified by the City which is responsible for enforcing the requirements of this Chapter.

DOUBLE CHECK VALVE BACKFLOW PREVENTION ASSEMBLY (DCVA): A backflow prevention assembly composed of two independently acting, approved check valves, including tightly closing resilient seated shutoff valves, attached at each end of the assembly and fitted with properly located resilient seated test cocks. This assembly is acceptable for use as protection against non-health hazards only.

DUAL CHECK DEVICE: Two independent check valves with a vent to the atmosphere. This device is acceptable for use on a non-health hazard or low hazard applications only. These non-testable devices can only be installed on ice makers and non-carbonated beverage dispensers.

FIRE SPRINKLER SYSTEM: An integrated system of water piping for fire prevention and suppression, designed in accordance with applicable City Code provisions and standards, and connected to the public water system.

HEALTH HAZARD: Contamination to a degree which creates an actual hazard to the public health that may cause illness or death if ingested.

NON-HEALTH HAZARD: Pollution to a degree that may affect the color or odor of water but will not cause illness or death if ingested.

NON-POTABLE WATER: Water that has not been treated for human consumption in compliance with federal, state and local requirements.

NOTICE: A written instrument served by the City, as follows, with time commencing from date of mailing, serving, filing or recording as applicable:

(1) By the use of ordinary mail to the last known address of the person to whom it is required to be given;

(2) By personal service upon the person or his lawful representative;

(3) By filing or recording with a clerk of the superior court or county recorder; or

(4) By any means authorized by the Arizona Rules of Civil Procedure.

PLUMBING HAZARD: An actual or potential plumbing cross-connection in a customer water system. A plumbing hazard may present either a Health or non-health hazard.

POINT OF USE: The point within a customer water system where potable water is used.

POINT OF USE PROTECTION: Any backflow prevention assembly or means designed to prevent backflow commensurate with the degree of hazard that is installed within a customer water system, typically located at the water supply line for equipment or appliances.

POLLUTION: The presence of any foreign substance (organic, inorganic or biological) in water which tends to degrade its quality or impair its usefulness to a degree which does not create an actual hazard to the public health, but which does adversely and unreasonably affect such water for domestic use.

POTABLE WATER: Water which meets the federal, state and local requirements for human consumption, including drinking, culinary, and other domestic purposes.

PRESSURE VACUUM BREAKER ASSEMBLY (PVB): An assembly containing an independently operating internally loaded check valve and an independently operating loaded air inlet valve, located on the discharge side of the check valve, with properly located resilient seated test cocks and tightly closing resilient seated shutoff valves at each end of the assembly. This assembly may only be used to protect against a non-health hazard, or a health hazard under a backsiphonage condition.

PUBLIC WATER SYSTEM: Means all plants, mains, laterals, pipes and other structures owned and/or maintained by the City, through which potable water is treated, supplied and distributed to the public, including wells and well structures, intakes, pumping stations, treatment plants, reservoirs, storage tanks and appurtenances.

RECLAIMED WATER: Wastewater treated to the federal, state and local standards for reuse, but which has not been treated to the federal, state and local standards for potable water and human consumption.

RECOGNIZED BACKFLOW PREVENTION ASSEMBLY TESTER: A certified tester meeting the requirements of the Department for the annual performance of backflow testing, as set forth in Section 8-1-12 of this Chapter.

REDUCED PRESSURE PRINCIPLE BACKFLOW PREVENTION ASSEMBLY (RPA): A backflow prevention assembly containing two independently acting approved check valves together with a hydraulically operating, mechanically independent pressure differential relief valve, located between the check valves and at the same time, below the first check valve. The unit shall include properly located resilient seated test cocks and tightly closing resilient seated shutoff valves at each end of the assembly.

SERVICE CONNECTION/POINT OF DELIVERY: The downstream end of the water meter, where the city-owned parts of the public water system ends, and a customer water system begins. For unmetered services such as fire lines, the point of delivery is immediately downstream of the valve separating the city-owned parts of the public water system from the unmetered service connection.

SERVICE PROTECTION: The backflow protection at the service connection, which protects the public water system from the degree of hazard presented by a customer water system.

SINGLE CHECK VALVE: A mechanical device that is drip tight when the inlet pressure is at least one (1) psi (pounds per square inch) and the outlet pressure is zero. The closure element (clapper or poppet) must be internally spring loaded, to promote rapid and positive closure.

SPILL RESISTANT PRESSURE VACUUM BREAKER BACKSIPHONAGE PREVENTION ASSEMBLY (SVB): A backflow prevention assembly containing an independently operating internally loaded check valve and independently operating loaded air inlet valve located on the discharge side of the check valve. This assembly cannot be used for backpressure applications.

SYSTEM HAZARD: An actual or potential threat to the public water system, from pollution or contamination.
(Ord. No. 5909, § 2, 12-9-24)

8-1-2: PUBLIC WATER SYSTEM PROTECTION

The purposes of this Chapter are to protect the public water supply of the City from the possibility of contamination or pollution by preventing the backflow of contaminants or pollutants into the public water system, to promote the elimination or control of existing cross-connections, actual or potential, within a customer water system and to provide for a continuing program of cross-connection control. All service connections to premises of the types specified in this Chapter in Section 8-1-8 must have backflow protection installed and maintained, to protect the public water system as required by this Chapter. In addition, certain uses within the customer water system must have point of use protection as required by Section 8-1-9 in this Chapter. This Chapter shall be construed and applied consistent with the requirements of A.A.C. R18-4-215 and other Arizona Department of Environmental Quality Regulations.
(Ord. No. 5909, § 2, 12-9-24)

8-1-3: BACKFLOW PREVENTION REQUIRED

(A) A backflow prevention assembly is required at every service connection when there is an existing or potential health, non-health, or plumbing hazard to the public water system from a customer water system, as set forth in this Chapter.

(B) A backflow prevention assembly is required at every service connection when access to the property or customer water system is restricted, such that it is impractical for the Department to perform a cross-connection inspection to determine the degree of hazard.

(C) The backflow prevention assemblies at each service connection must protect against the degree of hazard to the public water system presented by a customer water system.

(D) In addition to service protection, the Department may require point of use protection within a customer water system, based on the degree of hazard at the point of use.

(E) All dedicated landscape water service connections must have service protection, regardless of classification as residential or commercial.

(F) All connections to fire hydrants, where available, must have an RPA installed by the Department immediately downstream of the hydrant meter.

(G) Any premises, facility, equipment, or plumbing connected appliance not listed in Section 8-1-8 or 8-1-9 that has, or may have, the potential for a cross connection must have service protection, as outlined in this Chapter, based on the degree of hazard.

(H) For service and point of use protection: Direct connections between potable water piping and sewer-connected wastes shall not be permitted to exist under any condition with or without backflow protection. Where potable water is discharged to the drainage system, it shall be by means of an approved air gap.

(Ord. No. 5909, § 2, 12-9-24)

8-1-4: APPROVED BACKFLOW PREVENTION ASSEMBLIES; METHODS

In addition to the requirements of Sections 8-1-8 and 8-1-9, the Department reserves the right to require backflow protection, based on the degree of hazard, to the public water system from a customer water system, regardless of the nature of the customer's end use. The following factors will determine the degree of hazard:

1. Health
2. Non-health
3. Plumbing hazard within the customer water system

(A) The Department requires the following backflow prevention assemblies, based on the degree of hazard. The following is a list of assemblies and the provided protection against hazards. See Sections 8-1-8 and 8-1-9 for a list of required backflow protection for known hazards:

Type of Assembly	**Non-Health Hazzard (Pollution)**		**Health Hazard (Contamination)**		**Sewage/Reclaimed Water**	
	Backsiphon-age	**Backpressure**	**Backsiphon-age**	**Backpressure**	**Backsiphon-age**	**Backpressure**
Air Gap	X	X	X	X	X	X
RPA	X	X	X	X		
DCVA	X	X				
PVB	X		X			
SVB	X		X			

(B) The Department may also approve an alternative backflow prevention assembly if, at a minimum, it has been issued a Certificate of Approval by the Foundation for Cross-Connection Control & Hydraulic Research of the University of Southern California, or another certifying agency, organization, or entity, unrelated to the product manufacturer or vendor, and recognized in the industry as equivalent and acceptable to the Department.

(C) An air gap may be used for backflow protection within a customer water system provided that the air gap is not modified from its original installation requirements and complies with the definition set forth in Section 8-1-1.

(Ord. No. 5909, § 2, 12-9-24)

8-1-5: BACKFLOW PREVENTION ASSEMBLY INSTALLATION REQUIREMENTS

(A) The customer must install backflow prevention assemblies as required by this Chapter, at the customer's expense, and in compliance with applicable standards and specifications contained in the Mesa Building Code, Mesa Plumbing Code and Mesa Fire Code.

(B) The customer must install an approved backflow prevention assembly for service protection at, or as close as possible to, the point of delivery, but in all cases before the first branch line splitting the customer water system.

(C) Installed backflow prevention assemblies must have a diameter at least equal to the cross-sectional diameter of the service connection, unless approved in advance in writing by the Department.

(Ord. No. 5909, § 2, 12-9-24)

8-1-6: PLAN REVIEW REQUIREMENTS

(A) All backflow prevention assemblies required by this Chapter must be shown and specified on all required Building or Engineering Plans submitted to the City. Department approval of the intended installation is required prior to the issuance of any Building or Engineering Permit.

(B) All backflow prevention assemblies required by this Chapter must show the manufacturer, model identifier, and size of the assembly on the City approved plans. The approved plans shall also show that the backflow prevention assembly must be tested by a certified tester, recognized by the Department.

(Ord. No. 5909, § 2, 12-9-24)

8-1-7: FACILITY INSPECTIONS

(A) The Department may conduct inspections to determine whether any cross-connections or other public water system hazards exist and to determine compliance with this Chapter. Customer premises shall be subject to site inspection by the Department, and a customer water system at each premise must be available at all times necessary to protect the public water system. The Department shall make reasonable efforts to provide a customer with advance notice of an inspection.

(B) Upon the Department issuing notice of inspection results, the customer shall correct any deficiencies and comply with the standards set forth in this Chapter within sixty (60) calendar days. Based on the degree of hazard, water service may be suspended until cross connection requirements have been met.

(C) Adding or removing an appliance or other connection which may present a plumbing, health, or non-health hazard to a customer water system shall require a new inspection by the Department within 30 calendar days of such addition or removal. If the inspection determines a backflow prevention assembly is required, installation shall be completed in compliance with this Chapter by the customer within 60 calendar days of the Department issuing notice of the inspection results.

(Ord. No. 5909, § 2, 12-9-24)

8-1-8: CUSTOMERS REQUIRING A BACKFLOW PREVENTION ASSEMBLY

When any of the following uses exist, facilities are present, or activities are conducted on the customer's side of the point of delivery at a property or premises served by the public water system, a potential hazard to the public water system exists and the customer must insure that the backflow protection specified below, is in place and operating as designed at each service connection.

Description of Cross Connection	Acceptable Level of Protection
Aircraft and missile manufacturing, repair, maintenance, modification and restoration plants and facilities	RPA
All service connections not located within the City limits, including but not limited to county islands and schools, but served by the City's public water system	RPA
Animal veterinary clinics	RPA
Automotive maintenance and repair with steam cleaners, acid cleaning equipment, or solvent facilities	RPA
Automotive manufacturing, and restoration plants and facilities	RPA
Auxiliary water supply capability	RPA
Bottling Plants, beverage or chemical	RPA
Breweries	RPA
Buildings greater than three stories or 34 feet in height from curb level	RPA
Buildings or properties used for commercial or industrial purposes, where one service connection supplies multiple tenants or occupants of the building	RPA
Buildings or properties with booster pumps and/or potable water storage tanks	RPA
Buildings or properties with fountains, water features, ponds or baptismal tanks	RPA
Buildings or properties with sewage ejectors	RPA
Buildings or properties with water service that provides both fire and domestic water*	RPA
Canneries, packing houses, and reduction plants	RPA
Car wash facilities	RPA
Chemical manufacturing plants	RPA
Commercial laundries	RPA
Connection to any premises with restricted or denied access.	RPA
Cooling towers, boilers, chillers, and other heating and cooling systems utilizing potable water	RPA
Customer Water Systems designed and constructed capable of inducing backpressure at the service connection	RPA
Customer Water Systems interconnected by more than one service connection	RPA
Customer Water Systems using non-potable water piping	RPA
Customer Water Systems utilizing fertilizer or pesticide injection, or aspirator systems	RPA
Customer Water Systems where a PVB cannot be at least 12" higher than all downstream plumbing	RPA
Dairies and cold storage facilities	RPA

Description of Cross Connection	Acceptable Level of Protection
Dual use meters: Water meters that serve both domestic and landscape needs must have the landscape connection isolated with a properly installed: RPA or PVB. This will be in addition to any backflow protection required at the service connection. Refer to Section 8-1-3 (E), when applied to a single-family residence.	RPA or PVB
Film processing laboratories, facilities or equipment	RPA
Fire hydrant water meters	RPA
Fire Sprinkler System - direct connection to Public Potable water system with or without pumps. No additives or auxiliary supplies of any kind. *	DCVA
Fire Sprinkler Systems - direct connection to Public Potable water system and/or auxiliary water supply on site and/or additives are used. Or private hydrants are on site. Refer to Section 8-1-10. This also may require point of use protection*	RPA
Food processing plants	RPA
Government owned or operated facilities not open for inspection by the City	RPA
Holding tank disposal stations	RPA
Hospitals	RPA
Irrigation systems served by a dedicated landscape meter, except as described in Section 8-1-9	PVB
Laboratories, regardless of whether using toxic or nontoxic materials	RPA
Manufacturing, processing and fabricating plants	RPA
Master meter property* additional point of use protection may be required	RPA
Medical and dental buildings, behavioral health centers, assisted care facilities, rest and convalescent homes engaged in the diagnosis, care or treatment of human illness	RPA
Mobile home parks, RV parks, master planned communities, commercial plazas, apartment complexes, or any other property that is served by one or more master meters	RPA
Mortuaries	RPA
Multiple interconnected service connections or looped service connections	RPA
Oil and gas production or storage facilities	RPA
Paper and paper product production facilities	RPA
Plating facilities	RPA
Power plants	RPA
Premises or properties where a cross-connection is identified, or where a cross-connection previously occurred	RPA
Private fire lines with hydrants	RPA
Private fire lines without hydrants	DCVA
Properties or premises where non-potable water is used for irrigation	RPA
Public or semi-private swimming pools with self-levelers or automatic fillers: PVB at point of use, RPA at service connection	PVB or RPA
Radioactive material processing facilities	RPA
Reclaimed water is accessible onsite	RPA

Description of Cross Connection	Acceptable Level of Protection
Restaurants and convenience stores	RPA
Restricted, classified or other closed facilities	RPA
Sand and gravel plants	RPA
Schools, colleges, and universities	RPA
Sewage collection or treatment facilities	RPA
Shell buildings	RPA
Shopping centers served by master meters	RPA
Storm water drainage facilities	RPA
Water chemical treatment systems	RPA
Water trucks, water tanks pesticide or exterminator rigs, hydraulic sewer cleaning equipment; ALL vessels, reservoirs, and tanks: RPA or AG	RPA or AG
Waterfront facilities	RPA
When two or more uses, items, buildings, facilities, or activities identified in this Section are present or conducted, on the same premises or property, and served by the same service connection, the customer shall install a Reduced Pressure Principle Backflow Prevention Assembly (RPA).	RPA

* Additional point of use protection may be required consistent with this Chapter.

(Ord. No. 5909, § 2, 12-9-24)

8-1-9: POINT OF USE PROTECTION

(A) All equipment or appliances connected to a customer water system will be subject to evaluation for cross-connection potential and the degree of hazard presented to the customer water system. The customer must install and maintain point of use backflow protection at each such connection, as required by this section. The customer must have the backflow prevention assembly tested annually and ensure that reports are submitted to the Department.

(B) Backflow prevention assemblies must be installed no more than five (5) feet above finished floor level and be capable of being accessed for testing and maintenance, but may require the removal of an access panel, door or similar obstruction.

(C) Copper pipe must not be used downstream of a point of use Backflow Prevention Assembly where water is carbonated, deionized, distilled, or treated by reverse osmosis.

(D) Point of use reduced pressure assemblies must be installed with an air gapped drain line for the relief valve. This drain line must be as large, or larger than, the size of the RPA, and properly secured. The drain must be routed to a floor sink, mop sink, or other appropriate wastewater outlet. Flexible hose material is not permitted for use as a drain line.

(E) Point of use connections not on the list below may also be evaluated by the Department based on the degree of hazard, which will dictate the backflow protection required at the point of delivery. Multiple uses downstream of a point of use backflow protection are prohibited, unless approved by the Department.

Where approved by the Department, a single point of use backflow prevention assembly may be used to isolate a group of similar pieces of equipment, such as pedicure stations. The following list identifies the point of use backflow protection required for specific equipment and appliances:

Description of Cross Connection	**Acceptable Level of Protection**
Aquariums	AG, PVB, RPA, SVB
Aspirators (medical)	AVB, PVB
Autoclaves	RPA
Automotive Hose Reels	PVB, RPA, SVB
Autopsy and Mortuary Equipment	AVB, PVB, RPA
Auxiliary Water Source	AG, RPA
Baptismal Fonts	AG, PVB, RPA, SVB
Bedpan Washers	AVB, PVB
Boiler Make Up Lines	RPA
Boilers with Chemical Additives or Closed Loops	RPA
Bottle Washer	RPA
Car Wash Equipment	RPA
Carbonated Beverage Dispensers	RPA
Chemical and Soap Dispensers	AG, PVB, SVB
Colonic Cleansing Equipment	AG, RPA
Connection to Industrial Fluid Systems	AG, RPA
Cooling Towers/Chillers	RPA, PVB
Cuspidors	AVB, PVB
Dental Chairs	RPA
Dental Vacuum Pumps	RPA
Dishwashers (Commercial)	AG, PVB, RPA, SVB, AVB
Drain Line to Waste	AG
Eyewash/Emergency Shower on Flexible Hose	AG, PVB, RPA, SVB
Ice Cream, Yogurt, Gelato Makers (see water cooled condensers)	DCVA, RPA
Ice Makers	DCVA, Dual Check
Irrigation Systems	PVB, RPA
Irrigation Systems with Chemical Addition	RPA
Kitchen Equipment	AG, AVB, PVB, SVB
Lab Equipment	AVB, PVB, RPA
Model Trimmers	AG, PVB, RPA, SVB
Non-Carbonated Beverage Dispenser	DCVA, Dual Check
Pedicure Station	AG, PVB, RPA, SVB
Pet grooming stations	AG, AVB, PVB, SVB
Photo Processors	PVB, RPA, SVB
Plating Tanks	RPA
Reverse Osmosis Treatment	RPA

Description of Cross Connection	Acceptable Level of Protection
Sewage Ejectors	AG
Sewage Pumps	AG
Sewer Pipe Connections	AG
Shampoo Basins	AVB, PVB, SVB
Specimen Tanks	AVB, PVB
Steam Generator	RPA
Sterilizers	RPA
Swimming Pool Fill Lines	PVB, SVB, RPA
Tanks, Vats, or Vessels	AG, PVB, RPA, SVB
Thermalizer	RP
Trap Primers	AG
Warming Tables	AG, PVB, RPA, SVB
Water Cooled Condensers, Equipment with	AG, RPA,
Water Feature Fill Lines	PVB, RPA, SVB
Water Vending Machines	RPA
Yard Hydrants	RPA

(Ord. No. 5909, § 2, 12-9-24)

8-1-10: FIRE SPRINKLER SYSTEMS

(A) Fire sprinkler systems must have backflow protection in accordance with Section 8-1-8 and the following.

1. DCVA: The fire sprinkler system must be connected to the domestic water distribution system only. Installation must be in compliance with Mesa standards and specifications. There must be no physical connections to auxiliary or supplementary water sources. There must be no fire suppressing chemical additives used in a customer system employing a DCVA. Drains must discharge to atmosphere by air gap. Piping materials, fittings and appurtenances must conform to National Fire Prevention Association requirements.

2. RPA: Fire sprinkler systems where any form of chemical additive is used such as antifreeze, corrosion inhibitors, and foaming agents, as well as systems connected to auxiliary water sources are health hazards and any such connections to the public water system must be protected with a reduced pressure assembly. This includes private fire lines with hydrants.

3. A water service that provides both fire and domestic water service connections to properties that have a combined water system used for domestic applications and for fire suppression must be protected using a reduced pressure assembly. Point of use protection could also be required for each connection to this line.

(B) A fire sprinkler system is exempt from the provisions of this Section unless or until one of the following conditions occurs:

1. The existing detector or alarm check valve, which does not qualify as backflow protection, on the fire sprinkler system is unserviceable or requires replacement - upgrade to DCVA.

2. The fire sprinkler system is modified in any way- upgrade to DCVA.

3. The sprinkler density requirements increase - upgrade to DCVA.

4. A change in occupancy results in a more hazardous classification as determined by the City under the Fire Code - upgrade to DCVA.

5. Any form of chemical additive is used such as antifreeze, corrosion inhibitors, and foaming agents - upgrade to RPA.

(Ord. No. 5909, § 2, 12-9-24)

8-1-11: ASSEMBLY TESTING, MAINTENANCE, REPAIR AND RECORDS

(A) The customer is the responsible party to ensure the backflow is in properly working order, tested by the compliance date and to ensure the department has received the test reports.

(B) The customer must maintain any backflow protection such that it functions as designed by the manufacturer.

(C) The customer must cause all backflow prevention assemblies to be tested and serviced at least once each year prior to the compliance due date.

(D) The testing and servicing of each backflow prevention assembly shall be performed at the expense of the customer.

(E) The testing of backflow prevention assemblies must be performed by a recognized backflow prevention assembly tester, in accordance with Section 8-1-12. The Department will maintain and make available, upon request, to all persons required to install or maintain backflow protection, a list of recognized backflow prevention assembly testers.

(F) The testing of backflow prevention assemblies must be performed using the procedures described in section 9 of the University of Southern California, Foundation for Cross Connection Control and Hydraulic Research, Manual of Cross-Connection Control, Tenth Edition, October 2009.

(G) If the annual testing conducted under this Section reveals the backflow protection to be defective or not functioning as designed, repairs must be performed, including replacement of the backflow protection if necessary, by the compliance due date.

(H) If a customer discovers during the period between annual tests that a backflow protection is defective or is otherwise not functioning as designed, the customer must, within 15 calendar days of such discovery, perform any necessary repairs, including replacement of the assembly if it cannot be repaired.

(I) If any overhaul, repair, or replacement is performed on a backflow protection, a recognized backflow protection assembly tester must retest the backflow protection within 24 hours following such overhaul, repair or replacement.

(J) A record of each test conducted under this Section ("testing record") must be submitted to the Department within seven calendar days after completion of the testing activity for which the record is made or by the

compliance due date, whichever is sooner. Failure to submit testing records according to the terms of this Section will result in assessment of the backflow compliance late fee and potentially subject the customer to civil sanction pursuant to Section 8-1-16.

(Ord. No. 5909, § 2, 12-9-24)

8-1-12: RECOGNIZED BACKFLOW PREVENTION ASSEMBLY TESTERS

(A) Any person performing backflow maintenance and testing within the City must be a recognized backflow prevention assembly tester and meet all requirements of this Section. Recognized backflow prevention assembly tester applicants will be approved by the Department upon the applicant's submission and the Department's receipt of the following:

1. A completed Tester Application submitted on a form approved by the Department.
2. A signed City of Mesa Backflow Assembly Tester Agreement submitted on a form approved by the Department, in which the applicant agrees to follow all City Codes and Department procedures.
3. Proof that the applicant is a certified tester. This proof may take the form of a backflow prevention assembly tester certificate.
4. A current gauge accuracy or calibration report for any test equipment that may be used by the applicant to comply with the requirements of this Chapter.

(B) If the City determines that the preceding conditions have been satisfied, the Department will deem the applicant a recognized backflow prevention assembly tester.

(C) Recognized backflow prevention assembly testers must maintain their status as a current certified tester. Failure to maintain status as a certified tester will result in removal from the list of recognized backflow prevention assembly testers.

(D) Recognized backflow prevention assembly testers must conduct a calibration of all backflow prevention test equipment annually through an agency accepted by the Department. A backflow prevention test equipment accuracy report showing the recognized backflow prevention assembly tester's testing equipment to be functioning as designed by the manufacturer, must be submitted to the Department annually. An equipment accuracy report dated more than one year old will be considered expired. Recognized backflow prevention assembly testers without a current, unexpired equipment accuracy report on file with the Department will be removed from the list of recognized backflow prevention assembly testers.

(E) The Department may discipline recognized backflow prevention assembly testers that fail to comply with the City of Mesa Backflow Assembly Tester Agreement, requirements of this Chapter or Department procedures, including but not limited to engaging in improper test protocol, submitting any late testing record (a testing record is considered late if it is submitted more than seven calendar days after the test has been performed), fraudulent reporting, or other practices determined by the Department to be improper pursuant to the provisions of this Chapter.

(F) Discipline for non-compliance will generally be set forth in the City of Mesa Backflow Assembly Tester Agreement and can range from a warning to permanent suspension from testing within the City, depending on the nature and severity of the violation.

(G) Any tester suspended or removed from the list of recognized testers may appeal by submitting a written request for a hearing to the Department's Water Resources Director within 15 days of receipt of the written notice of suspension or removal. A hearing shall be held with the Water Resources Director within 15 days after the filing of the request. The decision of the Water Resources Director shall be final and binding.

(Ord. No. 5909, § 2, 12-9-24)

8-1-13: TERMINATION OF WATER SERVICE

(A) Service of water to any property or premises may be terminated by the Department if any of the following conditions are present:

a. Backflow protection is not installed as required by this Chapter, has been removed or bypassed, is not functioning as designed, has not been tested annually or any testing records have not been timely provided to the Department, or if unprotected cross connections exist on the property or premises.

(B) If any of the conditions described in subsection (A) presents an imminent hazard to the health or safety of the public water supply or the public, the Department may issue an Immediate Notice of Termination and take actions to terminate service and may also take such other actions as are necessary to abate and correct any conditions, defects, or violations described in the Notice of Termination. Thereafter, services will not be restored until such conditions or defects are corrected and all penalties and other fees and charges are paid, or a hearing in accordance with Title 1, Chapter 27 results in a final finding of no violation.

(Ord. No. 5909, § 2, 12-9-24)

8-1-14: DEPARTMENT MODIFICATION

In those instances where, upon the Department's reasonable professional judgment conditions warrant, the Department may modify the standard installation as provided in Sections 8-1-8 and 8-1-9, to provide a degree of backflow protection sufficient to protect against the degree of hazard.

(Ord. No. 5909, § 2, 12-9-24)

8-1-15: EXISTING CUSTOMERS

Customers that have water service prior to the effective date of this Chapter are subject to all requirements imposed by this Chapter.

(Ord. No. 5909, § 2, 12-9-24)

8-1-16: LATE FEE, CIVIL SANCTIONS

(A) A Backflow Compliance Late Fee will be assessed against each service connection for which a customer fails to timely meet the requirements imposed by Section 8-1-11 (I). The Backflow Compliance Late Fee shall be set forth in the schedule of Utility Service Fees and shall be in addition to all other applicable rates, fees and charges.

(B) The Department Director and inspectors within the Department, or such other persons as the City Manager may designate, are authorized to commence a civil code violation action under this Chapter as provided in Title 1, Chapter 27 of this Mesa City Code, and may also request that the Mesa City Prosecutor issue a complaint for criminal prosecution for violations of this Chapter.

(C) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings, or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances.

(D) A civil action for violations of this Chapter may be commenced, by issuance of a complaint in the manner set forth in Section 1-27-2. The complaint shall direct the person to appear, at the time and place stated, before the Mesa City Court or a Hearing Officer appointed as provided in Section 1-27-8. The complaint shall be served and administered in accordance with Sections 1-27-3 and 1-27-7.

(E) All hearings before the Mesa City Court or a Civil Hearing Officer shall be in accordance with Section 1-27-7 and Title 1, Chapter 27 generally. Hearings shall be informal, except that testimony shall be given under oath or affirmation. The technical rules of evidence shall not apply, except for statutory provisions relating to privileged communications. The City shall have the burden of proving all violations charged by a preponderance of the evidence. No prehearing discovery shall be permitted except under extraordinary circumstances as determined by the Court or Civil Hearing Officer.

(F) Upon an admission of the allegations of the complaint or a finding of violation in favor of the City by the Mesa City Court or Civil Hearing Officer, the Court or Hearing Officer shall enter a finding of responsibility and judgment against the person for civil sanctions in an amount not less than one hundred dollars ($100.00) or more than one thousand dollars ($1,000.00) for each violation of this Chapter, and each day of violation continued, shall be a separate offense.

(G) An appeal from a final judgment of the Court or Civil Hearing Officer may be taken in accordance with Title 1, Chapter 27 of this Mesa City Code and pursuant to the rules of procedure for special actions of the Arizona Supreme Court.

(Ord. No. 5909, §§ 2, 3, 12-9-24)

8-1-17: HABITUAL OFFENDER

Any person who violates a provision in this Chapter after previously having been found responsible for committing three (3) or more civil violations, whether by admission, payment of a fine, default, or judgment after hearing, shall be guilty of a criminal misdemeanor. The Mesa City Prosecutor is authorized to file a criminal misdemeanor complaint, in the Mesa City Court, against habitual offenders who violate this Section.

(Ord. No. 5909, §§ 2, 3, 12-9-24)

CHAPTER 2
ENVIRONMENTAL PROTECTION

ARTICLE I PARTICULATE POLLUTION SOURCES

8-2-1: PURPOSE AND APPLICABILITY

To limit the amount of particulate matter (PM_{10} or less) entrained into the ambient air from any property, operation, or activity as a result of the impact of human activities by requiring measures to prevent, reduce, or mitigate particulate matter emissions. These requirements shall apply to any activity, equipment, operation, and/or man-made or man-caused condition or practice that is capable of generating fugitive dust. (3465)

8-2-2: DEFINITIONS

For the purpose of this Article the following definitions shall apply: (3465)

BULK MATERIAL: Any organic or inorganic material that is capable of producing fugitive dust, including earth, rock, silt, sediment, sand, gravel, soil, fill, aggregate, dirt, mud, demolition debris, cotton trash, ABC, cinders, pumice, sawdust, feeds, grains, fertilizers, and dry cement. (3465)

CITY MANAGER: The City Manager appointed in accordance with Article III of the City of Mesa City Charter. (5061)

CIVIL HEARING OFFICER: The Mesa Zoning Administrator within the Development and Sustainability Department or such other person as designated by the City Manager. (5061)

CONTROL MEASURE: A technique, practice, or procedure used to prevent or minimize the generation, emission, entrainment, suspension, or airborne transport of fugitive dust. (3465)

DISTURBED SURFACE AREA: A portion of the earth's surface or material placed thereupon which has been physically moved, uncovered, destabilized, or otherwise modified from its undisturbed natural condition to an extent that it increases the potential for the emission of fugitive dust. Disturbed surface areas include shoulders of

paved roads; unpaved roads; haul roads; access points where unpaved traffic surfaces join paved roads; construction and demolition sites; unpaved parking, storage, and staging areas; bulk material stockpiles; wind and water erodible soils; vacant parcels; urban or suburban open areas, whether public or private lands. (3465)

DUST: Particulate matter which is capable of temporary suspension in air excluding that material emitted directly into the atmosphere in the exhaust of motor vehicles and other internal combustion engines. (3465)

DUST CONTROL PLAN: A written report that is required to be prepared by Maricopa County Air Pollution Control Rule 310 that describes all control measures to be implemented at a work site or in transit to and from a work site for any dust-generating operation. (3465)

DUST-GENERATING OPERATION: Any activity capable of generating fugitive dust, including, but not limited to, land clearing, earth moving, weed abatement, farming operations, excavating, construction, demolition, material handling, storage and transporting, vehicle use and movement, or the operation of any outdoor equipment, facilities, or unpaved parking or staging areas. (3465)

EARTH-MOVING OPERATION: The use of any equipment in a dust-generating operation. (3465)

FREEBOARD: The measured vertical distance taken where the bulk material touches the vertical sides of an unroofed enclosure or truck bed. (3465)

FUGITIVE DUST: Dust which is not collected by a capture system and is suspended in the ambient air. (3465)

GRAVEL PAD: A layer of at least one inch (1") or larger diameter washed gravel, rock, or crushed rock maintained at the point of intersection of a public access roadway and a work site entrance to dislodge mud, dirt, or debris from the tires of motor vehicles or haul trucks prior to leaving the site. (3465)

GRIZZLY: A mechanical device to dislodge mud, dirt, or debris from the tires and undercarriage of motor vehicles and haul trucks prior to leaving the work site. (3465)

HAUL ROAD: Any on-site unpaved road used by commercial, industrial, institutional, or governmental traffic. (3465)

HAUL TRUCK: Any fully or partially open-bodied, self-propelled vehicle including any nonmotorized attachments, such as trailers or other conveyances which are connected to or propelled by the actual motorized portion of the vehicle. (3465)

HAZARD: A condition that presents a risk to the public health or the environment. (3465, 5061)

IMMINENT HAZARD: A condition that presents an immediate likelihood for causing harm to the public health or the environment. (3465, 5061)

LANDSCAPE DEBRIS: Debris generated or accumulated as a result of or moved in the course of landscape operations. (4820)

MOTOR VEHICLE: Every device by which any person or property is or may be transported or drawn upon a street or highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks. (3465)

NOTICE TO ABATE: A notice issued to a responsible party concerning a violation of this Chapter of the Mesa City Code. (5061)

OFF-ROAD VEHICLE: Any self-propelled conveyance which includes off-road or all-terrain equipment, trucks, cars, motorcycles, motorbikes, or motor buggies. (3465)

OPACITY: Entrained particulate pollution that results in an increased optical density. (3465)

PARTICULATE MATTER: Any solid material which has a nominal aerodynamic diameter smaller than one hundred (100) microns (micrometers), and which exists in a finely divided form. (3465)

PERSON: Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, state, municipality, Indian tribe, political subdivision of the state, federal government agency, or any other legal entity, including their legal representatives, agents, or assigns. (3465)

PM_{10}: Particulate matter with an aerodynamic diameter smaller than or equal to ten (10) microns (micrometers) as measured by the applicable state and federal reference test methods. (3465)

PUBLIC STREET: A road, highway or thoroughfare that is used by the public or that is open to the use of the public as a matter of right, for the purpose of vehicle travel. (4820)

RESPONSIBLE PARTY: A person who knows or has reason to know of the existence of any violation of this Chapter on that person's property or property which that person occupies or controls, in whole or in part, including but not limited to an owner, occupant, lessor, lessee, manager, managing agent, licensee or any person who has legal care or control of the property. (5061)

STABILIZED SURFACE: A portion of the earth's surface or material placed thereupon with a visible crusted surface that has been made resistant to the formation of windblown dust pursuant to this Article. (3465)

TRACK-OUT: Any and all bulk materials that adhere to and agglomerate on the exterior surfaces of motor vehicles, haul trucks, or equipment (including tires) and that has fallen onto a public access roadway. (3465)

TRACK-OUT CONTROL DEVICE: A gravel pad, grizzly, wheel wash system, or a paved or otherwise stabilized area located at the point of intersection of an unpaved area and a paved roadway. (3465)

UNPAVED ROAD: Any road, equipment path, or driveway that is not covered by asphalt, asphaltic concrete, concrete pavement. (3465)

URBAN OR SUBURBAN OPEN AREA: An unsubdivided or undeveloped tract of land adjoining a residential, industrial, or commercial area. (3465)

VACANT PARCEL: A subdivided residential, industrial, institutional, governmental, or commercial lot which contains no approved or permitted buildings or structures of a temporary or permanent nature. (3465)

WINDBLOWN DUST: Visible emissions from any disturbed surface area which are generated by wind action alone. (3465)

WORK SITE: The real property upon which dust-generating operations occur. (3465)

8-2-3: PERMITS AND DUST CONTROL PLAN REQUIRED FOR DUST GENERATING OPERATIONS

(A) No person shall commence any earth-moving operation or dust-generating operation that will disturb 0.1 contiguous acre or greater without meeting the requirements of, obtaining, and submitting to the City Manager or designee any and all dust control permits and permits to operate required by Rule 200 of the Maricopa County Air Pollution Control Regulations. A properly executed Maricopa County dust control

permit including the dust control plan shall be submitted to the City Manager or designee. The City of Mesa will not issue a construction permit nor will verbal authorization be given to proceed with initial grading and drainage operations until an approved dust control permit with dust control plan have been submitted to the City. (3465, 4254, 5061)

(B) Provisions of Subsection (A) of this Section shall not apply to the following: (3465)

1. During emergency, life-threatening situations or in conjunction with any officially declared disaster or state of emergency. (3465)

2. To operations conducted by essential service utilities to provide electricity, natural gas, oil and gas transmission, cable television, telephone, water, and sewerage during service outages and emergency disruptions. (3465)

3. To nonroutine or emergency maintenance of flood control channels and water retention basins. (3465)

4. To vehicle test and development facilities and operations if both of the following conditions apply: (3465)

   (a) Dust is required to test and validate design integrity, product quality, or commercial acceptance; and (3465)

   (b) Such testing is not feasible within enclosed facilities. (3465)

8-2-4: COMPLIANCE LIMITS

(A) No person shall cause, suffer, allow, or engage in any dust-generating operation which causes fugitive dust emissions to exceed twenty percent (20%) opacity. (3465)

1. Opacity shall be determined by observations for visible emissions of stationary sources of fugitive dust and shall be conducted in accordance with techniques specified in Reference Method 9 adopted by the United States Environmental Protection Agency or by an equivalent method approved by the City of Mesa. (3465)

2. Opacity observations for intermittent sources of fugitive dust shall be conducted in accordance with this Section and shall not exceed twenty percent (20%) opacity for three (3) minutes within a thirty- (30-) minute period. (3465)

(B) No person shall allow any machinery or vehicles to exit from a construction or development site or from a special event site disturbed surface area and thereby cause to be deposited upon a street any accumulation of soil. (3465)

1. In addition, all work sites five (5) acres or larger must have a suitable track-out control device installed at all entrances to a public access roadway. (3465)

2. When spillage or track-out occurs onto any public access roadway, such deposits shall be cleaned up implementing control measures so as to prevent or minimize fugitive dust. Cleanup shall occur at the following frequency: (3465)

   (a) When deposits extend a cumulative distance of fifty (50) linear feet or greater onto any public access roadway, such deposits shall be cleaned up immediately. (3465)

(b) All other deposits onto a public access roadway shall be cleaned up within two (2) hours of their occurrence. (3465)

(c) Deposition onto roadways temporarily restricted from public access shall be cleaned up prior to resuming public access. (3465)

(C) No person shall cause, suffer, or allow the deposition of bulk materials onto any paved roadway, paved parking, or paved staging area from adjacent real property, whether by natural or man-caused forces of erosion. In the event that such deposits originating from the real property occur, the property owner, operator, or designated agent thereof shall undertake all of the following actions: (3465)

1. Remove any and all deposits utilizing the appropriate control measures within twenty-four (24) hours of the deposit's occurrence or prior to the resumption of traffic on pavement where the pavement area has been closed to traffic. City operations to clean streets after storm events when no party responsible for the deposits can be located are exempt from this requirement. (3465)

2. Dispose of the bulk materials resulting from the removal of these deposits in such a manner so as not to cause or become another source of fugitive dust. (3465)

(D) No person shall cause, suffer, or allow an unpaved or unstabilized vacant parcel or an urban or suburban open area to be driven over or used by motor vehicles or off-road vehicles without first implementing control measures to effectively prevent or minimize fugitive dust. (3465, 4820)

(E) No person shall operate, maintain, use, or allow the use of any unpaved area for the ingress and egress, parking, storage, servicing, or dispatching of motor vehicles at any developments, other than residential buildings with four (4) or fewer units, without first implementing one or more of the following dustproof paving methods: (4820, 5061)

1. Asphaltic concrete

2. Cement concrete

3. Penetration treatment of bituminous material and seal coat of bituminous binder and a mineral aggregate

4. A stabilization method approved by the City Manager or Designee. (4820)

(F) No person shall operate, maintain, use, or allow the use of any unpaved area greater than three thousand (3,000) square feet, at residential buildings with four (4) or fewer units, for the ingress and egress, parking, storage, servicing, or dispatching of motor vehicles at developments, without first implementing one or more of the following dustproof paving methods: (5061)

1. Asphaltic concrete

2. Cement concrete

3. Penetration treatment of bituminous material and seal coat of bituminous binder and a mineral aggregate

4. A stabilization method approved by the City Manager or Designee. (4820)

(G) No person shall cause or allow any vacant parcel to remain unoccupied, unused, vacant, or undeveloped for more than fifteen (15) days without first implementing control measures to effectively prevent or minimize fugitive dust. (3465)

(H) No person shall remove vegetation from any vacant parcel by blading, disking, plowing under, or any other means that disturbs 0.10 acres or more of soil surface without first obtaining a dust control permit with its applicable dust control plan from Maricopa County. Any person engaged in weed abatement activity shall implement control measures to effectively prevent or minimize fugitive dust. This Subsection shall not apply to City operations to create firebreaks by order of the Fire Department. (3465, 5061)

(I) No person shall disturb or remove soil, natural ground cover, or vegetation from any real property area without first implementing control measures to effectively prevent or minimize fugitive dust for the entire duration of the project including after-work hours, weekends, and holidays. (3465)

(J) Within four (4) months of the termination of activities on the property described in Subsection (A) of this Section, the owner or operator of such property shall implement permanent control measures to achieve a stabilized surface. (3465)

(K) No person shall cause, suffer, or allow the operation, use, or maintenance of any permanent haul road of more than fifty feet (50') in length at any work site unless the person implements control measures which effectively prevent or minimize fugitive dust. (3465)

(L) No person shall operate, maintain, use, or allow the use of any commercial feedlot or commercial livestock area for purposes of farming, feeding, or displaying animals, or engage in other activity such as racing and exercising, without first implementing control measures to effectively prevent or minimize fugitive dust as specified in Sections 8-2-4(A), (B), and (C) of this Article. (3465)

(M) No person shall cause, suffer, allow, or engage in the handling of bulk materials including stacking, loading, unloading, conveying, and reclaiming, without first implementing control measures to effectively prevent or minimize fugitive dust. (3465)

(N) No person shall cause, suffer, allow, or engage in the transportation of bulk materials unless in compliance with applicable requirements of this Section and without first implementing control measures to effectively prevent or minimize fugitive dust. (3465)

(O) No person shall cause, suffer, allow, or engage in the use or operation of any haul truck within the boundaries of a work site or on a public access roadway in such manner as to cause the emission of fugitive dust from its cargo space. The following requirements shall apply to the use and operation of any haul truck: (3465)

1. The cargo compartment of a haul truck shall be constructed and maintained so that no spillage or loss of bulk materials can occur from holes or other openings in the cargo compartment's floor, sides, or tailgate. (3465)

2. Any haul truck shall be cleaned or kept covered once emptied or between cargoes when the residual particulate matter remaining in the cargo space is capable of becoming fugitive dust. (3465)

3. All haul trucks shall be properly loaded so that the freeboard is not less than three inches (3") and shall be effectively covered with a tarp or other suitable enclosure; and (3465)

4. All haul trucks and motor vehicles shall pass over or through a track-out control device so as to effectively remove particulate matter from the exterior surfaces. (3465)

(P) No person shall cause, suffer, allow, or engage in the use, repair, construction, reconstruction, or improvement of any road, roadway, street, highway, or alley without first implementing control measures to effectively prevent or minimize fugitive dust. (3465)

(Q) No person shall at any time blow landscape debris into any public roadway. (4820)

(R) The provisions of this Section shall not apply to the following: (3465)

1. When the average wind speed is greater than twenty-five (25) miles per hour, provided that all dust-control measures including contingency measures contained in the approved dust control plan are implemented. The average wind speed determination shall be based on a sixty- (60-) minute average from the nearest Maricopa County Air Quality Department monitoring station or as approved by the City of Mesa by a wind instrument located at the site being checked. (3465, 5061)

2. Nonroutine or emergency maintenance of flood control channels and water retention basins. (3465)

3. Vehicle test and development facilities and operations if both of the following conditions apply: (3465)

   (a) Dust is required to test and validate design integrity, product quality, or commercial acceptance; and (3465)

   (b) Such testing is not feasible within enclosed facilities. (3465)

8-2-5: REQUIRED CONTROL MEASURES

(A) No person shall conduct any dust-generating operations without implementing control measures to effectively control or minimize fugitive dust. (3465)

(B) Persons subject to Subsection A of this Section shall select and effectively and appropriately implement control measures either individually or in combination in a manner that will control fugitive dust emissions to a level that shall not exceed the compliance limits prescribed in Section 8-2-4. If selected measures are not effective in preventing unacceptable emissions of fugitive dust, additional measures shall be implemented until compliance with Subsection A of this Section is achieved. (3465)

8-2-6: POSTING, RECORD KEEPING, AND RECORDS RETENTION

(A) A copy of the Maricopa County dust control permit and/or permit to operate as well as the approved dust control plan required by Section 8-2-3 must be kept readily available on site at all times. (3465, 5061)

(B) Any person subject to the requirements of Section 8-2-3 shall keep a daily written log recording the actual application or implementation of the control measures delineated in the approved dust control plan. This log and supporting documentation shall be kept on site and made available for review on request. (3465)

8-2-7: AUTHORITY TO INSPECT

(A) The Mesa Development and Sustainability Department or such other City division or department as the City Manager may designate is hereby authorized to make inspections for violations of this Chapter in the normal course of job duties or in response to a citizen complaint that an alleged violation of the provisions of this Chapter may exist or when there is a reason to believe that a violation of this Chapter has been or is being committed. (5061)

(B) In order to determine compliance with this Chapter, private property may be entered with the consent of the owner or occupant or as authorized by a court of competent jurisdiction. (5061)

8-2-8: COMMENCEMENT OF AN ACTION

(A) The City Manager or designee is authorized to commence an enforcement action under this Chapter by issuing a Notice of Abatement under this Chapter or a citation for civil sanctions under this Chapter, or both. They may also seek the issuance of a complaint by the Mesa City Prosecutor for criminal prosecution of habitual offenders as defined in this Chapter. (5061)

(B) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings, or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (3465, 5061)

8-2-9: REMEDIES NOT EXCLUSIVE

Violations of this Chapter are in addition to any other violation established by law, and this Chapter shall not be interpreted as limiting the penalties, actions, or abatement procedures which may be taken by the City or other persons under other laws, ordinances, or rules. (3465, 5061)

8-2-10: DEFENDANTS AND RESPONSIBLE PARTIES

Any responsible party who causes, permits, facilitates, aids, or abets any violation of this Chapter or who fails to perform any act or duty required pursuant to this Chapter, is subject to the enforcement provisions of this Chapter. Responsible parties may be individually and jointly responsible for the violations, the prescribed civil or criminal sanctions, for abatement of the violation and for any associated costs and fees. (3465, 4074, 5061)

8-2-11: CIVIL VIOLATIONS AND CITATION

(A) A civil action for violations of this Chapter may be commenced by issuance of a citation. (5061)

(B) The citation will be substantially in the form established by the City Manager or designee. The citation shall advise the responsible party of the violation(s) committed, either by written description of the violations or by designation of the City Code Section that was violated. The citation shall direct the responsible party to pay the civil sanction and all applicable fees in accordance with Section 8-2-12 of this Chapter within the time period specified on the citation or to appear before the Civil Hearing Officer within the time period specified on the citation and admit or deny the allegations contained in the citation.

The Civil Hearing Officer may permit amendments to the citation if substantial rights of the responsible party are not thereby prejudiced. The citation shall be served pursuant to the Arizona Rules of Civil Procedure. (5061)

(C) The responsible party shall, within the time period specified on the citation or within 10 calendar days of the issuance of the citation, whichever is greater, either pay the civil sanction and the fees, or appear in person, through an attorney or by e-mail with the clerk of the Civil Hearing Officer and admit or deny the allegations contained in the citation. (5061)

1. If the responsible party timely pays the civil sanction and the fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears in person, through an attorney or by e-mail and admits the allegations, the Civil Hearing Officer shall enter judgment against the responsible party in the amount of the civil sanction, plus any applicable fees designated in Section 8-2-12; or, (5061)

2. If the responsible party appears in person, through an attorney or by e-mail and denies the allegations contained in the citation, the clerk of the Civil Hearing Officer shall set the matter for hearing. (5061)

(D) If a person served with a citation fails to pay the civil sanction and the fees or to file on or before the time directed on the citation or at the time set for hearing by the Civil Hearing Officer, the allegations in the complaint shall be deemed admitted, and the Civil Hearing Officer shall enter a finding of responsible and a judgment for the City and impose the appropriate sanctions and fees. (5061)

(E) All proceedings before the Civil Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. No prehearing discovery shall be permitted, except under extraordinary circumstances as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Civil Procedure for special actions. (5061)

(F) Any person aggrieved by a decision of the Civil Hearing Officer, at any time within 30 calendar days after a final judgment has been rendered, may file a complaint of special action in Superior Court to review the Civil Hearing Officer's decision. Filing the complaint does not stay proceedings on the decision sought to be reviewed, but the Court may, on application, grant a stay and on final hearing, affirm or reverse, in whole or in part, or modify the decision reviewed. (5061)

8-2-12: CIVIL PENALTIES

(A) Any responsible party who is found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, shall pay a civil sanction of not less than $150 or more than $1,500. A second finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $250 or more than $2,500. A third finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an

enhanced civil sanction of not less than $500 or more than $2,500. In addition to the civil sanction, the responsible party shall pay the applicable fees and charges set forth in the City's Development and Sustainability Department (Code Compliance) Schedule of Fees and Charges, and may be ordered to pay any other applicable fees and charges. (5061)

(B) After entering a judgment of responsible and setting a civil sanction and fees as specified in Section 8-2-12(A), the Civil Hearing Officer may order a compliance hearing and set a date for such hearing. Upon presentation of evidence and/or testimony by the City inspector at the compliance hearing that the violation(s) specified in the complaint has been abated, the Civil Hearing Officer may reduce all or a portion of the civil sanction commensurate with the cost borne by the defendant to achieve compliance, or the Civil Hearing Officer may vacate the previous judgment and dismiss the citation(s). If, a minimum of 7 calendar days before a scheduled compliance hearing, the Civil Hearing Officer receives both of the following items, then the Civil Hearing Officer may issue written orders commensurate with the authority given in this Section, to reduce civil sanctions and/or vacate the related judgment without holding the scheduled compliance hearing: (5061)

1. Written and notarized confirmation from the City inspector that the violation has been successfully abated, and (5061)

2. A written and notarized statement from the defendant describing the actions taken and the itemized costs borne to abate the violation. (5061)

If either item has not been received by the Civil Hearing Officer 7 calendar days before, then the compliance hearing shall take place as previously scheduled. (5061)

(C) The 36 month provision of paragraph (A) of this Section shall be calculated by the dates the violations were committed. The responsible party shall receive the enhanced sanction upon a finding of responsibility for any violation of this Chapter that was committed within 36 months of the commission of another violation for which the responsible party was convicted or was otherwise found responsible, irrespective of the order in which the violations occurred or whether the prior violation was civil or criminal. (5061)

(D) Each day in which a violation of this Chapter continues or the failure to perform any act or duty required by this Chapter or by the Civil Hearing Officer continues shall constitute a separate civil offense. (5061)

8-2-13: RESERVED

Editor's note—Ord. No. 5061 repealed § 8-2-13.

8-2-14: HABITUAL OFFENDER

(A) A person who commits a violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on 3 separate dates and within a 36 month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be guilty of a Class 1 criminal misdemeanor. The Mesa City Prosecutor is authorized to file a Class 1 criminal misdemeanor complaint in the Mesa City Court against habitual offenders. For purposes of calculating the 36 month period under this paragraph, the dates of the commission of the offenses are the determining factor. (3465, 5061)

(B) Upon conviction of a violation of this Section, the court may impose a sentence authorized by the laws of the State of Arizona for a Class 1 misdemeanor, including incarceration not to exceed 6 months in jail or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law, or both. The court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than $500 for each count upon which a conviction has been obtained and be placed on probation for up to 36 months. The court may reduce such fines to $250 for each count upon which a conviction has been obtained provided all violations have been abated and the site is in compliance with all Sections of this Chapter within 90 days of sentencing. (3465, 5061)

(C) Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure. (3465, 5061)

8-2-15: FAILURE TO PROVIDE EVIDENCE OF IDENTITY

A person who fails or refuses to provide evidence of his identity to a duly authorized agent of the City upon request, when such agent has reasonable cause to believe the person has committed a violation of this Chapter, is guilty of a misdemeanor. Evidence of identity under this Section shall consist of a person's full name, residence address, and date of birth. (3465, 5061)

8-2-16: ABATEMENT

(A) In addition to or in lieu of filing a civil citation or criminal complaint, the City may serve a notice to abate any violation of this Chapter. (5061)

(B) The notice to abate shall set forth the following information: (5061)

1. The responsible party has 30 calendar days from service of the notice to abate or correct the violation. (5061)

2. Identification of the property in violation by street address, if known, and if unknown, then by legal description of the property or by Maricopa County book, map and parcel number. (5061)

3. Statement of the violation in sufficient detail to allow a reasonable person to identify and correct the violation(s). (5061)

4. Reinspection date and time. (5061)

5. Name, business address, and business phone number of the City inspector who issued the notice to abate. (5061)

6. A warning stating that if the violations are not corrected within the 30 calendar day period, the City may abate the problem itself or by private contractor, assess the responsible party for the cost of such abatement, and record a lien on the property for the assessment. (5061)

7. Hearing procedures. (5061)

8. Statement indicating that the 30 calendar day notice set forth in this Section shall not apply to emergency abatements pursuant to this Chapter. (5061)

(C) If the responsible party or other person served a notice to abate by the City pursuant to this Chapter fails to comply with such notice; the City may correct or abate the conditions subject to the notice if those conditions constitute a hazard. If the City corrects or abates those conditions, the City Manager or designee may prepare a verified statement as to the actual cost of correcting or abating the violation, including costs of inspection and other City-incurred costs associated with abating the violation. The statement shall be served pursuant to the Arizona Rules of Civil Procedure. That statement shall further set forth the following: (5061)

1. That the statement of costs is an assessment upon the lots and tracts of land from which the City corrected or abated the violation. (5061)

2. That the party has 15 calendar days from the date of delivery or mailing of the statement to pay. (5061)

3. In the event payment is not received in 15 calendar days, the City will place a lien on the property in the amount of the assessment. (5061)

4. Appeal procedures. (5061)

(D) The notice to abate and the statement of abatement costs shall be served to the responsible party pursuant to the Arizona Rules of Civil Procedure. (5061)

8-2-17: REQUEST FOR ABATEMENT HEARING

The responsible party receiving a notice to abate under this Chapter or a statement of costs incurred by the City in abating a hazard may appeal by requesting in writing a hearing and by serving such a request to the Development and Sustainability Department within 15 calendar days of service of the notice to abate or the statement of costs. The hearing shall be held before the Civil Hearing Officer as soon as practicable after the filing of the request. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Civil Procedure for special actions. If no written and timely request for hearing is made under this Section to the Development and Sustainability Department, then the notice of abatement or statement of costs is final and binding. (5061)

8-2-18: RECORDING AN ABATEMENT VIOLATION

The notice to abate and statement of costs shall run with the land. The City, at its sole option, may record a notice to abate or statement of costs with the Maricopa County Recorder and thereby cause compliance by a person thereafter acquiring such property. When the property is brought into compliance, a satisfaction of notice to abate shall be filed with the Maricopa County Recorder. (5061)

8-2-19: EMERGENCY ABATEMENT

(A) If a situation presents an imminent hazard to life or public safety, the City may issue a notice to abate directing the responsible party to immediately take such action as is appropriate to correct or abate the emergency described in the notice. In addition, the City may act immediately to correct or abate the emergency itself or may commence an action in Superior Court to enjoin the responsible party to abate the

imminent hazard. In the event the City is unable to contact the responsible party despite reasonable efforts to do so, it in no way affects the City's right under this Section to correct or abate the emergency itself. (5061)

(B) The City may recover its costs incurred in abating an imminent hazard under this Section in the same manner as provided for in Section 8-2-16(C). The responsible party may appeal the City's emergency abatement action under this Section or the City's statement of costs for an emergency abatement in the same manner as provided for in Section 8-2-17. (5061)

8-2-20: SUSPENSION OF CONSTRUCTION PERMIT OR LICENSE

Any construction permit or license issued by the City which authorizes work resulting in an alleged violation of Sections 8-2-3, 8-2-4 or 8-2-5 of this Chapter may be suspended pending abatement of said violation or final resolution of a civil hearing of the matter. (3465, 5061)

CHAPTER 3

SOLID WASTE

ARTICLE I GENERAL PROVISIONS

8-3-1: RESPONSIBILITY

It shall be the responsibility of every person, owner, tenant, or occupant of all premises within the City limits, hereinafter referred to as the customer, to properly control and dispose of all solid waste produced or occurring in or upon any and all premises owned, leased, or occupied by or for them in the manner provided herein. It shall be the duty of the municipal staff to provide for and enforce the provisions herein. (764, 1969, 3813)

8-3-2: DEFINITIONS

"Solid Waste" is defined as garbage, trash, rubbish, refuse, sludge from a wastewater treatment plant, water supply treatment plant, or pollution control facility and other discarded material, including solid, contained liquid, semisolid, or contained gaseous material but not including domestic sewage or dangerous hazardous wastes. Use of the term "refuse" or "garbage" in definitions and policy is synonymous with "solid waste." The subcategories of solid waste are as follows: (1969, 3813)

APPLIANCES AND SMALL HOUSEHOLD EQUIPMENT: Examples of appliances include, but are not limited to, washers, dryers, refrigerators, and freezers. Examples of small household equipment include, but are not limited to, a generator, lawn mower, and wet/dry shop vacuum. Appliances and small household equipment shall be considered solid waste if they are not in use, are in a state of disrepair, and are not properly stored, thereby causing an unsightly or hazardous condition to exist. (1969, 3813)

BULKY REFUSE: All large trimmings from trees and shrubbery, rugs, furniture, major appliances, mattresses, and other materials which are inappropriate or too large to be deposited into containers. (1969, 3813)

BUSINESS OR COMMERCIAL ESTABLISHMENT: A structure or premises used for retail, wholesale, warehouse, store, factory, production, processing, manufacturing, restaurant, construction, service, hospitals, governmental entities, public authorities (schools), apartments (5 or more units) for rent or lease that are subject to A.R.S. Title 33, Chapter 10, or office uses. (2374, 2931, 3813, 5305)

CONSTRUCTION AND DEMOLITION DEBRIS: Any solid waste resulting from a construction demolition project which would include lumber, scraps, shingles, plaster, brick, or concrete. This list is not inclusive but provides examples of typical construction debris. (1969, 3813)

CONTAINER: Shall include sixty- (60-), ninety- (90-), three hundred- (300-), and four hundred forty- (440-) gallon plastic barrels; two- (2-), three- (3-), four- (4-), six- (6-), and eight- (8-) cubic-yard metal bins; twenty- (20-), thirty (30-), and forty (40-) cubic-yard roll-off containers (approximate sizes); and compactors. (3813)

DANGEROUS OR HAZARDOUS WASTE: Any solid waste that can cause damage or injury to property or persons and is dangerous or hazardous by reason of its pathological, explosive, flammable, reactive, radiological, or toxic nature, including, but not limited to, all wastes defined by the provisions of A.A.C. Title 18, Chapter 8, Article 2. (494, 1969, 3813)

GARBAGE: All nonhazardous putrescible wastes, excepting sewage and body wastes, and the wrappings and containers resulting from the storage, preparation, serving, and otherwise using of foods in or upon all premises. (1969, 3813)

GREEN WASTE: Lawn and shrubbery clippings, leaves, weeds, and all large trimmings from trees and shrubbery. (3813)

RECYCLABLE MATERIALS: Any solid waste consisting of post-consumer materials which may be collected, separated, cleansed, treated, or reconstituted and returned to the economic stream in the form of raw materials or products. (3198)

RESIDENCE: Any structure or premises used as a domicile, dwelling, or habitation, including single-family dwellings, duplexes, tri-plexes, quad-plexes, patio homes, mobile home parks, trailer courts, rooming houses, boardinghouses, assisted living facilities, condominiums, townhouses, or any complex of the foregoing, and apartments (4 units or less). (2374, 3813, 5305)

SHARPS: Objects such as syringes, needles, and lancets that are used for insulin intake, blood samples, and for other medical purposes. (3813)

8-3-3: COLLECTION AGENCY

Solid waste shall only be collected by the City or by private haulers (business establishments only) that have obtained a permit, license, franchise, or contract from the City authorizing private collection. Solid waste deposited for collection shall become the property of the City, or authorized private hauler when approved by the City, upon collection. No person shall remove any or all such solid waste so collected. Pursuant to Section 8-3-9 of this Article, the City retains the ability to recover solid waste and recycling program costs. The City may provide collection services outside its borders in an unincorporated territory that is within three (3) miles of its border and within its municipal planning area. (764, 1969, 2290, 3813)

8-3-4: PREPARATION OF SOLID WASTE

All solid waste shall be prepared for collection or disposed of as follows: (1776, 1969)

(A) Solid Waste. The City shall furnish containers to commercial and residential customers, for the accumulation, storage, and collection of all solid waste. Customers will make every effort to keep such containers in good repair and in a sanitary condition. Containers found to be no longer serviceable through disrepair or maintained in an unsanitary condition will be replaced by the City and may be subject to the appropriate solid waste fees. All refuse must be bagged and tied, and placed in a container to be acceptable for collection to prevent the attraction of any flies or vectors. The City reserves the right to remove containers due to violations of this Chapter that result in endangerment to public health. (1969, 3813)

(B) Bulky Refuse. Bulky refuse and furniture shall be placed at the front curb, unless otherwise designated by the Solid Waste Division, tied in bundles or placed in boxes by the customer. Boxes and bundles shall not exceed four (4) square feet by four (4) square feet deep in measurement and not to exceed sixty (60) pounds in weight. Customers wishing to retain disposal boxes should mark the box "SAVE" in a readily visible manner. If the loads are not bundled or contained, the City will assess appropriate collection fees and disposal fees for program cost recovery. The Development Services Manager or designee may provide bulk item service to any residential or commercial customer, subject to the appropriate solid waste fees, if in the Development Services Manager's or designee's judgment a health or safety hazard exists in a public right-of-way. (1969, 3198, 3766, 3813)

(C) Green Waste. Green waste cut for disposal shall be bundled by the customer. Bundles must be tied securely by heavy twine or rope, with each bundle not to exceed four (4) square feet by four (4) square feet deep and not to exceed a weight of sixty (60) pounds. When bundles do not meet these requirements, charges for whatever method is necessary to collect the brush will be assessed to the property owner. Brush trimmed by contractors must be removed by the contractors. Brush may be placed in regular refuse containers but must readily fall out when emptied and shall not extend twelve inches (12") over the top edge of the container or be compacted or wedged in a manner which would impede collection. Upon notification by the Solid Waste Division, residents have ten (10) days to remove brush that does not conform to the requirements of this Subsection. Should the resident fail to comply, the City will remove the brush and charge the customer. (1969, 3198, 3813)

(D) Appliances and Small Household Equipment. The City will collect discarded appliances from dwelling premises, subject to the appropriate solid waste fees, that two (2) persons can readily lift into a collection vehicle. The customer shall remove or cause to be removed all other appliances, vehicles, or equipment classified as solid waste from their premises or the public right-of-way. Doors shall be removed from appliances or secured in such a way no one can enter. (1969, 3198, 3813)

(E) Dangerous and Hazardous Waste. The placement of dangerous and hazardous waste in solid waste containers is prohibited. No one shall collect, cause to be collected, place, or cause to be placed any dangerous or hazardous waste or similar materials from or in any container or from or upon any public or private property except as specifically permitted by the Arizona Department of Environmental Quality or the Federal Environmental Protection Agency. Oil shall be placed in a separate container, not inside refuse containers, and disposed of according to law. Sharps shall be placed inside puncture-resistant containers and disposed of according to law. (1969, 3813)

(F) Cactus. All cacti shall be placed in separate sealed cardboard boxes apart from other refuse. A cardboard box containing cactus shall be sealed and in condition to sustain the weight of the cactus when lifted. Failure to properly contain cactus will result in denial of service for collection. (1969, 3813)

(G) Soil and Concrete. Waste soil, concrete, masonry blocks, sod, and rocks shall be disposed of by the owner, tenant, or occupant of the premises and not placed in City bins or barrels. Specific City roll-off service is available for this type of material. (1969, 3813)

(H) Unsanitary, Offensive, and Animal Waste. Dead animals, excrement (pet waste only), and offal are the responsibility of the owner, tenant, or occupant of the premises and must be disposed of in a sanitary manner as follows. Collection by the Solid Waste Division of small domesticated (no farm animals) dead animals (weighing less than twenty-five (25) pounds), excrement (pet waste only), or offal will be made only if placed in a heavy-gauge plastic bag that will sustain the weight of the contents when lifted and will not be offensive to collection personnel or harmful to collection equipment. Dead animals (weighing less than one hundred fifty [150] pounds) will be removed by a contractor for City Animal Control upon request. (1969, 3198, 3813)

(I) Ownership of Solid Waste. Solid waste will remain the property and responsibility of the homeowner or City customer until collected by the City, wherein it becomes the property of the City. (1969, 3198, 3813)

(J) Abatement of Health Hazard. In addition to the other remedies provided for in this Section, if the Development Services Manager or designee determines that a customer's solid waste is creating a health hazard, the City may collect the customer's containers, subject to the appropriate solid waste fees, as often as necessary in an attempt to abate the health hazard. (3198, 3766, 3813)

8-3-5: CONTAINER PLACEMENT AND LOCATION FOR PICKUP

(A) All solid waste containers prepared for the City collection service shall be placed at the front curb, unless otherwise designated by the Solid Waste Division, in an easily accessible manner. The containers shall be set out after six (6:00) P.M. of the day preceding regular collection and no later than six (6:00) A.M. of the designated regular collection day. The containers shall be removed to no less than six feet (6') from the curb by six (6:00) A.M. of the day after collection. If a violation of this Subsection necessitates the City pullback of a container from the front curb, the City shall assess the charges for such pullback to the property owner. This Subsection shall not apply to containers that the City has placed permanently at the front curb. All containers and piles of refuse shall be so located as to not block the alley, sidewalk, mailbox, driveway, or gutter or otherwise be a hazard to pedestrian or vehicular traffic. (1969, 3198, 3813)

8-3-6: CLEANUP AND BURNING MATERIAL

The customer shall keep clean the area where the container is set out for pickup and also where a City container is stored. The customer shall keep solid waste from scattering from the pickup point to other premises and the public right-of-way. (1969, 3813)

Hot coals or ashes shall not be placed in containers. (1969)

8-3-7: UNATTENDED CONTAINERS

No person shall place, display, or maintain any unattended container for soliciting deposit of recyclable materials or donated items in any exterior location within the City limits, except in conformance with all of the following provisions: (2143)

(A) Such unattended containers may be located only within the parking lot of private property lawfully zoned, developed, and used for commercial or industrial purposes or at schools, churches, or charitable organizations which have similar parking facilities. (2143)

(B) Such unattended containers may be located only with the permission of the property owner, his agent, or the person in possession of the property, and the container owner's name and current telephone number shall be displayed thereon in a conspicuous location that is large enough to read. (2143, 3813)

(C) The owner of such unattended container and the property owner shall jointly or severally maintain all exterior areas within twenty-five feet (25') of the container free from litter. (2143)

8-3-8: INDISCRIMINATE DUMPING

It shall be the responsibility of the owner, tenant, or occupant of all premises in the City limits to be sure that solid waste is properly placed for collection. No person, without permission from any of the above, may dump into commercial dumpsters or residential containers. (1969)

No person may dump any unauthorized items in any alleys, streets, vacant lots, or premises. (1969, 3813)

8-3-9: CHARGES FOR SOLID WASTE SERVICE

The City Council shall by resolution set such rates for solid waste service and disposal as are necessary to produce adequate revenue to cover the cost of services rendered. If the City is required to remove solid waste or dangerous or hazardous waste that does not meet the requirements of this Chapter, the Development Services Manager or designee may assess charges for such removal to the property owner involved. (1969, 3198, 3766, 3813)

8-3-10: SCAVENGING

(A) No person, unless authorized by the owner of the solid waste, may remove, collect, or disturb solid waste in a container that is set out for collection for the purposes of recycling or disposal by the City, its agents, or a permittee. (3198,3813)

(B) No person, unless authorized by the City, may remove, collect, or disturb recyclable materials deposited for collection at any of the City's designated recycling drop-off and collection centers. (3198)

(C) City employees acting within the scope of their employment are not subject to the prohibitions described in this Section. (3198)

ARTICLE II PERMITS FOR COMMERCIAL OR INDUSTRIAL SOLID WASTE MANAGEMENT SERVICES AND RESIDENTIAL, COMMERCIAL, OR INDUSTRIAL RECYCLING SERVICES

8-3-11: DEFINITIONS

In this Article, unless the context otherwise requires: (2374)

BUSINESS OR COMMERCIAL ESTABLISHMENT: A structure or premises used for retail, wholesale, warehouse, store, factory, production, processing, manufacturing, restaurant, construction, service, hospitals, governmental entities, public authorities (schools), apartments (5 or more units) for rent or lease that are subject to A.R.S. Title 33, Chapter 10, or office uses. (2374,2931,5305)

COMMERCIAL OR INDUSTRIAL REFUSE: Any refuse generated by a business establishment. (2374)

COMMERCIAL OR INDUSTRIAL SOLID WASTE MANAGEMENT SERVICES: The collection, storage, processing, transportation, treatment, reclamation, or disposal of commercial or industrial refuse. (2374, 2761)

CONTAINER: Shall include sixty- (60-), ninety- (90-), three hundred- (300-), and four hundred forty- (440-) gallon plastic barrels; two- (2-), three- (3-), four- (4-), six- (6-), and eight- (8-) cubic-yard metal bins; twenty- (20-), thirty (30-), and forty (40-) cubic-yard roll-off containers (approximate sizes); and compactors and other containers approved by the City. (3813)

DANGEROUS OR HAZARDOUS WASTE: Any solid waste that can cause damage or injury to property or persons and is hazardous by reason of its pathological, explosive, flammable, radiological, or toxic nature, including, but not limited to, all wastes defined by the provisions of A.A.C. Title 18, Chapter 8, Article 2. (2374, 3813)

DEVELOPMENT SERVICES MANAGER: The Manager of the Development Services Department or his/her representative. (2374, 3766, 3813)

DISPOSAL: The physical transfer of refuse for purposes of recovery, other processing, or for placement at a site approved by the Arizona Department of Environmental Quality or other agency having jurisdiction. (2374)

PERMITTEE: A person who engages in, owns, or operates a service to collect, transport, dispose, or recycle commercial or industrial refuse generated within the City and has obtained a valid permit pursuant to the provisions of this Article. (3813)

PERSON: A corporation, company, partnership, firm, association, or society, as well as a natural person. (2374)

RECYCLE: Any manual or mechanical process which involves the collection or transportation of one (1) or more of the various components of recoverable refuse which have been or will be separated, concentrated, or sold. (2374)

RESIDENCE: Any structure or premises used as a domicile, dwelling, or habitation, including single-family dwellings, duplexes, tri-plexes, quad-plexes, patio homes, mobile home parks, trailer courts, rooming houses, boardinghouses, assisted living facilities, condominiums, townhouses, or any complex of the foregoing, and apartments (4 units or less). (2374, 3813, 5305)

RESIDENTIAL, COMMERCIAL, OR INDUSTRIAL SOLID WASTE RECYCLING SERVICES: The recycling of any residential, commercial, or industrial refuse. (2761)

RESIDENTIAL REFUSE: Any refuse generated by a residence. (2761)

8-3-12: PERMIT REQUIRED FOR REFUSE SERVICE; EXEMPTIONS

(A) Except as otherwise provided in this Section, no person shall engage in, operate as, or represent himself to the public as one who collects, transports, disposes, or recycles residential, commercial, or industrial refuse generated within the City unless that person has obtained a valid permit pursuant to the provisions of this Article. (2374, 2761)

(B) Any community, charitable, philanthropic, or similar organization may collect, transport, dispose of, or recycle residential, commercial, or industrial refuse without a permit upon approval of the Development Services Manager provided that no part of the earnings or receipts from such activities inure to the benefit of any private shareholder, individual, or corporation and provided that the organization was not established to circumvent the requirements of this Article. (2374, 2761, 3766, 3813)

(C) Governmental agencies engaged in the collection, transportation, disposal, or recycling of residential, commercial, or industrial refuse within the City shall be exempt from the provisions of this Article. If, however, a private refuse collector that has a contract with a governmental entity also collects private commercial or industrial refuse or recycles residential, commercial, or industrial refuse within the City limits, such private commercial enterprise is required to make application for a permit to operate within the City limits and to comply with all other provisions of this Article. (2374, 2761)

(D) This Section shall not be construed to prevent individual property owners from hauling their own refuse from their own premises to a legal point of disposal or recycling. (2374, 2761)

(E) All persons who primarily collect and dispose of or recycle scrap metal, scrap plastic, waste motor oil, human excreta, animal excreta or remains, yard wastes, medical wastes, infectious wastes, hazardous wastes, toxic wastes, residual construction debris, or any other similar category of solid waste that either requires a special state, county, or federal permit to handle or constitutes a limited category of waste that the private hauler specializes in collecting shall be exempt from the permit provisions of this Article. (2374, 2761)

8-3-13: INTEREST IN MULTIPLE PERMITS PROHIBITED

No person shall have an interest in more than one (1) permit issued pursuant to the provisions of this Article. For the purposes of this Section, the word "interest" includes ownership or control of five percent (5%) or more of any joint venture, partnership, or limited partnership or of the outstanding shares of a corporation. (2374)

8-3-14: PERMIT APPLICATION

(A) Every applicant for a permit under this Article or for renewal thereof shall file an application with the City Development Services Manager on the form provided by that officer and shall provide the following information and declarations: (2374, 3766, 3813)

1. The name, local address, permanent home and business address, and local telephone number(s) of the individual applying and of the organization or persons on whose behalf the application is made. (2374)

2. If the organization on whose behalf the application is made is a joint venture, partnership, or limited partnership, the names, local and permanent street addresses, and local telephone numbers of all partners and their percentage of participation. If the organization is a corporation, the

names, local and permanent street addresses, and local telephone numbers of all officers and the names, local and permanent street addresses, and telephone numbers of all shareholders owning an interest of five percent (5%) or more of the outstanding shares and their percentage of participation. (2374)

3. The names, local and permanent street addresses, and local telephone numbers of all officers of the organization on whose behalf the application is made. (2374)

4. Facts demonstrating that the applicant has arranged for the disposal or recycling of all residential, commercial, or industrial refuse collected and the location of such disposal or recycling site. (2374, 2761)

5. A description of all vehicles and equipment that the applicant owns or has under his control that will be used for the collection, transportation, disposal, or recycling of residential, commercial, or industrial refuse; the address(es) where all such vehicles will be kept and the land use classification under the Mesa Zoning Code of such location(s); a declaration that the applicant has sufficient equipment in good mechanical condition to adequately conduct the business of commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services if granted a permit; and facts demonstrating that said vehicles and equipment conform to all applicable provisions of A.R.S. Title 28 as amended. (2374, 2761)

6. A plan for the recycling of the residential, commercial, or industrial refuse that indicates, at a minimum: (2374, 2761)

   (a) How such refuse shall be sorted and separated for recycling purposes and who shall do the sorting and separating; (2374)

   (b) How such refuse shall be collected and transported for recycling purposes; (2374)

   (c) Where such refuse shall be disposed of and processed for recycling purposes and who shall do the processing; (2374)

   (d) Whether the applicant proposes to offer any incentives to encourage recycling and if so, the nature of such incentives; (2374, 2761)

   (e) Any other information demonstrating what the applicant will do to promote the availability of commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services and to stimulate competition in rendering such services. (2374, 2761)

7. Other information and identification as the Development Services Manager may require in order to discover the truth of the matters set forth in the application or to determine whether a permit should be granted. This may include submission to fingerprinting and photographing by the Mesa Police Department for the purpose of a police investigation in cases where there is reason to doubt the truthfulness of the application or reason to require further information regarding the qualifications and capabilities of the applicant. (2374, 3766, 3813)

8. Other information as the Development Services Manager may require which demonstrates that the applicant is able to render efficient and effective commercial or industrial solid waste management

or residential, commercial, or industrial solid waste recycling services and that the public health, safety, and welfare would be served by the granting of the permit to the applicant. (2374, 2761, 3766, 3813)

9. Whether the applicant has ever had any application for a like permit denied, revoked, suspended, or canceled by any public entity and the reason given therefor. (2374)

10. Proof that the applicant has obtained all insurance as required by State law. (2800)

11. The applicant shall provide the City with an emergency notification number (twenty-four- [24-] hour availability). In the event of an emergency, the Police or Fire Department may need to contact a representative of the company. (3813)

(B) Every permittee, as a condition to retention of such status, shall immediately file with the Development Services Manager any changes in the information and declarations furnished under Subsection (A), as such occur from time to time. (2374, 3766, 3813)

(C) A nonrefundable application fee shall be paid to the City with each initial and each renewal application for purposes of paying for the cost of processing such application and ensuring compliance with the permit. The application fee shall be calculated by adding a two hundred dollar ($200.00) base charge plus two hundred dollars ($200.00) for each vehicle to be used under the permit. If, however, new information which requires an investigation is submitted to or discovered by the Development Services Manager upon application for renewal of a permit or at any other time, an investigation fee sufficient to cover the City's investigative costs shall be required upon completion of such investigation. (2374, 3454, 3766, 3813)

8-3-15: PERMIT REQUIREMENT FOR ANNEXED AREAS

With respect to any person providing commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services in any area at the time of its annexation by the City, all such persons shall be subject to the requirements of this Article. Within thirty (30) days of the effective date of annexation, persons engaging in commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services in the annexed area who wish to continue operating after annexation shall apply to the Development Services Manager for a permit pursuant to Section 8-3-14. (2374, 2761, 2800, 3766, 3813)

8-3-16: EVALUATION AND DISPOSITION OF PERMIT APPLICATIONS; TERMS AND CONDITIONS

(A) The Development Services Manager shall issue or reissue a permit only after the applicant/permittee demonstrates that it is capable and qualified to render reliable commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services and that the public health, safety, and welfare will be substantially served by the issuance or reissuance of the permit. (2374, 2761, 3766, 3813)

(B) In making the determination required above, the Development Services Manager may consider, among other things, the application, all pertinent information, and whether: (2374, 3766, 3813)

1. The applicant/permittee has been convicted of a felony within five (5) years prior to application. (2374)

2. The applicant/permittee has had a civil judgment entered against him within five (5) years of the date of the application in a case involving allegations of misrepresentation, fraud, dishonesty, or price-fixing where the subject matter involved the rendering of refuse collection, transportation, or recycling services. (2374)

3. The applicant/permittee has violated or failed to comply with this Article or any sanitation law of this state or any other state. (2374)

4. The applicant/permittee has been delinquent for more than forty-five (45) days in the payment of taxes or fees to the City or to any unit of government having jurisdiction. (2374)

5. The applicant/permittee has filed with the City or any other city any document which contains information which is false or misleading. (2374)

6. The applicant/permittee is unable to pay debts as they fall due in the regular course of business or is otherwise in such financial condition that he cannot continue in business with safety to his customers or the public. (2374)

(C) In case of a partnership, corporation, or any other group or association, it is sufficient cause for denial or revocation of a permit if any member of such persons or officer or director thereof has performed an act or failed to perform an act which would be cause for denying or revoking a permit of an individual agent for such person. (2374)

(D) Permits issued under this Article shall have a term of twelve (12) months from the date of issuance. The permit shall authorize commercial or industrial solid waste management or residential, commercial, or industrial solid waste recycling services Citywide subject to the permittee's compliance with the permit, all requirements of this Chapter, and all requirements of county, state, and federal law. (2374, 2761)

(E) All permittees shall furnish their customers with containers consistent with the permit issued under this Article and necessary and appropriate to maintain a clean and sanitary condition on the customers' premises. Such containers shall display conspicuously the business name of the permittee and telephone number and shall be located so as: (2374, 2761, 2800, 3813)

1. Not to interfere with vehicular or pedestrian traffic; (2761)

2. Not to interfere with City-owned containers; and (2761, 3813)

3. To conform with all requirements of law. (2374, 2761)

(F) Permittees shall not remove refuse from any business establishment that is located within five hundred feet (500') of a residence between the hours of seven (7:00) P.M. and six (6:00) A.M. Failure to comply with this Section will result in a civil citation under Section 8-3-41. (2374, 3813)

(G) Except as authorized for recycling purposes under this Article, no permittee shall collect, remove, salvage, transport, or dispose of any refuse or other waste of any kind produced by, kept on, or accumulated within or upon any residence, including single-family dwellings, multifamily dwelling units, duplexes, patio homes, mobile home parks, trailer courts, rooming houses, boardinghouses, apartments, condominiums, townhouses, assisted living facilities, or complexes of any of the foregoing. (2374, 2761, 3813)

(H) All contracts for service executed by a permittee under this Article shall contain a clause subjecting the contract to cancellation by the customer in the event the permittee's permit is revoked by the City. (2374)

(I) In the event the City Council determines that legitimate governmental purposes would be advanced by having the City exclusively provide residential, commercial, or industrial solid waste recycling services and it is not otherwise prohibited by law, the Council may act to prohibit the issuance of permits to perform such services. The City shall not be liable to any permittee for any damages of any kind claimed to result from the actions taken pursuant to this Section. All permits issued for residential, commercial, or industrial solid waste recycling services shall bear a statement indicating that the permit shall expire at the end of twelve (12) months and that it is not automatically renewable. The permit shall indicate that the permittee understands that it will not be entitled to damages of any kind in the event that the City Council determines that such permits will not be issued in the future. All permits shall be acknowledged. (2761)

(J) All permittees engaging in recycling shall report annually to the Development Services Manager on forms provided stating the amounts and type of refuse collected for recycling during the preceding year. (2761, 3766, 3813)

8-3-17: RENEWAL OF PERMITS

Permits may be renewed annually by the Development Services Manager or designee upon application by a permittee and if the Development Services Manager or designee makes the findings required by Section 8-3-16 of this Article. Application for permit renewal shall be submitted by permittees not less than forty-five (45) days prior to the expiration of the current permit and shall be submitted in the same manner as prescribed in Section 8-3-14. (2374, 2800, 3766, 3813)

8-3-18: TRANSFER OF PERMITS PROHIBITED

Permits issued under the provisions of this Article and all other rights or privileges created under this Article shall have no property value to the holder and may not be sold, transferred, or assigned. (2374)

8-3-19: INSURANCE

All permittees for residential, commercial, or industrial solid waste management or recycling services shall secure, maintain, and keep in force throughout the term of the permit insurance coverages as required by State law. (2374, 2761, 2800)

8-3-20: REVOCATION OF PERMIT

Any permittee that is found responsible for three (3) civil citations pursuant to the Mesa City Code within six (6) months may have the permit revoked for a period of twelve (12) months. Notice of proposed revocation shall be served by personally delivering or by mailing by registered mail to the permittee, with service becoming effective either immediately upon personal service or five (5) calendar days from the date of mailing. The revocation shall become effective eleven (11) calendar days after receipt unless permittee has filed a request for a hearing pursuant to Section 8-3-21 of this Article. Once a permit has been revoked, the permittee must wait twelve (12) months before reapplying for a permit with the Solid Waste Division. (2374, 2761, 2800, 3766, 3813)

8-3-21: APPEAL FROM DENIAL OR REVOCATION; PROCEDURE AND NOTICE

Any person whose request for a permit is denied or who has received notice of proposed revocation may, within ten (10) calendar days after receipt of notice of such denial or revocation, file in the office of the Development

Services Manager a written request for a hearing before the Development Services Manager. Such request shall contain the name and address of the person, together with a brief statement as to why such denial or proposed revocation should be reversed. The decision of the Development Services Manager may be appealed by the applicant or permittee within seven (7) days after receipt thereof to the City Manager. The decision of the City Manager shall be final. (2374, 3766, 3813)

8-3-22: DANGEROUS OR HAZARDOUS WASTE

No permittee shall collect, cause to be collected, place, or cause to be placed any dangerous or hazardous waste or similar materials from or in any container or from or upon any public or private property except as specifically permitted by the Arizona Department of Environmental Quality or the federal Environmental Protection Agency. (2374, 3813)

8-3-23: VIOLATIONS (Repealed)

Editor's note—Ord. No. 3198 repealed § 8-3-23.

8-3-24—8-3-27: RESERVED

ARTICLE III RECYCLING PROGRAM

8-3-28: DEFINITIONS

In addition to the other terms defined in this Chapter, the following terms shall mean: (2863)

BLACK BARREL: A black sixty- (60-), ninety- (90-), or four hundred forty- (440-) gallon container (approximate sizes) to be used for collection of nonrecyclable materials by the City. (2863, 3813)

BLUE BARREL: A blue sixty- (60-), ninety- (90-), or three hundred- (300-) gallon container (approximate sizes) to be used for collection of residential recyclable materials by the City. (2863, 3198, 3813)

NONPARTICIPANT: A residential customer within any area of the City where the residential recycling program is in effect who is not participating in the residential recycling program, either by choice or by action of the City. (2863)

NONRECYCLABLE MATERIALS: Solid waste that the City has not deemed recyclable under Section 8-3-29 of the Mesa City Code. (2863)

PROHIBITED RECYCLE BARREL WASTE: Waste generated by a residential customer that is nonrecyclable under Section 8-3-30(A).

RESIDENTIAL RECYCLABLE MATERIALS: Solid waste generated by a residential customer that the City deems acceptable for recycling as described in Section 8-3-29 of the Mesa City Code. (2863, 3198)

RESIDENTIAL RECYCLING PROGRAM: A method of solid waste collection developed by the City to integrate recycling into the mechanized residential collection system used in the City. (2863)
(Ord. No. 5537, § 2, 12-2-2019)

8-3-29: COLLECTION OF RESIDENTIAL RECYCLABLE MATERIALS

(A) Under the residential recycling program, the City will provide residential customers a second clearly identified recycle barrel in which to place specified residential recyclable materials.

(B) The following items, if clean, are acceptable residential recyclable materials. Other recyclable commodities may be added to or deleted from the program by the City Manager or designee.

1. Empty, clean, and dry beverage bottles, jugs, and cans made from plastic, glass, steel or aluminum;
2. Empty, clean, and dry metal food cans;
3. Corrugated cardboard;
4. Mixed paper including office paper, newspaper, mail, and magazines.

(C) Residential customers participating in the residential recycling program can receive from the City once-per-week collection of residential recyclable materials placed into recycle barrels and once-per-week collection of nonrecyclable materials placed into black barrels. The City Manager or designee will designate specific collection days each week, including holidays.

(D) Residential recyclable materials placed inside a recycle barrel shall not be bagged or contained.

(E) Residential customers participating in the residential recycling program must bag and securely tie their garbage and place it inside a black barrel.

(2863; 3198; 3766; 3813; Ord. No. 5537, § 3, 12-2-19)

8-3-30: RECYCLING PROGRAM COMPLIANCE AND NONPARTICIPANTS

(A) Customers that dispose of any of the following prohibited wastes in their recycle barrel shall be subject to having the barrel immediately retrieved by the City:

1. Animal waste;
2. Human waste;
3. Dangerous or hazardous waste;
4. Food waste;
5. Green waste;
6. Construction debris or inert material.

(B) Customers that place items in the recycle barrel that, while not prohibited wastes, are also not acceptable recyclable materials, will be notified in writing by the City. After a minimum of two (2) notifications have been given explaining their lack of compliance with this Article, the recycle barrel will be retrieved by the City. The City may make such notifications based upon a determination that a violation of this Article has occurred.

(C) A nonparticipant shall not receive a recycle barrel and will receive once-per-week solid waste collection consistent with Article I of this Chapter and subject to payment of applicable rates, fees and charges. If an

additional black barrel is needed or desired by the nonparticipant, barrels may be available at the applicable rate. The City Manager or designee may require any residential customer to subscribe to additional black barrels, subject to the appropriate solid waste rates, if a health hazard exists.

(2863; 3198; 3766; 3813; Ord. No. 5537, § 4, 12-2-19)

8-3-31: RE-ENTRY AS A PARTICIPANT

(A) Residential customers determined by the City to be nonparticipants may notify the City that they desire to re-enter the residential recycling program. Such notification may occur no earlier than three (3) months after being designated by the City as a nonparticipant. The Development Services Manager or designee may waive this three- (3-) month period based upon a determination that special circumstances exist and that it would be in the best interest of the City to allow re-entry sooner. (2863, 3198, 3766, 3813)

(B) The Development Services Manager or designee also may designate a fee to cover costs associated with distributing blue barrels and information by City personnel to residents re-entering the recycling program. (2863, 3766, 3813)

8-3-32: APPEAL PROCESS

Any person who has been designated by the City as a nonparticipant may file, within ten (10) calendar days after receipt of notice from the City of such designation, in the Development Services Manager's office a written request for a hearing before the Development Services Manager or designee. Such request shall contain the name and address of the person, together with a brief statement as to why such designation should be reversed. The decision of the Development Services Manager or designee may be appealed to the City Manager by the residential customer within seven (7) days after receipt thereof. The decision of the City Manager shall be final. (2863, 3198, 3766, 3813)

ARTICLE IV RESIDENTIAL GREEN WASTE RECYCLING PROGRAM

8-3-33: DEFINITIONS

In addition to the other terms defined in this Chapter, the following terms shall mean: (3813)

BLACK BARREL: A black sixty- (60-), ninety- (90-), three hundred- (300-), or four hundred forty- (440-) gallon container (approximate sizes) to be used for collection of nonrecyclable materials by the City. (3813)

GREEN BARREL: A green ninety- (90-) gallon container (approximate size) to be used for collection of residential green waste materials by the City. (3813)

NONPARTICIPANT: A residential customer within any area of the City where the residential green waste recycling program is in effect, who is not participating in the residential green waste recycling program; either by choice or by action of the City. (3813)

NONRECYCLABLE MATERIALS: Solid waste that the City has not deemed recyclable under Section 8-3-34 of the Mesa City Code. (3813)

RESIDENTIAL GREEN WASTE RECYCLABLE MATERIALS: Solid waste generated by a residential customer that the City deems acceptable for green waste recycling as described in Section 8-3-34 of the Mesa City Code. (3813)

RESIDENTIAL GREEN WASTE RECYCLING PROGRAM: Collection of acceptable green waste recyclable materials by the mechanized residential collection system used in the City. (3813)

8-3-34: COLLECTION OF RESIDENTIAL GREEN WASTE RECYCLABLE MATERIALS

(A) Under the residential green waste recycling program, the City will provide residential customers, upon request, a clearly identified green barrel in which to place specified residential green waste recyclable materials. The City retains the ability to recover costs associated with this program subject to City Council approval. (3813)

(B) The following items are residential green waste recyclable materials: (3813)

1. Grass, (3813)
2. Leaves, (3813)
3. Tree branches, (3813)
4. Clippings, (3813)
5. Prunings, and (3813)
6. Cacti. (3813)

(C) In addition to the standard once-per-week collection of nonrecyclable materials in black barrels and recyclable materials in blue barrels, residential customers participating in the residential green waste recycling program shall receive once-per-week collection of residential green waste recyclable materials placed into green barrels from the City. The Development Services Manager or designee will designate specific collection days each week, including holidays. (3813)

(D) Residential green waste recyclable materials placed inside a green barrel shall not be bagged or contained and should conform to all residential green waste recycling program guidelines consistent with this Article. (3813)

(E) Residential customers participating in the residential green waste-recycling program shall bag and securely tie their garbage and place it inside a black barrel. (3813)

8-3-35 GREEN BARREL RECYCLING PROGRAM COMPLIANCE

(A) Customers that dispose of any of the following prohibited wastes in their green barrel will be subject to having the barrel immediately retrieved by the City:

1. Human waste,
2. Dangerous or hazardous waste,
3. Food waste,
4. Construction debris, and any other solid waste.

(B) Customers not complying with this Article by placing cacti, oleander trimmings, or palm fronds will be notified in writing by the City of their status as nonparticipants. After a minimum of two (2) notifications have been given explaining their lack of compliance with this Article, the green barrel will be retrieved by the City.

(Ord. No. 5537, § 5, 12-2-19)

Editor's note—Ord. No. 5537, § 5, adopted December 2, 2019, repealed the former § 8-3-35, and enacted a new § 8-3-35 as set out herein. The former § 8-3-35 pertained to recycling program nonparticipants and derived from Ord. No. 3813.

8-3-36: RE-ENTRY AS A PARTICIPANT

(A) Residential customers determined by the City to be nonparticipants may notify the City that they desire to re-enter the residential green waste recycling program no earlier than three (3) months after being designated by the City as a nonparticipant. The Development Services Manager or designee may waive this three- (3-) month period based upon a determination that special circumstances exist and that it would be in the best interest of the City to allow early re-entry. (3813)

(B) The Development Services Manager or designee also may designate a fee to cover costs associated with distributing green barrels and information by City personnel to residents re-entering the recycling program. (3813)

8-3-37: APPEAL PROCESS

Any person who has been designated by the City as a nonparticipant may file a written request for a hearing before the Development Services Manager or designee within ten (10) calendar days of receipt of nonparticipant designation. Such a request shall contain the name and address of the person, together with a brief statement as to why such designation should be reversed. The decision of the Development Services Manager or designee may be appealed to the City Manager by the residential customer within seven (7) days after receipt thereof. The decision of the City Manager shall be final. (3813)

8-3-38, 8-3-39: RESERVED

ARTICLE V ENFORCEMENT

8-3-40: COMMENCEMENT OF AN ACTION

(A) The Solid Waste Management Director and the inspectors within the Solid Waste Division or such other persons as the City Manager may designate are authorized to commence an enforcement action under this Chapter, including requesting that the Mesa City Prosecutor issue a complaint for criminal prosecution. (3198, 3813)

(B) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings, or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (3198)

8-3-41: CIVIL SOLID WASTE VIOLATIONS

(A) A civil action for violations of this Chapter may be commenced by issuance of a citation that is substantially in the form established or approved by the Solid Waste Management Director. The citation shall include relevant information about the violator, such as full name, residence address, driver's license number (if any), and vehicle license number (if applicable), and shall advise the person of the violation(s) committed. The citation shall direct the person within ten (10) calendar days to pay a fine of fifty dollars ($50.00) or appear before a City employee designated by the City Manager as a Civil Hearing Officer. The citation shall be served by delivering or mailing a copy to the person, with service becoming effective either immediately upon personal service or five (5) calendar days from the date of mailing. (3198, 3813)

(B) Within ten (10) days of receipt of a citation issued under Subsection (A), a person shall either pay the civil fine or appear in person or through an attorney before a Civil Hearing Officer. At such an appearance, the person shall either admit or deny the allegations contained in the citation. If the person pays the fine, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense described in the citation. If the person appears and admits the allegations, the Civil Hearing Officer shall enter judgment against the person in the amount of fifty dollars ($50.00). If the person appears and denies the allegations contained in the citation, the Civil Hearing Officer shall set the matter for hearing. (3198)

(C) All hearings before the Civil Hearing Officer shall be informal, except that testimony shall be given under oath or affirmation. The technical rules of evidence shall not apply, except for statutory provisions relating to privileged communications. The City shall have the burden of proving all violations by a preponderance of the evidence. No prehearing discovery shall be permitted except under extraordinary circumstances as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. Upon a finding by the Civil Hearing Officer after the conclusion of the hearing that the person violated this Chapter, the Civil Hearing Officer shall enter a finding of responsibility and judgment against the person in an amount not less than one hundred dollars ($100.00) or more than five hundred dollars ($500.00) for each violation of this Chapter, and each day of violation continued shall be a separate offense. (3198)

(D) An appeal from a final judgment of the Civil Hearing Officer may be taken pursuant to the rules of procedure for special actions of the Arizona Supreme Court. (3198)

(E) If a person served with a citation fails to pay the fine or to appear on or before the time directed to appear or at the time set for hearing, the allegations shall be deemed admitted, and the Civil Hearing Officer shall enter a finding of responsibility and judgment against the person in an amount not less than one hundred dollars ($100.00) or more than five hundred dollars ($500.00) for each violation of this Chapter, and each day of violation continued shall be a separate offense. (3198)

(F) Any civil fine or judgment for civil sanctions issued pursuant to this Article shall constitute a lien against the real property of the responsible party that may be perfected by recording a copy of the fine or judgment with the Maricopa County Recorder. Any judgment for civil fines pursuant to this Chapter may be collected as any other civil judgment. (3198)

8-3-42: HABITUAL OFFENDER

(A) Any person who violates a provision in this Chapter after previously having been found responsible for committing three (3) or more civil violations under Section 8-3-41 within a twenty-four- (24-) month period, whether by admission, payment of a fine, default, or judgment after hearing, shall be guilty of a criminal misdemeanor. The Mesa City Prosecutor is authorized to file a criminal misdemeanor complaint in the Mesa City Court against habitual offenders who violate this Section. For purpose of calculating the twenty-four- (24-) month period under this Subsection, the dates of the commission of the offenses shall be the determining factor. (3198)

(B) Upon conviction of a violation of this Section, the Court may impose a sentence of incarceration not to exceed six (6) months in jail or a fine not to exceed two thousand five hundred dollars ($2,500.00), exclusive of penalty assessments prescribed by law, or both. The Court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than five hundred dollars ($500.00) for each count upon which a conviction has been obtained. A judge shall not grant probation to or suspend any part or all of the imposition or execution of any sentence required by this Subsection except on the condition that the person pay the mandatory minimum fines as provided in this Subsection. (3198)

(C) Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure. (3198)

8-3-43: FAILURE TO PROVIDE EVIDENCE OF IDENTITY

A person who fails or refuses to provide evidence of the person's identity to a duly authorized agent of the City upon request, when such agent has reasonable cause to believe that the person has committed a violation of this Chapter, shall be guilty of a criminal misdemeanor. Evidence of identity under this Section shall consist of a person's full name, residence address, and date of birth. (3198)

CHAPTER 4

SANITARY SEWER REGULATIONS

8-4-1: DEFINITIONS

ACT OR THE ACT: Federal Water Pollution Control Act, as amended, 33 U.S.C. §§ 1251 et seq.

APPROVAL AUTHORITY: The Arizona Department of Environmental Quality or Administrator for Region IX of the EPA.

APPROVED LABORATORY PROCEDURES: The measurements, tests and analyses of the characteristics of water and sewage in accordance with analytical procedures as established in Title 40, CFR, Part 136, as revised, that are performed by an environmental laboratory licensee by the state pursuant to A.R.S. §§ 36-495, et seq. Alternative procedures may be approved by the Water Resources Director or designee in accordance with applicable federal regulations.

AUTHORIZED REPRESENTATIVE OF AN INDUSTRIAL USER: means:

(A) If the user is a corporation:

1. The president, secretary, treasurer, or vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

2. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for wastewater discharge permit requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(B) If the user is a partnership or sole proprietorship: a general partner or proprietor, respectively.

(C) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or his/her designee.

(D) The individuals described in subsections (A) through (C) above may designate another authorized representative if the authorization is made in writing, the authorization specifies the individual or a position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company or facility, and the written authorization is submitted to the City.

AVAILABLE: A public sewer line is located within six hundred sixty (660) feet of a property's boundary line, has sufficient capacity for the requested connection, an extension of the line can be engineered to meet the city's standards, and the physical circumstances of the right-of-way and the surrounding property will reasonably permit the extension. What is "reasonable" shall be determined in the sole judgment of the City.

AMALGAM SEPARATOR: A device that employs filtration, settlement, centrifugation, or ion exchange to remove dental amalgam and its metal constituents from a dental office vacuum system before it discharges to the sanitary sewer; has been certified under the International Organization for Standardization's standards for amalgam separators is capable of removing a minimum of ninety-five (95) percent of the dental amalgam at flow rates comparable to the flow rate of the actual vacuum suction system in operation; and does not have any automatic flow bypass.

AMALGAM WASTE: Means and includes non-contact dental amalgam (dental amalgam scrap that has not been in contact with the patient): contact dental amalgam (including, but not limited to, extracted teeth containing amalgam); dental amalgam sludge captured by side chair side traps, vacuum pump filters, screens, and other dental amalgam.

BEST MANAGEMENT PRACTICES (BMPs): Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 8-4-15 and 40 CFR § 403.5(a)(1) and (b). BMPs are pretreatment requirements and include, but are not limited to, operating

procedures and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage. BMPs also include alternative means (i.e., management plans) of complying with, or in place of, certain established categorical pretreatment standards and effluent limits.

BIOCHEMICAL OXYGEN DEMAND (BOD): The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory conditions for five (5) days at a temperature of twenty degrees centigrade (20°C), expressed as a concentration (e.g. milligrams per liter (mg/L)).

BRANCH SEWER: A sewer which receives wastewater from lateral sewers from a relatively small area.

BUILDING CONNECTION: The connection to the public sewer and the extension therefrom of the sewer to the property line in an alley or street or to the easement line in an easement, whichever is applicable, depending on the location of the public sewer.

BUILDING SEWER: A private conveyance for transporting wastewater from a person's premises to a private sewer or the POTW. The building sewer includes the tap.

BYPASS: The intentional diversion of wastewater from any portion of a pretreatment process.

CATEGORICAL STANDARDS: National/federal categorical pretreatment standards promulgated by the EPA under the authority of CWA § 307(b) and (c) which apply to a specific category of industry and which are published in 40 CFR Chapter I, Subchapter N (Parts 401 et seq.) issued in accordance with § 307 of the CWA.

CHEMICAL OXYGEN DEMAND (COD): A measure of the oxygen required to oxidize all compounds, both organic and inorganic in water, expressed in terms of weight and concentration (mg/l).

CITY: City of Mesa, Arizona.

CITY MANAGER: The City Manager pursuant to Section 1-20-2 of the Mesa City Code or authorized deputy, agent, or representative.

CODE OF FEDERAL REGULATIONS (CFR): Compilation of federal regulations promulgated under the CWA and incorporated herein by reference.

COOLING WATER: Any discharge from any heat transfer system such as condensation, air conditioning, cooling or refrigeration into the sewer system.

COMPOSITE SAMPLE: A combination of individual samples obtained at regular intervals over a specified time period, with the volume of each individual sample either proportional to the flow rate during the sample period (flow composite) or constant and collected at equal time intervals during the composite period (time composite) as defined in the Industrial Wastewater Discharge Permit.

CLEAN WATER ACT (CWA): Federal Water Pollution Control Act, as amended, 33 U.S.C. §§ 1251 et seq., incorporated herein by reference.

DAILY MAXIMUM LIMIT: The maximum allowable discharge limit of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limits are expressed in terms of concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that calendar day.

DEVELOPER: Shall include within its meaning the owner/builder and shall be deemed to be the individual, firm, corporation, partnership, association, syndication, trust or other legal entity which is responsible for creating a demand on the city water or sewer facilities.

DEVELOPMENT DIRECTOR: The Development Services Director pursuant to Section 3-4-2 of the Mesa City Code or authorized deputy, agent, or representative.

DEVELOPMENT SERVICES DEPARTMENT: The Department of Development Services of the City of Mesa created by Section 3-4-1 of the Mesa City Code.

DEPARTMENT: The Water Resources Department of the City of Mesa and its Director or designee.

DILUTION: The addition of some quantity of liquid (e.g. water) that results in a decrease in the original concentration.

DISCHARGE: The disposal of wastewater into the POTW.

DOMESTIC WASTEWATER OR SANITARY WASTEWATER: Liquid wastes containing sewage and similar matter from the sanitary facilities of residences, commercial buildings, and industrial facilities.

EFFLUENT: Wastewater that has been treated in a POTW.

EFFLUENT LIMITATION: A limitation imposed on discharges to the POTW.

ENFORCEMENT RESPONSE PLAN (ERP): Procedures identifying responses to instances of industrial noncompliance or a plan developed by the City to enforce the pretreatment regulations contained in the Mesa City Code.

ENVIRONMENTAL PROTECTION AGENCY (EPA): The United States Environmental Protection Agency or a duly authorized official of said agency.

EXISTING SOURCE: An industrial user which: 1) is in operation at the time of promulgation of categorical pretreatment standards; or 2) any source of discharge that is not a new source.

FACILITY: Any land, building, installation, structure, equipment, device, conveyance, area, or source from which there is or, with reasonable probability, may be a discharge.

FATS, OILS, AND GREASE (FOG): Any hydrocarbons, fatty acids, soaps, fats, waxes, oils, and any other material that is extracted by hexane solvent, as specified in 40 CFR Part 136.

FOOD SERVICE ESTABLISHMENT: Any business activity where articles of food, drink, or condiment are customarily prepared or served to patrons for consumption on or off the premises. This also includes restaurants, bars, cocktail lounges, the dining room of hotels, and all caterers.

FRONTAGE: The entire length of that portion of a parcel of property that abuts a street, easement, or public right-of-way.

GRAB SAMPLE: An individual sample of effluent collected in less than fifteen (15) minutes.

GREASE INTERCEPTOR OR TRAP: A device used to separate oil, grease, and sand or any flammable wastes from industrial or commercial discharges.

HAZARDOUS WASTE: Any discarded material listed as hazardous pursuant to 40 CFR Part 261 or having such characteristics.

INDIRECT DISCHARGE OR DISCHARGE: The introduction of pollutants into the POTW from any nondomestic source.

INDUSTRIAL: Means of or pertaining to industry, manufacturing, commerce, trade, or business, as distinguished from domestic or residential.

INDUSTRIAL DISCHARGE: Any introduction into the POTW of wastewater other than domestic wastewater which either:

(A) Is produced by a source which would be subject to any categorical standards or pretreatment requirements if such source were to be discharged to the POTW, or

(B) Contains any substance or pollutant for which a discharge limitation or prohibition has been established by any categorical standard or pretreatment requirements.

INDUSTRIAL USER: Any one (1) or more of the following:

(A) A source of indirect discharge of pollutants into a POTW from a person other than a POTW user who discharges only domestic wastewater regulated under CWA § 307(b), (c), and (d);

(B) Any nonresidential POTW user of the sewer system which discharges more than the equivalent strength of twenty-five thousand (25,000) gallons per day of domestic wastewater;

(C) Has control over the disposal of a waste as described in subsections (A) and (B) above; or

(D) Has the right of possession and control over any property which produces wastewater as described in subsections (A), (B), or (C) above.

INDUSTRIAL WASTE: The liquid waste from an industrial manufacturing process, trade, or business as distinguished from domestic wastewater.

INDUSTRIAL WASTEWATER DISCHARGE PERMIT: A written authorization issued by the City Manager or Water Resources Department categorized as either Class I or Class II allowing a Class I or Class II industrial user to discharge wastewater into a sanitary sewer owned or operated by the City.

INFLOW: Water other than sewage that enters the POTW (including sewer service connections) from sources such as roof leaders, cellar drains, foundation drains, swimming pools, drains from springs and swampy areas, manhole covers, cross-connections between storm sewers and sanitary sewers, catch basins, cooling towers, stormwaters, surface runoff, street wash waters, or drainage.

INSTANTANEOUS LIMIT: The maximum concentration of a pollutant allowed to be discharged at any time and determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

INTERFERENCE: A discharge which, alone or in conjunction with a discharge from other sources, both:

(A) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use, or disposal; and

(B) Violates any requirement of any environmentally related permit issued by a governmental entity (including an increase in the magnitude or duration of a violation) or prevents sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations): CWA § 405, the Solid Waste Disposal Act (SWDA) (Including Title II, more commonly referred to as the Resource Conservation and Recovery Act; and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research, and Sanctuaries Act.

LATERAL SEWER: A sewer which discharges into a branch or other sewer and has no common sewer tributary to it.

LOCAL LIMIT: A specific discharge limitation developed and enforced by the city upon users to implement the general and specific discharge prohibitions listed in 40 CFR § 403.5(a)(1) and (b). Local limits are pretreatment standards.

MAIN SEWER: A sewer which receives wastewater from one (1) or more branch sewers as tributaries.

MAINTENANCE: Keeping the POTW in a state of repair, including expenditures necessary to maintain the capacity for which such works were designed and constructed.

MEDICAL WASTE: Any solid waste as defined in A.R.S. § 49-701, including isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

MONTHLY AVERAGE: The sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

MULTI-FAMILY RESIDENTIAL: More than one (1) dwelling unit is serviced by a single sewer tap and is connected to the sewer system.

NATURAL OUTLET: Any outlet into a watercourse, ditch, or other body of surface or ground water.

NEW SOURCE: Any building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under CWA § 307(c), which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, and as further set forth in 40 CFR § 403.3(m).

NON-COMPLIANT: Failing to satisfy the requirements of this chapter.

NONHAZARDOUS LIQUID WASTE (NHLW): Waste hauled from residential septic systems, restaurant grease traps/interceptor or chemical toilets.

NON-SIGNIFICANT INDUSTRIAL USER: Any person or entity which does not meet the definition of a significant industrial user, but is otherwise required by the City through permit, order, or notice to comply with specific provisions of this Code.

NPDES PERMIT: A National Pollutant Discharge Elimination System (NPDES) Permit issued to the City by the EPA or an Arizona Pollutant Discharge Elimination System Permit (AZPDES), issued to the City by the State of Arizona, which imposes standards governing the quality of the treated effluent discharged from the POTW into a navigable water of the United States.

OIL AND GREASE: A measure of the total oil and grease content of a sample as determined by approved EPA methods or any other equivalent method as approved by the Water Resources Director or designee.

OIL AND GREASE (TPH): A measure of the petroleum and mineral oil in total petroleum hydrocarbons of a sample as determined by approved EPA methods or other equivalent test method as approved by the Water Resources Director or designee.

PARAMETER: A fundamental characteristic of wastewater around which treatment is designed, such as flow, BOD, SS, and phosphorus.

PASS-THROUGH: A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge from other sources, is a cause of a violation of any requirement of the POTW's NPDES Permit (including an increase in the magnitude or duration of a violation) or which causes or contributes to a violation of an applicable numeric or narrative water quality standard.

PENALTY POLICY: The policy established by the Water Resources Department to determine and calculate penalties for violations of the pretreatment requirements established in this Code and the Enforcement Response Plan.

PERMITTEE: Any person who owns, operates, processes, or controls an establishment or plant being operated under a valid Industrial Wastewater Discharge Permit to discharge wastewater into the POTW.

PERSON: Any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, state, municipality, Indian tribe, political subdivision of the state, federal governmental agency, or any other legal entity, including their legal representatives, agents, or assigns.

PH: A measure of the acidity or alkalinity of a solution expressed in standard units.

POLLUTANT: Any dredged spoil, solid waste, incinerator residue, backwash, garbage, explosives, toxic substance, wastewater sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, untreatable waste and industrial, municipal, and agricultural wastes. This includes any substance for which an effluent limitation is identified in this Code.

POTW USER: Any person, lot, parcel of land, building, or premises that discharges or causes or permits the discharge of wastewater into the POTW.

PRETREATMENT: The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration may be obtained by physical, chemical, or biological processes, process changes, or other means, except that dilution shall not constitute treatment or pretreatment unless allowed by an applicable pretreatment standard.

PRETREATMENT REQUIREMENT: Any substantive or procedural requirement related to pretreatment, other than a pretreatment standard imposed on an industrial user and shall include BMPs related to pretreatment imposed on a user as may have been established pursuant to the laws or regulations of the United States, the State of Arizona, or the City, and conditions of a wastewater discharge permit.

PRETREATMENT STANDARD: The prohibited discharge standards, categorical pretreatment standards, and local limits established pursuant to the laws or regulations of the United States, the State of Arizona, or the City.

PRIVATE SEPTIC TANK SYSTEM: A septic tank or other system that is maintained by the property owner.

PRIVATE SEWER: Any wastewater collection system other than a POTW.

PROCESS WASTEWATER: Any water which, during manufacturing or processing, comes into direct contact with or results from the production or use of any raw material, intermediate product, finished product, by-product, or waste product.

PROHIBITED DISCHARGE STANDARDS: Absolute prohibitions against the discharge of certain substances as set forth in section 8-4-15.

PUBLIC SEWER: A lateral, branch, main, or trunk sewer controlled and maintained by the City.

PUBLICLY OWNED TREATMENT WORKS (POTW): A treatment works as defined by Section 212 of the Act which is owned by the City or another municipality and includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances which convey wastewater to a treatment plant.

REPLACEMENT: Those expenditures made for obtaining and installing equipment, accessories, and/or appurtenances during the useful life of the POTW which are necessary to maintain the capacity and performance of the POTW for which they were designed and constructed.

REPRESENTATIVE SAMPLE: A composite sample obtained by flow proportional sampling techniques. If the Water Resources Department determines that flow proportional sampling is not feasible, the sampling by time proportional composite or composites of grab samples will be allowed according to EPA requirements.

REVENUE: In general, additions to cash or other current assets that do not increase any liability of reserve, nor represent the recovery of an expenditure.

RIGHT-OF-WAY: Land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved for or dedicated to the general public for street, highway, alley, public utility, or pedestrian walkway purposes.

SANITARY SEWER: A sewer which carries wastewater and to which storm water, surface water, and groundwater are not intentionally admitted.

SEWER: A pipe or conduit for carrying wastewater.

SIGNIFICANT INDUSTRIAL USER (SIU):

(A) All users subject to categorical pretreatment standards.

(B) All users that:

1. Discharge an average of twenty-five thousand (25,000) gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling, and boiler blowdown wastewater); or

2. Contribute a process wastestream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW; or

3. Are designated as such by the department on the basis that they have a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

(C) The City may determine that an industrial user subject to categorical pretreatment standards is a nonsignificant industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than one hundred (100) gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

1. The industrial user, prior to the city's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

2. The industrial user annually submits the certification requirement required in 40 CFR § 403.12(q), together with any additional information necessary to support the certification statement; and

3. The industrial user never discharges any untreated concentrated wastewater.

(D) Upon a finding that a user meeting the criteria in subsection (B) of this section has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the city may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in 40 CFR § 403.8(f)(6), determine that such user should not be considered a significant industrial user.

SIGNIFICANT NON-COMPLIANCE (SNC): A significant industrial user in violation of one or more of the following criteria or any other industrial user in violation of subparagraphs (C), (D), or (H):

(A) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent or more of all of the measurements taken for the same pollutant parameter during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits, as defined by 40 CFR § 403.3(l);

(B) Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent or more of all of the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by 40 CFR § 403.3(l) multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);

(C) Any other violation of a pretreatment standard or requirement as defined by 40 CFR § 403.3(l) (daily maximum, long-term average, instantaneous limit, or narrative standard) that the POTW determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

(D) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge;

(E) Failure to meet, within ninety (90) days after the schedule date, a compliance schedule milestone contained in a permit, local control mechanism, or enforcement order for starting construction, completing construction, or attaining final compliance;

(F) Failure to provide, within forty-five (45) days after the due date, required reports such as baseline monitoring reports, ninety-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(G) Failure to accurately report noncompliance;

(H) Any other violation or group of violations, which may include a violation of BMPs, which the division determines will adversely affect the operation or implementation of the local pretreatment program.

SLUG LOAD: Slug load or slug discharge means any discharge at a flow rate or concentration which could become a violation of the prohibited discharge standards in this chapter. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate this Chapter, local limits, or POTW's permit conditions.

STANDARD INDUSTRIAL CLASSIFICATION (SIC): A classification pursuant to the "Standard Industrial Classification Manual" issued by the Executive Office of the President-Office of Management and Budget, as it may be revised from time to time.

STORM SEWER: A sewer which carries storm and surface waters and drainage but does not include wastewater containing pollutants.

STORMWATER: Stormwater runoff, snow melt runoff, and surface runoff and drainage.

SUSPENDED SOLIDS (SS): Solids measured in milligrams per liter that either float on the surface of or are in suspension in wastewater or other liquids and which are largely removable by a laboratory filtration device as defined in the most current edition of "Standard Methods for the Examination of Water and Wastewater" published by the American Health Association or the most current edition of "Manual of Methods for Chemical Analysis of Water and Wastes" published by the EPA.

TOTAL SUSPENDED SOLIDS (TSS): The total suspended matter that floats on the surface of or is suspended in water, wastewater, or other liquid and that is removable by filtration.

TRUNK SEWER: A sewer which receives wastewater from many tributary main sewers and serves as an outlet for a large territory.

UPSET: An exceptional incident in which there is unintentional and temporary noncompliance with a technology-based permit effluent limitation because of factors beyond the reasonable control of the permittee, excluding such factors as operational error, improperly designed or inadequate treatment facilities, or improper operation and maintenance or lack thereof.

USER CHARGE: A portion of the sewer fee levied by the City which shall be sufficient to fund the estimated annual operation and maintenance (including replacement) cost of the POTW.

USER CLASS: Any grouping as determined by the City Manager or Water Resources Director of POTW users, including Class I, II, and III industrial users.

WASTEWATER: Treated or untreated liquid or water-carried non-domestic industrial wastes and/or sewage from residential dwellings or commercial, industrial or manufacturing facilities.

WASTEWATER RECLAMATION TREATMENT PLANT OR TREATMENT WORKS: That portion of the POTW which is designed to provide treatment of sewage and wastewater.

WATER RESOURCES DEPARTMENT: The Water Resources Department of the City of Mesa, created by Section 3-3-1 of the Mesa City Code.

WATER RESOURCES DIRECTOR: The Water Resources Director pursuant to Section 3-3-2 of the Mesa City Code or authorized deputy, agent, or representative.

WATERCOURSE: A channel in which a flow of water occurs, either continuously or intermittently.
(Ord. No. 5959, § 2, 8-25-25)

8-4-2: TREATMENT OF POLLUTED WATERS REQUIRED

It shall be unlawful to discharge to any outlet into a ditch a channel in which a flow of water occurs, either continuously or intermittently, or to any body of surface water or groundwater within the City or in any area under the jurisdiction of the City any wastewater or other polluted waters except where suitable treatment has been provided in accordance with the provisions of this Chapter.
(Ord. No. 5959, § 2, 8-25-25)

8-4-3: DISPOSAL OF POLLUTANTS

(A) It shall be unlawful for any trucked or hauled pollutant to be discharged into the POTW unless previously approved by the City Manager.

(B) It shall be unlawful to dispose of any pollutant by means other than those authorized by applicable federal, state, and local requirements.

(Ord. No. 5959, § 2, 8-25-25)

8-4-4: DIGGING UP STREETS WITHOUT A PERMIT; TAMPERING WITH EQUIPMENT PROHIBITED

It shall be unlawful to:

(A) Dig up or cause to be dug up any street or alley in the City for the purpose of connecting to the POTW without first obtaining a permit from the City Engineer;

(B) Having a permit, dig up any portion of any street or alley of the City for the purpose of connecting to the POTW and fail or neglect to place the street or alley in its original condition; or

(C) Maliciously or willfully break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance, or equipment which is a part of the POTW.

(Ord. No. 5959, § 2, 8-25-25)

8-4-5: PRIVATE WASTEWATER SYSTEMS

(A) Except as provided in this Chapter, it shall be unlawful to construct or maintain within the City any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of wastewater.

(B) Where a public sanitary sewer is not available within the City or in any area under the jurisdiction of the City, the building sewer shall be connected to a private wastewater disposal system, complying with the provisions and recommendations of the Arizona Department of Environmental Quality and the Sanitary Code of Maricopa County. Such private wastewater disposal system shall be constructed, maintained, and operated at all times in a sanitary manner.

(Ord. No. 5959, § 2, 8-25-25)

8-4-6: SANITARY SEWERS OUTSIDE CITY

Any POTW user located outside of the City limits who discharges wastewater into a sanitary sewer owned or operated by the City shall be bound by the requirements of this Chapter.

(Ord. No. 5959, § 2, 8-25-25)

8-4-7: SANITARY SEWERS; DESIGN, CONSTRUCTION, AND INSPECTION

(A) The City shall have the authority to approve the design, issue permits, and conduct inspections of sewer facilities that are to be connected to the City's existing sanitary sewer system.

(B) The design and construction of all sanitary sewers under the jurisdiction of the City must conform to the standard sewer design and construction specifications as identified in the Maricopa Association of Governments Specifications, Mesa Standard Details, and the Arizona Department of Environmental Quality Bulletin No. 11.

(C) All sewers to be attached directly or indirectly to the POTW shall be inspected by personnel of the City during construction. The City shall be notified at least forty-eight (48) hours prior to cutting into the POTW. In making a connection to the POTW, no physical alteration shall commence until an inspector is present. No wastewater shall be discharged into the POTW prior to obtaining City approval of sewer construction.

(D) Following satisfactory completion of construction, the City will issue a construction inspection certificate upon request.

(Ord. No. 5959, § 2, 8-25-25)

8-4-8: BUILDING CONNECTIONS; PERMIT, APPROVAL, RECORDS, AND RESPONSIBILITY

(A) No authorized person shall make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the Development Services Department.

(B) Each person making application for a building connection shall obtain a valid plumbing permit from the City as a prerequisite for the approval of the required building connection. All applications for building connections to be constructed by the Development Services Department shall be accompanied by the current fee for such work.

(C) The number, location, manner of connection, and size of all building connections shall be subject to the approval of the Development Services Manager.

(D) The Development Services Department shall keep a record of all building connections made and the purpose for which they are to be used, together with the name of the owner of the property, the owner's agent, or a representative.

(E) The property owner shall be responsible for the cleaning, unstopping, maintenance, and repair of the building connection piping serving the property from the owner's home or building to the public sewer, except as provided in Subsection (F) of this Section.

(F) Where the correction of a stoppage requires the repair or replacement of a damaged or broken section of the building connection and the damaged or broken section is located off-property in a street or alley, the Water Resources Department shall make the repair or replacement.

(Ord. No. 5959, § 2, 8-25-25)

8-4-9: OWNERSHIP OF PUBLIC SEWER LINES AND OTHER EQUIPMENT MAINTAINED BY THE WATER RESOURCES DEPARTMENT

The ownership of all public sewer lines, pumping stations, treatment facilities, and equipment and other appurtenances to the sewer system maintained or accepted for maintenance by the Water Resources Department shall be vested in the City, and in no case shall the owner of any premises have the right to claim any part except where otherwise provided in this Code.

(Ord. No. 5959, § 2, 8-25-25)

8-4-10: SEWER CHARGES SET BY SEPARATE ORDINANCE

(A) The Council shall at least biennially by separate ordinance set the fee to be made for sewer service and use. Such fee shall be apportioned to include not only a user charge, which shall be used exclusively to generate revenues sufficient to pay the total operation and maintenance (including replacement) costs of the treatment works, but also other sewer service charges as desired by the Council. The user charge shall be allocated in such a manner that is proportionate to the cost of providing wastewater service to each POTW user or user class insofar as those costs can reasonably be determined. Further, the user charge shall be based upon the volume and strength, including BOD and SS, of the wastewater discharged.

(B) Charges for monthly sewer service and use shall be imposed as follows:

1. Until February 26, 2003, those residential customers not connected to the POTW but with an active utility account and a usable City sewer main adjoining the premises shall pay, in lieu of the user charge and in addition to the charge levied to offset capital expenses, an amount equal to the user charge as stated on the applicable rate schedule, subject to the refund provisions of paragraph (B)5. hereof.

2. A "usable City sewer main" is defined for purposes of paragraph (B)1 as one that is adjacent to the parcel and which has a service line extended to the property line of the parcel.

3. In situations where a monthly charge is imposed but the person is not connected to the public sewer, a credit shall be given toward the payment of the sewer development fee when a connection is made.

Such credit will be in the sum of the payments previously paid for monthly sewer services, but in no case shall it exceed the amount of the sewer development fee in effect at the time connection to the public sewer is made.

4. After February 26, 2003, monthly charges for sewer service and use shall only be imposed on a parcel at such time as that parcel is connected to the public sewer.

5. A person shall be entitled to a refund of the monthly charges for sewer service paid during the period of time beginning March 1, 2000 and ending February 26, 2003, without interest if:

   (a) The person had an active utility account and a usable City sewer main adjoining the premises;

   (b) The person paid a monthly charge for sewer, but was not connected to the public sewer; and

   (c) Such charges have not been credited against a sewer development fee as allowable under paragraph (B)1 hereof.

   The refund shall in no case exceed the actual amount paid by the person submitting the application for refund. In order to be eligible to receive such refund, the person who paid such charges shall be required to submit an application for such refund to the Water Resources Department within one (1) year after February 26, 2003.

(C) Although the City strongly encourages that persons should connect to the public sewer system when it becomes available to them, persons with existing septic tanks may continue to use them as long as they function in a manner which does not violate Maricopa County health standards. However, at such time as Maricopa County determines that the septic tanks violate the standards, the person shall connect to the public sewer system.

(D) Upon appeal and presentation of satisfactory evidence by any customer, an adjustment of the established sewer rate schedules may be granted provided that such adjustment is proportional among POTW users or user classes and includes, at a minimum, a user charge component.

(E) Excessive revenues collected from a POTW user or user class through the user charge shall be applied to that POTW user or user class when the user charge portion of the sewer fee is established.

(Ord. No. 5959, § 2, 8-25-25)

8-4-11: USER CHARGE FORMULA

In calculating a POTW user or user class sewer fee, the following formula shall be used to determine the user charge portion of the total sewer fee:

USER CHARGE FORMULA: Flow mg × flow rate + BOD (mg/l) × 8.34 × flow mg × BOD rate - 1000 + SS (mg/l) × 8.34 × flow mg × SS rate - 1000 + fixed charges.

WHERE:

FLOW MG = The total volume of flow for the year in millions of gallons.

FLOW RATE = O & M (FLOW) divided by flow mg.

BOD RATE = O & M (BOD) divided by BOD 1,000 lbs.

SS RATE = O & M (SS) divided by SS 1,000 lbs.

FIXED CHARGES = O & M (FIXED) divided by the number of customers.

O & M (FLOW) = The operating and maintenance cost of treating the flow portion of wastewater.

O & M (BOD) = The operating and maintenance cost of treating the BOD portion of wastewater.

O & M (SS) = The operating and maintenance cost of treating the SS portion of wastewater.

O & M (FIXED) = The operating and maintenance cost of processing sewer bills.

BOD 1,000 LBS. = The total amount of BOD in thousands of pounds.

SS 1,000 LBS. = The total amount of SS in thousands of pounds.

NUMBER OF CUSTOMERS = The total number of sewer customers being billed.

BOD (MG/L) = The concentration of biochemical oxygen demand in milligrams per liter of wastewater.

SS (MG/L) = The concentration of SS in milligrams per liter of wastewater.
(Ord. No. 5959, § 2, 8-25-25)

8-4-12: BILLING FOR USER CHARGE

Each POTW user shall be notified on an annual basis, in conjunction with their regular monthly bill, of the portion of their monthly bill that is attributable to the user charge. Such notice shall state that the revenues derived by the user charge are to be used exclusively for the operation and maintenance (including replacement) of the POTW.
(Ord. No. 5959, § 2, 8-25-25)

8-4-13: DISTRIBUTION OF WASTEWATER SYSTEM REVENUES AND UTILIZATION OF FUNDS

Revenues attributable to user charges shall be allocated to the Sewer Use Accounts of the Sewer Enterprise Account of the City of Mesa Utility Fund. Such revenues shall be restricted to paying the expenses incurred in the operation and maintenance (including replacement) of the POTW. Additional revenues derived by the charge for sewer service and use shall be allocated to the Sewer Service Account of the Sewer Enterprise Account of the City's Utility Fund. The Sewer Service Account revenues may be used for any one (1) or more of the following activities:

(A) The expansion or improvement of the sanitary and storm sewer systems operated by the City;

(B) Servicing the debt or retiring sanitary and storm sewer bonds; and

(C) Providing for other pertinent costs as determined by the City Council.
(Ord. No. 5959, § 2, 8-25-25)

8-4-14: WASTEWATER TREATMENT BY-PRODUCTS

All revenue from the sale of treatment-related by-products shall be used to offset the cost of operating and maintaining the POTW. User charges shall be proportionally reduced for all POTW users. Total annual revenues received from the sale of a by-product shall be credited to the works treatment operation and maintenance cost no later than the fiscal year immediately following their receipt.
(Ord. No. 5959, § 2, 8-25-25)

8-4-15: PROHIBITED SUBSTANCES AND DISCHARGE LIMITATIONS

(A) No person shall discharge or cause to be discharged at any entry point into the public sewer system any of the following:

1. Wastewater which could cause interference or pass-through with POTW operations.

2. Unless otherwise approved by the City Manager or Water Resources Director or Water, storm water, surface water, groundwater, roof runoff, subsurface drainage, single-pass cooling water, or condensate that may constitute inflow.

3. Pollutants which create a fire or explosion hazard to the system or POTW. In no case shall pollutants be discharged either:

   (a) With a closed cup flashpoint less than one hundred forty degrees Fahrenheit (140° F) (sixty degrees Centigrade [60° C]); or

   (b) Which would cause an exceedance of ten percent (10%) of the Lower Explosive Limit (LEL) at any point within the POTW for any single reading or more than five percent (5%) for any two (2) consecutive readings.

4. Solid or viscous pollutants, animal fats, oils and grease, petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause any one (1) or more of the following:

   (a) Interference;

   (b) Pass-through; or

   (c) Obstruction to the flow in sewers or other interference or damage with the system or POTW.

5. Any waters containing a toxic, radioactive, poisonous, or other substance in sufficient quantity to injure or interfere with any POTW process, cause corrosive structural damage, constitute a hazard to humans, or create any hazard to the POTW or in the receiving waters of the POTW; or pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems.

6. Wastewater with a pH less than five (5.0) standard units (SU) or greater than ten and one-half (10.5) SU.

7. Wastewater with a temperature greater than one hundred fifty degrees Fahrenheit (150°F) or heat in amounts which will inhibit biological activity in the POTW resulting in interference; but in no event, heat in such quantities that the temperature at the headworks of the POTW exceeds one hundred four degrees Fahrenheit (104°F) (forty degrees Centigrade [40°C]).

8. Wastewater that has been diluted in any way as a substitute for pretreatment for the purpose of obtaining compliance with any categorical standard or pretreatment requirement imposed by this Chapter except where dilution is expressly authorized by any categorical standard.

9. Wastewater that could cause a violation of any categorical standard or pretreatment requirement.

10. A discharge, other than domestic wastewater, that exhibits a characteristic of a hazardous waste or contains a substance that is listed as a hazardous waste pursuant to either Arizona Administrative Code R18-8-261, as amended, or 40 CFR Part 261, as amended, whichever is applicable, whether or not the discharge is otherwise subject to hazardous waste regulations. The City Manager or Water Resources Director may allow a discharge of such wastes if, upon written request of the affected person, the City Manager or determines that the discharge would not cause interference or pass-through with POTW operations.

11. Wastewater sampled using the following specified sample type which exceeds the limits for the following parameters, expressed in the total form as micrograms per liter (uG/L):

(a) The instantaneous effluent limitation shall be the maximum allowable concentration permitted in a discharge at any time as measured in a grab sample. The instantaneous effluent limitation for the following parameters shall be:

	Substance	**Limitation**	**Sample Type**
(i)	Benzene	35	Grab
(ii)	Chloroform	2,000	Grab

(b) The following parameters shall have a limit of zero and are therefore prohibited:

(i)	4,4' - DDE
(ii)	4,4' - DDT
(iii)	Aldrin
(iv)	BHC - Alpha
(v)	BHC - Beta
(vi)	BHC - Gamma (Lindane)
(vii)	Heptachlor
(viii)	Heptachlor Epoxide
(ix)	Polychlorinated Biphenyl Compounds

(B) In addition to the requirements contained in Subsection (A) of this Section, all Class I industrial users shall not discharge or cause to be discharged at any entry point into the public sewer system any wastewater which exceeds the daily average effluent limitation specified in paragraph 3 of this Subsection. A Class II industrial user also may be subject to one (1) or more of the daily average effluent limitations if the City Manager or Water Resources Director determines in writing that such user is responsible for an industrial discharge which causes or has the reasonable potential to cause harm or damage to worker safety, public safety, or the environment. This written determination shall identify the daily average effluent limitations applicable to the user that are necessary to minimize the potential harm or damage to worker safety, public safety, and the environment.

1. The daily average effluent limitation shall be the maximum allowable concentration permitted in a discharge as measured, where feasible, in a composite sample obtained by flow proportional

sampling techniques. If the City Manager or Water Resources Director determines that flow-proportional composite sampling is not feasible, the City Manager or Water Resources Director may allow or conduct composite sampling by time proportional techniques or by the compositing or averaging of one (1) or more grab samples.

2. Sampling for the daily average effluent limitation shall be conducted using the sample type specified in paragraph 3. of this Subsection.

3. The daily average effluent limitation for the following parameters, expressed in the total form as milligrams per liter (MG/L), shall be:

	SUBSTANCE	LIMITATION	SAMPLE TYPE
(a)	Arsenic	0.13	Composite
(b)	Cadmium	0.047	Composite
(c)	Copper	1.5	Composite
(d)	Cyanide	2.0	Grab
(e)	Lead	0.41	Composite
(f)	Mercury	0.0023	Composite
(g)	Selenium	0.10	Composite
(h)	Silver	1.2	Composite
(i)	Zinc	3.5	Composite

(C) No person shall discharge or cause a discharge into a POTW that violates any limitation or prohibition specified or established by the City Manager or Water Resources Director pursuant to Section 8-4-27(A) of the Mesa City Code.

(D) All affected individual users or class of users shall comply with any best management practice required by the City Manager or Water Resources Director pursuant to Section 8-4-27(A) of the Mesa City Code.

(E) Mass limitations may be imposed on industrial users through industrial wastewater discharge permits where not prohibited by categorical pretreatment standards, and which are using flow equalization to meet applicable federal, state, or City pretreatment standards or requirements, or in other cases where the imposition of mass limitations are appropriate. Equivalent mass limits may be established only if industrial users satisfy all conditions set forth in 40 CFR § 403.6(c)(5)(i)(A) through (c)(5)(i)(E). In such cases, the wastewater discharge permit will contain the mass allocation for each pollutant, any concentration-based categorical standards, maximum flow allowed, and the appropriate monitoring and reporting requirements. Where mass limits have been established, the reports required by Section 8-4-19 shall also indicate the mass of limited pollutants in the user's wastewater. These reports shall also contain the results of sampling and analysis of the discharge, including production and mass of pollutants contained therein which are limited by the applicable pretreatment standards and requirements.

(Ord. No. 5959, § 2, 8-25-25)

8-4-16: INDUSTRIAL USERS IDENTIFIED AS CLASS I, II, OR III

(A) All significant industrial users shall be Class I industrial users under this Chapter.

(B) A Class II industrial user shall be any industrial user that meets all of the following criteria:

1. Is not a significant industrial user;

2. Is determined in writing by the City Manager or Water Resources Director to be responsible for an industrial discharge which causes or has the reasonable potential to cause harm or damage to the POTW, worker safety, public safety, or the environment; and

3. Has discharges which are any one (1) or more of the following:

   (a) Greater than the equivalent strength of twenty-five thousand (25,000) gallons per day of domestic waste as measured by BOD and SS.

   (b) Pollutants in groundwater subject to a remedial action plan that has been approved by an appropriate regulatory agency.

   (c) Any of the substances described in Section 8-4-15 of the Mesa City Code.

   (d) Either domestic wastewater or no discharge at all, but such industrial user does have significant quantities of pollutants which, if discharged, would be regulated by this Chapter.

(C) All industrial users that are not Class I or II under Subsections (A) and (B) of this Section shall be identified as Class III industrial users.

(Ord. No. 5959, § 2, 8-25-25)

8-4-17: GENERAL INDUSTRIAL USER REQUIREMENTS

All Class I, II, and III industrial users shall, unless otherwise noted:

(A) Comply with the categorical standards, pretreatment requirements, and all other requirements imposed by this Chapter upon POTW users.

(B) Comply with the orders of the City Manager or Water Resources Director Water Resources designed to implement the categorical standards, pretreatment requirements, best management practices, and all other requirements imposed by this Chapter.

(C) If a new industrial user, file, prior to the discharge of wastewater to the POTW, a written notice with the City Manager or Water Resources Director which identifies all of the following:

1. Name and address of the existing or prospective industrial users;

2. Business locations served or to be served by the POTW;

3. Nature, concentration, and amounts of any substance present at, or intended to be present at, such business locations which, if discharged to the POTW, could constitute an industrial discharge; and

4. Nature and concentration of all pollutants currently discharged to the POTW from such business locations.

(D) Assist the City Manager or Water Resources Director in updating the industrial user survey which contains the information requested in Subsection (C) of this Section. The City Manager or Water Resources Director may request additional information to determine compliance.

(E) Carry out and maintain an adequate record of all self-inspection and self-monitoring activities necessary for the industrial user to know at all times whether or not such user is introducing any industrial discharge to the POTW.

(F) Assist the City Manager or Water Resources Director to determine the exact nature, concentration, and volume of any pollutant intended for discharge to the POTW. Therefore, upon request, any industrial user shall promptly do any one (1) or more of the following:

1. Allow the examination and copying of all relevant records or documents available to the user.

2. Allow the inspection of all business locations served by the POTW, including all pretreatment equipment, methods, and activities utilized by the user at such locations.

3. Install and maintain at the user's expense convenient and adequate monitoring and/or sampling points needed by the City Manager or Water Resources Director for monitoring and/or sampling purposes.

4. Allow the taking and removal of samples from any wastewater discharged or intended for discharge to the POTW.

5. Provide the City Manager or Water Resources Director with any other information, including chemical analyses of wastewater and architectural or engineering design data, drawings, etc., which is reasonably needed by the City Manager or Water Resources Director for the purpose of determining such user's compliance with the requirements of this Chapter.

(G) Refrain from any discharges until the City Manager or Water Resources Director determines if the industrial user would cause an industrial discharge. Once this determination is made, the City Manager or Water Resources Director will classify the user as a Class I, II, or III industrial user consistent with Section 8-4-16 of the Mesa City Code. The City Manager or Water Resources Director shall maintain and amend as necessary a list of the Class I, II, and III industrial users.

(H) Comply with the demand of the City Manager or Water Resources Director to immediately halt any actual or threatened discharge to the POTW when the City Manager or Water Resources Director has given notice that such actual or threatened discharge either:

1. Presents or may present an imminent or substantial endangerment to the health or welfare of any person or to the environment; or

2. Will cause interference with POTW operations.

(I) Immediately give notice to the City Manager or Water Resources Director of any problem-causing discharge to the POTW. A problem-causing discharge may not have caused an actual limit violation but had a characteristic of the narrative prohibitions of Section 8-4-15 of the Mesa City Code. The discharge also may be an accidental discharge, upset, slug load, limit violation of any categorical standard, pretreatment requirement, or permit condition imposed by this Chapter. Such notification will not relieve the industrial user of liability for any expense, loss, or damage to the sanitary sewer system or for any fines

imposed on the City on account thereof and/or for any enforcement action pursuant to this occurrence. The notice shall be followed within ten (10) working days with a written report that shall include all of the following:

1. Location of the discharge;

2. Known or estimated nature, concentration, and volume of the discharged pollutants;

3. Type of assistance desired from the City;

4. Corrective action undertaken, being undertaken, and/or to be undertaken by the industrial user. Any industrial user causing such a discharge also shall initiate all appropriate corrective action required by the City Manager or Water Resources Director needed to accomplish all of the following:

   (a) Prevent injury to human health or safety or to the environment, the POTW, and/or any other property;

   (b) Promptly repair all or part of any injury or damage caused by such discharge; and

   (c) Ensure that a discharge does not occur again.

(J) Pay all sewer fees charged by the City for the POTW services provided by the City Manager or Water Resources Director pursuant to the requirements of this Chapter. Such service fees will apply equally to all industrial users and will be determined by each user's proportionate share of the POTW operating and maintenance costs. In turn, the proportionate share will be based on such factors as the strength, volume, and flow rate of wastewater discharged to the POTW by each user.

(K) Reimburse the City for all expenses reasonably incurred by the City in insuring such industrial user's compliance with the applicable requirements of this Chapter. A schedule of such costs will be determined by the City Manager or Water Resources Director. Expenses include the costs related to all of the following:

1. Issuing permits;

2. Conducting inspection, surveillance, and monitoring activities;

3. Obtaining laboratory analysis of wastewater samples;

4. Taking enforcement actions against industrial users not in compliance with the requirements of this Chapter; and

5. Carrying out any measure needed for the protection of human health or safety, the environment, the POTW, or any other property in order to correct or mitigate any harm caused by the violation of any categorical standard or pretreatment requirement.

(L) If a significant industrial user, comply with the requirements of Section 8-4-19(G)2. of the Mesa City Code when a limit violation is detected during self-monitoring.

(M) Notify the City Manager or Water Resources Director, the EPA Regional Waste Management Division Director, and state hazardous waste authorities in writing of any discharge into the POTW of a substance

which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other).

1. If the industrial user discharges more than one hundred kilograms (100 kg) of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the industrial user:

   (a) An identification of the hazardous constituents contained in the wastes;

   (b) An estimation of the mass and concentration of such constituents in the waste stream discharged during that calendar month; and

   (c) An estimation of the mass of constituents in the waste stream expected to be discharged during the following twelve (12) months

2. Industrial users shall provide the notification no later than one hundred eighty (180) days after the discharge of the listed or characteristic hazardous waste.

3. Any notification under this Subsection need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges shall be submitted under 40 CFR § 403.12(j).

4. The notification requirement in this Subsection does not apply to pollutants already reported under the self-monitoring requirements of 40 CFR § 403.12(b), (d), and (e).

5. Dischargers are exempt from the requirements of this Subsection during a calendar month in which they discharge no more than fifteen kilograms (15 kg) of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR §§ 261.30(d) and 261.33(e). Discharge of more than fifteen kilograms (15 kg) of nonacute hazardous wastes in a calendar month or of any quantity of acute hazardous wastes as specified in 40 CFR §§ 261.30(d) and 261.33(e) requires a one-time notification. Subsequent months during which the industrial user discharges more than such quantities of any hazardous waste do not require additional notification.

6. In the case of new regulations promulgated by the E.P.A. under Section 3001 of the Resource Conservation and Recovery Act identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the industrial user must notify the City Manager or Water Resources Director of the discharge of such substance within ninety (90) days from the effective date of such regulations.

7. In the case of any notification made under this Subsection, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of wastes generated to the degree it has determined to be economically practicable and that it has selected the method of treatment, storage, or disposal currently available which minimizes the present and future threat to human health and the environment.

(N) If a significant industrial user, sign applications for permits, correspondence, and required reports following the requirements in Section 8-4-19(H) of the Mesa City Code.

(O) Promptly notify the City Manager or Water Resources Director in advance of any substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the industrial user has submitted initial notification under 40 CFR § 403.12(p).

(P) For purposes of record keeping:

1. Maintain records of all information resulting from any monitoring activities required by this Section. Such records shall include all of the following information for all samples:

   (a) The date, exact place, method, and time of sampling and the names of the individuals taking the samples;

   (b) The dates that analyses were performed;

   (c) Who performed the analyses;

   (d) The analytical techniques/methods used; and

   (e) The results of such analyses.

2. Retain for a minimum of three (3) years all records of monitoring activities and results, whether or not such monitoring activities are required by this Section, and shall make such records available for inspection and copying by the City Manager or Water Resources Director. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user or when requested by the City Manager or Water Resources Director.

(Q) In order that officers, agents, and employees of permittees shall make available to their employees copies of this Chapter together with such other wastewater information and notices which may be furnished by the City from time to time for the purpose of improving and making more effective water pollution control, a notice shall be furnished and permanently posted on the permittee's bulletin board advising officers, agents, and employees who to call in case of an accidental discharge in excess of the limits authorized by the permit.

(R) If a significant industrial user, submit a compliance schedule that contains the information required in Section 8-4-19(F) of the Mesa City Code if found to be out of compliance by the City Manager or Water Resources Director.

(S) Provide protection from accidental discharge of prohibited materials or other wastewater regulated by this Chapter.

(T) Label any possible connection or entry point for a hazardous and/or prohibited substance to the plumbing or drainage system to warn operating personnel against discharge of such substance in violation of this Chapter.

(U) Submit and maintain reports subject to all of the following:

1. The provisions of 18 U.S.C. § 1001 relating to fraud and false statements;

2. The provisions of CWA § 309(c)4 governing false statements, representation, or certification; and

3. The provisions of CWA § 309(c)6 regarding responsible officers.

(V) Implement methods at the industrial user's expense to reduce or control the concentration of pollutants through the use of best management practices or measures used to reduce the amount of pollution entering surface water, air, land, or groundwater. Each industrial user shall keep written records of the methods used, and such records shall be kept on-site for a minimum of three (3) years.

(Ord. No. 5959, § 2, 8-25-25)

8-4-18: CLASS I AND II INDUSTRIAL USER PERMIT REQUIREMENTS

Class I and II industrial users shall do all of the following:

(A) Obtain an Industrial Wastewater Discharge Permit from the City Manager or Water Resources Director. Any application for a permit or an amended permit shall contain the information in the application form or such other information as may be requested by the City Manager or Water Resources Director. The City Manager or Water Resources Director shall issue an Industrial Wastewater Discharge Permit within sixty (60) days after determining that an application for such permit is complete. Such a permit:

1. Will be categorized as Class I or Class II;
2. Will be for a period of time not to exceed five (5) years. A permit may be terminated by revocation by the City Manager or Water Resources Director under Section 8-4-28 of the Mesa City Code or upon voluntary surrender of the permit by the permittee at an earlier date;
3. Is nontransferable by the permittee;
4. May be amended as deemed appropriate by the City Manager or Water Resources Director;
5. Will specifically identify all applicable discharge prohibitions and limitations and monitoring and reporting requirements which the City Manager or Water Resources Director will enforce;
6. For all Class I industrial users, shall include a provision requiring all pretreatment necessary to comply with the categorical standards and pretreatment requirements, and best management practices imposed by this Chapter;
7. May contain requirements for installation and maintenance of inspection and sampling facilities;
8. May require implementation of best management practices to reduce or eliminate the amount of pollutants discharged to the POTW;
9. May contain other conditions and requirements as deemed reasonably necessary by the City Manager or Water Resources Director to meet the following concerns:
    (a) Prevent pass-through or interference;
    (b) Protect the quality of the water body receiving the POTW's effluent;
    (c) Protect worker health and safety;
    (d) Facilitate sludge management and disposal;
    (e) Protect against damage to the POTW; and
    (f) Ensure user compliance with this Chapter.
10. May be appealed by the applicant by filing a petition for review with the City Manager or Water Resources Director within twenty (20) days of receipt of the permit. Such petition shall identify the

permit provisions objected to, specify in detail the reasons for objection, and present the alternative condition, if any, sought to be placed in the permit. During the appeal process, the provisions of the permit that are not objected to shall be in effect, and the provisions that are objected to shall be stayed pending a final decision by the City Manager or Water Resources Director. If the City Manager or Water Resources Director fails to act within thirty (30) days of receipt of the petition for review, the petition shall be deemed to be denied.

(B) Comply fully with all requirements and conditions of any Industrial Wastewater Discharge Permit. Once a permit is issued, no Class I or II industrial user shall do any of the following:

1. Make any new or increased industrial discharge;

2. Make any change in the nature of its industrial discharge if such change will cause any new or increased industrial discharge;

3. Fail to give notice to the City Manager or Water Resources Director not less than ninety (90) days prior to any facility expansion, production increase, or process modifications which results or may result in new or increased discharges or a change in the nature of the discharge; or

4. Fail to give advance notice to the City Manager or Water Resources Director of any planned changes in the permitted facility or activity which may result in noncompliance with permit requirements.

(Ord. No. 5959, § 2, 8-25-25)

8-4-19: SIGNIFICANT INDUSTRIAL USER REPORTING REQUIREMENTS

(A) Significant industrial users not subject to categorical standards shall submit to the City Manager or Water Resources Director at least once every six (6) months (on dates specified by the City Manager or Water Resources Director) a description of the nature, concentration, and flow of the pollutants required to be reported to the City Manager or Water Resources Director. These reports shall be based on sampling and analysis performed in the period covered by the report. This sampling and analysis may be performed by the City Manager or Water Resources Director in lieu of such significant industrial user. Where the City Manager or Water Resources Director collects all the information required for the report, such significant industrial user will not be required to submit the report.

(B) Within one hundred eighty (180) days after the effective date of a categorical standard or one hundred eighty (180) days after the final administrative decision made upon a category determination submission under 40 CFR § 403.6(a)(4), whichever is later, existing industrial users subject to such a categorical standard and currently discharging to or scheduled to discharge to a POTW shall be required to submit to the City Manager or Water Resources Director a report which contains all of the following information:

1. The name and address of the facility, including the name of the owner and operator;

2. A list of any environmental control permits held by or for the facility;

3. A brief description of the nature, average rate of production, and standard industrial classification of the operations carried out by such industrial user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes;

4. The measured average daily and maximum daily flow, in gallons per day (verifiable estimates of these flows where justified by cost of feasibility considerations may be allowed by the City Manager or Water Resources Director) from the POTW from both of the following:

   (a) Regulated process streams; and

   (b) Other streams as necessary to allow use of the combined wastestream formula of 40 CFR § 403.6(e), as described in subparagraph 5.(e) of this Subsection;

5. A measurement of pollutants conducted as follows:

   (a) The user shall identify the categorical standards applicable to each regulated process.

   (b) In addition, the user shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required by the categorical standard or the City Manager or Water Resources Director) of regulated pollutants in the discharge from each regulated process. Both daily maximum and average concentration (or mass, where required) shall be reported. The sample shall be representative of daily operations.

   (c) A minimum of four (4) grab samples shall be used for pH, cyanide, total phenol, oil and grease, sulfide, and volatile organics. For all other pollutants, twenty-four- (24-) hour composite samples shall be obtained through flow-proportional composite sampling techniques where feasible. The City Manager or Water Resources Director may waive flow-proportional composite sampling for any industrial user that demonstrates that flow-proportional sampling is infeasible. In such cases, samples may be obtained through time-proportional composite sampling techniques or through a minimum of four (4) grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged.

   (d) The user shall take a minimum of one (1) representative sample to compile that data necessary to comply with the requirements of this paragraph.

   (e) Samples shall be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the user should measure the flows and concentrations necessary to allow use of the combined wastestream formula of 40 CFR § 403.6(e) to evaluate compliance with the categorical standards. Where an alternate concentration or mass limit has been calculated in accordance with § 403.6(e), this adjusted limit, along with supporting data, shall be submitted to the City Manager or Water Resources Director.

   (f) Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 for the pollutant in question, or where the approval authority determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the City Manager or Water Resources Director or other parties approved by the approval authority.

(g) The baseline report shall indicate the time, date, and place of sampling and methods of analysis and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

6. A statement, reviewed by an authorized representative of the industrial user and certified to by a qualified professional, indicating whether categorical standards are being met, and if not, whether additional operations and maintenance (O & M) and/or additional pretreatment is required for the industrial user to meet the categorical standards and pretreatment requirements; and

7. If additional pretreatment and/or O & M will be required to meet the categorical standards, the shortest schedule by which the industrial user will provide such additional pretreatment and/or O & M. The completion date in this schedule shall not be later than the compliance date established for the applicable categorical standard.

(C) At least ninety (90) days prior to commencement of a discharge, new sources and sources that become industrial users subsequent to the promulgation of an applicable categorical standard shall be required to submit to the City Manager or Water Resources Director a report which contains the information listed in paragraphs 1—5 of Subsection (B) of this Section. New sources also shall be required to include in this report information on the method of pretreatment the source intends to use to meet applicable pretreatment standards. New sources shall give estimates of the information requested in paragraphs 4. and 5. of Subsection (B) of this Section.

(D) Within ninety (90) days following the date for final compliance with applicable categorical standards or, in the case of a new source, following commencement of the introduction of wastewater into the POTW, any industrial user subject to categorical standards shall submit to the City Manager or Water Resources Director a report containing the information described in paragraphs 4., 5., and 6. of Subsection (B) of this Section.

(E) Any industrial user subject to a categorical standard after the compliance date of such standard or in the case of a new source, after commencement of the discharge into the POTW, shall submit to the City Manager or Water Resources Director during the months of June and December, unless required more frequently in the categorical standard or by the City Manager or Water Resources Director or approval authority, a report indicating the nature and concentration of pollutants in the effluent which are limited by such categorical standards. In addition, this report shall include a record of measured or estimated average and maximum daily flows for the reporting period for the discharge reported in paragraph 4. of Subsection (B) of this Section, except that the City Manager or Water Resources Director may require more detailed reporting of flows.

(F) The compliance schedule for meeting categorical standards required by paragraph 7 of Subsection (B) of this Section shall be as follows:

1. The compliance schedule shall contain increments of progress, not to exceed nine (9) months, in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical standards. "Major events" include activities such as hiring an engineer, completing preliminary plans, completing final plans, executing a contract for major components, commencing construction, and completing construction.

2. Not later than fourteen (14) days following each date in the compliance schedule and the final date for compliance, the industrial user shall submit a progress report to the City Manager or Water Resources Director, including whether or not it complied with the increment of progress to be met on such date, and if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established.

(G) Monitoring and analysis to demonstrate continued compliance shall be conducted as follows:

1. The reports required in Subsections (B), (C), (D), and (E) of this Section shall contain the results of sampling and analysis of the discharge, including the flow and the nature and concentration, or production and mass where requested by the City Manager or Water Resources Director, of pollutants contained therein which are limited by the applicable categorical standards. This sampling and analysis may be performed by the City Manager or Water Resources Director in lieu of the industrial user. Where the City Manager or Water Resources Director performs the required sampling and analysis in lieu of the industrial user, the user will not be required to submit the compliance certification required under 40 CFR §§ 403.12(b)6 and 403.12(d). In addition, where the City Manager or Water Resources Director collects all the information required for the report, including flow data, the industrial user will not be required to submit the report.

2. If sampling performed by an industrial user indicates a violation, the user shall notify the City Manager or Water Resources Director within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the City Manager or Water Resources Director within thirty (30) days after becoming aware of the violation. However, the industrial user is not required to resample if either:

   (a) The City Manager or Water Resources Director performs sampling of the industrial user at a frequency of at least once per month; or

   (b) The City Manager or Water Resources Director performs sampling of the user between the time when the user performs its initial sampling and the time when the user receives the results of this sampling.

3. The reports required in Subsection (E) of this Section shall be based upon data obtained through appropriate sampling and analysis performed during the period covered by the report, which data is representative of conditions occurring during the reporting period. The City Manager or Water Resources Director shall require that frequency of monitoring necessary to assess and assure compliance by industrial users with applicable categorical standards.

4. All analyses shall be performed in accordance with procedures established by the approval authority pursuant to CWA § 304(h) and contained in 40 CFR Part 136 or with any other test procedures approved by the administrator. Sampling shall be performed in accordance with the techniques approved by the administrator. Where 40 CFR Part 136 does not include sampling or analytical techniques for the pollutants in question or where the administrator determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed using validated analytical methods or any other sampling and analytical procedures, including procedures suggested by the City Manager or Water Resources Director or other parties approved by the administrator.

5. If an industrial user subject to the reporting requirements in Subsection (E) of this Section monitors any pollutant more frequently than required by the City Manager or Water Resources Director using the procedures prescribed in paragraph 4 of this Subsection, the results of this monitoring shall be included in the report.

(H) The reports required by Subsections (B), (C), (D), and (E) of this Section shall both:

1. Include the certification statement set forth as follows:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violation."

2. Be signed as follows:

(a) By a responsible corporate officer, if the industrial user submitting the reports required by Subsections (B), (C), (D), and (E) of this Section is a corporation. For purposes of this paragraph, a "responsible corporate officer" means either:

(i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function or any other person who performs similar policy or decision-making functions for the corporation; or

(ii) The manager of one (1) or more manufacturing, production, or operation facilities employing more than two hundred fifty (250) persons or having gross annual sales or expenditures exceeding twenty- five million dollars ($25 million) if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(b) By a general partner or proprietor if the industrial user submitting the reports required by Subsections (B), (C), (D), and (E) of this Section is a partnership or sole proprietorship.

(c) By a duly authorized representative of the individual designated in subparagraph (a) or (b) of this paragraph if all of the following criteria are met:

(i) The authorization is made in writing by the individual described in subparagraph (a) or (b);

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

(iii) The written authorization is submitted to the City Manager or Water Resources Director.

(d) If an authorization under subparagraph (c) of this paragraph is no longer accurate because a different individual or position has responsibility for either the overall operation of the facility or environmental matters for the company, a new authorization satisfying the requirements of subparagraph (c) of this paragraph shall be submitted to the City Manager or Water Resources Director prior to or together with any reports to be signed by an authorized representative.

(Ord. No. 5959, § 2, 8-25-25)

8-4-20: MORE STRINGENT FEDERAL REQUIREMENTS TO CONTROL

Upon the effective date of any categorical standards for a particular industrial subcategory, the federal standard shall immediately supersede these limitations if it is more stringent than limitations imposed under this Chapter. (Ord. No. 5959, § 2, 8-25-25)

8-4-21: PRETREATMENT; MAINTENANCE OF FACILITIES AND BYPASS

(A) Where pretreatment facilities are provided for wastewater, the facilities shall be maintained continuously in satisfactory and effective operation by the owner at the owner's expense. The owner shall keep written records of all cleaning, repair, calibration, and maintenance required under this Subsection. The owner shall keep such records at the facility for a minimum of three (3) years.

(B) All bypasses are prohibited except in the following circumstances:

1. The bypass is unavoidable to prevent loss of life, personal injury, or substantial property damage;
2. No feasible alternatives to the bypass exist; or
3. The purpose of the bypass is maintenance which is essential to assure efficient operation and the bypass will not cause the exceedance of an effluent limitation contained in an NPDES Permit.

(C) If a permittee has prior knowledge of the need for a bypass, the permittee shall submit written notice of such fact to the City Manager or Water Resources Director at least ten (10) days before the date of the bypass. If an unanticipated bypass occurs, the permittee shall notify the City Manager or Water Resources Director within twenty-four (24) hours of receiving knowledge of the bypass and shall submit within five (5) days a written report to the City Manager or Water Resources Director specifying all of the following information:

1. A description of the bypass, including its cause and duration;
2. Whether the bypass has been corrected, and if not, specific plans, including time frames, to correct it; and
3. The steps being taken or to be taken to reduce, eliminate, and prevent a reoccurrence of the bypass.

(Ord. No. 5959, § 2, 8-25-25)

8-4-22: INTERCEPTORS

(A) Interceptors such as grease, oil, or sand shall be provided for laundries, restaurants, service stations, auto repair shops, carwashes, and other facilities when the City Manager or Water Resources Director determines that they are necessary for the proper handling of liquid wastes containing grease or oil in excessive amounts or any flammable wastes, sand, and other harmful ingredients.

(B) All interceptors shall be of a type and capacity approved by the City Manager or Water Resources Director and shall be located as to be readily and easily accessible for cleaning and inspection.

(C) Interceptors such as grease, oil, or sand shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers. When bolted covers are required, they shall be gastight and watertight.

(D) Where installed, interceptors such as grease, oil, or sand shall be maintained by the owner, at the owner's expense, in continuously efficient operation at all times. The owner shall keep written records and documentation of all cleaning, repair, calibration, and maintenance required to demonstrate compliance with this Section. Records shall be kept at the facility for a minimum of three (3) years and shall be made available to the City Manager or Water Resources Director upon his request.

(E) The method for determining the size of traps or interceptors is the drainage fixture unit value. The minimum size for all interceptors is a capacity of five hundred (500) gallons and the maximum size for all interceptors is a capacity of twenty-five hundred (2,500) gallons. Interceptors must be constructed with at least two (2) chambers. Sizing for all traps is a minimum of a fifty (50) gallon per minute, one hundred (100) pound capacity with the flow control valve installed in a manner that provides access at all times. The appropriate size and traps is determined as follows:

(1) *Interceptor Sizing.* The interceptor shall be sized using the drainage fixture-unit value as defined in the following table. Using the drain outlet or trap size, these sizes are converted to discharge rates on the basis that one fixture-unit equals 7.5 gpm.

Fixture Outlet or Trap Size (Inches)	**Drainage Fixture-Unit Value**	**gpm Equivalent**
1¼	1	7.5
1½	2	15.0
2	3	22.0
2½	4	30.0
3	5	37.5
4	6	45.0
Dishwashers	Double Size	

(2) *Calculating Interceptor Size.* The formula to calculate the size of the interceptor is:

a. Determine total fixture-unit value by multiplying fixture type count by drainage value;

b. Total all values;

c. Determine total flow by multiplying total value by flow rate of 3 gpm;

d. Multiply total flow by 12; and

e. Round up to the next nearest size interceptor.

(3) *Requirements for Interceptors.* The interceptor shall be:

a. A minimum of five hundred (500) gallon capacity, two (2) chamber concrete container (fiber glass and/or other type material must be approved by the City Manager or Water Resource Director or Designee);

b. When calculated to have a capacity of seven hundred fifty (750) gallons or more, the interceptor must have three (3) chambers, each with a manway;

c. Constructed with inlet piping with a ninety degree (90°) elbow and minimum of an eighteen (18) inch down spout;

d. Constructed with outlet piping with a tee connection and a threaded cover with a minimum of an eighteen (18) inch down spout;

e. Installed with a two (2) way clean-out within five (5) feet before and five (5) feet after the interceptor; and

f. Constructed with the appropriate traffic rated cover. The cover(s) must not be marked with any wording indicating it is owned by the City of Mesa.

(4) *Grease Trap Installation and Sizing.* Grease traps are allowed only when there are four (4) or fewer than four (4) fixtures used for food preparation. Any facility installing a dishwasher shall install a grease interceptor. For sizing a grease trap, a fixture means the entire unit, e.g., a three (3) compartment sink is considered one unit. Grease traps must be installed as follows:

a. A grease trap shall be installed whenever a three (3) compartment sink is required by Maricopa County;

b. The minimum size grease trap to be installed shall be rated no smaller than fifty (50) gallon-per-minute with a one hundred (100) pound grease capacity;

c. A flow restriction valve shall be installed upstream of the grease trap and vented properly. If placed below floor level the flow restriction valve must be installed in a manner which allows for inspection and maintenance; and

d. Except for domestic sources, users shall not install or replace equipment designed to convert garbage or solid waste into liquefied waste and introduce such waste into the POTW by means of a garbage grinder/disposal. Disposal of garbage and solid waste shall be disposed of as solid waste.

(Ord. No. 5959, § 2, 8-25-25)

8-4-23: CONTROL MANHOLES

When required by the City Manager or Water Resources Director, the owner of any property served by a building sewer carrying any liquid or free-flowing wastewater, excluding uncontaminated water but including cooling water, resulting from any industrial or manufacturing process or from the development, recovery, or processing of natural resources, with or without SS, shall install a suitable control manhole in the building sewer to facilitate observation, measurement, and sampling of the wastes. Such manhole shall be accessible, safely located, and constructed in accordance with plans approved by the City Manager or Water Resources Director. The manhole shall be installed by the owner at the owner's expense.
(Ord. No. 5959, § 2, 8-25-25)

8-4-24: RIGHT OF ENTRY FOR INSPECTION

(A) Any authorized employee of the Water Resources Department shall have free access, upon presentation of credentials and at all reasonable hours, to all commercial or industrial premises connected to the City

sewer system service area for the purpose of assessing applicability and/or compliance with the requirements of this Chapter. For purposes of this Section, "free access" shall be the ability of City personnel to enter POTW user facilities under safe and nonhazardous conditions with a minimum of delay to inspect any and all parts of the user's facility.

(B) Any POTW user or potential user shall allow all actions, including inspection, monitoring, and copying of records, reasonably needed by the City Manager or Water Resources Director to perform the duties required or needed under this Chapter.

(C) Servicemen, industrial wastewater inspectors, sanitary engineers, or other employees of the Water Resources Department whose duty it may be to enter upon commercial or industrial premises to make inspections and collect samples or measure the quantity of wastewater discharged to the City sewer shall be provided with credentials to identify them as authorized representatives for the Water Resources Department.

(D) No person except an authorized employee of the Water Resources Department shall have or exhibit any credentials of the Water Resources Department. It shall be the duty of each employee of the Water Resources Department upon resignation or dismissal to deliver and surrender at the office of the City Manager or Water Resources Director all credentials of the Water Resources Department in the employee's possession.

(Ord. No. 5959, § 2, 8-25-25)

8-4-25: DETERMINATION OF WASTEWATER QUALITY

(A) Testing by direct sampling, utilizing recognized field techniques, equipment, and procedures, will be used for all industrial users. Wastewater characteristics shall be determined by the City Manager or Water Resources Director on the basis of monitored wastewater discharged, a certified statement from the user, or on the best available data as to the characteristics of such discharges.

(B) If it is determined through testing that a significant variation exists between the user's certified data and the discharge characteristics monitored by the City Manager or Water Resources Director, the City may adjust the sewer use charge based on the monitored data from the original date of certification unless written communication has occurred notifying the Water Resources Department of changes in loading and giving specific dates of changes.

(C) Where sampling and gauging of a specific user is not practical for physical, economic, safety, or other reasons, the City Manager or Water Resources Director may designate values for concentrations of the wastewater discharged to the POTW for all users in the same standard industrial classification or subclassification.

(Ord. No. 5959, § 2, 8-25-25)

8-4-26: CONFIDENTIAL INFORMATION

Information and data on a POTW user obtained from inspections, reports, questionnaires, permit applications, permits, and monitoring programs shall be available to the public or other governmental agencies without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the City that the release of such information would divulge information, processes, or methods of production entitled to protec-

tion as trade secrets of the user. However, all information shall be made available upon written request by governmental agencies for uses related to this Chapter, the NPDES Permit, State Disposal System Permit, and/or the pretreatment programs, including judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information. To claim this trade secret protection, the user must specify at the time of submitting reports or information that part he desires to protect.
(Ord. No. 5959, § 2, 8-25-25)

8-4-27: AUTHORITY OF THE CITY MANAGER OR WATER RESOURCES DIRECTOR TO REGULATE AND ENFORCE POTW USER COMPLIANCE

The City Manager or Water Resources Director is authorized to regulate and enforce POTW user compliance with the requirements of this Chapter. In carrying out this responsibility, the City Manager or Water Resources Director has authority to:

(A) Consistent with applicable state and federal requirements, such as the pretreatment standards:

1. Regulate the volume and flow rate of discharge to the POTW;

2. Establish permissible limits of concentration for various specific substances, materials, waters, or wastes that can be accepted into the POTW;

3. Specify those pollutants, materials, waters, or wastes that are prohibited from entering the POTW. All prohibitions so established shall be placed on file with the City Clerk and will become effective and enforceable on the thirty-first (31st) day after the date of filing;

4. Establish limitations for individual users or class of users for various pollutants, materials, waters, or wastes that can be accepted into the POTW. All limitations so established shall be placed on file with the City Clerk and will become effective and enforceable on the thirty-first (31st) day after the date of filing;

5. Identify those pollutants, materials, waters, or wastes that shall be controlled with best management practices. Pollutants, materials, waters, or wastes to be controlled with best management practices that have been identified by the City Manager or Water Resources Director shall be placed on file with the City Clerk and will become effective and enforceable on the thirty-first (31st) day after the filing;

6. Require individual users or class of users to implement best management practices for any pollutant, materials, water, or waste;

7. Regulate the admission into the public sewers of any wastewater having one (1) or more of the following characteristics:

   (a) A five- (5-) day biochemical oxygen demand greater than three hundred (300) milligrams per litre by weight;

   (b) More than three hundred fifty (350) milligrams per litre by weight SS; or

   (c) An average daily flow of greater than twenty-five thousand (25,000) gallons.

(B) Issue an Industrial Wastewater Discharge Permit pursuant to Section 8-4-18 of the Mesa City Code.

(C) Incorporate the pertinent requirements of this Chapter into every City contract with any POTW user located outside of the municipal jurisdiction of the City. Such contracts may also provide for liquidated damages and, if applicable, specific performance as remedies for breach of contract.

(D) Receive and analyze all self-monitoring reports and notices submitted by industrial users.

(E) Randomly sample and analyze effluent for industrial users at least once a year and conduct those surveillance and inspection activities needed to identify, independently of any information supplied by such users, occasional or continuing noncompliance with any categorical standard or pretreatment requirement.

(F) Investigate instances of noncompliance with any categorical standard or pretreatment requirement when notice of any actual or probable noncompliance has been received by the City Manager or Water Resources Director.

(G) Notify POTW users of noncompliance with categorical standards or pretreatment requirements discovered by the City Manager or Water Resources Director. Such notice shall also contain a demand for any appropriate corrective action which is necessary to meet the applicable requirements of this Chapter. The appropriate level of action shall be based on detailed written procedures developed by the Department.

1. Any POTW user will be allowed an opportunity to respond to an order of the City Manager or Water Resources Director before any enforcement action against such user is initiated unless the discharge is a threat to the public health, safety, or welfare, in which case the City Manager or Water Resources Director may initiate enforcement action without giving notice.

2. A timely and satisfactory response to an order may result in the issuance of a negotiated settlement agreement signed jointly by the user and the City Manager or Water Resources Director indicating a mutually agreeable resolution of the noncompliance action. If such a settlement agreement is reached, the City Manager or Water Resources Director shall provide notice in the largest daily newspaper published in the City of the agreement and a thirty- (30-) day public comment period on the agreement. If no public comments are received on the settlement agreement, the agreement shall become final and effective thirty-one (31) days after the notice publication date. Any public comments received by the City Manager or Water Resources Director shall be responded to in writing and mailed to the commenting party and the affected POTW user. A determination by the City Manager or Water Resources Director that no changes are necessary to the settlement agreement shall result in the agreement becoming final and effective upon the issuance of the City Manager or Water Resources Director's written response. If the City Manager or Water Resources Director determines that public comment warrants any modification to the settlement agreement, then an attempt shall be made to renegotiate the agreement. If a modified settlement agreement is reached, the City Manager or Water Resources Director shall determine whether the modification significantly alters the substance of the initial settlement agreement. The modified settlement agreement shall become final and effective if the City Manager or Water Resources Director determines that no significant alteration occurred. The City Manager or Water Resources Director shall repeat the public notice process described in this paragraph for a modified settlement agreement that has been significantly altered.

(H) Comply with the public participation requirements of 40 CFR Part 25 in connection with the City's enforcement of any categorical standards.

(I) Both:

1. Determine which actual or threatened discharge to the POTW will cause interference with the POTW or may present an imminent or substantial endangerment to the health or welfare of any person and/or to the environment, and

2. Correct or mitigate any injury to the environment, the POTW, or to any other property as a result of any discharge in violation of a categorical standard or pretreatment requirement imposed by this Chapter.

(J) Annually publish in the largest daily newspaper published in the City public notice of all industrial users who at least once during the preceding twelve- (12-) month period were in significant noncompliance with any categorical standard or pretreatment requirement imposed by this Chapter. The notification also shall summarize any enforcement actions taken against such users during the same twelve- (12-) month period.

(K) Notify industrial users of applicable categorical standards and any applicable requirements under CWA §§ 204(b) and 405 and Subtitles C and D of the Resource Conservation and Recovery Act.

(L) Keep on file one (1) copy of all federal statutes and regulations cited by this Chapter in order to allow required users adequate opportunity to be informed of the applicable federal requirements herein incorporated by reference.

(M) Evaluate at least once every two (2) years whether each significant industrial user needs a plan to control slug loads. The results of such activities shall be available to the approval authority upon request. If the City Manager or Water Resources Director decides that a slug control plan is needed, the plan shall contain all of the following elements:

1. Description of discharge practices, including nonroutine batch discharges;

2. Description of stored chemicals;

3. Procedures for immediately notifying the City Manager or Water Resources Director of slug discharges, including any discharge that would violate a prohibition under 40 CFR § 403.5(b), with procedures for follow up written notification within five (5) days. The written report must detail the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification will not relieve the user of any expense, loss, damage, or other liability that might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor will such notification relieve the user of any fines, penalties, or other liability that may be imposed pursuant to this chapter.

4. Procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of material, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

(N) Require both:

1. The development of a compliance schedule by each industrial user for the installation of technology required to meet applicable pretreatment requirements, and

2. The submission of all notices and self-monitoring reports from industrial users as are necessary to assess and assure compliance by industrial users with pretreatment requirements, including the reports required in 40 CFR § 403.12.

(O) If the City Manager or Water Resources Director determines that it will not harm the POTW, approve the discharge of storm water, surface water, groundwater, roof runoff, subsurface drainage, single-pass cooling water, or condensate that may constitute inflow.

(Ord. No. 5959, § 2, 8-25-25)

8-4-28: VIOLATIONS; RESTRICTION OF SEWER SERVICE

(A) Failure to comply with any of the requirements of this Chapter may result in the following actions:

1. The City Manager or Water Resources Director may restrict or otherwise limit allowable discharges.

2. The City Manager or Water Resources Director may suspend or revoke any Industrial Wastewater Discharge Permit issued to a permittee.

3. The City Manager or Water Resources Director may discontinue water and/or sewer service to the premises, and such service shall not be restored until such violations have been discontinued or eliminated and all outstanding charges paid.

   (a) Before discontinuing water and/or sewer service as provided herein, the City Manager or Water Resources Director shall give written notice to the person of the discontinuance and an opportunity to appear before the City Manager or Water Resources Director on any disputed matter relative to the discontinuance of sewer service.

   (b) However, the City Manager or Water Resources Director may abate any actual or threatened discharge which would violate any categorical standard or pretreatment requirement imposed by this Chapter by promptly plugging or disconnecting the sewer service.

   (c) The discontinuance of sewer service shall be accomplished by physically cutting and blocking the building connection. The cost of reconnecting the sewer service will be assessed and shall be paid to the Water Resources Department.

(B) Upon notice of a final determination by the City Manager or Water Resources Director of an assessment owing or order to correct a violation under this Chapter, the responsible party shall tender the fee assessed and correct the violation within ten (10) days of the date ordered. In the event the violation is not corrected or the assessment is not tendered, it is hereby declared to be, and is, a public nuisance which may be abated by injunctive relief in the Superior Court or by other order of a court of competent jurisdiction. Such action shall be in addition to any other remedy authorized by this Chapter.

(Ord. No. 5959, §§ 2, 3, 8-25-25)

8-4-29: VIOLATIONS; ADMINISTRATIVE PENALTIES

(A) Any person who violates any provision of this Chapter or any order enforcing the provisions of this Chapter may be assessed an administrative penalty by the City Manager in an amount not to exceed twenty-five thousand dollars ($25,000) for each violation. Each day that a violation continues shall constitute a separate violation.

(B) In determining the amount of an administrative penalty, the City Manager shall consider all of the following:

1. The seriousness of the violation;
2. The economic benefit, if any, resulting from the violation;
3. Any history of such violation;
4. Any good faith efforts to comply with the applicable requirements;
5. The economic impact of the penalty on the violator; and
6. Such other factors as justice may require.

(C) The City Manager or Water Resources Director shall provide written notice and an opportunity to be heard to any person assessed an administrative penalty under this Section. Within fifteen (15) days of receipt of the notice, such person shall pay the penalty or file a written request for a hearing with the City Manager. If a hearing is held, the City Manager shall issue a written decision, and such decision shall be final.

(D) The assessment of administrative penalties under this Section shall not limit the availability or imposition of other penalties, remedies, or sanctions under the law or this Chapter.

(Ord. No. 5959, §§ 2, 3, 8-25-25)

8-4-30: VIOLATIONS; CIVIL AND CRIMINAL ACTIONS

The City Manager may request that the City Attorney commence criminal and/or civil action against any POTW user violating any requirement of this Chapter, including an action pursuant to A.R.S. § 49-391 to enforce the collection of administrative penalties assessed under Section 8-429 of the Mesa City Code.

(Ord. No. 5959, §§ 2, 3, 8-25-25)

8-4-31: ENFORCEMENT OF CHAPTER

(A) The requirements of this Chapter are made for the benefit of the POTW users, for the protection of the POTW, and to protect the quality of effluent. Their enforcement shall in no case be willfully ignored by any City official or employee.

(B) Upon written request from any person for an exemption from a requirement contained in this Chapter, the City Manager or Water Resources Director may determine whether the requirement would cause a gross injustice to a particular POTW user and whether it is in the public interest to grant the exemption. The City

Manager or Water Resources Director shall explain in writing to the person seeking the exemption the ultimate determination granting or denying the request. Under no circumstances may an exemption be sought or granted from requirements imposed by applicable state and federal laws.

(Ord. No. 5959, § 2, 8-25-25)

CHAPTER 5
STORM WATER POLLUTION CONTROL

8-5-1: DEFINITIONS

The following terms as used in this Chapter shall mean: (2774, 5062/Reso. 6528)

A.A.C. (ARIZONA ADMINISTRATIVE CODE): Official compilation of rules that govern state agencies, boards and commissions. (5062)

A.R.S. (ARIZONA REVISED STATUTES): Statutory laws in the State of Arizona. (5062)

AZPDES STORM WATER PERMIT: A permit issued by any agency of the State of Arizona having appropriate authority over the Arizona Pollutant Discharge Elimination System which authorizes the discharge of storm water pursuant to the C.W.A. (5062)

BEST MANAGEMENT PRACTICES: Schedules of activities, prohibitions of practices, structural and nonstructural controls, operational and maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants to waters of the United States to the maximum extent practicable. (5062)

CITY: City of Mesa, Arizona. (2774/Reso. 6528)

CITY MANAGER: The City Manager appointed in accordance with Article III of the Mesa City Charter. (2774, 5062/Reso. 6528)

CITY STORM SEWER SYSTEM: Those facilities not part of a publicly owned treatment works within the City by which storm water may be conveyed to waters of the United States, including all roads, streets, catch basins, curbs, gutters, ditches, channels, storm drains, retention or detention basins, and drywells that are owned and operated by the City. (2774, 5062/Reso. 6528)

CIVIL HEARING OFFICER: The Mesa Zoning Administrator within the Development and Sustainability Department or such other person as designated by the City Manager. (5062)

C.F.R. (CODE OF FEDERAL REGULATIONS): Codification of the general and permanent rules and regulations published in the Federal Register by the executive departments and agencies of the federal government of the United States. (2774, 5062/Reso. 6528)

C.W.A. (CLEAN WATER ACT): The Federal Water Pollution Control Act Amendments of 1972 (P.L. 92-500; 86 STAT. 816; 33 United States Code Sections 1251 through 1376), as amended [A.R.S. § 49-201(6)]. (2774, 5062/Reso. 6528)

DISCHARGE OF A POLLUTANT: Any addition of any pollutant or combination of pollutants to waters of the United States from any point source. (5062)

HAZARD: A condition that presents a risk to the public health or the environment. (5062)

IMMINENT HAZARD: A condition that presents an immediate likelihood for causing harm to the public health or the environment. (5062)

NOTICE TO ABATE: A notice issued to a responsible party concerning a violation of this Chapter of the Mesa City Code. (5062)

NPDES STORM WATER PERMIT: A permit issued by any agency of the United States having appropriate authority over the National Pollutant Discharge Elimination System which authorizes the discharge of storm water pursuant to the C.W.A. (2774, 5062/Reso. 6528)

PERSON: Any individual, employee, officer, managing body, trust, firm, joint stock company, consortium, public or private corporation, including a government corporation, partnership, association or state, a political subdivision of this state, a commission, the United States government or any federal facility, interstate body or other entity [A.R.S. § 49-201(27)]. (2774, 5062/Reso. 6528)

PROPERTY: Any building, facility, lot, parcel, real estate, or land or portion of land, whether improved or unimproved, and including adjacent sidewalks and parking strips. (2774, 5062/Reso. 6528)

POINT SOURCE: Any discernible, confined and discrete conveyance, including, but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, or vessel or other floating craft from which pollutants are or may be discharged to waters of the United States. Point source does not include return flows from irrigated agriculture. (5062)

POLLUTANT: Any fluids, contaminants, toxic wastes, toxic pollutants, dredged spoil, solid waste, substances and chemicals, pesticides, herbicides, fertilizers and other agricultural chemicals, incinerator residue, sewage, garbage, sewage sludge, munitions, petroleum products, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and mining, industrial, municipal and agricultural wastes or any other liquid, solid, gaseous or hazardous substances [A.R.S. § 49-201(29)]. (5062)

POTW (PUBLICLY OWNED TREATMENT WORKS): A treatment works owned by this state or a municipality of this state as defined in Section 502(4) of the Clean Water Act [A.R.S. § 49-255(5)]. (5062)

RELEASE: Any direct or indirect spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, placing, leaching, dumping, or disposing of a pollutant to the City storm sewer system. (2774, 5062/Reso. 6528)

RESPONSIBLE PARTY: A person who knows or has reason to know of the existence of any violation of this Chapter on that person's property or property which that person occupies or controls, in whole or in part, including but not limited to an owner, occupant, lessor, lessee, manager, managing agent, licensee or any person who has legal care or control of the property. (5062)

STORM WATER: Storm water runoff, snow melt runoff, and surface runoff and drainage [A.A.C. R18-9-A901(36)]. (2774, 5062/Reso. 6528)

WATERS OF THE UNITED STATES: All waters as defined in 40 C.F.R. 122.2. (5062)

8-5-2: RELEASES AND CONNECTIONS

(A) Unless expressly permitted or exempted by this Chapter, no person shall release, directly or indirectly, to the City storm sewer system. (2774, 5062/Reso. 6528)

(B) The release of pollutants to the City storm sewer system authorized by any AZPDES or NPDES Storm Water Permit or other AZPDES or NPDES permit which is issued to the person who causes the release is permitted under this Chapter. (2774, 5062/Reso. 6528)

(C) Unless identified by the City Manager or designee under Subsection (D) of this Section, the following are exempt from the prohibition set forth in Subsection (A) of this Section: (2774, 5062/Reso. 6528)

1. Releases composed entirely of storm water. (2774, 5062/Reso. 6528)

2. Releases caused by a person from any of the following activities: (2774, 5062/Reso. 6528)

   (a) Water line flushing and other potable water sources; (2774, 5062/Reso. 6528)

   (b) Lawn watering and landscape irrigation; (2774, 5062/Reso. 6528)

   (c) Irrigation water; (2774/Reso. 6528)

   (d) Diverted stream flows; (2774, 5062/Reso. 6528)

   (e) Rising groundwaters; (2774, 5062/Reso. 6528)

   (f) Uncontaminated groundwater infiltration to separate storm sewers; (2774, 5062/Reso. 6528)

   (g) Uncontaminated pumped groundwater; (2774, 5062/Reso. 6528)

   (h) Foundation and footing drains; (2774/Reso. 6528)

   (i) Water from crawl space pumps; (2774/Reso. 6528)

   (j) Air conditioning condensation; (2774, 5062/Reso. 6528)

   (k) Springs; (2774, 5062/Reso. 6528)

   (l) Individual residential car washing; (2774/Reso. 6528)

   (m) Flows from riparian habitats and wetlands; (2774, 5062/Reso. 6528)

   (n) Flows resulting from firefighting activities; or (2774, 5062/Reso. 6528)

   (o) Street wash water; (5062)

(D) No person shall cause a release, directly or indirectly, to the City storm sewer system which is exempted under Subsection (C) of this Section if the City Manager or designee identifies and provides written notice to the person that the release from such person has the potential to result in a discharge of pollutants to waters of the United States. (2774, 5062/Reso. 6528)

(E) No person shall release any pollutant, directly or indirectly, to the City storm sewer system where such release would result in or contribute to a violation of any AZPDES or NPDES Storm Water Permit issued to the City, either separately considered or when combined with other releases. Liability for any such release shall be the responsibility of the person causing or responsible for the release, and the person shall defend, indemnify, and hold harmless the City in all administrative or judicial enforcement actions relating to such release. (2774, 5062/Reso. 6528)

(F) No person shall establish, use, maintain, or continue any direct or indirect connection to the City's storm sewer system which has the potential to result in a violation of this Section. This prohibition is retroactive and shall apply to connections made in the past, regardless of whether they were made under a permit or other authorization or whether they were permissible under the law or practices applicable or prevailing at the time of the connection. (2774/Reso. 6528)

8-5-3: REDUCTION OF POLLUTANTS IN STORM WATER

(A) All persons owning or operating facilities or engaged in activities which will or may reasonably be expected to result in the release of pollutants to the City storm sewer system, either directly or indirectly, shall undertake appropriate best management practices to minimize the release of such pollutants to the maximum extent practicable. (2774, 5062, 5144/Reso. 6528)

(B) No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, maintained, or kept, except in appropriate containers or in lawfully established dumping grounds, any refuse, rubbish, garbage, or other discarded or abandoned objects, articles, and accumulations into or upon any component of the City storm sewer system or upon any public property. Additionally, no person shall do the same upon any private property in such a manner that could reasonably result in the release of pollutants to the City storm sewer system. (2774, 5062/Reso. 6528)

(C) Persons owning or operating a parking lot, storage or loading area, or similar property which is exposed to rainfall shall maintain those properties in a manner so that any release from such properties does not cause or contribute to a violation of Section 8-5-2. (2774, 5062/Reso. 6528)

(D) Any person performing construction activities shall undertake appropriate best management practices to minimize the release of pollutants and sediment to the maximum extent practicable. Such best management practices shall include the requirements imposed by both of the following: (2774, 5062/Reso. 6528)

1. This Chapter; and (2774, 5062/Reso. 6528)

2. For construction operations at City projects or occurring in the City of Mesa public right-of-way that are required to comply with and AZPDES or NPDES Storm Water Permit, that certain document known as the Drainage Design Manual for Maricopa County, Erosion Control dated November 28, 2012, a public record of the City of Mesa together with the following appendices thereto: (2774, 5062, 5144/Reso. 6528)

   Appendix A Construction General Permit (5144)

   Appendix B Forms (5144)

   Appendix C Links and References (5144)

   Appendix D Glossary (5144)

   Appendix E Bibliography (5144)

   Are hereby referred to, adopted, and made a part hereof as if fully set forth in this Section, with the following changes in and amendments to said document: (5144)

   (a) Section 5 Best Management Practices; EC-2: Mulching Emulsified asphalt is not permitted as a mulching option on City properties or for City projects. (5144)

   (b) Section 5 Best Management Practices; EC-3 Protection of Trees and Vegetation in Construction Areas Where plans provide for the preservation of trees and other vegetation, these areas shall be delineated (i.e. staked, flagged, or fenced) to prevent damage from construction equipment and other forms of access. (5144)

   (c) Section 5 Best Management Practices; EC-5 Stabilized Construction Entrance Course aggregate pad dimensions must be a minimum of thirty feet in width, three inches in depth,

and fifty feet in length or the length of the longest haul truck, whichever is greater. Instead of a course aggregate pad, construction site entrance stabilization may also include a paved surface one hundred feet in length and twenty feet in width or a grizzly or rumble grate consisting of raised dividers a minimum of three inches tall, six inches apart, and twenty feet in length. (5144)

(d) Section 5 Best Management Practices; SPC-2 Sand Bag Barrier Sand bags may not be used for the purposes of inlet protection. Where sand bags are used for other purposes, they shall be delineated (i.e. staked and flagged) to keep construction equipment from damaging these structures. Sand bags must be inspected on at least a weekly basis to ensure they have not ruptured and the sand has become a stormwater pollutant. (5144)

(e) Section 5 Best Management Practices; SPC-5 Silt Fence For projects greater than five acres requirements regarding perimeter control of the construction activity as provided in any applicable stormwater permit shall be met through the use of silt fences excepting those areas of high flow, construction site entrances, areas where perimeter control are impracticable (i.e. projects in the public right-of-way); and areas where all stormwater flows are directed to an on-site temporary sediment basin or sediment trap. (5144)

(f) Section 5 Best Management Practices; SPC-6 Re-Vegetation Where plans provide for re-vegetation, installation of such vegetation shall take place as soon as practicable and these areas shall be delineated (i.e. staked, flagged, or fenced) to prevent damage from construction equipment and other forms of access. (5144)

(g) Section 5 Best Management Practices; SPC-7 Storm Drain Inlet Protection To prevent flooding issues, storm drain inlet protection should only be used when sufficient construction site perimeter control is not possible (e.g. utility installations in public roadways or other public right-of-way areas). City of Mesa personnel may remove any storm drain inlet protection device where flood conditions may exist. It is the responsibility of the operator in charge of day-to-day operations to replace or re-install these devices after the threat of flooding has subsided. (5144)

Course gravel and cinder block configurations and sand bags are not to be used to protect storm drains. When installing any storm drain inlet protection that is installed above grade traffic control devices must be placed at the end of both sides of the installation to prevent damage from public and construction traffic, all traffic control devices must be installed in accordance with temporary traffic control requirements as provided in Title 10, Chapter 10 of the Mesa City Code. (5144)

(E) Persons having the potential to cause a release of pollutants to the City storm sewer system and who are required to submit a notice of intent to comply with an AZPDES or NPDES Storm Water Permit shall provide a copy of any approval or statement of authorization from the permitting agency to the City Manager or designee. Where a waiver is available, a copy of that waiver must then be provided in lieu of the approval or statement of authorization. The City will not issue a construction permit nor will verbal authorization be given to proceed with initial grading and drainage operations until the approval or statement of authorization from the permitting agency has been submitted to the City. (2774, 5062, 5144/Reso. 6528)

8-5-4: AUTHORITY TO INSPECT

(A) The Mesa Development and Sustainability Department or such other City division or department as the City Manager may designate is hereby authorized to make inspections for violations of this Chapter in the normal course of job duties or in response to a citizen complaint that an alleged violation of the provisions of this Chapter may exist or when there is a reason to believe that a violation of this Chapter has been or is being committed. (5062)

(B) In order to determine compliance with this Chapter, private property may be entered with the consent of the owner or occupant or as authorized by a court of competent jurisdiction. (5062)

8-5-5: COMMENCEMENT OF AN ACTION

(A) The City Manager or designee is authorized to commence and enforcement action under this Chapter by issuing a notice of abatement under this Chapter or a citation for civil sanctions under this Chapter, or both. They may also seek the issuance of a compliant by the Mesa City Prosecutor for criminal prosecution of habitual offenders as defined in this Chapter. (5062)

(B) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings, or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (5062)

8-5-6: REMEDIES NOT EXCLUSIVE

Violations of this Chapter are in addition to any other violation established by law, and this Chapter shall not be interpreted as limiting the penalties, actions or abatement procedures which may be taken by the City or other persons under other laws, ordinances, or rules. (5062)

8-5-7: DEFENDANTS AND RESPONSIBLE PARTIES

Any responsible party who causes, permits, facilitates, aids, or abets any violation of this Chapter or who fails to perform any act or duty required pursuant to this Chapter, is subject to the enforcement provisions of this Chapter. Responsible parties may be individually and jointly responsible for the violations, the prescribed civil or criminal sanctions, for abatement of the violation and for any associated costs and fees. (5062)

8-5-8: CIVIL VIOLATIONS AND CITATION

(A) A civil action for violations of this Chapter may be commenced by issuance of a citation. (5062)

(B) The citation will be substantially in the form established by the City Manager or designee. The citation shall advise the responsible party of the violation(s) committed, either by written description of the violations or by designation of the City Code section that was violated. The citation shall direct the responsible party to pay the civil sanction and all applicable fees in accordance with Section 8-5-9 of this Chapter within the time period specified on the citation or to appear before the Civil Hearing Officer within the time period specified on the citation and admit or deny the allegations contained in the citation.

The Civil Hearing Officer may permit amendments to the citation if substantial rights of the responsible party are not thereby prejudiced. The citation shall be served pursuant to the Arizona Rules of Civil Procedure. (5062)

(C) The responsible party shall, within the time period specified on the citation or within 10 calendar days of the issuance of the citation, whichever is greater, either pay the civil sanction and the fees, or appear in person, through an attorney or by e-mail with the clerk of the Civil Hearing Officer and admit or deny the allegations contained in the citation. (5062)

1. If the responsible party timely pays the civil sanction and the fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears in person, through an attorney or by e-mail and admits the allegations, the Civil Hearing Officer shall enter judgment against the responsible party in the amount of the civil sanction, plus any applicable fees designated in Section 8-5-9; or, (5062)

2. If the responsible party appears in person, through an attorney or by e-mail and denies the allegations contained in the citation, the clerk of the Civil Hearing Office shall set the matter for hearing. (5062)

(D) If a person served with a citation fails to pay the civil sanction and the fees or to file on or before the time directed on the citation or at the time set for hearing by the Civil Hearing Officer, the allegations in the complaint shall be deemed admitted, and the Civil Hearing Officer shall enter a finding of responsible and a judgment for the City and impose the appropriate sanctions and fees. (5062)

(E) All proceedings before the Civil Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. No prehearing discovery shall be permitted, except under extraordinary circumstances as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona rules of civil procedure for special actions. (5062)

(F) Any person aggrieved by a decision of the Civil Hearing Officer, at any time within 30 calendar days after a final judgment has been rendered, may file a complaint of special action in Superior Court to review the Civil Hearing Officer's decision. Filing the complaint does not stay proceedings on the decision sought to be reviewed, but the court may, on application, grant a stay and on final hearing, affirm or reverse, in whole or in part, or modify the decision reviewed. (5062)

8-5-9: CIVIL PENALTIES

(A) Any responsible party who is found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, shall pay a civil sanction of not less than $150 or more than $1,500. A second finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $250 or more than $2,500. A third finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an

enhanced civil sanction of not less than $500 or more than $2,500. In addition to the civil sanction, the responsible party shall pay the applicable fees and charges set forth in the City's Development and Sustainability Department (Code Compliance) Schedule of Fees and Charges, and may be ordered to pay any other applicable fees and charges. (5062)

(B) After entering a judgment of responsible and setting a civil sanction and fees as specified in Section 8-5-9(A), the Civil Hearing Officer may order a compliance hearing and set a date for such hearing. Upon presentation of evidence and/or testimony by the City inspector at the compliance hearing that the violation(s) specified in the complaint has been abated, the Civil Hearing Officer may reduce all or a portion of the civil sanction commensurate with the cost borne by the defendant to achieve compliance, or the Civil Hearing Officer may vacate the previous judgment and dismiss the citation(s). If, a minimum of 7 calendar days before a scheduled compliance hearing, the Civil Hearing Officer receives both of the following items, then the Civil Hearing Officer may issue written orders commensurate with the authority given in this Section, to reduce civil sanctions and/or vacate the related judgment without holding the scheduled compliance hearing: (5062)

1. Written and notarized confirmation from the City inspector that the violation has been successfully abated, and (5062)

2. A written and notarized statement from the defendant describing the actions taken and the itemized costs borne to abate the violation. (5062)

If either item has not been received by the Civil Hearing Officer 7 calendar days before, then the compliance hearing shall take place as previously scheduled. (5062)

(C) The 36 month provision of paragraph (A) of this Section shall be calculated by the dates the violations were committed. The responsible party shall receive the enhanced sanction upon a finding of responsibility for any violation of this Chapter that was committed within 36 months of the commission of another violation for which the responsible party was convicted or was otherwise found responsible, irrespective of the order in which the violations occurred or whether the prior violation was civil or criminal. (5062)

(D) Each day in which a violation of this Chapter continues or the failure to perform any act or duty required by this Chapter or by the Civil Hearing Officer continues shall constitute a separate civil offense. (5062)

8-5-10: RESERVED

8-5-11: HABITUAL OFFENDER

(A) A person who commits a violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on 3 separate dates and within a 36 month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be guilty of a Class 1 criminal misdemeanor. The Mesa City Prosecutor is authorized to file a Class 1 criminal misdemeanor complaint in the Mesa City Court against habitual offenders. For purposes of calculating the 36 month period under this paragraph, the dates of the commission of the offenses are the determining factor. (5062)

(B) Upon conviction of a violation of this Section, the court may impose a sentence authorized by the laws of the State of Arizona for a Class 1 misdemeanor, including incarceration not to exceed 6 months in jail or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law, or both. The court shall

order a person who has been convicted of a violation of this Section to pay a fine of not less than $500 for each count upon which a conviction has been obtained and be placed on probation for up to 36 months. The court may reduce such fines to $250 for each count upon which a conviction has been obtained provided all violations have been abated and the site is in compliance with all sections of this Chapter within 90 days of sentencing. (5062)

(C) Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure. (5062)

8-5-12: FAILURE TO PROVIDE EVIDENCE OF IDENTITY

A person who fails or refuses to provide evidence of his identity to a duly authorized agent of the City upon request, when such agent has reasonable cause to believe the person has committed a violation of this Chapter, is guilty of a misdemeanor. Evidence of identity under this Section shall consist of a person's full name, residence address, and date of birth. (5062)

8-5-13: ABATEMENT

(A) In addition to or in lieu of filing a civil citation or criminal complaint, the City may serve a notice to abate any violation of this Chapter. (5062)

(B) The notice to abate shall set forth the following information: (5062)

1. The responsible party has 30 calendar days from service of the notice to abate or correct the violation. (5062)
2. Identification of the property in violation by street address, if known, and if unknown, then by legal description of the property or by Maricopa County book, map, and parcel number. (5062)
3. Statement of the violation in sufficient detail to allow a reasonable person to identify and correct the violation(s). (5062)
4. Reinspection date and time. (5062)
5. Name, business address, and business phone number of the City inspector who issued the notice to abate. (5062)
6. A warning stating that if the violations are not corrected within the 30 calendar day period, the City may abate the problem itself or by private contractor, assess the responsible party for the cost of such abatement, and record a lien on the property for the assessment. (5062)
7. Hearing procedures. (5062)
8. Statement indicating that the 30 calendar day notice set forth in this Section shall not apply to emergency abatements pursuant to this Chapter. (5062)

(C) If the responsible party or other person served a notice to abate by the City pursuant to this Chapter fails to comply with such notice; the City may correct or abate the conditions subject to the notice if those conditions constitute a hazard. If the City corrects or abates those conditions, the City Manager or designee may prepare a verified statement as to the actual cost of correcting or abating the violation,

including costs of inspection and other City-incurred costs associated with abating the violation. The statement shall be served pursuant to the Arizona Rules of Civil Procedure. That statement shall further set forth the following: (5062)

1. That the statement of costs is an assessment upon the lots and tracts of land from which the City corrected or abated the violation. (5062)
2. That the party has 15 calendar days from the date of delivery or mailing of the statement to pay. (5062)
3. In the event payment is not received in 15 calendar days, the City will place a lien on the property in the amount of the assessment. (5062)
4. Appeal procedures. (5062)

(D) The notice to abate and the statement of abatement costs shall be served to the responsible party pursuant to the Arizona Rules of Civil Procedure. (5062)

8-5-14: REQUEST FOR ABATEMENT HEARING

The responsible party receiving a notice to abate under this Chapter or a statement of costs incurred by the City in abating a hazard may appeal by requesting in writing a hearing and by serving such a request to the Development and Sustainability Department within 15 calendar days of service of the notice to abate or the statement of costs. The hearing shall be held before the Civil Hearing Officer as soon as practicable after the filing of the request. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Civil Procedure for special actions. If no written and timely request for hearing is made under this Section to the Development and Sustainability Department, then the notice of abatement or statement of costs is final and binding. (5062)

8-5-15: RECORDING AN ABATEMENT VIOLATION

The notice to abate and statement of costs shall run with the land. The City, at its sole option, may record a notice to abate or statement of costs with the Maricopa County Recorder and thereby cause compliance by a person thereafter acquiring such property. When the property is brought into compliance, a satisfaction of notice to abate shall be filed with the Maricopa County Recorder. (5062)

8-5-16: EMERGENCY ABATEMENT

(A) If a situation presents an imminent hazard to life or public safety, the City may issue a notice to abate directing the responsible party to immediately take such action as is appropriate to correct or abate the emergency described in the notice. In addition, the City may act immediately to correct or abate the emergency itself or may commence an action in Superior Court to enjoin the responsible party to abate the imminent hazard. In the event the City is unable to contact the responsible party despite reasonable efforts to do so, it in no way affects the City's right under this Section to correct or abet the emergency itself. (5062)

(B) The City may recover its costs incurred in abating an imminent hazard under this Section in the same manner as provided for in Section 8-5-13(C). The responsible party may appeal the City's emergency abatement action under this Section or the City's statement of costs for an emergency abatement in the same manner as provided for in Section 8-5-14. (5062)

8-5-17: SUSPENSION OF CONSTRUCTION PERMIT OR LICENSE

Any construction permit or license issued by the City which authorizes work resulting in an alleged violation of Section 8-5-2 or Section 8-5-3 of this Chapter may be suspended pending abatement of said violation or final resolution of a civil hearing of the matter. (5062)

CHAPTER 6
PUBLIC NUISANCES, PROPERTY MAINTENANCE, NEIGHBORHOOD PRESERVATION AND ANIMAL REGULATIONS*

ARTICLE I PURPOSE, APPLICABILITY, DEFINITIONS, AND PROHIBITIONS

8-6-1: PURPOSE AND APPLICABILITY

(A) The purpose of this Chapter is to promote the health, safety and welfare of the citizens of Mesa, Arizona by: (5124)

1. Setting minimum standards necessary for the maintenance of improved lots and parcels, buildings, fences or walls, structures, and vacant or unimproved properties in order to safeguard against potential hazards, and reduce occurrences of blight and other influences considered to cause deteriorating conditions, unattractive neighborhoods, and potential loss of property value. (5124)
2. Setting minimum standards for the proper location, control, and care required for the keeping of large animals and livestock within the City's corporate limits. (5124)
3. Providing standards for inspecting the interiors of properties being rented and occupied, based on criteria consistent with and specified by the Arizona Revised Statutes. (5124)

(B) This Chapter shall apply to all land within the City of Mesa without regard to the use or occupancy or the date of acquisition, alteration, or improvement of such land. (5124)

(C) The Code Compliance Administrator or designee shall interpret this Chapter to the public, city departments, and other branches of government subject to the general and specific policies established by the City Council. (5124)

(D) Appeals of the interpretations of this Chapter shall be filed within 30 days of the date of the decision and shall be reviewed by the Board of Adjustment except when the requirement references the Building or Fire Codes or Regulations. (5124)

(Ord. No. 5524, § 1, 8-26-19)

8-6-2: DEFINITIONS

The following words, terms, and phrases, when used in this Chapter, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning: (5124)

***Editor's note—**Ord. No. 5124 amended Chapter 6 in its entirety to read as herein set out. Former Chapter 6 derived from 3478, 4764, 4765, 4845, 4945, 5030.

ABANDONED OR INOPERABLE VEHICLE: A vehicle physically incapable of its intended operation as evidenced by:

(A) A condition of being partially or wholly dismantled, discarded, wrecked, on blocks or similar devices, stripped, or scrapped; or (5124)

(B) The presence of a deflated tire or tires or from which a wheel or tire has been removed; or (5124)

(C) Being inoperable due to mechanical failure or mechanical disassembly or other reasons which may be evidenced by the lack of a valid license plate lawfully affixed to the vehicle, or by the presence of an expired license plate affixed to the vehicle. (5124)

ACCESSIBLE: Capable of being removed or exposed without damaging the building structure or finish or not permanently closed in by the structure or finish of the building. (5124)

ACCESSIBLE, READILY (READILY ACCESSIBLE): Capable of being reached quickly for inspections without requiring inspectors to climb over or remove obstacles or to use portable ladders or similar tools. (5124)

AUTHORIZED PRIVATE RECEPTACLE: A litter storage and collection receptacle as required and authorized in this Code. (5124)

BIRD FOOD: Grain, seeds, birdseed, breadcrumbs, nuts, dried fruit, food intended for other animals, food scrapes, or garbage not properly disposed of or contained.

BLIGHT: Unsightly, unsafe, or unsanitary conditions including, but not limited to, the accumulation of litter or debris; buildings or structures exhibiting holes, breaks, rot, crumbling, cracking, peeling or rusting materials; general damage to the integrity of the construction of a building or structure; landscaping that exhibits uncontrolled growth or lack of maintenance characterized by bare dirt areas, untended damage to plant and landscape materials, or the continued presence of dead or decaying plants; and any similar conditions of disrepair and deterioration regardless of the condition of other properties in the vicinity or neighborhood.

BUILDING: Any structure used or intended for supporting or sheltering any use or occupancy. (5124)

BUILDING, ENCLOSED: A building with a perimeter composed of rigid walls and a roof. (5124)

BUILDING REGULATIONS: Includes all construction codes in force at the time a building was constructed, altered, remodeled, repaired or enlarged. Including Building Code, Plumbing Code, Mechanical Code, Electrical Code, Residential Construction Code, Energy Conservation Code, Fuel Gas Code, Fire Code with reference to Title 7 for fire and existing building construction codes (such as, but not limited to, those set forth in Title IV, Mesa City Code) and includes any property maintenance codes, neighborhood preservation codes, anti-blight codes (such as, but not limited to, those set forth in this title) or other similar codes, however denominated. (5124)

CITY INSPECTOR: A City of Mesa staff member authorized by the City Manager or his designee to conduct inspections, investigate complaints and file civil actions with the Mesa Civil Hearing Office on matters related to enforcement of the Mesa City Code, and as provided by the Mesa City Code.

CIVIL HEARING OFFICER: The individual designated by the City Manager or his designee to conduct hearings and make rulings on code compliance cases.

COMMERCIAL VEHICLE: Any vehicle having a Gross Vehicle Weight Rating (GVWR) exceeding 13,000 pounds and is intended to be used primarily for commercial purposes in the conduct of a business, rather than for private family or individual use. (5124)

DETERIORATION OR DISREPAIR: A decline of the general condition or appearance of a building, structure, or parts thereof characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting, or any other evidence of physical decay, damage, neglect, or lack of maintenance. (5124)

DRIVEWAY, LEGAL: That area that aligns with the City designated and approved driveway depression in the curb of the public or private street. Where a roll curb or no curb exists and there is no driveway clearly designated, the legal driveway is the area that aligns with the observed designated access to parking for the structure such as a carport or garage. On properties with roll curbs or no curb and with no clearly designated parking area for the structure, the legal driveway shall be as observed and commonly used by the owner of the property, as may be designated by private recorded easements or other methods of ingress and egress, and shall at no time violate the provisions of this Code. (5124)

EUTROPHIC: Waters rich in phosphates, nitrates, and organic nutrients that promote a proliferation of plant life, especially algae. (5124)

FENCE, SCREEN WALL, AND/OR RETAINING WALL: Freestanding, self-supporting structures constructed of durable wood, chain link, metal, masonry, or other standard fencing materials designed to provide privacy, security, screening, or bank retention between grade separations. (5124)

GARAGE SALE: The occasional and/or temporary sale of used or second hand tangible personal property from a residential location. This activity may also be known as a yard sale, carport sale, estate sale or similar type of quasi-commercial indoor or outdoor activity that takes place on residential premises. It shall be considered a commercial use when the garage sale activity takes place on a continuous basis, and/or the activity includes the sale of first hand merchandise manufactured off-premises. (5124)

GARBAGE: An accumulation of spoiled, decaying or discarded animal or vegetable material resulting from the handling, preparation, cooking, or consumption of food for humans or animals, as well as other organic waste material subject to rapid decomposition. (5124)

GRAFFITI: An inscription or drawing carved or drawn on a stationary structure or object so as to be discernible from the public right-of-way and which degrades the beauty and appearance of property. (5124)

GRASS: Barnyard grass, Bermuda grass, bluegrass, brome grasses, crab grass, foxtail, Johnson grass, ragweed, rye grass, St. Augustine, wild oats, or hybrids thereof. (5124)

HAZARD: A condition that presents a risk to the public safety, health or the environment. (5124)

IMMINENT HAZARD: A condition that presents an immediate likelihood for causing harm to the public safety, health, or the environment. (5124)

IMPROVED DUSTPROOF PARKING SURFACE: Concrete, asphalt, "chip seal," crushed rock or aggregate that is a minimum of 3 inches thick. All crushed rock or aggregate must be contained by a permanent border. (5124)

IMPROVED PROPERTY: Land on which buildings or other structures are located. (5124)

INCONGRUOUS MATERIALS, COLORS, AND FINISHES: Exterior surfaces that are not matching, and are inconsistent, incompatible, and discordant with the adjacent exterior surfaces. (5124)

INFESTATION: The presence of biological vectors, including insects, rodents, or other pests identified as carriers of pathogenic bacteria, virus, fungus or similar infectious biological hazards. (5124)

JUNK: Items that are of little or no economic value as the items may exist in their present condition, other than value as salvage, and that are not confined within an industrial area in compliance with the Mesa Zoning Ordinance, such as an accumulation of the following materials: discarded or scrapped furniture; glass, metal, paper, or machinery parts; inoperable machinery or appliances; building material wastes; litter; or discarded or empty containers. Junk shall also include all types of solid waste described in Chapter 3 of Title 8 of the Mesa City Code. (5124)

LAND: All lots, or parcels within the official boundaries of City of Mesa, whether improved or unimproved. (5124)

LANDSCAPED YARD, IMPROVED: Area with planted, configured and maintained landscaping material, such as trees, shrubs, turf, rock, gravel or stone, vegetative ground cover, natural desert landscape, artificial turf, mulch, decorative natural and structural features (walls, fences, hedges, trellises, fountains, sculptures), and bedding material, that serve an aesthetic or functional purpose. (5124)

LIVESTOCK: Domestic animals, such as cattle or horses, raised for home use or for profit. (5124)

NOTICE TO ABATE: A notice issued to a responsible party concerning a violation of the Mesa City Code. (5124)

OCCUPANT: The person occupying or having custody of a structure or premises as a lessee or otherwise. (5124)

OWNER: The person, corporation, limited liability company, partnership, limited partnership, trust or real estate investment trust shown on the lawfully recorded title to the property. (5124, 5274)

PERSON: A human being, enterprise, corporation, association, partnership, firm, limited liability company, limited partnership, trust or real estate investment trust. (5124, 5274)

PIGEON: Means any bird of the family columbidae, including rock doves, pigeons, and doves but excluding domesticated pigeons used for homing, racing, or show, or that are pets fed in a cage.

PLANT GROWTH: Vegetation, whether living or dead, such as grass, weeds, vines, bushes, cactus, or trees. (5124)

POLLUTED: A condition that exists in water and is characterized by bacterial growth, algae, insect infestation, the remains of litter, debris, garbage, or any other foreign matter which, because of its nature or location, constitutes an unhealthy, unsafe, or unsightly condition. (5124)

PUBLIC PLACE: Any street, sidewalk, boulevard, alley, right-of-way, or other public way and any public park, square, space, ground, or building. (5124)

RECREATIONAL VEHICLE: A vehicle built on a single chassis, 400 square feet or less in size; designed to be self-propelled or permanently towed by any vehicle and is primarily designed as temporary living quarters for recreational camping or seasonal use.

RESIDENTIAL RENTAL PROPERTY: Property that is used solely as leased or rented property for residential purposes. If the property is a space rental mobile home park or a recreational vehicle park, "residential rental

property" includes the rental space that is leased or rented by the owner of that rental space but does not include the mobile home or recreational vehicle that serves as the actual dwelling if the dwelling is owned and occupied by the tenant of the rental space and not by the owner of the rental space. The term also includes any property defined as a residential rental dwelling unit by state law. (5124)

RESPONSIBLE PARTY: A person who knows or has reason to know of the existence of any violation of this Chapter on property owned by that person, or on property that person occupies or controls, in whole or in part, including but not limited to an owner, occupant, lessor, lessee, manager, managing agent, licensee or any person who has legal care or control of the property or right-of-way appurtenant and adjacent to such property.

RIGHT-OF-WAY: An area of land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved or dedicated to the city for public purposes including, but not limited to, street, highway, alley, public utility, pedestrian walkway, bikeway, or drainage.

SERVICE: Methods of delivering official notice to a responsible party of an alleged civil violation of the Mesa City Code, as specified by the latest edition of the Arizona Rules of Civil Procedure and/or the Mesa City Code. (5124)

SLUM PROPERTY: Residential rental property that has deteriorated or is in a state of disrepair and that manifests 1 or more of the following conditions that are a danger to the health or safety of the public: (5124)

(A) Structurally unsound exterior surfaces, roof, walls, doors, floors, stairwells, porches, or railings. (5124)

(B) Lack of potable water, adequate sanitation facilities, adequate water, or waste pipe connections. (5124)

(C) Hazardous electrical systems or gas connections. (5124)

(D) Lack of safe, rapid egress. (5124)

(E) Accumulation of human or animal waste, medical or biological waste, hazardous, gaseous or combustible materials, dangerous or corrosive liquids, flammable or explosive materials, or drug paraphernalia. (5124)

(F) Any other condition recognized as a basis for slum property designation by the Arizona Revised Statutes. (5124)

STORED: Parking, leaving, locating, keeping, maintaining, depositing, remaining, or being physically present on private property. (5124)

STREET OR HIGHWAY: The entire width between the boundary lines of every way publicly owned or maintained space when any part thereof is open to the use of the public for purposes of vehicular traffic. (5124)

UTILITY TRAILER: A vehicle without motive power designed for carrying property and for being drawn by a motor vehicle. (5124)

VEHICLE: Every device by which any person or property is or may be transported or drawn upon a street or highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks. (5124)

WATERCRAFT: Any craft or vehicle specifically designed for use on water, such as a boat, canoe, jet ski, pontoon, or similar-type vehicle. (5124)

WEEDS: Bull thistle, cocklebur, foxtail, horseweed, lambs quarters, London rocket, mallow, milkweed, pigweed, mustards, prickly lettuce, ragweed, Russian thistle, shepardspurse, sowthistle, white horsenettle, willow weed, and

those types of plant growth defined as noxious weeds in A.R.S. § 3-201 regardless of whether a particular property owner or occupant who is the subject of enforcement action under this Code regards the growth as desirable. (5124)

YARD: An open space on the perimeter of the same lot or parcel of land that is unoccupied and unobstructed from the ground upward, except by structures or other items otherwise permitted as encroachments, as may be specified by Title 11. Yards may be described as front, side or rear based on the definitions found in this Chapter and Chapter 87 of Title 11, and shall not include courtyards or other open space found principally towards the lot interior. (5124)

YARD, FRONT: A yard extending across the full width of the lot or parcel of land between the most forward plane of the building fronting the street and the street. On single residence corner lots the front yard shall be the narrower frontage of the lot or the frontage with the primary entrance. For any other corner lots, all land between the portion of the building closest to the street, and the street shall be considered a front yard for the purposes of this Chapter of the City Code. (5124)

YARD, SIDE: A yard extending from the front plane of the building to the rear plane of the building, and then extending away from the building to the closest side property line. (5124)
(Ord. No. 5524, § 2, 8-26-19)

8-6-3: PUBLIC NUISANCES PROHIBITED

The following acts, omissions, conditions, and things in or upon any land or structure in the City constitute public nuisances, the existence of which are hereby prohibited and declared to be unlawful: (5124)

(A) The responsible party of any property shall not cause or allow any abandoned, inoperable or unregistered vehicle, or parts of a vehicle thereof, to be parked or stored outside or under a carport or other roof area not enclosed by walls, doors or windows of any building on any lot for longer than 10 days, unless in complete conformance with the following terms: (5124)

1. When an unregistered vehicle is operable and visible from the right-of-way, it shall be placed under a carport or other roof area of any building; (5124)

2. In the RS-6 and RS-7 zoning districts, a maximum of 3 inoperable or unregistered vehicles may be stored on a single lot. Such vehicles shall be stored within the side or rear yards and shall be screened by a 6' high opaque fence; (5124)

3. In the RS-9, RS-15 and RS-35 zoning districts, a maximum of 5 inoperable or unregistered vehicles may be stored on a single lot. Such vehicles shall be stored within the side or rear yards and shall be screened by a 6' high opaque fence; (5124)

4. In the RS-43 and RS-90 zoning districts, a maximum of 7 inoperable or unregistered vehicles may be stored on a single lot. Such vehicles shall be stored within the side or rear yards and shall be screened by a 6' high opaque fence; (5124)

5. Vehicles stored on the premises of a business enterprise operated in a lawful place and manner in accordance with the provisions of the Mesa City Code where the storage of the vehicle is necessary to the operation of the business enterprise. (5124)

(B) The responsible party of any property shall not cause or allow the deposit, storage, or maintenance of any garbage or junk, or an accumulation of materials such as: vehicle parts, appliances, indoor furniture, boxes, crates, packing cases, mattresses, bedding, lumber, scrap iron, tin, and other metals, unless stored safely in compliance with all applicable ordinances and regulations, and within a lawful, enclosed building or structure, or screened by a lawful fence or within a trash receptacle in such a manner as to not be visible from beyond the lot boundaries, except as authorized for collection under Title 8, Chapter 3 of this Code. (5124)

(C) The responsible party of any property or place of business within the city shall keep the right-of-way, grounds, stables, alleys, streets and sidewalks appurtenant and adjacent to such property or place of business free of garbage, junk, obstructions, and weeds or grass; provided, however, this Section shall not prohibit the temporary storage of such matters in authorized receptacles for collection consistent with Chapter 3 of Title 8 of the Mesa City Code.

(D) The responsible party of any property shall not allow or permit trees, shrubs, or plants on land adjacent to sidewalks or public places fronting or bordering their property to grow in a manner that impedes, obstructs, or interferes with the passage on any street, sidewalk, alley or other passageway within the City or that limits the visibility of any traffic control device or signal. Vegetation must be trimmed a minimum of 8 feet over the sidewalk and 14 feet over the street or alley. (5124)

(E) The responsible party of any property within the City shall not allow plant material to remain on a property that is dead, diseased, dying or so dry as to be readily flammable or combustible that may constitute a fire hazard or other threat to the public health or safety. (5124)

(F) The responsible party of any property shall not deposit, sweep, or permit the drainage of any garbage, junk, liquid, obstruction, or other material which is offensive to sight or smell or impedes passage or is detrimental to public health, into any public right-of-way, public place in the City, public utility easement (PUE) or public utility and facilities easement (PUFE). (5124)

(G) The responsible party of any property shall not permit:

1. Any swimming pool or other body of water on the property to stagnate and therefore become eutrophic, polluted, or offensive to the senses and unsafe, or (5124)

2. The ponding of water to become stagnant so as to cause a hazardous or unhealthy condition, facilitate the breeding of insects, or oversaturate the soil in a manner that may cause damage to foundation walls. (5124)

3. Revision, blockage or disruption of storm water drainage patterns otherwise designed to flow into an on-site retention basin or storm water drain, such that storm water may be diverted to neighboring sites, and/or may cause local flooding to occur. (5124)

(H) The responsible party of any property, building or structure within the City shall not permit graffiti on the building, structure, trailer, dumpster or any other object located on the property to remain, and shall be required to eradicate graffiti should it occur. (5124)

(I) The responsible party of any property shall not:

1. Erect or maintain, or allow anyone to erect or maintain, any electric fence; (5124)

2. Attach or allow anyone to attach to any fence such items as glass, nails, metal objects, or other materials in such a manner that is likely to injure any person who comes in contact with such object; or (5124)

3. Erect or maintain, nor allow anyone to erect or maintain, barbed wire or razor wire: (5124)

   a. Exception: No more than 3 strands of barbed wire or 1 coil of razor wire may be used when such wire is a minimum of 6 feet and 2 inches above the ground and such wire is placed at the top of an otherwise lawful fence enclosing a municipal, institutional, commercial or industrial building, structure or property. (5124)

   b. Exception: Barbed wire fencing may be primarily used for agricultural or livestock purposes only when a property is larger than 1 acre. This exception does not extend to the use of razor wire or similar products. (5124)

   c. Where allowed, barbed wire or razor wire shall only extend up from the top of the fence either parallel to the fence alignment or towards the interior of the enclosed space, and not outwards beyond the property or enclosed space. (5124)

(J) It shall be unlawful for any responsible party of any property to allow on vacant or undeveloped property, as may be evidenced by a lack of an improved dust-proof surface, the lack of a residence or an office or other enclosed building, or the lack of lawfully installed electric or water related utility improvements on the property: (5124)

1. To store a vehicle or boat, or (5124)

2. To display any vehicle or boat for sale, rent, or lease or, (5124)

3. To allow or permit such storage or displays of vehicles or boats to occur. (5124)

(K) The responsible party of any property shall maintain, repair, replace or complete improvements to the exposed exterior surfaces of all buildings or structures including but not limited to exterior windows, doors, canopies, metal awnings, roofs, exhaust ducts, chimneys, painted surfaces, window screening, fences, screen walls, retaining walls, foundations, cooling devices, outdoor stairs, porches, and railings as visible from any rights-of-way so that such exterior surfaces do not exhibit deterioration or disrepair, damage or blight. The responsible party shall not allow the maintenance, repair, replacement, completion or use of materials, colors, or finishes that are incongruous with the predominant materials, colors, or finishes of such exposed exterior surface unless such incongruous materials, colors, or finishes are less than 20 contiguous square feet, or less than 10 percent of the area of any exposed individual plane surface unbroken by corners or angles. This Section is not intended to regulate signs as defined by Section 11-41-5 of the Mesa City Code, art, murals, architectural styles or color patterns and schemes as permitted or authorized in other titles of this Code. (5124)

(L) No person or responsible party shall allow or permit any person to park any commercial vehicle on any undeveloped private property or property without an improved dustproof surface except when such parking is necessarily required while actually carrying out a lawful commercial purpose. The vehicle owner, the vehicle operator, and any responsible party for the land shall be jointly and severally liable for violation of this paragraph. (5124)

(M) No person shall attach or cause to be attached any sign to any public utility structure, traffic control device, streetlight standard, or similar structure in the public right-of-way or erect any portable/temporary sign in the public right-of-way excepting those signs erected by a public utility, government agency or as otherwise permitted by the City Code. (5124)

(N) The responsible party of vacant, abandoned, partially destroyed or partially constructed buildings shall secure such building against unauthorized entry at all times. (5124)

(O) The responsible party of a parcel of land within the city, including alleys and frontage areas under their responsibility, shall not allow thereon weeds or grass which occupy more than 10 percent or 50 square feet, in total area of a developed parcel to attain a predominant height in excess of 9 inches, or more than 10 percent of the area of an undeveloped parcel to attain a predominant height in excess of 12 inches. This provision shall not apply to:

1. Single residence rear yards not visible from the adjacent right-of-way; or
2. Parcels of land in which livestock graze; or
3. Parcels of land used to raise feed crops.

(P) No responsible party shall permit or cause the escape or flow of water into or upon a public street or alley from any source in such quantity as to cause flooding, to impede vehicular or pedestrian traffic, to create a hazardous condition to such traffic, to cause damage to the public streets or alleys, or to cause a condition which constitutes a public nuisance or a threat to the public health and safety. (5124)

(Q) The responsible party of any property within the City shall not allow any person to place or allow to be placed any rubbish, trash, filth or debris upon any private or public property or property, right-of-way, sidewalk or public places, appurtenant or adjacent to the property, they have the responsibility to maintain.

(R) No person shall offer to sell, or plant any male mulberry tree (morus alba) or olive tree (olea europea) in the City unless it is one of the nonpollinating varieties of such trees. The City shall maintain a current list of nonpollinating varieties, which shall be available for public review and shall be based on industry standard for nonpollinating varieties, applicable horticultural and scientific research and data, review and evaluation by qualified experts, and other appropriate information. (5124)

(S) No responsible party shall maintain or display any sign regulated under the Mesa City Code, Title 11 Article 5, that is damaged or deteriorated to a condition constituting a visual blight. Visual blight shall include conditions detectable from beyond the lot boundaries such as chipping, peeling, fading, or rusting surfaces; the presence of cracks, holes, buckles, warps, or splinters in any sign component; and defective bulbs, fluorescent tubes, or neon or other inert gas light segments. (5124)

(T) It shall be unlawful to park any motor vehicle within the front or side yard of a single-residence use unless such parking is on an improved, dustproof parking surface. Such parking within the front yard of a single-residence use shall be on or contiguous to a legal driveway and such parking shall not exceed a maximum of 50 percent of the front yard area. (5124)

(U) It shall be unlawful to store any watercraft, utility trailer, or any nonvehicle-mounted camper shell or truck camper in the front yard or in front of the front plane of the nearest adjacent enclosed building on the same

lot or parcel as such watercraft, utility trailer or nonvehicle-mounted camper. All watercraft trailers, utility trailers, nonvehicle-mounted campers and truck campers visible to the public rights-of-way must be operable, have inflated tires and be kept free of weeds and debris. (See Figure 8-6-3.A) (5124)

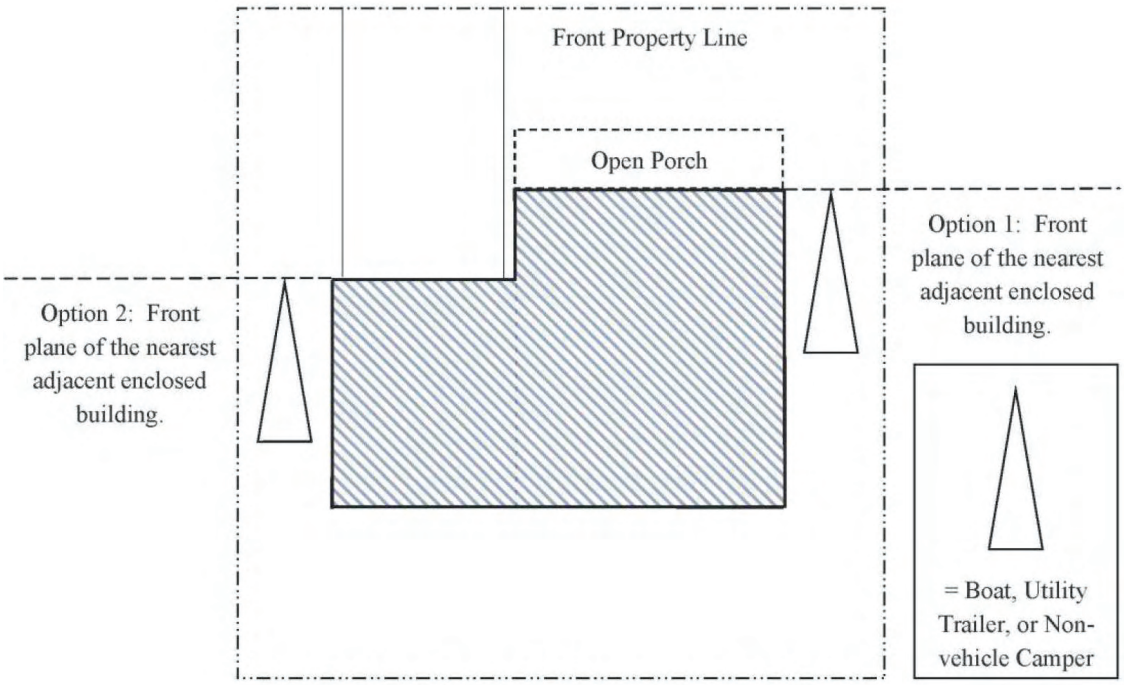


Figure 8-6-3. A Watercraft, Utility Trailer or Non-Vehicle Camper Shell or Truck Camper Storage

(5124)

(V) The responsible party of improved property within the City shall maintain all buildings, additions, appendages, accessory structures or other structures and exposed exterior surfaces such as, but not limited to, exterior windows, doors, canopies, metal awnings, roofs, exhaust ducts, chimneys, painted surfaces, window screening, fences, screen walls, retaining walls, foundations, cooling devices, outdoor stairs, porches and railings, in a structurally sound condition that does not constitute a hazard and is impervious to moisture and weather elements. (5124)

(W) The responsible party of any property shall maintain:

1. All improved landscaped yards visible from the adjacent rights-of-way so as not to exhibit deterioration, disrepair, or blight constituting more than 20 contiguous square feet, or more than 10 percent of the area; and (5124)

2. All improved ground surfaces, such as but not limited to, private streets, drives, paving, concrete and asphalt so as not to exhibit deterioration, disrepair, or blight constituting an accumulation of pot holes, large surface cracks, or peeling, chipping away or disintegrating surface material. (5124)

(X) No responsible party shall permit the conducting of garage sales from any property in excess of 4 events per calendar year with no more than 3 consecutive days for any given event. (5124)

(Y) The responsible party of any property within the City shall display the City designated address on the residence or property of sufficient size to be clearly visible from the right-of-way. Numbers shall be placed in a position to be clearly visible from the street or road fronting the property. These numbers shall contrast with their background and shall not be obstructed by trees, shrubs or anything that would tend to hide or obscure the numbers.

(Z) The responsible party of any property within the City shall not allow parking of a recreational vehicle or watercraft on a driveway or public street in a residential area except for the purposes of loading, unloading or cleaning for a period not to exceed 48 hours subject to the parking and traffic regulations of the City of Mesa and provided the vehicle is not parked so as to create a traffic hazard or obstruct traffic visibility.

(AA) The responsible party of any property within the City shall not cause or allow the storage of more than one (1) recreational vehicle, which exceeds 6 feet in height as measured from grade and is visible from the public street, on a residential parcel. The recreational vehicle shall be stored within the side or rear yards and be screened by a 6-foot high opaque fence.

(AB) No person shall knowingly provide bird food to pigeons on any private or public property, except the feeding of birds using practices or devices designed or intended to prevent pigeons from obtaining the bird food.

The provisions of this Section may be applied cumulatively or separately for purposes of enforcement. (5124)

(Ord. No. 5524, § 3, 8-26-19)

ARTICLE II INSPECTIONS

8-6-4: AUTHORITY TO INSPECT

(A) The Mesa Development Services Department or such other City division or department as the City Manager may designate is hereby authorized to make inspections for violations of this Chapter in the normal course of job duties or in response to a citizen complaint that an alleged violation of the provisions of this Chapter may exist or when there is a reason to believe that a violation of this Chapter has been or is being committed. The City may also conduct inspections of individual residential rental property in accordance with state law. (5124)

(B) In order to determine compliance with this Chapter, private property may be entered with the consent of the owner or occupant or as authorized by a court of competent jurisdiction. (5124)

(Ord. No. 5524, § 4, 8-26-19)

ARTICLE III ENFORCEMENT

8-6-5: COMMENCEMENT OF AN ACTION

(A) The City Manager or designee is authorized to commence an enforcement action under this Chapter by issuing a notice of abatement under this Article or a citation for civil sanctions under this Article, or both. They may also seek the issuance of a complaint by the Mesa City Prosecutor for criminal prosecution of habitual offenders as defined in this Article. (5124, 5480)

(B) Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Chapter or from enforcing this Chapter through notices of violation, warnings, or other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances. (5124, 5480)

8-6-6: REMEDIES NOT EXCLUSIVE

Violations of this Chapter are in addition to any other violation established by law, and this Chapter shall not be interpreted as limiting the penalties, actions, or abatement procedures which may be taken by the City or other persons under other laws, ordinances, or rules. (5124, 5480)

8-6-7: DEFENDANTS AND RESPONSIBLE PARTIES

Any responsible party who causes, permits, facilitates, aids, or abets any violation of this Chapter or who fails to perform any act or duty required pursuant to this Chapter is subject to the enforcement provisions of this Chapter. Responsible parties may be individually and jointly responsible for the violations, the prescribed civil or criminal sanctions, for abatement of the violation and for any associated costs and fees. (5124, 5480)

8-6-8: CIVIL VIOLATIONS AND CITATION

(A) A civil action for violations of this Chapter may be commenced by issuance of a citation. (5124, 5480)

(B) The citation will be substantially in the form established by the City Manager or designee. The citation shall advise the responsible party of the violation(s) committed, either by written description of the violations or by designation of the City Code section that was violated. The citation shall direct the responsible party to pay the civil sanction and all applicable fees in accordance with Section 8-6-9 of this Chapter within the time period specified on the citation or to appear before the Civil Hearing Officer within the time period specified on the citation and admit or deny the allegations contained in the citation. The Civil Hearing Officer may permit amendments to the citation if substantial rights of the responsible party are not thereby prejudiced. The citation shall be served in accordance with Section 8-6-8(H). However, in a violation involving Section 8-6-3(L) of the Mesa City Code, a citation may be served upon the owner or owners of the vehicle, the registered owner or owners of the vehicle, or the operator or person who parked or placed the vehicle where the violation occurred by attaching a copy of the citation to the vehicle. (5124, 5480)

(C) The responsible party shall, within the time period specified on the citation or within 10 calendar days of the issuance of the citation, whichever is greater, either pay the civil sanction and the fees, or appear in person, or through an attorney or by email to the designated clerk of the Civil Hearing Office and admit or deny the allegations contained in the citation. (5124, 5480)

1. If the responsible party timely pays the civil sanction and the fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears in person, through an attorney or by email and admits the allegations, the Civil Hearing Officer shall enter judgment against the responsible party in the amount of the civil sanction, plus any applicable fees designated in Section 8-6-9; or (5124, 5480)

2. If the responsible party appears in person, through an attorney or by email and denies the allegations contained in the citation, the matter shall be set for a hearing. (5124, 5480)

(D) If a person served with a citation fails to pay the civil sanction and the fees or to file on or before the time directed on the citation or appear at the time set for hearing, the allegations in the complaint shall be deemed admitted, and the Civil Hearing Officer shall enter a finding of responsible and a judgment for the City and impose the appropriate sanctions and fees. (5124, 5480)

(E) All proceedings before the Civil Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Chapter by a preponderance of the evidence. No prehearing discovery shall be permitted, except under extraordinary circumstances as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand. (5124, 5480)

(F) Any person aggrieved by a decision of the Civil Hearing Officer, at any time within 30 calendar days after a final judgment has been rendered, may file a complaint of special action in Superior Court to review the Civil Hearing Officer's decision. Filing the complaint does not stay proceedings on the decision sought to be reviewed, but the court may, on application, grant a stay and on final hearing, affirm or reverse, in whole or in part, or modify the decision reviewed. (5124, 5480)

(G) Any civil judgment issued pursuant to this Article shall constitute a lien against the real property of the responsible party that may be perfected by recording a copy of the judgment with the Maricopa County Recorder. Any judgment issued pursuant to this Article may be collected as any other civil judgment. (5124, 5480)

(H) Citations issued under this Chapter shall be served in compliance with A.R.S. § 9-500.21 as follows: (5480)

1. First, by personal service as described in the procedures set forth Arizona Rules of Civil Procedure, Rule 4.1 by: (5480)

   a. A Code Compliance Officer; or

   b. A City of Mesa sworn police officer; or

   c. The City Manager or designee.

2. If the citation cannot be personally served, the citation shall be served as follows: (5480)

   a. By certified or registered mail, return receipt requested; or

   b. By publication, in the same manner prescribed by the Arizona Rules of Civil Procedure. Before the date of the first publication, the citation shall be mailed, by certified or registered mail, return receipt requested, or by any other mail or delivery service that allows the sender to track the progress and confirm the delivery of the citation.

8-6-9: CIVIL PENALTIES

(A) Any responsible party who is found responsible for a civil violation of this Chapter, whether by admission, default, or after a hearing, shall pay a civil sanction of not less than $250 or more than $1,500. A second

finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $350 or more than $2,500. A third finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in an enhanced civil sanction of not less than $500 or more than $2,500. In addition to the civil sanction, the responsible party shall pay the applicable fees and charges set forth in the City's Development Services (Code Compliance) Schedule of Fees and Charges and may be ordered to pay any other applicable fees and charges. (5124, 5480)

(B) Under unusual or extraordinary circumstances, and for good cause, the Civil Hearing Officer shall have the discretion to reduce or eliminate any portion of the civil sanctions specified in this Section, and/or to make any other judgments or orders deemed by the Civil Hearing Officer to be in the best interests of the City of Mesa, which will result in the furtherance of these regulations and effectuate the abatement or cessation of any violation of this Chapter. (5124, 5480)

(C) After entering a judgment of responsible and setting a civil sanction and fees as specified in Section 8-6-9 (A), the Civil Hearing Officer may order a compliance hearing and set a date for such hearing. Upon presentation of evidence and/or testimony by the City Inspector at the compliance hearing that the violation(s) specified in the complaint has been abated, the Civil Hearing Officer may reduce all or a portion of the civil sanction commensurate with the cost borne by the defendant to achieve compliance, or the Civil Hearing Officer may vacate the previous judgment and dismiss the citation(s). If, a minimum of 7 calendar days before a scheduled compliance hearing, the Civil Hearing Officer receives both of the following items, then the Civil Hearing Officer may issue written orders commensurate with the authority given in this Section, to reduce civil sanctions and/or vacate the related judgment without holding the scheduled compliance hearing: (5124, 5480)

1. A written and notarized confirmation from the City Inspector that the violation has been successfully abated; and (5124, 5480)

2. A written and notarized statement from the defendant describing the actions taken and the itemized costs borne to abate the violation. (5124, 5480)

If either item has not been received by the designated Clerk of the Civil Hearing Office seven (7) calendar days before, then the compliance hearing shall take place as previously scheduled. (5124, 5480)

(D) The 36 month provision of paragraph (A) of this Section shall be calculated by the dates the violations were committed. The responsible party shall receive the enhanced sanction upon a finding of responsibility for any violation of this Chapter that was committed within 36 months of the commission of another violation for which the responsible party was convicted or was otherwise found responsible, irrespective of the order in which the violations occurred or whether the prior violation was civil or criminal. (5124, 5480)

(E) Each day in which a violation of this Chapter continues or the failure to perform any act or duty required by this Chapter or by the Civil Hearing Officer continues shall constitute a separate civil offense. (5124, 5480)

(Ord. No. 5524, § 5, 8-26-19)

8-6-10: RESERVED

8-6-11: HABITUAL OFFENDER

(A) A person who commits a violation of this Chapter after previously having been found responsible for committing civil violations of this Chapter on 3 separate dates and within a 36 month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be guilty of a class 1 criminal misdemeanor. The Mesa City Prosecutor is authorized to file a class 1 criminal misdemeanor complaint in the Mesa City Court (Court) against habitual offenders. For purposes of calculating the 36 month period under this paragraph, the dates of the commission of the offenses are the determining factor. (5124, 5480)

(B) Upon conviction of a violation of this Section, the Court may impose a sentence authorized by the laws of the State of Arizona for a class 1 misdemeanor, including incarceration not to exceed 6 months in jail or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law, or both. The Court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than $500 for each count upon which a conviction has been obtained and be placed on probation for up to 36 months. The Court may reduce such fines to $250 for each count upon which a conviction has been obtained provided all violations have been abated and the site is in compliance with all Sections of this Chapter within 90 days of sentencing. (5124, 5480)

(C) Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure. (5124, 5480)

8-6-12: FAILURE TO PROVIDE EVIDENCE OF IDENTITY

A person who fails or refuses to provide evidence of his identity to a duly authorized agent of the City upon request, when such agent has reasonable cause to believe the person has committed a violation of this Chapter, is guilty of a misdemeanor. Evidence of identity under this Section shall consist of a person's full name, residence address, and date of birth. (5124, 5480)

8-6-13: ABATEMENT

(A) In addition to or in lieu of filing a civil citation or criminal complaint, the City may serve a Notice to Abate any violation of this Chapter in accordance with Section 8-6-8(H). (5124, 5480)

(B) The Notice to Abate shall set forth the following information, (except in the case of an imminent hazard): (5124, 5480)

1. The responsible party has 30 calendar days from the service of the Notice to Abate or correct the violation. (5124, 5480)

2. Identification of the property in violation by street address, if known, and if unknown, then by legal description of the property or by Maricopa County book, map, and parcel number. (5124, 5480)

3. Statement of the violation in sufficient detail to allow a reasonable person to identify and correct the violation(s). (5124, 5480)

4. Reinspection date and time. (5124, 5480)

5. Name, business address, and business phone number of the City inspector who issued the Notice to Abate. (5124, 5480)

6. A statement indicating that if the violations are not corrected within the 30 calendar day period, the City may abate the problem itself or by private contractor, assess the owner for the cost of such abatement, and record a lien on the property for the assessment. (5124, 5480)

7. Hearing procedures. (5124, 5480)

8. Statement indicating that the 30 calendar day notice set forth in this Section shall not apply to emergency abatements pursuant to this Chapter. (5124, 5480)

9. The notice to abate shall be served in accordance with Section 8-6-8 (H).

(C) If the responsible party served a Notice to Abate by the City pursuant to this Chapter fails to comply with such notice; the City may correct or abate the conditions subject to the notice if those conditions constitute a hazard. If the City corrects or abates those conditions, the City Manager or designee may prepare a verified statement as to the actual cost of correcting or abating the violation, including costs of inspection and other City-incurred costs associated with abating the violation. The statement shall be served in accordance with Section 8-6-8(H) to the responsible party upon which the Notice to Abate or order was served. That statement shall further set forth the following: (5124, 5480)

1. That the statement of costs is an assessment upon the lots and tracts of land from which the City corrected or abated the violation. (5124, 5480)

2. That the party has 15 calendar days from the date of delivery or mailing of the statement to pay the assessment. (5124, 5480)

3. In the event payment is not received in 15 calendar days, the City will place a lien on the property in the amount of the assessment. (5124, 5480)

4. Appeal procedures. (5124, 5480)

(D) The Notice to Abate and the statement of abatement costs shall be served in accordance with Section 8-6-8(H) to the responsible party. Service is deemed effective and complete on the date it is received by the responsible party. (5124, 5480)

(Ord. No. 5524, § 6, 8-26-19)

8-6-14: REQUEST FOR ABATEMENT HEARING

The responsible party receiving a Notice to Abate under this Chapter or a statement of costs incurred by the City in abating a hazard may appeal by requesting in writing a hearing and by serving such a request to the Development Services Department within 15 calendar days of service of the Notice to Abate or the statement of costs. The hearing shall be held before the Civil Hearing Officer as soon as practicable after the filing of the request. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Civil Procedure for special actions. If no written and timely request for hearing is made under this Section to the Development Services Department, then the Notice of Abatement or statement of costs is final and binding. (5124, 5480)

8-6-15: RECORDING AN ABATEMENT VIOLATION

The Notice to Abate and statement of costs shall run with the land. The City, at its sole option, may record a Notice to Abate or statement of costs with the Maricopa County Recorder and thereby cause compliance by a person thereafter acquiring such property. When the property is brought into compliance, a satisfaction of Notice to Abate shall be filed with the Maricopa County Recorder. (5124, 5480)

8-6-16: EMERGENCY ABATEMENT

(A) If a situation presents an imminent hazard, the City may issue a Notice to Abate directing the responsible party to immediately take such action as is appropriate to correct or abate the emergency described in the notice. In addition, the City may act immediately to correct or abate the emergency itself or may commence an action in Superior Court to enjoin the responsible party to abate the imminent hazard. In the event the City is unable to contact the responsible party despite reasonable efforts to do so, it in no way affects the City's right under this Section to correct or abate the emergency itself. (5124, 5480)

(B) The City may recover its costs incurred in abating an imminent hazard under this Section in the same manner as provided for in Section 8-6-13(C). The responsible party may appeal the City's emergency abatement action under this Section or the City's statement of costs for an emergency abatement in the same manner as provided for in Section 8-6-14. (5124, 5480)

8-6-17: SUSPENSION OF CONSTRUCTION PERMIT OR LICENSE

Any construction permit or license issued by the City which authorizes work resulting in an alleged violation of Article I of this Chapter may be suspended pending abatement of said violation or final resolution of a civil hearing of the matter. (5124, 5480)

8-6-18: SLUM PROPERTY

(A) Slum property designation: (5124, 5480)

1. The City Manager, or designee, is authorized to designate residential rental property as a slum property consistent with and pursuant to the provisions of A.R.S. Title 33, Chapter 17, Article 1. (5124, 5480)

2. Notice of slum property designation shall be provided to all owners and lien holders of the affected property. Such notice shall inform of the designation, the reason or reasons for the designation, and the procedure to appeal the designation. The effective date and manner of service shall be as described in Section 8-6-8(H). (5124, 5480)

3. The City may record the notice of slum property designation with the County Recorder. A recorded notice shall run with the land. Failure to record a notice shall not affect the validity of the notice as to persons who receive the notice. (5124, 5480)

(B) Assessment and liens: (5124, 5480)

1. The City Manager, or designee, is authorized to impose civil penalties, assessments and liens pursuant to the provisions of A.R.S. Title 33, Chapter 17, Article 1. (5124, 5480)

2. Notice of a civil penalty, assessment or lien shall be provided to all owners and lien holders of the affected property. Such notice shall inform of the amount of the assessment or lien, the reason for the assessment or lien, and the procedure to appeal the assessment or lien. The effective date and manner of service shall be as described in Section 8-6-8(H). (5124, 5480)

3. The City may record an assessment or lien with the County Recorder or the Department of Transportation, if the lien is for a rental mobile home or a recreational vehicle not owned by a landlord. A recorded assessment shall run with the land. Failure to record an assessment or lien shall not affect the validity of the assessment or lien as to persons who have notice thereof. The City shall release the assessment or lien upon receipt of payment. (5124, 5480)

4. In the event that it is necessary to enforce an assessment or lien by sale, the sale shall be made from a judgment of foreclosure and order of sale. The City shall have the right to enforce an assessment or lien in the Superior Court, at any time after recording, but failure to enforce an assessment or lien shall not affect its validity. The recorded assessment or lien shall be prima facie evidence of the truth of all matters recited therein, and of the regularity of all proceedings prior to the recording. Prior assessments or liens for the purposes provided for in this ordinance shall not be a bar to subsequent assessments or liens, and any number of liens or assessments on the same property may be enforced in the same action. (5124, 5480)

(C) Appeals: (5124)

1. Appeals from designations as a slum property or assessments by the City Manager or designee as set forth in Section 8-6-18(A) and (B) shall be submitted to the office of the Zoning Administrator in the manner set forth in Section 11-77-4 of the Mesa City Code. Said appeals shall be in writing and shall contain: (5124, 5480)

   (a) A heading in the words: "Before the Zoning Administrator . . . " (5124, 5480)

   (b) A caption reading: "Appeal of . . . ," giving the names of all appellants participating in the appeal. (5124, 5480)

   (c) A brief statement setting forth the legal interest of each of the appellants in the building or land involved in the notice and order. (5124, 5480)

(d) A brief statement in ordinary and concise language of the specific order or action protested, together with any material facts claimed to support the contentions of the appellant. (5124, 5480)

(e) A brief statement in ordinary and concise language of the relief sought and the reasons why it is claimed the protested order or action should be reversed, modified, or otherwise set aside. (5124, 5480)

(f) The signatures of all parties named as appellants and their official mailing addresses. (5124, 5480)

(g) The verification (by declaration under penalty of perjury) of at least one appellant as to the truth of the matters stated in the appeal. (5124, 5480)

2. All applications shall be accompanied by a fee in accordance with the Development Services Fee Schedule. (5124, 5480)

3. The appeal shall be filed within 30 calendar days from the date of the service of such order or action of the designation of a slum. (5124, 5480)

4. Appeals to decisions of the Zoning Administrator may be filed with the Board of Adjustment in accordance with Section 11-77-4 of the Mesa City Code. (5124, 5480)

8-6-19: INDIVIDUAL RESIDENTIAL RENTAL INSPECTION

(A) The City may conduct interior inspections of individual residential rental property if an exterior inspection of the property reveals or if the property is found to have any of the following: (5124)

1. Conditions that materially affect the health and safety of the occupants (as defined in Section B). (5124)

2. A significant level of crime associated with the property. (5124)

3. A documented history of violations of building regulations. (5124)

4. The responsible party repeatedly fails to comply with code enforcement requirements imposed by the City. (5124)

5. There is probable cause that the property is not in compliance with building regulations. (5124)

6. A complaint is received from, or consent for the inspection is given by, the responsible party. (5124)

(B) For the purposes of this Article, a condition that materially affects the health and safety of the occupants of a residential rental property includes any of the following conditions: (5124)

1. Inadequate sanitation, ventilation or space requirements, including the following: (5124)

(a) Lack of adequate water closets, lavatories, bathtubs or showers. (5124)

(b) Lack of a required kitchen sink or a kitchen sink that complies with building regulations. (5124)

(c) Lack of hot and cold running water to plumbing fixtures. (5124)

(d) Lack of adequate heating and cooling. (5124)

(e) Lack of or improper operation of required ventilating equipment or broken or missing windows or doors that create a hazardous condition or a potential attraction to trespassers. (5124)

(f) Lack of minimum amounts of natural light and ventilation as required by building regulations. (5124)

(g) Inadequate room and space dimensions as required by building regulations. (5124)

(h) Lack of required adequate electricity and lighting as required by building regulations. (5124)

(i) Infestation of insects, vermin or rodents. (5124)

(j) Lack of connection to a sewage disposal system as required by building regulations. (5124)

(k) Lack of adequate garbage and rubbish storage and removal facilities. (5124)

2. Structural hazards, including the following: (5124)

(a) Significantly deteriorated or inadequate foundations or foundation areas that are not provided with adequate drainage. (5124)

(b) Flooring or floor supports of insufficient size to carry imposed loads with safety. (5124)

(c) Members of walls, partitions or other vertical supports that split, lean, list or buckle due to defective material or deterioration. (5124)

(d) Members of ceilings, roofs, ceiling and roof supports or other horizontal members that significantly sag, split or buckle due to defective material or deterioration. (5124)

(e) Fireplaces or chimneys that list, bulge or settle due to defective material or deterioration or that are of insufficient size or strength to carry imposed loads with safety. (5124)

3. Hazardous wiring that does not conform with building regulations or that has not been maintained in good condition , or both, and that is not being used in a safe manner. (5124)

4. Hazardous plumbing that does not conform with building regulations or that has not been maintained in good condition, or both, and that is not free of cross-connections and backflow between fixtures. (5124)

5. Hazardous mechanical equipment including vents that do not conform with building regulations or that have not been maintained in good and safe condition, or both, and that are not working properly. (5124)

6. Faulty weather protection that may include: (5124)

(a) Significantly deteriorated, crumbling or loose plaster. (5124)

(b) Deteriorated or ineffective waterproofing of exterior walls, roof, foundations or floors, including broken windows or doors. (5124)

(c) Defective or lack of weather protection for exterior wall coverings, including lack of paint, or weathering due to lack of paint or other approved protective covering. (5124)

(d) Broken, rotted, split or buckled exterior wall coverings or roof coverings. (5124)

7. Fire hazards or inadequate fire protection, including: (5124)

   (a) Any building or portion of a building or any device, apparatus, equipment, combustible waste or vegetation that is not in compliance with building and fire codes and regulations and that is in such a condition as to cause a fire or explosion or to provide a ready fuel to augment the spread and intensity of a fire or explosion arising from any cause. (5124)

   (b) Any building or portion of a building that is not provided with fire-resistive construction or fire extinguishing systems or equipment required by building and fire codes and regulations, except those buildings or portions of buildings that conformed with all applicable building and fire codes and regulations in effect at the time of construction and that have fire-resistive integrity and fire extinguishing systems or equipment that has been adequately maintained and improved in relation to any increase in occupant load, alteration or addition, or any change in occupancy. (5124)

   (c) Lack of adequate fire detection systems as required by building and fire codes and regulations. (5124)

8. Faulty materials or construction that is not specifically allowed or approved by building and fire codes and regulations or that has not been adequately maintained in good and safe condition. (5124)

9. Hazardous or unsanitary premises, including those premises on which an accumulation of weeds, vegetation, refuse, dead organic matter, debris, garbage, offal, rodent harborages, stagnant water, combustible materials and similar materials or conditions that constitute fire, health or safety hazards. (5124)

10. Inadequate maintenance, including any building or portion of a building that is determined to be an unsafe building in accordance with building and fire codes and regulations. (5124)

11. Unhealthy conditions, including any condition defined in building regulations that results in the failure to maintain minimum standards of sanitation, health or safety or that renders air, food or drink that is detrimental to health. (5124)

12. Inadequate exit facilities, including: (5124)

   (a) All buildings or portions of a building that are not provided with exit facilities as required by building and fire codes and regulations; or (5124)

   (b) Exit facilities that have not been adequately maintained; or (5124)

   (c) Exit facilities that have not increased in relation to any increase in occupant load, alteration or addition, or any change in occupancy. (5124)

13. Improper occupancy, including all buildings or portions of a building that are occupied for living, sleeping, cooking or dining purposes and that were not designed and permitted to be used for such occupancies, or that are occupied in excess of the maximum occupancy load allowed by any applicable provision of building, fire and zoning codes and regulations or state law. (5124)

(C) Before entry into the interior of a residential rental property, the City shall obtain consent of the owner, managing agent, or occupant or obtain a warrant for entry. (5124)

(D) Interior inspections performed under this Section shall be limited to items that can be easily viewed and shall not include hidden hazards, not accessible or readily accessible, that may be in the interior of the construction of the dwelling unit (e.g., inside of walls or ceilings or under floors). (5124)

(E) No owner shall allow or permit a condition that materially affects the health and safety of the occupants of a residential rental property. (5274)

(F) This section does not limit the authority of the City to:

1. Perform an exterior inspection of any property in the City at any time. (5124)

2. Upon receipt of a complaint or consent from the owner or occupant perform an interior inspection of any property in the City's jurisdiction. (5124)

3. Perform interior, exterior or construction job site inspections of new construction before issuance of a Certificate of Occupancy. (5124)

4. Perform interior or exterior inspections of illegal construction that occurred without a required building permit. (5124)

5. Perform an interior inspection of any property during an emergency or natural disaster. (5124)

6. Perform any other inspection authorized by other provisions of the Mesa City Code. (5124)

8-6-20: RESERVED

ARTICLE IV LIVESTOCK AND LARGE ANIMAL REGULATIONS

8-6-21: FOWL, RODENT, AND LIVESTOCK RESTRICTIONS

It shall be a violation of this article for any person to keep fowl, rodents, or livestock within the city, other than listed in this chapter and permission is hereby given to any such person to keep and maintain the same, but only in the manner and upon the conditions set forth in this chapter. Such permission may be withdrawn by a court of competent jurisdiction in the even a person is charged as a habitual offender in accordance with 8-6-11 and found guilty of any offense listed in Article IV of this Title. Except for Sections 8-6-25 through 8-6-30, this chapter does not apply to the keeping and maintenance of domestic dogs and cats. (4845, 4968)

(A) Except as specified in Section 11-3-2, 11-3-3, and 11-4-3 of this Code, no more than a total of ten (10) rodents or fowl or a combination of rodents and fowl shall be kept upon the first one-half (½) acre or less; for each additional ten (10) head of rodents or fowl, an additional one-half (½) acre of land is required. For areas larger than two and one-half (2½) acres, the number of such rodents and fowl shall not be limited. (4845)

(B) Except as specified in Sections 11-3-2, 11-3-3, and 11-4-3 of this Code, it shall be a violation of this article to keep livestock or any similar large animal regulated by this chapter within the City on any property less than thirty-five thousand (35,000) square feet. (4845, 4968)

(C) The maximum number of livestock and similar large animals allowed on a property at any one time shall be based on a calculation of animal points as specified below: (4968)

1. Animal points shall be assessed based upon the entire area of land held by the owner as a parcel or as abutting and contiguous parcels, and by the relative location of the parcels within the Lehi Sub-Area Plan as adopted by Resolution 8655 on January 23, 2006. (4968)

   (a) Parcels located within the corporate limits of Mesa, but outside of the Lehi Sub-Area and without a livestock license, as described in Section 8-6-32, shall be assessed animal points based upon Table 8.6-A, below: (4968)

TABLE 8.6-A:

PROPERTY SIZE	ANIMAL POINTS
35,000 SQ. FT.—43,560 SQ. FT.	TWO (2) ANIMAL POINTS
FOR EVERY ADDITIONAL 10,890 SQ. FT. (¼ ACRE)	ONE (1) ADDITIONAL ANIMAL POINT

(4968)

   (b) Parcels located within the Lehi Sub-Area and owners outside of the Lehi Sub-Area with an approved livestock license pursuant to Section 8-6-32, shall be assessed animal points based upon Table 8.6-B.

TABLE 8.6-B:

PROPERTY SIZE	ANIMAL POINTS
35,000 SQ. FT.—43,560 SQ. FT.	FOUR (4) ANIMAL POINTS
FOR EVERY ADDITIONAL 5,445 SQ. FT. (⅛ ACRE)	ONE (1) ADDITIONAL ANIMAL POINT

(4968)

2. Animal points shall be assigned to the animals present on a property, as set forth below in Table 8.6-C:

TABLE 8.6-C:

ANIMAL TYPE	ANIMAL POINTS
FULL-SIZED EQUINES (HORSES OR SIMILAR)	ONE (1) ANIMAL POINT PER HEAD
FULL-SIZED BOVINES (CATTLE, OXEN, BISON OR SIMILAR)	ONE (1) ANIMAL POINT PER HEAD
SHEEP	ONE-HALF (0.5) OF AN ANIMAL POINT PER HEAD
GOATS	ONE-HALF (0.5) OF AN ANIMAL POINT PER HEAD
MINIATURE EQUINES OR BOVINES (MINIATURE HORSES OR CATTLE OR SIMILAR)	ONE-HALF (0.5) OF AN ANIMAL POINT PER HEAD

ANIMAL TYPE	ANIMAL POINTS
LARGE FLIGHTLESS BIRDS (OSTRICHES, RHEAS, EMUS OR SIMILAR)	THREE-QUARTERS (0.75) OF AN ANIMAL POINT PER HEAD
CAMELIDS (LLAMAS, ALPACAS OR SIMILAR)	THREE-QUARTERS (0.75) OF AN ANIMAL POINT PER HEAD

(4968)

3. Unless the owner obtains a Special Use Permit issued by the City pursuant to Title 11 of the Mesa City Code, it shall be a violation of this article for any owner to have present on the owner's property any combination of listed animals that, in the aggregate, have a total sum of animal points assigned under paragraph (C)(2) that exceeds the total sum of animal points assessed for the owner's property under paragraphs (C)(1) or (C)(2), as may be applicable. (4968)

(D) Paragraphs (A), (B) and (C) of this Section shall not apply to any lot or parcel which is reduced in size as a result of an acquisition by gift, purchase, or condemnation of a portion of the lot or parcel for right-of-way by a governmental entity, provided the size of the parcel was in excess of 35,000 square feet prior to the size reduction or the parcel is not reduced by more than twenty percent (20%) of the size that existed prior to the right-of-way acquisition. (4845, 4968)

(E) Exceptions shall be allowed to paragraphs (B) and (C) regarding animals raised by students participating in an affiliated State of Arizona sponsored or nationally chartered agricultural education program, such as FFA or 4-H. The maximum number of exceptions permitted for parcels of less than one-acre (43,560 square feet) is one. The maximum number of exceptions permitted for parcels greater than one acre is four. (4968)

(F) An exception to paragraphs (B) and (C) shall permit infant animal(s) of less than one (1) year in age to remain with its mother. In the event an infant is separated from its mother, this exception no longer applies. (4968)

(G) It shall be a violation of this article to keep any animal regulated by this chapter in an enclosure within a distance of less than forty feet (40') from another person's lawfully erected permanent residence, dining, or sleeping quarters that was constructed before the construction of such animal enclosure. (4845, 4968)

(H) It shall be a violation of this article for any animal regulated by this chapter to be cooped, stabled, or confined in any building within seventy-five feet (75') from another person's lawfully erected permanent residence, dining, or sleeping quarters that was constructed before the construction of such animal enclosure. (4845, 4968)

(I) All animals regulated by this Chapter shall be kept in suitable enclosures and shall not be permitted to run at large. (4845, 4968)

(J) The provisions of this Section shall not apply to registered homing (racing) pigeons, fancy pigeons, or show pigeons. (4845, 4968)

(K) It shall be a violation of this article for any swine (pigs, hogs or similar) to be kept within the corporate limits of the City, except as follows: (4845, 4968)

1. Swine kept by a student that is participating in an affiliated State of Arizona sponsored or nationally chartered agricultural education program, such as FFA or 4-H. No more than one (1) swine may be kept per participating student. (4968)

2. Vietnamese Pot-belly Pigs or similar miniature varieties of swine that, at full maturity, stand less than twenty-one (21) inches at the withers and weigh less than two-hundred (200) pounds may be kept on any lot as a personal pet such as a cat or dog, provided no more than two (2) such pigs are kept on one (1) parcel of land. (4968)

(L) Miniature equines, miniature bovines, miniature sheep, and miniature goats, which at full maturity meet the national miniature animal standards, may be kept on any lot as person pets such as a cat or dog, provided no more than two (2) such miniature equine, miniature bovines, miniature sheep, or miniature goats, or combination thereof, are kept on one (1) parcel of land. The maximum number of miniature equines, miniature bovines, miniature sheep or miniature goats that may be kept on lots in excess of 35,000 square feet shall be based on paragraphs (B) and (C) of this section. (4968)

(M) Apiaries shall be limited to locations within agricultural and/or rural areas of the City, zoned AG or R1-43. (4845, 4968)

8-6-22: PREMISES TO BE SANITARY; INSPECTION OF PREMISES

The premises upon which fowl, rodents, cattle, horses, mules, sheep, or goats are kept shall always be sanitary and subject to inspection and regulations by the City Manager or designee. (4845, 4968)

8-6-23: SANITARY REGULATIONS FOR THE KEEPING OF FOWL AND RODENTS

(A) The droppings of chickens or other fowl or rodents must be removed from the enclosure as frequently as necessary to prevent the breeding of flies, but in no case less than a minimum of twice weekly. (4845, 4968)

(B) Adequate fly-tight containers approved by the City Manager or designee for the storage of fowl or rodent excreta must be provided and shall always be kept sanitary in a manner to prevent the breeding of flies. (4845, 4968)

(C) Water and feed troughs must be provided, and shall always be kept sanitary to prevent the breeding of flies, mosquitoes or other vectors. (4845, 4968)

(D) Feeding vegetable or meat waste or garbage shall be exclusively in containers that shall be kept sanitary in a manner to prevent the breeding of flies, mosquitoes or other vectors, and on an impervious platform. (4845, 4968)

8-6-24: SANITARY REGULATIONS FOR THE KEEPING OF LIVESTOCK

(A) Manure shall be removed from stalls, paddocks, arenas, corrals and other livestock keeping areas on a regular basis, and at a minimum of no less than once a week. Manure run-off which discharges onto adjacent property, onto city streets or into flood control channels is prohibited, and allowing such to occur, intentionally or negligently, shall be in violation of this article. (4845, 4968)

(B) Adequate containers approved by the City Manager or designee must be provided for the storage of manure in a manner to prevent the breeding of flies and shall be kept sanitary unless it is completely removed from the premises at least twice weekly. All such containers shall be equipped with working lids to minimize water accumulating within the container. (4845, 4968)

(C) Mound storage of animal droppings or manure will be permitted only on an impervious slab with adequate provisions to prevent the breeding of flies or migration of the fly larvae (maggots) into the surrounding soil. Each installation of the latter type must be approved by the City Manager or designee. (4845, 4968)

(D) Drinking troughs or tanks must be maintained in a manner to prevent the breeding of flies, mosquitoes or other vectors, and shall be provided with adequate overflow drainage to prevent saturation of the surrounding soil. (4845, 4968)

(E) Feeding shall require adequate containers or feed troughs of size, kind, and number to eliminate scatter and unsanitary surroundings. Such containers shall always be kept sanitary. It is a violation of this article to feed at random upon the surface of the ground. (4845, 4968)

(F) Spillage and leftovers from animal feedings, including grains, hay, and vegetable foods, etc., must be either removed or otherwise disposed of in such manner as to prevent fly propagation or the creation of odors. (4845)

8-6-25: CONDITIONS UNDER WHICH FLIES BREED PROHIBITED

No owner, tenant, or occupant of any premises within the City shall suffer, permit, or have upon such premises any cesspool, vault, pit, or like place; animal manure; garbage; trash; litter; rags; or any other thing in which flies may breed or multiply, unless the same shall be protected as to prevent the attraction, breeding, and multiplying of flies. (4845)

8-6-26: OFFENSIVE OR NOXIOUS GASES OR ODORS PROHIBITED

Every owner, tenant, or occupant of any premises within the City in or upon which are kept any animals governed by the requirements of this chapter shall at all times keep and maintain such premises so covered, enclosed, protected, cleaned, drained, and disinfected that no offensive or noxious gases or odors may or shall arise therefrom, and any such premises which are not at all times kept and maintained so covered, closed, protected, cleaned, drained, and disinfected as to prevent any and all offensive noxious gases and odors arising therefrom or which are allowed or suffered to become a breeding place for flies and insects or to become offensive or noxious to the residents in the immediate neighborhood are hereby declared to be nuisances and subject to summary abatement. (4845, 4968)

8-6-27: OBSTRUCTING OFFICERS

It shall be a violation of this article for any person to resist, delay, or obstruct any public officer in the discharge or attempt to discharge of any duty of his office. (4845, 4968)

8-6-28: UNSANITARY PREMISES UNLAWFUL

It shall be a violation of this article for any person to permit any premises, building, yard, pasture, enclosure, or place owned, leased, or occupied by him to become unsanitary or to permit the same to become offensive to sight or smell. (4845, 4968)

8-6-29: NUISANCES; ABATEMENT

The causing of, producing, bringing about, making, leaving, or permitting of any condition or conditions implicitly or expressly prohibited by or forbidden or declared a violation of this article by this Chapter shall constitute a nuisance, and such nuisance may be abated as provided for by the laws of the City at the cost and expense of any person chargeable therewith. The costs of abating any such nuisance may be recovered by civil action in a court of competent jurisdiction. (4845, 4968)

8-6-30: FECAL MATTER

Any person owning, possessing, harboring, or having the care, charge, control, or custody of any dog, or other animal governed by this Chapter, shall immediately remove and thereafter dispose of any fecal matter deposited by the dog, or other animal governed by this Chapter, on public or private property unless the owner of the property has given prior approval to use said property for this purpose. This Section shall not apply to disabled individuals who, due to their disability, are unable to comply. (4845, 4968)

8-6-31: NONHUMAN PRIMATES

It shall be a violation of this article for any person to possess, keep, harbor, control, or maintain a nonhuman primate within the corporate limits except in the manner and upon the conditions herein set forth: (4968)

(A) Any person possessing, keeping, harboring, controlling, or maintaining a nonhuman primate must comply with all federal and state laws and the rules of the Arizona Administrative Code - Title 12, Chapter 4 entitled Wildlife Rules. (4845)

(B) Three is the maximum number of nonhuman primates allowed per residence. (4845)

(C) If a nonhuman primate is kept outside of the owner's residence, the following restrictions apply:

1. All nonhuman primates must be kept in an enclosure which has a secured top, sides, and bottom. (4845)

2. The enclosure must be kept securely locked with a device that cannot be opened by the nonhuman primate. (4845)

3. All enclosures, coops, stalls, hutches, or structures used to house any nonhuman primate must be at least seventy-five feet (75') from any neighbor's residence. (4845)

(D) All nonhuman primates shall be contained within the confines of the owner's private property with the following exceptions:

1. When in transport to or from a licensed veterinarian;

2. Transport into or out of Arizona for lawful purposes. (4845)

(E) Anytime a nonhuman primate is removed from the owner's residence or lawful enclosure, it must be securely restrained by a leash, chain, rope, or cord of not more than six feet (6') in length and of sufficient strength to control the primate; or the primate must be securely contained in an animal carrier of sufficient size and strength. (4845)

(F) The owner shall be responsible for compliance with all other City Code sections pertaining to unsanitary premises, breeding of flies, noise, et cetera, found elsewhere within the City Code. (4845)

8-6-32: LIVESTOCK LICENSE

(A) Any person desiring to obtain a livestock license shall apply to the licensing office. On a form established by the City Manager or designee, the application shall include, but not limited to, the following: (4968)

1. Full legal name and current residence address of the applicant; (4968)

2. The address for which the livestock license shall apply and its lot size; (4968)

3. Documentation that the land referenced in (2) above is owned by the applicant (such documentation may be satisfied by a copy of the deed, a property tax bill, or other document showing legal ownership); (4968)

4. A list of other properties within the city limits owned by applicant and for which a livestock license is currently issued or had been issued within the previous five (5) years; and (4968)

5. An acknowledgement that, as the owner, the applicant shall remain in compliance with all applicable livestock ordinances and Code sections, that the owner understands that the City may inspect the property for which the license pertains, and that the license is revocable as permitted under this section. (4968)

6. An acknowledgement that the owner agrees to manage and maintain the animal(s) in a humane and healthful manner that is consistent with the recommended practices adopted for the animal by the FFA or similar nationally recognized organization related to the care and management of animals. (4968)

(B) Each application shall be accompanied by the fee required in accordance with the current Schedule of Fees and Charges, as adopted by resolution by the City Council. The license shall be issued if no citation for an applicable livestock ordinance has been issued in connection with the licensed property within the last twelve (12) months. The licensing office is authorized to obtain necessary information to update the original license application and to determine whether the license should be issued. (4968)

(C) Within twelve (12) months of the issue date for the previously effective license, all licensees under this Chapter wishing to remain licensed shall apply for renewal of the license on a form established by the City Manager or designee. The renewal form must be submitted with the applicable renewal license fee. The licensing office is authorized to obtain necessary information to update the original license application and to determine whether the license should be renewed. The license shall be renewed if the original applicant (or an inter vivos trust of the applicant) continues to be the legal owner of the licensed property; and no citation for an applicable livestock ordinance has been issued in connection with the licensed property within the previous twelve (12) months. (4968)

(D) The licensee shall apply for renewal of their license within thirty (30) calendar days of the renewal deadline. Failure to renew the license within forty five (45) calendar days of the renewal deadline shall cause the license to become null and void. Licensees who fail to apply to renew their license yet who wish to keep animal counts assessed under Table 8.6-B as opposed to Table 8.6-A for their properties must file a new application for license. (4968)

(E) All fees under this Section are nonrefundable and are not prorated. (4968)

(F) No livestock license shall be issued or renewed if the applicant(s) have been prosecuted as a habitual offender in accordance with Article III of this Title and found guilty of any offense listed in Article IV of this Title within the previous thirty-six (36) months. (4968)

(G) All license applicants and all licensees under this Section shall permit representatives of the City Manager or designees or any city, county, state, or federal department, division, or agency that enforces codes, regulations, or statutes relating to human health, safety, welfare, or structural safety inspect the licensed property to ensure compliance with the applicable law. (4968)

(H) Livestock licenses are not transferable to other persons or entities. Upon the sale or transfer of the licensed property, the license shall become null and void. A new application may be made by any subsequent owner, if desired. (4968)

(I) It shall be the duty and responsibility of the City Manager or designee to administer the provisions of this Chapter. Pursuant to this duty, the City Manager or designee shall issue, renew, deny, suspend, or revoke licenses in accordance with this Chapter. Any party aggrieved by a decision of the City Manager or designee under this Section shall appeal within ten (10) calendar days after being sent by registered or certified mail notice of such decision. As to such mailed notice, the City Manager or designee shall send the notice to the applicant's address as shown by the license application. The appeal shall be in writing, shall state the grounds for the appeal, and shall be sent to the licensing office. The licensing office or designee shall schedule a hearing within thirty (30) calendar days of receipt of the appeal and render a decision within sixty (60) calendar days of the hearing. (4968)

(J) A livestock license or application may be denied, revoked, suspended, or denied renewal upon any one or more of the following grounds: (4968)

1. The licensee has violated any of the provisions of this Chapter and such violation has remained uncured or was not cured within thirty (30) calendar days; (4968)

2. The licensee is not the owner of the property to be licensed; (4968)

3. The licensee has had a prior livestock license revoked or renewal denied due to failure to timely cure a violation of this Chapter or due to the frequency of citations; or (4968)

4. The licensee has demonstrated a failure to cure, in a timely manner, prior violations of this Chapter under the application of the animal points assessed under Table 8.6-A, or has had frequent violations that do not justify raising the animal count under Table 8.6-B for the applicant. (4968)

(K) The licensee may not apply for a livestock license within twelve (12) months from the denial, suspension or revocation of any such license. (4968)

8-6-33: DEFINITIONS

As used in Article IV, unless the context otherwise indicates, the following terms shall have the meanings herein ascribed to them: (4968)

ANIMAL: Any mammal, bird, reptile or amphibian. (4968)

AT LARGE: On or off premises of owner and not under control of owner or other persons acting for the owner. (4968)

ENCLOSURE: Any fencing, corral, or barrier of sufficient strength and height to prevent an animal from escaping its primary confines. (4968)

ENFORCEMENT AGENT: That person or persons designated by the City who is responsible for the enforcement of this Chapter and any regulations promulgated thereunder. (4968)

FECAL MATTER: Solid animal droppings including excreta, feces and manure. (4968)

FOWL: Any domesticated bird including but not limited to chickens, ducks, geese, guineas, peacocks, pheasants, and turkeys. (4968)

IMPOUND: The act of taking or receiving into custody by the enforcement agent any dog or other animal for the purpose of confinement in an authorized pound or appropriate facility in accordance with the provisions of this Chapter. (4968)

LARGE ANIMAL: Terrestrial animals commonly considered too large to be kept indoors within a human household. The term includes domestic and working animals, but does not include small animals such as dogs, cats, rodents, birds, or fish kept as pets. (4968)

LIVESTOCK: Domestic animals, such as bovines including cattle, oxen, bison, etc., camelids including llamas, alpacas, etc., equines including horses, donkeys, burros, mules, ponies, etc., goats, sheep, swine, or ratites including ostriches, rheas, emus cassowaries, kiwis, etc., raised for home use or for profit. (4968)

NONHUMAN PRIMATE: Any mammal of the order primate not including man; including all monkeys and apes. (4968)

OWNER: Any person or legal entity having a possessory property right in an animal or land or who harbors, cares for, exercises control over, or knowingly permits any animal to remain on premises occupied by them. (4968)

PERSON: Any corporation, company, partnership, firm, association, organization, joint venture, business trust, proprietor, agent, or society as well as a natural person. (4968)

PIGEON: Any domesticated bird of the family Columbidae including fancy, show, and homing (racing) pigeons. (4968)

POUND: Any establishment authorized for the confinement, maintenance, safekeeping, and control of dogs and other animals that come into custody of the enforcement agend in the performance of official duties. (4968)

RODENT: Any herbivorous mammal including rabbits, hares or lagomorphs. (4968)

VECTOR: Any insect or other organism that can transmit a pathogenic fungus, virus, bacterium, etc. (4968)

VETERINARIAN: Unless otherwise indicated, veterinarian means licensed to practice in this state or any veterinarian employed in this state by a governmental agency. (4968)

8-6-34: VIOLATIONS AND CITATIONS

Any violations and/or citations issued under this article shall be in accordance with and pursuant to Article III of this Title. (4968)

8-6-35: CIVIL PENALTIES

The penalty for a violation or violations of this Article shall be in accordance with and pursuant to Article III of this Title. (4968)

CHAPTER 7

HEALTH OFFICER (Repealed)*

CHAPTER 8

SWEEPING OF REFUSE ON SIDEWALKS OR STREETS (Repealed)†

CHAPTER 9

ACCUMULATIONS OF LITTER PROHIBITED (Repealed)‡

CHAPTER 10

MUNICIPAL WATER SYSTEM**

8-10-1: PURPOSE AND INTENT

(A) The City Council of the City of Mesa has determined that it is in the best interests of the City to establish certain terms, conditions, limitations and other requirements regarding City water utility service considering, among other factors, the City's General Plan, Designation of Assured Water Supply (as recognized by the Arizona Department of Water Resources), water resource portfolio, current hydrologic conditions, Water Master Plan, and Zoning Ordinance.

(B) The City Council also desires to promote water conservation and implement certain measures that will provide for a sustainable water supply for existing and future Customers and other water users across the City due to the finite availability of water resources and their susceptibility to drought and other limiting conditions.

(Ord. No. 5863, § 1, 7-8-24)

***Editor's note**—Ord. No. 1628 repealed Chapter 7.

†**Editor's note**—Ord. No. 2568 repealed Chapter 8. Former chapter derived from Ord. No. 185.

‡**Editor's note**—Ord. No. 2568 repealed Chapter 9. Former chapter derived from Ord. Nos. 592, 610, 627, 1768, 2143.

****Editor's note**—Ord. No. 5863, § 1, adopted July 8, 2024, repealed the former Art. 10, §§ 8-10-1—8-10-11, and enacted a new Art. 10 as set out herein. The former Art. 10 pertained to similar subject matter and derived from Ord. No. 5515, § 2(Exh. A), 7-8-19.

8-10-2: DEFINITIONS

For purposes of this Chapter:

ALLOWANCE: The amount of System water available in excess of the Demand Ceiling based on conveyance of Long Term Storage Credits to the City, compliance with an approved MLM Permit (or Sustainable Service Agreement), and all other requirements of this Chapter.

APPLICANT: A Person that owns property and applies for Development Entitlements or otherwise requests water utility service.

BODY OF WATER: Shall have the same meaning as set forth in A.R.S. § 45-131(1) (2022).

CITY: The City of Mesa, an Arizona Municipal Corporation and political subdivision of the State of Arizona.

CUSTOMER: The Person that owns or controls property which is connected to and receives service from the System.

DEMAND CEILING: The maximum metered amount of water in acre feet (325800 gallons) available to Customers in a rolling twelve (12) month period pursuant to Section 8-10-9.

DEPARTMENT: The City of Mesa Water Resources Department, or any successor identified by the City, which is responsible for enforcing the requirements of this Chapter.

DEVELOPMENT ENTITLEMENTS: Approvals by the City under applicable Mesa City Code provisions, including but not limited to Title 9 Chapters 6 and 8, for development, construction and/or installation of improvements on specified property.

DIRECTOR: The Director of the Department or designee.

DISTRIBUTION MAIN: Potable water mains located within right-of-way, or a qualifying public utility easement acceptable to the Department, and suitable for customer connection, as determined by the Department and generally smaller than 16 inches in diameter.

FRONTAGE: The entire length of that portion of a parcel of property that abuts a qualifying private street, public utility easement, or public Right-of-Way.

KGAL: One thousand gallons.

LAKE PERMIT: A permit authorizing the filling of an artificial body of water or use of water at a Turf-Related Facility.

LONG TERM STORAGE CREDITS: Long Term Storage Credits as defined in A.R.S. § 45-802.01 created at a Storage Facility in the East Salt River Valley Subbasin of the Phoenix Active Management Area, as defined by the Arizona Department of Water Resources.

MLM CUSTOMER: Persons who have a valid MLM Permit or Sustainable Service Agreement or qualifying Legacy Customers.

MLM PERMIT or PERMIT: A required written authorization issued by the Department in accordance with Section 8-10-9.

OUTSIDE USER: Any Applicant desiring or Customer receiving service at property located outside the municipal boundaries of the City.

OVER-SEEDING: Seeding a variety of cool weather grass such as ryegrass, bluegrass, or bentgrass into an existing perennial warm weather variety of grass such as bermudagrass.

PERSON: Any individual, partnership, firm, company, corporation, association, limited liability company, joint stock company, trust, estate, governmental entity, or any other legal entity, or its legal representatives, agents or assigns. This definition includes all federal, state, and local governmental entities.

PUBLIC UTILITY FACILITIES EASEMENT OR PUBLIC UTILITY EASEMENT: Land granted or dedicated to the City for utility related uses and improvements and associated appurtenances and facilities, as applicable.

RATE SCHEDULE: A schedule of rates, fees, charges, and customer classifications, adopted and made effective by Ordinance by the City.

RIGHT-OF-WAY: Land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved for or dedicated to the City for street, highway, alley, public utility, or pedestrian walkway purposes.

SUSTAINABLE SERVICE AGREEMENT: A written agreement between the City and an MLM Customer expressly setting forth provisions and limitations regarding water demand and consumption, including a Demand Ceiling, applicable Allowance, and provisions regarding the transfer of Long Term Storage Credits to the City by the Customer.

SYSTEM: Municipal water transmission and distribution mains, pumps, treatment plants and other facilities used or useful in the provision of potable water utility service by City, (where available from City in its sole and absolute discretion).

TERMS AND CONDITIONS: The Terms and Conditions for the Sale of Utilities, as adopted and amended from time to time by the City by Ordinance.

TRANSMISSION MAIN: Potable water mains located within right-of-way not suitable for customer connection and generally larger than 12 inches in diameter.

TURF-RELATED FACILITY: A facility that applies water to ten (10) or more acres of landscaping. Turf-related Facility includes, but is not limited to, golf courses, parks and recreational facilities, school grounds, churches and cemeteries.

WATER MASTER PLAN: The master plan report, as may be periodically updated, that provides the City's comprehensive plans regarding water demands, water resources, and water production and distribution infrastructure based on factors such as development goals, land uses to be encouraged by the City's provision of water utility service, and the criteria to be considered by City staff, boards, and City Council Committees related to Water and the System, particularly as they relate to MLM Customers.

WATER SHORTAGE MANAGEMENT PLAN: The conditions, limitations, restrictions and other measures taken by the City in the event of a reduction in the availability of water supplies or transmission, treatment or distribution capacity, as set forth in Section 8-10-6.

STAGE ONE SHORTAGE: The first stage of the Water Shortage Management Plan, consisting of voluntary measures to be taken when a prolonged reduction in surface water supplies or available capacity can be predicted in advance, with a goal reduction of approximately five percent of water demand.

STAGE TWO SHORTAGE: The second stage of the Water Shortage Management Plan, consisting of the Stage One voluntary measures, plus additional limitations, restrictions and reductions, to be taken when approximately twenty percent of the City's Central Arizona Project and exchange water supplies are affected, or when approximately fifty percent of SRP stored and developed supplies are affected, with a goal reduction of approximately ten percent of water demand.

STAGE THREE SHORTAGE: The third stage of the Water Shortage Management Plan, consisting of the Stage One and Two measures, plus additional limitations, restrictions and reductions, to be taken when approximately forty percent of the City's Central Arizona Project water and exchange supplies are affected, or when more than fifty percent of SRP stored and developed supplies are affected, with a goal reduction of approximately fifteen percent of water demand.

STAGE FOUR SHORTAGE: The fourth stage of the Water Shortage Management Plan, consisting of the measures from Stages One through Three, plus additional limitations, restrictions and reductions, to be taken when the City's available surface water and other supplies or capacity are anticipated to be insufficient to satisfy projected demand, with a goal reduction of twenty percent or more of water demand.

(Ord. No. 5863, § 1, 7-8-24)

8-10-3: GENERAL PROVISIONS

(A) All Applicants, Customers and Persons receiving or using City service from the System are subject to, must comply with, and are deemed to have consented to, this Chapter 10 of Title 8 of the Mesa City Code, as well as the Terms and Conditions and the provisions of applicable Rate Schedules, as well as to such conditions of pressure and supply as the City may provide from time to time through the System and at the property and location served.

(B) All Customers and Persons receiving and using water service further take and use such service subject to and are deemed to agree to hold the City and the Department harmless from, any damages, losses or claims of any kind arising from low or high water pressure, fluctuations of pressure, interruptions of service, and shortage or insufficiency of supply.

(C) All System connections must be made, and all meters must be set, by the City on the various Distribution Mains. All repairs on mains, meters, service laterals to the meter, check valves and fire hydrants must also be made by the Department or as approved by the Director. Service must be obtained from Distribution Mains located within right-of-way or a public utility easement acceptable to the Department within the applicable pressure zone. Service is not available from transmission mains.

(D) The drilling of new domestic exempt wells as defined in A.R.S. § 45-402 within the municipal boundaries of the City is prohibited without the express advance written permission of the Director. Existing wells, and replacement wells drilled in accordance with the Arizona Groundwater Management Act for such existing wells are exempt from the provisions of this Section.

(E) The City has no obligation to provide new service to Outside User Applicants, nor to provide a larger meter to existing Outside Users.

(F) The City may require a written agreement as a condition precedent to service:

1. Pursuant to the provisions of an adopted Rate Schedule or this Chapter;

2. In connection with System extension or installation of other System facilities; or

3. When the Department, in its discretion, requires such an agreement due to special, unusual or exceptional circumstances of service as determined by the Director.

(G) No Person shall willfully or negligently permit or cause the escape or flow of water in such quantity as to cause flooding, impede vehicular or pedestrian traffic, create a hazardous condition to traffic, or cause damage to city rights-of-way through failure or neglect to properly operate or maintain any irrigation or landscape watering customer lines and equipment for any period of time after such escape of water should have been discovered and corrected through the exercise of reasonable diligence.

(Ord. No. 5863, § 1, 7-8-24)

8-10-4: MINIMUM REQUIREMENTS FOR POTABLE WATER SERVICE

(A) In addition to any other applicable requirements of the Mesa City Code and the Terms and Conditions, all Applicants and property for which service is desired shall, as a minimum requirement of receiving service, extend as a portion of the System a minimum of an eight inch Distribution Main (or such size as is determined by the Director) adjacent to and along the entire Frontage of the parcel (if not existing), and along all Frontages of the property if multiple Frontages occur. In addition, Applicants must extend and loop the transmission mains as necessary under the Water Master Plan. All transmission and Distribution Main extensions must comply with applicable Engineering standards. The Director may modify or reduce the requirement that a Distribution Main be extended for the entire Frontage of a parcel if such extension is not needed to provide service to customers beyond the property.

(B) All extensions of the System, however provided for, shall become the property of the City under control of the City. Title to any System facilities constructed by others shall be tendered to the City prior to City providing service through such facilities. The City's approval and acceptance of any extension facilities shall be within the City's sole discretion, and subject to demonstration of construction in accordance with applicable Engineering standards.

(C) The Customer will provide at no cost to the City Right-of-Way, a Public Utility Facilities Easement, or a Public Utility Easement, all in a form acceptable to the City, as needed for the purpose of constructing, maintaining and operating the System, and for the service laterals and other facilities required on the Customer's property up to the point of delivery, which is generally the outlet side of metering equipment.

(D) As a condition of receiving service, all Customers grant a license to the City over Customer's property for the purposes of meter reading, connection and disconnection of service as well as operating, maintaining and replacing the System.

(E) The City may require that a Customer provide, at the Customer's own expense, suitable equipment (including on-site storage) as necessary to reasonably limit fluctuations in flow and pressure caused by the Customer's equipment or operations where, in the sole judgment of the City, such intermittent or fluctuating use of water may result in either impairment of service to other Customers or damage to the System.

(Ord. No. 5863, § 1, 7-8-24)

8-10-5: RATES

The Rate Schedules for water service are those approved and adopted by ordinance of the City. If there are multiple available optional Rate Schedules or provisions therein, the Applicant shall designate the schedule or provisions, or City may designate until the Applicant makes such designation. The City is not required to notify existing Customers of available optional rates or provisions. Should a Customer elect to change to another available optional Rate Schedule or provision, the change will become effective for the billing cycle commencing after the customer has requested the change. Where optional Rate Schedules or provisions are available, only one change requested by the Customer will be allowed in any twelve (12) month period unless approved by the Director.

(Ord. No. 5863, § 1, 7-8-24)

8-10-6: SERVICE, DISRUPTIONS, AND LIMITATION OF LIABILITY

(A) The City will, considering the existing circumstances and conditions and without undue preference or obligation to any Customer, make reasonable efforts to provide satisfactory service and to avoid unreasonable interruptions of service. It cannot, and does not warrant or guarantee a continuous or sufficient supply or freedom from fluctuation, intermittency or interruption. Service may at any time be suspended or interrupted due to emergencies or for the purpose of performing maintenance, making repairs, extending or replacing the System, or other necessary work, and also pursuant to the Water Shortage Management Plan and the provisions of this Chapter. The Department will endeavor to provide notice of outages where reasonable and practicable.

(B) The City does not warrant nor guarantee its ability to provide continuous or uninterrupted utility service; nor does the City warrant or guarantee any level of supply sufficiency. If service is delayed, interrupted, suspended, discontinued, irregular, fluctuating, intermittent, reduced or otherwise limited or defective the City shall not be liable for damages, losses or claims of any kind arising therefrom.

(C) Customers who have any machinery, material, process or plant which requires a constant supply or flow or pressure of water shall at the Customer's own expense install upon their property such water storage pumps, tanks and other facilities as will prevent any damage in case service may, for any reason, be interrupted, fluctuating, intermittent or discontinued.

(D) The City will make reasonable efforts to reestablish service when service interruptions occur, considering in all cases the customer's needs and capacity, the existing facts, circumstances and conditions including

but not limited to System condition and physical availability of water supplies, and considering impacts to other customers. The restoration of service will be performed by the Department in the manner which, in the opinion of the Department, will result in the greatest public benefit.

(E) The City, without notice or liability, may suspend or interrupt service to any Customer or Customers in the event of an emergency or disaster threatening the integrity or operation of its System if, in its sole judgment, such action will prevent or alleviate the emergency condition. In such a case, the Department may apportion its available supply of water among its Customers in the manner that appears equitable and of the greatest public benefit under conditions then prevailing and with due consideration for public health, safety, and welfare.

(F) The City will also make reasonable efforts to complete the installation of new System mains and facilities within a reasonable time period, also considering the Customer's needs and capacity required, the existing circumstances and conditions, and its obligations to other Customers, but shall not be liable for any delays in completion of such installation.

(Ord. No. 5863, § 1, 7-8-24)

8-10-7: LAKE AND TURF RESTRICTIONS

(A) It shall be unlawful for any Person or entity to fill a Body of Water or to apply water for landscaping watering purposes on a Turf-related Facility without first obtaining a Lake Permit from the City, the Arizona Department of Water Resources as required by A.R.S. § 45-132, and this Section.

1. Any Person or entity desiring to fill a Body of Water and any Person or entity desiring to apply water for landscape watering purposes on a Turf-related Facility within the water service area of the City as defined in A.R.S. § 45-402(31) shall, before filling the Lake or before applying the water, make application to the City through the Department for a Lake Permit.

2. The City Council may schedule a hearing on the application for a Lake Permit for filling of a Body of Water or for applying water for landscape watering purposes on a Turf-related Facility at any regular or special meeting of the City Council. The City Council may issue a Lake Permit for the filling of a Body of Water or for applying water for landscape watering purposes on a Turf-related Facility if it is satisfied that all of the following conditions are met:

   a. The Lake or Turf-related Facility is to be filled exclusively with any one (1), or a combination of, the following:

      (i) Effluent;

      (ii) Storm water runoff that is not subject to appropriation under A.R.S. § 45-141;

      (iii) Water withdrawn pursuant to a poor-quality permit issued under A.R.S. § 45-516; and

      (iv) Groundwater withdrawn pursuant to a Type 1 or Type 2 Non-Irrigation Certificate of Grandfathered Right issued by the Arizona Department of Water Resources.

   b. Measures will be taken to minimize evaporation loss of water from the Lake by minimizing the surface area or from a Turf-related Facility by utilizing low-water-consuming turf and plants.

c. The Lake, when full, shall contain no less than five (5) acre feet of water per acre of surface area with an average depth of five feet (5').

d. The development or facility in which the Lake or the Turf-related Facility is located will implement an effective indoor and outdoor water conservation program.

e. The development or facility with which the Lake or the Turf-related Facility is associated will generate an economic impact for the City sufficient to justify the water used.

3. The City shall monitor the use of water by appropriate metering, pursuant to any Lake Permit issued under this Section, and the Department shall terminate the Lake Permit upon making a finding that any of the conditions for issuance no longer apply.

(B) Where an existing Body of Water is filled with water from the City's water supply or an existing Turf-related Facility is supplied with water from the City, the City may, in its sole and absolute discretion, supply effluent.

(C) If the City has reason to believe that a Person is violating or has violated any provision of this Section or a Lake Permit issued hereunder, the City may, in addition to terminating service and referring suspected violations of this Section to the Arizona Department of Water Resources, commence a civil action and apply for a temporary restraining order or preliminary or permanent injunction from the Superior Court according to the Arizona Rules of Civil Procedure. A decision to seek injunctive relief shall not preclude other forms of relief or enforcement against the violator.

(D) This Section shall not apply to a Body of Water filled or a Turf-related Facility in existence (or for which on-site physical construction commenced or for which extensive design was prepared) prior to September 18, 2004, unless the size of such Lake or Facility was subsequently increased. This Section also shall not apply to a Body of Water or Turf-related Facility located in recreational facilities that are open to the public and owned or operated by the United States, the State, the City, or a flood control district or multi-county water conservation district.

(E) All Bodies of Water and Turf-related Facilities shall be subject to any restrictions, reductions, prohibitions, limitations and other measures adopted by resolution of the City Council (or emergency declaration of the Mayor under A.R.S. Title 26, Chapter 2 Article 1 Section 311, or Mesa City Code Title 1 Chapter 14) as part of a stage two, three or four shortage.

(Ord. No. 5863, § 1, 7-8-24)

8-10-8: WATER SHORTAGE MANAGEMENT PLAN

(A) In the event of a reduction or limitation in the availability of water supplies or transmission, treatment, distribution capacity, or other System issue that requires a reduction in demand for water, City water service shall be subject to the restrictions, reductions, prohibitions, limitations and other measures set forth in this Section, regardless of where located. Shortages may be declared in four stages, depending on the severity of localized and/or regional reductions and other limitations in water resource availability or System capacity due to conditions such as but not limited to, reductions in the supply of Central Arizona Project and Salt/Verde water, limitations on the availability of suitable groundwater, and loss or closure of

transmission capacity by either the Salt River Project or Central Arizona Water Conservation District. The City may also adopt by resolution supplements which set forth the considerations for declaration of each Stage, and additional plans of action to be taken by the City consistent with this Section.

(B) The City intends to subject similarly situated customers to the restriction and reduction of use of water in a substantially equitable, reasonable and effective manner given the existing circumstances, unless otherwise expressly provided herein. The City may give priority to customers located within the City's municipal boundaries over Outside Users.

(C) Stage One Shortage. The City Manager has the authority to declare a Stage One shortage, when limitations in the available supplies, capacity, or System require a reduction of up to five percent in demand. Upon such a declaration the informational conservation measures set forth in the supplemental Water Shortage Management Plan adopted by resolution shall be implemented, and voluntary water conservation measures shall be encouraged.

(D) Stage Two, Three and Four Shortages. Stages Two, Three and Four shortages will be adopted by resolution of the City Council, or by emergency declaration by the Mayor under A.R.S. Title 26, Chapter 2 Article 1 Section 311, or Mesa City Code Title 1 Chapter 14. If a Stage Two, Three or Four Shortage is adopted or declared, the following cumulative water use restrictions, reductions, prohibitions, limitations, and other measures shall apply to all Customers and Persons for as long as the shortage remains in effect:

1. Stage Two shortage (targeted demand reduction of ten percent) requirements are:

    a. All landscape watering limited to between the hours of 9:00 p.m.—5:00 a.m. when water from the System is used as the source.

    b. Use of water in decorative outdoor water features and outdoor misting systems is prohibited.

    c. Vehicle washing is allowed only at commercial facilities or with pail and hose with a shut off nozzle.

2. Stage Three shortage (targeted demand reduction of fifteen percent) requirements are:

    a. All use restrictions, reductions, prohibitions, limitations, and other measures under Stage Two.

    b. Landscape watering is further restricted to once per week, on a schedule determined by the Department.

    c. No Person shall allow the waste of water for any period of time after such waste of water should have been discovered and corrected.

    d. Use of water for construction or other dust control measures prohibited between the hours of 2:00 p.m.—5:00 p.m.

    e. Vehicle washing is allowed only at commercial facilities.

    f. Restaurants to serve water only upon request of customer.

    g. Large commercial and industrial customers, and all customers with a meter sized 4" or larger (or the equivalent in multiple meters), shall develop and implement (if not already in practice) a conservation and compliance plan considering measures such as the incorpora-

tion and use of the latest commercially available conservation technology consistent with reasonable economic return, and provide annual reports to the Department on the implementation thereof.

h. Over-Seeding prohibited.

3. Stage Four shortage (targeted demand reduction of twenty percent or more) requirements are:

a. All use restrictions, reductions, prohibitions, limitations, and other measures under Stages Two and Three.

b. Landscape watering is further restricted to every other week, on a schedule determined by the Department.

c. Residential swimming pools must be covered during day when not in use or drained.

d. Sale of sod prohibited within municipal limits.

e. Sale of all construction water by the Department prohibited.

f. Hotel linen washing once per guest stay, towel replacement on request.

g. Dealership vehicle washing one day per week, schedule determined by the City.

h. All residential customer-uses over 7 KGAL/monthly billing cycle subject to 20% billing surcharge.

Water hauling station subject to 20% billing surcharge.

j. All commercial, industrial and multi-unit customer uses over 65 KGAL/monthly billing cycle subject to 25% billing surcharge.

k. All dedicated landscape service subject to a 30% billing surcharge.

Water shall be available to all Customers based on the average of the previous three years water usage. For Customers with less than three years of consumption history, availability will be based on existing City water use averages for the customer class. Customers eligible for a waiver under A.R.S. § 9-463.06 (whether such moratorium has been declared or not) pursuant to an existing written development agreement with the City shall be permitted to develop the project and establish three years of reasonable water usage history consistent with such development agreement. Limitations under this Section may be enforced by the City through the use of water flow restrictors, service shutoff, meter sizing, or other means as determined by the Department.

l. Additional restrictions, reductions, prohibitions, limitations, and other measures as approved by the City Council.

m. Moratorium under A.R.S. § 9-463.06 may be declared.

(E) When the availability of service is so restricted under a Stage Four shortage that reduction on a proportionate basis for customer classes based on prior usage will not maintain the integrity of the System or service, the Department, in coordination with an emergency declaration of the Mayor, shall develop procedures to curtail service to different customer classes, giving service priority based on the public convenience and necessity and where health, safety and welfare would be adversely affected. Curtailment of service shall start with dedicated landscaping uses.

(F) The City will provide six months-notice prior to the declaration of a Stage 3 shortage, and one-year notice prior to the declaration of a Stage 4 shortage, unless made by emergency declaration of the Mayor, in which case as much notice as practicable under the circumstances will be provided. Notice of Stage 3 and 4 shortages shall be provided to all customers in their monthly utility bills and posted on the City's web site. Upon declaration of a Stage 1 or Stage 2 shortage, the City Manager or designee will determine how the public will be notified as detailed in the supplemental Water Shortage Management Plan adopted by Resolution.

(G) Limited exceptions to the water use restrictions, reductions and limitations under this Section may be granted after application in writing provided to the Department and heard by the City Council or City Council Committee designated to hear such requests. Exceptions must be based upon a showing of good cause and special circumstances such as health, safety and welfare needs or other undue hardship.

(Ord. No. 5863, § 1, 7-8-24)

8-10-9: DEMAND CEILING COMPLIANCE AND MULTIPLE OR LARGE METER CUSTOMER WATER PERMITS

(A) Water Demand Ceiling. Except as otherwise provided in this Section, Customers are subject to an annual limit of 330 acre-feet of water in a rolling twelve (12) month period on metered deliveries. Meters used solely for residential use and hospitals (NAICS Code 622) are excluded from this requirement except the Demand Ceiling applies to and includes all landscaping meters.

(B) Demand Ceiling Applicability.

1. All Customers (including Legacy Customers and Established Legacy Customers) shall limit their metered water use to the applicable Demand Ceiling.

2. All Customers with an MLM Permit shall remain in compliance with all Permit conditions at all times.

3. All Customers with a Sustainable Service Agreement shall remain in compliance with all Agreement terms at all times.

(C) MLM Permit.

1. In order to exceed the Demand Ceiling limits, Applicants and Customers must request and obtain a Multiple or Large Meter Permit ("MLM Permit") which is a written authorization issued by the Department for the permitted Customer to exceed the Demand Ceiling.

2. Applicants and existing Customers that request a meter four (4) inches or larger or the equivalent in multiple meters must also obtain an MLM Permit. Meters used solely for residential use and hospitals (NAICS Code 622) are excluded from this requirement except that this requirement applies to all landscape meters.

3. Any Customer requesting service with special, unusual or exceptional characteristics, including but not limited to peak momentary, hourly, daily or monthly demand, all as determined by the Department, must also obtain an MLM Permit.

(D) Sustainable Water Service Application.

1. Customers shall apply for an MLM Permit by submitting a completed Sustainable Water Service Application on the Department approved form, stamped by a Registered Professional Engineer, to the Department.

   a. For undeveloped property, Applicants must submit a Sustainable Water Service Application at the time the Applicant submits for any Development Entitlements.

   b. Existing Customers must submit a Sustainable Water Service Application prior to exceeding the applicable Demand Ceiling Limits or upon request of the Department.

2. The Customer or Applicant will provide on the Sustainable Water Service Application, the name and address of the facility including the name of the operator, owner, and SIC/NAICS codes, phasing of development and construction, water demand growth, the approximate number and size of the structures to be served, a reasonable description of the nature and type of water uses proposed on the property to include types of equipment and processes, a list of any environmental control permits held by or for the facility, a reasonable estimate of the projected average and peak hourly, daily, monthly, and annual water demand, and other information as requested by the Department. The Application will include an acknowledgment by the Applicant that the property is subject to the Demand Ceiling Limits and compliance with this Chapter.

(E) MLM Permit Issuance and Terms.

1. If after reviewing the Sustainable Service Application, the Department determines the System, in combination with any improvements to be provided by the Applicant or Customer, is sufficient for the projected demands, the Department may provide a Permit authorizing MLM Customer status and where applicable setting forth an Allowance.

2. All Sustainable Service Applications not resulting in issuance of an MLM Permit within sixty (60) days shall be deemed denied, unless the Applicant requests and the Department grants a reasonable extension based on the totality of the circumstances as determined by the Department.

3. The MLM Permit may contain or authorize:

   a. The Demand Ceiling.

   b. An Allowance amount.

   c. Placement of multiple or large meters (4 inches or larger or the equivalent in multiple meters).

   d. A statement that compliance with the Permit does not relieve the MLM Permittee of responsibility for compliance with all applicable federal and state requirements.

   e. Other conditions as the Department deems appropriate to ensure compliance with this Chapter, and state and federal laws rules, and regulations.

4. MLM Customers with a permitted Allowance must, at the Customer's sole cost and expense, secure and transfer a sufficient amount of Long-Term Storage Credits to the City through the Arizona Department of Water Resources to meet all metered Allowance amounts in excess of the applicable Demand Ceiling. MLM Customers must complete the transfer of Long-Term Storage Credits to

the City within ninety (90) calendar days of the issuance of an MLM Permit by the Department. The amount of the transferred Long-Term Storage Credits must be sufficient to cover the full amount of the authorized Allowance for a period of not less than three (3) years. After the initial transfer upon Permit issuance, MLM Customers must thereafter maintain a balance with the City of at least three (3) years of Long Term Storage Credits, or the Allowance shall be recalculated in each year by dividing the remaining available Long Term Storage Credits by three.

(F) Sustainable Service Agreement. Customers with an Allowance may at the discretion of the Department be required to enter into a Sustainable Service Agreement.

(G) Legacy Customers.

1. A Legacy Customer is a Customer existing as of the Effective Date of Ordinance No. 5863 with a historic demand above (or within ten percent of) 330 acre feet of water annually, but less than or equal to 550 acre-feet of water annually, and without a Sustainable Service Agreement.

2. The Demand Ceiling for Legacy Customers is 550 acre-feet. Legacy Customers are further limited to their existing meter size.

3. Legacy Customers shall limit metered deliveries to the Legacy Customer's Demand Ceiling and may be issued a MLM Permit by the Department.

4. Legacy Customers must submit a Sustainable Water Service Application and obtain and comply with an MLM Permit with an Allowance prior to exceeding the Legacy Customer's Demand Ceiling. Legacy Customers must also submit a Sustainable Water Service Application upon the request of the Department.

(H) Established Legacy Customers.

1. An Established Legacy Customer is a Customer existing as of the Effective Date of Ordinance No. 5863 with a historic demand above 550 acre-feet of water annually and with at least one year during the last five of historic consumption in excess of that amount, and without a Sustainable Service Agreement.

2. The Demand Ceiling for Established Legacy Customers is up to 850 acre-feet. For an Established Legacy Customer with a historic demand above 900 acre-feet of water annually for the year prior to the Effective Date of Ordinance No. 5863 the Demand Ceiling is 950 acre-feet. The Department shall issue an MLM Permit setting forth the applicable Demand Ceiling for each Established Legacy Customer. Established Legacy Customers are further limited to their existing meter sizes in the absence of a Permit or Sustainable Service Agreement.

3. Established Legacy Customers shall limit metered deliveries to the Established Legacy Customer's Demand Ceiling.

4. Established Legacy Customers must submit a Sustainable Water Service Application and obtain and comply with an MLM Permit with an Allowance prior to exceeding the Established Legacy Customer's Demand Ceiling. Established Legacy Customers must also submit a Sustainable Water Service Application upon the request of the Department.

(I) Compliance.

1. All Customers must comply with the applicable Demand Ceiling, Allowance, or Sustainable Service Agreement, as applicable. Water deliveries of five percent (5%) or more over the applicable Demand Ceiling, Allowance, or Sustainable Service Agreement amounts shall constitute a violation. Penalties for violation shall be as follows:

   a. First exceedance (one or more days in any month): Written notice and penalty as provided in Section 8-10-10(A).

   b. Second exceedance (one or more days in a second month within three years of a first exceedance): Penalty as provided in Section 8-10-10(B).

   c. Third and subsequent exceedances (one day in a third month within three years of a second exceedance): Penalty as provided in Section 8-10-10(C), and each day of exceedance constitutes a separate violation of this Section 8-10-9(I)(1)(c).

2. In addition to all other remedies under this Chapter, water deliveries to an MLM Customer in any period that exceed the Demand Ceiling, Allowance, or Sustainable Service Agreement amounts as applicable over the same period shall be billed under the applicable General Commercial Water Service Rate Schedule.

3. In addition to all other remedies under this Chapter and the MLM Permit, the Department may also revoke a Permit for good cause shown including, but not limited to, the following reasons:

   (i) Failure to provide prior notification of significant changes to water demands;

   (ii) Misrepresentation of or failure to fully disclose all relevant facts in the Sustainable Service Application;

   (iii) Falsifying any required reports;

   (iv) Tampering with metering equipment;

   (v) Refusing to allow the Department timely access to the facility premises and records;

   (vi) Violations of any effluent limitation, pretreatment standards or requirements or any terms of the wastewater discharge permit or this article;

   (vii) Failure to pay fines; or

   (viii) Failure to timely pay water and wastewater rates, fees and charges.

(Ord. No. 5863, § 1, 7-8-24)

8-10-10: PENALTY AND REMEDY CLAUSE

Any person who violates any of the provisions of this Chapter of the Mesa City Code as amended shall, in addition to any other penalties set forth in this Chapter, be subject to penalties and fines as follows:

(A) For a first violation of any provision of this Chapter, the Department shall issue a written notice of first violation delivered by certified mail to the Customer's billing address, along with educational materials on water conservation, including a copy of the relevant provisions of this Chapter. The Department may also

impose a fine of up to five hundred dollars ($500.00). The fine shall be added to the Customer's account. The City may give a Person in violation a reasonable time period to correct the violation, not to exceed sixty (60) days.

(B) For a second violation of any provision of this Chapter, the City shall issue a written notice of second violation delivered by certified mail to the Customer's billing address requiring correction of the violation within thirty (30) days and imposing a fine of up to seven hundred fifty dollars ($750.00). The fine shall be added to the customer's account. Failure to pay any portion of a customer account, including any fines imposed pursuant to this section, shall subject the account to termination of service in accordance with the provisions of the Terms and Conditions. In addition, for a violation of the Demand Ceiling or Water Allowance, the City may take measures to limit or reduce demand for service, including, but not limited to, elimination of redundant metering, reduction in meter size, reduction in meter count, and implementation of valving or other measures which limit flow.

(C) For a third or subsequent violation of this Chapter, the City shall issue a civil code violation and impose a fine pursuant to Title 1 Chapter 27 of the Mesa City Code. A civil action may be commenced, by issuance of a complaint in the manner set forth in Section 1-27-2. The complaint shall direct the Person to appear, at the time and place stated, before the Mesa City Court or a Hearing Officer appointed as provided in Section 1-27-8. The complaint shall be served and administered in accordance with Sections 1-27-3 and 1-27-7.

(D) On behalf of the City and with the concurrence of the City Attorney and City Manager, the Department may enter into negotiated settlements, assurances of compliance, or other similar documents establishing an agreement with any person responsible for noncompliance. Such documents shall include specific action to be taken by the person to correct the noncompliance within a time period specified by the document and may include recovery of penalties. The City may bring an action in superior court to enforce any breach of a negotiated settlement agreement, which may include but is not limited to, recovery of the then current cost of securing an acre-foot by acre-foot replacement supply of Phoenix Active Management Area Long Term Storage Credits equaling the exceedance.

(E) All hearings before the Mesa City Court or a Civil Hearing Officer shall be in accordance with Section 1-27-7 and Title 1, Chapter 27. Hearings shall be informal, except that testimony shall be given under oath or affirmation. The technical rules of evidence shall not apply, except for statutory provisions relating to privileged communications. The City shall have the burden of proving all violations charged by a preponderance of the evidence. No preheating discovery shall be permitted except under extraordinary circumstances as determined by the Court or Civil Hearing Officer.

(F) Upon an admission of the allegations of the complaint or a finding of violation in favor of the City by the Mesa City Court or Civil Hearing Officer, the Court or Hearing Officer shall enter a finding of responsibility and judgment against the Person for civil sanctions in the amount of two thousand and five hundred dollars ($2,500.00) for each violation of this Chapter, and each day of violation continued, shall be a separate offense. Failure to pay any portion of a fine imposed shall subject the customer account to termination of service.

(G) An appeal from a final judgment of the Court or Civil Hearing Officer may be taken in accordance with Title 1, Chapter 27 of this Mesa City Code and pursuant to the Arizona Rules of Procedure for Special Actions.

(H) In addition to civil sanctions and any fine imposed, the City may also terminate service for a second or subsequent violation of this Chapter. The City shall not restore service until the Director has determined that the water user has provided reasonable assurances that future violations of this Chapter by such user will not occur. In addition, the Director may require a security deposit.

(I) Violations of this Chapter and penalties and remedies as set forth herein are in addition to any other violation or remedy established by law, and this Chapter shall not be interpreted as limiting the penalties, actions, or abatement procedures that may be taken by the City or other Persons under the laws, ordinances, or rules.

(Ord. No. 5863, § 1, 7-8-24)

8-10-11: CIVIL AND CRIMINAL ACTIONS: HABITUAL VIOLATIONS

(A) The City Manager may request that the City Attorney commence civil action against any Person violating any requirement of this Chapter.

(B) Any Person who violates a provision in this Chapter after previously having been found responsible for committing three (3) or more civil violations, whether by admission, payment of a fine, default, or judgment after hearing, shall be guilty of a criminal misdemeanor. The Mesa City Prosecutor is authorized to file a criminal misdemeanor complaint, in the Mesa City Court, against habitual offenders who violate this Chapter.

(Ord. No. 5863, § 1, 7-8-24)

8-10-12: LIMITATION

Nothing in this Chapter, including the authorization of an Allowance by Permit or a Sustainable Service Agreement, guarantees a particular level of water delivery or service, conveys any rights to the ownership of water, or creates a reservation of a specific quantity of water to any Permittee, Customer, or Person. The Allowance is used for determining compliance by MLM Customers with MLM Permit requirements. All service remains subject to the provisions of this Title 8, Chapter 10 and other Sections of the City Code, the Terms and Conditions, and payment of applicable rates, fees, and charges, all as amended and in effect from time to time.

(Ord. No. 5863, § 1, 7-8-24)

8-10-13: CAPACITY FEE

(A) This Section is enacted pursuant to Arizona Revised Statutes §§ 9-511 and 9-511.01.

(B) The intent of this Section is that new customers bear a proportionate share of adding necessary capacity to the City's water and wastewater systems.

(C) The City will assess water and wastewater capacity fees for new or upsized water connections by meter size in the amounts in Table 1.

(D) Any person who obtains a building permit is required to pay the water and wastewater capacity fee upon requesting a connection to the City's water or wastewater systems.

(E) Any person who requests a new or upsized water meter connection is required to pay the water and wastewater capacity fee before the City installs the new or upsized meter connection.

(F) The capacity fees received under this section will be placed in a Capacity Fee Fund, a separate and distinct fund.

(G) The monies in the Capacity Fee Fund shall be used only to fund water and wastewater capital improvement projects and debt service for such capital improvement projects.

(H) The capacity fees received under this section are not to be included in "gross revenues" under Mesa City Code 3-3-4(D)(3) and are not subject to the General Fund Transfer authorized in Mesa City Code, Title 3, Chapter 3.

(I) If the City has removed water meters on unused property, the water and wastewater capacity fee will be assessed based on the upsized water connection from the prior meter removed by the City.

(J) New water meters installed for irrigation purposes only are exempt from payment of the wastewater capacity fee.

(K) If a water or wastewater customer pays a capacity fee for a meter size, or has an existing meter, and later requests a larger meter size, the City will only assess the Customer the increase fee amount from the original size meter to the larger size meter.

Table 1 - Water and Wastewater Capacity Fees

Meter Size (Inches)	Max Continuous Flow (Gallons per Minute)	Multiplier	Water	Wastewater	Total
0.75	30	1.00	$7,719	$1,809	$9,528
1	50	1.67	$12,864	$3,015	$15,880
1.5	100	3.33	$25,729	$6,030	$31,759
2	160	5.33	$41,166	$9,649	$50,814
3	320	10.67	$82,331	$19,297	$101,629
4	800	26.67	$205,829	$48,243	$254,072
6	1,500	50.00	$385,929	$90,456	$476,385
8	3,500	116.67	$900,501	$211,065	$1,111,566
10	5,500	183.33	$1,415,072	$331,673	$1,746,746

(Ord. No. 5970, § 1, 12-1-25)

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CHAPTER 1
RIGHT-OF-WAY MANAGEMENT*

9-1-1: DEFINITION OF TERMS

CITY ENGINEER: The director of the City's Engineering Department and his or her designee. (5369)

DEVELOPMENT AND SUSTAINABILITY DIRECTOR: The director of the City's Development and Sustainability Department and his or her designee. (5369)

EASEMENT, PUBLIC: An area of land over which the City of Mesa coordinates the locations of public or private improvements, underground or overhead, furnished for the use of the public; including electricity, gas, steam, communication, telecommunications, data transmission, cable TV, water, storm drainage, sewage, sidewalks, landscaping, traffic signals, streetlights, flood control, etc. owned and operated by any person, firm, corporation, municipal department, or board duly authorized by state or municipal regulations. (3078, 3309)

ENGINEERING PLANS: Plans, profiles, cross sections, and other required details for the construction of public or private improvements within the right-of-way or public easements, prepared by a person, firm, company, corporation, public entity, or board in compliance with the code and rules of the Arizona State Board of Technical Registration, unless exempted thereunder; and conforming with (i) the public or private improvement standards of design and construction developed by the City Engineer; or (ii) standards developed by the person, firm, company, corporation, public entity, or board that the City Engineer accepts as substantially equivalent to the City Engineer's standards in protecting the public health, safety, and welfare; or (iii) in the case of a political subdivision of the State of Arizona, standards of design and construction developed and approved by such political subdivision and filed with the City Engineer. (3309, 3766, 5369)

MESA PROJECTS: Public improvement projects for which the City of Mesa is the general contracting agency. (3309)

NEW PAVEMENT: Paving material applied in or near the right-of-way to construct a new street, highway, alley, road or bikeway where no such material previously existed. (5369)

PAVEMENT RECONSTRUCTION: Rebuilding a portion of the street by removing all the pavement material and re-paving. (5369)

PAVEMENT RENOVATION: A major rehabilitation of street pavement, which includes mill and overlay, cold in place recycle, hot in place recycle, fractured aggregate surface treatment, cape seal, and stress absorbing membrane interlayer or other similar roadway improvement that physically modifies the surface of the roadway. (5369)

PAVEMENT RESTORATION FEE: The fee required by the City when a permittee cuts into, excavates, opens, bores, trenches, potholes, damages, or disturbs pavement in the right-of-way. (5369)

PERMIT CHARGES: Fees assessed at the time of issuance of a right-of-way permit that are intended to cover costs incurred by the City for permit processing, plan review services, materials testing and inspections. Refer to latest schedule of fees and charges. (4570, 5369)

***Editor's note—**Chapter 1 derives from Ord. Nos. 298, 327, 1487, 3078, 4570, 5369.

PERMITTEE: The governmental entity, person, or business entity that has received a right-of-way permit pursuant to this section or engaged in construction or maintenance in the right-of-way. (5369)

RIGHT-OF-WAY: An area of land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved or dedicated to the City for public purposes including, but not limited to, street, highway, alley, public utility, pedestrian walkway, bikeway, or drainage. Within public right-of-way, the City of Mesa coordinates the locations of public or private improvements, underground or overhead; including electricity, gas, steam, communication, telecommunications, data transmission, cable TV, water, storm drainage, sewage, sidewalks, landscaping, traffic signals, streetlights, flood control, pedestrian, roadway purposes, etc. owned and operated by any person, firm, company, corporation, municipal department, or board duly authorized by federal, state, or municipal regulations. (3078, 3309, 4570, 5369)

RIGHT-OF-WAY IMPROVEMENT STANDARDS: A set of regulations setting forth the details, specifications, instructions, and procedures to be followed in the planning, design, installation, and construction of public or private improvements within the right-of-way or within easements; formulated by the City Engineer, the County Health Department, the Maricopa Association of Governments, and other City departments. (3309, 3766, 5369)

RIGHT-OF-WAY PERMIT: An official document issued by the City authorizing performance of a specified activity or work within the right-of-way and public easements of the City of Mesa by a person, contractor, company, firm, or corporation duly qualified under the statutes and rules of the Arizona Registrar of Contractors, unless exempted thereunder. A Right-of-Way Permit may also authorize specified activity or work involving City utilities or facilities outside the corporate limits when issued in conjunction with the appropriate permit required for specified activity or work within another jurisdiction. (3078, 3309, 3766, 5369)

STREET MAINTENANCE: Application of slurry and fog seals to street pavement. (5369)

9-1-2: RIGHT-OF-WAY PERMITS

(A) It shall be unlawful for any person, firm, company, corporation, business entity, public entity or board to grade, pave, fill, or level any street or alley within the right-of-way or public easements of the City of Mesa or to construct, alter, or repair therein any pavement, sidewalk, crosswalk, curb, driveway, gutters, landscaping, sewers, water mains, or other structures or to make therein any excavation or in any manner disturb or obstruct the same or perform any other activity or work without first obtaining a Right-of-Way Permit. (298, 1487, 3078, 3309, 3766, 5369)

(B) A person, firm, company, corporation, business entity, public entity or board seeking a Right-of-Way Permit shall apply for said permit by submitting an application and engineering plans to the Development and Sustainability Director. The City Engineer shall review the application and plans, and approve the issuance of a Right-of-Way Permit if the application and plans meet the requirements of this Chapter and the right-of-way improvement standards. (3309, 3766, 5369)

(C) All construction and maintenance activities in the right-of-way and public easements shall be subject to the inspection of the City Engineer. (5369)

(D) All improvements, construction and maintenance activities in the right-of-way and public easements shall be in accordance with the terms and conditions of a Right-of-Way Permit and in compliance with right-of-way improvement standards. (5369)

(E) While work is being done in the right-of-way and public easements, permittee shall provide to the City, upon demand, proof of the Right-of-Way Permit that authorizes the work, including a description of the work and construction limits. (5369)

(F) A Right-of-Way Permit may be revoked by the City Engineer under any of the following circumstances: (5369)

1. When the right-of-way or a public easement, or any portion thereof, occupied and used by the permittee is needed in connection with the construction of a Mesa project, upon reasonable notice from the City Engineer, unless a City license, franchise or agreement provides otherwise. (5369)

2. If the permittee does not comply with the terms and conditions of the Right-of-Way Permit or performs work that is not in compliance with right-of-way improvement standards. (5369)

3. If the City Engineer finds that a delay in completion of work authorized by a Right-of-Way Permit is due to lack of diligence on the part of the permittee, the City may revoke the permit and restore the right-of-way or the area of the public easement to its former condition unless such restoration, relocation, or removal is completed by the permittee. The City will give the permittee fifteen (15) days' written notice before restoring the right-of-way or public easement area. However, if the City Engineer determines that the circumstances warrant an extension, the City may extend this time period. The permittee shall reimburse the City for all documented costs and expenses incurred by the City in connection with locating and removing the work, and restoring the right-of-way or the public easement area. (5369)

(G) Permittee shall participate as a member of the Arizona Location Service, as set forth in A.R.S. § 40-360.21, et seq. A copy of each permittee's agreement or proof of participation shall be submitted to the City Engineer. (5369)

(H) Permittee shall prepare and maintain accurate record drawings of its facilities in the right-of-way and in public easements, and shall furnish such record drawings to the City upon request, subject to all applicable statutes for the protection from disclosure of critical utility infrastructure information. If accurate record drawings of a permittee's facilities are not provided to the City, and the City incurs costs or expenses locating the permittee's facilities in connection with the construction of a Mesa project, the permittee shall reimburse the City for documented costs associated with locating and potholing permittee's facilities. (5369)

9-1-3: NOTIFICATION

Right-of-Way Permits shall require that the person, firm, company, corporation, public entity, or board to whom the same is issued shall give the Engineering Department twenty-four (24) hours' notice of the commencement of such activity or work authorized by said Right-of-Way Permit and shall carry on such activity or work to the satisfaction and subject to the approval of the City Engineer. The permittee shall diligently prosecute the same to completion, shall leave the right-of-way or public easements in a good and safe condition, and shall at all times keep signal lights, barricades, or other safety devices functioning properly to prevent injury to persons and property, and such person, firm, company, corporation, public entity, or board shall comply with such additional reasonable provisions and conditions as may be prescribed by the City Engineer. (298, 3078, 3309, 3766, 5369)

9-1-4: PLAN REVIEW AND INSPECTION CHARGES

A Right-of-Way Permit shall not be issued under the provisions of this Chapter until the applicant has paid all applicable fees and charges as established in the most recent City of Mesa Schedule of Fees and Charges. The Development and Sustainability Director and the City Engineer are authorized to enter into agreements with the United States, the State of Arizona, political subdivisions of the State of Arizona, and agencies thereof, establishing offsets or credits for fees or charges applied by both agencies. (298, 1487, 3078, 3241, 3309, 3766, 4570, 5369)

9-1-5: RELOCATION, JOINT LOCATION

(A) If a public or private improvement has been installed in a public easement in accordance with the requirements of this Chapter and the City of Mesa subsequently requires relocation of said public or private improvement to accommodate a Mesa project, the City shall reimburse the owner of the public or private improvement for documented relocation costs; unless an existing City license, franchise, or agreement provides otherwise. (298, 3078, 3309)

(B) As part of the coordination of public or private improvements and as a condition of obtaining a Right-of-Way Permit for activity or work within the Right-of-Way and all easements, the City may require joint location of all underground and overhead public or private improvements when said joint location is not otherwise prohibited by applicable safety or design standards. (3309, 5369)

9-1-6: PAVEMENT RESTORATION FEES, PAVEMENT CUT RESTRICTIONS

(A) Pavement Restoration Fees. A permittee shall pay a pavement restoration fee in connection with any Right-of-Way Permit to cut into, excavate, open, bore trench or disturb street pavement within a period of five (5) years after the City's acceptance of street construction that includes new pavement, pavement renovation or pavement reconstruction at the location for which the Right-of-Way Permit is being sought. The amount of the pavement restoration fee shall be as established in the City's fee schedule. The pavement restoration fee shall be paid before a Right-of-Way Permit is issued unless the permittee has a written agreement with the City that allows for payment of the pavement restoration fee after the pavement cut is made. The pavement restoration fee will be in addition to, and will not be offset by, all license and franchise fees, expenses and taxes. (5369)

(B) Pavement Cut Restrictions. The City Engineer shall not approve a Right-of-Way Permit to cut into, excavate, open, bore, trench, or disturb street pavement for a period of two (2) years after the City's acceptance of street construction that includes new pavement, pavement renovation, pavement reconstruction, or street maintenance at the location for which the permit is being sought. The City Engineer may authorize an exception to this pavement cut restriction under any one of the following conditions: (5369)

1. A verifiable emergency exists that endangers life or property; (5369)
2. There is an interruption of essential utility service; (5369)
3. Utility or other service for buildings is required where no other feasible means of providing such service exists; or (5369)
4. A pavement cut is required by city, county, state or federal regulation. (5369)

(C) Between one (1) year and two (2) years after acceptance, if the City Engineer determines, upon reviewing evidence submitted by the permittee, that the cost to mill and overlay/inlay is substantially less than the cost of alternate routing for permittee's facilities the permittee may choose to cut the pavement and perform a mill and overlay/inlay as described in Subsection (E) below. (5369)

(D) If the City Engineer authorizes a pavement cut pursuant to an exception set forth in Subsection (B) the permittee shall: (5369)

1. Pay the pavement restoration fee established by the City Council in the City's fee schedule; and (5369)

2. Repair the pavement, after making the permitted cut, to meet right-of-way improvement standards. (5369)

(E) If the City issues a street cut permit within one (1) year of construction, reconstruction or renovation of pavement, permittee shall renovate such street by mill and overlay/inlay, for a minimum of the full width of all lanes impacted by the cut(s) (outside lane includes to the curb) and for arterial streets extending a minimum length of fifty (50) feet in both directions from the area of the cut(s) and for collector and residential streets extending a minimum length of twenty-five (25) feet both directions from the area of the cut(s), all as more specifically directed by the City Engineer/designee. Provided, however, for one pothole smaller than two (2) square feet, the requirement to renovate the street by mill and overlay/inlay shall not apply. (5369)

9-1-7: AUTHORITY TO INSPECT

The City Engineer is hereby authorized and directed to conduct inspections and testing for violations of this Chapter. (5369)

9-1-8: STOP WORK ORDERS

If the City Engineer determines that work in the right-of-way or a public easement is being conducted in a manner that is contrary to the provisions of this Chapter or presents a public health or safety threat, the City Engineer is authorized to issue a Stop Work Order. (5369)

(A) Issuance. The Stop Work Order shall be in writing and shall be given to the permittee, owner's agent, or the person doing the work. Upon issuance of a Stop Work Order, the cited work shall immediately cease and the permittee shall make the work area safe. The Stop Work Order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume. (5369)

(B) Unlawful Continuance. Any person who continues any work after having been served with a Stop Work Order, except such wok as that person is directed to perform to remove a violation or a condition that threatens the public health or safety, shall be subject to penalties pursuant to this Chapter. (5369)

9-1-9: UNAUTHORIZED WORK

Unauthorized work in the right-of-way or a public easement does not exempt a person from the requirements of this Chapter. Any person who commences work before obtaining the necessary Right-of-Way Permit shall be subject to a separate unauthorized construction fee as adopted in the City's Schedule of Fees and Charges. (5369)

9-1-10: APPEALS

Any decision made by any City official in connection with the enforcement of this Chapter may be appealed by submitting an appeal to the City Clerk within thirty (30) calendar days after the determination for which the appeal is being filed. All appeals must include a written Notice of Appeal that contains an explanation of why the appellant believes that the determination was in error. (5369)

The appeal will be heard by the City's Right-of-Way Manager, who shall render a decision within three (3) business days of the submission of the appeal. The decision of the Right-of-Way Manager may then be appealed to the City Manager or his designee, who shall render a decision within five (5) business days of receiving the appeal. The determination of the City Manager, or his designee, may be appealed to the City Council committee that is designated by the City to hear such appeals. The determination of the City Council committee shall be final. (5369)

9-1-11: PENALTIES

(A) Notice of Violation. The City Engineer is authorized to issue a Notice of Violation for unauthorized work, a violation of the provisions of this Chapter, or for the violation of a permit issued pursuant to the provisions of this Chapter. (5369)

(B) Penalty Clause. Any person, firm, or corporation violating any provision of this Chapter and any amendment to it shall be guilty of a Class 1 misdemeanor, punishable by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the city jail for a period not to exceed six (6) months, or by both such fine and imprisonment; and each day of violation continued shall be a separate offense, punishable as described. (4570, 5369)

(C) Remedies not Exclusive. Penalties under this Chapter are in addition to any other penalties established by law, and this Chapter shall not be interpreted as limiting the remedies, actions, or abatement procedures that may be taken by the City. (5369)

CHAPTER 2
OBSTRUCTION OF STREETS

9-2-1: OBSTRUCTING PROHIBITED

It shall be unlawful for any person to cause or permit any street, alley, or right-of-way within the City to become obstructed or encumbered by placing or leaving thereon any personal property of any kind or character or any trash or rubbish. (575)

9-2-2: EXCEPTIONS

The provisions of Section 9-2-1 shall not prohibit the use of such streets, alleys, and rights-of-way for pedestrian or vehicular traffic or for necessary moving or conveying of personal property or trash or rubbish on, over, and across such streets, alleys, and rights-of-way or the encumbering or obstructing of same after having obtained a permit for the construction, alteration, or repair of any portion of such public street, alley, or right-of-way from the Development Services Manager. (575, 4570)

9-2-3: ENCROACHMENTS

(A) Prohibited Except Under Permit. It shall be unlawful for any person, firm or corporation to cause or to maintain any encumbrance or obstruction of public right-of-way by encroachment therein with any foundation, wall, fence, post, or other structure or any cohesive ground-surfacing material without having first obtained a written Right-of-Way Encroachment Permit to do so from the City Engineer. Such permit may be issued upon a finding by the City Engineer that the encroachment requested and specified by the applicant will not impair necessary public use or impair access to public facilities located therein and that such encroachment is not otherwise prohibited by the Mesa City Code. (1900)

(B) Terms of Permit. Encroachments into the public right-of-way for which a permit has been issued shall not exceed the terms, conditions, period of time, or extent specified by the permit, and the permit may be revoked at any time by the City Engineer. The City Engineer shall not issue such permit until the applicant shall have executed and delivered to the City an undertaking to hold the City harmless of and from any liability of any nature resulting from any such encumbrance or obstruction being located within the right-of-way and releasing the City from any liability for any obligation to maintain the encroachment or for any damage thereto. The applicant for a permit shall also agree in writing to remove same and restore the premises to the original condition without compensation and upon request by the City Engineer. (1900)

9-2-4: EXCEPTIONS TO ENCROACHMENTS

The following encroachments are exempt from the terms of Section 9-2-3: (1900)

(A) Authorized traffic-control structures and signs. (1900)

(B) Vehicle driveway surfacing properly aligned with curb openings provided for the purpose. (1900)

(C) Pedestrian walkway surfacing less than five feet (5') wide perpendicular to public right-of-way. (1900)

9-2-5: PENALTIES

Any person, firm, or corporation violating any provision of this chapter and any amendment to it shall be guilty of a Class 1 Misdemeanor, punishable by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment; and each day of violation continued shall be a separate offense, punishable as described. (4570)

CHAPTER 3
RESERVED*

CHAPTER 4
PARADE REGULATIONS

9-4-1: PERMIT REQUIRED

No person shall engage in, participate in, aid, form, or start any parade utilizing any portion of any public street or public park within the City limits of the City unless a Parade Permit shall have been obtained from the Chief of Police. The word parade shall mean any organized procession, march, public walk, or promenade for display and shall include distance running and bicycle races and similar activities. (624, 1420)

***Editor's note**—Memo of June 11, 1986 repealed Chapter 3.

Exceptions. This Chapter shall not apply to: (624, 1420)

(A) Funeral processions. (624, 1420)

(B) Students going to and from school classes or participating in any educational activities, provided such conduct is under the immediate direction and supervision of the proper school authorities; and (624, 1420)

(C) A governmental agency acting within the scope of its functions. (624, 1420)

9-4-2: APPLICATION

A person seeking issuance of a Parade Permit shall file an application with the Chief of Police on forms provided by him. (624, 1420, 1434)

(A) Filing Period. An application for a Parade Permit shall be filed with the Chief of Police not less than thirty (30) days before the date on which it is proposed to conduct the parade. (624, 1420, 1434)

(B) Contents. The application for a Parade Permit shall set forth the following information: (624, 1420, 1434)

1. The name, address, and telephone number of the person seeking to conduct such parade; (624, 1420, 1434)
2. If the parade is proposed to be conducted for, on behalf of, or by an organization, the name, address, and telephone number of the headquarters of the organization; (624, 1420, 1434)
3. The name, address, and telephone number of the person who will be the parade chairman and who will be responsible for its conduct; (624, 1420, 1434)
4. The date when the parade is to be conducted; (624, 1420, 1434)
5. The route to be traveled, the starting point, and the termination point; (624, 1420, 1434)
6. The approximate number of persons who, and animals and vehicles which, will constitute such parade, the type of animals, and the description of the vehicles; (624, 1420, 1434)
7. The hours when such parade will start and terminate; (624, 1420, 1434)
8. A statement as to whether the parade will occupy all or only a portion of the width of the streets proposed to be traversed; (624, 1420, 1434)
9. The location by streets of any assembly areas for such parade; (624, 1420, 1434)
10. The time in which units of the parade will begin to assemble at any such assembly area or areas; (624, 1420, 1434)
11. The interval of space to be maintained between units of such parade; (624, 1420, 1434)
12. If the parade is designated to be held by and on behalf of or for any person other than the applicant, the applicant for such permit shall file with the Chief of Police a communication in writing from the person proposing to hold the parade authorizing the applicant to apply for the permit on his behalf; (624, 1420, 1434)
13. Any additional information which the Chief of Police shall find reasonably necessary to a fair determination as to whether a permit should be issued; (624, 1420, 1434)

14. The applicant shall procure such public liability and property damage insurance as shall protect the applicant and the City from all claims for bodily injury, including accidental death, as well as for property damage arising from the holding of the parade. The coverage shall be in an amount of not less than one million dollars ($1,000,000.00) and the applicant shall attach a Certificate of Insurance naming the City as an additional insured to the application. (1420, 1434)

15. The applicant shall execute a hold harmless form to be provided by the Mesa Police Department and attach the form to the application. The hold harmless form shall provide that the applicant agrees to indemnify the City and hold it harmless against any and all losses and liabilities for personal injury, death, or property damage arising out of, or as a consequence of, the parade and any and all expenses related to claims or lawsuits resulting from the above, including court costs and attorney fees, excepting for such losses, liabilities, claims, or lawsuits arising out of acts or omissions to act on the part of any officer, agent, or employee of the City. (1420, 1434)

(C) Late Applications. The Chief of Police, where good cause is shown therefor, shall have the authority to consider and approve or disapprove any application hereunder which is filed less than thirty (30) days before the date such parade is proposed to be conducted. (624, 1420, 1434)

9-4-3: PARADE ROUTE

All parades shall be held on routes designated by the Chief of Police. (624, 1420)

9-4-4: STANDARDS FOR ISSUANCE

The Chief of Police shall issue a permit as provided for hereunder when, from a consideration of the application and from such other information as may otherwise be obtained, he finds that: (624)

(A) The conduct of the parade will not substantially interrupt the safe and orderly movement of other traffic contiguous to its route; (624)

(B) The conduct of the parade will not require the diversion of so great a number of the police officers of the City to properly police the line of movement and the areas contiguous thereto as to prevent normal police protection to the City; (624)

(C) The conduct of such parade will not require the diversion of so great a number of ambulances as to prevent normal ambulance service to portions of the City other than that to be occupied by the proposed line of march and areas contiguous thereto; (624)

(D) The concentration of persons, animals, and vehicles at assembly points of the parade will not unduly interfere with proper fire and police protection of, or ambulance service to, areas contiguous to such assembly areas; (624)

(E) The conduct of such parade will not interfere with the movement of firefighting equipment en route to a fire; (624)

(F) The conduct of the parade is not reasonably likely to cause injury to persons or property, to provoke disorderly conduct, or to create a disturbance; (624)

(G) The parade is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route; (624)

(H) The parade is not to be held for the sole purpose of advertising any product, goods, or event and is not designed to be held purely for private profit. (624)

9-4-5: NOTICE OF REJECTION

The Chief of Police shall act upon the application for a Parade Permit within five (5) days after the filing thereof. If the Chief of Police disapproves the application, he shall mail to the applicant within five (5) days after the date upon which the application was filed a notice of his action stating the reasons for his denial of the permit. (624)

9-4-6: APPEAL PROCEDURE

Any person aggrieved shall have the right to appeal the denial of a parade permit to the Council. The appeal shall be taken within five (5) days after notice, and the Council shall act upon the appeal at its next regular meeting. (624, 1420)

9-4-7: NOTICE TO OTHER OFFICIALS

Immediately upon the issuance of a Parade Permit, the Chief of Police shall send a copy thereof to the following: (624, 1420)

Mayor, City Manager (624, 1420)

Fire Department (624, 1420)

Traffic Engineering (1420)

Development Services Department (624, 1420, 3766)

City Clerk (1420)

Arizona Highway Department, if State highway is involved. (1420)

9-4-8: CONTENTS OF PERMIT

Each Parade Permit shall state the following information: (624)

(A) Starting time; (624)

(B) Minimum speed; (624)

(C) Maximum speed; (624)

(D) Maximum interval of space to be maintained between the units in the parade; (624)

(E) The portions of the streets to be traversed that may be occupied by the parade; (624)

(F) The maximum length of the parade in miles or fraction thereof; (624)

(G) Such other information as the Chief of Police shall find necessary to the enforcement of this Chapter. (624)

9-4-9: DUTIES OF PERMITTEE

A permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances. (624)

Possession of Permit. The Parade Chairman or other person heading or leading such activity shall carry the parade permit upon his person during the conduct of the parade. (624)

9-4-10: PUBLIC CONDUCT DURING PARADE

(A) Interference. No person shall unreasonably hamper, obstruct, impede, or interfere with any parade or parade assembly or with any person, vehicle, or animal participating or used in a parade. (624)

(B) Driving Through Parades. No driver of a vehicle shall drive between the vehicles or persons comprising a parade when such vehicle or parade is in motion and is conspicuously designated as a parade. (624)

(C) Parking on Parade Route. The Chief of Police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street, or part thereof, constituting a part of the route of a parade. The Chief of Police shall post signs to such effect, and it shall be unlawful for any person to park or leave unattached any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this Chapter. (624)

9-4-11: REVOCATION OF PERMIT

The Chief of Police shall have the authority to revoke a Parade Permit issued hereunder upon application of the standards for issuance as herein set forth. (624)

CHAPTER 5
PRIMARY VEHICULAR ALLEY ACCESS

9-5-1: ALLEY WIDTH

Alleys that are provided to serve multiple-residence, commercial, or industrial property shall be twenty-four feet (24') in width when such alley is to be used as primary vehicular access to such property. If existing alley dedication is less than twenty-four feet (24'), then additional property shall be dedicated to provide the full twenty-four-foot (24') alley width prior to usage thereof as primary vehicular access to such property. Such alleys shall be paved and improved in accordance with the applicable standards therefore established by the Engineering Department of the City. (708)

9-5-2: WHEN WALL OR FENCE REQUIRED

Wherever a multiple-residential area abuts a single-family residential area, a solid wall or fence shall be required separating all multiple-residential parking areas from the single-family residential yards. A solid wall or fence shall be placed on the side of the alley opposite the parking area unless prior authorization is obtained from the City Engineer to place such solid wall or fence on the side of the alley adjacent to the parking area. (708, 4570)

9-5-3: ENTRANCE INTO ALLEYS BY FORWARD MOTION ONLY; EXCEPTIONS

All entrances into alleys which provide primary vehicular access to the property described in Section 9-5-1 hereof shall be by forward motion only, excepting under the following circumstances: (708)

(A) If a multiple-residence parking area has less than six (6) spaces, by special permit issued by the City Engineer, motor vehicles from these parking areas may be permitted to back into a public alley, provided that when required by the City Engineer, an approved guardrail shall be installed as a condition to granting such permit. (708)

(B) In a subdivision of multiple-residence lots backing up to each other and where a twenty-four-foot (24') improved alley is provided for primary vehicular access, motor vehicles from parking areas of six (6) or less cars may back directly into such alley without providing for the vehicles to enter the alley in a forward motion. (708)

(C) As authorized by adoption of modifications pursuant to Sections 9-6-7 and 9-8-4, and filed concurrently with an Application for Rezoning to PC District. (4771)

9-5-4: HARDSHIP CASES

The minimum requirements hereinabove set forth in this Chapter may be waived or modified by the Development Services Manager upon recommendation by the City Engineer in any case where existing physical conditions would cause impossibility of performance, extreme hardship, or unreasonable expense. (708, 4570)

9-5-5: PENALTIES

Any person, firm, or corporation violating any provision of this chapter and any amendment to it shall be guilty of a Class 1 Misdemeanor, punishable by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment; and each day of violation continued shall be a separate offense, punishable as described. (4570)

CHAPTER 6
LAND DIVISION REGULATIONS*

9-6-1: PURPOSE AND APPLICABILITY

A. **Purpose.** The purpose of these regulations is to provide for the orderly growth and harmonious development of the City of Mesa by:

1. Ensuring adequate traffic circulation through coordinated street systems with relation to major thoroughfares, adjoining subdivisions, and public facilities, including provisions for bicycle and pedestrian ways;

2. Achieving individual lots of reasonable utility;

3. Securing adequate provisions for water supply, drainage, wastewater collection/treatment, and other health requirements;

4. Ensuring consideration for adequate sites for schools, recreation areas, and other public facilities;

***Editor's note**—Ord. No. 5949, §§ 1, 2, adopted July 1, 2025, repealed the former Ch. 6, §§ 9-6-1—9-6-9, and enacted a new Ch. 6 as set out herein. The former Ch. 6 pertained to subdivision regulations and derived from Ord. 2474/Reso. 2870; 3105, 3324/Reso. 7038; Reso. 10116; 3693, 3766, 3868, 3911, 4076, Ord. 4233, 4294, 4497, 4513, 4570, 4766, 4894, 5108, 5236, 5251, 5257, 5376, 5395, 5538, 5826, 6188.

5. Ensure that proposed land development provides all infrastructure and easements to support that development and future development that relies on such infrastructure and easements;

6. Promoting the accurate conveyance of land through legal descriptions; and

7. Providing logical procedures for the achievement of this purpose.

B. **Applicability.** The requirements of this Chapter apply to all divisions of improved or unimproved land for the purpose of financing, sale, or lease, whether immediate or future, with the following exceptions:

1. The sale or exchange of parcels of land to or between adjoining property owners if such sale or exchange does not create additional lots.

2. The creation of parcels or leases solely for the purpose of oil, gas, or minerals extraction or exploration, which does not involve the sale or lease of land for permanent residential, commercial, or industrial development.

3. Leasing of apartments, offices, stores, or similar space within an apartment building, commercial building, industrial building, Recreational Vehicle Park, or Manufactured Home Park.

4. The combination of parcels of land, the boundaries of which were created by metes and bounds descriptions.

5. Creation or realignment of an easement.

C. **Types of Land Division.**

1. ***Minor Land Divisions.***

a. Land Split.

b. Minor Plat.

2. ***Major Land Divisions.***

a. Preliminary Plat.

b. Final Plat.

c. Map of Dedication.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-2: PLATTING PROCEDURES AND PROCESSES

A. **Minor Land Division Process.** The Minor Land Division process applies to Minor Plats and Land Splits.

1. ***Applications.***

a. *Pre-Submittal Conference.*

i. A Pre-Submittal Conference is required prior to submitting an application for a Minor Plat.

ii. A Pre-submittal Conference is not required prior to submitting an application for a Land Split.

b. Complete applications shall be submitted and applicable fees paid to the Development Services Department in accordance with the Minor Land Division application guidelines.

c. The Planning Director may require additional information and supporting materials needed to evaluate and reach a decision on an application. The Planning Director may also waive specific submittal requirements if they determine the information is not needed to complete a review or make a decision.

d. The applicant is responsible for the accuracy and completeness of all information submitted to the City. The Planning Director may deny an application if the application is incomplete, the request does not comply with City Code requirements, or the applicant made erroneous, false, or misleading statements in the application or to City staff during the application process.

2. ***Zoning Compliance.***

a. Minor Plats and Land Splits must comply with all applicable Zoning Ordinance requirements.

b. If a rezoning is required for the Minor Plat or Land Split to comply with the Zoning Ordinance, the rezoning must be approved prior to approval of the Minor Plat or Land Split.

3. ***Limitations.***

a. *Minor Plat Limitation.* No more than 10 lots, tracts, or parcels of land may be created using a Minor Plat from the original tract/parcel.

b. *Land Split Limitations.* A property with boundaries established by a recorded plat may be divided into no more than two (2) lots, tracts, or parcels of land. Any further division shall require a Major Land Division.

c. Minor Land Divisions shall not be used to circumvent or avoid Preliminary Plat or Final Plat procedures and requirements.

d. If it is determined by the Planning Director, that the intent or effect of an application is to circumvent or avoid Preliminary Plat or Final Plat procedures, the application will be denied, and the applicant will be required to submit a Preliminary Plat application.

4. ***Dedication and Acknowledgment.***

a. Where rights-of-way or easements are required to be dedicated, the dedication shall be made:

i. On the recorded Minor Plat; or

ii. By a separate recorded instrument; and

iii. In either case, prior to the issuance of a building permit or right-of-way permit, whichever occurs first.

b. *Dedication Statement.*

i. The Minor Plat or separately recorded instrument must include a dedication statement granting all streets, alleys, drainage retention basins and drainage ways, pedestrian/bicycle ways, and easements for public use, including sanitation, utilities,

fire, and other emergency-related vehicles, executed by the person holding title of record, by persons holding titles as vendees under land contract, by spouse of said parties, lienholders, and all other parties having an interest in the property.

ii. If any of the dedicated land is mortgaged, the mortgagee shall also sign the Minor Plat or separately recorded instrument.

iii. The dedication statement shall include a written location by section, township, and range of the tract.

iv. If the Minor Plat contains private streets, the public easement shall include the right to install and maintain utilities in the private street, including refuse collections, fire, and other emergency services.

c. *Acknowledgment of Dedication.* Execution of dedication shall be acknowledged and certified by a notary public.

d. *Public Improvements.*

i. The recordation of a Minor Plat, Land Split map, or separately recorded instrument does not constitute acceptance by the City of any public improvement.

ii. The process for acceptance of public improvements shall be established by the City Engineer.

5. ***Approval.*** If a Minor Plat or Land Split complies with all objectives and requirements of this Chapter and other applicable City Codes, the Planning Director shall approve the request and stamp a notation of approval on the copy retained in the permanent file.

6. ***Required Certifications.***

a. *Registered Land Surveyor.* All Minor Plats and Land Splits must contain the seal of a registered land surveyor, certifying that the Minor Plat or Land Split is correct and accurate, and the monuments described in it have either been set or located as described.

b. *City Engineer.* All Minor Plats are required to be certified by the City Engineer. The City Engineer has no obligation to certify a Minor Plat unless the requirements of this subsection are met:

i. For areas within the City's limits, the City Engineer will certify a Minor Plat only upon finding the applicant has:

(1) Obtained a written commitment of water service for the land division from the City or a private water company designated as having an assured water supply pursuant to A.R.S. § 45-576; and

(2) Complies with all City engineering standards and requirements.

ii. For areas outside the City's established domestic water service area, the City Engineer will certify a Minor Plat only upon finding the applicant has:

(1) Obtained a certificate of assured water supply from the Director of the Arizona Department of Water Resources (ADWR) pursuant to A.R.S. § 45-576; and

(2) Indicated the ADWR Permit Number which certifies that the land division lies within the domestic water service area of a specific, identified water service provider.

7. ***Recordation.***

a. All Minor Plats and Land Splits must be recorded in the Maricopa County Recorder's Office.

b. A Land Split shall not be recorded until the Planning Director's certificate of approval is transcribed on the document.

c. A Minor Plat shall not be recorded until all the following are met:

i. The Planning Director's certificate of approval has been transcribed on the plat;

ii. The City Engineer has certified that all the property has written commitment of water service from the City, a private water company, or a certificate of assured water supply from ADWR, as applicable;

iii. All lots have been staked by a registered land surveyor;

iv. Engineering Plans are approved by the City Engineer;

v. A Survey Closure Report is provided to the Development Services Department.

8. **Preliminary Plat Process.**

1. ***Applications.***

a. *Pre-Submittal Conference.* A Pre-Submittal Conference is required prior to submitting an application for a Preliminary Plat.

b. Completed applications must be submitted and applicable fees paid to the Development Services Department in accordance with the Preliminary Plat application guidelines.

c. The Planning Director may require additional information and supporting materials needed to evaluate and reach a decision on an application. The Planning Director may also waive specific submittal requirements if they determine the information is not needed to complete a review or make a decision.

d. The applicant is responsible for the accuracy and completeness of all information submitted to the City. The Planning Director may deny an application if the application is incomplete, the request does not comply with City Code requirements, or the applicant made erroneous, false, or misleading statements in the application or to City staff during the application process.

2. ***Zoning.***

a. Preliminary Plats must comply with all applicable Zoning Ordinance requirements.

b. If a rezoning is required for the Preliminary Plat to comply with the Zoning Ordinance, the rezoning must be approved prior to or concurrent with approval of the Preliminary Plat.

3. ***Sanitary Sewer and Water Supply.*** Prior to Preliminary Plat approval, the applicant must review preliminary design concepts with the City Engineering Department.

4. ***Approval.*** The Planning Director may take the following actions on a Preliminary Plat.

   a. If the Preliminary Plat complies with all objectives and requirements of this Chapter and other applicable City Codes, the Planning Director shall approve the request and stamp a notation of approval on the copy retained in the permanent file.

   b. If the Preliminary Plat only requires minor revision, the Planning Director may approve the Preliminary Plat with conditions identifying the minor revisions required prior to Final Plat submittal.

   c. If the Preliminary Plat requires major revisions, the plat must be revised to address the deficiencies and resubmitted for review and approval.

5. ***Terms of Preliminary Plat Approval.***

   a. *Expiration.*

      i. A Preliminary Plat is valid for a period of two (2) years from the date of Planning Director approval.

      ii. If the Preliminary Plat expires prior to approval of a Final Plat, a new Preliminary Plat application must be submitted for review and accompanied by the required fee.

   b. *Extension of Approval.*

      i. Preliminary Plat approval may be extended by a period of two (2) years by the Planning Director upon a formal request from the applicant.

      ii. A total of two (2) extensions may be requested.

      iii. A request for extension of Preliminary Plat approval must be submitted by the applicant prior to the approval expiration date.

   c. *Significance of Preliminary Plat Approval.*

      i. Preliminary Plat approval constitutes authorization for the applicant to proceed with preparation of the Final Plat, engineering plans, and specifications for public improvements.

      ii. Approval of the Preliminary Plat does not assure approval of the Final Plat or continuation of the existing zoning, and does not constitute authorization to record the plat.

      iii. Preliminary Plat approval does not constitute approval to clear, grade, remove trees, or perform other land or construction activity.

C. **Final Plat Process.** The Final Plat shall substantially conform to the approved Preliminary Plat and shall comply with all appropriate City standards, codes, specifications, and requirements.

1. ***Applications.***

   a. *Pre-Submittal Conference.* A Pre-Submittal Conference is not required prior to submitting an application for a Final Plat.

   b. Complete applications shall be submitted and applicable fees paid to the Development Services Department in accordance with the Final Plat application guidelines.

c. The Planning Director may require additional information and supporting materials needed to evaluate and reach a decision on an application. The Planning Director may also waive specific submittal requirements if they determine the information is not needed to complete a review or make a decision.

d. The applicant is responsible for the accuracy and completeness of all information submitted to the City. The Planning Director may deny an application if the application is incomplete, the request does not comply with City Code requirements, or the applicant made erroneous, false, or misleading statements in the application or to City staff during the application process.

2. ***Zoning.***

a. Final Plats must comply with all applicable Zoning Ordinance requirements.

b. If a rezoning is required for the Final Plat to comply with the Zoning Ordinance, the rezoning must be approved prior to or concurrent with approval of the Final Plat.

3. ***Preliminary Plat Conformance.*** The Final Plat shall substantially conform to the approved Preliminary Plat.

a. Substantial conformance means that the overall layout, number of lots, circulation patterns, access points, open space, and general design intent remain consistent with the Preliminary Plat.

b. Any changes that increase the number of lots, alters street circulation or access, reduces open space, or otherwise affects the intent or conditions of the original approval may be determined by the Planning Director to not be in substantial conformance.

c. If the Final Plat is found not to be in substantial conformance with the Preliminary Plat, revisions to the Preliminary Plat and reapproval shall be required before the Final Plat can proceed.

4. ***Dedication and Acknowledgment.***

a. Where rights-of-way or easements are required to be dedicated, the dedication shall be made: (i) prior to the issuance of a building permit or right-of-way permit, and (ii) pursuant to the recording of a Final Plat.

b. *Dedication Statement.*

i. The Final Plat must include a dedication statement granting all streets, alleys, drainage retention basins and drainage ways, pedestrian/bicycle ways, and easements for public use, including sanitation, utilities, fire, and other emergency-related vehicles, executed by the person holding title of record, by persons holding titles as vendees under land contract, by spouse of said parties, lienholders, and all other parties having an interest in the property.

ii. If any of the dedicated land is mortgaged, the mortgagee shall also sign the Final Plat.

iii. The dedication statement shall include a written location by section, township, and range of the tract.

iv. If the Final Plat contains private streets, the public easement shall include the right to install and maintain utilities in the private street, including refuse collections, fire, and other emergency services.

c. *Acknowledgment of Dedication.* Execution of dedication shall be acknowledged and certified by a notary public.

d. *Public Improvements.*

i. The recordation of the Final Plat does not constitute acceptance by the City of any public improvement.

ii. The process for acceptance of public improvements shall be established by the City Engineer.

5. ***Final Plat Approval.*** If the Final Plat complies with all objectives and requirements of this Chapter and other applicable City Codes, the Planning Director shall approve the Final Plat.

6. ***Required Certifications.***

a. *Registered Land Surveyor.* All Final Plats must contain the seal of a registered land surveyor, certifying that the Final Plat is correct and accurate and that the monuments described in it have either been set or located as described.

b. *City Engineer.* All Final Plats are required to be certified by the City Engineer. The City Engineer has no obligation to certify a Final Plat unless the requirements of this subsection are met:

i. For areas within the City's limits, the City Engineer will certify a Final Plat only upon finding that the applicant has:

(1) Obtained a written commitment of water service for the property from the City or a private water company designated as having an assured water supply pursuant to A.R.S. § 45-576; and

(2) Complies with all engineering standards and requirements.

ii. For areas outside the City's established domestic water service area, the City Engineer will certify a Final Plat only upon finding that the applicant has:

(1) Obtained a certificate of assured water supply from the Director of the Arizona Department of Water Resources (ADWR) pursuant to A.R.S. § 45-576.

(2) Indicated the ADWR File Number which certifies that the property lies within the domestic water service area of a specific, identified water service provider.

7. ***Recordation.***

a. All Final Plats must be recorded in the Maricopa County Recorder's Office.

b. The Final Plat shall not be recorded until all the following are met:

i. The Planning Director's certificate of approval has been transcribed on the plat.

ii. The City Engineer has certified that all the property has written commitment of water service from the City, a private water company, or a certificate of assured water supply from ADWR, as applicable.

iii. All lots have been staked by a registered land surveyor.

iv. Engineering Plans are approved by the City Engineer.

v. A Survey Closure Report is provided to the Development Services Department.

D. **Map of Dedication.**

1. Maps of Dedication must comply with the Final Plat process.

2. A Preliminary Plat is not required for a Map of Dedication.

E. **Amendments to Previously Approved Plats.**

1. ***Applicability.***

a. A change to a recorded plat may be made through the Replat or Affidavit of Change/ Correction process.

b. These procedures do not authorize the abandonment of public roadways or easements. The abandonment of public roadways and easements requires conformance with all applicable statutes, rules, regulations, ordinances, plans and policies.

2. ***Applications.***

a. *Pre-Submittal Conference.* A Pre-Submittal Conference is required prior to submitting an application to change a recorded plat.

b. Complete applications shall be submitted and applicable fees paid to the Development Services Department in accordance with the Replat or Affidavit of Change/Correction application guidelines.

c. The Planning Director may require additional information and supporting materials needed to evaluate and reach a decision on an application. The Planning Director may also waive specific submittal requirements if they determine the information is not needed to complete a review or make a decision.

d. The applicant is responsible for the accuracy and completeness of all information submitted to the City. The Planning Director may deny an application if the application is incomplete, the request does not comply with the City Code, or the applicant made erroneous, false, or misleading statements in the application or to City staff during the application process.

3. ***Replat.*** Replats shall be processed in accordance with Final Plat procedures, except that the requirement for a Preliminary Plat may be waived by the Planning Director if the Replat substantially conforms with the previously approved Preliminary Plat.

4. ***Affidavit of Change/Correction.***

a. *Limitations.* An Affidavit of Change/Correction may only be used when three (3) or fewer minor changes are proposed. These changes may include lot line adjustments, lot combinations, bearing or distance changes, or minor corrections such as language of dedication, notes, or legal description.

b. *Registered Land Surveyor.* All Affidavits of Change/Correction must contain the seal of a registered land surveyor, Whenever possible, the Affidavit of Change/Correction should be prepared by the original surveyor responsible for the plat being amended or corrected.

c. *Affidavit of Change/Correction Approval.* If the Planning Director determines that an Affidavit of Change/Correction complies with all objectives and requirements of this Chapter and other applicable City Codes, the Planning Director shall approve the Affidavit of Change/Correction.

d. *Recordation.* Following the Planning Director's approval, an Affidavit of Change/Correction must be recorded in the Maricopa County Recorder's Office.

F. **Modifications to Development Standards.**

1. ***General Requirements.*** The City Manager may eliminate, reduce, defer, or approve alternatives to the requirements or specifications in this Chapter if all the following are true:

a. The City Manager determines that special conditions related to the impact the proposed development will have on the City's need for land division improvements exist, such as special conditions involving topography, land ownership, adjacent development, or parcel configuration.

b. The City Manager determines that the elimination, reduction, deferral, or alternative to the requirements or specifications of this Chapter meets all of the following:

i. Is consistent with the intent of these regulations.

ii. Results in improvements that meet the City's needs.

iii. Does not constitute a grant of special privilege.

iv. Is not contrary to the public interest.

2. ***Dedication of Right-of-Way for Land Splits.*** The City Manager may eliminate, reduce or approve alternatives to the requirements or specifications for dedicating rights-of-way for land splits if all the following are true:

a. The City Manager determines that extraordinary conditions related to the impact the proposed development will have on the City's need for the dedication of right-of-way exist, such as special conditions involving topography, land ownership, adjacent development, or parcel configuration.

b. The City Manager determines that the requirement or specification for dedicating right-of-way for land splits will substantially impair land uses existing on the subject property or the ability to develop the subject property.

3. ***Agreements.*** To ensure compliance with any elimination, modification, deferral, or alternative, the City Manager may require certain provisions, such as protective covenants, bonds, and/or development agreements, and may require the provisions to be recorded against the property.

4. ***In-Lieu Payment.*** When the deferral of right-of-way improvements is authorized by the City Manager the owner and/or developer shall remit to the City a payment in lieu of causing the actual design, installation, or construction of those certain right-of-way improvements.

   a. The in-lieu payment shall be based upon a cost estimate prepared by a professionally registered civil engineer and approved by the City.

   b. The in-lieu payment cost estimate shall include all design costs, labor and materials costs, plus 20% for future contingency costs.

   c. All in-lieu payments shall be remitted to the City as a condition of and in conjunction with the issuance of any on-site construction permits and/or off-site rights-of-way permits associated with the development project.

   d. The obligation to construct right-of-way improvements or make an in-lieu payment prior to the issuance of permits, including the determination of the amount of the in-lieu payment required, may be deferred to a future date if the following criteria are met:

      i. The developer/owner provides financial assurances acceptable to the City Engineer and the City Attorney;

      ii. The developer/owner and the City enter into a development agreement that provides adequate financial assurance for the future construction of the improvements; and

      iii. The City Manager finds that such deferral meets all of the following criteria:

         (1) The development is non-residential;

         (2) The property is zoned as a commercial or industrial district;

         (3) The deferred right-of-way improvements are not included in this City's Capital Improvement Plan for construction within five (5) years of the deferral; and

         (4) The deferral is in the best interest of the City.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-3: COMPLIANCE WITH APPLICABLE LAWS AND REGULATIONS

All land divisions shall comply with the following:

A. All applicable federal, state, county, and local laws, ordinances, rules, and regulations, including Title 9, Public Ways and Property and Title 11, Zoning Ordinance of the City Code.

B. The Mesa General Plan.

C. Mesa's Engineering and Design Standards Manual.

D. Where the tract, parcel, or lot proposed for division includes all or part of a site designated for a park, school, flood control facility, or other public use identified in any adopted City Plan, that portion of the property shall:

1. Be dedicated to the City; or

2. Reserved for future acquisition within a specified timeframe.

3. An agreement shall be established between the applicant and the appropriate public agency specifying the timing, method, and cost of such acquisition.

4. City Plan means a comprehensive planning document adopted by the City Council.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-4: DESIGN PRINCIPLES AND STANDARDS

A. **Land Suitability.**

1. Land that is subject to periodic flooding, cannot be properly drained, or other land the Planning Director determines is unsuitable for residential use may not be divided.

2. In making a determination on the suitability of land, the Planning Director may consider steep topography, unusual soil conditions, drainage problems, special lot width or depth, or area standards.

3. The Planning Director may approve division of unsuitable land upon receipt of evidence from the Maricopa County Flood Control District, Maricopa County Health Department, or the City Engineer that the construction of specific improvements will render the land suitable. Construction is prohibited until the specific improvements plan(s) are approved.

B. **Block Design.**

1. ***Block Length.*** Maximum block length is 1,320 feet, measured along the street centerline between intersecting street centerlines. Exceptions may be granted by the Planning Director for developments where the average lot size is one-half acre or larger, or where site conditions justify longer block lengths.

2. ***Block Arrangement.*** Blocks shall be of sufficient width to accommodate two (2) rows of lots, each meeting the minimum lot depth and width requirements of the Zoning Ordinance. Where lots back onto a collector or arterial street, freeway, natural feature, land division boundary, or where lots face a loop road or cul-de-sac, the Planning Director may approve a block with a single row of lots.

C. **Lot Design.**

1. All land divisions shall result in the creation of lots which are capable of being lawfully built upon.

2. Lot width, depth, and area, and building setbacks shall comply with the minimum requirements of the City Code, including the Zoning Ordinance, and shall be appropriate for the character of development envisioned for the property in the General Plan. Additionally, lot dimensions shall be suitable for the type and extent of public improvements required to serve the property. In general, urban densities must be developed with corresponding urban street and utility improvements.

3. Where steep topography, unusual soil conditions, drainage problems, abrupt changes in land use, or heavy traffic on adjacent streets exist, the applicant may propose lot widths, depths, and areas that exceed the minimum requirements of the zoning district.

4. No land division shall create lots which are unsuitable for improvement due to size, shape, steepness of terrain, location of water courses, problems of sewage, driveway grades, or other natural physical conditions, unless the parcel or tract is preserved as open space.

5. Property required for private utility or public purposes may be divided if it does not conform to lot requirements.

6. Side lot lines shall be substantially aligned at right angles or radial to street lines.

7. Individual lots on curvilinear streets shall have straight rear lot lines, unless otherwise approved by the Planning Director. Curvilinear rear lot lines with a minimum radius of 800 feet may be permitted.

8. Corner residential lots shall be designed to accommodate increased setback requirements of the Zoning Ordinance.

9. The street-side, rear corner of corner lots adjacent to key lots shall be angled to provide a 10-foot by 10-foot cutoff. A key lot is an interior lot, adjoining the rear lot line of a corner lot.

10. Single residential lots extending through the block and having frontage on two (2) parallel local streets are not permitted.

11. Backing of residential lots onto collector streets shall be prohibited unless the Planning Director determines it is necessary to provide for separation of residential development from the collector street or where expressly permitted in accordance with the City Code.

D. **Easements.**

1. The width, location, and purpose of all easements shall be shown on all plats.

2. Utility easements shall be located to the front of lots where practicable.

3. For lots facing on curvilinear streets, utility easements shall consist of a curved line parallel to the front property line and a series of straight-line segments or a curved line parallel to the rear property lines as may be required to complete an existing easement system.

4. Where a stream or drainage course abuts or crosses a tract, lot, or parcel of land, dedication of a drainage easement with sufficient width to permit widening, deepening, relocating, protecting, or maintaining of the water course is required.

5. Land within a major drainage, flood, or transmission easement shall not be counted towards the minimum required lot area unless the lot exceeds one-half acre in area.

E. **Streets.** All public and private streets and alleys shall comply with the City of Mesa Standard Details and Specifications, the Engineering and Design Standards Manual, and the following standards:

1. ***Street Frontage.*** Every lot shall have frontage on a dedicated public street unless the lot is a unit in a condominium subdivision, or the lot has been approved to have frontage on a private street. Street frontage is defined as the linear distance that a lot, parcel, or development site abuts a public or private street, measured along the property line that directly borders the street right-of-way.

2. ***Coordination of Streets.***

   a. Collector and local streets shall connect with surrounding streets where necessary to allow access for emergency vehicles and movement of traffic.

   b. Connections will not be permitted where the effect would be to encourage the use of such streets by cut-through traffic.

   c. When connections to surrounding streets are required by the City, public right-of-way shall be dedicated to the City and streets developed to paved, existing rights-of-way.

   d. The City may require temporary turn-arounds to be constructed between development phases. Temporary turn-arounds shall comply with the Engineering and Design Standards Manual.

   e. *Pedestrian/Bicycle Ways.*

      i. Sidewalk widths up to 12 feet may be required for access to schools, playgrounds, shopping centers, community facilities, or along street corridors for pedestrian/bicycle enhancements.

      ii. Pedestrian/bicycle ways may also be used for utility and drainage purposes and must be noted on the plat and approved by the Engineering Department.

3. ***Street Design.***

   a. Streets shall be arranged in relation to existing topography to produce lots of maximum utility, streets of reasonable gradient, and to facilitate adequate drainage.

   b. Where a proposed land division abuts or contains an existing or proposed arterial street, freeway, or expressway, the City may require frontage streets or reverse frontage with nonaccess easements along the arterial street or highway. The City may place additional requirements on these land divisions to protect residential properties from the nuisance and hazard of high-volume traffic and to preserve the traffic function of the arterial route, freeway, or expressway.

   c. Where a land division abuts or contains a railroad right-of-way, limited access highway, irrigation canal, or is adjacent to a commercial or industrial land use, the City may require a street to provide appropriate access and use of the intervening land. The required distance and design shall take into account factors such as approach grades, drainage, bridges, or future grade separations.

   d. *Half-streets.*

      i. Half-streets are prohibited except where required to provide right-of-way to complete an existing street pattern.

      ii. Where a half-street is necessary, additional right-of-way and street improvements may be required.

      iii. Where a platted half-street is adjacent to a proposed land division, the remaining half-street must be platted within the proposed land division.

   e. All street intersections shall be designed to meet minimum sight distance visibility requirements per the Engineering and Design Standards Manual.

4. ***Private Streets.***

a. Private streets shall conform to the same design standards as public streets.

b. Where site conditions necessitate unique design solutions, modifications may be approved by the City Engineer and City Traffic Engineer.

c. Where private streets are approved, the plat, deed restrictions, and the homeowners' association by-laws shall contain statements that the streets:

i. Are declared private;

ii. Are subject to a public utility and facilities easement (PUFE) authorizing access to said utility; and

iii. Will remain the permanent responsibility of the homeowners' association.

5. ***Street Naming.***

a. Established public street names shall be assigned to new streets that share a common alignment with existing streets within Mesa's corporate limits in accordance with the City's Address and Street Name Assignment Policy.

b. New street names should not duplicate, in whole or in part, or be confused with existing names. New street names are subject to final approval by the City.

c. *Private Streets.*

i. Private streets shall be assigned names in accordance with the City of Mesa Address and Street Name Assignment Policy.

ii. Private drives and aisles in Manufactured Home and Recreational Vehicle Subdivisions, or townhome or condominium subdivisions shall not be named or numbered.

(1) The subdivision will receive a single master address based on the public street on which it fronts.

(2) Lots, buildings, and dwelling units within the subdivision will be assigned lot numbers, unit numbers, and building numbers by the City staff for mail delivery, emergency, or other service needs.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-5: PUBLIC IMPROVEMENTS

The City Engineer is delegated authority to develop and apply engineering standards, specifications, and procedures for the design and construction of public improvements in alignment with the objectives of this Section that are necessary or appropriate to protect the public health, safety, and welfare.

A. **Responsibility.**

1. The developer is responsible for construction of all utility systems needed as a direct result of the development, such as wastewater, water, electric, phone, cable, gas, irrigation, and refuse.

2. The extent of public improvements required for a land division will be in accordance with City standards.

3. ***Oversize of Required Public Improvements.***

a. The developer may be required to oversize public improvements to ensure that the City of Mesa's public improvement standards for transportation, utility service, and infrastructure are maintained.

b. If requested the City may participate in the increased costs of oversize improvements through a "City Share" agreement, where applicable.

c. The City's commitment to participate in increased costs for improvements for oversized improvements will be formalized in a development agreement and recorded with the Maricopa County Recorder's Officer.

B. **Engineering Plans.**

1. A complete set of engineering plans for construction of all required improvements shall be prepared by an engineer registered in Arizona in conjunction with the Final Plat or Minor Plat.

2. No plat will be recorded until the engineering plans are approved by the City.

C. **Required Improvements.**

1. ***Streets and Alleys.***

a. All streets and alleys within a land division, including perimeter streets and alleys or half-streets and partial alleys, shall be paved and include concrete curbs installed to lines, grades, and dimensions approved by the City Engineer and in conformance with City standards.

b. Dead-end streets serving more than four (4) lots shall have a graded and surfaced turn-around.

c. When improvement of a collector or arterial street is required, the City will pay for such extra width paving as may be deemed appropriate by the City.

2. ***Sidewalks.*** Concrete sidewalks shall be constructed along both sides of all streets within the land division and along one side of perimeter streets to a width and to lines and grades approved by the City Engineer and in conformance with City standards.

3. ***Water and Sewer Lines and Services.***

a. Every lot within a development shall be served by a water supply system and sewer disposal system that will accommodate the reasonable needs of the principal use or development and that complies with all applicable health regulations.

b. Water and sewer lines shall be installed to lines and grades, and of such sizes and lengths as approved by the City Engineer and in conformance with City standards.

c. Water and sewer service lines shall be installed for each lot at locations approved by the City prior to paving the street and alleys.

d. Service stubs to platted lots and tracts for underground utilities shall be placed at such length and size so no disturbance of street and utility improvements is necessary when future service connections are made.

e. Where it is necessary to extend a water or sewer main from an existing adequate main, the developer will be required to pay the full cost of the line extension.

i. The City may participate in the oversize cost that may formalized in an agreement that may include a development agreement.

ii. The City may enter into a "Utility Buy-in Program, Private Line Agreement" with the developer. A private line agreement requires subsequent users to pay a share of the cost of the line extension when they take service from the line extension, if the subsequent user takes service during the term of the agreement.

4. ***Fire Hydrants.*** Fire hydrants shall be installed within and along perimeter streets, at locations and to lines and grades approved by the City Engineer and Fire Department and in conformance with City standards.

5. ***Gas.*** Gas service may be furnished according to current available supplies as determined by the City or other franchised supplier for that area.

6. ***Irrigation Lines and Ditches.*** All irrigation and other ditches within the land division or within perimeter half-streets, alleys, or easements shall be titled or abandoned in accordance with plans and specifications approved by the City Engineer and/or the respective irrigation district.

7. ***Storm Water Retention.***

a. The subdivider shall make provisions for the retention and subsequent bleed off of all storm water in accordance with plans approved by the City Engineer and in conformance with City standards.

i. The plans shall show the type, extent, location, and capacity of existing and proposed drainage and retention.

ii. Complete hydrology and hydraulic design computations shall accompany the plans and be approved prior to the recordation of the Final Plat or Minor Plat.

b. *Retention Basins.*

i. Public retention basins are encouraged to provide additional land area (up to 25% of the basin size) above the minimum land area calculated to retain their specified volume of water to help ensure that public basins provide usable "flat" areas for recreational purposes. The design, amount, and location of the additional area provided should be considered in the initial design of the project. The need for additional open space and the design of the basin will be reviewed by City staff on a project-by-project basis to help ensure adequate recreational facilities are provided to serve the needs of the future residents of the proposed land division.

ii. Multiple small retention basins are not permitted for either public or private developments unless approved by the City Engineer and in conformance with City standards.

iii. Upon completion of an approved maintenance period for a public retention basin that will be maintained by the City, the developer shall provide, at no cost to the City, a clear title to the public retention basin.

iv. Once constructed by the developer and approved by the City, the retention facilities shall not be modified unless such modification is approved by the City Engineer.

8. ***Streetlights.*** Streetlights shall be installed along all streets within the land division and along all perimeter streets developed in conjunction with the land division.

a. Streetlights shall be LED (Light Emitting Diode) and must be installed by the developer in accordance with plans approved by the City and in conformance with the City Engineering and Design Standards Manual and Streetlight Technical Manual.

b. Streetlight illumination levels shall comply with the streetlight lumen level and City Engineering and Design Standards Manual and Streetlight Technical Manual. The streetlight lumen level is the standard lumen lighting levels of a streetlight required by Roadway Lighting ANSI/IES RP-8. LED lights shall have a correlated color temperature (degrees Kelvin) rating as specified in the City Engineering and Design Standards Manual and Streetlight Technical Manual.

c. *Adaptive Lighting.* Adaptive lighting consists of lighting with the ability to automatically adjust light level and spectral content based on environmental conditions in order to optimize space, human, and building performance. Public streetlights may utilize adaptive lighting and may be dimmed in accordance with City Engineering and Design Standards, which shall allow street light power levels to be reduced as follows:

i. To as low as 25% of maximum power level on arterial streets in lighting Zone 1, as identified in the Street Light Master Plan, a copy of which is on file with the City Transportation Department.

ii. As low as 45% of maximum power level on all other areas of, and streets within, the City.

d. *Mesa Proving Grounds (Eastmark).* To allow flexibility in lighting design to create a variety of unique neighborhoods and environments across the Mesa Proving Grounds Project, streetlighting on public local streets within the Mesa Proving Grounds, located in the area north of Williams Field Road, west of Signal Butte Road, south of Elliot Road and east of Ellsworth Road, shall be provided as specified below:

i. In land use groups V-Village and D-District where continuous sidewalk and landscape/hardscape lighting are provided, and in land use groups OS-Open Space, CS Civic Space, E-Estate, R-Retreat and in service lanes irrespective of sidewalk and landscape/hardscape lighting, streetlighting shall be provided at locations specified below to the light level required by the City of Mesa Engineering and Design Standards:

(1) At all public street intersections and all locations where private commercial driveways with heavy nighttime use, as determined by the City Traffic Engineer, multi-family driveways serving 20 or more units, or service lanes intersect a public street.

(2) At all marked and unmarked pedestrian crosswalks.

(3) At all marked and unmarked pedestrian, bicycle, equestrian or multi-use pathway crossings.

(4) At the end of a cul-de-sac or hammerhead.

(5) At all driveway entrances to schools or civic buildings.

(6) Continuously along streets where adjacent major nighttime gathering locations are brightly lit and there is no fence or other physical barrier between the street and the outdoor facility that limits pedestrian access to specific crossing points, as determined by the City Traffic Engineer.

(7) At other locations specified by the City based on roadway design characteristics, land use, or anticipated public use.

(8) In service lanes, additional privately owned and maintained lighting shall be provided as specified at the Development Unit Plan level.

ii. In all other land use groups continuous streetlighting shall be provided in accordance with the City of Mesa Engineering and Design Standards.

e. *Morrison Ranch.* In order to provide for creation of a unique neighborhood environment based on the agricultural heritage of the southeast valley and to provide consistency throughout a 2,000-acre master planned community on the former Morrison Ranch properties, streetlighting on public local streets within the area south of Guadalupe Road, north of the power line easement approximately one-half (½) mile south of Guadalupe Road, west of Sossaman Road, and east of the East Maricopa Floodway shall be provided as specified below:

i. A minimum of one (1) streetlight shall be placed at each intersection and at the end of each cul-de-sac that is more than 200 feet long.

ii. A minimum of one (1) streetlight shall be placed at each marked and unmarked pedestrian crosswalk, and at each marked and unmarked pedestrian, bicycle, equestrian or multi-use pathway crossing unless such crosswalk or pathway crossing will be lighted by a streetlight at an intersection pursuant to Subsection (e)(i) above.

iii. On street sections longer than 400 feet, streetlights shall be placed at a maximum spacing of one (1) per every 400 feet.

iv. Streetlights may consist of decorative poles and decorative post top mounted fixtures as approved by the Transportation Department Director, with a typical mounting height of approximately 16 feet, but in no case lower than 16 feet or higher than 25 feet.

v. Continuous lighting along sections of streets adjacent to school sites, public parks, or activity centers shall be provided in accordance with the City of Mesa Engineering and Design Standards.

f. *Pacific Proving Ground North (Cadence).* In order to provide for creation of a unique neighborhood environment based on early American neighborhood character throughout the 484-acre Pacific Proving Ground North development, streetlighting on public local streets within the area south of Ray Road, and east of Ellsworth Road shall be provided as specified below:

i. All local public street intersections shall be illuminated per the City standards.

ii. One (1) light shall be installed at each elbow intersection.

iii. Lights shall be installed at all marked or un-marked pedestrian, bicycle, equestrian or multi-use pathway street crossings (crosswalks) to meet City light level standards.

iv. One (1) light shall be installed at all public driveway entrances to schools.

v. Continuous lighting along sections of streets adjacent to school sites, parks, or activity centers shall be provided in accordance the City of Mesa engineering and design standards.

vi. One (1) light shall be installed at the end of each cul-de-sac that is longer than 200 feet as measured from the centerline of the intersection at the beginning of the cul-de-sac to the face of curb at the farthest point of the cul-de-sac.

vii. Streetlights may be decorative, post top style fixtures, as approved by the Transportation Department Director to meet the theme of the community. Light source shall be LED.

viii. Streetlights will have an approximate 15-foot to 25-foot mounting height.

g. *Mulberry.* In order to provide for creation of a unique neighborhood environment based on early American neighborhood character throughout the 172.5-acre Mulberry Development located north of Guadalupe Road and west of Signal Butte Road, street lighting on public local streets within phases one, two, three and four of Mulberry shall be provided as specified below:

i. All local public street intersections shall be illuminated per the City standards.

ii. One (1) light shall be installed at each elbow intersection.

iii. Lights shall be installed at all marked or un-marked pedestrian, bicycle, equestrian or multi-use pathway street crossings (crosswalks) to meet city light level standards.

iv. One (1) light shall be installed at all public driveway entrances to schools.

v. Continuous lighting along sections of streets adjacent to school sites, parks, or activity centers shall be provided in accordance with the City of Mesa engineering and design standards.

vi. One (1) light shall be installed at the end of each cul-de-sac that is longer than 200 feet as measured from the centerline of the intersection at the beginning of the cul-de-sac to the face of curb at the farthest point of the cul-de-sac.

9. ***Traffic Control Devices.***

a. Traffic control devices shall be provided or existing control devices shall be modified in conjunction with the development in accordance with designs approved by the Development Services Department Director, where required in accordance with the Mesa Transportation Department and City Traffic Engineer.

b. The Transportation Department may defer the installation of required traffic control devices. When the installation of required traffic control devices is deferred:

i. The developer shall pay the City an in-lieu payment for the deferral of the actual design, installation, and/or construction of the devices.

ii. This in-lieu payment shall be based upon a cost estimate prepared by a professionally registered engineer and approved by the City of Mesa.

iii. The in-lieu payment cost estimate shall include all design costs, labor and materials costs, plus 20% for future contingency costs.

iv. All in-lieu payments shall be remitted to the City of Mesa as a condition of and in conjunction with the issuance of any on-site construction permits and/or off-site rights-of-way permits associated with the development.

10. ***Street Name Signs.*** Street name signs shall be placed in all street intersections. The developer shall install signposts and signs per Mesa Standard Details with designs approved by the City Traffic Engineer.

11. ***Survey Monuments.***

a. Survey monuments conforming to City standards, as established in the City of Mesa Engineering and Design Standards Manual, shall be installed at all corners, angle points, and points of curves and at all street intersections for streets within and around the perimeter of the land division and at such other locations as may be required by the City Engineer.

b. Re-established section and quarter section monuments shall be as prescribed in A.R.S. § 33-103 and a corner record filed with the Maricopa County Recorder per A.R.S. § 33-106.

c. After all improvements are installed, the developer's registered land surveyor shall verify and reset, if necessary, the location of all monuments. The registered land surveyor shall also record with the Maricopa County Recorder a record of survey, per Arizona Land Boundary minimum standards as adopted by the Arizona Board of Technical Registration in 2002, that shows the location and type of all monuments set or found with complete dimensions of all lots, tracts and parcels established. In the case of a recorded subdivision plat, no new parcels will be created without obtaining approval from the City. A copy of the recorded record of survey shall be submitted to the City prior to the issuance of any certificates of occupancy.

12. ***Parkway Landscaping.*** Landscaping located in the public right-of-way between the street paving and the right-of-way limit line.

a. Parkway areas along arterial streets and other streets, as deemed necessary by the City Engineer, shall be landscaped in accordance with approved plans and standards set by the City Engineer.

b. A statement shall be contained in both the deed restrictions and the owners' association by-laws that all landscaping, including that within the public right-of-way adjacent to the site, shall remain the responsibility of the owners' association to maintain in perpetuity.

13. ***Underground Utilities.***

a. Electric lines and communication lines shall be constructed underground as required by the Arizona Corporation Commission.

b. City ordinance also requires video services to utilize a common trench for undergrounding their facilities in new developments, and the developer must provide backfill under the same conditions as are extended to other trench users (e.g., electric, telephone, and communications).

D. **Construction and Inspection.**

1. All improvements and construction of improvements in the public right-of-way or in public easements shall be reviewed, inspected, and approved by the City Engineer.

a. Construction shall not commence until a permit is issued for such construction.

b. Work shall not be discontinued or suspended unless first approved by the City Engineer. Work will not be resumed prior to notification and approval of the Engineering Department.

2. All underground utilities to be installed in streets and alleys shall be constructed, inspected, and approved prior to the surfacing of such streets and alleys.

3. ***Construction Certification.***

a. Upon completion of development, the developer's engineer shall provide as-built certification to the City Engineering Inspector that all required improvements in dedicated City rights-of-way or public utility easements were constructed according to approved plans and conform to the City's Engineering and Design Standards Manual.

b. The developer's engineer or surveyor shall certify the as-built volume of all retention facilities.

c. All certifications shall be signed by the engineer or surveyor and stamped with a professional seal.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-6: DESERT UPLANDS DEVELOPMENT STANDARDS

A. **Purpose and Intent.** The purpose of these standards is to minimize hillside disturbance and encourage preservation of the natural character and aesthetic value of the desert within the Desert Uplands Area by allowing the flexibility necessary to produce unique, environmentally sensitive projects. It is the intent of these standards to encourage development of land divisions with a distinctive southwest desert design theme. The requirements of this Section apply only to the Desert Uplands Area as depicted in Figure 1.

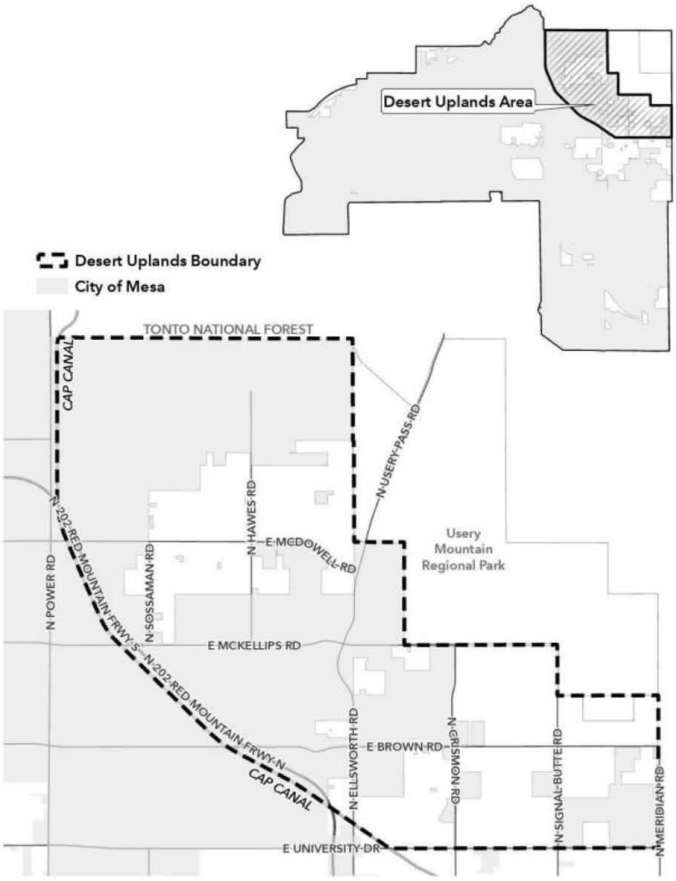


FIGURE 1: DESERT UPLANDS AREA MAP

B. **Applicability.**

1. Current City design standards may not be applicable to desert preservation-oriented development.

2. Due to the anticipated vehicular and pedestrian volumes normally associated with higher residential densities, developments within the RS-15 zone and higher-density residential and nonresidential uses shall generally comply with present City of Mesa ordinance requirements.

3. Standard City requirements for land division design, stormwater retention, right-of-way, pavement width, and street design shall apply except in the following areas where alternatives may be permitted to maintain the natural desert character of the area.

4. PADs and nonresidential developments will be reviewed at the time of zoning approval or building permit application review for compliance with applicable Desert Uplands Standards and for a southwestern design theme.

5. In lower-density residential areas (RS-35 and lower), development standards similar to those for suburban areas may be approved.

6. Prior to any development, a grading permit shall be obtained in accordance with the Mesa City Code.

C. **Local Streets.**

1. Local street standards may be modified to encourage better adjustment to the topography of the area.

2. Existing significant topographical features, such as washes, hillsides, boulders, and rock outcroppings, and established stands of native vegetation which cannot be revegetated may warrant the approval of alternative engineering designs. Modifications will be considered on an individual basis, with approval by the Mesa Planning Director, City Engineer, and City Traffic Engineer.

D. **Requirements and Design Alternatives.** The following are requirements and design alternatives for street construction in the Desert Uplands Area:

1. ***Local Residential Streets - Public.*** Table 9-6-6.D.1 below specifies the local residential public street standards for each residential zoning district.

Table 9-6-6.D.1: Local Residential Streets - Public

DIST.	LOT SIZE SF	R.O.W.	CL TO BC	PARK-ING	CURB	SIDEWALK	WATER MAIN	STREETLIGHT
RS-6 to RS-9	6,000+ to 9,000+	53'	17.5'	Both Sides	2' Roll	5' Width, Detached 5'*	1' Behind Curb	4' Behind Curb
RS-15	15,000+	47'	14.5'	One Side Only	2' Roll	5' Width, Detached 5'*	1' Behind Curb	4' Behind Curb
RS-35	35,000+	43'	12.5'	None	2' Roll	5' Width, Attached	1' Behind Curb	6' Behind Curb
RS-43 to RS-90	43,560+	30'	12.0'	None	3' Ribbon	None	1' Behind Curb	None

*Landscaping shall consist of trees with limited canopies and shrubs selected from the Preferred Desert Uplands Plant List in accordance with Table 9-6-6.D.5 of this Section. Fifty percent (50%) of the trees are to be 24-inch box (new or salvage), within the five (5) foot landscape strip between the curb and sidewalk.

**Certain streets may have a reduced or no streetlighting requirement pursuant to Section 9-6-6(F).

2. Homeowners' associations shall be responsible for maintenance of landscaping between the curb and sidewalk. To avoid damage to landscaping, the covenants, conditions, and restrictions are to require garbage/recycling barrels to be placed in the street adjacent to the curb, not in the landscaped area.

3. Where topographical conditions warrant, cul-de-sac lengths in excess of 400 feet may be approved by the City Engineer if an improved turning radius of 55 feet is provided to facilitate the turning radius of emergency vehicles. In such situations, however, the Fire Department may require installation of individual protection systems where appropriate. Cul-de-sacs should be designed to serve 12 to 14 homes maximum, regardless of length.

4. ***Radius and Speed Limits.***

a. With approval of the City Traffic Engineer and City Engineer, the minimum centerline radius may be reduced to 200 feet and the minimum curve length reduced to 75 feet with a 25-mile-per-hour (mph) street design.

b. Local street intersections may vary from 90° on short street segments, at cul-de-sacs, or at the termination of streets where the traffic speeds and volumes are lower. At "tee" intersections, the intersection tangent length may be reduced to 150 feet minimum.

c. For 25 mph streets terminating at the "tee" intersection, the center line radius shall be no less than a 200-foot radius.

d. For 30 mph streets terminating at the "tee" intersection, the center line radius shall be not less than a 300-foot center line radius.

5. ***Landscaping.***

a. Landscape medians are recommended at subdivision entrances and adjacent to open spaces.

b. Landscape islands are recommended within cul-de-sacs.

c. Landscape plans for the medians and islands shall utilize plants salvaged from the site or selected from the Preferred Desert Uplands Plant List Table 9-6-6.D.5.

d. Medians and islands cannot obstruct access to lots, impair visibility at sight triangles, or obstruct drainage, and are to be located pursuant to Fire Department and Development Services Department access requirements.

e. Boulders and trees, including large-diameter trees, may be placed in large-width median islands as design elements if berming is provided for protection (see Figure 2).

f. Integral colored concrete and alternative sidewalk and pavement materials are encouraged subject to City review and approval.

g. Homeowners' associations are to own the medians and islands, and be responsible for landscape, special concrete, and pavement section maintenance.

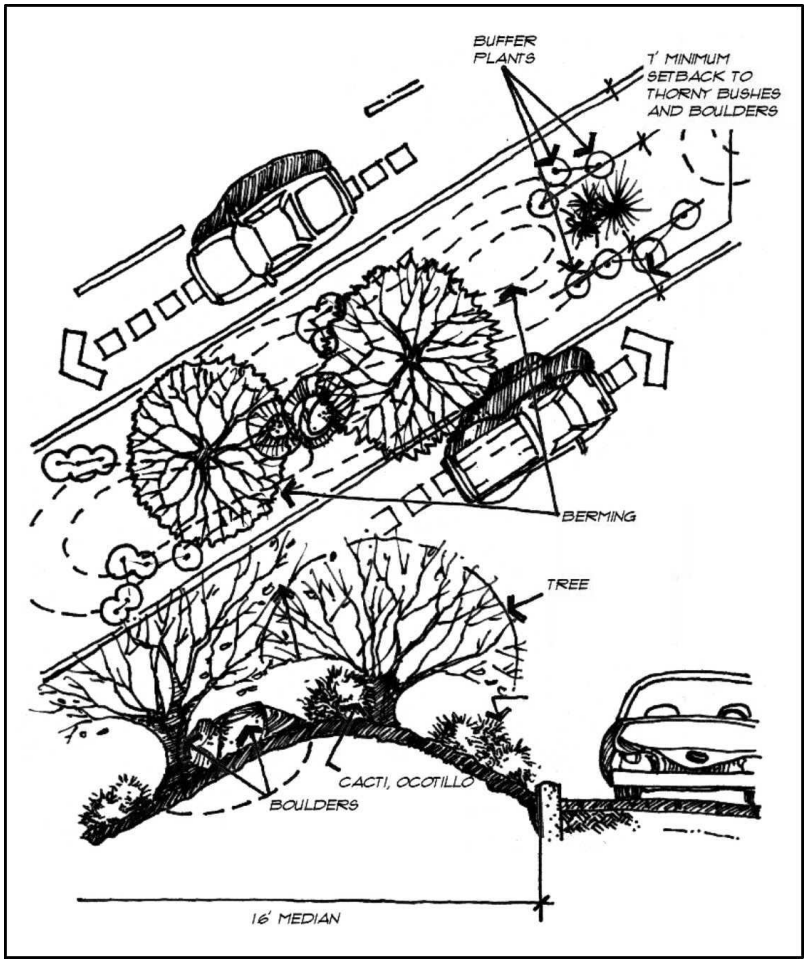


FIGURE 2: BOULDERS, TREES, AND THORNY PLANTS IN LARGE WIDTH MEDIANS

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
PREFERRED DESERT UPLANDS PLANT LIST RECOMMENDED LOCAL SONORAN DESERT NATIVE PLANTS	
PREFERRED TREES	
Acacia Constricta	Whitethorn Acacia
Acacia Greggii	Catclaw Acacia
Acacia Farnesiana (Syn. Acacia Smallii and Syn. Acacia Minuta)	Sweet Acacia
Bursera Microphylla	Elephant Tree
Canotia Holacantha	Crucifixion Thorn
Celtis Pallida	Desert Hackberry

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Celtis Reticulata	Netleaf Hackberry
Parkinsonia Florida	Blue Palo Verde
Parkinsonia Microphylla	Foothill Palo Verde
Chilopsis Linearis	Desert Willow
Olyneya Tesota	Ironwood
Prosopis Velutina (Syn. Prosophis Juliflora)	Velvet Mesquite
Prosopis Pubescens	Screwbean Mesquite
Quercus Turbinella	Scrub Oak
Frangula Californica (Syn. Rhamnus Californica)	California Buckthorn
Rhamnus Crocea	Hollyleaf Buckthorn
Rhus Ovata	Sugar Sumac
Vauquelinia Californica	Arizona Rosewood
PREFERRED SHRUBS	
Abutilon Parlmeri	Indian Mallow
Acacia Angustissima	Fern Acacia
Acacia Greggii	Catclaw Acacia
Aloysia Wrightii	Wright's Bee Brush
Ambrosia Ambrosioides	Canyon Ragweed
Ambrosia Deltoidea	Triangle Leaf Bursage
Ambrosia Dumosa	White Bursage
Anisacanthus Thurberi	Desert Honeysuckle
Aquilegia Chrysantha	Golden Columbine
Arctostaphylos Pungens	Pointleaf Manzanita
Asclepias Linaria	Pineleaf Milkweed
Asclepias Subulata	Desert Milkweed
Atriplex Canescens	Fourwing Saltbush
Baccharis Glutinosa	Seep-Willow
Bebbia Juncea	Sweet Bush
Berberis Haemotocarpa	Red Barberry
Brickellia Coulteri	Coulter's Brickellia
Calliandra Eriophylla	Fairy Duster
Celtis Pallida	Desert Hackberry
Cercocarpus Montanus	Mountain Mahogany
Coursetia Glandulosa	Baby Bonnets
Dodonaea Viscosa	Hopbush
Ephedra Viridis	Joint-Fire/Mormon Tea
Ericameria Laricifolia	Turpentine Bush
Eriogonum Fasciculatum	Flattop Buckwheat
Eriogonum Wrightii	Wright Buckwheat
Fouquieria Splendens	Ocotillo

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Gutierrezia Sarothrae	Snakeweed
Hibiscus Coulteri	Desert Rose Mallow
Hyptis Emoryi	Desert Lavender
Justicia Californica	Chuparosa
Krameria Grayi	White Ratany
Larrea Tridentata	Creosote Bush
Lotus Rigidus	Deer-Vetch
Lycium Andersonii	Anderson Wolfberry (Thornbush)
Lycium Exsertum	Littleleaf Wolfberry
Lycium Fremontii	Fremont Wolfberry
Mimosa Biuncifera	Wait-A-Minute Bush
Nolina Microcarpa	Beargrass
Plumbago Scandens	Plumbago
Rhus Trilobata	Three Leaf Sumac
Simmondsia Chinensis	Jojoba
Trixis Californica	Trixis
Viguiera Deltoidea Var. Parishii	Golden Eye
Zizyphus Obtusifolia	Gray Thorn
PREFFERED CACTI, SUCCULENTS, AND ACCENT PLANTS	
Agave Toumeyana	Toumey Agave
Agave Chrysantha	Golden-Flowered Agave
Carnegiea Gigantea	Saguaro
Dasylirion Wheeleri	Desert Spoon/Sotol
Echinocereus Engelmannii	Hedgehodg Cactus
Ferocactus Cylindraceus	Compass Barrel Cactus
Ferocactus Wislizenii	Fishhook Barrel Cactus
Mammillaria Grahamii	Fishhook Pincushion Cactus
Opuntia Acanthocarpa	Buckhorn Cholla
Opuntia Bigelovii	Teddy Bear Cholla
Opuntia Fulgida	Chainfruit Cholla
Opuntia Leptocaulis	Desert Christmas Cactus
Opuntia Phaecantha	Prickly Pear
Yucca Baccata	Banana Yucca
Yucca Elata	Soaptree Yucca
PREFERRED VINES	
Cucurbita Digitata	Coyote Gourd Vine
Janusia Gracilis	Slender Janusia
PREFERRED ANNUALS, PERENNIALS, GROUNDCOVERS, WILDFLOWERS	
Argemone Pleiacantha	Prickly Poppy
Artemisia Ludoviciana	Prairie Sagebrush

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Baileya Multiradiata	Desert Marigold
Caochortus Kennedyi	Desert Mariposa Lily
Chenactis Stevioides	Esteve's Pincushion
Datura Wrightii	Sacred Datura
Delphinium Parishii	Desert Larkspur
Dichelostemma Pulchellum	Blue Dicks
Eriastrum Diffusum	Woolstar/Prickly Stars
Erigeron Divergens	Native Fleabane
Eschscholzia Californica	California Poppy
Eschscholzia Mexicana	Mexican Gold Poppy
Hibiscus Denadatus	Paleface Rose-Mallow
Lasthenia Californica	Goldfields
Layia Glandulosa	White Tidy Tips
Lesquerella Gordonii	Bladderpod Mustard
Lesquerrella Purpurea	Purple Bladderpod
Linum Lewisii	Blue Flax
Lupinus Sparsiflorus	Desert Lupine
Machaeranthera Asteroids	Purple Aster
Machaeranthera Gracilis	Yellow Splender Aster
Melampodium Leucanthum	Blackfoot Daisy
Mentzelia Involucrata	Blazing Star
Mimulus Cardinals	Scarlet Monkey Flower
Mimulus Guttatus	Yellow Monkey Flower
Mirabilis Multiflora	Colorado Four O'clock
Oenothera Caespitosa	White Evening Primrose
Orthocarpus Purpurascens	Owl's Clover
Pectis Papposa	Chinchweed
Penstemon Barbatus	Scarlet Bugler
Penstemon Eatoni	Firecracker Penstemon
Penstemon Pseudospectabilis	Canyon Penstemon
Penstemon Subulatus	Beardtongue
Perityle Emoryi	Rock Daisy
Phacelia Campanularia	Desert Bluebells
Phacelia Crenulata	Scorpionweed
Phacelia Distans	Wild Heliotrope
Phlox Tenuifolia	Desert Phlox
Platystemon Californicus	Cream Cups
Proboscidea Parviflora	Devil's Claw
Psilostrophe Cooperi	Cooper's Paper Flower
Rafinesquia Neomexicana	Desert Chicory

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Salvia Columbariae	Chia
Senna Covesii	Desert Senna
Sphaeralcea Ambigua	Desert Globe Mallow
Stachys Coccinea	Texas Betony
Stephanomeria Pauciflora	Desert Straw
Thymophylla Pentachaeta	Golden Dogweed
Zauschneria Latifolia	Hummingbird Flower
PREFERRED GRASSES	
Aristida Purpurea	Purple Threeawn
Muhlenbergia Dumosa	Bamboo-Muhly
Muhlenbergia Rigens	Deer Grass
Bouteloua Curtipendula	Sideoats Grama
Muhlenbergia Porteri	Bush Muhly
ACCEPTABLE DESERT UPLANDS PLANT LIST ALLOWABLE DROUGHT-TOLERANT PLANTS - NOT NATIVE TO LOCAL AREA	
ACCEPTABLE TREES	
Acacia Abyssinica	Abyssinian Acacia
Acacia Aneura	Mulga
Acacia Cavenia	Caven's Acacia
Acacia Millefolia	Santa Rita Acacia/Milfoil Wattle
Acacia Pennatula	Fernleaf Acacia
Acacia Occidentalis	Sonoran Catclaw Acacia
Acacia Schaffneri	Twisted Acacia
Acacia Stenophylla	Shoestring Acacia
Acacia Willardiana	White Bark Acacia/Palo Blanco
Caesalpinia Cacalago	Cascalote
Caesalpinia Platyloba	Curly Paela
Cassia Leptophylla	Gold Medallion Tree
Condalia Globosa	Bitter Condalia
Dalea Spinosa	Smoke Tree
Ebenopsis Ebano	Texas Ebony
Havardia Pallens	Apes-Earring/Tenaza
Leucaena Retusa	Goldenball Lead Tree
Lysiloma Microphylla Var. Thornberi	Fern of the Desert
Parkinsonia (Syn. Cercidium) Hybrid 'Desert Museum' or other Selections	Hybrid Palo Verde
Parkinsonia Praecox	Palo Brea
Pithecellobium Mexicanum	Mexican Ebony
Prosopis Alba	Argentine Mesquite
Prosopis Chilensis	Chilean Mesquite

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Prosopis Glandulosa Var. Torreyana	Honey Mesquite
ACCEPTABLE SHRUBS	
Acacia Craspedocarpa	Leather Leaf Acacia
Acacia Rigens	Needle Wattle
Aloysia Gratissima Syn. Aloysia Lycioides	Bee Brush
Atriplex Hymenelytra	Desert Holly
Atriplex Lentiformis	Quail Brush
Atriplex Nummularia	Old Man Saltbush
Atriplex Polycarpa	Desert Saltbush
Atriplex Torreyi Var. Griffithsii	Griffith's Salt Bush
Baccharis Sarothroides	Desert Broom (Male)
Buddleja Marrubifolia	Woolly Butterfly Bush
Bursera Fagaroides	Fragrant Bursera
Caesalpinia Gilliesii	Yellow Bird of Paradise
Caesalpinia Mexicana	Mexican Bird of Paradise
Caesalpinia Pulcherrima	Red Bird of Paradise
Caesalpinia Pumila	Copper Bird of Paradise
Calliandra Californica	Red Fairy Duster
Cassia Goldmannii	Goldman's Cassia
Condalia Globosa	Bitter Condalia
Cordia Parvifolia	Littleleaf Cordia
Dalea Bicolor Var. Argyrea	Silver Dalea
Dalea Formosa	Feather Dalea
Dalea Puchra	Bush Dalea
Dalea Versicolor Var. Sessilis (Syn., Dalea Wislizeni)	Weeping Dalea
Eysenhardtia Orthocarpa	Kidneywood
Fallugia Paradoxa	Apache Plume
Forestiera Neomexicana	Desert Olive
Jtropha Cariophylla	Limber Bush
Justicia Candicans	Hummingbird Bush
Justicia Spicigera	Mexican Honeysuckle
Lantana	Lantana or Shrub Verbenas
Leucophyllum Frutescens	Texas Sage
Leucophyllum Laevigatum	Chihuahuan Sage
Lycium Berlandieri	Berlandier's Wolfberry
Lysiloma Candida	Palo Blanco
Maytenus Phyllanthoides	Mangle Dulce
Mimosa Dysocarpa	Velvet Pod Mimosa
Pillosporum Phillyraeoides	Weeping Pillosporum
Ruellia Californica	Ruellia

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Ruellia Peninsularis	Desert Ruellia
Salvia Farinacea	Mealy Cup Sage
Salvia Greggii	Autumn Sage
Salvia Chamaedryoides	Mexican Blue Sage
Senecio Salignus	Willow Leaf Groundsel
Senecio Aarizonicus	Arizona Groundsel
Senna Artemisioides	Feathery Cassia
Senna Biflora	Two-Flowered Cassia
Senna Candoleana	New Zealand Cassia
Senna Nemophila	Desert Cassia
Senna Phyllodinea	Silver-Leaf Cassia
Senna Purpusii	Baja California Senna
Senna Sturtii	Sturt's Cassia
Senna Wislezenii	Shrubby Cassia
Sophora Secundiflora	Texas Mountain Laurel
Tecoma Stans Var. Angustata	Arizona Yellow Bells
Tetracoccus Hallii	Halls' Tetracoccus
ACCEPTABLE CACTI, SUCCULENTS, AND ACCENT PLANTS	
Agave Arizonica	Arizona Agave
Agave Deserti	Desert Agave
Agave Species	Agave/Century Plants
Agave Murpheyi	Murphey Agave
Echinopsis Candicans	Argentine Giant
Hesperaloe Parviflora	Red Yucca
Opuntia Ficus-Indica	Indian Fig
Yucca Species	Yucca
ACCEPTABLE ANNUALS, PERENNIALS, GROUNDCOVERS, WILDFLOWERS	
Bahia Absinthifolia	Bahia
Swainsona Formosa	Sturt's Desert Pea
Dyssodia Pentachaeta	Golden Dyssodia
Erodium Texanum	Fillaree
Nolina Bigelovii	Bigelow Nolina
Penstemon Species	Penstemon
Plantago Insularis	Indian Wheat
Verbena Species	Verbena
Zinnia Acerosa	Desert Zinnia
PROHIBITED PLANT LIST	
Cedrus	Cedar
Chamaecyparis	False Cypress
Citrus	Citrus

Table 9-6-6.D.5 Desert Uplands Plant List	
BOTANICAL NAME	**COMMON NAME**
Cupressus	Cypress
Encelia Farinosa	Brittlebush
Encelia Frutescens	Green Brittlebush
Juniperus	Juniper
Nerium Oleander	Oleanders
Olea Europaea	Olive Trees
Palmae	All Palms
Pennisetum Setaceum	Fountain Grass
Pinus	All Pines
Tamarisk	Salt Cedar
Thevetia Species	Thevetia
NOTE: Protected Native Plants: The Arizona Department of Agriculture Plants Services Division has formulated a policy concerning protected native plants. A permit is required for the removal and transportation of protected native plants. All protected native plants shall be tagged by the Arizona Department of Agriculture.	

6. ***Street Grades.***

   a. Maximum street grades may be increased, provided adequate visibility and access for fire protection and refuse collection vehicles is maintained.

   b. Local street grades should not exceed 15%, and streets exceeding 12% should have a maximum length of 400 feet and must include vertical curve design considerations as detailed in the Engineering and Design Standards.

7. ***Exceptions require approval of the Traffic Engineer and City Engineer Restored Areas.***

   a. Where scarring occurs as a result of street or utility construction, revegetation and restoration shall be required of the subdivider.

   b. Restored areas shall be graded and landscaped to blend with the natural vegetation and terrain and stabilized to control erosion.

   c. Landscape plans for the areas to be restored shall utilize plants salvaged from the site or selected from the Preferred Desert Uplands Plant List Table 9-6-6.D.5.

   d. The plants shall be of the same species mix, and equivalent in size and density to the surrounding undisturbed area.

   e. Landscaping and stabilization shall occur concurrently with construction.

8. ***Grade Changes.***

   a. Grade changes that require retaining walls may be used only with the approval of the City Engineer.

   b. Where approved for use, vertical retaining walls shall have a maximum height of five (5) feet. For grade changes of more than five (5) feet, the use of multiple walls in a series of terraces is required (see Figure 3).

c. Each terrace shall have a four (4) foot minimum width and shall be landscaped (see Figure 3).

d. There shall be a four (4) foot landscaped strip between the top terrace and any freestanding enclosure wall used (see Figure 3).

e. The finished surfaces of retaining walls shall blend into the natural setting by such means as texturing and the use of earth tone coloring.

f. The use of native stone as a veneer is also possible.

9. ***Slopes 60° or less.***

a. Mortar-free stone retaining walls using irregularly shaped native boulders may be used, subject to structural and slope stability design considerations (see Figure 3).

b. Landscaping of the slope shall be provided to produce a more natural appearance (see Figure 3).

c. Modifications to these standards may be considered on an individual basis where unusual topographical conditions, parcel configurations, or other relevant factors are present.

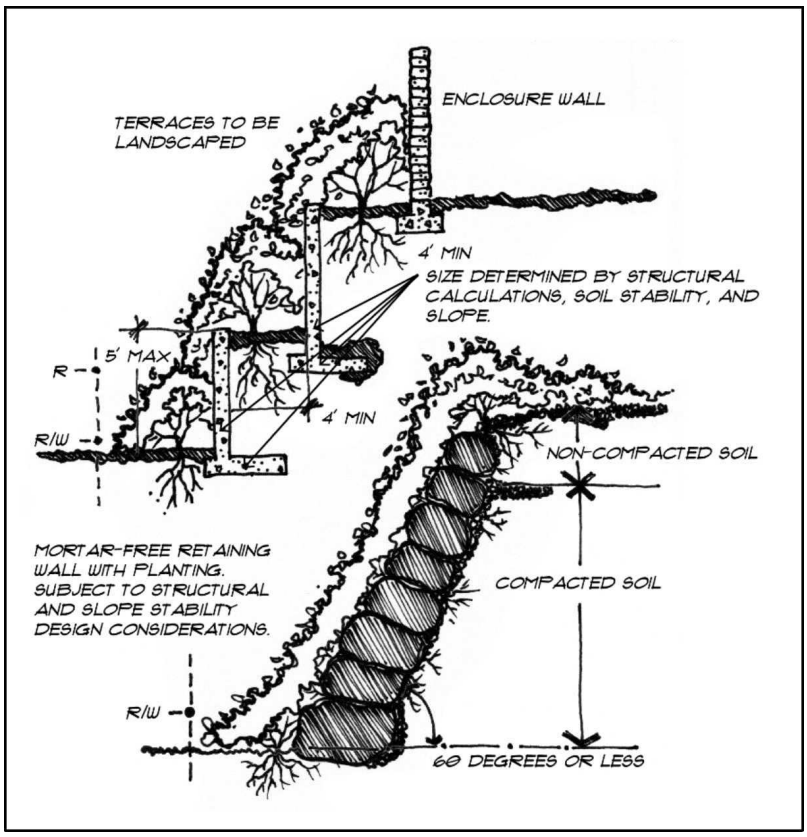


FIGURE 3: RETAINING WALL DESIGN

10. ***Excess Excavation Material.*** All excess excavated material shall be removed or incorporated as an integral part of the site development so that a natural look is maintained.

11. ***Low-Density Development Standards: One (1) Dwelling Unit Per Acre (RS-35) or Less.***

    a. Where drainageways cross streets, culverts shall be installed to convey 10-year frequency storm flows under the pavement, with higher-volume storm flows being allowed to flow over the pavement in dip sections (see Figure 4).

    b. For washes with low flows, deletion of the culvert may be permitted where a concrete dip section is provided when approved by the City Engineer (see Figure 4).

    c. With approval of the City Engineer, the use of three (3) foot to five (5) foot roadside drainage swales with appropriate erosion protection to provide a natural appearance will be permitted.

    d. The use of integral colored concrete for ribbon curbing is encouraged.



FIGURE 4: DRAINAGEWAY CROSSING - CULVERT AND DIP SECTION

E. **Collector Street - Public.**

1. Where no lot/home access is provided along a collector street, and the area served by the collector is not so large as to require a wider street, the collector street may be as follows: 80-foot right-of-way, 34-foot face-of-curb to face-of-curb, and six (6) foot sidewalks detached a minimum of nine (9) feet.

2. At intersections with major streets and adjacent to school sites, parks, or activity centers, the face-of-curb width shall be increased to a minimum width of 46 feet to accommodate additional/separate turn lanes. Requirements for additional street width are to be determined by the City Traffic Engineer.

F. **Streetlights.**

1. Full cutoff streetlight fixtures shall be required in the Desert Uplands Area.

2. Streetlighting in the Desert Uplands Area shall comply with the requirements and provisions of Section 9-6-5(C)(8), except as specified in Subsection (F) of this Section.

   a. Streetlights shall not be installed in medians except as may be approved by the Transportation Department Director after considering potential light pollution impacts on adjacent residential property.

   b. Mounting height shall be 35 feet to 40 feet.

3. On collector streets, as permitted under Subsection (E), street lighting shall use poles with a 30-foot or 35-foot maximum mounting height and an average 0.37 foot-candlelight level with a six-to-one (6:1) average-to-minimum ratio.

4. Lighting along the 46-foot-wide sections of these streets adjacent to school sites, parks, or activity centers shall comply with City standard illumination and spacing requirements for collector streets.

5. Streetlights on local streets shall be placed at all intersections and at the end of culs-de-sac that are more than 200 feet long except as specified in Subsection (F)(9) and Subsection (F)(10).

6. On straight sections of roadway, spacing between streetlights may not exceed 400 feet. However, other factors must also be evaluated; e.g., horizontal, and vertical alignment.

7. Topographical conditions may require additional lighting. Mounting height on local streets shall be 25 feet with a fixture that emits between 2,900 and 4,000 lumens.

8. Pull box spacing for streetlighting shall not exceed 200 feet.

9. ***Lighting.*** For the area north of the Hermosa Vista Drive alignment and east of Hawes Road and west of Usery Mountain Regional Park along public streets (inclusive of Hawes Road, but exclusive of the Hermosa Vista Drive alignment and Ellsworth Road), the following lighting standards apply:

   a. *Public Streetlights.* No street lights on public streets are required.

   b. *Subdivision Lighting.*

      i. The developer shall provide an area light fixture and pole at each entrance to a multi-unit subdivision.

      ii. The area light fixture and pole shall be installed outside of the City right-of-way or public utilities and facilities easement and shall be installed adjacent to the edge of the driveway approach.

      iii. The light pole shall be no less than eight (8) feet in height and no greater than 16 feet in height with a fixture that emits between 2,900 and 4,000 lumens and shall meet all applicable City standards.

iv. The area light fixture and pole shall be owned, operated and maintained by the owners of the property where the area light is installed. The City shall not be deemed to own, operate, maintain, or otherwise be responsible for such area light fixtures and poles.

10. Streetlighting on public collector and local streets located in the area north of McLellan Road, west of Ellsworth Road/92nd Street alignment, south of McKellips Road and east of a north/south line one-quarter (¼) mile west of Hawes Road, and for the area north of McKellips Road, west of Ellsworth Road/92nd Street alignment, south of Hermosa Vista Drive, and east of Hawes Road, shall be provided at locations specified below to the light level required by City standards as set forth in the City of Mesa Engineering and Design Standards:

a. At all public street intersections and all locations where private driveways intersect a public street.

b. At all marked and unmarked pedestrian crosswalks.

c. At all pedestrian crossing points adjacent to parks or other activity centers.

d. At all pedestrian, bike, equestrian, or joint use pathway crossings where pathway lighting is provided.

e. At locations adjacent to parks or other outdoor activity centers continuous streetlighting shall be provided where such locations provide lighting for nighttime use and there is no fence or other physical barrier between the street and park or outdoor facility that limits pedestrian access to specific crossing points.

f. At the end of a cul-de-sac.

G. **On-Site Street Name Signs (Public Streets).**

1. Street name signs and posts shall be standard (green reflectorized sign with white reflectorized lettering and a steel pole) unless the applicant receives approval of a modification from the City Traffic Engineer.

2. Any approval of nonstandard street signpost materials shall be conditional upon the development's homeowners' association assuming responsibility for the installation, future maintenance, and liability relating to the signs.

3. Nonstandard street name signposts which are installed and maintained by a homeowners' association shall have reflective letters and background.

H. **Walls and Fences.**

1. Perimeter subdivision walls shall be designed to reflect a southwestern design theme and be constructed to reflect changes in the topography (see Figure 5).

2. Perimeter subdivision walls shall be designed and constructed in a height and style which preserves desert vistas and environment to the extent possible. Perimeter walls along arterial or collector streets should not extend over 250 linear feet without a one (1) foot vertical or three (3) foot horizontal variation. Walls shall include clear ground-level openings no smaller than 18 inches high to permit wildlife passage.

3. The height of walls shall be measured from the original grade.

4. Walls or fences on individual lots which are visible from the street shall be designed to match the character and appearance of the home (see Figure 5).

5. The use of chain link as a permanent fencing material is prohibited in the Desert Uplands Area.

6. ***Low-Density Development Standards: One (1) Dwelling Unit Per Acre (RS-35) or Less.***

   a. As a means of preserving the natural desert character, views, wildlife corridors, and habitat, developers of low-density residential developments are encouraged to only utilize entry features and not utilize subdivision perimeter walls.

   b. In larger-lot developments, the developer shall confine fencing to the residential private activity areas on each lot, with the balance of the lot to remain open and unwalled (see Figure 5).

   c. Walls on individual lots shall be designed to match the character and appearance of the home (see Figure 5).

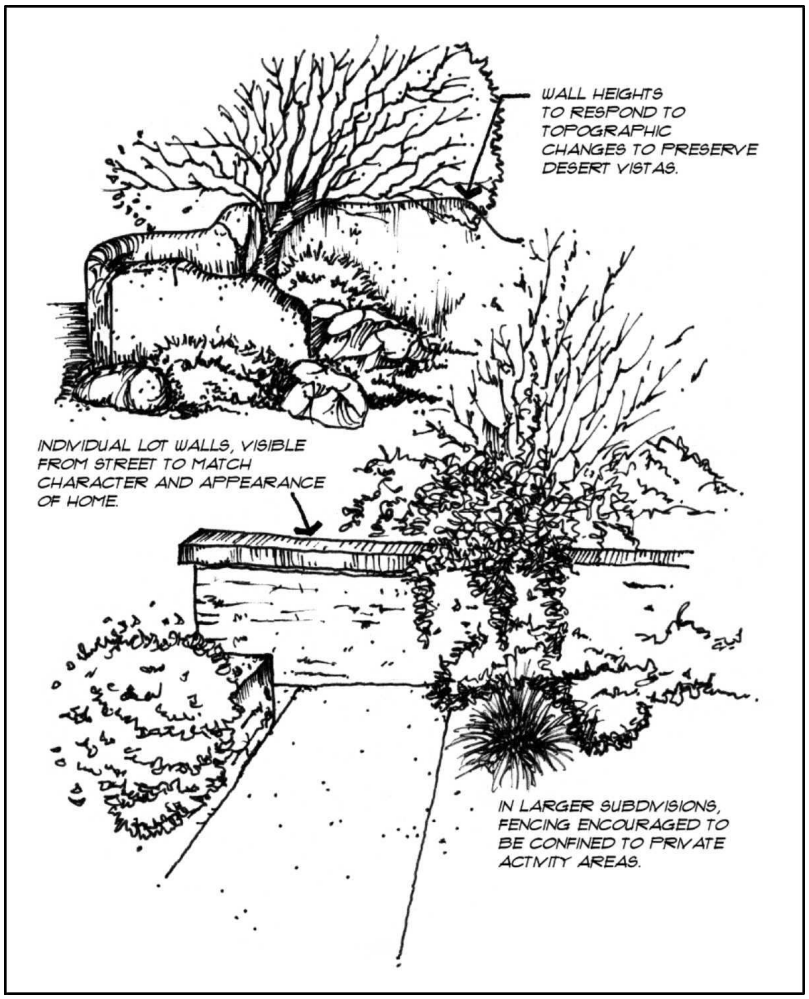


FIGURE 5: DESERT UPLANDS AREA PERIMETER WALLS

I. **Native Plant Preservation.** The Desert Uplands Area is an Upper Sonoran Desert community with unique plants, washes, and landforms which create its own identity and character. To preserve and maintain its unique character, proposed developments shall either retain desert landscaping or revegetate desert landscaping according to the following standards:

1. ***Retained Desert Landscaping.*** Natural, undisturbed open spaces, common areas, and washes which should be subject to no grading and no additional plant materials, except where stabilization of washes is needed to accommodate flows.

2. ***Revegetated Desert Landscaping.*** Reconstructed desert landscaping, including both retained and revegetated plant materials, shall be in accordance with the Preferred Desert Uplands Plant List in accordance with Table 9-6-6.D.5 of this Section, and are to be of the same species mix, and equivalent in size and density to the surrounding undisturbed area.

3. ***Plant Material.*** A minimum of 50% of the plant material used for common area, parkway, and median landscaping shall be selected from the Preferred Desert Uplands Plant List, and the

remainder selected from the Acceptable Desert Uplands Plant list. Developers are encouraged to select at least 90% of the plant material used for common area, parkway, and median landscaping from the Preferred Desert Uplands Plant List.

4. ***Turf.*** The use of turf is discouraged to retain the desert character and conserve water resources.

5. ***Front and Rear Private Yards/Gardens.*** Plant materials for front and rear private yards/gardens are left to the choice of the individual homeowners and their homeowners' association. Homeowners are encouraged to use plants from the Preferred Desert Uplands Plant List.

6. ***Cactus Substitution.*** Retained or transplanted cactus and ocotillo may be substituted to achieve up to 50% of the required number of trees to be planted in the street right-of-way.

7. ***Thorny Plants, Cactus, and Ocotillo.*** Thorny plants, cactus, and ocotillo shall:

   a. Maintain a minimum setback of seven (7) feet from sidewalks and/or vehicular roadways. Such plants will be allowed in a curbed median island, provided a minimum of three (3) feet is maintained from curbs as a clear zone (measured from the nearest part of the plant) (see Figures 2 and 6); and

   b. Have a minimum of three (3) buffer shrubs in front of such plants (pedestrian/street side) (see Figures 2 and 6). Examples of buffer shrubs are creosote, chuparosa, fairy duster, and desert lavender.

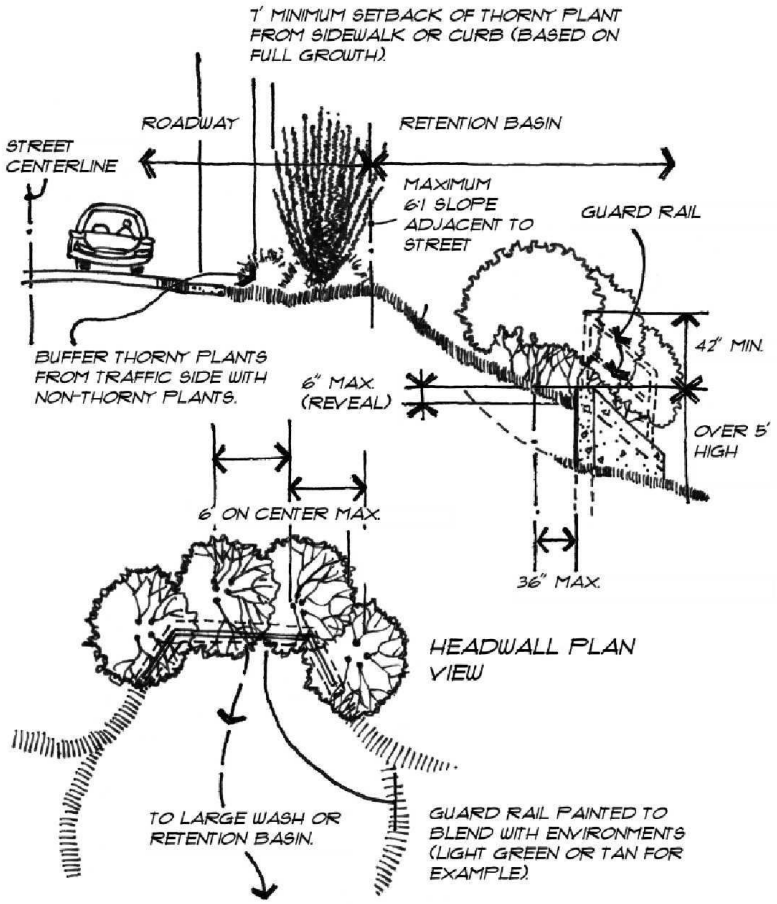


FIGURE 6: THORNY PLANT BUFFERING REQUIREMENTS

8. ***Re-established Vegetation.*** Vegetation shall be re-established by the developer on all graded areas and exposed cut and fill slopes. Desert grasses, shrubs, trees, and cacti from the Preferred Desert Uplands Plant List shall be used to prevent erosion and permit natural revegetation.

9. ***Landscaping Maintenance.***

   a. *Healthy Trees and Cacti to be Preserved.* Existing healthy trees (4" caliper and larger) and all healthy cacti shall be preserved in place where possible. When retention of trees and cacti is not possible due to lot sizes, location, or fire mitigation, removal and replanting on other areas of the site is required.

   b. *Dead or Dying Vegetation.*

      i. Dead or dying vegetation shall be removed and cleared from the site to reduce potential fire fuel and maintain a safe and healthy ecosystem.

ii. Transplanted native plants that die within one (1) year are to be replaced within 30 days of removal. Replacements are to be indigenous plant material selected from the Preferred Desert Uplands Plant List. A bubbler or emitter irrigation system shall be extended to new or transplanted plants.

iii. Vegetation that is required by an approved landscape plan shall be replaced within 30 days of removal by a species identified on the Desert Uplands Plant List.

c. *Vertical and Horizontal Separation Between Vegetation.* Vegetation should be pruned to maintain a five (5) foot clearance under tree canopies, and, where feasible, a 10-foot spacing between trees and shrubs.

d. *Invasive Species.* Regular inspections should be conducted, and any identified invasive plant species should be promptly removed to prevent their spread and maintain the health of native vegetation.

J. **Low-Density Lot Development Standards: One (1) Dwelling Unit Per Acre (RS-35) or Less.**

1. ***Building Envelope Requirements.*** All improvements shall be located within a building envelope, occupying not more than 50% of the total lot area. The building envelope is the specified area on a lot within which all areas of disturbance, including structures, driveways, walkways, patios, pools, walls, construction work access, grading, slopes, and riprap are located.

a. *Protective Fencing.*

i. A building envelope protective fencing permit shall be obtained prior to any plant removal or disturbance activities.

ii. The building envelope protective fencing shall be installed on the disturbance line as identified on the approved plans.

iii. The building envelope fence line shall be established and staked by an Arizona registered engineer or land surveyor.

iv. The fencing is to display appropriate warning signs posted every 100 linear feet in English and Spanish, indicating "Protected Area - Do Not Remove Fence."

v. A zoning inspection is required to ensure compliance with the fencing permit and shall occur prior to the issuance of the building/grading permit for the lot.

vi. The fencing and signage shall be maintained in place throughout the grading/construction process and shall only be removed after a final inspection is approved.

vii. Failure to maintain the fencing as permitted may result in stop work orders or other penalties as provided in this Chapter and Title 4 of this Code.

viii. The Planning Director may authorize the partial or total removal of the temporary fence to facilitate final grading, revegetation, and installation of site flat work or hardscape.

b. *Work Access Areas.*

i. To accommodate the redirection of existing drainage/washes around structures and to provide area for sufficient work access during construction, the maximum disturbed area may be increased, subject to plan approval, to 60% of the total lot area.

ii. All disturbed areas beyond the 50% building envelope shall be enclosed within the protective fencing during construction and shall be fully revegetated using plant material salvaged from the same lot, which, if necessary, may be supplemented with plants from the Preferred Desert Uplands Plant List.

iii. The revegetation plan shall provide plant materials designed to blend with or exceed the existing surrounding plant densities.

c. *Minimum Setback.* There shall be a minimum 10-foot setback from any property line for the building envelope that shall remain undisturbed except for the allowed driveway, utility trenching, approved drainage improvements, and approved work access area.

d. *Driveway Exception.* The area of a single-access driveway extending beyond the first 30 feet of lot depth may be excluded from the building envelope disturbance calculation provided that the driveway is a maximum width of 16 feet, that all disturbance associated with the construction of the driveway is minimized to the greatest extent possible, and that all disturbed area resulting from the driveway construction is fully revegetated using plant material salvaged from the same lot or supplemented with plants from the Preferred Desert Uplands Plant List.

e. *Utility Exception.* The area for utility trenching may be excluded from the building envelope disturbance calculation provided that disturbance associated with the installation of utilities is minimized to the greatest extent possible, that all disturbance as a result of the trenching is fully revegetated using plant material salvaged from the same lot or supplemented with plants from the Preferred Desert Uplands Plant List, and that the utility trench is located adjacent to or under the driveway or at alternative locations as approved by the Planning Director.

f. *Limitation on Driveway and Utility Exceptions.* The building envelope exclusions relating to driveways and utility trenches are limited to a combined, maximum exclusion of 10% of the total lot area.

g. *Compliance.* Occupancy or other utilization of any structure shall not commence until all requirements of the Desert Uplands Development Standards and the requirements of Title 4 of this Code have been fulfilled and a final inspection has been completed.

2. ***Building Envelopes with Natural Area Open Space Preservation.*** Variations to the building envelopes may be approved as part of an approved Planned Area Development (PAD) that preserves Natural Area Open Space (NAOS) in compliance with the following requirements:

a. *Intent.* This Subsection is intended to allow variations to the building envelope requirements in Section 9-6-6(J)(1) with the approval of a PAD when NAOS is preserved in common tract and on-lot areas.

b. *NAOS Location.* The location of NAOS on a Preliminary Plat or Minor Plat shall be based on the following considerations:

i. Preservation of natural washes;

ii. Preservation of significant features and vegetation, including rock outcroppings and significant concentrations of native vegetation in relation to the surrounding development project;

iii. Continuity of open space within the development project and with adjacent developments;

iv. Continuity of on-lot open spaces on adjoining lots; and

v. Provision for unimpeded wildlife access and movement between open space areas.

c. *NAOS Design.*

i. NAOS shall be designed to preserve environmental features with consideration of the surrounding environment in order to connect with existing or planned open space of adjacent lots or common areas so that continuous areas of meaningful NAOS are formed.

ii. The minimum contiguous area for NAOS shall be 4,000 square feet with a minimum horizontal dimension of 30 feet, except along roadways, where the minimum shall be 20 feet.

iii. NAOS shall be undisturbed areas or a combination of undisturbed and revegetated areas.

iv. Land Divisions designed with a combination of undisturbed NAOS and revegetated open space shall have at least 70% of the required NAOS as undisturbed NAOS.

v. This minimum applies to both common tract and on-lot NAOS. Revegetated areas shall not exceed 30% of the NAOS.

vi. The 50% building envelope limitation, Section 9-6-6(J)(1), may be increased in direct proportion to the percentage of NAOS preserved within common tracts controlled by a homeowners' association, land trust, or similar entity; or located on-lot within designated easements, as indicated in Table 11-6-6.J.2.

d. NAOS shall be identified on Land Splits, Minor Plats, Preliminary Plats, and Final Plats.

e. The driveway and utility trench exceptions specified in Section 9-6-6(J)(1)(d) and (e) are not permitted if increased building envelopes are approved as part of a Planned Area Development with NAOS.

f. The work access area exception specified in Section 9-6-6(J)(1)(b) is permitted as part of a Planned Area Development with NAOS.

Table 11-6-6.J.2: NAOS and Building Envelope Modifications

NAOS Preserved In The Subdivision	Maximum Building Envelope Per Lot
0—10%	50—60%
10—25%	60—75%
25—35%	75—85%
35—49%	85—99%
50% and above	100% subject to envelopes or easements that may be required to preserve environmental features

Table 11-6-6.J.2: NAOS and Building Envelope Modifications	
NAOS Preserved In The Subdivision	**Maximum Building Envelope Per Lot**
Example 1: If 25% of the overall land division were preserved as NAOS, then building envelopes could be increased by 25% to a maximum of 75% per lot.	
Example 2: If 32% of the overall land division were preserved as NAOS, then building envelopes could be increased by 32% to a maximum of 82% per lot.	

3. If any part of the approved building pad is to be built above natural mean grade, the applicant shall provide a pad height certification statement that is prepared, stamped, and signed by an Arizona registered engineer or land surveyor. The pad certification statement shall be submitted prior to the approval of the footing inspection.

4. Easements for NAOS, open space, or drainage shall be provided for those lot areas with slopes of 15% or greater or natural area washes that carry significant drainage as determined by the City Engineer.

5. Where easements are provided, the balance of the lot or the "buildable area" must have a usable shape and size and provide adequate street access.

K. **Building Height/Density.**

1. Densities shall be determined by the underlying zoning district.

2. Building height shall be limited to two (2) stories or 30 feet, whichever is the less; or the maximum height permitted by the underlying zoning district.

3. Building height for flat roof buildings shall be measured as the vertical distance from the natural mean ground elevation of the lot to the top of the parapet. Building heights for all other roofs shall be measured as the vertical distance from the natural mean ground elevation of the lot to the mean height between the plate line and the ridge, excluding embellishment.

4. All buildings shall be located below the ridge line (see Figure 7).

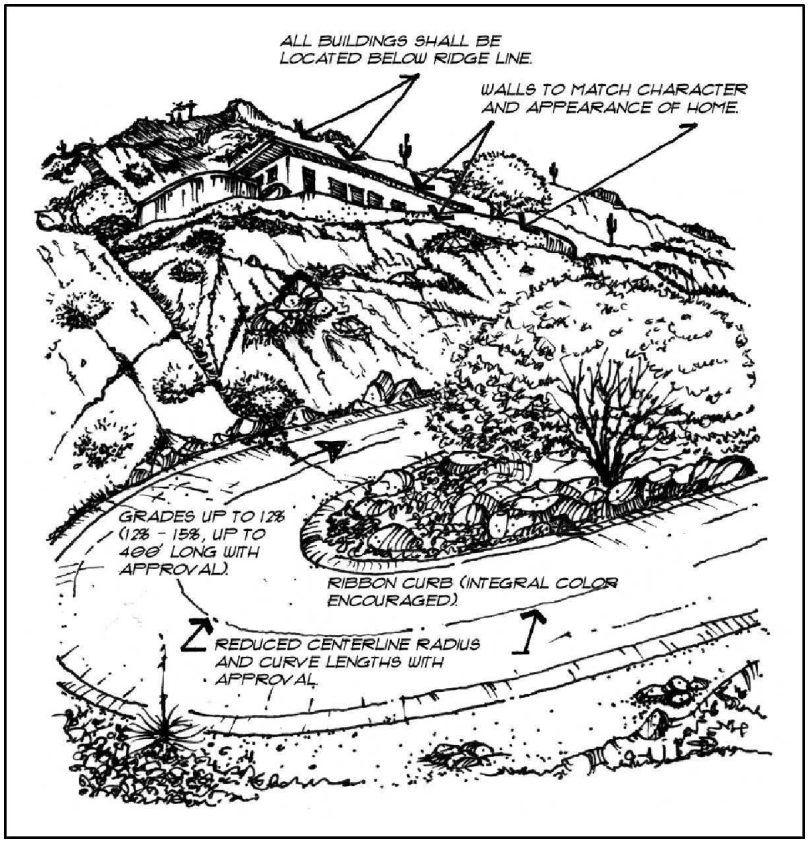


FIGURE 7: RIDGE LINE RESTRICTIONS - CURVE RADII AND LENGTH, STREET GRADES

L. **Fifteen Percent (15%) Slope/Open Space.**

1. Slopes of 15% or greater shall remain in undeveloped NAOS.
2. The open space within the lots, common open space areas with slopes of 15% or greater, or natural area washes that carry significant drainage as determined by the City Engineer shall be identified and secured by an open space and/or drainage easement and be maintained by the lot owner or homeowners' association.
3. Preserved natural washes, undisturbed NAOS, and sensitive areas as identified in approved Land Splits, Minor Plats, Preliminary Plats, Final Plats, and construction drawings are required to be fenced prior to and during construction. Fencing is to be installed and inspected prior to any site preparation, grading, plant removal, or construction. Fencing is to display signage indicating, "Protected Area - No Access."
4. Ridge lines shall remain as undeveloped NAOS.

M. **Washes/Drainage.**

1. Retained washes and new drainage channels shall maintain a "natural" desert character. Requirements include landscaping with native rock and plant materials, use of integral colored alternative material, contouring and preservation of existing natural features (see Figure 8).

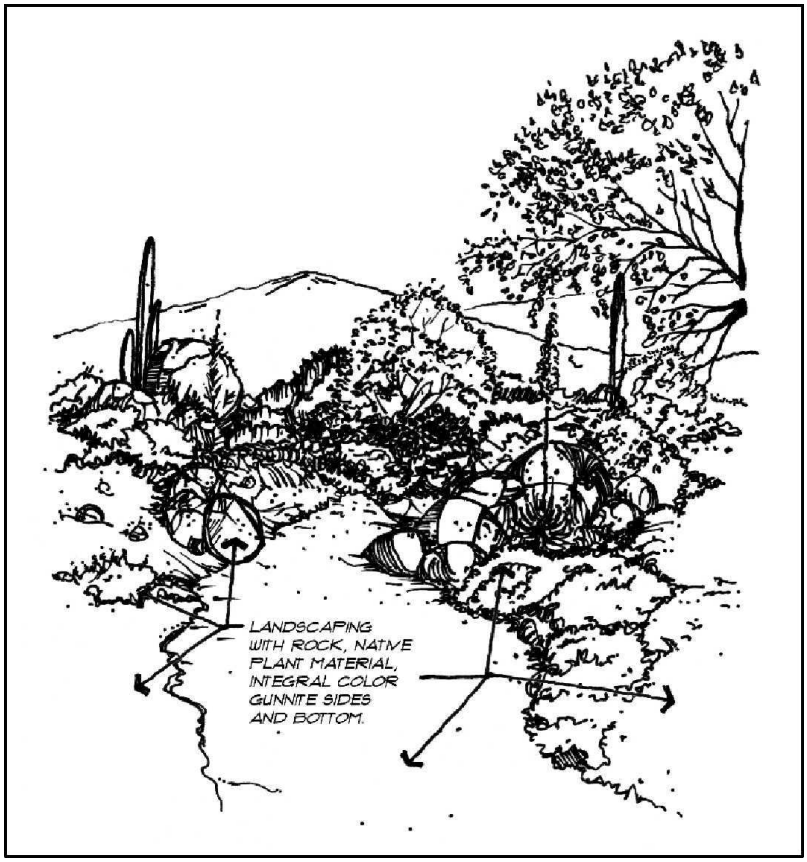


FIGURE 8: NATURAL DESERT CHARACTER FOR DRAINAGE CHANNELS

2. Man-made channels and existing natural washes conveying flows from adjacent properties shall remain separate from retention basins storing on-site drainage.

3. To preserve riparian zones, undisturbed areas shall extend, as determined by the City, beyond the banks of significant washes, including those regulated by the U.S. Army Corps of Engineers under Section 404 of the Clean Water Act.

4. Natural drainage patterns shall be maintained onto and off development sites, as determined by the City Engineer, in such a manner that existing vegetation along natural washes continues to receive runoff water. Water collection structures and retention basins shall be installed so that water from significant storm events flows into the same offsite downstream flow paths that existed prior to development, as determined by the City Engineer.

5. Storm water retention basin design layouts shall be incorporated with the overall site landscaping plan including amenities, access, and plantings. Landscaping shall be provided in all areas of the basin (slope, top, and bottom). A transitional area shall be introduced between the top of the retention basin slope and the edge of sidewalks, street curbs, parking spaces, driveways, or parking

screen walls. A variety of side slopes and contouring shall be utilized, and radii shall be varied between top and bottom of slope for a smooth transition. Incorporate major horizontal and/or vertical slope changes every 100 feet of linear slope length.

6. Where retention basins occur along arterial streets, berms shall be along 50% of the basin frontage. Berms shall be four-to-one (4:1) (horizontal-to-vertical) maximum slope, and no more than two (2) feet above adjacent street grade.

7. With approval of the City Engineer, basin side slopes which are adjacent to streets (public or private) and pedestrian walkways, may be steeper than a six-to-one (6:1) slope if a five (5) foot transition area, no steeper than a six-to-one (6:1) slope, is provided. Side slopes over five (5) feet away from the street/walkway may be permitted as steep as four-to-one (4:1).

8. Vertical walls will be considered subject to aesthetic and engineering review and may be used for up to 25% of the perimeter of the basin. Walls retaining over two (2) feet of soil require structural design. Walls with over two (2) feet of drop-off require railing. Walls retaining water require waterproof design.

9. Storm water retention basins shall be landscaped/revegetated with existing or salvage vegetation and native plant materials selected from the Preferred Desert Uplands Plant List in accordance with this Section.

10. Random-sized rock (six [6] inches and larger) may be utilized to create a natural-appearing desert wash within the basin bottom. Basins are encouraged to provide up to 25% more land area than the minimum area necessary to retain their specified volume of water in order to allow for the creation of peninsulas, more "natural" contouring, and the placement of boulders and rock outcroppings.

11. Native materials shall be utilized in the construction of headwalls, flow-retardant structures and devices, culverts, and drainage channel bottoms in the Desert Uplands Area. Headwall designs are required to blend in color, surface treatment, and shape with surrounding landscaping (see Figure 9). Headwalls shall be flared or sloped to follow the contours of the basin or channel.

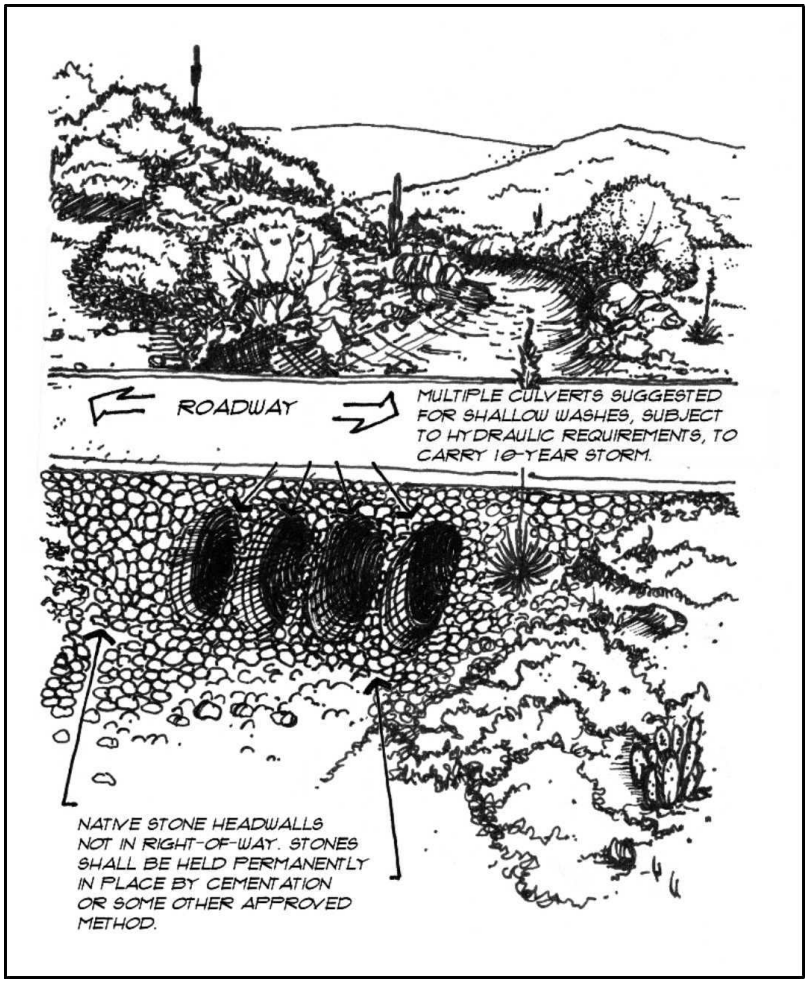


FIGURE 9: MULTIPLE CULVERTS FOR LARGER DRAINAGEWAYS

12. Safety rails shall utilize alternative designs such as wrought iron to match theme walls, boulders, and pilasters and shall be a minimum 42 inches high. Inlet/outlet grates or gates utilizing alternative designs are required on 24 inch and larger diameter pipes.

13. ***Low-Density Development Standards: One (1) Dwelling Unit Per Acre (RS-35) or Less.***

    a. Non-turfed drainage swales are encouraged in the Desert Uplands Area.

    b. Erosion protection of drainage swales will be encouraged through the use of native rocks and native plant materials. Where runoff velocities necessitate additional erosion protection, the use of integral colored gunite or alternative material may be approved by the City Engineer.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-7: APPEALS OF DISCRETIONARY DECISIONS

A. **Appealable Decisions.** Discretionary decisions of the Planning Director, Development Services Director, or their designees may be appealed to the Hearing Officer by the developer or owner of the property proposed for development that is affected by the discretionary decision. Appeals are limited to discretionary decisions involving one (1) or more of the following:

1. Any requirement that exceeds or is in addition to the minimum development requirements as defined in this Chapter.

2. Any requirement not specified in the Mesa City Code or other legislative act of the City of Mesa.

3. Any requirement resulting from a discretionary act of an administrative official of the City of Mesa.

B. **Appeal Deadline.** The appeal shall be submitted within 30 days of the discretionary decision. The appellant shall submit a notice of appeal to the Development Services Department using the form provided by the City for such appeals.

C. **No Fee.** No fee is required for filing an appeal under this Section.

D. **Appeal Transmittal.** The Planning Director or Development Services Director shall transmit to the Hearing Officer all documents and records that form the basis of the discretionary decision being appealed.

E. **Hearing Scheduled.** The Hearing Officer shall schedule a time for the appeal to be heard, which shall be no later than 30 days from receipt of the appeal.

F. **Hearing Notice.** The appellant shall be given at least 10 days prior notice of the date and time set for the hearing.

G. **Hearing Officer Decision.**

1. The Hearing Officer shall decide the appeal within five (5) working days from the date the appeal hearing concludes.

2. For determination of the appeal, it shall be the responsibility of the City to establish that there is a nexus between the requirement and a legitimate governmental interest and that the requirement is roughly proportional to the impact of the proposed use, improvement, or development. If more than a single parcel is involved, this requirement applies to the entire property that is subject to the approval.

3. If the appeal is upheld, the Hearing Officer shall modify or delete the requirement. If the appeal is denied, the appellant may at any time within 30 days of the decision of the Hearing Officer file a complaint for a trial de novo in the Superior Court on the facts and the law regarding the issues of the requirement.

(Ord. No. 5949, § 1B., 7-1-25)

9-6-8: PENALTIES AND CIVIL HEARING PROCESS

A. **Criminal Penalty.** The following acts are unlawful and any person who commits any of the following acts will be charged with a Class 1 misdemeanor:

1. Recording or attempting to record a Plat, Land Split, or Affidavit of Change/Correction with the Maricopa County Recorder that does not have all required approvals from the City.

2. Developing or attempting to develop land contrary to or in violation of any provision of this Chapter or any condition or stipulation designated on an approval issued pursuant to this Chapter.

B. **Civil Penalty and Civil Hearing Process.** A violation of any provision of this Chapter, other than the acts designated as unlawful, is a civil code offense which may be adjudicated and enforced by the following civil hearing process:

1. A person issued a civil penalty pursuant to this Chapter may appeal the civil penalty by requesting a hearing within 10 days of issuance of the civil penalty. The appeal must be in writing, state the grounds for the appeal, and be sent to the Development Services Director. The failure of an appeal to meet the requirements of this Section will entitle the Development Services Director to deny the appeal without further review.

2. If an appeal meets the requirements of this Section, the Development Services Director will schedule a hearing with the Hearing Officer.

3. All proceedings before the Hearing Officer will be informal and without a jury, except that testimony must be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. Prehearing discovery will not be permitted, unless the Hearing Officer determines good cause exists otherwise. The Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the appeal.

4. If either party to the appeal is aggrieved by the decision of the Hearing Officer, the aggrieved party may file a complaint of special action in an Arizona Superior Court with the proper jurisdiction to review the Hearing Officer's decision within 30 days after a final decision of the Hearing Officer has been rendered. Failure to bring the action within 30 days will constitute a waiver of any right to judicial review of the Hearing Officer's decision.

C. **Separate Offense.** Each day a violation of any provision of this Chapter continues will be a separate offense.

(Ord. No. 5949, §§ 1B., 2, 7-1-25)

9-6-9: DEFINITIONS

The definitions in this Section 9-6-9 apply only to Title 9 of the City Code unless expressly stated.

AFFIDAVIT OF CHANGE/CORRECTION: A document to effect a minor change or correction to a recorded plat such as lot line adjustments, lot combinations, bearing or distance changes, minor corrections to language of dedication, notes, or legal description.

ALLEY: A public or private right-of-way used to provide secondary vehicular access to abutting properties.

APPLICANT: An individual, firm, corporation, partnership, association, syndicate, trust, or other legal entity who submits an application to the City for review or approval under the provisions of Title 9 of the City Code.

A.R.S.: The Arizona Revised Statutes, as amended and supplemented.

BERM: A mound of soil, either natural or man-made.

BLOCK: A piece or parcel of land or group of lots entirely surrounded by public or private streets, streams, railroads, parks, or a combination thereof.

CHANNEL: The bed and banks of a natural or man- made stream which convey the constant or intermittent flow of the stream.

CITY ENGINEER: The person designated by the City as its City Engineer, or their designee.

CITY MANAGER: The person designated by the City as its City Manager, or their designee.

COMMON OPEN SPACE: Land within or related to a development, not individually owned or dedicated for public use, which is designed and intended for the common use or enjoyment of the residents of the development. It may include complementary structures and improvements.

DEDICATION: the transfer of private property to the city for public use.

DENSITY: The number of dwelling units per unit of land area.

DESERT UPLANDS AREA: The area of Mesa, Arizona that is bounded by the Central Arizona Project Canal on the west, Meridian Road and Usery Mountain Regional Park on the east, University Drive on the south, and the Tonto National Forest boundary on the north.

DEVELOPER: An individual, firm, corporation, partnership, association, syndicate, trust, or other legal entity that initiates and carries out the division, construction, or improvement of land, including the installation of infrastructure, buildings, or other site improvements, whether for personal use or for sale, lease, or other disposition.

DRAINAGE, ONE HUNDRED- (100-) YEAR STORM (PEAK DISCHARGE): Local drainage resulting from a storm which has a 1% chance of occurring annually, based upon a "design storm" within a defined area. A design storm is a rainfall event of specific frequency and duration which produces the design flow.

For the purpose of this definition, local drainage is water that accumulates as a result of local storms and flows over land not included in a delineated floodplain, including sheet flow and such flow as may be concentrated in local drainage systems, with or without defined channels, but excluding delineated floodplains.

EASEMENT RELATED DEFINITIONS:

EASEMENT: A grant by the owner of any parcel of land to a public agency, a corporation, or persons for specific uses and purposes and so designated and recorded.

EASEMENT, DRAINAGE: An area designed and used for conveyance or retention of runoff in which nothing can be placed which will impede, divert, or cause the runoff to have an adverse effect on adjoining property.

PUBLIC UTILITY AND FACILITIES EASEMENT: An easement for overhead and underground utility facilities provided, including water, storm drainage, sewage, electricity and communication, owned and operated by any person, firm, corporation, municipal department, or board duly authorized by state or municipal regulations

ELECTRIC SERVICE AREA: The area of Mesa, Arizona that receives electric utility service from the City of Mesa, commonly referred to as the City of Mesa Electric Service Area.

ENGINEERING PLANS: Plans, profiles, cross sections, and other required details for the construction of public improvements, prepared by a civil engineer registered in the State of Arizona, in accordance with the approved preliminary plat and in compliance with standards of design and construction approved by the City Engineering Department.

ENGINEERING AND DESIGN STANDARDS MANUAL: Requirements formulated by the City Engineer and available from the Engineering and Development Services Departments for the planning and design of public improvements.

EXCEPTION: Any parcel of land within the boundaries of the subdivision which is not owned by the subdivider.

EXPOSED FILL: All of the face of a fill slope resulting from development, from the toe to the top of the fill, whether the surface treatment is retaining wall, rip-rap, natural vegetation, or other treatment.

FILL: The deposit of soil, rock, or other material placed by man.

FLOOD RELATED DEFINITIONS:

FLOOD: A general and temporary overflow of water onto normally dry land areas.

FLOOD, REGULATORY: The 100-year flood as determined by criteria established by the City Engineering Department.

FLOOD, FIFTY- (50-) YEAR: A flood that has a 2% chance of occurring annually, based upon the criteria established by the City Engineering Department.

FLOOD, ONE HUNDRED- (100-) YEAR: A flood that has a 1% chance of occurring annually, based upon the criteria established by the City Engineering Department.

FLOODPLAIN, DELINEATED: That area delineated and mapped as a floodplain, as approved by the Planning & Zoning Board and as shown on the National Flood Insurance Program, flood insurance rate maps, and floodway maps.

FLOODPLAIN, REGULATORY: That portion of the natural water course that would be inundated by the regulatory flood and in which land use is regulated by the Floodplain Regulations.

FULL CUTOFF STREETLIGHT FIXTURE: Streetlight fixtures where no light is emitted by the fixture above an angle of 90 degrees above nadir (no light emitted above the horizontal).

GENERAL PLAN: A comprehensive plan, or parts thereof, providing for the future growth and improvement of the City of Mesa, including the general location and coordination of streets and highways, schools and recreation areas, public building sites, and other physical development, including general land use patterns.

GRADE: The vertical difference (in feet) between two (2) points on the ground divided by the length of horizontal distance (in feet) between the same two (2) points, multiplied by 100. (Example: 2'/100 = .02 × 100 = 2% grade.)

GRADING: Any excavating, filling, or combination thereof, including the conditions resulting from any excavation or fill, involving changes to the natural drainage pattern.

GUNITE: Concrete or mortar conveyed through a hose and pneumatically projected at a high velocity onto a surface.

HEARING OFFICER: The City staff person responsible for hearing appeals under this Chapter, or other such individual contracted with the City to hear appeals under this Chapter.

HIGHWAY: Includes any expressway, freeway, or parkway.

IRRIGATION FACILITIES: Includes canals, laterals, ditches, conduits, pipes, gates, pumps, and allied equipment necessary for the supply, delivery, and drainage of irrigation water and the construction, operation, and maintenance of such.

LAND DIVISION RELATED DEFINITIONS:

LAND DIVISION: The act or process of dividing a parcel, lot, or tract of land into two or more parts for the purpose of sale, lease, transfer of ownership, or development, whether immediate or future. A land division may include the subdivision of land into lots or parcels, the creation of easements that affect property boundaries, or the adjustment of existing lot lines.

LAND DIVISION, MINOR: The land division process for Minor Plats and Land Splits.

LAND DIVISION, MAJOR: The land division process for Preliminary Plats, Final Plats, and Maps of Dedication.

LAND SPLIT: The division of improved or unimproved land whose area is 2.5 acres or less into two (2) or three (3) tracts or parcels of land for the purpose of sale or lease.

LED: Light Emitting Diode.

LOOP ROAD: A local or minor collector street that begins and ends on the same roadway or within the same development, forming a continuous loop. A loop road provides internal circulation while limiting through traffic. It may connect to the same or different points on a perimeter street but does not function as a through- arterial.

LOT RELATED DEFINITIONS:

LOT: A piece or parcel of land separated from other pieces or parcels by description, as in a subdivision, or on a record survey map or by metes and bounds for purposes of sale, lease, or separate use.

LOT COMBINATION. The merger of two (2) or more adjacent lots, tracts, or parcels of land into s single, unified lot, tract, or parcel for the purpose of development, sale, or lease.

LOT, CORNER: A lot or parcel of land situated at the intersection of two (2) or more parkways, highways or streets, which parkways, highways or streets have an angle of intersection measured within said lot or parcel of land of not more than 135 degrees.

LOT LENGTH:

A. If the side property lines are parallel, the length of the lot shall be determined to be the average length of the two (2) sides.

B. If the side property lines are not parallel, then a line bisecting the angle formed by the two (2) sides between the front and the rear lot lines shall be determined to be the lot length.

LOT LINE ADJUSTMENT. Process by which land is taken from one (1) parcel and added to an adjacent parcel without creating a new lot.

LOT LINE, FRONT: A line separating the front yard from the parkway, highway or street upon which the yard fronts; or, in the case of a flag lot where the front yard is oriented toward an adjoining lot, the line separating such front yard from the adjoining lot.

LOT LINE, REAR: A lot line which is opposite and most distant from the front lot line. For a triangular shaped lot, the rear lot line shall mean a line ten (10) feet to the length within the lot, which is parallel to the front lot line, or parallel to the chord of a curved front lot line, and the maximum distance from the front lot line.

LOT LINE, SIDE: Any lot boundary line which is not a front lot line or a rear lot line.

LOT LINES: Those lines, either straight or curved, that define the front, rear, and sides of a lot, parcel, or tract of land.

LOT WIDTH: The width of a lot shall be:

A. If the side property lines are parallel, the distance between these side lines.

B. If the side property lines are not parallel, the width of the lot shall be the length of a line at right angles to the axis of the lot at a distance equal to the required front or rear building setback line, whichever is the lesser. The axis of a lot shall be a line generally perpendicular to the fronting street which divides the lot into two (2) equal parts.

MAP OF DEDICATION: A legal document that sets the location and gives the dimensions of rights-of-way and easements. Used to dedicate land to the City of Mesa or to grant an easement to the city for roadway, drainage, flood control, wet or dry utilities, emergency or service vehicle access, other public uses or the granting of an easement for a utility line.

NATURAL AREA OPEN SPACE (NAOS): Within the Desert Uplands Area, that open space which consists of undisturbed natural area open space and revegetated open space. NAOS shall contain no more than thirty percent (30%) revegetated open space. NAOS shall be located within common tracts controlled by the homeowners' association, land trust, or similar entity created to preserve the NAOS; or may be located on- lot within designated easements. NAOS shall be identified on the subdivision plat and restricted as necessary to preclude future development. Trails or paths for nonmotorized use, such as hiking, equestrian, or mountain biking are permitted.

OPEN SPACE: The area or areas of a lot or parcel intended to provide light and air, and designed for either scenic or recreational purposes, excluding buildings, parking, driveways and other vehicular surfaces.

OWNER: The person or persons holding title by deed to land, holding title as vendees under land contract, or holding any other title of record.

PARK: An area dedicated to recreational use and generally characterized by its natural, historic, and landscape features. It is used for both passive and active forms of recreation and is designed to serve the residents and visitors of a neighborhood, community, or city.

PEAK: A point of maximum elevation on a major or minor hill as indicated by the USGS topographic maps.

PEDESTRIAN/BICYCLE WAY: A public way dedicated entirely through a block from street to street and/or providing access to a school, park, recreation area, shopping center, etc. and which excludes vehicles or other motorized transportation.

PLANNED AREA DEVELOPMENT (PAD): A zoning overlay and development process that allows for flexibility in the application of zoning standards—such as setbacks, height, and lot size—in order to accommodate innovative design, mixed-use development, and coordinated master planning of larger or more complex sites.

PLANNING DIRECTOR: The person designated by the City as its Planning Director, or their designee.

PLANNING & ZONING BOARD: The Planning and Zoning Board of the City of Mesa.

PLAT RELATED DEFINITIONS:

PLAT: A map of a land division.

PLAT, AMENDED: See Replat.

PLAT, MINOR: The division of land that creates ten (10) or fewer lots, tracts, or parcels of land.

PLAT, PRELIMINARY: A preliminary map, including supporting data, indicating a proposed land division, prepared in accordance with these regulations.

PLAT, FINAL: A final map of all or part of a land division providing substantial conformance to an approved preliminary plat, prepared by a registered land surveyor in accordance with these regulations.

PLAT, RECORDED: A plat bearing all of the certificates of approval required by and duly recorded in the Maricopa County Recorder's Office.

PLAT, REPLAT: An amendment to a recorded plat to: modify the number or location of lots, tracts, or easements; adjust lot lines; change roadway alignments; or provide for modifications to dedicated easements, rights-of-way, or tracts.

PRE-SUBMITTAL CONFERENCE: A meeting between the applicant and City staff held prior to the formal submission of a development application. The purpose of the conference is to review preliminary project concepts, identify applicable regulations, procedures, and submittal requirements, and provide initial feedback to help ensure a complete and efficient application review process.

PUBLIC IMPROVEMENT STANDARDS: A set of regulations setting forth the details, specifications, instructions, and procedures to be followed in the planning, design, and construction of certain public improvements in the City of Mesa, formulated by the City Engineer, the County Health Department, and other City departments.

RECREATIONAL VEHICLE PARK: An approved residential development, designed in accordance with the zoning ordinance, that is owned by one entity as shown in the records of the Planning Division in which individual spaces are provided for parking of one recreational vehicle per space for temporary portable housing purposes, whether or not a charge is made for such accommodation.

RECREATIONAL VEHICLE SUBDIVISION: An approved residential subdivision, as shown in the records of the Maricopa County Recorder's office, in which individual ownership of a recreational vehicle lot is permitted, that is designed in accordance with the Zoning Ordinance and approved in accordance with planned area development and subdivision regulations.

RETAINING WALL: A wall or terraced combination of walls used solely to retain more than 18 inches of earth, but not to support or to provide footing for a structure.

RETENTION BASIN: A water collection facility designed to collect storm water runoff and release it at a controlled rate after the storm. A retention basin and park may be joined to serve both recreational needs and as a water collection facility.

REVEGETATED OPEN SPACE: Within the Desert Uplands Area, open space disturbed either before or during development that has been revegetated in the following manner: revegetated with plants from the preferred Desert Uplands plant list; revegetated with plants that are the same species mix as the adjacent undisturbed area; and revegetated with plants that are at least equal in size and sufficient in number to be at least the same density as the adjacent undisturbed area. The developer should create provisions for maintaining healthy plants until they are established and shall replace any revegetated plants that die within one (1) year of planting. Subdivision improvements such as storm water retention and detention basins, drainage structures, and utility corridors, may be included in this category if revegetated in the approved manner. Excluded from the revegetated open space are those areas revegetated for the utility exception Section 9-6- 5(J)1(e), driveway exception Section 9-6-5(J)1(d), and the work access areas Section 9-6-5(J)1(b).

REVERSE FRONTAGE: A lot having frontage on two (2) nonintersecting streets. The front of the lot shall be considered facing the interior street.

RIDGE: The defined topographical line connecting a series of major and minor hills, peaks, or mountains.

RIDGE LINE: A ground line located at the highest elevation of the ridge running parallel to the long axis of the ridge.

RIGHT-OF-WAY (ROW): An area of land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved or dedicated to the City for purposes, including streets, highways, alleys, public utilities, pedestrian walkways, bikeways, or drainage. Within rights-of-way, the City of Mesa coordinates the locations of public or private improvements, underground or overhead; including electricity, gas, steam, communication, telecommunications, data transmission, cable TV, water, storm drainage, sewage, sidewalks, landscaping, traffic signals, streetlights, flood control, pedestrian, roadway purposes, etc. owned and operated by any person, firm, company, corporation, municipal department, or board duly authorized by federal, state or municipal regulations.

RIGHT-OF-WAY IMPROVEMENTS: Construction in the public right-of-way or in easements, including streets, alleys, medians, bicycle lanes, curbs and gutters, stormwater facilities, water and sewer lines and services, fire hydrants, gas lines and services, sidewalks, driveways, streetlights, traffic control devices, street name signs, landscaping, underground and overhead utilities as required by the City Engineer. Right-of-way improvements do not include right-of-way land dedications.

SLOPE: See Grade.

STORM WATER RETENTION: Provision for storage of storm water runoff during and after a flood or storm and the controlled release of such runoff after a flood or storm.

STREET RELATED DEFINITIONS:

STREET: Any public street, avenue, boulevard, road, lane, parkway, place, viaduct, easement for access, or other way which is an existing state, county, or municipal roadway; or a street or way shown in a plat heretofore approved pursuant to law or approved by official action; or a street or way in a plat duly filed and recorded in the County Recorder's Office. A street includes the land between the right-of-way lines, whether improved or unimproved, and may be comprised of pavement shoulders, curbs, gutter, sidewalks, parking areas, and landscape areas.

STREET, ARTERIAL: A general term including section line and major streets and state or county highways providing a system for citywide through traffic movement.

STREET, COLLECTOR: Provides the traffic movement within neighborhoods of the City, between major streets and local streets, and for direct access to abutting property.

STREET, CUL-DE-SAC: A short local street permanently terminated in a vehicular turnaround; provides direct access to a limited number of adjacent properties.

STREET, LOCAL: Provides for direct access to residential, commercial, industrial, or other abutting land; primarily for local traffic movements with connections to collector and/or major streets.

STREETLIGHT LUMEN LEVEL: Standard lumen lighting levels of a streetlight required by Roadway Lighting ANSI/IES RP-8.

SUBDIVIDER: An individual, firm, corporation, partnership, association, syndicate, trust, or other legal entity that files the application and initiates the division of land pursuant to these regulation. The subdivider is not required to be the owner of the property as defined by this Ordinance.

SUBDIVISION: Improved or unimproved land or lands divided or proposed to be divided for the purpose of financing, sale, or lease, whether immediate or future, into four (4) or more lots, tracts, or parcels of land; or if a new street is involved, any such property which is divided into two (2) or more lots, tracts, or parcels of land; or any such property, the boundaries of which have been fixed by a recorded plat, which is divided into more than two (2) parts.

Subdivision also includes any condominium, cooperative, community apartment, townhouse, or similar project containing four (4) or more parcels, in which an undivided interest in the land is coupled with the right of exclusive occupancy of any unit located thereon; however, plats of such projects need not show the buildings or the manner in which the buildings or airspace above the property shown on the plat are to be divided.

SURVEY CLOSURE REPORT: A technical report prepared and certified by a registered land surveyor that verifies the accuracy and completeness of a legal description by confirming that all boundary segments mathematically close to form a single, contiguous parcel.

SURVEY MONUMENT: A physical marker established by a land surveyor to accurately identify a point on the ground that corresponds to a legal boundary, property corner, control point, or other survey reference.

TRANSPORTATION DIRECTOR: The person designated by the City as its Transportation Director, or their designee.

UNDISTURBED NATURAL AREA OPEN SPACE: Within the Desert Uplands Area, that open space that is completely undisturbed from its original natural state by any residential development on the site. Any preexisting

damage within such areas, such as old jeep roads, off-road vehicle trails, or dumping sites, shall be restored with plants from the preferred desert uplands plant list that are the same species mix, that are at least equal in size, and that are sufficient in number to be the same density as the adjacent undisturbed area. Natural features, such as washes, significant rock outcroppings, and concentrations of native vegetation, shall be maintained in their natural state. Trails or paths for nonmotorized use, such as hiking, equestrian, or mountain biking, are permitted. Undisturbed natural areas shall constitute a minimum of seventy percent (70%) of the required natural area open space. This minimum applies to both common tract and on-lot natural area open space.
(Ord. No. 5949, § 1B., 7-1-25)

[The next page is T9:109]

CHAPTER 7

COMMUNITY ANTENNA TELEVISION SYSTEMS*

9-7-1: PURPOSE

The purposes of this Chapter are to comply with the requirements of Arizona Revised Statutes Title 9, Chapter 13, to set forth regulations for the application by video service providers for uniform video services licenses for the provision of video service and other authorized services in the city, to provide for issuance of uniform video services licenses in accordance with law, to provide for imposition of non-discriminatory license fees, and to otherwise carry out the mandates of Arizona Revised Statutes Title 9, Chapter 13.
(Ord. No. 5542, § 1, 12-9-19)

9-7-2: DEFINITIONS

The definitions set forth in A.R.S. Section 9-1401 shall apply to this Chapter.
(Ord. No. 5542, § 1, 12-9-19)

9-7-3: UNLAWFUL ACTS; VIOLATION

A. It is unlawful for any video service provider to construct, operate, or maintain a video service network within the boundaries of the City without a valid local license issued in compliance with this Chapter.

B. It is unlawful for any person to make any unauthorized connections, whether physically, electrically, acoustically, inductively or otherwise, with any part of a licensed video service network within the City for the purpose of enabling himself or herself or others to receive any video service without the permission of the video service provider to whom a local license has been issued.

C. It shall be unlawful for any person, without the consent of a licensee, to willfully tamper with, remove or damage any equipment associated with a video service network of a video service provider.

D. A violation of any part of this Chapter by any person or a video service provider shall be punishable as a Class 1 Misdemeanor.

(Ord. No. 5542, § 1, 12-9-19)

9-7-4: APPLICATION AND ISSUANCE

A. Prior to the commencement of any construction or expansion of a video service network or the provision of any video service, a video service provider shall file with the City Clerk an application and an affidavit in a form provided by the City Clerk. The application shall include the following:

1. The name of the video service provider, its type of entity and its jurisdiction of formation.

2. The address and telephone number of the video service provider's principal place of business.

***Editor's note—**Ord. No. 5542, § 1, adopted December 9, 2019, repealed the former Ch. 7, §§ 9-7-1—9-7-24, and enacted a new Ch. 7 as set out herein. The former Ch. 7 pertained to similar subject matter and derived from Ord. Nos. 972, 1220, 1947, 2273, 2466, 4110.

3. The name and address of the video service provider's principal executive officers or general partners and any persons authorized to represent the video service provider before the local government.

4. If the video service provider is not an incumbent cable operator, the date on which the provider expects to provide video services in the area identified under Paragraph 5 of this Section.

5. An exact description of the service area to be served, as identified by a geographic information system digital boundary that meets or exceeds National Map accuracy standards.

6. A requirement that the video service provider pay the license fees required under this chapter and all other lawful fees and charges imposed by the City.

7. A requirement that the video service provider file in a timely manner with the Federal Communications Commission all forms required by that agency before offering video service in the service area, including the forms required by 47 Code of Federal Regulations Section 76.1801.

8. A requirement that the video service provider agrees to comply with and be subject to all valid and enforceable federal and state laws.

9. A requirement that the video service provider agrees to comply with all generally applicable, nondiscriminatory City laws, including highway use, mapping, insurance, performance bonds, security fund, indemnification or similar requirements that apply to the use and occupation of any highway and that conform to Arizona Revised Statutes, Title 9, Chapter 13.

10. A requirement that the video service provider comply with the public, education and government programming requirements of Arizona Revised Statutes, Title 9, Chapter 13.

11. A requirement that the video service provider comply with all customer service rules of the Federal Communications Commission under 47 Code of Federal Regulations Section 76.309(c) applicable to cable operators.

12. A requirement that the video service provider comply with the consumer privacy requirements of 47 United States Code Section 551 applicable to cable operators.

13. A grant of authority by the city to provide video service in the service area as described under Paragraph 5 of this Section.

14. A grant of authority by city to use and occupy the highways in the delivery of the video service, subject to the laws of this State and the police powers of the City.

15. The term of the uniform video service license.

16. A requirement that the parties to the agreement are subject to and must comply with Arizona Revised Statutes, Title 9, Chapter 13.

C. The application shall be accompanied by an affidavit signed by one of the principal executive officers or general partners of the applicant that the information set forth in the application are true and accurate.

D. The application and affidavit shall be submitted to the City Clerk, who shall forward the application and affidavit to the Right-of-Way Manager for review.

E. If the Right-of-Way Manager determines that the application and affidavit are incomplete or otherwise deficient, written notice shall be given to the applicant not later than fifteen days after the date of filing of the application and affidavit. The written notice shall:

1. Explain the incompleteness or deficiency in detail.

2. Specify the information or other items that are necessary for property completion of the application and affidavit.

F. The uniform video services licenses shall be issued within thirty days from the date a complete application was filed with the City Clerk. The term of a uniform video services license shall not exceed ten years.

G. If written notice of an incomplete or deficient application and affidavit is not given within fifteen days after the date of filing, or if the uniform video services licenses is not issued within thirty days from the date a complete application has been submitted, application and affidavit shall be deemed complete and issued to the applicant.

H. No fees shall be charged for filing or processing an application, affidavit, notice or other document related to the related to the issuance of the uniform video services licenses.

I. Amendments to a uniform video services license to add service areas shall be processed in the same manner as the original uniform video services licenses.

J. The term of a uniform video services license may be extended by the holder of a video service license filing with the City Clerk a notice to extend the term for a specified period not to exceed ten years. The notice shall be filed at least one month before the end of the term of the uniform video services license.

K. A uniform video service license does not authorize the use of or attachment by a video service provider to a utility or other pole owned by the City or other person. Any such use or attachment must first be approved in a separate contract with the City.

(Ord. No. 5542, § 1, 12-9-19)

9-7-5: AUTHORITY GRANTED

A. A uniform video services license granted by the City shall authorize the video service provider to:

1. Provide video service in the City in the service area designated in the application and affidavit during the term of the uniform video services license.

2. Construct and operate a video service network in the highways in each service area, in compliance with the uniform video services license and City laws.

3. Operate and maintain facilities installed in the highways in the service area pursuant to A.R.S. § 9-506, Subsections (I) and (J), A.R.S. Section 9-584, and Arizona Revised Statutes Title 9, Chapter 5, Article 8.

(Ord. No. 5542, § 1, 12-9-19)

9-7-6: UNDERGROUNDING OF FACILITIES

A. A video service provider shall not erect new poles for overhead facilities, and a video service provider's new cable, wires and other equipment shall be placed underground. If, at a future date, city requires for all or

any portion of the City, that all utilities (except 69kv power lines or larger) be placed underground, then such requirements shall also apply to video service providers. The City shall not be responsible for any costs incurred by the video service provider in placing the video service provider's facilities underground.

B. In all new developments, all transmission and distribution facilities shall be installed underground. Where a developer provides a trench for undergrounding in a new development, the developer must allow the video service provider to utilize this trench and provide backfill under the same conditions as are extended to other trench users. Cable television shall utilize common or joint trench with telephone and/or utilities for undergrounding where a developer provides a trench for undergrounding by negotiating a joint trench agreement with those entities.

C. Developers and video service providers shall place all cable and appurtenances underground. Existing technology may preclude the placing of some appurtenances underground; any such appurtenances placed above ground shall be located so as to be as unobtrusive as possible, consistent with City Engineering and Design Standards. As new technology and economic feasibility allow, appurtenances associated with future lines shall be placed underground.

(Ord. No. 5542, § 1, 12-9-19)

9-7-7: LIMITATIONS OF LICENSE

A. A uniform video services license granted under this Chapter shall be nonexclusive.

B. Any privilege claimed under a uniform video services license by the video service provider in any highway shall be subordinate to any lawful occupancy or use thereof by the City and shall be subordinate to any prior easements, prior licenses to use the highways, and any other private property rights that may be superior to the uniform video services license issued.

C. A video service provider shall be subject to all requirements of the City's rules, regulations and specifications, whether existing or hereafter enacted or established pursuant to the City's police powers and taxing authority, and also shall comply with all applicable state and federal laws and regulations, whether existing or hereafter enacted or established.

D. The granting of uniform video services license shall not relieve the video service provider of any obligation involved in obtaining pole space from any department of the City, utility company, or from others lawfully maintaining poles in highway.

E. The granting of a uniform video services license does not relieve licensee of compliance with City Code provisions governing construction, work, or use of the highways. There is hereby reserved to the City the power to amend any section of the City Code related to construction in highways pursuant to its police powers.

(Ord. No. 5542, § 1, 12-9-19)

9-7-8: OBLIGATIONS UPON EXPIRATION

A video service provider may terminate a uniform video service license by filing a written notice of termination with the City Clerk. Such notice shall be filed at least ninety days before termination of service. The notice shall also be sent to all subscribers within the affected service area at least ninety (90) days prior to termination of service.

(Ord. No. 5542, § 1, 12-9-19)

9-7-9: CONSTRUCTION IN THE HIGHWAYS

A. Video service providers and their subcontractors shall comply with: (i) the requirements of this Chapter and Title, Chapter 1 of the Mesa City Code; (ii) construction standards of the Federal Communications Commission (FCC) Rules and Regulations, Part 76 Subpart K (Technical Standards), as amended from time to time; and (iii) detailed standards and plans submitted by the video service provider as part of any application or permit submitted to the City.

B. Video service providers shall at their expense, protect, support, disconnect, relocate, or remove any of their property when required by the City by reason of traffic conditions; public safety; street or alley vacation; freeway or street construction or repair; change or establish of street grade; installation of sewers, drains, water pipes, power lines, signal lines, transportation facilities tracks, or any other type of structure or improvements performed as part of a city improvement project. The City may disconnect, remove or relocate any of a video service provider's facilities, which have not been disconnected, removed or relocated within a reasonable period of time after a request from the city and the video service provider shall reimburse the city for its actual cost in disconnecting, removing, or relocating the video service provider's facilities, except where otherwise prohibited by state or federal law, the entire cost of the installation, construction, operation, or removal of such facilities shall be borne by the video service provider.

(Ord. No. 5542, § 1, 12-9-19)

9-7-10: SYSTEM CONSTRUCTION AND MAINTENANCE

A. A video service provider proceeding with reconstruction of an existing video service network shall establish and file with the Right-of-Way Manager a construction plan, including maps showing construction locations, and a timetable for buildout and activation of cable lines.

B. All cable, equipment, and connections in, over, under, and upon the streets and public ways in the City, wherever situated or located, shall at all times be maintained in a safe and suitable condition and in good order and repair.

C. Any and all streets and public ways which are disturbed or damaged during the construction, operation, maintenance, or reconstruction shall be promptly repaired by the video service provider at its expense and to their original condition, or as otherwise specified by permit or City Engineering and Design Standards.

D. In the event a video service provider neglects or fails to cause any work or other act required by law to be properly completed in, on, over, or under any street or other public place within any time prescribed therefor or upon notice given when no time is prescribed, the City Engineer may cause such work or other activity to be completed in whole or in part to his or her satisfaction, and upon so doing, shall submit to video service provider an itemized statement of the cost thereof. The video service provider shall, upon thirty (30) days after receipt of such statement, pay to the City the entire amount thereof.

E. A video service provider shall arrange its lines, cables, and other appurtenances, on both public and private property, in such a manner as to cause no unreasonable physical interference with the use of the public or private property by any person. In the event of such physical interference, the Right-of-Way Manager may require the removal of video service provider's lines, cables, and appurtenances.

F. A video service provider or its designated contractors or subcontractors, when constructing or installing cable equipment of any kind in public right-of-way and/or easements on private property, shall fully and completely restore any and all such property to its original condition.

G. A video service provider shall construct, install, and maintain its video service network in an orderly and workmanlike manner. The safety of the general public, the video service provider's employees, the employees of utilities, and all other property affected by the such construction shall be the primary objective whenever or wherever a video service provider operates or locates equipment.

(Ord. No. 5542, § 1, 12-9-19)

9-7-11: REVOCATION FOR NON-USE OF UNIFORM VIDEO SERVICE LICENSE

A video service provider shall provide video service to at least one subscriber within each service area authorized by a uniform video service license within twenty-four months after the date the uniform video service license is issued. If the video service provider fails to comply with this section, the City may revoke the uniform video service license.

(Ord. No. 5542, § 1, 12-9-19)

9-7-12: REPORTS

A video service provider shall file all reports required by and in compliance with A.R.S. § 9-1432. The reports shall be filed with the City Clerk. All such reports shall be confidential pursuant to A.R.S. § 9-1432 unless the video service provider has consented in writing to the disclosure.

(Ord. No. 5542, § 1, 12-9-19)

9-7-13: LICENSE FEE ON GROSS REVENUE; TRANSACTION PRIVILEGE TAXES

A. A video service provider shall pay to the City a license fee as a percentage of gross revenues for the use of the highways to provide video service within its service area. The license fee shall be paid quarterly on or before the twentieth day of the month following the quarter end, and becomes delinquent on the last business day of that month. If such payment is not made by the next to the last business day of the following month, the City will impose interest at a rate of one and one-half percent per month commencing from the date payment should have been made, unless the payment is subject to a bona fide dispute, and continuing until the payment is made. Fractions of a month shall be considered to constitute a full month for the purpose of computing interest. Any offset of fees and costs against the license fee and transactional privilege taxes permitted under state or federal law shall be itemized with each quarterly payment.

B. The total of the rates of the license fee and the transaction privilege taxes imposed shall be five percent of gross revenues, and such license fee shall be imposed equally and uniformly on all video service providers and holdover cable operators.

C. Except as otherwise provided by federal law, if a video service provider offers video service bundled with other services that are not video service for a single discounted price, all of the following apply:

1. The method that the video service provider uses to determine gross revenue subject to license fees by allocating the single discounted price among the bundle of video service and nonvideo services shall be reasonable and supported by the video service provider's books and records.

2. For the purpose of meeting the video service provider's burden of proof, the video service provider shall use an objective and verifiable method of calculating the license fee using the books and records that the video service provider kept in the regular course of business for other purposes, including nontax purposes.

3. A video service provider may not use bundled offerings as a means to evade paying license fees.

(Ord. No. 5542, § 1, 12-9-19)

9-7-14: PUBLIC, EDUCATIONAL, AND GOVERNMENTAL ACCESS PROGRAMMING

A. If permissible under state and federal law, all video service providers shall provide at no initial or recurring charge the basic service tier of video service to one outlet and one receiving device at each building occupied by the City that is not more than two hundred feet from the nearest technically and commercially feasible point of connection on the video service network. The City shall designate the building in writing to the video service provider.

B. A video service provider shall provide channel capacity to transmit programming over which the video service provider exercises no editorial control except as authorized by 47 United States Code Section 531I. At the City's election, the channel capacity shall be limited to one of the following:

1. Not more than two channels of public, educational or governmental access programming in the basic service tier of the video service network and not more than two channels of noncommercial governmental programming, at least one of which may be programmed by the Federal Government, in the digital programming tier of the video service network; or

2. Not more than two lines of access programming with each line of programming carried on up to two standard definition channels and two switched digital high-definition channels.

C. Unless specifically preempted by state or federal law, none of the annual fair market value of any channel capacity provided pursuant to paragraph b above may be offset against the license fee set forth in Section 9-7-13.

D. A video service provider shall regularly display an unobtrusive logo or other suitable identifier of the video service provider on public, educational of governmental access channels.

E. A video service provider shall pay all costs and expenses to provide, maintain and operate facilities and equipment of the video service network, including facilities and equipment for signal carriage, processing, reformatting and interconnection for all of the following: (i) to connect the video service network or cable system, as it may be relocated from time to time, to transmit programming to and from existing locations of public, educational or governmental access facilities and to allow monitoring of access programming at the facilities, and (ii) to transmit public, educational and governmental access channels to subscribers with the same prevailing quality, functionality and identification as other channels.

(Ord. No. 5542, § 1, 12-9-19)

9-7-15: INDEMNIFICATION

A. Disclaimer of liability: The City shall not at any time be required to pay from its own funds for injury or damage occurring to any person or property from any cause whatsoever arising out of a video service provider's construction, reconstruction, maintenance, repair, use, operation, condition or dismantling of its video service network or delivery of service.

B. Except where the City and any of its associated, affiliated, allied and subsidiary entities, now existing or hereinafter created, and their respective officers, boards, commissions, employees, agents, attorneys, and contractors (hereinafter referred to as "indemnitees") are solely and grossly negligent, a video service provider shall, at its sole cost and expense, indemnify, defend and hold harmless from and against:

1. Any and all liabilities, obligations, damages, penalties, claims, liens, costs, charges, losses and expenses (including, without limitation, reasonable fees and expenses of attorneys, expert witnesses and consultants), which may be imposed upon, incurred by or be asserted against the indemnitees by reason of: Any act or omission of the video service provider, its personnel, employees, agents, contractors or subcontractors, resulting in economic harm, personal injury, bodily injury, sickness, disease or death to any person or damage to, loss of or destruction of tangible or intangible property, libel, slander, invasion of privacy and unauthorized use of any trademark, trade name, copyright, patent, service mark or any other right of any person, firm or corporation, which may arise in whole or in part out of or be in any way connected with the video service provider's construction, reconstruction, installation, operation, maintenance or condition of the video service network and any other facilities authorized by or permitted under a video service license (including those arising in whole or in part from any matter contained in or resulting from the transmission of programming over the video service network, but excluding any programming provided by indemnitees which is transmitted over the video service network); the provision of video services or other services authorized by or permitted due to the issuance of a video service license; the release of hazardous substances, or; the failure to comply with any federal, state or local statute, ordinance or regulation.

2. Any and all liabilities, obligations, damages, penalties, claims, liens, costs, charges, losses and expenses (including, without limitation, reasonable fees and expenses of attorneys, expert witnesses and other consultants), which are imposed upon, incurred by or asserted against the indemnitees by reason of any claim or lien arising in whole or in part out of work, labor, materials or supplies provided or supplied to a video service provider, its contractors or subcontractors, for the installation, construction, reconstruction, operation or maintenance of a video services network (and any other facilities authorized by or permitted due to the issuance of a video services license) or the provision of video services (or other services authorized by or permitted due to the issuance of a video service license).

3. Any and all liabilities, obligations, damages, penalties, claims, liens, costs, charges, losses and expenses (including, without limitation, reasonable fees and expenses of attorneys, expert witnesses and consultants), which may be imposed upon, incurred by or be asserted against the indemnitees by reason of any financing or securities offering by a video service provider or its affiliates for violations of the common law or any laws, statutes, or regulations of the State of Arizona or the United States, including those of the federal securities and exchange commission.

C. Assumption of Risk: A video service providers shall undertake and assume for its officers, agents, contractors and subcontractors and employees, all risk of dangerous conditions, if any, on or about any city-owned or controlled property or the public highways, and a video service provider shall indemnify and hold harmless the indemnitees against and from any claim asserted or liability imposed upon the indemnitees for personal injury or property damage to any person (other than from indemnitees' sole and

gross negligence) arising in whole or in part out of a video service provider's installation, operation, maintenance or condition of a video services network or other facilities or a video service provider's failure to comply with any federal, state or local statute, ordinance or regulation.

D. Defense of Indemnitees: In the event any action or proceeding shall be brought against the indemnitees by reason of any matter for which a video service provider must indemnify the indemnitees pursuant to this Section, a video service provider shall, upon notice from any of the indemnitees, at the video service provider's sole cost and expense, resist and defend the same with legal counsel selected by the video service provider and consented to by the City, such consent not to be unreasonably withheld; provided, however, that a video service provider shall not admit liability in any such matter on behalf of the indemnitees without their written consent and provided further that indemnitees shall not admit liability for, nor enter into any compromise or settlement of, any claim for which they are indemnified hereunder, without the prior written consent of the video service provider.

E. Notice, Cooperation and Expenses: The indemnitees shall give a video service provider prompt notice of the making of any claim or the commencement of any action, suit or other proceeding covered by the provisions of this Section. Nothing herein shall be deemed to prevent the indemnitees at their own expense from cooperating with a video service provider and participating in the defense of any litigation by its own counsel.

(Ord. No. 5542, § 1, 12-9-19)

9-7-16: INSURANCE

A. During the term of any video services license, the video service provider shall maintain, or cause to be maintained, in full force and effect and at its sole cost and expense, the following types and limits of insurance:

1. Worker's Compensation Insurance meeting Arizona Statutory Requirements and Employer's Liability Insurance with minimum limits of two million dollars ($2,000,000) for each accident.

2. Comprehensive Commercial General Liability Insurance with minimum limits of ten million dollars ($10,000,000) as the combined single limit for each occurrence of bodily injury, personal injury and property damage. The policy shall include coverage for: Products and completed operations liability; contractor's liability; and coverage for property damage from perils of explosion, collapse or damage to underground utilities, commonly known as XCU Coverage.

3. Pollution legal liability insurance (which provides coverage for sudden and accidental environmental contamination) with minimum limits of five million dollars ($5,000,000) and providing coverage for claims discovered within three (3) years after the term of the policy.

4. Broadcasters liability coverage for loss or damage arising out of publications or utterances in the course of or related to advertising, broadcasting, telecasting or other communication activities conducted by or on behalf of the video service provider with minimum limits of ten million dollars ($10,000,000) as the combined single limit for each occurrence.

5. Automobile liability insurance covering all owned, hired, and non-owned vehicles in use by the video service provider, its employees and agents, with personal protection insurance and property

protection insurance to comply with the provisions of the Arizona No-Fault Insurance Law, with minimum limits of two million dollars ($2,000,000) as the combined single limit for each occurrence for bodily injury and property damage.

B. All insurance policies other than those for Worker's Compensation and Pollution Legal Liability Insurance shall be written on an occurrence, and not on a claims made basis. The coverage amounts set forth above may be met by a combination of underlying (primary) and umbrella policies so long as in combination the limits equal or exceed those stated. All policies of insurance shall contain a waiver of subrogation clause.

C. All policies, except for worker's compensation policies, shall name "The City of Mesa, a Municipal Corporation of the State of Arizona and all associated, affiliated, allied and subsidiary entities of Mesa, now existing or hereafter created, and their respective officers, boards, commissions, councils, employees, agents and contractors, as their respective interests may appear" as additional insureds (herein referred to as the "additional insureds") and shall include cross liability coverage. Additionally, all insurance policies shall be written with a zero-dollar deductible (no deductible).

D. Certificates of insurance for each insurance policy required to be obtained by a video service provider in compliance with this Section, along with written evidence of payment of required premiums, shall be filed and maintained with the City annually during the term a video services license. a video service provider shall immediately advise the city of any claim or litigation that may result in liability to the City.

E. All insurance shall be affected under valid and enforceable policies, insured by insurers licensed to do business by the State of Arizona or surplus line carriers on the State of Arizona Insurance Director's approved list of companies qualified to do business in the State of Arizona. All insurance carriers and surplus line carriers shall be rated A- or better by A.M. Best Company. Should the rating of an insurance carrier or surplus carrier fall below that set forth in the preceding sentence then a video services provider shall either immediately obtain policies from carriers complying with the preceding rating or the City may obtain at the video service provider's expense policies from carriers meeting the preceding rating requirement.

F. A video service provider shall either require that each and every one of its contractors and their subcontractors carry, in full force and effect, Workers' Compensation, Comprehensive General Liability and Automobile Liability Insurance which complies with this Section, or the video service provider may provide such coverages for any or all of its contractors or subcontractors (such as by adding them to its own policies).

G. As between the city and/or additional insureds on the one hand, and a video service provider on the other hand, if more than one policy of insurance does or may apply to a given claim or matter, then the policy maintained by the video service provider pursuant to the applicable video services license shall be deemed the primary policy, and that policy shall contain a provision that states that it is the primary policy as opposed to any other policy of insurance that may apply to the City and/or additional insureds on any given claim or matter. The term "policy of insurance" as applied to the city/additional insureds shall include any self-insurance program, self-insured retention or deductible or risk pooling program, or an indemnification, defense or other similar program purchased or maintained by the City/additional insureds.

(Ord. No. 5542, § 1, 12-9-19)

9-7-17: MISCELLANEOUS

A. The city shall notify in a timely manner each video service provider with a uniform video services license in the City of changes to the boundaries of the City.

B. Subscribers may submit complaints about video service to the Arizona Attorney General, the Federal Communications Commission, or any other authority provided by law.

C. Audits, including audits of bundled services, of a video services provider's books and records shall be conducted in compliance with A.R.S. § 9-1445.

D. Except as otherwise provided by law or federal regulation, a uniform video service license is fully transferable to any person whether the transfer arises through merger, sale, assignment, restructuring, change of control or other type of transaction. A transfer does not include an assignment of a uniform video service license for the purpose of securing indebtedness. A transfer may include less than all service areas associated with a uniform video service license. The video service provider shall file with the city clerk written notice of the transfer of the uniform video service license. On the filing of notice under this subsection the transferee becomes the holder of the uniform video service license.

E. A uniform video services license is subject to and shall be governed by all applicable provisions of federal, state and local law. Notwithstanding any other provisions of the uniform video services license to the contrary, the uniform video services license shall at all times comply with all laws and regulations of the state and federal government or any administrative agencies thereof; provided, however, if any such state or federal law or regulations shall require the licensee to perform any service, or shall permit the licensee to perform any service, or shall prohibit the licensee from performing any service, in conflict with the terms of the license or this Chapter, then as soon as possible following knowledge thereof, the licensee shall notify the City Attorney of the point of conflict believed to exist between such regulation or law and this Chapter or the license.

F. Enforcement of this Chapter shall be in compliance with A.R.S. § 9-1451.

(Ord. No. 5542, § 1, 12-9-19)

CHAPTER 8
OFF-SITE IMPROVEMENT REGULATIONS

9-8-1: PURPOSE AND INTENT

The purpose of these regulations is to provide for the orderly growth and harmonious development of the City of Mesa; to insure that proper off-site facilities are constructed in conjunction with the development of unsubdivided land for commercial, industrial, and multiple-residential uses, and single residential uses not in a subdivision, where no subdivision of land is required; to provide for public dedication of such rights-of-way as streets or easements as are reasonably required by or related to the effect of the proposed use; to secure adequate provisions for water supply, drainage, sanitary sewerage, and other health requirements as part of the development. In its interpretation and application, the provisions of these regulations are intended to provide a common ground of understanding and equitable working relationship between public and private interests to the end that both independent and mutual objectives can be achieved in the development of land where no subdivision is required. (1095, 4570)

9-8-2: DEFINITIONS

COUNCIL: The City Council of the City of Mesa. (1095)

DEVELOPER: A developer shall be deemed to be the individual, firm, corporation, partnership, association, syndication, trust, or other legal entity that initiates the development of land for commercial, industrial, multifamily purposes or single residential uses not in a subdivision in accordance with the provisions of this Ordinance; and said developer need not be the owner of the property as defined by this Chapter. (1095, 4570)

EASEMENT: A grant by the owner of the use of a strip of land by the public, a corporation, or persons for specific uses and purposes, and so designated. (1095)

EASEMENT, PUBLIC UTILITY (PUE): An easement for overhead and underground utility facilities provided for the use of the public, including water, storm drainage, sewage, electricity and communication, etc., owned and operated by any person, firm, corporation, municipal department, or board duly authorized by state or municipal regulations. Utility or utilities as used herein may also refer to such persons, firms, corporations, departments, or boards. (4570)

EASEMENT, PUBLIC UTILITY AND FACILITIES (PUFE): An easement for the installation of facilities, underground or overhead, furnished for the use of the public, including electricity, gas, steam, communication, water, storm drainage, sewage, sidewalks, landscaping, traffic control devices, street lights, flood control, etc., owned and operated by any person, firm, corporation, municipal department, or board duly authorized by state or municipal regulations. Utility or utilities as used herein may also refer to such persons, firms, corporations, departments or boards. (4570)

ENGINEERING PLANS: Plans, profiles, cross sections, and other required details for the construction of public improvements, prepared by a civil engineer registered in the State of Arizona in accordance with the approved preliminary plat and in compliance with City of Mesa standards of design and construction approved by the City Engineering Division. (1095, 4570)

IRRIGATION FACILITIES: Includes canals, laterals, ditches, conduits, gates, pumps, and allied equipment necessary for the supply, delivery, and drainage of irrigation water and the construction, operation, and maintenance of such. (1095)

OWNER: The person or persons holding title by deed to land or holding title as vendees under land contract or holding any other title of record. (1095)

PUBLIC IMPROVEMENT STANDARDS: A set of regulations setting forth the details, specifications, and instructions to be followed in the planning, design, and construction of certain public improvements in the City of Mesa, formulated by the City Engineer, the County Health Department, and other City departments. (1095)

RIGHT-OF-WAY IMPROVEMENTS: Construction in the public right-of-way and public easements, including, but not limited to: Streets, alleys, medians, bicycle lanes, curbs and gutters, stormwater facilities, water and sewer lines and services, fire hydrants, gas lines and services, sidewalks, driveways, streetlights, traffic control devices, street name signs, landscaping, underground and overhead utilities as required by the City Engineer. Right-of-way improvements do not include right-of-way land dedications. (4570)

RIGHT-OF-WAY, PUBLIC: An area of land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved or dedicated to the City for public purposes including, but not limited to: Street,

highway, alley, public utility, pedestrian walkway, bikeway, or drainage. Within public rights-of-way, the City of Mesa coordinates the locations of public or private improvements, underground or overhead; including electricity, gas, steam, communication, telecommunications, data transmission, cable TV, water, storm drainage, sewage, sidewalks, landscaping, traffic signals, streetlights, flood control, pedestrian, roadway purposes, etc. owned and operated by any person, firm, company, corporation, municipal department, or board duly authorized by federal, state or municipal regulations. (1095, 4570)

STREET: Any street, avenue, boulevard, road, lane, parkway, place, viaduct, easement for access, or other way which is an existing state, county, or municipal roadway, or which is dedicated as such by the owner, or a street or way in a plat duly filed and recorded in the County Recorder's office. A street includes land between the right-of-way lines, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas, and landscape areas. (1095, 4570)

ALLEY: A public service way used to provide secondary vehicular access to properties otherwise abutting upon a street. (1095)

ARTERIAL STREET: A general term including freeways, expressways, and major arterial streets and interstate, state, or county highways having regional continuity. (1095)

COLLECTOR STREET: Provides the traffic movement within neighborhoods of the City and between major streets and local streets and for direct access to abutting property. (1095)

LOCAL STREET: Provides for direct access to residential, commercial, industrial, or other abutting land or for local traffic movements and connects to collector and/or major streets. (1095)

UTILITIES: Installations or facilities, underground or overhead, furnishing for the use of the public electricity, gas, steam, communication, water, drainage, sewage disposal, or flood control, owned and operated by any person, firm, corporation, City of Mesa department, or board duly authorized by state or City of Mesa regulations. Utility or utilities as used herein may also refer to such persons, firms, corporations, departments, or boards as sense requires. (1095)

9-8-3: STREET AND UTILITY IMPROVEMENT REQUIREMENTS

(A) Purpose. It is the purpose of this Section to establish in outline the minimum acceptable standards for improvement of public streets and utilities, and dedication of rights-of-way where required, to define the responsibility of the developer in the planning, constructing, and financing of public improvements and to establish procedures for review and approval of engineering plans. (1095, 3105, 4570)

All improvements required in streets, alleys, or easements which are required as a condition of site plan approval shall be the responsibility of the developer. (1095)

The City Engineer is authorized to develop and apply such engineering standards, specifications, and procedures for the design and construction of improvements as are consistent with the objectives of this section and necessary or appropriate to protect the public health, safety, and welfare. (4570)

(B) Applicability. The standards and requirements of this Section shall apply to all commercial, industrial, and multiple-residential developments, and single residential developments where no subdivision of land is required, as follows: (3105, 4570)

1. Any new construction on undeveloped or vacant parcels; or (3105)

2. Total removal and reconstruction of existing buildings and structures; or (3105)

3. A one hundred percent (100%) or more increase in the total aggregate area of existing building and structures. (3105, 4570)

4. Buildings and structures existing at the time of annexation by the City. (4834)

(C) Responsibility for Improvements — New Development. All requirements required under Section 9-8-3(B)1 shall be the responsibility of the developer. (4570)

(D) Responsibility for Improvements — Existing Development. The requirements of Section 9-8-3(B)2 and 3 apply to parcels and shall be the responsibility of the developer as follows:

1. For parcels that have not previously provided R-O-W improvements in accordance with the standards at the time of development or annexation, or paid in-lieu fees for such improvements, the developer is responsible for all improvements. (4570, 4834)

2. For parcels fronting on other than arterial streets, that have previously provided R-O-W improvements in accordance with the standards at the time of development or annexation, or paid in-lieu fees for such improvements, the developer is not responsible for additional improvement requirements. (4570, 4834)

3. For parcels fronting on arterial streets, that have previously provided R-O-W improvements in accordance with the standards at the time of development or annexation, or paid in-lieu fees for such improvements, the developer is not responsible for arterial street widening improvements when such improvements are not identified on the City's currently adopted Transportation Plan. (4570, 4834)

4. For parcels fronting on arterial streets, that have previously provided R-O-W improvements in accordance with the standards at the time of development or annexation, or paid in-lieu fees for such improvements, the developer is responsible for fifty percent (50%) of the costs of the arterial street widening requirements calculated in accordance with City policy as approved by the City Engineer when such street widening improvements are identified on the City's currently adopted Transportation Plan but are not a part of the City's five (5) year Capital Improvement Plan. (4570, 4834)

5. For parcels fronting arterial streets, that have previously provided R-O-W improvements in accordance with the standards at the time of development or annexation, or paid in-lieu fees for such improvements, the developer is responsible for all of the costs of the arterial street widening requirements calculated in accordance with City policy as approved by the City Engineer when such street widening improvements are identified on the City's currently adopted Transportation Plan and are a part of the City's five (5) year Capital Improvement Plan. (4570, 4834)

The developer's responsibility for right-of-way improvements as determined in this section may be fulfilled by constructing the required right-of-way improvements in accordance with all City requirements and standards or by paying an in-lieu payment in accordance with Section 9-8-4(C), as approved by the City Engineer. (4570)

(E) Engineering Plans. (1095, 3105, 4570)

1. It shall be the responsibility of the developer to have prepared by a civil engineer, registered in the State of Arizona, a complete set of engineering plans, satisfactory to the City Engineer, for construction of required improvements. Such plans shall be prepared and submitted to the City of Mesa Building Safety Director together with the on-site construction plans. (1095, 4570)

2. Engineering plans shall be approved by the City Engineer prior to the issuance of a building permit by the City Building Safety Director. (1095, 4570)

(F) Dedication of Rights-of-Way. The dedication of rights-of-way in accordance with Section 9-6-2 and the table contained in this Section shall be made prior to the issuance of a building permit, or rights-of-way permit, or pursuant to the recording of a subdivision plat or land split document. (1095, 3105, 4570)

RIGHTS-OF-WAY DEDICATION TABLE

Street Classification	**Local**	**Collector**	**Major Collector**	**Local Industrial**	**Arterial**
R/W Dedication	50' Full Street	80' Full Street	110' Full Street	80' Full Street	*130' Full Street
	25' Half Street	40' Half Street	55' Half Street	40' Half Street	*65' Half Street

* Footnote: Additional right-of-way width required at arterial-to-arterial intersections. See Section 11-13-2 (J).

Refer to Sections 9-8-4 and 9-8-5 for modifications and appeals to these requirements.

(G) Construction and Inspection. (1095, 3105, 4570)

1. All improvements in the public right-of-way shall be constructed under the inspection and approval of the City Engineer. Construction shall not be commenced until a permit has been issued for such construction, and if work has been discontinued for any reason, it shall not be restarted prior to notifying the City Engineer. (1095, 4570)

2. All underground utilities to be installed in streets and alleys shall be constructed prior to the surfacing of such streets and alleys. Service stubs for underground utilities shall be placed in such length and size as not to necessitate disturbance of street improvements when service connections are made. (1095)

(H) Required Right-of-Way Improvements. (1095, 3105, 4570, 5395)

1. Streets. All streets contiguous to the developing land shall be paved and concrete curbs and gutters installed to lines, grades, and dimensions approved by the City Engineer and in conformance with City standards. The streets shall be improved to the centerline thereof. When improvement of a major collector or arterial street is required, the City will pay for such extra width paving as may be deemed appropriate by the City. (1095)

2. Alleys. All alleys adjacent to the developing land shall be surfaced with granite or ABC to grades and dimensions approved by the City Engineer and in conformance with City standards, except that alleys to be used for primary vehicular access as defined under Section 9-5-1 of the City Code

shall be improved as required by Section 9-5-1 of the City Code. Alleys to be used for delivery of goods and materials to commercial and industrial buildings shall be considered to be used for primary vehicular access. (1095)

3. Sidewalks. Concrete sidewalks shall be constructed along the entire length of the street adjacent to the land under development to a width and to lines and grades approved by the City Engineer and in conformance with City standards. (1095)

4. Water and Sewer Lines. Water and sewer lines shall be installed in all streets adjacent to the land under development to lines and grades and of such sizes as approved by the City Engineer and in conformance with City standards. Water and sewer service lines of sizes and at locations approved by the City Engineer and in conformance with City standards shall be installed prior to paving the streets and improving the alleys. Where it is necessary to extend a water or sewer main from an existing main of adequate size to the development, the developer will be required to pay the full cost of the line extension. If requested, the City may participate in the oversize improvement cost in a "City-share" agreement where applicable, and may also enter into a private line agreement with the developer to provide for equitable and proportionate recovery of the actual extension costs in excess of any City-share and those costs attributable to the developer's property. If the City enters into a private line agreement, subsequent developers must pay a proportionate and equitable share of the cost, by frontage or acreage, of the line extension at such time as they develop benefitted property, whether or not the benefitted property takes service from the line extension. The City is authorized to adopt policies, procedures, and methods for City-share and cost share, and all City-share and private line agreements shall be subject to compliance therewith.

5. Fire Hydrants. Fire hydrants shall be installed along adjacent streets at locations and to lines and grades approved by the City Engineer and in conformance with City standards. (1095)

6. Irrigation Lines and Ditches. All S.R.P. and R.W.C.D. irrigation ditches located in the streets, alleys, or public easements adjacent to the land being developed shall be piped or abandoned in accordance with plans and specifications prepared by the respective irrigation district and as approved by the City Engineer. All private irrigation ditches in the streets, alleys, or public easements adjacent to the land being developed shall be piped or abandoned to lines and grades as approved by the City Engineer and in conformance with City standards. (1095, 4570)

7. Storm Drainage. (1095, 1896)

   (a) The developer shall make provisions to retain within the boundaries of his development the runoff generated by development of the site in accordance with plans approved by the City Engineer and in conformance with City standards. The plans shall show the method, location, and capacity of retention to be provided. The plans shall also show the runoff calculations, surface, grades, and methods of draining the retention facility. A one hundred- (100-) year, two- (2-) hour storm will be used as a minimum basis for the design of drainage facilities. (1095, 1896, 2776)

   (b) In lieu of retaining runoff within the boundaries of the development, a common retention facility may be established for two (2) or more developments. This shall be done in accordance with plans approved by the City Engineer and in conformance with City standards. (1095, 1896)

(c) Retention facilities shall be of the type and size approved by the City Engineer. (Multiple, small retention areas shall not normally be acceptable.) (1896)

(d) At the time of completion of development, the developer's engineer shall provide as-built certification to the City Engineer that the drainage and retention facilities were constructed in accordance with the approved plans and conform to City standards. Said certification shall be signed by the engineer and stamped with his professional seal. (1896)

(e) Once constructed and approved by the City, the drainage and retention facilities may not be modified unless modification is approved by the City Engineer. (1896)

8. Streetlights. Streetlights shall be installed in accordance with Section 9-6-4(D)10. of City Code and per City Engineering and Design Standards. (1095, 1647, 1772, 3766)

9. Traffic Control Devices. Traffic control devices shall be provided or existing control devices shall be modified in conjunction with the development in accordance with designs approved by the Development Services Department, where required in accordance with the Mesa Transportation Division. The Transportation Division may defer the installation of required traffic control devices. (4570)

When the installation of required traffic control devices is deferred, the owner/developer shall pay the City a payment in-lieu of causing the actual design, installation, and/or construction of the devices. This in-lieu payment shall be based upon a cost estimate prepared by a professionally registered civil engineer and approved by the City of Mesa. The in-lieu payment cost estimate shall include all design costs, labor and materials costs, plus twenty percent (20%) for future contingency costs. All in-lieu payments shall be remitted to the City of Mesa as a condition of and in conjunction with the issuance of any on-site construction permits and/or off-site rights-of-way permits associated with the development project. (4570)

10. Street Name Signs. Street name signs shall be placed in all street intersections. The developer shall install signposts and signs per Mesa Standard Details with designs approved by the City Traffic Engineer. (1095, 4570, 5395)

11. Survey Monuments. Survey monuments conforming to City standards shall be installed at all corners, angle-points, points of curves, and at all street intersections adjacent to the land under development and at such other locations as may be required by the City Engineer. After all improvements have been installed, a registered land surveyor or registered civil engineer shall check the locations of the monuments and mark the brass cap. (1095, 4570, 5395)

(I) Oversize of Required Public Improvements. The developer may be required to oversize certain public street and utility improvements for the purpose of ensuring that the City of Mesa's public improvement standards for transportation, utility service, and infrastructure are maintained. The City of Mesa may participate in the increased costs of oversize improvements when approved by the Development Services Manager. The City's commitment to participate in these increased costs may be formalized in a development agreement limited to those improvements specifically identified as oversize and executed by the developer and the Development Services Manager. (2907, 3105, 3766, 4570)

(Ord. No. 5538, § 12, 12-2-19; Ord. No. 5826, § 2, 12-4-23)

9-8-4: MODIFICATIONS

(A) Where an individualized assessment reveals the existence of special conditions involving topography, land ownership, adjacent development, parcel configuration, or other factors relating to the impact the development will have on the City's need for off-site improvements associated with the proposed development, the City Manager or designee may reduce, defer, or approve alternatives to the requirements and specifications contained in this Chapter based upon a finding that such conditions or factors exist and that the requirements will substantially impair existing uses or the ability for development. (3105, 3766, 4606, 4771)

[The next page is T9:137]

(B) Where an individualized assessment reveals the existence of extraordinary conditions involving topography, land ownership, adjacent development, parcel configuration, or other factors, relating to the impact the development will have on the City's need for the dedication of rights-of-way, the City Manager or designee may eliminate, reduce, defer or approve alternatives to the dedication of rights-of-way requirements contained in this chapter upon finding that such conditions or factors exist and that the requirements will substantially impair existing uses or the ability for development. (4570, 4606, 4771, 4777)

(C) With the approval of, or amendment to, a rezoning to PC District, the City Council may approve modifications to the requirements and specifications required by this Chapter if the City Engineer or City Traffic Engineer recommends approval of the modification. The City Engineer or City Traffic Engineer, in consultation with the Planning Director, may recommend the elimination, reduction, or approval of alternatives to the requirements and specification required by this Chapter. If the City Engineer or City Traffic Engineer recommends approval of such a modification, the recommendation, which may be subject to conditions or stipulations, shall be forwarded to the City Council with the PC district. City Council may approve the modification as recommended. The City Engineer's or City Traffic Engineer's recommendation shall be based upon a finding that the modification:

1. Is consistent with the intent of these regulations; (4771)

2. Will result in an equivalent level of service for health, safety and welfare to the General public; (4771)

3. Will result in improvements that are adequate and meet the City's needs; (4771)

4. Furthers the purposes of the PC District; and (4771)

5. Is not contrary to the public interest. (4771)

(D) To ensure compliance with any elimination, modification, deferral, or alternative, the City Manager or designee may require certain provisions such as protective covenants, bonds, and development agreements. Such provisions may be recorded against the property being developed. (3105, 3766, 4570, 4771, 4777)

1. When the deferral of certain right-of-way improvement requirements is authorized by the City Manager or designee for a specific development project, the owner and/or developer shall remit to the City of Mesa a payment in lieu of causing the actual design, installation, and/or construction of said required public improvements. This in-lieu payment shall be based upon a cost estimate prepared by a professionally registered civil engineer and approved by the City of Mesa. The in-lieu payment cost estimate shall include all design costs, labor and materials costs, plus twenty percent (20%) for future contingency costs. All in-lieu payments shall be remitted to the City of Mesa as a condition of and in conjunction with the issuance of any on-site construction permits and/or off-site rights-of-way permits associated with the development project. (3882, 4570, 4771)

2. The obligation to construct right-of-way improvements or make an in-lieu payment prior to the issuance of permits, including the determination of the amount of the in-lieu payment required, may be deferred to a future date if the developer provides financial assurances acceptable to the City Engineer and the City Attorney, the developer and City enter into a development agreement

that provides adequate financial assurance for the future construction of the improvements and/or the future payment of an in-lieu amount, and the City Manager or designee finds that such deferral meets all of the following criteria:

(a) The development is non-residential; and (4777)

(b) The property is zoned as a commercial or industrial district; and (4777)

(c) The deferred right-of-way improvements are not included in this City's Capital Improvement Plan for construction within five (5) years of the deferral; and (4777)

(d) The deferral is in the best interest of the City of Mesa. (4777)

Editor's note—Ord. No. 3105 amended § 9-8-4 to read as herein set out. Former § 9-8-4 derived from Ord. Nos. 1095, 1656.

9-8-5: APPEALS

(A) Discretionary decisions of the Development Services Manager may be appealed to the Hearing Office, who shall be appointed by the City Manager, when such decisions involve one (1) or more of the following: (3105, 3766)

1. Any requirement that exceeds or is in addition to the minimum development requirements as defined in this Chapter. (3105)

2. Any requirement not specified in the Mesa City Code or other legislative act of the City of Mesa. (3105)

3. Any requirement resulting from a discretionary act of an administrative official of the City of Mesa. (3105)

(B) Appeals to the Hearing Officer may be submitted by the developer or owner of the property proposed for development which is affected by a discretionary decision of the Development Services Manager. The appeal shall be submitted within thirty (30) days of such decision by filing with the Development Services Manager a notice of appeal on a form provided therefor. No fee is required for this appeal. The Development Services Manager shall transmit to the Hearing Officer all the papers constituting the records upon which the decision appealed from was taken. (3105, 3766)

(C) The Hearing Officer shall schedule a time for the appeal to be heard, which shall be no later than thirty (30) days from receipt of the appeal. The appellant shall be given at least ten (10) days' prior notice of the date and time set for the hearing. The Hearing Officer shall decide the appeal within five (5) working days from the date the appeal hearing concludes. (3105)

(D) For determination of the appeal, it shall be the responsibility of the City to establish that there is a nexus between the requirement and a legitimate governmental interest and that the requirement is roughly proportional to the impact of the proposed use, improvement, or development. If more than a single parcel is involved, this requirement applies to the entire property that is subject to the approval. (3105)

(E) If the appeal is upheld, the Hearing Officer shall modify or delete the requirement. If the appeal is denied, the appellant may at any time within thirty (30) days of the decision of the Hearing Officer file a complaint for a trial de novo in the Superior Court on the facts and the law regarding the issues of the requirement. (3105)

9-8-6: PENALTIES

(A) It is unlawful to develop land contrary to or in violation of any provisions of this Chapter or of any provision designated as a condition of approval either by the plan review process or through an amendment, variance, or appeal by an office, board, commission, or the City Council as established by this Chapter. (3105)

(B) Any person, firm, or corporation violating any provision of this Chapter and any amendments to it shall be guilty of a Class 1 misdemeanor, punishable by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment; and each day of violation continued shall be a separate offense, punishable as described. (3105)

CHAPTER 9
FALCON FIELD AIRPORT*

9-9-1: DEFINITIONS

AIRPORT: The Falcon Field Airport. (1246)

CITY: The City of Mesa. (1246)

COUNCIL: The City Council, City of Mesa. (1246)

DIRECTOR: The Neighborhood Services Manager, Neighborhood Services Department, City of Mesa, or his designee. (1246, 3168, 3766)

FIELD AREA: That area on the landing area side of the terminal building, including passenger ramp, aircraft parking areas, shops, hangars, gasoline storage areas, runways, taxiways, perimeter roads, and all areas separated from roadways, sidewalks, buildings, and highways by means of fencing, no trespassing signs, or lack of evidence of provisions of proper facilities for convenient, safe, and easy entrance into and around subject land sections and areas or any other specific areas designated by the Director as field areas. (1246)

PUBLIC AREA: That area including the various concessions, rest rooms, terminal building lobby section used for public access, roadways, sidewalks, and parking lots. Office areas and approaches thereto are not public areas. (1246)

9-9-2: GENERAL RULES AND REGULATIONS

(A) The Director may issue such rules, regulations, orders, and instructions as are necessary in the administration of this Chapter. He may post signs at the airport which state or apply such rules, regulations, orders, or instructions. Each person on the airport shall comply with these orders, regulations, and signs. Each member of the staff of the Director, as a representative of the Director, is empowered to require compliance with the provisions of this Chapter and all orders and regulations issued by the Director. (1246)

***Cross reference**—See Title 6, Chapter 3 for Aircraft Regulations.

(B) The airport shall be conducted as a public air facility for the promotion and accommodation of civil aviation and associated activities. (1246)

(C) The airport shall be open for public use at such hours and subject to such restrictions as may be determined by the City Council. (1246)

(D) The privilege of using the airport and its facilities shall be conditioned on the assumption by the user thereof of full responsibility and risk for such use, and by accepting the use of the airport and its facilities, the user thereof releases and agrees to hold the City and its officers and employees harmless and indemnify them from any liability or loss resulting from such use. The owners and operators of all aircraft based at the airport shall comply with all of the applicable provisions of A.R.S. Title 28, Chapter 12. (1246)

9-9-3: AIRCRAFT OPERATIONS

(A) No person shall conduct any aircraft operation to, on, from, or over the airport except in conformity with all Federal Aviation Administration regulations; the applicable provisions of Title 28, Chapter 12, Arizona Revised Statutes; this Section; and rules and regulations established by the Director. (1246)

(B) No person shall take off or land an aircraft on the airport except on a hard surface area unless otherwise authorized by the Director. (1246)

(C) All aircraft traffic shall conform to the established traffic pattern as approved by the Director and posted at the airport. (1246)

(D) No person shall park or loiter an aircraft on any runway or taxiway at the airport. (1246)

(E) No person shall park or store an aircraft at the airport except in areas designated by the Director. (1246)

(F) Preventive maintenance work, as defined in Title 14, Part 43, Appendix A(c), Code of Federal Regulations, may be performed at the airport tie-down areas by the owner or operator of the aircraft. Aircraft owners who possess current mechanic ratings such as A & P and A & I may do additional work in the tie-down areas subject to approval of the Director. All other aircraft maintenance, rebuilding, and alterations shall be performed only in areas designated by the Director. (1246)

(G) No person shall conduct experimental flight or ground demonstrations on the airport without prior permission of the Director. (1246)

(H) No person shall take any aircraft from the landing area or hangars or operate such aircraft while under the influence of intoxicating liquor or a dangerous drug. (1246)

(I) No person shall board or disembark from any aircraft on a runway or in the takeoff or landing area except in an emergency or with prior approval of the Director. (1246)

(J) Persons parking transient aircraft shall register their aircraft with the Director or his representative as soon as possible after landing at the airport. (1246)

(K) All owners and operators who desire to base their aircraft at the airport shall register their aircraft with the Director or his representative prior to beginning operations. Any change in ownership of the aircraft shall be reported immediately. (1246)

(L) No person shall leave an aircraft unattended unless it is properly tied down or placed in a hangar. (1246)

(M) No engine in an aircraft shall be started or run without a competent person at the engine controls and unless blocks have been placed in front of the wheels or the aircraft has adequate parking brakes. No aircraft engine shall be operated in such manner as to endanger life or property. (1246)

(N) No aircraft shall be operated in or taxied into or out of a hangar. (1246)

(O) If the Director believes the conditions at the airport or any portion thereof are unfavorable for aircraft operations, he may close the airport or such portions thereof, using applicable FAA procedures as appropriate. (1246)

(P) No aircraft capable of movement on the ground shall be operated on the airport unless it is equipped with wheels and wheel brakes except with permission of the Director. (1246)

(Q) No aircraft shall be permitted to remain on any part of the landing or takeoff areas for the purpose of repairs. (1246)

(R) All aircraft shall be taxied at slow and reasonable speeds and shall not be taxied onto a runway without first stopping and waiting for any approaching aircraft preparing to land. (1246)

(S) No person shall, without the owner's permission, interfere or tamper with an aircraft parked or stored at the airport. (1246)

(T) No person shall move an aircraft on the airport in a negligent or reckless manner. (1246)

(U) No person shall start or taxi any aircraft on the airport in a place where the air or exhaust blast is likely to cause injuries to persons or property. If the aircraft cannot be taxied without violating this Subsection, the operator must have it towed to the desirable destination. (1246)

(V) No person shall move a rotocraft at a place on the airport while its rotors are turning unless there is a clear area of at least fifty feet (50') from the outer tip of each rotor. (1246)

9-9-4: AIRCRAFT ACCIDENT PROCEDURES

(A) Persons involved in aircraft accidents occurring at the airport shall make a full report thereof to the Director or his representative within twenty-four (24) hours after such accident. (1246)

(B) Any person damaging property on the airport by means of contact with aircraft shall report such damage to the airport office immediately and shall be fully responsible to the City for costs of repairs. (1246)

(C) Every pilot and aircraft owner shall be responsible for the prompt removal of his disabled aircraft or parts thereof as directed by the Director or his representative, subject to accident investigation requirements. (1246)

9-9-5: MOTOR VEHICLE REGULATIONS

(A) No motor vehicle shall be operated on the airport if it is so constructed, equipped, or located as to endanger persons or property. (1246)

(B) Each operator of a motor vehicle involved in an accident between that vehicle and an aircraft or in any other motor vehicle accident on the airport that results in personal injury or in total property damage of more than fifty dollars ($50.00), shall make a full report thereof to the Director as soon as possible after the accident. The report must include the name and address of the person reporting. (1246)

(C) No person shall operate any motor vehicle on the airport in violation of this Chapter or rules promulgated and posted by the Director or the laws of the State of Arizona. (1246)

(D) No person shall operate a motor vehicle on the airport in a negligent or reckless manner or in excess of posted speed limits. (1246)

(E) No motor vehicle shall be permitted on taxiways, runways, or operational areas, except authorized maintenance or service vehicles, without prior permission of the Director. (1246)

(F) No person shall operate a vehicle on, to, or across a runway except when authorized by the Director or his representative. (1246)

(G) Operators of motor vehicles on the field area shall yield the right-of-way to taxiing aircraft. (1246)

(H) All motor vehicles on the field area shall pass to the rear of aircraft whose engines are running. (1246)

(I) When backing gasoline tenders, the driver shall remain in the vehicle and shall not stand on the running board or fender. Gasoline tenders shall at no time be so positioned as to prevent their rapid removal. (1246)

(J) Except as authorized by the Director, no person shall clean or make any repairs to motor vehicles anywhere on the airport other than designated shop areas except those minor repairs necessary to remove such motor vehicle to a proper location. (1246)

(K) Parking. (1246)

1. No person shall park or stand a motor vehicle on the airport except in an area specifically designated therefor. (1246)
2. No person shall park a motor vehicle in any posted area on the airport for a period longer than that prescribed by the City. (1246)
3. No person shall park a vehicle in a restricted or reserved area on the airport unless he displays, in the manner prescribed by the Director, a parking permit issued by the Director for that area. (1246)
4. No person shall double-park a motor vehicle on any road on the airport. (1246)
5. No person shall abandon a motor vehicle on the airport. (1246)
6. No person shall leave a motor vehicle standing unattended or parked on the airport with a key in the ignition switch, the motor running, a key in the door lock, or an open door. (1246)
7. No person shall park or stand a motor vehicle at any place on the airport in violation of any sign posted by the Director. (1246)
8. No person shall park or stand a motor vehicle within fifteen feet (15') of a fire hydrant on the airport or park in such manner as to block any fire gate or entrance. (1246)
9. No person shall park a motor vehicle in any marked space in such manner as to occupy more than one (1) space. (1246)

10. No person shall park a motor vehicle in individual storage hangars or aircraft shelters unless permitted by the owner or lessee of said structure. (1246)

11. The Director or his agent may remove, at the owner's expense, any motor vehicle which is parked on the airport in violation of this Chapter. The vehicle shall be subject to a lien for the cost of removal. (1246)

Cross reference—See Section 10-4-8 for Speed Limits.

9-9-6: TAXICABS

(A) No person shall operate a vehicle that is carrying passengers for hire from the airport unless he is the holder of a contract authorizing same by the City Council. (1246)

(B) Except for discharging passengers, no person shall park on the airport a vehicle used for the purpose of carrying passengers for hire unless he is the holder of a contract authorizing same by the City Council. (1246)

(C) No person shall, on the airport, solicit or invite any person to ride in a vehicle used for the purpose of carrying passengers for hire, either by driving slowly past a loading entrance to an airport building or by any other act or utterance calculated to induce that person to engage the vehicle, unless said taxicab operator is the holder of a contract authorizing same by the City Council. (1246)

9-9-7: RULES OF CONDUCT

(A) No person shall commit any act or nuisance on the airport. (1246)

(B) No person shall dispose of garbage, papers, refuse, or other such material on the airport except in receptacles provided for that purpose. (1246)

(C) No person shall destroy, injure, deface, or disturb any building, sign, equipment, marker or other structure, tree, flower, lawn, or other public property on the airport. (1246)

(D) No person shall alter, make additions to, or erect any building or sign or make any excavations on the airport without the permission of the Director, subject to lease provisions. (1246)

(E) No person shall willfully abandon any personal property on the airport. (1246)

(F) No person may ride horseback on the airport without permission of the Director. (1246)

(G) No person shall hunt, pursue, trap, catch, injure, or kill any bird or animal on the airport without authorization of the Director. (1246)

(H) No person, except peace officers, an authorized post officer, air carrier, airport employee, or a member of an armed force of the United States on official duty, shall carry any weapon, explosive, or inflammable material on or about his person, openly or concealed, on the airport without the written permission of the Director. This Section shall not apply to persons carrying firearms in cases, broken down or unloaded, when said firearms are being transported by air. For the purpose of this Section, a weapon includes all those listed in Section 13-3101, Arizona Revised Statutes. (1246)

(I) No person shall solicit fares, alms, or funds for any purpose on the airport without permission of the Director. (1246)

(J) No person shall post, distribute, or display signs, advertisements, circulars, or other printed or written matter in the public area of the airport without permission of the Director. (1246)

(K) No person may enter the airport with a dog or other domestic animal unless the animal is kept restrained by a leash or is confined so as to be completely under control. (1246)

(L) No person shall loiter or loaf on any part of the airport. (1246)

(M) No unauthorized person shall enter any restricted area posted as being closed to the public. (1246)

(N) No person shall use a rest room other than in a clean and sanitary manner. (1246)

(O) No person shall drink alcoholic beverages in the terminal building lobby. (1246)

9-9-8: COMMERCIAL PHOTOGRAPHY

(A) Except as hereinafter provided, no person shall take a still, motion, or sound picture on the airport for commercial purpose without the permission of the Director. (1246)

(B) The Director may allow any of the following to take pictures on the airport for commercial purposes: (1246)

1. Professional photographers and motion picture cameramen photographing events on the airport as representatives of news concerns or bona fide news publications. (1246)

2. Professional photographers and motion picture cameramen photographing events at the airport, for nonprofit exhibit, to stimulate interest in air commerce or travel, or for nonprofit educational purposes. (1246)

3. Professional photographers photographing scenes on the airport for general artistic purposes. (1246)

9-9-9: USE OF ROADS AND WALKS

(A) No person shall travel on the airport except on a road, walk, or other place provided for the kind of travel he is doing. (1246)

(B) No person shall occupy or place an object on the road or walk on the airport in a manner that hinders or obstructs its proper use. (1246)

(C) No person shall walk in a picket line as a picket or take part in a labor or other public demonstration on any part of the airport except in a place specifically assigned by the Director for picket lines or other public demonstrations. (1246)

9-9-10: USE OF GATE POSITIONS

(A) No person shall use an aircraft gate position on the airport unless he has been authorized to use it. (1246)

(B) Except in an emergency, no person shall emplane or deplane passengers on the airport on an area that has not been established for that purpose by the Director. (1246)

(C) No person shall park an aircraft which is carrying explosives or inflammable material, nor shall he load or unload such items on or from such aircraft, other than in areas designated by the Director. (1246)

(D) No person may repair an aircraft while it is parked at the gate position, except for minor adjustments. (1246)

9-9-11: FIRE HAZARDS AND FUELING OPERATIONS

(A) Fuel Delivery and Dispensing. No person shall transport or deliver aviation fuels, oils, or lubricants on the airport or dispense fuels into aircraft unless he is the holder of a valid permit with the City authorizing such activity. (1246)

(B) Cleaning Fluids. No person shall use a flammable volatile liquid having a flash point of less than one hundred degrees (100°) Fahrenheit to clean an aircraft, aircraft engine, propeller, or appliance in an aircraft hangar or similar type building or within fifty feet (50') of another aircraft, building, or hangar. (1246)

(C) Open-Flame Operations. No open flame, flame-producing device, or other source of ignition shall be permitted in any hangar or similar-type building except in locations approved by the Director. (1246)

(D) Smoking. No person shall smoke on any apron or ramp, in any hangar or shop, in any aircraft, or in any other place on the airport where smoking is specifically prohibited by the Director. (1246)

(E) Storage. (1246)

1. No person shall store or stock material or equipment on the airport in a manner that constitutes a fire hazard. (1246)

2. No person shall store any combustible materials, flammable liquids, or other hazardous materials in an aircraft hangar or other building on the airport except in locations and containers approved by the Mesa Fire Department. (1246)

3. Each lessee of a hangar on the airport shall provide suitable metal receptacles for storing waste, rags, and other rubbish and shall remove all rubbish from its premises each week. (1246)

(F) Apron Surface Areas and Floor Surface. (1246)

1. Each person to whom space on the airport is leased, assigned, or made available for use shall keep the space free and clear of oil, grease, or other foreign materials that could cause a fire hazard or a slippery or otherwise unsafe condition. (1246)

2. No person shall use any material (such as oil absorbents or similar material) that creates an eye hazard when picked up, swirled, or blown about by the blast from an aircraft engine in any passenger loading area or other public area. (1246)

(G) Doping. (1246)

1. No person shall conduct a doping process on the airport except in a properly designed fire-resistive and ventilated room or building in which all lights, wiring, heating, ventilating equipment, switches, outlets, and fixtures are approved for use in such hazardous areas and in which all exit facilities are approved and maintained for such use or except in an open area as designated by the Director. (1246)

2. No person shall enter or work in a dope room while doping processes are being conducted unless he is wearing sparkproof shoes. (1246)

(H) Fueling Operations. (1246)

1. No person shall fuel or defuel an aircraft on the airport while: (1246)

   (a) Its engine is running or is being warmed by applying external heat; (1246)

   (b) It is in a hangar or enclosed space; (1246)

   (c) Passengers are in the aircraft, unless a passenger loading ramp is in place at the cabin door, the door is open, and a cabin attendant is at or near the door. A "No Smoking" sign shall be displayed in the cabin and the rule enforced. (1246)

2. No person shall start the engine of an aircraft on the airport if there is any gasoline or other volatile flammable liquid on the ground beneath it of sufficient quantity to constitute a hazard. (1246)

3. No person shall operate a radio transmitter or receiver or switch electrical appliances on or off in an aircraft on the airport while it is being fueled or defueled. (1246)

4. During the fueling of an aircraft on the airport, the dispensing apparatus and the aircraft shall both be grounded in accordance with orders and instructions of the Director. (1246)

5. Each person engaged in fueling or defueling on the airport shall exercise care to prevent the overflow of fuel and shall have readily accessible and adequate fire extinguishers. (1246)

6. During the fueling or defueling of an aircraft on the airport, no person shall, within fifty feet (50') of that aircraft, smoke or use any material that is likely to cause a spark or be a source of ignition. (1246)

7. Each hose, funnel, or appurtenance used in fueling or defueling an aircraft on the airport shall be maintained in a safe, sound, and nonleaking condition and must be properly grounded to prevent ignition of volatile liquids. (1246)

(I) Mesa Fire Code. All persons shall comply with the provisions of the Mesa Fire Code found in Title 7, Chapter 2 of the Mesa City Code. (1246)

(J) Inspections. The City Fire Chief or his duly authorized representatives shall inspect monthly or as often as may be necessary all buildings and premises for the purpose of ascertaining and causing to be corrected any conditions which would reasonably tend to cause fire or contribute to its spread or endanger life or property from fire. All orders, notices, or recommendations of the City Fire Chief shall be complied with by all persons without delay. (1246)

9-9-12: OBLIGATION OF TENANTS

(A) Use of Premises. No lessee of airport property shall knowingly allow that property to be used or occupied for any purpose prohibited by this Chapter. (1246)

(B) Trash Containers. (1246)

1. No tenant, lessee, concessionaire, or agent of any of them doing business on the airport shall keep uncovered trash containers on a sidewalk or road or in a public area of the airport. (1246)

2. No person shall operate an uncovered vehicle to haul trash on the airport. (1246)

3. No person shall operate a vehicle for hauling trash, dirt, or any other material on the airport unless it is built to prevent its contents from dropping, sifting, leaking, or otherwise escaping. (1246)

4. No person shall spill dirt or any other material from a vehicle operated on the airport. (1246)

(C) Bulletin Boards. Each lessee of a hangar or other operational area specified by the Director on the airport shall maintain a bulletin board in a conspicuous place in his hangar or area. He shall post on that board current workmens' compensation notices, a list of competent physicians, a list of his liability insurance carriers, a copy of this Chapter, and a copy of each pertinent order or instruction issued under this Chapter. (1246)

(D) Storage of Equipment. No tenant or lessee of a hangar, shop facility, or other operational area specified by the Director on the airport shall store or stack equipment or material in a manner to be a hazard to persons or property. (1246)

(E) Fire Apparatus. Each tenant or lessee of a hangar, shop facility, or other operational area specified by the Director on the airport shall supply and maintain adequate and readily accessible fire extinguishers, approved by Underwriters' Laboratories for the hazard involved, as the Director considers necessary. (1246)

(F) Right of Inspection. The Director or his authorized representative shall have the right at all reasonable times to inspect all areas under lease to or occupied by tenants. (1246)

9-9-13: COMMERCIAL OPERATIONS

(A) Policy. As the operator and proprietor of the airport, on behalf of the citizens of the City, it is the policy and intent of the City Council: (1246)

1. To operate the airport in a businesslike manner with as little cost as possible to the taxpayer through the imposition of fair and reasonable rentals, fees, and charges. (1246)

2. To provide for both private and commercial aviation at the airport to the extent practicable within physical, economical, and environmental constraint. (1246)

3. To provide for the full range of on-base aeronautical support through private enterprise consistent with the need for the service and the availability of space and physical facilities. (1246)

4. To protect airport patrons and users from unsafe and inadequate aeronautical service and to maintain and preserve all airport facilities in a safe, secure, and orderly condition. (1246)

5. To promote fair competition and not to expose those who have lawfully undertaken to provide commodities and services at the airport to irresponsible, unethical, or unauthorized competition. (1246)

6. To permit and provide adequate facilities for owners of general aviation aircraft to work on and service their own aircraft within such limits as may be imposed by this Section or airport regulation for purposes of safety, preservation of airport facilities, and protection of the public interest. (1246)

7. To promote the utility, educational, and recreational aspects of general aviation. (1246)

(B) Prohibition. No person shall engage in any business or commercial activity on the airport without a lease approved by the City Council or a sublease from a duly authorized master lessee. For the purpose of this

Section, a "person" means any individual or group of individuals, including a company, partnership, corporation, or other association. This prohibition shall apply to persons who use the airport as a base for conducting their activity but whose office or other place of business is not situated on the airport. This prohibition does not apply to: (1246)

1. Aircraft operations in which the flight originates and terminates elsewhere and the Falcon Field Airport is utilized as a temporary stopping place for such purposes as landings, refueling, or other aeronautical service or the embarking or debarking of passengers, except in the case of charter or air taxi airlines. (1246)

2. Company- or corporate-owned aircraft where personnel or products are transported free of charge, the trip being merely incidental to the company's principal business and not, in itself, a major enterprise for profit. (1246)

3. Casual or isolated transactions such as sales by the owner. (1246)

(C) Definition. For the purpose of this Section, a "business or commercial activity" includes the following types of activities when done for hire, compensation, or reward: (1246)

1. Retail sales of any goods, wares, merchandise, or services. (1246)

2. Pilot training and flight instruction. (1246)

3. Sale, rental, or charter of aircraft. (1246)

4. Air carrier and air taxi operations. (1246)

5. Sale of aviation petroleum products. (1246)

6. Sale or service of aircraft parts, avionics, instruments, or other aircraft equipment. (1246)

7. Repair, maintenance, rebuilding, alteration, or exchange of aircraft and aircraft engines, components, or other parts. (1246)

8. Flying clubs. (1246)

9-9-14: RATES AND CHARGES

A schedule of rates and charges for use of the airport and its facilities shall be established by the City Council, and each person or organization subject to said rates and charges shall promptly pay the amounts due. A copy of such schedule shall be posted in the office of the Director. (1246)

9-9-15: VIOLATIONS OF THIS CHAPTER

(A) Any person who shall violate any of the provisions of Title 9, Chapter 9 of the Mesa City Code shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment. (1501, 2466)

(B) In addition to the penalties set forth in the above paragraph, violations of this Chapter or of any rule, regulation, order, or instruction issued by the Director may result in withdrawal of permission by the Director to use the airport. (1501)

CHAPTER 10
DISPOSITION OF UNNECESSARY ROADWAY AND EASEMENTS

9-10-1: DISPOSITION OF ROADWAYS

Pursuant to the provisions of Title 28, Chapter 20, Article 8, of the Arizona Revised Statutes, the City Council may dispose of unnecessary public roadways, upon application being made to the Real Estate Services offices on forms prepared by that office and upon paying the application fee as set forth in the schedule of fees and the purchase price for the value of the land.
(Ord. No. 5938, § 2, 4-21-25)

9-10-2: EXTINGUISHMENT OF RIGHT-OF-WAY EASEMENTS

Pursuant to the provisions of Title 28, Chapter 20, Article 8 of the Arizona Revised Statutes, the City Council may extinguish right-of-way easements no longer needed by the City upon application being made to the Real Estate Services offices on forms prepared by that office and upon paying an application fee as set forth in the schedule of fees.
(Ord. No. 5938, § 2, 4-21-25)

9-10-3: RESERVATION OF EASEMENTS

In the event there are existing public utility lines in any unneeded public roadway that is to be abandoned or if in the sole discretion of the City it is probable that there will be a need for a public utility easement, the City shall retain an easement or easements for such purposes and of such size as the City may determine. (1843)

9-10-4: LEGAL DESCRIPTION

A legal description of the unnecessary public roadway to be abandoned or unnecessary easements to be extinguished shall accompany the application. (1843)

9-10-5: APPLICATION FEE NOT TO BE REFUNDED

In the event the City Council denies the application for vacation of a public roadway or any portion thereof or extinguishment of an easement or any portion therefore, no portion of the application fee shall be refunded to the applicant. (1843)

CHAPTER 11
FLOODPLAIN REGULATIONS*

9-11-1: PURPOSE AND STATUTORY AUTHORITY

In accordance with A.R.S. Title 48, Chapter 21, Article 1, the City of Mesa elects not to assume the responsibility of Floodplain Management from the Flood Control District of Maricopa County as provided for in A.R.S. §§ 48-3609, 48-3610; and development within areas designated as Flood Hazard Zones located within city limits

***Editor's note—**Ord. No. 4455 amended Chapter 11 to read as herein set out. Former Chapter 11 derived from Ord. Nos. 2396, 2466, 2597, 2906, 3405.

shall be subject to such rules and regulations as may be established by the State and the Flood Control District of Maricopa County in conformance with the National Flood Insurance Program requirements and the provisions of A.R.S. Title 48, Chapter 21, Article 1 and conformance to such rules and regulations shall be in addition to any other applicable Mesa code requirements. (4961, 5298)

9-11-2: FLOODPLAIN ADMINISTRATOR

The City Engineer is appointed and designated as the Floodplain Administrator for the City of Mesa and will serve as the community point of contact on National Flood Insurance Program issues for County, State and Federal officials. The Floodplain Administrator will be responsible for (1) coordinating with County Flood Control District staff regarding floodplain management and (2) verifying that the community's participation in the National Flood Insurance Program is maintained and remains in good standing through adoption and enforcement of these regulations. (4455, 4961, 5298)

The Floodplain Administrator shall also be, at a minimum, responsible for the following:

1. Keep and maintain current flood insurance studies and flood insurance rate map(s) applicable to the community. (5298)
2. Keep and maintain copies of the most current version of the "Floodplain Regulations for Maricopa County" at the office of the Mesa City Clerk. (5298)
3. Keep and maintain elevation certificates (or acceptable records of lowest flood elevations) for all structures within the Special Flood Hazard areas; and (5298)
4. Repeal or modify all existing local ordinances that conflict with these regulations. (5298)

Duties of the Floodplain Administrator shall also include: (4455, 4961, 5298)

(A) Establishment of procedures to ensure that all requests for permits for floodplain development will be promptly forwarded to the Flood Control District of Maricopa County and that no permits will be issued by any agent of the City until a valid Floodplain Use Permit is obtained by the applicant. (4961)

(B) Delineating and assisting the Federal Insurance Administrator, at his request, in delineating the limits of the areas having special flood hazards on available local maps of sufficient scale to identify the location of building sites. (4961)

(C) Providing such information to the Federal Insurance Administrator as he may request concerning present uses and occupancy of the floodplain areas within city limits. (4961)

(D) Cooperation with federal, state and local agencies and private firms which undertake to study, survey, map and identify floodplain areas, and cooperate with neighboring communities with respect to management of adjoining floodplain areas in order to prevent aggravation of any existing hazards. (4961)

(E) Submission of reports and information, as needed, to the Federal Insurance Administrator on floodplain management. (4961)

9-11-3: ELEVATION CERTIFICATE

No Certificate of Occupancy, Certificate of Completion, or Temporary Certificate of Occupancy shall be issued by the City until the applicant provides to the City an approved finished construction Elevation Certificate approved by the Flood Control District of Maricopa County.
(Ord. No. 4961; Ord. No. 5572, § 1, 6-1-20)

9-11-4: FLOODPLAIN MANAGEMENT REGULATIONS

That certain public document entitled "Floodplain Management Regulations for Maricopa County" dated and amended on January 17, 2018, and all subsequent amendments and revisions, a copy of which shall be kept on file in the Office of the City Clerk, is hereby adopted by reference as the legal basis for implementing floodplain management in the City of Mesa.
(Ord. No. 4455; Ord. No. 4961; Ord. No. 5298; Ord. No. 5572, § 2, 6-1-20)

9-11-5: SPECIAL FLOOD HAZARD AREAS

Those certain public documents entitled "Flood Insurance Study for Maricopa County, Arizona, and Incorporated Areas" dated September 18, 2020 with accompanying "Flood Insurance Rate Maps" dated September 18, 2020, and all subsequent amendments and revisions to each, copies of which shall be kept on file in the Office of the City Clerk, are hereby adopted by reference and are referred to herein as the "Flood Study" and "Rate Maps." The Flood Study and Rate Maps are the basis for establishing the Special Flood Hazard Areas for floodplain management in the City of Mesa. The Special Flood Hazard Areas documented in the Flood Study and Rate Maps are the minimum area of applicability of the Floodplain Management Regulations. These Special Flood Hazard Areas may be changed and supplemented by amendments to the Flood Study and Rate Maps and by studies for other areas as allowed in the Floodplain Management Regulations.
(Ord. No. 4961; Ord. No. 5298; Ord. No. 5572, § 3, 6-1-20)

9-11-6: VIOLATIONS AND PENALTIES

It shall be a violation of this Chapter to develop land contrary to or in violation of any provision of this Chapter, to violate any provision or requirement of this Chapter, or to fail to comply with the Floodplain Management Regulations. (4961)

(A) A person who violates this Chapter is guilty of a Class 2 Misdemeanor. (4961)

(B) In addition to the penalties set forth in the above paragraph, if the Floodplain Administrator determines that there has been a violation of this Chapter, the Building Safety Director is authorized to issue a stop work order, or to withhold, suspend or revoke a Certificate of Occupancy, Certificate of Completion, or Temporary Certificate of Occupancy issued under the provision of Title 4 of the Mesa City Code. (4961, 5298)

(C) A violation of this Chapter shall also be deemed to be a violation of A.R.S. Title 48, Chapter 21, Article 1 and is subject to penalties described in A.R.S. § 48-3615; and the City shall be entitled to seek injunctive and all other applicable legal and equitable remedies as provided by law for any development that diverts, retards or obstructs the flow of waters in a watercourse or Special Flood Hazard Area without the written authorization of the Flood Control District of Maricopa County. (4961)

(D) Nothing in this Chapter precludes any private or public right of action by any person or entity damaged by another's unauthorized diversion, retardation or obstruction of a watercourse. (4961)

9-11-7: WARNING AND DISCLAIMER OF LIABILITY

The degree of flood protection required by this Chapter and applicable state and county regulations is considered reasonable for regulatory purposes. Flood heights may be increased by man-made or natural causes. This section does not imply that land outside the areas of Special Flood Hazard or uses permitted within such areas will be free from flooding or flood damages. This Chapter shall not create liability on the part of the City or any officer or employee thereof. (4961)

CHAPTER 12
CUSTOMER RESPONSIBILITIES IN THE MESA PUBLIC LIBRARY (Repealed)*

CHAPTER 13
FOREIGN TRADE ZONE

9-13-1: PURPOSE

The purpose of this Chapter is to promote economic development through the creation of a foreign trade zone ("FTZ"). (3404)

9-13-2: DEFINITIONS

Unless the context requires otherwise, the following words and phrases shall have the following meanings: (3404)

(A) **ACT:** The Foreign Trade Zones Act of June 18, 1934, as amended (Pub. L. 73-397, 48 Stat. 998 - 1003 (19 U.S.C. 81A-8IU)). (3404, 5194)

(B) **BOARD:** The Foreign Trade Zones Board ("FTZB") created by the Act to carry out the provisions thereof. The FTZB consists of the Secretary of the Department of Commerce (Chairman) and the Secretary of the Treasury, or their designated alternates. (15 CFR § 400.2[D]). (3404, 5194)

(C) **FOREIGN TRADE ZONES (FTZ or Zone):** Restricted-access sites in or near ports of entry that are licensed by the Foreign Trade Zones Board and operated under the supervision of U.S. Customs & Border Protection. To the extent Zones are "activated" under U.S. Customs and Border Protection (CBP) procedures in 19 CFR Part 146, and only for the purposes specified in the Act (19 U.S.C. 81C), Zones are treated for purposes of the Tariff Laws and Customs Entry Procedures as being outside the customs territory of the United States. Under Zone Procedures, foreign and domestic merchandise may be

***Editor's note—**Ord. No. 3803 repealed Chapter 12. Formerly, such chapter derived from Ord. No. 3038.

admitted into Zones for operations such as storage, exhibition, assembly, manufacture and processing, without being subject to formal Customs Entry Procedures and payment of duties, unless and until the foreign merchandise enters customs territory for domestic consumption. (3404, 5194)

(D) **GRANTEE:** The grantee of Foreign Trade Zone No. 221 is the City of Mesa, Arizona, an organization to which the privilege of establishing, operating, and maintaining a foreign trade zone has been granted by Order 883 and Order 1538 of the Foreign Trade Zones Board. (3404, 5194)

(E) **PORT DIRECTOR, U.S. CUSTOMS:** The Port Director of U.S. Customs & Border Protection (CBP) located in Phoenix, Arizona, or representative. (3404, 5194)

(F) **SUBZONE:** A site (or group of sites) established for a specific use. (3404, 5194)

(G) **ZONE OPERATOR:** The City of Mesa or an organization, corporation, partnership, or person that operates within FTZ No. 221 under the terms of an agreement with the City of Mesa, with concurrence of U.S. Customs & Border Protection. (3404, 5194)

(H) **ZONE PARTICIPANT:** A current or prospective zone operator, zone user, or property owner. (5194)

(I) **ZONE SCHEDULE:** The grantee's rules, regulations and policies for the zone including all rates or charges assessed by or on behalf of the grantee and information regarding any operator which has an agreement with the grantee to offer services to the public, including the operator's rates or charges for all zone-specific services offered. The zone schedule may be updated from time to time by the City of Mesa Economic Development Department. (5194)

(J) **ZONE SITE (SITE):** The physical location of a zone or subzone. (5194)

(K) **ZONE USER:** A party using a zone under agreement with a zone operator. (3404, 5194)

9-13-3: CREATION OF FOREIGN TRADE ZONE

FTZ No. 221 was granted by the Foreign Trade Zones Board to the City of Mesa, Arizona on April 25, 1997 (Board Order #883). FTZ No. 221 was reorganized and expanded on January 7, 2008 (Board Order #1538). (5194)

The City may assist those businesses that request trade assistance outside of the FTZ No. 221 boundaries through modification of the general purpose zone boundaries (major or minor) or through sponsorship of a subzone. (3404, 5194)

9-13-4: APPLICATION for FOREIGN TRADE ZONE

(A) Requests for an activation, expansion or subzone must be made to the City of Mesa Office of Economic Development. (5194)

(B) Agreements to operate within a zone site must be entered into with City of Mesa and approved by the City Council. (3404, 5194)

(C) All applicable fees shall be received by the City prior to granting authorization to establish or operate in a Mesa-approved general-purpose zone or subzone site. (3404, 5194)

(D) Arizona offers a property tax benefit for activated zone sites under A.R.S. 42-12006. Approval of a zone site by the FTZB does not, in and of itself, convey the Arizona property tax benefit to any zone participant (operator, user or property owner). The City of Mesa will not sponsor any zone site seeking property tax reclassification without a written explanation of the tax impact and the necessary concurrence or non-objection letter from the applicable local taxing authority. (5194)

9-13-5: ACTIVATION AND DEACTIVATION

(A) The Port Director of U.S. Customs & Border Protection, with concurrence from the grantee, may approve activation of all or a portion of a zone site based on a written activation application submitted to the Customs Port Director by a proposed zone operator pursuant to 19 CFR Part 146. (3404, 5194)

(B) An activated zone operator may file a request with the Customs Port Director to deactivate all or a portion of an existing activated general purpose zone or subzone and shall thereafter cease to admit merchandise into the zone site in zone status. Final action and disposition of the zone merchandise must be made with the concurrence of the Port Director. (3404, 5194)

9-13-6: FEE SCHEDULE

(A) The following list of fees is adopted: (3404, 5194)

1. Application Fee: (3404, 5194)

Boundary Modification	$1,000.00
Expansion Application	$5,000.00
Subzone Application	$5,000.00

Fees are payable within ten (10) days after City of Mesa Council approval of application and prior to submission of application to the Foreign Trade Zones Board. Balance due within ten (10) days after filing of application with Foreign Trade Zones Board. (3404, 5194)

2. Activation Fee: (3404, 5194)

The City of Mesa charges a fee to cover the costs of reviewing and processing the necessary grantee documentation for FTZ activation applications to CBP. (5194)

Activation Fee	$1,000.00

The activation fee is due within ten (10) days after execution of an operating agreement and prior to issuance of grantee's activation concurrence letter. (3404, 5194)

3. Annual Fee: (3404, 5194)

The City of Mesa charges an annual fee that is due at the end of each calendar year. (5194)

Property Owners (non-activated site)	No Fee Charged
General-Purpose Zone Operators	$5,000.00
Subzone Operators	$5,000.00

9-13-7: PROCEDURES

(A) Agreements. All zone operators and property owners must enter into an agreement with the City of Mesa, the zone grantee. Zone users who are not also zone operators must enter into a user agreement with a zone operator. If there is a conflict between an agreement between the City of Mesa and an operator and the zone schedule, the agreement will prevail. If there is a conflict between a user agreement and the zone schedule, the zone schedule will prevail unless the City of Mesa agrees in writing to such terms. (3404, 5194)

(B) Independent Contractor Status. Zone grantee, zone operator, zone user and zone property owner are not and shall not be considered as joint ventures, partners, or agents of each other, and neither shall have the power to bind or obligate the other except as set forth in any written agreements. Zone grantee, zone operator, zone user and zone property owner agree not to represent to anyone that they are agents of one another or have any authority to act on behalf of one another except as set forth in any written agreements. (3404, 5194)

(C) Exemption from Grantee Liability. The City of Mesa will not undertake detailed operational oversight of or direction to zone participants. Pursuant to CFR § 400.46 grantee liability, as may be amended from time to time, the City of Mesa shall not be liable for violations of any laws by zone participants. (5194)

(D) No Grantee Warranties. The City makes no warranties or representations regarding the benefits that may or may not be realized through participation in the FTZ program by property owners, zone operators or zone users. (5194)

(E) For Foreign Trade Zones Board annual reporting purposes, the zone year is a calendar year. For U.S. Customs & Border Protection annual reconciliation purposes, each zone operator may choose its own operating zone year. Each zone operator shall provide an annual report to the City of Mesa each calendar year or at such other time as set forth in the zone schedule or operator agreement. (5194)

9-13-8: APPEALS

Any determination made by any official of the City charged with the administration of any part of this Chapter may be appealed to the City Manager, or his designee. All appeals must include a written notice of appeal that contains an explanation of why the appellant feels that the determination was in error. The notice of appeal must be filed with the Office of Economic Development within thirty (30) days of the determination for which the appeal is being filed. The determination of the City Manager, or his designee, shall be final. (5194)

9-13-9: PENALTY

(A) Violations of this Chapter are civil under the City of Mesa authority and may also be subject to a federal action under the provisions and regulations of U.S. Customs & Border Protection and the Foreign Trade Zones Board. Violations can result in the loss of foreign trade zone privileges other remedies including merchandise seizure, fines, penalties and criminal sanctions may be applicable as provided by laws and regulations. (3404, 5194)

(B) Termination-Conviction/Abandonment. Foreign trade zone privileges may be terminated if:

1. Zone participant shall be convicted under any law of a felony as defined by such law; (5194)

2. If the Foreign Trade Zones Board or U.S. Customs & Border Protection suspends or terminates zone participant or the activated status of the zone; (5194)

3. If the zone participant voluntarily abandons, deserts, or vacates the premises or discontinues its operations; (5194)

4. If zone participant fails to immediately provide all records and reports required to be prepared or maintained by zone participant under applicable law or regulation to zone grantee, the Foreign Trade Zones Board, and U.S. Customs & Border Protection upon request of one of those entities. (3404, 5194)

5. If zone participant violates or fails to comply with any of the provisions or requirements of this Title 9 Chapter 13 of the Mesa City Code, the zone schedule, or its operator agreement with the City of Mesa. (5194)

CHAPTER 14

TELECOMMUNICATIONS SERVICE

9-14-1: DEFINITIONS:

In this Chapter, unless the context otherwise requires: (3602)

CABLE SERVICES and **CABLE SYSTEM** shall have the same meaning as defined in Chapter 7, Title 9, Mesa City Code. (3602)

CITY means the City of Mesa, Maricopa County, Arizona. (3602)

COMMERCIAL MOBILE RADIO SERVICE means two-way voice commercial mobile radio service as defined by the Federal Communications Commission in 47 United States Code Section 157. (3602)

FACILITIES means the plant, equipment, and property, including but not limited to poles, wires, pipe, conduits, pedestals, antenna, and other appurtenances placed in, on, or under highways and not owned by the City in the provision of telecommunications services. (3602)

PUBLIC HIGHWAY or **HIGHWAY** means all roads, streets, and alleys and all of the dedicated public rights-of-way and public utility easements of the City. (3602)

TELECOMMUNICATIONS means the transmission, between or among points specified by the user of information of the user's choosing, without change in the form or content of the information as sent and received. The term does not include commercial mobile radio services, pay phone services, interstate services, or cable services. (3602)

TELECOMMUNICATIONS CORPORATION means any public service corporation to the extent that it provides telecommunications services in this State. (3602)

TELECOMMUNICATIONS SERVICES means the offering of telecommunications for a fee directly to the public, or to such users to be effectively available directly to the public, regardless of the facilities used. (3602)

9-14-2: LICENSE REQUIRED

(A) No telecommunications corporation shall install, maintain, construct, or operate telecommunications facilities in any public highway in the City, or provide telecommunications service by means of such facilities unless a license to provide telecommunications services has first been granted by the City under this Chapter. (3602)

(B) Notwithstanding Subsection (A), any telecommunications corporation that was providing telecommunications service within the State of Arizona as of October 31, 1997 pursuant to a grant made to it or its lawful predecessors prior to the effective date of the Arizona Constitution, may continue to provide telecommunications services pursuant to that State grant, until the State grant is lawfully repealed, revoked, or amended, and need not obtain any further authorization from the City to provide telecommunications services; provided, however, that such entity must in all other respects comply with the requirements applicable to telecommunications corporations, as provided in Title 9, Chapter, 5, Article 7, Arizona Revised Statutes. (3602)

(C) Nothing in this Chapter shall be deemed to affect the terms or conditions of any franchise, license, or permit issued by the City prior to October 31, 1997, or to release any party from its obligations thereunder. Those franchises, licenses, or permits shall remain fully enforceable in accordance with their terms. The City Manager, with the consent of the City Council, may enter into agreements with franchise holders, licensees, or permittees to modify or terminate an existing franchise, license, or agreement. (3602)

(D) A license to any telecommunications corporation to use the highways to install, maintain, construct, or operate telecommunications facilities, or to provide telecommunications services under this Chapter shall not authorize the use of the highways to provide any other service; nor shall the issuance of the same invalidate any franchise, license, or permit that authorizes the use of the highways for such other service; nor shall the fact that an entity holds a franchise, license, or permit to make any other use of the highway or to provide any other service authorize installation, maintenance, construction, or operation of telecommunications facilities in any highway in the City, or permit such entity to provide telecommunications services by means of such facilities without obtaining a license hereunder. (3602)

(E) Any license granted shall not be exclusive. (3602)

9-14-3: LICENSE PROPOSAL

(A) A telecommunications corporation desiring a license to occupy the streets and other highways of the City to provide telecommunications service shall file a proposal with the Development Services Manager in the form prescribed by such Manager, and shall pay a fee determined by the Development Services Manager. The amount of the fee shall be reasonably related to the cost directly incurred by the City relating to the granting or administration of the license and can be appealed to the City Manager. (3602,3766)

(B) Each application shall, at a minimum, (1) show where the facilities the applicant will use will be located, or contain such other information as the City may deem necessary in order to ensure that the applicant will comply with the requirements for use of the highways; (2) identify the applicant, its name, current address, and telephone number; (3) contain a description of the services to be provided; and (4) set out a description of any agreement with any other entity that would permit such entity to use the facilities. (3602)

(C) Upon receiving an application for a license that satisfies the conditions of Section (B), the City shall promptly offer a telecommunications license to the applicant for its review, and may inquire into matters relevant to the issuance of the license. If the applicant agrees to the terms and conditions of the offered license, the applicant's request shall be approved. Notwithstanding the foregoing, the City need not issue or renew a license if the applicant has previously had a license or permit revoked, or for any other reason permitted under Arizona law. (3602)

(D) As a condition of issuing or renewing a license to use the public highways to provide telecommunications services, the City may require that: (3602)

1. The applicant show that it has received a Certificate of Public Convenience and Necessity from the Arizona Corporation Commission; (3602)

2. The applicant agrees to comply with the highway use requirements that the City may establish from time to time; (3602)

3. The applicant agrees to provide and maintain accurate maps showing the location of all the facilities it will use in the highways within the City, and to comply with such other mapping requirements as the City may establish from time to time. (3602)

4. The applicant obtains the insurance, and provides proof of insurance, as required by the City; posts the performance bonds and security fund required by the City; agrees to fully indemnify the City, its Mayor and Councilmembers, officers, agents, boards, and commissions, in a form satisfactory to the City; and agrees that it shall have no recourse against the City for monetary damages as a result of any damage that may result from the City's exercise of its rights under the license, or applicable provisions of law. (3602)

5. The applicant agrees to comply with and be bound by the administrative and enforcement provisions as may be prescribed from time to time by the City which may include: (3602)

   (a) Provisions covering assignment; (3602)

   (b) The right to inspect records to determine compliance by the licensee; (3602)

   (c) Provisions for renewal; (3602)

   (d) Fees and charges contemplated by A.R.S. § 9-582(C) may be charged by the City as allowed by law. (3602)

(E) Any license granted by the City pursuant to this Chapter shall commence upon adoption of the license and acceptance of the license by the provider. The license shall be for a term of five (5) years, and subject to the conditions and restrictions provided in the instrument and this Chapter. (3602)

(F) Every licensee shall be subject to the City's exercise of such police, regulatory, and other powers as the City now has or may later obtain, and a license may not waive the application of the same, and must be exercised in strict conformity therewith. Every license shall be subject to revocation if the licensee fails to comply with the terms and conditions of the license or applicable law. Provided, however, that a license shall not be revoked unless the licensee is given written notice of the defect in performance and fails to cure the defect within sixty (60) days of the notice, except where the City finds that the defect in performance is due

to intentional misconduct, or is a violation of criminal law, or is part of a pattern of violations where the licensee has already had notice and opportunity to cure. A hearing shall be held before a license is revoked or not renewed if the licensee requests a hearing. (3602)

(G) The issuance of a license by the City is not a representation or warranty that such license is a legally sufficient substitute for a franchise and is not a representation or warranty that a franchise is not required. (3602)

TITLE 10 TRAFFIC

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CHAPTER 1

BICYCLES, SCOOTERS, SHARED ACTIVE TRANSPORTATION VEHICLES, AND SKATEBOARDS*

10-1-1: DEFINITIONS

BICYCLE means any two- (2-) wheeled vehicle having a tandem arrangement of the wheels and having cranks, levers, or pedals for its propulsion by the feet.

BUSINESS LICENSING ADMINISTRATOR means the Business Licensing and Revenue Collections Administrator of the City or his/her designee.

ELECTRIC BICYCLE means the same as defined in Arizona Revised Statute Section 28-101.

ELECTRIC MINIATURE SCOOTER means the same as defined in Arizona Revised Statute Section 28-101.

ELECTRIC STANDUP SCOOTER means the same as defined in Arizona Revised Statute Section 28-101.

LICENSING OFFICE means the Division of the City's Business Services Department under the supervision of the City's Business Licensing and Revenue Collections Administrator.

MOTORIZED SKATEBOARD means the same as stated in Arizona Revised Statute Section 28-101.

OPERATOR means the entity or person renting and staging shared active transportation vehicles in the right-of-way pursuant to a license authorized by this Chapter.

OWNER means any person or entity who holds legal title to a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, SATV, motorized skateboard, skateboard; or if the bicycle, electric bicycle, electric standup scooter, electric miniature scooter, SATV, motorized skateboard, skateboard is the subject of a lease or an agreement for the conditional sale thereof, with the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee; or if a mortgagor of a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, SATV, motorized skateboard, skateboard is entitled to possession, then such lessee, conditional vendee, or mortgagor shall be deemed the owner.

RESIDENTIAL STREET means a street with a posted speed limit of 25 mph or less.

RIDER means any person riding a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, SATV, motorized skateboard, and skateboard on the sidewalk and/or in the right-of-way.

RIGHT-OF-WAY or **ROW** means a public roadway, highway, street, sidewalk, alley or utility easement. Right-of-way does not include a Federal Interstate Highway, a state highway or state route under the jurisdiction of the Arizona Department of Transportation, county-owned highway, a private easement, property that is owned by a special taxing district, or a utility easement.

***Editor's note—**Ord. No. 5533, adopted October 7, 2019, amended Chapter 1 in its entirety to read as herein set out. Former Chapter 1, §§ 10-1-1—10-1-21, pertained to bicycles and skateboards, and derived from Ords. 227, 357, 860, 1286, 1665, 1771, 1968, 2547, 3688, 3847, 5024.

SHARED ACTIVE TRANSPORTATION VEHICLE or **SATV** means a commercially-rented coaster, electric standup scooter, electric miniature scooter, bicycle, electric bicycle, or any other mobile vehicle, excluding motor vehicles, with a self-containing locking mechanism that does not require locking to a bicycle rack, docking system or other structure.

SKATEBOARD means a platform mounted on wheels that is propelled by human power.

SKATEBOARDING means the act of using a skateboard.

TERMS AND CONDITIONS means the shared active transportation vehicle terms and conditions that govern the use of shared active transportation vehicles as may be amended from time to time.
(Ord. No. 5533, 10-7-19)

10-1-2: REGISTRATION OF NON SATVS

Within 30 days of acquiring ownership, every owner of a bicycle, electric bicycle, electric standup scooter, or electric miniature scooter before the same shall be operated on any of the public thoroughfares of the municipality, and every purchaser of a bicycle, electric bicycle, electric standup scooter, or electric miniature scooter obtained from a City auction, shall apply for the registration thereof. Registration shall be accomplished through utilization of the Mesa Police Department's Bicycle Registration Program. This Section does not apply to a SATV.
(Ord. No. 5533, 10-7-19)

10-1-3: FEES

No fees shall be required for the registration of bicycles, electric bicycle, electric standup scooters, or electric miniature scooters.
(Ord. No. 5533, 10-7-19)

10-1-4: RENTAL AGENCIES OR OPERATOR

A rental agency or operator shall not rent or offer any bicycle, electric bicycle, electric standup scooter, or electric miniature scooter, for rent unless it is equipped with lamps and/or other equipment required in this Chapter. This Section does apply to a SATV.
(Ord. No. 5533, 10-7-19)

10-1-5: LICENSING OF SHARED ACTIVE TRANSPORTATION VEHICLES

(A) No shared active transportation vehicle shall be staged or deployed in the City right-of-way without a license required by this Chapter.

(B) The Business Licensing Administrator will issue, renew, deny, or revoke a shared active transportation vehicle license in accordance with this chapter and the terms and conditions and administer the provisions of the terms and conditions.

(C) All operators in the City must first obtain a license from the Business Licensing Administrator as provided in this Chapter before staging of any shared active transportation vehicle.

(D) A license issued pursuant to this Chapter shall be governed by this Chapter and the terms and conditions.
(Ord. No. 5533, 10-7-19)

10-1-6: APPLICATION OF TRAFFIC LAWS

Every person riding a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV, upon a roadway in the City shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this State declaring rules of the road applicable to vehicles or by the traffic laws of this City applicable to the driver of a vehicle except as to special regulations herein and except as to those provisions of law which by their nature can have no application.
(Ord. No. 5533, 10-7-19)

10-1-7: OBEDIENCE TO TRAFFIC-CONTROL DEVICES

(A) Any person operating or riding on a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall obey the instructions of official traffic-control signals, signs, and other control devices applicable to vehicles unless otherwise directed by a Police officer.

(B) Whenever authorized signs are erected indicating that no right or left or U turn is permitted, no person operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall disobey the direction of any such sign, except where such person dismounts to make such turn, in which event such person shall then obey the regulations applicable to pedestrians.

(Ord. No. 5533, 10-7-19)

10-1-8: RIDING ON RIGHT OF WAY, ROADWAYS AND BICYCLE PATHS

(A) Every person driving, riding, or operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV upon a right of way or bicycle path shall ride as near to the right-hand side of the right of way or bicycle path as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.

(B) Persons driving, riding, or operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV upon a right of way or bicycle path shall not ride more than two (2) abreast except on paths or parts of the right of way set aside for the exclusive use of bicycles.

(C) A person under the age of eighteen (18) years old driving, riding or operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, or SATV upon a right of way or bicycle path shall at all times wear a protective helmet on their head in an appropriate and safely secured manner.

(Ord. No. 5533, 10-7-19; Ord. No. 5995, § 1, 1-12-26)

10-1-9: SPEED, EXCEPTIONS

(A) No person shall drive, ride, or operate an electric bicycle upon a right of way in excess of the posted speed limit or at a speed greater than is reasonable and prudent under the circumstances then existing.

(B) No person shall drive, ride, or operate a class 1 electric bicycle, class 2 electric bicycle, electric standup scooter, or electric miniature scooter in a park at a speed greater than five miles per hour.

(C) No person shall drive, ride, or operate an electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV that is not an electric bicycle at a speed greater than fifteen miles per hour upon a shared use path.

(Ord. No. 5533, 10-7-19; Ord. No. 5995, § 2, 1-12-26)

10-1-10: EMERGING FROM ALLEY OR DRIVEWAY

The operator of a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV emerging from an alley, driveway, or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on said sidewalk or sidewalk area and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on said roadway.
(Ord. No. 5533, 10-7-19)

10-1-11: CLINGING TO VEHICLES

No person riding upon any bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall attach the same or himself to any vehicle upon a roadway.
(Ord. No. 5533, 10-7-19)

10-1-12: CARRYING ARTICLES AND PASSENGERS

(A) No person operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall carry any package, bundle, or article which prevents the rider from keeping at least one (1) hand upon the handlebars.

(B) No person operating a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall allow passengers when the bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV is in operation or motion.

(Ord. No. 5533, 10-7-19)

10-1-13: PARKING

No person shall park a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV upon a street other than upon the sidewalk against a building or at the curb in such manner as to afford the least obstruction to pedestrian traffic.
(Ord. No. 5533, 10-7-19)

10-1-14: RIDING ON SIDEWALKS, EXCEPTIONS

(A) No person shall operate an electric bicycle upon a sidewalk except a person may drive, ride, or operate a class 1 electric bicycle, class 2 electric bicycle, electric standup scooter, or electric miniature scooter in a safe manner upon a sidewalk within a park.

(B) When signs are erected giving notice thereof, no person shall ride a bicycle, electric standup scooter, electric miniature scooter, skateboard, motorized skateboard, or SATV upon a sidewalk within a Pedestrian Overlay Area (POA). The City Traffic Engineer is authorized to erect signs on any sidewalk within a POA prohibiting the driving, riding, or operating of bicycles, electric bicycles, electric standup scooters, electric miniature scooters, skateboards, motorized skateboards, scooters, or SATVS thereon by any person. The boundaries of the POA are the east side of Country Club Drive to the west side of Centennial Way, the south of 1st Street to the north side of 1st Avenue. The centerline of the aforementioned streets shall be construed to be the boundaries.

(Ord. No. 5533, 10-7-19; Ord. No. 5995, § 3, 1-12-26)

10-1-15: LAMPS AND OTHER EQUIPMENT

(A) Every bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV when in use at nighttime, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet (500') to the front and with a red reflector on the rear of a type which shall be visible from all distances from fifty feet (50') to three hundred feet (300') to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred feet (500') to the rear may be used in addition to the red reflector.

(B) No bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall be equipped with nor shall any person use upon a bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV any siren or whistle.

Every bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.
(Ord. No. 5533, 10-7-19)

10-1-16: CITY BUILDING AND PARK RESTRICTIONS, EXCEPTIONS

(A) Every bicycle, electric bicycle, electric standup scooter, electric miniature scooter, motorized skateboard, or SATV when in use at nighttime, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet (500') to the front and with a red reflector on the rear of a type which shall be visible from all distances from fifty feet (50') to three hundred feet (300') to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred feet (500') to the rear may be used in addition to the red reflector.

(B) No person shall operate an electric bicycle, electric standup scooter, electric miniature scooter, or motorized skateboard in any City parking structure or City park except a person may drive, ride, or operate a class 1 electric bicycle, class 2 electric bicycle, electric standup scooter, or electric miniature scooter in a park or shared-use path, or a public roadway or trail within a park or shared-use path, as defined and in conformance with Title 6, Chapter 10 of the public park regulations of the Mesa City Code and this Traffic Code.

(C) A person under the age of eighteen (18) years old driving, riding or operating a bicycle, class 1 electric bicycle, class 2 electric bicycle, electric standup scooter, or electric miniature scooter in a park or shared-use path, or a public roadway or trail within a park or shared-use path, shall at all times wear a protective helmet on their head in an appropriate and safely secured manner.
(Ord. No. 5533, 10-7-19; Ord. No. 5995, § 4, 1-12-26)

10-1-17: MOTORIZED SKATEBOARDS

(A) General Operating Restrictions:

1. No person operating a motorized skateboard shall transport extra fuel in a separate container or alter the fuel reservoir from the original manufacturer's design. This includes the prohibition of physically attaching fuel packs or containers to the operator's person.

2. No person shall operate a motorized skateboard in a manner causing excessive, unnecessary, or offensive noise which disturbs the peace and quiet of any neighborhood or which causes discomfort or annoyance to a reasonable person of normal sensitivity.

(B) Required Safety Equipment: A person under the age of eighteen (18) years' operating a motorized skateboard on a roadway shall at all times wear a protective helmet on his or her head in an appropriate and safely secured manner. The helmet shall meet minimum standards of testing and safety inspection as approved by the bicycle industry.

(Ord. No. 5533, 10-7-19)

10-1-18: SHARED ACTIVE TRANSPORTATION VEHICLES

(A) No operator shall stage any shared active transportation vehicle on City-owned property or in the row without an approved license. Any shared active transportation vehicle placed on City-owned property or in the row without a license may be impounded pursuant to the terms and conditions.

(B) License Application. An operator must submit an application and provide information as required by and in compliance with the terms and conditions to the business licensing office.

(C) License Renewal, Termination and Revocation.

(1) A license may be renewed pursuant to the terms and conditions. The completed renewal application must be submitted by the operator no later than forty-five (45) calendar days prior to the expiration of the license along with the applicable renewal fee set forth in the schedule of fees and charges. The licensing office is authorized to obtain necessary information to update the original license application and to determine whether the license should be renewed in accordance with the requirements of this Chapter and the terms and conditions.

(2) If an operator fails to submit a complete renewal application at least forty-five (45) calendar days prior to the expiration of the term of the license, the license will expire at the end of the term of the license. Unless otherwise prohibited by this Chapter, an operator will still be eligible to apply for a new license.

(3) Any party aggrieved by a decision of the Business Licensing Administrator may appeal the decision to the Transportation Department Director. The appeal must be in writing and state the grounds for the appeal. The appeal must be filed with the City Clerk within ten (10) days of the date of the decision being appealed. The failure of an appeal to meet the requirements of this Section will entitle the Business Services Director to deny the appeal without further review.

(Ord. No. 5533, 10-7-19)

10-1-19: PARENT OR GUARDIAN LIABILITY

The parent of any minor or the guardian having custody or control of any minor shall not authorize or knowingly permit the minor to violate any of the provisions of this Chapter. If a fine is imposed upon a minor who is found to be in violation of this Chapter, the parents or legal guardian having custody or control of the minor shall be jointly and severally liable with the minor for payment of the fine whether or not the parents or guardian knew of, or anticipated, a violation of this Ordinance.

(Ord. No. 5533, 10-7-19)

10-1-20: AGE

No one under the age of 16 shall operate an electric bicycle, electric standup scooter, electric miniature scooter, or SATV on any public right-of-way. This is a secondary offense.
(Ord. No. 5533, 10-7-19)

10-1-21: RECKLESS RIDING; PENALTY

(A) It is unlawful for a person to ride or operate a bicycle, electric bicycle, motorized skateboard, electric standup scooter, or an electric miniature scooter with reckless disregard for the safety of persons or property.

(B) Each violation of this Section is a Class Two Misdemeanor.
(Ord. No. 5533, 10-7-19)

10-1-22: REFUSING TO PROVIDE TRUTHFUL NAME AND DATE OF BIRTH WHEN LAWFULLY DETAINED; PENALTY

(A) It is unlawful for a person, after being advised that the person's refusal to answer is unlawful, to fail or refuse to state the person's true full name and date of birth on request of a peace officer who has lawfully detained the person based on reasonable suspicion that the person has committed a violation of this Chapter a person detained under this Section shall state the person's true full name and date of birth but shall not be compelled to answer any other inquiry of a peace officer.

(B) Each violation of this Section is a Class Two Misdemeanor.
(Ord. No. 5533, 10-7-19)

10-1-23: CIVIL PENALTY

Except as provided in Sections 10-1-21 and 10-1-22, a violation of any provision of this Chapter of the Mesa City Code shall be a civil traffic offense punishable by a fine not to exceed three hundred dollars ($300.00).
(Ord. No. 5533, 10-7-19)

CHAPTER 2
PARKING METERS*

CHAPTER 3
TRAFFIC

10-3-1: DEFINITIONS

The following words and phrases, when used in this Chapter, shall for the purpose of this Chapter have the meanings respectively ascribed to them in this Section. Whenever any words and phrases used herein are not defined herein but are defined in the State laws regulating the operation of vehicles, any such definition therein shall be deemed to apply to such words and phrases used herein: (Reso. 990)

***Editor's note—**Ord. No. 5024 repealed Chapter 2.

ALLEYS: Lanes or passageways for use in unloading merchandise, Fire Department convenience, and generally as a means of reaching the rear end of lots or buildings, and not in any way to be considered a thoroughfare. (Reso. 990)

AUTHORIZED EMERGENCY VEHICLE: Vehicles of the Fire Department, Police vehicles, and such ambulances and emergency vehicles of City of Mesa departments or public service corporations as are designed or authorized by the State Highway Commission. (Reso. 990)

BICYCLE: Every device propelled by human power upon which any person may ride, having two (2) tandem wheels, either of which is over sixteen inches (16") in diameter, and including any device generally recognized as a bicycle though equipped with two (2) front or two (2) rear wheels. (380, Reso. 990)

BUSINESS DISTRICT: The territory contiguous to and including a roadway when within any six hundred feet (600') along such roadway there are buildings in use for business or industrial purposes, including but not limited to, hotels, banks or office buildings, railroad stations, and public buildings which occupy at least three hundred feet (300') of frontage on one (1) side or three hundred feet (300') collectively on both sides of the roadway. (Reso. 990)

CITY TRANSPORTATION FACILITY: Any City street, sidewalk, bicycle lane, equestrian, bicycle, pedestrian or multi-use path, special use trail, alley, highway, transit stop or station, or similar public way. (5050)

CROSSWALK: (Reso. 990)

(A) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highways measured from the curbs, or in the absence of curbs, from the edges of the traversable roadway. (Reso. 990)

(B) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface. (Reso. 990)

CURB LOADING ZONE: A space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials. (Reso. 990)

DRIVER: Every person who drives or is in actual physical control of a vehicle. (Reso. 990)

FREIGHT CURB LOADING ZONE: A space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight (or passengers). (Reso. 990)

INTERSECTIONS: (Reso. 990)

(A) The area embraced with the prolongation or connection of the lateral curb lines or if none, then the lateral boundary lines of the roadways of two (2) highways which join one another at or approximately at right angles or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict. (Reso. 990)

(B) Where a highway includes two (2) roadways thirty feet (30') or more apart, then every crossing of each roadway of such dividing highway by an intersecting highway shall be regarded as a separated intersection. In the event such intersecting highway also includes two (2) roadways thirty feet (30') or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection. (Reso. 990)

LANED ROADWAY: A roadway which is divided into two (2) or more clearly marked lanes for vehicular traffic. (Reso. 990)

LIMITED-ACCESS HIGHWAY: Every highway, street, or roadway in respect to which owners or occupants of abutting property of lands and other persons have no legal right of access to or from the same, except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street, or roadway. (Reso. 990)

MOTOR VEHICLE: Every vehicle which is self-propelled. (Reso. 990)

MOTORCYCLE: Every motor vehicle having a saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground, but excluding a tractor. (Reso. 990, 1074)

OFFICIAL TRAFFIC-CONTROL DEVICES: All signs, signals, markings, and devices not inconsistent with this Chapter placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning, and guiding traffic. (Reso. 990)

PARK: When prohibited, means the standing of a vehicle, whether occupied or not, other than temporarily for the purpose of and while actually engaged in loading or unloading. (Reso. 990)

PASSENGER CURB LOADING ZONE: A place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers. (Reso. 990)

PEDESTRIAN: Any person afoot. (Reso. 990)

POLICE OFFICER: Every officer of the City of Mesa Police Department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations. (Reso. 990)

PRIVATE ROAD OR DRIVEWAY: Every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons. (Reso. 990)

RAILROAD: A carrier of persons or property upon cars, other than street cars, operated upon stationary rails. (Reso. 990)

RAILROAD TRAIN: A steam engine, electric, or other motor, with or without cars coupled thereto, operated upon rails, except street cars. (Reso. 990)

RESIDENCE DISTRICT: The territory contiguous to and including a highway and comprising a business district when the property on such highway for a distance of three hundred feet (300') or more is in the main improved with dwellings or dwellings and buildings in use for business. (Reso. 990)

RIGHT-OF-WAY: The privilege of the immediate use of the roadway. (Reso. 990)

ROADWAY: That portion of a street or highway improved, designed, or ordinarily used for vehicular travel. In the event a highway includes two (2) or more separate roadways, the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively. (Reso. 990)

SAFETY ZONE: The area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone. (Reso. 990)

SERVICE VEHICLE: A licensed vehicle used in the construction, operation or maintenance of a municipal, utility or other similar facility or infrastructure, or in the provision of service for a municipal, utility or other similar service. (5050)

SIDEWALK: That portion of a street between the curb lines or the lateral lines of a roadway and the adjacent property lines intended for the use of pedestrians. (Reso. 990)

STOP: When required, means complete cessation of movement. (Reso. 990)

STOP, STOPPING, OR STANDING: When prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control signal or sign. (Reso. 990)

STREET OR HIGHWAY: The entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel. (Reso. 990)

THROUGH ROADWAY: Every street or highway or portion thereof at the entrances to which vehicular traffic from intersecting streets or highways is required by law to stop before entering or crossing the same and when stop signs are erected as provided in this act. (Reso. 990)

TRAFFIC: Pedestrians, ridden or herded animals, vehicles, and other conveyances, either singly or together, while using any street for purpose of travel. (Reso. 990)

TRAFFIC-CONTROL SIGNAL: Any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and to proceed. (Reso. 990)

TRAFFIC DIVISION: The traffic division of the Police Department of the City or in the event a traffic division is not established, then said term whenever used herein shall be deemed to refer to the Police Department of the City. (Reso. 990)

VEHICLE: Every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks. (Reso. 990)

10-3-2: DUTY OF POLICE DEPARTMENT

It shall be the duty of the Police Department to enforce the street traffic regulations of the City and all of the State vehicle laws applicable to street traffic in the City, to make arrests for State of Arizona criminal traffic violations, to investigate accidents and to assist in developing ways and means to improve traffic conditions, and to carry out all duties specially imposed upon said Department by this Chapter. (Reso. 990, 1771)

10-3-3: RECORDS OF TRAFFIC VIOLATIONS

The Police Department shall keep a record of all violations of the traffic laws of the City or of the State vehicle laws of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such record shall be so maintained as to show all types of violations and the total of each. Said record shall accumulate during at least a five- (5-) year period, and from that time on, the record shall be maintained complete for at least the most recent five- (5-) year period. All forms for records of violations and notices of violations shall be serially numbered. For each month and year, a written report shall be kept available to the public showing the disposal of all such forms. All records and reports shall be public records. (Reso. 990)

10-3-4: TRAFFIC ACCIDENT STUDIES

Whenever the accidents at any particular location become numerous, the City Traffic Engineer shall conduct studies of such accidents and determine remedial measures. (Reso. 990, 1074, 1771, 3766, 5024)

10-3-5: TRAFFIC ACCIDENT REPORTS

(A) The Police Department shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by location. (Reso. 990)

(B) The Police Department shall receive and properly file all accident reports made to it under State law or under any law of the City, but all such accident reports made by drivers shall be for the confidential use of the Police Department and no such report shall be admissible in any civil or criminal proceeding other than upon request of any person making such report or upon request of the court having jurisdiction to prove a compliance with the laws requiring the making of any such report. (Reso. 990)

10-3-6: POLICE DEPARTMENT TO SUBMIT ANNUAL TRAFFIC SAFETY REPORT

The Police Department shall annually prepare a traffic report which shall be filed with the City Clerk. Such report shall contain information on traffic matters in the City as follows: (Reso. 990, 1771)

(A) The number of traffic accidents, the number of persons killed, the number of persons injured, and other pertinent traffic accident data. (Reso. 990, 1771)

(B) The number of traffic accidents investigated and other pertinent data on the safety activities of the Police. (Reso. 990, 1771)

(C) The plans and recommendations of the division for future traffic safety activities. (Reso. 990, 1771)

10-3-7: DUTIES OF OFFICERS OF POLICE AND FIRE DEPARTMENTS

(A) It shall be the duty of the officers of the Police Department or such officers as are assigned by the Chief of Police to enforce all street traffic laws of the City and all of the State vehicle laws applicable to street traffic. (Reso. 990, 1771)

(B) Officers of the Police Department or such officers as are assigned by the Chief of Police are hereby authorized to direct all traffic by voice, hand, or signal, provided that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the Police Department may direct traffic as conditions may require. (Reso. 990, 1771)

(C) Officers of the Fire Department, when at the scene of a fire, may direct or assist the Police in directing traffic thereat or in the immediate vicinity. (Reso. 990, 1771)

10-3-8: OBEDIENCE TO TRAFFIC REGULATIONS

No person shall do any act forbidden or fail to perform any act required herein. (Reso. 990, 1771)

10-3-9: PERSONS PROPELLING PUSH CARTS OR RIDING ANIMALS TO OBEY TRAFFIC REGULATIONS

Every person propelling any pushcart or driving any animal-drawn vehicle or riding an animal upon a roadway shall be subject to the provisions of this Chapter applicable to the driver of any vehicle, except those provisions which by their very own nature can have no application. (Reso. 990, 1771)

10-3-10: COASTERS, ROLLER SKATES, AND SIMILAR DEVICES

No person upon roller skates or riding any coaster, toy vehicle, or similar device shall go upon any roadway except while crossing a street on a crosswalk, and when crossing, such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians. (Reso. 990, 1771)

10-3-11: PUBLIC EMPLOYEES TO OBEY TRAFFIC REGULATIONS

The provisions of this Chapter shall apply to the driver of any vehicle owned by or used in the service of the United States Government, County, or Municipality, and no such driver shall violate any of the provisions of this Chapter, except as otherwise permitted by State Statute. (Reso. 990, 1771)

10-3-12: EXEMPTIONS TO AUTHORIZED EMERGENCY OR SERVICE VEHICLES

(A) The provisions of this Chapter regulating the operation, parking, and standing of vehicles shall apply to authorized emergency vehicles, as defined in this Chapter, except as follows: (Reso. 990, 1771, 5050)

1. A driver, when operating any such vehicle in an emergency, except when otherwise directed by a Police officer, may: (Reso. 990, 1771, 5050)

   (a) Park or stand notwithstanding the provisions of this Chapter. (Reso. 990, 1771, 5050)

   (b) Proceed past a red or stop signal or stop sign but only after slowing down as may be necessary for safe operation. (Reso. 990, 1771, 5050)

   (c) Exceed the speed limits so long as he does not endanger life or property. (Reso. 990, 1771, 5050)

   (d) Disregard regulations governing direction of movement or turning in specified directions so long as he does not endanger life or property. (Reso. 990, 1771, 5050)

2. The exemptions granted in Subsection (A)(1) of this Section in reference to the movement of an authorized emergency vehicle shall apply when the driver of said vehicle displays at least one (1) lighted lamp exhibiting a red or red-and-blue light or lens visible under normal atmospheric conditions from a distance of five hundred feet (500') to the front of the vehicle, other than a Police vehicle when operated as an authorized emergency vehicle and when the driver is giving audible signal by siren, exhaust whistle, or bell. An authorized emergency vehicle operated as a Police vehicle need not be equipped with or display the red or red-and-blue light or lens visible from in front of the vehicle. (Reso. 990, 1771, 5050)

(B) The provisions of this Chapter regulating the parking and standing of vehicles shall apply to authorized service vehicles except as follows: (5050)

1. A driver, when operating any such vehicle and engaged in official duties, except when otherwise directed by a police officer, may park or stand notwithstanding the provisions of this Chapter. (5050)

2. The exemption granted in Subsection (B)(1) of this Section shall apply when such parking or standing is to carry out official duties, does not endanger life or property, and temporary traffic control measures as required by applicable City regulations are in place. (5050)

10-3-13: TRAFFIC-CONTROL DEVICES

(A) Authority to Install Traffic-Control Devices. The City Traffic Engineer shall place and maintain traffic-control devices, signs, and signals when and as required under the traffic regulations of the City of Mesa to make effective the provisions of said regulations and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under the traffic laws of the City or under State law or to guide or warn traffic. (Reso. 990, 1286, 1440, 1771, 3766, 5024)

(B) Specifications for Traffic-Control Devices. All traffic-control signs, signals, and devices shall conform to the approved specifications. All signs and signals required hereunder for a particular purpose shall so far

as practicable be uniform as to type and location throughout the City. All traffic-control devices so erected and not inconsistent with the provisions of this Chapter shall be official traffic-control devices. (Reso. 990, 1286, 1771)

(C) Obedience to Traffic-Control Devices. The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the traffic regulations of the City, unless otherwise directed by a Police officer, subject to the exceptions granted the driver of an authorized emergency vehicle. (Reso. 990, 1286, 1771)

(D) When Traffic-Control Devices are Required for Enforcement Purposes. No provisions of this Chapter for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular Section does not state that signs are required, such Section shall be effective even though no signs are erected or in place. (Reso. 990, 1286, 1771)

(E) Traffic-Control Signal Legend. Whenever traffic is controlled by traffic-control signals exhibiting different colored lights successively one (1) at a time, the following colors only shall be used, and said terms and lights shall indicate and apply to drivers of vehicles and pedestrians as follows: (Reso. 990, 1286, 1336, 1771)

1. Circular Green. Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign, pavement marking, or arrow signal prohibits any particular movement. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited. (Reso. 990, 1286, 1336, 1771)

   Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk. (Reso. 990, 1286, 1336, 1771)

2. Circular Yellow. Vehicular traffic facing the signal is thereby warned that the red signal will be exhibited immediately thereafter and such vehicular traffic shall not enter the intersection when the red signal is exhibited. (Reso. 990, 1286, 1336, 1771)

   No pedestrian facing the signal shall enter the roadway until the green is shown, unless authorized to do so by a pedestrian "walk" or a symbolic "walking man" signal. (Reso. 990, 1286, 1336, 1771)

3. Circular Red. Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and shall remain standing until green is shown alone. (Reso. 990, 1286, 1336, 1771)

   No pedestrian facing such signal shall enter the roadway until the green is shown alone, unless authorized so to do by a pedestrian "walk" or a symbolic "walking man" signal. (Reso. 990, 1286, 1336, 1771)

   The driver of a vehicle which is stopped as close as practicable at the entrance to the crosswalk on the near side of an intersection, or if there is no crosswalk, then at the entrance to the intersection in obedience to a red signal, may make a right turn but shall yield the right-of-way to the pedestrian and other traffic proceeding as directed by the signal, excepting at such intersections as shall, by an appropriate sign, indicate that no right turn can be made against the red signal. (1286, 1336, 1771)

4. Green, Yellow, and Red Arrows. (1286, 1336, 1771)

   (a) Green Arrow. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection. (1286, 1336, 1771)

   (b) Yellow Arrow. Vehicular traffic facing the signal is thereby warned that the related green arrow movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic may not enter the intersection. (1286, 1336, 1771)

   (c) Red Arrow. Vehicular traffic facing a steady red arrow signal shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and will remain standing until an indication to proceed is shown. (1286, 1336, 1771)

   (d) Flashing Yellow Arrow. Vehicular traffic facing a flashing yellow arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection. (5306)

(F) Traffic-Control Signal at a Place Other Than an Intersection. In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this Chapter shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such signs or marking, the stop shall be made at the signal. (1286, 1771)

(G) Pedestrian "Walk" and "Don't Walk" or Symbolic "Walking Man" and "Hand" Signals. Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" or the symbolic "Walking Man" and "Hand" signals are in place, such signals shall indicate as follows: (Reso. 990, 1286, 1336, 1771)

1. "Walk" or Symbolic "Walking Man." Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the driver of all vehicles. (Reso. 990, 1286, 1336, 1771)

2. "Don't Walk" or Symbolic "Hand." No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the "Walk" or symbolic "walking man" signal shall proceed to a sidewalk or safety zone while the "Don't Walk" or symbolic "Hand" signal is showing. (Reso. 990, 1286, 1336, 1771)

(H) Flashing Signals. Whenever flashing red or yellow signals are used, they shall require obedience by vehicular traffic as follows: (Reso. 990, 1286, 1771)

1. Flashing Red (Stop Signal). When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign. (Reso. 990, 1286, 1771)

2. Flashing Yellow (Caution Signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution. (Reso. 990, 1286, 1771)

(I) Display of Unauthorized Signs, Signals, or Markers. No person shall place, maintain, or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal or which attempts to direct the movement of traffic or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal, and no person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to the highways of signs giving useful directional information and of a type that cannot be mistaken for official signs. (Reso. 990, 1286, 1771)

Every such prohibited sign, signal, or marking is hereby declared to be a public nuisance, and the authority having jurisdiction over the highway is hereby empowered to remove the same or cause it to be removed without notice. (Reso. 990, 1286, 1771)

(J) Interference With Official Traffic-Control Devices or Railroad Signs or Signals. No person shall without lawful authority attempt to or in fact alter, deface, injure, knock down, or remove any official traffic-control signal device or any railroad sign or any inscription, shield, or insignia thereon or any part thereof. (Reso. 990, 1286, 1771)

(K) Authority to Close Streets for Block Parties. The City Traffic Engineer or his designee is hereby authorized to grant temporary street closures for block parties. (Reso. 990, 1074, 1286, 1440, 1771, 3766, Ord. 4577, 5024)

(L) City Traffic Engineer to Designate Crosswalks, Establish Safety Zones, and Mark Traffic Lanes. The City Traffic Engineer is hereby authorized: (Reso. 990, 1074, 1286, 1440, 1771, 3766, 5024)

1. To designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway and at such other places as he may deem necessary. (Reso. 990, 1074, 1286, 1440, 1771)

2. To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians. (Reso. 990, 1074, 1286, 1440, 1771)

3. To mark lanes for traffic on street pavements at such places as he may deem advisable, consistent with the traffic laws of the City. (Reso. 990, 1074, 1286, 1440, 1771)

(M) Authority to Install Yield Right-of-Way Signs. The City Traffic Engineer shall place and maintain yield right-of-way signs when and as required under the traffic regulations of the City and may place and maintain such additional yield right-of-way signs as he may deem necessary to regulate traffic under the traffic laws of the City or under State law or to guide or warn traffic. After the erection of such yield right-of-way signs, the driver of a vehicle about to enter or cross a highway or street from another highway or street shall, whenever a yield right-of-way sign is posted at the intersection thereof, yield the right-of-way to all closely approaching vehicles on the highway or street said driver is about to enter. (1074, 1286, 1440, 1771, 3766, 5024)

(N) Experimental Traffic Control. The City Traffic Engineer, with the approval of the City Manager is authorized to test traffic-control devices under actual conditions of traffic. This testing shall consist of conducting research and tests on current devices and traffic control devices not presently included in the Manual on Uniform Traffic Control Devices. (1440, 1771, 3766, 5024)

(O) Authority to Install Restricted Entry Signs. Where necessary to preserve the public safety and welfare, the City Traffic Engineer is authorized to post signs restricting entry to a street, alley, driveway, or portion thereof. When authorized signs are erected indicating that entry is restricted, the directions of such sign shall be obeyed. (1771, 2294, 3766, 5024, 5053)

10-3-14: TURNING MOVEMENTS

(A) Required Position and Method of Turning at Intersections. The driver of a vehicle intending to turn at an intersection shall do as follows: (Reso. 990, 1771)

1. Both the approach for a right turn and a right turn shall be made as close as practical to the right-hand curb or edge of the roadway. (Reso. 990, 1771)

2. Approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline thereof, and after entering the intersection, the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered. (Reso. 990, 1771)

3. Approach for a left turn from a two-way street into a one-way street shall be made in that portion of the right half of the roadway nearest the centerline thereof and by passing to the right of such centerline where it enters the intersection. A left turn from a one-way street into a two-way street shall be made by passing to the right of the centerline of the street being entered upon leaving the intersection. (Reso. 990, 1771)

4. Where both streets or roadways are one-way, both the approach for a left turn and a left turn shall be made as close as practicable to the left-hand curb or edge of the roadway. (Reso. 990, 1771)

(B) Authority to Place and Obedience to Turning Markers. (Reso. 990, 1074, 1771, 5024)

1. The City Traffic Engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law. (Reso. 990, 1074, 1771, 3766, 5024)

2. When authorized markers, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications. (Reso. 990, 1074, 1771)

(C) Authority to Place Restricted Turn Signs. The City Traffic Engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left, or U turn and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted. (Reso. 990, 1074, 1771, 3766, 5024)

(D) Obedience to No Turn Signs. Whenever authorized signs are erected indicating that no right, left, or U turn is permitted, no driver of a vehicle shall disobey the directions of any such sign. (Reso. 990, 1771)

(E) Limitations on Turning Around. The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic. (Reso. 990, 1771)

10-3-15: PROHIBITING TURNS FROM DRIVEWAYS

(A) Authority to Place Signs Prohibiting Turns from Driveways. The City Traffic Engineer is authorized to determine those driveways from which left, right or all turns onto streets shall be prohibited at all times, prohibited during specific hours, or prohibited at other certain times, and shall place proper signs at such driveways. (1074, 1771, 3766, 4926, 5024)

(B) Obedience to No Turns Signs at Driveways. When authorized signs are erected indicating that left, right, or all turns are prohibited, no driver of a vehicle shall disobey the directions of any such sign. (1771, 5024)

10-3-16: ONE-WAY STREETS, ALLEYS, AND DRIVEWAYS

(A) Authority to Sign One-Way Streets, Alleys, and Driveways. The City Traffic Engineer shall determine those streets, alleys, or driveways that shall be designated as one-way, and shall place and maintain signs giving notice thereof, and no such regulations shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement or traffic in the opposite direction is prohibited. (Reso. 990, 1074, 1440, 1771, 3766, 5024)

10-3-17: SPECIAL STOPS REQUIRED

(A) Authority to Designate Through Streets. The City Traffic Engineer shall determine those streets to be designated as through streets, and place and maintain a traffic-control device on each and every street intersecting such through street or intersecting that portion thereof designated as such, except where two through streets intersect, in which case the City Traffic Engineer shall determine on which street traffic-control devices shall be placed. When signs are erected giving notice thereof, drivers of vehicles shall stop at every intersection before entering any of the streets or parts of streets so designated and indicated by a traffic-control device. (Reso. 990, 1771, 5024)

(B) Intersections Where Stop Required. The City Traffic Engineer is hereby authorized to determine and designate intersections where a particular hazard exists upon other than through streets and to determine whether vehicles shall stop at one (1) or more entrances to any such stop intersection, and shall erect a traffic-control device at every such place where a stop is required. (Reso. 990, 1074, 1440, 1771, 3766, 5024)

(C) Stop Signs. If the traffic-control device is a stop sign, every such stop sign erected pursuant to this Chapter shall bear the word "Stop" in letters not less than six inches (6") in height and such sign shall be reflectorized. Every such stop sign shall be located as near as practical to the stop line. (Reso. 990, 1074, 1771, 5024)

(D) Vehicles to Stop at Traffic-Control Devices. When traffic-control devices are erected as herein provided at or near the entrance to any intersection, every driver of a vehicle shall stop such vehicle at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection, except when directed to

proceed by a Police officer or traffic-control signal. No driver shall drive upon or through any private property such as an oil station, vacant lot, or similar property to avoid obedience to any regulations regarding this Section. (Reso. 990, 1771, 5024)

(E) Emerging From Alley or Private Driveway. The driver of a vehicle emerging from an alley, driveway, or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway, yielding the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on said roadway. (Reso. 990, 1771, 5024)

(F) Stop When Traffic Obstructed. No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed. (Reso. 990, 1771, 5024)

(G) Obedience to Signal Indicating Approach of Railroad Train. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this Section, the driver of such vehicle shall stop within fifty feet (50') but not less than fifteen feet (15') from the nearest rail of such railroad and shall not proceed until he can do so safely. The foregoing requirements shall apply when: (Reso. 990, 1771, 5024)

1. A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train. (Reso. 990, 1771)

2. A crossing gate is lowered or when a flagman gives or continues to give a signal of the approach of a railroad train. (Reso. 990, 1771)

3. A railroad train approaching within approximately one thousand five hundred feet (1,500') of the highway crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard. (Reso. 990, 1771)

4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing. (Reso. 990, 1771)

No person shall drive any vehicle through, around, or under any crossing gate or barrier at a railroad grade crossing while such gate or barrier is closed or is being opened or closed. (Reso. 990, 1771)

10-3-18: MISCELLANEOUS RULES

(A) Following Fire Apparatus Prohibited. The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred feet (500') or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm. (Reso. 990, 1771)

(B) Crossing Fire Hose. No vehicle shall be driven over any unprotected hose of a Fire Department when laid down on any street or private driveway to be used at any fire or alarm of fire without the consent of the Fire Department in command. (Reso. 990, 1771)

(C) Driving Through Funeral or Other Procession. No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this Chapter. This provision shall not apply at intersections where traffic is controlled by traffic-control signals or Police officers. (Reso. 990, 1771)

(D) Drivers in a Procession. Each driver in a funeral or other procession shall drive as near to the right- hand edge of the roadway as practical and shall follow the vehicle ahead as close as is practical and safe. (Reso. 990, 1771)

(E) Funeral Processions to be Identified. A funeral procession composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia or by such other method as may be determined and designated by the Chief of Police. (Reso. 990, 1771)

(F) When Permits Required for Parades and Processions. No procession or parade, except funeral processions, shall be held without first securing a permit from the Chief of Police, and all such requests for permits shall state the time, place of formation, proposed line of march, destination, and other regulations as the Chief of Police may set forth therein. (Reso. 990, 1771)

(G) Driving on Sidewalk. A person shall not drive a vehicle on a sidewalk area except on a permanent or duly authorized temporary driveway. A person driving an authorized service vehicle engaged in official duties may drive within a sidewalk area at a location other than a driveway. (Reso. 990, 1771, 5050)

(H) Limitations on Backing. The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic. (Reso. 990, 1771)

(I) Riding on Motorcycles. A person operating a motorcycle or motor scooter shall not ride other than upon the permanent and regular seat attached thereto or carry any other person other than upon a firmly attached seat to the rear or side of the operator. (Reso. 990, 1771)

(J) Clinging to Moving Vehicles. Any person riding upon any bicycle, motorcycle, coaster, sled, roller skates, or any toy vehicles shall not attach the same or himself to any moving vehicle upon any roadway. (Reso. 990, 1771)

(K) Restricted Access. No person shall drive a vehicle onto or from any limited access roadway except at such entrances and exits as are established by public authority. (372, Reso. 990, 1771)

(L) Railroad Trains Not to Block Streets. An engineer, conductor, or other employee or officer of a railroad company who permits a locomotive or cars to be or remain upon the crossing of a public highway over such railway so as to obstruct travel over the crossing for a period exceeding fifteen (15) minutes, except in cases of unavoidable accident, is guilty of a misdemeanor. (745, Reso. 990, 1771)

(M) Regulations for House-moving Vehicles. No driver of a vehicle involved in moving a house or other building shall drive or operate said vehicle on any street or public way within the limits of the City without first securing a permit from the City Manager or designee and all requests for permits shall state the time, the proposed route, and destination of the vehicle. No such house-moving vehicle so involved shall be driven or operated on any street or public way within the City without having in attendance a suitable escort and without having the vehicles marked plainly with the legend "wide load" both in the front and in the rear. The permit to be issued by the City Manager or designee shall be prominently displayed on the house or building being moved, and no permit shall be issued without a fee of two dollars ($2.00) first

being paid by the applicant to the City Manager or designee. In the event that it becomes necessary for any department of the City to move any utility lines, traffic signals, street lights or other City facilities to permit the passage of said house or building, then the applicant for a building permit shall pay to the City the actual cost of time and materials used in moving such utilities, traffic signals, street lights or other City facilities. In the event any damage is done to any City utility lines, traffic signals, streetlights, pavement, or other City facilities in connection with any such moving project, the applicant for such permit shall likewise pay to the City the cost of the time and materials for repairing any such City installation. (372, 1771, 5024)

(N) Driving Upon Certain Real Property. No person may operate a motor vehicle upon real property situated in the City other than on a street or highway; provided, that this Subsection shall not be deemed to prohibit the operation of a motor vehicle upon real property under the following circumstances: (1771)

1. Operation of licensed or unlicensed motor vehicles by the property owner, his immediate family, lessee, or invitee which does not violate other applicable laws; (1771)

2. Lawn and garden maintenance equipment; (1771)

3. Motor vehicles customary and incidental to farming or ranching activities when the operation of such vehicles is conducted on property properly zoned and used for such activities; (1771)

4. Temporary construction motor vehicles whose activities are reasonably necessary for the development, repair, or maintenance of property; (1771)

5. Governmental vehicles when reasonably operated to perform a governmental function; (1771)

6. Vehicles of an electric power, natural gas, telephone, or other utility company when reasonably operated to facilitate the delivery of utility services. (1771)

(O) Commercial Vehicles Restricted On Certain Streets. (2256, 5024)

1. When authorized signs are erected, commercial vehicles having a manufacturer's rating of one and one-half (1½) tons or more or any commercial vehicle having a length of twenty-two feet (22') or more, inclusive of front and rear bumpers, or a commercial vehicle coupled to a trailer or semi-trailer having a length of twenty-two feet (22') or more, inclusive of the front and rear bumpers, may not operate on those portions of streets so posted except for the delivery and pickup of merchandise, materials, or equipment going to or from a specific location requiring travel on streets so posted. The commercial vehicle must use the shortest and most direct route on such streets. (2256)

2. Signs prohibiting commercial vehicle traffic may be posted at specific locations where deemed necessary to preserve the public peace and welfare by the City Traffic Engineer. (2256, 3766, 5024)

(P) Preferential Lanes. (3490, 5024)

The City Traffic Engineer is hereby authorized to designate preferential lanes by posting signs restricting the use of traffic lanes to certain classes of vehicles or movements. The restricted use of the lanes may be full or part time. Whenever authorized signs are erected indicating a preferential use, no driver shall operate other classes of vehicles or make other movements within that lane. (3490, 3766, 5024)

(Q) Maximum Allowable Vehicle Weight on Certain Streets (5258)

1. The City Traffic Engineer is hereby authorized to determine and designate gross vehicle weight limits on portions of streets where such limits are necessary to preserve the public peace and welfare or to protect public assets from damage by vehicles above a specified weight. (5258)

2. Whenever authorized signs are erected indicating a gross vehicle weight limit, no driver shall operate a vehicle exceeding the indicated gross weight, except as indicated below. (5258)

3. Unless the authorized signs state "No Exceptions," a driver may operate a vehicle exceeding the indicated gross weight for the delivery and pickup of merchandise, materials, or equipment going to or from a specific location requiring travel on streets so posted. Such drivers must use the shortest and most direct route on such streets. (5258)

4. Unless otherwise posted, the gross weight limit does not apply to: (5258)

   (a) Public transportation and school buses (5258)

   (b) Public and private emergency vehicles (5258)

   (c) Public and private utility company vehicles going to or from a specific location requiring travel on streets so posted (5258)

   (d) City vehicles or any other vehicle used in providing services including but not limited to contract services and waste collection at locations requiring travel on streets so posted. (5258)

10-3-19: PEDESTRIAN'S RIGHTS AND DUTIES

(A) Pedestrians Subject to Traffic-Control Signals. Pedestrians shall be subject to traffic-control signals as heretofore declared in this Chapter, but at all other places, pedestrians shall be granted those rights and be subject to the restrictions stated herein. (Reso. 990, 1771)

(B) Pedestrian's Right-Of-Way in Crosswalks. When traffic-control signals are not in place or in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield to a pedestrian crossing the roadway within a crosswalk when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger, but no pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield. A pedestrian's right-of-way in a crosswalk is modified under the condition and as stated hereinafter. (Reso. 990, 1771)

Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle. (Reso. 990, 1771)

(C) Pedestrians to Use Right Half of Crosswalk. Pedestrians shall move, whenever practicable, upon the right half of crosswalks. (Reso. 990, 1771)

(D) Crossing at Right Angles. No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk. (Reso. 990, 1771)

(E) When Pedestrian Shall Yield. (Reso. 990, 1771)

1. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway. (Reso. 990, 1771)

2. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway. (Reso. 990, 1771)

3. The foregoing rules in this Section have no application under the conditions stated hereinafter when pedestrians are prohibited from crossing at certain designated places. (Reso. 990, 1771)

(F) Prohibited Crossing. Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a crosswalk, and no pedestrian shall cross a roadway other than in a crosswalk in any business district. (Reso. 990, 1771)

(G) Pedestrians Walking Along Roadways. (Reso. 990, 1771)

1. Where sidewalks are provided, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway. (Reso. 990, 1771)

2. Where sidewalks are not provided, any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction. (Reso. 990, 1771)

3. No person shall stand in a roadway for the purpose of soliciting a ride from the driver of any vehicle. (Reso. 990, 1771)

(H) Drivers to Exercise Due Care. Notwithstanding the foregoing provisions of this Chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway. (Reso. 990, 1771)

(I) Pedestrians Soliciting/Distributing. It shall be unlawful for any person to enter upon or remain on any median or traveled portion of any street or highway to solicit an occupant of a vehicle for employment, business, or contributions; or for distribution of advertisements, merchandise, or other property; or to offer any services. (3271)

10-3-20: METHOD OF PARKING

(A) Standing or Parking Close to Curb. No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with the right-hand wheels of the vehicle within eighteen inches (18") of the curb or edge of the roadway except as otherwise provided herein. (Reso. 990, 1771)

(B) Signs or Markings Indicating Angle Parking. The City Traffic Engineer shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets. (Reso. 990, 1286, 1440, 1771, 3766, 5024)

Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street. (Reso. 990, 1286, 1440, 1771)

(C) Obedience to Angle-Parking Signs or Markings. Upon those streets which have been signed or marked by the City Traffic Engineer for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings. (Reso. 990, 1286, 1440, 1771, 3766, 5024)

(D) Permit for Loading or Unloading at an Angle to the Curb. The Chief of Police is authorized to issue special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein, and it shall be unlawful for any permittee or other person to violate any of the special terms or conditions of any such permit. (Reso. 990, 1771)

(E) Lights on Parked Vehicles. (Reso. 990, 1771)

1. Whenever a vehicle is lawfully parked at nighttime upon any street within a business or residence district, no lights need be displayed upon such parked vehicle. (Reso. 990, 1771)

2. Whenever a vehicle is parked upon a street or highway outside of a business or residence district during the hours between one-half (½) hour after sunset and one-half (½) hour before sunrise, such vehicle shall be equipped with one (1) or more lamps which shall exhibit a white light on the roadway side visible from a distance of five hundred feet (500') to the front of the vehicle and a red light visible from a distance of five hundred feet (500') to the rear. (Reso. 990, 1771)

3. Any lighted headlamps upon a parked vehicle shall be depressed or dimmed. (Reso. 990, 1771)

(F) Backing Into a Parking Space. Vehicles parked on any street, highway, or roadway or in any publicly or privately owned parking lot or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a lease, contract, or other agreement with the City shall not be parked with the rear of the vehicle backed or otherwise placed in the front portion of the parking space. If a parking space in a lot or garage is marked or designated so that two (2) vehicles can be parked end to end in two (2) separate spaces, a vehicle parked therein shall be parked with the rear of the vehicle at the end of the space which is adjacent to the aisle or open area upon which a vehicle may be driven. (1771, 2189)

(G) Reparking Within Three Hundred Feet (300'). If a vehicle has been parked in an area on any street or in any public or private lot or in any public or private garage where parking is limited or restricted to a specified period of time by official signs posted at that location, it is prohibited and a violation of this Section for the said vehicle to be reparked for a period of twenty-four (24) hours within three hundred feet (300') of the location where the said vehicle was first parked. (1771, 2189)

10-3-21: STOPPING, STANDING, OR PARKING PROHIBITED IN SPECIFIED PLACES

(A) The City Traffic Engineer is hereby authorized to determine the locations of parking prohibitions on public streets and alleys and shall have the authority to place and maintain curb markings and/or appropriate signs indicating these prohibitions and the days and hours during which these prohibitions are applicable. (4811)

1. This authority includes but is not limited to the authority to:

(a) Place, maintain or remove traffic signs, curb painting, or other permanent or temporary parking control devices. (4811)

(b) Establish zones where only certain types of motor vehicles may park, for example motorcycles, recreational vehicles and compact vehicles. (4811)

(c) Establish zones where parking is prohibited at certain times on certain days. (4811)

2. The City Traffic Engineer shall consider the following circumstances when determining the location of parking prohibitions:

(a) Traffic safety concerns such as sight distances and obstructions for drivers approaching or exiting driveways, side streets and intersections. (4811)

(b) Alleviation of traffic congestion caused by circumstances such as streets that are too narrow to accommodate parking and two directions of through traffic, striping pattern that does not allow space for parking, or streets with exclusive bike lanes adjacent to curbs. (4811)

(c) Significant burdens to public safety caused by situations such as solid waste receptacles that are blocked by parked vehicles; parking patterns that facilitate criminal activities such as vandalism or lewd activities; and heavy parking volume that disrupts the quiet enjoyment of residents located near assembly activities such as schools, parks, churches, and businesses. (4811)

(B) Stopping, Standing, or Parking Prohibited; Whether or Not Official Signs are Posted or Markings in Place. No person may stop, stand, or park a vehicle, except when necessary to avoid conflict with the traffic or in compliance with law or the directions of a Police officer or a traffic-control device, in any of the following places: (Ord 4811/Reso. 990, 1286, 1440, 1771)

1. On a sidewalk. (Reso. 990, 1286, 1440, 1771)

2. In front of a public or private driveway. (Reso. 990, 1286, 1440, 1771)

3. Within an intersection. (Reso. 990, 1286, 1440, 1771)

4. Within fifteen feet (15') of a fire hydrant. (Reso. 990, 1286, 1440, 1771)

5. On a crosswalk. (Reso. 990, 1286, 1440, 1771)

6. Within twenty feet (20') of a crosswalk at an intersection, unless the City Traffic Engineer has indicated a different length by signs or markings. (Ord 4811/Reso. 990, 1286, 1440, 1771, 3766)

7. Within thirty feet (30') upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of the roadway. (Reso. 990, 1286, 1440, 1771)

8. Between a safety zone and the adjacent curb or within thirty feet (30') of points on the curb immediately opposite the ends of a safety zone, unless the City Traffic Engineer has indicated a different length by signs and markings. (Ord 4811/Reso. 990, 1286, 1440, 1771, 3766)

9. Within fifty feet (50') of the nearest rail of a railroad crossing. (Reso. 990, 1286, 1440, 1771)

10. Within twenty feet (20') of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five feet (75') of said entrance when properly sign-posted. (Reso. 990, 1286, 1440, 1771)

11. Alongside or opposite any street excavation or obstruction when stopping, standing, or parking would obstruct traffic. (Reso. 990, 1286, 1440, 1771)

12. On the roadway side of any vehicle stopped or parked at the edge or curb of a street. (Reso. 990, 1286, 1440, 1771)

13. Upon any bridge or other elevated structure upon a highway or within a highway tunnel. (Reso. 990, 1286, 1440, 1771)

14. At any place where the curb is painted red. (1771, 2888)

15. In that area between a curb and a sidewalk. (1996, 2888)

16. In any unpaved portion of the public right-of-way behind and adjacent to the curb. (2014, 2888)

17. Upon any street or highway for a period in excess of seventy-two (72) consecutive hours. (2032, 2888)

(C) Moving Vehicle. No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is unlawful. (Ord. 4811/Reso. 990, 1771)

(D) Parking Not to Obstruct Traffic. No person may park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten feet (10') of the width of the roadway for free movement of vehicular traffic. (Ord. 4811/Reso. 990, 1771)

(E) Parking in Alleys. No operator may park a vehicle within an alley except for the loading or unloading of materials and not then unless such loading or unloading can be accomplished without blocking the alley to the free movement of vehicular traffic. (Ord. 4811/Reso. 990, 1771)

(F) Deleted. (3770)

(G) Parking for Certain Purposes Prohibited. No person may park a vehicle upon any roadway for the principal purpose of: (Ord. 4811/Reso. 990, 1771)

1. Displaying such vehicle for sale. (Reso. 990, 1771)

2. Washing, greasing, or repairing such vehicle except repairs necessitated by any emergency. (Reso. 990, 1771)

3. Displaying advertising. (Reso. 990, 1771)

4. Displaying commercial exhibits. (Reso. 990, 1771)

(H) Parking Adjacent to Schools. The City Traffic Engineer is hereby authorized to erect signs indicating no parking upon that side of any street adjacent to any school property when such parking would, in his opinion, interfere with traffic or create a hazardous situation. (Ord. 4811/Reso. 990, 1286, 1440, 1771, 3766)

When official signs are erected indicating no parking upon that side of the street adjacent to any school property, no person may park a vehicle in any such designated place. (Ord. 4811/Reso. 990, 1286, 1440, 1771)

(I) Standing or Parking on One-Way Streets. The City Traffic Engineer is authorized to erect signs upon the left-hand side of any one-way street to prohibit the standing or parking of vehicles, and when such signs are in place, no person shall stand or park a vehicle upon such left-hand side in violation of any such sign. (Ord. 4811/Reso. 990, 1286, 1440, 1771, 3766)

(J) Standing or Parking on One-Way Roadways. In the event a highway includes two (2) or more separate roadways and traffic is restricted to one direction upon such roadway, no person may stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking. The City Traffic Engineer is authorized to determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway and to erect signs giving notice thereof. (Ord. 4811/Reso. 990, 1286, 1440, 1771, 3766)

(K) No Stopping, Standing, or Parking Near Hazardous or Congested Places. The City Traffic Engineer is hereby authorized to determine and designate by proper signs places in which the stopping, standing, or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic. When official signs are erected at hazardous or congested places authorized herein, no person may stop, stand, or park a vehicle in any such designated place. (Ord. 4811/Reso. 990, 1286, 1440, 1771, 3766)

(L) Parking Prohibited in Spaces Reserved for the Physically Disabled. (1705, 1771, 1889, 4811)

1. Except as provided in paragraph 3 of this Subsection, no person may stop, stand, or park any motor vehicle within any parking place designated and marked pursuant to the provisions of A.R.S. Title 28, Chapter 3, Article 14, unless the motor vehicle is transporting a person who has been issued a valid placard or international symbol of access special plates and either: (1705, 1771, 1889, 3770)

   (a) The motor vehicle displays the valid permanently disabled or temporarily disabled removable windshield placard or (1705, 1771, 1889, 3770)

   (b) The motor vehicle displays international symbol of access special plates that are currently registered to the vehicle. (1705, 1771, 1889, 3770)

2. If a Police officer, or a duly authorized agent employed by the City, finds a motor vehicle in violation of this Section, such person shall issue a complaint to the operator or other person in charge of the motor vehicle for a civil traffic violation. The court shall impose the minimum civil sanction of fifty dollars ($50.00) plus the penalty assessments prescribed by statute on a person who violates any provision of this Subsection. (1705, 1889, 2434)

3. Any person who is chauffeuring a physically disabled person shall be allowed, without a distinguishing insignia placard or number plates bearing the international wheelchair symbol, to park momentarily in any such parking space for the purpose of loading or unloading such disabled person, and no complaint shall be issued to the driver for such momentary parking. (1889)

4. Parking spaces marked in the manner provided in A.R.S. Title 28, Chapter 3, Article 14, may be designated on privately owned property. The designation of such parking spaces as provided herein shall authorize Police officers and other duly authorized agents to enforce the provisions of this Subsection (K) and shall constitute a waiver of any objection by the owner or person in possession of such property to the enforcement of this Subsection. (1889, 3770)

5. The Court or Civil Traffic Hearing Officer may dismiss citations under this subparagraph (K) at the arraignment if the person cited satisfies both of the following conditions: (3770)

   (a) Declares and affirms that the vehicle was being used on the date the citation was issued to transport a person who was eligible to be issued a valid placard or international symbol of access special plates; and (3770)

(b) Presents a valid placard indicating that the person is permanently or temporarily disabled that was issued pursuant to State law or in accordance with the laws of a nonresident's jurisdiction, or provides proof of current registration for the vehicle that includes the international symbol of access special plates. (3770)

(M) No Stopping, Standing, or Parking Near School Crosswalks. The City Traffic Engineer is authorized to erect signs prohibiting stopping, standing, or parking between the fifteen (15) mile per hour speed limit signs of an official school crosswalk while the speed limit signs are in place. Such signs shall state that the prohibition against stopping, standing, or parking is in effect only during specified hours on school days. When such signs are in place, no person may stop, stand, or park a vehicle in any such designated place during the prohibited hours. (2061, 3770, 4811)

(N) Obstructing a Fire Lane. The required width of access roadways shall not be obstructed in any manner. No person shall stop, stand, or park any vehicle within a fire lane, whether on public or private property, provided that appropriate signs and other markings, as approved by the Fire Chief, shall be erected and maintained in order for this regulation to be effective. (3530, 4811)

(O) On-street decal parking shall be permitted in the business districts located in the area bounded by the University Drive centerline to the south, the Mesa Drive centerline to the west, the Broadway Road centerline to the north, and the Country Club Drive centerline to the east. This area shall be referred to as the decal area. The City Traffic Engineer may designate certain streets or locations in the decal area for parking of vehicles only with approved parking decals. (4492, 4811)

1. Parking may be restricted in the decal area during certain hours or weekends and holidays if signs are posted specifying the hours or days that a decal is required. (4492)

2. The City Traffic Engineer, or city retained parking contractor is authorized to issue parking decals for parking in the decal area. (4492, 4811)

3. The definition of a business district shall be as defined in section 10-3-1 of the City of Mesa's Municipal Code. (4492)

10-3-22: COMMERCIAL VEHICLE PARKING TIME RESTRICTED

No person may park any commercial vehicle having a gross vehicle weight rating (GVWR) exceeding thirteen thousand (13,000) pounds or having dual rear wheels exceeding seventeen inches (17") in diameter or park any commercial vehicle having the length of twenty-two feet (22') or more, inclusive of the front and rear bumpers, or park a commercial vehicle coupled to a trailer or semi-trailer having the length of twenty-two feet (22') or more, inclusive of front and rear bumpers, in any residential area of the City or on any street, alley, or other public right-of-way at any time for a period of time longer than two (2) hours except when such parking is necessarily required while actually carrying out a lawful commercial purpose. For the purposes of this Section, "residential area" shall mean any area in the City zoned for residential purposes. (750, 1771, 2123, 2901)

10-3-22.1: PARKING OF SPECIFIED VEHICLES RESTRICTED

Trailers or semi-trailers designed or intended to be drawn behind a motor vehicle shall not be parked upon a street, alley, or other public right-of-way for a period of time longer than two (2) hours, except commercial vehicles may

be parked for a longer period of time only when such parking is necessarily required while actually carrying out a lawful commercial purpose. The provisions of this Section shall not apply to recreational vehicles defined in Chapter 34 of Title 11 of the Mesa City Code. (2901)

10-3-23: STOPPING FOR LOADING OR UNLOADING ONLY

(A) City Traffic Engineer to Designate Curb Loading Zones. The City Traffic Engineer is hereby authorized to determine the location of passenger and freight curb loading zones and shall place and maintain curb markings and/or appropriate signs indicating the same and stating the hours during which the provisions of this Section are applicable. (Ord. 4811/Reso. 990, 1074, 1440, 1771, 3766)

(B) Standing in Passenger Curb Loading Zone. No person may stop, stand, or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone during hours when the regulations applicable to such curb loading zone are effective and then only for a period of time not to exceed three (3) minutes. (Ord. 4811/Reso. 990, 1771)

(C) Standing in Freight Curb Loading Zone. No person may stop, stand, or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of materials in any place marked as a freight curb loading zone during hours when the provisions applicable to such zone are in effect. In no case shall the stop for loading and unloading for materials exceed twenty (20) minutes. (Ord. 4811/Reso. 990, 1771)

(D) City Traffic Engineer to Designate Public Carrier Stands. The City Traffic Engineer, is hereby authorized and required to establish bus stops and taxicab stands and stands for other passenger common carrier motor vehicles in such public streets in such places and in such number as he shall determine to be of the greatest benefit and convenience to the public, and every such bus stop, taxicab stand, or other stand shall be designated by appropriate signs. (Ord. 4811/Reso. 990, 1074, 1440, 1771, 3766)

(E) Parking of Buses and Taxicabs Regulated. The driver of a bus or taxicab may not park upon any street in any business district at any place other than at a bus stop or taxicab stand respectively, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers. (Ord. 4811/Reso. 990, 1771)

(F) Restricted Use of Bus and Taxicab Stands. No person shall stand, stop, or park a vehicle other than a bus in a bus stop or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while engaged in loading and unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter the same. (Ord. 4811/Reso. 990, 1771)

(G) City Traffic Engineer to Designate School Bus Loading Zones. The City Traffic Engineer, is authorized and required to establish school bus loading zones in such public streets, in such places, and in such number as he shall determine to be of the greatest benefit and convenience to the public, and every school bus loading zone shall be designated by appropriate signs. (2164, 3766, 4811)

(H) Restricted Use of School Bus Loading Zones. No person shall stand, stop, or park a vehicle, other than a school bus, in a school bus loading zone when such zone has been officially designated and appropriately

signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while engaged in loading and unloading passengers when such stopping does not interfere with any school bus waiting to enter or about to enter said loading zone. (2164, 4811)

10-3-24: STOPPING, STANDING, OR PARKING RESTRICTED OR PROHIBITED ON CERTAIN STREETS

(A) Application. The provisions of this Chapter prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a Police officer or official traffic-control device. (Reso. 990, 1771)

(B) Violation of Laws of City. No person may allow, permit, or suffer any vehicle registered in his name to stand or park in any street in the City in violation of any of the laws of the City regulating the standing or parking of vehicles. (Reso. 990, 1771)

(C) Regulations Not Exclusive. The provisions of this Chapter imposing a time limit on parking shall not relieve any person from the duty to observe the other and more restrictive provisions prohibiting or limiting the stopping, standing, or parking of vehicles in specified places or at specified times. (Reso. 990, 1771)

(D) Parking Prohibited at Certain Times on Certain Streets. The City Traffic Engineer may determine locations where stopping, standing or parking is prohibited at all times or at certain times and/or on certain days. (Ord. 4811/Reso. 990, 1771)

1. In accordance with the rules and regulations herein contained and when signs are erected giving notice thereof, or the curb is painted red under direction of the City Traffic Engineer, no person may at any time stop, stand or park a vehicle upon a portion of any street or alley so designated. (4811)

2. In accordance with the rules and regulations herein contained and when, under the direction of the City Traffic Engineer, signs are erected giving notice that parking is prohibited at certain times and/or on certain days, no person may stop, stand or park a vehicle upon a portion of any street or alley so designated during the specified times and/or days. (4811)

3. The City Traffic Engineer shall keep a record of all locations where the City Traffic Engineer, Transportation Advisory Board or City Council establishes permanent stopping, standing or parking prohibitions. The City Traffic Engineer shall also keep a record of any temporary stopping, standing or parking prohibitions established where the restrictions are expected to remain longer than 90 days. (4811)

(E) Parking Time Limited on Certain Streets. When signs are erected giving notice thereof, parking of a vehicle is limited to a period of time no longer than two (2) hours between the hours of eight (8:00) A.M. and five (5:00) P.M. of any day, except Saturdays, Sundays, and City holidays, upon any of the streets or parts of streets within the City. (Reso. 990, 1771, 2188)

(F) Parking Signs Required. Whenever by this or any other laws or regulations of the City any parking time limit is imposed or parking is prohibited on designated streets, it shall be the duty of the City Traffic

Engineer to erect appropriate signs giving notice thereof, and no such regulations shall be effective unless said signs are erected and in place at the time of any alleged offense. (Ord. 4811/Reso. 990, 1286, 1771, 3766)

(G) Stopping, standing, or parking at all times on any street is prohibited if official signs are erected and in place giving notice thereof that stopping, standing, or parking is prohibited. (2888)

10-3-25: PARKING VIOLATIONS; LIABILITY AND ENFORCEMENT

(A) Parking a Civil Traffic Violation; Definition. Violation of any City ordinance or provision of this Code which regulates the time, place, or method of parking is a civil traffic violation. "Parking" means the standing of a vehicle, whether occupied or not. (2188)

(B) Parking Violations; Persons Liable. (2188)

1. It is unlawful for a vehicle to be parked in violation of any City ordinance or provision of this Code regulating the time, place, or method of parking. Violations of any City ordinance or provision of this Code regulating the time, place, or method of parking which are continuous in nature shall constitute a separate and distinct violation for each full hour thereof. (2188)

2. Whenever a vehicle is parked in violation of a City ordinance or provision of this Code regulating the time, place, or method of parking, the owner or owners of the vehicle, the registered owner or owners of the vehicle, and the person who parked or placed the vehicle where the violation occurred shall be jointly and individually liable for the violation and for the civil sanction prescribed herein. (2188)

3. A vehicle parked in contrary to or inconsistent with any City ordinance or provision of this Code regulating the time, place, or method of parking which provides that "no person" may stop, stand, or park a vehicle at a designated location or contrary to any limitations, restrictions, or other provision regulating the time, place, or method of parking is deemed to be parked in violation of said ordinance or provision of this Code. (2188)

4. Whenever a motor vehicle is parked upon the public right-of-way or other property in violation of this Code and the vehicle has previously been the subject of five (5) or more violations of the parking provisions of the Code within a twelve- (12-) month period but the civil sanctions prescribed under the Mesa City Code for those violations have not been satisfied, then the vehicle shall be deemed to constitute a public nuisance and the owner of the vehicle consents to immobilization, towing, and impoundment of the vehicle pursuant to Title 10 of the Mesa City Code. A possessory lien is hereby created and attached to such vehicle for the payment, in cash or its equivalent, of all current and accumulated parking tickets and for reasonable costs associated with immobilization, towing, and impoundment. (2434)

(C) Parking Notice; Issuance. (2188)

1. In an action involving unlawful parking, a copy of the notice need not be personally served upon the owner or operator of the vehicle but may be served by attaching a copy to the vehicle. These notices may be issued by a municipally hired police parking monitor or authorized private contractor approved by the Chief of Police. (2188, 4693)

2. The notice shall include the date, time, and location of the violation; the state license number of the vehicle unlawfully parked; reference to the City ordinance or Code provision violated; and notice that within seven (7) calendar days from the day on which the notice was issued the sanction for the violation must be paid and received by the City or a request made and received by the City for a hearing to contest the alleged violation. (1771, 2188, 4444)

3. The notice, or copy thereof, shall constitute prima facie evidence of the parking infraction. (3770)

(D) Response to Parking Notice. (2188)

1. Within seven (7) calendar days from the day on which the notice was issued, the person or persons liable for the parking violation shall respond to the notice by one of the following methods: (2188, 4444)

(a) By appearing in person, by representation, by deposit in a City collection box, or by mail to the City within said seven (7) calendar day period, admitting responsibility for the violation and paying the civil sanction prescribed for the violation. (2188, 4444)

(b) By contacting the City in person, by representation, by telephone, by mail, or by deposit in a City collection box within said seven (7) calendar day period and requesting a hearing to contest the alleged violation. (2188, 4444)

(c) By appearing in person at the City Court and requesting an initial appearance before a Hearing Officer to explain the circumstances of the alleged violation. The Hearing Officer at the initial appearance may accept the defendant's explanation and dismiss the notice of violation or shall inform the defendant that the civil sanction must be paid or a request must be made for a civil traffic hearing to contest the alleged violation. (2188)

(d) A request for a hearing or payment of the civil sanction will be considered received by the City if it is actually delivered to the City Court, deposited in a City collection box, or postmarked within seven (7) calendar days after the date the notice of violation was issued. A request for a hearing made by telephone will be considered received the day it is made if it is received by a City Court employee between the hours of eight (8:00) A.M. and five (5:00) P.M. of any day, except on Saturday, Sunday, or a City holiday. (2188, 4444)

(E) Schedule of Sanctions. The sanctions listed in the following schedule are the minimum sanctions that may be imposed for violations of the Sections of the Mesa City Code listed therein. Any vehicle parked in violation of a City ordinance or other provision of this Code other than those in the following schedule shall cause the person or persons liable for the violation to be assessed a minimum sanction of fifteen dollars ($15.00). (2188, 2434, 2573, 4444)

Section	Description	Sanction
10-3-21(B)1	Sidewalk Parking	$26.00
10-3-21(B)2	Blocking Driveway	$26.00
10-3-21(B)3	Intersection Parking	$26.00
10-3-21(B)4	Fire Hydrant	$26.00
10-3-21(B)5	Crosswalk Parking	$26.00
10-3-21(B)10	Fire Station Exit	$26.00

Section	Description	Sanction
10-3-21(B)12	Double Parking	$26.00
10-3-21(B)14	Red Curb	$26.00
10-3-21(E)	Alley Parking	$26.00
10-3-21(G)1	Vehicle for Sale; Parking Prohibited	$26.00
10-3-21(G)2	Repairing Vehicle; Parking Prohibited	$26.00
10-3-21(L)	Physically Disabled	$55.00
10-3-21(N)	Fire Lane	$26.00
10-5-1(B)2	Lots and Garages; Improper Placement or Display of Permit or Decal	$26.00
10-5-1(C)	Parking Oversize Vehicle in Compact Car Area	$26.00
11-17-6	Recreational Vehicle Parking	$26.00

(2188, 2434, 2573, 3530, 4444, 5024)

(F) Failure to Respond to a Notice; Increased Sanction for Failure to Make a Timely Response. (Reso. 990, 1771, 2188)

1. If the person or persons liable for a parking violation fail to respond by one of the methods prescribed in Subsection (D) within seven (7) calendar days from the day the notice was issued, the sanction for the violation shall automatically be increased to twice the minimum sanction. If the sanction is not paid within thirty (30) days after the date of the violation and the person or persons liable for the violation have failed to make a timely response pursuant to Subsection (D), the sanction shall be increased automatically to four (4) times the minimum sanction which is due and payable at that time. (2188, 4444)

2. The list of violations and sanctions provided for in Subsection (E) are the minimum sanctions that may be imposed when the defendant responds to the notice in a timely manner. The civil sanctions prescribed herein shall not be suspended or reduced except as provided herein. (2188)

3. A City Magistrate or a civil traffic Hearing Officer may suspend the payment of an increased sanction or late penalty for the failure to respond to a parking notice; however, a City Magistrate or civil traffic Hearing Officer cannot suspend the payment of the minimum sanction as provided in the schedule in Subsection (E). (2188)

(G) Civil Traffic Complaints; Hearings. (2188)

1. If a defendant has made a timely request for a hearing pursuant to Subsection (D)1(b) or (D)1(c) or has failed to timely respond to the notice and has not paid the civil sanction as required by Subsection (D)1(a), a civil traffic complaint and summons will be issued by the City Court unless the City Prosecutor determines that a complaint shall not be requested. (2188)

2. Failure to respond to a civil traffic complaint and summons will result in a default judgment for the amount of the civil sanction. (2188)

3. A civil traffic hearing for a parking violation may be heard by a civil traffic Hearing Officer pursuant to applicable State statutes and the Arizona Supreme Court Rules of Procedure in Civil Traffic Violation Cases. The Hearing Officer may make such orders as may be necessary and proper to dispose of such cases. (2188)

(H) Judgments; Collection. The City may contract with a private person or entity for the collection of civil judgments in parking cases. (2188)

(I) Courtesy Citations. Courtesy citations may be given for time violation and parking without a required permit/decal at the discretion of the authorized private contractor, parking enforcement officer or a Police Officer. No fine or sanction will be incurred for a courtesy citation. No more than two (2) courtesy citations may be given to the same person or vehicle within a period of seven (7) days. A third violation will result in the issuance of a parking notice of a violation. (2188, 2573, 4693)

(J) Time calculation. If the seventh (7th) calendar day as set forth herein is a Saturday, Sunday or Legal Holiday, then payment shall be due on the next day that is not a Saturday, Sunday, or Legal Holiday. (4444)

10-3-26: WHEN VEHICLES MAY BE IMPOUNDED

(A) Authority to Impound Vehicles. Members of the Police Department are hereby authorized to remove any vehicle from any street, highway, or publicly or privately owned property, parking lot, or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a contract, lease, or agreement with the City or duly posted private property as defined in paragraph 5 of this Subsection (A) to the nearest garage or towing company lot designated or maintained by the Police Department or otherwise maintained by the City under the circumstances hereinafter enumerated: (Reso. 990, 1074, 1142, 1669, 1771, 1849, 1974, 2122, 2188, 2434)

1. When any vehicle is left unattended upon any bridge, viaduct, or causeway or in any tube or tunnel where such vehicle constitutes an obstruction to traffic. (Reso. 990, 1074, 1142, 1669, 1771, 1849, 1974, 2122, 2188)

2. When a vehicle upon a street or highway is so disabled as to constitute an obstruction to traffic and the person in charge of the vehicle is by reason of physical injury incapacitated to such an extent as to be unable to provide for its custody or removal. (Reso. 990, 1074, 1142, 1669, 1771, 1849, 1974, 2122, 2188)

3. When any vehicle is left unattended upon a street in an unlawful manner and is so parked as to constitute a definite hazard or obstruction to the normal movement of traffic or is parked in front of a public or private driveway. (Reso. 990, 1074, 1142, 1669, 1771, 1849, 1974, 2122, 2188)

4. When any vehicle is left parked upon a street for a period in excess of forty-eight (48) hours. For the purposes of this paragraph the words "left parked" shall mean being left upon a street for a period of time in excess of forty-eight (48) hours without the vehicle having been moved at least three hundred feet (300'). (Reso. 990, 1142, 1669, 1771, 1849, 1974, 2122, 2188)

5. When any vehicle is advertised or offered for sale from a vacant property or unauthorized vehicle sales lot without the express written permission of the property owner when such property has been duly posted by the City to prohibit the parking or sale of such vehicles. Any property owner within the City may make application to the City Manager or designee to authorize the City to post signs indicating that the advertising, offering for sale, or sale of any vehicle is prohibited on the applicant's property and further authorizing the City to act as the agent of the property owner to gain compliance with the provisions of this Section. Such application shall be made on a form prescribed by the City Manager or designee. The City Manager or designee shall thereupon cause

the applicant's property to be posted with an appropriate sign or signs stating that the advertising, offering for sale, or sale of any vehicle is prohibited thereon. When such property has been so posted, it shall be the duly posted private property. (1142, 1669, 1771, 1849, 1974, 2122, 2188, 5024)

6. When a vehicle is parked in a fire lane in violation of the provisions of Section 7-2-2(M) of the Mesa City Code. (1849, 1974, 2122, 2188)

7. When a vehicle is parked, stopped, or standing in violation of any provision contained in Title X, Chapters 2, 3, or 5 of this Code or when signs are erected giving notice that vehicles parked in violation of the parking restrictions may be towed at the owner's expense. (1974, 2122, 2188)

(B) Unoccupied Vehicle Violating Laws Declared Nuisance. Any unoccupied vehicle of any kind or description found under the circumstances enumerated in paragraph numbers 1 through 7, inclusive, of Subsection (A) of this Section is hereby declared to be a nuisance and a menace to the safe and proper regulation of traffic. Such vehicle shall be taken in charge by any Police officer and removed from the street, public parking lot or garage, private parking lot or garage, or duly posted private property and kept in custody upon the direction of the Chief of Police. Such vehicle may be recovered by the owner when he has furnished evidence of his identity and ownership and signed a receipt. The owner of such vehicle shall be liable for all towing and storage charges in connection with the removal and storage thereof. The payment of such removal and storage charges shall not release the owner or driver of such vehicle from any other penalty imposed for violation of the traffic laws of the City. (1142, 1669, 1771, 1849, 1974, 2188)

(C) Notice of Removal to Owner. Whenever an officer removes a vehicle from a street, public parking lot or garage, private parking lot or garage, or duly posted private property as authorized in this Section and the officer knows or is able to ascertain from the registration records in the vehicle the name and address of the owner thereof, such officer shall immediately give or cause to be given notice in writing to such owner of the fact of such removal and the reasons therefor and of the place to which such vehicle has been removed. In the event any such vehicle is stored in a public garage, a copy of such notice shall be given to the proprietor of such garage. (Reso. 990, 1142, 1669, 1974, 2188)

(D) Unidentifiable Vehicles. Whenever an officer removes a vehicle from a street, public parking lot or garage, private parking lot or garage, or duly posted private property under this Section and does not know and is not able to ascertain the name of the owner or for any reason is unable to give notice to the owner as hereinbefore provided, and in the event the vehicle is not returned to the owner within a period of three (3) days, then and in that event the officer shall immediately send or cause to be sent a written report of such removal by mail to the Motor Vehicle Department, whose duty it is to register motor vehicles, and shall file a copy of such notice with the proprietor of any public garage in which the vehicle may be stored. Such notice shall include a complete description of the vehicle, the date, time, and place from which removed, the reasons for such removal, and the name of the garage or place where the vehicle is stored. (Reso. 990, 1142, 1669, 1974, 2188)

(E) Thirty-Day Impoundment. Pursuant to A.R.S. § 28-3511, a vehicle shall be immobilized or impounded for thirty (30) days for the following reasons:

1. The driver's driving privilege is revoked for any reason; (4659)

2. The driver's driving privilege is suspended; (4659)

3. The driver has never been issued a driver license or permit and does not produce evidence of a driver license by another jurisdiction; or (4659)

4. A Peace Officer has probable cause to arrest the driver for a violation of ARS §§ 4-244, 28-1382, or 28-1383. (4659)

(F) Thirty-Day Impoundment Fee Pursuant to ARS § 28-3513. (4659)

1. If a vehicle is properly impounded, a $150.00 administrative fee will be charged, relating to the removal, immobilization, impoundment, storage or release of a vehicle. The administrative charge is in addition to any other immobilization, impoundment, or storage charges. (4659)

2. The administrative fee will be waived upon proof that the vehicle is stolen and the theft was reported. (4659)

3. If the theft was reported, the operator of the vehicle at the time of immobilization or impoundment is responsible for all towing, immobilization, and storage charges. (4659)

10-3-27: EXCESS LOADS; CIVIL SANCTIONS AND PENALTIES FOR VIOLATION

(A) Single Axle Load Limit and Gross Weight of Vehicles and Loads. The gross weight imposed by the wheels of any one axle of a motor vehicle and the total gross vehicle weight of any motor vehicle operated upon any City street shall not exceed the weights set forth in A.R.S. §§ 28-1008, 28-1009, and 28-1009.01, and the provisions of said Sections, together with the tables and formulas set forth therein, are incorporated herein by reference and made a part hereof as though fully set forth herein. (1910)

(B) Violation; Classification; Prima Facie Evidence. (1910)

1. A person who violates any of the provisions of this Section is subject to a civil sanction except as otherwise set forth herein. (1910)

2. A second violation of this Section within six (6) months of a judgment for a first violation is a Class 2 misdemeanor. A second conviction as a misdemeanor for violation of Subsection (A) of this Section within one (1) year is a Class 1 misdemeanor. In addition to any term of imprisonment which may be imposed for a second or subsequent violation, the Court shall fine a person the amount which is set forth in the following table: (1910)

If the Excess Weight is:	**The Minimum Fine or Civil Sanction is:**		
	Sanction	**Class 2**	**Class 1**
1,001 to 1,250 Pounds	$50.00	$75.00	$100.00
1,251 to 1,500	$100.00	$150.00	$200.00
1,501 to 2,000	$150.00	$225.00	$300.00
2,001 to 2,500	$200.00	$300.00	$400.00
2,501 to 3,000			$500.00
3,001 to 3,500			$600.00
3,501 to 4,000			$700.00
4,001 to 4,500			$800.00
4,501 to 4,750			$900.00
4,751 and Over			$1,000.00

3. Notwithstanding any of the provisions of Subsection 2 of this Section, a conviction for a violation of this Section in which the excess weight is over two thousand five hundred one pounds (2,501) or greater is a Class 1 misdemeanor. (1910)

4. If the officer finds that the person has violated only the axle weight limitation and not the total weight limitation, the officer shall request a driver to reload the vehicle to comply with the axle weight limitation. If the driver does not comply with the request of the officer to reload, the driver is subject to a civil sanction. (1910)

5. A weight certificate or other document evidencing the receipt of goods for shipment issued by a person engaged in the business of transporting or forwarding goods stating the gross weight of the vehicle with a load which is in excess of the prescribed maximum weight set forth in this Section is prima facie evidence that the weight of a vehicle and load is unlawful. (1910)

6. If the commodity being carried is sold by weight, a weight certificate or other document evidencing the receipt of goods for shipment issued by a person engaged in the business of transporting or forwarding goods stating the gross weight of the vehicle with a load which is not in excess of the prescribed maximum weight limitation permitted by this Section is prima facie evidence that the weight of a vehicle and load is lawful. (1910)

CHAPTER 4
SPEED LIMITS

10-4-1: SPEEDS OF 55 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of fifty-five (55) miles per hour on the following portions of the following streets: (990, 1771, 2002, 4594)
(Repealed by 4594)

10-4-2: SPEEDS OF 50 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of fifty (50) miles per hour on the following portions of the following streets: (990, 1771, 4594, 5140)

Ellsworth Road	From Elliot Road to the south City limits; (5140)

10-4-3: SPEEDS OF 45 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of forty-five (45) miles per hour on the following portions of the following streets: (990, 1771, 5140)

Alma School Road	From Baseline Road south to the City limits; (3221)
	From 8th Street to the north City limits; (3456)
Baseline Road	From the west City limits to the east City limits; (3131, 3903)
Broadway Road, East	From South Gilbert Road to the east City limits;
Broadway Road, West	From Mulberry to the west City limits;
Brown Road	From Stapley Drive to the east City limits; (3784)

Center, North	From Brown Road to McKellips Road;
Country Club Drive	From Brown Road to the north City limits;
Crismon Road	From north City limits to Elliot Road; (2689, 3639, 3784, 5432)
Dobson Road, South	From Baseline Road to the south City limits; (3221)
Elliot Road	From the west City limits to the east City limits; (3784, 4477)
Ellsworth Road	From north City limits to Elliot Road; (4017, 4068, 4594, 5140)
Germann Road	From the west city limits to the east city limits; (4918)
Gilbert Road	From the west leg of Lockwood Street to the south City limits; (4004)
Greenfield Road	From the north City limits to the south City limits; (3538, 4066)
Guadalupe	From the west City limits to a point six hundred twenty feet (620') east of Signal Butte Road; (3784)
Hawes Road	From Loop 202/Santan Freeway to Ray Road; (5009)
Higley Road	From Thomas Road to the south City limits; (2330, 4017, 4066)
Lindsay Road	From the north City limits to the south City limits; (3784)
Main Street	From Gilbert Road to the east City limits; (3221, 4823)
McDowell Road	From 26th Street to the east City limits; (4004, 4017)
McKellips Road	From the west City limits to the east City limits; (4017)
Mesa Drive, North	From East Brown Road to East McKellips Road;
Mountain Road	From Pecos Road to Williams Field Road; (2565)
	From Mesquite Street to Ray Road; (5177)
Pecos Road	From the west City limits to Mountain Road; (2565, 4279, 4882)
Power Road	From the Superstition Freeway (U.S. 60) to the north City limits; (3784, 4017)
	From Baseline Road to the south City limits; (5013)
Ray Road	From Power Road to East City Limits; (5424)
Recker Road	From Adobe Street to the Red Mountain Freeway; (Loop 202) (3816, 4456)
Signal Butte Road	From Broadway Road to south City limits; (2689, 3585, 4886, 5128, 5307)
Sossaman Road	From Elliot Road to the north City limits; (3221, 4594)
	From a point two thousand eight hundred feet (2,800') north of Pecos Road to the south City limits; (4279, 5350)
Southern Avenue	From Alma School Road to the east City limits; (3784)
Stapley Drive	From Southern Avenue to the south City limits; (3771)
	From Brown Road to June Street; (3816);
Thomas Road	Higley Road to Recker Road; (4099)
University Drive, East	From North Gilbert Road to the east City limits;
Usery Pass Road	From McDowell Road to the north City limits; (4017)
Val Vista Drive	From Pomegranate to the south City limits. (2664, 3475)
Warner Road	From Signal Butte Road to Meridian Road; (3944, 4795)
Williams Field Road	From Crismon Road to the east City limits.

(Ord. No. 5507, § 1, 5-20-19; Ord. No. 5582, § 1, 8-24-20; Ord. No. 5646, § 1, 10-18-21; Ord. No. 5819, § 1, 11-20-23)

10-4-4: SPEEDS OF 40 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of forty (40) miles per hour on the following portions of the following streets: (990, 1771, 4980, 5098, 5200)

Alma School Road	From 8th street to Baseline Road (3154, 3456, 3221)
Broadway Road	From Gilbert Road to Mulberry; (5098)
Brown Road	From North Country Club Drive to North Stapley Drive;
Center Street	From University Drive to Brown Road; (5098)
Country Club Drive	From Baseline Road to Brown Road (3221, 4774, 5098)
Dobson Road	From Baseline Road to a point one thousand six hundred feet (1,600') north of 8th Street; (3154, 3221)
Gilbert Road	From the west leg of Lockwood Street to the north City limits; (4004)
Hawes Road	From Baseline Road to Guadalupe Road; (3443)
	From Broadway Road to a point one thousand two hundred seventy-five feet (1,275') south of Southern Avenue; (5009)
Main Street	From the west City limits to Alma School Road; (4823)
McDowell Road, East	From North 26th Street to the west City limits;
Mesa Drive	From Brown Road to the south City limits; (5098)
Power Road	From the Superstition Freeway (S.R. 360) to Baseline Road;
Recker Road	From Thomas Road to the Red Mountain Freeway (Loop 202); (4456)
Signal Butte Road	From the north City limits to a point one thousand two hundred thirty-seven feet (1,237') south of Main Street; (4980, 5128, 5307)
Southern Avenue, West	From Alma School Road to the west City limits;
Stapley Drive	From Brown Road to Southern Avenue; (3297, 3771, 5098)
Thomas Road	From Recker Road to Power Road; (3992, 4018, 4099)
University Drive	From Gilbert Road to the west City limits; (5098)
Val Vista Drive	From Pomegranate Street to Quenton Drive; (2664, 3475)
Warner Road	From a point six hundred seventy-five (675) feet West of 80th Street to Ellsworth Road
Williams Field Road	From the west City limits to Crismon Road; (5200)
8th Street	From Decatur Street to the west City limits. (3446)

(Ord. No. 5507, § 1, 5-20-19; Ord. No. 5582, § 2, 8-24-20; Ord. No. 5666, § 1, 1-24-22; Ord. No. 5819, § 2, 11-20-23; Ord. No. 5939, § 1, 5-12-25; Ord. No. 5967, § 1, 10-6-25)

10-4-5: SPEEDS OF 35 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of thirty-five (35) miles per hour on the following portions of the following streets: (990, 1771, 2002, 4980, 5067, 5098, 5200)

Adobe Road	From Power Road to 80th Street;
Alta Mesa Drive, North	Between East Adobe and East McKellips Road; (2002)
Cadence Parkway	From Ellsworth Road to a point one thousand and two hundred feet (1,200') east of Ellsworth Road; (5431)
Center	From McKellips Road to Lehi Road; (3406)
Center Street	From 1st Street to University Drive; (5098)
Center, South	From Broadway Road to 8th Avenue;
Channing	From Baseline Road to a point three hundred fifty feet (350') north of Baseline Road;

Clearview Avenue	From Southern Avenue to Superstition Springs Boulevard; (2591)
Crismon Road	From Ray Road to Williams Field Road; (5432)
Dobson Road	From a point one thousand six hundred feet (1,600') north of 8th Street to the Red Mountain Freeway (S.R. 202); (3103, 3154)
Eagle Crest Drive	From Power Road to Ridgecrest; (3154)
Eastmark Parkway	From the north City limits to the south City limits; (5200)
Extension Road	From West University Drive to West Baseline Road;
Guadalupe Road	From a point six hundred twenty feet (620') east of Signal Butte Road to the east City limits;
Hampton Avenue	From Power Road to Sossaman Road;
Harris Drive, South	From East Southern Avenue to East Baseline Road;
Hawes Road	From McKellips Road to Hermosa Vista Drive; (3015)
	From Guadalupe Road to Elliot Road; (3506)
Higley Road	From Thomas Road to the north City limits; (4066)
Horne Street	From Brown Road to Lehi Road; (3167, 3188, 3222)
	From Southern Avenue to Baseline Road; (3167, 3188)
Inspirian Parkway	From Elliot Road to Ray Road (5425)
Inverness Avenue	From a point four hundred feet (400') east of Higley Road to Sunview; (5128)
Lehi Road, East	From the east City limits to McDowell Road; (3304)
Longbow Parkway	From Higley Road to Recker Road; Parkway; (4099)
Longmore, South	From West Southern Avenue to the Superstition Freeway (S.R. 360);
Macdonald Street, South	From West 1st Avenue to West Broadway Road;
Main Street	From Mesa Drive to Gilbert Road; (4823)
	From Alma School Road to Country Club Drive; (4823)
McLellan Road, West	From the 400 block west to the west City limits;
Meridian Road	From the north city limits to Mesquite Street;
Mesa Drive	From McKellips Road to Lehi Road; (3562, 3986, 5067, 5098)
Mesquite Street	From Mountain Road to Meridian Road; (4922)
Mountain Road	From Elliot Road to Mesquite Street; (4477, 5177)
Pecos Road	From Mountain Road to the east City limits; (4882)
Point Twenty-two Boulevard	From Ellsworth Road to Signal Butte Road; (5200)
Recker Road, North	From Main Street to a point one-eighth (⅛) mile north of Main Street;
Recker Road, South	From East Main Street to Broadway Road; (2565)
Ridgecrest	From Eagle Crest Drive to McDowell Road; (3154)
Sossaman Road	From Ray Road to a point two thousand eight hundred feet (2,800') north of Pecos Road; (3639, 4279, 5350)
Stapley Drive	From McKellips Road to June Street; (3816, 5098)
Sunvalley Boulevard	From Main Street to Brown Road;
Superstition Springs Boulevard	From Southern Avenue to Sossaman Road; (3538)
Thomas Road	From a point three thousand six hundred seventy-three feet (3,673') west of Val Vista Drive to the South Canal; (4922)
Val Vista Drive	From Quenton Drive to the North City Limits;

Warner Road	From Power Road to a point one thousand five hundred sixty (1,560) feet East of Power Road;
	From Ellsworth Road to Eastmark Parkway;
8th Avenue, West	From Country Club Drive to Alma School Road;
8th Street	From Country Club Drive to Decatur Street; (3446)
24th Street, South	From East Southern Avenue to East Baseline Road;
32nd Street, South	From East Southern Avenue to East Baseline Road;
39th Street, South	From East Southern Avenue to East Baseline Road;
63rd Street	From Main Street to Broadway Road;
80th Street	From University Drive to Brown Road; (3275)
	From Elliot Road to Paloma Avenue; (3389)

(Ord. No. 5507, § 3, 5-20-19; Ord. No. 5519, § 1, 8-26-19; Ord. No. 5536, § 1, 12-2-19; Ord. No. 5646, § 2, 10-18-21; Ord. No. 5666, § 2, 1-24-22; Ord. No. 5939, § 2, 5-12-25; Ord. No. 5967, § 2, 10-6-25)

10-4-6: SPEEDS OF 30 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of thirty (30) miles per hour on the following portions of the following streets: (990, 1771)

Adobe	From Lindsay Road to Higley Road; (2503)
Allred Avenue, East	From South Windsor to South Lindsay Road;
Arbor Avenue, East	From Recker Road to 63rd Street;
Baldwin	From Monterey Avenue to Baseline Road; (3605)
Baywood Avenue, East	From 63rd Street to Power Road;
Billings Street	From 75th Street to Sossaman Road;
Boise	From Sunvalley Boulevard to 75th Street;
Brown Road, West	From North Country Club Drive to North Date Street;
Cadence Parkway	From a point one thousand and two hundred feet (1,200') east of Ellsworth Road to Williams Field Road; (5431)
Center	From 1st Street to Broadway Road;
Date Street, North	From West 8th Street to West Brown Road;
Emerald Avenue, West	From South Alma School Road to South Longmore;
Everton Terrace	From Elliot Road to a point two thousand and two hundred ninety feet (2,290') south of Elliot Road;
Extension Road	From Baseline Road to the south City limits;
Falcon Drive	From McKellips Road to Higley Road;
Farnsworth Drive	From Baseline Road to the south City limits;
Grove Avenue	From Alma School Road to Extension Road;
Hampton Avenue	From 48th Street to Higley Road; (3275)
	From Crismon Road to Signal Butte Road; (4004, 4904)
Hobson Street, North	From East Main Street to East University Drive;
Holmes Avenue	From Alma School Road to Westwood;
	From Greenfield Road to 48th Street; (3275)

Horne Street	From Lehi Road to the north City limits; (3167, 3188, 3222)
	From Brown Road to Southern Avenue; (3167, 3188)
Inverness Avenue, East	From South Val Vista Drive to South 39th Street;
Isabella, West	From South Longmore Street to South Alma School Road;
Ivy Street, East	From 48th Street to North Greenfield Road;
Javelina Avenue, West	From South Alma School Road to South Longmore;
Jensen Street, East	From Power Road to Sterling;
Keating Avenue, West	From South Dobson Road to West Nido Avenue;
	From West Nido Avenue to the west City limits;
Lansing	From Ellsworth Road to Neville Avenue; (3605)
Lehi Road	From Center to Gilbert Road; (3304)
Lindner Avenue, West	From West Kilarea Avenue to South Don Carlos Avenue;
Longmore	From the Superstition Freeway (S.R. 360) to Baseline Road;
Longmore, South	From Pueblo to Southern Avenue;
Los Lagos Vista Avenue, West	From South Dobson Road to Laguna Azul Avenue;
Main Street	From Centennial Way/Sirrine to Mesa Drive; (5356)
McLellan Road	From Country Club Drive to Center; (3222)
	From Greenfield Road to the east City limits; (2728, 3222, 5339)
Mesa Drive	From Lehi Road to the north City limits (5067);
Monterey Avenue	From Power Road to Sossaman Road; (2887)
Mountain Ridge	From Eagle Crest Drive to Ridgecrest; (3154)
Neville Avenue	From Lansing to Monterey Avenue; (3605)
Patterson Avenue, South	From West Nido Avenue to West Kilarea Avenue;
Pierpont	From 48th Street to Baseline Road; (4791)
Pueblo Avenue, East	From South Gilbert Road to South Lindsay Road;
Recker Road, North	From Thomas Road to Viewmont; (2330)
Recker Road, South	From the Superstition Freeway (S.R. 360) to the south City limits; (2565)
Redmont Drive	From Power Road to Recker Road;
Red Mountain	From Eagle Crest Drive to Ridgecrest; (5128)
Saddleback Street	From Eagle Crest Drive to Mountain Ridge; (3154)
Saratoga, South	From West Nido Avenue to South Don Carlos Avenue;
Springwood Blvd.	From Baseline Road to the south City limits; (5067)
Stapley Drive	From Lehi Road to McDowell Road; (3103)
Sterling	From Jensen to Brown Road;
Westwood	From Southern Avenue to Holmes Avenue;
Williams Street, South	From East Broadway Road to East 8th Avenue;
Windsor, South	From East Main Street to East Broadway Road;
1st Avenue	From Country Club Drive to Mesa Drive; (4017)
8th Avenue	From Stapley Road to Gilbert Road;
8th Street, East	From North Center to North Mesa Drive;
24th Street, South	From East Broadway Road to East Southern Avenue;
32nd Street, South	From Southern Avenue to Broadway Road; (2719)

40th Street	From Main Street to Broadway Road; (3222)
48th Street	From Ivy Street to McKellips Road;
	From East Adobe Road to East McLellan Road;
	From Hampton Avenue to Pierpont; (4791)
56th Street, South	From East Main Street to East Broadway Road;
64th Street, North	From Evergreen to McKellips Road; (2330)
70th Street	From Southern Avenue to Hampton Avenue; (2591)
72nd Street	From Superstition Springs Boulevard to Monterey Avenue; (2887)
74th Street	From Main Street to Boise Street;
75th Street	From Boise Street to University Drive.

(Ord. No. 5507, § 4, 5-20-19; Ord. No. 5563, § 1, 4-20-20; Ord. No. 5726, § 1, 9-12-22; Ord. No. 5850, § 1, 5-20-24)

10-4-7: SPEEDS OF 25 MILES PER HOUR PERMITTED ON CERTAIN STREETS

A person shall not exceed a speed of twenty-five (25) miles per hour on any public street within the City limits, except within the areas of those certain streets designated in Section 10-4-1 through Section 10-4-6 inclusive. (1771)

10-4-7.1: SPEEDS OF 15 MILES PER HOUR PERMITTED IN ALLEYS

A person shall not exceed a speed of fifteen (15) miles per hour on any public alley within the City limits. (2330)

10-4-7.2: SPEEDS OF 15 MILES PER HOUR PERMITTED ON CERTAIN STREETS (Repealed)

Editor's note—Ord. No. 2865 repealed § 10-4-7.2.

10-4-8: FALCON FIELD RESTRICTIONS

A person shall not exceed a speed of twenty-five (25) miles per hour on any roadway in Falcon Field, except where otherwise posted. (1771)

10-4-9: EMERGENCY, CONSTRUCTION OR CONTINGENT SPEED LIMITS

The City Traffic Engineer is authorized to fix speed limits less than the designated speed limits in this Chapter when construction conditions, congested traffic, or other conditions require such reduced speed limits for public safety. Such reduced speed limits shall become effective when signs are erected giving notice thereof, and such reduced speed limits shall remain in effect until the signs are removed. (840, 3766, 5258)

10-4-10: PENALTY FOR EXCEEDING THE MAXIMUM SPEED LIMIT

The provisions of A.R.S. §§ 28-701.02 and 28-702.01 shall be applicable in all instances when a person exceeds the maximum speed limit set forth in either of those Sections. (1771)

10-4-11: SPEEDS OF 35 MILES PER HOUR PERMITTED ON CERTAIN STREETS DURING CERTAIN HOURS

The City Traffic Engineer is hereby authorized to fix speed limits and to reduce the speed limit to thirty-five (35) miles per hour on streets immediately adjacent to any elementary, junior high, or high school property for

portions of the day when children are on their way to or from school. After consultation with school officials, the City Traffic Engineer or his designee will determine the length along each street where the reduced speed limit will be in effect and the effective hours of the reduced speed limit. The City Traffic Engineer or his designee shall cause signs to be erected giving notice of the times and specified location of the reduced speed limit. (2257, 3639, 3713, 3766, 3784, 5258)

CHAPTER 5
PARKING LOTS AND GARAGES

10-5-1: PARKING RESTRICTED OR PROHIBITED

(A) Installation of and Obedience to Signs and Markings. In a publicly or privately owned parking lot or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a lease, contract, or other agreement with the City, the City Traffic Engineer may have signs or markings installed that prohibit, limit, restrict, or regulate the time, place, or method of parking. When such signs or markings are in place, a vehicle shall not be parked in violation of the prohibition, limitation, restriction, method of parking, or regulation designated by said signs or markings. It shall be unlawful to park any vehicle in any parking lot or garage described above except within a parking stall as designated by official markings. It shall be unlawful to park any vehicle in any parking lot or garage described in this Section in such a position that it shall not be within the space designated by official lines or markings. (1073, 1771, 2189, 4882)

(B) In any publicly or privately owned parking lot or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a lease, contract, or other agreement with the City, all or certain portions of said lots or garages may be designated for parking of vehicles with permits or decals. Parking may be permitted in said lots, garages, or portions thereof during certain hours or on weekends and holidays if signs are posted which specify the hours or days that a permit or decal is required. Vehicles without a permit or decal may be parked in said lots or garages at any other time. (2189, 4882)

1. Parking in the above-described lots, garages, or portions thereof is prohibited during the hours or days that a permit or decal is required by official signs posted therein, except for vehicles that are displaying a current and valid permit or decal. A permit or decal is invalid if it is expired or has been cancelled because of a contract violation, such as nonpayment of the monthly rent or lease fee. (2189, 3833)

2. Vehicles parked in the above-described lots, garages, or portions thereof shall have a properly displayed permit or decal in the left rear lower corner of the rear window or other conspicuous location as approved by the City and in accordance with the provisions of this Section. A properly displayed permit or decal must be visible from the rear of the vehicle. (2189, 3833)

(C) Compact Car Parking. In any publicly or privately owned parking lot or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a lease, contract, or other agreement with the City, certain portions of said lots or garages may have parking spaces which are designated for compact cars. Vehicles which exceed fifteen feet (15') in length shall not be parked in areas designated for compact cars. (2189, 4882)

(D) Parking of motor vehicles is prohibited in the field area of Falcon Field Airport as defined in Title 9, Chapter 9, except for motor vehicles parked thereon pursuant to authority expressly granted by the Airport Director under Title 9, Chapter 9 of the Mesa City Code. (2434, 3833, 4882)

(E) In all publicly or privately owned parking lots or garages that are operated or managed by the City or by a private person or entity pursuant to an agreement with the City, persons shall use the lots and garages

only for the parking of vehicles or for other uses expressly approved in advance by the City. It shall be unlawful for any person using such property for unauthorized purposes to refuse or fail to leave such property upon being requested to do so by the owner, operator, or agent thereof. (2584, 4882)

(F) The City Manager or his designee may cause any publicly or privately owned parking lot or garage being operated or managed by the City or being operated or managed by a private person or entity pursuant to a lease, contract, or other agreement with the City, to be reserved to accommodate event parking, i.e., for concerts, plays, athletics, and other events. A fee may be assessed for the use of these lot(s) and/or garage(s) for daily parking. A fee may be assessed for the use of these lot(s) and/or garage(s) for event parking. The fees for daily parking and event parking shall be as approved by City Council Resolution. The City Manager or his designee shall determine if the event parking fee should be assessed for specific events. The City Council may authorize the City Manager to enter into licenses, leases, or other agreements that modify or waive daily and event parking fees. (4394, 4882, 4908)

10-5-2: VIOLATIONS

When signs or markings are in place giving notice thereof, it is unlawful and a violation of this Section for a vehicle to be parked in any location designated in Section 10-5-1 of this Chapter unless the vehicle is parked consistent with and in accordance with all restrictions, limitations, times, hours, days, manner, and other requirements in this Chapter and in compliance with any City ordinance or provision of this Code which regulates the time, place, or method of parking. Any violation of this Chapter is a civil traffic violation and shall be enforced by the Police Chief of the City pursuant to the provisions of Section 10-3-25 of the Mesa City Code. (2189, 3833, 4882)

10-5-3: SIGNS OR MARKINGS REQUIRED FOR ENFORCEMENT

The City Traffic Engineer may install appropriate signs or markings giving notice of parking restrictions, prohibitions, and method of parking in this Chapter and violations shall not be enforced unless appropriate signs or markings are installed and in place at the time of the violation. (2189, 3766, 4882)

10-5-4: RENTAL; LEASES AND PERMITS; ADMINISTRATION

(A) The City may contract with a private person or entity for the management of privately owned and public parking lots and garages. (2189)

(B) The City or a private person or entity acting pursuant to a contract with the City may manage or lease publicly and privately owned parking lots and may enter into agreements whereby parking rights or privileges in privately owned lots or garages and public lots or garages are rented or leased to individuals. (2189)

(C) The City or a private person or entity acting pursuant to a contract with the City shall issue permits or decals showing the lot or garages rented or leased and shall provide for appropriate display of the permits or decals. Permits or decals shall be issued only for vehicles for which the rent or lease has been paid. (2189)

10-5-5: AUTHORITY TO IMPOUND VEHICLES

Vehicles parked in violation of this Chapter may be impounded pursuant to the provisions of Section 10-3-26 of the Mesa City Code. (1771, 2189)

10-5-6: AUTHORITY TO ATTACH A RESTRAINING DEVICE

(A) Members of the Police Department are hereby authorized to attach a restraining device (boot) to any vehicle parked in violation of any provision of this Chapter where the vehicle is deemed to constitute a public nuisance under Title 10 of the Mesa City Code. (2189, 2434)

(B) Whenever a restraining device is used under this Section, a notice shall be conspicuously attached to the vehicle indicating that the vehicle has been immobilized for failure to satisfy outstanding sanctions for five (5) or more prior parking violations; that release from such immobilization may be obtained at a designated place; that unless arrangements are made for release of the vehicle within seventy-two (72) hours, the vehicle shall be deemed abandoned under, and shall be disposed of pursuant to, A.R.S. Title 28, Chapter 8, Article 5; and that any person who tampers with, defaces, removes, or attempts to remove a restraining device without Police Department permission is subject to criminal prosecution. Reasonable charges may be assessed for removing the restraining device from the vehicle and for towing and impounding the vehicle. (2434)

(C) It shall be a misdemeanor for any person to tamper with, deface, remove, or attempt to remove a restraining device that has been attached to a vehicle pursuant to this Section without Police Department authority. (2434)

(D) The owner or driver of a vehicle immobilized under this Section shall be entitled, upon request, to a hearing in the Mesa City Court to contest the immobilization. Such request for a hearing shall be made in writing to the Clerk of the Mesa City Court within seventy-two (72) hours of the immobilization. If a timely request for a hearing is made under this Subsection, a hearing shall be held within forty-eight (48) hours of the receipt of the request unless the owner or driver of the immobilized vehicle requests or agrees to a hearing at a later time. (2434)

(E) Whenever the owner or driver of a vehicle immobilized under this Section requests a hearing before the Mesa City Court to contest the immobilization, the owner or driver may obtain the immediate release of the vehicle pending the hearing by depositing with the City the sum of two hundred dollars ($200.00) in cash or its equivalent or by posting a secured appearance bond or other form of security in the amount of, or having a value of, two hundred dollars ($200.00). The secured appearance bond or other form of security shall reflect the undertaking by the owner, driver, or surety, to bind himself or themselves to pay the full amount of the bond to the City of Mesa or otherwise to forfeit their security if the owner or driver fails to appear before the City Court to contest the immobilization. (2434)

(F) The person who parked or placed a vehicle in violation of Title 10 of the Mesa City Code, the owner or owners of the vehicle, and the registered owner or owners of the vehicle are individually and jointly responsible for the violations, the prescribed civil sanctions, and for payment of any applicable immobilization, towing, or impoundment charges. (2434)

(G) Vehicles immobilized or impounded under this Section shall promptly be released upon payment, in cash or its equivalent, of all current and accumulated sanctions and payment of all charges associated with immobilization and impoundment of the vehicle. (2189, 2434)

(H) Whenever a vehicle is towed and impounded under this Section as an abandoned vehicle, notice shall be provided in accordance with A.R.S. Title 28, Chapter 8, Article 5. (2434)

CHAPTER 6
OFF-STREET PARKING AREAS (Repealed)*

CHAPTER 7
CIVIL TRAFFIC VIOLATIONS

10-7-1: CIVIL TRAFFIC VIOLATIONS

Any violation of or failure or refusal to do or perform any act required by Chapters 1 through 7 of Title 10 of the Mesa City Code constitutes a civil traffic violation except as otherwise provided. Civil traffic violations are subject to the provisions of A.R.S. Title 28, Chapter 6, Articles 20 and 21, and amendments thereto. (1771)

10-7-2: AUTHORITY TO DETAIN PERSONS TO SERVE TRAFFIC COMPLAINT

Any Police officer or duly authorized agent of the City may stop and detain a person as is reasonably necessary to investigate an actual or suspected violation of this Title and to serve a copy of the traffic complaint for any alleged civil or criminal violation of this Title. (1771)

10-7-3: HEARING OFFICERS (Repealed)†

10-7-4: HABITUAL OFFENDERS

(A) Any person who commits a civil traffic violation of this Title 10 of the Mesa City Code after previously having been found responsible for three (3) or more civil traffic violations of Title 10 of the Mesa City Code within a twenty-four- (24-) month period, whether by default or by judgment after hearing, and who has not paid the civil sanctions required by the Court for those offenses (underlying offenses) shall be guilty of a misdemeanor. For purposes of calculating the twenty-four- (24-) month period under this paragraph, the dates of the commission of the offenses are the determining factor. (2434, 3117)

(B) The Mesa City Prosecutor is authorized to file a criminal misdemeanor complaint in the Mesa City Court against habitual offenders who violate this Section. (3117)

(C) The payment of the civil sanctions due on an underlying offense, when such payments are made after the issuance of a summons and complaint on a charge of being a habitual offender, shall not be a defense to the habitual offender charge. (3117)

(D) Upon conviction of a violation of this Section, the Court may impose a sentence of incarceration not to exceed six (6) months in jail or a fine not to exceed two thousand five hundred dollars ($2,500.00), exclusive of penalty assessments prescribed by law, or both. The Court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than two hundred fifty dollars ($250.00) for each count upon which a conviction has been obtained. A judge shall not grant probation to or suspend any part or all of the imposition or execution of any sentence required by this Subsection except on the condition that the person pay the mandatory minimum fines as provided for in this Subsection. (2434, 2466, 3117)

***Editor's note—**Ord. No. 2189 repealed Chapter 6.

†Editor's note—Ord. No. 4027 repealed § 10-7-3. Formerly, such section derived from Ord. No. 1771.

(E) Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure. (2434, 3117)

CHAPTER 8
PENALTY FOR REFUSAL TO FURNISH INFORMATION OR SIGN CIVIL TRAFFIC CITATION

10-8-1: REFUSAL TO FURNISH INFORMATION OR SIGN CITATION

Any person who fails to furnish the citing officer or their designate their full name and date of birth required for completion of a civil traffic citation or who, after request by the citing officer, refuses to sign a civil traffic citation shall be guilty of a misdemeanor.
(Ord. No. 1771; Ord. No. 5620, § 1, 5-3-21)

10-8-2: PENALTY

Any person who shall violate any of the provisions of Section 10-8-1 of the Mesa City Code shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment in the City jail for a period not to exceed six (6) months, or by both such fine and imprisonment. (1771, 2466)

CHAPTER 9
PRIVATE PARKING AREAS

10-9-1: PARKING IN PRIVATE PARKING AREAS

(A) No person shall park a vehicle in any private parking area without the express or implied consent of the owner or the agent of the owner of such property. (1862)

(B) The owner or the agent of the owner of any private parking area shall be deemed to have given consent to unrestricted parking by the general public in such parking area unless such parking area is posted with signs as prescribed by this Section which are clearly visible and readable from any point within the parking area and at each entrance thereto. The signs shall contain the following information: (1862)

1. Restrictions on parking. (1862)
2. That violator's vehicle will be towed away at violator's expense. (1862)
3. Telephone number of Mesa Police Department. (1862)
4. Each sign shall state "Mesa City Code, Title 10, Chapter 9." (1862)

10-9-2: CONSENT AND NOTICE TO POLICE AND RELEASE OF VEHICLE

(A) No person shall tow or transport a vehicle from a private parking area without the permission of the owner or operator of the vehicle, unless requested to do so by a law enforcement agency or upon a written towing order signed by the real property owner or his agent specifying the vehicle to be towed. The signed towing request must be in the possession of the person towing or transporting the vehicle. (1862)

(B) No person shall hold or attempt to hold any vehicle towed from a private parking area without the consent of the vehicle owner or operator as security for accrued towing and/or storage fees. A vehicle owner or agent of a vehicle owner may recover the towed vehicle from the tow driver or tow company upon providing reliable identification such as a driver's license or other evidence of name and address of the registered owner or driver for assistance in billing and collection of towing and/or storage charges. (This Subsection shall not apply to vehicles deemed to constitute a public nuisance pursuant to Mesa City Code Section 10-3-25[B]4.) (2576)

(C) Any person towing or transporting any vehicle from any private parking area without the express permission of the vehicle owner or operator shall notify the City of Mesa Police Department immediately upon the taking of such action and provide the following information: (1862, 2576)

1. Name and address of the owner of the vehicle, if known. (1862, 2576)
2. The vehicle license number and description. (1862, 2576)
3. Reason the vehicle was moved without the permission of the owner or operator. (1862, 2576)
4. Location from which the vehicle was taken. (2576)
5. Location to which the vehicle was taken. (1862, 2576)
6. Name, address, and telephone number of the person or company that towed or transported the vehicle. (1862, 2576)

(D) Penalty. Any person who violates or fails to comply with any of the provisions of Section 10-9-2 of the Mesa City Code shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500.00) or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment. (1862, 2576)

CHAPTER 10
TEMPORARY TRAFFIC CONTROL MANUAL

10-10-1: TEMPORARY TRAFFIC CONTROL MANUAL

(A) City Temporary Traffic Control Manual. The City Traffic Engineer shall develop, publish, and revise from time to time as needed, a manual on procedures and practices necessary to establish temporary control measures to be used in conjunction with partial and full restrictions of all City streets, sidewalks, bicycle lanes, equestrian, bicycle, pedestrian or multi-use paths, special use trails, alleys, highways, transit stops or other facilities, hereinafter referred to as "City transportation facilities," to be used in conjunction with any work, construction, maintenance, or other use of City rights-of-way or easements. Such City Temporary Traffic Control Manual may consist of a manual or manuals, in whole or in part, developed and published by other cities, states or the federal government, along with modifications, amendments, or a supplement specific to the City of Mesa. The City Temporary Traffic Control Manual shall be adopted by City Council resolution. (5053/Reso. 9892, 5415)

1. Clarifications and Corrections. The City Traffic Engineer is authorized to publish clarifications and corrections to the City Temporary Traffic Control Manual as needed to provide clarification,

additional explanation or illustration of any provision of the City Temporary Traffic Control Manual, or to correct typographical or other similar errors. Such clarifications and corrections shall be in writing and filed with the City Clerk. (5068, 5415)

(B) The City Traffic Engineer or designee, is authorized to approve or disapprove barricading utilized on any City transportation facility, and to take those actions necessary, in his professional judgment and in accordance with the City Temporary Traffic Control Manual, to promote, preserve and protect public health, safety and welfare on such City transportation facilities with respect to barricading and temporary traffic control. (5053/Reso. 9892, 5415)

(C) It is unlawful for any person to restrict any portion of a City transportation facility, City right-of-way or easement in a manner that is not in compliance with the City Temporary Traffic Control Manual unless approved by the City Traffic Engineer or designee. (5053/Reso. 9892, 5415)

10-10-2: AUTHORITY TO APPROVE OR DENY RESTRICTIONS AND ISSUE PERMITS

(A) Authority to approve or deny restrictions. The City Traffic Engineer or a designee shall have the authority to approve or deny all partial and full restrictions of City transportation facilities in conjunction with any work, construction, maintenance, or other use of City rights-of-way or easements to promote, preserve or protect public health, safety and welfare by minimizing impact on the traveling public and gaining compliance with temporary traffic control standards with respect to such restrictions. (5053/Reso. 9892)

(B) City Traffic Engineer to establish procedures, rules and issue permits. The City Traffic Engineer shall develop, publish and revise from time to time as needed, procedures and rules, hereinafter referred to as the rules, for applying for permission to restrict any portion of a City transportation facility, City right-of -way, or easement, and is authorized to issue or cause to be issued a Temporary Traffic Control Permit for all such requests that are approved. The rules may include blanket exceptions for certain types of work or specific types of restrictions for which a Temporary Traffic Control Permit is not necessary. Each Temporary Traffic Control Permit shall include general and special conditions as determined necessary by the City Traffic Engineer or designee for the permit holder's temporary use of the right-of-way to promote, preserve or protect public health, safety and welfare by minimizing impact on the traveling public and gaining compliance with temporary traffic control standards with respect to such restrictions. (5053/Reso. 9892)

(C) Permit required. No person shall restrict any portion of any City transportation facility, City right-of-way or easement without first obtaining a valid Temporary Traffic Control Permit from the Transportation Department unless otherwise provided for in the rules. (5053/Reso. 9892)

(D) Temporary Traffic Control Permit Modification, Suspension or Revocation. The City Traffic Engineer or designee may modify any condition of a permit, or suspend or revoke such Temporary Traffic Control Permit at any time when necessary, in his sole discretion, to promote, preserve or protect public health, safety and welfare. Such permit may also be suspended or revoked if the permit holder fails to follow the Temporary Traffic Control Manual, applicable laws, or any general or special conditions of the permit. (5053/Reso. 9892, 5415)

(E) Fees. Temporary traffic control fees must be paid at the time of issuance of a Right-of-Way or non-City Utility Permit, and renewal fees, if any, must be paid in advance according to the Schedule of Fees and Charges and the rules except as provided in Subsection (F) below. (5053/Reso. 9892)

(F) Fees not Required. Temporary traffic control fees are not required for restrictions for neighborhood block parties, for restrictions in connection with activities conducted by City employees in the course of their City duties, or activities being carried out by others under direct contract to the City or under subcontract to another who is under direct contract to the City, or in any instance where the City Manager or his designee determines that it is in the City's best interest to waive temporary traffic control fees. (5053/Reso. 9892)

10-10-3: VIOLATIONS AND ENFORCEMENT

(A) The City Traffic Engineer or designee, is authorized to enforce the provisions of this Chapter as follows:

1. Seeking voluntary compliance through information and education; (5053/Reso. 9892)
2. Issuing corrective action or violation notices and warnings; (5053/Reso. 9892)
3. Other informal means designed to achieve compliance in the most efficient and effective manner; (5053/Reso. 9892)
4. In cooperation with the Engineering Department, issuing stop work notices; (5053/Reso. 9892)
5. Suspending or revoking Temporary Traffic Control Permits; (5053/Reso. 9892)
6. In cooperation with the Development Services Division, placing a hold on issuance of new Right-of-Way and/or Temporary Traffic Control Permits for the same company or individual; (5053/Reso. 9892)
7. Issuing a civil citation for civil sanctions under this Chapter; (5053/Reso. 9892)

(B) Remedies not Exclusive. Violations of this Chapter are in addition to any other violation established by law, and this Section shall not be interpreted as limiting the penalties, actions or abatement procedures which may be taken by the City or other persons under the law, ordinances, or rules. (5053/Reso. 9892)

(C) Responsible Parties:

1. Any person or his agent who causes, permits, facilitates, aids or abets any violation of this Chapter, or who fails to perform any act or duty required pursuant to this Section, is subject to the enforcement provisions of this Chapter. The person and his agent may be found to be individually responsible for the violations, the prescribed civil sanctions, and the abatement of the violations. (5053/Reso. 9892)
2. Any person, firm, or agency conducting work in the public right-of-way or easement is responsible for assuring that all related activities comply with the provisions of this Chapter. Contracting with another person, firm or agency (subcontractor) for temporary traffic control services does not relieve the person, firm or agency conducting the work of the obligation to comply with the provisions of this Chapter. (5053/Reso. 9892)

(D) Civil violations and procedure:

1. Violation of any portion of this Chapter shall be a civil offense and shall be commenced and adjudicated pursuant to the Arizona Rules of Procedure in civil traffic and civil boating violation cases. Violations will be filed with the Mesa Municipal Court. (5053/Reso. 9892, 5068)

2. Complaints for violations of this Chapter may be issued by Transportation Department employees working under the authority of the City Traffic Engineer or designee, and shall be in a form substantially similar to the Arizona Traffic Ticket and Complaint as approved by the City Traffic Engineer or designee. (5053/Reso. 9892, 5068)

(E) Penalties. Upon a finding or admission of responsibility, a violator is subject to the following sanctions: (5068)

1. Any act, error, or omission within the right-of-way that creates an imminent risk of death or injury; Civil Sanction: $1,500.00 (5068)

2. Restricting the right-of-way or easement without a required Temporary Traffic Control Permit; Civil Sanction: $1,000.00 (5068)

3. Restricting traffic during peak traffic hours as described in the Temporary Traffic Control Manual without authorization; Civil Sanction: $1,000.00 (5068, 5415)

4. Failing to correct or cure a violation of the Temporary Traffic Control Manual within the time period stated on the Notice of Violation; Civil Sanction: $1,000.00 (5068, 5415)

5. Restricting the right-of-way at an intersection with traffic signals without any work being conducted for which the restriction is necessary for a period of one continuous hour unless otherwise approved; Civil Sanction: $1,000.00 (5068)

6. Improperly closing a sidewalk or closing a sidewalk without first obtaining a required Traffic Control Permit; Civil Sanction: $500.00 (5068)

7. Failing to comply with the conditions, restrictions, limits, times, or location of a Temporary Traffic Control Permit; Civil Sanction: $500.00 (5068)

8. Failing to install advance warning signs or failing to install advance warning signs that comply with the Temporary Traffic Control Manual; Civil Sanction: $500.00 (5068, 5415)

9. Failing to install traffic barricades or channelizing devices or failing to install traffic barricades or channelizing devices that comply with the Temporary Traffic Control Manual; Civil Sanction: $500.00 (5068, 5415)

10. Failing to remove an advance warning sign leaving the sign facing traffic after the traffic restriction has been removed; Civil Sanction: $250.00 (5068)

11. Failing to remove traffic control devices from the right-of-way within twenty-four hours after expiration of the Temporary Traffic Control Permit; Civil Sanction: $250.00 (5068)

12. Failing to install and maintain traffic control devices that meet the quality requirements described in the Temporary Traffic Control Manual; Civil Sanction: $250.00 (5068, 5415)

13. Rendering a bus stop inaccessible without relocating it or making other approved accommodations; Civil Sanction: $250.00 (5068)

14. Failure to comply with any other provision of the Temporary Traffic Control Manual or this Chapter whether or not a Temporary Traffic Control Permit is required; Civil Sanction: $250.00 (5068, 5415)

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***Editor's note**—Previously, Title 11 derived from Ord. No. 5051, 7-7-11; Ord. No. 5099, 6-14-12; Ord. No. 5201, 2-10-14; Ord. No. 5206, 3-3-14.

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ARTICLE 1
INTRODUCTORY PROVISIONS

CHAPTER 1 INTRODUCTORY PROVISIONS*

11-1-1: TITLE AND AUTHORITY

Title 11 of the City Code shall be known and cited as the "City of Mesa Zoning Ordinance," "Zoning Ordinance of the City of Mesa," "Zoning Ordinance", or "this Ordinance". Whenever reference is made to any portion of the ordinance set out in this Title 11, or of any other law or ordinance, the reference applies to all amendments and additions to this Title made hereafter.
(Ord. No. 3746, 2-22-00)

11-1-2: PURPOSE

The purpose of this Ordinance is to implement the City's General Plan and to protect and promote the public health, safety, peace, comfort, convenience, prosperity and general welfare. More specifically, this Ordinance is intended to:

A. Provide a guide for the physical development of the City in a manner that progressively achieves the arrangement of land uses depicted in the General Plan, consistent with the goals and policies of the General Plan.

B. Promote combinations and mixtures of harmonious land uses, limit the effects of incompatible land uses, and do so in a manner that reduces transportation requirements, promotes livability, and raises the quality of life for residents, guests, students, workers, business owners, tourists and other visitors.

C. Foster a harmonious, convenient and workable relationship among land uses and ensure compatible infill development, consistent with the General Plan.

D. Support economic development and job creation.

E. Provide for the diverse housing needs of all economic segments of the community.

F. Promote high quality architecture and design.

G. Promote the stability of existing land uses that conform to the General Plan, protecting them from inharmonious influences and harmful intrusions.

H. Promote a safe and efficient traffic circulation system; foster the provision of adequate off-street parking and off-street loading facilities, bicycle facilities and pedestrian amenities, and support a multi-modal transportation system. Encourage improved connectivity between residential, commercial, educational, employment and recreational uses.

I. Facilitate the appropriate location of community facilities, institutions and parks and recreational areas.

J. Protect and enhance real property values.

***Editor's note—**Previously, Chapter 1 derived from Ord. No. 4842, 5-19-08; Ord. No. 4843, 5-19-08; Ord. No. 4913, 2-17-09; Ord. No. 5025, 2-7-11.

K. Promote environmental quality and encourage development patterns that meet the following sustainability goals: improve air quality; improve energy conservation and renewable energy production; integrate land use and mobility; allow housing diversity; improve community health and safety; increase water conservation; and mitigate stormwater pollution.

L. Provide diverse settings, with a wide-range of employment, housing and commercial options and a variety of intensities of land uses.

M. Provide development options that are designed in an aesthetically pleasing manner, incorporate public spaces in manners that are integral to projects, and provide effective transitions between abutting parcels appropriate to the context of the circumstance.

N. Safeguard and enhance the appearance of the City.

O. Define duties and powers of administrative bodies and officers responsible for implementation of this Ordinance.

11-1-3: STRUCTURE OF ZONING REGULATIONS

A. **Organization of Regulations.** This Ordinance consists of eight articles:

Article 1: Introductory Provisions

Article 2: Base Zones

Article 3: Overlay Zones

Article 4: Development Regulations

Article 5: Sign Regulations

Article 6: Form-Based Development Regulations

Article 7: Administration and Permits

Article 8: General Terms

B. **Types of Regulations.** Four types of zoning regulations control the use and development of property in the City:

1. ***Land Use Regulations.*** These regulations specify land uses permitted, conditionally permitted or specifically prohibited in each zone, and include special requirements, if any, applicable to specific uses. Land use regulations for base zones are in Article 2 of this Ordinance and in Article 3 for overlay zone regulations. Certain regulations, applicable in some or all of the districts, and performance standards that govern special uses, are in Article 4. When used in conjunction with an adopted regulating plan, use standards related to specific building forms located within specified transects are found in Article 6.

2. ***Development Regulations.*** These regulations control the height, bulk, density, intensity, location and appearance of structures on development sites. Development regulations for base zones are in Article 2 of this Ordinance. The regulations for overlay zones are in Article 3. Certain development regulations, applicable to some or all zones are in Article 4. These include regulations for specific uses, development and site regulations, performance standards, parking, sign, antennas and

wireless telecommunications and nonconforming uses. Sign regulations are found in Article 5. Certain other development regulations principally oriented on building form and building placement (also known as Form-Based Code) are found in Article 6.

3. ***Administrative Regulations.*** These regulations contain detailed procedures for the administration of this Ordinance, and include responsibilities of the planning agency, common procedures, processes and standards for discretionary entitlement applications and other permits. Administrative regulations are found in Article 7.

4. ***General Terms and Use Classifications.*** Article 8 provides a list of use classifications and a list of terms and definitions used in this Ordinance.

(Ord. No. 4006, 8-5-02)

11-1-4: GENERAL RULES FOR APPLICABILITY OF ZONING REGULATIONS

A. **Applicability to Property.** This Ordinance shall apply, to the extent permitted by law, to all property within the City of Mesa, including all uses, structures and land owned by any private person, firm, corporation or organization, or local, state or federal agencies. Any governmental agency shall be exempt from the provisions of this Ordinance only to the extent that such property may not be lawfully regulated by the City of Mesa.

B. **Compliance with Regulations.** No land shall be used, and no structure shall be constructed, occupied, enlarged, altered, demolished or moved in any zoning district, except in accordance with the provisions of this Ordinance.

C. **Provisions Interpreted as Minimum Requirements.** In interpreting and applying the provisions of Title 11, the applicant shall meet or exceed the minimum requirements for the promotion of the public health, safety, comfort, convenience and general welfare.

D. **Relation to Other Regulations.** The regulations of this Ordinance and requirements or conditions imposed pursuant to this Ordinance shall not supersede any other regulations or requirements adopted or imposed by the State of Arizona, or any federal agency that has jurisdiction by law over uses and development authorized by this Ordinance. All uses and development authorized by this Ordinance shall comply with all other such regulations and requirements. Where conflict occurs between the provisions of the Ordinance and any other City Ordinance, chapter, resolution, guideline or regulation, the more restrictive provisions shall control, unless otherwise specified.

E. **Relation to Private Agreements.** The provisions of this Ordinance shall apply regardless of any private agreements in the event that the provisions of this Ordinance are more restrictive. Otherwise, this Ordinance shall not interfere with, affect or annul any recorded easement, covenant, or other private agreement now in effect, unless a Development Agreement has been authorized by the City Council and executed by recording the Development Agreement with the County Recorder's Office, pursuant to ARS 9-500.05.

11-1-5: CONSISTENCY WITH THE GENERAL PLAN

Each application for a Special Use Permit, Council Use Permit, Development Plan, Development Plan Modification or request to modify the zoning classification of a parcel of land shall be reviewed and evaluated for

consistency with the City of Mesa General Plan. With regard to requests to modify the zoning classification of specific parcels of land, where there is a conflict between this Ordinance and the General Plan, the General Plan shall prevail.
(Ord. No. 3943, 11-5-01; Ord. No. 5996, § 4, 3-9-26)

11-1-6: EFFECT ON PREVIOUSLY APPROVED PROJECTS AND PROJECTS IN PROGRESS

Upon the effective date of this Ordinance, the following requirements shall apply to all properties:

A. **Violations Continue.** Any violation of the Zoning Ordinance previously in effect will continue to be a violation under this Ordinance and shall be subject to penalties and enforcement under Title 11, Chapter 79 unless the use, development, construction or other activity complies with the provisions of this Ordinance.

B. **Projects with Land Use Approvals or Building Permits.**

1. ***Development Plans, Site Plans or Design Review Approved Prior to Effective Date of This Ordinance.***

a. A project which has received Development Plan, Site Plan, or Design Review approval prior to the effective date of this Ordinance may file an application for a building permit in compliance with the approved Development Plan, Site Plan, or Design Review Plans and conditions of approval, even if the project does not comply with the provisions of the Zoning Ordinance.

b. Development Plans, Site Plans, and Design Reviews approved prior to the effective date of this Ordinance are subject to the expiration and extension provisions of Section 11-67-9 of the Zoning Ordinance.

c. Requests to modify Development Plans, Site Plans, or Design Review Plans approved prior to the effective date of this Ordinance shall comply with the current Zoning Ordinance in effect.

2. ***Preliminary Plat Approved Prior to Effective Date of This Ordinance.***

a. Preliminary plat approved prior to the effective date of this Ordinance constitutes authorization for the applicant to proceed with preparation of the final plat, engineering plans, and specifications for public improvements even if the subdivision does not fully comply with the provisions of the Zoning Ordinance.

b. Preliminary plat approved prior to the effective date of this Ordinance is subject to the expiration and extension provisions of Section 9-6-2(B)(5) of Title 9 of the City Code.

3. ***Conditional Use Permit Approved Prior to Effective Date of This Ordinance, No Development Plan Review.***

a. A project which has received a Conditional Use Permit (including Special Use Permits or Council Use Permits) prior to the effective date of this Ordinance may file an application for a building permit, even if the project does not fully comply with the provisions of the Zoning Ordinance.

b. A Conditional Use Permit approved prior to the effective date of this Ordinance is subject to the expiration and extension provisions of Section 11-67-9 of the Zoning Ordinance.

4. ***Conditional Use Permit Approved Prior to Effective Date of This Ordinance, Development Plan Review, Site Plan Review, or Design Review Required.***

   a. A project which has an approved Conditional Use Permit (including Special Use Permits or Council Use Permits) may file an application for Development Plan Review even if the use does not fully comply with the land use regulations of the Zoning Ordinance. However, the Development Plan Review Application must comply with all other provisions of the Zoning Ordinance.

   b. A Conditional Use Permit approved prior to the effective date of this Ordinance is subject to the expiration and extension provisions of Section 11-67-9 of the Zoning Ordinance except as provided in Subsection 11-1-6(C) below.

   c. If an associated Development Plan is approved before the expiration of the Conditional Use Permit, the Conditional Use Permit shall remain valid for the duration of the effective period of the Associated Development Plan, Site Plan, or Design Review.

5. ***Building Permit Application Filed Prior to Effective Date of This Ordinance.***

   a. Any building, structure, or sign for which a completed building permit application is filed prior to the effective date of this Ordinance may be issued a building permit and may be constructed in compliance with the building permit and other applicable approvals, permits and conditions, even if such building, structure or sign does not fully comply with the Zoning Ordinance.

   b. If construction has not commenced in compliance with the applicable permit terms, the Building Official may grant an extension pursuant to the provisions of the Building Code.

   c. If the building, structure, or sign has not been completed before the building permit or any extension of the permit expires, then the building, structure, or sign shall be constructed, completed or occupied only in compliance with the Zoning Ordinance.

6. ***Building Permit Issued Prior to Effective Date of This Ordinance.***

   a. Any building, structure, or sign for which a lawful building permit is issued prior to the effective date of this Ordinance may be completed in conformance with the permit and other applicable permits and conditions, even if such building, structure or sign does not fully comply with the Zoning Ordinance.

   b. If construction has not commenced in compliance with the applicable permit terms, the Building Official may grant an extension pursuant to the provisions of the Building Code.

   c. If the building, structure, or sign has not been completed in conformance with the building permit and any extension thereof, then the building, structure, or sign shall be constructed, completed or occupied only in compliance with the Zoning Ordinance.

C. **Land Use Applications Filed Prior to the Effective Date of This Ordinance.**

1. Land use applications, including modifications to previously approved applications, filed prior to the effective date of this Ordinance may be approved under the provisions of the Zoning Ordinance in place prior to the effective date of this Ordinance, if deemed complete, meaning that:

   a. A pre-submittal conference was held, if required;

b. All required application materials were submitted; and

c. All required fees were paid.

2. Applicants may elect to develop under the provisions of this Ordinance, but in that case shall comply with all provisions of this Ordinance.

D. **Partially Constructed Project.**

1. If a project has a valid building permit and construction has started but halted prior to completion, and a Certificate of Occupancy has not been issued, the project shall, within three (3) years from the effective date of this Ordinance, resume work and complete all remaining elements in accordance with the approved plan and building permit(s).

2. In the event the project is not restarted, or actively under construction before the three-year period specified lapses, the project shall have the option to be brought entirely into compliance with requirements of this Ordinance, or to apply for and be subject to all conditions and requirements of an approved Substantial Compliance Improvement Permit (SCIP), as specified in Chapter 73 of this Ordinance.

E. **Development of Projects Located within an Existing PC District, or within a PAD, DMP or BIZ Overlay Zoning Districts.** A lot or parcel located within the Planned Community (PC) District, or within overlay districts such as Planned Area Development (PAD), Development Master Plan (DMP), under the zoning ordinance in effect prior to September 3, 2011, or Bonus Intensity Zone (BIZ), subject to a preliminary development plan, standards and/or with conditions of approval, and adopted prior to the effective date of the Zoning Code, shall be developed in accordance with the approved preliminary development plan, standards, and/or conditions of approval. The development standards and requirements of this Ordinance shall apply if not specifically modified by the adopted plan submitted, associated or conditioned with the ordinance adopting the PAD/BIZ/DMP overlay zoning district or the PC District. This provision is not intended to limit minor modifications to approved plans approved by the Planning Director.

F. **Planning Applications Filed After the Effective Date of This Ordinance.** All applications for rezoning, design review, use permits, and preliminary subdivision plats filed after the effective date of this Ordinance, including modifications and amendments, shall conform to the provisions of this Ordinance.

(Ord. No. 3430, 1-20-98; Ord. No. 3817, 2-22-00; Ord. No. 3943, 11-5-01; Ord. No. 4005, 8-5-02; Ord. No. 4006, 8-5-02; Ord. No. 4084, 6-30-03; Ord. No. 4101, 9-22-03; Ord. No. 4262, 8-16-04; Ord. No. 4467, 10-24-05; Ord. No. 4681, 4-2-07; Ord. No. 4770, 10-15-07; Ord. No. 5996, § 3, 3-9-26)

11-1-7: SEVERABILITY

If any section, subsection, paragraph, sentence, clause or phrase of this Ordinance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The City of Mesa hereby declares that it would have passed this Ordinance, and each section, subsection, sentence, clause and phrase thereof, regardless of the fact that any or one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.

CHAPTER 2 RULES FOR THE CONSTRUCTION OF LANGUAGE AND INTERPRETATION*

11-2-1: PURPOSE

The purpose of this Chapter is to provide precision in the interpretation of the planning and zoning regulations. The meaning and construction of words and phrases defined in this Chapter apply throughout the Ordinance, except where the context indicates a different meaning. Rules for measurement of height, floor area, sign area, setbacks and other development standards also are established. Finally, this Chapter prescribes rules and procedures for interpretation of regulations, where there may be uncertainty in deciding on a particular application of a provision of the Ordinance.
(Ord. No. 4770, 10-15-07)

11-2-2: RULES FOR CONSTRUCTION OF LANGUAGE

In interpreting the various provisions of the Ordinance, the following rules of construction shall apply:

A. The particular controls the general.

B. Unless the context clearly indicates the contrary, the following conjunctions shall be interpreted as follows:

1. "And" indicates that all connected words or provisions shall apply.
2. "And/or" indicates that the connected words or provisions may apply singly or in any combination.
3. "Or" indicates that the connected words or provisions may apply singly or in any combination.
4. "Either . . . or" indicates that the connected words or provisions shall apply singly but not in combination.

C. In case of conflict between the text and a diagram or graphic, the text controls.

D. All references to departments, committees, commissions, boards, or other public agencies are to those of the City of Mesa, unless otherwise indicated.

E. All references to public officials are to those of the City of Mesa, and include designated deputies of such officials, unless otherwise indicated.

F. All references to days are to calendar days, unless otherwise indicated. If a deadline falls on a weekend or holiday, or a day when the city offices are closed, it shall be extended to the next working day. The end of a time period shall be the close of business on the last day of the period.

G. All references to "section," "chapter," or "article" shall refer to this zoning ordinance unless another meaning is clear from the context of the reference.

H. The words "shall," "will," "must," and "is to" are always mandatory and not discretionary. The words "should" and "may" are permissive.

I. The present tense includes the past and future tenses, and the future tense includes the past.

J. The singular number includes the plural, and the plural, the singular.

***Editor's note—**Previously, Chapter 2 derived from Ord. No. 5032, 3-21-11; Ord. No. 5123, 9-24-12; Ord. No. 5447, 7-9-18.

K. Sections and section headings contained herein shall not be deemed to govern, limit, modify, or in any manner affect the scope, meaning, or intent of any section.

11-2-3: RULES FOR MEASUREMENT

The purpose of this Section is to explain how various measurements referred to in this Ordinance are to be calculated.

A. **Applicant's Responsibility.** For all calculations, the applicant shall be responsible for supplying drawings illustrating the measurements that apply to a project. These drawings shall be drawn to scale and of sufficient detail to allow easy verification upon inspection by the Planning Director or designee.

B. **Fractions.** Whenever the result of a required arithmetical calculation, using a stated mathematical formula or ratio, contains a fraction of a whole number, fractions of ½ or greater shall be rounded up to the nearest whole number and fractions of less than ½ shall be rounded down to the nearest whole number. This rule shall be superseded when an alternate rule for rounding is specified by the same chapter of this Ordinance that describes the requirement.

C. **Measuring Distances.**

1. ***Measurements are Shortest Distance.*** When measuring a required distance, such as the minimum distance between a structure and a lot line, the measurement is made at the closest or shortest distance between the two objects.

2. ***Distances are Measured Horizontally.*** When determining distances for setbacks and structure dimensions, all distances are measured along a horizontal plane from the appropriate line, edge of building, structure, storage area, parking area, or other object. These distances are not measured by following the topography or slope of the land.

3. ***Measurements Involving a Structure.*** Measurements involving a structure, such as required yards, separations between buildings, or distances between structures, are made to the closest support wall, post or column of the structure. Structures or portions of structures that are entirely underground are not included in measuring required distances.

4. ***Measurement of Vehicle Stacking or Travel Areas.*** Measurement of a minimum travel distance for vehicles, such as garage entrance setbacks and stacking lane distances, are measured down the center of the vehicle travel area. For example, curving driveways and travel lanes are measured along the center arc of the driveway or traffic lane.

5. ***Measurement From an Intersection.*** Measurements involving a distance from an intersection are measured in a straight line from all points along the lot line of the subject property to the nearest edge of right-of-way.

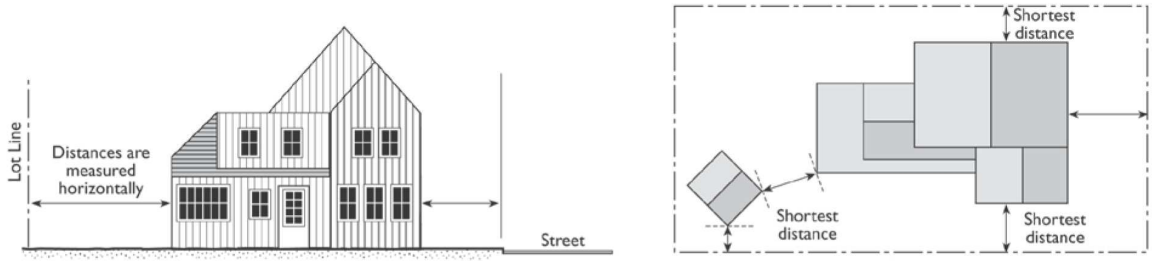


FIGURE 11-2-3.C: MEASURING DISTANCES

D. **Measuring Radius.** When a specified land use is required to be located a minimum distance from another land use, the minimum distance is measured in a straight line from all points along the lot line of the subject project. In the event the lot line is curved, the separation radius shall also curve in a similar manner to maintain the specified minimum radius distance. The starting point for the measurement shall be the closest point on the outermost property line for the lot or development site of the protected use, including multiple parcel development sites acting as a campus, or sharing parking, access aisles and other appurtenant shared facilities, such as group development sites. The distance shall be measured to the outside nearest wall of the building intended to house the proposed use.

E. **Measuring Height.**

1. ***Measuring Building Height.*** Building height is measured from the average level of the highest and lowest point of that portion of the lot covered by the building to the mean point between the plate line (where the vertical wall attaches to the roof) and the highest point of the roof ridge, or to the top of a parapet wall or flat roof.

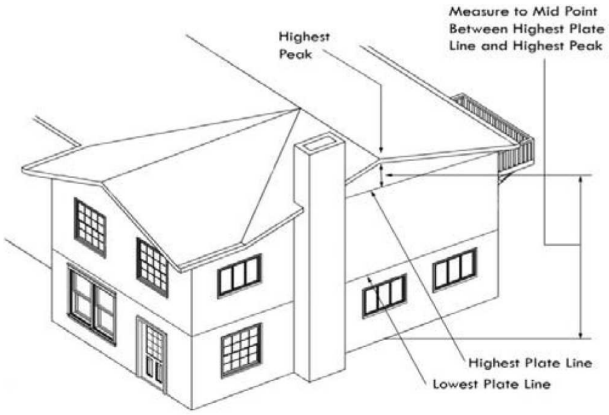


FIGURE 11-2-3.E.1: MEASURING HEIGHT GABLE OR HIP ROOF

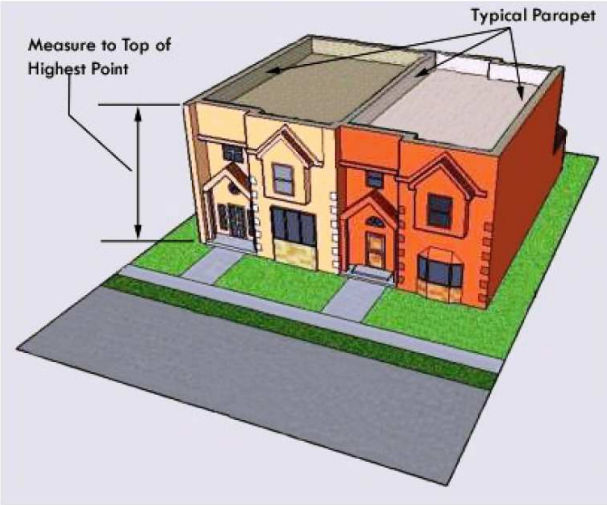


FIGURE 11-2-3.E.2: MEASURING HEIGHT FLAT ROOF WITH PARAPET

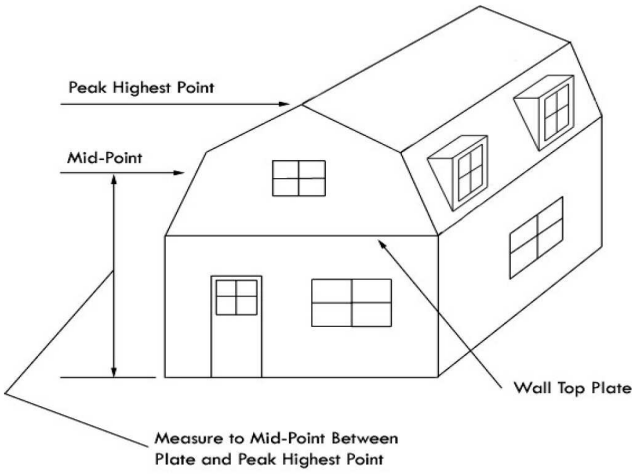


FIGURE 11-2-3.E.3: MEASURING HEIGHT MANSARD or GAMBREL ROOF

2. ***Measuring Height of Other Structures.*** The height of other structures such as fences is the vertical distance from the ground level immediately under the structure to the top of the structure. Special measurement provisions are also provided below:

   a. *Measuring the Height of Fences on Retaining Walls.* The height of a fence that is on top of a retaining wall is measured from the ground level on the highest side of the fence and wall.

   b. *Measuring the Height of Decks.* Deck height is determined by measuring from the ground to the top of the floor of the deck.

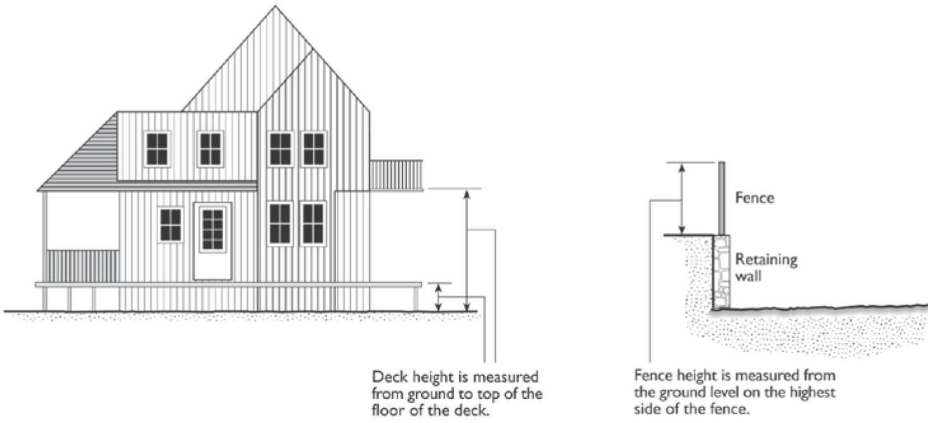


FIGURE 11-2-3.E.4: MEASURING HEIGHT DECKS AND FENCES ON RETAINING WALLS

F. **Measuring Lot Width and Depth.**

1. ***Lot Width.*** The horizontal distance between the side property lines of a lot, measured along the required front setback.

2. ***Lot Depth.*** The distance measured from the midpoint of the front property line to the midpoint of the rear property line, or to the rear most point of the lot where there is no rear lot line.

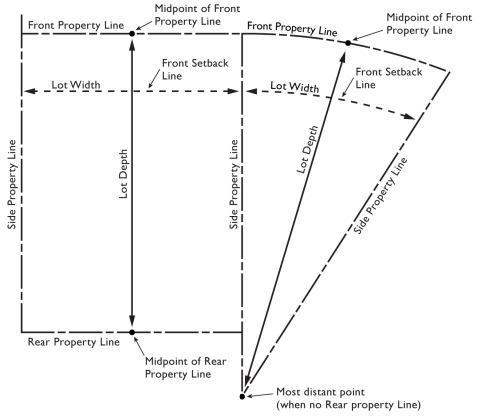


FIGURE 11-2-3.F: MEASURING LOT WIDTH AND DEPTH

G. **Determining Average Slope.** The average slope of a parcel is calculated using the following formula: S = 100(I) (L)/A, where:

1. S = Average slope (in percent).

2. I = Contour interval (in feet).

3. L = Total length of all contour lines on the parcel (in feet).

4. A = Area of subject parcel (in square feet).

H. **Determining Floor Area.**

1. ***Gross Floor Area.*** As defined in Chapter 87, includes the floor area of garages, carports, basements, mezzanines, interior balconies, and all upper stories or levels.

2. ***Floor Area (Habitable Floor Area, Net Floor Area).*** As defined in Chapter 87, includes space in a building for purposes including living, working, sleeping, sanitation, eating, cooking, conditioned storage, recreation, or any combination of the above. Space used only for unconditioned storage or parking is not habitable space.

I. **Determining Floor Area Ratio.** The Floor Area Ratio (FAR) is the ratio of the floor area of all principal and accessory buildings on a lot to the lot area. To calculate FAR, floor area is divided by lot area, and typically expressed as a decimal. For example, if the floor area of all buildings on a lot totals 20,000 square feet, and the lot area is 10,000 square feet, the FAR is expressed as 2.0.

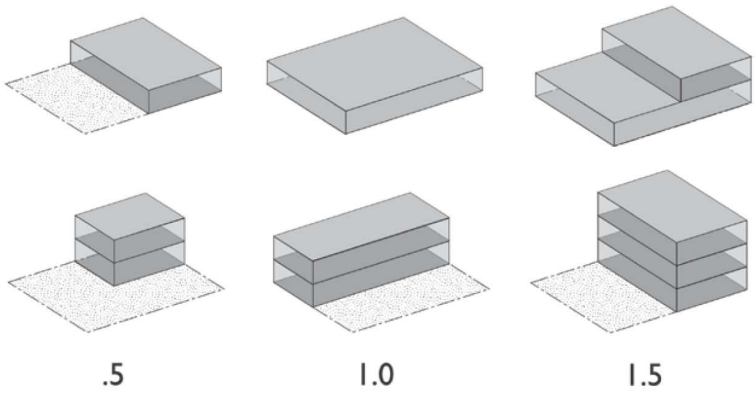


Figure 11-2-3.1: Determining Floor Area Ratio

J. **Determining Building Coverage.** Building coverage is the ratio of the total footprint area of all structures on a lot to the net lot area, typically expressed as a percentage. The total footprint of all principal and accessory structures, including garages, carports, covered patios, and roofed porches, is used to calculate building coverage; except the calculation excludes the following areas:

1. Decks, patio slabs, landings, balconies and stairways (less than 6-feet in height), when unenclosed, unroofed, and/or uncovered;

2. Eaves and roof overhangs projecting up to two-and-a-half feet from a building wall;

3. Trellises and similar structures that do not have solid roofs;

4. Swimming pools and hot tubs that are not enclosed in roofed structures or decks; and

5. One small, non-habitable accessory structure under 120 square feet and under seven feet high. All other accessory structures are included in building coverage.

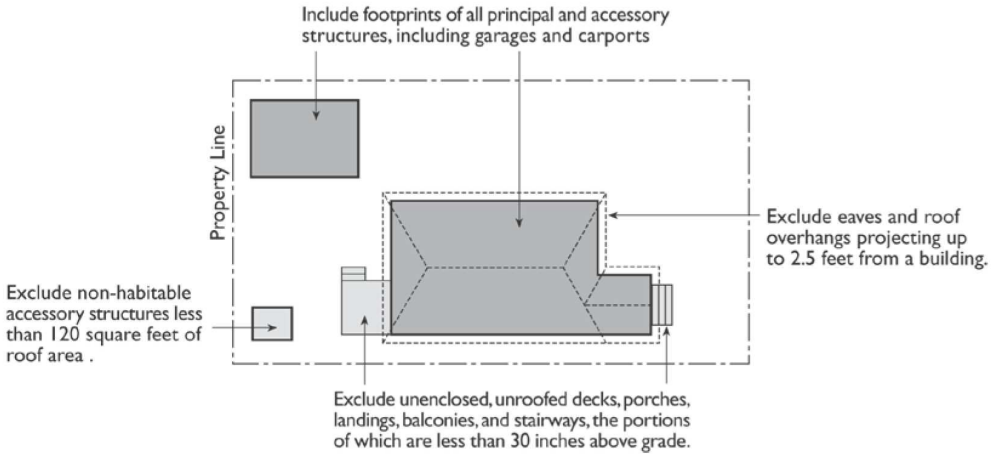


FIGURE 11-2-3.J: DETERMINING BUILDING COVERAGE

K. **Determining Lot Frontage.**

1. ***Corner Lot.*** The front of a lot is the narrowest dimension of the lot with street frontage.

2. ***Through Lot (Double Frontage Lot).*** The front yard borders the street primarily used as frontage by neighboring lots. If both street fronts of the through lot are adjacent to lots that also front onto the same street, both street fronts of the though lot shall be considered as required front yards for the purpose of determining building setbacks and fence height requirements.

L. **Determining Setbacks.** A setback shall be measured perpendicular to a property line except as follows:

1. ***Lots or Parcels Abutting Planned Street Expansions.*** If a lot or parcel abuts an existing or proposed street for which the existing right-of-way is narrower than the right-of-way ultimately required for the street as determined by the City Council through the latest adopted transportation and/or street plan, the required setback shall be established from the future right-of-way rather than the property line.

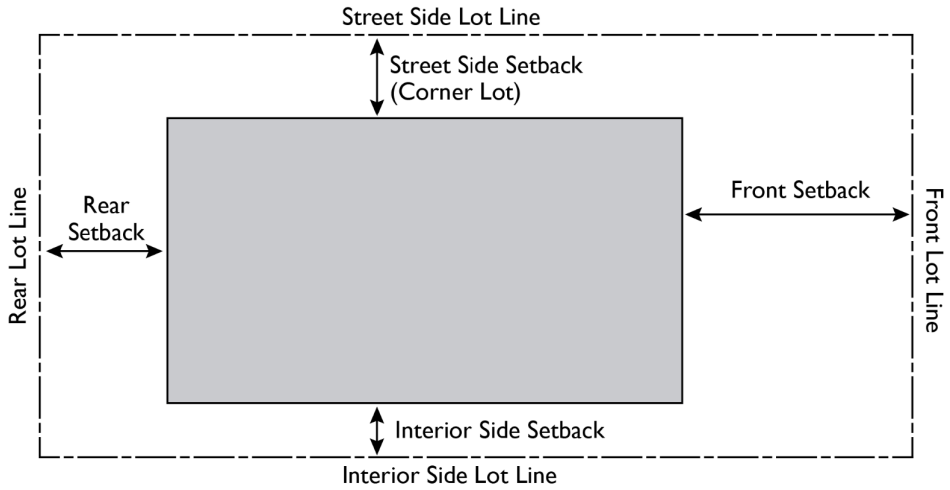


FIGURE 11-2-3.L: DETERMINING SETBACKS

2. ***Lots or Parcels Abutting an Alley.***

   a. If a side property line abuts an alley, the setback shall be considered an interior side setback.

   b. No part of an alley right-of-way may be considered a part of the required setback when a lot or parcel abuts an alley, except for rear setback in RS Districts as specified in Chapter 5 of the Zoning Ordinance.

M. **Measuring Signs.** The height of signs is measured in the same method as the height of other structures. Calculation of sign area is described in Article 5, Signs.

(Ord. No. 5592, § 1, 12-1-20; Ord. No. 5593, § 1, 12-1-20; Res. No. 12269, § 1, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5996, § 4, 3-9-26)

11-2-4: RULES OF INTERPRETATION

The Zoning Administrator shall interpret any provision or any method of measurement not expressly identified in this Chapter, and provide clarification and determination of these rules and their application to a specific site. The Zoning Administrator shall maintain a record of these interpretations.

The Particular Controls the General

Whenever a general provision in a rule shall be in conflict with a particular provision in the same or another rule, the two shall be construed, if possible, so that effect may be given to both. If the conflict between the two provisions is irreconcilable, the particular provisions shall prevail and shall be construed as an exception to the general provision, unless the general provision shall be promulgated later and it shall be the manifest intention of the Supreme Court that such general provision shall prevail.

(Ord. No. 5447, 6-4-18)

CHAPTER 3 DESIGNATION OF ZONING DISTRICTS, ZONING MAP, AND BOUNDARIES*

11-3-1: DISTRICTS ESTABLISHED

The City shall be classified into districts or zones. The designation and regulation of which are set forth in this Ordinance.

A. **Base Zones.** Base zones into which the City is divided are established as follows:

Short Name/ Map Symbol	Full Name
AG	Agricultural
RS-6, 7, 9, 15, 35, 43, and 90	Residential Single Dwelling Districts 6, 7, 9, 15, 35, 43, and 90
RSL-2.5, 3, and 4	Residential Small Lot Single Dwelling Districts 2.5, 3, and 4
RM-2, 3, 4, and 5	Residential Multiple Dwelling Districts 2, 3, 4, and 5
NC	Neighborhood Commercial
LC	Limited Commercial
GC	General Commercial
OC	Office Commercial
MX	Mixed Use
LI	Light Industrial
GI	General Industrial
HI	Heavy Industrial
PEP	Planned Employment Park
DR 1, 2, and 3	Downtown Residence Districts 1, 2, and 3
DB 1 and 2	Downtown Business Districts 1 and 2
DC	Downtown Core
LR	Leisure and Recreation
PS	Public and Semi-Public
PC	Planned Community
ID 1 and 2	Infill Development Districts 1 and 2
T3N	Transect 3: Neighborhood
T4N, T4NF, T4MS	Transect 4: Neighborhood, Neighborhood Flex, and Main Street
T5N, T5MSF, T5MS	Transect 5: Neighborhood, Main Street Flex and Main Street
T6MS	Transect 6: Main Street

B. **Overlay Zones.** Overlay zones, one (1) or more of which may be combined with one (1) or more base districts, are established as follows:

Short Name/ Map Symbol	Full Name
AF	Airfield

***Editor's note—**Previously, Chapter 3 derived from Ord. No. 3746, 2-22-00; Ord. No. 4262, 8-16-04.

Short Name/ Map Symbol	Full Name
AS	Age-Specific
BIZ	Bonus Intensity Zone
PAD	Planned Area Development
HD	Historic District
HL	Historic Landmark
DE	Downtown Event
BO	Billboard Overlay District

C. **References to Classes of Base Districts.** Throughout the Ordinance, base zoning districts may be referred to as a group or in a singular manner through the use of the associated words listed as "Synonymous Terms" in the table below, based on the context of how the phrase is used.

Base Zoning District Groups	Associated Synonymous Terms
Residential Groups	
RS, Residential Single-Dwelling; RM, Residential Multiple-Dwelling; RSL, Residential Small Lot Single-Dwelling; DR, Downtown Residential	R-Zone; R-District; Residential Zone; or Residential District
Commercial Groups	
NC, Neighborhood Commercial; LC, Limited Commercial; GC, General Commercial; OC, Office Commercial	C-Zone; C-District; Commercial Zone; or Commercial District
Mixed Use Groups	
MX, Mixed Use; DB, Downtown Business; DC, Downtown Core PC, Planned Community	Mixed-District; Mixed-Zone
Industrial or Employment Groups	
LI, Light Industrial; GI, General Industrial; HI, Heavy Industrial; and PEP, Planned Employment Park; EO, Employment Opportunity	I-Zone; I-District; Industrial Zone; Industrial District; Employment District; or Employment Zone
Downtown Groups	
DR, Downtown Residential; DB, Downtown Business; DC, Downtown Core	Downtown District; Downtown Zone
Form-Based Code or Transect Groups	
T3N, T4N, T4NF, T4MS, T5N, T5MSF, T5MS, T6MS	Transects
Infill District Groups	

Base Zoning District Groups	Associated Synonymous Terms
ID, Infill Development	ID-Zone; ID District
Public and Semi-Public Groups	
PS, Public and Semi-Public, LR, Leisure and Recreation	PS District; LR District

(Ord. No. 5544, § 1, 12-9-19; Ord. No. 5554, § 2, 2-10-20; Ord. No. 5996, § 4, 3-9-26)

11-3-2: OFFICIAL ZONING MAP AND DISTRICT BOUNDARIES

The boundaries of the zones established by this Ordinance are not included in this Ordinance but are shown on the Official Zoning Map maintained by the City. The Official Zoning Map, together with all legends, symbols, notations, references, zoning district boundaries, map symbols, and other information on the maps, has been adopted by the City Council and are hereby incorporated into this Ordinance by reference, together with any amendments previously or hereafter adopted, as though they were fully included here.

A. **Uncertainty of Boundaries.** Where uncertainty exists as to the boundaries of any district shown on the Official Zoning Map, the following rules shall apply:

1. Boundaries indicated as approximately following property or land parcel lines, street or alley rights-of-way, city limits, or extraterritorial boundary lines shall be construed as following such lines, limits or boundaries.

2. In the case of un-subdivided property or where a district boundary divides a lot and no dimensions are indicated, the following shall apply:

   a. *Lots Greater than One Acre.* The location of such boundary shall be determined by the use of the scale appearing on the Official Zoning Map.

   b. *Lots Less than One Acre.* The lot shall be deemed to be included within the zone which is the more restrictive.

3. In the case of any remaining uncertainty, the Zoning Administrator shall determine the location of boundaries.

4. Where any public street or alley is officially vacated or abandoned, the land underlying the street or alley will be added to abutting lots as required by state law. The regulations that applied to the abutting parcel or parcels before the vacation or abandonment shall apply to the entire new larger parcel or parcels that result from such vacation or abandonment.

5. Where any private right-of-way or easement of any railroad, railway, transportation or public utility company is vacated or abandoned the land underlying the right-of-way or easement shall be added to abutting lots as required by state law. If the abandoned or vacated property is unclassified, the property shall be automatically classified as being in the same zone of the abutting land to which it is added.

B. **Conditions.** Conditions imposed by special ordinance in conjunction with amendments to the Zoning Map are referenced by separate files maintained in the Planning Division and are made a part of the Zoning Map.

(Ord. No. 4467, 10-24-05)

[The next page is T11:61]

ARTICLE 2
BASE ZONES

CHAPTER 4 AGRICULTURAL DISTRICT*

11-4-1: PURPOSE

The purpose of the Agricultural (AG) District is to protect and preserve agricultural lands and related activities in their present character. The intent of this district is to protect agricultural lands from incompatible land uses and urban encroachment. This district encourages the use of land for local food production. This district may also be used as a means to limit premature development, or to assure development of property takes place when suitable infrastructure and adopted plans are in place to support development of the area in a manner consistent with the applicable General Plan designation.

11-4-2: LAND USE REGULATIONS

In Table 11-4-2, the land use regulations for each Agricultural zoning district are established by letter designations as follows:

- "P" designates use classifications permitted in the Agriculture District.
- "SUP" designates use classifications permitted on approval of a Special Use Permits.
- "CUP" designates use classifications permitted on approval of a Council Use Permits.
- "(x)" a number in parentheses refers to a limitation following the table.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit.

Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-4-2: Agricultural District		
Proposed Use	**AG**	**Additional Use Regulations**
Residential Use Classifications		
Single Residence	P (2, 3)	
Day Care Group Home		
Small Day Care Group Home (up to 4)	P (2, 3)	
Large Day Care Group Home (5—10)	P (2, 3)	Section 11-31-13, Large Day Care Group Homes
Community Residence		
Family Community Residence	P (2, 3)	Section 11-31-14, Community Residences
Transitional Community Residence	SUP (2, 3)	
Public and Semi-Public Use Classifications		
Cemeteries	SUP	
Community Gardens	P	Section 11-31-10, Community Gardens
Cultural Institutions	P (2, 4)	

***Editor's note—**Previously, Chapter 4 derived from Ord. No. 4262, 8-16-04; Ord. No. 4913, 2-17-09; Ord. No. 5025, 2-7-11.

Table 11-4-2: Agricultural District		
Proposed Use	**AG**	**Additional Use Regulations**
Parks and Recreation Facilities, Public	P	
Places of Worship	P (2, 4)	Section 11-31-22, Places of Worship
Athletic Facilities When Accessory to a Church	SUP(2, 4)	
Day Care When Accessory to a Church	SUP (2, 4)	
Schools, Colleges, and Trade Schools		
Colleges or Universities, Private	CUP (2, 3)	Section 11-31-24, Schools
Colleges or Universities, Public	P	
Commercial Trade Schools, Private	CUP (2, 3)	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	
Industrial Trade Schools, Private	CUP (2, 3)	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	
K-12, Private	CUP(2, 3)	Section 11-31-24, Schools
K-12, Public	P	
Commercial Use Classifications		
Animal Sales and Services		
Boarding Stables	SUP	
Kennels	SUP	
Veterinary Services	SUP	
Plant Nurseries and Garden Centers	SUP	Section 11-4-4(C)
Transportation, Communication and Utilities Use Classification		
Utilities, Major	CUP	
Utilities, Minor	P	
Agricultural and Extractive Use Classifications		
Agriculture	P/SUP (1)	
Crop and Animal Raising	P/SUP (1)	
Mining and Quarrying	SUP	
Specific Accessory Uses		
Animal Keeping	P	Sections 11-4-4(B) and 11-31-4, Animal Keeping
Accessory Dwelling Unit	P (13, 14)	Section 11-31-3, Accessory Dwelling Unit
Agriculture-based Entertainment	SUP (2)	Section 11-4-5, Agriculture-based Entertainment
Battery Energy Storage System (BESS)	P(5)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS facilities
Farm Stands	SUP (2)	
Home Occupations	P/SUP (2)	Section 11-31-33, Home Occupations
Portable Storage Containers	P	Section 11-30-16, Portable Storage Containers
Temporary Outdoor Entertainment	TUP(2)	Section 11-31-30, Temporary uses
Temporary Outdoor Sales	TUP (2)	

Table 11-4-2: Agricultural District		
Proposed Use	**AG**	**Additional Use Regulations**
1. The following agricultural uses are permitted by right (subject to the standards of this chapter): aviaries and apiaries; plant nurseries and greenhouses; poultry, bird, and egg farms; commercial breeding, training, and grazing of horses, cattle, sheep, goats, ostriches and other livestock. Dairies and feedlots require a Special Use Permit. 2. Use not permitted when the property is subject to the AOA 1 overflight area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas. 3. Use not permitted when the property is subject to the AOA 2 overflight area, see Section 11-19-2, Runway Protection Zones and Airport Overlay Areas. 4. Use permitted with the approval of a (CUP) Council Use Permits when the property is subject to the AOA 2 overflight area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas. 5. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an Accessory Use.		

(Ord. No. 5249, 10-6-14; Ord. No. 5632, § 1, 7-8-21; Ord. No. 5759, § 1, 12-8-22; Ord. No. 5814, § 1(Exh. 1), 10-16-23; Ord. No. 5976, § 1, 1-12-26)

11-4-3: DEVELOPMENT STANDARDS

Table 11-4-3 prescribes the Development Standards for the AG district.

Table 11-4-3: Development Standards - Agricultural District	
Standard	**AG**
Lot and Density Standards	
Minimum Lot Area	10 acres
Minimum Lot Width (ft.)	400
Maximum Density (dwelling units/acre)	0.1
Building Form and Location	
Maximum Height (ft.)	30
Maximum Number of Stories	2
Minimum Yards (ft.)	
Front	30
Interior Side: Minimum each side	60
Interior Side: Minimum aggregate of 2 sides	120
Street Side	30
Rear	60
Maximum Building Coverage	15%
Supplemental Standards	
Accessory Buildings (Barns, Sheds, Ramadas)	Section 11-30-17: Detached Accessory Buildings
Fences and Walls	Sections 11-4-4(A), 11-5-7 (D), and 11-30-4, Fences and Freestanding Walls
Landscaping	Chapter 33, Landscaping
Lot Splits and Subdivisions	Section 11-30-6, Lots and Subdivisions; and Title 9, Chapter 6, Subdivision Regulations
Off-Street Parking and Loading	Chapter 32, On-Site Parking, Loading, and Circulation
Projections above Height Limits	Section 11-30-3, Exceptions to Height Limits
Projections into Required Yards	Section 11-4-4(D) Building Projections into Required Yards
Screening	Section 11-30-9, Screening
Solar Panels	Section 11-30-15, Solar Panels and Other Energy Production Facilities
Visibility at Intersections	Section 11-30-14, Visibility at Intersections

(Ord. No. 4754, 9-4-07)

11-4-4: SUPPLEMENTAL REGULATIONS

A. **Fences and Freestanding Walls.**

1. "Corral fences" for the keeping of livestock are permitted consistent with the standards provided in Section 11-30-4(A)(2), Corral Fences.

2. In addition, all fences, freestanding walls, and corral fences shall meet the standards of Section 11-30-4, Fences and Freestanding Walls and Section 11-30-14, Visibility of Intersections.

B. **Animal Keeping.** Animal-keeping is subject to the following standards in the AG District:

1. ***Aviaries and Apiaries.***

a. Buildings or hives for apiaries may not be closer than 75 feet to any neighboring residence.

b. Pens and structures for aviaries may not be closer than 40 feet to any neighboring residence.

2. ***Poultry, Bird, and Egg Farms.*** Poultry, bird, and egg farms are subject to the following standards:

a. Pens, buildings, and enclosures other than open pasture may not be located closer than 200 feet to any residential, commercial, or employment district.

3. ***Livestock*.** Commercial breeding, raising, training, and grazing of horses, cattle, sheep, goats, ostriches, and other livestock is subject to the following standards:

a. Sites must be at least 10 acres in area.

b. Notwithstanding any other provision of this Ordinance, the number of livestock shall be limited to no more than the maximum number permitted by Title 8, Chapter 6, Article 4(IV) of the Mesa City Code, unless a Special Use Permit is approved by the Zoning Administrator acting as a Hearing Officer, or by the Board of Adjustment.

c. Pens, corrals, and similar structures may not be closer than 40 feet to any neighboring residence.

d. Barns, stables and similar buildings used to house animals, not including shade structures open at minimum on 3 sides, may not be closer than 75 feet to any neighboring residence.

4. With regard to items 1 through 3 of this subsection B, in the event that an animal pen, corral or other structure is located outside of the required separation distance when constructed, and subsequent construction is placed closer than the required separation specified, the item constructed first does not have to move its location unless it is expanded, enlarged, or moved.

C. **Plant Nurseries and Garden Centers.** Plant Nurseries and Garden Centers oriented principally towards retail trade require approval of a Special Use Permit and are subject to the following standards:

1. With or without a garden center, plant nurseries that cater principally towards retail trade shall be located on sites with direct frontage on a street designated by the Mesa General Plan as an arterial or as a mid-section collector.

2. Total floor area for all buildings, except greenhouses used to raise or display plants, shall not exceed 10,000 square feet.

3. Items displayed outdoors are limited to plants, soils, gravel, soil amendments and fertilizer.

4. Development standards shall comply with requirements of the GC-A district, see Table 11-6-3 B.

D. **Building Projections into Required Yards.** Building projections of a single residence may extend into required yards, subject to the following standards:

1. No projection may extend into a public utility easement or closer than 2 feet to an interior lot line.

2. Awnings, eaves, overhangs, or basement window wells may encroach up to 3 feet into any required yard.

3. Vestibules, bay windows, nooks, chimneys, or similar wall projections with or without footings may encroach not more than 3 feet into any required front or rear yard and not more than 2 feet into any required side yard, provided the aggregate width of all such projections adjacent to any yard does not exceed 1/3 of the length of the building wall.

4. Staircases may encroach:

   a. Up to 3 feet into any required front yard;

   b. Up to 10 feet into any required rear yard; and

   c. Up to 2 feet into any side.

5. Attached open porches, open patios, open carports or open balconies may encroach up to 10 feet into a required rear yard. Such open structures may include window screens, knee walls, and other partial enclosures as specified in the Building Code for patio covers.

(Ord. No. 5544, § 2, 12-9-19)

11-4-5: AGRICULTURE-BASED ENTERTAINMENT

Agriculture-based entertainment and educational related activities, such as corn mazes, facility tours, petting zoos and farm animal exhibits, are permitted as an accessory use in the AG district subject to review and approval of a Special Use Permits in accordance with Chapter 70, Conditional Use Permits. Evaluation of the Special Use Permit shall be based on a review of the following items to assure the entertainment and educational related activities remain compatible with and not detrimental to surrounding land uses:

A. **Development Plan.** A finding that an acceptable Development Plan has been submitted for review and consideration. Such Development Plan shall adequately address issues relating to vehicle access, traffic circulation, and pedestrian safety.

B. **Parking.** Parking, which shall be dustproof, and provided at a minimum ratio of 1 space per 1,000 square feet of designated entertainment area.

C. **Accessory Use.** The entertainment and educational activities shall remain as an accessory activity, and the primary uses for the site shall remain agricultural related activities as permitted under Section 11-4-2.

D. **Applicable Policies.** The use is found to be in compliance with the General Plan, and with applicable Sub Area Plans, Neighborhood Plans and other recognized development plans or policies, and will be compatible with surrounding uses; and

E. **Operational Plan.** A finding that an acceptable operational plan in narrative form has been submitted for review and consideration, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses. Such policies shall include, but are not limited to measures that control: dust, vectors, litter, noise and light. The Operational Plan shall also include the name and telephone number of the manager or person responsible for the operation of the facility; and complaint response procedures, including investigation, remedial action, and follow-up.

(Ord. No. 4262, 8-16-04; Ord. No. 5996, § 4, 3-9-26)

11-4-6: REVIEW OF PLANS

Administrative Use Permits, Special Use Permits, and Council Use Permits shall follow the standards established in Chapter 70 of this Ordinance. All other uses and development shall comply with the review procedures, standards and criteria established in Article 7, Administration.
(Ord. No. 4262, 8-16-04)

CHAPTER 5 RESIDENTIAL DISTRICTS

11-5-1: PURPOSE

A. **General Purpose of Residential Districts.** The purposes of the residential districts are to:

1. Provide for the orderly, well-planned, and balanced growth of residential neighborhoods.
2. Provide for a variety of housing types in a range of densities.
3. Promote the development of residential neighborhoods with well-designed transportation links to educational, employment, commercial and recreational destinations, and which encourage multiple methods of transportation, including walking, biking, and the use of public transit.
4. Establish design standards to help create distinct and attractive residential neighborhoods, upgrade the quality of multi-family housing, and ensure that new residential development is well integrated with surrounding neighborhoods.
5. Provide for appropriate public and quasi-public uses such as parks, playgrounds, religious facilities, and day care centers where they are compatible with and preserve and/or improve the quality of life in residential neighborhoods.
6. Provide development patterns that encourage energy conservation and provide opportunities for renewable energy production.

B. **Specific Purposes of Each District.**

1. ***RS Single Residence.*** To provide areas for detached single residence housing at densities of up to 7 units per net acre. Designators (-90, -43, -35, -15, -9, -7 and -6) are used to denote the minimum lot size in thousands of square feet. This district also provides for community residences, assisted living homes, day care group homes, park and recreation facilities, and civic and institutional uses such as churches and places for religious assemblies that are appropriate in a residential environment. Non-residential uses of a strictly limited scale under the specific conditions listed may also be allowed.
2. ***RSL Small Lot Single Residence.*** To provide areas for small-lot single dwelling development at densities of up to 17 units per net acre, subject to development standards to ensure land use compatibility. Designators (-4.5, -4.0, -3.0 and -2.5) are used to denote the minimum average lot size in thousands of square feet. This district also allows for community residences, assisted living homes, family day care, park and recreation facilities, and civic and institutional uses.
3. ***RM Multiple Residence.*** To provide areas for a variety of housing types at densities of up to 43 units per gross acre. Designators (-2, -3, -4, and -5) are used to denote variations in the maximum allowed

development intensity (See Table 11-5-5). Appropriate types of dwelling units include small-lot single residences, townhouses, cluster housing, and multiple residence housing. This district also provides for community residences, assisted living facilities, residential home-based day care, boarding house manufactured home parks and subdivisions, recreational vehicle parks and subdivisions, park and recreation facilities, limited and small-scale residential support (including limited scale mixed-use commercial) activities, and civic and institutional uses such as churches and places for religious assembly that are appropriate in a residential environment.

(Ord. No. 5541, § 2, 12-9-19; Ord. No. 5632, § 2, 7-8-21)

11-5-2: LAND USE REGULATIONS

In Table 11-5-2, the land use regulations for each Residential Zoning District are established by letter designations as follows:

- "P" designates use classifications permitted in the Residential District.
- "SUP" designates use classifications permitted on approval of a Special Use Permits.
- "CUP" designates use classifications permitted on approval of a Council Use Permits.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permits.
- "(x)" a number in parentheses refers to a limitation following the table.

Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-5-2: Residential Districts

Proposed Use	RS	RSL	RM	Additional Use Regulations
Residential Use Classifications				
Single Residence	P (13, 14)	P (13, 14)	P (12, 13, 14)	
Multiple Residence	—	—	P (13, 16)	
Middle Housing	P (13, 14)	P (13, 14)	—	Section 11-31-38, Middle Housing
Assisted Living Facility				
Assisted Living Home (5 to 10 residents)	P (13, 14)	P (13, 14)	P (12, 13, 14)	Section 11-31-14, Community Residences
Assisted Living Center (greater than 10 residents)	—	—	CUP (13, 16)	Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Boarding House	—	—	SUP (13, 16)	
Community Residence				
Family Community Residence	P (13 14)	P (13, 14)	P (12, 13, 14)	Section 11-31-14, Community Residences
Transitional Community Residence	SUP (13, 14)	SUP (13, 14)	P (12, 13, 14)	
Comprehensive Youth Residence	SUP (4, 13, 14)	—	—	Section 11-5-8, Comprehensive Youth Residence
Day Care Group Home				
Small Day Care Group Home (up to 4)	P (13, 14)	P (13, 14)	P (13, 14)	
Large Day Care Group Home (5 to 10)	P (13, 14)	P (13, 14)	P (13, 14)	Section 11-31-13, Large Day Care Group Homes

Table 11-5-2: Residential Districts				
Proposed Use	**RS**	**RSL**	**RM**	**Additional Use Regulations**
Manufactured Home Parks	—	P (13, 14)	P (1, 13, 14)	Table 11-34-3, Development Standards for RV and Manufactured Home Parks and Subdivisions
Manufactured Home Subdivisions	P (13, 14)	—	—	
Recreational Vehicle Parks	—	—	P (1, 13, 14)	
Recreational Vehicle Subdivisions	—	—	P (1, 13, 14)	
Public and Semi-Public Use Classifications				
Clubs and Lodges	—	—	SUP (9, 13, 14)	
Community Center	SUP (13, 16)	SUP (13, 16)	SUP (9, 13, 16)	
Community Gardens	P	P	P	Section 11-31-10, Community Gardens
Cultural Institutions	P (13, 16)	P (13, 16)	P (9, 13, 16)	
Day Care Centers	SUP/P (10, 13, 14)	P (8, 13, 14)	P (13, 14)	Section 11-31-9, Commercial Uses in Residential Districts
Hospitals and Clinics				
Clinics	—	—	SUP (2, 9, 13, 14)	Section 11-31-15, Hospitals and Clinics
Hospitals	—	—	SUP (2, 9, 13, 14)	
Nursing and Convalescent Homes	—	—	CUP (9, 13, 14)	Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Parks and Recreation Facilities, Public	P	P	P (9)	
Places of Worship	P (13, 16)	P (13, 16)	P (9, 13, 16)	Section 11-31-22, Places of Worship
Athletic Facilities When Accessory to a Church	SUP (13, 16)	—	SUP (9, 13, 16)	
Day Care When Accessory to a Church	SUP (13, 16)	—	SUP (9, 16)	
Public Safety Facilities	P (23)	P (23)	P (23)	
Schools, Colleges, and Trade Schools				
Colleges or Universities, Private	CUP (13, 14)	CUP (13, 14)	CUP (13, 14)	Section 11-31-24, Schools
Colleges or Universities, Public	P	P	P	
Commercial Trade Schools, Private	CUP (13, 14)	CUP (13, 14)	CUP (13, 14)	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	P	P	
Industrial Trade Schools, Private	CUP (13, 14)	CUP (13, 14)	CUP (13, 14)	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	P	P	
K-12, Private	CUP (13, 14)	CUP (13, 14)	CUP (13, 14)	Section 11-31-24, Schools
K-12, Public	P	P	P	
Skilled Nursing Facility			CUP (9, 13, 14)	
Social Services Facility	—	—	CUP (9, 13, 16)	Section 11-31-26, Social Service Facilities
Commercial Use Classifications				
Animal Sales Services				
Boarding Stables	SUP (3, 13, 16)	—	—	RS-90 and RS-43 only
Bed and Breakfast Inns	SUP (15, 16)	—	P (9, 15, 16)	Section 11-31-8, Bed and Breakfast Inns
Eating and Drinking Establishments				
Restaurants, Full Service	SUP (11)	SUP (11)	SUP (11)	Section 11-31-9, Commercial Uses in Residential Districts
Restaurants, Limited Service	SUP (11)	SUP (11)	SUP (11)	
Offices				

Table 11-5-2: Residential Districts				
Proposed Use	**RS**	**RSL**	**RM**	**Additional Use Regulations**
Business and Professional	SUP (10)	SUP (10)	SUP (10)	Section 11-31-9, Commercial Uses in Residential Districts
Medical and Dental	SUP (10)	SUP (10)	SUP (10)	
Personal Services	SUP (11)	—	SUP (11)	Section 11-31-9, Commercial Uses in Residential Districts
Plant Nurseries and Garden Centers	SUP (7)	—	—	SUP option available only in RS-43 and RS-90 districts
Retail Sales				
General	SUP (11)	SUP (11)	SUP (11)	Section 11-31-9, Commercial Uses in Residential Districts
Recreational Vehicle Storage Yard	SUP (20)	—	—	Section 11-31-35 Storage Yards in Residential Districts
Transportation, Communications, and Utilities Use Classifications				
Utilities, Minor	P	P	P	
Specific Accessory Uses and Facilities				
Animal Keeping	P (3)	—	—	Section 11-31-4, Animal Keeping
Accessory Dwelling Unit	P (13, 14)	P (13, 14)	P (13, 14)	Section 11-31-3, Accessory Dwelling Unit
Battery Energy Storage System (BESS)	P (6)	P (6)	P (6)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities
Farm Stands	SUP (5)	—	—	RS-43 and RS-35 Only
Home Occupations	P/SUP (17)	P	P	Section 11-31-33, Home Occupations
Outdoor Display	P	P	P	Section 11-31-20, Outdoor Display
Portable Storage Containers	P (21, 22)	P (21)	P (21)	Section 11-30-16, Portable Storage Containers (PSC)
Temporary Outdoor Entertainments	—	—	TUP (2, 6)	Section 11-31-30, Temporary Uses
Temporary Outdoor Sales	—	—	TUP (2, 6)	

1. Permitted in the RM-4 District.
2. Only permitted or conditionally permitted in the RM-4 District; prohibited in the other RM sub-designations.
3. Boarding stables are permitted in the RS-43 and RS-90 Districts with approval of a SUP on sites of 10 acres or more. Other Large-Scale Commercial Recreation uses are not permitted.
4. Comprehensive Youth Residence permitted in RS-90 District with approval of a SUP.
5. Stands are permitted for the sale of agricultural or horticultural products produced on the premises in the RS-35, RS-43 and RS-90 zoning districts with approval of a Special Use Permit. Farm stands are prohibited in the remaining RS sub-designations.
6. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an Accessory Use.
7. Plant Nurseries may be located in the RS-43 and RS-90 Districts with approval of a Special Use Permits. Criteria include that specified for the AG District, Sec Section 11-4-4(C). Plant Nurseries are prohibited in the remaining RS sub-designations.
8. Day Care Centers permitted only as an accessory activity when provided as an amenity by homeowner's association (HOA) for the principal benefit of residents of that same HOA.
9. Not permitted in RM-5 District.
10. Permitted only with approval of a Special Use Permits, and if the location is coterminous to an intersection of an arterial street with a local or collector street, and the aggregate maximum Gross Floor Area is less than 2,000 square feet in Floor Area, exclusive of any residential uses.
11. Permitted only with approval of a Special Use Permits, and if the location is coterminous to an intersection of an arterial street with a local or collector street, and the aggregate maximum Gross Floor Area is less than 1,500 square feet in Floor Area, exclusive of any residential uses. No drive-thru facilities or pick-up window facilities permitted.
12. Detached Single Residence is not permitted in RM-5 District.
13. Use not permitted when the property is subject to the AOA 1 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
14. Use not permitted when the property is subject to the AOA 2 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
15. Use permitted with approval of a (CUP) Council Use Permits when the property is subject to the AOA 1 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.

Table 11-5-2: Residential Districts				
Proposed Use	**RS**	**RSL**	**RM**	**Additional Use Regulations**
16. Use permitted with the approval of a (CUP) Council Use Permits when the property is subject to the AOA 2 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.				
17. Special Use Permit options for expanded Home Occupations are allowed only in the RS-90 and RS-43 Districts.				
18. Reserved.				
19. Reserved.				
20. Also requires previous establishment of a PAD Overlay District.				
21. Temporary use of Portable Storage Containers during construction and for loading and unloading is permitted in accordance with Section 11-30-16.				
22. Permanent use of Portable Storage Containers is limited to RS-43 and RS-90 zoning districts in accordance with Section 11-30-16.				
23. Use only permitted when owned and operated by the City of Mesa.				

(Ord. No. 5541, § 2, 12-9-19; Ord. No. 5592, § 2, 12-1-20; Ord. No. 5593, § 2, 12-1-20; Ord. No. 5632, § 1, 7-8-21; Ord. No. 5759, § 1, 12-8-22; Ord. No. 5813, § 1(Exh. 1), 10-16-23; Ord. No. 5814, § 1(Exh. 1), 10-16-23; Res. No. 12269, § 2, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5989, § 1, 12-8-25; Ord. No. 5876, § 2, 1-12-26)

11-5-3: DEVELOPMENT STANDARDS FOR THE RS AND RSL DISTRICT

A. **Zoning District Standards.** Tables 11-5-3.A.1 and 11-5-3.A.2 prescribe the development standards for the RS and RSL Districts. The "Additional Standards" column lists additional standards that apply in some or all districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-5-3.A.1: Development Standards - RS Residential Single Dwelling Districts								
Standard	**RS-90**	**RS-43**	**RS-35**	**RS-15**	**RS-9**	**RS-7**	**RS-6**	**Additional Standards**
Lot and Density Standards								
Minimum Lot Area (sq. ft.)	90,000	43,560	35,000	15,000	9,000	7,000	6,000	
Minimum Lot Width: Interior Lot (ft.)	150	130	130	110	75	65	55	Section 11-5-3(A)(1), Additional Lot Width and Depth
Minimum Lot Depth (ft.)	150	150	150	120	100	94	90	
Minimum Lot Depth abutting Arterial Street (ft.)	150	150	150	120	110	104	100	
Maximum Density								
Conventional Subdivisions (units/gross acre)	Based on compliance with minimum lot size requirements, and with off-site improvement and right-of-way requirements specified in MCC Title 9.							
Planned Area Development (PAD) Overlay District (units/net acre)	0.48	1.0	1.24	2.9	4.84	6.22	7.26	
Maximum Lot Coverage (% of lot)	40%	40%	50%	50%	60%	60%	60%	
Building Form and Location								
Maximum Height (ft.)	30	30	30	30	30	30	30	
Minimum Setbacks (ft.)								
Front: Enclosed Livable Areas, Porches, Side Entry Garages, and Porte Cocheres	22	22	22	22	15	10	10	
Front and Street-Facing Side: Garages and Carports	30	30	30	30	25	20	20	
Interior Side: Minimum either side	20	10	10	7	7	5	5	Section 11-5-3(A)(3), Zero-Lot-Line Developments
Interior Side: Minimum Aggregate of 2 sides	40	30	30	20	17	15	15	Section 11-5-3(A)(3), Zero-Lot-Line Developments

Table 11-5-3.A.1: Development Standards - RS Residential Single Dwelling Districts								
Standard	**RS-90**	**RS-43**	**RS-35**	**RS-15**	**RS-9**	**RS-7**	**RS-6**	**Additional Standards**
Street-Facing Side	30	20	10	10	10	10	10	
Rear	30	30	30	30	25	20	20	Section 11-5-3(A)(2), Additional Standards for Rear Setbacks
Rear: Abutting Arterial Street	30	30	30	30	30	30	30	
Maximum Building Coverage (% of lot)	25	25	35	40	45	45	50	Section 11-31-38, Middle Housing

Table 11-5-3.A.2: Development Standards - RSL Residential Small Lot Single Dwelling Districts					
Standard	**RSL-4.5**	**RSL-4.0**	**RSL-3.0**	**RSL-2.5**	**Additional Standards**
Lot Standards					
Minimum Average Lot Area of Subdivision (sq. ft.)	4,500	4,000	3,000	2,500	
Minimum Individual Lot Area (sq. ft.)	4,000	3,600	2,925	2,400	
Minimum Lot Width: Interior Lot (ft.)	50	45	45	40	Section 11-5-3(A)(1), Additional Lot Width and Depth
Minimum Lot Width: Corner Lot (ft.)	55	50	50	45	
Minimum Lot Depth (ft.)	80	80	65	60	
Maximum Lot Coverage (% of lot)	70%	75%	80%	80%	
Building Form and Location					
Maximum Height (ft.)	30	30	30	30	Section 11-5-3(A)(5), Third Story Structures
Minimum Setbacks (ft.)					
Front: Building Wall	15	15	15	14	
Front: Garage	18	18	18	18	
Front: Porch	9	9	8	8	
Street-Facing Side	8	8	8	8	
Interior Side: Minimum Each Side	4.5	4	4	3	Section 11-5-3(A)(3), Zero-Lot-Line Developments
Interior Side: Minimum Aggregate of 2 sides	10	9	8	6	
Rear	15	12	10	10	
Rear or Side: Garage, Accessed by Alley or Common Drive Shared by 3 or More Lots (Measured to Construction Centerline of Alley or Drive)	13	13	13	13	
Minimum Useable Open Space Per Unit (sq. ft.)	400	400	400	400	Section 11-5-3(A)(6), RSL Open Space Requirements

1. ***Additional Lot Width and Depth.***

   a. *At Local or Collector Street Intersections.*

      i. Additional lot width equivalent to 10% of the standard lot width for the zoning district shall be provided on lots located at the intersection of:

         (1) Two (2) local streets; or

         (2) A local street and collector street.

      ii. Street-facing side lot lines separated from street right-of-way by a dedicated tract of land with a width of 10 or more feet are excluded from this requirement.

   b. *At Arterial and Collector or Arterial and Local Street Intersections.*

      i. Additional lot width equivalent to 15% of the standard lot width for the zoning district shall be provided on corner lots located at the intersection of:

         (1) Two (2) collector streets;

(2) Two (2) arterial streets; or

(3) A collector and arterial street.

ii. Street-facing side lot lines separated from street right-of-way by a dedicated tract of land with a width of 15 or more feet are excluded from this requirement.

c. *Lots With Two (2) or More Intersection Corners.* For lots that have more than one (1) corner adjacent to an intersection, the additional lot width required will be based on the highest classified intersection.

d. *Lot Depth Adjacent to Arterial Street.* Where the rear lot line of a lot in the RS-7 or RS-6 District directly abuts the right-of-way of an arterial street:

i. The minimum lot depth shall be increased by an additional 10 feet; except:

ii. Rear lot lines separated from arterial street right-of-way by a dedicated tract of land with a depth of 10 or more feet are excluded from this requirement.

2. ***Additional Standards for Rear Setbacks.***

a. *Rear Setback Adjacent to Arterial Street.* A rear setback adjacent to an arterial street shall be at least 30 feet in depth. This requirement shall not apply if the residential lot is separated from the arterial street by a landscape tract, stormwater retention basin, or privately owned and maintained recreation open space that is at least 10 feet in depth.

b. *Rear Setback Adjacent to Alley or Canal.* When a rear lot line abuts an alley or canal right-of-way at least 16 feet in depth, the rear setback may be measured from the centerline of that alley or canal right-of-way, provided the resulting reduction does not exceed 10 feet.

3. ***Zero-Lot-Line Developments.*** Zero-lot-line developments are permitted in the RS-6, RS-7, and RSL Districts as follows. Use benefit easements shall not be used to establish, satisfy, or replace any required setback or access provision for zero-lot-line developments.

a. In zero-lot-line developments, no interior side setback is required on one (1) side of a lot if the opposite side setback is at least equal to or greater than the minimum aggregate setback stated in Table 11-5-3.A.1 or Table 11-5-3.A.2, or 10 feet, whichever is greater.

b. Where a zero-side setback is used, the abutting property must be held under the same ownership at the time of initial construction, or the owner of the property abutting the zero-side setback must sign an agreement that permanently grants consent in writing to such zero setback.

c. Owners of zero-lot-line developments must provide permanent access and maintenance easement providing the owner of the zero-lot-line structure with access to the adjacent lot to maintain the structure. A copy of the easement shall be provided to the City prior to recording the document in the Maricopa County Recorder's Office.

4. ***Limitation on Paving of Street-Facing Setbacks.***

a. *RS Districts.* No more than 50% of any required front or street-facing side setback may be covered with a paved surface.

b. *RSL Districts.* No more than 80% of any required front or street-facing side setback may be covered with a paved surface.

5. ***Third Story Structures in RSL Districts.*** A Single Residence dwelling unit in an RSL Zoning District may have a third story subject to the following:

   a. The third story is located inside a roof that is pitched at a vertical to horizontal ratio of at least 1 to 3 (1:3). The third story may include dormers that are not more than 15 feet in depth or width and located wholly below the ridge of the roof. The roofs of dormers shall have a minimum slope of 1 to 6 (1:6); or

   b. The horizontal area of the third story (measured from exterior walls) does not exceed 60% of the footprint of the building, and the third story is set back a minimum of eight (8) feet from the front exterior wall(s) of lower stories, or set back at least five (5) feet from the front exterior wall and five (5) feet on at least one (1) side exterior wall of lower stories.

6. ***RSL Open Space Requirements.*** The open space requirement in the RSL Districts may be satisfied in one (1) of the following ways:

   a. *Private Open Space Option.* A minimum of 400 square feet of open space is provided on each lot. The following criteria apply to the provision of private open space:

      i. The open space may be contained in one (1) or multiple areas. No single space shall be smaller than 80 square feet.

      ii. To count toward the required open space, the open space must have a minimum depth of at least six (6) feet as an upper story balcony, eight (8) feet as a porch or patio and 10 feet as a courtyard or lawn area.

      iii. Items such as covered porches or patios, open on two (2) sides; or designated courtyards with two (2) sides defined by a knee wall of not more than three (3) feet in height may be considered as open space when located in front and street-side facing setbacks, provided the minimum dimension of the open space in any direction is:

         (1) Ten (10) feet in the RSL-4.5, 4.0, and 3.0 Districts; and

         (2) Eight (8) feet in the RSL-2.5 District.

   b. *Combined Private and Common Open Space Option.* A development may satisfy open space requirements through a combination of private open space on each lot and common open space areas, subject to the following:

      i. For properties zoned RSL 4.5 or 4.0, the open space requirement may be met by providing at least 350 square feet of private open space on each lot and providing common open space areas to serve the development at the rate of 100 square feet per lot.

      ii. For properties zoned RSL-3.0 or 2.5, the open space requirement may be met by providing at least 280 square feet of private open space on each lot and providing common open space areas to serve the development at a rate of 120 square feet per lot.

      iii. Minimum open space dimension standards provided in Subsection (6)(a) above, apply to the size and location of the on-lot open space.

iv. To qualify as common open space, all of the following standards must be met:

(1) The area shall have a minimum of two (2) pedestrian access points and shall not be enclosed or otherwise restricted from use by the residents of the subdivision;

(2) The common area must be at least 0.25 acres in size with a minimum usable width of at least 75 feet in any direction;

(3) The open space must be at least 50% open to the sky. At least 75% of open space areas that are open to the sky and not otherwise used as active recreation facilities shall be landscaped and maintained with live plant materials;

(4) Open space areas shall be improved with facilities that provide for active and/or passive recreation, such as benches, paths, playground equipment, ball courts, picnic tables, and barbecue facilities; and

(5) At least 75% of the required open space shall be located within 1,320 feet of the geometric center of the development site, measured to the nearest edge of the open space.

7. ***Encroachments.*** Building projections may extend into required setbacks, subject to the following standards:

a. No projection may extend into a public utility easement or closer than three (3) feet to an interior lot line.

b. Awnings, eaves, overhangs, or basement window wells may encroach up to three (3) feet into any required setback.

c. Vestibules, bay windows, nooks, chimneys, or similar wall projections with or without footings may encroach not more than three (3) feet into any required front or rear setback and not more than two (2) feet into any required side setback, provided the aggregate width of all such projections adjacent to any yard does not exceed one-third (⅓) of the length of the building wall.

d. Staircases may encroach up to three (3) feet into any required front setback, and up to 10 feet into any required rear setback.

e. Attached open porches, open patios, open carports or open balconies may encroach into a required rear setback, but shall be no closer than 15 feet to a rear property line, except in the RS-6 and RS-7 Districts, where these structures may encroach to within 10 feet of the rear property line. Such open structures may include window screens, knee walls, and other partial enclosures as specified in the Mesa Building Code for patio covers.

f. In RS Districts only, enclosed livable rooms may encroach up to 10 feet into a required rear setback for up to one-half (½) the width of the building, provided a minimum of 10 feet remains between the building face and the rear property line.

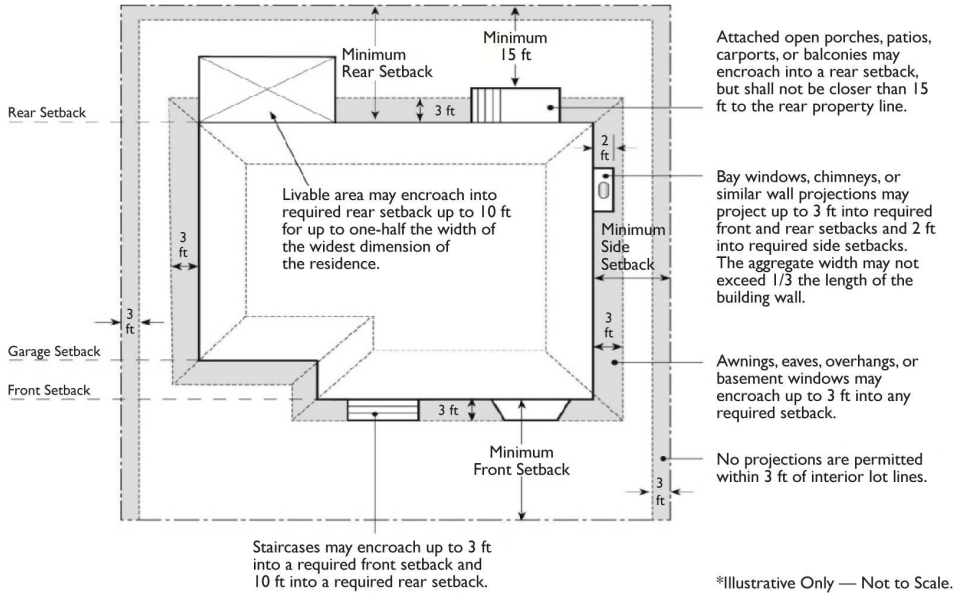


FIGURE 11-5-3.A(1): BUILDING PROJECTION

(Ord. No. 5593, §§ 3, 4, 12-1-20; Ord. No. 5858, § 1, 7-1-24; Ord. No. 5989, § 2, 12-8-25; Ord. No. 5996, § 1, 3-9-26)

11-5-4: SITE PLANNING AND DESIGN STANDARDS FOR THE RS AND RSL DISTRICTS

A. **Neighborhood Character and Image.** Residential subdivisions of five (5) acres or more shall comply with the following requirements:

1. ***Connectivity.*** Residential subdivisions shall provide vehicular, pedestrian and bicycle connectivity to adjacent schools, parks, places of work or services, and abutting residential developments.

   a. All development shall be designed in accordance with the City of Mesa Standard Details and Specifications, Engineering Design Standards Manual, Land Division Regulations, and transportation facilities identified by the City's Transportation Plan.

   b. The street or roadway pattern shall be designed with regard to topography and existing natural features.

   c. Streets stubbed or platted to the boundary of previously approved Development Plans shall be incorporated and continued, to provide for logical, orderly, and convenient movement from one neighborhood to the next.

   d. Sidewalks, trails, and greenbelts shall be utilized to provide pedestrian/bicycle connections between neighboring subdivisions and major activity areas.

2. ***Entryway Monumentation Feature.*** Provide at least one (1) entryway monumentation feature at two (2) neighborhood access points where a street intersects an arterial or collector street. Each entryway monumentation feature shall include at least three (3) of the following:

   a. Monument signage.

b. Specialty pavement delineating the primary entryway, such as stamped asphalt, brick, stone, pavers, or colored concrete. Specialty pavement within the public right-of-way shall be approved by the City Transportation Department.

c. Enhanced perimeter wall details, such as but not limited to, decorative panels, lighting, architectural tower or arch feature, or a decorative gate.

d. Enhanced landscape treatment with a defined landscaped area of at least 200 square feet that includes a minimum of three (3) trees with a minimum 36-inch box size and decorative shrubs, perennials, ornamental grasses, or specimen plants. At least 60% of this landscaped area must contain live plant material.

e. Public art elements, such as but not limited to, sculptural features or thematic elements that reflect neighborhood history, culture, or surrounding natural features.

f. Landscaped median or entry island.

g. Monument or gateway lighting features, such as but not limited to, uplighting, halo lighting, or illuminated columns.

h. Neighborhood identity markers, such as but not limited to, branded poles, pylons, or similar vertical elements.

i. Decorative landscape wall or seat wall integrated with planting, in lieu of a perimeter wall.

j. Water feature.

k. Additional entryway monumentation feature approved by the Planning Director.

3. ***Architectural Variation.*** Developments shall provide architectural variety through the use of distinct building elevations, exterior materials, roof lines, garage placement, and building placement. Such variation in buildings shall not consist solely of combinations of the same building features.

a. For developments containing three (3) to nine (9) lots, there shall be at least two (2) different types of building elevations.

b. For projects containing 10 to 39 lots, there shall be at least three (3) different building elevations.

c. An additional building elevation shall be provided for each additional 40 lots.

d. No two (2) of the same building elevation with the same floor plan shall be located next to each other or across the street from one another.

B. **Massing and Scale.** Buildings shall contain varied massing and architectural elements and techniques shall be utilized to reduce the apparent massing and scale of buildings, provide shading, and define different uses and activities in the house.

1. ***Façade Articulation.***

a. *Front Façade.* The front façade of buildings shall have at least one (1) change in building plane, excluding the garage.

b. *Two-story Dwellings on Corner Lots.* No second-story street-facing wall shall run in a continuous plane of more than 20 feet without a window, or without a projection, offset, or recess of the building wall at least one (1) foot in depth.

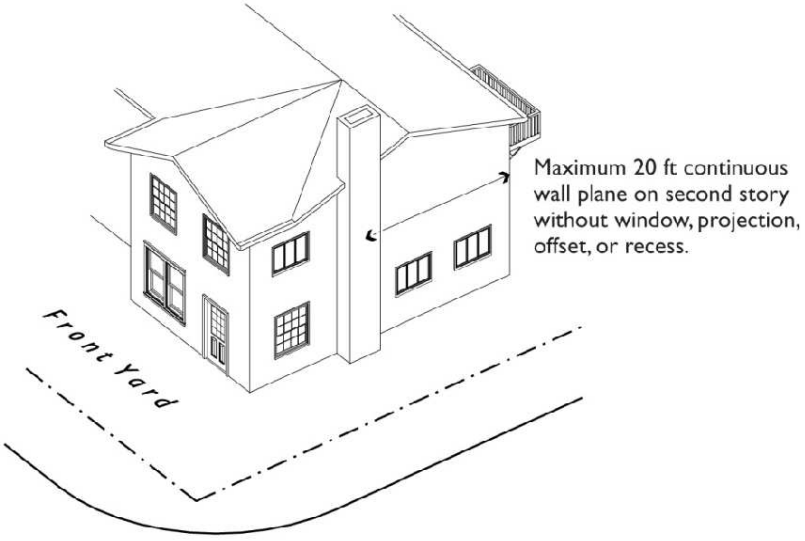


FIGURE 11-5-4.B(1): TWO-STORY DWELLINGS ON CORNER LOT

C. **Primary Entrances.** Primary entrances shall consist of either a covered front porch or portico, awning, recess, or stoop as specified below.

1. ***Covered Front Porch.*** A covered front porch with a minimum depth of six (6) feet and a minimum length of eight (8) feet.

a. *Measuring Front Porch Depth.*

i. The required porch depth shall be measured from the building façade to outside of the support post;

ii. The total clear furniture area shall be a minimum of four (4) feet by six (6) feet.

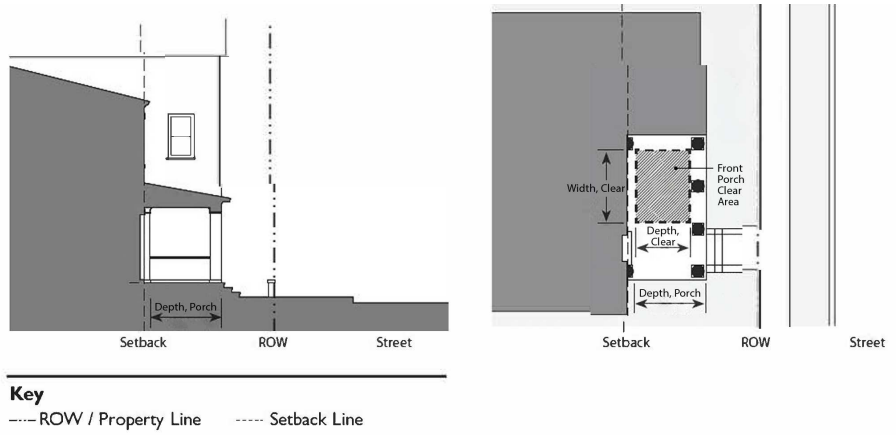


FIGURE 11-5-4.C(1): COVERED FRONT PORCH MEASUREMENTS

2. ***Portico, Awning, Recess, or Stoop.*** A portico, awning, recess, or stoop measuring at least four (4) by four (4) feet which is well defined by a gabled entry, distinct change in roof line or columns, or has some other significant architectural distinction.

D. **Garage Frontage and Location.** To prevent residential streetscapes from being dominated by protruding garage doors, and to allow the active, visually interesting features of a house to be dominant, the following standards shall apply:

1. ***Front Loaded Garages.*** Where a garage door is parallel to the front property line of the lot, the following shall apply:

a. *Lots Greater Than or Equal to 50 Feet Wide.*

i. The aggregate width of garage doors shall not exceed 50% of the aggregate width of the front building elevation;

ii. The garage shall be located at least three (3) feet behind the primary wall facing the street; and

iii. A covered front porch, patio, or porte-cochere whose aggregate width is 20% of the aggregate width of the front building elevation may be considered the primary wall facing the street.

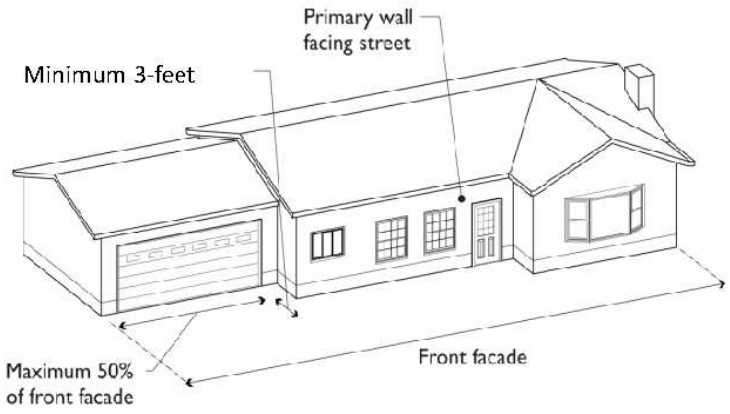


FIGURE 11-5-4.D(1): GARAGE FRONTAGE AND LOCATION

b. *Lots Less Than 50 Feet Wide.*

i. The aggregate width of garage doors shall not exceed 60% of the aggregate width of the front building elevation; and

ii. The garage shall be located at least three (3) feet behind the primary wall or covered front porch (at least eight (8) feet wide and six (6) feet deep) facing the street.

2. ***Side Loaded Garages.*** Where garages are oriented with side entry doors, the street-facing façade shall incorporate windows and architectural detailing to maintain the appearance of habitable living space.

3. ***Garages With Three (3) or More Doors.*** Garages with three (3) or more doors, or designed to accommodate three (3) or more non-tandem parked cars, are permitted only on lots 75 feet wide or greater, and at least one (1) garage front must be separated from the remaining garage fronts by at least two (2) feet. This requirement does not apply to the following:

a. Side or rear loaded garages in which the garage doors are oriented parallel to or within 10 degrees of parallel to the front property line, or oriented perpendicular to an alley located adjacent to the rear property line.

b. Garages set a distance of 1.5 times the minimum front setback for garages and carports, based on the requirement for each zoning district, from the front property line, as specified by Table 11-5-3A.1 and Table 11-5-3.A.2.

E. **Driveways—Maximum Number and Width.**

1. ***Lots Less Than 75 feet Wide.***

a. A maximum of one (1) driveway up to 20 feet wide is permitted.

b. One (1) additional driveway up to 10 feet wide is permitted, if it leads to an interior side setback that is at least 12 feet in width.

2. ***Lots Greater Than or Equal to 75 Feet Wide.***

   a. A maximum of one (1) driveway up to 30 feet wide is permitted; or

   b. One (1), 20-foot driveway and one (1) additional 10-foot driveway if it leads to an interior side setback that is at least 12 feet in width.

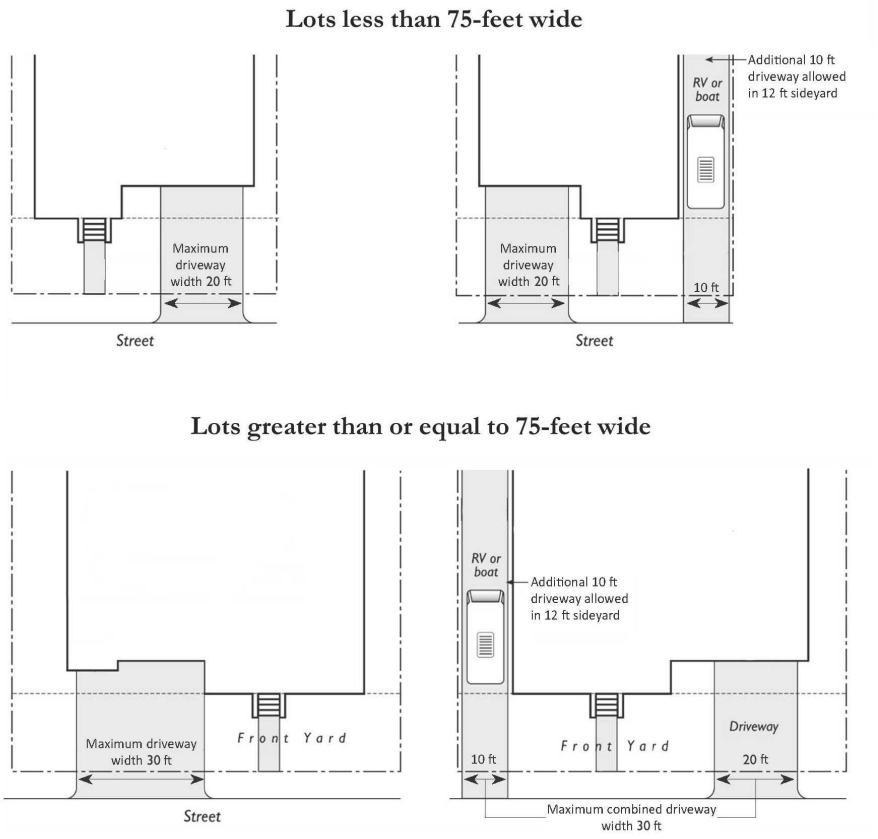


FIGURE 11-5-4.E(1): DRIVEWAYS

F. **Windows.**

1. On front facades, windows shall either:

   a. Contain window trim on at least two (2) sides that is at least two (2) inches in depth; or

   b. Be recessed at least four (4) inches from the outside plane of the surrounding exterior wall.

2. On buildings that are two (2) stories or greater in height, all façades facing a street, alley, open space, or park shall provide windows on the upper-stories that constitute at least 10% of the façades area.

G. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for the Arizona climate.

1. ***Primary Exterior Building Materials.*** Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, siding, natural and synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

2. ***Minimum Use of Primary Materials.***

a. *Publicly Visible Façades.* Building façades facing a street, alley, open space, or park shall contain at least two (2) kinds of primary exterior building materials.

b. The use of any one (1) material shall not exceed 85% of each façade.

c. *Primary Material Calculation.* Primary building material coverage shall be calculated by measuring the area of each façade, excluding fenestration, pedestrian and vehicular openings, and other elements that are not part of the vertical façade plane. The percentage of each primary building material shall be calculated by dividing the area covered by that material by the resulting façade area.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 15% of a building façade.

4. ***Change in Materials.***

a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections), and shall not occur mid-field on a flat wall surface, except where brick or stone veneer is used as wainscoting, it shall be wrapped a minimum of two (2) feet around side walls.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

H. **Factory-Built Buildings.** Factory-built buildings designed, manufactured and approved for residential purposes as dwelling units and attached to permanent foundations are permitted in all Residential Districts, if such buildings are installed in conformance with all applicable provisions of the Mesa City Code including applicable development standards.

(Ord. No. 5996, § 1, 3-9-26)

11-5-5: DEVELOPMENT STANDARDS FOR THE RM DISTRICT

A. **Zoning District Standards.** Table 11-5-5 prescribes the development standards for the RM Districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-5-5: Development Standards - RM Residential Multiple Dwelling Districts					
Standard	**RM-2**	**RM-3**	**RM-4**	**RM-5**	**Additional Standards**
Minimum Lot Area (sq. ft.)	7,200	6,000	6,000	6,000	

Table 11-5-5: Development Standards - RM Residential Multiple Dwelling Districts					
Standard	**RM-2**	**RM-3**	**RM-4**	**RM-5**	**Additional Standards**
Minimum Lot Width (ft.)					
Single Residence - Detached	36	30	25	—	
Single Residence - Attached	36	25	25	25	
Multiple Residence	60	60	60	60	
Minimum Lot Depth (ft.)					
Single Residence- Attached or Multiple Residence	94	94	94	65	
Single Residence -Detached	94	94	75	75	
Maximum Density (dwelling units/net acre)	15	20	30	43	
Minimum Lot Area per Dwelling Unit (sq. ft.)	2,904	2,183	1,452	1,000	
Maximum Height (ft.)	30	40	40	50	
Maximum Lot Coverage (% of lot)	70%	70%	70%	80%	
Minimum Setbacks: 2 or More Units Per Lot (ft.)					
Front and Street-Facing Side	Varies by street classification identified in the Mesa Transportation Plan: 6-lane arterial: 30 ft. 4-lane arterial: 20 ft. Collector: 25 ft. Local Street: 20 ft. Freeways: 30 ft.				Setbacks shall be landscaped according to standards in Chapter 33, Landscaping.
Interior Side and Rear: 3 or More Units Per Lot	Single Story: 20 ft. Multiple Story: 15 ft. per story			Single Story: 15 ft. Multiple Story: Additional 10 ft. per story	Section 11-5-5(B)(1), Additional Setback Adjacent to RS District Section 11-5-5(B)(2), Setbacks Adjacent to a Canal
Interior Side: 2 Units Per Lot	10	10	10	10	
Interior Side: Single Residence - Attached (ft.)	5	5	5	5	Section 11-5-5(B)(2), Setbacks Adjacent to a Canal
Rear	15	15	15	15	Section 11-5-5(B)(1), Additional Setback Adjacent to RS District Section 11-5-5(B)(2), Setbacks Adjacent to a Canal
Minimum Setbacks: 1 Unit Per Lot (ft.)					
Front and Street-Facing Side	Varies by street classification identified in the Mesa Transportation Plan: 6-lane arterial: 30 ft. 4-lane arterial: 20 ft. Collector: 25 ft. Local Street: 20 ft. Freeways: 30 ft.				Setbacks shall be landscaped according to standards in Chapter 33, Landscaping.
Interior Side: Single Residence - Detached (ft.)	5	5	5	N/A	Section 11-5-5(B)(2), Setbacks Adjacent to a Canal
Interior Side: Single Residence - Attached (ft.)	10	10	10	10	Section 11-5-5(B)(2), Setbacks Adjacent to a Canal Section 11-5-3(B)(3), Zero Setback for Attached Single Residences
Rear	15	15	15	Single Residence- Attached: 15	Section 11-5-5(B)(2), Setbacks Adjacent to a Canal
One-story Building	25	25	25	15	Section 11-5-5(B)(5), Additional Building Separation Requirements
Two-story Building	30	30	30	20	

Table 11-5-5: Development Standards - RM Residential Multiple Dwelling Districts					
Standard	**RM-2**	**RM-3**	**RM-4**	**RM-5**	**Additional Standards**
Three-story Building	35	35	35	25	Section 11-5-5(B)(5), Additional Building Separation Requirements
Detached Covered Parking Canopies and Buildings	20	20	20	20	
Maximum Building Coverage (% of lot)	45	50	55	65	Section 11-5-5(B)(5), Additional Building Separation Requirements
Minimum Open Space (sq. ft./unit)	200	175	150	120	Section 11-5-5(B)(6), Standards for Required Open Space

B. **Additional Standards.**

1. ***Additional Setback Adjacent to RS District.*** Where a lot located in an RM District is adjacent to the RS District, the following shall apply:

   a. A single-story building on the RM-zoned lot shall be setback from the RS District property line at least 25 feet.

   b. Multiple story buildings shall be setback a minimum of 15 feet of setback for each story (i.e., two-story buildings must be setback at least 30 feet; three-story buildings must be setback, 45 feet), except in the RM-5 District, in which the minimum setback is limited to 25 feet from a RS District, with no additional setback per story.

   c. At least 20 feet of the depth of such setbacks must be landscaped consistent with the standards of Chapter 33, Landscaping, and shall remain free from parking, driveways, and encroachment by any structures that are not part of the landscaping design.

   d. On lots of five (5) acres or more, at least 25 feet of the depth of such setbacks must be landscaped and free from parking or encroachments.

2. ***Setback Adjacent to Canal.*** A setback of at least 15 feet shall be maintained along property lines that abut a canal.

3. ***Zero Setback for Attached Single Residences.*** Attached Single Residence structures may have zero-setback on both sides of the structure.

   a. The minimum interior side setback shall be 10 feet on the end units.

   b. Any portion of the building not placed on a zero-setback line shall maintain a minimum of 10-foot building setback.

   c. Where a zero-side setback is used, the abutting property must be held under the same ownership at the time of initial construction, or the owners of the abutting property must sign an agreement that grants consent in writing to such zero setback. Additionally, owners of zero-lot-line developments must provide a maintenance easement providing the owner of the zero-lot-line structure with access to the zero side to maintain the structure. A copy of the easement shall be provided to the City and recorded in the Maricopa County Recorder's Office prior to recording a plat.

4. ***Limitation on Paving of Street-Facing Setbacks.*** No more than 50% of any required front or street-facing side setback may be covered with a paved surface.

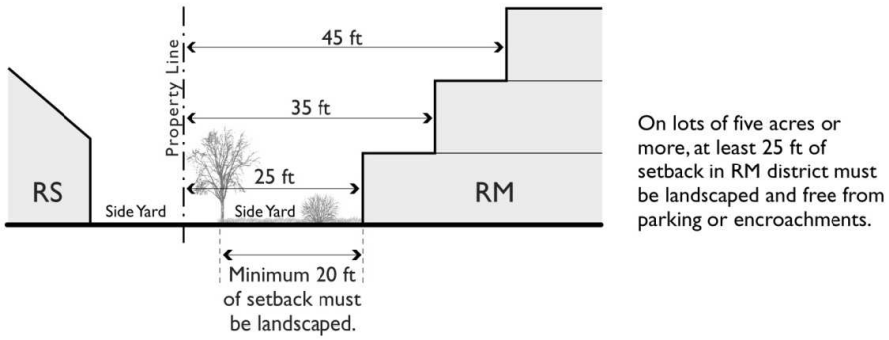


FIGURE 11-5-5.B(1): SETBACK ADJACENT TO RS DISTRICT

5. ***Additional Building Separation Requirements.*** Buildings shall be arranged in a manner that addresses privacy issues for individual units and allows sufficient separation so that daylight and air is available for each residential unit.

   a. *Non-Parallel Buildings.* For non-parallel buildings, the minimum building separation requirement shall be calculated by determining the open area that would be required between any two (2) buildings if they were parallel and met the minimum requirement; then ensuring that the same or greater total open area is available between the two (2) buildings. At no time shall any points of the buildings be closer than 10 feet.

   b. *Ground Floor Separation.* Ground floor building separation distance may be reduced up to 20% if the upper floor steps back an equal distance. For example, if the required building separation between two (2), three (3) story buildings is 35 feet, the ground floor units may be separated by 28 feet provided the upper stories are stepped back so that the building separation for upper stories is no less than 42 feet.

6. ***Standards for Required Open Space.*** Provide residents with both private and public outdoor space that may be used for social, recreational, aesthetic, and economic purposes.

   a. *Proportion of Private and Common Open Space.* Open space may be provided in any combination of private and common open space, as long as studio and one (1) bedroom units have at least 60 square feet of private open space, two (2) bedroom units have at least 100 square feet of private open space and three (3) bedroom or more have at least 120 square feet of private open space.

   b. *Surfacing.* Surfaces provided for outdoor activities shall allow convenient use for outdoor activities. Such surface may be any combination of lawn, garden, brick, flagstone, wood planking, concrete, or other serviceable, dust-free surface.

   c. *Slope.* The slope of required open space areas shall not exceed 10%.

   d. *Exclusive Dedication.* Off-street parking and loading areas, driveways, and service areas shall not be counted as usable open space.

7. ***Additional Standards for Private Open Space.***

a. *Accessibility and Location.* Private open space shall be accessible to only one (1) living unit by a doorway to a habitable room or hallway. Multiple spaces may be provided for individual living units to meet the aggregate open space requirement, provided at least one (1) private open space meets the minimum dimensions below:

i. Private open space located at the ground level (e.g., yards, decks, patios) shall have no dimension less than 10 feet.

ii. Above-ground private open space (e.g., balconies) shall be a minimum of 60 square feet and shall not be less than eight (8) feet wide or less than six (6) feet deep.

b. *Openness.* Open space shall be at least 50% covered and shall have at least one (1) exterior side that is open and unobstructed between three (3) and eight (8) feet above its floor level.

8. ***Additional Standards for Common Open Space.***

a. *Accessibility.* Common open space shall be located no more than 400 feet from the main entrance of any dwelling unit it is intended to serve, as measured along accessible pedestrian routes.

b. *Location.* Common open space shall be located within the same development as the units served. It may not be located within the required front or street-facing side setback. Up to 20% of common open space may be located on the roof of a building.

c. *Minimum Dimensions.* Common open space shall have no dimension less than 15 feet.

d. *Openness.* Common open space shall be unroofed and unobstructed, except for facilities that enhance its usability, such as armadas or playground shade structures, and except that up to 25% of ground-level common open space may be covered by a balcony projecting from a higher story.

e. *Amenities.* Common open space shall include amenities for the everyday use and enjoyment of residents of the development.

i. *Amenities Required.* Multiple Residence and Single Residence-attached developments containing five (5) or more dwelling units shall provide amenities from Table 11-5-5.B.2 to meet the minimum point value specified in Table 11-5-5.B.1, unless an alternative amenity is approved in accordance with Subsection (iii) below.

Table 11-5-5.B.1: Multiple Residence and Single Residence-Attached Amenity Minimums

Number of Dwelling Units	Minimum Points Required
5—19 dwelling units	1
20—50 dwelling units	2
51—100 dwelling units	3
101—150 dwelling units	4
151—250 dwelling units	5
>250 dwelling units	6

ii. *Amenity Types.* Table 11-5-5.B.2 below lists amenity types, the minimum standard (where applicable), and the point value. A proposed amenity may be counted only once toward the required minimum point total, except that regulation-sized sports courts of different types may each be counted separately.

Table 11-5-5.B.2: Amenity Types

Amenity Type	Minimum Standard	Points
Fenced dog park/pet run area	500—1,000 sq. ft.	1
	>1,000 sq. ft	2
Ramada with barbeque and seating area	Min. 200 sq. ft.	1
Putting green		1
Fire pit with seating area		1
Regulation-size sports court (e.g., tennis court, racquetball court, pickleball court, basketball court, etc.)	Regulation size	2
Jacuzzi	Min. 6-person capacity	2
Covered pavilion with seating area	Min. 600 sq. ft.	2
Community garden	Min. 25 ft. in any direction	2
Swimming pool	500—1,000 sq. ft.	2
	>1,000 sq. ft.	3
Outdoor fitness area	Min. 3 stations	2
Tot lot	1,000—2,500 sq. ft., 2 distinct play features	2
	>2,500 sq. ft., 3 distinct play features	3
Rooftop deck/terrace with seating and weather protection	Min. 1,500 sq. ft.	3
Indoor recreational facility (e.g., fitness center, game room, movie theater, etc.)	Min. 1,500 sq. ft.	3

iii. *Alternative Amenities.* Additional amenities not listed above may be approved by the Planning Director. Upon approval, the Planning Director shall assign a point value based on the amenity's comparability in function, scale, and resident benefit to those listed in Table 11-5-5.B.2.

9. ***Encroachments.*** To facilitate the use of architectural features, building projections may extend into required setbacks, subject to the following standards:

a. Entry porches, balconies and patios may encroach no more than 10 feet into a required street side setback, 20 feet or greater in depth (measured from property line to building).

b. No projection may extend into a public utility easement or closer than two (2) feet to an interior lot line.

c. Awnings, eaves, overhangs, or basement window wells may encroach up to three (3) feet into any required setback.

d. Vestibules, bay windows, nooks, chimneys, or similar wall projections with or without footings may encroach no more than three (3) feet into any required front or rear setback and no more than two (2) feet into any required side setback, provided the aggregate width of all such projections does not exceed one-third (⅓) of the length of the building wall.

e. Staircases may encroach up to three (3) feet into any required front setback, and up to 10 feet into any required rear setback.

(Ord. No. 5541, § 2, 12-9-19; Ord. No. 5593, § 5, 12-1-20; Res. No. 12269, § 3, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5928, §§ 1, 2, 2-3-25; Ord. No. 5996, § 1, 3-9-26)

11-5-6: SITE PLANNING AND DESIGN STANDARDS FOR THE RM DISTRICTS

A. **Character and Image.**

1. ***Entryway Monumentation Feature.*** Provide at least one (1) entryway monumentation feature at the primary entryway into a development. The primary entryway shall be the entrance accessing the street with the highest functional classification. Where multiple entrances access streets of the same highest functional classification, the Planning Director shall determine which entrance shall be the primary entryway for the purposes of this section. The entryway monumentation feature shall include at least three (3) of the following:

   a. Monument signage.

   b. Specialty pavement delineating the primary entryway, such as stamped asphalt, brick, stone, pavers, or colored concrete. Specialty pavement within the public right-of-way shall be approved by the City Transportation Department.

   c. Enhanced perimeter wall details, such as but not limited to, decorative panels, lighting, architectural tower or arch feature, or a decorative gate.

   d. Enhanced landscape treatment with a defined landscaped area of at least 200 square feet that includes a minimum of three (3) trees with a minimum 36-inch box size and decorative shrubs, perennials, ornamental grasses, or specimen plants. At least 60% of this landscaped area must contain live plant material.

   e. Public art elements, such as but not limited to, a sculptural features or thematic elements that reflect neighborhood history, culture, or surrounding natural features.

   f. Landscaped median or entry island.

   g. Monument or gateway lighting features, such as but not limited to, uplighting, halo lighting, illuminated columns.

   h. Neighborhood identity markers, such as but not limited to, branded poles, pylons, or similar vertical elements.

   i. Decorative landscape wall or seat wall integrated with planting, in lieu of a perimeter wall.

   j. Water feature.

   k. Additional entryway monumentation feature approved by the Planning Director.

2. ***Architectural Variation.*** Where adjacent to existing multiple residence dwellings, unique massing and architectural design shall be provided to avoid the appearance of large contiguous developments.

B. **Massing and Scale.** Buildings shall contain varied massing and architectural elements and techniques shall be utilized to reduce the apparent massing and scale of buildings, provide shading, and define different uses and activities in the building.

1. ***Façade Articulation.*** Exterior building walls shall be subdivided and proportioned to human scale, using projections, overhangs and recesses in order to add architectural interest and variety and to avoid long, uninterrupted wall planes.

a. *Publicly Visible Façades.* All street-facing and publicly visible façades shall have at least one (1) horizontal projection or recess of at least four (4) feet in depth, or two (2) projections or recesses of at least 2.5 feet in depth, for every 25 horizontal feet of wall.

b. *Two or More Story Buildings.* If located on a building with two (2) or more stories, the articulated elements must be greater than one (1) story in height and may be grouped rather than evenly spaced in 25-foot modules so long as the total amount of articulation meets or exceeds that which would be required if no grouping occurred.

c. Building entrances, front porches, and projections such as stoops, bays, overhangs, fireplaces, and trellises count towards this requirement.

2. ***Varied Roof Form.*** Roof forms shall be integrated into the building design and varied within a development through the use of offsets; changes in slope, angle, or direction; and elements such as dormers, towers, or parapets.

3. ***Roof Articulation.*** Roof articulation is required to provide architectural interest at the skyline and accentuate appropriate building elements.

a. No more than two (2) side-by-side units may be covered by one (1) unarticulated roof.

b. Flat roofs in excess of 100 feet shall provide vertical modulation of two (2) or one-tenth ($^1/_{10}$) of the wall height, whichever is greater.

4. ***Balconies, Bay Windows, and Other Projections or Recesses.*** Buildings shall incorporate balconies, bay windows, entry porches or other projections and recesses across 30% of the length per floor of the façade.

a. *Windows.* Windows shall either:

i. Contain window trim on at least two (2) sides of all windows that is at least two (2) inches in depth; or

ii. Be recessed at least four (4) inches from the outside plane of the surrounding exterior wall.

b. *Balconies.* Balconies shall be at least four (4) feet wide and three (3) feet deep if not used to meet private open space requirements.

5. ***Façade Detailing and Materials.*** Each side of a building that is visible from a public right-of-way, private street, parking lot, or common open space shall be designed with a complementary level of detailing and quality of materials.

C. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for the Arizona climate

1. ***Primary Exterior Building Materials.***

a. Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, siding, synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

b. Variations in the color, finish, or texture of a material (e.g., form-board concrete, smooth stucco vs sand stucco, etc.) shall not be considered separate or distinct materials for the purpose of meeting the material requirements of this section.

c. Glazing may be considered as a primary exterior building material only when it is installed as an architectural glazing system (e.g., curtainwall, structural glass wall) and comprises more than 30% of an individual building façade. Standard window systems, storefront glazing, and other non-architectural fenestration shall not qualify as a primary exterior building material for the purposes of this requirement.

2. ***Minimum Use of Primary Materials.***

a. Each building façade shall incorporate at least two (2) different primary exterior materials.

b. Primary exterior materials shall cover no less than 75% of each building façade.

c. Each primary building material used to satisfy Subsection (2)(a) above shall cover at least 25% of that façade.

d. *Primary Material Calculation.*

i. Primary building material coverage shall be calculated by measuring the area of each façade, excluding non-architectural fenestration, storefront systems, pedestrian and vehicular openings, mechanical equipment, and signage.

ii. The percentage of each primary building material shall be calculated by dividing the area covered by that material by the resulting façade area.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 25% of a building façade.

4. ***Change in Materials.***

a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections), and shall not occur mid-field on a flat wall surface.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

D. **Building Entrances.** Primary building entrances shall be clearly defined, shaded, and inviting. The architectural details of building entrances shall be integrated with the overall building design in terms of materials, scale, proportion, and design elements and are appropriately scaled for people.

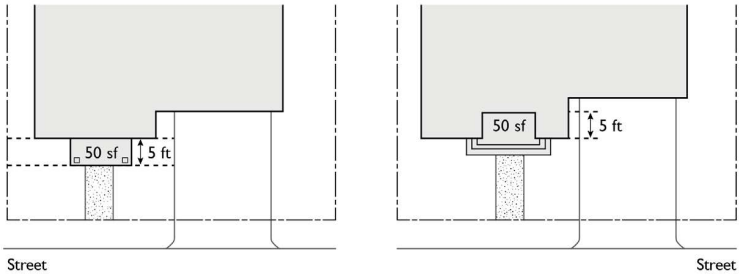
1. ***Dwelling Unit Access.***

a. *Ground Floor Access.* Exterior entrances to units shall be in the form of individual or shared entrances at the ground floor of the building.

b. *Upper Story Access.* Individual entrances for units above the ground floor shall be provided via an interior corridor.

2. ***Orientation.*** All units located along public rights-of-way shall have the primary entrance to the building, or individual unit entrances, facing this right-of-way. Exceptions to this requirement may be approved for projects where multiple-residence housing is located on four (4) or six (6) lane streets carrying high traffic volumes. In such cases, the project may be oriented around courtyards or open space.

3. ***Projection or Recess.*** Building entrances and individual exterior unit entrances shall have a roofed projection (such as a porch) or recess with a minimum depth of at least five (5) feet and minimum horizontal area of 50 square feet.



Required minimum roof projection or recess of 5 feet and horizontal area of 50 square feet at building entrances.

FIGURE 11-5-6.D(1): BUILDING ENTRANCE PROJECTION OR RECESS

E. **Access, Circulation, and Parking.** The parking and circulation system within each development shall accommodate the movement of vehicles, bicycles, pedestrians and transit, throughout the proposed development and to and from surrounding areas, safely and conveniently, and shall contribute to the attractiveness of the development.

1. ***Directness and Continuity.*** Walkways within the site shall be located and aligned to provide continuous connection between buildings, and various site amenities such as play areas, club houses, pools, mailboxes, etc. Walkways shall not be located and aligned solely based on the outline of a parking lot configuration that does not provide such direct pedestrian access.

2. ***Off-site Access.***

   a. Walkways shall provide direct connections to trails, parks, schools, transit stops or other public amenities adjacent to the development.

   b. Drive aisles leading to main entrances shall have walkways on both sides of the drive aisle.

3. ***Parking Area Design.***

   a. Parking areas shall be located to the side or rear of buildings, except visitor parking may be located between a building and the adjacent street.

   b. The total frontage of parking areas visible from the street, including visitor parking, shall not exceed 30% of the lot frontage.

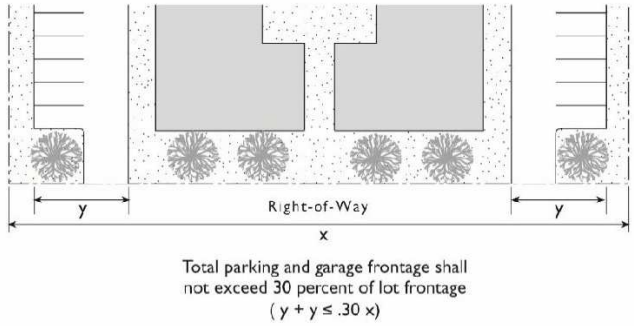


FIGURE 11-5-6.E(1): PARKING AND GARAGE FRONTAGE LIMITATION

4. ***Location of Parking Spaces.***

   a. *Tenant Parking.* Required parking spaces shall be arranged to provide at least one (1) parking space per unit within 200 feet of the dwelling units they are intended to serve.

   b. *Guest Parking.* Guest parking spaces shall be distributed proportionally to the dwelling unit locations that they are intended to serve.

5. ***Attached Garages.***

   a. In one (1) story buildings that include livable floor area, walls containing garage doors shall be set back a minimum of three (3) feet from the front façade of the building.

   b. In multi-story buildings that include livable floor area, garage doors located below upper-story living space shall be recessed at least three (3) feet from the upper story facade.

   c. When multiple garage doors are located within one (1) building, the maximum number of garage doors adjacent to one another shall be limited to three (3), unless there is a break in the building façade between garage doors consisting of a projected building entrance or a recess at least six (6) feet wide and three (3) feet deep.

6. ***Detached Garages.***

   a. Detached garages shall use exterior materials, colors, roof forms, roof materials, and architectural details that are the same as the principal buildings on the lot or within the development.

   b. Perimeter garages that face public right-of-way or private property shall be designed in accordance with Subsections B and C above.

(Ord. No. 5996, § 1, 3-9-26)

Editor's note—Ord. No. 5996, § 1, adopted March 9, 2026, repealed the former § 11-5-6, and enacted a new § 11-5-6 as set out herein. The former § 11-5-6 pertained to site planning and design standards for the RM districts and derived from Ord. No. 5541, § 2, 12-9-19; Ord. No. 5928, §§ 3, 4, 2-3-25.

11-5-7: ALTERNATIVE COMPLIANCE

A. **Purpose and Applicability.**

1. ***Purpose.*** Alternative Compliance may be used to satisfy the Site Planning and Design Standards in Section 11-5-4 and Section 11-5-6 when conditions may exist where strict compliance is impractical or impossible, or when alternative approaches achieve equivalent or superior design outcomes through innovative site planning, architectural solutions, or other means.

2. ***Applicability.*** Alternative Compliance may be requested for any application subject to the Site Planning and Design Standards of Section 11-5-4 and Section 11-5-6. It may not be used to alter development standards or requirements of other sections of this Zoning Ordinance, and it shall not result in an increase in intensity or lot coverage.

B. **Application.** Requests for Alternative Compliance may be accepted for any application to which Site Planning and Design Standards apply. A written request must be provided in conjunction with the applicable land use application describing the following:

1. The code section(s) and development standard(s) for which Alternative Compliance is being requested;

2. The proposed alternative or offset(s), including any numeric modification(s) from the development standard;

3. An explanation on how the proposal meets the intent of the applicable development standard(s), the applicable General Plan Placetype, and any other applicable Sub-area Plan;

4. An explanation on how the alternative is equivalent or superior to the required development standard, or how the proposed offset(s) produce superior design; and

5. A statement of how the proposal meets the approval criteria in Subsection C below.

C. **Approval Criteria.** The review authority may approve Alternative Compliance only upon finding that the request meets all of the following:

1. The alternative does not create adverse impacts on safety, access, visibility, glare, privacy, noise, drainage, heat island effect, and does not reduce pedestrian comfort or accessibility.

2. The proposed alternative or tradeoff is the minimum necessary to achieve the intent while maintaining overall compliance with all other applicable standards.

3. The proposal either:

   a. Provides equivalent or superior quality and functionality; or

   b. Provides offsetting public benefits (e.g., improved streetscape, enhanced shade/canopy, open space, sustainability features).

(Ord. No. 5996, § 1, 3-9-26)

11-5-8: RESERVED

Editor's note—Ord. No. 5996, § 1, adopted March 9, 2026, repealed § 11-5-8, which pertained to comprehensive youth residence and derived from Ord. No. 5541, § 2, 12-9-19.

11-5-9: RESERVED

Editor's note—Ord. No. 5996, § 2, adopted March 9, 2026, repealed § 11-5-9, which pertained to review of plans and derived from Ord. No. 5541, § 2, 12-9-19.

CHAPTER 6 COMMERCIAL AND MIXED-USE DISTRICTS*

11-6-1: PURPOSE

A. **General Purposes of Commercial and Mixed-Use Districts.** The purposes of the Commercial and Mixed-Use Districts are to:

1. Provide for the orderly, well-planned, and balanced growth of commercial areas.

2. Plan for and allow office and commercial development to expand the variety of goods and services to meet the needs of Mesa residents and those living within Mesa's market area.

3. Allow mixed-use commercial/residential development, where consistent with the General Plan, to promote less reliance on automobiles for mobility and result in a reduction in vehicle miles traveled.

4. Establish development standards that improve the visual quality of commercial and mixed-use development and create a unified, distinctive, and attractive character along commercial streets.

5. Contribute to the pedestrian environment with standards that promote ground-floor visibility, orientation of buildings to the street, shaded connectivity, opportunities for community interaction, and pedestrian access across parking lots and between commercial centers and adjacent land uses.

6. Integrate new development into existing or planned context, as appropriate, address transitions, and provide appropriate buffers between commercial and residential uses.

7. Encourage improvements, such as architectural features and landscaping to mitigate air and storm water pollution and reduce the effects of the urban heat island.

***Editor's note—**Ord. No. 5996, § 1, adopted March 9, 2026, repealed the former Ch. 6, §§ 11-6-1—11-6-6, and enacted a new Ch. 6 as set out herein. The former Ch. 6 pertained to similar subject matter. See Code Comparative Table for complete history.

8. Encourage commercial and mixed-use developments to include improvements, such as landscaping, to mitigate air and storm water pollution, to provide shade to reduce the effects of the urban heat island, and to consider solar orientation to take full advantage of sun angles and reduce potential energy consumption.

B. **Specific Purposes of Each District.**

1. ***Neighborhood Commercial (NC).*** To provide areas for locally oriented retail and service uses that serve the surrounding residential trade area within a ½ to two (2) mile radius. Typical uses include, but are not limited to retail stores, grocery stores and anchored shopping centers, drug stores, restaurants and cafes, gas stations, and convenience stores. Other compatible uses include small-scale medical and professional offices, personal services, as well as public and semi-public uses. Large commercial development buildings are not appropriate in the Neighborhood Commercial District.

2. ***Limited Commercial (LC).*** To provide areas for indoor retail, entertainment, and service-oriented businesses that serve the surrounding residential trade area within a one (1) to 10-mile radius. Typical uses include, but are not limited to, grocery stores and additional large commercial developments, anchored tenant shopping centers with additional drug stores, fast-food restaurants, hardware and building supply stores, gas stations with convenience stores, and restaurants and cafes. Other typical uses include, but are not limited to, those anchors and large commercial developments that are typically located within a regional mall, retail outlet, or power center. Other compatible uses include medical and professional offices, as well as public and semi-public uses.

3. ***General Commercial (GC).*** To provide indoor retail, limited outdoor display and related service-oriented businesses that serve a large surrounding residential trade area within a four (4) to five (5) mile radius. This district accommodates a wide range of commercial uses, such as lodging, restaurants, convenience services, entertainment uses, offices, and public and semi-public uses. The district also accommodates low intensity employment uses such as light assembly, custom manufacturing, mini-storage, and research and development.

4. ***Office Commercial (OC).*** To provide areas for small-scale medical and professional offices intended to serve the community and remain compatible with adjacent residential areas.

5. ***Mixed-Use (MX).*** To provide areas for a variety of purposes including employment centers, retail and service commercial uses, medical and professional offices, and residential uses at densities of 15 to 25 units per acre. Residential densities in excess of 25 dwelling units per acre may be appropriate in selected locations.

(Ord. No. 5996, § 1, 3-9-26)

11-6-2: LAND USE REGULATIONS

In Table 11-6-2, which follows, the land use regulations for each Commercial and Mixed-Use zoning district are established by letter designations as follows:

- "P" designates use classifications permitted in Commercial Districts.
- "SUP" designates use classifications permitted on approval of a Special Use Permit.

- "CUP" designates use classifications permitted on approval of a Council Use Permit.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit.
- "(x)" a number in parentheses refers to limitation following the table.
- "—" designates a prohibited use.

All activities shall be conducted entirely within an enclosed building with no outside storage or display, unless otherwise specified. Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-6-2: Commercial Districts

Proposed Use	NC	LC	GC	OC	MX	Additional Use Regulations
Residential Use Classifications						
Single Residence - Attached	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P (19, 20)	—	CUP/P (16, 19, 20)	Section 11-31-31, Residential Uses in Commercial Districts. Chapter 81, Adaptive Reuse Permit
Multiple Residence	CUP/P (17, 19, 22)	CUP/P (17, 19, 22)	CUP/P (17, 19, 22)	P (17)	P (21, 22)	
Assisted Living Facility						
Assisted Living Home (5 to 10 residents)	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P (19, 20)	—	CUP/P (16, 19, 20)	Section 11-31-31, Residential Uses in Commercial Districts. Section 11-31-14, Community Residences
Assisted Living Center (greater than 10 residents)	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P	—	CUP/P (22)	Section 11-31-31, Residential Uses in Commercial Districts. Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Boarding House	SUP (19, 20)	SUP (19, 20)	SUP (19, 20)	—	SUP (19, 20)	Section 11-31-31, Residential Uses in Commercial Districts
Community Residence						
Family Community Residence	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P (19, 20)	—	CUP/P (19, 20)	Section 11-31-31 Residential Uses in Commercial Districts. Section 11-31-14, Community Residences
Transitional Community Residence	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P (19/ 20)	—	CUP/P (19, 20)	
Home Occupation	P (23)	P (23)	P (23)	P (23)	P (23)	Section 11-31-33, Home Occupations
Public and Semi-Public Use Classifications						
Clubs and Lodges	P (19, 22)	P (19, 22)	P (19, 22)	—	P (19, 22)	
Community Center	P (19, 22)	P (19, 22)	P (19, 22)	—	P (19, 22)	
Community Gardens	P	P	P	P	P	Section 11-31-10, Community Gardens
Cultural Institutions	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	
Day Care Centers	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	

Table 11-6-2: Commercial Districts						
Proposed Use	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Use Regulations**
Government Offices	P (2)	P	P	P	P (2)	
Hospitals and Clinics						
Clinics	P (3, 19, 20)	P (3, 19, 20)	P (3, 19, 20)	—	P (19, 20)	Section 11-31-15, Hospitals and Clinics
Hospitals	P (19, 20)	P (19, 20)	P (19, 20)	—	—	
Nursing and Convalescent Homes	CUP/P (19, 20)	CUP/P (19, 20)	CUP/P (19, 20)		CUP/P (22)	Section 11-31-31, Residential Uses in Commercial Districts. Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Parks and Recreation Facilities, Public	P	P	P	P	P	
Places of Worship	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	P (19, 22)	Section 11-31-22, Places of Worship
Public Safety Facilities	P	P	P	P	P	
Schools, Colleges, and Trade Schools						
Colleges or Universities, Private	—	P (21, 22)	P (21, 22)	—	P (21, 22)	Section 11-31-24, Schools
Colleges or Universities, Public	P	P	P	P	P	
Commercial Trade Schools, Private	—	P (21, 22)	P (21, 22)	—	P (21, 22)	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	P	P	P	P	
Industrial Trade Schools, Private	—	—	P (21, 22)	—	—	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	P	P	P	P	
K-12, Private	CUP (19, 20)	CUP (19 20)	CUP (19, 20)	CUP (19, 20)	CUP (19, 20)	Section 11-31-24, Schools
K-12, Public	P	P	P	P	P	
Skilled Nursing Facility	CUP/P (19, 22)	CUP/P (19, 22)	CUP/P (19, 22)	—	CUP/P (19, 22)	
Social Service Facilities	CUP (19, 22)	CUP (19, 22)	CUP (19, 22)	—	—	Section 11-31-26, Social Service Facilities
Commercial Use Classifications						
Animal Sales and Services						
Small Animal Day Care	SUP (4)	SUP (4)	P (4)	—	SUP (4, 7)	
Kennels	SUP (4)	SUP (4)	P (4)	—	—	
Pet Stores	P (4)	P (4)	P (4)	—	SUP (4, 7)	
Veterinary Services	P (4)	P (4)	P (4)	P (4)	P (4, 7)	
Artists' Studios	P	P	P	P	P	
Automobile/Vehicle Sales and Services						
Accessory Automobile Rentals	—	SUP	P	—	SUP	
Automobile Rentals	—	SUP	P	—	—	Section 11-31-5, Automobile Rentals; Automobile/Vehicle Sales and Leasing
Automobile/Vehicle Sales and Leasing	—	—	P	—	—	
Automobile/Vehicle Repair, Major	—	—	P	—	—	Section 11-31-6, Automobile/Vehicle Repair; Major and Minor
Automobile/Vehicle Service and Repair, Minor	—	P	P	—	—	
Automobile/Vehicle Washing	SUP	SUP	SUP	—	—	Section 11-31-7, Automobile/Vehicle Washing
Large Vehicle and Equipment Sales, Services, and Rental	—	—	P	—	—	Section 11-31-5, Automobile Rentals; Automobile/Vehicle Sales and Leasing

Table 11-6-2: Commercial Districts						
Proposed Use	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Use Regulations**
Service Station	SUP	SUP	SUP	—	—	Section 11-31-25, Service Stations
With Drive-Thru Facilities	CUP	P	P	—	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Pick-Up Window Facilities	P	P	P	—	—	
Banks and Financial Institutions	P	P	P	P	P	
With Drive-Up ATM/Teller Window	P	P	P	SUP	SUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Banquet and Conference Center	P	P	P	P	P	
Building Materials and Services	—	P (11)	P	—	—	Section 11-31-16 if GFA exceeds 25,000 sq. ft.
Business Services	P	P	P	P	P	
Commercial Entertainment	—	P (19, 22)	P (19, 22)	—	P (19, 22)	
Commercial Recreation						
Small-Scale	—	P	P	—	SUP	
Large-Scale	—	SUP	P	—	—	
Eating and Drinking Establishments						
Bars/Clubs/Lounges	—	P	P	—	P	
Coffee Shops/Cafes	P	P	P	P (5)	P	
Restaurants, Bar and Grill	—	P	P	—	P	
Restaurants, Full Service	P	P	P	—	P	
Restaurants, Limited Service	P	P	P	P (5)	P	
With Drive-Thru Facilities	CUP	P	P	—	SUP	Section 11-31-18, Drive-thru and Pick-Up Window Facilities
With Outdoor Eating Areas	P	P	P	P	P	Section 11-31-19, Outdoor Eating Areas
With Pick-Up Window Facilities	P	P	P	—	P	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Off-track Betting	—	P (25)	P (25)	—	P (25)	
With Live Entertainment	—	P (4, 26)	P (26)	—	P (4, 26)	
Food and Beverage Sales						
Convenience Market	P/SUP (12)	P/SUP (12)	P/SUP (12)	P (5, 13)	P (13)	Section 11-31-11, Convenience Markets
With Drive-Thru Facilities	CUP	P	P	—	SUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Pick-Up Window Facilities	P	P	P	—	P	
General Market	P (14, 31)	P (31)	P (31)	—	P (31)	Section 11-31-16 applies if GFA exceeds 25,000 sq. ft.
With Drive-Thru Facilities	CUP	P	P	—	SUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Pick-Up Window Facilities	P	P	P	—	P	
Funeral Parlors and Mortuaries	—	P (18)	P	—	P (18)	
Accessory Crematorium	—	SUP	P	—	—	
Hotels and Motels	—	P (21, 22)	P (21, 22)	—	P (21, 22)	
Large Commercial Development	—	P (31)	P (31)	—	CUP (7, 31)	Section 11-31-16, Large Commercial Development

Table 11-6-2: Commercial Districts						
Proposed Use	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Use Regulations**
Light Fleet-Based Services	—	—	P	—	—	
Live-Work Unit	SUP (19, 20)	SUP (19, 20)	SUP (19, 20)	—	P (7, 19, 20)	Section 11-31-17, Live Work Units
Maintenance and Repair Services	P	P	P	—	—	
Non-chartered Financial Institutions (Payday Lenders)	—	CUP (10)	CUP (10)	—	—	
Offices						
Business and Professional	P	P	P	P (9)	P	
Medical and Dental	P	P	P	P (9)	P	
Parking, Commercial	—	—	P	—	CUP	
Personal Services	P	P	P	P (5, 9)	P	
With Pick-Up Window Facilities	P	P	P	—	P	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Plant Nurseries and Garden Centers	—	SUP	P	—	P/SUP (6, 7)	
Retail Sales						
General	P (8, 31)	P (31)	P (31)	—	P (31)	
With Pick-Up Window Facilities	P	P	P	—	P	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Pawn Shops	CUP (10)	CUP (10)	CUP (10)	—	—	Section 11-31-21, Pawn Shops
Tattoo and Body Piercing Parlors	—	P	P	—	P	
Employment Use Classifications						
Handicraft/Custom Manufacturing	—	—	P	—	—	
Light Assembly/Cabinetry	—	—	P	—	—	
Research and Development	—	—	P	—	P	
Recycling Facilities						
Reverse Vending Machine	P	P	P	—	P (7)	Section 11-31-23, Recycling and Processing Facilities
Small Indoor Collection Facility	—	SUP	P	—	SUP (7)	
Warehousing and Storage						
Boat and Recreational Vehicle Storage	—	—	CUP	—	—	
Mini-Storage	—	CUP	CUP	—	CUP (7)	
Wholesale	—	—	CUP (31)	—	—	
Transportation, Communication, and Utilities Use Classifications						
Communication Facilities						
Antenna and Transmission Towers	See Chapter 35					
Facilities within Buildings	See Chapter 35					
Transportation Passenger Terminals	P	P	P	P	P	
Utilities, Minor	P	P	P	P	P	
Heliports	—	CUP (24)	CUP (24)	—	CUP (24)	
Specific Accessory Uses and Facilities						
Accessory Dwelling Unit	P (30)	P (30)	P (30)	P (30)	P (30)	Section 11-31-3, Accessory Dwelling Unit
Battery Energy Storage System (BESS)	P (15)	P (15)	P (15)	P (15)	P (15)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities

Table 11-6-2: Commercial Districts						
Proposed Use	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Use Regulations**
Caretakers' Residences	SUP	SUP	SUP	SUP	P	
Data Center	P (1)	P (1)	P (1)	P (1)	P (1)	Section 11-31-36, Data Centers
Garden Center	—	SUP	P		SUP (6, 7)	
Outdoor Display	P	P	P	—	P	Section 11-31-20, Outdoor Display
Outdoor Storage	—	—	P (27)	—	—	Section 11-30-7, Outdoor Storage
Portable Storage Containers	P (28)	P/SUP (28, 29)	P/SUP (28, 29)	P (28)	P (28)	Section 11-30-16, Portable Storage Containers (PSC)
Temporary Outdoor Entertainment	TUP	TUP	TUP	—	TUP	Section 11-31-30, Temporary Uses
Temporary Outdoor Sales	TUP	TUP	TUP	—	TUP	

Notes:

1. Refer to Section 11-31-36(C)(2) for conditions under which a Data Center may qualify as an accessory use.
2. Permitted if occupying less than 5,000 square feet; greater floor area requires approval of an SUP.
3. A CUP is required for plasma centers and substance abuse detoxification and treatment centers; other Clinics are permitted by right.
4. Must be confined to completely enclosed, sound-attenuated facilities.
5. Permitted if located within an office building or other commercial building and occupying no more than 1,500 square feet.
6. Permitted if floor area is no more than 5,000 square feet. Special Use Permit required if floor area is greater than 5,000 square feet.
7. All activities must be conducted entirely within an enclosed building, with no outside storage or display.
8. No individual retail store may exceed an area of 10,000 square feet. No group commercial development shall exceed an aggregate area of 50,000 square feet.
9. May not include Drive-Thru Facilities or Pick-Up Window Facilities.
10. Must be at least 1,200 feet from any use in the same classification, and at least 1,200 feet from any school.
11. Accessory Outdoor Retail Display, limited to display of landscape and building materials only, requires approval of an SUP.
12. SUP is required only if accessory fuel sales are present, otherwise use permitted by right.
13. Accessory fuel sales are not permitted in OC or MX Districts.
14. Maximum size for one store is 10,000 square feet.
15. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an accessory use.
16. Attached Single Residences shall have a minimum density of 15 dwelling units per acre in MX zones.
17. Use permitted with approval of an Adaptive Reuse Permit.
18. Accessory crematories allowed in the LC District with approval of a SUP; accessory crematories not permitted in the MX District.
19. Use not permitted when the property is subject to the AOA 1 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
20. Use not permitted when the property is subject to the AOA 2 Overflight Area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
21. Use permitted with approval of a CUP when the property is subject to the AOA 1 Overflight Area. See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
22. Use permitted with the approval of a CUP when the property is subject to the AOA 2 Overflight Area, See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.
23. Home Occupations permitted as ancillary activity where and when a residence use is authorized.
24. Heliports in Commercial Districts shall be set a minimum of 2 full stories above the natural grade, unless associated with a hospital.
25. Subject to approval by the City Council and the State Racing Commission of a Tele-track Betting Establishment Permit per AAC R19-2-401 and following.
26. Permitted only when accessory to an Eating or Drinking Establishment.
27. Permitted only if all activities pertaining to the manufacturing or processing of the products are conducted entirely within an enclosed building. Accessory Outdoor Storage permitted only if confined to the rear one-half of the lot.
28. Temporary use of Portable Storage Containers during construction is permitted in accordance with Section 11-30-16.

Table 11-6-2: Commercial Districts						
Proposed Use	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Use Regulations**
29. Temporary or periodic commercial storage is permitted with a SUP in accordance with Section 11-30-16.						
30. Permitted if an existing non-conforming residential use is located on the lot.						
31. All loading and unloading of goods whether for delivery, storage, sale or otherwise shall occur within truck dock, loading, and service areas.						

(Ord. No. 5996, § 1, 3-9-26)

11-6-3: DEVELOPMENT STANDARDS FOR THE COMMERCIAL AND MIXED-USE DISTRICTS

A. **Zoning District Standards.** Table 11-6-3(A) prescribes the development standards for the commercial districts. The "Additional Standards" column lists additional standards that apply in some or all commercial districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-6-3.A: Development Standards - Commercial Districts						
Standard	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Standards**
Lot and Density Standards						
Minimum Lot Area (sq. ft.)	5,000	10,000	5,000	10,000	5,000	
Minimum Lot Width (ft.)	50	100	50	100	50	
Minimum Lot Depth (ft.)	100	100	100	100	100	
Maximum Lot Coverage (% of lot)	80%	80%	80%	80%	80%	
Building Form and Location						
Maximum Height (ft.)	30	30	30	30	30	
Minimum Setback Along Property Lines or Building and Parking Areas (ft.)						
Front and Street-Facing Side:	Varies by street classification identified in the Mesa Transportation Plan: Arterial Street: 15 ft. Collector Street: 15 ft. Local Street: 20 ft. Freeways: 30 ft. for buildings; 15 ft. for parking structures/fields					Setbacks shall be landscaped according to Ch. 33, Landscaping.
Interior Side and Rear: Adjacent to RS District:						
1-story building	25	25	25	25	15	Setbacks shall be landscaped according to Ch. 33, Landscaping.
2-story building	50	50	50	50	25	
3-story building	75	75	75	75	35	
Interior Side and Rear: Adjacent to RM District:						
1st story	20	20	20	20	15	Setbacks shall be landscaped according to Ch. 33, Landscaping.
Each additional story	15	15	15	15	10	
Interior Side and Rear: Adjacent to Non-residential District: Each story	15	15	15	15	10	
Setback at Street Intersections for Buildings and Patios (covered or uncovered) - Minimum radius (ft.)	Arterial with Arterial: 25 ft. Arterial with Collector: 25 ft. Collector with Collector: 15 ft.					
Minimum Separation between Buildings on Same Lot (ft.)						
Building height up to 20 ft.	25	25	25	25	15	
Building height between 20 and 40 ft.	30	30	30	30	15	
Building height over 40 ft.	35	35	35	35	15	
Additional Standards for Residential Development						
Minimum Residential Density (dwelling units/net acre)	NA	NA	NA	NA	15	Section 11-31-31, Residential Uses in Commercial Districts
Maximum Residential Density (dwelling units/net acre)	15	25	25	25	25	

Table 11-6-3.A: Development Standards - Commercial Districts						
Standard	**NC**	**LC**	**GC**	**OC**	**MX**	**Additional Standards**
Minimum Outdoor Living Area (sq. ft./unit)	100	100	100	100	100	Section 11-5-5(B)(6), Standards for Required Open Space Section 11-5-5(B)(7), Additional Standards for Private Open Space

(Ord. No. 5996, § 1, 3-9-26)

11-6-4: SITE PLANNING AND DESIGN STANDARDS FOR THE COMMERCIAL AND MIXED-USE DISTRICTS

A. **Character and Image.**

1. ***Shared Characteristics.***

a. In multiple building developments, each individual building shall include predominant characteristics shared by each building so that the buildings within the development appear to be part of a cohesive, planned area, yet are not monotonous in design.

b. Compatibility shall be achieved through techniques such as, the replication of roof lines, the use of similar proportions in building mass and outdoor spaces, similar relationships to the street, similar window and door patterns, or the use of building materials that have color shades and textures that are similar to or complimentary to those existing on, or in the immediate area of, the subject property.

2. ***No Established Theme or Stand-alone Development.*** Where there is no established or consistent neighborhood or area character or unifying theme, or where the existing character is not desirable to continue, because it does not reflect a design theme consistent with the development standards as described in this Chapter, the proposed development shall be designed to establish character and a sense of place through the strategic use of architectural elements, building form, materials, landscaping, lighting, etc. which creates a cohesive theme or style for future developments and buildings within the area to follow.

3. ***Corporate Architecture.*** Where the proposed architecture of a building or structure is the result of a franchise style, prototypical or franchise architectural design, including materials and color, shall be modified if necessary to meet these development standards and set a standard, or contribute to a high-level of quality for future developments and buildings within the area.

4. ***Pad Developments.*** Freestanding pad development site design shall be complementary to the surrounding center in terms of building scale, materials, colors, and other architectural details.

B. **Massing and Scale.** The design of buildings shall avoid the appearance of a single, large, dominant building mass by using design techniques that include stepping back portions of the building facade, breaking up the mass into smaller elements and/or using material changes.

1. ***Wall Articulation.*** Exterior building walls shall be subdivided and proportioned to human scale, using projections, overhangs and recesses in order to add architectural interest and variety and to avoid long interrupted wall planes.

a. *Publicly Visible Façades.* Street-facing and other publicly visible façades (including those visible from parking lots, open space, or adjoining private properties), shall provide articulation for every 50 linear feet of wall length as follows:

i. One (1) horizontal projection or recess of at least four (4) feet in depth; or

ii. Two (2) horizontal projections or recesses, at least 2.5 feet in depth each.

b. *Non-publicly Visible Façades.* Side or rear façades that are not publicly visible shall provide articulation for every 50 linear feet of wall length by any combination of the following:

i. One (1) horizontal projection or recess of at least four (4) feet in depth, or two (2) horizontal projections or recesses, at least 2.5 feet in depth each;

ii. Change in color accompanied by a distinct change in texture, pattern, or coursing;

iii. Windows or fenestration (false windows and door openings) defined by frames, sills, or lintels;

iv. Trellises with climbing plants; or

v. Projecting fins or louvres extending at least six (6) inches from the wall plane.

c. *Building Projections into Setbacks.* Appropriate separation shall be maintained between buildings on adjacent properties to allow for light, air, and circulation while recognizing the need to allow minor projections that improve the effectiveness of environmental or aesthetic features.

i. Awnings, eaves, overhangs, and light shelves may encroach up to three (3) feet into any required yard but shall not be closer than two (2) feet to any property line.

ii. Building projections shall be no closer than 15 feet to any property line adjacent to sites located in the RS and RSL Districts.

2. ***Roof Articulation.*** Roof articulation is required to provide architectural interest at the skyline and accentuate appropriate building elements.

a. *Varied Roof Form or Height.* Roof forms shall be integrated into the building design and vary over different parts of the building. Each building shall provide at least two (2) changes in height or roof form, achieved through changes in pitch, plane, and orientation.

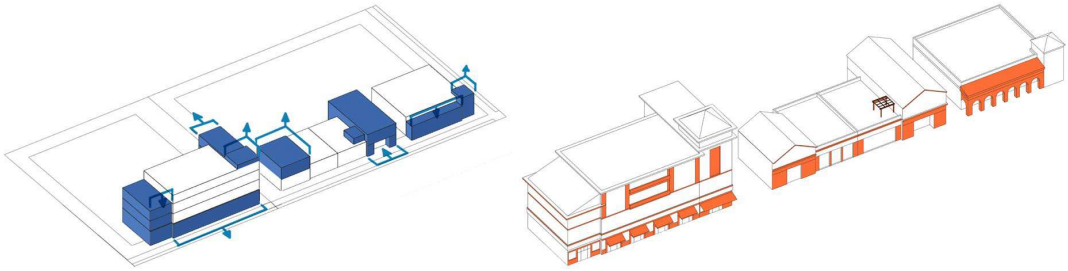
b. *Flat Roofs.* Flat roofs or façades with a horizontal eave, fascia, or parapet, in excess of one hundred feet in length, shall provide vertical modulation that is the greater of either:

i. Two (2) feet; or

ii. One-tenth (1/10) the height of the supporting wall height, not to exceed one-third (⅓) of the wall height.

c. *Parapet Detailing.* All parapets must have detailing such as cornices, moldings, trim, or variations in brick coursing.

d. *Height Transitions in Multi-Building Developments.* Multiple building developments shall be configured to locate the tallest and largest structures within the core of the site and provide a gradual decrease in building height and mass towards adjacent residential land uses.



Building form and facades shall provide visual variety and relief to avoid a large-scale, bulky or box-like appearance.

FIGURE 11-6-4.B(1): MASSING & SCALE

C. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for Mesa's climate.

1. ***Primary Exterior Building Materials.***

a. Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

b. Variations in the color, finish, or texture of a material (e.g. form-board concrete, smooth stucco vs sand stucco, etc.) shall not be considered separate or different materials for the purpose of meeting the material requirements of this section.

c. Glazing may be considered a primary exterior building material only when it is installed as an architectural glazing system (e.g., curtainwall, structural glass wall) and comprises more than 30% of an individual building façade. Standard window systems, storefront glazing, and other non-architectural fenestration shall not qualify as a primary building material for the purposes of this requirement.

2. ***Minimum Use of Primary Materials.***

a. *Publicly Visible Façades.*

i. Each publicly visible building façade (including those visible from parking lots, open space, or adjoining private properties) shall incorporate at least two (2) different primary building materials.

ii. Primary exterior materials shall cover no less than 75% of each building façade.

iii. Each primary building material used to satisfy Subsection (2)(a)(i) above shall cover at least 25% of that façade.

b. *Non-publicly Visible Façades.* Side or rear façades that are not publicly visible shall incorporate a primary building material(s) on at least 50% of the façade.

c. *Primary Material Calculation.* Primary building material coverage shall be calculated by measuring the area of each façade, excluding non-architectural fenestration, storefront systems, pedestrian and vehicular openings, mechanical equipment, and signage. The percentage of each primary building material shall be calculated by dividing the area covered by that material by the resulting façade area.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 25% of a building façade. Pre-engineered metal buildings are not allowed in the commercial and mixed-use districts.

4. ***Change in Materials.***

a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections), and shall not occur mid-field on a flat wall surface.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

5. ***Roof Materials.*** All visible pitched roofs shall consist of metal seam, clay tile, concrete tile, or a similar grade of roofing material.

D. **Base and Top Treatments.** All façades shall have:

1. A recognizable "base" consisting of (but not limited to):

a. Thicker walls, ledges or sills;

b. Integrally textured materials such as stone or other masonry;

c. Integrally colored and patterned materials such as smooth finished stone or tile; or

d. Lighter or darker colored materials, mullions or panels; or planters.

2. A recognizable "top" consisting of (but not limited to):

a. Cornice treatments, other than just colored "stripes" or "bands," with integrally textured materials such as stone or other masonry or differently colored materials;

b. Sloping roof with overhangs and brackets; or

c. Stepped parapets.

E. **All Sided Architecture.** Architectural detailing shall be applied to all sides of a building. While detailing may vary based on orientation and context; all façades visible from a street, parking lot, or open space shall incorporate a level of architectural quality, materials, articulation, and detailing equivalent to the primary façade.

F. **Colors.**

1. Buildings larger than 10,000 square feet shall use two (2) exterior colors on every façade that is publicly visible.

2. Predominant façade colors shall be low reflectance, subtle, neutral or earth tone colors.

3. The use of high-intensity colors as the predominant building color, such as black or fluorescent colors, are prohibited.

4. Building trim and accent areas may feature brighter colors. Accent colors shall cover no more than five percent (5%) of street-facing façades.

5. Changes in building color shall occur at the inside corners where wall planes change, or be separated by a façade element or architectural detail.

G. **Building Entrances.** Primary building entrances shall be clearly defined, shaded, and inviting. The architectural details of building entrances shall be integrated with the overall building design in terms of materials, scale, proportion, and design elements and are appropriately scaled for people.

1. ***Entry Definition.*** Entries shall have a roofed projection or recess with a minimum depth of five (5) feet and minimum horizontal area of 50 square feet.

2. ***Orientation.*** Primary entries shall face the street or primary pedestrian areas.

H. **Access, Circulation, and Parking.**

1. ***Parking Area Design.*** Parking areas shall be located to the side or rear of buildings; except for Large Commercial Developments which sure subject to the requirements of Section 11-31-16 of the Zoning Ordinance.

2. ***Location of Parking Spaces.*** In commercial and mixed-use projects, a minimum of 50% of the required parking spaces shall be located within 300 feet of the building served.

3. ***Screening of Parking Areas.*** Parking areas located between a building and street shall be screened with a 2.5- to 3.5-foot-high berm or screening wall.

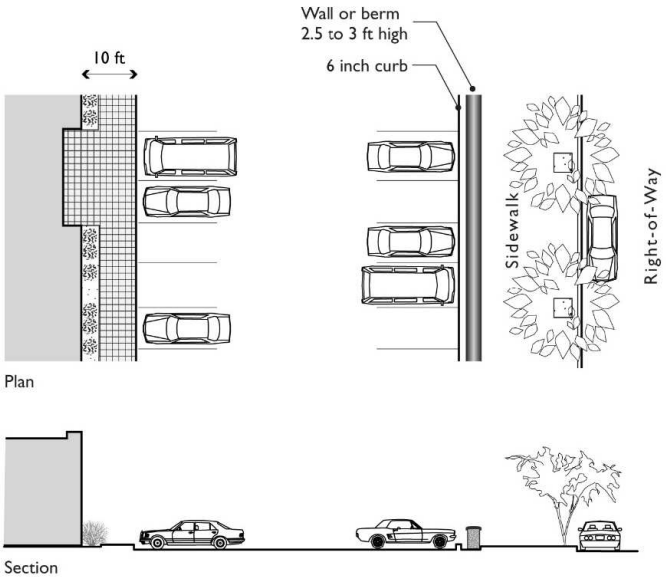


FIGURE 11-6-4.H(1): SCREENING OF PARKING AREA

(Ord. No. 5996, § 1, 3-9-26)

11-6-5: ALTERNATIVE COMPLIANCE

A. **Purpose and Applicability.**

1. ***Purpose.*** Alternative Compliance may be used to satisfy the Site Planning and Design Standards in Section 11-6-4 when conditions may exist where strict compliance is impractical or impossible or when alternative approaches achieve equivalent or superior design outcomes through innovative site planning, architectural solutions, or other means.

2. ***Applicability.*** Alternative Compliance may be requested for any application subject to the Site Planning and Design Standards of Section 11-6-4. It may not be used to alter development standards or requirements of other sections of this Zoning Ordinance, and it shall not result in an increase in intensity or lot coverage.

B. **Application.** Requests for Alternative Compliance may be accepted for any application to which Site Planning and Design Standards apply. A written request must be provided in conjunction with the applicable land use application describing the following:

1. The code section(s) and development standard(s) for which Alternative Compliance is being requested;

2. The proposed alternative or offset(s), including any numeric modification(s) from the development standard;

3. An explanation on how the proposal meets the intent of the applicable development standard(s), the applicable General Plan Placetype, and any other applicable Sub-area Plan;

4. An explanation on how the alternative is equivalent or superior to the required development standard, or how the proposed offset(s) produce superior design; and

5. A statement of how the proposal meets the approval criteria in Subsection C below.

C. **Approval Criteria.** The review authority may approve Alternative Compliance only upon finding that the request meets all of the following:

1. The alternative does not create adverse impacts on safety, access, visibility, glare, privacy, noise, drainage, heat island effect, and does not reduce pedestrian comfort or accessibility.

2. The proposed alternative or tradeoff is the minimum necessary to achieve the intent while maintaining overall compliance with all other applicable standards.

3. The proposal either:

a. Provides equivalent or superior quality and functionality; or

b. Provides offsetting public benefits (e.g., improved streetscape, enhanced shade/canopy, open space, sustainability features).

(Ord. No. 5996, § 1, 3-9-26)

CHAPTER 7 EMPLOYMENT DISTRICTS*

11-7-1: PURPOSE

A. **General Purpose of Employment Districts.** The purposes of the Employment Districts are to:

1. Designate land for industrial, office, and research and development uses to provide a range of employment opportunities in Mesa.

2. Provide for the appropriate location of businesses that may have the potential to generate off-site impacts, while providing compatibility in use and form.

3. Provide appropriate buffers between employment and residential uses to preserve both employment feasibility and residential quality.

4. Provide diverse options for types of employment-oriented areas, ranging from landscaped sites in campus-like settings, to mixed-use commercial and industrial areas, to industrial-only areas, to sites that are still well designed, but convey a minimalist or utilitarian approach, the entire range of which may contribute to providing the appropriate context for a successful business environment.

***Editor's note**—Ord. No. 5996, § 1, adopted March 9, 2026, repealed the former Ch. 7, §§ 11-7-1—11-7-4, and enacted a new Ch. 7 as set out herein. The former Ch. 7 pertained to similar subject matter. See Code Comparative Table for complete history.

B. **Specific Purposes of Each District.**

1. ***Planned Employment Park (PEP).*** To provide areas where professional and medical office parks, research and development facilities, and light manufacturing in a campus setting with ancillary restaurants, retail and other supportive establishments.

2. ***Light Industrial (LI).*** To provide areas for limited manufacturing and processing, wholesaling, research, warehousing, and distribution activities take place within enclosed buildings, with restricted accessory outdoor storage as needed to support the primary uses. Light Industrial areas can be used to buffer General Industrial uses from other less intense uses. This district also provides for a full range of commercial activities, generally on a limited scale, including high-impact commercial uses, outdoor display and outdoor sale. Individual developments include well-designed buildings on sites that may or may not have campus-like settings, and areas visible to the general public include well-designed landscape areas.

3. ***General Industrial (GI).*** To provide areas for manufacturing, processing, assembly, research, wholesale, and storage, and similar activities that require separation from residential uses due to noise, vibration, use of hazardous materials, or other characteristics. These activities principally take place indoors, but may also include some outdoor activities. This district also permits a full range of commercial activities.

4. ***Heavy Industrial (HI).*** To provide areas that are set aside principally for manufacturing, assembly, wholesaling, distribution and storage activities, with limited amounts of moderately scaled commercial activities provided only to the extent necessary to support industrial related activities. HI activities may take place indoors or outdoors. Land uses in this district include those activities that may adversely affect surrounding uses because of the aftereffects of the manufacturing, assembly and/or production process.

(Ord. No. 5996, § 1, 3-9-26)

11-7-2: LAND USE REGULATIONS

In Table 11-7-2, which follows, the land use regulations for each Employment Zoning District are established by letter designations as follows:

- "P" designates use classifications permitted.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit.
- "SUP" designates use classifications permitted on approval of a Special Use Permit.
- "CUP" designates use classifications permitted on approval of a Council Use Permit.
- "(x)" a number in parentheses refers to limitation following the table.

"SE" designates use classifications that are not allowed by right but are permitted if approved through a particular review procedure.

- "—" designates a prohibited use.

Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-7-2: Employment Districts					
Proposed Use	**PEP**	**LI**	**GI**	**HI**	**Additional Use Regulations**
Residential Use Classifications					
Correctional Transitional Housing Facility (CTHF)	—	CUP (10, 11)	CUP (10, 11)	—	Section 11-31-12, Correctional Transitional Housing Facilities
Multiple Residence	P (3)	P (3)	P (3)	P (3)	Chapter 81, Adaptive Reuse Permit
Public and Semi-Public Use Classifications					
Clubs and Lodges	P (10, 13)	P (10, 13)	—	—	
Cultural Institutions	CUP (10, 13)	SUP (10, 13)	SUP (10, 13)	—	
Day Care Centers	SUP (10, 11)	P (10, 11)	SUP (10, 11)	SUP (10, 11)	
Government Offices	P	P	P	P	
Hospitals and Clinics					
Clinics	SUP (10, 11)	SUP (10, 11)	SUP (10, 11)	—	Section 11-31-15, Hospitals and Clinics
Hospitals	P (10, 11)	P (10, 11)	—	—	
Places of Worship	P (10, 13)	P (10, 13)	—	—	Section 11-31-22, Places of Worship
Public Safety Facilities	P	P	P	P	
Public Maintenance Facilities	P	P	P	P	
Schools, Colleges, and Trade Schools					
Colleges or Universities, Private	P (12, 13)	P (12, 13)	—	—	Section 11-31-24, Schools
Colleges or Universities, Public	P	P	P	P	
Commercial Trade Schools, Private	P (12, 13)	P (12, 13)	P (12, 13)	—	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	P	P	P	
Industrial Trade Schools, Private	P (12, 13)	P (12, 13)	P (12, 13)	—	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	P	P	P	
K-12, Private	CUP (10, 11)	CUP (10, 11)	CUP (10, 11)	—	Section 11-31-24, Schools
K-12, Public	P	P	P	P	
Social Service Facilities	—	CUP (10, 13)	—	—	Section 11-31-26, Social Service Facilities
Commercial Use Classifications					
Animal Sales and Services					
Kennels	—	P	P	—	
Pet Stores	—	P	P	—	
Veterinary Services	P	P	P	—	
Artists' Studios	P	P	P	P/SUP (6)	
Automobile/Vehicle Sales and Services					
Automobile Rentals	SUP	P	P	—	Section 11-31-5, Automobile Rentals; Automobile/Vehicle Sales and Leasing
Automobile/Vehicle Sales and Leasing	—	P	P	—	
Automobile/Vehicle Repair, Major	—	P	P	—	Section 11-31-6, Automobile/Vehicle Repair; Major and Minor
Automobile/Vehicle Service and Repair, Minor	—	P	P	—	
Automobile/Vehicle Washing	SUP	P	P	—	Section 11-31-7, Automobile/Vehicle Washing
Large Vehicle and Equipment Sales, Services, and Rental	—	P	P	—	Section 11-31-5, Automobile Rentals; Automobile/Vehicle Sales and Leasing
Service Station	SUP	SUP	SUP	—	Section 11-31-25, Service Stations

Table 11-7-2: Employment Districts					
Proposed Use	**PEP**	**LI**	**GI**	**HI**	**Additional Use Regulations**
With Drive-Thru Facilities	CUP	CUP	CUP	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Pick-Up Window Facilities	P	P	P	—	
Towing and Impound	—	SUP	SUP	CUP	
Banks and Financial Institutions	P	P	P	—	
With Drive-Up ATM/Teller Window	P	P	P	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Banquet and Conference Centers	SUP	SUP	—	—	
Building Materials and Services	—	P	P	—	
Business Services	P	P	P	P/SUP (6)	
Commercial Recreation					
Small-Scale	P	P	—	—	
Large-Scale	SUP	P	—	—	
Eating and Drinking Establishments					
Bars/Clubs/Lounges	P	P	P	—	
Coffee Shops/Cafes	P	P	P	P/SUP (6)	
Restaurants, Bar and Grill	P	P	P	P/SUP (6)	
Restaurants, Full-Service	P	P	P	P/SUP (6)	
Restaurants, Limited Service	P	P	P	P/SUP (6)	
With Drive-Thru Facilities	CUP	CUP	CUP	CUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Live Entertainment	P	P	—	—	
With Off-track Betting	P (15, 16)	P (15, 16)	—	—	
With Outdoor Eating Areas	P	P	P	P	Section 11-31-19, Outdoor Eating Areas
With Pick-Up Window Facilities	P	P	P	P	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Food and Beverage Sales					
Convenience Market	P/SUP (1)	P (1, 7)	P (1, 7)	P/SUP (6)	Section 11-31-11, Convenience Markets
With Drive-Thru Facilities	CUP	CUP	CUP	CUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Pick-Up Window Facilities	P	P	P	P	
Funeral Parlors and Mortuaries	SUP	P	P	P	
Hotels and Motels	P (12, 13)	P (12, 13)	P (12, 13)	—	
Laboratories	P	P	P	P	
Large Commercial Development	P (8, 21)	CUP (21)	—	—	Section 11-31-16, Large Commercial Development
Light Fleet-Based Services	—	P	P	P	
Live-Work Units	SUP (10, 11)	SUP (10, 11)	SUP (10, 11)	—	Section 11-31-17, Live Work Units
Maintenance and Repair Services	—	P	P	—	
Marijuana Facilities					

Table 11-7-2: Employment Districts					
Proposed Use	**PEP**	**LI**	**GI**	**HI**	**Additional Use Regulations**
Dual Licensee Facilities	—	P	P	—	Section 11-31-34, Marijuana Facilities
Medical Marijuana Dispensaries	—	P	P	—	
Marijuana Cultivation Facilities and Marijuana Infusion Facilities (Accessory to Medical Marijuana Dispensaries or Dual Licensee Facilities)	—	P	P	—	
Marijuana Cultivation Facilities	—	P	P	—	
Marijuana Infusion Facilities	—	P	P	—	
Offices					
Business and Professional	P	P	P	—	
Medical and Dental	P	P	P	—	
Parking, Commercial	—	P	P	P	
Personal Services	P (2)	P	P	P/SUP (6)	
With Pick-Up Window Facilities	P (2)	P	P	P (6)	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Plant Nurseries and Garden Centers	SUP	P	P	SUP	
Retail Sales					
General	P (21)	P (21)	P (21)	—	
With Pick-Up Window Facilities	P	P	P	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Tattoo and Body Piercing Parlors	—	P	P	—	
Employment and Industrial Use Classifications					
Battery Energy Storage System (BESS) Facility	—	—	SE (19)	SE (19)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities
Cement Plants	—	—	—	P	
Data Center	—	—	SE (19)	SE (19)	Section 11-31-36, Data Centers
Handicraft/Custom Manufacturing	P (4)	P (5)	P	P	
Hazardous Waste Facility	—	—	—	CUP	
Hazardous Waste Disposal Facility	—	—	—	—	
Incineration of Garbage or Organic Matter	—	—	—	CUP	
Light Assembly/Cabinetry	P (4)	P (5)	P	P	
Manufacturing, General	—	P (5)	P	P	
Manufacturing, Limited	P (4)	P (5)	P	P	
Meat Slaughterhouse or Packing Plant	—	—	—	P	
Metal Refining, Casting or Extrusion	—	—	CUP	P	
Metal Smelting, Industrial	—	—	—	P	
Oil Refinery/Petroleum Distillation	—	—	—	CUP	
Research and Development	P (4)	P (5)	P	P	
Recycling Facilities					
Reverse Vending Machines	SUP	P	P	—	Section 11-31-23, Recycling and Processing Facilities
Small Indoor Collection Facilities	SUP	P	P	—	
Large Collection Facilities	—	CUP	SUP	P	
Processing Facilities	—	—	CUP	P	
Salvage and Wrecking	—	—	CUP	SUP	
Tanneries	—	—	—	P	

Table 11-7-2: Employment Districts					
Proposed Use	**PEP**	**LI**	**GI**	**HI**	**Additional Use Regulations**
Warehousing and Storage					
Boat and Recreational Vehicle Storage	—	CUP	CUP	CUP	
Contractors' Yards	—	P (9)	P (9)	P (9)	
Indoor Warehousing and Storage	P	P	P	P	
Outdoor Storage	—	—	—	P	Section 11-30-7, Outdoor Storage
Mini-Storage	CUP	CUP	CUP	—	
Wholesale	P	P	P	P	
Airport Land Use Classifications					
Aircraft Refueling Stations	—	P	—	—	
Aircraft Light Maintenance	—	P	—	—	
Airport Transit Station	—	P	—	—	
Airport Related Long-term Parking Lots	—	P	—	—	
Heliports	SUP (14)	SUP (14)	SUP (14)	SUP (14)	
Transportation, Communication, and Utilities Use Classifications					
Communication Facilities					
Antenna and Transmission Towers	See Chapter 35				
Facilities within Buildings					
Transportation Facilities					
Freight/Truck Terminals and Warehouses	—	P	P	P	
Transportation Passenger Terminals	P	P	P	P	
Utility Classifications					
Solar Farms	SUP	SUP	P	P	Section 11-30-15, Solar Panels and Other Energy Production Facilities
Utilities, Major	—	CUP	CUP	CUP	
Utilities, Minor	P	P	P	P	
Agricultural and Extractive Use Classification					
Mining and Quarrying	—	—	—	P	
Specific Accessory Uses and Facilities					
Accessory Dwelling Unit	P (18)	P (18)	P (18)	P (18)	Section 11-31-3, Accessory Dwelling Unit
Battery Energy Storage System (BESS)	P (21)	P (21)	P (21)	P (21)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities
Caretakers' Residences	—	P (10, 11)	P (10, 11)	P (10, 11)	
Data Center	P (20)	P (20)	P (20)	P (20)	Section 11-31-36, Data Centers
Outdoor Display	—	P	P	P	Section 11-31-20, Outdoor Display
Outdoor Storage	—	P (5)	P	P	Section 11-30-7, Outdoor Storage
Portable Storage Containers	SUP (17)	P/SUP (17)	P	P	Section 11-30-16, Portable Storage Containers (PSC)
Temporary Outdoor Entertainment	TUP	TUP	TUP	TUP	Section 11-31-30, Temporary uses
Temporary Outdoor Sales	TUP	TUP	TUP	—	
Notes:					
1. Permitted if located within an office building or other commercial building and occupying no more than 1,500 square feet, and Accessory Fuel Sales are not present.					

Table 11-7-2: Employment Districts					
Proposed Use	**PEP**	**LI**	**GI**	**HI**	**Additional Use Regulations**
2. Permitted if floor area is no more than 10,000 square feet.					
3. Use permitted with approval of an Adaptive Reuse Permit.					
4. Permitted if all activities pertaining to the manufacturing or processing of the products are conducted entirely within an enclosed building, with no outside storage or display.					
5. Permitted only if all activities pertaining to the manufacturing or processing of the products are conducted entirely within an enclosed building. Accessory outdoor storage permitted only if confined to the rear one-half of the lot.					
6. Permitted if floor area is no more than 1,500 square feet. SUP required if greater than 1,500 square feet.					
7. Granting of a SUP is required if Accessory Fuel Sales are present.					
8. Permitted only if floor area is no more than 50,000 square feet.					
9. Permitted only in the rear half of a lot and if fully screened by a minimum 8-foot high masonry screen wall composed of masonry blocks utilizing varying colors and textures arranged in an attractive design.					
10. Use not permitted when the property is subject to the AOA 1 overflight area. See Section 11-19-2, Runway Protection Zones and Airport Overflight Area.					
11. Use not permitted when the property is subject to the AOA 2 overflight area. See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.					
12. Use permitted with the approval of a CUP when the property is subject to the AOA 1 overflight area. See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.					
13. Use permitted with the approval of a CUP when the property is subject to the AOA 2 overflight area. See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.					
14. Heliports in Employment Districts shall be set a minimum of 2 full stories above the natural grade, unless associated with a hospital.					
15. Subject to approval by the City Council and the State Racing Commission of a Tele-track Betting Establishment Permit per AAC R19-2-401 and following.					
16. Permitted only when accessory to an Eating or Drinking Establishment.					
17. Temporary or periodic use of portable storage containers is permitted with a SUP in accordance with Section 11-30-16.					
18. Permitted if an existing non-conforming residential use is located on the lot.					
19. May be permitted only if specifically authorized by City Council at the time of approval of a Planned Area Development Overlay (PAD) District.					
20. Refer to Section 11-31-36(C)(2) for conditions under which a Data Center may qualify as an accessory use.					
21. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an accessory use.					
22. All loading and unloading of goods whether for delivery, storage, sale or otherwise shall occur within truck docks, loading, and service areas.					

(Ord. No. 5996, § 1, 3-9-26)

11-7-3: DEVELOPMENT STANDARDS FOR THE EMPLOYMENT DISTRICTS

A. **Zoning District Standards.** Table 11-7-3 prescribes the development standards for the Employment Districts. The "Additional Standards" column lists additional standards that apply in some or all Employment Districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-7-3: Development Standards - Employment Districts					
Standard	**PEP**	**LI**	**GI**	**HI**	**Additional Standards**
Lot and Density Standards					
Minimum Site Area (acre)	2.5	1.0	1.0	1.0	
Minimum Lot Width (ft.)	100	100	100	100	
Minimum Lot Depth (ft.)	100	100	100	100	
Maximum Lot Coverage (% of lot)	90%	90%	90%	90%	
Building Form and Location					
Maximum Height (ft.)	40	40	50	50	

Table 11-7-3: Development Standards - Employment Districts					
Standard	**PEP**	**LI**	**GI**	**HI**	**Additional Standards**
Minimum Setback (ft.)					
Front and Street-Facing Side	Varies by street classification identified in the Mesa Transportation Plan: Arterial Street: 15 ft. Collector Street: 20 ft. Local Street: 20 ft. Freeways: 30 ft. for buildings; 15 ft. for parking structures/fields				Setbacks shall be landscaped according to Ch. 33, Landscaping
Interior Side and Rear: Adjacent to AG, DR, RS, RSL or RM Districts	1 ft. of setback for each foot of building height with minimum 20 ft. setback.				
Interior Side and Rear: Adjacent to Employment Districts	15 ft.	15 ft.	15 ft.	15 ft.	
Minimum Separation between Buildings on Same Lot (ft.)					
Building height up to 20 ft.	25	N/A	N/A	N/A	
Building height between 20 and 40 ft.	30	N/A	N/A	N/A	
Building height over 40 ft.	35	N/A	N/A	N/A	

(Ord. No. 5996, § 1, 3-9-26)

11-7-4: SITE PLANNING AND DESIGN STANDARDS FOR THE EMPLOYMENT DISTRICTS

A. **Character and Image.**

1. ***Shared Characteristics.***

   a. In multiple building developments, each individual building shall include predominant characteristics shared by each building so that the buildings within the development appear to be part of a cohesive, planned area, yet are not monotonous in design.

   b. Compatibility shall be achieved through techniques such as, the replication of roof lines, the use of similar proportions in building mass and outdoor spaces, similar relationships to the street, similar window and door patterns, or the use of building materials that have color shades and textures that are similar to or complimentary to those existing on, or in the immediate area of, the subject property.

2. ***No Established Theme or Stand-alone Development.*** Where there is no established or consistent neighborhood or area character or unifying theme, or where the existing character is not desirable to continue, because it does not reflect a design theme consistent with the development standards as described in this Chapter, the proposed development shall be designed to establish character and a sense of place through the strategic use of architectural elements, building form, materials, landscaping, lighting etc. which creates a cohesive theme or style for future developments and buildings within the area to follow.

3. ***Corporate Architecture.*** Where the proposed architecture of a building or structure is the result of a franchise style, prototypical or franchise architectural design, including materials and color, shall be modified if necessary to meet these development standards and set a standard, or contribute to a high-level of quality for future developments and buildings within the area.

B. **Employee and Visitor Amenities.** Development within the Employment District shall provide common open space and amenities for the useful enjoyment of employees and visitors to the site. Common open space shall be located adjacent to buildings and be furnished with eating areas, site furniture (such as benches, tables, waste receptacles, planters), or other amenities.

1. Buildings 30,000 square feet or larger, shall provide common open space at a rate of 1% per building gross floor area (GFA). A collection of smaller buildings linked by common walls is considered one (1) building.

2. Multiple areas of common open space are encouraged; however, the minimum size of any one (1) common open space shall be 300 square feet with a minimum dimension of 15 feet in any direction.

3. At least 50% of common open space must be open to the sky.

4. At least 75% of the open space area must be landscaped and maintain live plant material if the area is not otherwise used as active recreation facilities.

C. **Massing and Scale.** Buildings shall contain varied massing and architectural elements and techniques shall be utilized to reduce the apparent massing and scale of buildings, provide shading, and define different uses and activities in the buildings.

1. ***Façade Articulation.*** Exterior building walls shall be subdivided and proportioned to human scale, using projections, overhangs and recesses in order to add architectural interest and variety and to avoid long, uninterrupted wall planes.

a. *Publicly Visible Façades.* Street-facing and publicly visible façades (viewed from right-of-way or private property), shall have at least one (1) horizontal projection or recess of at least four (4) feet in depth, or two (2) projections or recesses of at least 2.5 feet in depth, for every 50 horizontal feet of wall.

b. *Non-publicly Visible Façades.* For side or rear walls not publicly visible from right-of-way or private property, articulation may be provided by any combination of the following for every 50 horizontal feet of wall:

i. One (1) horizontal projection or recess of at least four (4) feet in depth, or two (2) projections or recesses of at least 2.5 feet in depth;

ii. Change in color accompanied by a distinct change in texture, pattern, or coursing;

iii. Windows or fenestration (false windows and door openings) defined by frames, sills, or lintels;

iv. Trellises with climbing plants; or

v. Projecting fins or louvres extending at least four (4) inches from the wall plane.

2. ***Building Projections into Setbacks.*** Appropriate separation shall be maintained between buildings on adjacent properties to allow for light, air, and circulation while recognizing the need to allow minor projections that improve the effectiveness of environmental or aesthetic features.

a. Awnings, eaves, overhangs, light shelves and basement window wells may encroach up to three (3) feet into any required setback, but shall not be closer than two (2) feet to any property line.

b. Building projections shall be no closer than 15 feet to any property line adjacent to sites located in the RS and RSL Districts.

3. ***Roof Articulation.*** Roof articulation is required to provide architectural interest at the skyline and accentuate appropriate building elements.

a. *Varied Roof Form or Height.* Roof forms shall be integrated into the building design and vary over different parts of the building. Each building shall provide at least two (2) changes in height or roof form, achieved through changes in pitch, plane, and orientation.

b. *Flat Roofs.* Flat roofs or façades with a horizontal eave, fascia, or parapet, in excess of 100 feet in length, shall provide vertical modulation that is the greater of either:

i. Two (2) feet; or

ii. One-tenth (1/10) the height of the supporting wall height, not to exceed one-third (⅓) of the wall height.

c. *Parapet Detailing.* All parapets must have details such as cornices, moldings, trim, or variations in brick coursing.

d. *Height Transitions in Multi-Building Developments.* Multiple building developments shall be configured to locate the tallest and largest structures within the core of the site and provide a gradual decrease in building height and mass towards adjacent residential land uses.

D. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for the Arizona climate.

1. ***Primary Exterior Building Materials.***

a. Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

b. Variations in the color, finish, or texture of a material (e.g. form-board concrete, smooth stucco vs sand stucco, etc.) shall not be considered separate or distinct materials for the purpose of meeting the material requirements of this section.

c. Glazing may be considered as a primary exterior building material only when it is installed as an architectural glazing system (e.g., curtainwall, structural glass wall) and comprises more than 30% of an individual building façade. Standard window systems, storefront glazing, and other non-architectural fenestration shall not qualify as a primary building material for the purposes of this requirement.

2. ***Minimum Use of Primary Materials.***

a. *Publicly Visible Façades.*

i. Each publicly visible building façades shall incorporate at least two (2) different primary exterior building materials.

ii. Primary exterior materials shall cover no less than 75% of each building façade.

iii. Each primary building material used to satisfy Subsection (2)(a)(i) above shall cover at least 25% of that façade.

b. *Non-publicly Visible Façades.* For side or rear walls not publicly visible from rights-of-way or private property, primary exterior materials shall cover no less than 50% of each building façade.

c. *Primary Material Calculation.* Primary building material coverage shall be calculated by measuring the area of each façade, excluding non-architectural fenestration, storefront systems, pedestrian and vehicular openings, mechanical equipment, and signage. The percentage of each primary building material shall be calculated by dividing the area covered by that material by the resulting façade area.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 25% of a building façade.

4. ***Change in Materials.***

a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections), and shall not occur mid-field on a flat wall surface.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

5. ***Roof Materials.*** All visible pitched roofs shall consist of metal seam, clay tile, concrete tile, or a similar grade of roofing material.

E. **All Sided Architecture.** Architectural detailing shall be applied to all sides of a building. While detailing may vary based on orientation and context, all façades visible from a street, parking lot, or open space shall incorporate a level of architectural quality, materials, articulation, and detailing equivalent to the primary façade.

F. **Colors.**

1. Buildings larger than 10,000 square feet shall use at least two (2) exterior colors on every façade that is publicly visible.

2. Changes in building color shall occur at the inside corners where wall planes change, or be separated by a façade element or architectural detail.

G. **Building Entrances.** Primary building entrances shall be clearly defined, shaded, and inviting. The architectural details of building entrances shall be integrated with the overall building design in terms of materials, scale, proportion, and design elements and are appropriately scaled for people.

1. ***Entry Definition.*** Entries shall have a roofed projection or recess with a minimum depth of five (5) feet and minimum horizontal area of 50 square feet.

2. **Orientation.** Primary entries shall face the street or primary pedestrian areas.

H. **Access, Circulation, and Parking.**

1. ***Parking Area Design.***

a. Parking areas, including areas used for the parking and storage of commercial trucks and trailers, shall be located to the side or rear of buildings, except;

b. A maximum of two (2) rows of required off-street parking may be located between the building and adjacent street.

2. ***Location of Parking Spaces.*** A minimum 25% of the required parking spaces shall be provided within 200 feet of the building served, with the balance of the required parking within 400 feet.

(Ord. No. 5996, § 1, 3-9-26)

11-7-5: ALTERNATIVE COMPLIANCE

A. **Purpose and Applicability.**

1. ***Purpose.*** Alternative Compliance may be used to satisfy the Site Planning and Design Standards in Section 11-7-4 when conditions may exist where strict compliance is impractical or impossible, or when alternative approaches achieve equivalent or superior design outcomes through innovative site planning, architectural solutions, or other means.

2. ***Applicability.*** Alternative Compliance may be requested for any application subject to the Site Planning and Design Standards of Section 11-7-4. It may not be used to alter development standards or requirements of other sections of this Zoning Ordinance, and it shall not result in an increase in intensity or lot coverage.

B. **Application.** Requests for Alternative Compliance may be accepted for any application to which Site Planning and Design Standards apply. A written request must be provided in conjunction with the applicable land use application describing the following:

1. The code section(s) and development standard(s) for which Alternative Compliance is being requested;

2. The proposed alternative or offset(s), including any numeric modification(s) from the development standard;

3. An explanation on how the proposal meets the intent of the applicable development standard(s), the applicable General Plan Placetype, and any other applicable Sub-area Plan;

4. An explanation on how the alternative is equivalent or superior to the required development standard, or how the proposed offset(s) produce superior design; and

5. A statement of how the proposal meets the approval criteria in Subsection C below.

C. **Approval Criteria.** The review authority may approve Alternative Compliance only upon finding that the request meets all of the following:

1. The alternative does not create adverse impacts on safety, access, visibility, glare, privacy, noise, drainage, heat island effect, and does not reduce pedestrian comfort or accessibility.

2. The proposed alternative or tradeoff is the minimum necessary to achieve the intent while maintaining overall compliance with all other applicable standards.

3. The proposal either:

   a. Provides equivalent or superior quality and functionality; or

   b. Provides offsetting public benefits (e.g., improved streetscape, enhanced shade/canopy, open space, sustainability features).

(Ord. No. 5996, § 1, 3-9-26)

CHAPTER 8 DOWNTOWN DISTRICTS*

11-8-1: PURPOSE

A. **General Purposes.** The Downtown Districts are intended to promote the development and redevelopment of land within the Downtown Area to ensure the future growth and vitality of the original square mile and adjacent areas. The regulations of this Chapter are also intended to promote sustainable development patterns and encourage the development of high-intensity land uses where appropriate and where such uses add to the visual image and sense of place of Mesa's Downtown.

B. **Specific Purposes of Each District.**

1. ***Downtown Residence Districts (DR-1, DR-2, DR-3).*** In order to maintain a viable downtown area, stable residential neighborhoods must be protected and enhanced. The purpose of the DR Districts is to protect existing residential uses and to encourage the redevelopment of blighted or under-utilized sites for new residential usage. It is also the purpose of these districts to encourage pedestrian linkages between residential neighborhoods and the business, cultural and entertainment core of Downtown. It is the intent of the DR Districts to retain a real and perceived sense of neighborhood in urban-oriented residential areas by excluding most non-residential uses. It is also the intent of these districts to enhance the quality of residential neighborhoods through establishing compatible architectural and site design elements and regulating residential densities. The numerical designators -1, -2, and -3 are applied to the DR Districts to represent different development intensities.

2. ***Downtown Business District 1 (DB-1).*** The purpose of the DB-1 District is to provide for general retailing, services, and medium-density residential uses. It is the intent of this district to allow multiple residences, professional offices, and commercial uses as a major component of the Downtown Area.

3. ***Downtown Business District 2 (DB-2).*** The purpose of the DB-2 District is to provide for a combination of intensive commercial, light manufacturing, and related uses. The intent of the district is to provide a suitable location for those commercial and manufacturing uses which may require arterial street or railway access.

***Editor's note—**Ord. No. 5996, § 1, adopted March 9, 2026, repealed §§ 11-8-1—11-8-9, which pertained to similar subject matter. See Code Comparative Table for complete history.

4. ***Downtown Core District (DC).*** The purpose of the Downtown Core District is to encourage the highest intensity of land uses to be developed, redeveloped and maintained within the Downtown. It is also the purpose of the DC District to provide incentives for the development or redevelopment of under-utilized and bypassed properties within Downtown and to promote the development of a vital, vibrant activity area. The regulations for the DC District are intended to ensure that higher-intensity land uses are appropriate for the fulfillment of the purpose of the Downtown Core District as a vibrant focal point for the city. At the same time, the Downtown Core District is created to serve residents, businesses, employees and visitors and to ensure that the visual image of the core of the Mesa Downtown will be maintained and enhanced.

(Ord. No. 5996, § 1, 3-9-26)

11-8-2: LAND USE REGULATIONS

In Table 11-8-2, which follows, the land use regulations for each Downtown District are established by letter designations as follows:

- "P" designates use classifications permitted in downtown districts.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit
- "SUP" designates use classifications permitted on approval of a Special Use Permit.
- "CUP" designates use classifications permitted on approval of a Council Use Permit.
- "(x)" a number in parentheses refers to limitation following the table.
- "—" designates a prohibited use.

Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-8-3 Downtown Districts

Proposed Use	DR-1	DR-2	DR-3	DB-1	DB-2	DC	Additional Use Regulations
Residential Use Classifications							
Single Residence							
Detached	P	P	P	—	—	—	
Attached	—	P	P	P	CUP	—	
Multiple Residence	P (16)	P (16)	P (16)	P (16)	P/CUP (16)	P (1, 16)	Chapter 81, Adaptive Reuse Permit
Middle Housing	P	P	P	—	—	—	Section 11-31-38, Middle Housing
Assisted Living Facility							
Assisted Living Home (up to 10 residents)	P	P	P	P	CUP	P	Section 11-31-14, Community Residences
Assisted Living Center (greater than 10 residents)	—	—	CUP	CUP	CUP	CUP	Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Boarding House	—	—	SUP	SUP	—	—	
Community Residence							

Table 11-8-3 Downtown Districts							
Proposed Use	**DR-1**	**DR-2**	**DR-3**	**DB-1**	**DB-2**	**DC**	**Additional Use Regulations**
Family Community Residence	P	P	P	P	CUP	P	Section 11-31-14, Community Residences
Transitional Community Residence	P	P	P	P	CUP	P	
Day Care Group Home							
Small Home Day Care (up to 5)	P	P	P	P	—	—	
Large Home Day Care (6 to 10)	—	SUP	SUP	P	—	—	Section 11-31-13, Large Day Care Group Homes
Home Occupations	P	P	P	P (9)	—	P (9)	Section 11-31-33, Home Occupations
Public and Semi-Public Use Classifications							
Clubs and Lodges	—	—	—	P	P	P	
Schools, Colleges, and Trade Schools							
Colleges or Universities, Private	—	—	—	P	P	P	Section 11-31-24, Schools
Colleges or Universities, Public	P	P	P	P	P	P	
Commercial Trade Schools, Private	—	—	—	P	P	P	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	P	P	P	P	P	
Industrial Trade Schools, Private	—	—	—	P	P	P	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	P	P	P	P	P	
K-12, Private	CUP	CUP	CUP	CUP	CUP	CUP	Section 11-31-24, Schools
K-12, Public	P	P	P	P	P	P	
Community Center	—	SUP	SUP	P	P	P	
Community Gardens	P	P	P	P	P	P	Section 11-31-10, Community Gardens
Cultural Institutions	—	—	—	—	—	P	
Day Care Centers	—	SUP	SUP	P	P	P	
Government Offices	—	—	—	P (2)	P	P	
Hospitals and Clinics							
Clinics	—	—	—	P (3)	P (3)	—	Section 11-31-15, Hospitals and Clinics
Hospitals	—	—	—	P	P	—	
Nursing and Convalescent Homes	—	—	—	CUP	CUP	—	Section 11-31-28, Assisted Living Centers, Nursing and Convalescent Homes
Parks and Recreation Facilities, Public	P	P	P	P	P	P	
Places of Worship	P	P	P	P	P	P	Section 11-31-22, Places of Worship
Public Safety Facilities	—	—	—	P	P	P	
Skilled Nursing Facility	—	—	—	CUP	CUP	—	
Social Service Facilities	—	—	—	CUP	CUP	—	Section 11-31-26, Social Service Facilities
Commercial Use Classifications							
Animal Sales and Services							
Kennels	—	—	—	—	P (4)	—	
Pet Stores	—	—	—	—	P	P (4, 6)	

Table 11-8-3 Downtown Districts							
Proposed Use	**DR-1**	**DR-2**	**DR-3**	**DB-1**	**DB-2**	**DC**	**Additional Use Regulations**
Veterinary Services	—	—	—	P (4)	P	—	
Artists' Studios	—	—	—	P	P	P	
Automobile/Vehicle Sales and Services							
Accessory Automobile Rentals	—	—	—	SUP	—	SUP (12)	Section 11-31-5, Automobile Rentals; Automobile/Vehicle Sales and Leasing
Automobile Rentals	—	—	—	—	SUP	CUP	
Automobile/Vehicle Sales and Leasing	—	—	—	—	SUP	—	
Automobile/Vehicle Repair, Major	—	—	—	—	SUP	—	Section 11-31-6, Automobile/ Vehicle Repair; Major and Minor
Automobile/Vehicle Service and Repair. Minor	—	—	—	—	SUP	CUP	
Automobile/Vehicle Washing	—	—	—	—	SUP	CUP	Section 11-31-7, Automobile/Vehicle Washing
Large Vehicle and Equipment Sales, Services, and Rental	—	—	—	—	SUP	—	Section 11-31-5, Automobile Rentals; Automobile/ Vehicle Sales and Leasing
Service Station	—	—	—	—	SUP (15)	CUP (15)	Section 11-31-25, Service Stations
Banks and Financial Institutions	—	—	—	P	P	P	
With Drive-Thru Facilities	—	—	—	CUP	SUP	CUP	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Banquet and Conference Center	—	—	—	P	P	P	
Bed and Breakfast Inns	SUP	P	P	—	—	—	Section 11-31-8, Bed and Breakfast Inns
Business Services	—	—	—	—	P (15)	P (15)	
Commercial Entertainment	—	—	—	P	P	P	
Commercial Recreation							
Small-Scale	—	—	—	P	P	P	
Large-Scale	—	—	—	—	—	P (5)	
Eating and Drinking Establishments							
Bars/Clubs/Lounges	—	—	—	P	P	P	
Coffee Shops/Cafes	—	—	—	P	P	P	
Restaurants, Bar and Grill	—	—	—	P	P	P	
Restaurants, Full Service	—	—	—	P	P	P	
Restaurants, Limited Service	—	—	—	P	P	P	
With Drive-Thru Facilities	—	—	—	CUP	SUP	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
With Outdoor Seating Areas	—	—	—	P	P	P	Section 11-31-19, Outdoor Eating Areas
With Pick-Up Window Facilities	—	—	—	SUP	SUP	—	Section 11-31-18, Drive-Thru and Pick-Up Window Facilities
Food and Beverage Sales							
Convenience Market	—	—	—	SUP (15)	SUP (15)	P (15)	Section 11-31-11, Convenience Markets

Table 11-8-3 Downtown Districts							
Proposed Use	**DR-1**	**DR-2**	**DR-3**	**DB-1**	**DB-2**	**DC**	**Additional Use Regulations**
General Market	—	—	—	P (15)	P (15)	P (15)	
Funeral Parlors and Mortuaries	—	—	—	—	P	CUP	
Hotels and Motels	—	—	—	P	—	P	
Laboratories	—	—	—	—	P	—	
Large Commercial Development	—	—	—	—	CUP	CUP	Section 11-31-16, Large Commercial Development
Light Fleet-Based Services	—	—	—	—	P	CUP	
Live-Work Unit	—	P	P	P	P	SUP	Section 11-31-17, Live Work Units
Maintenance and Repair Services	—	—	—	—	P	—	
Offices							
Business and Professional	SUP (10, 15)	SUP (10, 15)	SUP (10, 11, 15)	P (15)	P (15)	P (15)	
Medical and Dental	—	—	—	P (15)	P (15)	P (15)	
Parking, Commercial	—	—	—	—	SUP	P (7)	
Personal Services	—	—	—	P (15)	P (15)	P (15)	
Plant Nurseries and Garden Centers	—	—	—	—	SUP	—	
Retail Sales							
General	—	—	—	P (15)	P (15)	P (15)	
Pawn Shops	—	—	—	CUP (8)	CUP (8)	—	Section 11-31-21, Pawn Shops
Tattoo and Body Piercing Parlors	—	—	—	P	P	P	
Employment and Industrial Use Classifications							
Handicraft/Custom Manufacturing	—	—	—	—	P	—	
Manufacturing, Light Cabinet Assembly	—	—	—	—	P	—	
Manufacturing, Limited	—	—	—	—	P	—	
Research and Development	—	—	—	—	P	—	
Warehousing and Storage							
Contractors' Yards	—	—	—	—	SUP (13)	—	
Indoor Warehousing and Storage	—	—	—	—	CUP	—	
Mini-Storage	—	—	—	—	CUP	—	
Recycling Facilities							
Reverse Vending Machine	—	—	—	P (4)	P (4)	—	Section 11-31-23, Recycling Collection and Processing Facilities
Small Indoor Collection Facility	—	—	—	—	SUP (14)	—	
Transportation, Communication, and Utilities Use Classifications							
Communication Facilities							
Antenna and Transmission Towers	See Chapter 35						
Facilities within Buildings	See Chapter 35						
Transportation Passenger Terminals	—	P	P	P	P	P	
Utilities, Minor	P	P	P	P	P	P	
Specific Accessory Uses and Facilities							

Table 11-8-3 Downtown Districts							
Proposed Use	**DR-1**	**DR-2**	**DR-3**	**DB-1**	**DB-2**	**DC**	**Additional Use Regulations**
Accessory Dwelling Unit	P	P	P	P (16)	P (16)	P (16)	Section 11-31-3, Accessory Dwelling Unit
Battery Energy Storage System (BESS)	P (17)	P (17)	P (17)	P (17)	P (17)	P (17)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities
Caretakers' Residences	—	—	—	—	SUP	—	
Drive-Thru Facilities	—	—	—	CUP	SUP	CUP	
Outdoor Display	—	—	—	P	P	P	Section 11-31-20, Outdoor Display
Outdoor Storage	—	—	—	—	SUP (13)	—	Section 11-30-7, Outdoor Storage
Temporary Outdoor Entertainment	—	TUP (15)	TUP (15)	TUP (15)	TUP (15)	TUP (15)	Section 11-31-30, Temporary Uses
Temporary Outdoor Sales	—	TUP (15)	TUP (15)	TUP (15)	TUP (15)	TUP (15)	
Notes:							
1. Multiple Residence permitted at a minimum density of 20 units/acre in an exclusive multiple residence project. No minimum density when part of a mixed-use project.							
2. Permitted if occupying less than 5,000 square feet; greater floor area requires approval of an SUP.							
3. A CUP is required for plasma centers and substance abuse detoxification and treatment centers; other Clinics are permitted by right.							
4. Must be confined to completely enclosed, sound-attenuated facilities.							
5. Permitted if all activities pertaining to commercial recreation are conducted entirely within an enclosed building.							
6. Permitted if floor area is no more than 1,500 square feet.							
7. Structured parking garages are permitted. A CUP is required for surface (open) parking lots.							
8. Must be at least 1,200 feet from any use in the same classification, and at least 1,200 feet from any school.							
9. Home Occupations permitted where and when a residence is authorized.							
10. Eligible sites are limited to locations designated as Class 1 Historic Buildings based on the City of Mesa Historical Survey, 1984.							
11. Eligible sites limited to lots with frontage on an arterial street as designated in the Mesa Transportation Plan.							
12. Eligible sites limited to ancillary use to a Hotel or Motel.							
13. Use is Permitted as an accessory use only. Permitted only in the rear half of a lot and if fully screened by a minimum 8-foot-high masonry screen wall composed of masonry blocks utilizing varying colors and textures arranged in an attractive design.							
14. Facility may be as large as 6,000 square feet in the DB-2 District, subject to approval of a Special Use Permit.							
15. Only permitted in conjunction with non-residential uses.							
16. Permitted if an existing non-conforming residential use is located on the lot.							
17. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an accessory use.							

(Ord. No. 5996, § 1, 3-9-26)

11-8-3: DEVELOPMENT STANDARDS FOR THE DOWNTOWN RESIDENCE DISTRICTS

Table 11-8-3.A prescribes the development standards for the DR Districts. The "Additional Standards" column lists additional standards that apply in some or all districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-8-3.A: Development Standards - DR Downtown Residence Districts				
Standard	**DR-1**	**DR-2**	**DR-3**	**Additional Standards**
Lot and Density Standards				
Minimum Lot Area (sq. ft.)				
1 dwelling unit	6,000	6,000	6,000	

Table 11-8-3.A: Development Standards - DR Downtown Residence Districts				
Standard	**DR-1**	**DR-2**	**DR-3**	**Additional Standards**
2 dwelling units	NA	11,000	7,000	
3 dwelling units	NA	15,000	11,000	
4 or more units in DR-2	NA	18,000	NA	
4 dwelling units in DR-3	NA	NA	15,000	
5 or more dwelling units	NA	NA	18,000	
Maximum Density (dwelling units/net acre)	NA	12	40	
Building Form and Location				
Maximum Height (ft.)	30	30	40	
Minimum Setback (ft.)				
Front	15	15	10	Section 11-8-3(A), Transitional Standards
Interior Side: 1-story building	5	1-2 units: 5 ft. 3+ units: 15 ft.	10	
Interior side: 2-story building	5	1 unit: 5 ft. 2 units: 10 ft. 3+ units: 15 ft.	15	
Interior side: 3-story building	20	20	20	
Street Side	10	10	10	
Rear: 1-story building	15	15	10	
Rear: 2-story building	20	20	20	
Rear: 3-story building	20	20	20	
Parking Spaces	20	20	20	
Minimum Open Space (sq. ft./dwelling unit)	Single Residence-detached: 400	Single Residence-detached and attached: 400 Multiple Residence: 200	Single Residence-detached and attached: 400 Multiple Residence: 200	Section 11-8-3(B), Multiple Residence and Single Residence-Attached Open Space Requirements

A. **Transitional Standards.** For a residential structure in the DR-3 District that is adjacent to the DR-1 District or the DR-2 District, the following shall apply:

1. ***Front Yard Setback.*** The required front yard setback shall be the same as that in the DR-1 and DR-2 Districts, i.e. 15 feet. This 15-foot front yard setback shall be required for the first 40 feet of lot street frontage adjacent to the DR-1 or DR-2 District.

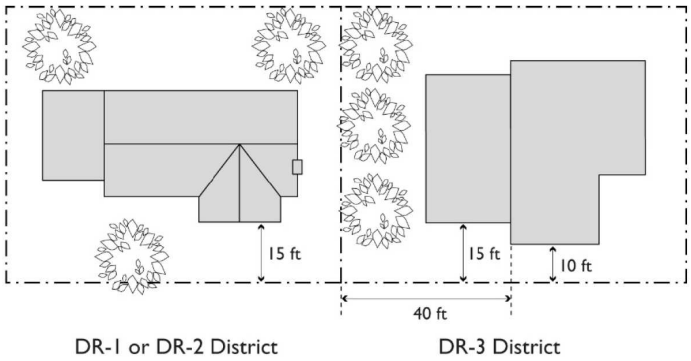


FIGURE 11-8-3.A(1): TRANSITION TO RESIDENTIAL STRUCTURE IN DR-3 DISTRICT

2. ***Roof Profile.***

a. *Height.* The height of new residential structures in the DR-3 District shall be no more than 10 feet greater than the height of the existing residential structure in the DR-1 or DR-2 Districts.

b. *Roof Form.* The roof of the new residential structures in the DR-3 District shall have the same form (i.e. gable, gambrel, hip, mansard, parapet, pitched, and shed) as the adjacent existing residential structure in the DR-1 or DR-2 Districts.



FIGURE 11-8-3.A(2): TRANSITION TO RESIDENTIAL STRUCTURE ROOF PROFILE

B. **Multiple Residence and Single Residence-Attached Open Space Requirements.** Multiple Residence developments in the DR-2 and DR-3 Districts shall have a minimum of 200 square feet of open space for each dwelling unit. The required front and side setbacks shall not count towards this requirement.

1. ***Proportion of Private and Common Open Space.*** Required open space shall be provided in one (1) of the following ways:

a. At least 200 square feet of private open space or patio area attached to the individual unit;

b. A private balcony or deck of at least 60 square feet in area adjacent to the individual dwelling unit and the remainder of the open space (140 square feet per unit) provided in a usable common open space; or

c. If no individual private open space is provided adjacent to a dwelling unit, 300 square feet of common open space per dwelling unit shall be provided.

2. ***Surfacing.*** Surfaces provided for outdoor activities shall allow convenient use for outdoor activities. Such surface may be any combination of lawn, garden, brick, flagstone, wood planking, concrete, or other serviceable, dust-free surface.

3. ***Slope.*** The slope of required open space areas shall not exceed 10%.

4. ***Exclusive Dedication.*** Off-street parking and loading areas, driveways, and service areas shall not be counted as usable open space.

a. *Amenities.* Common open space shall include amenities for the everyday use and enjoyment of residents of the development.

i. *Amenities Required.* Multiple Residence and Single Residence-attached developments containing five (5) or more dwelling units shall provide amenities from Table 11-8-3.B.2 to meet the minimum point value specified in Table 11-8-3.B.1, unless an alternative amenity is approved in accordance with Subsection (iii) below.

Table 11-8-3.B.1: Multiple Residence and Single Residence-Attached Amenity Minimums

Number of Dwelling Units	Minimum Points Required
5—19 dwelling units	1
20—50 dwelling units	2
51—100 dwelling units	3
101—150 dwelling units	4
151—250 dwelling units	5
>250 dwelling units	6

ii. *Amenity Types.* Table 11-8-3.B.2 below lists amenity types, the minimum standard (where applicable), and the point value. A proposed amenity may be counted only once toward the required minimum point total, except that regulation-sized sports courts of different types may each be counted separately.

Table 11-8-3.B.2: Amenity Types

Amenity Type	Minimum Standard	Points
Fenced dog park/pet run area	500—1,000 sq. ft.	1
	>1,000 sq. ft	2
Ramada with bbq and seating area	Min. 200 sq. ft.	1
Putting Green		1
Fire pit with seating area		1
Regulation-size sports court (e.g., tennis court, racquetball court, pickleball court, basketball court, etc.)	Regulation size	2

Table 11-8-3.B.2: Amenity Types		
Amenity Type	**Minimum Standard**	**Points**
Jacuzzi	Min. 6-person capacity	2
Covered pavilion with seating area	Min. 600 sq. ft.	2
Community garden	Min. 25 ft. in any direction	2
Swimming pool	500—1,000 sq. ft.	2
	>1,000 sq. ft.	3
Outdoor fitness area	Min. 3 stations	2
Tot lot	1,000—2,500 sq. ft., 2 distinct play features	2
	>2,500 sq. ft., 3 distinct play features	3
Rooftop deck/terrace with seating and weather protection	Min. 1,500 sq. ft.	3
Indoor recreational facility (e.g., fitness center, game room, movie theater, etc.)	Min. 1,500 sq. ft.	3

iii. *Alternative Amenities.* Additional amenities not listed above may be approved by the Planning Director. Upon approval, the Planning Director shall assign a point value based on the amenity's comparability in function, scale, and resident benefit to those listed in Table 11-8-3.B.2.

C. **Multiple Residence Screening.** Whenever a new Multiple Residence is constructed, or floor area is added to an existing Single Residence to convert it to a Multiple Residence use, a privacy wall shall be constructed along the property lines separating the Multiple Residence use, its parking areas, and driveways from any adjacent existing Single Residence.

1. ***Exception.*** Conversion of an existing Single Residence to a Multiple Residence use, without increasing floor area does not invoke the screening requirement.

2. ***Wall Design.***

a. *Materials.* The privacy wall shall be of masonry construction with stucco, mortar wash, or other finish to match that of the main building.

b. *Height.* The privacy wall shall be six (6) feet in height.

c. *Location.* The privacy wall shall extend along interior side lot lines to the front setback of the main building or to the front setback of the existing adjacent residence, whichever is closer to the street right-of-way, but shall not extend into the front setback without being reduced in height to a maximum of three (3) feet.

d. *Fences and Freestanding Walls Standards.* All other standards of Section 11-30-4 shall apply.

D. **Encroachments.** Building projections may extend into required setbacks, subject to the following standards:

1. No projection may extend into a public utility easement or closer than two (2) feet to an interior lot line.

2. Awnings, eaves, overhangs, or basement window wells may encroach up to three (3) feet into any required setback.

3. Vestibules, bay windows, nooks, chimneys, or similar wall projections with or without footings may encroach not more than three (3) feet into any required front or rear setback and not more than two (2) feet into any required side setback, provided the aggregate width of all such projections adjacent to any yard does not exceed one-third (⅓) of the length of the building wall.

4. Staircases may encroach up to three (3) feet into any required front setback, and up to 10 feet into any required rear setback.

5. Attached open porches, open patios, open carports or open balconies may encroach into a required rear setback, but shall be no closer than 10 feet to a rear property line. Such open structures may include window screens, knee walls, and other partial enclosures as specified in the Mesa Building Code for patio covers.

6. On single-story structures, enclosed livable rooms may encroach up to 10 feet into a required rear setback for up to one-half (½) the width of the building, provided a minimum of 10 feet remains between the building face and the rear property line.

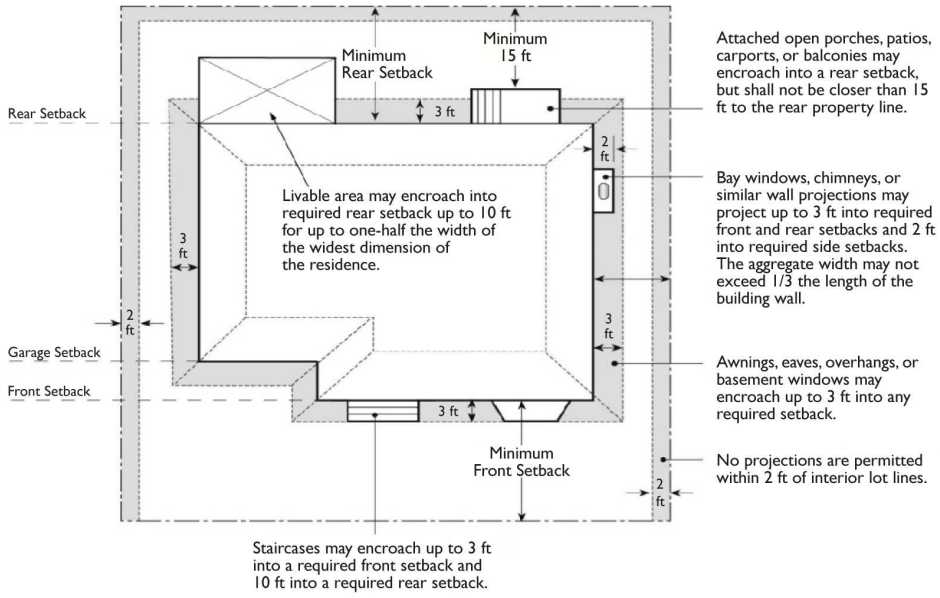


FIGURE 11-8-3.D(1): BUILDING PROJECTION

(Ord. No. 5996, § 1, 3-9-26)

11-8-4: SITE PLANNING AND DESIGN STANDARDS FOR THE DOWNTOWN RESIDENCE DISTRICTS

A. **Massing and Scale.** Buildings shall contain varied massing and architectural elements and techniques shall be utilized to reduce the apparent massing and scale of buildings, provide shading, and define different uses and activities in the building.

1. ***Façade Articulation.*** Exterior building walls shall be subdivided and proportioned to human scale, using projections, overhangs and recesses in order to add architectural interest and variety and to avoid long, uninterrupted wall planes.

a. *Single Residence Projects.*

i. *Front Façade.* The front façade of buildings shall have at least one (1) change in building plane, excluding the garage.

ii. *Two-story Dwellings on Corner Lots.* No second-story street-facing wall shall run in a continuous plane of more than 20 feet without a window, or without a projection, offset, or recess of the building wall at least one (1) foot in depth.

b. *Multiple Residence Projects.*

i. *Publicly Visible Façades.* All street-facing and publicly visible façades (including those visible from parking lots, open space, or adjoining private properties), shall provide articulation for every 25 linear feet of wall length as follows:

(1) One (1) horizontal projection or recess of at least four (4) feet in depth; or

(2) Two (2) horizontal projections or recesses, at least 2.5 feet in depth each.

ii. *Two or More Story Buildings.* If located on a building with two (2) or more stories, the articulated elements must be greater than one (1) story in height and may be grouped rather than evenly spaced in 25-foot modules so long as the total amount of articulation meets or exceeds that which would be required if no grouping occurred.

iii. Building entrances, front porches, and projections such as stoops, bays, overhangs, fireplaces (if projecting horizontally from the wall), and trellises count towards this requirement.

2. ***Varied Roof Form.*** In Multiple Residence projects roof forms shall be integrated into the building design and varied within a development through the use of offsets; changes in slope, angle, or direction; and elements such as dormers, towers, or parapets.

3. ***Roof Articulation.*** In Multiple Residence projects roof articulation is required to provide architectural interest at the skyline and accentuate appropriate building elements.

a. No more than two (2) side-by-side units may be covered by one (1) unarticulated roof.

b. Flat roofs in excess of 100 feet shall provide vertical modulation of two (2) or one-tenth ($^1/_{10}$) of the wall height, whichever is greater.

4. ***Balconies, Bay Windows, and Other Projections or Recesses.*** Multiple Residence buildings shall incorporate balconies, bay windows, entry porches or other projections and recesses across 30% of the length per floor of the façade.

a. *Windows.* Windows shall either:

i. Contain window trim on at least two (2) sides of all windows that is at least two (2) inches in depth; or

ii. Be recessed at least four (4) inches from the outside plane of the surrounding exterior wall.

b. *Balconies.* Balconies shall be at least four (4) feet wide and three (3) feet deep if not used to meet private open space requirements.

B. **Windows.** On buildings that are two (2) stories or greater in height, all façades facing a street, alley, open space, or park shall provide windows on the upper-stories that constitute at least 10% of the façades area and the windows shall either:

1. Contain window trim on at least two (2) sides of all windows that is at least two (2) inches in depth; or

2. Be recessed at least four (4) inches from the outside plane of the surrounding exterior wall.

C. **Primary Entrances.** Primary building entrances shall be clearly defined, shaded, and inviting. The architectural details of building entrances shall be integrated with the overall building design in terms of materials, scale, proportion, and design elements and are appropriately scaled for people.

1. ***Single Residence Projects.*** Single Residences shall provide either a covered front porch or portico, awning, recess, or stoop as specified below.

a. *Covered Front Porch.* A covered front porch with a minimum depth of six (6) feet and a minimum length of eight (8) feet.

i. *Measuring Front Porch Depth.*

(1) The required porch depth shall be measured from the building façade to outside of the support post;

ii. The total clear furniture area shall be a minimum of four (4) feet by six (6) feet.

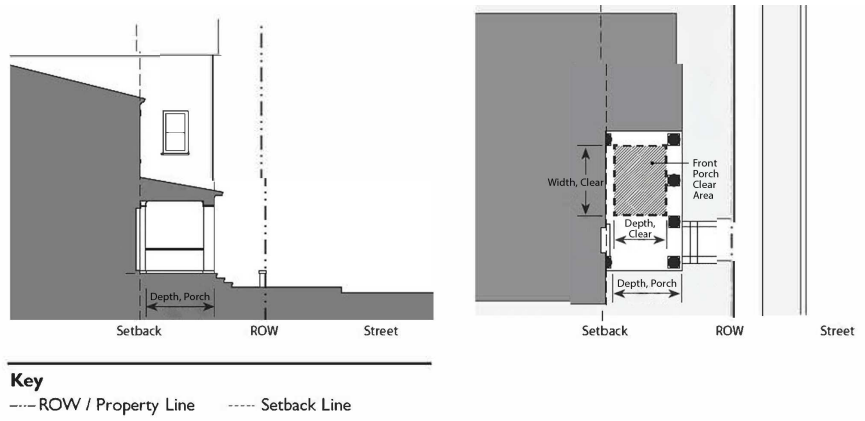


FIGURE 11-8-4.C(1): COVERED FRONT PORCH MEASUREMENTS

b. *Portico, Awning, Recess, or Stoop.* A portico, awning, recess, or stoop measuring at least four (4) by four (4) feet which is well defined by a gabled entry, distinct change in roof line or columns, or has some other significant architectural distinction.

2. ***Multiple Residence Projects.***

a. *Ground Floor Access.* Exterior entrances to units shall be in the form of individual or shared entrances at the ground floor of the building.

b. *Upper Story Access.* Individual entrances for units above the ground floor shall be provided via an interior corridor.

c. *Orientation.* All units located along public rights-of-way shall have the primary entrance to the building, or individual unit entrances, facing this right-of-way. Exceptions to this requirement may be approved for projects where multiple-residence housing is located on four (4) or six (6) lane streets carrying high traffic volumes. In such cases, the project may be oriented around internal courtyards or open space.

d. *Projection or Recess.* Building entrances and individual exterior unit entrances shall have a roofed projection (such as a porch) or recess with a minimum depth of at least five (5) feet and minimum horizontal area of 50 square feet.

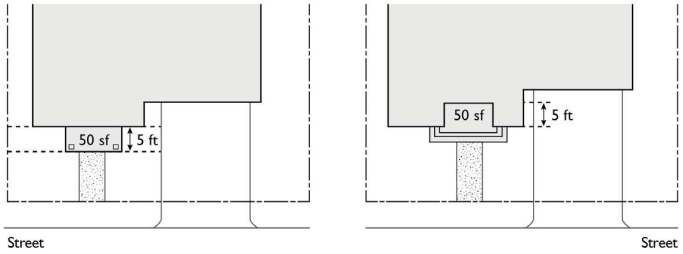


FIGURE 11-8-4.C(2): BUILDING ENTRANCE PROJECTION OR RECESS

D. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for the Arizona climate.

1. ***Primary Exterior Building Materials.***

a. Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, siding, natural and synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

b. Variations in the color, finish, or texture of a material (e.g. form-board concrete, smooth stucco vs sand stucco, etc.) shall not be considered separate or different materials for the purpose of meeting the material requirements of this section.

c. Glazing may be considered as a primary exterior building material only when it is installed as an architectural glazing system (e.g., curtainwall, structural glass wall) and comprises more than 30% of an individual building façade. Standard window systems, storefront glazing, and other non-architectural fenestration shall not qualify as a primary building material for the purposes of this requirement.

2. ***Minimum Use of Primary Materials.***

a. *Single Residence Projects.*

i. *Publicly Visible Façades.* Building façades facing a street, alley, open space, or park shall contain at least two (2) kinds of primary exterior building materials.

ii. The use of any one (1) material shall not exceed 85% of each façade.

b. *Multiple Residence Projects.*

i. Each building façade shall incorporate at least two (2) different primary exterior materials.

ii. Primary exterior materials shall cover no less than 75% of each building façade.

iii. Each primary building material used to satisfy Subsection (2)(b)(i) above shall cover at least 25% of that façade.

c. *Primary Material Calculation.* Primary building material coverage shall be calculated by measuring the area of each façade, excluding non-architectural fenestration, storefront systems, pedestrian and vehicular openings, mechanical equipment, and signage. The percentage of each primary building material shall be calculated by dividing the area covered by that material by the resulting façade area.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 15% of a building façade in a Single Residence project and no more than 25% in a Multiple Residence project.

4. ***Wainscoting.*** Where brick or stone veneer is used on a Single Residence as wainscoting, it shall be wrapped a minimum of two (2) feet around side walls.

5. ***Change in Materials.***

a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections), and shall not occur mid-field on a flat wall surface; except where brick or stone veneer is used as wainscoting, it shall be wrapped a minimum of two (2) feet around side walls.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

E. **All Sided Architecture.** Architectural detailing shall be applied to all sides of a building. While detailing may vary based on orientation and context; all façades visible from a street, parking lot, or open space shall incorporate a level of architectural quality, materials, articulation, and detailing equivalent to the primary façade.

F. **Factory-Built Buildings.** Factory-built buildings designed, manufactured and approved for residential purposes as dwelling units and attached to permanent foundations are permitted in all Downtown Residential Districts, if such buildings are installed in conformance with all applicable provisions of the Mesa City Code including applicable development standards.

G. **Single Residence Projects - Access, Circulation, and Parking.**

1. ***Garage Requirement.*** In the DR-1 and DR-2 Districts, required parking spaces shall be provided within a garage, and may not be located with a carport, when the parking spaces are located in the front half of the lot.

2. ***Garage Frontage and Location.*** To prevent residential streetscapes from being dominated by protruding garage doors, and to allow the active, visually interesting features of a house to be dominant, the following standards shall apply:

a. *Front Loaded Garages.* Where a garage door is parallel to the front property line of the lot the following shall apply:

i. The aggregate width of garage doors shall not exceed 50% of the aggregate width of the front building elevation; and

ii. The garage shall be located at least three (3) feet behind the primary wall facing the street. A covered front porch, patio, or porte-cochere whose aggregate width is 20% of the aggregate width of the front building elevation may be considered the primary wall facing the street.

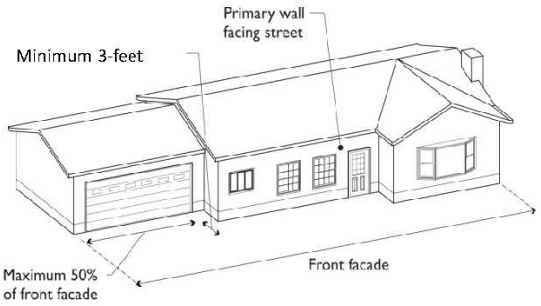


FIGURE 11-8-4.G(1): GARAGE FRONTAGE AND LOCATION

b. *Side Loaded Garages.* Where garages are oriented with side entry doors, the street-facing façade shall incorporate windows and architectural detailing to maintain the appearance of habitable living space.

c. *Garages With Three (3) or More Doors.* Garages with three (3) or more doors, or designed to accommodate three (3) or more non-tandem parked cars, are permitted only on lots 75 feet wide or greater, and at least one (1) garage front must be separated from the remaining garage fronts by at least two (2) feet. This requirement does not apply to the following:

i. Side or rear loaded garages in which the garage doors are oriented parallel to or within 10 degrees of parallel to the front property line, or oriented perpendicular to an alley located adjacent to the rear property line.

ii. Garages set a distance of 1.5 times the minimum front setback for garages and carports, based on the requirement for each zoning district, from the front property line, as specified by Table 11-8-4.

3. ***Driveways—Maximum Number and Width.***

a. *Lots Less Than 75 feet Wide.*

i. A maximum of one (1) driveway up to 20 feet wide is permitted.

ii. One (1) additional driveway up to 10 feet wide is permitted, if it leads to an interior side yard at least 12 feet wide and the combined paved areas do not exceed 50% of the area of the front yard.

b. *Lots Greater Than or Equal to 75 Feet Wide.*

i. A maximum of one (1) driveway up to 30 feet wide is permitted; or

ii. One (1), 20-foot driveway and one (1) additional 10-foot driveway if it leads to an interior side yard that is at least 12 feet in width and the combined paved areas do not exceed 50% of the area of the front yard.

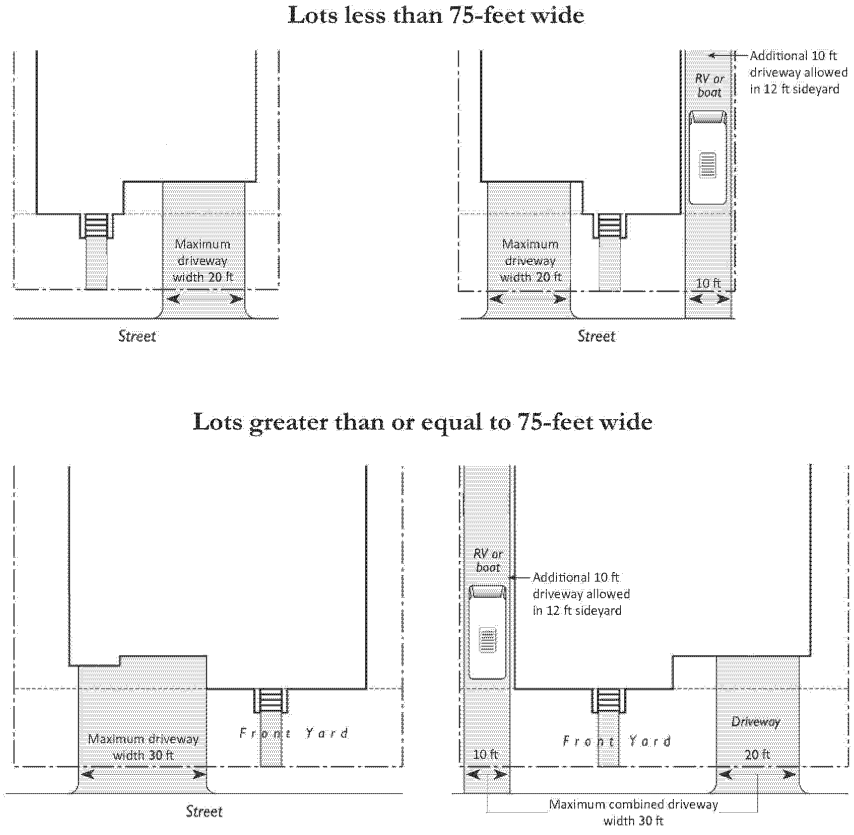


FIGURE 11-8-4.G(2): DRIVEWAYS

H. **Multiple Residence Developments - Access, Circulation, and Parking.** The parking and circulation system within each development shall accommodate the movement of vehicles, bicycles, pedestrians and transit, throughout the proposed development and to and from surrounding areas, safely and conveniently, and shall contribute to the attractiveness of the development.

1. ***Directness and Continuity.*** Walkways within the site shall be located and aligned to provide continuous connection between buildings, and various site amenities such as play areas, club houses, pools, mailboxes, etc. Walkways shall not be located and aligned solely based on the outline of a parking lot configuration that does not provide such direct pedestrian access.

2. ***Off-site Access.***

   a. Walkways shall provide direct connections to trails, parks, schools, transit stops or other public amenities adjacent to the development.

   b. Drive aisles leading to main entrances shall have walkways on both sides of the drive aisle.

3. ***Parking Area Design.***

   a. Parking areas shall be located to the side or rear of buildings, except visitor parking may be located between a building and the adjacent street.

b. The total frontage of parking areas visible from the street, including visitor parking, shall not exceed 30% of the lot frontage.

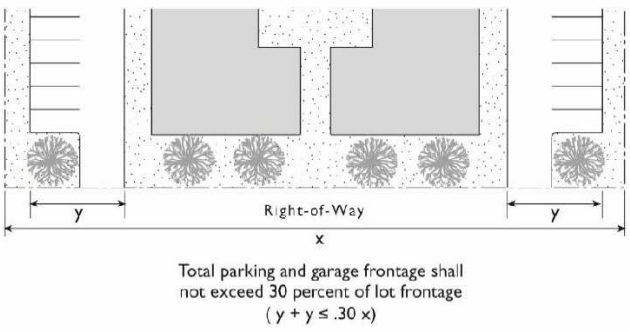


FIGURE 11-8-4.H(1): PARKING AND GARAGE FRONTAGE LIMITATION

4. ***Location of Parking Spaces.***

a. *Tenant Parking.* Required parking spaces shall be arranged to provide at least one (1) parking space per unit within 200 feet of the dwelling units they are intended to serve

b. *Guest Parking.* Guest parking spaces shall be distributed proportionally to the dwelling unit locations that they are intended to serve.

5. ***Attached Garages.***

a. In one (1) story buildings that include livable floor area, walls containing garage doors shall be set back a minimum of three (3) feet from the front façade of the building.

b. In multi-story buildings that include livable floor area, garage doors located below upper-story living space shall be recessed at least three (3) feet from the upper story facade.

c. When multiple garage doors are located within one (1) building, the maximum number of garage doors adjacent to one another shall be limited to three (3), unless there is a break in the building façade between garage doors consisting of a projected building entrance or a recess at least six (6) feet wide and three (3) feet deep.

6. ***Detached Garages.***

a. Detached garages shall use exterior materials, colors, roof forms, roof materials, and architectural details that are the same as the principal buildings on the lot or within the development.

b. Perimeter garages that face public right-of-way or private property shall be designed in accordance with Subsections A, C, D, and E above.

(Ord. No. 5996, § 1, 3-9-26)

11-8-5: DEVELOPMENT STANDARDS FOR THE DOWNTOWN BUSINESS AND DOWNTOWN CORE DISTRICTS

Table 11-8-5 prescribes the development standards for the Downtown Business and Downtown Core Districts. The "Additional Standards" column lists additional standards that apply in some or all districts. Section numbers in this column refer to other sections of the Zoning Ordinance, while individual letters refer to subsections that directly follow the table.

Table 11-8-5: Development Regulations - DB Downtown Business and DC Downtown Core Districts				
Standard	**DB-1**	**DB-2**	**DC**	**Additional Standards**
Building Form and Location for Non-Residential Development				
Maximum Height (ft.)	50	40	60	
Minimum Setback (ft.) - Non-residential buildings				
Front and Street-Facing Side	15	15	10	May be reduced to 10 feet when located on an arterial street and not adjacent to residential.
Interior Side: Not Adjacent to Residential Development	0	0	0	
Interior Side: Adjacent to Residential Development	10	10	10	Section 11-8-5(A), Building Height Step-Back Adjacent to Single Residence Uses and/or Districts
Rear: Not Adjacent to Residential	0	0	0	
Rear: Adjacent to Residential	10	10	10	
Building Form and Location for Residential Development				
Maximum Density (dwelling units/net acre)	40	40	40	
Minimum Setbacks (ft.)				
Front and Street-Facing Side	Varies by street classification identified in the Mesa Transportation Plan: Arterial Street: 15 ft. Collector Street: 10 ft. Local Street: 10 ft.			Setbacks shall be landscaped according to standards in Chapter 33, Landscaping.
Interior Side	10	5	5	
Rear	20	10	10	
Minimum Open Space (sq. ft./dwelling unit)	200	200	200	Section 11-8-3(B), Multiple Residence and Single Residence-Attached Open Space Requirements

A. **Building Height Step-Back Adjacent to Single Residence Uses and/or Districts.**

1. When a building is adjacent to a Single Residence zoning district or use, the maximum building height at the required setback shall be 30 feet.

2. The building height may increase by one (1) foot for every additional foot of setback, beyond the required minimum, up to the maximum permitted building height.

3. ***Multiple Building Developments.*** Developments with multiple buildings shall be configured to locate the tallest and largest structures within the core of the site or adjacent to an arterial street and provide a gradual decrease in building height and mass towards adjacent residential land uses.

(Ord. No. 5996, § 1, 3-9-26)

11-8-6: SITE PLANNING AND DESIGN STANDARDS FOR THE DOWNTOWN BUSINESS AND DOWNTOWN CORE DISTRICTS

A. **Character and Image.**

1. ***Shared Characteristics.***

a. In multiple building developments, each individual building shall include predominant characteristics shared by each building so that the buildings within the development appear to be part of a cohesive, planned area, yet are not monotonous in design.

b. Compatibility shall be achieved through techniques such as, the replication of roof lines, the use of similar proportions in building mass and outdoor spaces, similar relationships to the street, similar window and door patterns, or the use of building materials that have color shades and textures that are similar to or complimentary to those existing on, or in the immediate area of, the subject property.

2. ***No Established Theme or Stand-alone Development.*** Where there is no established or consistent neighborhood or area character or unifying theme, or where the existing character is not desirable to continue, because it does not reflect a design theme consistent with the development standards as described in this Chapter, the proposed development shall be designed to establish character and a sense of place through the strategic use of architectural elements, building form, materials, landscaping, lighting, etc. which creates a cohesive theme or style for future developments and buildings within the area to follow.

3. ***Corporate Architecture.*** Where the proposed architecture of a building or structure is the result of a franchise style, prototypical or franchise architectural design, including materials and color, shall be modified if necessary to meet these development standards and set a standard, or contribute to a high-level of quality for future developments and buildings within the area.

4. ***Pad Developments.*** Freestanding pad development site design shall be complementary to the surrounding center in terms of building scale, materials, colors, and other architectural details.

B. **Massing and Scale.** The design of buildings shall avoid the appearance of a single, large, dominant building mass by using design techniques that include stepping back portions of the building facade, breaking up the mass into smaller elements and/or using material changes.

1. ***Wall Articulation.*** Exterior building walls shall be subdivided and proportioned to human scale, using projections, overhangs and recesses in order to add architectural interest and variety and to avoid long interrupted wall planes.

a. *Publicly Visible Façades.* All street-facing and publicly visible façades (including those visible from parking lots, open space, or adjoining private properties), shall provide articulation for every 50 linear feet of wall length as follows:

i. One (1) horizontal projection or recess of at least four (4) feet in depth; or

ii. Two (2) horizontal projections or recesses, at least 2.5 feet in depth each.

b. *Non-publicly Visible Façades.* For side or rear walls, not publicly visible from rights-of-way or private property, articulation may be provided by any combination of the following for every 50 horizontal feet of wall:

i. One (1) horizontal projection or recess of at least four (4) feet in depth, or two (2) projections or recesses of at least 2.5 feet in depth;

ii. Change in color accompanied by a distinct change in texture, pattern, or coursing;

iii. Windows or fenestration (false windows and door openings) defined by frames, sills, or lintels;

iv. Trellises with climbing plants; or

v. Projecting fins or louvres extending at least four (4) inches from the wall plane.

c. *Building Projections into Setbacks.* Appropriate separation shall be maintained between buildings on adjacent properties to allow for light, air, and circulation while recognizing the need to allow minor projections that improve the effectiveness of environmental or aesthetic features.

i. Awnings, eaves, overhangs, and light shelves may encroach up to three (3) feet into any required yard but shall not be closer than two (2) feet to any property line.

ii. Building projections shall be no closer than 15 feet to any property line adjacent to sites located in the RS and RSL Districts.

3. ***Roof Articulation.*** Roof articulation is required to provide architectural interest at the skyline and accentuate appropriate building elements.

a. *Varied Roof Form or Height.* Roof forms shall be integrated into the building design and vary over different parts of the building. Each building shall provide at least two (2) changes in height or roof form, achieved through changes in pitch, plane, and orientation.

b. *Flat Roofs.* Flat roofs or façades with a horizontal eave, fascia, or parapet, in excess of one hundred feet in length, shall provide vertical modulation that is the greater of either:

i. Two (2) feet; or

ii. One-tenth ($^1/_{10}$) the height of the supporting wall height, not to exceed one-third (⅓) of the wall height.

c. *Parapet Detailing.* All parapets must have detailing such as cornices, moldings, trim, or variations in brick coursing.

d. *Height Transitions in Multi-Building Developments.* Multiple building developments shall be configured to locate the tallest and largest structures within the core of the site and provide a gradual decrease in building height and mass towards adjacent residential land uses.

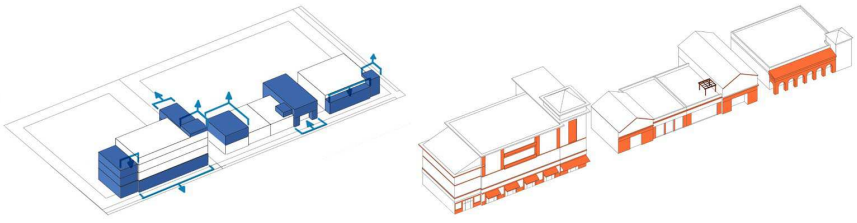


FIGURE 11-8-6.B(1): MASSING & SCALE

C. **Materials.** Buildings and structures shall be constructed of durable, high-quality materials appropriate for Mesa's climate.

1. ***Primary Exterior Building Materials.***

   a. Primary exterior building materials are brick, stone, integrally tinted and textured masonry block, precast concrete, synthetic wood, natural and synthetic stone, stucco and synthetic stucco, or other material approved by the Planning Director.

   b. Variations in the color, finish, or texture of a material (e.g. form-board concrete, smooth stucco vs sand stucco, etc.) shall not be considered separate or distinct materials for the purpose of meeting the material requirements of this section.

2. ***Minimum Use of Primary Materials.***

   a. *Publicly Visible Façades.*

      i. Each publicly visible building façades shall incorporate at least two (2) different primary building materials.

      ii. Primary exterior materials shall cover no less than 75% of each building façade.

      iii. Each primary building material used to satisfy Subsection (2)(a)(i) above shall cover at least 25% of that façade.

   b. *Non-publicly Visible Façades.* Side or rear façades that are not publicly visible shall incorporate a primary building material(s) on at least 50% of the façade.

3. ***Architectural Metals.*** Architectural metals, such as bronze, brass, copper, aluminum, metal-composite material (MCM), and steel shall not cover more than 25% of a building façade. Pre-engineered metal buildings are not allowed in the commercial and mixed-use districts.

4. ***Change in Materials.***

   a. Where material changes are horizontal (i.e., different materials side by side) the transition between materials shall occur at a change in wall plane, preferably at inside corners or where architectural elements intersect (e.g., pilasters, bays, projections) and shall not occur mid-field on a flat wall surface.

b. Where material changes are vertical (i.e., different materials stacked one above another), the transition between materials shall include a belt course, trim band, sill, cap, frame, or similar element to separate the two (2) materials.

5. ***Roof Materials.*** All visible pitched roofs shall consist of metal seam, clay tile, concrete tile, or a similar grade of roofing material.

D. **Base and Top Treatments.** All façades shall have:

1. A recognizable "base" consisting of (but not limited to):

a. Thicker walls, ledges or sills;

b. Integrally textured materials such as stone or other masonry;

c. Integrally colored and patterned materials such as smooth finished stone or tile; or

d. Lighter or darker colored materials, mullions or panels; or planters.

2. A recognizable "top" consisting of (but not limited to):

a. Cornice treatments, other than just colored "stripes" or "bands," with integrally textured materials such as stone or other masonry or differently colored materials;

b. Sloping roof with overhangs and brackets; or

c. Stepped parapets.

E. **All Sided Architecture.** Architectural detailing shall be applied to all sides of a building. While detailing may vary based on orientation and context; all façades visible from a street or open space shall incorporate a level of architectural quality, materials, articulation, and detailing equivalent to the primary façade.

F. **Colors.**

1. Buildings larger than 10,000 square feet shall use two (2) exterior colors on every façade that is publicly visible.

2. Predominant façade colors shall be low reflectance, subtle, neutral or earth tone colors.

3. The use of high-intensity colors as the predominant building color, such as black or fluorescent colors, are prohibited.

4. Building trim and accent areas may feature brighter colors. Accent colors shall cover no more than five percent (5%) of street-facing façades.

5. Changes in building color shall occur at the inside corners where wall planes change, or be separated by a façade element or architectural detail.

G. **Building Entrances.** Primary building entrances shall be clearly defined, shaded, and inviting. The architectural details of building entrances shall be integrated with the overall building design in terms of materials, scale, proportion, and design elements and are appropriately scaled for people.

1. ***Entry Definition.*** Entries shall have a roofed projection or recess with a minimum depth of five (5) feet and minimum horizontal area of 50 square feet.

2. ***Orientation.*** Primary entries shall face the street or primary pedestrian areas.

H. **Access, Circulation, and Parking.**

1. ***Parking Area Design.***

a. *Location.* Parking areas shall be located to the side or rear of buildings; except for Large Commercial Developments which are subject to the requirements of Section 11-31-16 of the Zoning Ordinance.

b. *Interconnectivity.* In the DB-1 and DB-2 Districts, parking areas shall be interconnected to allow vehicular access between parcels and to avoid numerous driveway cuts along street rights-of-way.

2. ***Location of Parking Spaces.*** In commercial and mixed-use projects, a minimum of 50% of the required parking spaces shall be located within 300 feet of the building served.

3. ***Screening and Separation of Parking Areas.*** Parking areas located between a building and street shall be screened with a screening wall or berms at least 2.5 feet high and no more than 3.5 feet high. In addition, parking areas shall be separated from on-site buildings by a distance of at least 10 feet. This separation shall be landscaped and may include a pedestrian walkway.

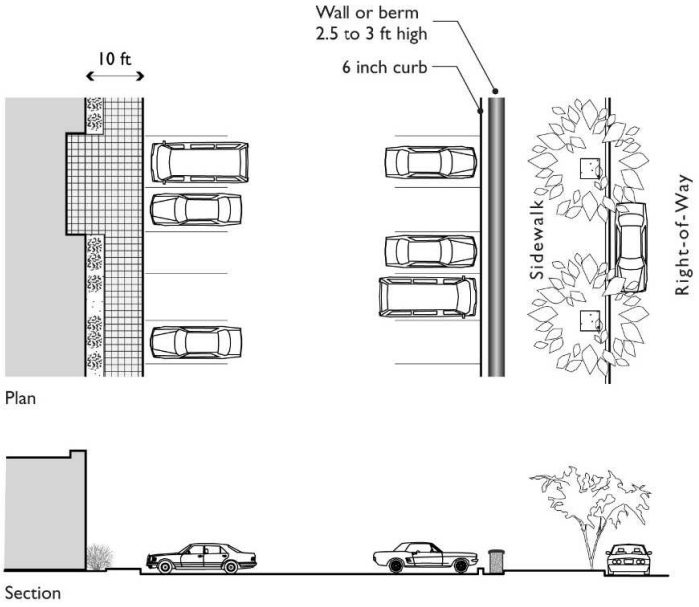


FIGURE 11-8-6.H(1): SCREENING AND SEPARATION OF PARKING AREA

(Ord. No. 5996, § 1, 3-9-26)

11-8-7: ALTERNATIVE COMPLIANCE

A. **Purpose and Applicability.**

1. ***Purpose.*** Alternative Compliance may be used to satisfy the Site Planning and Design Standards in Section 11-8-4 and Section 11-8-6 when conditions may exist where strict compliance is impractical or impossible, or when alternative approaches achieve equivalent or superior design outcomes through innovative site planning, architectural solutions, or other means.

2. ***Applicability.*** Alternative Compliance may be requested for any application subject to the Site Planning and Design Standards of Section 11-8-4 and Section 11-8-6. It may not be used to alter development standards or requirements of other sections of this Zoning Ordinance, and it shall not result in an increase in intensity or lot coverage.

B. **Application.** Requests for Alternative Compliance may be accepted for any application to which Site Planning and Design Standards apply. A written request must be provided in conjunction with the applicable land use application describing the following:

1. The code section(s) and development standard(s) for which Alternative Compliance is being requested;

2. The proposed alternative or offset(s), including any numeric modification(s) from the development standard;

3. An explanation on how the proposal meets the intent of the applicable development standard(s), the applicable General Plan Placetype, and any other applicable Sub-area Plan;

4. An explanation on how the alternative is equivalent or superior to the required development standard, or how the proposed offset(s) produce superior design; and

5. A statement of how the proposal meets the approval criteria in Subsection C below.

C. **Approval Criteria.** The review authority may approve Alternative Compliance only upon finding that the request meets all of the following:

1. The alternative does not create adverse impacts on safety, access, visibility, glare, privacy, noise, drainage, heat island effect, and does not reduce pedestrian comfort or accessibility.

2. The proposed alternative or tradeoff is the minimum necessary to achieve the intent while maintaining overall compliance with all other applicable standards.

3. The proposal either:

a. Provides equivalent or superior quality and functionality; or

b. Provides offsetting public benefits (e.g., improved streetscape, enhanced shade/canopy, open space, sustainability features).

(Ord. No. 5996, § 1, 3-9-26)

CHAPTER 9 (RESERVED FOR FUTURE USE)*

CHAPTER 10 PUBLIC AND SEMI-PUBLIC DISTRICT†

11-10-1: PURPOSE

The purpose of the Public and Semi-Public (PS) District is to accommodate large-scale governmental, public utility, recreational, and educational facilities. It is the intent of this district to:

A. Recognize those uses that are provided by public entities for public usage and convenience;

***Editor's note—**Previously, Chapter 9 derived from Ord. No. 4262, 8-16-04.
†Editor's note—Previously, Chapter 10 derived from Ord. No. 4262, 8-16-04.

B. Ensure high quality development;

C. Encourage the use of sustainable development practices; and,

D. Insure compatibility with surrounding uses.

11-10-2: LAND USE REGULATIONS

Facilities owned, leased, or operated by city, county, state, or federal governments or agencies thereof or school districts are considered permitted in this district. In addition, Table 11-10-2, which follows, specifies additional land use regulations for each Public and Semi-Public zoning district, established by letter designations as follows:

- "P" designates use classifications permitted in public and semi-public districts.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit
- "SUP" designates use classifications permitted on approval of a Special Use Permit.
- "CUP" designates use classifications permitted on approval of a Council Use Permit.
- "(x)" a number in parentheses refers to limitation following the table.

Use classifications not listed are prohibited. The "Additional Use Regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-10-2: Public and Semi-Public District		
Proposed Use	**PS**	**Additional Use Regulations**
Agricultural Use Classifications		
Community Gardens	P	Section 11-31-10, Community Gardens
Public and Semi-Public Use Classifications		
Cemeteries	P	
Community Center	P (2, 5)	
Cultural Institutions	P (2, 5)	
Government Offices	P	
Hospitals and Clinics		
Clinics	P (2, 3)	Section 11-31-15, Hospitals and Clinics
Hospitals	P (2, 3)	
Parks and Recreation Facilities, Public	P	
Public Safety Facilities	P	
Public Maintenance Facilities	P	
Schools, Colleges, and Trade Schools		
Colleges or Universities, Private	CUP (2, 3)	Section 11-31-24, Schools
Colleges or Universities, Public	P	
Commercial Trade Schools, Private	CUP (2, 3)	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	
Industrial Trade Schools, Private	CUP (2, 3	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	
K-12, Private	CUP (2, 3)	Section 11-31-24, Schools
K-12, Public	P	
Transportation, Communication, and Utilities Use Classifications		
Airports	CUP	

Table 11-10-2: Public and Semi-Public District		
Proposed Use	**PS**	**Additional Use Regulations**
Heliports (1)	CUP	
Communication Facilities		
Antenna and Transmission Towers	CUP	
Facilities within Buildings	P	
Transportation Passenger Terminals	P	
Utilities, Major	CUP	
Utilities, Minor	P	
Specific Accessory Uses and Facilities		
Accessory Dwelling Unit	P (6)	Section 11-31-3, Accessory Dwelling Unit
Temporary Outdoor Entertainment	TUP	Section 11-31-30, Temporary Uses
Temporary Outdoor Sales	TUP	
Battery Energy Storage System (BESS)	P (7)	Section 11-31-37, Battery Energy Storage System (BESS) and BESS Facilities
1. Heliports require a CUP unless considered an accessory use when a part of a hospital or clinic.		
2. Use not permitted when the property is subject to the AOA 1 overflight area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.		
3. Use not permitted when the property is subject to the AOA 2 overflight area, see Section 11-19-2, Runway Protection Zones and Airport Overflight Areas		
4. Use permitted with the approval of a CUP when the property is subject to the AOA 1 overflight area, See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas		
5. Use permitted with the approval of a CUP when the property is subject to the AOA 2 overflight area, See Section 11-19-2, Runway Protection Zones and Airport Overflight Areas.		
6. Permitted if an existing non-conforming residential use is located on the lot.		
7. Refer to Section 11-31-37(B)(2) for conditions under which a BESS may qualify as an Accessory Use.		

(Ord. No. 5759, § 1, 12-8-22; Res. No. 12269, § 9, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5976, § 3, 1-12-26)

11-10-3: DEVELOPMENT STANDARDS

Table 11-10-3 and the subsection that follows it prescribe the development standards for the PS District.

Table 11-10-3: Development Standards - PS Public and Semi-Public District	
Site Standards	
Minimum Site Area (sq. ft.)	None
Building Form and Location	
Maximum Height (ft.)	30 ft. within 60 ft. of RS, RSL, and DR-1 60 ft. all others
Minimum Front and Street-Facing Side Setback	Varies by classification of adjacent street: 6-lane arterial: 30 ft. 4-lane arterial: 20 ft. Collector: 20 ft. Local Street: 20 ft. Freeways: 30 ft. for buildings; 15 ft. for parking areas and structures Next to MX or DC: Same as adjacent district
Minimum Interior Side and Rear Setback: Adjacent to RS District	Sites smaller than 5 acres: 20 ft. Sites 5 acres or larger: 25 ft.
Minimum Interior Side and Rear Setback: Adjacent to RM District	Single-story building: 20 ft. Two or more stories: 15 ft. per story
Minimum Interior Side and Rear Setback: Adjacent to Non-residential District	Single-story building: 15 ft. Two or more stories: 15 ft. per story
Minimum Separation between Buildings on Same Lot (ft.)	One-story building: 25 ft. Two-story building: 30 ft. Three or more story building: 35 ft.

A. **Buffer Yards.** A six (6) foot tall screen wall is required wherever a lot located in the PS District abuts a RS, RSL, or DR District at the time of development. In addition, if a lot in the PS District abuts a lot in an RS, RSL, or DR-1 District at the time of development, a landscape buffer of at least 15 feet wide shall be provided on the PS-zoned lot.

(Ord. No. 5814, § 1(Exh. 1), 10-16-23; Ord. No. 5996, § 4, 3-9-26)

11-10-4: REVIEW OF PLANS

Permit and review procedures shall follow the standards established in Article 7, Administration.

CHAPTER 11 PLANNED COMMUNITY DISTRICT

11-11-1: PURPOSE AND INTENT

The purposes of the Planned Community (PC) District are to:

A. Accommodate large-scale, unified and comprehensively planned developments that encourage and promote innovative and sustainable residential and non-residential land uses;

B. Allow flexibility for innovative and high quality development while meeting the goals of the Mesa General Plan and establishing planning and development control parameters tailored to the opportunities and constraints of the property;

C. Conserve scarce energy resources, using technologies, materials and designs that are sustainable;

D. Provide for creative and high quality design and materials, for buildings and landscape, to accomplish efficient, aesthetic, sustainable, and desirable development that highlights special features of the geography, topography, size, or shape of a particular property and that include exceptional public amenities and facilities;

E. Provide environmental improvements that mitigate air and storm water pollution. Provide shade and reduce the effects of the urban heat island;

F. Ensure that areas designated as neighborhood centers, urban centers or regional centers in the Mesa General Plan contain an appropriate variety and mix of employment, office, retail, medical, educational, community service, tourism, entertainment, open space, recreational, and residential uses to provide center(s) with a sense of place within the community;

G. Ensure that residential neighborhoods utilize a variety of housing types and densities that contain parks and schools that are located within convenient walking or bicycling distance from all homes, and neighborhood village centers with shops, restaurants, service uses, schools, and other civic uses that provide each neighborhood an individual identity and foster community interaction;

H. Ensure that demands on streets, utilities and other public infrastructure do not exceed the capacity of existing or planned facilities, and ensure that the development will accommodate new and future technologies for utilities and other public infrastructure;

I. Provide reasonable assurances to the City and land developer that the proposed development may be planned and carried out in one or more phases over an extended period, in accord with an approved Community Plan; and

J. Provide for cohesive development patterns that integrate well with surrounding development; and encourage a variety of transportation options.

(Ord. No. 5928, § 15, 2-3-25)

11-11-2: LAND USE AND DEVELOPMENT REGULATIONS

A. **General Plan and Zoning.** PC Districts may be established within areas designated mixed residential, urban residential, neighborhood center, urban center, or regional center in the Mesa General Plan. The PC District and adopted Community Plan are the zoning for the property. The adopted Community Plan also is the principal reference for implementation and review of future development within the boundary of the overall site. All development that takes place within the boundaries of a PC District shall be governed by and built in accordance with the adopted Community Plan or approved amendments to the Community Plan.

B. **Minimum Area.** The minimum area required for a PC District is 160 contiguous acres.

C. **Permitted Uses and Land Use Groups.** The permitted and conditional land uses for a PC District shall be listed in, and established by, an adopted Community Plan. As part of the Community Plan, the uses shall be individually listed for each development unit, and the uses shall be grouped into land use groups. A land use group may be subdivided into sub-land use groups. Such groups may be based in whole or in part on existing Mesa Base Zoning Districts or may be new categories. In addition to listing all permitted uses in the land use groups and any sub-land use groups, the Community Plan shall have a narrative describing the intent and purpose for each.

1. ***The Community Plan.*** The Community Plan may establish any land use as a conditional use that requires review and approval of Council Use Permit, Special Use Permit, or Administrative Use Permits in accordance with Chapter 70 of this Title.

2. ***Land Use Budget.*** In the Community Plan, the land use groups and any sub-land use groups shall be designated for each development unit, and have a minimum and maximum range (the land use budget) for each designated land use group and/or the budget may be specific to sub-land use groups or individual land uses. The land use budget shall be expressed in the following manner:

    a. Dwelling units (DU) shall be used as the measure to express the number of residences.

    b. The density of a residential project, expressed as a ratio of the number of dwelling units per acre (DU /AC), shall be the measure of the intensity of a Residential Land Use.

    c. Gross Floor Area (GFA) shall be the measure used to express the amount of mixed and non-residential land use.

    d. Floor Area Ratio (FAR) shall be the measure used to express the intensity of development for all mixed and non-residential land uses.

    e. The approved Community Plan may include additional measures for the land use budget.

f. The amounts (e.g. DU, GFA) and intensities (e.g. DU /AC, FAR), expressed in minimum and maximum ranges, for each land use group (and any sub-land use groups or specific land uses) for the development units, in aggregate, shall not exceed the total adopted for the Community Plan.

3. ***Development Unit Land Use Plan.*** With the approval of each development unit there shall be a Development Unit Plan that shall identify:

a. The general location for the land use group and any sub-land use group (and may identify general locations for specific uses).

b. The approximate amount of acreage for such group (or specific use).

c. The intensity of development proposed at each location.

4. ***Development Plan.*** With the approval of each Development Plan the permitted uses shall be specified on the Development Plan by reference to sub-land use group(s) or specific uses. Permitted uses at a specific site shall be limited to those specified on the approved Development Plan; all other uses are prohibited.

D. **Development Standards.** The Community Plan shall specify General Development Standards, as defined in Chapter 87, for the PC District.

1. ***Application of the General Development Standards.*** The General Development Standards shall apply to each development unit, site plan, and all development in the PC District.

2. ***Zoning Ordinance Standards as Default Standards.*** Site plans and improvements to individual lots or sites shall conform with the standards set forth in the Zoning Ordinance (the Zoning Ordinance Standards) for the district or use most nearly approximating the proposed uses, where applicable, and intensities of use unless the approved General Development Standards for the adopted Community Plan include a specific standard.

a. *Modifications to Default Standards.* The Community Plan may establish a process that authorizes the Zoning Administrator to grant minor modifications to an applicable Zoning Ordinance Standard and/or General Development Standards.

b. *Criteria for Modifications to Default Standards.* The Zoning Administrator shall use, at a minimum, the following criteria when evaluating all requests for minor modifications to Zoning Ordinance Standards and/or General Development Standards:

i. The minor modification is consistent with the application of design requirements designated in the Community Plan; and

ii. The minor modification is consistent with the implementation of the Community Plan and the Development Unit Plan; and

iii. The minor modification will result in a project design that meets or exceeds the design goals and guidelines as expressed by the Community Plan; and

iv. The minor modification results in a building of superior architectural design, as determined by building form and massing, use of materials and colors, and relationship of the building to the building site; and

v. The minor modification is in accord with the Mesa Building Code and adopted Engineering Division requirements, as may be applicable.

E. **Standards not in the Zoning Ordinance.** Modifications to development standards not established within the Zoning Ordinance shall be in accordance with procedures and processes established in the Mesa City Code. With the application of the PC District, certain modifications may be sought in accordance with 9-5-3(C), 9-6-7(C), and 9-8-4(C).

(Ord. No. 5996, § 4, 3-9-26)

11-11-3: APPLICATION REQUIREMENTS

A. **Pre-Submittal Conference.** A pre-submittal conference with the City Planning Director and Engineer, or their designees, is required prior to submittal of an application for PC District zoning. The applicant shall provide a description of the boundary of the proposed PC District, a conceptual land use summary and budget, proposed development units, project narrative, proposed General Development Standards, and any proposed modifications that may be sought in accordance with sections 9-5-3(C), 9-6-7(C), and 9-8-4(C).

B. **Application and Submittal Requirements.** In addition to the requirements for rezoning amendments as described in Chapter 76 of this Title, each application for rezoning to the PC District shall be accompanied by the following information. Submittals that fail to include all of the items listed in the below subsections shall not be scheduled for consideration.

1. An application form, available in the Planning Division office, and payment of required fees.

2. A map showing the ownership of the property within the proposed PC District, and a current Title report for the property.

3. The name(s) and current address(s) of the applicant, owner, and developer.

   a. If the applicant, owner or developer is a corporation, the names and current addresses of the principal officers and members of its board of directors shall be submitted in addition to the information required above.

   b. If the applicant, owner or developer is a partnership, the names and current addresses of the general and managing partners shall be submitted in addition to the information required above.

   c. A material change in any of the information regarding the identity of the applicant, owner or developer or in any address thereof shall be filed with the City within 30 days of the change.

4. A legal description with dimensions and bearings of the proposed PC District boundary.

5. A narrative describing and explaining how the proposed PC District and Community Plan complies with and meets the purpose, intent, and requirements of the Mesa General Plan and the PC District. This narrative shall be separate from the Community Plan.

6. Development Schedule shall be submitted as part of the Community Plan that includes the following:

   a. The timeframe in which construction or development is expected to begin and the estimated duration of time required for completion of all development including public infrastructure improvements necessary to serve the Community;

   b. Anticipated phasing, including phasing of infrastructure improvements, if the project will not be developed as one unit, including a plan for the interim use, maintenance and management of the undeveloped phase or phases;

   c. The anticipated completion of development for each development unit; and

   d. Anticipated initiation and completion dates for each phase or development unit, in no greater than three-year increments.

7. A Community Plan, which shall include all the minimum required elements listed in Section 11-11-4.

C. **Evaluation.** The Planning & Zoning Board and City Council shall consider at a minimum the following goals and objectives when evaluating the proposed Community Plan. The proposed Community Plan should:

1. Conform to applicable policies, land use map designations, and land use definitions of the Mesa General Plan;

2. Conform to the purposes and intents of the PC District as listed in Section 11-11-1;

3. Provide the following when the PC District is located on a site designated as a mixed residential, urban residential, neighborhood center, urban center, or regional center placetype on the Mesa General Plan placetype map:

   a. A mix of land uses in a wide variety of building forms which creates a complete community environment; and

   b. An appropriate mix of non-residential uses, including commercial, employment (such as office and industrial), and public/semi-public, in addition to multiple forms of residential uses; and

   c. One or more areas designated as villages or urban cores that will serve and complement surrounding residential development.

4. Provide a combination of land uses that are arranged and designed in such a manner as to be well integrated with other land uses, the immediate surrounding area, the planned thoroughfare system, and other public facilities such as water and sewer systems, parks, schools, transit routes and utilities.

5. Include adequate provisions and sites for schools, playgrounds, parks, trails, and other recreational facilities that are adequate to serve the anticipated population and interconnected with other public open spaces and recreational resources within the city.

6. Adequately, reasonably, and conveniently integrate into existing and planned streets, transit systems, and public services, utilities, and public facilities and will not result in a reduction in service levels to adjacent properties.

7. Promote development that is appropriate to and well integrated with its environmental setting, including existing vegetation, soils, geology, topography, and drainage patterns.

8. Preserve, where possible, any significant historical, cultural, and archaeological features of the site.

9. Provide superior design and environmental sustainability in comparison with development reviewed under other base zoning district regulations.

10. Provide a level of detail that adequately describes the relative quality and design themes of the built environment of the project, both at completion and during the phased implementation of the Community Plan.

11. Be compatible with, and not detrimental to, adjacent properties or the surrounding neighborhood(s).

D. **Conditions.** The City Council may place conditions on its approval of a PC District, Community Plan, and/or modifications to either a PC District or a Community Plan. Such conditions of approval may include, but are not limited to: conditions to ensure implementation of the Community Plan in accordance with the Mesa General Plan, and other applicable plans and policies adopted by the City; conditions to achieve the purposes and intents described in Section 11-11-1; and, conditions requiring additional or different approval processes for development units, design guidelines, development plans, and/or areas within the PC District.

(Ord. No. 5928, §§ 15—17, 2-3-25; Ord. No. 5996, § 4, 3-9-26)

11-11-4: COMMUNITY PLAN REQUIRED

A. **Contents.** A Community Plan shall be submitted concurrently with the application for the PC District, and shall include the following:

1. ***Community Plan Map.*** A map, which may consist of multiple sheets, drawn to a suitable scale and that includes the following elements:

a. The boundary with dimensions and bearings of the proposed PC District.

b. Division of the entire site into separate land development increments, referred to as Development Units. The size and number of Development Units shall be sufficient to provide understanding of the pattern, phasing and intensity of development authorized by the Community Plan.

c. The approximate location of proposed freeways, parkways, arterial streets, and streets which provide connectivity between development units and other major transportation and transit corridors.

d. Major drainage elements within the proposed PC District and vicinity.

e. Existing and proposed utility corridors.

f. Any major trails and/or bikeways, including their proposed connections to conceptual trail locations identified in the Mesa General Plan or other applicable plans adopted by the city.

g. Location of any known significant historical, cultural, and archaeological features of the site.

2. ***Land Use Regulations.*** Permitted land uses, land use groups, and any sub- land use groups, as described in Section 11-11-2(C), and a Land Use budget, as described in Section 11-11-2(C)(1).

3. ***Master Developer.*** The Community Plan shall identify a Master Developer or other entity that shall be designated to ensure all future development requests are in compliance with the land use budget and in compliance with the provisions of the Community Plan.

4. ***Community Facilities Element.*** A narrative describing the estimated need for community facilities, including public schools, parks, open space, fire stations, police substations and other similar community facilities, by type and land area.

5. ***Infrastructure Element.*** Major street system and transportation plan, and Utilities and storm water drainage master plans.

6. ***General Development Standards.*** Defined in Chapter 87 of this Title.

7. ***Design Guidelines.*** Community Plan Design Guidelines for the development of the property, including illustrations of proposed architectural, urban design, streetscape, and landscape concepts, thematic design elements such as architectural materials, building colors and landscape plants, and any proposed variation from Chapter 30, General Site Development Standards. The Community Plan Design Guidelines may describe broadly based design or architectural themes and concepts, sufficient to convey an idea and general pattern of development. With the application of the Development Units and Development Unit Design Guidelines shall be submitted that are consistent with, and provide further detail to, the Community Plan Design Guidelines.

8. ***Supplemental Reports.*** Each Community Plan shall be accompanied by the following supplemental reports, as determined by the Planning Director and City Engineer at the time of the Pre-Submittal Conference.

   a. Traffic impact analysis, soils engineering report, geology report, and/or drainage report.

   b. Additional information as necessary to facilitate understanding, review and action on the application by the Planning & Zoning Board and the City Council.

9. ***Requirements and Administration for Future Development Unit Plans.*** Consistent with, and in addition to the requirements in this Chapter, the Community Plan shall set forth additional elements for the Development Unit Plans, additional submittal and process requirements for Development Unit Plans and amendments thereto, and additional criteria for reviewing Development Unit Plans. Such additional requirements shall include, but are not limited to, the process and public body or position that reviews, and may approve, future Development Unit Plans. Such additional elements and criteria shall include, but are not limited to, criteria and requirements to ensure that future development plans will facilitate development compatible with adjacent properties and surrounding neighborhoods, will facilitate the implementation of the Community Plan, will facilitate appropriate transitions between differing developments, and will not overburden the

transportation system, utility infrastructure or community facilities. If a Development Unit Plan Application is filed prior to the approval of the Community Plan, such a Development Unit Plans may be approved by City Council with the approval of the Community Plan.

10. ***Requirements and Administration for Future Development Plans.*** Consistent with, and in addition to the requirements of this Chapter, the Community Plan shall set forth additional elements required of Development Plan Review, additional submittal and process requirements for a Development Plan, Development Plan Modification, and additional criteria for review or modification of Development Plans. Such additional requirements shall include, but are not limited to, specifying how Development Plan Review requirements will be administered within a development unit, and set forth the review and approval process for Development Plan Review. Such additional elements and criteria shall include, but are not limited to, criteria and requirements to ensure that Development Plans will facilitate development compatible with adjacent properties and surrounding neighborhoods, will facilitate the implementation of the Community Plan, will facilitate appropriate transitions between differing developments, and will not overburden the transportation system, utility infrastructure or community facilities.

B. **Review of PC District and Community Plans.** The PC District and Community Plan shall be reviewed, and a recommendation to City Council shall be made, by the Planning & Zoning Board. The Community Plan Design Guidelines shall also be reviewed, and a recommendation to City Council shall be made, by the Planning & Zoning Board. The PC District and Community Plan shall be reviewed, and are subject to approval by City Council. These processes shall be in accordance with the requirements of this Chapter 76 of this Title.

(Ord. No. 5928, § 18, 2-3-25; Ord. No. 5996, § 4, 3-9-26)

11-11-5: REVIEW AND CONSIDERATION OF DEVELOPMENT UNIT PLANS

A. **Pre-Submittal Conference.** A Pre-Submittal Conference with the City Planning Director and Engineer, or their designee, is required prior to submittal of a Development Unit Plan Application.

B. **Consideration of Request.** Development Unit Plans shall be reviewed, and are subject to approval, in accordance with the requirements and process established by the adopted Community Plan. The Development Unit Plans include, but are not limited to, Development Unit Design Guidelines and a Development Unit Land Use Plan.

C. **Development Unit Design Guidelines.** Development Unit Design Guidelines shall be submitted that are consistent with, and provide further detail to, the Community Plan Design Guidelines. The Development Unit Guidelines shall include design themes, additional standards and concepts unique to the development unit, and shall be of sufficient detail to ensure cohesive, integrated, high-quality design. All development plans and development shall conform to, and be consistent with, the approved Development Unit Design Guidelines.

D. **Development Unit Land Use Plan.** A Development Unit Land Use Plan, as described in Section 11-11-2(C)(3), shall be of sufficient detail to ensure the compatibility of future development in the unit and compatibility with properties surrounding the unit, to ensure appropriate transitions between differing developments, to ensure that development will not overburden the transportation system, utility infra-

structure or community facilities, and to facilitate the implementation of the Community Plan. All development plans and development shall conform to, and be consistent with, the approved Development Unit Land Use Plan.

E. **Review of Development Unit Plans.** Applications for Development Unit Plans within an adopted PC District shall only be approved if the application and supporting materials are consistent with the approved Community Plan, as well as any conditions or modifications of the Community Plan that were imposed by the City Council. In addition to the requirements and criteria established in this Chapter and Community Plan to evaluate development units. Development Unit Plans shall be consistent with the approved Community Plan as follows:

1. The land use budget for a development unit shall remain identical to, or within the range established by the approved Community Plan budget for that development unit.

2. Development Unit Plans shall be consistent with any major or minor amendments of the Community Plan.

3. All other relevant policies and guidelines as outlined in the Community Plan shall remain as adopted.

(Ord. No. 5996, § 4, 3-9-26)

11-11-6: DEVELOPMENT PLAN REVIEW

A. **Pre-Submittal Conference.** A Pre-Submittal Conference with the City Planning Director and Engineer, or their designee, is required prior to submittal of a Development Plan application.

B. **Development Plan Approval Required.** All non-single residence development within a PC District shall require an approved Development Plan. All single residence developments shall meet this requirement through the subdivision process as required by Chapter 6, of Title 9 of the Mesa City Code. For all development requiring an approved Development Plan, no building permit shall be issued for such sites until there is an approved Development Plan.

C. **Development Plan Review.** All sites shall be reviewed, and be subject to approval, by the Planning Director and his/her designees, unless otherwise designated by the adopted Community Plan.

D. **Review and Conditions.** Development Plans shall be reviewed for consistency with the requirements of this Chapter, the Community Plan and Development Unit Plans. Unless otherwise specified in the Community Plan, conditions may be imposed on the approval of any Development Plan as may be deemed necessary to ensure that the site is designed in a way to facilitate compatibility with adjacent property and to ensure that the development will be in accordance with the Community Plan, the General Development Standards, Community Plan Design Guidelines, Development Unit Design Guidelines, and the Land Use Budget. The Community Plan may establish additional criteria for such conditions. Consistent with this Chapter and any additional criteria established in the Community Plan such conditions may include:

1. Revised building setbacks;

2. Revised landscaping;

3. Revised on-site parking and loading spaces;

4. Height and area limitations on structures;
5. Limited Vehicular access;
6. Placement and/or installation of walls, fences, and screening devices;
7. Installation of noise attenuating construction; and
8. Off-site improvements in public rights-of-way adjacent to the subject property.

E. **Required Information.** All applications for Development Plan Review for development within an approved PC District shall include drawings (drawn to scale) and other supporting materials and documents, as determined by the Community Plan. Additional materials and plans may be requested, as needed, by the Planning Director to determine the full compatibility of the project to neighboring development.

F. **Land Use Budget Update.** The Master Developer shall review all Development Plans prior to submittal to ensure compliance with the land use budget. All Development Plans shall be submitted with a chart, approved by the Master Developer, updating the land use budgets for the Community Plan and the applicable Development Unit Plan.

G. **Permitted Uses.** The permitted uses shall be limited to those identified on the Development Plan as described in Section 11-11-2(C)(4).

H. **Appeal of a Development Plan Review Decision Made by a City Board or the Planning Director.** The applicant, any owner of property within 750 feet of the boundaries of the Development Plan Review case or the City Manager (or his designee) may appeal a Development Plan Review decision. The appeal shall be made in writing, specifying the grounds for the appeal, within 15 business days of the decision. An appeal from a decision by a City board shall be forwarded to the City Council for review and consideration. An appeal from a decision by the Planning Director shall be forwarded to the Planning and Zoning Board (unless specified otherwise in the Community Plan for review and consideration). It shall be the responsibility of the applicant to complete all citizen participation requirements. The appellate body shall rehear the request, and shall have the ability to affirm, reverse or modify the previous decision.

(Ord. No. 5996, § 4, 3-9-26)

11-11-7: DEVELOPMENT PLAN EXPIRATIONS AND EXTENSIONS

The expiration and extension of Development Plan approvals follow any procedures set forth in the applicable Community Plan, or, if not addressed in the applicable Community Plan, the common procedures for approvals and extensions in Section 11-67-9 of the Zoning Ordinance.

(Ord. No. 5996, §§ 3, 4, 3-9-26)

11-11-8: AMENDMENTS TO AN APPROVED PC DISTRICT

A. **Initiation.** Amendments to a Community Plan may be requested by the Master Developer or an owner of property located within a PC District. Amendments requested by a property owner shall provide documentation that notice of such request has been provided to the Master Developer.

B. **Limitation of Affected Area.** Amendments to the approved Community Plan may be limited to one or more development units and any proposed change will not extend to, or affect, another development unit unless specifically included in the area to be affected by the proposed amendment.

C. **Land Use Budget Transfer.** A Community Plan may establish the process and criteria for permitting an unused portion of a development units' land use budget to be transferred to another development unit. To allow such transfers, the Community Plan must establish criteria to categorize transfers as major amendments or minor amendments. Such criteria shall be consistent with the requirements of this Chapter.

D. **Major Amendments.** The Planning Director shall determine if the proposed amendment constitutes a major or minor amendment. If the Planning Director determines an amendment to be major, the amendment request shall be processed as an amendment to the PC District and Community Plan. An amendment will be deemed major if it involves any one of the following:

1. A change in the overall PC District boundary.
2. A change to the permitted uses in the PC District or any development unit.
3. A change to the General Development Standards.
4. An increase in the total number of approved dwelling units, floor area ratio (FAR) or gross floor area (GFA) for the overall PC District.
5. A significant change to the boundary or gross area of a development unit from that approved in the PC District, as determined by the Planning Director. A 10 percent increase or decrease to the gross area of a development unit as approved in the PC District shall automatically be determined a significant change.
6. Any change to the land use budget for the PC District. Any change to the land use budget for a particular development unit, except if the change is a result of an approved Land Use Budget Transfer.
7. Any change in land use intensity that is likely to negatively impact or burden public facilities, transportation systems, major street systems, and utilities infrastructure as determined by the appropriate department head.
8. Any proposed change to the Community Plan that substantively alters one or more components or required elements of the PC District or Community Plan as determined by the Planning Division.

E. **Minor Amendments.** Amendments not meeting one or more of the criteria listed in above subsections shall be considered minor. If the Planning Division determines the amendment to be minor, the Planning Director may administratively act on the amendment and attach stipulations or conditions of approval thereto.

F. **Notice.** Unless otherwise provided for in the Community Plan, notice of the proposed minor amendment shall be mailed, or otherwise made as determined by the Planning Director, to each owner of property as last disclosed by county assessor records, situated wholly or partly within 750 feet of the affected development unit(s) to which the amendment relates. For purposes of giving mailed notice, if required, the Planning Division shall require the applicant to prepare the letters, and stamp and address the envelopes of all affected property owners as determined above. The fully prepared letters will then be submitted to Planning Division staff, who will place the envelopes in the mail.

G. **Written Protest.** If written protest to any minor amendment is received from any notified property owner within 15 days of the notification mailing date and such protest cannot be resolved, then the minor amendment shall be reclassified as a major amendment. No additional application shall be required, however, all provisions governing major amendments shall then apply.

H. **Planning Director Decision.** If written protest is not received as described above, the Planning Director shall render a decision on the minor amendment request. The Planning Director's decision shall be final unless appealed under section 11-11-9. The Planning Director or assigned designee shall send copies of the decision to the applicant, interested parties of record and members of the Planning & Zoning Board.

11-11-9: ADMINISTRATIVE DECISION APPEALS

A. **Appeal to Planning and Zoning Board.** An action or decision by the Planning Director on minor amendments may be appealed by the applicant, or by an owner of property located within 750 feet of the area affected by the minor amendment. The appeal shall be filed within 15 days from the date of the Planning Director's decision.

1. Appeals shall be made in writing and submitted to the Planning Director, and

2. Appeals shall include: the specific items being appealed, the conclusion the appellant believes should occur and why the initial decision should be changed. The Planning Division will submit a report and any background material regarding the appeal to the Planning & Zoning Board. The applicant associated with the action being appealed shall be informed by the Planning Division of the date, time and location of the appeal hearing.

3. The applicant shall notify adjacent property owners of the Planning and Zoning Board meeting in the same manner as described in Section 11-11-8.

4. The Planning and Zoning Board's decision on the appeal will be sent to the applicant and interested parties of record. The decision of the Planning and Zoning Board will be final, unless the applicant or an owner of property within 750 feet of the area affected by the minor amendment initiates an appeal to the City Council in accordance with Sub-section (B) of this section.

B. **Appeal to Council.** The applicant or an owner of property located within 750 feet of the area affected by the minor amendment or any action or decision involving a development unit plan or an appeal of a minor amendment to a Community Plan.

1. The appeal shall be filed within 15 days of the board's decision.

2. Appeals shall be made in writing and submitted to the Planning Director, and shall include: the specific items being appealed, the conclusion the appellant believes should occur, and why the initial decision should be changed.

3. City Council's review on appeal is de novo. The City Council may consider any information before it when hearing an appeal under this section. City Council may remand the matter for further proceedings or may affirm, reverse, or modify the decision.

11-11-10: SUPPLEMENTARY PROVISIONS

A. For the PC District, Community Plan, Development Unit Plan, Development Plan Review, and amendment thereto, notice and citizen participation shall be in accordance with Article 7, Administration this Ordinance, except an adopted Community Plan may modify these notice and citizen participation requirements for approvals and amendments that the Community Plan establishes are to be subject to approval by the Planning Director or designee.

B. The owner(s) of property located in the PC District shall notify all prospective purchasers of the existence of the PC District and the Community Plan. Upon approval of the PC District, the owner(s) shall record a notice in the County Recorder's Office that provides notice to purchasers that the property is subject to the PC District and a Community Plan and that the development and use of the property is subject to other property owner's use of the Land Use Budget in the development unit.

C. Prior to or with the approval of a PC District, there shall be a Development Agreement that includes Development Unit Phasing Schedule, Infrastructure Phasing Plan, and other terms to ensure that the future development fulfills the purposes of this Chapter and the Community Plan.

(Ord. No. 5996, § 4, 3-9-26)

CHAPTER 12 ID - INFILL DEVELOPMENT DISTRICTS*

11-12-1: PURPOSE

A. **General Purpose.** The purpose of the Infill Development (ID) Districts is to promote and facilitate the development and redevelopment of by-passed, underutilized, or abandoned properties. This district provides for the establishment of specific land uses, development standards, alternative fees and streamlined review processes as incentives to stimulate re-investment and development of these properties in a manner that will contribute to the creation of a high quality context for employment opportunities and improve the overall economic viability of that area of the city. The ID Districts may be used when other tools available in the Zoning Ordinance will not work to address the needs of the properties involved. It is the intent of this district to:

1. Encourage flexibility in the development, redevelopment, investment and reinvestment of by-passed, underutilized and/or abandoned properties that meet the criteria below for establishment of this district through the use of Infill Incentive Plans.

2. Encourage the use of innovative approaches to development that utilize sustainable development practices and incorporate environmental performance standards.

3. Where an urban form is anticipated or desired, encourage a mix of uses in close proximity of each other to promote pedestrian activity and reduce vehicle miles traveled. This goal includes consideration of off-site activities.

4. Facilitate the development, redevelopment, and use of properties in Mesa where the public infrastructure is in place.

***Editor's note**—Previously, Chapter 12 derived from Ord. No. 4262, 8-16-04.

B. **Specific Purposes of Each District.** There are two Infill Development districts:

1. ***ID-1.*** The ID-1 District is for use with small sites of less than 5 acres that need relief from only a few development standards in order to develop or redevelop.

2. ***ID-2.*** The ID-2 District is for use with sites of 2.5 acres or more that would benefit from a more comprehensive modification of standard development requirements in order to develop or redevelop.

11-12-2: APPLICABILITY

An ID District may be established for any area where the City Council finds that the property meets the definition of "by-passed parcel" as defined in this Ordinance, without regard to lot size. The Council must also find that the area within the district meets at least 3 of the following requirements:

A. There is a high percentage of vacant older or dilapidated buildings or structures;

B. There is a high percentage of vacant or underused parcels of property, obsolete or inappropriate lot or parcel sizes, buildings designed for obsolete land uses, or environmentally contaminated sites;

C. There is a high percentage of buildings or other places where nuisances exist or occur;

D. There is an absence of development and investment activity compared to other areas in the City;

E. There is a high occurrence of crime; or,

F. There is a continuing decline in population.

11-12-3: LAND USE REGULATIONS

A. **ID-1 Districts.** Land use regulations will be established for a given ID-1 district by referencing a base zoning district established in this Ordinance in the Infill Incentive Plan (IIP) and in the ordinance adopting the zoning designation. The uses allowed in that referenced district will be allowed on the property following approval of the rezoning. Example, the adopting ordinance would state that the uses permitted would be the same as the LC, Limited Commercial District.

B. **ID-2 Districts.** The land uses permitted in a given ID-2 district will be established uniquely for that district based on the Infill Incentive Plan (IIP) approved by City Council with the adoption of the ID district. The requirements for the IIP are described in Section 11-12-5.

11-12-4: DEVELOPMENT STANDARDS

A. **ID-1 Districts.** The General Development Standards established in this Ordinance and the specific development standards for the base zoning district are required, unless specifically modified by the City Council with the approval of the ID-1 district.

B. **ID-2 Districts.** The General Development Standards and specific development standards for property zoned ID-2 shall be established through the review and approval of an IIP as described in Section 11-12-5.

C. **Standards not in the Zoning Ordinance.** Modifications to development standards not established within the Zoning Ordinance shall be in accordance with procedures and processes established in the Mesa City Code (MCC). With the application of the ID District, certain modifications may be sought in accordance with MCC Sections 9-5-3(C), 9-6-7(C), and 9-8-4(C).

(Ord. No. 4262, 8-16-04)

11-12-5: INFILL INCENTIVE PLAN (IIP)

The request for an ID shall be accompanied with an Infill Incentive Plan (IIP). The IIP shall be reviewed and approved as the regulating document for property development within the ID. The adopted IIP will establish objectives, land uses, development standards, and incentives for the specific infill district. The IIP shall be submitted concurrently with the application for the ID, and shall include the following:

A. **IIP Map.** A map, which may consist of multiple sheets, drawn to a suitable scale and that includes the following elements:

1. Required map elements for ID-1 and ID-2.

   a. Boundary of the proposed ID District.

   b. The approximate location of existing and proposed transit and bus routes, bike lanes, freeways, parkways, arterial streets, and streets which provide connectivity between ID District area other major transportation and transit corridors.

   c. Existing site improvements, including adjacent street improvements.

   d. Requested deviations from General Development Standards and other development standards not established by the Zoning Ordinance, pursuant to Section 11-12-4.

2. Additional required map elements for ID-2.

   a. Major drainage elements within the proposed ID-2 District and vicinity.

   b. Existing and proposed utility corridors.

   c. Any major trails and/or bikeways, including their proposed connections to conceptual trail locations identified in the Mesa General Plan or other applicable plans adopted by the city.

   d. Location of any known significant historical, cultural, and archaeological features of the site.

B. **Statement of Need.** The statement of need shall describe the existing conditions of the area proposed for inclusion in the ID and address the items listed in Section 11-12-2 that establish the reasons for use of this district.

C. **Development Goals.** The IIP shall contain a description of the goals to be accomplished through the adoption and implementation of the ID. This description may be written and/or graphic and include a description of the final developments envisioned for the property that will meet the intent of this zoning district.

D. **Development Regulations.** The IIP shall list permitted General Development Standards and land use options, which may be assigned to specific parcels. Multiple development and land use options may be assigned and described as available alternatives.

1. ID-1 applications shall state the zoning district or districts, as listed in Section 11-3-1(A) Base Zones, being used to establish the uses permitted on the property. If more than one district is utilized, then the boundaries of each district shall be delineated on the IIP Map. The development standards associated with the designated district(s) shall govern development on the site unless deviations are requested as part of the application and approved with the adoption of the ID. The application must also include any requests for modification of development standards contained in, or authorized by Title 9 of the Mesa City Code.

2. ID-2 applications shall submit either of the following:

a. A list of base district(s), as described in subsection 1., above; or

b. A specific land use plan including allowed land uses and activities that may or may not necessarily correspond to specific base zoning districts. If this option is chosen, the adopted IIP shall govern allowed land use activities for the project site.

E. **General Development Standards.** The IIP may, but is not required to include deviations to Chapter 30, General Development Standards, as defined in Chapter 87, Definitions of this Title. In the event the IIP does not specify deviations to General Development Standards, the IIP shall specify how and when General Development Standards apply to specific sites.

F. **Design Guidelines.** The IIP may, but is not required to include IIP Design Guidelines for the development of property, including illustrations of proposed architectural, urban design, streetscape, and landscape concepts, thematic design elements such as architectural materials, building colors and landscape plants, and any proposed variation from the Design Standards or guidelines contained in this ordinance. The IIP Design Guidelines may describe broadly based design or architectural themes and concepts, sufficient to convey an idea and general pattern of development. In the event an IIP does not include Design Standards or guidelines specific to that Infill District, then the requirements of the declared base district and Article 4, Chapters 30 through 33 of this Ordinance shall apply.

G. **Review and Development Procedures.** The adoption of the ID-2 District allows for the specification of review procedures for future rezoning, site planning, design review and/or construction permit review and approval as well as waivers from other City ordinances and/or fees. If modifications are not included in the approved IIP, standard City procedures will apply. Options include:

1. ***Zoning Procedures.*** Procedures for expedited zoning or rezoning of a site, if desired.

2. ***Scheduled Timeframes.*** Customized or expedited building plan review and permitting schedule, if desired.

3. ***Waivers.*** A provision for waivers of certain municipal fees for development activities as long as the waivers are not funded by other development fees, if desired.

H. **Additional Information/Requirements.** Additional information that may be required by the City as part of the IIP for the ID-2 District are:

1. ***Infrastructure Element.*** An infrastructure element, which includes plans for incorporating transportation, stormwater drainage and utility options may be required by the City Engineer and City Traffic Engineer to evaluate current conditions and consider requested modifications.

2. ***Supplemental Reports.*** Each IIP shall be accompanied by the following supplemental reports, as determined by the Planning Director, City Engineer and City Traffic Engineer at the time of the Pre-Submittal Conference.

   a. Applicability Analysis: a narrative explaining how the area within the ID District complies with the Applicability Criteria specified in Section 11-12-2.

   b. Additional information as necessary to facilitate understanding, review and action on the application by the City Council and administration of the implementation of the IIP by the Development and Sustainability Department.

3. ***Neighborhood Compatibility.*** The IIP shall include criteria and requirements to ensure that future development plans; will facilitate development compatible with adjacent properties and surrounding neighborhoods, will facilitate the implementation of the IIP, will facilitate appropriate transitions between differing developments, and will not overburden the transportation system, utility infrastructure or community facilities.

(Ord. No. 4262, 8-16-04; Ord. No. 5928, § 19, 2-3-25; Ord. No. 5996, § 4, 3-9-26)

11-12-6: REVIEW OF ID DISTRICT AND INFILL INCENTIVE PLAN

A. The City Council may approve an application for an ID after review and holding public hearing in accordance with ARS § 9-499.10 and the requirements of Article 7 of this Ordinance. The required IIP shall be reviewed concurrently with this application. In addition to the Planning & Zoning Board, the Council, at its discretion, may request that Design Review Board or any other citizen advisory board or committee identified by Council, review and make recommendations on any or all parts of the application for compliance with the applicability and evaluation criteria, and the general appropriateness of the IIP.

B. Evaluation: the Planning & Zoning Board and City Council shall consider at a minimum the following goals and objectives when evaluating the proposed ID District and IIP. The proposed IIP shall:

1. Conform to applicable policies, land use map designations, and land use definitions of the Mesa General Plan.

2. Conform to the purposes and intents of the ID District as listed in Section 11-12-1.

3. Address the concerns outlined in the statement of need in support of the ID district.

4. Provide a land use, or a combination of land uses that are arranged and designed in such a manner as to be well integrated with other land uses, the immediate surrounding area, the planned thoroughfare system, and other public facilities such as water and sewer systems, parks, schools, transit routes and utilities.

5. Adequately, reasonably, and conveniently integrate into existing and planned streets, transit systems, and public services, utilities, and public facilities.

6. Promote development that is appropriate to and well integrated with its environmental setting, including existing vegetation, soils, geology, topography, and drainage patterns.

7. Justify any deviations from Standard Development Requirements based upon the overall quality of the plan provided, the need to address specific concerns outlined in the Statement of Need, and the need to address other conditions that may affect the viability of reasonably developing the property in a manner consistent with stated objectives of the Mesa General Plan.

8. Provide superior design and environmental sustainability in comparison with development reviewed under other base zoning district regulations.

9. Be compatible with, and not detrimental to, adjacent properties or the surrounding neighborhood(s).

(Ord. No. 4262, 8-16-04)

CHAPTER 13 (RESERVED FOR FUTURE USE)*

CHAPTER 14 EMPLOYMENT OPPORTUNITY DISTRICT†

11-14-1: PURPOSE

The purpose of the Employment Opportunity District (EO District) is to:

A. Facilitate entitlements for the development of projects aligned with City Council adopted plans and policies, particularly those projects that attract industries providing significant employment opportunity;

B. Accommodate large-scale, unified and planned employment developments that encourage and promote innovative and sustainable land uses;

C. Allow flexibility that accommodates market changes while providing incentives for high-quality development that is consistent with the goals of both the Mesa General Plan and any applicable sub-area plans;

D. Establish planning and development criteria tailored to the opportunities and constraints of the property;

E. Encourage creative and high-quality design, and establish standards leading to an efficient, aesthetic, sustainable, and desirable development; and

F. Allow flexibility that promotes unified, mixed-use development on land and improvements owned by political subdivisions of the State of Arizona.

(Ord. No. 5962, § 1, 9-22-25)

***Editor's note—**Previously, Chapter 13 derived from Ord. No. 4005, 8-5-02; Ord. No. 4006, 8-5-02; Ord. No. 4084, 6-30-03; Ord. No. 4101, 9-22-03; Ord. No. 4134, 1-5-04; Ord. No. 4395, 5-16-05; Ord. No. 4532, 4-3-06; Ord. No. 4681, 4-2-07; Ord. No. 4769, 10-15-07; Ord. No. 5025, 2-7-11.

†Editor's note—Ord. No. 5962, § 1, adopted September 22, 2025, repealed the former Ch. 14, §§ 11-14-1—11-14-10, and enacted a new Ch. 14 as set out herein. The former Ch. 14 pertained to similar subject matter and derived from Ord. No. 4262, 8-16-04; Ord. No. 4770, 10-15-07.

11-14-2: APPLICABILITY AND AUTHORITY

A. **Applicability to Qualified Political Subdivisions of the State of Arizona.** This Chapter contains requirements, standards, exceptions, and exemptions specific to political subdivisions of the State of Arizona that own all the land and all the improvements on the land that is within the area to be designated as an EO District (referred to in this Chapter as a "Qualified Political Subdivision"). If a political subdivision of the State of Arizona does not own all the land and all the improvements on the land that is within the area to be designated as an EO District, the political subdivision cannot utilize the provisions in this Chapter that are for Qualified Political Subdivisions.

B. **Eligibility.** An EO District shall only be established for an area when the City Council finds that the property meets the following requirements:

1. ***General Plan.*** EO Districts may be established within areas designated in the Mesa General Plan as Regional Center or Regional Employment Center, or any combination thereof.

2. ***Minimum Area.*** The minimum area required to establish an EO District is 160 contiguous acres, except:

   a. *Qualified Political Subdivisions.* The minimum area required to establish an EO District is 140 contiguous acres.

   b. *Adding Land to an Approved EO District.*

      i. After an EO District is approved, additional contiguous land may be added to the EO District following the procedures in this Chapter.

      ii. There shall be no minimum area required for additional land to be added to an approved EO District.

      iii. Execution of a development agreement, intergovernmental agreement, or similar agreement, or an amendment to an existing agreement may be required to add additional land to an approved EO District.

C. **Designation of Employment Opportunity District and Optional Use of a Floating Zone.** City Council's approval of an EO District shall either:

1. Apply immediately as the zoning district on a property; or

2. Create a floating zone over the property that:

   a. Retains the existing non-EO zoning district as the active zoning district until a property owner opts-in to the EO District.

   b. All requirements of the existing non-EO zoning district remain in effect until a property owner opts-in to the EO District.

   c. The property owner may be required to execute a development agreement, intergovernmental agreement, intergovernmental development agreement, or similar agreement, or amend such agreement prior to opting-in to the EO District.

3. An EO District for a Qualified Political Subdivision cannot be created as a floating zone over the property and shall apply immediately as the zoning district on the property.

D. **Opt-In Procedures.**

1. When an EO District is approved by City Council as a floating zone, a property owner may opt-in to the EO District and EO Development Plan as follows:

   a. The property owner must sign before a notary public the City's Employment Opportunity Development Plan Opt-In Form ("Opt-In Form") and submit the signed and notarized Opt-In form to the City.

   b. The property owner must comply with all conditions of approval of the EO District.

   c. A signed development agreement, intergovernmental agreement, intergovernmental development agreement, or similar agreement, or an amendment to such agreement, if required by the City, must be submitted to the City.

2. The Opt-In Form shall state, at a minimum:

   a. The EO District standards are in effect for the identified parcels(s) as of the signature date of the Opt-In Form;

   b. The requirements of the previous zoning district are no longer applicable for the identified parcel(s); and

   c. Any future development on the identified parcel(s) shall conform with the standards of the applicable EO Development Plan.

3. The City of Mesa Planning Division shall maintain an official record of the Opt-In Forms and shall update the Official Zoning Map of the City to reflect the agreed change to the zoning district.

E. **Effect Before and After Opt-In to an EO District.**

1. ***Compliance with Existing Zoning Until Opt-In.*** When an EO District is approved as a floating zone, the development and use of the property shall remain in compliance with the existing non-EO zoning district until a property owner opts-in to the EO District pursuant to the opt-in procedures in this Chapter.

2. ***Compliance After Opting-In.*** Once the Opt-In Form is signed and notarized, in no case may any subsequent development for the parcel(s) included in the EO District:

   a. Be based upon the standards of the former non-EO zoning district; or

   b. Be developed using standards of the former, non-EO zoning district combined with the EO District or EO Development Plan at the same time.

3. ***Effects on Existing Development and Land Uses After Opt-In to an EO District.***

   a. *Complies with EO Development Plan.* Existing development and land uses that comply with all applicable requirements of the approved EO Development Plan may continue to operate and shall only be altered or replaced in compliance with the requirements of the applicable EO Development Plan.

   b. *Non-compliance with EO Development Plan.* Any existing development or land use that was lawfully built in conformance with the Zoning Ordinance requirements that does not

comply with the requirements of the approved EO Development Plan shall be considered legal nonconforming and may continue to operate in compliance with the City's regulations for nonconformities to the Zoning Ordinance (Chapter 36).

F. **Other Agreements.** If the Zoning Administrator, in consultation with the City Attorney's Office, determines there is a conflict between the requirements of the approved EO District, EO Development Plan, or applicable standards approved by City Council as part of any other agreement, the more restrictive requirements shall apply.

(Ord. No. 5962, § 1, 9-22-25)

11-14-3: LAND USE REGULATIONS AND DEVELOPMENT STANDARDS

A. **Zoning.**

1. Once the EO District becomes effective on a property, either directly by City Council action, or through the opt-in procedures in this Chapter, the approved EO District and EO Development Plan are the zoning for the property.

2. The approved EO Development Plan shall be the principal reference for implementation and review of future development within the boundary of the overall site.

3. All development that takes place within the boundaries of an EO District shall be governed by and built in accordance with the approved EO Development Plan and approved amendments, and any development agreement, intergovernmental agreement, intergovernmental development agreement, or similar agreement that was executed as a condition of the EO District.

B. **Land Uses.** The permitted, conditional, and prohibited land uses for an EO District shall be listed in, and established by, an approved EO Development Plan.

1. Permitted, conditional, and prohibited land uses may be based in whole or in part on the land use classification descriptions in the Zoning Ordinance or based on land use classification descriptions or Land Use Groups (LUGs) established in an EO Development Plan.

   a. The EO Development Plan may establish land uses are not listed in the Zoning Ordinance.

   b. If a proposed land use is not listed in an approved EO Development Plan, it is prohibited unless the Zoning Administrator determines the proposed land use is within or equivalent to a permitted land use in the approved EO Development Plan as identified in Section 11-86-1: Purpose and Applicability.

2. ***Land Uses for Qualified Political Subdivisions.*** In addition to Section 11-14-3(A) and 11-14-3(B), an EO Development Plan for a Qualified Political Subdivision may, with the approval of both an EO Development Plan and an intergovernmental agreement, intergovernmental development agreement, or similar agreement, establish:

   a. Categories of land uses, development activities, projects, and sites.

   b. Exemptions from the regulations in the Zoning Ordinance, the EO Development Plan, or both, that are based on the category of land use, development activity, project, or site.

      i. Any exemption shall be expressly set forth in the EO Development Plan; and

ii. Exemptions shall be subject to further regulation in, and compliance with, an intergovernmental agreement, intergovernmental development agreement, or other similar agreement.

c. Flexibility in defining minor and major adjustments to permitted, prohibited, and restricted land uses, and an administrative review and approval process for such requests.

C. **General Development Standards.** The EO Development Plan shall expressly set forth the General Development Standards (as defined in Chapter 87 of the Zoning Ordinance) for the EO District.

1. ***Application of the General Development Standards.*** General Development Standards, including those amended by the EO Development Plan, shall apply to all development in the EO District.

2. ***Zoning Ordinance Standards as Default Standards.***

a. A default standard base zoning district shall be selected as part of the EO Development Plan.

b. Any General Development Standards not specified within the approved EO Development Plan shall conform with the standards set forth in the Zoning Ordinance.

3. ***Adjustments to the General Development Standards in an approved EO Development Plan.*** A request for an adjustment to any General Development Standard in an approved EO Development Plan for a specific project or site will be reviewed and processed as follows:

a. *Minor Adjustments.*

i. The Planning Director may administratively evaluate requests for minor adjustments to the General Development Standards for a specific development project or site and may grant the minor adjustment if it complies with the criteria in this section.

ii. A minor adjustment is an adjustment that is less than 20% of the required number, dimension, or measurement, as determined by the Planning Director.

iii. The Planning Director shall use, at a minimum, the following criteria when evaluating a request for a minor adjustment:

(1) The minor adjustment is consistent with the application of design requirements designated in the approved EO Development Plan;

(2) The minor adjustment is consistent with the implementation of the EO Development Plan;

(3) The minor adjustment will result in a project design that meets or exceeds the design goals and guidelines in the approved EO Development Plan;

(4) The minor adjustment will result in a building of equivalent quality and architectural design, as determined by building form and massing, use of materials and colors, relationship of the development project to the project context, and relationship of the building to the building site; and

(5) The minor adjustment is in accordance with the Mesa Building Code (Title 4 of the Mesa City Code), adopted Engineering Division requirements, and associated requirements of the City of Mesa, as may be applicable.

b. *Major Adjustments.*

i. A major adjustment is an adjustment that is either 20% or greater than the required number, dimension, or measurement or an adjustment that the Planning Director determines does not meet the criteria for a minor adjustment in this section.

ii. A request for a major adjustment to the General Development Standards for a specific development project or site will be reviewed and processed as per Chapter 67 of the Zoning Ordinance.

4. ***Flexibility in the Review Process for Adjustments to General Development Standards.***

a. An EO Development Plan may establish administrative processes and review criteria for approving requests for adjustments to the General Development Standards that may be different than the requirements in this section and may include different processes and review criteria for adjustments based on the category of land use, development activity, project, or site.

b. The process must be expressly set forth in the EO Development Plan and may be subject to further regulation in, and compliance with, a development agreement, intergovernmental agreement, intergovernmental development agreement, or other similar agreement.

5. ***Compliance Required with FAA Requirements.*** In addition to the requirements in Section 11-14-3(C), any General Development Standards or review process and review criteria for adjustments to General Development Standards are subject to the following:

a. Any modification to a height requirement must comply with Federal Aviation Administration (FAA) Code of Federal Regulations (CFR) Title 14 Part 77.

b. Any modification must comply with all requirements and standards in Chapter 19, Airfield Overlay District, of the Zoning Ordinance.

c. Any other requirements that are set forth in a development agreement, intergovernmental agreement, intergovernmental development agreement, or similar agreement and compliance with such agreement.

(Ord. No. 5962, § 1, 9-22-25)

11-14-4: APPLICATION REQUIREMENTS

A. **Pre-Submittal Conference.**

1. A Pre-Submittal Conference that includes the Planning Director, or their designee(s), is required prior to submittal of an application for EO District zoning.

2. The applicant shall provide: a description of the boundary of the proposed EO District; a project narrative with proposed Land Use Groups ("LUGs"); and proposed General Development Standards.

B. **Application and Submittal Requirements.**

1. In addition to the requirements for rezoning amendments in Chapter 76 of the Zoning Ordinance, applications for the EO District shall be accompanied by all the following information:

a. A complete application and payment of required fees.

b. A map showing the ownership of the property within the proposed EO District, as listed in the records of the Maricopa County Assessor's Office.

c. A general description of the proposed EO District boundary including bordering streets and canals.

d. A project narrative describing and explaining how the proposed EO District and associated EO Development Plan comply with the purpose, intent, and requirements of both the Mesa General Plan and the EO District. This narrative shall be separate from the EO Development Plan.

e. An EO Development Plan, which shall include all the minimum required elements listed in Section 11-14-5.

2. A submittal that fails to include all the information in Subsection (B)(1) above shall be considered incomplete and will not be scheduled for consideration.

C. **Evaluation.** The Planning and Zoning Board and City Council shall consider, at a minimum, the following goals and objectives when evaluating a proposed EO Development Plan. The proposed EO Development Plan shall:

1. Conform to applicable policies, land use map designations, and land use definitions of the Mesa General Plan, any Sub-area plans, and/or strategic plans and policies of the City Council;

2. Conform to the purpose of the EO District as required in this Chapter;

3. Provide a combination of land uses that are designed to be integrated with other land uses in the immediate surrounding area, the planned thoroughfare system, and other public facilities such as water and sewer systems, parks, schools, transit routes, and utilities;

4. Promote development that creates concentrated areas of employment; and

5. Provide a level of detail adequately describing high-quality development and design themes that will implement the built environment described by the EO Development Plan.

D. **Conditions.** In approving an EO District, the City Council may place conditions for its approval, and the approval of the associated EO Development Plan. Such conditions of approval may include, but are not limited to:

1. Conditions to ensure implementation of the EO Development Plan in accordance with the Mesa General Plan, and other applicable plans and policies adopted by the City;

2. Conditions to achieve the purpose of this Chapter;

3. Conditions requiring additional or different approval processes for Development Plans within the EO District; and

4. Conditions requiring execution of a development agreement, intergovernmental agreement, intergovernmental development agreement or similar agreement, or an amendment to an existing agreement.

E. **Intergovernmental Agreement for Qualified Political Subdivisions.**

1. In addition to the conditions above, a Qualified Political Subdivision that is applying for an EO District will be required to enter into an intergovernmental agreement, intergovernmental development agreement, or similar agreement concurrently with the EO Development Plan and the execution of such agreement(s) will be a condition of approval for the EO District.

2. After an EO District is approved, if a Qualified Political Subdivision wishes to add additional land to the approved EO District or make major modifications to an approved EO Development Plan, in addition to the conditions above, the Qualified Political Subdivision will be required to enter into an intergovernmental agreement, intergovernmental development agreement, or similar agreement, or amend an existing agreement, concurrently with the amendment to the EO Development Plan and the execution of such agreement(s) will be a condition of approval for the EO District.

(Ord. No. 5962, § 1, 9-22-25; Ord. No. 5996, § 4, 3-9-26)

11-14-5: EO DEVELOPMENT PLAN CONTENTS

An EO Development Plan shall be submitted concurrently with the application for the EO District, and shall include, at a minimum, the following:

A. **EO Development Plan Map.** A map, which may consist of multiple sheets, drawn to a suitable scale, which includes the following elements:

1. The boundary of the proposed EO District.

2. The approximate location of proposed freeways, parkways, arterial and other streets, and other transportation facilities which provide connectivity to surrounding development.

3. An EO Development Plan may consist of one (1) or more LUGs. The EO Development Plan Map shall include approximate locations of differing LUGs, if used.

B. **Development Goals.**

1. The EO Development Plan shall contain a list of goals and objectives, and a narrative explanation of these goals, that are to be accomplished through approval and implementation of the EO Development Plan.

2. This description may include graphic and photographic examples and shall include descriptions of the anticipated types of development envisioned for the property that will meet the intent of the zoning district and associated economic development benefits.

C. **Land Use Regulations.** The EO Development Plan shall contain permitted, conditional, and prohibited land uses, as described in Section 11-14-3.

D. **General Development Standards.** The EO Development Plan shall expressly set forth the General Development Standards as required in Section 11-14-3.

E. **Design Guidelines and Standards.** The EO Development Plan shall contain design standards and guidelines for the development of the property. The guidelines must include the following items as applicable:

1. Broadly based design or architectural themes and concepts, sufficient to convey an idea and general pattern of development.

2. Written standards and guidelines for proposed architectural, urban design, streetscape, and landscape concepts, thematic design elements such as architectural materials, building colors and landscape plants.

3. Any proposed variation from Chapter 30, General Site Development Standards.

4. The guidelines may include supplementary narrative and/or graphic formats.

F. **Sign Regulations.**

1. The EO Development Plan shall specify temporary and permanent sign requirements, using one (1) or a combination of the following:

a. Providing sign allowances for LUGs by citing requirements of identified default base zoning districts, or by citing sections of the Mesa Sign Ordinance; or

b. Identifying specific sign allowances for permanent signs that differ from standard allowances for identified base zoning districts; or

c. Specifying that a Comprehensive Sign Plan shall be required for developments governed by that specific EO Development Plan. The requirement for a Comprehensive Sign Plan may apply to all development sites governed by the EO Development Plan or may be limited to a few selected development sites.

2. ***Sign Regulations for Qualified Political Subdivisions.*** Qualified Political Subdivisions are subject to the Mesa Sign Ordinance (including without limitation Billboards and Freeway Landmark Monuments regulations) and the sign regulations above, unless exempt under Arizona law.

G. **Site Specific Requirements Based on Location.** An EO Development Plan shall include any measures necessary to address compatibility with surrounding properties and provide for appropriate transitions.

H. **EO Development Plan Requirements for Qualified Political Subdivisions.** To evaluate the land use regulations and General Development Standards being proposed by a political subdivision of the State of Arizona, the Planning Director may eliminate, modify, or expand the minimum EO Development Plan content requirements, and the Qualified Political Subdivision shall provide such information that the Planning Director deems necessary to review its application.

(Ord. No. 5962, § 1, 9-22-25)

11-14-6: DEVELOPMENT PLAN REVIEW

A. **Pre-Submittal Conference.**

1. A Pre-Submittal Conference with the Planning Director and City Engineer, or their designee(s), is required prior to submittal of a development plan application; except

2. A Pre-Submittal Conference may be waived for Qualified Political Subdivisions if expressly set forth in the approved EO Development Plan.

B. **Development Plan Approval Required.**

1. All development within an EO District shall require Development Plan Review approval from the City of Mesa; except

2. The requirement for Development Plan Review may be waived for Qualified Political Subdivisions if expressly set forth in the approved EO Development Plan and the intergovernmental agreement, intergovernmental development agreement, or similar agreement for the EO District.

C. **Required Information.** Unless exempt from Development Plan Review, development applications within an approved EO District shall include:

1. Identification of the proposed range of land use classifications, or, when used, the LUGs specified for the development site by the EO Development Plan;

2. Drawings (drawn to scale), including a development plan, landscape plan, and building elevations;

3. Other supporting materials and documents, as determined by the EO Development Plan; and

4. Additional materials and plans may be requested by the Planning Director to determine full compliance with the EO Development Plan, and compatibility of the project to neighboring development.

D. **Land Use Boundaries Set by Development Plan Review.**

1. When distinct, multiple LUGs are used in an EO Development Plan, the development plan approved for a specific location or land parcel will set boundaries and shall designate which LUG applies.

2. All future use and development of that site shall conform to the requirements of that specified LUG unless a different LUG is otherwise approved by the Planning Director as a part of a subsequent Development Plan Review application.

E. **Development Plan Review Process.**

1. Unless exempt under an approved EO Development Plan, development plans shall be reviewed and approved by the Planning Director or designee(s), through the administrative process unless a site within the EO Development Plan area is otherwise designated for review by public hearing by the approved EO Development Plan.

2. ***Exemptions for Qualified Political Subdivisions.***

a. A Qualified Political Subdivision may identify in the EO Development Plan and the intergovernmental agreement, intergovernmental development agreement, or similar agreement for the EO District, the categories of land uses, development activities, projects, and sites that are exempt from the City's Development Plan Review and approval process and which development plans are subject to the Qualified Political Subdivision's review and approval processes (including Development Plan Modification and renewal processes), and development plan expiration timeframes.

b. Any exemption must be expressly set forth in the EO Development Plan and is subject to further regulation in, and compliance with, an intergovernmental agreement, intergovernmental development agreement, or similar agreement.

F. **Review and Conditions.**

1. Development plans shall be reviewed for consistency with the requirements of the EO District and the approved EO Development Plan.

2. Conditions may be imposed on the approval of any development plan as may be deemed necessary by the Planning Director to ensure that the site is designed in a way to facilitate compatibility with adjacent property, and to ensure that the development will be built in accordance with the approved EO Development Plan.

3. The EO Development Plan may establish additional criteria for such conditions. Consistent with this Chapter and any additional criteria established in the EO Development Plan, such conditions may include:

   a. Revised building setbacks;

   b. Revised landscaping;

   c. Revised on-site parking and loading spaces;

   d. Height and area limitations on structures;

   e. Limited vehicular access;

   f. Placement and/or installation of walls, fences and screening devices;

   g. Installation of noise attenuating devices or construction;

   h. Off-site improvements in public rights-of-way adjacent to the subject property; and

   i. Placement of all detached signs.

G. **Expiration and Renewal of Development Plan Approvals.**

1. ***Expiration.*** The approval of a development plan located within an approved EO District shall expire five (5) years following the date of the approval, unless a building permit has been issued and construction diligently pursued.

2. ***Extension.***

   a. Development plan approval may be extended once for a period of not more than one (1) additional year by the Planning Director.

   b. Application for an extension shall be made in writing not more than 60 days before and not more than 30 days after the expiration of the original approval.

   c. The Planning Director may extend a development plan approval if the development plan and any minor revisions approved since the initial adoption of the Development Plan Review remain consistent with the purpose and intent of this Chapter, and the applicable EO Development Plan.

3. ***New Application.*** If the approval of a development plan expires and an extension to the approval is not, or cannot, be granted, a new application for Development Plan Review shall be required.

(Ord. No. 5962, § 1, 9-22-25; Ord. No. 5996, § 4, 3-9-26)

11-14-7: AMENDMENTS TO AN APPROVED EO DISTRICT

A. **Amendments.** The Planning Director shall determine if a proposed amendment to an approved EO District (including an amendment to an EO District for a Qualified Political Subdivision) constitutes a major or minor amendment.

1. ***Major Amendments.***

a. If the Planning Director determines an amendment to be major, the amendment request shall be processed as an amendment to the EO District and EO Development Plan, which shall require review and approval by both the Planning and Zoning Board and the City Council in accordance with the requirements of Chapter 67 of the Zoning Ordinance.

b. An amendment will be deemed major if it involves a change or modification to any of the following:

i. The overall EO District boundary;

ii. The permitted, conditional, or restricted land uses in the EO District as listed in the EO Development Plan;

iii. The General Development Standards not deemed as minor by the Planning Director; or

iv. Any change to the EO Development Plan that substantively alters one (1) or more components or required elements of the EO District or EO Development Plan as determined by the Planning Director.

2. ***Minor Amendments.*** Amendments not meeting the criteria listed in Subsection A(1)(b), above, shall be considered minor. If the Planning Director determines the amendment to be minor, the Planning Director may administratively act on the amendment and attach stipulations or conditions of approval thereto.

(Ord. No. 5962, § 1, 9-22-25)

11-14-8: ADMINISTRATIVE NOTICING, PROCESS, AND APPEALS

A. **Administrative Actions.** The following requests shall be reviewed on an administrative basis:

1. Development Plan Reviews unless a site within the EO Development Plan area is otherwise designated for review by public hearing by the approved EO Development Plan;

2. Development Plan Modifications;

3. Minor Adjustments to General Development Standards; and

4. Minor Amendments to the EO Development Plan.

B. **Notice of Administrative Action Requests.**

1. Letters delivered by first-class mail shall be sent to owners of those properties located within 750 feet of the exterior boundaries of the property that is the subject of the administrative action.

2. The notice letters shall be mailed a maximum of five (5) working days after the application for administrative action is received.

3. The notice letter shall:

   a. Provide a brief narrative summary of the requested action.

   b. Provide copies of any graphic plans and drawings submitted by the applicant in support of the requested action.

   c. Provide the following information in order that the recipient of the notice letter may communicate with the applicant and the Mesa Planning Division staff planner assigned to manage the request:

      i. Telephone numbers;

      ii. E-mail addresses; and

      iii. Street addresses.

   d. Provide an explanation that the intended recipient of the notice letter, or their assigned representative, may:

      i. Express interest in, and be notified of, the decision made on request.

      ii. Provide comments expressing support or concern regarding the request and list the basis for the support or concern.

   e. Specify that the recipient has ten (10) days from the postmark on the notice letter to submit comments on the proposed request to the Mesa Planning Division.

C. **Administrative Decision Process.**

1. The Planning Director or Zoning Administrator, as applicable, shall review the application and make a decision, which may include conditions of approval.

2. Notice of the decision shall be sent to the applicant and those owners of properties within 750 feet of the exterior boundaries of the application site that have expressed written interest in being notified of the decision by the filing date described in Subsection B, above.

3. Included with the decision notice, there shall be a statement of the ability to file an appeal of the decision, a description of the appeal process, and a deadline by which to file an appeal.

D. **Appeals to the Planning and Zoning Board.**

1. A Planning Director action or decision on a development plan, Development Plan Modification, minor EO Development Plan amendment, or minor General Development Standards adjustment may be appealed by the applicant, or by an owner of property located within 750 feet of the property that is the subject of the Planning Director's decision.

2. A written notice of appeal shall set forth the information required in Section 11-77-4(B) and shall be filed within 15 calendar days from the date of the Planning Director's decision and shall be heard by the Planning and Zoning Board.

E. **Appeals to the Board of Adjustments.** A decision by the Zoning Administrator in determining an equivalent land use may be appealed by the applicant, or by a property owner located within 750 feet of the property

that is the subject of the Zoning Administrator's decision. A written notice of appeal shall set forth the information required in Section 11-77-4(B) and the appeal shall be filed within 15 calendar days from the date of the Zoning Administrator's decision and shall be heard by the Board of Adjustment.

F. **Evaluation of Administrative Action Appeals.** An appeal of an administrative decision shall be evaluated based on the same criteria used by the Planning Director or Zoning Administrator when making the decision that is the subject of the appeal.

G. **Notice of Appeals.**

1. Notice of any appeal shall be sent to the property owner of the project, and any property owner filing the appeal.

2. Notice of appeals to the Planning and Zoning Board shall be in the same manner as described in Section 11-67-5(A)(1).

3. Notice of appeals to the Board of Adjustment shall be in the same manner as described in Section 11-67-5(A)(2).

H. **Further Appeals.** Any further appeals of the decision of the Planning and Zoning Board or the decision of the Board of Adjustment shall be in accordance with Section 11-67-12 and Chapter 77 of this Ordinance.

(Ord. No. 5962, § 1, 9-22-25; Ord. No. 5996, § 4, 3-9-26)

CHAPTER 15 LEISURE AND RECREATION (LR) DISTRICT SECTIONS

11-15-1: PURPOSE

The purpose of the Leisure and Recreation (LR) District is to allow public and private parks as a specific base zoning district. The district provides for a variety of recreation-related facilities and uses for residents and visitors of the City.

(Ord. No. 5554, § 3, 2-10-20)

11-15-2: LAND USE REGULATIONS

In Table 11-15-2, the land use regulations for each Leisure and Recreation Zoning District are established by letter designations as follows:

* "P" designates use classifications permitted in the Leisure and Recreation District.

* "SUP" designates use classifications permitted on approval of a special use permit.

* "CUP" designates use classifications permitted on approval of a council use permit.

* "(X)" a number in parentheses refers to a limitation following the table.

Use classifications not listed are prohibited. The "additional use regulations" column includes specific limitations applicable to the use classification or refers to regulations located elsewhere in this Ordinance.

Table 11-15-2: Leisure and Recreation District		
Proposed Use	**LR**	**Additional Use Regulations**
Public and Semi-Public Use Classifications		
Community Gardens	P	Section 11-31-10, Community Gardens
Parks and Recreation Facilities, Public	P	
Parks and Recreation Facilities, Private	P	
Public Safety Facilities	P (23)	P (23)
Schools, Colleges, and Trade Schools		
Colleges or Universities, Private	—	Section 11-31-24, Schools
Colleges or Universities, Public	P	
Commercial Trade Schools, Private	—	Section 11-31-24, Schools
Commercial Trade Schools, Public	P	
Industrial Trade Schools, Private	—	Section 11-31-24, Schools
Industrial Trade Schools, Public	P	
K-12, Private	—	Section 11-31-24, Schools
K-12, Public	P	
Accessory Uses and Facilities		
Temporary Outdoor Entertainment	TUP	Section 11-31-30, Temporary Uses
Temporary Outdoor Sales	TUP	

(Ord. No. 5554, § 3, 2-10-20; Ord. No. 5759, § 1, 12-8-22)

11-15-3: REVIEW OF PLANS

Administrative use permits, special use permits, and council use permits shall follow the standards established in Chapter 70 of this Ordinance. All other uses and development shall comply with the review procedures, standards and criteria established in Article 7, Administration.
(Ord. No. 5554, § 3, 2-10-20)

CHAPTERS 16—18 (RESERVED FOR FUTURE USE)*

*Previously, Chapter 15 derived from Ord. No. 3987, 5-20-02; Ord. No. 4075, 6-30-03; Ord. No. 4262, 8-16-04; Ord. No. 4383, 5-2-05; Ord. No. 4770, 10-15-07.
Previously, Chapter 16 derived from Ord. No. 4262, 8-16-04; Ord. No. 4770, 10-15-07.
Previously, Chapter 17 derived from Ord. No. 3689, 11-2-98; Ord. No. 3943, 11-5-01; Ord. No. 4268, 9-7-04; Ord. No. 4615, 11-6-06; Ord. No. 4884, 9-22-08; Ord. No. 4913, 2-17-09.
Previously, Chapter 18 derived from Ord. No. 3546, 11-2-98; Ord. No. 3616, 11-2-98; Ord. No. 3818, 2-22-00; Ord. No. 3911, 7-16-01; Ord. No. 4005, 8-5-02; Ord. No. 4006, 8-5-02; Ord. No. 4024, 11-4-02; Ord. No. 4076, 6-30-03; Ord. No. 4269, 9-7-04; Ord. No. 4294, 11-1-04; Ord. No. 4468, 10-24-05; Ord. No. 4476, 11-21-05; Ord. No. 4497, 12-19-05; Ord. No. 4578, 8-14-06; Ord. No. 4605, 11-6-06; Ord. No. 4648, 12-18-06; Ord. No. 4676, 3-19-07; Ord. No. 4712, 6-25-07; Ord. No. 4769, 10-15-07; Ord. No. 4770, 10-15-07; Ord. No. 4832, 5-5-08; Ord. No. 4970, 1-25-10; Ord. No. 4998, 8-30-10.

[The next page is T11:201]

ARTICLE 3

OVERLAY ZONES

CHAPTER 19 AIRFIELD OVERLAY DISTRICT

11-19-1: PURPOSE AND INTENT

The purpose of the Airfield (AF) Overlay District is to recognize the effects and hazards associated with the operation of aircraft in designated areas and the effect of aircraft operation on nearby areas. This district is intended to promote the public health and safety in the vicinity of aircraft operation areas by establishing Runway Protection Zones and Overflight Areas and designating permitted land uses, public notification and noise attenuation requirements within these areas to minimize exposure to the hazards, high noise levels, and overflight activity generated by aircraft operations and encourage future development compatible with and supportive of the continued operation of airports and other approved aircraft operation areas. Implementation of this district assists in achieving compliance with CFP 14 Part 77 with regards to the safe, efficient use, and preservation of navigable air space.
(Ord. No. 5446, 6-4-18)

11-19-2: RUNWAY PROTECTION ZONES AND AIRPORT OVERFLIGHT AREAS

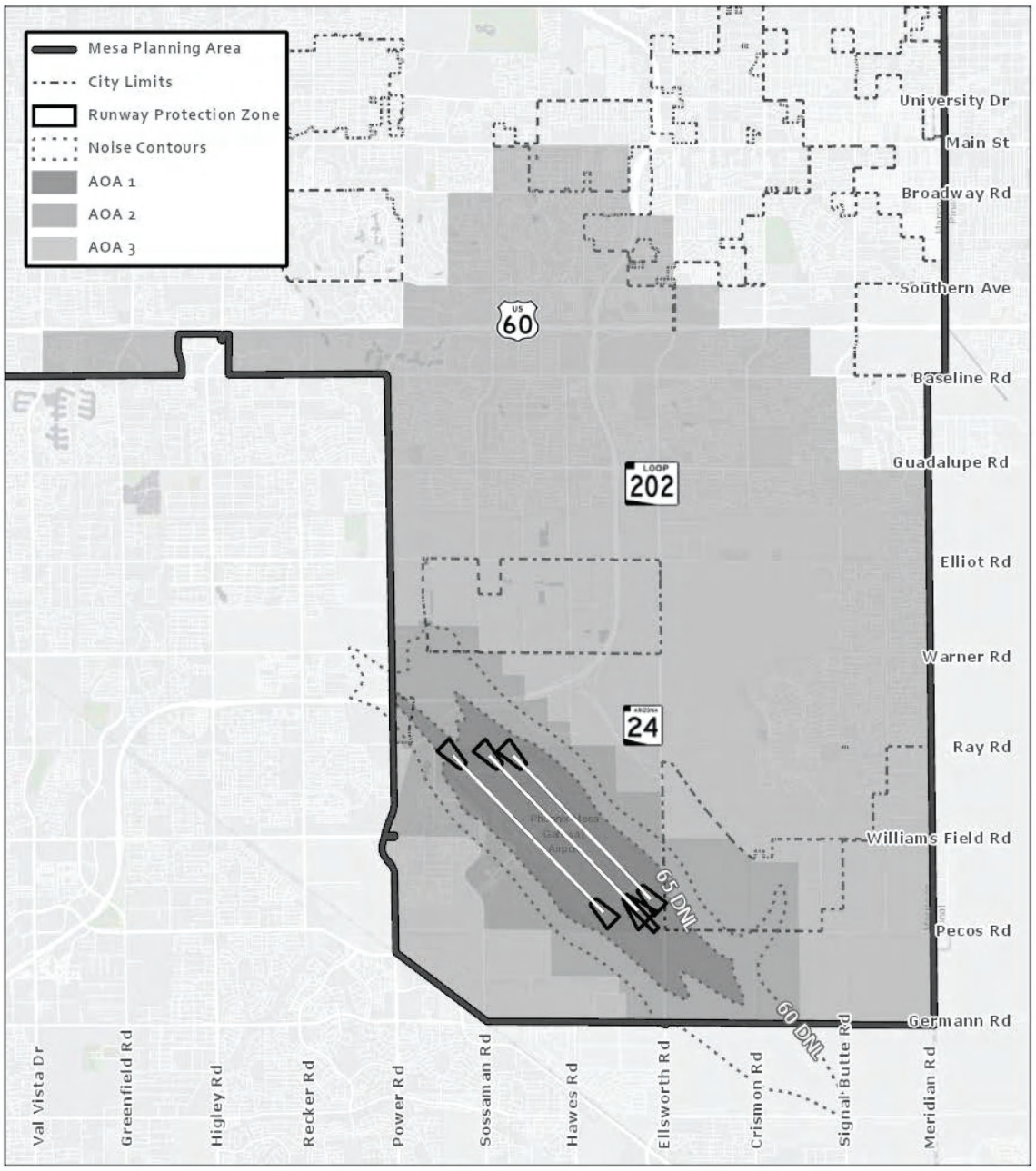
A. **Establishment of Runway Protection Zones and Airport Overflight Areas.** The Runway Protection Zones and Airport Overflight Areas described below are established as shown on Map AF-1 or AF-2: Airport Overflight. Within the Airfield Overlay District there are four sub-areas:

1. Runway Protection Zones (RPZ)

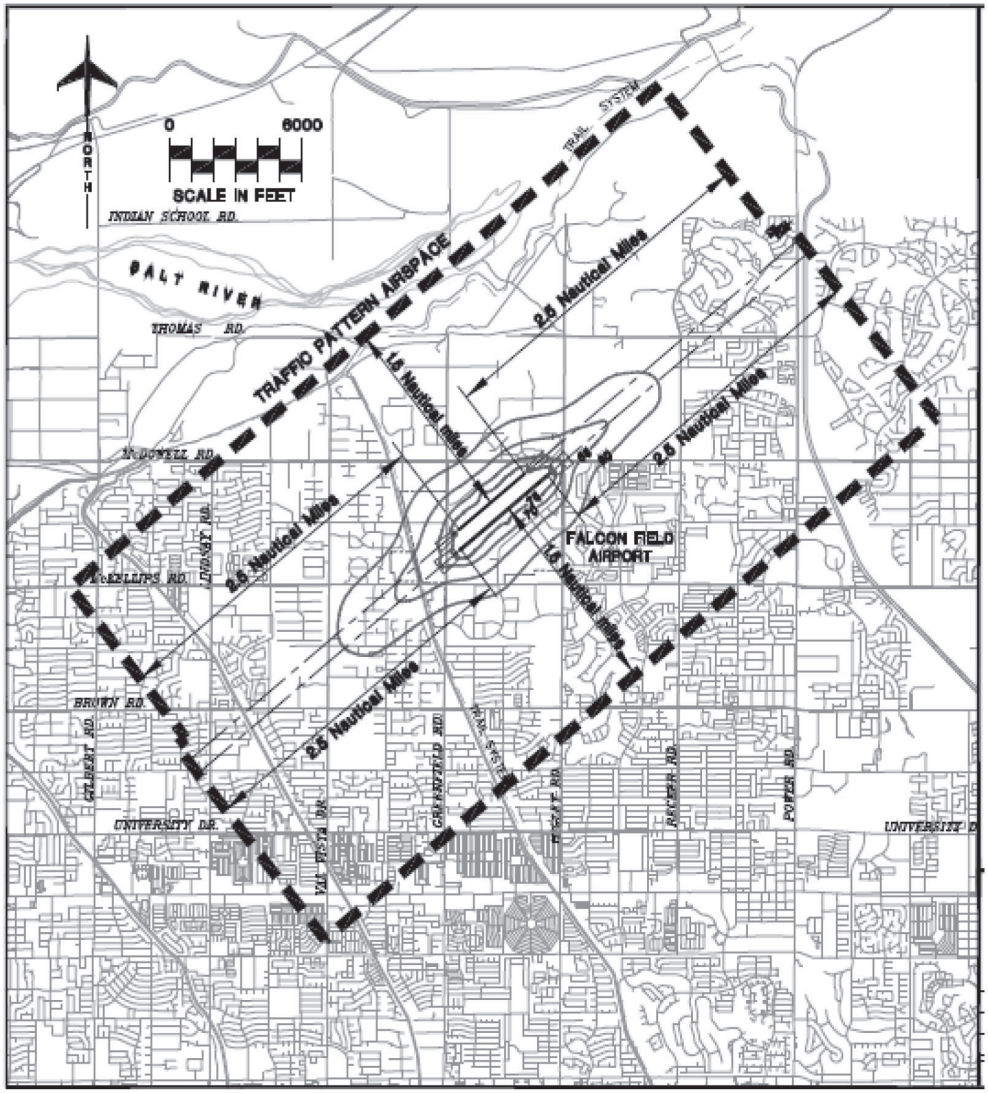
2. Airport Overflight Area One (AOA 1)

3. Airport Overflight Area Two (AOA 2)

4. Airport Overflight Area Three (AOA 3)



MAP AF-1: AIRFIELD OVERLAY - PHOENIX-MESA GATEWAY AIRPORT



MAP AF-2: AIRFIELD OVERLAY - MESA-FALCON FIELD AIRPORT

B. **Uncertainty of Boundaries.** Where uncertainty exists as to the boundaries of the Runway Protection Zones and Airport Overflight Areas shown on map AF-1 or AF-2, the following rules shall apply:

1. Boundaries shall be scaled from the nearest physical feature shown on the map, such as roads and canals;

2. Boundaries on the map shall be scaled from the nearest lot line; or

3. Distances not specifically indicated on either map AF-1 or Map AF-2 shall be determined by a scaled measurement on the map.

C. Where physical features on the ground differ from the information shown on Maps AF-1 or AF-2, or when there arises a question as to how or where a parcel of property is zoned or in which Runway Protection Zone or Overflight Area the property is located and such questions cannot be resolved by the application of the above rules, the property shall be considered to be classified as the more restrictive Runway Protection Zone or Airport Overflight Area.

D. Where a parcel of land lies within more than one (1) Runway Protection Zone or Airport Overflight Area, the Runway Protection Zone or Airport Overflight Area within which each portion of the property is located shall apply individually to each portion of the development.

(Ord. No. 5446, 6-4-18)

11-19-3: DEFINITIONS SPECIFIC TO AIRFIELD OVERLAY DISTRICTS

Aircraft: Any contrivance, now known or hereafter invented, for use or designed for navigation of or flight in the air, including helicopters, fixed-wing aircraft and gliders, and lighter-than-air vehicles, such as hot-air balloons, blimps and dirigibles.

Airport: The Phoenix - Mesa Gateway Airport owned and operated by the Phoenix- Gateway Airport Authority, or Falcon Field Airport, owned and operated by the City of Mesa, as may be applicable. Airports (plural) refers to both places.

Airport Overflight Area: The areas described in technical studies of airport operation order Federal Aviation Administration (FAA) procedures. The entire Airport Overflight Area consists of 3 Airport Overflight sub-areas: Area One, Area Two and Area Three.

Airport Overflight Area One (AOA 1): The area within the 65 DNL contour.

Airport Overflight Area Two (AOA 2): The area between the 60 and 65 DNL noise contours, as "squared off" by addition of an additional one-half mile for ease of application.

Airport Overflight Area Three (AOA 3): The area outside the 60 DNL contour area as defined by Airport Overflight Area Two, which extends to the balance of the Airport Overflight Area.

Airport hazard: Any structure or object of natural growth, use of land, or other item classified by the FAA as an obstruction to the airspace required for the flight of aircraft arriving at, or departing from, the Airport.

Avigation easement: An easement granted for aviation purposes over and across a property which acknowledges the property will be subject to aircraft overflights and which holds the City, the public and either of the Airports harmless from any damages caused by noise, vibration, fumes, dust, fuel, fuel particles, or other effects that may be caused by aircraft landing, departing or operating at or near either of the Airports, not including the physical impact of aircraft or parts thereof.

DNL (Day-Night Level): The 24-hour average sound level in A-weighted decibels, obtained after the addition of 10 decibels (dB) to sound levels for the periods between 10:00 P.M. and 7:00 A.M. as averaged over a span of 1 year. It is the Federal Aviation Administration (FAA) standard metric for determining the cumulative exposure of individuals to noise.

Decibel (dB): A standard measure of sound intensity, sound power or sound pressure equal to 20 times the common logarithm of the ratio of the pressure produced by the sound wave to a reference pressure, usually 0.0002 microbar.

Noise Level Reduction (NLR): The reduction of outside noise transmitted inside a structure achieved through the incorporation of noise attenuation into the design and construction of the structure.

Noise sensitive uses: Those activities considered to be adversely affected by high noise levels including, but not limited to: single residence or multiple residence housing, hotels, motels, hospitals, nursing homes, places of worship, libraries, public and private schools, standalone day care centers, and places of public assembly.

Runway: A defined area on an airport prepared for landing and takeoff of aircraft along its length. The runway includes any proposed runway or runway extension as shown on the most current Phoenix - Mesa Gateway Airport Layout Plan, Falcon Field Airport Layout Plan, or any other Council approved airport planning document.
(Ord. No. 5446, 6-4-18)

11-19-4: LAND USE REGULATIONS

A. **Runway Protection Zones (RPZ).** In order to minimize public exposure to accident hazard and crash potential as generated by aircraft operations, no building shall be located within any portion of a runway protection zone as defined and designated by this Code. However, such onsite improvements as vehicle parking, storm water retention, landscaping, and yard setbacks, as otherwise required by this Code or other city regulation, may be permitted within the designated runway protection zones. No element of any landscaping shall be allowed to penetrate any runway protection zone slope or other approach surface.

B. **Airport Overflight Areas One and Two (AOA 1, AOA 2).** Use limitations are imposed for the AOA 1 and AOA 2 Overflight Areas as shown in the district Land Use Regulation Tables, See Tables 11-4-2, 11-5-2, 11-6-2, 11-7-2, and 11-10-2.

C. **Airport Overflight Area Three (AOA 3).** For areas within the AOA 3 Overflight Area, there are no use limitations beyond those in the base district.

11-19-5: SUPPLEMENTARY PROVISIONS

A. **Avigation Easement.** The owners of any property, including mortgagees, other lien holders and easement holders, located within the Airfield Overlay District shall execute an avigation easement prior to or concurrently with the recordation of any subdivision final plat, or issuance of any building permit, whichever occurs first. The easement shall be in a form approved by the Mesa Planning Director and City Attorney. This easement shall hold the City, the public and the associated Airport harmless from any damages caused by noise, vibration, fumes, dust, fuel, fuel particles, or any other effects that may be caused by aircraft landing, departing or operating at or near a designated Airport, not including the physical impact of aircraft or parts thereof.

B. **Notification of Buyers.** No person shall sell or offer for sale any property located within the Airfield Overlay District unless the prospective buyer has been notified of the fact that the property is located within the Airfield Overlay District.

C. **Disclosure.** The following notice shall be provided in accordance with paragraphs one (1) and (2) below for all single and multiple residence housing and other noise sensitive uses. "This property, due to its proximity to a designated Airport, will experience aircraft overflights, which is expected to generate noise levels that may be of concern to some individuals. The mix of aviation activities and types of aircraft expected to be

located at the airport now and in the future may include: scheduled and unscheduled commercial charters, commercial air carriers and commercial air cargo operations, all of which are expected to use large commercial aircraft, corporate and executive jets, helicopters, general aviation aircraft, aviation flight training schools using training aircraft and high performance military jets. The size of aircraft and frequency of use of such aircraft may change over time depending on market and technology changes."

1. ***Final Subdivision Plats and Public Reports.*** For all areas within an AF overlay district, final subdivision plats and public reports filed with the Arizona Department of Real Estate shall provide notice that discloses the location of the Airport and the potential for aircraft overflights and objectionable aircraft noise and shall include, at minimum, the disclosure in Subsection C above.

2. ***Real Estate and Similar Sales and Leasing Offices.*** Sales and leasing offices shall provide notice to all prospective buyers and lessees stating that the project is located within an Overflight Area. Such notice shall consist of a sign at least 4-foot × 4-foot installed at the entrance to the sales office or leasing office at each project. The sign shall be installed prior to commencement of sales or leases and shall not be removed until the sales office is permanently closed or leasing office no longer leases units in the project. The sign shall state the disclosure in Subsection C above letters of at least 2" in height.

D. **Noise Level Reduction.** A building permit shall not be issued for any structure requiring a Certificate of Occupancy or designed for habitation, within the Airfield Overlay District, until the plans and specifications accompanying the application for the building permit have been certified by a registered Professional Engineer or registered Professional Architect in the State of Arizona as demonstrating that indoor noise levels attributable to airport operations shall not exceed 45 db for all portions of a structure where the public is received, office areas, public assembly rooms, sleeping areas, noise-sensitive areas and other areas where the ambient noise level is expected to be low. Plazas, courtyards, outside displays, covered/partially enclosed work areas, storage areas, loading bays, and similar areas are excluded.

E. **Provisions.** Notwithstanding any other provisions of this Chapter and in compliance with CFR 14 Part 77, no use may be made within any area affected by this Chapter in such a manner as to obstruct navigable airspace, interfere with navigational signals, impair radio communication between the Air Traffic Control Tower and aircraft, impair visibility in the vicinity of the Airport, create bird strike hazards, or otherwise materially endanger or interfere with the landing, takeoff, operation or movement of aircraft.

(Ord. No. 4059, 4-7-03; Ord. No. 4105, 9-22-03; Ord. No. 4157, 2-17-04; Ord. No. 4193, 5-17-04; Ord. No. 5446, 6-4-18)

CHAPTER 20 AGE-SPECIFIC OVERLAY DISTRICT

11-20-1: PURPOSE

The purpose of the Age-Specific (AS) Overlay District is to provide a residential environment conducive to the lifestyle and particular needs of senior citizens and retirees. This district is intended to be utilized for existing and proposed planned residential developments developed, advertised, and sold under certain age-specific conditions that contain facilities and services specifically designed to meet the physical and social needs of older persons.

11-20-2: LAND USE REGULATIONS

A. The Age-Specific Overlay District is to be used in conjunction with an underlying residential zoning district, thereby permitting the same uses as the underlying base zoning district.

1. Each dwelling unit, if occupied, shall be occupied by at least one (1) person not less than 55 years of age. Unless a person of not less than 55 years of age also occupies the residence, no person less than 55 years of age shall reside in any dwelling unit for a period of time exceeding 90 days, unless except pursuant to an Administrative Use Permit issued in accordance with Chapter 70, Conditional Use Permits. Evaluation and Issuance of the Administrative Use Permit shall be based on the following criteria:

a. The residence has been occupied by some person of not less than 55 years of age within the last 12 months.

b. The person that is less than 55 years of age is a spouse or blood relative related to the previous occupant mentioned in (a), above, or listed as a recipient of the estate or trust of the previous occupant.

2. Administrative Use Permits are subject to the expiration, extension, modification, and appeal provisions of Chapter 67, Common Procedures and Chapter 77, Appeals.

(Ord. No. 5996, § 3, 3-9-26)

11-20-3: SUPPLEMENTAL REGULATIONS

A. An application for Age-Specific overlay zoning may be approved by the City Council only after submission of the following materials:

1. A petition signed by 100 percent of the owners of property within the proposed district; or

2. Documentation that all of the property within the proposed district has been, and will continue to be, developed, advertised, and sold or rented under specific age restrictions; and

3. Documentation of the existence and availability of facilities and services designed to meet the physical and social needs of older persons.

B. Age-Specific overlay zoning district may be established only on parcels of 40 or more contiguous acres.

CHAPTER 21 BONUS INTENSITY ZONE OVERLAY DISTRICT

11-21-1: PURPOSE

The purpose of the Bonus Intensity Zone (BIZ) Overlay District is to provide for variation from the application of residential densities and other development standards to allow greater intensity of development and encourage unique, innovative developments of superior quality. It must be demonstrated that the resulting development will

further the goals and objectives of the General Plan, Specific Plans, and Council policies and will provide significant social or economic benefits to the City. This overlay district applies more frequently to individual projects which may consist of one or more buildings. Moreover, the purposes of this district are to:

A. Encourage unique, innovative development of superior quality that utilizes sustainable development practices and promotes pedestrian activity.

B. Allow for the establishment of unique land use regulations and development standards to achieve the goals of the General Plan for the area.

C. Promote development patterns that encourage conservation of natural resources and provide opportunities for renewable energy production.

11-21-2: LAND USE REGULATIONS

The BIZ overlay-zoning district is used in conjunction with an underlying zoning district, thereby permitting the same uses as the underlying base zoning district, except those land uses that may be excluded by the City Council. Before the City Council excludes a land use from a base zoning district, a development agreement that also excludes those specified land uses shall be adopted previous to or concurrently with the adoption of the overlay district.

11-21-3: DEVELOPMENT STANDARDS

A. Unless specifically modified by the City Council, the specified development standards are based upon the requirements of the underlying base zoning district; including but not limited to minimum lot area, maximum density, maximum building height, minimum setbacks, and maximum lot coverage for each underlying zoning district.

B. The City Council may approve modifications to the underlying district standards proportionate to number of items and degree of compliance provided by projects that comply either with a combination of Items 1 and 2, below; or with a combination of 1 and 3, below. Projects with few modifications need comply with a lower percentage of criteria. Projects with a higher number and greater deviation from adopted standards shall comply with a higher percentage of criteria.

1. Provide distinctive, superior quality designs. (See Section 11-31-32, Superior Design)

2. Address environmental performance standards outlined below:

a. Site selection criteria. Sites shall meet one or more of the following criteria.

i. Redevelop and rehabilitate economically distressed properties (particularly greyfield sites), damaged sites or environmentally contaminated 'brownfield' sites.

ii. Utilize areas with existing utility and transportation infrastructure and existing community services. This criterion is preferred for higher density and higher intensity development, when feasible.

iii. Utilize locations within ½ mile of a planned light rail line or ¼ mile from an existing or planned bus stop. This criterion is preferred for higher density and higher intensity development, when feasible

b. Site design criteria. Designing the site to facilitate alternative modes of transportation and to reduce onsite environmental impacts.

i. Provide safe and secure storage for bicycles. For commercial, employment or institutional projects, bicycle storage areas shall be within 200 yards of the building entrance, and shall have a designated and convenient pedestrian access route connecting the storage area to the building. For residential projects, safe and secure bicycle storage areas shall be provided on-site for a minimum 15% of the residents.

ii. Include priority location parking for low-emission vehicles in parking areas.

iii. Provide priority location parking spaces for carpool or vanpool vehicles.

iv. Provide the number of parking spaces designed to serve a development site consistent with the number of spaces required to meet the minimum parking ratio. Parking spaces over the minimum number is discouraged.

v. For greenfield sites, protect or restore natural areas on site with native vegetation to encourage biodiversity and for enjoyment by people. For previously developed sites, restore areas with native or adapted vegetation to encourage biodiversity and for enjoyment by people. The size of the space should be appropriate for the size of the site and the activity level or use of the site.

vi. Design the project to be energy efficient including, but not limited to, designed to reduce summer heat gain, reduce winter heat loss, utilize day lighting strategies and provide the opportunity for occupants to take advantage of renewable energy. The design also mitigates the effects of solar exposure for users and pedestrians. For purposes of this criterion, buildings that have efficient HVAC systems, incorporate passive solar heating, cooling and day lighting strategies within an efficient building envelope, as recommended by the Department of Energy's Energy Efficiency and Renewable Energy (EERE) section, including buildings designed to earn the EPA ENERGY STAR or designed to meet LEED™ Silver or equivalent third-party criteria are considered to be energy efficient and no higher standard shall be used

c. Provide documented evidence that the building(s) will meet or exceed nationally recognized environmental performance standards. For purposes of this criterion, buildings that are designed to earn LEED™ Silver, Green Globes, and/or equivalent third-party criteria, and no higher standard shall be required. Avoid sites considered inappropriate, such as prime farmland, land identified as habitat for endangered species, and wetlands or riparian areas associated with wildlife.

d. Utilize areas with existing utility and transportation infrastructure and existing community services. This criterion is preferred for higher density and higher intensity development, when feasible.

e. Redevelop and rehabilitate economically distressed properties (particularly greyfield sites), damaged sites or environmentally contaminated 'brownfield' sites.

f. Utilize locations within ½ mile of a planned light rail line or ¼ mile from an existing or planned bus stop. This criterion is preferred for higher density and higher intensity development, when feasible.

3. Provide documented evidence that the building(s) will meet or exceed nationally recognized environmental performance standards. For purposes of this criterion, buildings that are designed to earn Green Globes, LEED™ Silver, or to be in compliance with the International Green Construction Code and/or equivalent third-party criteria, are considered to be energy efficient and no higher standard shall be required.

11-21-4: SUPPLEMENTAL REGULATIONS

A. Land developed under this Chapter may consist of building(s) on individual or multiple lots.

B. Common open space shall be an essential element of the plan. Open areas should provide an efficient, aesthetic, and desirable usage.

C. Every structure containing residential, commercial, or industrial units shall have access to a public street. The access shall occur either directly to an abutting public right-of-way, or by use of a recorded access easement, or by utilizing a court, walkway, or other common area. If a common area is used, it shall be owned and maintained in common by a property owner's association organized through private covenants, conditions and restrictions attached to the deed.

11-21-5: REVIEW OF PLANS

A. **Application.** Requests for BIZ overlays shall follow the same procedures specified for zoning amendments in Article 7, Administration of this Ordinance.

B. **Modifications to Plans.** Changes to the approved development plan shall be reviewed and approved in accord with Chapter 67 Common Procedures.

C. **Building Permits and Regulations.**

1. An approved development may be built in phases upon approval of a phasing plan. Any phasing plan must provide, at a minimum, that the construction and provision of all necessary elements associated with that phase, including parking, drainage, common open spaces, and public and recreational facilities, which are shown on the approved development plan, are constructed prior to or contemporaneously with the construction of buildings for that phase. If the City Manager or designee determines that the rate of building construction does not conform to the approved phasing plan, he shall notify the developer that no new building permits shall be issued until the developer obtains approval of a supplemental Phasing Plan designed to restore compliance with the previously approved Phasing Plan. In the alternative, the developer may submit a proposed revision to the Phasing Plan for Planning Director review and possible approval. Failure to comply with the terms of this Section in a timely manner following notification shall result in all building construction being halted and all existing building permits shall be suspended until a supplemental or revised Phasing Plan is approved by the Planning Director.

2. When the project has been completed, the use of the land and the construction, modification, or alteration of any buildings or structures within the development shall remain in conformance with the development plan, except that any minor extension, alteration, or modification of existing

buildings or structures may be authorized by the Zoning Administrator or Board of Adjustment in accordance with Article 7, Administration of this Ordinance if they are consistent with the purpose and intent of the approved development plan.

(Ord. No. 5996, § 4, 3-9-26)

CHAPTER 22 PLANNED AREA DEVELOPMENT OVERLAY DISTRICT*

11-22-1: PURPOSE

The purpose of the Planned Area Development Overlay (PAD) District is to permit flexibility in the application of zoning regulations by allowing modifications to land use regulations and development standards in order to:

A. Support innovative, high-quality, cohesive development.

B. Facilitate creative land planning that results in superior design outcomes that may not be achievable under conventional zoning regulations.

C. Elevate the overall quality of development by fostering design excellence and promoting sustainable, livable, and well-connected communities.

Because the PAD Overlay District may be tailored to an individual proposed development, relative to land use regulations and development standards, each PAD Overlay District may differ considerably from another. However, developments within a PAD Overlay District should exemplify:

A. Thoughtful building, site, and land use planning that creates a unique sense of place and enhances the image and character of the area.

B. Well designed, accessible, and integrated open space, amenities, and/or recreational facilities of a scale that is proportionate to the use.

C. High-quality architectural and site design that retains functional relevance, aesthetic appeal, and structural integrity over time.

D. A balanced mix of land uses that are compatible with each other and surrounding development.

(Ord. No. 5957, § 3, 7-8-25)

11-22-2: LAND USE REGULATIONS

The PAD overlay district shall be used in combination with one (1) or more underlying zoning districts and may modify land use regulations as follows:

A. Permit and prohibit the same land uses and activities as the underlying base zoning district(s).

B. Permit additional land uses not otherwise permitted in the underlying base zoning district(s), as determined by the City Council.

***Editor's note—**Ord. No. 5957, § 3, adopted July 8, 2025, repealed the former Ch. 22, §§ 11-22-1—11-22-3, and enacted a new Ch. 22 as set out herein. The former Ch. 22 pertained to similar subject matter and derived from Ord. No. 5544, § 4, 12-9-19.

C. Restrict or prohibit specific land uses to ensure compatibility with surrounding areas and community objectives, as determined by the City Council. To restrict or prohibit land uses in the PAD Overlay District, a development agreement that restricts or prohibits those specified land uses shall be adopted previous to or concurrently with, the adoption of the PAD Overlay District.

(Ord. No. 5957, § 3, 7-8-25)

11-22-3: DEVELOPMENT STANDARDS

A. **Minimum Site Area.** The minimum site area for a PAD shall be five (5) acres. Residential and mixed-use applications for sites that are smaller than five (5) acres may be considered in the event the project includes a minimum of 20 dwelling units.

B. **Compliance with Development Standards.** The general development standards established in this Ordinance and the specific development standards for each underlying base zoning district are required, unless specifically modified by the City Council with the approval of the PAD Overlay District.

C. **Standards for Specific Uses.**

1. When a PAD Overlay District is used to permit a land use that is not otherwise permitted in the underlying base zoning district, the land use shall comply with the applicable development standards set forth in Title 11, Chapter 31: Standards for Specific Uses and Activities; and

2. If no specific development standards exist in Title 11, Chapter 31 for the proposed land use, the City may require additional development standards with the approval of the PAD Overlay District as necessary to ensure compatibility with surrounding uses and to mitigate any potential adverse impacts.

(Ord. No. 5957, § 3, 7-8-25)

11-22-4: SUPPLEMENTAL REGULATIONS

A. The submitted plan shall list permitted development and land use options, which may be assigned to specific parcels. Multiple development and land use options may be assigned and described as available alternatives. Land developed under this Chapter may consist of multiple parcels or may have common building sites.

B. Common open space shall be an essential and major element of the plan. Open areas should provide an efficient, aesthetic, and desirable usage.

C. Every structure shall have access to a public street, directly across either a coterminous property line; or using recorded access easements; or using a court, walkway or other common area owned and maintained as common ground.

11-22-5: REVIEW OF PLANS

A. **Application.** Requests for PAD overlays shall follow the same procedures specified for zoning amendments in Chapter 76, Zoning Ordinance: Amendments to Map and Text, of this Ordinance. In addition, applications requesting PAD overlays shall include a planning document(s) that incorporates the following items:

1. Graphic depictions of the following, as may be applicable:
    a. Land use plan, drawn to scale, including:
        i. Dimensions and acreage of overall project site;
        ii. Dimensions and acreage of each underlying zoning district;
        iii. Dimensions and acreage of each unit or stage of development; and,
        iv. Locations of properties proposed for conceptual and specific review.
    b. Site Plan(s), drawn to scale, including typical lot sizes and building placement for residential development (Site Plans not required for conceptual requests).
    c. Elevation(s) of proposed building(s), drawn to scale (Elevations not required for conceptual requests).
    d. Locations of commonly owned, property, including open space and recreational amenities.
    e. Locations of all proposed streets alignments and subdivisions of land.
2. Narrative description(s) and explanation(s) of the following:
    a. Compliance of the proposed project with the requirements of the Mesa General Plan, and the Purpose statements of the PAD Overlay District (Section 11-22-1).
    b. Development standards for the project, including how proposed deviations from base zoning district development standards and general development standards are of equal or superior quality.
    c. Phasing plans, if the project consists of multiple units or stages of development.
    d. Specific and/or conceptual land uses, as applicable.

e. Properties and amenities to be held in common ownership, including open space and recreational amenities.

f. Intensity of development expressed as a ratio (specific plan) or as a range (conceptual plan).

g. Description of design themes and character.

h. Incorporation of sustainable development practices.

B. **Conceptual and Specific Plans.** Applications for PAD Overlay may specify the project is proposed for conceptual and/or specific approval.

1. Requests for Conceptual Plan approval permits submittal of generalized plans describing land uses and development themes, and ranges of intensity of development described as ratios of activity, such as floor area ratio or dwelling units per acre. Approved Conceptual Plans require review and approval of a Specific Plan prior to development.

2. Requests for Specific Plan approval requires submittal of detailed drawings of the proposed development, including site plans, landscape plans and building elevations, depicting the project as it is anticipated to be constructed on the specific location. Specific Plans may be approved by the Planning & Zoning Board in the event a Conceptual Plan has been approved by the City Council, and the submitted Specific Plan indicates the land use is consistent with the range of intensity and other applicable descriptions of development documented on the approved Conceptual Plan or conditions of approval.

3. The initial submittal for rezoning for the PAD overlay may include both specific plan areas and conceptual plan areas.

C. **Modifications to Plans.** Changes to the approved development plan shall be reviewed and processed in accordance with the provisions in Chapter 67 Common Procedures, of this Ordinance.

D. **Phased Development.** An approved development may be built in phases as part of the project's plan, if the construction and provision of all necessary elements, including parking, drainage, common open spaces, and public and recreational facilities, which are shown on the approved plan, proceed at a rate commensurate with the construction of buildings. If the Development and Sustainability Department Director determines that the rate of building construction is not commensurate with the construction of the aforementioned necessary elements, the Planning Director or designee shall notify the developer that no permits for building construction will be issued until the rate of construction conforms accordingly. Failure to comply with the terms of this Section in a timely manner following notification shall result in all building construction being halted until compliance is restored.

E. **Conformance with Approved Plan - Modification after Initial Construction.** When the project has been completed, the use of the land and the construction, modification, or alteration of any buildings or structures within the development shall remain in conformance with the approved development plan except that any minor extension, alteration, or modification of existing buildings or structures may be reviewed and approved by the Zoning Administrator Hearing Officer or Board of Adjustment in accordance with Chapter 67 Common Procedures, of this Ordinance if the request is found to be consistent with the purpose and intent of the approved development plan.

(Ord. No. 5544, § 5, 12-9-19)

CHAPTER 23 HISTORIC AND LANDMARK OVERLAY DISTRICTS

11-23-1: PURPOSE

The specific purposes of this Chapter are to:

A. Recognize that the form and character of the City of Mesa are reflected in its cultural, historical, and architectural heritage;

B. Preserve the unique cultural heritage, to encourage and facilitate public knowledge and appreciation of the past, to foster civic and neighborhood pride, and to encourage public participation in identifying and preserving historical and architectural resources;

C. Enhance property values, protect and enhance the City's attraction to tourists and visitors, stimulate business and industry, and identify and resolve possible conflicts between the preservation of cultural and historic resources and alternative land uses;

D. Stabilize neighborhoods through preservation of historic and cultural resources and maintenance of the existing built environment; and

E. Preserve the diverse architectural styles, patterns of development, and design preferences that reflect phases of the City's history, and encourage complementary contemporary design and construction.

11-23-2: MESA HISTORIC PROPERTY REGISTER

A. The Mesa Historic Property Register is hereby established for the purpose of listing the landmarks, historic properties, and historic districts, as designated under the provisions of this Chapter and listed on the National Register of Historic Places. This register, as may be amended from time to time, shall serve as the official record of all such designations and shall be maintained by the Historic Preservation Officer (HPO) and available for public reference at the Office of Historic Preservation.

B. Supplemental to the historic property register shall be the list of properties classified as historically eligible and archaeologically sensitive. This list, as may be amended from time to time, shall be maintained by the Historic Preservation Officer, and available for public reference at the Office of Historic Preservation.

11-23-3: APPLICATION FOR HD OR HL

Requests for Historic District (HD) or Historic Landmark (HL) overlays shall follow the same procedures specified for zoning amendments in Chapter 74 and Chapter 76 of this Ordinance. In addition, requests for HD or HL overlays shall also be reviewed by the Historic Preservation Board and a recommendation considered prior to the request being reviewed by the Planning & Zoning Board.

11-23-4: CRITERIA FOR HISTORIC DISTRICTS AND LANDMARKS

A. **Historic District (HD) Criteria.**

1. ***Required Minimum Area.*** An HD overlay district shall have either:

a. Seven or more properties, whether or not separated by a street; or

b. At least four or more adjacent and adjoining lots or parcels with at least 300 feet of consecutive street frontage.

2. ***Required Historical Elements.*** An HD overlay district may be established only if at least one (1) of the following exists:

a. The area meets the criteria for historic districts adopted by the State of Arizona through the State Historic Preservation Office;

b. The area substantially meets the criteria for the listing of districts to the National Register of Historic Places adopted by the United States Secretary of the Interior, copies of which shall be on file in the Office of Historic Preservation and made available there for public inspection; or

c. Both of the following are found:

i. The area possesses a significant concentration, linkage, or continuity of sites, buildings, structures, or objects which are united by past events of 50 or more years ago, or aesthetically by plan or physical development of 50 or more years ago; and

ii. The area is worthy of preservation and protection for aesthetic interest or value, educational potential, or significance in the history of Mesa.

B. **Historic Landmark (HL) Overlay District Criteria.** A building, structure, or object within or without an HP overlay district in the City may be designated as an "Historic Landmark" only if it displays exceptional historic, visual, or architectural significance and at least one of the following exists:

1. It meets the criteria for historic sites adopted by the State of Arizona through the State Historic Preservation Office;

2. Any part of it is 50 or more years old; or

3. It substantially meets the following criteria for individual listing in the National Register of Historic Places adopted by the Secretary of the Interior, copies of which shall be on file in the Office of Historic Preservation:

a. Value as a significant reminder of the cultural, historical, architectural or archaeological heritage of the city, state, or nation.

b. Location is the site of a significant local, state or national event.

c. Identified with a person or persons who significantly contributed to the development of the city, state, or nation.

d. Identified as the work of a master builder, designer, or architect whose individual work has influenced the development of the city, state, or nation.

e. Value as a building is recognized for the quality of its architecture, and it retains sufficient elements showing its architectural significance.

f. Distinguishing characteristics of an architectural style valuable for the study of a period.

11-23-5: LAND USE REGULATIONS

The HD and HL overlay districts are to be used in conjunction with an underlying zoning district, thereby permitting the same uses as the underlying base zoning district, including those uses that may be specified by the City Council.

11-23-6: BUILDING PERMITS

Prior to issuance of a building permit for the construction, alteration, rehabilitation, or maintenance of a structure, building, sign, or other object within a designated historic district or historic landmark, the Building Official shall first refer such application to the Historic Preservation Officer for review and approval of a Certificate of Appropriateness as specified in Section 11-74-3. No building permit shall be issued without such Certificate and an issued permit must be in conformance with the requirements specified in the Certificate of Appropriateness.

CHAPTER 24 DOWNTOWN EVENTS (DE) OVERLAY ZONING DISTRICT*

11-24-1: PURPOSE AND INTENT

The purpose of this Chapter is to recognize that temporary events of a civic and commercial nature foster and encourage a sense of community. Special events and other temporary activities, such as carnivals, rodeos, festivals, parades and other temporary activities encourage the gathering of citizens of the community for community, civic, recreational, commercial and promotional reasons, when held in the downtown area, benefit the citizens and visitors of Mesa.
(Ord. No. 5862, § 1, 7-8-24)

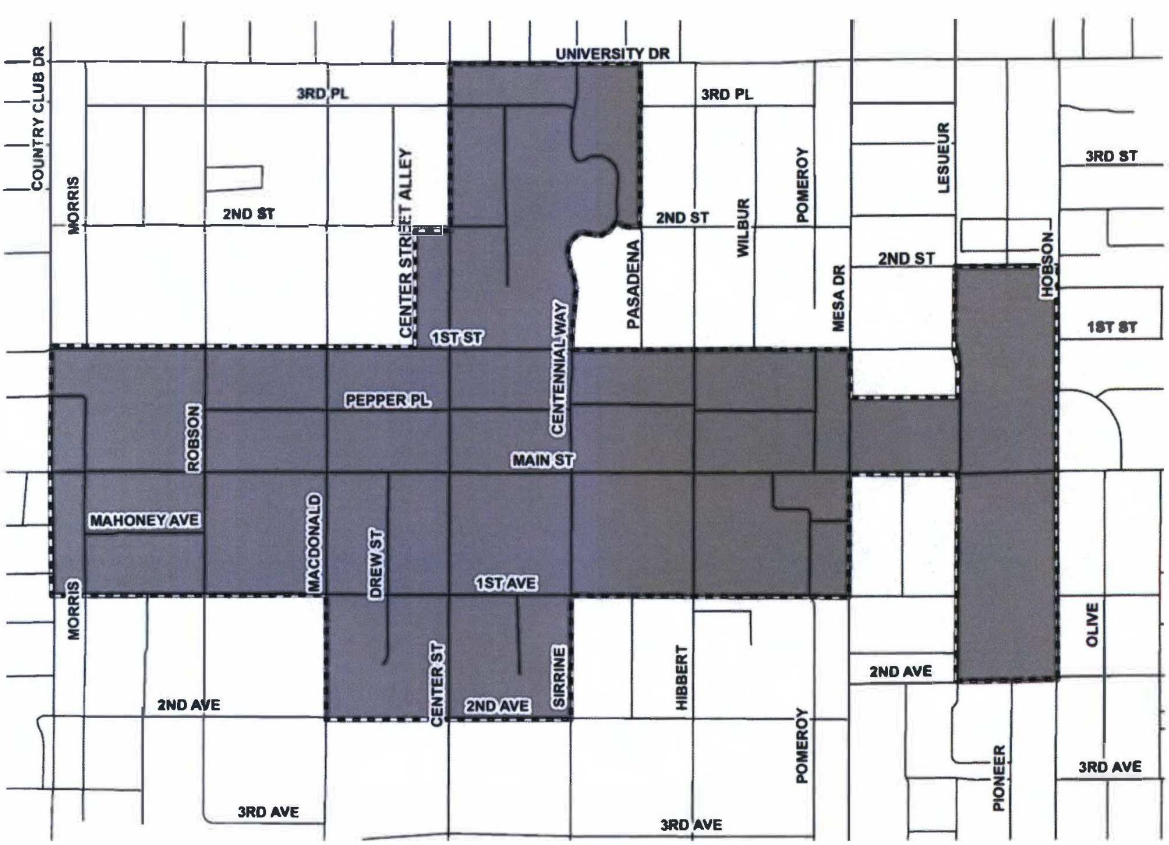
11-24-2: DESCRIPTION OF OVERLAY DISTRICT BOUNDARIES

This overlay district shall be the area as shown on Map 11-24-2, and the boundaries of which may be described as:

By a line beginning at the intersection of the west right-of-way line of Country Club Drive and the north right-of-way line of 1st Street; then extending east along the north right-of-way line of 1st Street to the west right-of-way line of Center Street Alley; then extending north along the west right-of-way line of Center Street Alley to the north right-of-way line of 2nd Street; then extending east along the north right-of-way line of 2nd Street to the west right-of-way line of Center Street; then extending north along the west right-of-way line of Center Street to south right-of-way line of University Drive; then extending east along the south right-of-way line of University Drive to the east right-of-way line of Pasadena; then extending south along the east right-of-way line of Pasadena to the south right-of-way line of 2nd Street; then extending west along the south right-of-way line of 2nd Street to the east right-of-way line of Centennial Way; then extending south along the east right-of-way line of Centennial Way to the north right-of-way line of 1st Street; then extending east along the north right-of-way line of 1st Street to the east right-of-way line of Mesa Drive; then extending south along the east right-of-way line of Mesa Drive to approximately 440 feet north of Main Street; then extending east to the west right-of-way line of Lesueur; then extending north along the west right-of-way line of Lesueur to the north right-of-way line of 2nd Street; then extending east along the north right-of-way line of 2nd Street to the east

***Editor's note—**Previously, Chapter 24 derived from Ord. No. 5123, 9-24-12.

right-of-way line of Hobson; then extending south along the east right-of-way line of Hobson to the south right-of-way line of 2nd Avenue; then extending west along the south right-of-way line of 2nd Avenue to the west right-of-way line of Lesueur; then extending north along the west right-of-way line of Lesueur to the south right-of-way line of Main Street; then extending west along the south right-of-way line of Main Street to the east right-of-way line of Mesa Drive; then extending south along the east right-of-way line of Mesa Drive to the south right-of-way line of 1st Avenue; the extending west along the south right-of-way line of 1st Avenue to the east right-of-way line of Sirrine; then extending south along the east right-of-way line of Sirrine to the south right-of-way line of 2nd Avenue; then extending west along the south right-of-way line of 2nd Avenue to the west right-of-way line of MacDonald; then extending north along the west right-of-way line of MacDonald to the south right-of-way line of 1st Avenue; and then extending west along the south right-of-way line of 1st Avenue to the west right-of-way line of Country Club Drive; then extending north along the west right-of-way line of Country Club Drive and ending at the intersection of the west right-of-way line of Country Club Drive and the north right-of-way line of 1st Street.



MAP 11-24-2

(Ord. No. 5862, § 2, 7-8-24)

11-24-3: PERMITTED ACTIVITIES

A. The number of Special Events, as that term is defined in Chapter 87, held within the Downtown Events Overlay District shall not be limited by the number of events during a calendar year.

B. Each individual Special Event held within the Downtown Event Overlay District shall be limited to a maximum of 4 consecutive days, unless it is a City-sponsored special event, a City-supported special event, or a temporary use permit or a Special Use Permit is approved in accordance with Chapter 70 of this Ordinance.

(Ord. No. 5759, § 2, 12-8-22; Ord. No. 5862, § 3, 7-8-24)

11-24-4: SPECIAL EVENT LICENSE REQUIRED

Special events held within the Downtown Event Overlay District shall require approval of a Special Event License, pursuant to Section 11-31-27 of this Ordinance, and in accordance with Title 5, Chapter 1 of the Mesa City Code.

CHAPTER 25 BILLBOARD OVERLAY DISTRICT

11-25-1: PURPOSE AND INTENT

The purpose of the Billboard Overlay District is to encourage the development or redevelopment of large or underutilized sites near a Freeway while conserving and promoting public health, safety, and general welfare. The Billboard Overlay District promotes an aesthetically pleasing environment while minimizing distractions for motorists through regulations limiting the location, number, size, and height of Billboards, and requiring spacing, illumination, maintenance, and other development standards for Billboards.
(Ord. No. 5847, § 1, 3-4-24)

11-25-2: LAND USE REGULATIONS

A. The Billboard Overlay District shall only be used in conjunction with the Infill Development District-2 (ID-2), Public and Semi-Public District (PS), or Mixed-Use District (MX).

B. The Billboard Overlay District allows Billboards in accordance with this Chapter and permits the same land uses as the underlying base zoning district, except those land uses that may be excluded by the City Council through a development agreement.
(Ord. No. 5847, § 1, 3-4-24)

11-25-3: ELIGIBILITY REQUIREMENTS

To be eligible for a Billboard Overlay District, a site must meet the requirements of this Section.

A. **Minimum Site Area.**

1. The site must be at least fifty (50) acres in size.

2. This requirement may be met by one parcel of land fifty (50) acres or more in size, or a combination of adjoining parcels of land under the same ownership, that are not separated by a right-of-way dedicated to the City, that are collectively fifty (50) acres or more in size.

B. **Minimum Freeway Frontage.** The site must have a minimum of 1,500 feet of frontage along a Freeway.
(Ord. No. 5847, § 1, 3-4-24)

11-25-4: DEVELOPMENT STANDARDS FOR BILLBOARDS

A. **General Development Standards.**

1. Billboards are required to comply with A.R.S. Title 28, Chapter 23, Article 1, and the development standards established in this Chapter.

2. No deviations from the development standards identified in this Chapter are permitted unless the deviation is more restrictive.

3. For all other land uses on the site, compliance with the specific development standards for the underlying base zoning district is required and cannot be modified through the Billboard Overlay District.

B. **Setback Requirements.** Setbacks for Billboards must adhere to the standards of the underlying base zoning district except for setbacks from the Freeway, in which the following setbacks shall apply:

1. ***Minimum Setback from Freeway.*** The minimum setback to a Freeway right-of-way is zero (0) feet, distance measured from the nearest edge of the Billboard face to the nearest edge of the Freeway right-of-way.

2. ***Maximum Setback from Freeway.*** A Billboard must be located within 250 feet of a Freeway right-of-way, distance measured from the furthest edge of the Billboard face to the nearest edge of the Freeway right-of-way.

3. ***Encroachment into Right-of-Way Prohibited.*** No portion of a Billboard shall overhang or encroach into the right-of-way.

C. **Spacing Requirements.**

1. ***Billboards or Freeway Landmark Monuments.*** No portion of a Billboard may be placed within 1,000 feet of another Billboard or Freeway Landmark Monument, including Billboards and Freeway Landmark Monuments located in neighboring jurisdictions, distance measured from the nearest edge of the Billboard face to the nearest edge of the nearest Billboard face or Freeway Landmark Monument face.

2. ***Residential Zoning District or Residential Use.*** No portion of a Billboard may be placed within 500 feet of a Residential Zoning District (RS, RSL, or RM) or residential use unless:

A. The residential use is part of a mixed-use development; or

B. A line-of-sight study or balloon test is conducted and demonstrates the Billboard will not be visible to or from any residential use that is not part of a mixed-use development or residential zoning district within 500 feet.

C. In no case may any portion of the Billboard be placed within 400 feet of a residential use that is not part of a mixed-use development or a residential zoning district.

D. **Number and Size Requirements.**

1. ***Maximum Number.*** No more than two (2) Billboards are permitted within a Billboard Overlay District.

2. ***Billboard Sign Area.***

a. *Maximum Sign Area.* The maximum sign area of a Billboard is limited to 672 square feet per sign face.

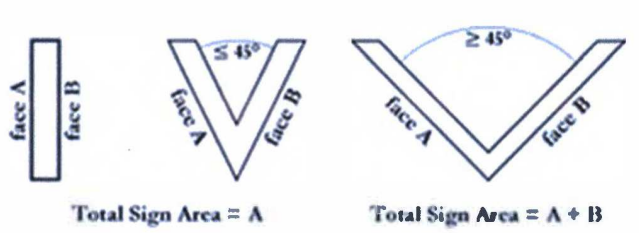
b. *Sign Area Dimensions.* The maximum vertical dimension of a Billboard's sign face is fourteen (14) feet and the maximum horizontal dimension of a Billboard's sign face is forty-eight (48) feet.

c. *Back-to-Back.* Back-to-Back are permitted with the maximum sign area allowed for each face as shown on Figure 11-25-4.C.2.

d. *"V" Shaped Billboards.*

i. A Billboard may be "V" shaped, provided the interior angle between the two sign faces is forty-five (45) degrees or less.

ii. If the angle between the two (2) sign faces is greater than forty- five (45) degrees, the sign area is the sum of the areas of the two (2) sign faces as shown on Figure 11-25-4.C.2.



e. *Embellishments.* A Billboard's maximum sign area may be exceeded by up to 20% by a Billboard embellishment.

f. *Standards of Measurement for Billboards and Embellishments.* Billboards and embellishments shall be measured by the smallest square, rectangle, triangle, circle or combination of the smallest square, rectangle, triangle, or circle that will encompass the entire Billboard or the entire embellishment, excluding base or apron supports, pylons, and other structural parts.

3. ***Billboard Height.***

a. The maximum height of a Billboard, including any supporting structures, attachments, and embellishments, shall not exceed 60 feet.

b. Height measurement.

i. If the natural grade at the base of a Billboard is higher than, or at the same grade as the Freeway, the Billboard height shall be measured as the vertical distance from the average elevation of the natural grade within a 50-foot radius from all sides of the Billboard base to the highest point of the Billboard.

ii. If natural grade at the base of a Billboard is lower than the grade of the Freeway or has been reduced to provide a storm water retention basin, the height of the Billboard shall be measured from the Freeway elevation to the highest point of the Billboard.

E. **Auditory Effects.** Auditory effects, including music, are prohibited as part of any Billboard.

F. **Electronic Billboard Requirements.** Electronic Billboards must comply with the following:

1. ***Copy Change.*** Copy must not change more than once every eight (8) seconds.

2. ***Message Animation.***

a. Animation, video, flashing, blinking, or moving lights are prohibited.

b. In the transition between copy, there must not be any sense of movement from one message to the next.

3. ***Malfunction.*** An electronic Billboard must contain a default design mechanism that freezes copy in one (1) position if a malfunction occurs.

G. **Lighting Controls.**

1. ***Electronic Billboards.***

a. *Evening Illumination.* Illumination of electronic Billboards must not exceed 300 nits in full white mode in evening hours (from sunset until 11:00 p.m.).

b. *Automatic Dimming.* Electronic message panels must include automatic lighting control technology to dim, control, and vary the intensity of the display based on ambient light conditions (e.g. daytime, nighttime, partial shade, or cloudy conditions) through a photo-electric sensor that detects ambient light levels and automatically adjusts the display intensity to ensure compliance with the maximum nit levels in this Section.

2. ***Nighttime Illumination.*** All electronic and non-electronic Billboard illumination must be extinguished in nighttime hours (from 11:00 p.m. until sunrise), except for amber alerts and emergency messaging.

(Ord. No. 5847, § 1, 3-4-24; Ord. No. 5889, §§ 1, 2, 11-4-24)

11-25-5: BILLBOARD APPLICATION, PERMITS, AND MAINTENANCE

A. **Application Requirements.** The requirements and procedures for submission and consideration of an application for a Billboard permit are provided in Chapter 67, Common Procedures, and must include:

1. Graphic depictions of the Billboard, in plan and elevation views, including:

a. A description of the Billboard type and materials used for the Billboard and Billboard structure.

b. Dimensions of the Billboard defining the proposed Billboard sign area including copy.

c. Dimensions of the Billboard structure.

2. A site plan depicting, at a minimum:

a. The Billboard location.

b. The Billboard's distance from all property lines.

c. The Billboard's distance from structures on the site.

B. **Building Permit.** A Billboard is required to obtain a permit and comply with all requirements of Title 4, Chapter 1 of the Mesa City Code including the requirements relating to permits, inspections, fees, and penalties.

C. **Maintenance.** All Billboards must be maintained according to this Section.

1. It is unlawful for a Billboard to remain in a damaged or deteriorated condition that constitutes a danger or hazard to public safety or a visual blight.

2. All Billboards must be maintained to the following standards of structural repair and visual appearance:

   a. All structural and nonstructural components must be positioned and secured in accordance with approved plans for the Billboard;

   b. Any deteriorated, damaged, or weakened components must be promptly repaired or replaced;

   c. All copy and painted surfaces of a Billboard must be free of chipping, peeling, rusting or other oxidation of metals, and fading of colors;

   d. Billboards must be maintained in working order; and

   e. If a permit is required per Title 4 of the Mesa City Code for any Billboard maintenance or repair activities, the permit must be obtained prior to commencing work and all work must be done in accordance with permit requirements.

(Ord. No. 5847, § 1, 3-4-24)

11-25-6: DEVELOPMENT AGREEMENT OR INTERGOVERNMENTAL AGREEMENT

A. A development agreement or intergovernmental agreement is required in conjunction with a Billboard Overlay District.

B. The agreement must be approved prior to or concurrently with the approval of the Billboard Overlay District.

C. The development agreement or intergovernmental agreement may include, but is not limited to:

   1. Requirements that Billboards, or permission for Billboards to, display public service announcements, public announcements, event announcements, or other announcements.

   2. Removal of an existing Freeway Landmark Monument on the site.

   3. Requirements, standards, or limitations for Billboards which may be established as conditions of approval for the Billboard Overlay District.

(Ord. No. 5847, § 1, 3-4-24)

CHAPTERS 26—29 (RESERVED FOR FUTURE USE)

[The next page is T11:251]

ARTICLE 4
DEVELOPMENT REGULATIONS

CHAPTER 30 GENERAL SITE DEVELOPMENT STANDARDS

11-30-1: PURPOSE AND APPLICABILITY

A. **General Purposes of the Site Development Standards.** The purposes of this Chapter are to:

1. Prescribe development and site regulations that establish a framework for diverse, comfortable, safe and sustainable neighborhoods;

2. Enhance existing community character and encourage transitions to more mixed- use community centers characterized by attractive urban design, high quality architecture, vibrant public spaces, and pedestrian amenities where appropriate;

3. Encourage orderly, well-planned development of individual sites;

4. Encourage development that fits seamlessly into attractive, viable neighborhoods and improves areas that are in transition;

5. Ensure appropriately designed and maintained site features that incorporate Community Policing Through Environmental Design (CPTED) principles and allow natural surveillance;

6. Ensure development functions efficiently and screens unsightly and utilitarian elements and uses from public view;

7. Contribute to the pedestrian environment by prescribing a safe, shaded network of walkways that connect destinations on-site to destinations on the public street, and to adjacent development.

B. **Applicability.** The standards apply, except where specifically stated, to development in all districts. These standards shall be used in conjunction with the standards for each zoning district located in Article 2, Base Zoning District Regulations and Article 3, Overlay District Regulations. When a conflict exists, the standards specific to a zoning district, or approved by a plan as part of an applicable overlay district, shall override these regulations.

11-30-2: BUILDING PROJECTIONS INTO SETBACKS

In all districts, awnings, eaves, overhangs, light shelves and basement window wells may encroach not more than 3 feet into any required yard, but shall not be closer than 2 feet to any property line. Additional standards for building projections into setbacks for the agricultural and residential districts are located in Sections 11-4-3, Agricultural District - Development Standards, 11-5-4, Residential Districts - Development Standards for the RSL District and 11-5-5, Residential Districts - Development Standards for the RM District, respectively.

11-30-3: EXCEPTIONS TO HEIGHT LIMITS

A. **Allowed Projections above Height Limits.** The structures listed in Table 11-30-3 may exceed the maximum permitted Building Height for the district in which they are located, subject to the limitations stated in the table below, and further if no portion of a structure in excess of the Building Height limit may be used for sleeping quarters or advertising.

Table 11-30-3: Allowed Projections Above Height Limits		
Structures Allowed Above the Height Limit	**Maximum Coverage, Location Restrictions**	**Maximum Vertical Projection Above the Height Limit (ft)**
Skylights	No limitation.	10
Solar panels, and other energy production facilities located on a rooftop	No limitation.	20% of base height limit
Chimneys	10% of roof area	20% of base height limit up to 10
Decorative features such as spires, bell Towers, domes, cupolas, pediments, obelisks, and monuments	No limitation	No limitation
Rooftop open space features such as sunshade and windscreen devices, open trellises, enclosed space for use by residents, and Landscaping	25% of roof area	20% of base height limit up to 12
Elevator and stair Towers (for multi-family and non-residential buildings only)	NA	12
Mechanical penthouses	60% of roof area	10
Flagpoles	N/A	DC District: 40 ft total height. Other districts: No limit except AF Overlay Districts which require a SUP when exceeding maximum base district height standard.
Distribution and transmission Towers, lines, and poles Water tanks, Windmills, Radio Towers, Airway beacons Industrial structures where the manufacturing process requires a greater height, located in the GI and HI Districts	20% of the area of the lot, or 20% of the roof area of all on-site structures, whichever is less; no limit if a primary use permitted in the district	10 as an accessory structure; none as a primary use
Building-mounted telecommunications facilities, Antennas, and microwave equipment	Subject to provisions of Chapter 35, Antennas and Wireless Communication Facilities. A Special Use Permit is required for commercial communication Towers that exceed the maximum permitted height of the district in which they are located.	

B. **Airfield Overlay District.** Notwithstanding any other provisions of this section, there shall be no exceptions to the specified height limits within the AF Airfield Overlay Districts, unless authorized by the approval of a Special Use Permit in accordance with Chapter 70, Conditional Use Permits.

(Ord. No. 5996, §§ 2, 4, 3-9-26)

11-30-4: FENCES AND FREESTANDING WALLS

Design Objective: Fences and walls should be an integral design component of the project that identify public areas; direct movement of visitors, define areas intended for private use and allow natural surveillance.

Fences, freestanding walls, and similar structures shall comply with the standards of this section.

A. **AG, RS, RSL, RM, and DR Districts.**

1. ***Maximum Height.***

a. *Front Yards.* No opaque or non-transparent fence or freestanding wall within or along the exterior boundary of the required Front Yard shall exceed a height of 3.5 feet. Fences or freestanding walls over 3.5 feet high are allowed in front yards, provided the fence or freestanding wall does not exceed a maximum height of 4.5 feet, and the topmost 1.5 feet is visually transparent and not opaque.

b. *Side and Rear Yards.* No fence or freestanding wall within or along the exterior boundary of the required side or Rear Yards shall exceed a height of 6 feet.

2. ***Corral Fences.*** Corral fences are only allowed for the keeping of livestock and similar large animals. Corral fences are permitted in the Agricultural, RS-90 and RS-43 districts subject to conformance with the following standards:

   a. *Materials.* Corral fences shall be constructed of masonry, wrought iron, pipe-rail, or similar material, but shall not be of solid construction or made of metal wire, such as chain-link or barbed wire;

   b. *Transparency.* Corral fences shall maintain a minimum transparency of 66 percent of the exterior surface of the fence to keep visibility into the property and allow the transfer of light and air; and

   c. *Maximum Height.* Corral fences shall not exceed six (6) feet in height.

3. ***Building Area.*** When located in the buildable area, the maximum height for fences and freestanding walls is the maximum height allowable in the applicable district.

4. ***Decorative Features.*** One entry gateway, trellis, or other entry structure is permitted in the required front or Street-facing Side Yard of each lot, provided the maximum height or width of the structure does not exceed 10 feet in either direction. Such decorative feature shall not have any solid obstruction that exceeds 2 feet in diameter between the height of 3 and 10 feet.

5. ***DR Districts.*** Whenever a new multiple residence project is constructed or an existing Single Residence is converted to a multiple residence use, a privacy wall shall be constructed along the property lines separating the multiple residence use, its parking areas and driveways from any existing Single Residence. The privacy wall shall be of masonry construction with stucco, mortar wash or other finish to match that of the main building and shall be 6 feet in height. The privacy wall shall extend along interior side Lot Lines to the front-yard setback of the main building or to the front-yard setback of the existing adjacent residence, whichever is closer to the Street Right-Of-Way, but shall not extend past said setback into the Front Yard without being reduced in height to a maximum of 3.5 feet.

6. ***Materials.***

   a. *Acceptable Materials.* Walls and fences shall be constructed of high-quality, durable materials such as stucco finish, masonry or concrete block, brick, decorative cap block, wrought iron, or other similar high-quality material.

   b. *Prohibited Materials.* The use of chain-link, barbed wire, razor wire, embedded glass shards, ultra barrier, electrified and other hazardous fencing is prohibited, except for the use of barbed wire fencing used for livestock enclosures.

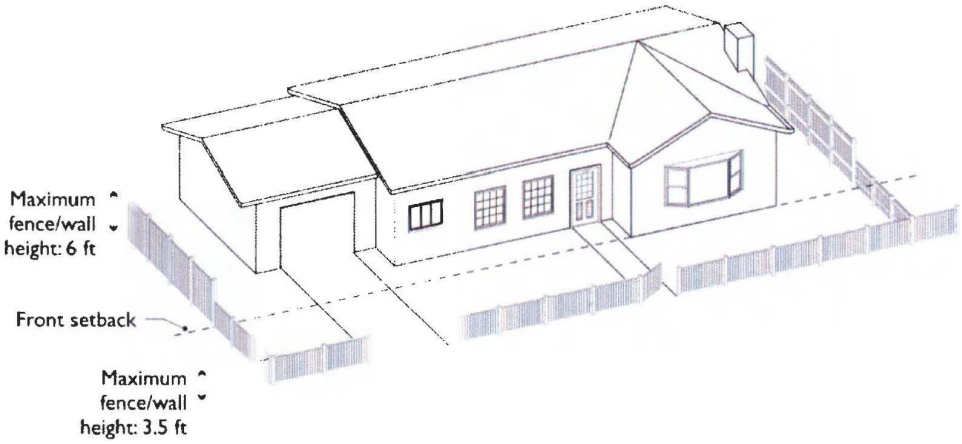


FIGURE 11-30-4.A: FENCES

B. **All Other Zoning Districts.**

1. ***Maximum Height.***

a. *Front Yards and Required Street Side Yards.* No fence or freestanding wall within or along the exterior boundary of the required Front Yard shall exceed a height of 3.5-feet.

b. *Rear Yards and Interior Side Yards.* No fence or freestanding wall within or along the exterior boundary of the required interior side or Rear Yards shall exceed a height of 8-feet.

c. *Building Area.* When located in the buildable area, the maximum height for fences and freestanding walls is the maximum height allowable in the applicable district.

2. ***Fence Materials in Commercial and Employment Districts.***

a. *Materials.* Walls and fences shall be constructed of high-quality materials, such as tinted, textured blocks; brick; stone; or ornamental metal; and shall complement the design of an overall development and its surroundings.

i. Chain link may only be used when not visible from public view.

ii. Wood fencing is not allowed, except wood may be used in conjunction with metal frames for gates used in conjunction with required Screening walls.

iii. The use of barbed wire, razor wire, embedded glass shards, ultra barrier, electrified and other hazardous fencing is prohibited in Street-facing yards or where adjacent to any public Right-of-Way.

C. **Visibility at Intersections.** Notwithstanding any other provisions of this Section, fences and walls shall comply with the standards of Section 11-30-14, Visibility at Intersections.

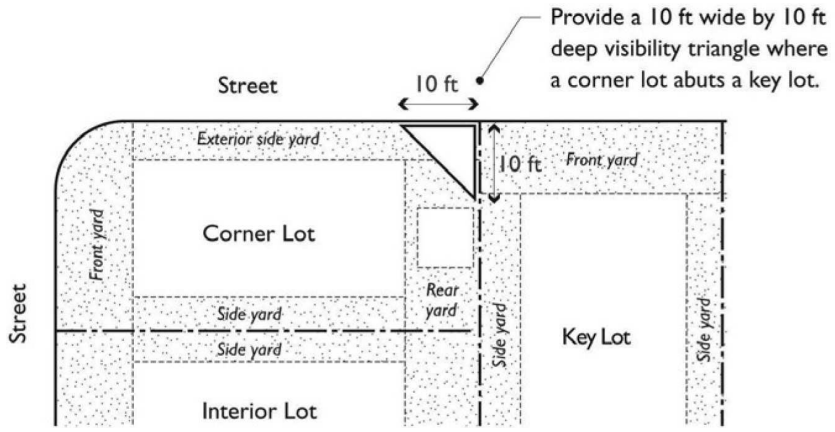


FIGURE 11-30-4.D CORNER LOT ABUTTING A KEY LOT

D. **Corner Lots Abutting a Key Lot.** In the event the rear property line of a Corner Lot abuts a side property line of an adjoining Key Lot, a 10-foot deep by 10-foot wide visibility triangle shall be maintained over the Corner Lot, starting at the intersection of the rear and Street side property lines of the Corner Lot. See diagram above, 11-30-4D.

E. **Fence and Wall Articulation.** The maximum length of continuous, unbroken, and uninterrupted fence or wall plane adjacent to right-of-way or private streets functioning as public roads shall be 150 feet. Articulation shall be provided through the use of columns, posts, varied height, protrusions and recesses in the horizontal plane.

1. Post and columns shall protrude a minimum of six (6) inches from the adjacent plane.

2. Protrusions and recesses in the horizontal plane, and variations in height shall be a minimum 18 inches.

(Ord. No. 5544, §§ 6—8, 12-9-19; Ord. No. 5996, § 4, 3-9-26)

11-30-5: LIGHTING AND ILLUMINATION

The objective of this Section is to promote well designed lighting that can enhance the design of a building or site by highlighting interesting architectural details, calling attention to interesting textures and colors, and focusing attention to primary site features. Such lighting should be controlled to minimize adverse impacts to abutting residential uses.

A. **Applicability:** The requirements of this Section shall apply to all projects except Single Residence Dwellings and Middle Housing.

B. **Parking Lot Illumination:**

1. ***Location.*** Light poles shall be located only within the parking area or, where permitted, the outdoor storage area, and shall not encroach into required perimeter landscape areas.

2. ***Light Pole Heights.***

   a. Maximum light pole height shall be 15 feet when within 50 feet of the perimeter of the development and adjacent to a residential use or zoning district.

   b. When adjacent to any other use, the maximum height shall be 20 feet within 50 feet of the perimeter.

   c. The maximum height shall be 25 feet everywhere else on the site.

3. ***Light Shields.*** House side shields shall be provided on all light standards adjacent to residential development.

4. ***Building Mounted Lights.*** Building mounted lights shall maintain the same heights as specified in subsection C., below.

5. ***Lighting and Electric Code.*** For additional standards refer to the Mesa Lighting and Electrical Code; Title 4, Chapter 4 of the Mesa City Code.

C. **Maximum Height of Lighting Fixtures.**

1. Lighting fixtures, including freestanding light poles as well as building-mounted lights, shall not exceed the maximum heights specified in Table 11-30-5 below.

Table 11-30-5: Maximum Height of Lighting Fixtures

District	Maximum Height (ft.) - Detached	Maximum Height (ft.) - Attached
Residential Districts	15	Not to exceed the peak elevation of the immediately adjacent sloped roof, parapet, or building elevation to which the fixture is attached
DC and DB Districts	20	
All other Non-Residential Districts	Within 50 feet of any street frontage: 20 ft. Within 50 feet of a Residential District: 15 ft. Any other location: 25 ft.	

2. Exceptions to the maximum height of lighting fixtures may be approved by the Zoning Administrator, after a review of a photometric study. Such exceptions may include requirements for use light control devices, such as fully shielded or full cut-off fixtures, to reduce glare and light-spillage onto abutting properties.

D. **Exposed Exterior Building Illumination.** Exposed neon, argon, led or krypton tubing; exposed incandescent lighting; or other exposed artificial lighting used to outline or accent a structure or portion thereof is permitted subject to the following:

1. ***Placement.***

   a. Exposed lighting shall be mounted within 12 inches of a permanent architectural element (e.g., parapet or cornice line, canopy/awning edge, pilaster/column, entry surround) and shall not be freestanding on blank wall areas.

   b. Exposed lighting shall not be placed above the roof or parapet, or on rooftop equipment or on top of fences.

2. ***Quantity.*** A maximum of two (2) horizontal runs (e.g. along parapet or canopy edges) and one (1) vertical run (e.g. along corners or entry surrounds) is permitted on each façade.

3. ***Color.*** One (1) static color or hue is permitted per building.

4. ***Advertising|Signage Prohibited.*** Tubing shall not form letters, numbers, symbols, logos, product shapes, or trademark color patterns, and shall not be attached to or integrated with any sign face.

5. ***Motion and Effects Prohibited.*** Flashing, blinking, pulsing, chasing, and strobing effects are prohibited.

6. ***Full Functionality Required for Use.*** If any component or segment of the lighting system is nonfunctional, all exposed lighting on the building shall remain off until the entire lighting system is fully repaired.

(Res. No. 12269, §§ 10, 11, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5996, § 4, 3-9-26)

11-30-6: LOTS AND LAND DIVISIONS

Design Objectives: To promote orderly growth and harmonious development by ensuring land divisions result in lots, tracts, or parcels of land of adequate size and configuration that are compatible with the intent of the zoning district. Land divisions should create parcels that are suitable for their intended use, contribute to cohesive neighborhood patterns, support safe and convenient access, and uphold the long-term viability of public infrastructure and services.

A. **Legal Nonconforming Lot or Parcel.** Any lot or parcel of land recorded in the Maricopa County Recorder's Office and lawfully created prior to the effective date of this Ordinance, and that has an area, width, depth, or street frontage less than the minimum required by the zoning district in which it is located, shall be considered a legal lot and may be used as a building site. All other applicable regulations for the zoning district in which the lot is located shall continue to apply.

B. **Lot Dimension Requirements.** No lot, tract, or parcel of land shall be divided in a manner which results in an area, width, depth, or open space less than the minimum required by the zoning district in which it is located, except:

1. For the purposes of providing public rights-of-way or for conveying a portion of a lot, tract, or parcel of land to a public governing authority for a publicly beneficial use through a land purchase, dedication, or gift; or

2. If modifications to the area, width, depth, or open space have been approved by the City Council or Board of Adjustment.

C. **Individual Yard and Open Space Requirements.** No yard or other open space required around any building designed to comply with the provisions of this Ordinance shall again be used as a yard or other open space for another lot or parcel.

D. **Permitted Number of Dwelling Units.** No lot shall be divided in a way that results in a lot containing more dwelling units than permitted by the zoning district in which the lot is located.

E. **Land Split.** The division of land into two (2) or three (3) tracts or parcels shall require approval of a Land Split in accordance with Title 9 Chapter 6 of the Mesa City Code.

1. When dividing developed land, required separation distances established by the Building Code, as well as open space requirements set forth in this Ordinance, must be maintained.

2. All resulting tracts or parcels shall also comply with all applicable regulations of the zoning district in which they are located.

F. **Buildings Crossing Lot Lines.** Where two (2) or more lots are used as a building site and where buildings cross lot lines, the entire area shall be considered one (1) lot, except that the front of the parcel shall be determined to be the front of the individual lots as originally platted or recorded.

G. **Street Frontage Required.** Every lot shall have frontage on a dedicated public street or private street unless the lot is a unit in a condominium subdivision.

H. **Future Right-of-Way.** Where future width lines for rights-of-way have been established, all required yards and setbacks shall be measured from the future width lines.

I. **Zoning Ordinance and Plat Conflicts.** Where a conflict exists between yards or setbacks required by this Ordinance and yards or setbacks specified on a plat, the requirements of this Ordinance shall control, except when a modification to such yard or setback was approved by City Council or the Board of Adjustment

(Ord. No. 5949, § 3, 7-1-25)

11-30-7: OUTDOOR STORAGE

The objective of this section is to maintain an attractive environment for the community, adjacent businesses and residents while allowing open storage of goods, materials, machines, equipment, and vehicles or parts when necessary for business purposes in specific locations.

A. **Applicability:** Open storage of goods, materials, machines, equipment, and vehicles or parts outside of a building (considered collectively as a general activity) for more than 24 hours shall conform to the standards of this Section. The regulations of this Section do not apply to temporary storage of construction materials reasonably required for construction work on the premises pursuant to a valid building permit.

B. **Permitted Locations.** Table 11-30-7 states the districts where outdoor storage is permitted and prohibited.

Table 11-30-7: Outdoor Storage Regulations by District and Location	
Base Districts	**Permissibility of Outdoor Storage**
Neighborhood Commercial (NC), Limited Commercial (LC), Mixed Use (MX), and Downtown Business (DB)	All storage shall be within an enclosed building except as specified for accessory outdoor display.
Planned Employment Park (PEP)	All storage shall be within an enclosed building.

Table 11-30-7: Outdoor Storage Regulations by District and Location	
Base Districts	**Permissibility of Outdoor Storage**
General Commercial (GC), and Light Industrial (LI)	Not permitted in front or street-facing side setbacks. Permitted in interior side and rear setbacks, within the rear one-half of the lot, subject to the standards of this Section.
General Industrial (GI)	Not permitted in front or street-facing side setbacks or in front of the primary building(s).
Heavy Industrial (HI)	Permitted anywhere on a lot or parcel, subject to the standards of this Section.
Agricultural (AG), Single Residence (RS), Small Lot Single Residence (RSL), Downtown Residence (DR), and Multiple Residence (RM)	Any individual tool or piece of equipment that is higher than four (4) feet and in which the added aggregate measurements of the length, width, and depth (length plus width plus depth) exceeds 15 lineal feet, based on the extreme perimeter measurements, shall be placed or stored within an enclosed building. (1, 2, 3)
1. Equipment specifically designed and used for agriculture (as defined in Section 11-86-7 of this Title), Utility Trailers and Watercraft (as defined in Section 8-6-2 of the Mesa City Code), Recreational Vehicles (as defined in Chapter 87 of this Title), and other motorized vehicles eligible for licensing by the State of Arizona for travel on public thoroughfares are excluded from this requirement.	
2. Recreational Vehicle parking requirements are provided in Section 11-34-5(B) of this Title.	
3. Requirements for parking and storage of Watercraft and Utility Trailers are provided in Section 8-6-3 of the Mesa City Code.	

C. **Screening and Setbacks.** Outdoor Storage areas visible from public and private streets shall be screened by a wall.

1. ***Screening Walls.*** Screening walls shall be at least eight (8) feet in height. If located on a street facing front or side setback, the wall shall be placed to meet required front and street-side setbacks.

2. ***Materials.*** Screen wall materials shall be opaque and durable and shall incorporate elements of the building design e.g. shape, color, texture, and material.

3. ***Landscaping.*** Landscaping is not required within screened storage areas. All other required landscaped areas shall conform to Chapter 33: Landscaping.

4. ***Setback.*** A setback shall be provided for material stored outdoors at the ratio of 1:1 from all lot lines equal to total height of stored material above the required eight (8) foot screen wall.

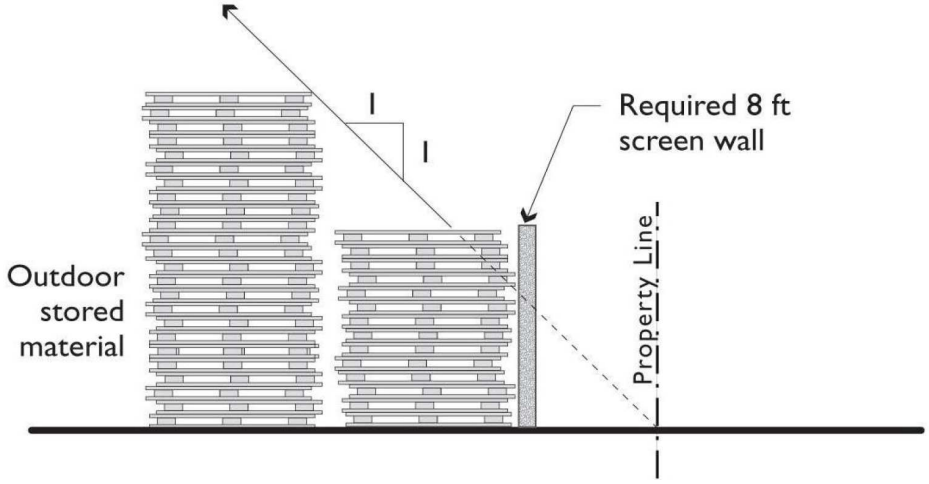


FIGURE 11-30-7.C(1)

(Ord. No. 5759, § 1, 12-8-22; Ord. No. 5814, § 2, 10-16-23; Res. No. 12269, § 12, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5996, § 4, 3-9-26)

11-30-8: PEDESTRIAN CONNECTIONS

Pedestrian walkways shall be provided in office, employment, commercial, mixed-use, and multiple residence developments. These walkways shall be designed to serve internal pedestrian circulation needs, and shall connect to public sidewalks and transit stops. Pedestrian access must be provided according to the following standards:

A. **Off-Site Connections.**

1. ***Connection to Public Sidewalk.*** An on-site walkway shall connect the main entry of each building or each primary entry to a public sidewalk on each street frontage of the site.

   a. On at least one (1) street frontage, such walkway shall be provided along the shortest practical distance between the main building entry and sidewalk, generally no more than 125% of the straight-line distance.

   b. The distance may increase up to 50% of the total straight-line distance in the event the route is designed to take account of afternoon shade patterns from buildings or similar shading devices.

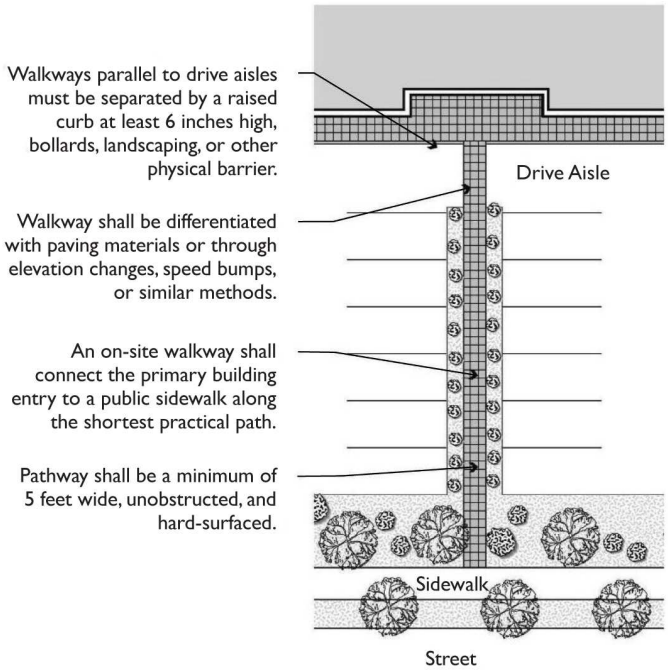


FIGURE 11-30-8.A(1): PEDESTRIAN ACCESS THROUGH PARKING AREA

2. ***Connection to Transit Stops.*** When transit facilities are located directly adjacent to development; the development shall provide pedestrian connections to the transit facilities.

B. **Internal Connections.** A system of pedestrian walkways shall connect all buildings on a site to each other, to on-site automobile and bicycle parking areas, and to any on-site recreational or open space areas or pedestrian amenities.

C. **Materials and Width.** Pedestrian walkways shall be paved with a hard, durable surface and shall provide a minimum clear width of at least five (5) feet (unobstructed from encroachments).

D. **Separation.** Where a pedestrian walkway is parallel and adjacent to an auto travel lane, it must be raised and separated from the auto travel lane by a raised curb at least 6 inches high, decorative bollards, or other physical barrier.

E. **Shade.**

1. ***Shade at Entries.*** At primary entries, pedestrian walkways shall be provided with weather protection such as canopies, awnings, arcades and trellises.

2. ***Shade Over Pedestrian Walkways.*** A minimum of 50% of the required pedestrian walkways surface area shall be shaded either by structures or tree canopy.

3. ***Measuring Shade.*** Shade coverage shall be measured at 3:00 p.m. on the summer solstice and verified through a shadow study. For the purpose of shade calculations, tree canopies shall be evaluated based on their projected growth five (5) years after planting.

(Ord. No. 5996, § 4, 3-9-26)

11-30-9: SCREENING

A. **Screening of Mechanical Equipment.** Except the AG, RS, DR-1 and RSL Districts, all exterior mechanical equipment, whether on a roof, on the side of a structure, or on the ground, shall be screened from public view, public right-of-way, parking areas, and on-site pedestrian walkways and amenities. Exterior mechanical equipment to be screened includes, but is not limited to heating, ventilation, air conditioning, refrigeration equipment, plumbing lines, ductwork, downspouts, transformers, satellite dishes, smoke exhaust fans, backflow preventers, utility meters, service entry section and similar utility devices.

1. ***Screening Design.***

   a. Screening shall be architecturally integrated into the main structure with regard to materials, color, shape, and size to appear as an integral part of the building or structure.

   b. Screening materials shall be opaque and durable. The use of wood, expanded metal lath, and chain-link is prohibited.

   c. When screening with plants, evergreen types of vegetation shall be planted and maintained. Plant material sizes and types shall be selected installed and maintained so that at the time of building occupancy, and continuously afterwards, such plants effectively screen their respective equipment.

2. ***Roof-Mounted Equipment (Non-Solar Equipment).***

   a. Roof-mounted equipment screening shall be constructed as an encompassing monolithic unit, rather than as several individual screens. Multiple equipment screens, or "hats," surrounding individual elements are prohibited.

   b. The height of the screening element shall equal or exceed the height of the structure's tallest piece of installed equipment.

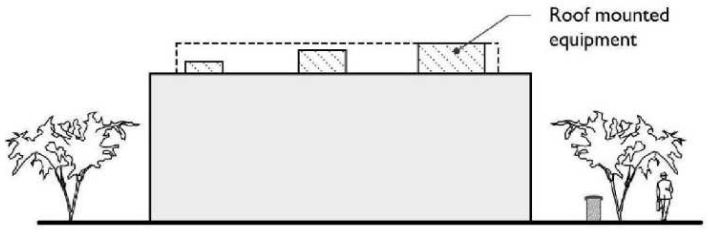


FIGURE 11-30-9.A(1): SCREENING OF ROOF-MOUNTED EQUIPMENT

3. ***Roof-Mounted Solar Equipment.***

   a. Solar equipment placed on flat roofs shall be screened a minimum of 60% of the height of the equipment.

   b. Roof-mounted equipment laying flat on a sloped roof, without additional structures elevating the panels from collectors, do not require any additional screening device.

4. ***Ground-Mounted Equipment.***

   a. Ground-mounted equipment shall be screened to a height of at least 12 inches above the tallest piece of equipment.

   b. Screening devices shall consist of decorative walls and/or berms (2:1 maximum slope) with supplemental plant materials including trees, shrubs, and ground covers.

   c. Vegetative materials may be substituted for up to 50% of the screening devices when used in conjunction with screen walls that are three (3) feet in height or lower.

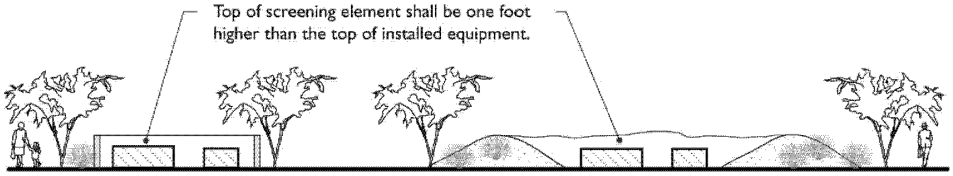


FIGURE 11-30-9.A(2): SCREENING OF GROUND-MOUNTED EQUIPMENT

5. ***Wall Equipment.***

   a. Screening devices for wall-mounted equipment, including but not limited to electrical meters, electrical distribution cabinets, Service Entry Section (SES), fire sprinkler equipment and similar valves shall incorporate elements of the building design, e.g. shape, color, texture, and material.

   b. Vegetative materials may be substituted for up to 50% of the screening devices when used in conjunction with screen walls that are three (3) feet in height or lower.

6. ***Exceptions.*** Exceptions to the screening requirements may be approved by the Zoning Administrator when it can be demonstrated that the mechanical equipment will not be visible from public view.

B. **Truck Docks, Loading, and Service Areas.** Truck docks, loading, delivery and service bays shall be screened according to the standards of Section 11-30-13.

C. **Roof Access Ladders and Fire Sprinkler Risers.** Roof-access ladders and fire sprinkler risers shall be located within the interior of the structure.

D. **Outdoor Storage.** Screening for outdoor storage shall be according to the standards of Section 11-30-7, Outdoor Storage.

E. **Automated Car Wash and Auto Service Bays.**

1. ***Adjacent to Residential or Mixed-use Development.*** When within 200 feet of a residential or mixed-use development without an intervening street, the following standards shall apply:

   a. *Located Within 100 feet of a Residential or Mixed-Use Development.* When located within 100 feet of an adjacent residential or mixed-use development bay doors and openings shall be oriented away from the residential or mixed-use.

b. *Located Between 100 to 200 Feet of Residential or Mixed-Use Development.* When located between 100 feet and 200 feet of an adjacent residential or mixed-use development bay doors and openings shall be screened by an intervening building or an eight (8) foot tall screen wall.

c. *Located More Than 200 Feet From a Residential or Mixed-Use Development.* When located more than 200 feet from an adjacent residential or mixed-use development, bay doors and openings shall be screened by an intervening building or a six (6) foot opaque wall.

2. ***Screening from Adjacent Streets.*** Bay door as and openings shall be screened from adjacent streets by one (1) of the following methods:

a. *Intervening Buildings.* Bay doors and openings shall be screened from adjacent streets through the use of intervening buildings such that the bays doors are not visible from the street(s).

b. *Setback 200 feet or Greater.* Bay doors and openings are setback from the street a distance of 200 feet or greater.

c. *Orient Perpendicular to the Street.* Buildings shall be oriented so that the bay doors and openings are perpendicular to the centerline axis of the abutting street. For corner lots, the bay doors shall be oriented perpendicular to the street with the highest functional classification identified in the Mesa Transportation Plan. In the event that the functional street classifications are equivalent, the orientation creating the smallest noise impact on adjacent residential development shall be used.

d. *Setback Less Than 200 Feet to the Street.* Bay doors and openings that are less than 200 feet from an adjacent street and the bay doors and openings are less than perpendicular to a street, screening shall be provided by a minimum six (6) foot high opaque wall.

3. ***Landscape Screening.*** Large-canopy trees and shrubs shall be used to provide screening to the bay doors when the bays are visible from the adjacent street.

4. ***Noise Reduction.*** Air compressors and similar devices shall be housed in enclosed rooms designed to attenuate sound a minimum of 25 db.

G. **Parking Areas.** Parking areas and drive aisles shall be screened from street(s) with masonry wall, berm or combination of walls/berms and densely planted landscaping or "vertical wire trellis panels". No more than 40% of the screening shall be accomplished with dense landscaping.

1. Screen walls shall vary in height from 32 to 40 inches and shall be offset or staggered by at least 24 inches at intervals of no more than 50 feet.

2. The screening device shall vary in height from 12 to 18 inches when lawful display of automobiles, trucks, Recreational Vehicles, Manufactured Homes, boats, motorcycles, and utility trailers is adjacent to public streets.

3. Screen walls shall be constructed of high-quality, durable materials such as stucco finish, textured block, brick, stone, decorative cap block, or other similar high-quality material and shall include a decorative cap or top finish as well as edge detail at wall ends.

4. Berms shall be contoured and covered with a combination of vegetative and inert ground cover. If a contoured screening berm is installed, 24-inch box trees may be substituted for required 36-inch box trees.

5. Screen wall and/or berm height shall be measured from the finish grade of the parking lot.

6. When using a screen wall there shall be a landscaped setback of at least five (5) feet between the screen wall and the edge of the parking area.

7. A setback of at least 10 feet shall be provided between the screen wall and the right-of-way.

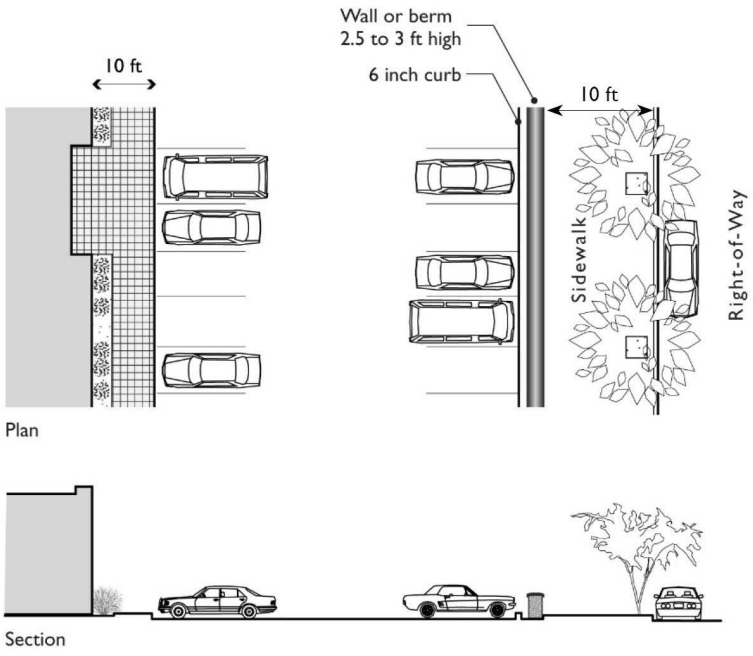


FIGURE 11-30-9.G(1): SCREENING AND SEPARATION OF PARKING AREA

H. **Common Property Lines.** A screening wall six (6) feet in height shall be provided on the interior lot lines of any lot that contains any commercial use, industrial use, public or semi-public use (except Cemetery or Public Park and Recreation Facility), or transportation, communication and utilities use, as described in Chapter 86, Descriptions of Use Classifications and Use Types, and abuts a residential district or residential use. Such screening wall shall be provided at the time of new construction or expansion of buildings, or changes from one use classification to another non-residential use classification.

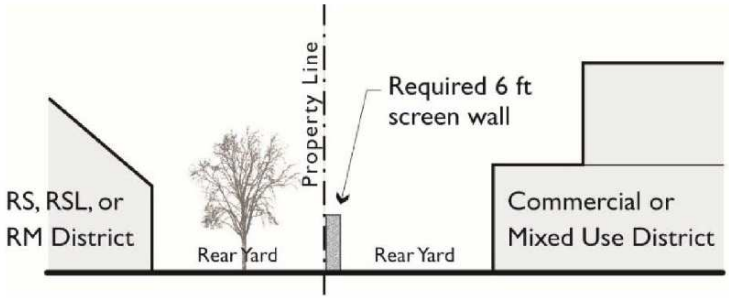


FIGURE 11-30-9.I: SCREENING ALONG RESIDENTIAL DISTRICT BOUNDARIES

1. ***Location.*** Screening walls shall follow the lot line of the lot to be screened, or shall be so arranged within the boundaries of the lot so as to substantially hide from adjoining lots the building, facility, or activity required to screened.

2. ***Materials.*** Industrial uses must provide a solid screening wall of stucco, decorative block, or concrete panel. Screening walls for other uses may be constructed of stucco, decorative block, concrete panel, or other substantially equivalent material. Chain-link fencing is prohibited.

3. ***Berms.*** A landscaped earth berm may be used in combination with, or in lieu of, the above types of screening walls.

4. ***Relationship to Fence and Wall Height Limits.*** If the minimum height required for screening walls exceeds the maximum permitted height of fences and freestanding walls for the zoning district, then an alternative screening solution shall be provided for review and approval by the Planning Director that meets the intent of the screening requirement.

5. ***Exception.*** In locations where commercial and multiple residence properties share a common interior property line the requirements for screening can be waived, except for loading and service areas, if the waiver of the screening will facilitate a more integrated design and development allowing greater pedestrian connection between the uses.

(Ord. No. 5928, § 20, 2-3-25; Ord. No. 5996, § 4, 3-9-26)

11-30-10: SETBACKS AT INTERSECTIONS

A. **Minimum Setback.** Corner treatments such as attractive plantings, pedestrian paving, lighting, monument signage and/or Street furniture shall be provided within setbacks from the intersection. All parking areas, and drive aisles shall be setback from Street intersections according to the standards in Table 11-30-10.

Table 11-30-10: Minimum Setbacks from Intersections

Intersections	Minimum Corner Setback (radius in feet)	
	DR, DB, DC, RM-5 Districts	All other non-residential districts
Arterial with Arterial	No radius is required for any of the above listed zoning districts so that the setback becomes an intersection of the street side setbacks with a build-to line where required.	Minimum 50' radius
Arterial with Collector		Minimum 25' radius
Collector with Collector		Minimum 25' radius

B. **Landscaping.** Corner setbacks shall be landscaped according to the standards of Chapter 33, Landscaping.

(Ord. No. 5996, § 4, 3-9-26)

11-30-11: SWIMMING POOLS

Swimming pools and other bodies of water located in any zoning district must be developed in compliance with the following standards:

A. A swimming pool shall not be located in the required Front Yard or a Side Yard required for vehicle access, required landscaped areas or closer than 4 feet from the water's edge to any Lot Line.

B. Contained bodies of water either above or below ground level with the container being 18 inches or more in depth at any point or wider than 8 feet at any point, shall conform to the location and fencing requirements for swimming pools.

C. Swimming pools shall be secured from unauthorized access by an enclosure as provided in Title 4, Chapters 2 (Mesa Building Code) or 3 (Mesa Residential Code), as applicable, of the Mesa City Code.

11-30-12: TRASH AND REFUSE COLLECTION AREAS

A. **General Applicability Requirements and Alternatives.**

1. ***General Applicability Requirements.*** Solid waste and recycling-container enclosures are required for new dwelling groups consisting of four (4) or more dwelling units and for all commercial or industrial developments in which the aggregate gross floor area exceeds 10,000 square feet. Designs must meet Mesa Standard Details.

2. ***Alternatives.*** Alternatives to standard requirements may be considered by the Planning Director and Solid Waste Management Director.

B. **Location.** All enclosures shall comply with all applicable Building and Fire Codes and shall meet the following requirements.

1. The solid waste and recycling storage area shall not be located within any required front setback, street side setback, any required parking and landscaped areas, or any other area required by the Mesa City Code to be constructed and maintained unencumbered according to fire and other applicable building and public safety codes.

2. Solid waste and recycling areas shall be consolidated to minimize the number of collection sites and located so as to reasonably equalize the distance from the building spaces they serve.

3. Solid waste and recycling storage areas shall be located so that the trucks and equipment used by the City of Mesa solid waste and recycling collector(s) have sufficient maneuvering areas.

C. **Materials, Construction, and Design.**

1. ***Screening Required.*** Solid waste and recycling storage areas shall be fully screened from public streets and parking areas.

2. ***Minimum Height of Screening.*** Solid waste and recycling storage areas located outside or on the exterior of any building shall be screened to a minimum height of six (6) feet.

3. ***Enclosure Material.*** Enclosure material shall be solid masonry or concrete tilt-up with decorated exterior-surface finish compatible to the main structure(s).

4. ***Gate Material.*** Gate material shall be opaque, decorative, and constructed of solid, heavy-gauge metal.

5. ***Access to Enclosure from Residential Projects.*** Each solid waste and recycling enclosure serving a residential project shall be designed to allow walk-in access without having to open the main enclosure gate.

6. ***Protection for Enclosures.*** Concrete curbs or equivalent shall protect enclosures from adjacent vehicle parking and travel ways.

7. ***Landscaping.***

   a. When feasible, the perimeter of the solid waste and recycling enclosure shall be planted with drought resistant landscaping, including a combination of shrubs and/or climbing evergreen vines.

   b. Trees shall not be planted within ten (10) feet of the enclosure.

8. ***Lighting.*** All trash collection areas shall be well lit with a minimum one (1) foot candle.

(Ord. No. 5996, § 4, 3-9-26)

11-30-13: TRUCK DOCKS, LOADING AND SERVICE AREAS

All loading and unloading of goods whether for delivery, storage, sale, or otherwise shall occur within truck docks, loading, and service areas. Truck docks, loading, and service areas shall be located and screened as follows:

A. **Minimum Distance from Residential District.** Truck docks, loading, and service areas are not permitted within 50 feet of the boundary of any residential district or use.

B. **Location on Lot.** In all districts except the GI, and HI Districts, truck docks, loading areas and service areas must be located at the rear or side of buildings, rather than facing a Street.

C. **Screening.** Truck docks, loading areas, and service areas located in any zoning district shall be screened from any adjacent residential districts or uses. Docks, loading and service areas in any district except the GI and HI Districts shall be screened from public view. Screening shall consist of a solid masonry wall at least eight (8) feet in height or opaque automated gates.

D. **Commercial Loading and Unloading.** In the Downtown Business, Downtown Core, or Form Based Code Districts, the loading and unloading of commercial vehicles shall occur within 300 feet of the site being served.

(Ord. No. 5996, § 4, 3-9-26)

11-30-14: VISIBILITY AT INTERSECTIONS

Notwithstanding any other provisions of this Section, no fence, wall, shrubbery, sign or other obstruction to vision between a height of three (3) feet and eight (8) feet above the centerline grades of the intersecting streets shall be erected, placed, planted, allowed to grow or maintained within the triangular yard space formed by the

intersecting center lines and a line joining points on such center lines 80 feet from the point of intersection. Where a conflict occurs between this requirement and the Land Division Regulations, the more restrictive provision shall apply.
(Ord. No. 5996, § 4, 3-9-26)

11-30-15: SOLAR PANELS AND OTHER ALTERNATIVE ENERGY PRODUCTION FACILITIES

A. **Solar Panels.** The following standards are applicable solar panels used for the primary purpose of providing energy for the immediate site or development:

1. ***Attached solar panels.*** In all zoning districts, solar panels attached to sloped roofs shall be located entirely on the roof. Solar panels located behind parapets on flat roofs shall comply with Table 11-30-3: Allowed Projections Above Height Limits.

2. ***Detached, freestanding solar panels.*** Detached or freestanding solar panel structures are permitted only in Single Residence districts and shall comply with all location, maximum height and maximum roof area requirements of Detached Accessory Structures, Section 11-5-7(B).

B. **Solar Farms and Alternative Energy Production Facilities.** Design Objective: Reduce the impact of large energy production utilities.

Solar farms and other alternative energy production facilities shall be permitted in accordance with the requirements of Article 2 and the following:

1. ***Setbacks and Landscaping.*** In all districts where permitted, provide the setbacks and Landscaping required for that district.

2. ***Screening.*** Solar panels and equipment used for solar farms and/or alternative energy production facilities shall be screened from the public view of the street right-of-way by walls and fences that are the height of the panels and equipment or at least 8 feet in height, whichever is less.

11-30-16: PORTABLE STORAGE CONTAINERS (PSC)

Portable Storage Containers are permitted only in accordance with the following requirements:

A. **Minimum Standard.** The construction of the PSC shall conform to requirements set by the International Standards Organization for portable shipping containers, ISO 6346.

B. **Temporary Use during Construction.** PSCs are permitted as a temporary storage device for use during construction, remodeling, or redevelopment of permanent on-site buildings and facilities:

1. When either of the following occurs:

a. In all Agriculture (AG), multiple residence (RM), all commercial and all industrial zoning districts, and for non-residential uses in Mixed Use (MX) and all Transect districts, if no building permit is required for the type of construction taking place, the temporary use of the PSC is subject to the issuance of an Administrative Use Permit by the Development Services Division in accordance with requirements of Chapter 70 of this Zoning Ordinance.

b. In all zoning districts, when a building permit is required for the type of construction taking place, the temporary use of use of the PSC may be authorized in conjunction with the issuance of a building permit in accordance with Title 4 of the Mesa City Code.

2. Applications for a building permit or Administrative Use Permit, as applicable (Item 1, above), shall include a plan which specifies the number, size, and location of the storage containers.

3. The temporary use of PSCs is limited to the lesser of the following time periods:

a. When authorized in conjunction with the issuance of a building permit, the temporary use shall be limited to the time in which the construction, remodeling, or redevelopment of permanent on-site buildings and facilities is actively taking place; or

b. When authorized with the issuance of an Administrative Use Permit, the temporary use shall be limited to 6-months, or until such time as the construction, remodeling, or redevelopment activity is completed, whichever occurs first. If the construction, remodeling, or redevelopment activity remains active and extends beyond 6-months, then the use permit may be renewed, but no more than 2 times.

4. The PSC shall be removed within 7-days of the completion of:

a. The construction, remodeling, or redevelopment activities;

b. The construction activities authorized by the construction permit; or

c. The expiration of the use permit.

5. In all Single Residence (RS) and Single Residence-Small Lot (RSL) districts, PSCs used during construction with the issuance of a building permit shall be limited to no more than one PSC per residential lot.

6. PSCs shall not be located in retention basins, drive aisles, fire lanes, loading zones, or any other location that may cause hazardous conditions, or constitute a threat to public safety.

C. **Temporary or Periodic Commercial Storage.** In the LC and GC commercial districts, and in the PEP and LI industrial districts, PSCs may be used as a periodic, intermittent, or isochronal use for a temporary period of time and accessory to a primary permitted use, subject to the approval of a special use permit in accordance with Chapters 67 and 70 of this Zoning Ordinance. In addition to specifying and limiting the number, size, location, and duration of the storage containers, the special use permit may require additional measures to ensure compatibility with adjacent land uses, such as increased setbacks, screen walls, Landscaping, exterior materials and color.

D. **Permanent Storage in Industrial Districts.** In those industrial districts for which outdoor storage is expressly allowed (i.e., LI, GI and HI Districts), PSCs may be used for permanent outdoor storage, subject to:

1. All requirements for the placement of outdoor storage specified for the applicable zoning district;

2. Compliance with all requirements of Section 11-30-7 with regard to placement and Screening of outdoor storage; and

3. Placement of the PSC in a manner such that it is not located in landscape areas, designated open space, retention basins, drive aisles, fire lanes, required parking spaces, loading zones, or any other location that may cause hazardous conditions, or constitute a threat to public safety.

E. **Permanent Storage in Downtown Business District 2.** In the DB-2 district, a PSC shall only be used for outdoor storage, subject to:

1. Approval of a Special Use Permit in accordance with Chapters 67 and 70 of this Zoning Ordinance;

2. Compliance with all requirements for the placement of outdoor storage specified by Section 11-30-7 with regard to placement and Screening of outdoor storage; and

3. Placement of the PSC in a manner such that it is not located in landscape areas, designated open space, retention basins, drive aisles, fire lanes, required parking spaces, loading zones or any other location that may cause hazardous conditions, or constitute a threat to public safety.

F. **Temporary Use in Residential Districts for Loading and Unloading of Household Goods.** In residential districts (RS, RSL and RM), Downtown Residence (DR-1, DR-2 and DR-3), and residential uses in all Transect districts (T3N, T4N, T4NF, T4MS, T5N, T5MSF, and T6MS), the temporary placement of a portable storage container on a residential lot for the purpose of loading and unloading household contents is only permitted for a period of time not exceeding seven (7) days in a calendar year.

G. **Permanent Use in Single Residence and Agriculture Districts.** The permanent use of PSCs is permitted only in the RS-43, RS-90 and AG Zoning Districts, and only in accordance with the following requirements:

1. The placement, floor area, and size of the portable storage containers shall be in conformance with the same requirements specified for detached Accessory Buildings in Section 11-30-17.

2. A building permit is required before installation, with a field inspection following installation.

3. The PSC shall be placed upon an elevated pad that is a minimum of 4-inches above average natural grade of the ground within a 4-foot radius of the exterior walls of the PSC.

4. One or more of the following aesthetic treatments to the exterior physical appearance of the PSC are required. At minimum:

a. A veneer of a durable building material similar to and congruous in appearance with the primary dwelling shall be attached to the PSC; or

b. Landscaping of sufficient density is installed and maintained so as to block the visibility of the PSC from across property lines of all directly abutting properties, or from across a Right-of-Way from a property that would otherwise directly abut the site. This Landscaping Screening may be through the use of a hedge or other Landscaping growing adjacent or on the PSC. If this alternative is used, the PSC shall be painted a color considered compatible with the color of the associated primary residence; or,

c. A combination of partial veneer treatments, compatible paint colors, and/or landscape treatments that result in the appearance of the PSC being aesthetically congruous with the primary residence, and undiscernible from a detached Accessory Building of standard construction.

5. Openings created for placement of doors and/or windows in the PSC are only permitted if no cuts or structural alterations are made to the primary structural frame of the PSC.

(Ord. No. 5249, 10-6-14)

11-30-17: DETACHED ACCESSORY BUILDINGS OR STRUCTURES

The purpose of this Section is to aid in the comfort, convenience, and enjoyment of a lot or parcel by providing standards for the allowance and placement of detached Accessory Buildings or Structures that place reasonable limitations to minimize impacts on access to light, air, and spacing relative to adjacent lots and parcels.

A. **General Requirements.** Detached Accessory Buildings or Structures located on lots or parcels in Agricultural (AG), Single Residence (RS), Small Lot Single Residence (RSL), Downtown Residential (DR), and Multiple Residence (RM) districts are permitted subject to the following provisions:

1. The Primary Building shall be under construction or fully constructed on a lot or Parcel of Land prior to initiating construction of a detached Accessory Building or Structure;

2. Detached Accessory Buildings or Structures shall not be constructed or used for dwelling purposes, except as an Accessory Dwelling Unit as provided in Section 11-31-3 of this Title;

3. Detached Accessory Buildings or Structures shall adhere to the maximum building coverage and maximum Lot Coverage requirements of the underlying zoning district;

4. The combined gross floor area of all detached accessory buildings or structures, shall not exceed 100% of the gross floor area of the primary building, unless approved by a Special Use Permit; and

5. No detached Accessory Building or Structure shall encroach into any recorded Easement.

B. **Building Height and Location.**

1. ***Detached Accessory Buildings or Structure: Less than or equal to 200 Square Feet.*** Detached Accessory Buildings or Structures 200 square feet or less in gross floor area shall comply with all of the following requirements:

a. May be located within the required rear, side, or Street Side Yards.

b. Shall not be located in the required Front Yard or between the front of the Primary Building and the Street.

c. On Corner Lots or parcels abutting a Key Lot, detached Accessory Buildings or Structures shall not be located closer to the Street than the Primary Building on the adjacent Key Lot.

d. Shall not be located closer than six (6) feet to the Primary Building.

e. Shall not exceed eight (8) feet in height at the peak of the roof unless the detached Accessory Building or Structure complies with the height and location requirements in Subsection (B)(2)(d) or Subsection (B)(2)(e) below.

f. No portion of the Accessory Building or Structure shall overhang the property line or cause water to shed or drain from the roof of the Accessory Building or Structure onto a neighboring property.

2. ***Detached Accessory Buildings or Structures: Greater than 200 Square Feet.*** Detached Accessory Buildings or Structures greater than 200 square feet in gross floor area shall comply with all of the following requirements:

   a. Shall not be located in the required Front Yard or between the Primary Building and the Street.

   b. Shall not be located closer than six (6) feet to the Primary Building.

   c. On Corner Lots or parcels abutting a Key Lot, detached Accessory Buildings or Structures shall not be located closer to the Street than the Primary Building on the adjacent Key Lot.

   d. Shall not exceed the maximum Building Height of the underlying zoning district, or the height of the Primary Building as measured at the peak of the roof, whichever is less, unless approved by a Special Use Permit.

   e. In addition to the height maximum in Subsection (d), the below requirements must be met for the detached Accessory Building or Structure, as applicable. If the height of the Accessory Building or Structure is:

      i. Equal to or less than 15 feet in height at the peak of the roof, the detached Accessory Building or Structure may be located within the rear, side, or Street Side Yards but shall not be located closer than five (5) feet from the side, Street-side, and rear property lines.

      ii. Over 15 feet in height at the peak of the roof, the detached Accessory Building or Structure shall not be located within any rear, side, or Street Side Yard, and shall adhere to the setback requirements of the underlying zoning district.

   f. No portion of the Accessory Building or Structure shall overhang the property line or cause water to shed or drain from the roof of the Accessory Building or Structure onto a neighboring property.

(Ord. No. 5814, § 3, 10-16-23; Ord. No. 5883, § 1, 10-7-24; Ord. No. 5950, § 1, 7-8-25)

CHAPTER 31 STANDARDS FOR SPECIFIC USES AND ACTIVITIES*

11-31-1: PURPOSE AND APPLICABILITY

The purpose of this Chapter is to establish standards for specific uses and activities that are permitted or conditionally permitted in multiple zones. For each zoning district, uses and activities that are permitted or conditionally permitted shall comply with the regulations and standards of this Chapter, as well as any applicable standard found in each zoning district.

11-31-2: ACCESSORY USES

An Accessory Use shall be secondary to a primary use and shall be allowed only in conjunction with a Principal Use or building to which it relates, in any zoning district. Accessory use regulations are found in the use regulations tables in Article 2 and 3 of this Zoning Ordinance and are subject to the regulations of the primary use and specific standards found in this Chapter.

***Editor's note—**Previously, Chapter 31 derived from Ord. No. 5233, 6-2-14.

11-31-3: ACCESSORY DWELLING UNIT

The purpose of this Chapter is to provide opportunities for Accessory Dwelling Units (ADUs) while minimizing impacts to surrounding uses and properties.

A. **Applicability.**

1. One (1) attached ADU and one (1) detached ADU are permitted per lot or parcel in any of the following zoning districts where a Single Residence is allowed: Agricultural, Residential, Commercial and Mixed Use, and Downtown.

2. Any lot or parcel containing an existing Single Residence is permitted one (1) attached ADU and one (1) detached ADU regardless of the zoning district.

3. One (1) additional detached ADU is permitted on a lot or parcel that is one (1) acre or more in size on a lot or parcel that meets the requirements in Subsection (A)(1) or (A)(2) above if at least one (1) of the ADUs is used as a restricted-affordable dwelling unit, which is defined as a dwelling unit that either, through a private deed restriction or a Development Agreement with the City, is rented to households earning up to eighty percent (80%) of the area median income.

B. **General Requirements.**

1. There are no minimum lot size requirements to establish an ADU.

2. An ADU shall have a separate and independent entrance from the primary residence and may not have an internal connection to the primary residence.

3. An ADU may contain either a partial kitchen or full kitchen, but no more than one (1) kitchen per ADU is allowed.

4. An ADU in a Historic District shall comply with Chapter 74 of the Zoning Ordinance.

5. An ADU shall comply with all applicable building code requirements for residential dwellings.

6. Manufactured Homes, Recreational Vehicles (RV), and trailers shall not be used as an ADU.

C. **Unit Size.** The interior habitable area of an ADU shall not exceed 75% of the primary residence's interior habitable area, or 1,000 square feet, whichever is less.

D. **Setbacks.**

1. ***New Structures - Attached or Detached.***

a. A minimum side and rear setback of five (5) feet shall be provided for all side and rear setbacks.

b. Front and secondary front (street side) setbacks shall comply with the primary residence setback requirements for the underlying zoning district.

c. Any uninhabitable space (e.g., a garage, unconditioned storage room, workshop, and similar areas) attached to an ADU shall comply with the following:

i. *For Attached ADUs.* Uninhabitable space attached to the attached ADU shall comply with the setback requirements for the underlying zoning district.

ii. *For Detached ADUs.* Uninhabitable space attached to the detached ADU shall comply with the setback requirements for detached accessory buildings or structures in Section 11-30-17 of this Ordinance.

2. ***Existing Detached Accessory Building or Structure Conversion.***

a. *Conforming Detached Accessory Building or Structure.*

i. An existing Detached Accessory Building or Structure that complies with the setback requirements in Section 11-30-17 (Detached Accessory Buildings or Structures) but does not comply with the setback requirements in Subsection (D)(1) above may be converted to an ADU without requiring additional setbacks.

ii. Any expansion or addition to accommodate an ADU shall comply with the setback requirements of Subsection (D)(1) above.

b. *Legal Non-Conforming Detached Accessory Building or Structure.*

i. An existing Detached Accessory Building or Structure that does not comply with the setback requirements in Section 11-30-17 (Detached Accessory Buildings or Structures) or the setback requirements in Subsection (D)(1) above, may be converted to an ADU without requiring additional setbacks.

ii. An expansion or addition to accommodate an ADU may be constructed in compliance with Subsection (D)(1) above, or in line with the existing non-conforming setback, provided it does not further increase the existing non-conformity.

3. ***Primary Residence.***

a. *Primary Residence Renovation.* A primary residence may be internally renovated to include an ADU and shall not require additional setbacks. Any expansion or addition to the primary residence to accommodate an ADU is subject to the following:

i. *Ground Floor Addition.* Any ground floor addition constructed to accommodate an ADU shall comply with the setback requirements outlined in Subsection (D)(1) above.

ii. *Second-Story Addition.* Any second-story addition constructed to accommodate an ADU shall comply with the setback requirements for the primary residence.

b. *Legal Non-Conforming Structures.*

i. A primary residence that does not conform to the required setbacks for the underlying zoning district or the setback requirements in Subsection (D)(1) above, may be internally renovated to accommodate an ADU without requiring additional setbacks.

ii. An expansion or addition to accommodate an ADU may be constructed in compliance with Subsection (D)(1) above, or in line with the existing non-conforming setback, provided it does not further increase the existing non-conformity.

E. **Lot Coverage and Building Coverage.** An ADU shall comply with all lot coverage and building coverage requirements of the underlying zoning district.

F. **Height.**

1. The height of an attached or detached ADU shall comply with the primary residence height requirements for the underlying zoning district.

2. Any uninhabitable space (e.g., a garage, unconditioned storage room, workshop, and similar areas) attached to a detached ADU shall comply with the height requirements for detached accessory buildings or structures in Section 11-30-17 of this Ordinance.

G. **Parking.**

1. No additional parking spaces are required for an ADU.

2. If a garage or carport is converted to an ADU, covered parking for the primary residence is not required to be replaced elsewhere on the lot or parcel.

H. **Utilities.**

1. An ADU shall be provided with water, sewer, and electric utilities.

2. An ADU shall be served by the same water, sewer, and electric utility provider as the primary residence.

3. An ADU may not be built on top of a current or planned Public Utility Easement of any kind unless the property owner receives written consent from any utilities currently using the Public Utility Easement or that may use the Public Utility Easement in the future.

(Ord. No. 5814, § 4, 10-16-23; Ord. No. 5883, § 2, 10-7-24; Ord. No. 5950, § 2, 7-8-25; Ord. No. 5996, § 4, 3-9-26)

11-31-4: ANIMAL KEEPING (AG AND ACCESSORY TO RESIDENTIAL USES)

Keeping animals in AG and residential zones is allowed, subject to compliance with Title 8 Article 4.

A Special Use Permit may be approved for the keeping of livestock in excess of the number permitted in Section 8-6-21 of the Mesa City Code, or for the keeping of livestock on a parcel less than 35,000 square feet, as specified in Section 8-6-21 of the Mesa City Code, only upon a finding by the Zoning Administrator acting as a hearing officer/Board of Adjustment that all three of the following are present:

A. The applicant has demonstrated that the number of livestock proposed is consistent with the number historically kept on the property.

B. The keeping of livestock is for private use and enjoyment and does not constitute a commercial use, unless otherwise authorized in this Chapter.

C. The keeping of livestock will be in accordance with all other provisions of Title 8 Article 4, of the Mesa City Code, including proper sanitation and placement of barns, pens, and corrals.

11-31-5: AUTOMOBILE RENTALS; AUTOMOBILE/VEHICLE SALES AND LEASING

Automobile Rental, and Automobile/Vehicle Sales and Leasing, each as described in Section 11- 86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Landscaping.** In addition to perimeter and foundation base Landscaping requirements, Landscaping shall comprise a minimum of 10 percent of the site area.

B. **Vehicle Display.** A maximum of 30 percent of the Street side landscape area may be used for vehicle display. A minimum 12-foot wide planter strip shall separate vehicle display areas from Sidewalks along the Streets. Vehicle display encroachments wider that 30-feet shall be separated by a minimum distance of 30-feet between similar vehicle displays that encroaches into the Street side landscape area (illustration needed).

C. **Vehicle Loading and Unloading.** Vehicle loading and unloading shall occur on-site.

D. **Vehicle Display Platforms.**

1. Elevated platforms or other structures or devices used for the display of vehicles associated with an approved vehicle sales or rental facility are permitted, provided such platforms, structures, or devices:
    a. Shall only be located in areas currently approved or authorized for vehicle display; and
    b. Shall not project into or over required landscape areas, drive aisles, or fire lanes; and
    c. Shall not be located closer to the public Street than the existing, at-grade vehicle display area; and
    d. Shall not exceed four feet (4') in height as measured from the mean finished grade of the display surface.
2. Only one (1) vehicle shall be displayed on each platform, structure, or device.
3. The number of display platforms, structures, or devices shall not exceed a ratio of one (1) per 100 feet of lineal street frontage of the at-grade display area (exclusive of driveways).
4. The Planning Director may approve modifications or variations to the above provisions when such platforms, structures, or devices comply with all of the following:
    a. Constitute a design component, or incorporate architectural features, associated with the Primary Buildings or structures on the development site; and
    b. Serve only to enhance the visibility of vehicles, and do not display or portray an advertising message, or commercial signage; and
    c. Will not impede or obstruct the visibility of traffic maneuvering on the development site or traveling upon the public-street; and
    d. Incorporate increased setbacks, enhanced landscaping, or other screening measures to effectively mitigate the impact of the platforms.

(Ord. No. 5996, § 4, 3-9-26)

11-31-6: AUTOMOBILE/VEHICLE REPAIR, MAJOR AND MINOR

Major Automobile/Vehicle Repair, and Minor Automobile/Vehicle Service and Repair, each as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Minimum Lot Size.** 1 acre, unless part of a larger group commercial center.

B. **Screening.** Car service and storage areas shall be screened per Sections 11-30-9(F), Auto Service Bays and 11-30-9(H), Parking Areas.

C. **Litter.** No used or discarded automotive parts or equipment or disabled, junked, or wrecked vehicles may be stored outside of the main building.

D. **Noise.** All body and fender work, or similar noise-generating activity, shall be enclosed in masonry or similar building with sound attenuating measures incorporated into the building design and construction to absorb noise to comply with Title 6, Chapter 12 of the Mesa City Code. Bay openings shall be oriented so as to minimize the effects of sound emanating from the auto repair building towards residential uses, towards outdoor restaurant seating and outdoor reception areas. Compressors shall be located within separately enclosed, sound attenuated rooms.

11-31-7: AUTOMOBILE/VEHICLE WASHING

Automobile Washing, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Location.** Automobile/Vehicle Washing, as a primary use, is only allowed on sites with at least one (1) frontage on an arterial street.

B. **Setbacks.** No building or structure shall be located within 20 feet of any interior lot line abutting a Residential Zoning District.

C. **Drive-up Aisles and Required Queuing Area.**

1. Drive-up aisles shall be at least 12 feet wide;

2. If adjacent to a street, the drive-up aisle shall be screened as specified in Section 11-30-9(F), Automated Car Washes and Auto Service Bays.

3. The drive-up aisle shall provide queuing space, with no encroachment into required landscape areas or building setbacks, for at minimum:

a. Four (4) vehicles per pull-through rack for each automatic wash bay.

b. Three (3) vehicles per bay for self-serve, coin-operated and/or hand wash facilities.

D. **Landscaping.** When Automobile/Vehicle Washing, is the primary use on a site, in addition to perimeter, parking lot, and foundation base landscaping requirements, landscaping shall comprise a minimum of 10% of the site area.

E. **Litter.** One (1) permanent, non-combustible trash receptacle per wash bay is required.

F. **Noise.**

1. Sound attenuating measures shall be incorporated into the building design and construction to absorb noise such that the sound level readings at the street and at interior property lines are no more than 55 decibels.

2. Mechanical equipment for centralized vacuum equipment shall be housed in an enclosed room.

G. **Additional Special Use Permit Criteria.** When a Special Use Permit is required, the approving body shall find that the project complies with all of the following:

1. The number of automobile related activities within 600 feet of an intersection of arterial streets shall not exceed two (2), including Automobile/Vehicle Washing, Automobile Service Stations, Automobile Sales or Rental Lots, or Automobile/Vehicle Repair.

2. Canopies and fuel dispensing equipment are oriented away from the street, either to the side or to the rear of the building.

3. Compliance with all development standards for the applicable zoning district.

4. The project complies with the General Plan and any other applicable Plans and/or policies.

5. Evidence that the project is designed to:

   a. Provide paved parking and on-site circulation in a manner that minimizes impacts on adjacent sites;

   b. Minimize dust, fugitive light, glare, noise, offensive smells, and traffic impacts on neighboring residential sites.

6. A Plan of Operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations.

7. A "Good Neighbor Policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses, including sound attenuation, lighting control measures, and vehicular access and traffic control. Such policies shall include, but are not limited to:

   a. The name and telephone number of the position, manager or person responsible for the operation of the facility;

   b. Complaint response procedures, including investigation, remedial action, and follow-up; and

   c. Litter control measures.

8. Evidence that the building or site is in, or will be brought into substantial conformance with all current City Development Standards, including, but not limited to, landscaping, parking, screen walls, signage, and project-specific design guidelines.

(Ord. No. 5996, § 4, 3-9-26)

11-31-8: BED AND BREAKFAST INNS

Bed and Breakfast Inns, as described in Section 11-86-4, shall be located, developed and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Location of Parking:** All parking shall be located behind the Front Yard building setback for the zoning district, and be designed to facilitate the exiting of vehicles in a forward motion from the site onto the adjacent Street. Parking for sites located in RM districts shall not encroach into any required side and Rear Yards, nor any required landscape areas.

B. **Additional Requirements for Sites located in RS and DR Districts.** In addition, sites located within the RS and DR districts shall comply with the following:

1. ***Minimum lot area.*** When located in Single Residence (RS) districts, the minimum lot area shall be 15,000 square feet or greater.

2. ***On-site resident.*** When located in Single Residence (RS) or Downtown Residence (DR) districts, the operation of the facility shall include an on-site resident owner or manager.

3. ***Outdoor facilities.*** In addition to compliance with all building setback requirements for the zoning district, all unenclosed outdoor buildings open on 1 or more sides, miscellaneous structures, decks and swimming pools shall maintain a minimum separation of 20-feet from abutting Single Residence lots.

4. ***Signage.*** The site shall be limited to 1 attached sign that is no greater than 4 square feet. Any verbiage on the sign shall be limited to the name of the facility and the address. Use of an internally illuminated sign is prohibited.

C. **Special Use Permit Criteria.** Review of the Special Use Permit required for Bed and Breakfast Inns located in RS districts shall be based on the following:

1. ***Historic Sites.*** Preference may be given to sites located within Approved Historic or Historic Landmark Overlay Districts, without the site being located in close proximity to an arterial Street, as stated in 2, below.

2. ***Proximity to Arterial Streets.*** Sites should be located within a traveling distance on public Streets of 300-feet from a major arterial Street, and should have no more than 1 turning movement on a public Street before accessing the public Street leading to the arterial Street.

3. ***Facility-Lot Area Balance.*** The size and number of on-site improvements should be balanced against the size of the lot in order to maintain the appearance of the site as being compatible with the context and character of the surrounding neighborhood. Factors to consider in reviewing this balance include:

a. Providing facilities needed to minimize impacts on adjacent properties at a scale limited to that needed to achieve the intended result; and

b. Restricting non-residential structures; and

c. Providing adequate Screening (by structure, Screening wall and/or vegetation) of the view of parking spaces from the adjacent Street(s).

11-31-9: COMMERCIAL USES IN ANY RESIDENTIAL DISTRICTS

Any Special Use Permit request for a commercial land use classifications in a residence district shall be reviewed in accordance with the following criteria:

A. **Applicable Policies.** The use is found to be in compliance with the General Plan, and with applicable Sub-Area Plans, Neighborhood Plans and other recognized development plans or policies, and will be compatible with surrounding uses; and

1. ***Development Plan.*** A finding that an acceptable Development Plan has been submitted for review and consideration.

2. ***Operational Plan.*** A finding that an acceptable operational plan in narrative form has been submitted for review and consideration, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses, Such policies shall include, but are not limited to, the name and telephone number of the manager or person responsible for the operation of the facility; complaint response procedures, including investigation, remedial action, and follow-up; and litter control measures; and

3. ***Addresses Adverse Impacts.*** Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use shall adequately provide paved parking and on-site circulation in a manner that minimizes impacts on adjacent sites; and existing or proposed improvements to the site shall minimize dust, fugitive light, glare, noise, offensive smells and traffic impacts on neighboring residential sites.

(Ord. No. 5996, § 4, 3-9-26)

11-31-10: COMMUNITY GARDENS

Community Gardens, as described in Section 11-86-3 shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Type and Size Restrictions.** Community gardens shall be limited in type and size by zoning district as follows:

1. ***Agricultural.*** Gardens may be divided into individual plots or farmed collectively. There is no maximum size for individual plots or for the aggregate garden area.

2. ***RS-35, RS-43, and RS-90.*** Gardens may be divided into individual plots or farmed collectively. Individual plots may be of any size, the maximum size of the aggregate garden area is limited to one (1) acre.

3. ***All Other Districts.*** Garden areas may only be developed as individual garden plots. The individual garden plots may be no larger than 400 square feet and the maximum size of the aggregate garden area is limited to ½ acre.

B. **Setbacks.** Site features, such as raised planting beds and storage sheds, are not allowed in the required setback. Plantings are allowed in required yards provided they comply with site visibility triangles of Section 11-30-14, Visibility at Intersections.

C. **Storage Buildings.** Storage Buildings shall conform to the following standards:

1. ***Maximum area:*** 200 square feet;

2. ***Maximum height:*** 10 feet:

3. ***Location:*** within the buildable area and placed in the rear one-half of the lot;

4. ***Number:*** One (1) storage shed per site for gardens one (1) acre or less; maximum 2 storage sheds for sites larger than one (1) acre.

D. **Lighting.** Overhead lighting is prohibited.

E. **Parking.** No more than 2 vehicles shall be permitted onsite, excluding those parked within an enclosed structure. Parking spaces shall be paved with an approved dust proof material.

F. **Maintenance.** The site shall be kept clear of weeds, debris and waste in conformance with Mesa City Code, Section 8-6-3. All composting shall be done in a screened area or within a container. All tools and equipment shall be stored or screened from view when not in use.

G. **Fences.** Fences, including trellises, are allowed in required yards subject to the standards governing fence location, maintenance, height and design of Section 11-30-4, Fences and Freestanding Walls. Exception: chain link fence material may be used in the Community Garden.

11-31-11: CONVENIENCE MARKETS

Convenience Markets, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Maximum Building Size.** 5,000 square feet.

B. **Setbacks.** No building or structure shall be located within 20 feet of an interior Lot Line abutting a residential zoning district.

C. **Litter.** One permanent, non-flammable trash receptacle shall be installed in the parking area adjacent to the entrance/exit of the market.

11-31-12: CORRECTIONAL TRANSITIONAL HOUSING FACILITIES (CTHF)

Correctional Transitional Housing Facility (CTHF), as described in Section 11-86-2, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Location.**

1. ***Separation from Dissimilar Uses.***

a. A minimum distance of 500 feet from any residential zoning district.

b. A minimum distance of 1,200 feet from any of the following:

i. A public or private school building with kindergarten programs or any of grades one (1) through 12, and any recreational area adjacent to such school; and

ii. A public park; and

iii. Any existing community residence or assisted living facility.

2. ***Separation from Similar Uses.*** A minimum distance of 5,280 feet from any other CTHF.

B. **Criteria for Review of Council Use Permit.** The review of the Council Use Permit shall include a review and determination regarding the following items:

1. The use is found to be in compliance with the General Plan and other recognized development plans or policies, and will be compatible with surrounding uses; and

2. A finding that a plan of operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations; and

3. A finding that a "good neighbor policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses. Such policies shall include, but are not limited to, the name and telephone number of the manager or person responsible for the operation of the facility; complaint response procedures, including investigation, remedial action, and follow-up; and litter control measures; and

4. Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use is in, or will be brought into, substantial conformance with all current City Development Standards, including, but not limited to, landscaping, parking, screen walls, signage, and design guidelines.

C. **Registration and Renewal.** To register with the City, a correctional transitional housing facility requires a council use permit to operate. the applicant must submit to the City an application for a council use permit in accordance with section 11-67, and provide evidence demonstrating compliance with this section. Registration of a correctional transitional housing facility is valid for one (1) year and must be renewed annually on or before the expiration date of the registration.

D. **General Operations.** Correctional transitional housing facilities shall submit an operational plan demonstrating:

1. Compliance with all zoning, building, and fire safety regulations including, but not limited to, evidence demonstrating that the building and the proposed site will be brought into substantial conformance with all current city development standards, including, but not limited to, landscaping, parking, screen walls, signage, and design guidelines;

2. Compliance with state laws and regulations;

3. Provisions of on-site supervision, by qualified staff, for all hours during which residents are on the premises; and

4. Security measures that are sufficient to protect the safety of residents and other citizens in the vicinity of the facility.

(Ord. No. 5631, § 1, 7-8-21)

11-31-13: LARGE DAY CARE GROUP HOMES

Large Day Care Group Home, as described in Section 11-86-2, shall be located, developed, and operated in compliance with the Land Use Regulations in Article 2 and the following standards:

A. The location of the home is registered with the Planning Division and evidence of certification by the Arizona Department of Health Services is provided to the City;

B. No identification is visible from a public street by signage, graphics, display, or other visual means;

C. The building complies with all applicable building and fire safety regulations;

D. A 6-foot-high solid (opaque) fence or wall is provided between all outdoor play areas and adjacent properties, except within the required front yard, in which fencing requirements shall comply with in the requirements of Section 11-30-4, Fences and Freestanding Walls; and

E. A separation between large day care group homes of 600 feet or by the presence of significant intervening physical features between an existing large day care group home and the proposed large day care group home, such as arterial streets, canals, parks, or similar buffering features or developments.

11-31-14: COMMUNITY RESIDENCES

A community residence (family and transitional) shall be located, developed and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **General Requirements.**

1. ***Spacing Requirements.*** A minimum distance of 1,200 feet from the closest existing community residence, assisted living home, or assisted living center, as measured under Section 11-2-3(D), unless separated by a significant intervening natural or manmade feature such as, but not limited to, a canal, municipal open space of at least ten (10) acres (e.g., park, golf course, etc.), a railroad, or a highway, that is approved by the Zoning Administrator.

2. **Occupancy.** Five (5) up to a maximum of ten (10) individuals (not including staff).

3. ***Licensure and Certification.*** A community residence must obtain one (1) or more of the following:

(a) License or certification from the State of Arizona required to operate the proposed community residence; or

(b) Certification by the Arizona Recovery Housing Association if not required to be licensed by the State of Arizona; or

(c) A "Permanent" Oxford House Charter.

B. **Community Residences Requiring a Conditional Use Permit.** In certain zoning districts community residences are not allowed by right but require the approval of a conditional use permit. A conditional use permit shall be granted only if the governing body finds that the applicant has demonstrated that all of the following criteria are met:

1. The proposed use will be compatible with the residential uses allowed as of right in the zoning district;

2. The proposed use in combination with any existing community residences, assisted living homes, and assisted living centers will not result in a clustering of such uses or alter the residential character of the surrounding neighborhood by creating or intensifying an institutional atmosphere; and

3. The proposed use will not interfere with normalization and community integration of the residents of any existing community residences, assisted living homes, or assisted living centers, and that the

presence of other existing community residences, assisted living homes, or assisted living centers will not interfere with normalization and community integration of the residents of the proposed use;

4. The applicant has submitted a "good neighbor policy" in narrative form that includes:

   (a) A description of acceptable measures to ensure ongoing compatibility with adjacent uses;

   (b) The name and telephone number of the manager or person responsible for the operation of the facility;

   (c) Complaint response procedures including investigation, remedial action, and follow-up procedures; and

   (d) The proposed use complies with all other development standards in this Chapter.

C. **Registration, Renewal, and Revocation.** A community residence must register with the City and renew its registration as set forth below:

1. ***Registration Process for Community Residences That Do Not Require a Conditional Use Permit.*** An applicant for a community residence that does not require a conditional use permit to operate and is not requesting a reasonable accommodation under Section 11-31-14(D), must register with the City by submitting the City's registration application according to Chapter 67, Common Procedures. If the use complies with all City requirements, the applicant will receive provisional registration approval from the planning division. To obtain final registration, the applicant must provide evidence of the required license or certification within 120 days from the date the provisional registration was approved.

2. ***Registration Process For a Community Residence That Requires a Conditional Use Permit or is Requesting a Reasonable Accommodation.*** A community residence that requires a conditional use permit to operate or that requests a reasonable accommodation to the standards in Section 11-31-14(a), must register with the city by submitting the City's application for a conditional use permit according to Chapter 67, Common Procedures, and by providing evidence of compliance with all City requirements. The request will be reviewed by the applicable governing body. approval of the conditional use permit grants the applicant provisional registration. To obtain final registration, the applicant must provide evidence of the required license or certification within 120 days from the date the provisional registration was approved; except registration for a community residence that is granted a reasonable accommodation to the license and certification requirement is considered final and no other action is required.

3. ***Registration Renewal.*** Registration of a community residence is valid for one (1) year and must be renewed annually on or before the expiration date of the registration. To renew a registration, the operator of a community residence shall submit to City an application for renewal and evidence of a current state license, certification or Oxford House Charter.

4. ***Revocation.*** The registration and conditional use permit obtained by a community residence may be revoked as set forth in this section:

   (a) *Facilities Without a Conditional Use Permit.* In the event the license, certification or Oxford House Charter for a community residence is denied or revoked, the City of Mesa registra-

tion will automatically terminate after 15 calendar days of the date of the City's written notification to the applicant; and the community residence must cease operation 45 calendar days from the date of the City's written notification.

(b) *Facilities With a Conditional Use Permit.* A community residence that requires a conditional use permit to operate or that has applied for or received a special use permit for a reasonable accommodation and whose license, certification, or oxford house charter required in Section 11-31-14(a)(3) is denied or revoked, the City of Mesa registration shall automatically terminate, and the conditional use permit is subject to the revocation process in Chapter 70. If the conditional use permit is revoked, the community residence must cease operation within 45 calendar days from the date the conditional use permit is revoked.

D. **Reasonable Accommodation.** A community residence that does not meet the spacing, occupancy or licensure requirements may request a reasonable accommodation through the special use permit process. The accommodation being sought must be reasonable and necessary to afford individual(s) with disabilities an equal opportunity to use and enjoy housing that is the subject of the request. The process to apply for a special use permit are provided in Chapter 67, Common Procedures, except a citizen participation plan and report is not required.

1. ***Accommodation to Spacing Requirements.*** A special use permit to the spacing requirements shall be granted only if the governing body finds that the applicant has demonstrated that the proposed use meets all of the following criteria:

(a) The proposed use will not interfere with the community integration of the residents of any existing community residences, assisted living homes, or assisted living centers, or their ability to interact with neighbors without disabilities; and the presence of other community residences, assisted living homes, or assisted living centers will not interfere with the community integration and interaction of the residents of the proposed use;

(b) The proposed use in combination with any existing community residences, assisted living homes, or assisted living centers will not alter the residential character of the surrounding neighborhood by creating or intensifying an institutional atmosphere or by creating or intensifying a de facto social service district by clustering or concentrating community residences, assisted living homes, or assisted living centers; and

(c) The proposed use complies with all other development standards in this Chapter.

2. ***Accommodation to Licensure Requirements.*** When the state, Arizona Recovery Housing Association or Oxford House does not offer a license, certification, or charter for the type of community residence and the population it will serve, the community residence may request a special use permit. the special use permit shall be granted only if the governing body finds that the applicant has demonstrated that all of the following criteria are met:

(a) The proposed use will operate in a manner effectively similar to a licensed or certified community residence;

(b) Staff will be adequately trained under standards typically required by the state or Oxford House for a community residence;

(c) The proposed use will have operating rules and practices that will protect residents from abuse, exploitation, fraud, theft, insufficient support, use of illegal drugs or alcohol, and misuse of prescription medications;

(d) The proposed use will emulate a family and will operate to achieve community integration; and

(e) The proposed use otherwise complies with all other development standards in this Chapter.

3. ***Accommodation to Occupancy Limits.*** A community residence that wants to house more than ten (10) people may request a special use permit. A special use permit shall be granted only if the governing body finds that the applicant has demonstrated that the proposed community residence meets all of the following criteria:

(a) The number of residents over ten (10) is needed for therapeutic viability of the proposed community residence;

(b) The number of residents in the proposed community residence will emulate and operate as a family rather than a boarding house, skilled nursing facility, short-term rental, treatment center, social service facility or other nonresidential uses; and will not interfere with the community integration of the occupants of any existing community residences, assisted living homes, or assisted living centers;

(c) The primary function of the proposed community residence is residential where any treatment is merely incidental to the residential use of the property;

(d) The proposed community residence has sufficient parking for the requested number of occupants so as not to impact the adjacent properties; and

(e) The proposed use complies with all other standards in this Chapter.

(Ord. No. 5632, § 7, 7-8-21; Ord. No. 5858, § 3, 7-1-24)

Editor's note—Ord. No. 5632, § 7, adopted July 8, 2021, repealed the former section 11-31-14, and enacted a new section 11-31-14 as set out herein. The former section 11-31-14 pertained to group homes for the handicapped.

11-31-15: HOSPITALS AND CLINICS

Hospitals and Clinics, as described in Section 11-86-3 shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Patient Entrances:** Patient entrances shall:

1. Be clearly distinctive from the remainder of the building, and be readily visible from the public street;

2. Be identified by directional signage in conformance with requirements of Article 5;

3. Include an extended foundation base to provide a patient drop-off area of a minimum 900 sq. ft., extending a minimum 20-feet measured perpendicular from the patient entrance door "See FIGURE 11-31-15.A & 11-31-15.B"; and

4. Pedestrian connections within parking areas, to other buildings on site, and to the public street and transit shall follow the requirements of Section 11-30-8, Pedestrian Connections and Section 11-32-4(G)3, Pedestrian Access.

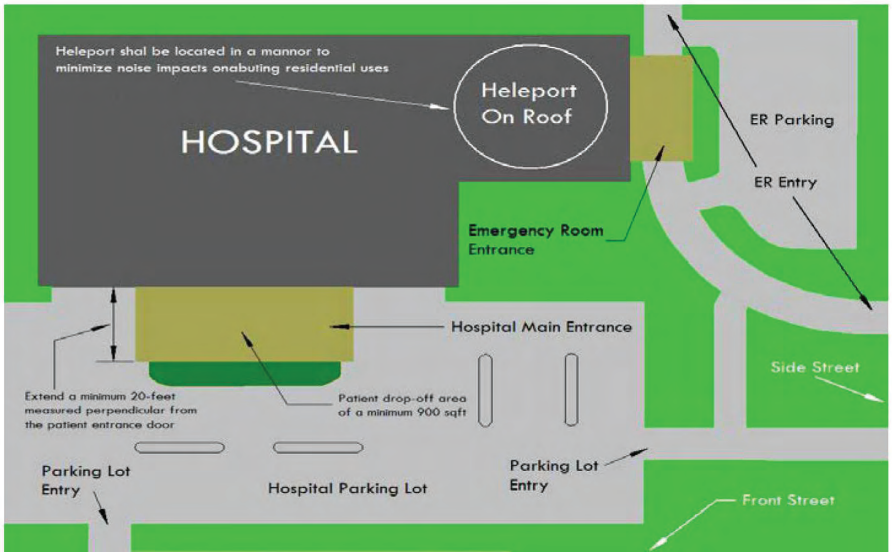


FIGURE 11-31-15.A: HOSPITALS AND CLINICS

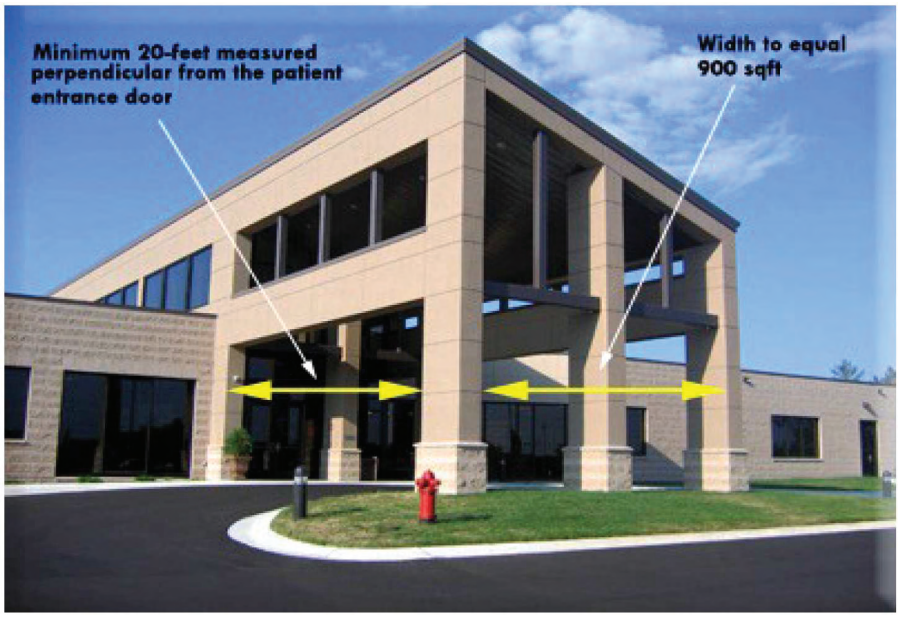


FIGURE 11-31-15.B: PATIENT ENTRANCES

B. **Emergency Room Access.** Emergency room access shall be separate and distinct from the patient entrance(s), with directional signage in conformance with the requirements of Article 5. Vehicle access drives leading to the Emergency Room shall be direct from the street and separated from parking lanes and spaces by intervening buildings, extruded curbs and landscape islands. "See FIGURE 11-31-15.C and 11-31-15.D"



FIGURE 11-31-15.C.1: EMERGENCY ROOM ACCESS



FIGURE 11-31-15.D: EMERGENCY ROOM ACCESS

C. **Storage of Liquid Chemicals and Bulk Materials.** Liquid oxygen and other similar materials stored outdoors and in bulk shall be screened from ground-level view by the building, screen wall, or screen walls in combination with landscape materials. If landscape materials are used, the mature height of the plant according to ANA standards may be taken into consideration, provided the size of the tree at planting is a minimum of 36-inch box.

D. **Heliports.** "See Figure 11-31-15.A" Heliports associated with a hospital are permitted, and shall be located in a manner to minimize noise impacts on abutting residential uses, according to the following preferences:

1. First Preference: Ground on side of building opposite any abutting residential areas.
2. Second Preference: Roof level of building less than the highest point on side of building away from residential areas.
3. Third Preference: Roof at top of building.

11-31-16: LARGE COMMERCIAL DEVELOPMENT

Large Commercial Development, as described in Section 11-86-4, shall be located, developed and operated in compliance with the land use regulations in Article 2, and the following standards:

A. **Chapter 6 Standards Apply.** In addition to the requirements below, Large Commercial Development shall comply with all requirements of Section 11-6-3 (Development Standards) and Section 11-6-4 (Site Planning and Design Standards).

B. **Customer Entrances.** All building entries designed for general public and customer access to the building shall be clearly distinguishable from the remainder of the building and incorporate one (1) or more of the following design elements:

1. The façade shall be articulated at least 10 feet horizontally and four (4) feet vertically for the full height of the entry feature;
2. The entryway shall contain a minimum 75% glazing;
3. The entryway shall be defined by a distinct change in building material;
4. The entryway shall include a distinct change in roof form (e.g., curvilinear versus flat parapet, tower feature, angled versus flat, etc.); or
5. Other architectural features as approved by the Planning Director.

C. **Entryway Monumentation Feature.** Each large commercial development shall provide at least one (1) entryway monumentation feature at a primary driveway serving an arterial or collector street. The entryway monumentation feature shall consist of:

1. A landscaped median measuring at least seven (7) feet in width;
2. A landscaped roundabout;
3. An architectural gateway (e.g., paired columns with overhead element); or
4. Other feature(s) approved by the Planning Director.

D. **Entryway Plazas.** An entryway plaza shall be provided at the entry to each anchor tenant building.

1. ***Minimum size.*** The entryway plaza shall have a minimum area of 900 square feet and extend at least 20 feet, perpendicular from the public entrance.
2. ***Design Elements.*** The entryway plaza shall include decorative paving, seating areas, raised planters, or trees.

E. **Open Space.** Open space shall be provided as follows:

1. ***Minimum area.***

a. Five (5) square feet per 1,000 square feet of building gross floor area shall be provided for open space.

b. Each area designated as open space shall be no less than 200 square feet in area.

c. Required sidewalks shall not be included in the open space calculation.

2. ***Location.***

a. Required open space shall be visible from a public street, or from on-site areas normally frequented by customers.

b. Required open space shall be accessible during business hours.

c. Entryway plazas and areas designated for customers to wait for rideshare services may be combined with required open space.

3. ***Shade.***

a. *Required.* At least 50% of the required open space shall be shaded by trees, shade structures, or other permanent elements integrated into the site design.

b. *Measuring Shade.* Shade coverage shall be measured at 3:00 p.m. on the summer solstice and verified through a shadow study. For the purpose of shade calculations, tree canopies shall be evaluated based on their projected growth five (5) years after planting.

4. ***Amenities.*** Required open space shall include amenities, in addition to required shade elements. amenities may include seating areas; water and cooling features (e.g., drinking fountains, splash pads, etc.); play, fitness, and recreation equipment; mobility stations (e.g., bike repair station, micromobility docks, wayfinding kiosks/maps); pop-up/activation space (e.g. performance stage, stubs outs for electric, water, etc.); public art; or other amenities as determined by the Planning Director to provide equivalent functional or recreational value.

F. **Criteria for Review of Council Use Permit.** When a Council Use Permit is required, City Council shall find the project complies with all of the following:

1. The project complies with the General Plan and any other applicable Plans and/or policies.

2. A Plan of Operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations.

3. A "Good Neighbor Policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses, including sound attenuation, lighting control measures, and vehicular access and traffic control. Such policies shall include, but are not limited to:

a. The name and telephone number of the position, manager or person responsible for the operation of the facility;

b. Complaint response procedures, including investigation, remedial action, and follow-up; and

c. Litter control measures.

4. Evidence that the building or site is in, or will be brought into substantial conformance with all current City Development Standards, including, but not limited to, landscaping, parking, screen walls, signage, and project-specific design guidelines.

5. Evidence that the project is designed to:

a. Provide paved parking and on-site circulation in a manner that minimizes impacts on adjacent sites; and

b. Minimize dust, fugitive light, glare, noise, offensive smells, and traffic impacts on neighboring residential sites.

(Ord. No. 5544, § 10, 12-9-19; Ord. No. 5928, § 21, 2-3-25; Ord. No. 5996, § 4, 3-9-26)

11-31-17: LIVE/WORK UNITS

Live-Work Units, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Establishment.** Live/Work Units may be established through new construction or through the conversion of existing commercial or industrial buildings that were designed, constructed and received an occupancy permit for such non-residential uses. See Figure 11-31-17.A.

B. **Allowable Uses.** Work activities in Live/Work Units are limited to uses as permitted in the base zoning district in which the Live/Work Units are located.

C. **Sale or Rental of Portions of Unit Prohibited.** No portion of a Live/Work Unit may be separately rented or sold as a commercial space for a person or persons not living on the premises, or as a residential space for a person or persons not working on the premises.

D. **Floor Area Distribution.** At least 30 percent of the net floor area of a Live/Work Unit must be designated for work activities. An applicant shall submit a floor plan of all proposed units to the Planning Division to demonstrate compliance with this regulation.

E. **Outdoor Living Area.** Common or private on-site open space shall be provided for the use of occupants at a rate of at least 150 square feet per Live/Work Unit. This space may be attached to individual units or located on the roof or adjoining the building in a Rear Yard.

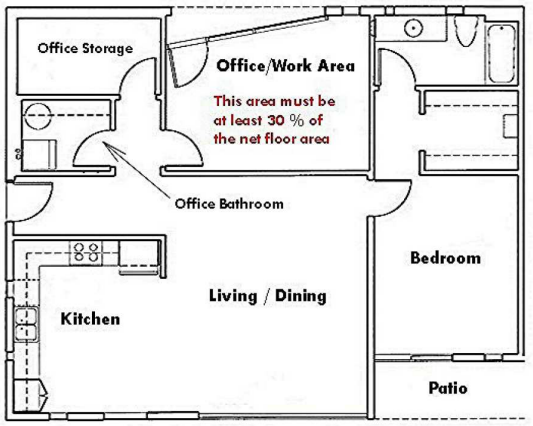


FIGURE 11-31-17.A: LIVE/WORK

11-31-18: DRIVE-THRU AND PICK-UP WINDOW FACILITIES

Drive-thru Facilities, Pick-up Window Facilities, and Drive-up ATM/Teller Windows as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Purpose.** The purpose of this Section is to mitigate potential impacts of Drive-thru Facilities, Pick-up Window Facilities, and Drive-up ATM/Teller Windows, including but not limited to, visual, traffic, and noise impacts, and to ensure that these facilities are developed to enhance the city's urban form.

B. **General Requirements.**

1. A drive-thru lane, pick-up lane, or drive lane serving a Drive-up ATM/Teller Window must be physically separated from non-drive-thru traffic areas or nonpick-up traffic areas with a minimum five (5) foot wide raised landscape median. See Figure 11-31-18.A.

2. A minimum two (2) foot wide foundation base must be provided along any exterior building wall that is adjacent to a drive-thru lane, pick-up lane, or drive lane serving a Drive-up ATM/Teller Window. See Figure 11-31-18.A.

3. Awnings or architecturally integrated weather protection structures must be provided over drive-thru windows and pick-up windows. Such awning or weather protection structure must be architecturally integrated in proportion, color, material, and texture to the building it serves.

C. **Onsite Circulation and Stacking Study.**

1. An Onsite Circulation and Stacking Study is required with every application for a new Drive-thru Facility.

2. Pick-up Window Facilities and Drive-up ATM/Teller Windows are exempt from this requirement.

3. The Onsite Circulation and Stacking Study shall include the following:

   a. Description of onsite operations including:

      i. Business hours of operation.

      ii. The method by which a customer order is placed and processed.

      iii. Peak demand hours.

      iv. The time required to serve a typical customer.

      v. A description of how sound from external operations will be attenuated from neighboring properties.

   b. Description of onsite traffic activity, including:

      i. Arrival rates of customers.

      ii. Anticipated vehicular stacking required.

      iii. An onsite circulation plan showing points of entry to the site, stacking locations and distances, and anticipated patterns of onsite circulation.

      iv. A mitigation plan describing how backup stacking will be addressed so that vehicles are not blocking internal drives or backing up onto roadways.

      v. An evaluation of uses within 1,200 feet of the proposed development identifying cumulative traffic impacts and mitigation efforts to ensure that vehicles are not blocking internal drives or backing up onto roadways.

   c. Other information deemed necessary by the Planning Director or their designee to review the proposal including additional information to determine whether the proposal has appropriate traffic circulation, and stacking.

D. **Stacking Requirements.**

1. ***Drive-thru Facilities and Pick-Up Window Facilities.*** Drive-thru Facilities and Pick-up Window Facilities must conform to the following stacking requirements: A minimum 50-foot-long distance must be provided between the entrance of a drive-thru lane or pick-up lane and a Street access driveway or cross access drive aisle. Distance measured from the entrance of the drive-thru lane or pick-up lane to the right-of-way, property line or edge of Street access driveway or cross access drive aisle. See Figure 11-31-18.A.

2. ***Additional Drive-thru Facility Requirements.*** In addition to the stacking requirement in Subsection (1) above, Drive-thru Facilities must conform to the following stacking requirements:

   a. A minimum 100-foot-long stacking distance must be provided between the drive-thru window and order-placing speaker. Distance measured from the leading edge of the drive-thru window along the centerline of the drive-thru lane to the far edge of the order placing speaker. See Figure 11- 31-18.A.

   b. A minimum 40-foot-long stacking distance must be provided between the order-placing box and the entry to a drive-thru lane. Distance measured from the leading edge of the order-placing box along the centerline of the drive-thru lane to the entrance of the drive-thru lane. See Figure 11-31-18.A.

3. ***Additional Pick-up Window Facility Requirements.*** In addition to the stacking requirements in Subsection (1) above, Pick-up Window Facilities must conform to the following stacking requirements: A minimum 100-foot-long stacking distance must be provided between the pick-up window and the entrance of the pick-up lane. Distance measured from the leading edge of the pick-up window along the centerline of the pick-up lane to the entrance of the pick-up lane.

4. ***Drive-Up ATM/Teller Window Requirements.*** A minimum 40-foot-long stacking distance must be provided for each Drive-up ATM/Teller Window. Distance measured from the leading edge of the ATM/Teller window along the centerline of the stacking lane to the entry of the stacking area.

5. ***Modifications to Stacking Requirements.*** Modifications to the stacking requirements found in this Section may be approved through the Development Plan Review process if the Planning Director or their designee determines, based on the Onsite Circulation and Stacking Study, that the proposed modifications to the stacking requirements are sufficient to meet the demands of the development, including the traffic circulation, and stacking demands.

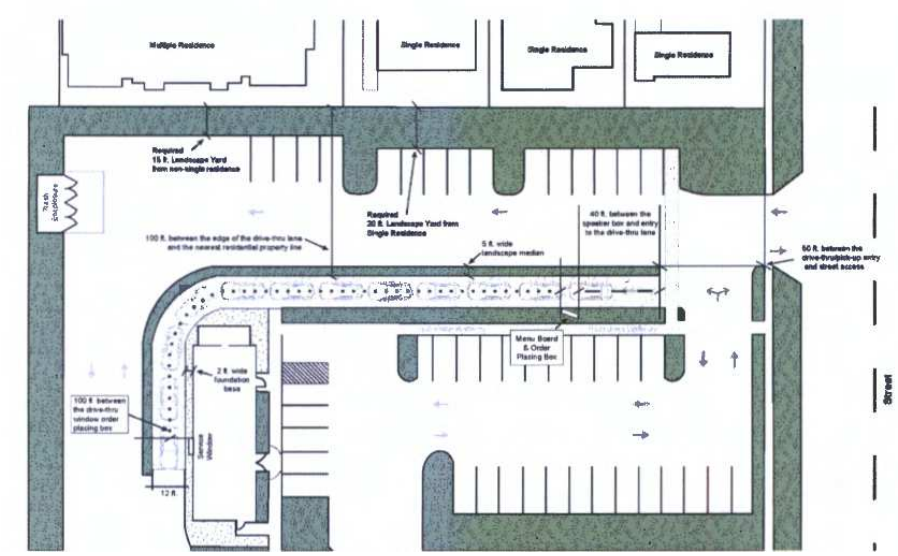


FIGURE 11-31-18.A DRIVE-THRU AND PICK-UP FACILITIES

E. **Screening/Buffering Requirements.** Drive-thru Facilities, Pick-up Window Facilities, and Drive-up ATM/Teller Windows shall conform to the following Screening requirements:

1. A drive-thru lane or pick-up lane is not permitted to be located parallel to arterial roadways. Where physical site conditions prevent a non-parallel configuration, the drive-thru lane or pick up lane must conform to the required Landscaping per Table 11-33-3.A.4 and provide either:

   a. A 40-inch-high screen wall adjacent to the arterial roadway that extends the entire length of the drive-thru lane or pick-up lane, along with two (2) additional trees per 25 feet of linear Street frontage, and two (2) additional shrubs per 25 feet of linear Street frontage; or

   b. An architecturally integrated awning, canopy, or trellis system that covers and screens the entire drive-thru lane or pick-up lane from the Street, one (1) additional tree per 25 feet of linear Street frontage, and two (2) additional shrubs per 25 feet of linear Street frontage.

2. ***Separation from Residential Uses and Residential Districts.***

a. A 100-foot distance must be provided between the drive-thru lane or pickup lane and any residential use or property zoned with a Residential District (i.e., RS, RSL, RM).

b. The Planning Director, or their designee, may approve a distance less than 100 feet if a sound study submitted by the applicant demonstrates that the drive-thru noise level at the property line will not exceed 60 dB.

c. If the ambient noise level exceeds 60 dB, the noise study must demonstrate that the Drive-thru Facility will not increase the existing noise level.

d. Distance shall be measured from the far edge of the drive-thru lane to the property line containing the residential use or property zoned with a Residential District.

F. **Employee Protection Requirements.** Drive-thru Facilities whose operations include employees who take orders outside of the eating establishment must provide a raised two (2) foot wide pedestrian path and an architecturally compatible shade structure along the area in which employees are staged and take orders.

(Ord. No. 5544, § 11, 12-9-19; Ord. No. 5813, § 2, 10-16-23; Ord. No. 5996, § 4, 3-9-26)

11-31-19: OUTDOOR EATING AREAS

Outdoor Eating Areas in conjunction with an Eating and Drinking Establishment, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Downtown Core and Form Based Code Transect Districts.**

1. ***Location.*** Within the Downtown Core District (DC) and Form Based Code Transect Districts, an Outdoor Eating Area is permitted only in the following locations:

a. Within the buildable area of the lot; or

b. Within the right-of-way, on a public sidewalk, provided a minimum six (6) foot wide contiguous portion of the public sidewalk remains unobstructed for pedestrian use. Review and approval of an encroachment permit by the City Engineer is required for any Outdoor Eating Area located on a public sidewalk.

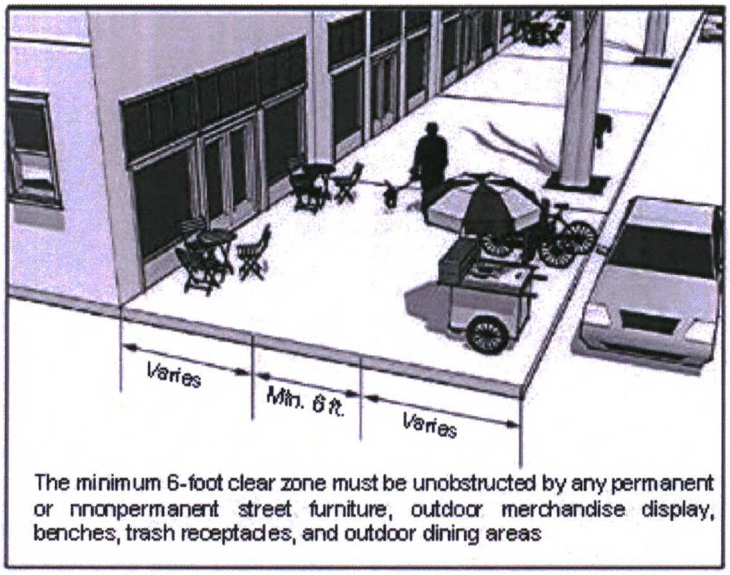


FIGURE 11-31-19.A.1: OUTDOOR EATING ALL OTHER ZONING DISTRICTS

B. **All other Zoning Districts.**

1. ***Locations.*** In all other zoning districts in which an outdoor eating area is permitted, an outdoor eating area is permitted only in the following location:

   a. Within the buildable area of the lot; or

   b. The outdoor eating area may encroach up to one-half the depth of a Street-side landscape yard and may encroach into the required foundation base area as long as a minimum five (5) foot contiguous pedestrian walkway remains unobstructed for pedestrian use.

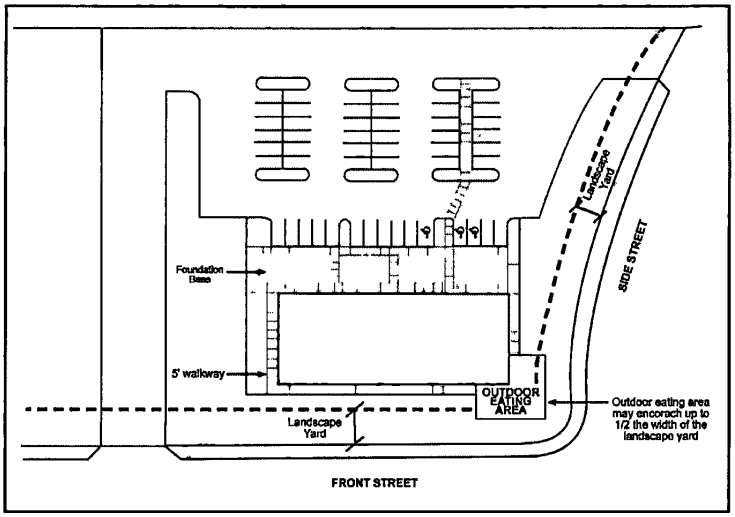


FIGURE 11-31-19.A.2: OUTDOOR EATING AREAS

C. **Outdoor eating area barriers.** Barriers are meant to demarcate the section provided for an outdoor eating area, for both temporary and permanent outdoor eating areas. Barriers, such as but not limited to, fencing, decorative planters, or other architectural enclosures of the outdoor eating area, must comply with the following standards.

1. ***Applicability.*** Barriers must be provided at the following outdoor eating areas:

   a. Outdoor eating areas with more than four (4) tables or more than eight (8) seats unless approved through an encroachment permit.

   b. Outdoor eating areas with alcohol service.

2. ***Barrier height.*** An outdoor eating area barrier within the right-of-way or within the required front setback may have a maximum height of 42 inches.

3. ***Design.*** Outdoor eating area barriers shall consist of durable, high-quality materials, shall compliment the architecture of the building which they serve, and adhere to any design guidelines established for the area in which the eating and drinking establishment is located.

4. ***Prohibited barriers.*** Outdoor eating area barriers may not be constructed with chain link fencing, chicken wire, cyclone fencing, sway ropes, fabric, or canvas.

D. **Fixtures.** Fixtures, such as but not limited to, furniture, awnings, umbrellas, planters, heaters, lighting fixtures, enclosure legs or supports, may be used in conjunction with an outdoor eating area and must comply with the following standards:

1. ***Location.*** Fixtures shall not be located or project beyond the outdoor eating area barrier, if present. Fixtures shall not encroach into the pedestrian walkway.

2. ***Overhead fixtures.*** Permanent, attached shade structures must be adequately secured and shall comply with the provisions of the Mesa Building Code, Title 4 of the Mesa City Code.

3. ***Refuse storage area.*** Trash receptacles and enclosures must comply with Section 11-30-12 and may not be located within the right-of-way unless approved through an encorachment permit.

E. **Signage.** Signs associated with outdoor eating areas must comply with the Mesa Sign Ordinance and may not be located within the right-of-way in accordance with Section 11-45-1: Prohibited Signs.

(Ord. No. 5758, § 2, 12-8-22; Ord. No. 5996, § 4, 3-9-26)

11-31-20: OUTDOOR DISPLAY

Outdoor display, as described in Chapter 87, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. An outdoor display is permitted only in conjunction with a lawfully established primary business.

B. An outdoor display shall only contain goods sold by the primary business.

C. **Location.** An outdoor display shall be located adjacent to the front facade of the primary business.

1. ***Multi-tenant building.*** When located outside of a multitenant building, an outdoor display shall not extend beyond the tenant frontage of the primary business.

2. ***Downtown Core.*** When located within the Downtown Core (DC) Zoning District, an outdoor display may be located within the right-of-way, on a public Sidewalk, provided a minimum six (6) foot wide contiguous portion of the public Sidewalk remains unobstructed for pedestrian use.

3. An outdoor display may not be located within landscape areas, parking lots, drive-aisles, loading zones, or fire lanes.

D. **Hours of Operation.** Outdoor displays may only operate during the hours of operation of the primary business. All structures, signs, equipment, and displays associated with an outdoor display must be stored indoors at all times when the primary business is closed to the public, unless the outdoor display is permitted as a permanent location on an approved Development Plan.

(Ord. No. 5759, § 3, 12-8-22; Ord. No. 5996, § 4, 3-9-26)

Editor's note—Ord. No. 5759, § 3, adopted December 8, 2022, repealed the former § 11-31-20, and enacted a new § 11-31-20 as set out herein. The former § 11-31-20 pertained to outdoor retail sales.

11-31-21: PAWN SHOPS

Pawn Shops, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **License required.** A pawn broker license issued pursuant to Title 5, Chapter 7 of the Mesa City Code is required, or evidence of current and/or future compliance with all requirements of Mesa City Code Title 5, Chapter 7 pertaining to the issuance of a pawn broker's license.

B. **Location.**

1. Minimum distance from another pawn shop: 1,200 feet. Minimum distance from a public or private school: 1,200 feet.

2. Exceptions to the 1,200 foot separation requirement may be approved by the City Council upon a finding that there are significant intervening physical features, such as arterial Street, canals, parks, or similar buffering features or developments, between a proposed pawn shop and an existing pawn shop or Public or Private School.

C. **Criteria for Review of Council Use Permit.** The review of the Council Use Permit shall include a review and determination regarding the following items:

1. The use is found to be in compliance with the General Plan and other recognized development plans or policies, and will be compatible with surrounding uses; and

2. A finding that a plan of operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations; and

3. A finding that a "good neighbor policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses. Such policies shall include, but are not limited to, the name and telephone number of the manager or person responsible for the operation of the facility; complaint response procedures, including investigation, remedial action, and follow-up; and litter control measures; and

4. Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use is in, or will be brought into, substantial conformance with all current City Development Standards, including, but not limited to, Landscaping, parking, screen walls, signage, and design guidelines.

5. Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use shall adequately provide paved parking and on-site circulation in a manner that minimizes impacts on adjacent sites; and existing or proposed improvements to the site shall minimize dust, fugitive light, glare, noise, offensive smells and traffic impacts on neighboring residential sites.

11-31-22: PLACES OF WORSHIP

Places of Worship, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Accessory Uses.** Accessory uses customarily found in conjunction with Places of Worship, including parish houses, parsonages, rectories, seminaries, classrooms, and convents, are permitted, provided that such accessory uses are located on the same lot or contiguous lot with the religious facility.

B. **Athletic Facilities and Day Care Centers.** Athletic facilities and day care centers in conjunction with Places of Worship require approval of a Special Use Permit.

C. **Residential Districts.** Places of Worship located in residence districts shall:

1. Locate buildings within the required setbacks for the building setbacks specified for that zoning district; and

2. Comply with development and design standards for the LC District.

D. **Building Setback, Building Height, Parking, Landscaping and Screening Standards.** Places of worship shall comply with each of the following:

1. The building setback and building height requirements established by the zoning district for which the Places of Worship is located; unless modified as a building height exception pursuant to Section 11-30-3.

2. Landscaping and screening requirements as specified for a LC development, pursuant to Section 11-30-9 and Chapter 33.

3. All parking requirements specified in Chapter 32.

(Ord. No. 5996, § 4, 3-9-26)

11-31-23: RECYCLING COLLECTION AND PROCESSING FACILITIES

A. **Recycling Collection Facilities**, as described in Section 11-86-5 shall be located pursuant to the requirements of Article 2, and developed and operated in compliance with the following standards:

1. ***Location.*** The facility must be established in conjunction with an existing commercial use or community service facility and not obstruct pedestrian or vehicular circulation.

2. ***Minimum Distance*** from an R (RS, RSL or RM) Zones shall be 100 feet.

3. ***Maximum Size:***

   a. Small Indoor Collection Facility shall occupy no more than 1000 square feet of space.

   b. Reverse Vending Machines shall occupy no more than 350 square feet of space

4. ***Power-Driven Equipment.*** Power-driven processing equipment, except for reverse vending machines, is not permitted.

5. ***Storage Container.*** All recyclable material must be stored in containers. Materials may not be left outside of containers. Containers shall be stored within an enclosed building, when required by the zoning district. For reverse vending machines, such containers shall be stored within the machine.

6. ***Maintenance.*** Facilities must be maintained free of litter and any other undesirable materials, and mobile facilities for which truck or containers are removed at the end of the collection day, must be swept at the end of the collection day.

7. ***Required Container Information.*** Containers shall be clearly marked to identify the type of materials that may be deposited; the facility shall be clearly marked to identify the name and telephone number of the facility operator and the hours of operation, and display a notice stating that no material shall be left outside of the building or reverse recycling machine.

8. ***Reduction of Parking.*** Occupation of parking spaces by a reverse vending facility and by the attendant (if present) may not reduce available parking spaces below the minimum number required for the site.

B. **Recycling Processing Facilities** shall be located pursuant to the requirements of Article 2, and developed and operated in compliance with the following standards:

1. ***Operation—Fence, Wall or Enclosed Building Required.*** All operations and storage, including all equipment used in conducting such use, other than parking, shall be conducted within an enclosed building or within an area enclosed by a solid wall or solid fence.

2. ***Specifications for Walls and Fences.***

a. All fences and walls shall be of a uniform height, and shall be a minimum of eight feet and shall not exceed 15 feet in height. Where fences or walls exceed a height of 10 feet and are located on street or highway frontages, they shall be set back at least three feet from the lot line. The area between the fence and the lot line shall be fully landscaped according to the specifications described in this section.

b. All fences and walls open to view from any street or highway or any area in a residential, agricultural or commercial zone shall be constructed of the following materials:

i. Metallic panels, at least .024 inches thick, painted with a "baked on" enamel or similar permanent finish;

ii. Masonry;

iii. Other materials comparable to the foregoing if approved by the Director.

c. Other required fences may be constructed of material other than as specified above.

d. All fences and walls shall be constructed in workmanlike manner and shall consist solely of new materials unless the Director approves the substitution of used materials where, in his opinion, such used materials will provide the equivalent in service, appearance and useful life.

e. All fences and walls, excluding masonry and approved permanent-finish panels, shall be painted a uniform, neutral color, excluding black, which blends with the surrounding terrain, and improvements shall be maintained in a neat, orderly condition at all times. Such fence or wall shall contain no painted signs or posters except as approved by the Director.

f. *Modifications, When Authorized.* The Director may modify fences or walls not exposed to view from any street or highway or any area in a residential, agricultural or commercial zone:

i. Where an adjoining lot is located within a GI zone, and is developed with an automobile dismantling yard, junk and salvage yard, scrap metal processing yard, or other open storage use displaying similar characteristics; or

ii. Where substantial fences, walls or buildings on abutting properties serve to enclose such yard as well or better than the required wall or fence. Should the use, fence, wall or building providing justification for such modification be removed, a new wall or fence shall be provided in compliance with this section within six months from the date of such removal.

C. **Paving of Yards.** All areas of the yard open to vehicular passage shall be paved with an asphalt surfacing or an oil and aggregate mixture to prevent emission of dust or tracking of mud onto public rights-of-way; provided, however, the Director may approve other paving materials which provide, in his opinion, the equivalent in service and useful life.

D. **Storage Limitations.**

1. Salvage or junk shall not be placed or allowed to remain outside of the enclosed yard area, but may be stored above the height of the fence or wall, provided such storage is not within 10 feet of an exterior Lot Line.

2. Where the land upon which the yard is located is in a GI zone, and such storage above said fence or wall is not within 500 feet of any different zoning district other than a GI zone, the 10-foot setback shall not apply.

11-31-24: SCHOOLS

Schools, as that term is defined in Section 11-86-3 shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Accessory Uses.** Accessory uses customarily found in conjunction with schools, including classrooms, dormitories, stadiums, and auditoriums are permitted provided such Accessory Uses are located on the same lot or contiguous lot with the school.

B. **Building Setback, Building Height, Parking, Landscaping and Screening Standards.** Schools shall:

1. Comply with the building setback and building height requirements established by the zoning district for which the School is located; unless modified as a building height exception pursuant to Section 11-30-3;

2. Comply with landscaping and screening requirements as specified for a LC development, pursuant to Section 11-30-9 and Chapter 33; and

3. Comply with all parking requirements specified in Chapter 32.

(Ord. No. 5996, § 4, 3-9-26)

11-31-25: SERVICE STATIONS

Service Stations, as described in Section 11-86-4, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Location.** Maximum number of service stations permitted at an arterial intersection is total of 2.

B. **Minimum Frontage.** 100 feet on each Street.

C. **Pump Canopy.** Pump islands shall be covered by a canopy that matches or complements the design of the main structure.

D. **Landscaping.** Landscaping shall comprise a minimum 10 percent of the site area, exclusive of required setbacks, and include an irrigation system that is permanent, below-grade, and activated by automatic timing controls.

E. **Fencing.** Masonry only.

F. **Lighting.** All exterior light sources, including canopy, perimeter, and flood, shall be stationary, and shielded or recessed within the roof canopy to ensure that all light is directed away from adjacent properties and public rights-of-way. No lens of any lighting fixture may extend below the shielding device. Lighting shall not be of a high intensity so as to cause a traffic hazard, be used as an advertising element, or adversely affect adjacent properties.

G. **Litter.** A minimum of 1 permanent, non-flammable trash receptacle shall be installed at each pump island.

H. **Criteria for Review of Special Use Permit.** When a Special Use Permit is required, the approving body shall find that the project conforms to all of the following:

1. The project complies with the General Plan and any other applicable Plans and/or policies.

2. A Plan of Operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations.

3. A "Good Neighbor Policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses, including sound attenuation, lighting control measures, and vehicular access and traffic control. Such policies shall include, but are not limited to:

   a. The name and telephone number of the position, manager or person responsible for the operation of the facility;

   b. Complaint response procedures, including investigation, remedial action, and follow-up; and

   c. Litter control measures.

4. Evidence that the building or site is in, or will be brought into substantial conformance with all current City Development Standards, including, but not limited to, landscaping, parking, screen walls, signage, and project-specific design guidelines.

5. Evidence that the project is designed to:

   a. Provide paved parking and on-site circulation in a manner that minimizes impacts on adjacent sites; and

   b. Minimize dust, fugitive light, glare, noise, offensive smells, and traffic impacts on neighboring residential sites.

(Ord. No. 5996, § 4, 3-9-26)

11-31-26: SOCIAL SERVICE FACILITIES

Social Service Facilities, as described in Section 11-86-3 shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **Location.** Social Service Facilities are not allowed on Main Street, within the designated Town Center Redevelopment Area.

B. **Minimum Standards.** All Social Service Facilities shall provide: adequate and accessible sanitary facilities, including lavatories, rest rooms and refuse containers; sufficient patron seating facilities for dining, whether indoor or outdoor; effective Screening devices such as Landscaping and masonry fences in conjunction with outdoor activity areas; a plan of operation, including but not limited to, patron access requirements, hours of operation, measures used to control potential client congregation on the site during non-operating hours, security measures, litter control, and noise attenuation. Further, evidence of compliance with all Building and Fire Safety regulations and any other measures determined by the City Council to be necessary and appropriate to ensure compatibility of the proposed use or uses with the surrounding area shall be provided with permit applications.

C. **Applicable Guidelines.** All Social Service Facilities are subject to the Social Service Facilities Guidelines adopted by the City.

D. **Criteria for Review of Council Use Permit.** When required, the review of the Council Use Permit shall include a review and determination regarding the following items:

1. The use is found to be in compliance with the General Plan, Sub Area Plans and other recognized development plans or policies, including the Social Service Facility Guidelines and will be compatible with surrounding uses; and

2. A finding that a plan of operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations; and

3. A finding that a "good neighbor policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses. Such policies shall include, but are not limited to, the name and telephone number of the manager or person responsible for the operation of the facility; complaint response procedures, including investigation, remedial action, and follow-up; and litter control measures; and

4. Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use is in, or will be brought into, substantial conformance with all current City Development Standards, including, but not limited to, Landscaping, parking, screen walls, signage, and design guidelines.

11-31-27: SPECIAL EVENTS

A. Special events as defined in Chapter 87 of this Title are permitted in all zoning districts, provided that:

1. The event is licensed in accordance with the provisions of Title 5 of the Mesa City Code;

2. The duration of the event does not exceed the time period specified in the special event license or a maximum of 4 consecutive days, whichever is less;

3. No more than 4 events are conducted on the same premises during the calendar year;

4. The site of the event is adequately served by utilities and sanitary facilities; and

5. The event will not present a safety hazard or public disturbance and will not cause substantial adverse impacts on surrounding properties or land uses by creating excessive noise, glare, heat, dust, odors, or pollutants as determined by the Director and Fire Marshal.

B. Special events shall be conducted only on a lot that has an approved dust proof parking surface with permanent driveway access. Decomposed granite or Aggregate Base Course (ABC) gravel surfacing may be substituted for paving subject to approval by the Director and Fire Marshal.

C. Facilities, structures, and utilities shall be installed and maintained in conformance with all applicable building, fire, traffic, and zoning regulations.

D. The maximums specified in subsections A(2) and (3) of this Section may be exceeded:

1. ***Outside of the Downtown Events Overlay District.*** Only as authorized by approval of a Temporary Use Permit or Special Use Permit in accordance with Article 7 of this Ordinance.

2. ***Within the Downtown Events Overlay District.*** Without limit to the number of events that may occur in a calendar year. Individual events that exceed the maximum of four (4) days per event shall require a Special Use Permit in accordance with Article 7 of this Ordinance.

(Ord. No. 5759, § 4, 12-8-22)

11-31-28: ASSISTED LIVING CENTERS, NURSING AND CONVALESCENT HOMES

Assisted living centers and nursing and convalescent homes as defined in Section 11-86-2, shall be located, developed, and operated in compliance with the land use regulations in Article 2 and the following standards:

A. **General Requirements**

1. ***Distance from a Major Intersection.*** The Assisted Living Center or nursing and convalescent home must be located a minimum distance of 600 feet from the following intersections, as measured in accordance with the rules of measurement in Section 11-2-3(C):

a. Highway and arterial Street;

b. Highway and collector Street;

c. Arterial Street and arterial Street; or

d. Arterial Street and collector Street.

2. ***Separation from Similar Uses.*** The Assisted Living Center or nursing and convalescent homes must be separated a minimum distance of 1,200 feet from the closest Assisted Living Center, nursing and convalescent home, or community residence as measured in accordance with Section 11-2-3(C), unless separated by a significant intervening natural or manmade feature, such as a municipal open space of at least ten (10) acres in size (e.g. park, golf course, etc.), a railroad, or a highway, that is approved by the zoning administrator.

3. ***Licensure.*** The assisted living facility or nursing and convalescent home must obtain the license the State of Arizona requires to operate the proposed use. A copy of the state issued license must be submitted with the applicant's registration application or within 30 days from the date the license for the proposed use is issued.

4. ***Registration.*** The Assisted Living Center or nursing and convalescent home must register with the City as set forth in this section.

a. Registration process for Assisted Living Centers and nursing and convalescent homes that do not require a conditional use permit. To register with the City, when the Assisted Living Center or nursing and convalescent home does not require a

council use permit to operate, the applicant must submit the City's registration application in accordance with Section 11-67 and provide evidence demonstrating compliance with this section. If the facility complies with all City requirements, the applicant will receive provisional registration approval from the planning division. To obtain final registration, the applicant must provide to City a copy of the state issued license required in Section 11-31-28(a)(3) above within 30 days from the date of issuance.

b. Assisted living center and nursing and convalescent homes that require a council use permit. To register with the City, when the Assisted Living Center or nursing and convalescent home requires a council use permit to operate, the applicant must submit the City's application for a council use permit in accordance with Section 11-67 and provide evidence demonstrating compliance with this section. The request for a conditional use permit will be reviewed by the applicable governing body. Approval of the conditional use permit grants the applicant provisional registration approval. To obtain final registration approval, the applicant must provide to City a copy of the state issued license required in Section 11-31-28(a)(3) above within 30 days from the date of issuance.

5. The Assisted Living Center or nursing and convalescent home must comply with all applicable federal, state, county, and local requirements for the location and operation of the facility.

6. The Assisted Living Center or nursing and convalescent home must provide adequate access for emergency vehicles.

B. **Council Use Permit Criteria.** When a proposed Assisted Living Center or nursing and convalescent home is required to obtain a council use permit, the council use permit will only be granted if the governing body finds that the use conforms to the criteria in Section 11-70-6 of the Mesa Zoning Ordinance and all of the following criteria:

1. The proposed use in combination with any existing assisted living facilities, nursing and convalescent homes or group homes for the handicapped will not alter the character of the area by creating or intensifying an institutional atmosphere or by creating or intensifying a de facto social service district by clustering assisted living facilities, nursing and convalescent homes or group homes for the handicapped in a particular area; and

2. The proposed use in combination with other existing assisted living facilities, nursing and convalescent homes, group homes for the handicapped and other land uses that typically generate higher calls for service to the fire department, will not overburden or have an adverse impact on the city's fire department or the fire district where the proposed use will be located; and

3. Whether the location and operational characteristics of the proposed use will have an adverse impact on vehicular traffic and other public facilities and services.

(Ord. No. 5592, § 5, 12-1-20; Ord. No. 5632, § 3, 7-8-21)

11-31-29: TEMPORARY PARKING LOTS

A. Stadiums, performing arts centers, competitive aquatics facilities, and similar public event facilities, with a required parking count of at least 300 spaces, are permitted to utilize temporary or overflow parking lots in DB-1, DB-2 and DC districts, subject to the issuance of a Special Use Permit, in accordance with Article 7 of this Ordinance.

B. A Special Use Permit may be approved for a Temporary Parking Lot that:

1. Has an approved dust-proofed surface;

2. Is screened from an adjacent residential use by an opaque fence or similar feature at least 6 feet in height;

3. Has lighting that is fully screened to prevent light spillover onto adjacent properties, if lighting is provided on the temporary parking lot;

4. Is located within 1,200 feet of the public facility being served. The 1,200 feet shall be measured directly from the nearest edge of the property lines between the proposed temporary parking lot and the public event facility;

5. Is in conformance with City Council policies; and

6. Is compatible with, and not detrimental to, adjacent properties or the neighborhood in general.

C. Conditions of approval may be stipulated by the Zoning Administrator or Board of Adjustment to ensure compatibility with adjacent land uses.

11-31-30: TEMPORARY USES

A. **Temporary outdoor sales.** Temporary outdoor sales, as described in Section 11-86-9, requires approval of a Temporary Use Permit in compliance with Section 11-70-4 and must be located, developed, and operated in compliance with the land use requirements in Article 2 and subject to the requirements in this section.

1. ***Placement in the Downtown Core and Form Based Code Transect Districts.*** Temporary outdoor sales, including associated temporary displays and structures, may occur within the right-of-way, on a public Sidewalk, provided a minimum six (6) foot wide contiguous portion of the public Sidewalk remains unobstructed for pedestrian use.

2. ***Placement in all other Zoning Districts.*** Temporary outdoor sales, including associated temporary displays and structures, may not occur within or encroach into driveways, landscape areas, parking spaces required for the primary use, within right-of-way, or within 25 feet of a Street.

3. ***Temporary structures.*** A temporary structure such as a tent, pop-up, umbrella or covering, measuring over 400 square feet requires the issuance of a building permit and approval by the Fire Marshal.

4. ***Signs.*** All signs associated with a temporary outdoor sale must comply with Title 11, Article 5: Sign Ordinance and must be removed upon cessation of the temporary use or upon expiration of the Temporary Use Permit, whichever occurs first.

5. ***Hours of operation.*** A temporary outdoor sale may only operate between 9:00 a.m. and 10:00 p.m. all temporary structures, signs, equipment, and display of merchandise associated with the temporary outdoor sale must be removed from the site or otherwise stored in enclosed buildings at all times when the temporary outdoor sale is closed to the public.

6. ***Discontinuance of use.*** All temporary structures, equipment, temporary signs, and display of merchandise associated with the temporary outdoor sale must be removed from the site upon cessation of the temporary use or upon expiration of the Temporary Use Permit, whichever occurs first.

7. ***Site restoration.*** The site must be restored to the same condition it was prior to commencement of the temporary outdoor sale, including but not limited to, the removal of all debris, litter, and other evidence of the temporary outdoor sale, within 72 hours of cessation of the temporary outdoor sale or upon expiration of the Temporary Use Permit, whichever occurs first.

B. **Temporary outdoor entertainment.** Temporary outdoor entertainment, as described in Section 11-86-9, requires approval of a Temporary Use Permit in compliance with Section 11-70-4 and must be located, developed, and operated in compliance with the land use requirements in Article 2 and subject to the requirements in this section.

1. ***Placement.***

a. *Minimum lot area.* A temporary outdoor entertainment may only be located on a site that is a minimum of five (5) acres in size.

b. *Setback from residential uses.* All areas, structures, and operational items associated with a temporary outdoor entertainment, such as but not limited to, parking areas, storage areas and structures, stands, stages, tents, restroom facilities, trash receptacles and enclosures, and lighting, must be located at least 250 feet from all residential uses except for residential uses which are a part of an approved mixed-use development.

2. ***Duration.*** A temporary outdoor entertainment is permitted to operate for up to twenty-one (21) consecutive days. An additional three (3) days is allowed before and after the event for set-up and take-down.

3. ***Hours of operation.*** A temporary outdoor entertainment may only operate between 9:00 a.m. and 11:00 p.m.

4. ***Signs.*** All signs associated with a temporary outdoor entertainment must comply with Title 11, Article 5: Sign Ordinance and must be removed upon cessation of the temporary use or upon expiration of the Temporary Use Permit, whichever occurs first.

5. ***Site restoration.*** The site must be restored to the same condition it was prior to commencement of the temporary outdoor entertainment, including but not limited to, the removal of all debris, litter, and other evidence of the temporary outdoor entertainment, within 72 hours of cessation of the temporary outdoor entertainment or upon expiration of the Temporary Use Permit, whichever occurs first.

(Ord. No. 5759, § 5, 12-8-22)

Editor's note—Ord. No. 5759, § 5, adopted December 8, 2022, repealed the former § 11-31-30, and enacted a new § 11-31-30 as set out herein. The former § 11-31-30 pertained to temporary uses: swap meets and farmer's markets.

11-31-31: RESIDENTIAL USES IN COMMERCIAL DISTRICTS

A. Residential uses are permitted in the NC, LC, GC, and MX Districts as provided in Section 11-6-2, if located, developed and operated in compliance with the following standards:

1. ***Commercial Floor Area Requirements.***

a. Projects with only single-Story buildings. A project that contains only single-Story (1-Story) buildings may include residential if a minimum of 60 percent of the gross floor area (GFA) of all the buildings for the project is reserved for commercial uses.

b. Projects with multiple-Story buildings or a mixture of single-Story (1-Story) and multiple-Story buildings. A project that contains multiple-Story buildings or a mixture of single-Story and multiple-Story buildings may include residential if:

i. A minimum of 60 percent of the gross floor area (GFA) of all the buildings for the project is reserved for commercial uses; and

ii. A minimum of 65 percent of the ground floor of each multi-Story building is reserved for commercial uses.

2. ***Maximum Density.*** Maximum residential density shall be no more than 15 Dwelling Units per acre in the NC district, and no more than 25 Dwelling Units per acre in the LC and GC districts.

B. Live-work units are permitted in the NC, LC and GC districts, subject to approval of a Special Use Permit. A maximum of one (1) live-work unit is permitted per parcel.

C. Caretakers' residences are permitted in the NC, LC, GC, and OC districts, subject to approval of a Special Use Permit. A maximum of one (1) caretakers' residence is permitted per parcel.

D. Projects that comply with the residential density maximums specified in Table 11-6-3.A, and the commercial floor area requirements in Section 11-31-31(A)(1) above require Development Plan Review, as described in Chapter 69.

E. **Modifications to Development Standards.**

1. ***Maximum Density.*** Projects that exceed the residential density maximums specified in Section 11-31-31(A)(2) above require approval of a Council Use Permit (even if the development complies with the commercial floor area requirements in Section 11-31-31(A)(1)).

2. ***Commercial Floor Area Requirements.*** Modification to the commercial floor area requirements in Section 11-31-31(A)(1) above require approval of a council use permit.

F. **Criteria for Review of Council Use Permit.** When required, the review of the Council Use Permit shall include a review and determination regarding the following items:

1. The use is found to be in compliance with the General Plan, Sub-Area Plans and other recognized development plans or policies, and will be compatible with surrounding uses; and

2. A finding that a plan of operation has been submitted, which includes, but is not limited to, acceptable evidence of compliance with all zoning, building, and fire safety regulations; and

3. A finding that a "good neighbor policy" in narrative form has been submitted, which includes, but is not limited to, descriptions of acceptable measures to ensure ongoing compatibility with adjacent uses; including measures to assure that commercial activity will remain as a viable activity on this site; and

4. Evidence that acceptable documentation is present demonstrating that the building or site proposed for the use is in, or will be brought into, substantial conformance with all current City development standards, including, but not limited to, Landscaping, parking, screen walls, signage, and design guidelines; and

5. The overall project conforms to the intent and character of the zoning district and is part of a well integrated mixed-use project.

(Ord. No. 5593, § 9, 12-1-20; Ord. No. 5996, § 4, 3-9-26)

11-31-32: SUPERIOR DESIGN

For a project to reflect Superior Design it will incorporate all of the following elements:

A. **Holistic Approach to Project Design.** Varied, high-quality, regionally-appropriate building materials, used in distinctive building forms, building massing and detailing that result in a note-worthy example of holistic site design, architecture, Landscaping and signage; and

B. **Responsive Approach to Site and Sub-Area Context.** Architectural and landscape architecture details and features that reflect the character defined in Sub-Area Plans or the General Plan's placetype urban design characteristics, that are harmonious with adjacent development patterns, integrate with the physical conditions of the immediate site, and create a unique sense of place; and

C. **Sustainable Design.** Site design, architecture and Landscaping features that address the local climate to reduce summer sun penetration and provide summer sun shade protection for pedestrians, promote energy and water conservation, promote the preservation or creation of Open Space, provide for and encourage the use of multiple modes of transportation, utilize existing infrastructure, and create the opportunity for social interaction; and

D. **Exceeds Standards.** Provision of details and features that exceed the criteria and standards specified in Sections 11-5-3, 11-5-5, 11-6-43, 11-6-4 (AS applicable), 11-7-3, 11-8-5, 11-8-6 and Chapters 30 through 34, where applicable; and

E. **Great Public Spaces.** Details and features that create attractive, comfortable environments for pedestrians; ensure safe, useful and well integrated open or public spaces; and include high quality amenities.

(Ord. No. 5544, § 12, 12-9-19; Ord. No. 5928, § 22, 2-3-25)

11-31-33: HOME OCCUPATIONS

Home Occupations, as described in Chapter 87, shall be located, developed, and operated in compliance with the Land Use Regulations in Article 2, and the following standards:

A. In all Residential, Commercial, Mixed-use, and Downtown Districts, the following standards apply. Noncompliance with any provision of this section is a violation of this ordinance.

1. Non-resident employees are prohibited from working at a Home Occupation site unless, the property is zoned AG, RS-90, or RS-43 and approved by a Special Use Permit as required by Subsection (B) below.

2. Exterior storage and exterior display of materials, goods, and equipment is prohibited at a Home Occupation site.

3. A Home Occupation site may not be used for day-long or long-term parking of vehicles associated with or used by non-resident employees or clients, whether for personal or business use.

4. Any short-term parking needed for employees or clients shall be located either on the Home Occupation site or on the street immediately in front of the residence.

5. There shall be no exterior indication of a nonresidential use at a Home Occupation site, except that one (1) non-illuminated, static sign, no larger than three (3) square feet in area, either attached to the building or placed in a window, is allowed.

B. In the AG, RS-90 and RS-43 Districts, approval of a Special Use Permit is required to permit the following:

1. Up to two (2) non-resident employees.

2. One (1) additional on-site, independently accessed parking space for each non-resident employee. The parking space(s) shall be located on a dust-proof surface, and shall be in addition to the required minimum parking for the residence.

(Ord. No. 5950, § 3, 7-8-25)

11-31-34: MARIJUANA FACILITIES

Medical marijuana dispensaries, dual licensee facilities, marijuana cultivation facilities, and marijuana infusion facilities, each as defined in the zoning ordinance, are permitted subject to the regulations in this section. Recreational marijuana establishments are only permitted when operated as a dual licensee facility.

A. **General Requirements.** A medical marijuana dispensary, dual licensee facility, marijuana cultivation facility, and marijuana infusion facility is permitted only in the LI and GI districts, provided that evidence has been demonstrated of compliance with all of the following:

1. ***Spacing requirements for medical marijuana dispensaries and dual licensee facilities.*** Each medical marijuana dispensary and each dual licensee facility shall be separated from the following uses as follows:

(a) A minimum distance of 5,280 feet from the nearest registered medical marijuana dispensary or dual licensee facility, including any medical marijuana dispensary, dual licensee facility or marijuana establishment located in neighboring jurisdictions, except as provided in Subsections 11-31-34(A)(1)(a)(i) and 11-31-34(A)(1)(a)(iii).

(i) Qualified Marijuana Facility. An existing marijuana facility may be located a minimum distance of 1,000 feet from the nearest registered medical marijuana dispensary or dual licensee facility if the existing marijuana facility is:

1. Located on or relocates to a large industrial development;
2. Setback from a major roadway by at least 300 feet; and
3. Separated from the nearest registered medical marijuana dispensary or dual licensee facility by the major roadway.

(ii) The distance in Subsection 11-31-34(A)(1)(a)(i) is measured from the support wall, post or column of the existing marijuana facility along the Street to the nearest support wall, post or column of the nearest registered medical marijuana dispensary or dual licensee facility.

(iii) Relocation Eligible Marijuana Facility. A relocation eligible marijuana facility is permitted a one-time relocation if the new location compared to the location on the effective date of Ordinance No. 5845 results in greater separation and Setbacks (an increase in distance) between: (1) the relocation eligible marijuana facility and the nearest qualified marijuana facility, (2) the relocation eligible marijuana facility and the nearest Right-Of-Way, and (3) the relocation eligible marijuana facility and the nearest intersection of public Streets. Other than the exception stated in the prior sentence, the relocation eligible marijuana facility must comply with all requirements of the zoning ordinance.

(iv) The following definitions apply to Subsection 11-31-34(A)(1)(a):

"Existing Marijuana Facility" means a medical marijuana dispensary or dual licensee facility that prior to the effective date of Ordinance No. 5845 had registered with the City and was operating within the corporate boundaries of the City as evidenced by a certificate of occupancy issued by the City.

"Large Industrial Development" means a single Parcel of Land zoned LI or GI that is at least 80-acres in size, or a Parcel of Land zoned LI or GI that in combination with adjoining parcels of land zoned LI or GI that are not separated by a Right-Of-Way dedicated to the City are collectively at least 80-acres in size.

"Major Roadway" means a highway, six lane arterial roadway, or a roadway identified as a future six lane arterial in the Mesa 2040 Transportation Plan, as may be amended from time to time.

"Qualified Marijuana Facility" means an existing marijuana facility that meets the requirements for the exception to the minimum distance in Subsection 11-31-34(A)(1)(a)(i).

"Registered Medical Marijuana Dispensary or Dual Licensee Facility" means and includes both: (1) a medical marijuana dispensary or dual licensee facility that is registered or had registered with the City and is currently operating within the corporate boundaries of the City as evidenced by a certificate of occupancy issued by the City, and (2) a medical marijuana dispensary, dual licensee facility, or marijuana establishment that is currently operating in a neighboring jurisdiction.

"Relocation Eligible Marijuana Facility" means an existing marijuana facility that, on the effective date of Ordinance No. 5845, is located less than 5,280 feet from the nearest qualified marijuana facility.

(b) A minimum distance of 2,400 feet from:

(i) A community residence;

(ii) A correctional transitional housing facility; and

(iii) A social service facility.

(c) A minimum distance of 1,200 feet from the following land uses, unless separated by a canal, railroad track, or highway (when separated by a canal, railroad track, or highway, the distance is measured from the support wall, post or column of the medical marijuana dispensary or dual licensee facility along the Street to the Lot Line of the subject land use.):

(i) A church located in the RS, RM, DR, T3N, T4N, or T5N Districts;

(ii) A library;

(iii) A school; and

(iv) A public park located in the LI or GI districts.

(d) A minimum distance of 500 feet from the following land uses, unless separated by a canal, railroad track, or highway (when separated by a canal, railroad track, or highway, the

distance is measured from the support wall, post or column of the medical marijuana dispensary or dual licensee facility along the Street to the Lot Line of the subject land use.):

(i) A day care center and pre-school;

(ii) A public park located in all Zoning Districts except LI or GI; and

(iii) A privately owned Open Space and recreation area as designated on the applicable plan of development approved by the City that is maintained by a homeowner's association.

2. ***Spacing Requirements for Marijuana Cultivation and Infusion Facilities.*** Each marijuana cultivation facility and each marijuana infusion facility shall be separated from the following uses as follows:

(a) A minimum distance of 2,400 feet from the nearest medical marijuana dispensary, dual licensee facility, off-site cultivation facility or off-site marijuana infusion facility. This spacing requirement does not apply to a marijuana cultivation facility or marijuana infusion facility and the specific medical marijuana dispensary or dual licensee facility it serves.

(b) A minimum distance of 1,200 feet from any of the following land uses, unless separated by a canal, railroad track, or highway (when separated by a canal, railroad track or highway, the distance is measured from the support wall, post or column of the marijuana cultivation or marijuana infusion facility along the Street to the Lot Line of the subject land use.):

(i) A church located in the RS, RM, DR, T3N, T4N, or T5N Districts;

(ii) A library;

(iii) A school; and

(iv) A public park located in the LI or GI Districts.

(c) A minimum distance of 500 feet from any of the following land uses, unless separated by a canal, railroad track, or highway (when separated by a canal, railroad track or highway, the distance is measured from the support wall, post or column of the marijuana cultivation or marijuana infusion facility along the Street to the Lot Line of the subject land use.):

(i) A day care center and pre-school;

(ii) A public park located in all Zoning Districts except LI or GI; and

(iii) A privately owned Open Space and recreation area, as designated on the applicable plan of development approved by the City, that is maintained by a homeowner's association.

3. ***State Registration and Approval to Operate.*** Each medical marijuana dispensary and each dual licensee facility must obtain a valid dispensary registration certificate and an approval to operate (ATO) in accordance with state law.

4. ***City Registration.*** Each medical marijuana dispensary, dual licensee facility, marijuana cultivation facility, and marijuana infusion facility must register with the planning division in accordance with Chapter 67 and the process set forth in this section.

(a) The following information shall be provided to the planning division in order to register with the City:

(i) A complete application filed with the office of the planning division.

(ii) Name, mailing address, telephone number, and e-mail address of the individual, non-profit organization, or business entity operating the facility. If a non-profit organization or business entity registers the facility, contact information for the individual responsible for managing the facility shall also be provided.

(iii) A written narrative describing how the location and the proposed improvements comply with the requirements of this Ordinance including but not limited to the spacing requirements.

(iv) If applicable, the name(s) and location(s) of any off-site Marijuana Cultivation Facility or Marijuana Infusion Facility, or both, associated with the Marijuana Dispensary or Dual Licensee Facility, and its operations.

(v) Written acknowledgement that the marijuana facility has complied with all state security requirements including applicable administrative codes and record keeping.

(vi) A Medical Marijuana Dispensary must provide a copy of its current ADHS dispensary registration certificate and ATO. A Dual Licensee Facility must provide a copy of its current ADHS dispensary registration certificate, license, and ATO.

(vii) Any other information deemed necessary by the City to process the registration request.

(b) Registration Non-Transferable. A Medical Marijuana Dispensary or a Dual Licensee Facility may not transfer or assign its City registration.

5. ***Registration Renewal.*** City registration is valid for one (1) year from the date of approval of the City registration and must be renewed annually on or before the expiration date of the registration. To renew the City's registration, a complete application for renewal and evidence of current state registration certificate, license, and ATO, as applicable, must be provided.

6. ***Revocation.*** The Zoning Administrator may revoke the City's registration upon finding:

(a) The applicant made or provided false or misleading information or statements or both to City staff during the application process; the application contains false or misleading information; or the fees required by the schedule of fees and charges have not been paid; or

(b) The required ADHS dispensary registration certificate or ATO is denied or revoked.

(c) In the event that a Marijuana Facility's City registration is revoked, the Zoning Administrator will provide written notice to the applicant. The City of Mesa registration will automatically terminate 15 calendar days after written notification was provided to the applicant; and the Marijuana Facility must cease operation 45 calendar days from the date of the City's written notification.

B. **Development Standards.** Each Medical Marijuana Dispensary, Dual Licensee Facility, Marijuana Cultivation Facility, and Marijuana Infusion Facility shall be housed in a permanent building and shall comply with the following development standards:

1. ***Facility Size.***

a. *Medical Marijuana Dispensaries and Dual Licensee Facilities.* The maximum floor area of an individual Medical Marijuana Dispensary or an individual Dual Licensee Facility is 5,000 square feet.

b. *Marijuana Cultivation Facilities.* The maximum floor area of an individual cultivation facility is 25,000 square feet.

c. *Marijuana Infusion Facilities.* The maximum floor area of an individual infusion facility is 10,000 square feet, of which no more than 2,500 square feet shall be used for storage of marijuana related product or marijuana related materials used in the production of product.

d. *Combined Facilities.* A Medical Marijuana Dispensary and a Dual Licensee Facility may operate a Marijuana Cultivation Facility, Marijuana Infusion Facility, or both, at a single location, provided the maximum floor area for each facility does not exceed the maximum floor area specified for each individual facility above.

2. ***Marijuana Facility Use Restrictions.*** Marijuana facilities may not include:

a. A drive-through window;

b. Outdoor seating;

c. Outdoor vending machines; or

d. Temporary, portable, or self-powered mobile facilities.

3. ***Hours of Operation.*** A Medical Marijuana Dispensary and a Dual Licensee Facility shall only be open to the public between 8:00 a.m. and 9:00 p.m. of the same calendar day.

4. Medical Marijuana Dispensaries and Dual Licensee Facilities shall remain in compliance with all applicable state laws and regulations.

(Ord. No. 5388, 6-26-17; Ord. No. 5437, 5-7-18; Ord. No. 5633, § 1, 7-8-21; Ord. No. 5845, § 1, 2-5-24; Ord. No. 5947, § 3, 7-1-25)

11-31-35: RECREATIONAL VEHICLE STORAGE IN RESIDENTIAL ZONING DISTRICTS

Recreational Vehicle Storage Lots that have been developed as part of a residential neighborhood and historically been used solely to serve the needs of that residential community may be allowed to expand the use in the RS district and provide storage service to people outside of the adjacent neighborhood, subject to approval of a Special Use Permit, in accordance with Chapter 70 of this zoning ordinance.

A. The review of the special use permit shall be based upon the following items:

1. The applicant has demonstrated that the storage of Recreational Vehicles has historically taken place on this site, and that the continued use of this lot for open air storage of Recreational Vehicles is consistent with this historical usage.

2. Screening of the storage lot is achieved through either: 1) a combination of a minimum 6-foot high masonry wall and 15-foot wide landscape buffer with trees planted at 20-foot on center; or 2) a minimum 8-foot high, fully grouted masonry wall.

3. The site may be accessed directly from an arterial or collector Street.

4. Landscaping along Street frontages complies with Landscaping requirements for the LC Zoning District where adjacent to arterial Streets, and at minimum substantially complies with LC Zoning District Landscaping requirements where adjacent to Streets not classified as a collector or arterial Street.

B. Signs associated with this activity:

1. All signs facing Single Residence land uses shall remain non-illuminated.

2. The maximum area of any individual sign shall be 32 square feet.

3. The maximum height of any detached sign shall be no higher than 8-feet.

4. The number of signs shall not exceed two per Street front in which direct vehicular access to the Storage Lot is available.

11-31-36: DATA CENTERS

A. **Applicability.**

1. ***Data Center as an Accessory Use.*** A Data Center that meets all of the criteria (a through c below) may be considered an accessory use and is not subject to the requirements of this Section 11-31-36. Accessory use criteria:

a. The Data Center exclusively serves the enterprise functions of the on-site property owner or tenant.

b. The Data Center does not lease data storage or processing services to third parties.

c. The Data Center occupies no more than 10% of the total gross floor area of all buildings on the site.

2. ***Data Center as a Principal Use.*** Data Center, as defined in Section 11-86-5, is prohibited in every zoning district, except that a Data Center may be permitted in the Planned Area Development (PAD) Overlay District that is used in combination with the General Industrial (GI) or Heavy Industrial (HI) base zoning district only if the Data Center is specifically permitted by the City Council with the approval of the rezoning to the subject PAD Overlay District. Additionally, all Data Centers as a principal use shall be located, developed, and operated in compliance with the Land Use Regulations in Article 2 and the following standards.

B. **Purpose.** The purpose of this Section is to:

1. Promote public health, safety, and general welfare by ensuring that potential adverse impacts from Data Centers and their associated mechanical equipment, including impacts on the availability, capacity, and distribution of utility services, including water, wastewater, gas, and electricity are mitigated; and

2. Minimize the physical, environmental, and visual impacts of Data Centers and their associated mechanical equipment on surrounding areas by promoting high-quality design and ensuring compatibility with adjacent land uses and the community.

C. **Permitted Zoning Districts.**

1. ***PAD Overlay District Required.*** A Data Center may be permitted within a PAD Overlay District when applied in combination with the General Industrial (GI) or Heavy Industrial (HI) base zoning districts, but only if specifically authorized by the City Council as part of the PAD Overlay District approval.

2. ***Data Center as an Accessory Use.*** A Data Center may be permitted as an accessory use in the Commercial and Employment zoning districts without requiring a PAD Overlay District and is not subject to the requirements of this Section 11-31-36.

D. **Relation to Other Regulations.** Where a conflict occurs between the provisions of this Section and any other City Code, ordinance, resolution, or regulation, the more restrictive provision shall control.

E. **Application Requirements.** In addition to the application requirements of Section 11-67-2 and application guides posted on the Development Services website, all development applications for a Data Center shall include all the following:

1. ***Project Narrative.*** A project narrative that describes how the Data Center is consistent with the General Plan, any other applicable City plan or policies, and is compatible with surrounding uses.

2. ***Operational Plan.*** An operational plan that provides evidence of compliance with all zoning, building, and fire safety regulations.

3. ***Good Neighbor Policy.*** A good neighbor policy describing all the following:

a. The measures that will be taken to ensure ongoing compatibility with adjacent uses including sound attenuation, lighting control measures, vehicular access and traffic control, and litter control measures.

b. Complaint response procedures, including the name and telephone number of the person responsible for the operation of the facility; and procedures for investigation, remedial action, and follow-up.

4. ***Water Consumption and Thermal Management Report.*** A water consumption and thermal management report which describes all the following:

a. *Cooling System.* The proposed cooling system for the Data Center and whether the Data Center will be water-cooled or air-cooled.

b. *Water Usage.*

i. The estimated amount of total water in acre feet that will be used by the proposed project and associated land use for a calendar year, along with a monthly breakdown of projected water demand for each month within that year.

ii. The estimated amount of water in million gallons per day that will be used by the proposed project during a typical 24-hour operational period under normal conditions, including anticipated usage patterns.

iii. The estimated amount of water in million gallons per day to be used by the proposed project in a 24-hour period on its highest water consumption day.

iv. The estimated highest instantaneous flow rate in million gallons per day that will be used by the project along with the minimum, average, and maximum durations and frequencies of these flow conditions.

v. Indicate high consumption operational flexibility. Identify if high water demands can be aligned with the City's low-demand periods.

vi. The number of the proposed water meters and the size of each water meter for the proposed project.

vii. Proof that the applicant or property owner submitted a complete Sustainable Water Service Application to the City's Water Resources Department.

5. ***Wastewater Report.*** Proof that the applicant or property owner submitted a complete Industrial User Survey, or its equivalent under City Code Title 8, Chapter 4 (Sanitary Sewer Regulations) to the City's Water Resources Department.

6. ***Electric and Natural Gas (Energy) Service Report.*** If located in the City's service area for electric or natural gas utility services:

a. The estimated annual and monthly demand for electric and natural gas utility services.

b. An assessment of future energy needs for the proposed project.

7. ***Initial Sound Study.*** An initial sound study performed by a third-party acoustical consultant which documents all the following:

a. The baseline sound levels on the project site.

b. The baseline sound levels measured at the property line of the nearest residential zoning district, residential use, or other sensitive uses as reasonably determined by the Planning Director.

8. ***Citizen Participation.*** In addition to the Citizen Participation requirements of Section 11-67-3, all the following Citizen Participation measures are required:

a. *Neighborhood Meeting.*

i. The applicant shall hold a minimum of two (2) neighborhood meetings with residents to describe the project, including the project design, proposed sound-mitigation, lighting control measures, vehicular access and traffic control, and litter control measures.

ii. A representative of the developer or owner with decision-making authority on the design of the Data Center shall attend the neighborhood meetings.

b. *Neighborhood Meeting Notification.*

i. *Mailed Notice.* The applicant shall notify all property owners and homeowners' associations within a half-mile radius of the exterior boundary of the property that is the subject of the application, based on the last assessment.

ii. *Notice Timeframe.* Written notice shall be provided by first class mail a minimum of 15-days prior to each neighborhood meeting.

c. *Site Posting.*

i. The applicant shall post a sign on the proposed Data Center site at least 15-days before each neighborhood meeting.

ii. The sign shall be located along an arterial street or other high-visibility location as reasonably determined by the Planning Director.

iii. The sign shall include all the following content and shall be reviewed and approved by the Planning Director before installation:

(1) The applicant name and contact information.

(2) A brief description of the Data Center project.

(3) The date, time, and location of the neighborhood meeting.

(4) The applicant shall remove the sign after the neighborhood meeting(s), but not sooner.

F. **Development Standards.**

1. ***Modifications and Deviations Not Permitted.*** The development standards contained within this Section and the development standards contained within Chapter 7 of the Zoning Ordinance, when applied to a Data Center, may not be modified through a Planned Area Development (PAD) Overlay, Bonus Intensity Zone (BIZ) Overlay, Alternative Compliance, or Special Use Permit (SUP), except for the maximum building height specified in Subsection (3) below.

2. ***Separation from Residential Zoning Districts and Residential Uses.*** A Data Center and all associated mechanical equipment, including but not limited to battery storage, power generation, cooling, ventilating, or other equipment that supports the Data Center, shall be located at least 400 feet from the property line of the nearest residential zoning district, residential use, or other sensitive use as reasonably determined by the Planning Director.

3. ***Height.*** The maximum height of a Data Center, including all associated equipment, is 60 feet.

4. ***Building Placement and Design.*** In addition to the development standards contained within Chapter 7 of the Zoning Ordinance, a Data Center shall adhere to all the following standards:

a. *Quality Development Design Guidelines.* Be designed in compliance with Chapter 5 of the City's Quality Development Design Guidelines.

b. *Orientation.* The Data Center's primary (front) façade shall be oriented towards adjacent arterial roadways and intersections.

c. *Building Design Based on Sound Study.*

i. Based on the results of the initial sound study, the Data Center shall be designed and built to incorporate sound mitigation methods sufficient to prevent the sound levels emanating from the Data Center (as determined by a third-party acoustical consultant) from exceeding the ambient noise levels at the property line of the nearest residential zoning district, residential use, or other sensitive use as determined by the Planning Director that were observed in the baseline study.

ii. Design specifications for such sound mitigation shall be provided to the City and incorporated into the building design before building permit approval.

5. ***Architectural Design.*** In addition to the requirements of Chapter 7 of the Zoning Ordinance, a Data Center shall adhere to all the following standards:

   a. *Quality Development Design Guidelines.* Be designed in compliance with Chapter 5 of the City's Quality Development Design Guidelines.

   b. *All Side Architecture.* Architectural detailing on façades may vary depending on visibility and orientation. However, all façades that are publicly visible—whether from the street, neighboring properties, or public vantage points—shall have architectural detailing equivalent to the primary façade.

   c. *Multi-planar Façades.* In addition to the Site Planning and Design Standards of Chapter 7, a Data Center shall include multi-planar façades every 150 feet which are offset a minimum three (3) feet vertically and horizontally from the main building façade.

   d. *Glazing Requirements.* A Data Center building shall incorporate windows or glass panels on a minimum of 40% of the front façade and 15% on all other façades.

   e. *Architectural Features.* Architectural features shall be integrated into the design of Data Center buildings to create visual interest and establish a cohesive architectural identity—particularly at entryways and areas of public interface. All buildings shall incorporate at least five (5) of the following architectural features:

      i. *Overhangs.* Overhangs shall project a minimum three (3) feet from the building façade.

      ii. *Canopies.* Canopies shall extend a minimum four (4) feet from the building façade.

      iii. *Arcades.* Arcades shall provide a clear depth of six (6) feet and a minimum height of 10 feet.

      iv. *Window Shrouds.* Window shrouds shall project a minimum of six (6) inches around the entire window frame.

      v. *Raised Corniced Parapets Over Primary Entrances.* Raised corniced parapets shall extend a minimum of 18 inches above the adjacent roofline and six (6) inches horizontally from the wall.

      vi. *Tower Elements.* Tower elements shall be either one (1) story taller than the adjacent massing.

      vii. *Frameless Corner Glass.* Each glass wall shall be a minimum eight (8) feet wide, with a seamless corner radius or joint.

      viii. *Flying Roof Forms.* Roofs elements shall have a slope of at least 15 degrees and project a minimum four (4) feet beyond the main wall.

      ix. *Murals.* Murals shall encompass an area of 50 square feet.

      x. *Decorative Architectural Grilles, Laser-Cut Metal Screens, or Louvres.* Decorative architectural grilles, laser-cut metal screens, or louvres shall be a minimum four (4) feet wide or 12 square feet in area.

xi. *Architectural Lighting.* Architectural lighting shall illuminate at least 25% of the primary façade length or highlight a minimum of three (3) distinct architectural components.

xii. Other architectural feature approved by the Planning Director.

6. ***Truck Docks, Loading, and Service Areas.***

a. Truck docks, loading, and service areas shall not face or be visible from public rights-of-way or residential uses.

b. When possible, buildings should be used to screen truck docks, loading, and service areas.

c. Where building locations do not offer screening or in the case of phased development plans, truck docks, loading, and service areas shall be fully screened by a solid masonry wall at least eight (8) feet in height.

7. ***Fences and Freestanding Walls.*** In addition to the development standards of Section 11-30-4, Data Centers shall adhere to all the following standards:

a. *Architectural Compatibility.* Walls and fences shall be designed to complement the architectural style of the Data Center and surrounding development.

b. *Articulation.* Walls and fences shall be articulated every 40 feet through the use of either of the following:

i. A column that is offset a minimum eight (8) inches from the horizontal plane of the wall or fence and extends a minimum eight (8) inches above the main body of the wall or fence.

ii. A landscape pocket which is three (3) feet deep by five (5) feet wide.

c. *Decorative Cap.* All wall or fence columns shall have a decorative cap.

d. *Prohibited Materials.*

i. The use of barbed wire, razor wire, embedded glass shards, or ultra barrier is prohibited.

ii. The use of chain link or electrified fencing may only be used for internal security purposes and shall be fully screened from public view.

8. ***Mechanical Equipment.*** Mechanical equipment, including but not limited to battery storage, power generation, cooling, ventilating, or other equipment that supports the Data Center, shall adhere to all the following standards:

a. *Screening.* Be screened to reduce visual and noise impact using one (1) or more of the following methods:

i. Integrated into the building architecture and screened by a wall that appears as a natural extension of the building.

ii. With a solid masonry wall at least eight (8) feet in height or tall enough to fully screen the tallest piece of equipment.

b. *Location.* Be located away from primary entrances, public-facing façades, residential uses or zoning districts, private or public roadways, and when possible, at the rear or side of the building.

c. *Architectural Consistency.*

i. Screening elements shall be designed as a seamless extension of the Data Center's architecture, avoiding exposed industrial-looking enclosures.

ii. Screening elements shall use materials and colors that match the primary Data Center building.

9. ***Substation Screening.***

a. *Height.*

i. Substations, whether private or public, shall be screened to a height at least one (1) foot above the tallest piece of ground-mounted equipment.

ii. If the required screen wall exceeds 10 feet in height, vertical articulation is permitted, provided that:

(1) A line-of-sight study demonstrates that the tallest piece of groundmounted equipment is fully screened from public viewpoints at multiple angles; and

(2) The vertical modulation does not exceed 15% of the wall's total height.

b. *Enclosure Design.* Substations, whether private or public, shall be screened using walls, fencing, berming, landscaping, or other alternative methods.

i. *Screen Walls 10 Feet in Height or Shorter.* Substation screen walls that are 10 feet in height or shorter shall comply with the development standards in Section 11-31-16(F)(7) and Section 11-30-4 for Fences and Freestanding Walls, and be designed to match any proposed publicly facing wall within the development.

ii. *Screen Walls Greater than 10 Feet in Height.* Substation screen walls greater than 10 feet in height shall:

(1) Consist of a 10-foot solid masonry wall that uses materials and finishes that match any proposed publicly facing wall within the development; and

(2) A decorative louvered, slated, or perforated upper screen, no more than 75% opaque, mounted above the masonry wall.

10. ***Utilities.***

a. The Data Center shall bear the full cost of undergrounding any adjacent or on-site electrical infrastructure that would otherwise be provided via overhead distribution and/or transmission as deemed necessary by the City of Mesa Development Services Department in its sole discretion and approved by the applicable utility.

b. When the Data Center is located within the City's electric or natural gas service territories, the City may require a Data Center to source and transmit its own electric or natural gas commodity to a point of the City's electric or natural gas system as determined in the City's sole discretion.

c. The Data Center may be subject to other requirements from the applicable energy utility when located outside of the City's electric or natural gas service territories.

G. **Operational Requirements.**

1. ***Modifications and Deviations Not Permitted.*** The operational standards contained within this Section may not be modified through a Planned Area Development (PAD) Overlay, Bonus Intensity Zone (BIZ) Overlay, Alternative Compliance, Special Use Permit (SUP), Variance or otherwise.

2. ***Sound Study at Certificate of Occupancy or Certificate of Completion Stage.***

   a. Within 30 days of the issuance of a certificate of occupancy or certificate of completion, whichever occurs first, the Data Center operator shall conduct a sound study performed by a third-party acoustical consultant.

   b. The study shall document noise levels emanating from the Data Center measured at the property line of the nearest residential zoning district, residential use, or other sensitive uses as reasonably determined by the Planning Director, during peak routine operation of the Data Center mechanical equipment.

3. ***Annual Sound Study Required.***

   a. The Data Center operator shall perform an annual sound study during peak routine operation of the Data Center mechanical equipment for five (5) years after completion of the initial post-construction sound study.

   b. The study shall document noise levels emanating from the Data Center as measured at the property line of the nearest residential zoning district, residential use, or other sensitive uses as reasonably determined by the Planning Director.

   c. The Data Center operator shall provide the results of the sound study to the City within 30 days of the anniversary of the date on which the certificate of occupancy or certificate of completion was issued by the City.

4. ***Backup Generators.*** If the Data Center operator intends to use backup power generators on the parcel, the operator shall maintain a public website announcing the times when the generators will be in operation.

   a. Any routine operation of the backup generators, including for testing purposes, shall be announced on the website at least 24 hours in advance.

   b. The operator shall also notify the City of Mesa Public Information Office at least 24 hours in advance of a test.

   c. Unless the generators are supplying backup electrical supply during a power outage or an electric utility demand response event, backup generators may only operate between the hours of 9:00 a.m. and 5:00 p.m., Monday through Friday, excluding holidays.

   d. Upon request by City staff, the Data Center operator shall provide the address of the website and QR code where the notices required by this Section are published.

e. Any generating systems that are capable of operating in parallel with the City of Mesa's electric utility or in an islanded manner within the City of Mesa's electric utility will be subject to a generator interconnection process and interconnection study. In all instances, the Data Center operator shall be responsible for all interconnection costs and costs of distribution system protection related to the operation of the generating system.

(Ord. No. 5957, § 3, 7-8-25)

11-31-37: BATTERY ENERGY STORAGE SYSTEM (BESS) AND BESS FACILITIES

All BESS and BESS Facilities shall be located, developed, and operated in compliance with the Land Use Regulations in Article 2 and the following standards and all requirements related to BESS and BESS Facilities in both Title 4 - Building Regulations and Title 7 - Fire Regulations of the Mesa City Code.

A. **Purpose.** The purpose of this Section is to identify regulations for the installation and use of BESS and BESS Facilities to:

1. Promote public health, safety, and general welfare of residents and property by ensuring that potential adverse impacts from BESS and BESS Facilities are addressed and mitigated; and

2. Provide specific requirements for siting, construction, operation, and decommissioning of BESS and BESS Facilities; and

3. Minimize the potential physical, environmental, and visual impacts of BESS and BESS Facilities on surrounding areas by ensuring compatibility with surrounding land uses and the community.

B. **Applicability.**

1. ***BESS Facilities - Principal Use.***

a. A BESS Facility, as defined in Section 11-86-5, that has a nameplate capacity equal to or greater than 5,000 kilowatts (5 megawatt) is a principal use and is prohibited in every zoning district, except that such BESS Facility may be permitted in the Planned Area Development (PAD) Overlay District that is used in combination with the General Industrial (GI) or Heavy Industrial (HI) base zoning district only if such BESS Facility is specifically permitted by the City Council with the approval of the rezoning to the subject PAD Overlay District.

b. Additionally, all BESS Facilities as a principal use shall be located, developed, and operated in compliance with the Land Use Regulations in Article 2 and the standards of this Section 11-31-37.

2. ***BESS - Accessory Uses.***

a. A BESS, as defined in Section 11-86-5, that is determined by the Planning Director to be an accessory use is not subject to this Section 11-31-37.

b. To be determined an accessory use, a BESS shall, at a minimum, meet all of the following criteria:

i. The BESS has a nameplate capacity less than 5,000 kilowatts (5 megawatt).

ii. The BESS exclusively serves the enterprise functions of the on-site property owner or tenant.

C. **Permitted Zoning Districts.**

1. ***Principal Use - PAD Overlay District Required.*** All BESS Facilities, that are a principal use as defined in Subsection (B)(1) above, are prohibited in every zoning district, except that a BESS Facility as a principal use may be permitted in the Planned Area Development (PAD) Overlay District that is used in combination with the General Industrial (GI) or Heavy Industrial (HI) base zoning district only if the BESS Facility is specifically permitted by the City Council with the approval of the rezoning to the subject PAD Overlay District.

2. ***Accessory Use - PAD Overlay District Not Required.*** A BESS, that is an accessory use as defined in Subsection (B)(2) above, may be permitted as an accessory use as set forth in the Land Use Regulations in Article 2 or, for PC Districts, ID Districts, and EO Districts, as set forth in the adopted plan without requiring a PAD Overlay District.

D. **Relation to Other Regulations.** Where a conflict occurs between the provisions of this Section and any other City Code, ordinance, resolution, or regulation, the more restrictive provision shall control.

E. **Application Requirements.** In addition to the application requirements of Section 11-67-2 and application guides posted on the Development Services Department website, all applications for a BESS Facility shall follow all applicable requirements of the Mesa City Code and shall include all of the following:

1. ***Project Narrative.*** A project narrative that includes all of the following:

a. A description of how the BESS Facility is consistent with the General Plan and any other applicable City plan or policies, and is compatible with surrounding land uses and the community.

b. Nameplate capacity.

c. All proposed phasing or augmentation plans.

2. ***Operational Plan.*** An operational plan that includes all of the following:

a. *Compliance Statement.* A compliance statement that evidences compliance with all applicable zoning, building, and fire safety regulations, and federal, state, and local environmental laws.

b. *Preliminary Emergency Response Plan.* A preliminary emergency response plan describing the procedures for safe shutdown, de-energizing, or isolation of equipment and systems under emergency conditions to reduce the risk of fire, electric shock, and personal injuries, and for safe start-up following cessation of emergency conditions.

c. *Preliminary Decommissioning Plan.* A preliminary decommissioning plan describing the anticipated life of the BESS Facility, the steps required for the complete physical removal of BESS components, and the method for removal and disposal of all solid and hazardous waste.

3. ***Good Neighbor Policy.*** A good neighbor policy describing all of the following:

   a. The measures that will be taken to ensure ongoing compatibility with surrounding uses, including, but not limited to, safety measures and emergency response, sound attenuation, lighting control measures, vehicular access and traffic control, and litter control measures.

   b. Complaint response procedures, including, but not limited to, the name and telephone number of the person responsible for the operation of the BESS Facility; and procedures for emergency response, investigation, remedial action, and follow-up.

4. ***Initial Sound Study.*** An initial sound study performed by a third-party acoustical consultant, which documents each of the following:

   a. The baseline sound levels on the project site.

   b. The baseline sound levels measured at the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive uses as reasonably determined by the Planning Director.

   c. If access to the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive use cannot be obtained from the property owner, the Planning Director may allow the use of sound modeling to estimate the noise levels.

5. ***Citizen Participation.*** In addition to the Citizen Participation requirements of Section 11-67-3, all the following Citizen Participation measures are required:

   a. *Neighborhood Meeting.*

      i. The applicant shall hold a minimum of two (2) neighborhood meetings with residents to describe the project, including, but not limited to, the project design, proposed safety measures, emergency response, sound-mitigation, lighting control measures, vehicular access and traffic control, and litter control measures.

      ii. Representatives of the developer or owner with both the expertise in the potential safety concerns and the decision-making authority on the design of the BESS Facility shall attend the neighborhood meetings.

   b. *Neighborhood Meeting Notification.*

      i. *Mailed Notice.* The applicant shall notify all property owners and homeowners' associations within a half-mile radius of the exterior boundary of the property that is the subject of the application, based on the last assessment.

      ii. *Notice Timeframe.* Written notice shall be provided by first class mail a minimum of 15 days before each neighborhood meeting.

   c. *Site Posting.*

      i. The applicant shall post a sign on the property that is the subject of the application a minimum of 15 days before each neighborhood meeting.

      ii. The sign shall be located along an arterial street or other high- visibility location as reasonably determined by the Planning Director.

iii. The sign shall include all the following content and shall be reviewed and approved by the Planning Director before installation:

(1) The applicant name and contact information.

(2) A brief description of the BESS Facility project.

(3) The date, time, and location of the neighborhood meetings.

iv. The applicant shall remove the sign after the neighborhood meetings, but not sooner.

F. **Development Standards - BESS Facilities.**

1. ***Modifications and Deviations Not Permitted.*** The development standards contained within this Section and the development standards contained within Chapter 7 of this Ordinance, when applied to a BESS Facility, may not be modified through a Planned Area Development (PAD) Overlay, Bonus Intensity Zone (BIZ) Overlay, Alternative Compliance, or Special Use Permit (SUP).

2. ***Separation Requirements.*** A BESS Facility and all associated mechanical equipment, including but not limited to power generation, cooling, ventilating, or other equipment that supports the BESS Facility, shall be separated from the following zoning districts, uses, and buildings as follows:

a. *Residential Zoning Districts and Uses.* A minimum distance of 1,000 feet from the nearest point of the BESS Facility site screening wall to the nearest point of the property line of the nearest residential zoning district (except property owned by a utility provider) or residential use.

b. *Church, Park, School, or Other Sensitive Use.* A minimum distance of 400 feet from the nearest point of the BESS Facility site screening wall to the nearest point of the property line of the nearest church, park, school, or other sensitive use as reasonably determined by the Planning Director.

c. *Commercial and Industrial Buildings.* A minimum distance of 150 feet from the nearest point of the BESS Facility site screening wall to the nearest support wall, post, or column of the nearest commercial or industrial building.

3. ***BESS Spacing.*** The spacing of BESS within a BESS Facility shall be designed to comply with all requirements of Title 7 — Fire Regulations of the Mesa City Code as it relates to internal setbacks and clear zones around all structures.

4. ***Fire Access Drives and Drive Aisles.*** Each BESS within a BESS Facility shall be provided fire access to emergency response personnel via a fire access drive meeting all of the following requirements:

a. All drive aisles shall be paved in accordance with Section 11-32-2(C) of this Ordinance.

b. All fire access drives and drive aisles shall be designed to comply with all requirements of Title 7 — Fire Regulations of the Mesa City Code.

5. ***Portable Storage Containers.*** The use of all Portable Storage Containers (PSC) shall be subject to requirements of Section 11-30-16.

6. ***Site Screening.*** A BESS Facility shall be fully screened with an opaque wall or fence and shall meet all of the following standards:

   a. *Substations.* Substations are not subject to these requirements and are regulated by the screening requirements of Section (F)(7) below.

   b. *Height.* The height of the wall or fence shall be one (1) foot above the tallest piece of equipment.

   c. *Permitted Materials.*

      i. Walls and fences shall be constructed of high-quality materials, such as tinted, textured blocks; brick; stone; or ornamental metal.

      ii. The use of chain link or electrified fencing may only be used for internal security purposes and shall be fully screened from streetfacing yards, residential zoning districts, and residential use-facing yards, and fully screened where adjacent to any public right-of-way.

   d. *Prohibited Materials.*

      i. Wood fencing is not allowed, except that wood may be used in conjunction with metal frames for gates used in conjunction with required screening walls.

      ii. The use of barbed wire, razor wire, embedded glass shards, ultra barrier, electrified, or other hazardous screening is prohibited.

   e. *Articulation.* Walls and fences shall be articulated every 40 feet using either of the following:

      i. A column that is offset a minimum of eight (8) inches from the horizontal plane of the wall or fence and extends a minimum of eight (8) inches above the main body of the wall or fence.

      ii. A landscape pocket which is a minimum of three (3) feet deep by five (5) feet wide.

   f. *Decorative Cap.* All wall or fence columns shall have a decorative cap.

7. ***Substation Screening.*** All substations and related equipment, whether private or public, shall meet all of the following standards:

   a. *Height.*

      i. The substation and related equipment shall be fully screened to a height of at least one (1) foot above the tallest piece of groundmounted equipment (e.g., buspar, transformer, etc.).

      ii. If the required screen wall exceeds 10 feet in height, vertical articulation is permitted, provided that:

      A line-of-sight study demonstrates that the tallest piece of groundmounted equipment is fully screened from public viewpoints at multiple angles; and

      (1) The vertical modulation does not exceed 15% of the wall's total height.

b. *Enclosure Design When Adjacent to Public Right-of-Way.* Substations that are adjacent to a public right-of-way shall be screened using walls, or alternative methods.

i. *Screen Walls 10 Feet in Height or Shorter.* Substation screen walls that are 10 feet in height or shorter shall comply with the development standards in Subsection 11-31-37(F)(6) and Section 11-30-4 for Fences and Freestanding Walls, and be designed to match any proposed publicly facing wall on the project site.

ii. *Screen Walls Greater than 10 Feet in Height.* Substation screen walls greater than 10 feet in height shall:

(1) Consist of a 10-foot solid masonry wall that uses materials and finishes that match any proposed publicly facing wall within the development; and

(2) A decorative louvered, slated, or perforated upper screen, no more than 75% opaque, mounted above the masonry wall.

c. *Enclosure Design When Located Internal to the Site.* Substations that are located internal to the project site shall be screened using walls, fencing, or other alternative methods.

i. Screen walls and fences shall be a maximum of 10 feet in height with a decorative louvered, slated, or perforated upper screen, no more than 75% opaque, mounted above the masonry wall; or

ii. The enclosure may be a fully decorative louvered, slated, or perforated screen, no more than 75% opaque.

8. ***Utilities.***

a. The BESS Facility shall bear the full cost of undergrounding any adjacent or on-site electrical infrastructure that would otherwise be provided via overhead distribution and/or transmission as deemed necessary by the Development Services Department in its sole discretion and approved by the applicable utility provider.

b. The BESS Facility may be subject to other requirements from the applicable utility provider when located outside of the City's electric or natural gas service territories.

G. **Operational Requirements.**

1. ***Ongoing Sound Studies.***

a. *Sound Study at Certificate of Occupancy or Certificate of Completion Stage.*

i. Within 30 days of the issuance of a certificate of occupancy or certificate of completion, whichever occurs first, the operator shall conduct a sound study performed by a third-party acoustical consultant.

ii. The study shall document noise levels emanating from the BESS Facility, during peak routine operation measured at the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive use as reasonably determined by the Planning Director.

iii. If access to the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive use cannot be obtained from the property owner, the Planning Director may allow the use of sound modeling to estimate the noise levels.

iv. If the noise levels exceed the baseline sound levels identified in the initial sound study, a mitigation plan shall be submitted with the sound study outlining the measures that will be taken to reduce the noise levels to the levels documented in the initial sound study.

v. All mitigation measures identified in the sound study shall be implemented, and proof provided to the City, within 60 days of submitting the sound study.

b. *Annual Sound Study Required.*

i. The operator shall perform an annual sound study during peak routine operation for five (5) years after completion of the Sound Study at Certificate of Occupancy or Certificate of Completion Stage as identified in (a) above.

ii. The study shall document noise levels emanating from the BESS Facility as measured at the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive use as reasonably determined by the Planning Director.

iii. If access to the property line of the nearest residential zoning district, residential use, church, park, school, or other sensitive use cannot be obtained from the property owner, the Planning Director may allow the use of sound modeling to estimate the noise levels.

iv. The operator shall provide the results of the sound study to the City within 30 days of the anniversary of the date on which the certificate of occupancy or certificate of completion was issued by the City.

v. If the noise levels exceed the baseline sound levels identified in the initial sound study, a mitigation plan shall be submitted with the sound study outlining the measures that will be taken to reduce the noise levels to the levels documented in the initial sound study.

vi. All mitigation measures identified in the sound study shall be implemented, and proof provided to the City, within 60 days of submitting the sound study.

2. ***Augmentation.*** All long-term augmentation needs shall be accounted for in the original approval through an approved site plan, and phasing plan.

a. *Permitted Augmentation.* Augmentation of a BESS or BESS Facility is permitted and does not require a modification to original entitlements if it complies with the approved site plan and phasing plan.

b. *Approval Required.*

i. Augmentation that requires modification to the approved site plan or phasing plan shall follow the procedures in Chapter 69 of this Ordinance; except

ii. Augmentations that increase the nameplate capacity of the BESS or BESS Facility shall require City Council approval.

3. ***Ownership or Operator Changes.***

a. If the owner or operator of a BESS Facility changes or the owner of the property changes, the new owner or operator of the BESS Facility or property shall notify the Development Services Department within 30 days of the change.

b. Project approvals will remain in effect; however, the successor owner or operator assumes all obligations of the project, site plan approval, and permitting approvals, and all required documentation (e.g., Good Neighbor Policy, Decommissioning Plan etc.) shall be updated with the new owner or operator information.

(Ord. No. 5976, § 7, 1-12-26)

11-31-38: MIDDLE HOUSING

A. **Eligibility.** A Middle Housing project is permitted:

1. On a lot or parcel of land zoned for Single Residence use within one (1) mile of the downtown area; or

2. In a new Single Residence development greater than 10 contiguous acres provided that:

a. Middle Housing occupies no more than 20% of the developments total net area; and

b. Middle Housing occupies no more than 20% of the lots within the development.

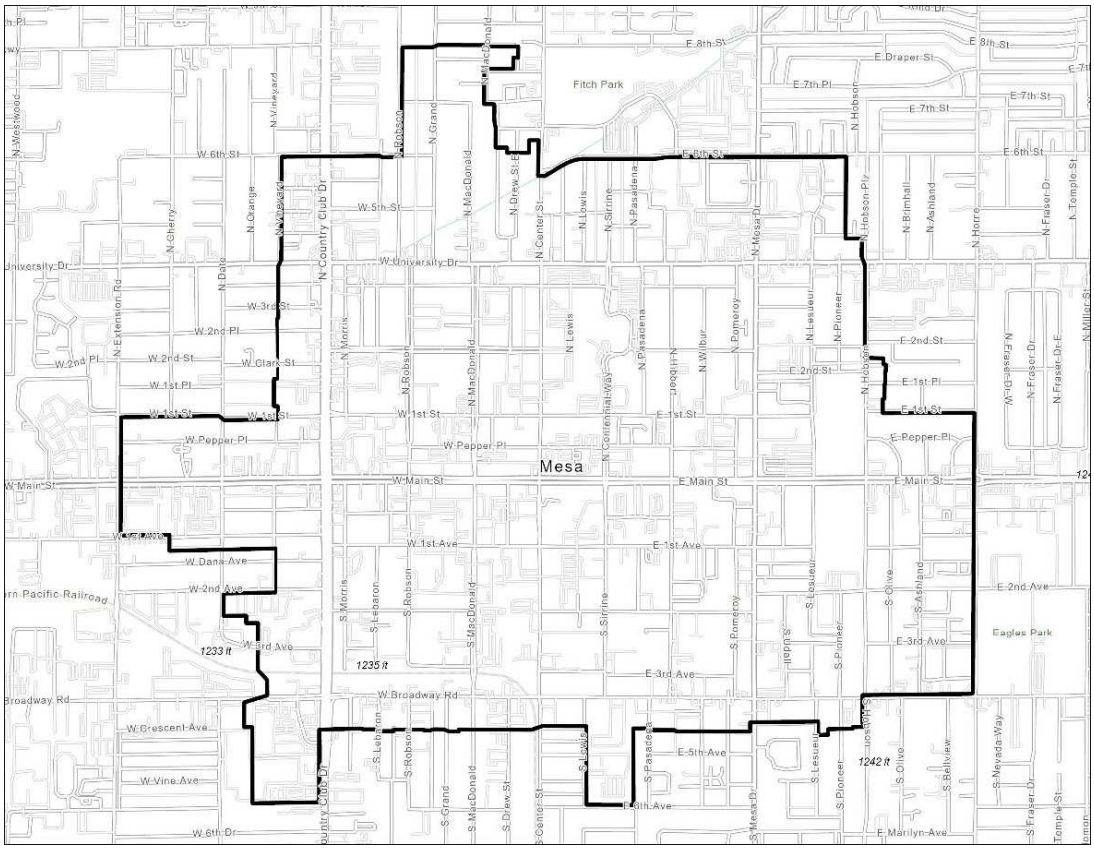


FIGURE 11-31-38.A.1: DOWNTOWN MESA

B. **Development Standards.** All proposed Middle Housing projects shall comply with the development standards of the underlying base zoning district, except:

1. Maximum building coverage may exceed the underlying base zoning district standard but shall not exceed 50% of the lot or parcel of land; and

2. Maximum lot coverage may exceed the maximum building coverage by 10% but shall not exceed 60% of the lot or parcel of land.

C. **Application.**

1. ***Projects Within One (1) Mile of the Downtown Area.*** An applicant seeking to develop a Middle Housing project within one (1) mile of the downtown area shall submit with their required building permit the following:

   a. A Middle Housing application that confirms eligibility with Subsection (A)(1) above; and

   b. A plot plan demonstrating full compliance with all applicable development standards.

2. ***New Single Residence Development.*** An applicant proposing Middle Housing within a new Single Residence development shall submit the following with a Zoning application—or, if no rezoning is required, with a Land Division application:

   a. A Middle Housing application that confirms eligibility with Subsection (A)(2) above; and

   b. A site plan demonstrating full compliance with all applicable development standards.

3. ***Projects Within Historic District or Historic Landmark Overlay Districts.*** An applicant seeking to develop a Middle Housing project within a Historic District (HD) or Historic Landmark (HL) Overlay District must:

   a. Submit a Middle Housing application in accordance with either Subsection (C)(1) or (C)(2) above; and

   b. Comply with all procedures and standards for HD and HL Overlay Districts set forth in Title 11, Chapter 74.

(Ord. No. 5989, § 4, 12-8-25)

11-31-39: COMPREHENSIVE YOUTH RESIDENCE

A. **General Requirements.** Comprehensive Youth Residences are allowed in the RS-90 District upon approval of a Special Use Permit, provided all of the following items are present:

1. The site contains at least 20 contiguous acres;

2. The facility is licensed by the State of Arizona;

3. The number of beds provided by the facility exceeds 25;

4. The facility provides on-site counseling, education, and recreation catering specifically to the resident population; and

5. All applicable setbacks and building height requirements for the RS-90 District are maintained.

B. **Accessory Uses.**

1. ***Permitted Accessory Uses.*** Comprehensive Youth Residences may include the following accessory uses, which relate to and support the operation of the Comprehensive Youth Residences:

   a. An on-site retail store(s);

   b. Offices;

   c. Indoor or outdoor recreation facilities, including equestrian facilities; and

   d. Detached staff residences, including manufactured housing.

2. ***Limitations to On-Site Retail and Office Uses.*** If provided, accessory retail and accessory office uses, in aggregate, shall not exceed 10% of the total gross floor area of all buildings on site.

3. ***Temporary or Seasonal Staff Quarters.*** Spaces with utility connections may be provided for recreational vehicles for use by temporary or seasonal volunteers as temporary quarters, provided:

   a. No recreational vehicle park models are used;

b. No space is used for longer than six (6) months out of a 12-month calendar year by an individual or family; and

c. No recreational vehicle accessory structures, as defined in Chapter 87, are constructed.

(Ord. No. 5996, § 5, 3-9-26)

CHAPTER 32 ON-SITE PARKING, LOADING, AND CIRCULATION

11-32-1: PURPOSE AND APPLICABILITY

A. **Purpose.** The purpose of this Chapter is to provide standards for parking and loading facilities to accommodate the various land uses permitted by this Ordinance. It is the intent of this Chapter to require the minimum number of on-site parking and loading spaces with maneuvering areas, driveways, and surface materials for the efficient movement of vehicular traffic, and to provide flexibility in meeting these requirements for sites with special needs. Additional purposes of this Chapter include:

1. Ensuring the provision of safe and convenient places to park personal transportation vehicles, including automobiles, bicycles and motorcycles,
2. Providing paved surfaces and alternative dust control measures to control and reduce the amount of dust and PM-10 particulates released to the atmosphere,
3. Limiting the area of land consumed by parking through allowances for reductions to the number of required parking spaces and allowances for sharing of parking spaces among multiple uses where appropriate,
4. Minimizing conflicts between pedestrian and vehicular circulation,
5. Reducing the scale of paved surfaces and shading these surfaces, to reduce heat gain that contributes to the urban heat island effect, and
6. Encourage sustainable development by promoting the use of alternative modes of transportation, walking and bicycling through recalibrating parking regulations for mixed use and transit-oriented developments.

B. **Applicability.** The parking and loading requirements of this Chapter apply to all development in the City. They may be modified pursuant to the provisions for certain base districts and overlay districts.

1. ***Additions to Existing Buildings and Changes in Use.*** When a change in use, expansion of a use, or expansion of Gross Floor Area creates an increase of 5% or more in the number of required off-Street parking or loading spaces, based on the initially approved and constructed facility or development, off-Street parking and loading shall be provided according to the provisions of this Chapter. The additional parking shall be required only for such addition, enlargement, or change in use and not for the entire building or site. A change in occupancy is not considered a change in use for the purpose of this paragraph unless the new occupancy is in a different land use classification, based on the descriptions found in Chapter 86, than the former occupant.

2. ***Alterations that Increase Number of Dwelling Units.*** If an alteration to an existing building increases the number of residential Dwelling Units on the site, off-Street parking to serve the new Dwelling Units shall be provided according to the provisions of this Chapter. This requirement does not apply to an Accessory Dwelling Unit.

3. ***When Required.*** Off-Street parking and loading facilities required by this Chapter shall be constructed or installed prior to the issuance of a Certificate of Occupancy for the uses that they serve.

(Res. No. 12269, § 13, 9-23-24; Ord. No. 5883, § 3, 10-7-24)

11-32-2: GENERAL REGULATIONS AND STANDARDS

A. **Location.** All required parking and loading spaces and maneuvering areas shall be located on the lot upon which the use served is located, except that parking spaces may also be located upon a contiguous lot incorporated into the development site. Parking spaces and maneuvering areas shall not be located within the required front yard in any Single Residence District or in any required front or corner Side Yard or landscaped area in any other Zoning District, except driveways that directly and immediately allow a vehicle to access the site from a street or abutting property.

B. **Commercial Vehicles.** No commercial vehicle having a gross vehicle weight rating (GVWR) exceeding 13,000 pounds and is intended to be used primarily for commercial purposes rather than private or individual use shall be parked overnight or stored on any residential lot.

C. **Standards.** The following standards apply to required onsite parking and loading spaces, maneuvering areas, and access:

1. Required parking and loading spaces, maneuvering areas, and driveways shall be paved with asphalt, concrete, paving stone, or masonry to a sufficient thickness to withstand repeated vehicular traffic, except in Single Residence and Agricultural uses. The Zoning Administrator, in collaboration with the City Engineer, may establish alternative standards for porous surface paving.

2. Required parking spaces shall be permanently marked and shall be accessible from a Street or alley by a driveway or aisle such that all vehicles shall approach the Street or alley in forward motion, except in Single Residence and Agricultural uses. See Section 11-32-4(G).

3. Failure by the owner of the site to maintain the parking surface and markings according to the industry standards and schedules shall be considered a violation of this Ordinance.

D. **Compact Parking.** On a site with at least 10 required parking spaces, up to 20 percent of the total required parking spaces may be compact spaces, provided that the following standards are met:

1. Where covered parking is required all covered parking spaces shall be standard size;

2. All compact spaces are to be designated with a sign or pavement marking; and

3. Compact spaces shall be distributed throughout the parking area, with no more than 9 compact spaces in a single cluster. Each cluster of up to 9 spaces shall be separated by a minimum radius of at least 60-feet from the next cluster of compact parking spaces.

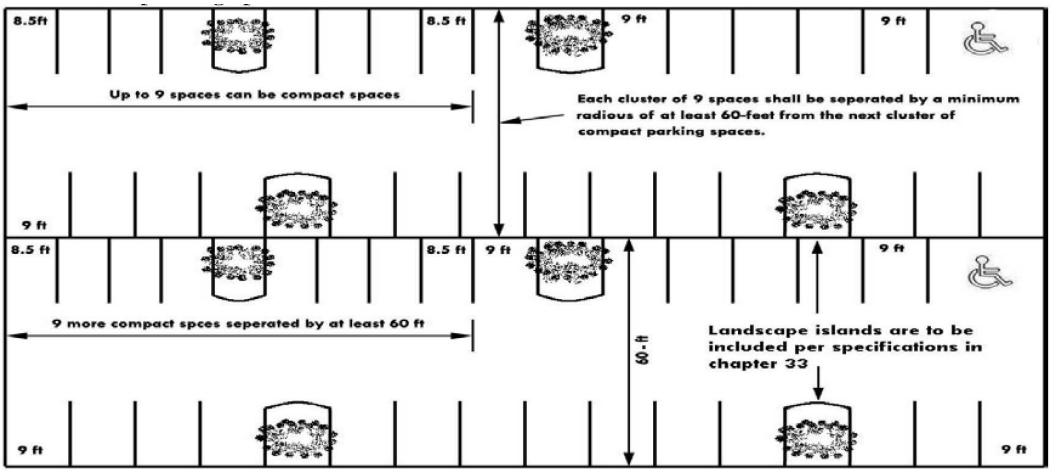


FIGURE 11-32-2.D: COMPACT PARKING SPACES

E. **Accessible Parking.** Accessible parking spaces shall be provided and maintained pursuant to Section 4-2-1(G) of the Mesa City Code pertaining to the Arizonans with Disabilities Act of 1992.

F. **Structured Parking.** The exterior elevations of any multi-level parking structure must be designed so as to screen or conceal parked cars from view from public streets and open space on the first and second floors of the structure. The floors of structured parking garages must be screened or concealed by one (1) or more of the following methods:

1. ***Ground-Floor Commercial.*** The garage's ground-level Street frontage (except for driveways and pedestrian entrances) for the designated front of the structure shall be improved with retail sales, food and beverage sales, eating and drinking establishments, personal services, or similar pedestrian-oriented uses.

2. ***Landscaping.*** Landscaping shall be provided in the form of perimeter planters within openings of the structure, and/or the incorporation of hanging baskets, flower boxes, or planting trellises.

3. ***Setback.*** A parking structure that does not incorporate ground-floor retail or other commercial use or is not otherwise screened or concealed at street frontages on the first and second levels, must provide a densely planted landscaped yard that is a minimum of 10 feet in depth, or the required setback for the district in which it is located, whichever is greater.

4. ***Combination of Opaque Screen Walls and Open Decorative Panels.*** A combination of opaque screening devices and decorative panels may be used to screen parking within above ground structures. Opaque screen walls shall not be higher than 3'-6" relative to the abutting floor height, and shall not exceed 45 percent of the aggregate surface area of the exterior wall. Decorative panels or other devices with opacity of at least 40% shall be used to screen the remainder. The decorative panels shall be constructed of durable materials, such as iron, steel, copper, aluminum, formed concrete, glass block, brick or other textured masonry.

5. ***Design Review Board Review of Alternative Architectural Structure.*** The Design Review Board may approve parking garage structures that incorporate attractive architectural forms and detailing that have interest equal to an occupied structure.

G. **Recreational Vehicle (RV) Parking.** See Section 11-34-5(B) regarding temporary parking requirements for recreational vehicles.

H. **Size of Parking Spaces and Maneuvering Aisles.** Parking spaces and maneuvering aisles shall be provided to meet the minimum dimensions required by this subsection. Screening walls, roof support posts, columns, or other structural members shall not intrude into the required dimensions for parking spaces.

1. ***Standard Parking Spaces.*** The minimum basic dimension for standard parking spaces is 9 feet by 18 feet. Table 11-32-2-H-1 provides the dimensions of spaces (stalls) and aisles according to the angle of parking spaces.

Table 11-32-2-H-1: Standard Parking Space and Aisle Dimensions

Angle of Parking	Stall Width	Curb Length Per Stall	Stall Depth	One-Way Aisle Width	Two-Way Aisle Width
Parallel	9'0"	22'0"	9'0"	12'	20'
30°	9'0"	18'0"	17'4"	11'	20'
40°	9'0"	14'0"	19'2"	12'	22'
45°	9'0"	12'9"	19'10"	13'	24'
50°	9'0"	11'9"	20'5"	15'	24'
60°	9'0"	10'5"	21'0"	18'	24'
70°	9'0"	9'8"	21'0"	19'	24'
90°	9'0"	9'0"	18'0"	24'	24'

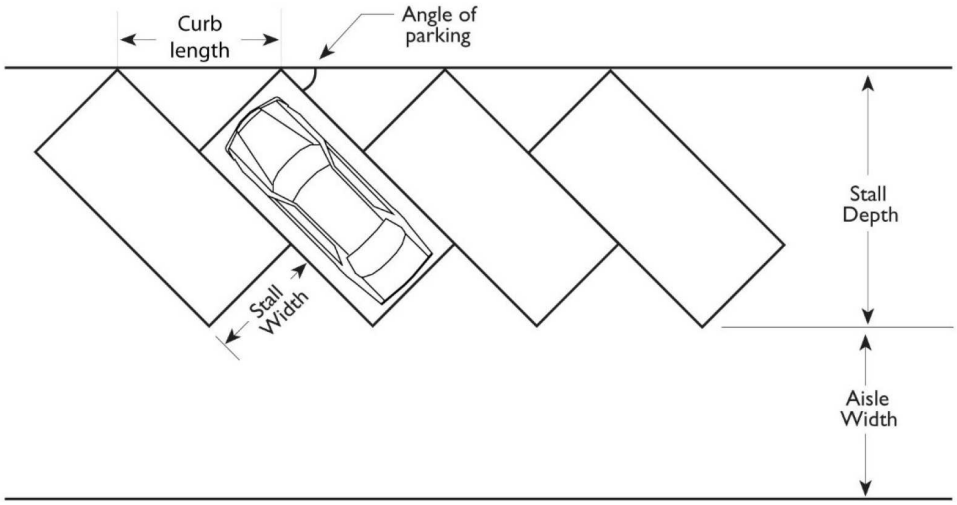


FIGURE 11-32-2.H.1: PARKING SPACES AND AISLES

2. ***Compact Parking Spaces.*** The minimum basic dimension for compact parking stalls shall be 8 feet by 16 feet. Table 11-32-2.H.2 provides the dimensions of spaces and aisles according to angle of parking spaces. See Table 11-32-2.H.2.

Table 11-32-2.H.2: Parking Area and Space Dimensions - Compact Spaces

Angle of Parking	Stall Width	Curb Length Per Stall	Stall Depth	One-Way Aisle Width	Two-Way Aisle Width
Parallel	9'0"	22'0"	9'0"	11'	20'
30°	9'0"	18'0"	14'11"	11'	20'
40°	9'0"	14'0"	16'5"	11'	22'
45°	9'0"	12'9"	17'0"	11'	24'
50°	9'0"	11'9"	17'5"	13'	24'
60°	9'0"	10'5"	17'10"	16'	24'
70°	9'0"	9'8"	17'9"	16'	24'
90°	9'0"	9'0"	16'0"	21'	24'

3. ***Loading Spaces.*** If loading spaces are provided they shall be a minimum 10 feet by 30 feet.

I. **Size of Parking Spaces for Motorcycles, Scooters, and Golf Carts.** Motorcycle and scooter parking spaces shall have a minimum dimension of 5 feet by 9 feet. Golf cart parking spaces shall have a minimum dimension of 5 feet by 10 feet.

J. **Drive Aisle without Associated Parking Spaces.** One-way drive aisles that do not provide access to parking or loading spaces shall be at least 12-feet wide. 2-way drive aisles that do not provide access to parking or loading spaces shall be at least 20-feet wide.

11-32-3: PARKING SPACES REQUIRED

A. The following chart specifies the minimum parking spaces required for each permitted use (For exceptions, see Sections 11-32-5, 11-32-6, and 11-32-7):

Table 11-32-3.A: Required Parking Spaces By Use		
Use	**Minimum Standard**	
Residential		
Single Residence, Detached or Attached, including Manufactured Home Subdivisions	2 spaces per dwelling which may be in tandem with Zoning Administrator approval but no parking space is required for an Accessory Dwelling Unit	
Multiple Residence (Typical)	See sub categories, below	
Apartments, Multiple Residence condominiums, and mixed-use residential, townhomes, patio homes and similar Multiple Residence buildings: development site located within ¼ mile radius (1320-feet) of bus rapid transit or light rail station, regardless of bedroom count	9 or fewer total units	1.4 spaces per Dwelling Unit
	10 — 25 total units	1.3 spaces per Dwelling Unit
	26 or more total units	1.2 spaces per Dwelling Unit
Apartments, Multiple Residence condominiums, mixed-use residential, townhomes, patio homes, and similar Multiple Residence buildings: development site not located within ¼ mile radius (1320-feet) of bus rapid transit or light rail station, regardless of bedroom count	2.1 spaces per Dwelling Unit	
Middle Housing	1 space per Dwelling Unit	
Boarding House and Assisted Living Center	1.2 spaces per Dwelling Unit for development with distinguishable Dwelling Units 1.0 space for each room plus 2 additional spaces for development with congregate dining and no distinguishable separate Dwelling Units	
Family Community Residence, Transitional Community Residence, and Assisted Living Home	Same as Single Residence	
Live-Work Units	2.1 spaces per unit	
Residential Care, General (Nursing Home, Hospice)	1.0 space per room or Dwelling Unit plus 2 additional spaces	
RV Parks	1 full-sized space for each RV space, plus 1 guest parking space per 10 (or fraction thereof) RV spaces for the overall development	
RV Subdivisions	1 full-sized space and 1 golf cart space for each lot; plus 1 full-sized guest parking space per 10 (or fraction thereof) Dwelling Units for the overall development	
Manufactured Home Parks	2 full-sized space for each lot (may include tandem spaces); plus 1 guest parking space per 10 (or fraction thereof) Dwelling Units for the overall development	
Public Assembly and Schools		
Theaters, auditoriums, assembly halls, places of worship, clubs, lodges and fraternal buildings, funeral homes, community centers, libraries	1 space per 75 square feet used for public assembly	
Museums	1 space per 250 square feet used for public assembly plus Accessory Uses	
Stadiums	1 space per 5 seats plus 1 space per 300 square feet for Accessory Uses	
School, kindergarten through 9th grade	1 space per 75 feet for public assembly space, such as auditoriums and theaters, and 1 space per 600 square feet for all other areas	
High schools, academies, colleges, universities, trade or vocational schools	1 space per 200 square feet	
Health Care		
Medical/Dental Offices and outpatient clinics	1 space per 200 square feet	
Hospitals, hospices, skilled nursing, and Nursing and Convalescent Homes	1 space per 400 square feet	
Day care centers	1 space per 375 square feet	
Group Commercial Developments		
Shell buildings (no specified use)	1 space per 275 square feet	
Independent Commercial Buildings and Uses		
Data Center	1 space per 5,000 square feet for the first 200,000 square feet and 1 space per 10,000 square feet thereafter	
General offices, retail, and services	1 space per 375 square feet	

Table 11-32-3.A: Required Parking Spaces By Use	
Use	**Minimum Standard**
General auto repair, Garages, service stations, car washes, and drive-through lubrication shops	1 space per 375 square feet, including service bays, wash tunnels, and retail areas
Hotels and Motels	1 space per room or suite of rooms with individual exits plus ancillary use requirements
Eating and Drinking Establishments (no drive through window)	1 space per 75 square feet for indoor area, and 1 space per 200 square feet for outdoor seating area
Eating Establishments (with drive-through window and associated queuing drive aisle)	1 space per 100 square feet for indoor area, and 1 space per 200 square feet for outdoor seating area
Outdoor sales and service areas (car lots, plant nurseries, building supplies, etc.)	1 space per 375 square feet of sales and service building, but not less than 4 spaces per use
Temporary Outdoor Uses	
Swap Meets (See Section 11-20-29)	1 space per 300 square feet of designated vendor area
Farmer's Markets (See Section 11-20-29)	1 space per 400 square feet of designated vendor area
Recreation	
Bowling centers	5 spaces per lane plus ancillary use requirements
Golf driving range	1 space per tee plus ancillary use requirements
Miniature golf, amusement parks, batting ranges, and water slides	1 space per 500 square feet of outdoor recreations area plus ancillary use requirements
Health space and clubs, gyms, and tennis, handball, and racquetball courts and clubs	1 space per 100 square feet, excluding courts, plus 2 spaces per court
Skating rinks and dance halls	1 space per 75 square feet used for recreational activities plus ancillary use requirements
Group Industrial Buildings and Uses	
Shell buildings (no specified use)	75% at 1 space per 500 square feet plus 25% at 1 space per 375 square feet
Independent Industrial Buildings and Uses	
Mini-Storage (dead storage only)	4 spaces plus 2 for manager's quarters; Drive aisles between buildings shall maintain minimum distance of 24 feet
Warehousing and Storage, excluding Mini-storage	1 space per 900 square feet
Industrial	1 space per 600 square feet
Airport Buildings and Uses	
Aircraft Hangars	2 per aircraft, plus ancillary use requirements
Public Facilities and Uses	
Fire stations	1 space per bed, plus 1 space per 75 square feet for Community Room
Police Substations	1 space per 300 square feet, plus 1 space per 75 square feet for Community Room, plus ancillary use requirements

B. **Basis of Calculation.** The on-site parking requirements specified in this section are based on gross floor area unless otherwise stated.

1. In the case of mixed uses, the total requirements for off-street parking spaces shall be the sum of the requirements of the various uses computed separately as specified in this Section, and the off-street parking space for one use shall not be considered as providing the required off-street parking for any other use, unless a Shared Parking Plan has been approved in accordance with the requirements of Section 11-32-5.

2. In case of fractional results in calculating parking requirements from the chart above, the required number shall be rounded up to the nearest whole number.

C. **Maximum Parking Spaces.** The number of parking spaces provided by any development in surface parking lots shall not exceed 125% of the minimum required spaces in Table 11-32-3(A), except as follows:

1. Office developments may provide higher parking ratio not to exceed 8 spaces per 1,000 square feet GFA when office development includes the following:

   a. A minimum of 60,000 square feet.

   b. The minimum density ratio of employees per gross floor area shall be 1 employee per 200 square feet.

2. Parking within the building footprint of a structure (e.g., rooftop parking, below grade parking, multi-level parking structure).

3. When a change in use to an existing development causes a lower parking requirement.

4. Parking spaces managed for shared parking.

5. An administrative use permit is required to provide more surface parking than the maximum standard and additional landscape is required in compliance with Section 11-33-4, Interior Parking Lot Landscaping.

6. Phased projects do not need to comply with the maximum parking space requirement until the final phase is constructed.

D. **Covered Spaces.** Covered parking spaces shall be provided as follows:

1. Single Residences shall provide a minimum of two (2) covered parking spaces per unit, except no additional parking space is required for an Accessory Dwelling Unit.

2. Multiple-Residence projects shall provide a minimum of one (1) covered parking space per unit.

3. Office-use developments requiring a minimum of 10 parking spaces or more shall provide a minimum of one (1) covered parking space per office or suite plus one (1) additional space.

4. Covered spaces may be counted concurrently with the minimum aggregate parking space requirements for the development.

E. **Minimum Number.** Unless otherwise specifically stated in this Ordinance, all uses, except Single Residences, shall provide at least 4 on-site parking spaces.

F. **Credit for On-Street Spaces.** On-street parking spaces located immediately adjacent to the frontage of properties in the EO, MX, DB, and DC Districts may be counted toward required off-street parking for non-residential uses. One (1) on-street parking space may be substituted for each required off-street space. These provisions only apply to street frontages where on-street parking is allowed and provided. The parking space credit shall be determined at the time of Development Plan approval.

G. **Uses not Specified.** The parking requirement for any use not listed in Table 11-32-3(A) shall be determined by the Zoning Administrator based upon the requirements for the most similar comparable use, the

particular characteristics of the proposed use, and any other relevant data regarding parking demand. In order to make this determination, the Zoning Administrator may require the applicant to submit a parking demand study or other information, at the applicant's cost.

(Ord. No. 5281, 5-4-15; Ord. No. 5633, § 1, 7-8-21; Res. No. 12269, §§ 14, 15, 9-23-24; Ord. No. 5883, § 3, 11-7-24; Ord. No. 5957, § 5, 7-8-25; Ord. No. 5989, § 5, 12-8-25; Ord. No. 5996, §§ 2, 4, 3-9-26)

11-32-4: PARKING AREA DESIGN

A. **Setback of Cross Drive Aisles.** Parking spaces along main drive aisles connecting directly to a Street and drive aisles that cross such main drive aisles shall be set back at least 50 ft from the property line abutting the Street.

B. **Parallel Parking Spaces Abutting Wall or Fence.** Each parallel parking space adjoining a wall, fence, column, or other obstruction higher than 0.5 feet shall be increased by 2 feet on each obstructed side, provided that the increase may be reduced by 0.25 feet for each one foot of unobstructed distance from the edge of a required aisle, measured parallel to the depth of the parking space. See Figure 11-32-4.A.

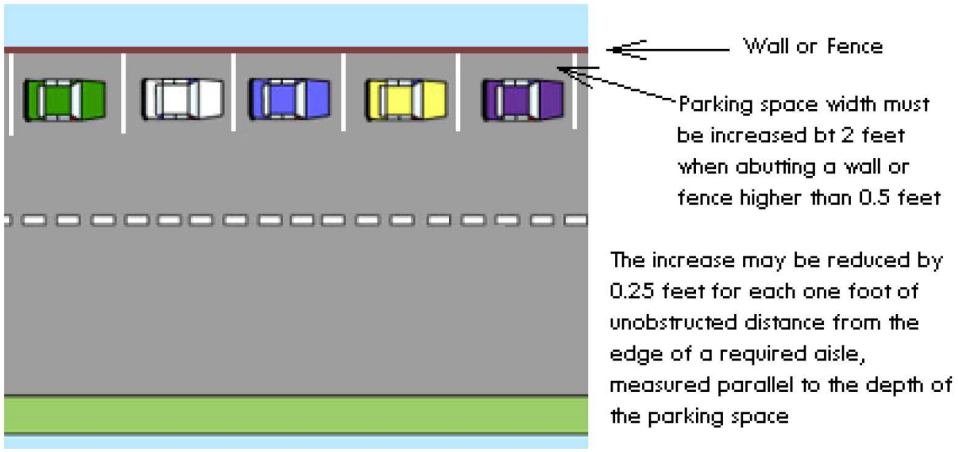


FIGURE 11-32-4.A: PARALLEL PARKING SPACES ABUTTING WALL OR FENCE

C. **Optional Double-Line Striping.** Each parking space shall measure at least 9 feet from center to center, with double stripes 2 feet apart.

D. **Long-Term Parking.** In parking areas, or portions of parking areas, restricted to employee use rather than customer or visitor use, and in which a vehicle is not normally moved during the period of an employee's work shift, the width of parking spaces may be reduced to 8.5 feet for standard and compact spaces.

E. **Minimum Dimensions for Residential Carports.** Each single-car carport shall measure at least 10 feet wide by 20 feet long. Each double carport shall measure at least 18 feet wide by 20 feet long. The width of the carport is to be measured from inside face of support to inside face of opposite support. The carport roof shall cover the entire 20-foot length of the space.

F. **Minimum Dimensions for Residential Enclosed Garages.** Enclosed Garages serving residential uses shall be constructed to meet the following minimum inside dimensions.

1. A single-car garage shall be at least 10 feet wide and 22 feet long.
2. A double-car garage shall be at least 20 feet wide and 22 feet long.
3. A garage for tandem parking shall be at least 10 feet wide and 44 feet long.

G. **Circulation and Safety.**

1. ***Internal Vehicular Circulation.***

a. Visibility shall be assured for pedestrians, bicyclists, and motorists entering individual parking spaces, circulating within a parking facility, and entering or leaving a parking facility.

b. Internal circulation shall be designed to facilitate the safe movement of vehicles without posing a danger to pedestrians or impeding the function of the parking area.

c. Parking lots that accommodate 10 or more vehicles must maintain continuous circulation patterns, with no dead ends, and safe access to public streets.

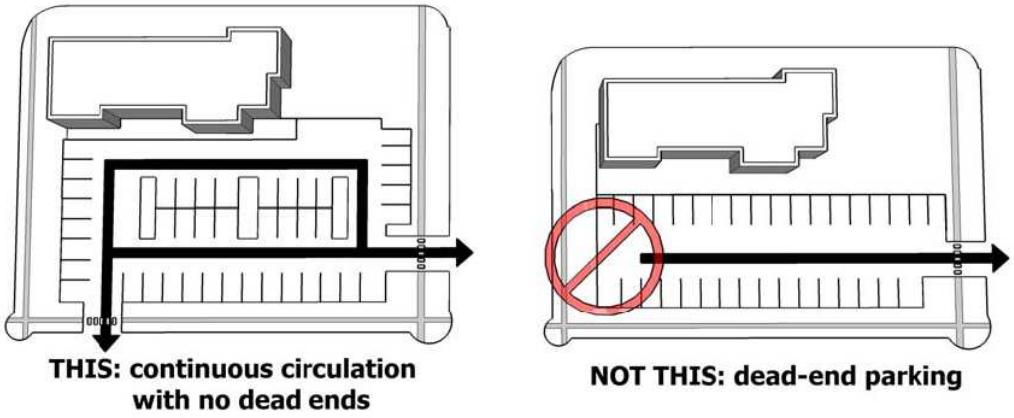


FIGURE 11-32-4.G(1): VEHICULAR CIRCULATION DESIGN

d. Off-street parking and loading areas shall be provided with sufficient maneuvering room so that all vehicles can enter and exit from a public street by forward motion only. This regulation does not apply to parking areas serving Single-Family Residences served by individual driveways. The maneuvering of vehicles necessary to enter or exit loading areas shall not occur on City streets.

e. Parking lots shall be designed so that solid waste, emergency, and other public service vehicles can provide service without backing up more than 50 feet or making other dangerous or hazardous turning movements.

2. ***Parking Lot Layout.***

a. No more than 200 parking spaces shall be located together in one (1) group or cluster.

b. Parking lot clusters shall be separated from other groups or clusters by a 15-foot wide landscaped feature, cross aisles, retention basins, or similar features.

c. Drive aisle intersections shall be perpendicular to each other.

d. Separate vehicular and pedestrian circulation systems shall be provided.

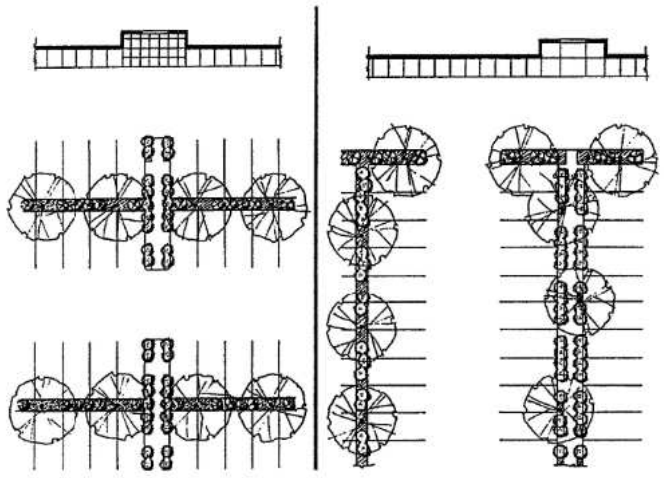
3. ***Pedestrian Access.***

a. Pedestrian walkways shall be at least five (5) feet in width and paved with a hard surface.

b. Parking lots containing more than 200 parking spaces shall provide pedestrian walkways through the parking field.

c. For parking rows perpendicular to the principal building façade, pedestrian walkways shall be located between two (2) rows of parking spaces at a minimum of one (1) pedestrian walkway every 200 feet.

d. For parking rows parallel to the principal building façade, pedestrian walkways shall be provided through the parking rows at a minimum of one (1) pedestrian walkway every 21 parking spaces, and such walkways shall be located in conjunction with required landscape islands.



Parking Rows **Parallel** To The Principal Building Facade

Parking Rows **Perpendicular** To The Principle Building Facade

FIGURE 11-32-4.G(2): PARKING ROW ORIENTATION

e. Where a pedestrian walkway crosses a vehicle lane, the pedestrian walkway shall be raised a minimum of three (3) inches above the vehicle lane and made distinct by use of textured paving, pavement markings, or contrasting color.

f. Where a pedestrian walkway is parallel and adjacent to an auto travel lane, it shall be raised and separated from the auto travel lane by a raised curb at least six (6) inches high.

H. **Electric Vehicle Charging Stations.** If spaces for electric cars are provided, allowed compact parking spaces can be increased by 1% for every 2 electric car charging stations; up to a maximum of 25-percent of the total minimum required.

I. **Additional Requirements.** For additional design requirements related to parking, See Chapter 33 (Landscaping), as well as Sections 11-30-5 (Lighting and Illumination), Section 11-30-8 (Pedestrian Connections), 11-30-9 (Screening), 11-30-12 (Trash and Refuse Collection Areas), and 11-30-13 (Truck Docks, Loading, and Service Areas).

J. **Alternative Parking Area Designs.** Where an applicant can demonstrate to the satisfaction of the approval authority that variations on the dimensions otherwise required by this Section are warranted in order to achieve to environmental design and sustainable building objectives (i.e. certification under the LEEDTM Green Building Rating System or an equivalent), a specific parking area design may be approved.

(Ord. No. 5996, § 4, 3-9-26)

11-32-5: SHARED PARKING

A. **Description.** Shared parking represents an arrangement in which 2 or more nonresidential uses, or a mixed-use residential development, with different peak parking periods (hours of operation) use the same off-Street parking spaces to meet their off-Street parking requirements.

B. **Authorization and Criteria.**

1. ***Permit Requirement.*** An administrative use permit may be approved, allowing shared parking arrangements for nonresidential uses with different hours of operation in accordance with the requirements of Section 11-70-3.

2. ***Criteria for Approval.*** Up to 100% of the parking required for one use may be supplied by the off-Street parking spaces provided for another use if the Zoning Administrator determines:

   a. That the various activities will have peak parking demands at different periods of the day or week; and,

   b. Based on competent evidence provided by the applicant, that there is no substantial conflict in the principal operating hours of the uses for which the sharing of parking is proposed.

3. ***Application Requirements.*** A request for approval of a shared parking arrangement must be accompanied by such information determined by the Zoning Administrator to be necessary to evaluate the peak parking demand characteristics or difference in hours and/or days of operation, including, but not limited to, a description of the uses and their operational characteristics, a Development Plan including a description of pedestrian access, and a parking study prepared by a licensed professional traffic engineer or equivalent qualified professional which justifies the reduction in parking requested.

4. ***Location of Shared Parking Facility.*** A facility or land use activity for which shared parking is proposed must be located within 660 feet of the shared parking, measured from the entrance of the use to the nearest parking space within the shared parking lot. A Shared Parking Facility greater than 660 feet from the location of the activity served may be reviewed and approved through a Special Use Permit, pursuant to Chapter 70.

5. ***Agreement.*** An agreement providing for the shared use of parking areas, executed by the parties involved, must be filed with the Zoning Administrator in approved form, and then recorded with the Office of the Maricopa County Recorder. Shared parking privileges will continue in effect only as long as the agreement, binding on all parties, remains in force. Agreements must guarantee long-term availability of the parking, commensurate with the use served by the parking. If a shared parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this Chapter.

(Ord. No. 5996, § 4, 3-9-26)

11-32-6: PARKING REDUCTIONS

Required parking for any use may be reduced through approval of a special use permit, pursuant to Chapter 70, unless specified otherwise, and the following:

A. **Criteria for Approval.** A special use permit for reduced parking shall only be issued if the following criteria are found to be true:

1. Special conditions—including but not limited to the nature of the proposed operation; proximity to frequent transit service; transportation characteristics of persons residing, working, or visiting the site—exist that will reduce parking demand at the site;

2. The use will adequately be served by the proposed parking; and

3. Parking demand generated by the project will not exceed the capacity of or have a detrimental impact on the supply of on-Street parking in the surrounding area.

B. **Parking Demand Study.** In order to evaluate a proposed project's compliance with the above criteria, the Zoning Administrator may require submittal of a parking demand study that substantiates the basis for granting a reduced number of spaces and includes any of the following information:

1. Total square footage of all uses within existing and proposed development and the square footage devoted to each type of use.

2. A survey of existing on-Street and off-Street parking within 300 feet of the project site.

3. Standard parking requirements for the use, based on Table 11-32-3(A).

4. Estimated parking demand for the use, using any available existing parking generation studies from the Institute for Transportation Engineers (ITE) or other professionally recognized, and/or accredited sources. If appropriate parking demand studies are not available, the City may require the applicant to conduct a parking demand survey of a development similar to the proposed.

5. Comparison of proposed parking supply with parking requirements.

6. A shared parking analysis, as appropriate.

7. A description any other characteristics of the site or measures being undertaken that could result in reduced parking demand, including staggered work shifts, telecommuting, shuttles to transit stations, or similar programs.

8. Other information as required by the City.

C. **Optional Transit Reduction.**

1. Except residence uses, the following reductions may be factored directly when determining the minimum number of parking spaces required for a development, and do not require an Special Use Permit to be approved by the Zoning Administrator:

   a. The minimum number of parking spaces may be reduced by up to 10% for sites in which the closest portion of the requested parcel is no more than a ¼ of a mile (1320-linear feet) radius from a light rail station or bus rapid transit stop.

   b. The minimum number of parking spaces may be reduced by up to 5 percent for sites in which the closest portion of the requested parcel is no more than a ½ of a mile (2640 linear feet) radius from a light rail station or bus rapid transit stop.

   c. The distances specified shall be measured in a straight line from the nearest property line of the development site to the nearest pay kiosk, shade canopy, or transit stop sign post, whichever is closest.

2. Additional reductions to the minimum number of parking spaces may be requested through the Special Use Permit process described in Paragraph A of this Section.

11-32-7: ALTERNATIVE COMPLIANCE WITH MINIMUM PARKING REQUIREMENTS

A. **Authorized Alternatives.** The Zoning Administrator may approve an alternative parking plan for the following:

1. Off-site parking (See C, below);

2. Valet parking (See D, below);

3. High-capacity transit access (See E, below);

4. Residents with special needs (See F, below); and

5. Community building(s) for residential developments (See G, below).

B. **Administrative Use Permit Required.** Applicants seeking approval of an alternative parking plan must secure approval of an Administrative Use Permit, pursuant to Chapter 70.

C. **Off-Site Parking.** The Zoning Administrator may permit all or a portion of the required off-street parking spaces to be located on a remote and separate lot from the lot on which the principal use is located, subject to the standards of this Section.

1. ***Location.***

   a. No off-site parking space may be located more than 1,000 feet from the primary entrance of the use served, measured along the shortest legal, practical walking route.

   b. This distance limitation may be waived by the Zoning Administrator if van or shuttle service will be operated between the off-site parking areas and the principal use.

2. ***Availability.*** The applicant shall demonstrate through a parking analysis that one of the following criteria is met.

   a. The existing number of parking spaces on the remote lot meets the minimum parking requirements for the uses onsite, as well as the minimum requirements for the portion of the use proposed to be accommodated off-site; or

   b. A parking demand study demonstrates that the remote lot has vacancy to accommodate the existing uses and the portion of the use proposed to be accommodated off-site.

3. ***Off-Site Parking Agreement.***

   a. An agreement providing for long-term use of off-site parking shall be executed by the parties involved, recorded with the County Recorder's office, submitted to the Planning Division.

   b. Off-site parking privileges will continue in effect only as long as the agreement, binding on all parties, remains in force. If an off-site parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this Chapter.

D. **Valet Parking.**

1. Valet parking may be authorized as a means of satisfying up to 100% of otherwise required off-street parking spaces.

2. In order to approve an alternative parking plan for valet parking the Zoning Administrator must determine that the proposal satisfies the requirements for off-site parking (see C, above).

E. **High-Capacity Transit Access.** The Zoning Administrator may approve up to a 33% reduction in required parking for uses located within 1,320-feet (¼ mile) of a high-capacity transit service stop, such as BRT or light rail with 30-minute or more frequent service during the hours of 7:00 a.m. to 9:00 a.m. and 5:00 p.m. to 7:00 p.m.

F. **Residents with Special Needs.**

1. If a developer can demonstrate that a Multiple Residence or group residential housing project (e.g., Assisted Living Center, skilled nursing facility, etc.) is designed for residents with special needs, such as senior citizens or handicapped individuals, and will not generate a need for as much parking as such a project designed for a general market, the Zoning Administrator may approve up to a 33% reduction in the number of required parking spaces.

2. Upon conversion of a Multiple Residence or group housing project to a general market apartment or condominium complex, parking must be provided consistent with the requirements of Table 11-32-3(A).

G. **Community Building(s) for Residential Developments.**

1. The Zoning Administrator may approve up to 50% of required full-size parking spaces required for a community building to be substituted with golf-cart spaces, motorcycle/scooter spaces, or bicycle parking if the community building is used for the common benefit of residents within residential development.

2. Only 50% of the substituted spaces may be substituted with bicycle parking.

(Ord. No. 5996, § 4, 3-9-26)

11-32-8: BICYCLE AND MOTORCYCLE PARKING

A. **Bicycle Parking.**

1. ***Spaces Required.***

a. Bicycle parking is required for multi-unit residential buildings and nonresidential development. Unless otherwise expressly stated, buildings and uses subject to bicycle parking requirements must provide at least 3 bicycle parking spaces or at least 1 bicycle space per 10 on-site vehicle parking spaces actually provided, whichever is greater. After the first 50 bicycle parking spaces are provided, the required number of additional bicycle parking spaces is 1 space per 20 vehicle parking spaces.

b. The requirements of subsection a and b, above, notwithstanding, the following minimum bicycle parking requirements apply to colleges, universities, schools and libraries:

i. Elementary and junior high school: 1 bicycle parking space per 1000 square feet;

ii. High school: 1 bicycle parking space per 1500 square feet;

iii. Colleges and universities: 1 bicycle parking space per 5 vehicle parking spaces provided; and

iv. Libraries: 1 bicycle space per 5 vehicle parking spaces provided.

2. ***Design and Location.***

a. *General.* Required bicycle parking spaces must:

i. Consist of racks or lockers anchored so that they cannot be easily removed and of solid construction, resistant to rust, corrosion, hammers, and saws;

ii. Allow both the bicycle frame and the wheels to be locked using a standard U-lock;

iii. Be designed so as not to cause damage to the bicycle;

iv. Facilitate easy locking without interference from or to adjacent bicycles and maintain a separation of at least 24 inches from the nearest wall; and

v. Be located in close proximity to entrances and other high activity areas, highly visible, active, well-lighted areas without interfering with pedestrian movements.

b. *Size.* Required bicycle parking spaces for nonresidential uses must have minimum dimensions of 2 feet in width by 6 feet in length, with a minimum overhead vertical clearance of 7 feet.

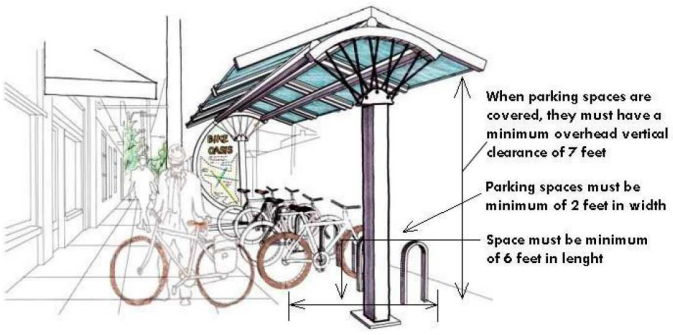


FIGURE 11-32-8.A: BICYCLE PARKING SPACES

c. *Location.* Required bicycle parking may be located indoors or outdoors. Such spaces must be located out of the ROW unless an encroachment agreement is approved. If required bicycle parking facilities are not visible from the abutting Street or the building's main entrance, signs must be posted indicating their location.

B. **Motorcycle and Scooter Parking.** For any nonresidential use providing 50 or more off- Street spaces, a maximum of 2 required off-Street parking spaces per 50 vehicle spaces may be reduced in size or otherwise redesigned to accommodate parking for motorcycles and scooters. When provided, motorcycle and scooter parking must be identified by a sign. Motorcycle and scooter parking shall be counted concurrently as part of the minimum number of vehicle spaces required for the development.

CHAPTER 33 LANDSCAPING

11-33-1: PURPOSE AND APPLICABILITY

A. **Purpose.** This Chapter establishes standards for Landscaping. The purpose of the Landscaping standards are to:

1. Improve the appearance of the community by requiring aesthetically pleasing Landscaping on public and private sites:
2. Soften the appearance of urban development;
3. Ensure appropriately designed and maintained Landscaping elements that allow natural surveillance;
4. Generate and preserve community identity to reinforce a sense of place that is unique to various neighborhoods throughout the City;
5. Encourage the use of native or adapted plant species and demonstrate appropriate design and maintenance techniques; and
6. Provide environmental improvements such as mitigating air and storm water pollution, providing shade and reducing the effects of the urban heat island.

B. **Applicability.** The regulations of this Chapter shall apply to both new and existing development as outlined below:

1. ***Proposed Developments.*** The standards of this Chapter apply to all new development, redevelopment, and site improvements requiring a development plan, site plan, or building permit unless specified as exempt below.

2. ***Existing Properties.*** The standards of this Chapter shall apply to existing properties when:

   a. There is a change in land use that results in increased parking, loading and service areas, or open space requirements;

   b. A new building or addition increases the gross floor area by more than 10%; or

   c. There are site modifications, including but not limited to, alterations to parking layout, driveways, or other site circulation elements that impact existing landscaped areas.

C. **Exempt Projects.** The requirements of this Chapter do not apply to the following types of development or activity:

1. Additions to existing buildings that increase the total gross floor area by less than 10%;

2. The establishment of an accessory use or structure on the same lot as an existing primary use, provided that there is no increase in total gross floor area or outdoor area utilized for the use; and

3. A change in occupancy of a building that does not result in a change in land use classification or an increase in parking, landscaping, or site improvement requirements under this Ordinance.

(Ord. No. 5544, § 13, 12-9-19; Ord. No. 5996, § 4, 3-9-26)

11-33-2: GENERAL REQUIREMENTS

A. **Landscaped Areas.** Required landscaped areas shall be maintained free from encroachment by any use, structure, vehicle, or feature not a part of the landscaping design, except as specified in Chapter 33.

1. Where turf abuts decomposed granite or similar inorganic landscape material, a hardscape edging material such as brick or concrete curb/mow-strip shall be provided.

2. Electric vehicle charging stations may be placed in parking lot landscape islands. If necessary, shrubs and ground cover may be eliminated to accommodate the charging equipment.

B. **Tree Size.** Required trees shall be the minimum size specified below:

1. A minimum of 25% of the total required trees shall be 36-inch or larger box trees.

2. A minimum of 50% of the total required trees shall be 24-inch box trees.

3. No trees shall be smaller than 15-gallon size.

C. **Shrub Size.**

1. Required shrubs shall have a minimum mature growth height of 18 inches.

2. At least 50% of required shrubs shall be a minimum of five (5) gallons in size upon installation, but in no case shall any shrub be less than one (1)-gallon size.

D. **Open Space.** Fifty percent (50%) of all required open space shall contain live plant material.

1. To ensure that landscape materials are measured as accurately and equitably, the guidelines in Table 11-33-2-E shall be used to determine what portion of a lot or right-of-way is landscaped with live plant materials other than turf and provides the square footage credit for various types of plants.

2. Ground cover may be of two (2) types:

a. Vegetative ground cover consisting of living plant materials generally characterized by primary horizontal growth, as well as secondary vertical growth, generally not exceeding 18 inches in height; and

b. Inert ground cover consisting of gravel, decomposed granite, crushed rock, desert tree mulch or other approved materials. The use of "desert cobble" that looks like the desert floor, consisting of natural desert covers and seed mix, is encouraged.

Table 11-33-2-E: Vegetation Credit Table

Type of Plant Material	Credit in Square Feet
Evergreen Tree (at least 25 ft. tall at maturity)[1]	100
Shade Tree	50
Ornamental Tree	25
Large Shrub (more than 8 ft. tall at maturity)	50
Medium Shrub (4-8 ft. tall at maturity)	25
Small Shrub (less than 4 ft. tall at maturity)	10
Columnar Deciduous or Evergreen Tree	25
Columnar Evergreen Shrub (less than 8 ft. tall at maturity)	10
Evergreen Ground Cover	25
Perennial Plant and Ground Cover, Bulb/Tuber and Ornamental Grass[2]	5
Non-Ornamental Grass or Turf	1
1. Dwarf trees or tree varieties with a mature width of less than 10 feet shall count as 25 square feet.	
2. Large ornamental grass, over 4 feet tall at maturity, shall count as 10 square feet.	

E. **Irrigation Systems.** Required irrigation systems shall be underground automatic watering systems, unless the lot is served by functioning flood irrigation.

F. **Paving and Hardscape Materials.** Paving and ground treatment shall be an integral part of site and landscape design.

G. **Selection of Plant Materials.** The physical characteristics of the species and variety of plants selected, at maturity, shall correspond closely with the design objectives listed for each of the respective landscape requirements, including the following:

1. ***Screening.*** Trees and shrubs used for screening shall be non-deciduous or have dense foliage and a broad canopy to ensure year-round coverage.

2. ***Thorny Trees and Shrubs.***

   a. Trees and shrubs with thorns, spines, and sharp points should not be placed within seven (7) feet of sidewalks and/or vehicular roadways and should not be placed within three (3) feet of median island curbing.

   b. Exceptions may be made for plants placed in controlled locations, such as plazas and outdoor seating, clearly designed as being away from access aisles, connecting routes or through pathways.

3. ***Shading Requirements.*** Trees designated to meet shading requirements shall provide at least 50% of the required shading within four (4) years and the full shading within eight (8) years.

4. ***Species Diversity.*** Development sites shall include a variety of plant species for each plant type (tree, shrub, accent, vegetative ground cover, etc.) to promote landscape resilience and visual interest.

   a. The total number of species required and the maximum percentage of any one (1) species permitted on a site is provided in Table 11-33-2.G.4 below.

   b. Cultivars, varieties, and hybrids of a single species shall be considered the same species for the purpose of this calculation.

Table 11-33-2.G.4: Species Diversity Requirements By Plant Type

Total Number of Plants (Per Plant Type) on Landscape Plan	Min. Number of Species Required	Max. Percentage of Any One (1) Species
1-4 plants	1 specie	100%
5-10 plants	2 species	60%
11-15 plants	3 species	45%
16-75 plants	5 species	40%
76-100 plants	8 species	25%
500-1,000 plants	10 species	30%
1,000+ plants	15 species	15%

H. **Maintenance of Landscaping.**

1. ***Irrigation System Required.*** An irrigation system shall be provided to all landscaped areas containing living plant materials, unless otherwise approved.

2. ***Dead or Dying Landscape Material.*** In the event a plant specified as required on an approved landscape plan dies or is removed, the property owner and or occupant or lessee are jointly responsible and shall replace the plant with one of a similar species with a similar size as specified in the approved landscape plan.

3. ***Plant Material Maintenance.***

   a. Landscape Plans shall designate plant material to be kept in either a natural state (minimal pruning) or a formal state (regularly trimmed and pruned to a sculpted appearance). Plant materials shall be maintained as designated.

   b. Property owners shall maintain landscaping in accordance with the best management practices of the landscaping industry. Pollarding of trees and similar practices of over pruning are discouraged.

4. Lack of maintenance as above described, shall constitute a violation of this Ordinance. The property owner and/or occupant or lessee shall be held jointly and severally liable for any infraction of the requirements set forth in this Chapter.

I. **Installation of Landscaping.** Landscaping shall be installed with adequate precautions to ensure survival, as shown on the approved development plan or landscape plan, prior to the issuance of a Certificate of Occupancy for the building or use.

J. **Perimeter Landscaping.** Required landscaped areas adjacent to the property lines of the site shall be installed with the first phase of construction when adjacent to residential districts.

K. **Undeveloped Parcel within a Group Commercial, Industrial, or Office Project.** Extruded concrete curbing and a five (5) foot-wide landscape area along the undeveloped edge(s) shall be provided, unless otherwise approved.

L. **Substantial Conformance.** Landscaping installation shall be in substantial conformance with the approved plans. Alteration in the design or installation without appropriate plan amendment approval is subject to the withholding of final inspection approval.

M. **Curbing.** Where wheel stops are required to prevent vehicular intrusion, poured-in-place continuous concrete curbing or decorative bollards shall be installed.

N. **Parking.** When a parking space abuts a landscape island or planter, a poured-in-place continuous concrete wheel stop or curbing shall be provided.

O. **Right-of-Way.** Landscaping of adjacent undeveloped right-of-way is required in addition to the minimum on-site requirements. Right-of-way landscaping shall be limited to non-vegetative ground cover and low-water-use plants, including those drought-tolerant plants listed by the Arizona Department of Water Resources for the Phoenix Active Management Area. The Planning Division will maintain a list of such plants.

(Ord. No. 5544, § 14, 12-9-19; Ord. No. 5814, § 5, 10-16-23; Ord. No. 5996, § 4, 3-9-26)

11-33-3: PERIMETER LANDSCAPING

A. **Streets.**

1. ***Allowable Uses.*** Landscape yards shall be exclusively maintained as landscaped areas with plant materials and may include monument signs, parking screen walls, and retention basins.

2. ***Basis for Calculation.*** Plant materials shall be calculated based on a linear module of 25 feet. Trees and shrubs may be clustered.

3. ***Numbers of Plants Required.*** Plants shall be installed according the street classifications in Table 11-33-3.A.3.

Table 11-33-3.A.3: Required Number of Plants by Street Type

Street Right-of-Way	Min. Required Plants
Arterial Streets (110—130 feet) Note: MX Districts shown in subsection 5. below	1 Tree and 6 Shrubs per 25 Linear Feet of Street Frontage (4 trees and 24 shrubs per 100 feet)

Table 11-33-3.A.3: Required Number of Plants by Street Type	
Street Right-of-Way	**Min. Required Plants**
Collector Streets (90—110 feet)	1 Tree and 6 Shrubs per 25 Linear Feet of Street Frontage (4 trees and 24 shrubs per 100 feet)
Collector Streets (60—80 feet)	1 Tree and 6 Shrubs per 25 Linear Feet of Street Frontage (4 trees and 24 shrubs per 100 feet)
Public or Private Local Streets (Less than 60 feet)	1 Tree and 4 Shrubs per 25 Linear Feet of Street Frontage (4 trees and 16 shrubs per 100 feet)
All fractional amounts shall be rounded up to the next whole number (Example 2.15 trees rounds up to 3 trees).	

5. ***DC and MX Districts.*** All new development shall provide shade with canopy trees, shade structures, or building overhangs for at least 50% of sidewalk along street frontages.

6. ***Substitutions.***

a. *Tree Size Substitutions.* Substitutions to the minimum tree size requirements may be made according to the following table.

Table 11-33-3.A.6.a: Tree Substitutions		
Tree to be placed on site	**15-gallon tree equivalent**	**24-inch box tree equivalent**
24-inch box tree	2 trees	-
36-inch box tree	3 trees	2 trees
48-inch box tree	4 trees	3 trees
60-inch or larger box tree	-	4 trees

b. *Saguaros Substitution.*

i. Saguaros may be substituted for 10% of the total required trees along streets and driveways according to Table 11-33-2.A.6.B.

ii. A higher percentage, up to a maximum 30% of the total number of required trees, may be approved by the Zoning Administrator within the defined boundaries of the Desert Uplands Area.

Table 11-33-2.A.6.b: Substitute Saguaro Heights	
Required Tree Size	**Substitute Saguaro Heights (in Feet)**
15 gallon	6
24-inch box	10
36-inch box	15

c. *Ocotillo Substitutions.*

i. Ocotillo plants may be substituted for 10% of the total required trees along streets and driveways, at a ratio of two ocotillo plants for each required tree.

ii. A higher percentage, up to a maximum 30% of the total number of required trees, may be approved by the Zoning Administrator within the defined boundaries of the Desert Uplands Area.

B. **Required Landscape Yards.** Landscaping should provide a visual buffer, screen view of objectionable uses, provide a transition between adjacent development, shade paved and unpaved surfaces, and screen nighttime light from adjacent property.

1. ***Landscaping for Non-Single Residence Uses adjacent to Single Residence Uses or Districts.***

a. *Width.*

i. Sites less than five (5) acres adjacent to an RS or RSL district, must provide a minimum 20-foot landscape yard.

ii. Sites five (5) acres or more adjacent to an RS or RSL district must provide a minimum 25-foot landscape yard.

b. *Ground Treatment.*

i. The entire landscape yard shall be either covered with decomposed granite, "desert varnish or cobble", desert tree mulch and/or turf or as approved.

ii. Landscape yards shall remain free from parking, driveways, and encroachment by any structures that are not part of the landscaping design.

c. *Number of Plants.*

1. *Screening.* Landscape yards not visible from public parking/drive aisles and adjacent to loading, service and unsightly areas shall have a minimum of five (5) non-deciduous trees per 100 linear feet of adjacent property line (1 tree per 20 linear feet) or shall have continuous tree canopy between 6 feet—20 feet in height at maturity, 50 percent canopy within five (5) years, 70 percent canopy within seven (7) years and 100 percent within 10 years.

ii. *Areas visible from public parking or drive aisles.* A minimum of four (4) non-deciduous trees and 20 shrubs per 100 linear feet of adjacent property line shall be provided.

iii. *Transition Areas.* A planted transition between visible areas and loading/service areas shall be provided.

d. *Size of Plants.* Required trees shall be at least 24-inch box size.

e. *Wall.* Refer to Section 11-30-9 (Screening) for standards regarding Screening design of exterior walls and equipment.

2. ***Landscaping for Non-Single Residence Uses Adjacent to Other Non-Single Residence uses or districts.***

a. *Width.*

i. *Group C-O-I Development.* Properties that are part of group commercial, office, industrial development, as defined in Chapter 87, must provide a seven (7) foot wide perimeter landscape yard except where a cross-access drive aisle occurs within the required landscape yard.

ii. *Non-Group C-O-I Development.* Properties that are not part of a Group C-O-I Development, as defined in Chapter 87, must provide a 15-foot landscape yard except where a cross-access drive aisle occurs within the required landscape yard.

b. *Ground Treatment.* The entire landscaped yard shall be either covered with decomposed granite, "desert varnish or cobble", desert tree mulch and/or turf as approved. Supplemental shrubs and ground covers including accents, flowers, and vines shall provide 50 percent vegetative ground coverage.

c. *Number of Plants.* A minimum of three (3) non-deciduous trees and 20 shrubs per 100 linear feet of adjacent property line shall be provided. In the event of fractional results, the resulting number will be rounded to the next highest whole number. Shrubbery and ground covers are not necessary if the area is not visible from public parking and drive aisles.

d. *Size of Plants.* A minimum of 50 percent of the required trees shall be at least 24-inch box size. The balance of the required trees shall be at least 15-gallon-size trees.

i. *Exception.* Trees within LI, GI and HI Districts may be 15-gallon-size throughout.

e. *Plant types.* In areas with no pedestrian activity, appropriate low water use desert trees shall be planted.

(Ord. No. 5544, § 15, 12-9-19; Ord. No. 5593, § 10, 12-1-20; Ord. No. 5814, § 6, 10-16-23; Ord. No. 5996, § 4, 3-9-26)

11-33-4: INTERIOR PARKING LOT LANDSCAPING

A. **Applicability.** The interior parking lot Landscaping standards of this section apply to all off-Street parking lots containing 10 or more parking spaces. They do not apply to vehicle/equipment storage lots or vehicle and equipment sales lots. In addition, refer to Chapter 32 for additional parking lot standards.

B. **Landscape Islands.**

1. Parking lot landscape islands shall be installed at each end of a row of stalls and in between for maximum 8 contiguous parking spaces.

2. Landscape islands shall be a minimum of eight feet wide and 15 feet in length for single-row and 30 feet in length for double-row parking. All measurements are to face of curb.

3. Radius curbing shall be provided along drive aisles with a minimum 4 foot radius.

4. For rows of more than 16 parking spaces, landscape islands shall be staggered.

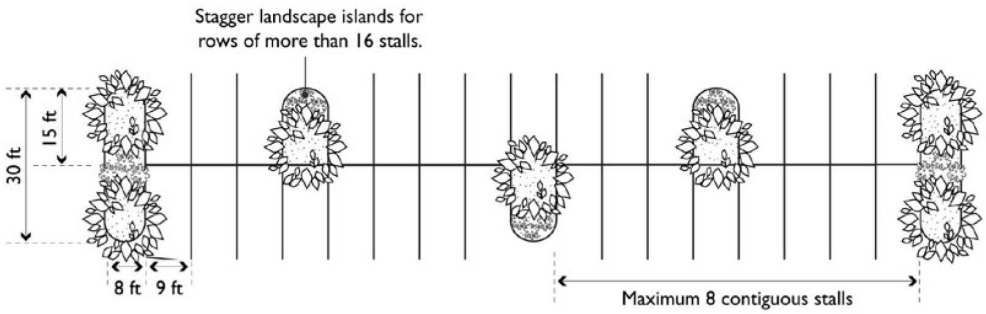


FIGURE 11-33-4.B.4: INTERIOR PARKING LOT LANDSCAPE ISLANDS

5. The maximum length of a covered parking canopy shall be 15 parking stalls in a row. Landscape islands may be eliminated when a conflict with the covered parking canopy occurs.

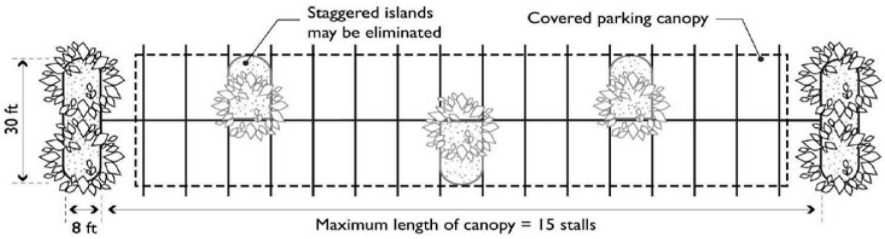


FIGURE 11-33-4.B.5: INTERIOR PARKING LOT COVERED PARKING CANOPY

6. When parking canopies are adjacent to each other in a single row, the total length of each canopy shall not exceed 15 parking stalls and the adjoining canopies shall be separated by at least a 24-foot-wide landscape island as depicted in the following illustration.

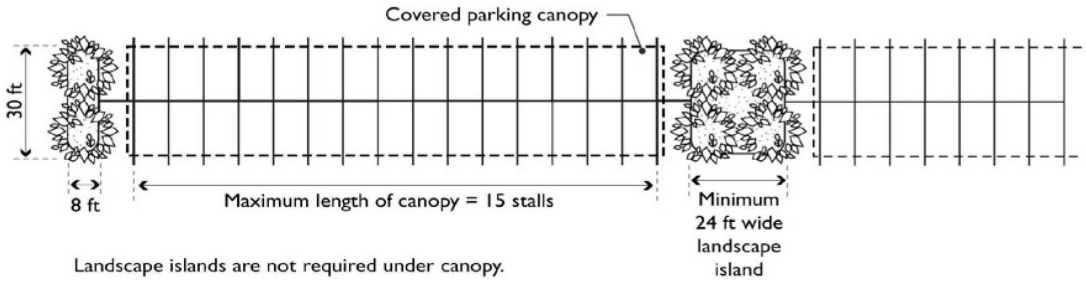


FIGURE 11-33-4.B.6: INTERIOR PARKING LOT COVERED PARKING CANOPY

7. For parking lots containing more than 200 spaces, one 8-foot-by-15-foot staggered landscape island may be replaced with 2 landscape islands of at least 25 square feet clear landscape area each. Each landscape island/ planter shall contain at least 1 tree and 3 shrubs. These landscape islands/ planters may be designed in any combination of shape and size provided the minimum clear landscape area dimension is 5 feet.

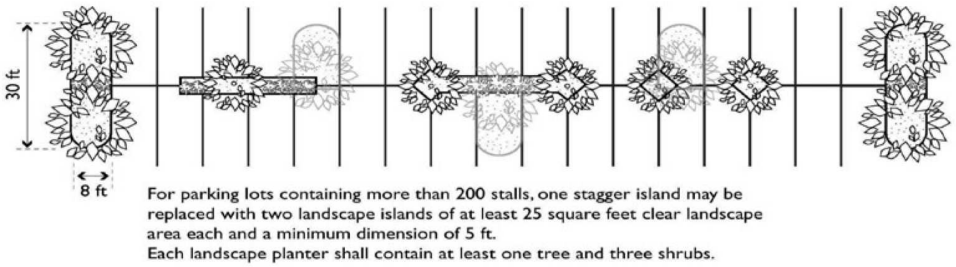


FIGURE 11-33-4.B.7: INTERIOR PARKING LOT LANDSCAPE ISLANDS

C. **Medians.** Where divider medians occur adjacent to head-in parking, allow for vehicle overhang and shall be as follows:

1. ***Single-Row Parking.*** Minimum 7-foot landscape area measured from face of curb to face of curb is required. The required median width does not include a Sidewalk.

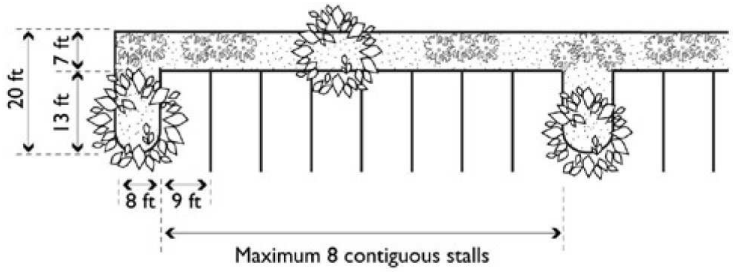


FIGURE 11-33-4.C.1: INTERIOR PARKING LOT LANDSCAPE ISLANDS

2. ***Double-Row Parking.*** Minimum 8-foot landscape area measured from face of curb to face of curb. Required median width does not include Sidewalk.

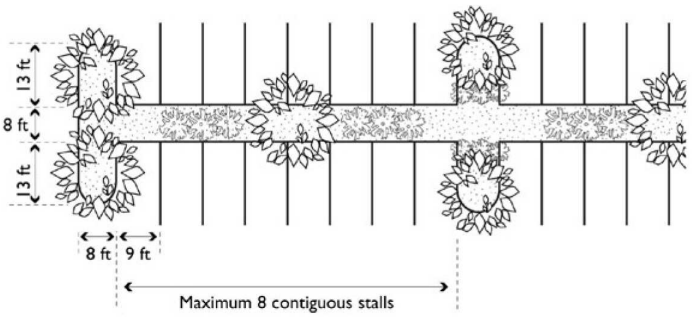


FIGURE 11-33-4.C.2: INTERIOR PARKING LOT MEDIAN DOUBLE ROW PARKING

3. ***Medians with Sidewalks.*** When a Sidewalk is located within median, shade trees should be placed so that at least 25 percent of the Sidewalk is shaded, at noon.

D. **Plant Materials.**

1. ***Number of Plants.***

a. Parking lot landscape islands. One shade tree and three shrubs shall be provided for every 15-foot parking island.

b. Parking lot divider medians. In addition to the above requirements, minimum 1 shade tree and 6 shrubs shall be provided for every 8 parking spaces.

2. ***Size of Plants.*** A minimum 10 percent of the required trees for parking lot interior Landscaping shall be 36-inch box. The balance of the required trees shall be at least 24-inch box. Substitution based on plant size is not permissible for trees planted within the interior of a parking lot.

3. ***Ground Treatment.*** All landscape planting areas that are not dedicated to trees or shrubs shall be decomposed granite and/or turf or as approved.

11-33-5: FOUNDATION BASE

All buildings shall provide a foundation base of plant materials such as trees, shrubs, ground covers, and/or accent plants and hardscape such as decorative pavement adjacent to the exterior walls. Pedestrian areas and building entrance plazas should be shaded with trees and shade structures.

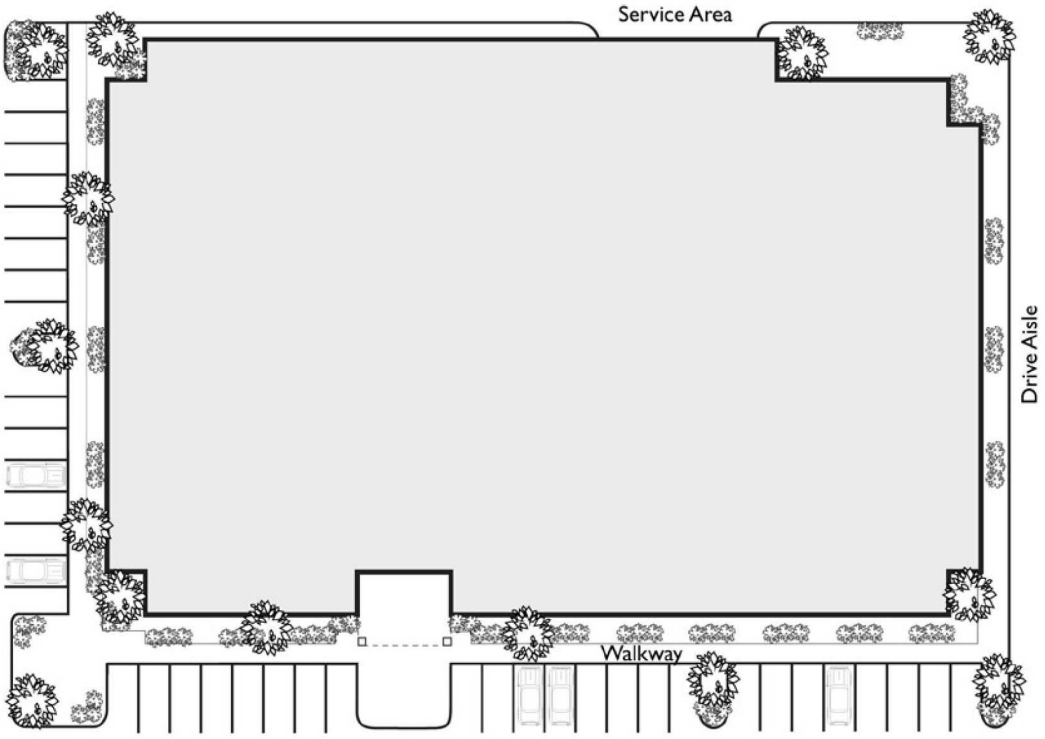


FIGURE 11-33-5: FOUNDATION BASE

A. **Foundation Base along Exterior Walls.**

1. ***Exterior Walls with a Public Entrance.*** A 12-foot-wide foundation base shall be provided, measured from face of building to face of curb along the entire length of the exterior wall. For Buildings with corner entries, both adjacent walls require a 12-foot-wide foundation base.

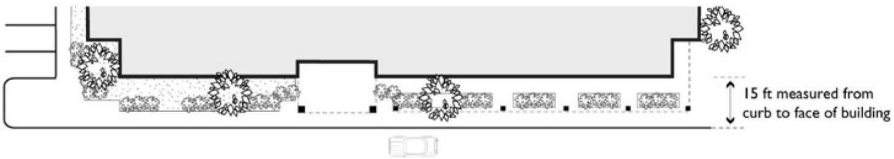


FIGURE 11-33-5.A.1: FOUNDATION BASE AT EXTERIOR WALL WITH PUBLIC ENTRANCE

a. For buildings larger than 10,000 square feet with parking spaces that abut the foundation base, additional foundation base width is required as follows:

i. *Typical Building Entrances.* An additional foundation base shall be provided at the entrance to create an entry plaza area. The plaza area shall have a minimum width and depth of 20 feet, and a minimum area of 900 square feet.

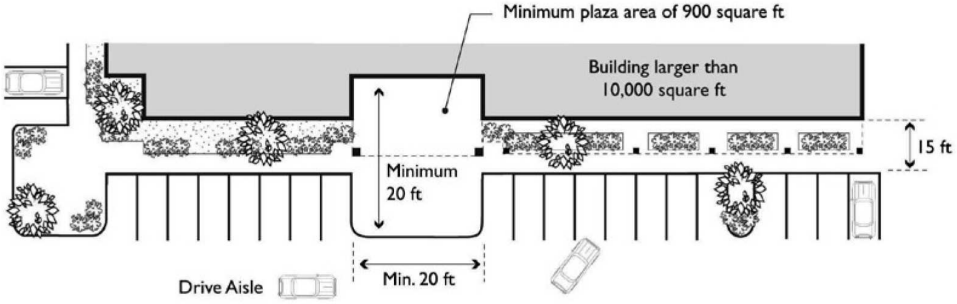


FIGURE 11-33-5.A.1.A: FOUNDATION BASE AT BUILDING ENTRANCE

ii. *Buildings with Corner Entrances.* A foundation base shall be provided to ensure an area equivalent to 900 square feet.

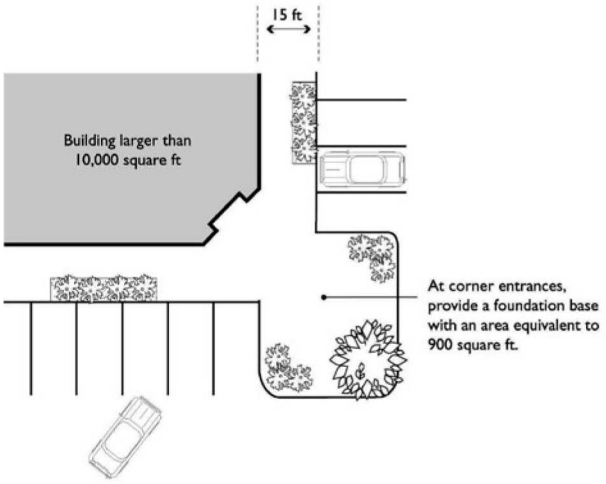


FIGURE 11-33-5.A.1.B: FOUNDATION BASE WITH CORNER ENTRANCE

b. *Medical Buildings Less Than 10,000 Square Feet.* A 13-foot-wide patient drop-off area shall be provided with at least one 5-foot-wide accessible Sidewalk.

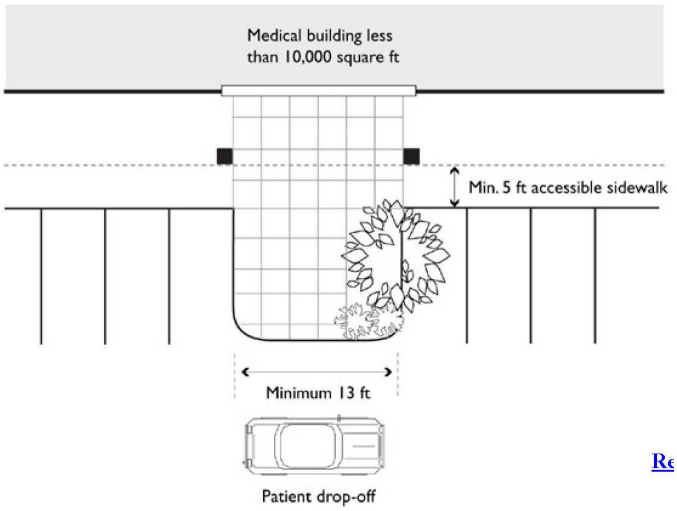


FIGURE 11-33-5.A.1.C: FOUNDATION BASE AT MEDICAL BUILDINGS

2. ***Exterior Walls without a Public Entrance.***

a. A minimum 10-foot-wide foundation base shall be provided, measured from face of building to face of curb along the entire length of the exterior wall adjacent to parking stalls.

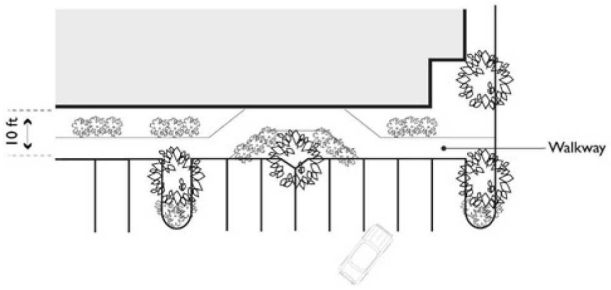


FIGURE 11-33-5.A.2.A: FOUNDATION BASE EXTERIOR WALL WITHOUT A PUBLIC ENTRANCE

b. A minimum 5-foot-wide foundation base shall be provided, measured from face of building to face of curb along the entire length of the exterior wall adjacent to drive aisles as illustrated.

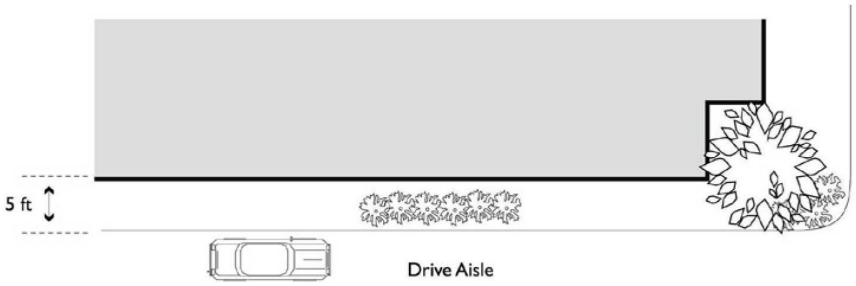


FIGURE 11-33-5.A.2.B: FOUNDATION BASE AT EXTERIOR WALL WITHOUT A PUBLIC ENTRANCE

3. ***Averaging Depth of Foundation Base.*** The designated depth of the foundation base may be less than the minimum required depth (as specified above), provided:

   a. That for each location in which the depth is less, a corresponding location along the same foundation base exceeds the minimum depth by the same amount; (for example, if 15 feet is the minimum required depth of a foundation base, the foundation base may be reduced to 10 feet at one (1) point provided that an equal portion of the same foundation base depth extends to 20 feet in depth) and;

   b. In all cases involving principally pedestrian access points into a building, the foundation base shall be no less than 5 feet in depth.

   c. The foundation base area remains equivalent to or more than the amount of foundation base area that would be provided if the edge of the foundation base remained parallel to the building elevation.

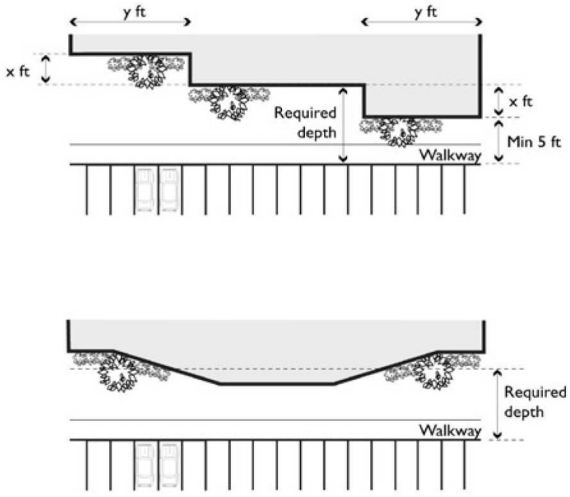


FIGURE 11-33-5.A.3: AVERAGING FOUNDATION BASE

B. **Landscape Area in Foundation Base.**

1. ***Number of Trees.*** A minimum one (1) tree per 50 linear feet or less of exterior wall length of a building shall be provided. Trees in a parking lot and within 30 feet of the building may be counted toward this requirement. Any calculation resulting in a percentage of a whole tree shall be rounded up to the nearest whole.

2. ***Size of Trees.*** A minimum 10 percent of the required trees in foundation base shall be at least 36-inch box size. The balance of the required trees shall be 24- inch box size. Substitution of landscape plants based on plant size is not permissible for trees planted within a required foundation base.

3. ***Plant Material within Foundation Base.***

   a. Exterior Walls Visible From Public Parking or Right-of-Way with Public Entrances. A landscape area shall be provided equal in length to 33 percent (minimum) of adjacent exterior wall.

   b. Exterior Walls Visible From Public Parking or Right-of-Way without Public Entrances. A landscape area shall be provided equal in length to 25 percent (minimum) of adjacent exterior wall.

   c. Exterior Walls Not Visible From Public Parking or Right-of-Way without Public Entrances. A landscape area shall be provided equal in length to 10% (minimum) of adjacent exterior wall.

4. Trees shall be in planters that are at least five (5) feet wide. other plant material shall be in planters that are at least three (3) feet wide.

5. If the foundation base contains expansive soils (as determined by a certified engineer) the plant material shall be placed away from the building.

C. **Setback for Raised Planter Boxes.** Raised planter boxes shall be 5 feet minimum from drive aisles and parking stalls.

D. **Setback for Columns in Foundation Base.** Columns shall be 5 feet minimum from drive aisles and parking stalls.

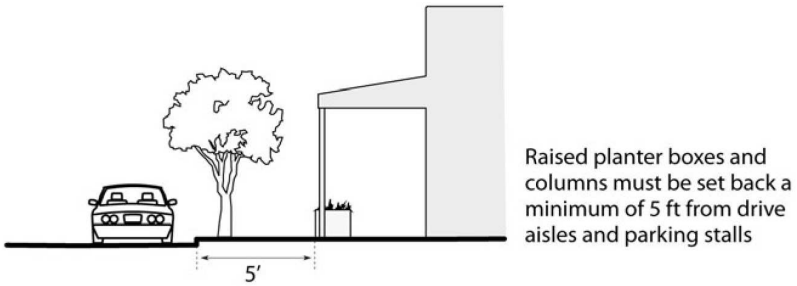


FIGURE 11-33-5.D: SETBACKS FOR RAISED PLANTER BOXES AND COLUMNS

E. **Exceptions.**

1. ***Loading and Service Areas.*** A foundation base is not required along exterior walls at overhead doors.

2. ***Foundation Base Adjacent to Drive-Thru Lanes.*** Provide 2-foot-wide foundation base along exterior wall, except at window.

(Ord. No. 5996, § 4, 3-9-26)

11-33-6: RETENTION BASINS

A. In both residential and nonresidential developments, the basin design shall be incorporated with the overall site plan by providing access, landscape, amenities.

B. Retention basin layout shall be irregular in shape, contoured and designed as an integral part of the Landscaping theme, and shall not take on the appearance of a ditch. The depth of water in retention basins shall not exceed 3 feet 6 inches.

C. A 3-foot transition area shall be provided where the retention basin side exceeds 6-to-1 slope measured horizontal to vertical and basin is adjacent to Right-Of-Way and Sidewalks. Transition area shall be less than 6-to-1 slope. A maximum 4-to-1 slope allowed in other locations.

D. Retaining walls shall not exceed 25 percent of the basin perimeter (measured at the high waterline). The maximum height of retaining walls is 18 inches.

E. Retention basins along public Streets that incorporate retaining walls shall utilize catch basins and pipes to collect and direct water to the bottom of the basins. Where retention basins occur along arterial Streets, berms shall be provided along 33 % of basin frontage. Berms are to be 4-to-1 (horizontal-to-vertical) maximum slope, 2 feet high. Within public Right-Of-Way maximum slope is 6 to 1. Berming shall not obstruct run-off from Streets into the retention basin.

F. Retention basin design shall provide consolidated basins. Multiple, small retention areas are not acceptable unless basins are interconnected and designed per the City of Mesa Engineering Manual.

G. Landscaping shall be provided in all areas of the retention basin (slope, top, and bottom).

11-33-7: ALTERNATIVE LANDSCAPE PLAN

An applicant who can demonstrate that the intent of this Chapter can be exceeded, in whole or in part, may submit an Alternative Landscape Plan (ALP) prepared in accordance with the following principles and design criteria. The ALP shall include a narrative that clearly details the modifications being requested and explains how they enhance the landscape design principles listed below.

A. **Design Principles.** In order to qualify for consideration, an ALP shall demonstrate compliance with at least 6 of the following principles:

1. ***Innovative Design.*** Innovative use of plant materials and design techniques in response to unique characteristics of the site.

2. ***Native Vegetation.*** Preservation or incorporation of existing native vegetation.

3. ***Plant Variety.*** Use of a variety of plant material, including plants of color, form, and texture, in excess of the minimum requirements.

4. ***Naturalistic Design.*** Incorporation of naturalistic design principles, such as variations in topography, meandering or curvilinear plantings, and grouping of dominant plant materials (trees, large shrubs) in a manner consistent with native vegetation. Bio-swales are encouraged adjacent to all paved areas.

5. ***Compatibility with Surrounding Uses.*** A greater degree of compatibility with surrounding uses than a standard landscape plan would offer. The number of trees required should depend on the type of tree planted, not some set number. There cannot be a trade off in the number of trees due to the size of the tree at initial planting because what is needed is the ultimate Screening.

6. ***Water Efficiency.*** Use of water-efficient irrigation systems, such as rain water harvesting that allows paved surfaces to drain to adjacent bio-swales and spread rain water more evenly throughout the site, and xeriscaping at appropriate locations.

7. ***Storm Water Management.*** Use of bio-swales with plant material and desert varnish clean storm water before it percolates into the ground.

8. ***Site-Specific Attributes.*** The design incorporates specific environmental attributes such as soil, hydrology, and vegetative communities unique to the site, and which are compatible with environmental features on adjacent properties. Additional design attributes may include incorporation of Landscaping selections for the consistency of the Streetscape in character areas.

9. ***Tree Substitution.*** Substitution resulting in fewer, larger, and more mature trees to replace the required numbers of smaller varieties when placed in perimeter areas at the inverse of the ratios stated in Table 11-33-3.A. (Example: One 60-inch box tree may substitute for four 15-gallon trees when approved by the Zoning Administrator through the use of an ALP.

10. ***Plant Viability and Longevity.*** The landscape plan takes into account the effect of plants on the surrounding activities over the lifetime of the land use, and attempts to promote the viability and long term maturation of plants. It does this by:

    a. Accounting for microclimates and the specific context of the plant's location in choosing of plant varieties.

    b. The use of advanced installation techniques, such a structured soils and Silva cells, to promote the permeability of air and water into the root zone of the plant, and to resist compaction of the soils.

    c. Accounting for the effects that plants may have on a site as the plants mature into adult forms, providing shade while limiting potential restrictions on visibility of the site from adjacent Streets; including consideration of visibility of signs, vehicle traffic sight angles, and the type and context of the specific land use.

11. ***Overhead Utility Line Easements.*** For those portions of sites impacted by the presence of overhead utility lines, the landscape plan:

    a. Uses plants from an approved list suggested by the Arizona Community Tree Council for placement near utility lines (a copy of which shall be kept on file in the Planning Division office), or

b. Makes other design considerations to meet the intent of the landscape requirements while reducing potential interference of mature plants limbs growing up into vertical space occupied by suspended utility cables.

B. **Allowable Modifications.** The following standards may be modified by an ALP:

1. ***General Requirements.***

a. Allowed percentage of palm tree and saguaro substitution.

b. Ground treatment materials.

c. Irrigation type and coverage.

d. Landscape buffer along undeveloped edges.

e. Right-of-way Landscaping and plant types.

2. ***Perimeter Landscaping.***

a. Minimum percent of vegetative ground coverage.

b. Minimum size of plant materials.

c. Substituting smaller trees with larger, more mature varieties.

3. ***Interior Parking Lot Landscaping.***

a. Length and width of required landscape islands.

b. Size and number of plants on landscaped islands.

4. ***Foundation Base.***

a. Width of foundation base.

b. Size of entry plaza area.

C. **Review, Approval and Required Findings.** An ALP shall be reviewed and evaluated as follows:

1. An application for an ALP may be submitted:

a. In conjunction with any request, including rezoning, Development Plan Review or modification, Council Use Permit, Special Use Permit, variance, or building permit applications.

b. As a separate application for Administrative Use Permit in accordance with Section 11-70-3, following approval of any processes mentioned in C.1.a, above.

2. An ALP may be approved upon finding that:

a. There are unique characteristics of the property, site design, or use that warrant special consideration to modify or deviate from the requirements of this Section and that these characteristics are not self-created.

b. The ALP meets or exceeds the minimum requirements of this section, while recognizing the unusual site design or use restraints on the property.

c. Approval of an ALP will provide for both increased consistency and compatibility with adjacent properties.

d. The ALP conforms to the allowable modifications listed in subsection B, above, and no exceptions to the limitations on the standards that may be modified are requested.

(Ord. No. 5996, § 4, 3-9-26)

CHAPTER 34 MANUFACTURED HOME/RECREATIONAL VEHICLE REGULATIONS

11-34-1: PURPOSE AND INTENT

A. **Purpose.** This Chapter is to provide for Manufactured Home and Recreational Vehicle Parks and Subdivisions which are suitably developed for the placement and occupancy of Manufactured Homes or Recreational Vehicles for residential purposes on rented, leased, or owned spaces with the necessary Accessory Uses and amenities.

B. **Intent.** These regulations are intended to enable the development of unique, well-planned projects incorporating a variety of manufactured and vehicle-based housing for permanent or seasonal occupancy. It is also the intent of this Chapter to provide adequate regulations to preserve the residential character of the development and to prohibit inappropriate and incompatible land uses.

11-34-2: PERMITTED USES

A. **Permitted Uses in Recreational Vehicle Parks and Subdivisions:**

1. ***Recreational Vehicle Parks.***

   a. One (1) Recreational Vehicle or one (1) Recreational Vehicle Park Model is permitted on each approved space.

   b. Manufactured Homes and Dwelling Units of conventional construction are prohibited, except as permitted for Recreational Vehicle accessory structures per Section 11-34-2(12).

2. ***Recreational Vehicle Subdivisions.***

   a. One (1) Recreational Vehicle or one (1) Recreational Vehicle Park Model is permitted on each approved lot; or

   b. One (1) Dwelling Unit of conventional construction is permitted on each approved lot, subject to the following:

      i. Compliance with Title 4, Building Regulations;

      ii. Compliance with Title 9, Chapter 6, Subdivision Regulations; and

      iii. Compliance with the required yard setbacks outlined in Section 11-34-3, unless modified with a Planned Area Development Overlay.

   c. Accessory Dwelling Units shall be permitted in accordance with Section 11-31-3: Accessory Dwelling Unit.

   d. Manufactured Homes are prohibited, except as permitted per Section 11-34-2(A)(12).

3. Recreational Vehicle Accessory Structures, as defined in Chapter 87, Definitions are permitted if the accessory structure:

   a. Is no more than one (1) story;

b. Is no greater in size than 100% of the floor area of the Recreational Vehicle or Recreational Vehicle Park Model;

c. Is removed within 60 days of removal of the Recreational Vehicle or Recreational Vehicle Park Model;

d. Conforms to Title 4, Building Regulations; and

e. Conforms to all other applicable development standards, including required yard setbacks and parking requirements.

4. Storage Buildings. Storage Buildings, attached or detached, subject to:

a. A maximum area of 120 square feet;

b. A maximum height that shall not exceed the height of the Recreational Vehicle or Recreational Vehicle Park Model; and

c. Is located within the buildable area unless placed in the rear quarter of the space or lot and separated from the Recreational Vehicle or Recreational Vehicle Park Model by at least six (6) feet.

5. Manager's office and residence, which may be of conventional construction.

6. Recreation and social centers, which may be used for dancing, crafts, hobbies, games, childcare, meetings, banquets, theatrical performances, movie viewing, and similar entertainment uses which are intended and used primarily as a resident amenity. Such facility may be of conventional construction.

7. Outdoor recreation facilities such as parks, swimming pools, ramadas, playground equipment, shuffleboard and tennis courts, putting greens, and similar recreational uses intended for use by the residents of the park or Subdivision.

8. Common-use laundry facilities, maintenance buildings, and security guard houses, which may be of conventional construction.

9. Designated areas for boat and Recreational Vehicle or Recreational Vehicle Park Model storage which are used solely by the residents of the park or Subdivision.

10. Recreation center parking lots and guest parking areas.

11. Accessory Retail Activities, as defined in Chapter 87, Definitions provided:

a. All proprietors and vendors shall possess valid business licenses and permits as required by the Mesa City Code; and

b. All signs, flyers, and advertising that describe or relate to accessory retail activities shall not be visible from beyond the boundaries of the Recreational Vehicle Park or Subdivision; and

c. Such activities shall not exceed more than one (1) every seven (7) days; and

d. Each separate activity shall not exceed more than four (4) consecutive hours.

12. Manufactured Homes allowed with Special Use Permit.

a. Manufactured Homes may be used only in the RM-2-PAD, RM-4, and RM-4-PAD Zoning Districts subject to the approval of a Special Use Permit, in accordance with the provisions contained in Chapter 70, provided the area of the RV Park or RV Subdivision is 10 acres or greater.

b. The minimum area may include an abutting Manufactured Home Park or Subdivision which shares common development improvements, such as reciprocal access, circulation lanes, and recreation areas.

c. The Special Use Permit shall only be approved upon a finding that the Recreational Vehicle Park or Subdivision is in substantial compliance with all of the following:

i. The minimum area and minimum width of lots or spaces for Recreational Vehicle Park or Subdivision, as applicable; and

ii. The minimum setbacks, and parking for Recreational Vehicle Parks or Subdivisions, as applicable; and

iii. A minimum ratio of 100 square feet of open space or recreation area for each lot or space. Designated open space or recreation area in excess of the minimum required for an abutting Manufactured Home Park or Subdivision used to meet the minimum area requirement above may be included to satisfy the open or recreation space requirement. In the event that insufficient open space or recreation area exists upon initial approval, a phasing plan may be submitted and approved that will provide, over the course of time, the minimum open space or recreation area needed to comply with the specified ratio. Such a phasing plan shall show installation of all required additional open space or recreation area before installation of a Manufactured Home within the Recreational Vehicle Park or Subdivision that exceeds a threshold level of 66% of the lots or spaces within the Recreational Vehicle Park or Subdivision that contains Manufactured Homes; and

iv. Perimeter Landscaping and perimeter Screening walls.

d. The development requirements pertaining to the park or Subdivision contained in this Subsection may be modified through approval of the Special Use Permit, provided the modifications will substantially comply with the intent of these provisions, as evidenced by lot or space size, lot or space area, or open space and recreation areas in excess of the minimum required. Such modification may not exceed a deviation of more than 10% below the required minimum. In no instance, shall the minimum separation between units be less than six (6) feet.

e. A Manufactured Home Accessory Structure, as defined in Chapter 87, is permitted when a Special Use Permit for a Manufactured Home is approved provided that it is developed in accordance with the development standards for a Manufactured Home Accessory Structure.

B. **Permitted Uses in Manufactured Home Parks:**

1. One (1) Manufactured Home is permitted on each approved space.

2. Dwelling units of conventional construction are prohibited.

3. Manufactured Home Accessory Structures as defined in Chapter 87, Definitions, are permitted if the accessory structure:

   a. Is no more than one (1) Story;

   b. Is directly accessible through an internal opening to the Manufactured Home;

   c. Is no greater in size than 100% of the floor area of the Manufactured Home;

   d. Is removed within 60 days of removal of the Manufactured Home; and

   e. Conforms to Title 4, Building Regulations; and

   f. Conforms to all other applicable development standards, including setbacks and parking requirements.

4. Storage Buildings. Storage Buildings, attached or detached, are subject to:

   a. A maximum area of 150 square feet;

   b. A maximum height of 10 feet;

   c. Location within the buildable area unless placed in the rear quarter of the space and separated from the Manufactured Home by at least six (6) feet.

5. Manager's office and residence, which may be of conventional construction.

6. Recreation and social centers, which may be used for dancing, crafts, hobbies, games, childcare, meetings, banquets, theatrical performances, movie viewing, and similar entertainment uses which are intended and used primarily as a resident amenity. Such facility may be of conventional construction.

7. Outdoor recreation facilities such as parks, swimming pools, ramadas, playground equipment, shuffleboard and tennis courts, putting greens, and similar recreational uses intended for use by the residents of the park.

8. Common-use laundry facilities, maintenance buildings, and security guard houses, which may be of conventional construction.

9. Designated areas for boat and Recreational Vehicle storage which are used solely by the residents of the park.

10. Recreation center parking lots and guest parking areas.

11. Accessory Retail Activities, provided:

   a. All proprietors and vendors shall possess valid business licenses and permits as required by the Mesa City Code; and

   b. All signs, flyers, and advertising that describe or relate to accessory retail activities shall not be visible from beyond the boundaries of the Manufactured Home Park; and

   c. Such activities shall not exceed more than one every seven (7) days; and

   d. Each separate activity shall not exceed more than four (4) consecutive hours.

C. **Permitted Uses in Manufactured Home Subdivisions:**

1. One (1) Manufactured Home is permitted on each approved lot; or
2. One (1) Dwelling Unit of conventional construction is permitted on each approved lot, subject to the following:
    a. Compliance with Title 4, Building Regulations;
    b. Compliance with Title 9, Chapter 6, Subdivision Regulations; and
    c. Compliance with the required yard setbacks outlined in Section 11-34-3, unless modified with a Planned Area Development Overlay.
3. Accessory Dwelling Units shall be permitted in accordance with Section 11-31-3: Accessory Dwelling Unit.
4. No Recreational Vehicle or Recreational Vehicle Park Model shall be permitted on a Manufactured Home lot for living purposes.
5. Manufactured Home Accessory Structures as defined in Chapter 87, Definitions, are permitted if the Accessory Structure:
    a. Is no more than one (1) story;
    b. Is no greater in size than 100% of the floor area of the Manufactured Home;
    c. Is removed within 60 days of removal of the Manufactured Home;
    d. Conforms to Title 4, Building Regulations; and
    e. Conforms to all other applicable development standards, including setbacks and parking requirements.
6. Detached Accessory Buildings in accordance with Section 11-30-17: Detached Accessory Buildings.
7. Recreation and social centers, which may be used for dancing, crafts, hobbies, games, childcare, meetings, banquets, theatrical performances, movie viewing, and similar entertainment uses which are intended and used primarily as a resident amenity. Such facility may be of conventional construction.
8. Outdoor recreation facilities such as parks, swimming pools, ramadas, playground equipment, shuffleboard and tennis courts, putting greens, and similar recreational uses intended for use by the residents of the Subdivision.
9. Common-use laundry facilities, maintenance buildings, and security guard houses, which may be of conventional construction.
10. Designated areas for boat and Recreational Vehicle storage which are used solely by the residents of the Subdivision.
11. Recreation center parking lots and guest parking areas.

(Res. No. 12269, § 16, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5943, § 1, 6-2-25; Ord. No. 5996, § 4, 3-9-26)

11-34-3: ZONING, AREA, DENSITY, YARD, RECREATIONAL, AND PARKING REGULATIONS

Table 11-34-3, below, specifies the required zoning, minimum area, maximum densities, minimum yard setback, minimum recreational area, and minimum parking regulation for all parks and Subdivisions.

TABLE 11-34-3: DEVELOPMENT STANDARDS FOR RV AND MANUFACTURED HOME PARKS AND SUBDIVISIONS

Standard	Type of Development				
	Recreational Vehicle Park	Recreational Vehicle Subdivision	Manufactured Home Park	Manufactured Home Subdivision	
Required Zoning	RM-4	RM-4-PAD RM-4-PAD	RM-4, RSL	RS-6 - PAD	
Alternative Zoning for Infill Sites	—	—	—	ID-1, ID-2 (8)	
Minimum Area	10 Acres	10 Acres	10 Acres	10 Acres (8)	
Maximum Density (3)	22 spaces per net acre	15 spaces per net acre	10 spaces per net acre	7.26 spaces per net acre	
Maximum Lot Coverage	—	80%	—	80%	
Maximum Height-Conventional Construction	N/A	1 Story	N/A	1 Story	
Minimum Space/Lot Size					
Area Sq. Ft.	1,200	1,750 (2,000 avg.)	3,000	6,000	
Width (ft)	34 (7)	35	40	60	
Depth (ft)	40	50	60	94	
Required Yard Setbacks (5)					
Front (ft)	5	7	5	Front (Enclosed Livable Areas. Porches/Porte Cocheres)	10
				Garages/Carports - front and Side Yards	20 from the entry of carport/Garage.
Side Min./Total (ft.)	3/6	5/10	5/10	5/15 (2)	
Rear (ft)	3	5	10	15	
From Exterior Boundary of Development (ft) (6)	10	10	10	10	
Minimum Recreation Area (sq. ft.) (4)	75 per RV Space	150 per RV Lot	100 per M. H. Space	150 per M.H. Lot	
Minimum Paved Parking (1)	1 per RV Space	1 per RV Lot	2 per M. H. Space	2 per M. H. Lot	
Minimum Visitor Parking	1 per 10 RV Spaces	1 per 10 RV Lots	1 per 5 M. H. Spaces	1 per 5 M. H. Lots	

Table 11-34-3 Footnotes

1. Minimum space size 9' x 18': may be tandem but may not be located in the required Front Yard Setback.
2. Minimum of 10' on one side for vehicle access and/or l 0' on Street side of Corner Lot or space.
3. Net acre means after deduction of existing and/or proposed Rights-Of-Way.
4. Public or private Streets, Vehicle Storage areas and exterior boundary Landscaping shall not be located in this area.
5. Required yard setbacks are measured from any portion of the unit or accessory structures to the space lease line or Lot Line.
6. Setbacks are measured from required screen walls.
7. Minimum width of 28' for spaces not designated for park trailers or Manufactured Homes.
8. Manufactured Home Subdivisions may be approved for use as part of an infill site when approved in conjunction with an ID-1 or ID-2 Zoning District, as per Chapter 12 of this Title. When the ID-1 or ID-2 zoning is used to authorize a Manufactured Home Subdivision, the project site may be less than 10 acres.

(Ord. No. 5943, §§ 2, 3, 6-2-25; Ord. No. 5996, § 4, 3-9-26)

11-34-4: DEVELOPMENT REQUIREMENTS

A. **Requirements for Recreational Vehicle Parks and Subdivisions.**

1. A minimum of 5% of the required recreational area shall be enclosed within a recreation hall or building. Public or private Streets, Vehicle Storage areas, and exterior boundary Landscaping areas shall not be included when calculating required recreational area.

2. Landscaping shall be provided in accordance with the default landscape requirements of Chapter 33, Landscaping, for a project located in a RM, Multiple Residence District.

3. A 6 foot high masonry screen wall shall be required along all park and Subdivision boundaries. Such wall shall be placed on the interior side of the required landscape strip.

4. Access to lots or spaces shall be from the interior of the park or Subdivision.

5. Private Streets shall be paved to a minimum width of 28 feet including required Sidewalks when flush with the surface of the paving.

6. Concrete Sidewalks at least 2 feet in width shall be provided on each side of interior private Streets.

7. Required parking spaces shall be paved with either 2 inches of asphalt or 4 inches of concrete.

B. **Requirements for Manufactured Home Parks and Subdivisions.**

1. All room additions shall be structurally independent of the Manufactured Home itself but may be attached to the Manufactured Home by weather stripping.

2. Landscaping on the perimeter of the site shall be provided in accordance with the default landscape requirements of Chapter 6, Commercial and Mixed Use Districts, and Chapter 33, Landscaping, for a project located in a RM, Multiple Residence District, unless a different character designator is approved by City Council for the site.

3. A 6 foot high masonry screen wall shall be required along all park and Subdivision boundaries. Such wall shall be placed on the interior side of the required landscape strip.

4. Access to lots or spaces shall be from the interior of the park or Subdivision.

5. Private Streets shall be paved to a minimum width of 32 feet including required Sidewalks when flush with the surface of the paving.

6. Concrete Sidewalks at least 2 feet in width shall be provided on each side of interior private Streets.

7. Required parking spaces shall be paved with either 2 inches of asphalt or 4 inches of concrete.

C. **Additional Requirements for Manufactured Home Parks.** A minimum of 10% of the required recreational area shall be enclosed within a recreation hall or building. Public or private Streets, Vehicle Storage areas, and exterior boundary Landscaping areas shall not be included when calculating required recreational area.

(Ord. No. 5996, § 4, 3-9-26)

11-34-5: GENERAL PROVISIONS

A. **Locations Outside of Parks and Subdivisions.**

1. Permitted uses for Manufactured Homes or Recreational Vehicles outside of a park or subdivision are limited to the following:

a. As a sales office for Manufactured Home or Recreational Vehicle sales.

b. With approval of a Special Use Permit pursuant to Chapter 70 - Conditional Use Permits, as quarters for a night watchman or caretaker, provided no person other than the night watchman or caretaker shall occupy the unit.

c. As a construction field office for use by contractors while a permanent building is under construction.

d. As a temporary place of business for the owner or lessee during the course of construction of a new building on the site, or during remodeling of an existing building or tenant space.

e. As a temporary sales office for the sale of homes in a conventional subdivision.

f. As staff residences for Comprehensive Youth Residences as defined by Chapter 87, Definitions, limited to Manufactured Homes only, and subject to the approval of a Special Use Permit in accordance with Section 11-31-39, Comprehensive Youth Residence, and Chapter 70 Conditional Use Permits.

2. Prior to the use of a Manufactured Home or Recreational Vehicle for Items 1.c, 1.d, and 1.e (above) enumerated in this Section, an Administrative Use Permit shall be obtained, and the Administrative Use Permit shall be nontransferable from one owner or lessee to another.

a. Except Item 1.d (above), the Administrative Use Permit shall expire on December 31 of each year, unless earlier revoked.

b. An Administrative Use Permit issued for Item 1.d (above) shall be valid for the duration that a building permit associated with the construction activity remains active. In the event that no building permit is required, then the Administrative Use Permit shall remain valid for a maximum of six (6) months, and may be renewed once if the applicant can demonstrate to the Zoning Administrator that the remodeling activity remains on-going and active.

c. In no case shall an Administrative Use Permit issued for a purpose listed in this Section be transferred from one (1) owner or lessee to another.

B. **Temporary Parking.** Manufactured homes and Recreational Vehicles shall not be parked, stored, or occupied on any property which is not part of an approved Manufactured Home or Recreational Vehicle Park, Subdivision, sales, or storage lot or approved under this Chapter. Temporary Parking of a Manufactured Home or Recreational Vehicle outside of an approved Manufactured Home Park, Manufactured Home Subdivision, Recreational Vehicle Park or Recreational Vehicle Subdivision is limited to the following:

1. Emergency parking of a Manufactured Home, Recreational Vehicle, or Recreational Vehicle Park Model for a period of no longer than one (1) hour is permitted on any public thoroughfare subject to the provisions of the parking and traffic regulations of the City of Mesa.

2. The temporary parking of a Recreational Vehicle on a public Street in a residential area for the purposes of loading, unloading, or cleaning for a period of time not to exceed 48 hours shall also be permitted subject to the parking and traffic regulations of the City of Mesa and provided the vehicle is not parked so as to create a traffic hazard or obstruct traffic visibility.

3. On-site parking or storage of a Recreational Vehicle in accordance with the following, provided such Recreational Vehicle is not used for living quarters or commercial purposes:

   a. Within an enclosed Accessory Building or Garage in all zoning districts.

   b. Where Outdoor Storage is otherwise allowed in the Commercial and Industrial Districts.

   c. On residential lots containing less than 5 Dwelling Units:

      i. For Lots of a minimum 15,000 sq. ft. or greater, anywhere within the buildable area behind the front line of the Dwelling Unit; or anywhere within the Rear Yard; or in the Side Yard behind the front line of the Dwelling Unit provided such Recreational Vehicle does not exceed 40-ft. in length exclusive of tongue.

      ii. For Lots less than a minimum 15,000 sq. ft. or greater, anywhere within the buildable area behind the front line of the Dwelling Unit; or anywhere within the Rear Yard; or in the Side Yard behind the front line of the Dwelling Unit provided such Recreational Vehicle does not exceed 30 ft. in length exclusive of tongue.

      iii. A Recreational Vehicle parked in the Side Yard which exceeds 6 feet in height as measured from grade and is visible from a public Street shall be screened from such public Street by a 6 ft. high opaque fence.

   d. On residential lots containing 5 or more Dwelling Units: only on an approved parking space; or within an approved, designated storage area.

4. The temporary parking of a Recreational Vehicle in the Front Yard on a residential lot for the purposes of loading, unloading, or cleaning shall be permitted for a period of time not to exceed 72 hours provided the Recreational Vehicle is not used for living quarters or business purposes. While temporarily located as provided herein, the Recreational Vehicle shall not be parked so as to obstruct traffic visibility.

C. **Conversion.** The conversion of an existing Manufactured Home or Recreational Vehicle Park to another residential use shall be subject to approval set forth in the amendment requirements established in Chapter 67 Common Procedures. When an existing Manufactured Home or Recreational Vehicle Park is converted to another residential use, the area so converted shall be zoned to limit the number of Dwelling Units per area that can be constructed thereon to a density compatible with existing residential development in the surrounding area.

D. **Permits.**

1. It shall be unlawful for any person to install a Manufactured Home, park trailer, Recreational Vehicle awning, Recreational Vehicle patio enclosure, Manufactured Home room addition, or any electrical, plumbing, or mechanical component without first obtaining a permit or permits from the Building Official or his designee as specified in Mesa Administrative Code, Title 4, Chapter 1 of the Mesa City Code.

2. No person shall install any park trailer or Recreational Vehicle awning or construct any Recreational Vehicle patio enclosure without approval of the property owner, the owner's agent, or other authorized representative.

(Ord. No. 5943, § 4, 6-2-25; Ord. No. 5996, § 3, 3-9-26)

CHAPTER 35 ANTENNAS AND WIRELESS COMMUNICATIONS FACILITIES

11-35-1: PURPOSE

The purpose of this Chapter is to provide a comprehensive set of requirements and standards for the development, siting, installation, and operation of wireless communications Antennas and related facilities. These regulations are intended to protect and promote public safety, community welfare, and the aesthetic quality of the city consistent with the goals, objectives, and policies of the General Plan while providing for managed development of wireless telecommunications infrastructure, consistent with the Federal Telecommunications Act of 1996 and related requirements in State law. The specific objectives of this Chapter are to:

A. Establish regulations and guidelines for the governance of Wireless Telecommunications Facilities that recognize the unique land use distribution, topography, and aesthetics of the community while preserving the rights of wireless telecommunications providers;

B. Protect residential areas and land uses from visual blight, safety impacts associated with attractive nuisance, and degradation of residential character;

C. Promote the location of Towers in non-residential areas and minimize the total number of Towers throughout the community;

D. Establish the joint use of new and existing Tower sites as a primary option instead of construction of single-use Towers;

E. Locate Towers and Antennas in areas where the overall impact on the community is minimal, now and in the future; to configure them in a way that minimizes the adverse visual impact of the Towers and Antennas through careful aesthetic design, siting, landscape Screening, and innovative camouflaging techniques;

F. Enhance the ability of providers of wireless telecommunications services to construct necessary infrastructure to provide such services to the community quickly, effectively and efficiently;

G. Avoid potential damage to adjacent properties from Tower failure through careful siting of Tower structures;

H. Create and preserve telecommunication facilities that will serve as an important and effective part of the City's emergency response network;

I. Promote fair and effective wireless communication services and ensure that a broad range of competitive wireless services with high quality telecommunications infrastructure are available to serve the community; and,

J. Establish preferred locations and design preferences for the siting of telecommunications infrastructure.

11-35-2: APPLICABILITY; EXCEPTIONS

The regulations in this Chapter apply to all antennas and wireless communications facilities on property, other than the public right-of-way, with the following exceptions:

A. **Amateur Radio Antennas.** Amateur radio antennas that do not exceed 75 feet in height when fully extended, are owned and operated by a federally-licensed amateur radio station operator who resides on the same property, and comply with the following requirements:

1. Not located in the area between the front of a building and the front lot line or side street lot line or any required parking or loading area;

2. Not exceeding a height of 10 feet within in a required side setback or required rear setback, or in any parking or loading area; and,

3. Not more than one (1) antenna structure on a lot may exceed a height of 30 feet.

B. **Broadcast Antennas.** Direct broadcast, one-way multipoint distribution services, and television broadcast antennas that are one (1) meter (39 inches) or less in diameter or diagonal measurement and are not located in the area between the front of a building and the front lot line, in a required side setback or required rear setback, or in any parking or loading area; and do not extend above the maximum permitted height of the zoning district.

C. **Receive-only Antennas for Residential Uses in Any District and Non-Residential Uses in Residential Districts.** A single ground or building-mounted receive-only radio or television antenna that does not exceed the maximum height permitted in the district where it is located and is for the sole use of a resident who resides on the same property, including any mast, or a receive-only radio or television satellite dish antenna, subject to the following restrictions:

1. ***Satellite Dish One (1) Meter or Less.*** A satellite dish one (1) meter or less in diameter is allowed if it is not located in a required front setback or any other setback abutting a street and is not closer to the front lot line than the front line of the primary dwelling or other principal building subject to the following requirements, unless the Zoning Administrator approves an exception as provided for in Chapter 66:

a. Maximum height of 10 feet within a required side or rear setback;

b. Maximum height of 75 feet within the buildable area of the lot; and,

c. Not more than one (1) such structure per lot shall exceed a height of 30 feet.

2. ***Satellite Dish Greater than One (1) Meter.*** A satellite dish greater than one (1) meter in diameter is allowed if it is not located within a required front setback or side setback abutting a street, and is screened from view from any public right-of-way and adjoining property.

D. **Receive-only Antennas Non-Residential Districts.** A single ground or building-mounted receive-only radio or television antenna that does not exceed the maximum height permitted in the district where it is located

and is for the sole use of a legally established business or other non-residential occupant of the same property, including any mast, or a receive-only radio or television satellite dish antenna, subject to the following restrictions:

1. ***Satellite Dish Two (2) Meters or Less.*** A satellite dish that does not exceed two (2) meters in diameter is permitted anywhere on a lot in a Mixed Use, Commercial or Industrial District so long as the location does not reduce required parking, diminish pedestrian or vehicular access, or require removal of landscaping maintained as a condition of project approval. If more than one (1) satellite dish of two (2) meters or less is used for the same tenant, the dishes shall be screened from public view by a parapet or screening wall.

2. ***Satellite Dish Greater than Two (2) Meters.*** A satellite dish greater than two (2) meters in diameter is permitted provided that it is not located within a required front setback or side setback abutting a street and is screened from view from any public right-of-way and adjoining property.

E. **Pre-existing Towers.** Any Tower or antenna for which a permit has been properly issued that was lawfully erected prior to the effective date of this Ordinance shall not be required to meet the requirements of this Ordinance unless there has been a cessation of operations for 6 months. These Towers and Antennas shall be referred to in this Ordinance as "pre-existing" Towers or Antennas and are allowed to continue as they presently exist, but will be considered lawful nonconforming legal uses subject to the Chapter 36, Non-Conforming Uses, Structures, and Lots. Maintenance, reasonable repairs and alterations to existing Towers and Antennas are permitted if they do not enlarge or extend the Tower structure or equipment enclosures or change the number, type, dimensions, power rating, or frequency range of the antenna or Antennas. New facilities and all other alterations, modifications, and additions shall comply with the requirements of this Chapter.

F. **Exemptions.**

1. Any antenna or wireless communications facility that has been established pursuant to a permit issued by the Federal Communications Commission (FCC) when such permit or the FCC rules and regulations specifically provide that the antenna or facility is exempt from local regulation.

2. Any wireless communications facility or Antenna Structure that is designed and used exclusively for public safety purposes.

(Ord. No. 5996, § 4, 3-9-26)

11-35-3: GENERAL REQUIREMENTS

A. **Federal or State Requirements.** All Towers and Antennas must meet or exceed current standards and regulations of the FCC, the Federal Aviation Administration (FAA), and any other agency of the State or Federal government with the authority to regulate Towers and Antennas. If such standards and regulations are changed, then the owners of the Towers and Antennas governed by this Chapter shall bring such Towers and Antennas into compliance with such revised standards and regulations within 6 months of the effective date of such standards and regulations, unless a different compliance schedule is mandated by the controlling State or Federal agency. Failure to bring Towers and Antennas into compliance with such revised standards and regulations shall constitute grounds for the removal of the Tower or antenna at the owner's expense.

B. **Building Codes and Safety Standards.** To ensure the structural integrity of Towers, the owner of a Tower shall ensure that it is maintained in compliance with standards contained in applicable State or local building codes and the applicable standards for Towers that are published by the Electronic Industries Association, as amended from time to time.

11-35-4: APPLICATION REQUIREMENTS

In addition to meeting the standard application submittal requirements for zoning clearances specified in Chapter 68, Zoning Clearance, or for Special Use Permit specified in Chapter 67, Common Procedures, and Chapter 70, Conditional Use Permits, applications for wireless communications facilities shall include the following:

A. **Pre-application Meeting Required.** A pre-application conference with the City Zoning Administrator, or their designees, is required prior to submittal of an application for wireless telecommunications facility, or proposed modifications to existing facilities. A minimum of one week before the meeting, the applicant shall provide a description of the location of the facility, a conceptual summary of the project, and a draft sketch of the site plan and elevation of the project. At the pre-application meeting, the Zoning Administrator or designee shall provide a list of submittal requirements for that project, based on the requirements of this Ordinance, the land use activities occurring at this site and in the immediate proximity of the site, suggestions for increasing the compatibility of the facility with the existing or planned activities taking place on surrounding properties, and increasing the aesthetic quality of the facility

B. **Map and Inventory of Existing Sites.** Each applicant for an antenna or Antenna Structure shall provide to the Planning Division an inventory of the service provider's existing facilities that are either within the jurisdiction of the City or within one-quarter mile of the City's border, including a map showing the location of the provider's existing facilities that serve customers in Mesa and adjacent areas and the specific site that is the subject of the application. The inventory shall provide specific information about the location, height, power rating, frequency range, and design of each facility or Tower structure. The Planning Division may share such information with other applicants applying for administrative approvals or use permits under this Chapter or other organizations seeking to locate Antennas within the jurisdiction of the City; provided, however, that the Planning Division is not, by sharing such information, in any way representing or warranting that such sites are available or suitable.

C. **Description of Proposed Facility.** Each applicant shall provide:

1. A site plan, plans, and elevations drawn to scale that identify all Antennas by type (e.g. microcell; ground- building- or roof-mounted, etc.) and all related equipment. Elevations shall include all structures or locations on which facilities are proposed to be located.

2. A description of the proposed approach for Screening or camouflaging all facilities from public view including plans for installation and maintenance of Landscaping, sample exterior materials and colors, and an explanation of the measures by which the proposed facility will be camouflaged or rendered not readily visible. If any part of the proposed facility would be readily visible, the application shall explain why it not possible to further reduce its visual impact. Any representation that the use of state of the art design techniques and technology is not feasible shall be supported by technical and financial analysis.

3. If any part of the facility will be readily visible from the public right-of-way or from surrounding properties, a visual impact analysis of the proposed wireless communications facility, including scaled elevation diagrams within the context of buildings on and adjacent to the site of the facility, before and after photo simulations, and a map depicting from where the photos were taken. The Zoning Administrator may require the submission of photo overlays, scaled models, renderings, or mockups to document the effectiveness of techniques proposed to minimize visibility of the facility.

4. When an applicant proposes anything other than the most favored siting and design approach based on the preferences and priorities established in Section 11-35-5(A) and (B), the application must include technical information demonstrating that a higher ranked option is not technically feasible in light of the provider's service objectives.

5. If a new ground-mounted facility or a tower is proposed, the application must include an explanation as to why co-location or other facility types are not feasible to meet the provider's service objectives.

D. **Compliance Verification.** Each applicant shall provide:

1. Copies of, or a sworn statement by an authorized representative of the applicant, that applicant holds all applicable licenses or other approvals required by the Federal Communications Commission (FCC) and any other agency of the Federal or State government with authority to regulate telecommunications facilities that are required in order for the applicant to construct the proposed facility.

2. Documentation of, or a sworn statement by an authorized representative of the applicant, that applicant is in compliance with all conditions imposed in conjunction with such licenses or approvals, a description of the number, type, power rating, frequency range, and dimensions of antennas, equipment cabinets, and related wireless communications facilities proposed to be installed, and engineering calculations demonstrating that the proposed facility will comply with all applicable FCC requirements and standards.

E. **Peer Review.** The application shall include sufficient information for an approved radio frequency specialist or electrical engineer specializing in Electromagnetic Field (EMF) or Radio Frequency Radiation (RFR) studies (hereinafter, "an approved specialist") retained by the City to provide peer review of the information submitted in response to subdivisions C and D of this Section.

1. The application shall also include an agreement to pay the reasonable actual cost and a reasonable administrative fee for hiring an approved specialist to provide peer review.

2. Any proprietary information disclosed to the City or its specialist in confidence is not intended to be included in a public record and shall remain confidential and not be disclosed to any third party without the express consent of the applicant unless such disclosure is required by law. The City and/or its specialist shall return all proprietary information to the applicant and not retain any copies of such information once its decision is final. Notwithstanding the above, information provided to the City may be subject to public disclosure under the Arizona public records law.

F. **Financial Assurances.** Prior to obtaining a building permit to erect or install the proposed facility, the applicant shall either secure a bond or provide financial assurances, in a form acceptable to the City Manager, for the removal of the facility in the event that its use is abandoned or the approval is otherwise terminated.

G. **Other Information.** The Zoning Administrator may request additional information when it is deemed necessary to process the application in compliance with the requirements of this Chapter. This may include, but is not limited to,

1. Information concerning noise that might be generated by equipment associated with a wireless telecommunication facility, such as air conditioning equipment,

2. Photographs of the existing circumstances and context found at the proposed facility to assess what if any conditions may be needed to assure compatibility with surrounding land uses.

3. Additional photographic simulations from site angles specified by the Zoning Administrator.

4. General information about potential alternative sites considered in addition to the proposed location.

H. **Site Plan Review Required.** Any application proposing the placement of communications equipment on or within architectural forms added to existing structures and which may involve a height exception that requires review by the Planning & Zoning Board shall be made in accordance with the procedures in Chapter 69, Site Plan Review, of this Ordinance.

11-35-5: LOCATION, DESIGN, AND OPERATION REQUIREMENTS

The following requirements apply to all wireless communications facilities that are not exempt from regulation under this Chapter unless the decision-making authority approves a Special Use Permit pursuant to Chapter 70, Conditional Use Permits.

A. **Location Preferences.** The preferred locations for wireless communication facilities are in the following order:

1. On existing non-residential structures such as buildings, communication towers, or utility facilities located more than 300 feet from a residential zone, without modification to the structures.

2. On existing signal, power, light or similar kinds of permanent poles located more than 300 feet from a residential zone.

3. Co-located with existing wireless telecommunication facilities that conform to the requirements of this Ordinance.

4. Limited, General and Heavy Industrial Districts sites more than 300-feet from a residential zone.

5. Camouflaged, stealth, or building-mounted facilities in Limited and General Commercial Districts or in Planned Employment Park Districts.

6. Camouflaged, stealth or building-mounted facilities on non-residential structures, including mono-poles, in any Agricultural or Residential District.

B. **Design Preferences.** The preferred design approaches for new wireless communication facilities are in the following order:

1. Building or structure mounted antennas designed and sited to be completely concealed from view or not readily visible because of integration into design of non-residential buildings or structures erected and approved for use other than as wireless telecommunications support. Examples of antennas completely integrated into the structure include existing parapet replacements, bell towers, steeples, clock towers and cupolas.

2. Building or structure mounted antennas set back from roof edge, concealed and not visible from the public right-of-way or from surrounding residential properties or minor faux-structural alterations. Examples include faux penthouses and parapet additions.

3. Building or structure mounted antennas below roof-line (façade mount, pole mount) visible from public right-of-way but artistically integrated into the existing structure and painted to match existing structure.

4. Freestanding camouflaged structures visible from public right-of-way and from surrounding residential properties. Examples include steeples, sculptures and clock towers.

5. Building or structure mounted antennas above the roof-line visible from public right-of-way or from surrounding residential properties behind frequency- transparent panels.

6. Freestanding stealth tree, such as monopalm.

7. Freestanding monopoles or other antenna towers.

C. **Location of Facilities.** Wireless telecommunication facilities shall be located where the existing topography, vegetation, buildings or other structures provide the greatest amount of screening and in compliance with the following requirements.

1. No new facility shall be sited on or above a ridgeline.

2. Within Residential and Mixed Use Districts, no new freestanding antenna structure, including towers, lattice towers, and monopoles, shall be located within 1,000 feet of another freestanding facility unless mounting on a building or co-location on an existing pole or tower is not feasible and techniques have been used to camouflage, screen, or otherwise minimize the visual impact of the facility to the extent feasible.

3. Within Commercial and Employment Districts, new freestanding antenna structures, including towers, lattice towers, and monopoles, may be located within 1,000 feet of another freestanding facility, provided a stealth or camouflaged design is used.

4. Ground-mounted wireless telecommunication facilities shall be located in close proximity to existing above-ground utilities, such as permanent electrical towers, light poles, trees of comparable heights, and in areas where they will not detract from the appearance of the City.

5. Facilities may only be located on a property zoned for a residential or agriculture use if the antennas, antenna structures, and all related equipment can be sited to comply with the setback and

separation requirements of this Chapter. Exceptions of up to 30% of the setback and up to 75% of the separation requirements may be considered as part of a Special Use Permit request when the application includes stealth or camouflaged facilities.

D. **Height of Facilities.** The height limitations for each zoning district applicable to buildings and structures shall apply to all towers and antennas that are not exempt from regulation except as provided in this Chapter. The height of building-mounted antennas shall include the height of that portion of the building on which the antenna is mounted. In determining the height of portable "crank-up" or similar towers whose height is adjustable, the height of the tower shall be the maximum height to which it is capable of being raised.

1. Roof-mounted or facade-mounted antennas proposed on an existing building, or on a tower, pole or other structure shall not extend or project more than 15 feet above the existing height of the building or structure.

2. Antenna support equipment for stand-alone facilities (not attached to a building) shall be screened by a minimum 6-foot high masonry wall unless placed within a fully enclosed building. When placed in a building, the building design shall be no taller than one (1) story or 15 feet in height with elevations designed and constructed in a manner compatible with building designs typically found in the area.

3. Antenna support equipment that is roof mounted shall meet the screening requirements specified in Section 11-30-9 of this Ordinance.

E. **Required Separation and Setbacks.** Antenna structures and antennas that are not exempt from regulation under this Chapter shall be setback from property lines and separated from other antenna structures in compliance with the following requirements.

1. Antenna structures other than alternative antenna structures must be set back from any property in residential use a distance equal to the twice the height of the structure. Alternative antenna structures shall be setback from residential uses a distance equal to the height of the structure plus one (1)-foot.

2. Antenna structures, including alternative antenna structures, must be set back from public right-of-way a distance equal to the height of the structure plus one foot.

3. In Non-Residential Districts, all free-standing antenna structures, except for alternative tower structures, must be at least 1,000 foot feet from another free-standing antenna structure, unless appropriate camouflage or stealth techniques have been used to minimize the visual impact of the facility to the extent feasible and mounting on a building or co-location on an existing facility is not feasible.

4. All wireless communications facilities and related equipment shall comply with the required building setbacks for the zoning district in which the facility is located. However, in no instance shall the facility (including antennae and equipment) be located closer than 5 feet to any property line. Exception: Antenna support equipment that is not placed within enclosed buildings provided the surrounding security wall complies with the maximum fence height requirements as found in Section 11-30-4, Fences and Freestanding Walls.

F. **Design Standards.** Antennas, antenna support structures, and related equipment shall be located, designed and screened to blend with the existing natural or built surroundings and existing supporting structures.

1. Facilities that are not camouflage or stealth shall close mount all panel antennas.

2. Stealth or camouflaged facilities shall not have antenna mounts that extend beyond the outside edge of the materials used to provide the stealth or camouflage design.

3. When freestanding, non-stealth tower elements are used, antennas and support structures, where utilized, shall be monopole type.

4. Monopole support structures shall not exceed 4 feet in diameter unless technical evidence is provided showing that a larger diameter is necessary to attain the proposed tower height and that the proposed tower height is necessary.

5. Wireless telecommunications facility support structures and antennas shall be a non-glossy color and/or exterior finish so as to minimize visual impacts from surrounding properties. Example: galvanized steel for freestanding, non-stealth facilities; fiberglass artificial bark cladding for stealth tree-like facilities.

6. All facilities shall be designed and located to minimize their visibility to the greatest extent feasible. All wireless telecommunications facilities proposed for locations where they would be readily visible from the public right-of-way or from the habitable living areas of residential units within 100 feet shall incorporate appropriate techniques to disguise the facility and/or blend into the surrounding environment, to the extent feasible. Facilities shall be compatible in scale and integrated architecturally with the design of surrounding buildings or the natural setting.

7. No telecommunications antenna or ancillary support equipment shall be located within a front or corner side setback except for facilities that are completely placed within sub-grade vaults no higher than the maximum height of a fence within a street or front setback, pursuant to Section 11-30-4, Fences and Freestanding Walls.

8. Support structures and site areas for wireless telecommunications antenna shall be designed and of adequate size to allow at least one additional wireless service provider to co-locate on the structure. Stealth facilities are exempted from this requirement.

9. Towers shall not be artificially lighted unless required by the FAA or other applicable government authority. All objects affecting navigable airspace must comply with Federal Aviation Regulation Section 77 and must be in conformance with the current restrictions for land within one mile of a runway.

10. All proposed fencing shall be constructed of masonry, and provide decorative texture, color and design in a manner compatible with the adjacent buildings and properties within the surrounding area and shall be designed to limit graffiti.

11. Within the Desert Uplands area, as defined on page 33 in Section 9-6-5(A) of the Mesa City Code, Desert Uplands design standards shall apply, including compatibility of stealth and camouflage facilities with the list of approved landscape plant materials.

G. **Required Signs.** A permanent, weather-proof identification sign, approximately 16 inches by 32 inches in size, must be placed on the gate of the fence surrounding the facility or, if there is no fence, on the facility

itself. The sign must identify the facility operator(s), provide the operator's address, and specify a 24-hour telephone number for reaching the operator or an agent authorized to provide 24/7 response to emergency situations.

H. **Required Landscaping.** Sites with antennas, antenna support structures, and related equipment shall be landscaped with a buffer of plant materials that effectively screens views of the base of support structures and equipment facilities from adjacent residential property or from any public right-of-way, path or trail.

1. The standard buffer shall consist of a continuous landscaped strip with a minimum radius of 4 feet around the perimeter of the installation.

2. Existing mature tree growth and natural land forms on the site shall be preserved to the maximum extent possible. In some cases, towers sited on large lots, natural vegetation around the property perimeter may serve as a sufficient buffer.

3. Street trees and other landscaping may be required for telecommunications facilities proposed on lots lacking street frontage landscaping.

4. As determined by the context of the site and design preference proposed, additional landscaping, such secondary plantings of trees similar in appearance to the stealth design of the telecommunications facility, may be conditioned as part of the approval to mitigate the visual impact of the facility.

I. **Operation and Maintenance Standards.** All wireless communications facilities shall at all times comply with the following operation and maintenance standards.

1. Wireless telecommunications facilities and related equipment, including lighting, fences, shields, cabinets, and poles, shall be maintained in good repair, free from trash, debris, litter, graffiti and other forms of vandalism, and any damage from any cause shall be repaired as soon as reasonably possible so as to minimize occurrences of dangerous conditions or visual blight. Graffiti shall be removed from any facility or equipment as soon as practicable, and in no instance more than 48 hours from the time of notification by the City.

2. The owner or operator of a facility shall be responsible for maintaining landscaping in accordance with the approved landscape plan and for replacing any damaged or dead trees, foliage, or other landscaping elements shown on the approved plan. Amendments or modifications to the landscape plan shall be submitted to the Zoning Administrator for approval.

3. Each facility shall be operated in a manner that will minimize noise impacts to surrounding residents and persons using nearby parks, trails, and similar recreation areas.

a. Except for emergency repairs, testing and maintenance activities that will be audible beyond the property line shall only occur between the hours of 7:00 a.m. and 7:00 p.m. on Monday through Friday, excluding holidays.

b. All air conditioning units and any other equipment that may emit noise that would be audible from beyond the property line shall be enclosed or equipped with noise attenuation devices to the extent necessary to ensure compliance with applicable noise limitations in Title 6, Chapter 12 of the Mesa City Code.

c. Backup generators shall only be operated during periods of power outages or for testing. Any testing of the backup generators should occur during daylight hours.

d. For the protection of emergency response personnel, each telecommunications facility shall have an on-site emergency "kill switch" to de-energize all RF-related circuitry and components at the site. For collocation facilities, a single "kill switch" shall be installed that will de-energize all carriers at the facility in the event of an emergency.

11-35-6: REVIEW AND APPROVAL PROCEDURES

A. The following wireless communication facilities are permitted by right with a Zoning Certificate issued under the provisions of Chapter 68, Zoning Clearance, if they comply with all applicable requirements of Section 11-35-5. All other facilities that are not exempt from regulation require approval of a Special Use Permit by the Zoning Administrator or Board of Adjustment, pursuant to Chapter 70, Conditional Use Permits and this Section:

1. The following facilities when located on a property in non-residential use in any Commercial or Industrial District:

a. Any microcell facility.

b. Any antenna that is mounted on any existing building or other structure when the overall height of the antenna and its supporting tower, pole or mast does not exceed the maximum height of zoning district in which it is located, or when attached to existing street light, or utility poles.

c. Any camouflaged facility designed and built to appear as an architectural element of an existing building, or as an architectural structure designed to be consistent with the approved design theme for the development site, provided:

i. All materials and design elements used in the camouflaged design are compatible with the approved materials, colors and design of the buildings and structures used for the development site;

ii. The overall height of the camouflaged facility is no higher than twice the maximum height permitted for the zoning district;

iii. The facility is a minimum distance of twice the proposed height of the facility from a Residential Zoning District.

2. The following facilities when located on a property in non-residential use in any Industrial District:

a. Any free standing antenna structure and its supporting tower, pole, or mast that complies with all applicable setback ordinances, provided:

i. The overall height of the antenna and its supporting structure does not exceed a height of 70-feet; and

ii. The location of the facility is a minimum of 300-feet from a residence.

b. Freestanding Stealth facilities provided the overall height of the facility (not including stealth related masking features for antennas and antenna mounts) and its supporting structure does not exceed and height of 70- feet.

3. The following facilities when located on a property in any zoning district:

   a. Any building mounted facility, including roof mounts and wall mounts, provided any additional height required for the facility is less than 15- feet above the height of the existing building.

   b. Any co-located facilities mounted on existing freestanding poles or towers, provided:

      i. Any additional height required for the facility is less than 15-feet above the initial approved height of the pole or tower;

      ii. The existing number of communication providers with facilities on the pole does not exceed 3. Co-location of a fourth provider shall require approval of a Special Use Permit.

4. Undergrounding Required. All wires and/or cables necessary for operation of an antenna shall be placed underground or attached flush with the surface of the building or the structure of the antenna.

B. All requests for Special Use Permit, height exceptions, or Zoning Clearance review shall follow the procedures set forth in Article 7, Administration, and the following requirements:

1. Any application that proposes construction of a new antenna structure or alternative tower structure or placement of a new antenna on an existing structure of any type shall require a pre-application meeting with Planning Division staff. This meeting is intended to provide significant preliminary information on the project, discuss development alternatives, and determine the appropriate review procedure.

2. Any application that proposes construction of a new antenna structure or alternative tower structure or involves the placement of any type of communications equipment on or within an architectural form that requires an exception to a height limit shall require review by the Planning & Zoning Board.

C. The Zoning Administrator may approve the following modifications to existing structures provided the modification is consistent with the requirements of this Chapter and any applicable conditions of approval of a Special Use Permit.

1. The use of a single tower by multiple carriers unless conditions of the Special Use Permit specify otherwise.

2. An increase in the height of an existing antenna support structures that does not exceed 10 feet, provided, the increase in height is used to facilitate the co- location of another communications provider on the same structure and does not exceed the maximum height set forth in other applicable City requirements for a tower on that site.

3. An application for building-mounted equipment provided the request is consistent with the requirements of this Chapter and other applicable City requirements and will not increase the height of an existing structure by more than 15 feet.

D. Approval of a Special Use Permit by the Zoning Administrator acting as a Hearing Officer or Board of Adjustment is required for the following:

1. Any proposal for a new, freestanding communications facility or to increase the height of an existing antenna support structure greater than 15-feet in any agricultural or residential district;

2. Any application for a building or roof-mounted structure that would exceed the height of the existing structure by more than 15 feet, except applications as listed in Paragraph A, above; and

3. Any application that proposes an exception to any applicable requirement in Section 11-35-5.

E. In addition to any other findings that this Ordinance requires, in order to approve any Special Use Permit for a facility subject to regulation by this Chapter, the decision-making authority must find, based on substantial information in the record including, where required, technical analysis by an approved radio frequency engineers, calculations by a State-licensed structural engineer, or other evidence that:

1. The proposed telecommunication facility will comply with all applicable state and federal standards and requirements;

2. The proposed project is consistent with the general requirements of this Chapter and any specific requirements applicable to the proposed facility;

3. The proposed antenna or related facility, operating alone and in conjunction with other telecommunications facilities, will comply with all applicable state and federal standards and requirements; and either:

a. Will not be readily visible; or

b. Will be readily visible, but it is not feasible to incorporate additional measures that would make the facility not readily visible.

4. The facility, if it is not a microcell or co-located, is necessary to prevent or fill a significant gap in coverage or capacity shortfall in the applicant's service area, and is the least intrusive feasible means of doing so;

5. If the proposed facility is a satellite dish or parabolic antenna exceeding 39 inches in diameter, that a smaller or less intrusive antenna cannot feasibly accomplish the provider's technical objectives and that the facility will not be readily visible;

6. If a new antenna support structure is proposed or the applicant proposes to extend the height of an existing tower, that the applicant has made good faith and reasonable efforts to locate a telecommunication facility on a support structure other than a new monopole or lattice tower or to accomplish co-location and that no existing tower or structure in the vicinity can accommodate the applicant's proposed antenna;

7. If a modification of height, separation, setback, landscaping or other requirements of Section 11-35-5 is proposed, that the proposed modification is consistent with the purposes of this Chapter and will be the least intrusive feasible means of meeting the service provider's objectives;

8. If the proposed location is in a Residential district that the location is necessary for the provision of personal wireless services to Mesa residents and businesses, or their owners, customers, guests, or invitees, or other persons traveling in or about the City based on substantial evidence that siting the

facility outside of a Residential district is infeasible and without the proposed facility, the operator will be unable to provide personal wireless services to its customers in the proposed coverage area, or unable to provide the capacity necessary to meet call volumes

9. If the proposed location is readily visible from the habitable area of a dwelling unit within 300 feet or from a public right-of-way, public park, or other public recreation or cultural facility, that:

   a. It is not feasible to provide the service at another location or to incorporate additional measures such as a decrease in height, increase in the number of number of facilities, increase in setback, change in design, relocation relative to other structures or natural features, that would further reduce its visibility; and

   b. The proposed telecommunication facility provides an important link in applicant's service area build-out and is necessary to meet its service needs to City residents.

F. The Zoning Administrator Hearing Officer or Board of Adjustment may waive or modify requirements of this Chapter upon advice of the City Attorney that denial of the application would have the effect of prohibiting the provision of telecommunications services, unreasonably discriminating among service providers, or constituting any other violation of State or Federal Law. The applicant shall have the burden of proving that the denial or requirement for compliance would violate applicable Federal or State Law.

11-35-7: CESSATION OF OPERATIONS

A. The service provider shall notify the Zoning Administrator of the intent to vacate a site at least 30 days prior to the vacation. The permit for any antenna or tower that is not operated for a continuous period of 12 months shall be deemed lapsed and the site will be considered abandoned unless:

   1. The Zoning Administrator has determined that the same operator resumed operation within 6 months of the notice; or

   2. The Planning Division has received an application to transfer the permit to another service provider.

B. No later than 90 days from the date the use is discontinued, the owner of the abandoned antenna or tower or the owner of the property on which the facilities are sited shall remove all equipment and improvements associated with the use and shall restore the site to its original condition as shown on the plans submitted with the original approved application or as required by the Zoning Administrator. The provider or owner may use any bond or other assurances provided by the operator under Section 11-35-4(E) to do so. The owner or his agent shall provide written verification of the removal of the wireless communications facility within 30 days of the date the removal is completed.

C. If the antenna or tower is not removed within the time limits stipulated in subsections A and B, the site shall be deemed to be a nuisance and Zoning Administrator may cause the antenna or tower to be removed at the owners' expense or by calling any bond or other financial assurance provided to the City under Section 11-35-4(E) to pay for removal. If there are 2 or more service providers using a single tower, then the abandonment period shall not begin until all service providers have ceased using the tower.

The requirement for removal of equipment in compliance with this Section shall be included as a provision in any lease of private property for wireless communication facilities.

CHAPTER 36
NONCONFORMING AND PROCEDURALLY CONFORMING*

11-36-1: PURPOSE AND APPLICABILITY

A. **Purpose.** This Chapter establishes provisions for the regulation of land uses, lots or parcels, structures, and sites that were lawfully established prior to the adoption or amendment of the Zoning Ordinance, or annexation into the City, but which would now be prohibited, restricted, or regulated differently under the requirements of the Zoning Ordinance or the Zoning Map and therefore do not comply with some or all of the requirements of the Zoning Ordinance.

B. **Applicability.**

1. ***Approved Modifications.*** Where a variance or modification has been granted that results in a development standard or feature that does not conform to the requirements of the Zoning Ordinance, the development standard or feature shall be deemed conforming, and this Chapter shall not apply.

2. ***Illegal Nonconformities.*** Land uses, lots or parcels, structures, and sites that were not lawfully established in compliance with the Zoning Ordinance or requirements of the applicable county or municipality, if established prior to annexation, are illegal nonconformities and are ineligible for the nonconforming provisions of this Chapter. Illegal nonconformities are subject to enforcement actions, up to and including removal and termination.

(Ord. No. 5963, § 1, 10-6-25)

11-36-2: DEFINITIONS

A. **Legal Nonconforming Use.** A land use that prior to the effective date of the Zoning Ordinance, subsequent amendment to the Zoning Ordinance, or annexation, was lawfully established—meaning it complied with all applicable requirements of the Zoning Ordinance, or requirements of the county or municipality in which it was located, in effect at the time it was approved—but does not comply with all current applicable Zoning Ordinance requirements. *Legal Nonconforming Use does include Legal Procedurally Conforming Use.*

B. **Legal Procedurally Conforming Use.** A land use that meets one of the following criteria:

1. A building permit was issued for the land use prior to the issuance of a written interpretation by the Zoning Administrator in which the land use was determined to not be within any classification or use in the Zoning Ordinance and therefore prohibited in every zoning district, or

2. An ordinance was adopted that amends the Zoning Ordinance regulations applicable to a certain land use and contains a section titled "Legal Procedurally Conforming Use" that specifically provides how that certain land use will be, or will remain, a Legal Procedurally Conforming Use.

C. **Legal Nonconforming Lot or Parcel.** A lot or parcel recorded prior to the effective date of the Zoning Ordinance, subsequent amendment to the Zoning Ordinance, or annexation, that was lawfully established—

***Editor's note—**Ord. No. 5963, § 1, adopted October 6, 2025, repealed the former Ch. 36, §§ 11-36-1—11-36-7, and enacted a new Ch. 36 as set out herein. The former Ch. 36 pertained to nonconforming uses, structures, and lots.

meaning it complied with all applicable dimensional standards in the Zoning Ordinance, or requirements of the county or municipality in which it was located, in effect at the time it was recorded—but does not comply with all current applicable dimensional standards in the Zoning Ordinance.

D. **Legal Nonconforming Structure.** A structure that prior to the effective date of the Zoning Ordinance, subsequent amendment to the Zoning Ordinance, or annexation, was lawfully constructed—meaning it complied with all requirements of the Zoning Ordinance, or requirements of the county or municipality in which it was located, in effect at the time it was constructed—but does not comply with all current applicable development standards in the Zoning Ordinance. *Legal Nonconforming Structure does not include Legal Procedurally Conforming Structure.*

E. **Legal Procedurally Conforming Structure.** A structure that meets one of the following criteria:

1. A building permit was issued for the structure prior to the issuance of a written interpretation by the Zoning Administrator in which the land use that the structure is occupied by or devoted to was determined to not be within any classification or use in the Zoning Ordinance and therefore prohibited in every zoning district, or
2. An ordinance was adopted that amends the Zoning Ordinance regulations applicable to a certain land use and contains a section titled "Legal Procedurally Conforming Structure" that specifically provides how a structure occupied by or devoted to that certain land use will be, or will remain, a Legal Procedurally Conforming Structure.

F. **Legal Nonconforming Site.** A lot or parcel containing site improvements (such as but not limited to landscaping, parking, drive aisles, fencing, or screening) that prior to the effective date of the Zoning Ordinance, subsequent amendment to the Zoning Ordinance, or annexation, were lawfully constructed—meaning the site improvements complied with all requirements of the Zoning Ordinance, or requirements of the county or municipality in which the lot or parcel was located, in effect at the time the site improvements on the lot or parcel were constructed—but the site improvements do not comply with all current applicable development standards in the Zoning Ordinance.

(Ord. No. 5963, § 1, 10-6-25)

11-36-3: LEGAL NONCONFORMING USES AND LEGAL PROCEDURALLY CONFORMING USES

A. **Right to Continue a Legal Nonconforming Use or Legal Procedurally Conforming Use.**

1. ***Right to Continue.*** A Legal Nonconforming Use or Legal Procedurally Conforming Use may continue to operate within the structure(s), area(s), or spaces(s) which it occupied when lawfully established, subject to the provisions of this Section.
2. ***Change of Ownership, Tenancy, or Management.*** Changes of ownership, tenancy, or management of a lot, parcel, or structure occupied by or devoted to an existing Legal Nonconforming Use or Legal Procedurally Conforming Use shall not affect its right to continue.
3. ***Discontinued Legal Nonconforming Use or Legal Procedurally Conforming Use.*** If a Legal Nonconforming Use or Legal Procedurally Conforming use is discontinued for a period of one (1) year or more, the right to operate such use shall terminate. Any subsequent use of the lot, parcel, or structure shall comply with all applicable requirements of the Zoning Ordinance.
    a. *Determination of Discontinued Use.* The Zoning Administrator shall determine whether the use was discontinued for a period of one (1) year or more resulting in the termination of the right to operate such use.

b. *Burden of Proof.* It shall be the burden of the owner/operator of the use to provide evidence of continual operation of the use, such as a valid business license, monthly business receipts, or tax returns showing business activity during the time period in question.

B. **Limitations on Legal Nonconforming Uses and Legal Procedurally Conforming Uses.**

1. ***Expansion to Other Structures, Areas, Lots or Parcels.*** A Legal Nonconforming Use or Legal Procedurally Conforming Use shall not be expanded to any other structure, area, lot, or parcel that it did not occupy when lawfully established; except an existing Single Residence use may construct an Accessory Dwelling Unit to the extent allowed by, and in compliance with Section 11-31-3 of the Zoning Ordinance.

2. ***Expansion Within a Conforming Structure.*** A Legal Nonconforming Use or Legal Procedurally Conforming Use may expand within the conforming structure it occupied when lawfully established, subject to the land use regulations in Article 2 for the base zoning district in which it is located.

3. ***Expansion Within a Legal Nonconforming Structure.*** A Legal Nonconforming Use or Legal Procedurally Conforming Use shall not be expanded within a Legal Nonconforming Structure; except an existing Single Residence use may construct an Accessory Dwelling Unit to the extent allowed by, and in compliance with Section 11-31-3 of the Zoning Ordinance.

(Ord. No. 5963, § 1, 10-6-25)

11-36-4: LEGAL NONCONFORMING STRUCTURES AND LEGAL PROCEDURALLY CONFORMING STRUCTURES

A. **Right to Maintain a Legal Nonconforming Structure or Legal Procedurally Conforming Structure.** Maintenance of Legal Nonconforming Structures or Legal Procedurally Conforming Structures is permitted provided that the maintenance does not enlarge or extend, the structure, except as allowed by Section 11-36-4(B)(3).

B. **Limitations on Legal Nonconforming Structures and Legal Procedurally Conforming Structures.**

1. ***Structural Repairs or Alterations to Legal Nonconforming Structures.*** Structural repairs or alterations to a Legal Nonconforming Structure are only permitted when the Building Official determines:

a. The structural repair or alteration is immediately necessary to protect public health and safety of the occupants of the structure, or occupants of adjacent property; and

b. The cost of the structural repair or alteration does not exceed 50% of the cost to reconstruct the entire structure, exclusive of the foundation.

2. ***Structural Repairs or Alterations to Legal Procedurally Conforming Structures.*** Structural repairs or alterations to a Legal Procedurally Conforming Structure are only permitted if the structural repair or alteration does not enlarge or extend the structure, except as allowed by Section 11-36-4(B)(3).

3. ***Expansions or Enlargements of Legal Nonconforming Structures and Legal Procedurally Conforming Structures.*** A Legal Nonconforming Structure or Legal Procedurally Conforming Structure shall not be expanded or enlarged except as follows:

   a. *Expansions or Enlargements Required to Meet Law.* Legal Nonconforming Structures or Legal Procedurally Conforming Structures may be expanded or enlarged when necessary to meet federal, state, or City requirements, including development standards for the zoning district in which the structure is located.

   b. *Expansions or Enlargements into Nonconforming Yards.* Legal Nonconforming Structures or Legal Procedurally Conforming Structures that are located within required yards may be expanded or enlarged only if the expansion or enlargement does not:

      i. Further reduce an existing nonconforming yard;

      ii. Further reduce a nonconforming lot coverage or floor area ratio requirement; or

      iii. Increase the required number of off-street parking spaces, unless additional parking is provided per current parking standards.

   c. *Expansions or Enlargements of Legal Nonconforming Structures or Legal Procedurally Conforming Structures Containing a Single Residence or Duplex Use.* Expansions or enlargements of a Legal Nonconforming Structure or Legal Procedurally Conforming Structure that contain a Single Residence or Duplex Use may be permitted only if the expansion or enlargement:

      i. Does not increase the gross floor area by more than 75%;

      ii. Does not increase the number of dwelling units on the lot or parcel; and

      iii. Conforms to all applicable requirements of the Zoning Ordinance.

C. **Reconstruction and Restoration of Legal Nonconforming Structures and Legal Procedurally Conforming Structures.**

1. ***Reconstruction and Restoration of Legal Nonconforming Structures.*** A Legal Nonconforming Structure that is damaged or partially destroyed may be reconstructed and restored as follows:

   a. *Reconstructed and Restored to its Previous Condition.* A Legal Nonconforming Structure may be reconstructed and restored to its previous condition, without needing to comply with the Zoning Ordinance, only if:

      i. The reconstructed and restored portions of the structure do not exceed the size, extent, or configuration that existed immediately prior to the damage or destruction;

      ii. The cost of reconstruction and restoration does not exceed 50% of the cost to reconstruct the entire structure, exclusive of the foundation; and

      iii. The use that occupied the structure immediately prior to the damage or destruction is reestablished in the reconstructed or restored structure.

b. *Limits to Reconstruction and Restoration of Legal Nonconforming Structures.* If the cost of reconstruction and restoration of a Legal Nonconforming Structure exceeds 50% of the cost to reconstruct the entire structure, exclusive of the foundation, the following shall apply:

i. The reconstruction and restoration of the structure shall comply with all requirements of the Zoning Ordinance, unless the Zoning Administrator approves an Administrative Use Permit that:

(1) Permits the structure to be reconstructed or restored to a lesser size, extent, or configuration than existed immediately prior to the damage or destruction; and

(2) Requires the use that occupied the structure immediately prior to the damage or destruction to be reestablished in the reconstructed or restored structure.

ii. In no instance may the structure be reconstructed or restored if the cost to reconstruct or restore the structure exceeds 75% of the cost to reconstruct the entire structure, exclusive of the foundation.

2. ***Reconstruction and Restoration of Legal Procedurally Conforming Structures.*** A Legal Procedurally Conforming Structure that is damaged or destroyed (whether wholly or partially) may be reconstructed and restored to its previous condition, without needing to comply with the Zoning Ordinance, only if:

a. The reconstructed and restored portions of the structure do not exceed the size, extent, and configuration that existed immediately prior to the damage or destruction; and

b. The use that occupied the structure immediately prior to the damage or destruction is reestablished in the reconstructed or restored structure.

(Ord. No. 5963, § 1, 10-6-25)

11-36-5: LEGAL NONCONFORMING SITES

A. **Right to Maintain.** Maintenance of Legal Nonconforming Sites is permitted provided that the maintenance does not enlarge, extend, or reconfigure the site, except as allowed in Subsection B below.

B. **Alterations and Enlargements to Legal Nonconforming Sites.** Alterations or enlargements to a Legal Nonconforming Site may be permitted only if they do not expand a Legal Nonconforming Use or Legal Procedurally Conforming Use, except as allowed by Section 11-36-3(B), and they meet at least one (1) of the below:

1. The alterations or enlargements comply with all applicable requirements of the Zoning Ordinance; or

2. The alterations or enlargements are necessary to meet federal, state, or City requirements.

(Ord. No. 5963, § 1, 10-6-25)

CHAPTERS 37—40 (RESERVED FOR FUTURE USE)

[The next page is T11:401]

ARTICLE 5

SIGN ORDINANCE

CHAPTER 41 INTRODUCTORY AND GENERAL PROVISIONS*

11-41-1: FINDINGS AND PURPOSE

A. **Findings.** Signs can obstruct views, distract motorists, obstruct pedestrians or vehicular traffic flow, create a safety hazard, create aesthetic blight and visual clutter, and pose other problems that legitimately call for regulation.

B. **Purpose.** The purpose of this Sign Ordinance is to regulate the size, illumination, movement or appearance of movement, materials, location, height, and condition of all signs, as defined herein, and to allow and to promote sign communication in a manner that:

1. Preserves and protects public health, safety, and welfare within the City of Mesa;

2. Assure the use of a variety of sign forms designed to be sensitive to the context of the location, as a reasonable method of visual communication between groups and individuals;

3. Enhances the flow of traffic and the convenience, ease, and enjoyment of travel within the City of Mesa;

4. Restricts circumstances that might otherwise result in injury or damage because of distractions, or obstructions of vision attributable to sign placement or size, or to the illumination of signs that may become a source of undo glare, distraction, or light pollution;

5. Avoids visual clutter that may contribute to traffic accidents or is potentially harmful to vehicular traffic or pedestrian safety;

6. Promotes the aesthetic and environmental values of the community by providing for signs that do not impair property values, business opportunities, community appearance, or the attractiveness of the City as a place to visit, live, work, and shop;

7. Allows signs that are appropriate in scale to the zoning district in which they are located;

8. Provides for signs as an effective channel of communication, while ensuring that sign forms are aesthetically designed and proportioned in relation to adjacent structures on the same lot or development site, and that are compatible with their surroundings; and

9. Promotes the effectiveness of signs by preventing their overconcentration, improper placement, deterioration, and excessive size and number.

10. Supports and enhances commerce within the City.

***Editor's note**—Previously, Chapter 41 derived from Ord. No. 5457, 7-9-18.

11-41-2: APPLICABILITY

A. **Subject of this Sign Ordinance.** All signs are subject to the provisions of this Sign Ordinance as it pertains to:

1. The allowance of signs (principally the number, form, material, size, and structure of signs);
2. The review and consideration of sign plans and permits;
3. The entitlement and issuance of permits;
4. The location and placement of signs on all buildings, structures, and land;
5. The integration of the design of signs with associated building architecture; and
6. The maintenance of signs.

B. **The provisions of this Sign Ordinance do not apply to the following:**

1. Address numbers as required by the Mesa Fire Code;
2. Government Signs;
3. Traffic Control Signs, Markings, and Devices;
4. Signs authorized by Arizona Revised Statutes;
5. Public Transportation Signs; and
6. Signs specified as mandatory by any provision of the Mesa City Code.

C. **Most Restrictive Provision Applies.** Except when otherwise authorized by an approved Council Use Permit, Special Use Permit, Administrative Use Permit, or Variance, the most restrictive provision shall prevail in cases in which two or more provisions of this Sign Ordinance appear to conflict.

D. **Controlling Document.** This Sign Ordinance is not intended to repeal, abrogate, annul, or in any way impair or interfere with other City provisions, allowances, or ordinances, except those specifically repealed by this Sign Ordinance. Where this Sign Ordinance imposes a greater restriction on a sign than is imposed or required by other Mesa City Codes, provisions, allowances, ordinance, the provisions of this Sign Ordinance control.

E. **Definitions Used.** Definitions for specific terms used in this Sign Ordinance are principally found in Chapter 50 of this Sign Ordinance. Additional definitions are also provided in Chapters 86 and 87 of the Zoning Ordinance, and in the Mesa City Code. Definitions not included in this Sign Ordinance, the Zoning Ordinance, or the Mesa City Code are as defined in a widely circulated dictionary commonly considered to be accurate and noteworthy.

F. **Effect on Previously Approved Sign Permits and Comprehensive Sign Plans.** All sign permits and comprehensive sign plans approved after January 1st, 1987, and in effect prior to the effective date of this Sign Ordinance, shall remain in effect. Signs authorized by such comprehensive sign plans shall be developed in accordance with the standards specified by that adopted sign plan, and any applicable conditions or stipulations associated with the approval of that sign plan. The development standards and requirements

of this Sign Ordinance apply if not specifically modified by the applicable adopted sign plan. The Zoning Administrator may approve minor modifications to approved plans, regarding specific design, height, number, or sign area, that do not exceed the maximums allowed by this Sign Ordinance.

11-41-3: GENERAL REQUIREMENTS

All signs shall conform to the following requirements:

A. **Building Regulations.** All signs, including portable signs and electric signs, shall conform to the requirements of the Mesa Building Code, Title 4 of the Mesa City Code.

B. **Illumination.**

1. The light source, direct or indirect, for a sign(s) is oriented or shielded so the light source is not directly visible from any adjacent residential use, or from a public thoroughfare.

2. Direct illumination by incandescent sources shall:

   a. Incorporate a dimming and/or a screening device when using bulbs rated at greater than eleven (11) watts, or equivalent measurement; and

   b. Not exceed a rating of forty (40) watts, or equivalent measurement, for any individual bulb.

3. No illuminated sign is placed or constructed on a vacant or undeveloped lot, or parcel.

4. The following types of illumination are prohibited:

   a. Flashing, blinking or rotating lights;

   b. Metal halide lighting;

   c. High or low-pressure sodium light bulbs; and

   d. Mercury vapor light sources.

5. Within the Desert Uplands Area (see Section 9-6-5 of the Mesa City Code for map), illuminated signs shall not exceed a 0.4-foot candle or equivalent light level.

6. The illumination of any sign shall conform to the requirements of the Mesa Lighting and Electrical Code, Title 4 of the Mesa City Code.

7. Outline illumination of buildings using a non-shielded or exposed illumination (neon, argon, LED or similar) source shall comply with Section 11-30-5-D of the Zoning Ordinance for Exposed Building Illumination.

C. **Sound or Odor.** No sign shall emit a sound or odor.

D. **Prohibited Placement and Locations of Signs.**

1. Within, on, or projecting over the right-of-way, unless it is in the Downtown Pedestrian Area defined in Chapter 50.

2. On public property.

3. Placed in a manner that interferes with pedestrian movement or obstructs ADA access.

4. Placed in a manner that obstruct the visibility of any authorized traffic sign, traffic signal, or another traffic control device.

5. Affixed to fuel tanks, storage containers, or solid waste receptacles; except signs related to the manufacturer's or installer's identification, warning signs, and placards, and information otherwise required by law.

6. Tacked, painted, burned, cut, pasted, or otherwise affixed to trees, shrubs, posts, fences, ladders, benches, or similar supports if visible from across the property boundary or from the right-of-way.

7. Placed in a manner that prevents ingress or egress from any window or door, or other exit-way required by the Mesa Building Code, and amendments, or by the Mesa Fire Code.

8. Covers the architectural features of a building, such as dormers, insignias, pilasters, soffits, transoms, trims, columns, or similar architectural elements or devices.

9. Placed on the roof of a building or extends higher than the highest point of the portion of the building to which the sign is attached.

10. Attached to a standpipe, gutter, drain, or fire escape, or placed in a manner that impairs roof access.

11. Located contrary to the standards of horizontal and vertical clearance from electrical wires and conductors found in the Mesa Lighting and Illumination Code, and the National Electrical Code Safety Standards.

E. **Signs for Nonconforming Uses.** New signs for a nonconforming use are permitted in accordance with permitted signage for the zoning district in which the nonconforming use is located. Existing signs must be maintained consistent with the requirements of Section 11-49-1.

11-41-4: REPEAL AND SEVERABILITY

A. If any section, subsection, paragraph, sentence, clause or phrase of this Sign Ordinance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Sign Ordinance. The City of Mesa hereby declares that it would have passed this Sign Ordinance, and each section, subsection, sentence, clause and phrase thereof, regardless of the fact that any or one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.

B. **Effects on Previous Proceedings.** Nothing contained in this Sign Ordinance affect rights and duties that matured, penalties that were incurred, and proceedings that begun before its effective date, notwithstanding the provisions of subsection (A) of this Section.

11-41-5: CONSENT OF THE PROPERTY OWNER REQUIRED

No person shall construct, place, display, or maintain any sign without the written consent of the property owner, the property owner's agent, or an authorized representative.

11-41-6: NONCOMMERCIAL MESSAGE SUBSTITUTIONS ALLOWED

Notwithstanding any other provision of this Sign Ordinance to the contrary, any noncommercial message may be substituted for the message placed on any sign permitted by this Sign Ordinance.

11-41-7: STANDARDS OF MEASUREMENT

A. **Sign Area Measurement.** Sign area for all sign types is measured as follows:

1. Sign copy is measured as a minimum area contained within the sum of one (1) or two (2) smallest tangent rectangle(s) or other standard regular geometric shapes (e.g.: circle, triangle, regular ellipse, regular rhombus or regular parallelogram), or combination of rectangles or standard regular geometric shapes (e.g.: rectangle and circle, two (2) triangles, or a circle and a rhombus) that will enclose both the sign copy and the background, as shown in Figure 11-41-7-A. When two (2) shapes are used, the shapes must include at least one (1) point of common tangency between the two (2) shapes.

2. The background portion of a sign is included in the sign area measurement when the surface of a building or background panel to which the sign copy is mounted, affixed, painted, or textured, is clearly distinct when compared to the color, texture, or materials used on the building or mounting structure.

3. A sign as individual letters, logos, or similar graphics painted or mounted directly on a wall, fascia, mansard, or parapet of a building or surface of another structure are measured based on the calculation described in Section 11-41-7-B that encloses the entire proposed sign in total, as shown in Figure 11-41-7-B.

4. Sign copy mounted, affixed, or painted on a distinct illuminated surface or illuminated element of a building or structure is measured as the entire illuminated surface or illuminated element that contains sign copy, as shown in Figure 11-41-7-A.

5. Window sign area is computed by calculating each windowpane or panel. A group of windowpanes or panels is considered one (1) window if the windowpanes or panels are adjoined or are not separated by more than six (6) inches. The area for each building face and window is separate. The building face includes any doors or walls with varying wall planes.

6. A multi-face sign, as shown in Figure 11-41-7-D, is measured as follows:

   a. Two (2) face sign:

      i. If the interior angle between the two sign faces is forty-five (45) degrees or less, the sign area is one (1) sign face only. If the angle between the two (2) sign faces is greater than forty-five (45) degrees, the sign area is the sum of the areas of the two (2) sign faces.

      ii. If the faces of the signs at the closest point are separated by a horizontal distance of two (2) feet or more, even when placed on the same sign support structure, the sign area is the sum of the areas of the two (2) sign faces.

   b. Three (3) or more face sign:

      i. The sign area is fifty percent (50%) of the sum of the areas of all vertical sign faces.

   c. Sign sculpture, statue, or three-dimensional figure:

      i. Spherical, free-form, sculptural, or other non-planar sign area is measured as fifty percent (50%) of the sum of the areas using only the four (4) vertical sides of the smallest four (4) vertical sided polyhedron that encompasses the sign structure (six

(6) total sides when counting top and bottom), as shown in Figure 11-41-7-D. No more than four-vertical flat polyhedron faces are used to calculate the sign area for a non-planar sign.

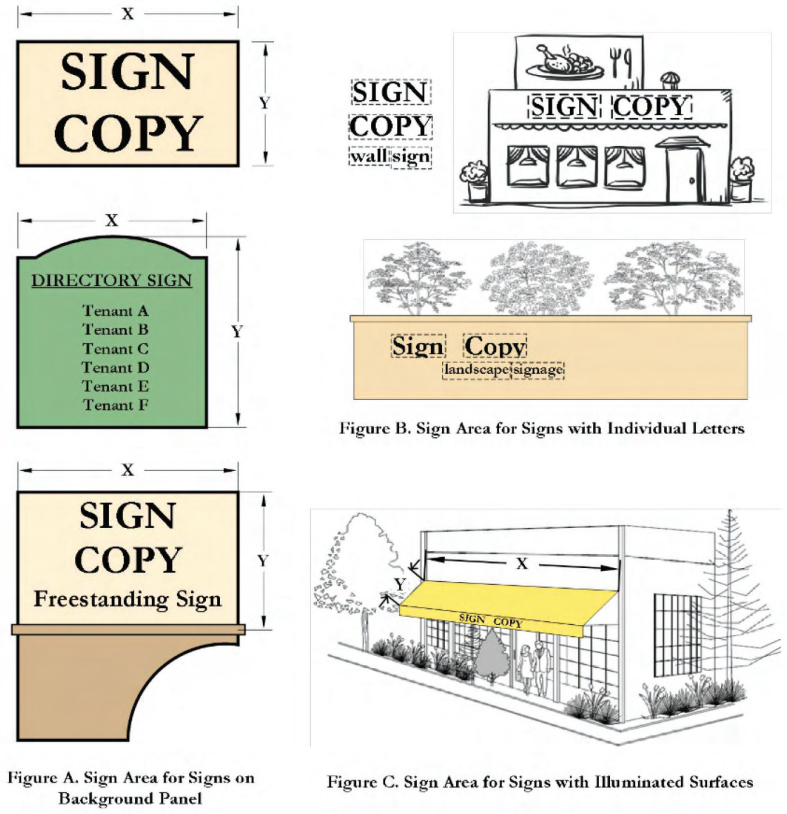


Figure A. Sign Area for Signs on Background Panel

Figure B. Sign Area for Signs with Individual Letters

Figure C. Sign Area for Signs with Illuminated Surfaces

FIGURES 11-41-7-A THROUGH C

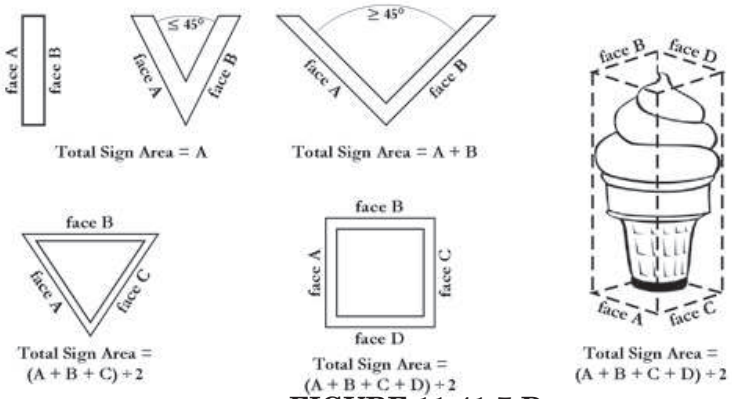


FIGURE 11-41-7-D

B. **Sign Height Measurement.** Sign height is measured as follows:

1. ***Freestanding Signs.*** Sign height is measured as the vertical distance from the average elevation of the finished grade within an eight (8) foot radius from all sides of the sign at the base of a sign to the top of the sign, exclusive of any filling, berms, mounds, or landscaping solely for the purpose of locating the sign, excluding decorative embellishments as defined in Section 11-50-2, and authorized in Section 11-43-3.

   a. If natural grade at the base of a sign is higher than the grade of the adjacent road, and the grade has not been artificially raised by fill or other means to a height above the adjacent road, then sign height is measured from the base of the sign at natural grade, as shown in Figure 11-41-7-E.

   b. If natural grade at the base of a sign is lower than the grade of an adjacent road, or has been reduced to provide a storm water retention basin, then the height of the sign is measured from the top of curb elevation, as shown in Figure 11-41-7-F.

   c. Consideration of natural grade does not include the use of berms or increases in building construction pads, grading of the site, importing of sand, gravel, or other similar means to artificially increase the natural grade level of a site.

2. ***Building Mounted Signs.*** The height of wall, fascia, mansard, parapet, or other building mounted signs is the vertical distance measured from the base of the wall on which the sign is located to the top of the sign, as shown in Figure 11-41-7-G.

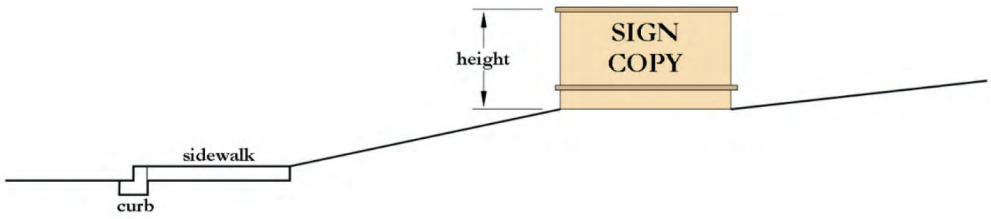


FIGURE E. FREESTANDING SIGN HEIGHT - SIGNS HIGHER THAN THE GRADE OF AN ADJACENT ROAD

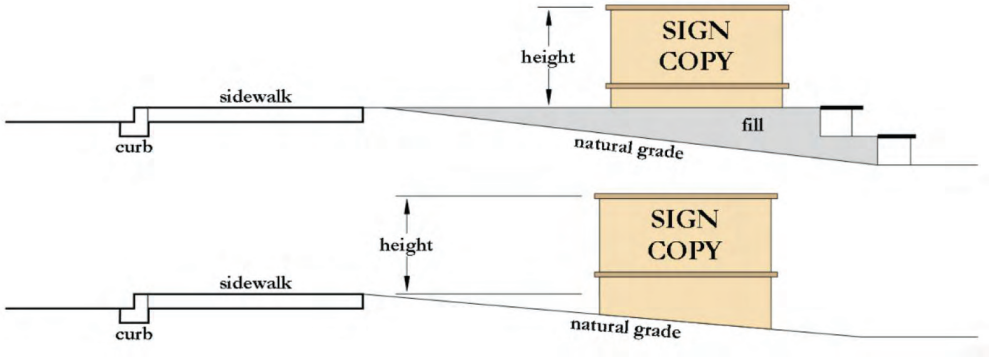


FIGURE F. FREESTANDING SIGN HEIGHT - SIGNS LOWER THAN THE GRADE OF AN ADJACENT ROAD

FIGURES 11-41-7-E and 11-41-7-F

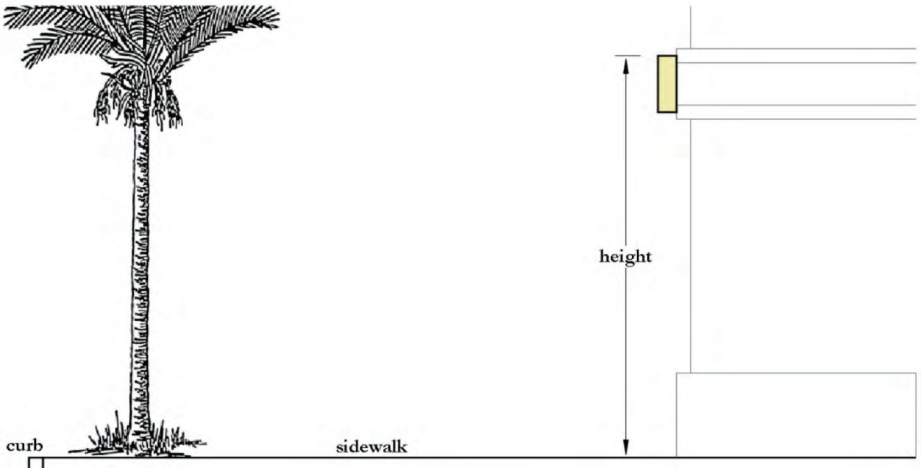


FIGURE 11-41-7-G

C. **Sign Illumination Measurement.** The illuminance of an electronic message panel shall be measured with an illuminance meter set to measure foot-candles accurate to two (2) decimals. Illuminance shall be measured with the unit turned off, and again with the unit turned on displaying a white image for a full color-capable electronic message panel, or a solid message for a single-color electronic message panel. Both measurements shall be taken perpendicular to the face of the electronic message panel at a distance determined by the total square footage of the electronic message panel as provided in Table 11-41-7-C below.

Table 11-41-7-C: Measurement Distance Based on Sign Area

Sign Area	Measurement Distance	Sign Area	Measurement Distance	Sign Area	Measurement Distance	Sign Area	Measurement Distance
5	22 feet	35	59 feet	65	81 feet	95	97 feet
10	32 feet	40	63 feet	70	84 feet	100	100 feet
15	39 feet	45	67 feet	75	87 feet	105	102 feet

Table 11-41-7-C: Measurement Distance Based on Sign Area							
Sign Area	**Measurement Distance**	**Sign Area**	**Measurement Distance**	**Sign Area**	**Measurement Distance**	**Sign Area**	**Measurement Distance**
5	22 feet	35	59 feet	65	81 feet	95	97 feet
10	32 feet	40	63 feet	70	84 feet	100	100 feet
15	39 feet	45	67 feet	75	87 feet	105	102 feet
20	45 feet	50	71 feet	80	89 feet	110	104 feet
25	50 feet	55	74 feet	85	92 feet	115	107 feet
30	55 feet	60	77 feet	90	95 feet	120	110 feet

(Ord. No. 5256, 11-3-14)

11-41-8: SIGHT VISIBILITY TRIANGLES

No sign shall interfere with visibility at street intersections or driveways as provided in the City of Mesa Engineering and Design Standards Section 211 - Sight Distance and Visibility Guidelines.

A. **Permanent Signs.** No permanent sign is allowed above the height of three (3) feet.

B. **Portable Signs.** Portable signs are allowed in the sight visibility triangle, only as follows:

1. The portable sign does not exceed three (3) feet in height.

2. In the RS, RSL, and DR-1 districts or T3N transect, one (1) portable sign exceeding three (3) feet high is allowed within fifteen (15) feet of the edge of pavement or face of curb, as may be applicable, of any streets, roads or highways providing two (2) or less vehicular traffic lanes.

11-41-9: RESPONSIBLE PARTY

A. **Posting Sign.** The person, group, or organization directing the posting, installation, or erection of a sign is responsible for assuring the compliance of the sign with the requirements of this Sign Ordinance. This includes the removal, maintenance, replacement, or alteration of the sign, as may be applicable.

B. **Owner or Occupant.** If the person directing the posting, installation, or erection of the sign does not remove, maintain, replace, or alter the sign in accordance with the requirements of this Sign Ordinance, then the property owner or occupant of the building, where the sign is posted, is responsible for either replacing the sign with a sign that complies with this Sign Ordinance or removing the sign.

CHAPTER 42 PORTABLE SIGNS*

11-42-1: PURPOSE AND GENERAL PROVISIONS

Purpose. The City finds that an overconcentration of portable signs is a distraction to motorists, interferes with the visibility of the traveling public, and creates aesthetic blight and visual clutter. In addition to Section 11-41-1, the purpose of this Chapter is to:

A. Identify and provide for a variety of portable sign types;

***Editor's note—**Previously, Chapter 42 derived from Ord. No. 5457, 7-9-18.

B. Provide for the appropriate size and number of portable signs in a manner consistent with the design and aesthetic standards of the City of Mesa urban design characteristics as specified in the Mesa General Plan; and

C. Assure that opportunities for portable signs do not create visual clutter or in an over-concentration of portable signs that result in a distraction to motorists or interfere with the visibility of the traveling public.

(Ord. No. 5928, § 23, 2-3-25)

11-42-2: PORTABLE SIGN ALLOWANCES BY ZONING DISTRICT FOR DEVELOPED PROPERTY

A. Allowances for the size, number, and height of portable signs for a lot or parcel are determined by the zoning district and lot size as provided in the Tables in this Section. The Tables in this Section are used to calculate the maximum number, size, and height of signs that may be used on a property. The types of portable signs allowed are provided in Table 11-42-3. The portable sign must conform to the standards provided in both Sections 11-42-2 and 11-42-3, the more restrictive standards apply.

B. Example: A property owner wants to display portable signs at a three (3) acre shopping center in the LC zoning district. The shopping center is located at a street intersection. Using Table 11-42-2-E, the center is allowed two (2) portable signs per street front. The property has two street fronts; therefore, the property owner is allowed to display up to four (4) portable signs. The maximum individual portable sign area is twelve (12) square feet and the total portable sign area allowance for the property is twenty-four (24) square feet With this allowance, use the information in Table 11-42-3 to select the portable sign type(s) for the property, as illustrated by the examples in Table 11-42-2-B.

Table 11-42-2-B: Portable Sign Allowance Examples

Example: 3 Signs	Example: 4 Signs	Example: 2 Signs
1 detached rigid, 8 sq. ft. 1 detached rigid, 6 sq. ft. 1 fabric wall banner, 10 sq. ft.	4 detached rigid, 6 sq. ft. ea.	1 attached rigid, 10 sq. ft. 1 detached rigid, 10 sq. ft.
Total Sign Area Used: 24 sq. ft.	Total Sign Area Used: 24 sq. ft.	Total Sign Area Used: 20 sq. ft.

C. **Agriculture and Single-Residence.** The allowances for the size, number, and height of portable signs per lot or parcel in AG, RS, RSL, DR-1, and T3N are provided below in Table 11-42-2-C.

Table 11-42-2-C: Portable Sign Allowances Per Lot or Parcel

Lot Size	Max. Aggregate Sign Area	Max. Individual Sign Area	Max. Number of Signs Per Street Front	Max. Height	Minimum Separation
1-Acre or Less	12 sq. ft.	6 sq. ft.	1	6-feet	—
1-Acre or More	24 sq. ft.	8 sq. ft.	2	6-feet	50-feet

D. **Multi-Residence, Office, and Light Commercial.** The allowances for the size, number, and height of portable signs per lot or parcel in RM, DR-2, DR-3, OC, NC, DB-1, and T4N are provided below in Table 11-42-2-D.

Table 11-42-2-D: Portable Sign Allowances Per Lot or Parcel (1)(2)

Lot Size	Max. Aggregate Sign Area	Max. Individual Sign Area	Max. Number of Signs Per Street Front	Max. Height	Minimum Separation
1-Acre or Less	12 sq. ft.	12 sq. ft.	1	6-feet	—

Table 11-42-2-D: Portable Sign Allowances Per Lot or Parcel (1)(2)					
Lot Size	**Max. Aggregate Sign Area**	**Max. Individual Sign Area**	**Max. Number of Signs Per Street Front**	**Max. Height**	**Minimum Separation**
More Than 1-Acre and Less Than 5-Acres	24 sq. ft.	12 sq. ft.	2	6-feet	30-feet
5-Acres or More	48 sq. ft.	12 sq. ft.	3, plus 1 per each additional 5-acres, Max: 4	6-feet	50-feet

(1) Portable sign types are limited to the size and height provided in Table 11-42-3.

(2) Air activated and balloon sign maximum heights are provided in Table 11-42-3. Sign area of balloons are not counted against the maximum aggregate sign area. See section 11-42-6 for additional requirements for fabric signs.

E. **Commercial and Industrial.** The allowances for the size, number, and height of portable signs per lot or parcel in LC, GC, DB-2, PEP, LI, GI, HI, and EO are provided in Table 11-42-2-E.

Table 11-42-2-E: Portable Sign Allowances Per Lot or Parcel (1)(2)					
Lot Size	**Max. Aggregate Sign Area**	**Max. Individual Sign Area**	**Max. Number of Signs Per Street Front**	**Max. Height**	**Minimum Separation**
2-Acres or Less	12 sq. ft.	12 sq. ft.	1	8-feet	—
More Than 2-Acres and Less Than 5-Acres	24 sq. ft.	12 sq. ft.	2	8-feet	50-feet
5-Acres or More	32 sq. ft., plus an additional 12 sq. ft. per each additional 5-acres	12 sq. ft.	3, plus 1 per each additional 5-acres	8-feet	75-feet

(1) Portable sign types are limited to the size and height provided in Table 11-42-3.

(2) Air activated and balloon sign maximum heights are provided in Table 11-42-3. Sign area of balloons are not counted against the maximum aggregate sign area. See section 11-42-6 for additional requirements for fabric signs.

F. **Neighborhood and Main Street Transects.** The allowances for the size, number, and height of portable signs for each building in the T4NF, T4MS, T5N, and T5MSF are provided in Table 11-42-2-F.

Table 11-42-2-F: Portable Sign Allowances Per Building (1)							
		Max. Individual Sign Area					
Width of Building	**Max. Aggregate Sign Area**	**Rigid**	**Semi-Rigid**	**Wall and Detached Banners (2)**	**Max. Number of Signs per Street Front**	**Max. Height**	**Minimum Separation**
30 Feet or Less	8 sq. ft.	8 sq. ft.	8 sq. ft.	8 sq. ft.	1	6-feet	10-feet
More Than 30 Feet and Less Than 61 Feet	16 sq. ft.	8 sq. ft.	8 sq. ft.	12 sq. ft.	2	6-feet	20-feet
More Than 60 Feet and Less Than 91 Feet	24 sq. ft.	8 sq. ft.	8 sq. ft.	16 sq. ft.	3	6-feet	20-feet
91 Feet or More	32 sq. ft.	8 sq. ft.	8 sq. ft.	24 sq. ft.	4	6-feet	25-feet

(1) Portable sign types are limited to the size and height provided in Table 11-42-3.

(2) See section 11-42-6 for additional requirements for fabric signs.

G. **Mixed-Use and Urban.** The allowances for the size, number, and height of portable signs for each building in the MX, DC, T5MS, and T6MS, Districts are provided in Table 11-42-2-G.

Table 11-42-2-G: Portable Sign Allowances Per Building (1)						
Width of Building	Max. Aggregate Sign Area	Max. Individual Sign Area		Max. Number of Signs, per Street Front	Max. Height	Minimum Separation
		Rigid	Wall Banner (2)			
30 Feet or Less	8 sq. ft.	8 sq. ft.	8 sq. ft.	1	6-feet	10-feet
More Than 30 and Less Than 61 Feet	16 sq. ft.	8 sq. ft.	12 sq. ft.	2	6-feet	20-feet
More Than 60 and Less Than 91 Feet	24 sq. ft.	8 sq. ft.	16 sq. ft.	3	6-feet	20-feet
91 Feet or More	32 sq. ft.	8 sq. ft.	24 sq. ft.	4	6-feet	25-feet

(1) Portable sign types are limited to the size and height provided in Table 11-42-3.

(2) See section 11-42-6 for additional requirements for wall banners.

H. **Downtown Pedestrian Area.**

1. The Downtown Pedestrian Area (DPA) is an intense pedestrian area with buildings built to the property line, thus requiring some allowance for signage in or over the right-of-way. The sign requirements and allowances have been adjusted for the downtown to meet the unique needs of this area.

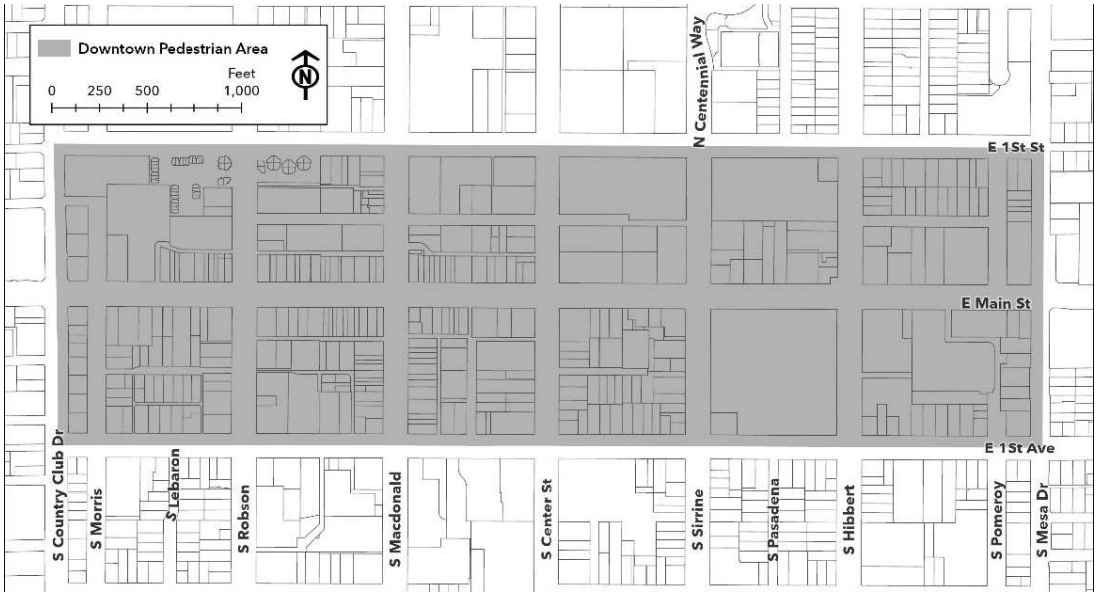


FIGURE 11-42-2.H.1: DOWNTOWN PEDESTRIAN AREA

2. A business owner within the DPA, can display portable signs within the right-of-way subject to all of the following conditions:

a. Annually apply for and obtain an Administrative Use Permit (AUP) from the City of Mesa Planning Director or designee. The AUP is valid for one (1) year from the date of issuance.

b. A renewal application for the AUP must be submitted prior to the expiration date of the current AUP. The Planning Director shall renew the AUP provided that, on the date of

application, the business owner is in compliance with all provisions of the Sign Ordinance and further provided that, on the date of application, the use of portable signs within the DPA is still an allowed use under the Sign Ordinance.

c. The application and renewal of the AUP requires submission of a Certificate of Insurance which complies with the City's current insurance requirements.

d. Obtain an encroachment permit from the City Engineer.

e. The portable sign does not interfere with pedestrian movement or obstruct ADA access. A minimum access width of five (5) feet is maintained along all sidewalks and building entrances accessible to the public.

f. The portable sign does not encroach into required off-street parking areas, and does not create site visibility conflicts or other traffic hazards.

g. The portable sign is only displayed during the operating hours of the business and is removed during non-business hours.

h. The portable sign is maintained in good condition throughout the term of the AUP.

(Ord. No. 5996, §§ 3, 4, 3-9-26)

11-42-3: CLASSIFICATIONS AND DESCRIPTIONS

A. **Permitted Portable Sign Types.** The portable signs as defined in Chapter 50 and described in Table 11-42-3 are permitted in accordance with the requirements set forth in this Sign Ordinance. The Table identifies the specific types of portable signs permitted in a zoning district and establishes the maximum size and height. The height(s) and size(s) in Table 11-42-3 do not increase the sign allowance established in Tables 11-42-2; the more restrictive standards from Tables 11-42-2-C through G and Table 11-42-3 apply.

Table 11-42-3: Portable Sign Types						
Description	**Sign Type/Maximums**	**Illustrative Examples**	**Permitted Zoning**			
Rigid: A sign made of durable, non-pliant material such as wood, sheet metal, plastic, or other lightweight rigid material	**A-frame or T-frame:** A light weight portable sign resting atop the ground without penetrating the ground. Max. Size: 8 sq. ft. Max. Height: 4 ft.		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
	Attached: Affixed to a building or wall.		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
	Detached: Affixed to post(s) or stake(s) that penetrates the ground. Max. Size: 32 sq. ft. Max. Height: 8 ft.		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
Semi-rigid: A sign made of cardboard, foam-core, thin plastic, paper, or other quasi-rigid but less durable material.	**Detached Yard:** Affixed to a stake(s), post(s), or other device that penetrates the ground. Max. Size: 6 sq. ft. Max. Height: 3-feet		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS

Table 11-42-3: Portable Sign Types

Description	Sign Type/Maximums	Illustrative Examples	Permitted Zoning			
Fabric: A sign made of durable fabric or similar pliant flexible material.	**Detached Banners:** Fabric affixed to a stake, post, or other device that penetrates the ground. Max. Size: 12 sq. ft. Max. Height: 6-feet		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
	Wall Banners: Fabric affixed to a building, wall, or fence. Max. Size: 32 sq. ft. Max. Height: Less than roof or parapet		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
	Air Activated: A sign that moves or makes motions when wind is applied powered means. Max. Height: 12-feet		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
	Balloons: A bag or similar flexible, non-rigid enclosure, that holds air or gas attached by a tether to a fixed place. Max. Height: 20-feet		AG	RS	RSL	RM
			OC	NC	LC	GC
			DR-1	DR-2	DR-3	MX
			DB-1	DB-2	DC	PEP
			LI	GI	HI	EO
			T3N	T4N	T4NF	T4MS
			T5N	T5MSF	T5MS	T6MS
☐ **Not Allowed**						
☐ **Allowed**						

Note: Portable sign allowances for properties in ID-1, ID-2, or PC districts are permitted as provided in the plan approved for that development or as allowed in the base zoning district.

11-42-4: PORTABLE SIGNS FOR UNDEVELOPED PROPERTY

A. **Allowance for Undeveloped Lots or Parcels.** Any lot or parcel that is vacant, devoid of any development, or that is currently under construction, may utilize the portable sign allowance provided in this Section.

Table 11-42-4-A: Portable Signs for Undeveloped Property			
Property Size	**Maximum Individual Sign Area**	**Maximum Number of Signs Allowed**	**Maximum Sign Height**
1-acre or less	32 sq. ft.	1 per street frontage	8-feet
More than 1-acre	32 sq. ft.	2 per street frontage	8-feet

B. **Prompt Removal.** Detached signs authorized under this Section shall be removed from a vacant lot or parcel within one (1) week after the issuance of a Certificate of Occupancy or equivalent.

11-42-5: NON-RESIDENTIAL USES IN RESIDENTIAL ZONING DISTRICTS

In the AG, RS, and RSL zoning districts, non-residential land use classifications as defined in Sections 11-86-3, 11-86-4, 11-86-5, and 11-86-6 may use portable signs in accordance with Section 11-42-2-D.

11-42-6: FABRIC SIGNS

In zoning districts where allowed per Table 11-42-3, each multi-residence development, or each occupancy in a non-residential development may display one (1) fabric sign, on property that is developed, if an Administrative Use Permit is approved. The fabric sign may be displayed for a maximum of thirty (30) days per calendar year. The days do not need to be consecutive, and may be divided into several separate periods provided the number of days, in aggregate, does not exceed thirty (30) per calendar year, with each calendar year beginning on January 1st. Additionally, each occupancy in a non-residential development is permitted additional fabric signs if a Temporary Use Permit (TUP) is approved authorizing a temporary use on the property. The display of the fabric sign is only allowed during the time-period the TUP is valid.

A. **Wall Banners.** In addition to the requirements in this Section, 11-42-2, and 11-42-3, wall banners shall comply with the following:

1. All corners of the banner must be fastened securely to the building, wall, or fence in a manner that prevents high winds from removing or separating the banner from the building, wall, or fence or causes the banner to flap;

2. Provide vents to ensure the banner withstands the wind; and

3. Provide a minimum clearance of eight (8) feet above grade when placed above an area open for the common or general use of the public.

B. **Detached Banners.** In addition to the requirements in this Section, 11-42-2, and 11-42-3, detached banners must be secured to the ground in a manner that prevents high winds from removing the banner.

C. **Air Activated and Balloons.** In addition to the requirements in this Section, 11-42-2, and 11-42-3, air activated and balloons shall comply with the following:

1. Secured to the ground in a manner that prevents high winds from removing the air activated or balloon sign; and

2. Located at least fifty (50) feet from the right-of-way.

11-42-7: VEHICLE SIGNS

Vehicle signs are allowed if the following conditions are satisfied:

A. The vehicle complies with Section 8-6-3(A) of the Mesa City Code;

B. The vehicle is parked in an authorized location and in a lawful manner that is not distinct or different from the pre-determined parking area design; and

C. During periods of inactivity exceeding two (2) days, the vehicle is parked in a manner so that the sign is not visible from the right-of-way, or if this is not possible, is parked as far from the right-of-way as possible.

CHAPTER 43 PERMANENT SIGNS*

11-43-1: PURPOSE AND INTENT

In addition to the items listed in Section 11-41-1, the purpose and intent of regulating signs used as permanent fixtures includes:

A. Keeping the scale of permanent signs proportionate in height, size, number, and illumination to the intensity and context of land use in the vicinity of the sign, including the specific location of the sign;

B. Utilizing shapes, details, materials, and illumination on permanent sign devices and structures in a manner that furthers, enhances, and reinforces the architectural design theme of the related development; and

C. Maintaining and enhancing the aesthetic character of permanent signs based upon the context in which they are located.

11-43-2: DESIGN STANDARDS FOR PERMANENT SIGNS AND SIGN STRUCTURES

A. **Architectural Compatibility.** Permanent signs and sign structures shall:

1. Be designed to be attractive and artistic;

2. Incorporate design features associated with the buildings or structures, and should constitute an architectural component of the overall development that is compatible with, and not incongruous to, the architectural style and character of the development of the property associated with the sign; and

3. Utilize materials and design themes consistent with the architectural design theme of the development, as expressed by the building architecture, landscaping, and overall site development.

B. **Attached Permanent Signs.**

1. ***Design Standards.*** Attached permanent signs must comply with the following design standards:

a. A sign shall be mounted so that the attachment device is not visible or discernible and shall consist of the following:

i. Individual letters such as pan channel or other durable material or

ii. An architecturally designed cabinet that is irregular and freeform in shape.

***Editor's note**—Previously, Chapter 43 derived from Ord. No. 5457, 7-9-18.

b. A sign attached to a single tenant building shall not exceed more than fifty-percent (50%) of the width of the building elevation upon which the attached sign is placed.

c. A sign attached to a single tenant space of a multiple tenant building, as determined by the issuance of a separate Certificate of Occupancy for the specific tenant space, shall not exceed more than seventy-five percent (75%) of the width of the front of the occupancy upon which the attached sign is placed.

d. Placed on the elevation of the same tenant space for which the Certificate of Occupancy is issued.

e. Opaque backgrounds shall be provided on internally illuminated signs so that only the sign copy is illuminated.

f. A wall mounted sign shall be placed below parapet or eave.

g. Roof signs are not permitted.

h. Signs are permitted on a false mansard roof, awning, or canopy. Signs placed in these locations shall comply with the following:

i. Installed in a manner where angle iron supports, guy wires, braces, or secondary supports, are not visible.

ii. Appear to be an architectural or integral part of the roof.

iii. All parts of the sign are below the highest portion of the building or roof where the sign is attached.

2. Design Guidelines:

a. Letters attached or anchored to the face of an exposed standard raceway should be architecturally designed and integrated into the building.

b. If non-standard raceways are used the following design guidelines shall be followed:

i. As a background where the raceway is not discernable. Raceway is designed as splash cabinet following the shape of the letters where the area of the cabinet is included in the total attached sign area as provided in the example shown in Figure 11-43-2-B-2-b-i;



FIGURE 11-43-2-B-2-b-i

ii. Integrated and a part of the design that acts as a backdrop where the area of the raceway is included in the total attached sign area as provided in the example shown in Figure 11-43-2-B-2-b-ii; or



FIGURE 11-43-2-B-2-b-ii

iii. Integrated into the design where letters are mounted to the top of the raceway cabinet as provided in the examples shown in Figures 11-43-2-B-2-b-iii.



FIGURE 11-43-2-B-2-b-iii

c. Raceways shall either:

i. Be finished to match the color of the building adjacent to the raceway and design elements of the building or

ii. When a raceway is provided as an architectural enhancement to the building elevation, the raceway must be in a contrasting color and material.

C. **Detached Permanent and Freestanding Signs.** Detached permanent and freestanding signs must complement design features associated with the buildings or structures, and constitute an architectural component of the overall development.

1. ***Design Standards.*** Detached permanent and freestanding signs must comply with the following design standards:

a. The sign structure must consist of metal, masonry, or a similar durable construction material using one (1) of the following styles:

i. A single base where the width of the base is a minimum of seventy-five percent (75%) of the width of the sign copy, or

ii. A base consisting of two (2) or more posts or columns in which the width of all posts or columns, in aggregate, is a minimum of thirty-three percent (33%) of the width of the sign copy.

b. An internally illuminated sign shall comply with the requirements of Section 11-41-3-B, and shall provide either:

i. An opaque background so only the sign copy is illuminated; or

ii. A translucent background of no more than fifty-percent (50%) opacity.

c. No detached permanent sign is allowed within seventy-five (75) feet of any other detached permanent sign on the same parcel or Group C-O-I Development site.

d. For streets or roads with three (3) or more traffic lanes, a sign is not allowed within fifteen (15) feet of the face of curb or edge of pavement, when no curb exists.

e. If a sign is placed at the street intersection of a corner parcel and is visible from both streets or both frontages, the sign may not exceed the maximum height and area allowed for the longer street frontage. The area of the sign is deducted from the total aggregate sign height, sign area, and number of signs permissible on the corner parcel.

2. Design Guidelines:

a. The sign copy should not exceed a horizontal-to-vertical ratio of two to one (2:1).

b. A sign may consist of more than one (1) sign panel provided all sign panels are attached to one (1) common integrated sign structure. When multiple sign panels are used, the area of the sign is calculated as one (1) aggregate sign area of all panels used.

c. Embellishment should complement the primary design elements or unique architectural features of the buildings or structures.

d. Embellishment added to a sign structure may extend above the allowable height, up to a maximum extension of twenty-percent (20%) of the permitted height of the sign.

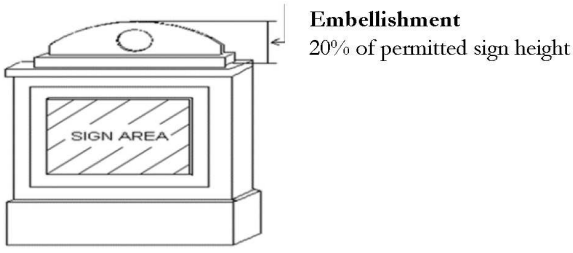


FIGURE 11-43-2-C-2-d

11-43-3: PERMANENT SIGN ALLOWANCES BY ZONING DISTRICT

The following Tables include the sign allowances for attached and detached permanent signs by zoning district. The "Additional Requirements" column lists additional standards that apply. Individual number(s) placed in parentheses [ex: (1)] refer to footnotes appearing immediately below or following the Table.

A. Attached and detached permanent sign allowances in AG, RS, RSL, DR-1, T3N, and T4N are provided in Table 11-43-3-A.

Table 11-43-3-A: Attached and Detached Sign Allowances

Zoning	Max. Number of Permitted Signs	Max. Area Per Sign (1)	Max. Height	Additional Requirements
AG	1 sign per street front, attached or detached	6 sq. ft.	10-feet attached 4-feet detached	Non-illuminated

Table 11-43-3-A: Attached and Detached Sign Allowances				
Zoning	**Max. Number of Permitted Signs**	**Max. Area Per Sign (1)**	**Max. Height**	**Additional Requirements**
RS, RSL, DR-1, T3N, T4N	1 sign per lot or parcel, attached or detached	4 sq. ft.	10-feet attached 4-feet detached	Non-illuminated

(1) A lot or parcel allowed to operate a non-residential land use is allowed to increase the maximum area of each permitted sign to thirty-two (32) sq. ft. with a maximum height of eight (8) feet if detached, or below the top of the parapet or eave, if wall mounted (no roof signs). Increased sign allowance under this provision does not apply to Home Occupations as authorized by Section 11-31-33 in the Zoning Ordinance.

B. Attached and detached permanent sign allowances for RM, DR-2, DR-3, T4NF, and T5N are provided in Table 11-43-3-B.

Table 11-43-3-B: Attached and Detached Sign Allowances per Development			
Max. Number of Permitted Signs (1)	**Sign Area Calculation**	**Max. Height**	**Additional Requirements**
2 signs per street front, attached or detached	1 sq. ft. of sign area per 5-lineal feet of street frontage up to a max. of 32 sq. ft.	8-feet detached	Illumination is allowed if the sign is adjacent to an arterial or collector street. (2)

(1) A non-residential use in T4NF is allowed one (1) additional attached sign on a street and one (1) additional attached sign on an alley frontage, not to exceed thirty-two (32) sq. ft.

(2) Street classification is based on the Mesa Transportation Plan.

C. The following two (2) Tables provide the attached and detached permanent sign allowances for OC. The maximum aggregate sign allowance for all signage (attached and detached) is thirty-two (32) sq. ft.

Table 11-43-3-C-1: Attached Sign Allowances per Occupancy			
Occupancy	**Max. Number of Permitted Signs**	**Sign Area Calculation**	**Min. Individual Sign Area (2)**
Single-Occupant Building	2 attached signs	1 sq. ft. of sign area per front foot of building occupancy (1)	24 sq. ft.
Multiple-Occupant Building	1 attached sign per occupancy	1 sq. ft. of sign area per front foot of building occupancy (1)	20 sq. ft.

(1) The sign area applies only to occupancies with an exterior wall. When there is more than one (1) exterior wall, the longest wall can be used to calculate the maximum sign allowance.

(2) Each occupant with an exterior wall is allowed this minimum individual sign area regardless of the front foot of the building occupancy.

Table 11-43-3-C-2: Detached Sign Allowances per Development		
Max. Number of Permitted Signs	**Sign Area Calculation**	**Max. Height**
1 detached sign per street	1 sq. ft. of sign area per 5-lineal feet of street frontage	8-feet

D. The following four (4) Tables provide the attached and detached permanent sign allowances in NC, LC, GC, PS, PEP, LI, GI, and HI.

1. The standard allowances for attached signs per occupancy are provided in Table 11-43-3-D-1.

Table 11-43-3-D-1: Standard Attached Sign Allowances Per Occupancy			
Front Foot of Building Occupancy (1)	**Max. Number of Permitted Signs**	**Max. Aggregate Sign Area Calculation**	**Max. Area Per Sign**
80-feet or Less (2)	2 signs	2 sq. ft. of sign area per front foot of building occupancy	160 sq. ft.
81 to 199-feet	3 signs	160 sq. ft. is allowed	160 sq. ft.
200 to 249-feet	4 signs	80% of lineal front foot of occupancy,	160 sq. ft.

Table 11-43-3-D-1: Standard Attached Sign Allowances Per Occupancy			
Front Foot of Building Occupancy (1)	**Max. Number of Permitted Signs**	**Max. Aggregate Sign Area Calculation**	**Max. Area Per Sign**
250-feet or More	5 signs, plus one additional sign for every additional 50-feet of occupancy up to a max. of 7 signs	80% of lineal front foot of occupancy up to a max. of 500 sq. ft.	160 sq. ft.

(1) If an occupancy(s) has more than one exterior wall, the longest wall is used to calculate the sign allowance.

(2) Each occupant is allowed a minimum of twenty-four (24) sq. ft. of sign area regardless of front foot of building occupancy.

2. In lieu of the standard attached sign allowances in Table 11-43-3-D-1, a single occupant pad building under 5,000 sq. ft. of gross floor area may use the attached sign allowance in Table 11-43-3-D-2.

Table 11-43-3-D-2: Optional Attached Sign Allowances for Single Occupant Pad Buildings Under 5,000 sq. ft. of Gross Floor Area		
Max. Number of Permitted Signs	**Max. Aggregate Sign Area Calculation (1)(2)**	**Max. Area Per Sign**
4 signs	2 sq. ft. of sign area per lineal foot of the widest building elevation up to a max. of 160 sq. ft.	80 sq. ft.

(1) Sign shall not exceed more than 50% of the width of the building elevation.

(2) A single-occupant pad building is allowed a minimum of 24 sq. ft. of sign area regardless of the widest building elevation.

3. The standard allowances for detached signs per development are provided in Table 11-43-3-D-3.

Table 11-43-3-D-3: Standard Detached Sign Allowances per Development			
Max. Number/Height	**Max. Aggregate Sign Area Calculation**	**Max. Height**	**Max. Area Per Sign**
One (1) Sign: 1-foot of sign height per 10 lineal feet of street frontage **Multiple Signs:** 1-foot of sign height per 20 lineal feet of street frontage	1 sq. ft. of sign area per lineal foot of street frontage	12-feet	80 sq. ft.

4. In lieu of the standard detached sign allowances in Table 11-43-D-3, commercial use developments with a minimum of three (3) separate occupants and more than four-hundred (400) feet of frontage along a single street frontage may use the detached sign allowance in Table 11-43-3-D-4 for one (1) sign within the development.

Table 11-43-3-D-4: Optional Detached Sign Allowance for Commercial Use Development with 3 Separate Occupants and more than 400-feet of Frontage		
Max. Number/Height	**Max. Area Per Sign**	**Reference**
The 120-sq. ft. max. sign can be up to 14-feet in height and all other detached signs shall not exceed 8-feet in height	One (1) sign at a max. of 120-sq. ft. and all other detached signs shall not exceed 50 sq. ft.	Use Table 11-43-3-D-3 to determine max. allowances for all detached signs in the development

E. Attached and detached sign allowances in DB-1, DB-2, and DC (outside of the Downtown Pedestrian Area [DPA]) are provided in Table 11-43-3-E. In addition to the requirements in this Chapter, a sign in this Sub-section has the following additional requirements:

1. Attached signs must use individual letters. An attached cabinet sign is not permitted.

2. Neon signs are permitted provided the neon is complementary and harmonious with the primary color(s), style, and architecture of the building or development.

3. A comprehensive sign plan is required for sign(s) located on the upper story of a building when the building exceeds two (2) stories in height.

Table 11-43-3-E: Attached and Detached Sign Allowances per Development			
Sign Type	**Sign Area Calculation**	**Max. Number of Permitted Signs**	**Max. Height/Placement**
Attached	**General Allowance** 2 sq. ft. of sign area per front foot of building occupancy up to a max. of 120 sq. ft. All occupants allowed a min. of 32 sq. ft. (1, 2)	1 per street and 1 per alley frontage	Below parapet
	Additional Allowance Window: 30% of window	—	—
	Additional Allowance Awning: 1 sq. ft. of sign area per linear foot of awning up to a max. of 50% of awning	1 per street frontage	A min. of 8-feet above the sidewalk
Detached	1 sq. ft. of sign area per linear foot of street frontage up to a max. of 32 sq. ft.	1 per street frontage	5-feet (3)

(1) A sign attached to a single tenant building shall not exceed more than fifty percent (50%) of the width of the building elevation upon which the attached sign is placed. A sign attached to a single tenant space of a multi-tenant building, as determined by the issuance of a separate Certificate of Occupancy for the specific tenant space, shall not exceed more than seventy-five percent (75%) of the width of the front of the occupancy upon which the attached sign is placed.

(2) An attached sign is allowed on the occupant's building only.

(3) The sign copy horizontal-to-vertical ratio cannot exceed two to one (2:1).

F. Attached permanent sign allowances in DC (in the DPA), T4MS, T5MSF, T5MS, and T6MS are provided in Table 11-43-3-F.

Table 11-43-3-F: Attached Permanent Sign Allowances per Development					
Sign Type	**Max. Number of Permitted Signs**	**Sign Area Calculation, Street Frontage**	**Sign Area Calculation, Alley Frontage**	**Max. Sign Length**	**Placement**
Wall Sign (Single-Occupancy) (1, 4, 5, 7)	1 per street frontage and 1 per alley frontage	1 sq. ft. of sign area per linear foot of street frontage up to a max of 40 sq. ft.	½ sq. ft. of sign area per linear foot of alley frontage up to a max of 20 sq. ft.	50% of building	No higher than 4-feet below top of building or 25-feet from grade, whichever is less
Wall Sign (Multi-Occupancy) (1, 4, 5, 7)	1 per street frontage and 1 per alley frontage	1 sq. ft. of sign area per linear foot of street frontage up to a max of 30 sq. ft.	½ sq. ft. of sign area per linear foot of alley frontage up to a max of 15 sq. ft.	50% of building	No higher than 4-feet below top of building or 25-feet from grade, whichever is less
Awning Sign (3, 5)	1 per street frontage and 1 per alley frontage	1 sq. ft. of sign area per linear foot of awning	1 sq. ft. of sign area per linear foot of awning	50% of awning	—
Blade Sign (7)	1 per street frontage	Max. of 60% of the face of the blade	—	60% of the depth of the blade	No higher than 1-foot below the top of the blade
Hanging Sign (Parallel to Street) (6, 7)	1 per street frontage and 1 per alley frontage	10 sq. ft.	8 sq. ft.	10-feet	No higher than ceiling of the canopy and no lower than 8-feet from grade
Hanging Sign (Perpendicular to Building) (6, 7)	1 per street frontage and 1 per alley frontage	6 sq. ft.	4 sq. ft.	6-feet	Top no higher than 14-feet and bottom no lower than 8-feet from grade
Marquee Sign (7, 10)	1 per street frontage	Max. of 60% of the face of the marquee	—	60% of the length of the marquee	Below the top of the marquee
Outdoor Display Case	1	4 sq. ft.	—	—	—
Projecting Sign (1, 7, 8, 9, 11)	1 per street frontage and 1 per alley frontage	1 sq. ft. of sign area per linear foot of street frontage up to a max of 36 sq. ft.	½ sq. ft. of sign area per linear foot of alley frontage up to a max of 12 sq. ft.	—	Min. of 8-feet above pedestrian sidewalk, 14-feet above vehicular drive
Window Sign (2)	1	Max. 30% of window	—	—	—

(1) Must use individual letters. An attached cabinet sign is not permitted.

(2) A window sign is only allowed on the first and second story of the building.

(3) An awning sign is only allowed on the ground floor of the building. Two-story architectural entry elements may include an awning sign over the entry.

(4) A wall-mounted sign is allowed on the colonnade in lieu of a wall-mounted sign on the building.

(5) A comprehensive sign plan is required for a sign(s) located on the upper story of a building when the building exceeds two (2) stories.

(6) Cannot be illuminated.

(7) A neon sign is permitted provided the neon is complementary and harmonious with the primary color(s), style, and architecture of the building or development.

(8) A projecting sign mounted at the corner of the building must be installed at a forty-five-degree (45°) angle. A Projecting sign mounted on a wall parallel to the street must be mounted at a ninety-degree (90°) angle. A projecting sign must maintain a twelve (12) feet minimum separation from any other projecting sign.

(9) A projecting sign is permitted in lieu of a wall-mounted sign. A projecting sign cannot be placed on the colonnade.

(10) Exposed bulbs are allowed when the bulbs are an integral component of the design of a marquee.

(11) A projecting sign shall not extend more than four (4) feet from the face of the building and no more than two (2) feet above the parapet.

G. **ID District.** Attached and detached permanent sign allowances for properties in the ID District are permitted as follows:

1. Signs in the ID-1 District are permitted as provided in the base zoning district, unless specified otherwise in the adopted infill incentive plan, or by an adopted comprehensive sign plan approved in accordance with Section 11-45-3.

2. Signs in the ID-2 District are permitted as provided in the adopted infill incentive plan, or by an adopted comprehensive sign plan approved in accordance with Section 11-45-3.

H. **PC District.** Attached and detached permanent sign allowances for properties in the PC District shall be as specified in the community plan, or by an adopted comprehensive sign plan approved in accordance with Section 11-45-3.

I. **EO District.** Attached and detached permanent sign allowances for properties in the EO District shall be as specified in the specific EO District Development Plan, or by an adopted comprehensive sign plan approved in accordance with Section 11-45-3.

(Ord. No. 5996, § 4, 3-9-26)

11-43-4: DRIVE-THRU AND DRIVEWAY SIGNS

Driveway and Drive-Thru Lane Signs. Driveway and drive-thru lane signs do not count against the detached permanent sign allowance.

11-43-5: ELECTRONIC MESSAGE PANELS

Permanent signs may use electronic message panels, when the panel is not considered animated, and in compliance with the following requirements, as may be applicable:

A. **Standards for Message Display.** Each message is displayed for a minimum period of eight (8) seconds with no movement or motion. As defined below, message change is permitted through fade, dissolve, travel, or scrolling modes not to exceed two (2) seconds in transition.

1. ***Fade:*** A sign where static messages are changed by means of varying light intensity, where the first message gradually reduces intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

2. ***Dissolve:*** A sign where static messages are changed by means of varying light intensity or pattern, where the first message gradually appears to dissipate and lose legibility simultaneous to the gradual appearance and legibility of the subsequent message.

3. ***Travel:*** A sign where the message is changed by the apparent horizontal movement of the letters or graphic elements of the message.

4. ***Scrolling:*** A sign where the message is changed by the apparent vertical movement of the letters or graphic elements of the message.

B. **Lighting Controls Required.** The electronic message panel shall include automatic lighting control technology, such as the use of photocells, to control and vary the intensity of lighting depending on the amount of ambient light present (e.g. daytime, nighttime, partial shade or cloudy conditions).

1. ***Nighttime Illumination Limit.*** The intensity of the lighting from dusk until dawn shall not exceed a 0.3 foot-candle difference between the off and solid message measurements using the illumination measure provided in Section 11-41-7-C.

2. The electronic message panel shall not be illuminated between 11:00 p.m. and sunrise if the following conditions exist:

   a. The sign is located in or within one-hundred fifty (150) feet of Single Residence (RS), Downtown Residential 1 and 2 (DR-1 and DR-2), Multiple Residence (RM), or Small Lot Residence (RSL) zoning districts, or in a T3 Neighborhood (T3N); and

   b. There is no intervening building or other permanent structure that completely screens the electronic message panel from the residential site.

3. ***Certification.*** Prior to the issuance of a sign permit for an electronic message panel, the applicant shall provide a written certification from the owner of the sign attesting that said owner has read

and understands the provisions of this Section, Section 11-41-3-B, and 11-41-7-C, and agrees to abide by said Section, and agrees to cooperate with City of Mesa staff with regards to any nighttime testing that may be necessary should the 0.3 foot-candle limitation be at question.

C. **Wall Signs.** An electronic message panel may be used as a wall sign.

11-43-6: FLAGPOLES AND FLAGS

Flagpoles and flags shall comply with the following standards:

A. **Flagpoles.**

1. No more than three (3) flagpoles are allowed on an individual lot or parcel, or within a Group C-O-I Development. This limitation applies to model home offices in single residence subdivisions, multiple tenant non-residential developments, and similar multi-user sites. A flagpole may be wall-mounted or in-ground.

2. An in-ground flagpole may require a building permit as required by Title 4 of the Mesa City Code to ensure the flagpole is structurally sound and complies with all requirements of the Zoning Ordinance.

3. The minimum setback for in-ground flagpoles shall equal one-half (½) the setback required for a principal building as set forth by the zoning district in which it is located.

4. The height of wall-mounted and in-ground flagpoles is regulated by Section 11-30-3, Exceptions to Height Limits in the Zoning Ordinance.

B. **Flags.**

1. A sign permit is not required to display a flag.

2. The length of each flag, which is the longer side of a flag that is perpendicular to the flagpole, shall not exceed one-third (1/3) of the in-ground flagpole height on which the flag is attached. When attached to a wall-mounted flagpole, the length of the flag shall not exceed one-third (1/3) of the maximum height allowed by the zoning district in which the flag is displayed.

3. Unless otherwise required or authorized by state law, no more than two (2) flags are allowed on a flagpole, from a flag bracket, or on a flag stanchion.

4. Flags may be externally illuminated in compliance with the provisions of the Mesa Building Code.

11-43-7: FREEWAY LANDMARK MONUMENTS (FLM)

A. **Purpose and Intent.** The purpose and intent of this Section is to:

1. Promote the effectiveness of individual Freeway Landmark Monuments by preventing the over concentration, improper placement, deterioration, excessive size, and excessive number.

2. Regulate advertising distractions that may contribute to traffic accidents, thereby protecting travelers from injury or damage due to distraction or obstruction of vision, and enhancing the flow of traffic, visual environment, and the convenience, ease, and enjoyment of travel along Mesa's freeways.

3. Assure that public benefits derived from expenditures of public funds for the improvement and beautification of freeways and other public structures and spaces are protected by exercising reasonable control over the character and design of large sign structures.

B. **Applicability.** The provisions of this Section prevail if conflicts occur with other portions of the Sign Ordinance and govern Freeway Landmark Monuments, regardless of which provisions imposes a greater restriction.

C. **Eligibility Requirements.** To be eligible for a Freeway Landmark Monument, a development site must meet the following requirements:

1. ***Zoning Districts.*** The development site must be zoned Limited Commercial (LC), General Commercial (GC), Planned Employment Park (PEP), Light Industrial (LI), or General Industrial (GI). If the development site is zoned Planned Community (PC) or Infill District-2 (ID-2), a Freeway Landmark Monument may be permitted in conjunction with a commercial or industrial use, if specified as permitted in the approved Community Plan or Infill Plan.

2. ***Minimum Site Area.***

a. The development site must be at least thirty (30) contiguous acres in size.

b. This requirement may be met by one parcel of land thirty (30) acres or more in size, or a combination of adjoining parcels of land that are not separated by a right-of-way dedicated to the City, that are collectively thirty (30) acres or more in size.

3. ***Frontage.*** The development site must have frontage on a freeway and an intersecting arterial street.

D. **Authorization.** Freeway Landmark Monuments require the following recommendations and approvals:

1. Recommendation by the Design Review Board;

2. Recommendation by the Planning and Zoning Board;

3. Approval and issuance of a Council Use Permit in accordance with Section 11-70-6 of the Zoning Ordinance and the standards contained within this Section; and

4. Issuance of a sign permit in accordance with Title 11, Chapter 47 of the Zoning Ordinance.

E. **General Development Standards.** Freeway Landmark Monuments are required to comply with A.R.S. Title 28, Chapter 23, Article 1, and the development standards established in this Section.

F. **Number, Sign Area, and Height Requirements.**

1. ***Maximum Number.***

a. Eligible development sites are allowed a maximum of one (1) Freeway Landmark Monument, except as set forth in Subsection (b) below.

b. Eligible development sites with more than 2,000 linear feet of freeway frontage and that are 60 contiguous acres or more in size are allowed a maximum of two (2) Freeway Landmark Monuments.

2. ***Sign Area.***

a. The maximum sign area of a Freeway Landmark Monument is determined by the following ratio: maximum one (1) square foot of total sign area per two (2) lineal feet of freeway or arterial frontage, whichever is greater.

b. In no instance may the maximum sign area exceed 750 square feet.

3. ***Maximum Height.***

a. The maximum height of a Freeway Landmark Monument, including any support structures, attachments, and embellishments, shall not exceed sixty (60) feet, unless a modification to the maximum height is granted as set forth in Section 11-43-7(J)(l) and Subsection c. below.

b. **Height Measurement.**

i. If the natural grade at the base of a Freeway Landmark Monument is higher than, or at the same grade as the freeway, the Freeway Landmark Monument height shall be measured as a vertical distance from the average elevation of the natural grade within a 50-foot radius from all sides of the Freeway Landmark Monument base to the highest point of the Freeway Landmark Monument.

ii. If natural grade at the base of the Freeway Landmark Monument is lower than the grade of the freeway or has been reduced to provide a storm water retention basin, the heigh of the Freeway Landmark Monument shall be measured from the freeway elevation to the highest point of the Freeway Landmark Monument.

c. **Height Exception.** A modification to the maximum height limit may be granted per Section 11-43-7(J)(1), if the following are demonstrated:

i. A 60-foot-tall sign is not visible from a vehicle approaching on the same side of the freeway within a sufficient distance to permit vehicles to safely exit the freeway;

ii. The proposed sign is no higher than reasonably necessary for the topmost portion of the sign (including sign embellishment) to be visible from a vehicle approaching on the same side of the freeway and located within sufficient distance to permit vehicles to safely exit the freeway; and

iii. Visibility of sign area assigned to tenant(s) may not be used as the basis to justify additional sign height.

d. If a height modification is granted, the maximum height of a Freeway Landmark Monument may be increased but shall not exceed ninety (90) feet.

G. **Spacing Requirements.**

1. ***Freeway Landmark Monuments.***

a. No portion of a Freeway Landmark Monument may be placed within 2,000 feet of another Freeway Landmark Monument distance measured from the nearest edge of the Freeway Landmark Monument face to the nearest edge of the nearest Freeway Landmark Monument face on the same side of the freeway.

b. No more than three (3) Freeway Landmark Monuments are permitted on one (1) side of the freeway within one (1) lineal mile of freeway frontage.

2. ***Billboards.*** No portion of a Freeway Landmark Monument may be placed within 1,000 feet of a Billboard, including Billboards located on adjacent properties or in neighboring jurisdictions, the distance measured from the nearest edge of the Freeway Landmark Monument face to the nearest edge of the nearest Billboard face.

3. ***Residential Zoning District or Residential Use.***

a. No portion of a Freeway Landmark Monument may be placed within 500 feet of a Residential Zoning District (RS, RSL, or RM) or residential use unless:

i. The residential use is part of a mixed-use development; or

ii. A line-of-sight study or balloon test is conducted and demonstrates the Freeway Landmark Monument will not be visible to or from any Residential Zoning District or residential use within 500 feet.

b. In no case may any portion of the Freeway Landmark Monument be placed within 400 feet of a residential use that is not part of a mixed-use development or a Residential Zoning District.

4. ***Setback Requirements.*** Setbacks for Freeway Landmark Monuments must adhere to the standards of the underlying base zoning district except for setbacks from the freeway, in which the following setbacks shall apply:

a. *Minimum Setback from Freeway.* The minimum setback to a freeway right-of-way is zero (0) feet, distance measured from the nearest edge of the Freeway Landmark Monument face to the nearest edge of the freeway right-of-way.

b. *Maximum Setback from Freeway.* A Freeway Landmark Monument must be located within 250 feet of a freeway right-of-way, distance measured from the furthest edge of the Freeway Landmark Monument face to the nearest edge of the freeway right-of-way.

c. *Encroachment into Right-of-Way Prohibited.* No portion of a Freeway Landmark Monument shall overhang or encroach into the right-of-way.

H. **Design Standards.**

1. ***Architectural Compatibility.*** Freeway Landmark Monuments must complement the development site's primary architecture by incorporating design elements from the development site, such as, materials, form, texture, color, and finish.

2. ***Materials.*** Freeway Landmark Monuments shall be constructed with low maintenance, architectural-grade surfacing materials such as metal, masonry, ceramic tile, glass or stucco.

3. ***Project Identification.*** The project or destination name should be clearly visible and located towards the topmost visible portion of the Freeway Landmark Monument or located vertically along the side of the Freeway Landmark Monument.

4. ***Lighting Controls.***

a. *Exposed Lighting.* A Freeway Landmark Monument, or portion thereof, may be outlined by exposed neon, argon or krypton tubing, exposed incandescent lighting, or other exposed artificial lighting provided that the subject exposed lighting complies with all of the following:

i. It constitutes a design component of the overall Freeway Landmark Monument architecture;

ii. Is integrated into the primary physical elements of the Freeway Landmark Monument and is harmonious with the architectural style of the structure;

iii. Serves only the purpose of embellishing the nighttime architecture of the Freeway Landmark Monument, and does not portray an advertising message;

iv. Is compatible with the land use and architecture of adjacent developments; and

v. Complies with Section 11-41-3(B) of the Zoning Ordinance regarding signage illumination and the National Electrical Code, as evidenced by submittal of complete design plans and specifications.

b. *Internal illumination.*

i. Internally illuminated signs shall have opaque backgrounds so that only the sign copy is illuminated.

ii. Where a background is integral to the design of a corporate image or registered trademark, the background is to be colored to mute the amount of illumination.

c. *Nighttime Illumination.*

i. Nighttime illumination is limited to the sign copy or sign message.

ii. Illumination must be extinguished in nighttime hours (from 11:00 p.m. until sunrise).

d. *Maintenance.* If any component of the lighting becomes nonfunctional, none of the lighting system may be illuminated until the entire lighting system is repaired and is functioning as intended.

I. **Electronic Message Display.**

1. ***Copy Change.*** Copy may not change more than once every eight (8) seconds.

2. ***Message Animation Prohibited.***

a. Animation, video, flashing, blinking, or moving lights are prohibited.

b. In the transition between copy, there shall not be any sense of movement from one message to the next. No continuous, traveling or scrolling displays are allowed.

3. ***Electronic Message Display Lighting Controls.***

a. *Automatic Dimming.* Electronic message displays must include automatic lighting control technology to dim, control, and vary the intensity of the display based on ambient light conditions (e.g. evening and nighttime) through a photoelectric sensor that detects ambient light levels and automatically adjusts the display intensity to ensure compliance with the maximum nit levels in this Section 11-437(1).

b. *Evening Illumination.* The intensity of the electronic message display lighting shall not exceed 300 nits in full white mode in evening hours (from sunset until 11:00 p.m.).

c. *Nighttime Illumination.* Illumination of electronic message displays must be extinguished in nighttime hours (from 11:00 p.m. until sunrise).

d. *Certification.* The applicant must provide written certification from the sign manufacturer that the sign's light intensity has been factory pre-set not to exceed the limits specified above, and the intensity level is protected from end-user manipulation by password-protected software or other method.

J. **Modifications to Development Standards.** City Council may approve modifications or alternatives to the development standards in this Section upon finding:

1. ***Site Characteristics.*** The development site contains unique or unusual physical conditions, such as topography, proportion, sire, or relation the freeway that would limit or restrict visibility; or

2. ***Design.***

a. The proposed or existing development exhibits unique characteristics of land use, architectural style, development site location, physical scale, historical interest or other distinguishing feature that represents a clear variation from conventional development; and

b. Such modifications or alternatives are consistent with the intent of these Freeway Landmark Monument provisions and will result in conditions that are commensurate with or superior to the development standards contained in this Section.

K. **Maintenance.**

1. All Freeway Landmark Monuments must be maintained according to this Section 11-43-7(K).

2. It is unlawful for a Freeway Landmark Monument to remain in a damaged or deteriorated condition that constitutes a danger or hazard to public safety or a visual blight.

3. All Freeway Landmark Monuments must be maintained to the following standards of structural repair and visual appearance:

a. All structural and nonstructural components must be positioned and secured in accordance with approved plans for the Freeway Landmark Monument;

b. Any deteriorated, damaged, or weakened components must be promptly repaired or replaced;

c. All copy and painted surfaces of a Freeway Landmark Monument must be free of chipping, peeling, rusting or other oxidation of metals, and fading of colors;

d. Freeway Landmark Monuments must be maintained in working order; and

e. If a permit is required per Title 4 of the Mesa City Code for any Freeway Landmark Monument maintenance or repair activities, the permit must be obtained prior to commencing work and all work must be done in accordance with permit requirements.

(Ord. No. 5886, § 1, 11-18-24)

11-43-8: MURALS

Any portion of a mural that contains sign copy that is more than two (2) inches in height and is of sufficient size that it is readable or identifiable from beyond the lot boundary or within fifty (50) feet of the sign, whichever is greater, is counted against the maximum allowed sign area.

11-43-9: STATUES, SCULPTURES AND THREE-DIMENSIONAL FIGURES

A. **Permitted.** Signs that include statues, sculptures, or other three-dimensional figures are permitted in all Multiple Residence, Commercial, and Industrial Districts and Transects.

B. **Sign Allowance.** Fifty percent (50%) of the area of the statue, sculpture, or three-dimensional figure shall be deducted from the total allowable sign area for that tenant, development or parcel (as applicable) if it meets the following criteria:

1. The figure is either:
    a. Attached to the building and placed within one-hundred (100) feet from the nearest right-of-way; or
    b. Detached from the building and placed within one-hundred (100) feet from the nearest right-of-way; and,
2. The vertical height of the figure is more than twelve (12) feet; and,
3. The longest horizontal distance of the figure is more than ten (10) feet.

Statues, Sculptures and Three-Dimensional Figures that do not meet the criteria above will not be deducted from the total allowable sign area for that tenant, development or parcel.

11-43-10: SUBDIVISION ENTRY SIGNS

A. **Allowance.** A subdivision may display permanent signs subject to all of the following:

1. No more than two (2) entries to the subdivision may display a sign. Each entry is limited to either:
    a. Two (2) wall-mounted, single face signs; one (1) on each side of an entry; or
    b. One (1) double-faced monument sign placed on one (1) side of an entry and oriented so the long axis is perpendicular to the intersecting street.
2. Each sign shall not exceed twenty (20) square-feet of sign area.
3. Signs shall consist of low-maintenance materials; such as metal or ceramic tile.
4. Signs shall be located on private property, and not within the right-of-way.

B. **Illumination of Subdivision Entry Signs.**

1. **Source of illumination.** Subdivision entry signs may only utilize indirect lighting, such as halo illumination, or downcast exterior illumination in compliance with Section 4-1-4 of the Mesa City Code.
2. Upcast exterior illumination and interior illumination through a translucent panel are prohibited.

11-43-11: WINDOW SIGNS

Window signs are allowed and regulated as follows:

A. In zoning districts and transects as provided in Tables 11-43-3-E and 11-43-3-F.

B. In all other zoning districts:

1. Window signs may cover up to twenty-five percent (25%) of the area of the window and shall not be counted towards the maximum attached allowable sign area.

CHAPTER 44 HISTORIC SIGNS*

11-44-1: HISTORIC SIGNS

A. **Purpose and Intent.** This Section provides standards and procedures for the preservation and maintenance of a sign designated as historic. The intent of this Section is to recognize the historic character of Mesa's older commercial areas through the preservation of historic signs.

B. **Eligibility.** A sign is designated historic if it meets the following criteria:

1. The sign has been in continuous existence, at its present location, for not less than fifty (50) years and the appearance of the sign has remained substantially the same during this time-period;

2. The sign is of exemplary technology, craftsmanship, and design for the period in which it was constructed;

3. The sign uses historic sign materials from the time-period of the signs construction, and has retained those materials;

4. The sign uses some form of exposed neon lighting, electrified glass tubes, bulbs that contain rarefied neon, or another means of illumination for the time-period in which the sign was established; and

5. The sign is unique in that it demonstrates extraordinary aesthetic quality, creativity, or innovation.

C. **Application Requirements.** Only the sign owner may initiate a request for historic sign designation. The sign owner must apply, to the office of the Planning Division, in accordance with the application procedures in Chapter 67 of the Zoning Ordinance except that a Citizen Participation Plan is not required. In addition to the requirements in Chapter 67, the application must include the following:

1. A project narrative that includes:

a. The original construction date and location of the sign;

b. Statements and evidence of the height, size, location, materials and design of the sign, such as photographs, original drawings, approved permits, site plans, or other materials; and

c. Any other document(s) necessary to show the sign meets the eligibility requirements in Sub-section B.

***Editor's note—**Previously, Chapter 44 derived from Ord. No. 5457, 7-9-18.

2. A restoration and maintenance plan demonstrating:

   a. The sign is in operational order, or if the sign is not in operational order, identify the steps and the time frame necessary to make the sign operational within one-hundred and eighty (180) days. Include a list of any parts and materials that need to be replaced;

   b. The sign is structurally sound, or if the sign is not structurally sound, outline the steps and the time frame necessary to make the sign structurally sound. Explain the process that will be used to ensure the sign maintains its historic character; and

   c. Historic materials are available to continue maintenance of the sign and structure in its historic character.

D. **Review Procedures.** The Historic Preservation Officer (HPO) determines whether an application is complete. When an application is determined complete, a hearing is scheduled before the Hearing Preservation Board. The Historic Preservation Board will conduct a public hearing and render a decision. The Historic Preservation Board may approve the designation of a historic sign if the sign satisfies the review criteria in Sub-section E. The Historic Preservation Board may impose reasonable conditions to achieve the review criteria in Sub-section E, including but not limited to a statement of the character defining elements that must be maintained.

E. **Review Criteria.** When determining whether a sign is historic, the Historic Preservation Board must find that the sign(s) satisfies the following criteria:

1. The sign has been at its present location for not less than fifty (50) years.

2. The sign uses exemplary technology, craftsmanship, or design for the time-period in which it was constructed.

3. The sign uses historic materials for the time-period it was constructed and the availability of materials to maintain the historic character of the sign.

4. If the sign is not operational, the ability to restore the sign within one-hundred eighty (180) days.

5. If the sign uses exposed neon lighting, electrified glass tubes, bulbs that contain rarefied neon, or another means of illumination, it shall be from the time-period in which it was constructed.

6. The sign has a unique design that demonstrates aesthetic quality, creativity, or innovation.

F. **Public Notice.** Notice of the public hearing of the Historic Preservation Board shall be mailed at least fifteen (15) days before the scheduled hearing date by first class mail to all owners of property located within three-hundred (300) feet of the exterior boundary of the property that contains the proposed historic sign, based on the last assessment. The contents of the notice shall comply with 11-67-5-C of the Zoning Ordinance.

G. **Revocation of Historic Sign Designation.** The Historic Preservation Officer may revoke a historic sign designation if the sign is not maintained, modified, or repaired consistent with the Historic Preservation Board's findings and conditions of approval. A sign owner may appeal the Historic Preservation Officer's decision to the Historic Preservation Board, as provided in Chapter 77 of the Zoning Ordinance.

H. **Restoration, Maintenance and Repair.** The owner of a historic sign must restore, maintain, and repair the sign in accordance with this Section.

1. ***Restoration.*** Approval of a historic sign is subject to the sign being operational and restored consistent with the conditions approved by the Historic Preservation Board within one-hundred and eighty (180) days of the Board's approval. If a sign is not restored consistent with the conditions approved by the Board or is not operational within one-hundred and eighty (180) days of the Board's approval, the historic sign designation is automatically revoked. The owner of the historic sign can appeal this decision to the Historic Preservation Board as provided in Chapter 77.

2. ***Maintenance.*** Ordinary maintenance and repair of the historic sign is permitted, provided the maintenance does not change the material or design of the sign or alter the sign's character defining elements as per the Historic Preservation Board's approval.

3. ***Repair.*** If a historic sign is damaged or partially destroyed, the historic sign must either be removed, or restored or rebuilt consistent with the character defining elements of the Historic Preservation Board's approval.

4. ***Modifications.*** The Historic Preservation Officer may approve modifications to a historic sign that are consistent with the original findings and conditions approved by the Historic Preservation Board. The owner of the historic sign can appeal the Historic Preservation Office's decision to the Historic Preservation Board as provided in Chapter 77.

I. **Demolition Permits.** Prior to demolition of a designated historic sign, the consideration of a demolition permit, in accordance with the provisions in Sections 11-74-4-B-1, 11-74-4-B-2, and 11-74-4-C of the Zoning Ordinance, is required.

J. **Effect of Designation.** When a sign is designated as a historic sign and restored to its historic function and appearance:

1. The sign is exempt from the height and size requirements of this Sign Ordinance;

2. The sign is considered legal, conforming and the property on which the sign is located may redevelop without having to bring the historic sign into conformance with this Sign Ordinance; and,

3. The amount of sign area contained in the historic sign does not count toward the sign area or height allowed on the property.

CHAPTER 45 PROHIBITED SIGNS*

11-45-1: PROHIBITED SIGNS

A. The following signs are prohibited:

1. Discontinued Signs

2. Pennants, streamers, and whirligigs

***Editor's note—**Previously, Chapter 45 derived from Ord. No. 5457, 7-9-18.

3. Portable Message Center Signs.
4. Reflective Signs.
5. Animated Signs.
6. Signs that employ intermittent or flashing illumination, stereopticon, motion picture, rotation or other movement, visible moving parts, or any device creating the optical illusion of motion.
7. Signs that emit sound or odor.
8. The use of strobe lights or similar intermittent light devices, separately, or as part of a sign or to illuminate a sign.
9. Any sign which is structurally unsafe, unsafely installed, or otherwise hazardous to physical safety.
10. Signs not authorized by the property owner.

B. The following signs and conditions are prohibited:

1. Signs that are located within the right-of-way, other than signs governed by Sections 11-43-3-E and 11-43-3-F.
2. Signs that do not comply with the location, size, or use restrictions of this Sign Ordinance.
3. Signs placed so as to prevent or inhibit free ingress to or egress from any door, window, entry, exit, fire escape, building or site required by the Mesa Building Code, or by the Mesa Fire Code.
4. Signs attached to any public utility pole or structure, streetlight, tree, fence, fire hydrant, bridge, curb, sidewalk, park bench, bus bay, or other location on public property.
5. Signs placed in a location which obstructs the view of any traffic sign, signal, or other traffic-control sign, or of a vehicle operator entering, exiting, or traveling upon the right-of-way.
6. Signs that by way of shape, color, or position are confused with any authorized traffic-control or public directional sign.
7. Signs not maintained pursuant to Chapter 49.

C. The installation, construction, or display of any prohibited sign is unlawful and a violation of this Sign Ordinance.

(Ord. No. 5847, § 2, 3-4-24)

CHAPTER 46 USE PERMITS, VARIANCES, AND INTERPRETATIONS*

11-46-1: ADMINISTRATIVE USE PERMITS, SPECIAL USE PERMITS, COUNCIL USE PERMITS, AND VARIANCES

A. **Administrative Use Permits, Special Use Permits, and Council Use Permits.** If an Administrative Use Permit (AUP), Special Use Permit (SUP), or Council Use Permit (CUP) is required by this Sign Ordinance, an applicant shall apply with the office of the Planning Division. The application is processed in accordance with Chapter 67 and reviewed in accordance with Chapter 70 of the Zoning Ordinance.

***Editor's note—**Previously, Chapter 46 derived from Ord. No. 5457, 7-9-18.

B. **Variances.** An applicant requesting a variance from the provisions of this Sign Ordinance shall apply to the office of the Planning Division. The request is processed in accordance with Chapter 67 and reviewed in accordance with Chapter 80 of the Zoning Ordinance and ARS 9-462.06.

11-46-2: INTERPRETATIONS

A. **Authorization.** A person requesting an interpretation of the provision(s) of this Sign Ordinance shall make the request to the Zoning Administrator as provided in Section 11-66-7 of the Zoning Ordinance.

B. **Limits of interpretations.** An interpretation may not change the basic term(s) and provision(s) of this Sign Ordinance.

C. **Considerations required in making interpretation.** All interpretations of this Sign Ordinance are exercised with consideration of all policies, purposes, and guidelines established by the Mesa City Council, the intent set forth herein in this Sign Ordinance, and in a manner that is consistent with the First Amendment guarantee of free speech.

11-46-3: COMPREHENSIVE SIGN PLANS

A. **Authorization.** The Board of Adjustment may approve a Comprehensive Sign Plan for a proposed or existing development or building in conjunction with the granting of a Special Use Permit in accordance with Chapters 67 and 70 of the Zoning Ordinance.

B. **Purpose and Intent.** The purpose of a Comprehensive Sign Plan is to provide for the establishment of signage criteria that are tailored to a specific development or location, and which may vary from specific Sign Ordinance provisions. The intent is to provide for flexible sign criteria that promote superior design through architectural integration of the site, buildings, and signs. This does not allow for sign types that are not permitted within a zoning district.

C. **Minimum Required Elements of Comprehensive Sign Plan.** A Comprehensive Sign Plan shall include the location, size, height, construction material, color, type of illumination, and orientation of all proposed permanent and portable signs, and any other document(s) necessary to determine if the plan meets the review criteria.

D. **Review Criteria.** The Zoning Administrator Hearing Officer or the Board of Adjustment may approve a Comprehensive Sign Plan containing elements which exceed the permitted height, area, and number of signs specified in this Sign Ordinance if the Comprehensive Sign Plan conforms to the required findings in 11-70-5 of the Zoning Ordinance and upon a finding that:

1. The development site contains unique or unusual physical conditions, such as topography, proportion, size, or relation to a public street that would limit or restrict normal sign visibility; or

2. The proposed or existing development exhibits unique characteristics of land use, architectural style, site location, physical scale, historical interest, or other distinguishing features that represent a clear variation from conventional development; or

3. The proposed signage incorporates special design features such as lighting, materials and craftsmanship, murals, or statuaries that reinforce or are integrated with the building architecture.

E. **Sign Permit Required.** A sign permit is required for the construction and placement of individual signs contained in an approved Comprehensive Sign Plan.

F. **Comprehensive Sign Plan Expiration and Extensions.** The expiration and extension of Comprehensive Sign Plan approvals follows the common procedures for approvals and extensions in Section 11-67-9 of the Zoning Ordinance.

(Ord. No. 5996, § 3, 3-9-26)

CHAPTER 47 SIGN PERMITS*

11-47-1: SIGN PERMITS, INSPECTIONS, FEES, AND PENALTIES

A sign requiring a permit shall be erected, constructed, or relocated in compliance with all requirements of Title 4, Chapter 1 of the Mesa City Code including the requirements relating to permits, inspections, fees, and penalties.

11-47-2: SIGNS AND ACTIONS NOT REQUIRING A SIGN PERMIT

A. A sign permit is not required for the following signs or defined actions if such sign or action complies with the provisions of this Sign Ordinance. (Note: An electric permit is still required for any exterior electric signs.)

1. A change in sign face with no structural or electrical changes or alterations;
2. All signs six (6) square feet or less in area and not otherwise prohibited by Chapter 45 of this Sign Ordinance;
3. Unilluminated portable signs thirty-two (32) square feet or less in area, and specifically listed as permitted by Chapter 42 of this Sign Ordinance;
4. Standard sign maintenance, as defined in Section 11-50-1;
5. Relocation of a sign when required as an action of the City or another governmental agency;
6. Window Sign;
7. Flag; or
8. Vehicle Sign.

B. All other signs or actions require a sign permit.

11-47-3: SIGN PERMIT APPLICATION REQUIREMENTS

Application Requirements. An applicant must apply for a sign permit in compliance with Sections 4-1-4 of the Mesa City Code. In addition to the requirements in Section 4-1-4, the application must include:

A. All required fees;

B. Graphic depictions of the sign, in plan and elevation views, including:

1. A description of the sign type and materials used for the sign and sign structure;

***Editor's note—**Previously, Chapter 47 derived from Ord. No. 5457, 7-9-18.

2. Dimensions of the sign or sign panel defining the proposed sign area including sign copy;

3. Dimensions of the sign structure; and

4. Sign location.

C. Construction specifications, including structural calculations;

D. Specifications and designs for electrical components and wiring (if applicable);

E. The method of attachment if the sign is attached to a building or similar structure;

F. Design of structural members for attached signs; and

G. Scale drawings depicting the following:

1. Location(s) and distance(s) of the leading edge of the sign (attached or detached) that is closest to:

a. The adjacent property line(s) that is not coterminous with a right-of-way line;

b. The future width line of the closest adjacent street; and

c. The right-of-way; and

2. The zoning for the parcel where the proposed sign(s) are located and the zoning for all abutting parcels.

H. Demonstrated conformance with the conditions of any approved use permit.

I. Demonstrate there are no unauthorized signs on the property by providing current photographs of the entire property.

11-47-4: GENERAL PROVISIONS

A. **Public or Private Nuisance.** A sign permit issued by the City does not constitute permission or authorization to maintain a public or private nuisance, and does not constitute a defense in any action to abate a nuisance.

B. **Sites Displaying Existing Prohibited Signs.** The City will not issue a sign permit for new or additional signs if a site currently displays an unlawful or prohibited sign(s). The City may issue a sign permit provided the term of the permit specifies the modification or removal of all unlawful or prohibited signs on the property.

C. **Conformance with Approved Plans.** A sign for which a sign permit is issued shall be constructed, installed, maintained, or displayed in complete conformance with all terms, requirements, and stipulations specified by the approved plans and sign permit, including visual appearance requirements as specified in Section 11-43-3.

11-47-5: REQUIRED INSPECTIONS

A sign which requires a sign permit is subject to the following inspections, unless waived by the Building Official or designee:

A. Footing inspections on all detached signs, including situations where square footage or panels are added to existing detached signs.

B. Electric inspections on all electrical signs, prior to placement.

C. Final inspection which includes structural members, height, design, materials, and area.

D. Any other inspections required by Title 4 of the Mesa City Code.

11-47-6: SIGN PERMIT REQUIRED FOR COMPREHENSIVE SIGN PLAN

A sign permit is required for a sign(s) authorized by an approved Special Use Permit for a Comprehensive Sign Plan. The applicant must submit a sign permit application prior to the expiration of the Special Use Permit.

11-47-7: SIGNS PLACED WITHIN FUTURE WIDTH LINE OF RIGHT-OF-WAY

A. A sign permit for a sign(s) proposed within the future width line of right-of-way as specified in Section 11-2-3-L of the Zoning Ordinance, and not within the right-of-way, is allowed if authorized by:

1. An approved variance, or

2. As a replacement sign in accordance with Section 11-47-2-A-5 of this Sign Ordinance.

B. The sign owner must enter into the City's sign agreement. The sign agreement requires approval by the Planning Director. The City, upon receipt of an executed sign agreement, will issue a sign permit. The sign owner is responsible for the cost of relocating the sign(s), at the owners' expense, to an authorized location outside of the right-of-way when the right-of-way is widened or when required by the City in conjunction with a public improvement.

C. The sign owner must submit a Certificate of Insurance that complies with the City's current insurance requirements.

11-47-8: APPEAL OF DENIAL OR REFUSAL TO ISSUE A SIGN PERMIT

When the Building Official or designee, in consultation with the Zoning Administrator, refuses to issue a sign permit on the grounds of violation of this Sign Ordinance, the applicant or the owner of property owner may appeal the decision to the Board of Adjustment in accordance with Section 11-77-3 of the Zoning Ordinance. When the Building Official or designee refuses to issue a sign permit on the grounds of violation of the Building or Electrical Code, The applicant or the owner of the property may appeal such decision to the Building Board of Appeals in accordance with Title 4 of the Mesa City Code.

11-47-9: REVOCATION AND EXPIRATION OF A SIGN PERMIT

A. Pursuant to Title 4 of the Mesa City Code, the Building Official or designee may suspend or revoke a sign permit.

B. A sign permit expires if work under the sign permit is not commenced within one-hundred eighty (180) days of the issuance of the sign permit. The Building Official or designee may extend the sign permit if an applicant submits a request in writing demonstrating justifiable cause.

CHAPTER 48 LEGAL NONCONFORMING SIGNS*

11-48-1: MAINTENANCE, ALTERATION, OR REMOVAL OF LEGAL NONCONFORMING SIGNS

A. A legal nonconforming sign shall be maintained and may continue only in the manner and to the extent that it existed at the time of adoption of this Sign Ordinance, amendment to this Sign Ordinance, or extension of boundaries because of annexation into the Mesa corporate limits.

B. A legal nonconforming sign structure shall not be re-erected, relocated, or replaced unless it is brought into compliance with the requirements of this Sign Ordinance. If property is rezoned at the request or initiation of the property owner, including the opt-in process, the City, as a condition of the zoning, may require any nonconforming sign or sign structure be removed or brought into conformance with the provisions of this Sign Ordinance.

C. Any legal nonconforming sign shall be removed or rebuilt in full conformity to the terms of this Sign Ordinance if it is damaged or allowed to deteriorate to such an extent that the cost of repair or restoration is fifty-percent (50%) or more of the cost of reconstruction of the sign. In the event the sign is considered prohibited or discontinued, the sign shall be removed.

D. Existing detached signs located within the future width line of a street, as specified in Section 11-2-3-L, are not subject to the limits and conditions specified in Section 11-48-1-A through C provided the signs are in compliance with all other applicable provisions of this Sign Ordinance.

11-48-2: LEGAL NONCONFORMING SIGNS ON A SEVERED PARCEL

A. Notwithstanding any other provision of this Chapter, legal nonconforming signs that are located on a parcel of property which is severed from a larger parcel of property and acquired by a public entity for public use by condemnation, purchase, or dedication, may be relocated on the remainder parcel without extinguishing the legal nonconforming status of that sign if the nonconforming sign:

1. Is not increased in area or height;

2. Remains structurally unchanged except for reasonable repairs or alterations;

3. Is placed in the same relative position on the remaining property that it occupied prior to the relocation; and

4. Is relocated in a manner to comply with all applicable safety requirements.

B. After relocation, pursuant to this Sub-section, the legal nonconforming sign is subject to all provisions of this Sign Ordinance.

***Editor's note—**Previously, Chapter 48 derived from Ord. No. 5457, 7-9-18.

CHAPTER 49 MAINTENANCE, REMOVAL, DISPOSAL, VIOLATIONS, AND ENFORCEMENT*

11-49-1: MAINTENANCE

A. **General Provisions.** All conforming and legal nonconforming signs and sign structures, shall be maintained according to this Chapter. It is unlawful for a sign or sign structure to remain in a damaged, deteriorated condition that constitutes a danger or hazard to public safety or a visual blight. All signs shall be maintained to the following standards of structural repair and visual appearance:

1. All structural and nonstructural components are positioned and secured in accordance with approved plans for the sign;
2. Any deteriorated, damaged, or weakened components are promptly repaired or replaced;
3. All sign copy and painted surfaces of a sign are free of chipping, peeling, rusting or other oxidation of metals, and fading of colors, as detectable from beyond the lot boundary or within fifty (50) feet of the sign, whichever is less;
4. Components composed of plastic, acrylic, and other artificial or non-organic material compositions are free of cracks, holes, buckling, or any other condition affecting the strength and stability of the component, as detectable from beyond the lot boundary or within fifty (50) feet of the sign, whichever is less; and
5. Electrical signs are maintained in working order. Minimum maintenance requirements for electrical signs and electrical systems include but are not limited to: prompt removal and replacement of all defective bulbs, fluorescent tubes, neon or other inert gas light segments, damaged or deteriorated electrical wiring and diodes, and malfunctioning control devices and related circuitry.

B. If a permit is required per Title 4 of the City Code for any sign or sign structure maintenance or repair activities, the permit must be obtained prior to commencing work.

11-49-2: DETERIORATED SIGNS

A. A sign that is damaged or deteriorated:

1. Constitute a danger or hazard to public safety, and
2. A sign is considered visual blight, particularly when the following conditions are present:
   a. The sign is not repaired shortly after being damaged, and remains damaged;
   b. A sign continues to deteriorate, generally because of lack of basic maintenance or repair; or
   c. A sign cannot fully function or operate as designed, generally because of a lack of basic maintenance or repair.

B. A sign that remains damaged, deteriorated, or shows evidence of a lack of basic maintenance is prohibited.

C. Evidence of lack of basic maintenance shall include, but is not limited to:

1. Peeling, faded or deteriorating paint;
2. Cracked damaged, rusting or missing parts, posts or sign cabinets;

***Editor's note—**Previously, Chapter 49 derived from Ord. No. 5457, 7-9-18.

3. Incomplete, uneven or partial illumination (applicable to signs intended as illuminated), including non-functional light sources;

4. Faded, cracked, or damaged sign panels;

5. Any condition affecting the strength and stability of the component;

6. Electric signs no longer in working order, including: defective bulbs, tubes, neon light segments, damaged or deteriorating electrical wiring, and malfunctioning control devices and related circuitry.

11-49-3: PENALTIES FOR LACK OF SIGN MAINTENANCE

It is a violation of this Sign Ordinance for the owner of a sign to fail to maintain, repair or replace defective, malfunctioning, or broken parts of the sign, as described in this Chapter.

11-49-4: REMOVAL OF SIGNS

A. **Declaration of a Public Nuisance.** A sign is a public nuisance when in violation of the requirements of the Mesa City Code.

B. **Notice.** Before removing or bringing action to require the removal of any illegal, prohibited, or nonconforming sign, except for those signs in Sub-section D below, the City Manager or designee shall provide notice to the owner of the sign or the owner of the premises on which the sign is located. The notice shall state the reasons for removal, listing the deficiencies or defects in the sign with reasonable definiteness, and the penalties. The notice shall include what repairs or maintenance, if any, will make the sign conform to the requirements of the City Code. The notice shall specify that the sign must be removed or made to conform with the requirements of the Mesa City Code within the time-period identified in this Chapter. Service of notice shall be by any of the following methods:

1. By first class mail, postage prepaid, addressed to the owner, occupant, agent, manager, or responsible person at the last known address. Service by mail is deemed complete upon deposit in the U.S. mail;

2. By certified or registered mail;

3. Hand delivery to the record owner, occupant, agent, manager, or responsible person of the premises where the violation occurred, or to the person responsible for the violation;

4. By publication; or

5. By serving the owner, occupant, agent, manager, or responsible person in the same manner as provided by the Arizona Rules of Civil Procedure.

C. **Notice Period.** The notice period for permanent signs is twenty-eight (28) days and the notice period for portable signs is three (3) days. If the owner or lessee of the premises where the sign is located has not complied with this Chapter by the end of the notice period, the City Manager or designee may pursue enforcement as authorized in Section 11-49-5 of this Sign Ordinance.

D. **Notice Not Required.** The City Manager or designee is not required to provide written notice before removing or bringing action to require the removal of the following:

1. A sign that is placed within the right-of-way in violation of this Sign Ordinance;
2. A Prohibited or illegal sign placed on public property;
3. A sign that creates an immediate threat to public safety; and
4. A sign that is dangerous or defective.

E. **Removal of Signs.** The City Manager, or designee, is authorized to remove any sign posted in violation of this Sign Ordinance that are not removed or replaced by the owner or other responsible party when required in accordance with the provisions of this Sign Ordinance. The City may also file a civil complaint against the person who posted the sign to recover the costs of removing the sign.

F. **Disposal of Signs.** A sign removed in accordance with this Chapter may be impounded as evidence, or disposed of as abandoned property, unless claimed by the owner within thirty (30) days. Any sign removed by the City Manager or designee, pursuant with the provisions of this Sign Ordinance, shall become the property of the City and may be disposed in any manner deemed appropriate by the City. The cost of removal of the sign by the City is considered a debt owed to the City by the owner of the sign and the owner of the property, and is recoverable in an appropriate court action by the City, or by assessment against the property in accordance with Chapter 79 of the Zoning Ordinance. The cost of abatement or removal shall include any and all incidental expenses incurred by the City in connection with the sign abatement or removal.

11-49-5: VIOLATIONS

A. It is unlawful and constitutes a public nuisance for any person, firm, or corporation to construct, place, install, alter, change, maintain, or use any sign contrary to or in violation of any provision:

1. Of this Sign Ordinance;
2. Designated as a condition of approval of a land use action required by the Zoning Ordinance; or
3. Designated as a condition of approval for a sign or building permit.

B. The installation, construction, or display of any illegal or prohibited sign is unlawful and a violation of this Sign Ordinance.

11-49-6: ENFORCEMENT

Enforcement of the provisions of this Sign Ordinance shall be pursuant to the provisions contained in Chapter 79 of the Zoning Ordinance.

CHAPTER 50 DEFINITIONS OF TERMS USED IN THE SIGN ORDINANCE*

11-50-1: GENERAL PROVISIONS RELATED TO DEFINITIONS

This Chapter lists definitions of terms used primarily in chapters and sections of this Sign Ordinance (Article 5 of the Mesa Zoning Ordinance), but may be applicable as the context demands for other related portions of the

***Editor's note—**Previously, Chapter 50 derived from Ord. No. 5457, 7-9-18.

Zoning Ordinance and Mesa City Code. The terms are listed in alphabetical order. The photographs and illustrations used in this Chapter are intended to provide generalized examples and illustrate broad concepts, and are not to be used as exclusive or limited examples, or considered regulatory in nature. If a conflict exists between what is illustrated by the drawing or photograph, and the narrative text description in the definition, then the narrative text description is considered the controlling definition.

11-50-2: DEFINITIONS: A THROUGH C

Abandoned Sign: See Discontinued Sign.

Advertising For Hire Sign: As defined in Chapter 87 - Definitions.

Awning Sign: A sign that is a part of or attached to an awning.

Billboard: As defined in Chapter 87 - Definitions.

Blade Sign: A sign attached to a thin or narrow architectural feature of a building façade that projects from the building façade, typically at a ninety-degree (90°) angle.

Cabinet Sign: An internally illuminated sign in which a removable sign face, usually with translucent sign graphics, is enclosed within a single case, and the source of illumination is not visible. A cabinet sign may be multi-faced.

Canopy Sign: See Awning Sign.

Copy: The letters, numerals, figures, symbols, illustrations, logos, and graphic characters used to make up the sign message.
(Ord. No. 5847, § 3, 3-4-24)

11-50-3: DEFINITIONS: D THROUGH F

Discontinued Sign: A sign or sign structure located on a property that has been vacant or unoccupied for a consecutive period of one-hundred eighty (180) days or more, regardless of whether the owner intends to abandon the sign.

Downtown Pedestrian Area: The Downtown Pedestrian Area (DPA) is designated, as depicted in Figure 11-50-3-A below, as the east side of Country Club Drive to the west side of Mesa Drive, the south side of 1st Street to the north side of 1st Avenue. The centerline of the streets shall be construed to be the boundaries. This area is characterized as the most intensely developed governmental, cultural, and business core.

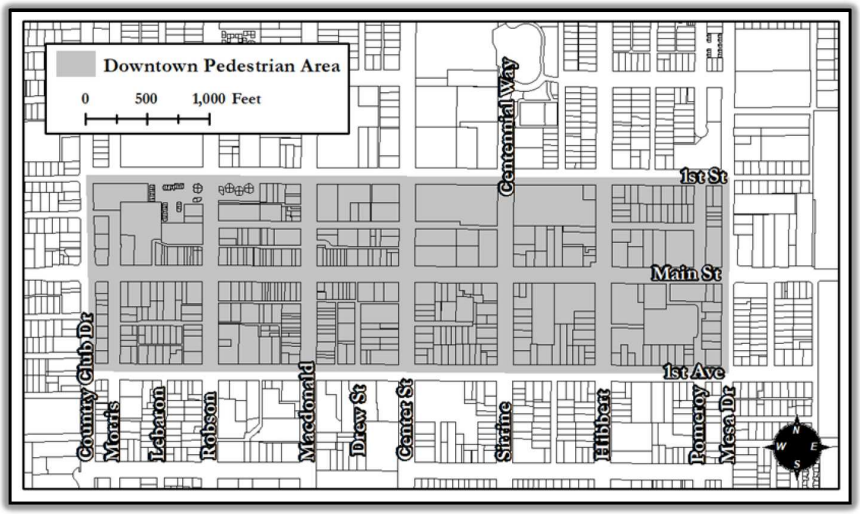


FIGURE 11-50-3-A: DOWNTOWN PEDESTRIAN AREA

Drive-thru Sign: A detached permanent sign not exceeding thirty-two (32) square feet in area and eight (8) feet in height located within five (5) feet of a drive-thru lane where the sign copy is designed to be readable only by the occupants of a vehicle in the drive-thru lane and the sign copy is not readable across a property line unless the property line is shared between parcels within the same Group C-O-I Development.

Driveway Sign: A detached permanent sign not exceeding three (3) square feet in area and three (3) feet in height located within five (5) feet of a driveway or drive aisle and within twenty (20) feet from a future width line of the adjacent public street.

Electric Sign: Any sign containing electrical wiring which is attached or intended to be attached to an electrical energy source, does not include signs illuminated by an exterior light source that is not an integral part of the sign.

Electronic Message Panel: A sign that is capable of displaying copy that is electronically or mechanically changed by remote or automatic means.

Embellishment: Structural or decorative elements of a sign incorporating representations of the significant architectural features of the associated building or development; does not include the portion of the sign structure counted as the sign area.

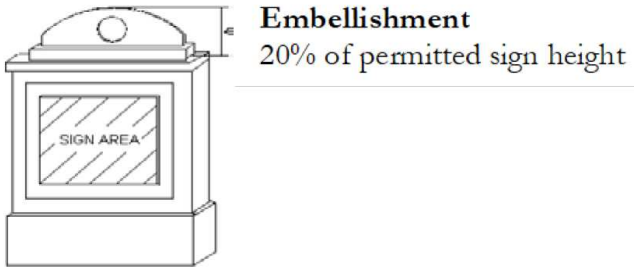


FIGURE 11-50-3-B: EMBELLISHMENT

Flashing Illumination: Illumination in which the artificial source of light is intermittent in intensity and/or color.

Freestanding Sign: Same as Permanent Sign, Detached.

Freeway Landmark Monument: A sign structure which exceeds sixteen (16) feet in height or one-hundred twenty (120) square feet in area, and is intended to be visible from an adjacent designated state or federal freeway.

Front Foot: The maximum lineal dimension of an exterior wall, excluding canopies and projections, measured on a straight-line parallel to a fronting street. For purposes of this definition, all pad buildings and pad occupancies within a Group C-O-I Development, located on a corner parcel, are defined as having exterior walls fronting on both streets.

11-50-4: DEFINITIONS: G THROUGH K

Government Sign: Any sign, posting, or notice constructed, posted, installed, maintained or required by a city, county, federal, or state governmental agency in carrying out its responsibility to protect the public health, safety, and welfare, including but not limited to, emergency and warning signs necessary for public safety or civil defense; posting of legal notices; official traffic, fire, and police signs, signals, and devices; traffic signs, traffic control devices, or streets signs erected and maintained by an authorized public agency; signs showing the location of public facilities; signs for government sponsored events; signs placed by the government on buildings of historical significance; and government speech pursuant to case law. Government signs are allowed in every zoning district and are not governed by this Sign Ordinance.

Grade: The top of curb or edge of pavement where no curb exists.

Hanging Sign: A sign suspended from, and located entirely under a covered porch, covered walkway, or an awning.

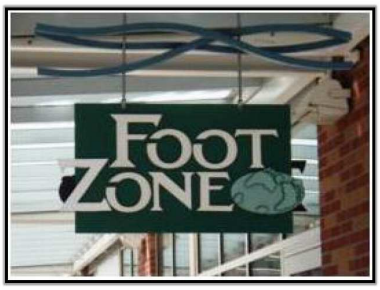


FIGURE 11-50-4-A: HANGING SIGN: PERPENDICULAR TO THE BUILDING



FIGURE 11-50-4-B: HANGING SIGN: PARALLEL TO THE STREET

Height: The vertical distance to the top of a sign, excluding embellishment, measured from the nearest curb, sidewalk, or street grade.

11-50-5: DEFINITIONS: L THROUGH N

Legal Nonconforming Sign: Any permanent sign which is not permitted by this Sign Ordinance, but which, when first constructed, was legally permitted by the City or the political subdivision then having jurisdiction and regulation over the construction of the sign.

Maintenance: The repair or replacement in-kind of individual sign components including paper, fabric, or plastic copy panels; electrical wiring and bulbs; or paint, stucco, or other exterior finishes. Shall not include the replacement of metal or wood cabinets, structural faces, supporting structural members, primary uprights, posts and poles, or the sign in its entirety.

Monument Sign: A detached permanent sign mounted or incorporated into a solid, self-supporting base.

Mural: A painted work of visual art or pictorial representation applied to or incorporated into a structure or wall, with the exception of a window, that can be viewed from public places, alleys, rights-of-way. A painted work of visual art or pictorial representation applied to or incorporated into a window is a window sign.
(Ord. No. 5593, § 11, 12-1-20)

11-50-6: DEFINITIONS: O THROUGH R

Off-site Sign: As defined in Chapter 87 - Definitions.

Outdoor Display Case: A sign consisting of a lockable metal or wood framed cabinet with a transparent window or windows, mounted onto a building wall or freestanding support.

Permanent Sign, Attached: A sign made of durable material permanently anchored to a building or wall.

Permanent Sign, Detached: A sign which is intended to and is constructed in a manner that is permanent, on its own foundation and structural supports, and is detached from any supporting elements of a building. Sign structures are constructed of materials, such as brick, stone, metal, concrete, carved wood that is treated for durability when exposed to the weather, or related materials considered durable and of architectural quality.

Pole Sign: A permanent detached sign supported by one (1) or more uncovered or exposed uprights, supports, or braces.

Portable Message Center Sign: A portable sign larger than eight (8) square feet mounted, painted, placed on, attached or affixed to a trailer or resting atop the ground without penetrating the surface.



FIGURE 11-50-6-A to C: EXAMPLES OF PORTABLE MESSAGE CENTER SIGNS

Portable Sign: A sign constructed of fabric, canvas, vinyl, cardboard, foam-core, plywood, sheet metal, plastic, or other light weight material that is neither permanently installed in the ground nor permanently affixed to a building or structure. Portable signs include signs resting atop the ground, or affixed to the ground by a temporary anchoring system such as, but not limited to, stakes or ballast or footing for large portable signs. This definition includes a-frame, t-frame, attached rigid, detached rigid, yard, detached banner, and wall banner sign.



FIGURE 11-450-6-D through I: EXAMPLES OF PORTABLE SIGNS

Projecting Sign: A sign attached to a building or structure in such a manner that its face is not parallel to the building or structure to which it is attached.



FIGURE 11-50-6-J through N: EXAMPLES OF PROJECTING SIGNS

Public Transportation Sign: A sign installed as part of a City transit program that is located at a bus or transit stop, bus or transit shelter facility, bike share station, bus or bike kiosk, or other bus, transit or bike structure.

Roof Sign: A sign placed on a flat or sloped roof.
(Ord. No. 5847, § 4, 3-4-24)

11-50-7: DEFINITIONS: S THROUGH V

Sign: Any identification, description, illustration, symbol, or device which is designed to identify, announce, direct, or inform, which is affixed or painted directly or indirectly upon a building, vehicle, structure, or land that is visible from:

1. Beyond the property boundaries except within a Group C-O-I Development; or
2. Beyond the perimeter boundaries of a Group C-O-I Development; or
3. The right-of-way.

Sign Structure: The supports, uprights, braces and framework of a sign.

Vehicle Sign: A sign mounted, painted, placed on, attached or affixed to a trailer, watercraft, truck, automobile, or other form of motor vehicle. The term shall not include a symbol, mark, or other medium of identity that is intrinsic, inherent, or otherwise belonging to the vehicle by nature of its manufacture, or a license plate frame, bumper sticker, spare tire cover, or similar appurtenance.

11-50-8: DEFINITIONS: W THROUGH Z

Wall Sign: A permanent or portable sign mounted flat against or painted on the wall of a building or structure with the exposed face of the sign in a plan parallel to the face of the wall. This does not include window signs.

Window Sign: A sign that is applied to, placed on, affixed to, or painted on a window; or suspended or placed in front of or thirty-six (36) inches behind a window so that it is visible from the exterior of the building or structure.

CHAPTER 51 BILLBOARDS

11-51-1: BILLBOARDS

A. Billboards, including Off-Site Signs, and Advertising for Hire Signs, are prohibited in all zoning districts except that Billboards, including Off-Site Signs, and Advertising for Hire Signs, are permitted in an approved Billboard Overlay District in compliance with Chapter 25 of the Zoning Ordinance.

B. Billboards, including Off-Site Signs, and Advertising for Hire Signs, are governed by and must comply with Chapter 25 - Billboard Overlay District.

(Ord. No. 5847, § 5, 3-4-24)

CHAPTERS 52—55 (RESERVED FOR FUTURE USE)

[The next page is T11:501]

ARTICLE 6
FORM-BASED CODE

CHAPTER 56 FORM-BASED CODE OVERVIEW*

11-56-1: PURPOSE

The purpose of the Form-Based Code is to implement the community's vision for a vibrant, walkable, mixed-use urban environment in downtown Mesa and surrounding areas. The standards outlined in the following chapters are intended to:

A. Preserve and enhance community character.

B. Encourage appropriately-scaled infill and development.

C. Reinforce a pattern of walkable neighborhoods and retrofit those that are not walkable.

D. Support a diverse range of housing options at appropriate locations along the Transect.

E. Foster and sustain small local businesses.

F. Establish a framework of well-designed streets that are safe and accessible for pedestrians and cyclists.
(Ord. No. 5948, § 1, 7-1-25)

11-56-2: AUTHORITY AND APPLICABILITY

A. The Form-Based Code (FBC) replaces the zoning regulations for parcels designated with a Transect Zone.

1. ***Area of Initial Application.*** In its initial application, the FBC was applied to the Downtown and Pioneer/Temple Neighborhoods as a floating zone, as shown on Map 11-56-2.A.1 below. The rezoning to a designated transect zone is made effective through completion of the opt-in process (Subsections C and D, below).

2. ***Areas of Future Use.*** FBC and transect zones may be established in other areas of the City as set forth in Chapter 63: Smart Growth Community Plans (SGCP).

3. ***Relationship of FBC to Zoning Ordinance.*** This FBC is a subpart of the Zoning Ordinance. All provisions of the Zoning Ordinance apply within the areas mapped with Transect Zones unless otherwise provided in Article 6: Form-Based Code.

4. ***Applicability of Non-Transect Development Standards.*** The FBC shall be considered in combination with any applicable standards in Article 3: Overlay Districts and Chapter 31 of Article 3: Standards for Specific Uses. Requirements referenced in Chapter 30: General Site Development Standards may be applicable when directly referenced as part of a requirement of Article 6: Form-Based Code.

***Editor's note—**Ord. No. 5948, § 1, adopted July 1, 2025, repealed the former Ch. 56, §§ 11-56-1—11-56-7, and enacted a new Ch. 56 as set out herein. The former Ch. 56 pertained to similar subject matter and derived from Ord. No. 5514, § 1, 7-8-19.



MAP 11-5602.A.1: DOWNTOWN AND PIONEER/TEMPLE NEIGHBORHOODS REGULATING PLAN

B. **Designation of Transect Zones, Status of Existing Zoning Districts, and Optional Use of Floating Zone.** When adopting a regulating plan, the City Council may change the existing zoning district to a transect zone or retain the existing zoning district until such time as a property owner chooses to opt-in to the transect zone (floating zone).

1. When a floating zone is adopted, if the existing zoning district is retained, a property owner may continue to apply the standards of the non-transect zone to the entire parcel (see Subsection D, below) or, may choose to designate the entire parcel as, and apply the standards of a transect zone, pursuant to the Opt-in Procedures in this Section.

2. In no case may a parcel be developed using a mixed set of standards from both transect and non-transect zones at the same time, unless a transect requirement makes reference to a non-transect standard.

C. **Opt-In Procedures.** To opt-in, a property owner shall sign before a notary public a "Form-Based Code Opt-In" form prepared by the Zoning Administrator and approved by the City Attorney's Office.

1. Such form shall state that the Transect Zone standards are in effect for the identified parcel(s) as of the signature date of the Opt-in Form.

2. The requirements of the previous zoning district are no longer applicable for that site.

3. Any future development shall conform with the standards of the FBC.

D. **Other Agreements.** If conflicts occur between the requirements of this FBC and applicable standards adopted by City Council as part of any other agreement, the more restrictive requirements shall apply.

(Ord. No. 5948, § 1, 7-1-25)

11-56-3: EFFECT ON EXISTING DEVELOPMENT AND LAND USES AFTER OPT-IN TO FBC

A. **Complies with FBC.** Existing development and land uses that comply with all applicable requirements of Article 6: Form-Based Code of this Title may continue to operate and shall only be altered or replaced in compliance with Article 6: Form-Based Code.

B. **Non-compliance with FBC.** Any development or land use that was lawfully built in conformance with non-Transect Zone requirements (the Zoning Ordinance), and does not comply with the requirements effective for the applicable Transect Zone, shall be considered as legal, but nonconforming, and may continue to operate in compliance with the City's regulations for nonconformities in the Zoning Ordinance (see Zoning Ordinance Chapter 36: Nonconforming Uses, Structures and Lots). Sites that are non-conforming relative to site development standards may redevelop or expand only in conformance with the following:

1. Existing structures may stay in place without modification or demolition, except as necessary to accommodate redevelopment or expansion.

2. When the expansion of an existing development amounts to an increase of 20% or less of the existing floor area, up to a maximum of 1,000 square feet, then such expansion may proceed in accordance with any conditions attached to the Zoning Clearance by the Planning Director.

3. When expansion of an existing development amounts to a 21% or greater increase of the existing floor area, or the total floor area exceeds 1,000 square feet, then such expansion may only proceed

in accordance with an approved Substantial Conformance Improvement Permit (SCIP), as per Chapter 73 of this Ordinance. Said SCIP application shall be reviewed prior to issuance of a Zoning Clearance.

(Ord. No. 5948, § 1, 7-1-25)

11-56-4: PERMIT PROCESSING, REZONING AND ADMINISTRATION

A. **Processing and Procedures.** The standards, permits, procedures, and other requirements of this Code shall be administered and enforced per Zoning Ordinance requirements, unless specifically stated otherwise in this FBC.

B. **Text Amendments.** Text amendments to this FBC, or to adopted regulating plans, shall be processed in accordance with the procedures and standards found in Chapter 76: Amendments to Zoning Map.

C. **Rezoning of Parcels within Adopted Regulating Plans.**

1. ***Parcels within Adopted Regulating Plans - Rezone from One Transect Zone to Another Transect Zone.*** Amendments to the floating zone (Transect Zones) as shown on Map 11-56-2.A.1 shall be processed in accordance with the procedures and standards in Chapter 76: Amendments to Map.

2. ***Properties Outside of Adopted FBC Mapped Area(s) - Rezone from a Non-Transect Zone to a Transect Zone.***

a. Requests for Transect Zones outside of areas with adopted regulating plans shall include all Smart Growth Community Plan (Chapter 63) requirements when an application includes a request for a regulating plan and the project involves:

i. Parcels of ten (10) acres or greater; or

ii. Parcels designated by City Council as a redevelopment site.

b. Requests for Transect Zones on parcels other than those described by Subsection C(2)(a), above:

i. Parcels or project sites abutting and/or coterminous with an existing regulating plan may request rezoning to a Transect Zone in conformance with Chapter 76: Amendments to Zoning Map in the Zoning Ordinance. Such rezoning to a Transect Zone shall be a natural extension of the standards adopted in the abutting and/or coterminous regulating plan and include the updating of that regulating plan to include the area being rezoned.

ii. Other parcels may request rezoning to a Transect Zone only by determination of the Planning Director that a successful application will result in more complete conformance with goals and objectives as found in the Mesa General Plan, applicable sub-area plans, and other adopted Council policies, than the use of non-Transect Zones and requirements.

D. **Conditional Use Permit Procedures.** Uses or activities of the FBC requiring an Administrative Use Permit, Council Use Permit, Special Use Permit, or Temporary Use Permit shall be processed according to the requirements of Chapter 70: Conditional Use Permits.

E. **Zoning Clearance - Review Process for FBC Compliant Projects.**

1. ***Zoning Clearance Required Before Application for Building Permit.*** Prior to submitting a building permit, an application for a Zoning Clearance shall be filed with the Development Services Department, who shall then review the project for compliance with the requirements of FBC.

   a. *Fee Payment.* Payment of a fee for this service shall be in accordance with the adopted Planning Division fee schedule.

   b. *Planning Director Referral.* The Planning Director may refer an application to the Design Review Board if, in the Planning Director's judgement, the project meets one (1) or more of the following criteria or otherwise warrants public review:

      i. The project has unusual site constraints, infrastructure demands, or design complexities; or

      ii. The project represents a major public or private investment with significant potential community or economic impact.

2. ***Zoning Clearance Issuance.*** Zoning Clearance is issued after the Planning Director, or designee, determines the project complies with the minimum requirements of the FBC and Design Review, if applicable. Zoning Clearance allows an application to be filed for a construction or a building permit in accordance with Title 4 of the Mesa City Code. Concurrent review of applications for building permit and FBC Zoning Clearance may be requested and allowed upon agreement by both the Planning Director and Building Official.

3. ***Zoning Clearance Modification.*** Any modification to an issued Zoning Clearance shall be reviewed according to the review process in Subsection (1) above.

F. **Variances.** In the event that an applicant believes special circumstances applicable to a property, a variance may be requested in accordance with provisions set forth in Chapter 80: Variances.

G. **Administrative Modifications to Form-Based Code Standards.**

1. ***Purpose and Intent.*** The purpose of this section is to provide an administrative process to allow minor administrative modifications to specific standards of Article 6: Form-Based Code (FBC). The intent of this section is to allow relief when the application of specific FBC standards creates practical difficulties developing the property and to allow flexibility in order to create high quality development while maintaining the intent of the FBC which focuses on physical form rather than the separation of uses as an organizing principle.

2. ***Process for Requesting Administrative Modification.*** An applicant may only apply for an administrative modification under this section concurrently with an application for Zoning Clearance, Administrative Use Permit, Special Use Permit, or Council Use Permit. An administrative modification may be requested for a single building or for a specified area. An application for an administrative modification must include a narrative that specifically identifies and describes the administrative modification sought.

3. ***Eligible Modifications.*** An administrative modification is limited to and must comply with the following limitations and requirements:

   a. No more than a 10% increase to the maximum build-to line.

b. No more than a 10% reduction of a required side and/or rear setback if adjacent to public right-of-way or public open space.

c. No more than a 10% reduction to the required façade within the façade zone.

d. No more than a 20% reduction to the ground floor and upper floor ceiling heights for building types with 12 or less units.

e. A reduction in the required ground floor building transparency if the project is located outside of the Downtown Pedestrian Area (DPA). Any reduction in the required ground floor building transparency shall include pedestrian scale design, building articulations and fenestrations, and superior façade materials such as brick, stone, architectural precast concrete, etc.

f. No more than 10% increase or reduction of any other exterior design feature not specifically stated above.

4. ***Administrative Decision Process and Review Criteria.*** An administrative modification can be approved as submitted, approved with conditions or modifications, or denied. The basis for approval or denial will be included in the written decision. An administrative modification shall only be granted if the Planning Director determines that the requested modification strictly complies with Subsection (3) of this Section and conforms to all of the following findings:

a. Conforms to the purpose and intent of the City's General Plan and Zoning Ordinance.

b. Conforms to the intent of the Transect Zone for the proposed development.

c. Does not change the intended building types and form within a Transect Zone.

d. Results in a superior building design standard including pedestrian scale design.

e. Is necessary for the proposed development.

5. ***Administrative Modification Request Referral.*** The Planning Director may refer a request for an administrative modification to the Design Review Board for review and recommendation. If referred to the Design Review Board, the applicant shall address the recommendations of the Design Review Board. The Planning Director shall have the final authority to approve the request for administrative modifications. Any request for a modification other than those listed above is considered major and shall follow the processes established in the Zoning Ordinance.

6. ***Appeals.***

a. *Process.* The applicant, the property owner, or any other person aggrieved by a decision may appeal the Planning Director's decision to the Planning and Zoning Board in accordance with Section 11 -77 of the Zoning Ordinance. If the Planning Director refers the request to the Design Review Board, an applicant or property owner may appeal the Design Review Board decision to City Council in accordance with Chapter 77: Appeals of the Zoning Ordinance.

b. *Evaluation of Administrative Modification Appeals.* Appeals of an administrative modification decision are reviewed using the same standards and criteria required for the decision.

(Ord. No. 5948, § 1, 7-1-25; Ord. No. 5996, §§ 3, 4, 3-9-26)

CHAPTER 57 RESERVED*

CHAPTER 58 BUILDING FORM STANDARDS†

This Chapter provides regulatory standards for land use and building form within the Transect Zones.
(Ord. No. 5948, § 1, 7-1-25)

11-58-2: APPLICABILITY

A. The standards within this Chapter shall apply to all proposed development within Transect Zones.

B. For Nonconforming Uses, Structures, and Lots, See Chapter 36 (Nonconforming Uses, Structures, and Lots).

(Ord. No. 5948, § 1, 7-1-25)

11-58-3: LAND USE REGULATIONS

Table 11-58-3.A provides the land use regulations for all Transect Zones.

- "P" designates permitted uses.
- "AUP" designates use classifications permitted on approval of an Administrative Use Permit.
- "SUP" designates use classifications permitted on approval of a Special Use Permit.
- "CUP" designates use classifications permitted on approval of an Council Use Permit.
- "TUP" designates use classifications permitted on approval of a Temporary Use Permit.
- "(x)" a number in parenthesis refers to limitation following the table.
- "-" designates a prohibited use.

Separate requirements exist for ground floor uses, uses on upper floor(s), and uses behind an allowed ground floor use.

Table 11-58-3.A: Composite Use Table

Land Use[1]	Specific Use Regulations	T3N	T4N	T4NF	T4MS	T5N	T5MSF	T5MS	T6MS
Recreation & Public Assembly									
Commercial Recreation Facility									
Small, Indoor		-	-	P	P	-	P	P	P
Medium, Indoor		-	-	SUP[7]	SUP[7]	-	SUP[7]	AUP[2, 7]/P	AUP[2, 7]/P
Large, Indoor		-	-	CUP[7]	CUP[2, 7]	-	CUP[7]	CUP[2, 7]	CUP[2, 7]
Outdoor		-	-	CUP[7]	CUP[2, 7]	-	CUP[7]	CUP[2, 7]	CUP[2, 7]

***Editor's note—**Ord. No. 5948, § 1, adopted July 1, 2025, repealed the former Ch. 57, § 11-57-1. The former Ch. 57 pertained to maps.

†Editor's note—Ord. No. 5948, § 1, adopted July 1, 2025, repealed the former Ch. 58, §§ 11-58-1—11-58-12, and enacted a new Ch. 58 as set out herein. The former Ch. 58 pertained to similar subject matter, and derived from Ord. No. 5514, § 1, 7-8-19; Ord. No. 5576, § 1, 6-1-20; Ord. No. 5632, § 1, 7-8-21; Ord. No. 5758, § 1, 12-8-22; Ord. No. 5759, § 1, 12-8-22; Ord. No. 5813, § 1(Exh. 1), 10-16-23.

Table 11-58-3.A: Composite Use Table									
Land Use[1]	**Specific Use Regulations**	**T3N**	**T4N**	**T4NF**	**T4MS**	**T5N**	**T5MSF**	**T5MS**	**T6MS**
Civic Space	§ 11-62	P	P	P	P	P	P	P	P
Health/Fitness Facility									
≤3,000 sf		-	-	P[2]	P[2]	-	P[2]	P[4]	P[2]
>3,000 sf		-	-	SUP[7]	SUP[7]	-	SUP[7]	AUP[4, 7]/P	AUP[2, 7]/P
Library; Museum									
≤5,000 sf		P	P	P	P	P	P	AUP	AUP
>5,000 sf		CUP	CUP	CUP	CUP	CUP	AUP	CUP	CUP
Meeting Facility, public or private									
≤5,000 sf		P	P	P	AUP/P[2]	P	P	AUP/P[4]	AUP/P[2]
5,001 to 20,000 sf		SUP	SUP	SUP	SUP	SUP	SUP	SUP	SUP
>20,000 sf		CUP	CUP	CUP	CUP	CUP	CUP	CUP	CUP
Place of Worship									
≤5,000 sf		P	P	P	AUP/P[2]	P	P	AUP/P[4]	AUP/P[2]
5,001 to 20,000 sf		SUP	SUP	SUP	SUP	SUP	SUP	SUP	SUP
>20,000 sf		CUP	CUP	CUP	CUP	CUP	CUP	CUP	CUP
Schools, Colleges, and Trade Schools									
Colleges or Universities, Private	§ 11-31-24	-	-	CUP	CUP	P	CUP	CUP	CUP
Colleges or Universities, Public		P	P	P	P	P	P	P	P
Commercial Trade Schools, Private	§ 11-31-24	P	P	CUP	CUP	P	CUP	CUP	CUP
Commercial Trade Schools, Public		P	P	P	P	P	P	P	P
Industrial Trade Schools, Private	§ 11-31-24	P	P	CUP	CUP	P	CUP	CUP	CUP
Industrial Trade Schools, Public		P	P	P	P	P	P	P	P
K-12, Private	§ 11-31-24	P	P	CUP	CUP	P	CUP	CUP	CUP
K-12, Public		P	P	P	P	P	P	P	P
Studio, art, dance, martial arts, music, etc.									
≤1,500 sf		-	-	P	P	-	P	AUP/P[4]	AUP/P[2]
1,501 to 3,000 sf		-	-	AUP	AUP	-	P	P[4]	P[2]
>3,000 sf		-	-	SUP	SUP	-	P	P[4]	P[2]
Theater, cinema or performing arts									
≤5,000 sf		-	-	P	P	-	P	P	P
5,001 to 10,000 sf		-	-	AUP	AUP	-	AUP	P	P
>10,000 sf		-	-	SUP	SUP	-	SUP	AUP	AUP
Residential									
Boarding House		-	SUP	SUP	SUP[2]	SUP[2]	SUP[2]	SUP[2]	-
Community Residence									
Family Community Residence	§ 11-31-14	P	P	P	P[2]	P	P	P[4]	P[2]

Table 11-58-3.A: Composite Use Table									
Land Use[1]	**Specific Use Regulations**	**T3N**	**T4N**	**T4NF**	**T4MS**	**T5N**	**T5MSF**	**T5MS**	**T6MS**
Transitional Community Residence	§ 11-31-14	P	P	P	P[2]	P	P	P[4]	P[2]
Dwellings:									
Accessory Dwelling Unit	§ 11-31-3	P	P	P	P	P	P	P	P
Single-Unit Residence		P	P	P	-	-	-	-	-
Multi-Unit Residence		P	P	P	P[2]	P	P	P[4]	P[2]
Home Occupation:									
Main Building, ≤300 sf, ≤2 employees		P[5, 6]	P	P[5, 6]	P[2, 5, 6]	P[5, 6]	P[5, 6]	P[4, 5, 6]	P[2, 5, 6]
Main Building, >300 sf, >2 employees		SUP[5, 6]	SUP[5, 6]	AUP[5, 6]	-	-	-	-	-
Accessory Structure, ≤600 sf, ≤4 employees		P[5, 6]	P[5, 6]	P[5, 6]	-	-	-	-	-
Accessory Structure, >600 sf, >4 employees		SUP[5, 6]	SUP[5, 6]	SUP[5, 6]	-	-	-	-	-
Retail									
General Retail, except with any of the following features:		-	-	P	P	-	P	P	P
Alcoholic Beverage Sales Series 10 Liquor License		-	-	AUP	P	-	P	P	P
Alcoholic Beverage Sales Series 9 Liquor License		-	-	SUP	P	-	P	P	AUP
Tenant floor area 5,000 to 10,000 sf		-	-	SUP	AUP	-	P	P	P
Tenant floor area 10,001 to 25,000 sf		-	-	SUP	SUP	-	AUP	AUP	AUP
Tenant floor area >25,000 sf		-	-	-	-	-	SUP	SUP	SUP
On-site production of items sold		-	-	SUP	AUP	-	AUP	AUP	AUP
With Drive-Thru Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
With Pick-Up Window Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
Pawn Shop		-	-	-	CUP	-	-	CUP	-
Eating or Drinking Establishments									
Eating or Drinking Establishment, except with any of the following features:		-	-	P	P	-	P	P	P
Tenant floor area >5,000 sf		-	-	P	P	-	P	P	P
Tenant floor area >10,000 sf		-	-	-	SUP	-	SUP	AUP	AUP
Bars/Clubs/Lounges		-	-	CUP	CUP	-	P	P	P
Restaurants, Bar and Grill		-	-	SUP	SUP	-	P	P	P
With Drive-Thru Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
With Pick-Up Window Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
Providing entertainment		-	-	SUP	AUP	-	SUP	AUP	AUP
With outdoor eating areas	§ 11-31-19	-	-	P	P	-	P	P	P
Services									
Personal Services, except with any of the following features:		-	-	P	P	-	P	P	P
Tenant floor area 2,500 sf to 5,000 sf		-	-	AUP	P	-	P	P	P
Tenant floor area 5,001 sf to 10,000 sf		-	-	-	AUP	-	P	P	P

Table 11-58-3.A: Composite Use Table									
Land Use[1]	**Specific Use Regulations**	**T3N**	**T4N**	**T4NF**	**T4MS**	**T5N**	**T5MSF**	**T5MS**	**T6MS**
Tenant floor area >10,000 sf		-	-	-	SUP	-	SUP	AUP	AUP
With Drive-Thru Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
With Pick-Up Window Facilities	§ 11-31-18	-	-	-	-	-	-	-	-
Bank; Financial Services		-	-	P	P	-	P	P	P
With Drive-Up ATM/Teller Window	§ 11-31-18	-	-	P	P	-	P	P	P
Business Support Services		-	-	AUP	P	-	P	P	P
Social Service Facilities	§ 11-31-26	-	-	CUP	CUP	-	CUP	CUP	-
Tattoo and Body Piercing Parlors		-	-	-	P	-	P	P	-
Day Care, child or adult:									
Large Day Care Home	§ 11-31-13	P	P	P	P[2]	P	-	-	-
Small Day Care Home	§ 11-31-13	P	P	P	P[2]	P	P[2]	P[2]	P[2]
Day Care Center		-	-	P	P[2]	-	P	P[4]	P[2]
Small Animal Day Care		-	-	SUP	AUP[2]	-	AUP	SUP[2]	-
Lodging:									
Bed and Breakfast		P	P	P	P[2]	P	P	P[4]	-
Hotel		-	-	-	P[2]	-	P	P[4]	P[2]
Hostel		-	-	-	-	-	P	P[4]	P[2]
Inn/Lodge		-	-	P	P	P	P	P[4]	P[2]
Kennel		-	-	SUP	AUP[2]	-	AUP	SUP[2]	SUP[2]
Medical Services:									
Hospital		-	-	CUP	CUP	-	CUP	CUP	-
Medical/Dental Clinic		-	-	SUP	P[2]	-	P[2]	P[2]	P[2]
Medical/Dental Office		-	-	P	P[2]	-	P	P[4]	P[2]
Skilled Nursing Facility		-	-	P	P[2]	-	P	P[2]	P[2]
Veterinary Services		-	-	P[2]	P[2]	-	P[2]	AUP[4]	P[2]
Office: Professional, administrative:									
≤5,000 sf		SUP[3]	SUP[3]	P	P[2]	SUP[3]	P	P[4]	P[2]
>5,000 sf		-	-	SUP	AUP[2]	-	P	P[4]	P[2]
Transportation, Communications, and Utilities									
Parking Facility, public or commercial		-	-	-	P	-	P	P	P
Stealth Wireless Telecommunications Facility	§ 11-35	SUP	SUP	SUP	SUP	SUP	SUP	SUP	SUP
Public Safety Facility									
≤1,000 sf		P	P	P	P	P	P	P	P
>1,000 sf		SUP	SUP	SUP	SUP	SUP	SUP	SUP	SUP
Accessory Uses									
Outdoor Display	§ 11-31-20	-	-	P	P	-	P	P	P
Recycling, Small collection Facility	§ 11-31-23	-	SUP	SUP	-	-	-	-	-
Temporary Event Parking	§ 11-31-29	-	-	SUP	SUP	-	SUP	SUP	SUP
Temporary Outdoor Entertainment	§ 11-31-30	TUP	TUP	TUP	TUP	TUP	TUP	TUP	TUP
Temporary Outdoor Sales	§ 11-31-30	-	-	TUP	TUP	-	TUP	TUP	TUP
Footnotes:									
[1] See Chapter 64 (Definitions of Terms and Uses) for use type definitions									

Table 11-58-3.A: Composite Use Table									
Land Use[1]	**Specific Use Regulations**	**T3N**	**T4N**	**T4NF**	**T4MS**	**T5N**	**T5MSF**	**T5MS**	**T6MS**
[2] Allowed only on upper floor(s) or behind an allowed ground floor use.									
[3] Allowed only within a Level 1 Historic Structure, as identified in the City of Mesa Historical Survey, 1984, through issuance of a Special Use Permit.									
[4] Not allowed on the ground floor unless behind an allowed ground floor use, except the use may occupy up to 50% of the ground floor if: 1) The development site is 5 acres or more; 2) The building where the ground floor use is located is greater than 100,000 square feet and has more than 200 linear feet of frontage on a front street; 3) The ground floor space is designed and will be constructed to an assembly occupancy class (as that term is defined in the Mesa Building Code); 4) The design of the project encourages transition of the ground floorspace to active commercial uses in the future by complying with FBC building form and private frontage standards for commercial uses; 5) The building design, site design, and amenities of the project are unique and conform to the intent and purpose of the FBC.									
[5] Interior or exterior commercial storage is not permitted on the home occupations site.									
[6] Conditional Use Permit review shall evaluate the compatibility of the proposed building frontage type with adjacent buildings.									

(Ord. No. 5948, § 1, 7-1-25)

11-58-4: T3 NEIGHBORHOOD (T3N) STANDARDS

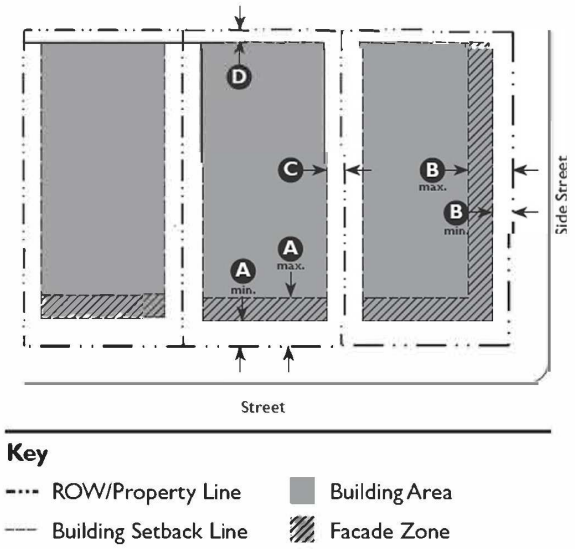
A. Zone Intent and Description

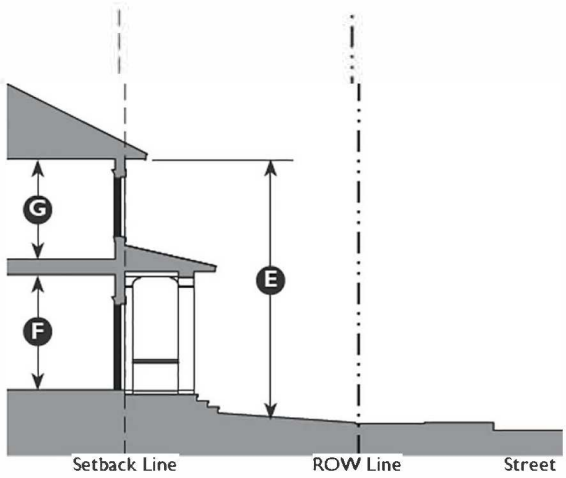
To provide a walkable predominantly single-family neighborhood that integrates appropriate multifamily housing types such as duplexes, mansion apartments, and bungalow courts within walking distance to transit and commercial areas.



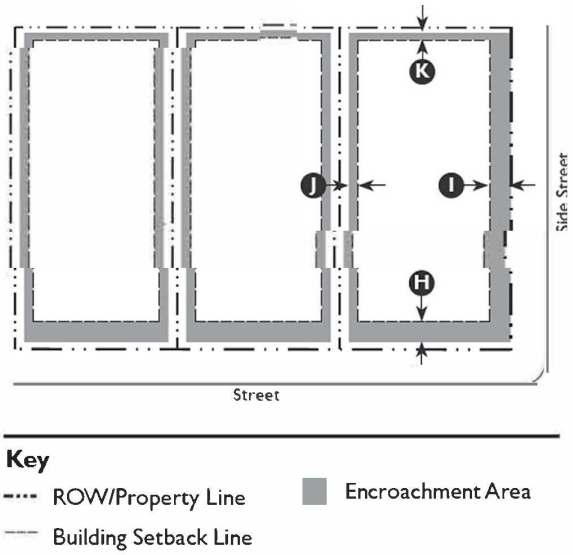
B. Building Types

Allowed Building Types	Carriage House Single Unit House, Village Single Unit House, Cottage Bungalow Court Duplex Mansion Apartment	See Chapter 59: Building Type Standards for descriptions and regulations

C. Building Placement		
		
Setbacks (Distance from Property Line/ROW)		
Main Building		
Front	15' min.[1, 2], 25' max.[2]	A
Side Street	10' min.; 20' max.	B
Side	5' min.[3]	C
Rear	30' min.	D
Accessory Structure		
Front	15' min.[4]	
Side Street	10' min.	
Side	5' min.[3]	
Rear	5' min.	
Accessory Dwelling Unit[5]		See Section 11-31-3: Accessory Dwelling Unit
Façade within Façade Zone		
Front	50% min.	
Side Street	50% min.	
Miscellaneous		
Only one Main Building and one Accessory Structure may be built on each lot.		
D. Building Form		

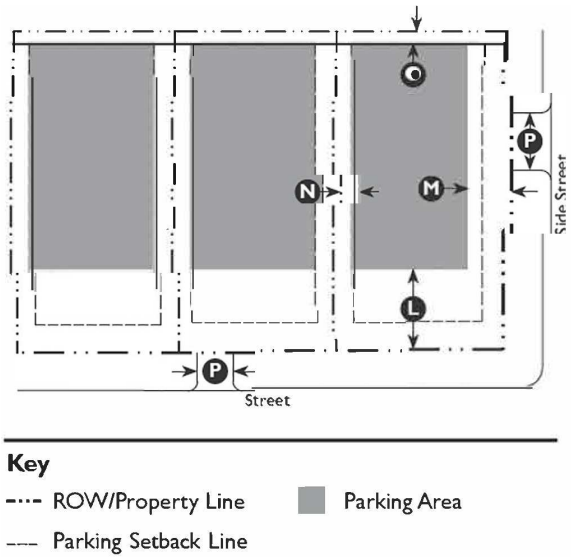


Height		
Main Building	2 Stories max.	E
Ground Floor Ceiling	10' min. clear	F
Upper Floor(s) Ceiling	9' min. clear	G
Accessory Structure	1½ stories max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
Footprint		
Per Building Type Standards (see Chapter 59).		
E. Encroachments		



Allowed Encroachments

Front	10' max.[6]	H
Side Street	10' max.[6]	I
Side	2'-6" max.[6]	J
Rear	2'-6" max.[6]	K
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types		
F. Private Frontage Types		
Allowed Private Frontage Types	Common Yard Porch, Engaged Porch, Projecting Stoop	See Chapter 60: Private Frontage Standard for private frontage type descriptions and regulations
G. Parking		



Required Spaces		
Residential Uses	1 space per unit min.[7]	
Location (Distance from Property Line/ROW)		
Front Setback	20' min.[8]	L
Side Street Setback	15' min.[8]	M
Side Setback	5' min.	N
Rear Setback	5' min.	O

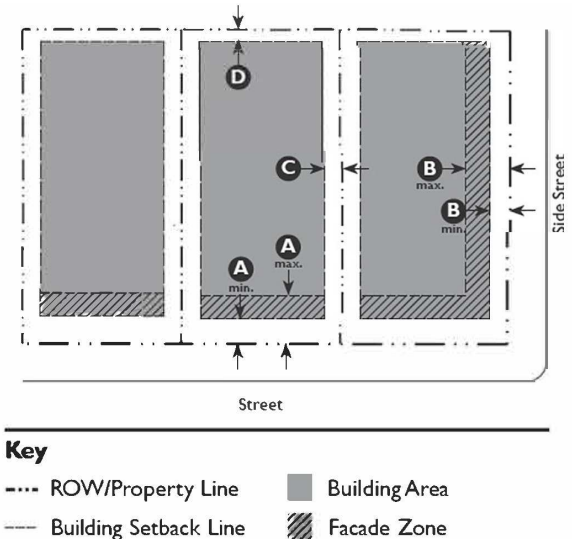
Parking Access Drive		
Width	12' max.	Ⓟ
Footnotes:		
1. Where existing adjacent buildings are located closer to the street than the regulated front setback, a new building may be aligned with the façade of the front most immediately adjacent property.		
2. For parcels within a designated historic district, the minimum and maximum front setbacks are determined by the setbacks of the existing buildings along the block.		
3. No side setback required along the common property line between townhouse and/or duplex building types or for accessory structures when in conjunction with a townhouse or duplex building type.		
4. Accessory Structures may not be placed in front of the main building regardless of the minimum setback.		
5. Only allowed in conjunction with Single-Unit House, Village: Single-Unit, Cottage, and Duplex Building Types.		
6. Encroachments are not allowed within a street or public alley, or across a property line.		
7. No additional parking is required for Accessory Dwelling Units.		
8. Parking must be placed at least five (5) feet behind the building's façade.		

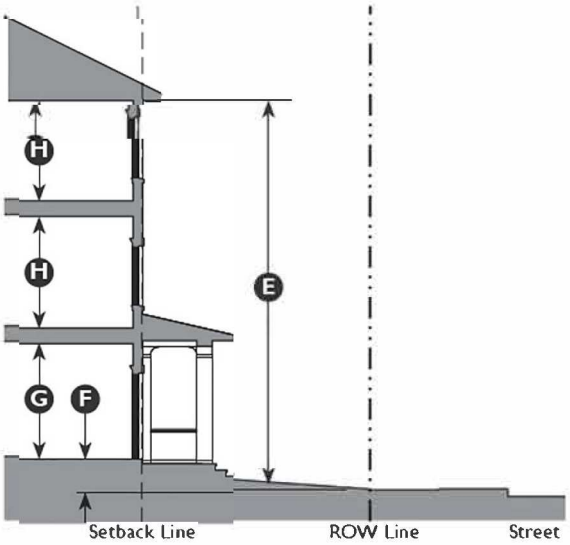
(Ord. No. 5948, § 1, 7-1-25)

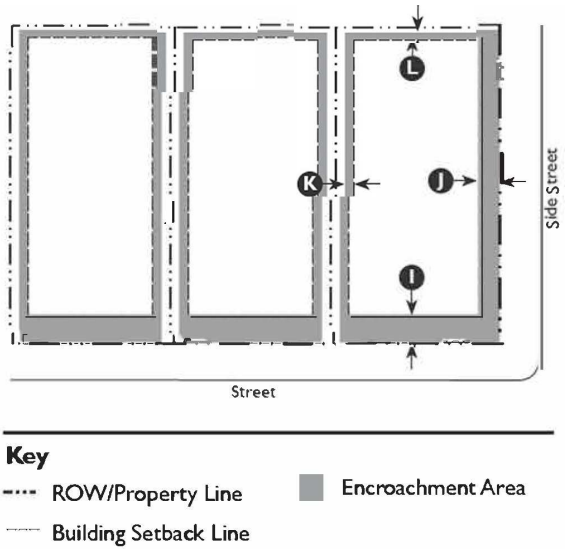
11-58-5: T4 NEIGHBORHOOD (T4N) STANDARDS

A. Zone Intent and Description
To provide high quality, medium-density residential building types such as townhouses, small courtyard housing, mansion apartments, duplexes, or fourplexes, all within walking distance to transit and commercial areas.

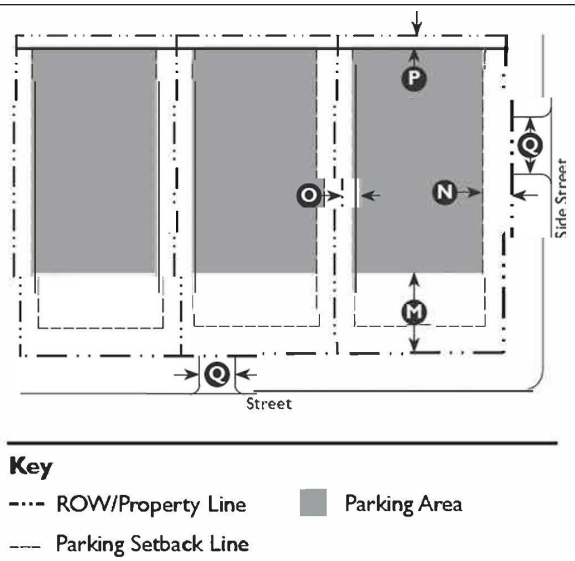
B. Building Types

Allowed Building Types[1]:	Carriage House Single-Unit House, Village Single-Unit House, Cottage Bungalow Court Duplex Townhouse Mansion Apartment Apartment House Courtyard Building Mid-Rise Main Street Mixed-Use	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		
		
Setbacks (Distance from Property Line/ROW)		
Main Building		
Front	10' min.; 15' max.[1]	A
Side Street	5' min.; 10' max.	B
Side	5' min.[2]	C
Rear	5' min.	D
Accessory Structure		
Front	10' min.[3]	
Side Street	5' min.	
Side	5' min.[2]	
Rear	5' min.	

Accessory Dwelling Unit[4]		See Section 11-31-3: Accessory Dwelling Unit
Façade within Façade Zone		
Front	75%	
Side Street	75%	
D. Building Form		
		
Height		
Main Building	4 stories max.[5]	E
Ground Floor Finish Level	18" min.	F
Ground Floor Ceiling	10' min. clear	G
Upper Floor(s) Ceiling	9' min. clear	H
Accessory Structure	2 stories max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
Footprint		
Per Building Type Standards (see Chapter 59).		
Miscellaneous		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		



Allowed Encroachments		
Front	10' max.[6]	I
Side Street	5' max.[6]	J
Side	2'-6" max.[6]	K
Rear	2'-6" max.[6]	L
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types		
F. Private Frontage Types		
Allowed Private Frontage Types	Porch, Engaged Porch, Projecting Stoop Forecourt Dooryard	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
G. Parking		



Required Spaces		
Residential Uses	1/1,000 sf min.[7]	
Location (Distance from Property Line/ROW)		
Front Setback	15' min.[8]	M
Side Street Setback	10' min.	N
Side Setback	5' min.	O
Rear Setback	5' min.	P
Parking Access Drive		
Width	12' min.[9]	Q

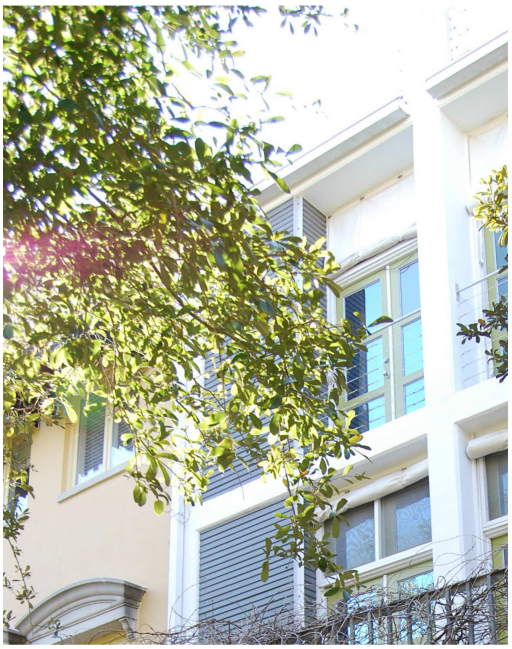
Footnotes:

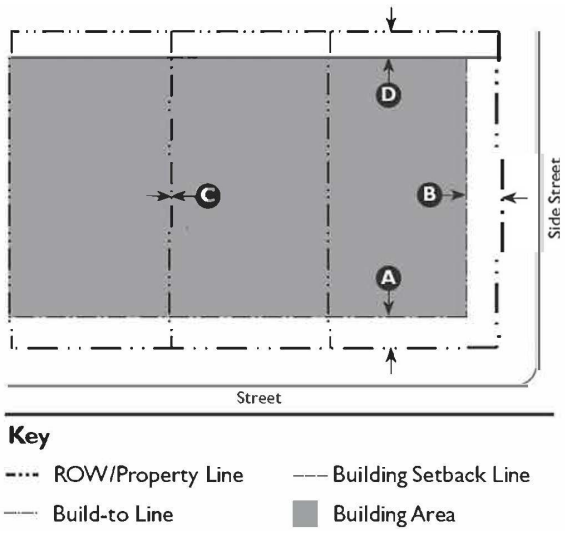
1. Where existing adjacent buildings are in front of the regulated BTL, the building may be set to align with the façade of the front most immediately adjacent property.
2. No side setback required along the common property line between townhouse and/or duplex building types or for accessory structures when in conjunction with a townhouse or duplex building type.
3. Only allowed in conjunction with Carriage House and Single-Unit House, Single-Unit House, Village, and Cottage Building Types.
4. Accessory Structures may not be placed in front of the main building regardless of the minimum setback.
5. Five (5) stories maximum permitted for buildings with more than 25% affordable or senior housing or for LEED Gold (or equivalent) certified buildings.
6. Encroachments are not allowed within a street, public alley, or across a property line.
7. No parking spaces required for the first 2,000 sf of residential use, affordable housing units, senior housing units, or Accessory Dwelling Units.

8. Parking must be placed at least five (5) feet behind the building's façade.
9. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

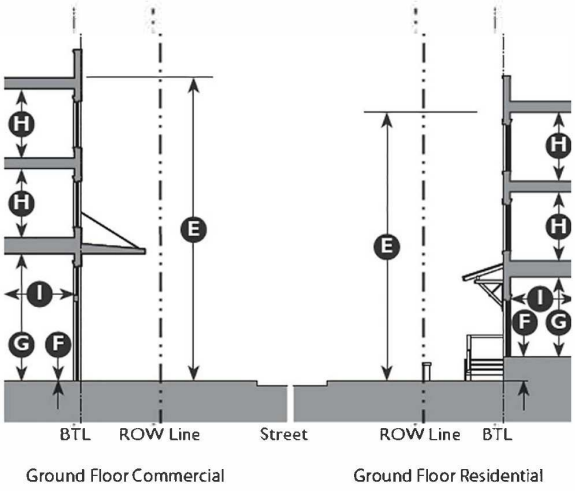
(Ord. No. 5948, § 1, 7-1-25)

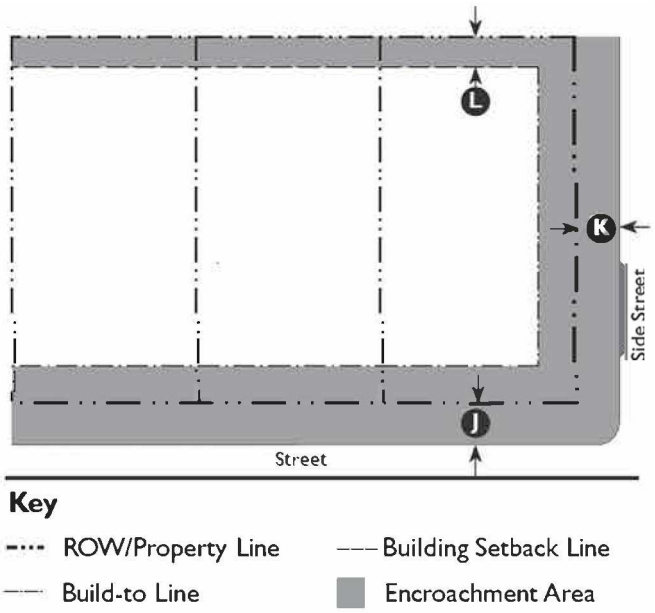
11-58-6: T4 NEIGHBORHOOD FLEX (T4NF) STANDARDS

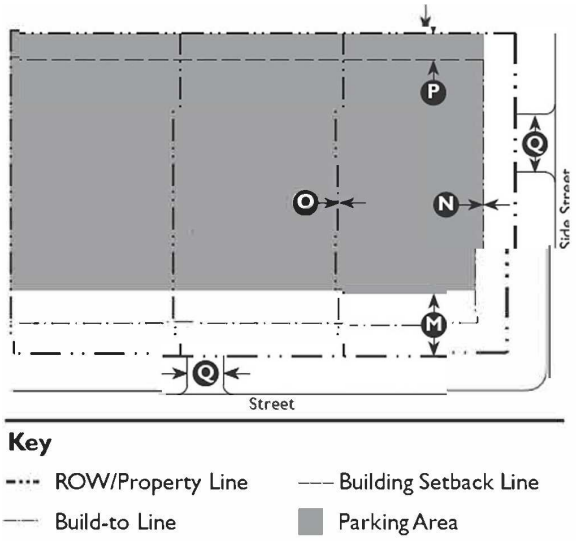
A. Zone Intent and Description		
To provide flexible areas that can accommodate smaller, neighborhood-serving commercial uses in a main street form while allowing for interim uses such as live/work and ground floor residential until the commercial corridor matures.		
		
B. Building Types		
Allowed Building Types	Carriage House Single-Unit House, Cottage Bungalow Court Duplex Townhouse Mansion Apartment Apartment House Courtyard Building Mid-Rise Main Street Mixed Use	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		



Build-to Lines (Distance from Property Line/ROW)		
Front	0' min.; 15' max.[1, 2]	A
Side Street	0' min.; 15' max.	B
Build-to Lines Defined by a Building		
Front, Lots <50' wide	100%[3]	
Front, Lots ≥50' wide	75% min.[3, 4]	
Side Street	50% min.[3, 4]	
Building Façade at Front BTL	75% min.	
Setbacks (Distance from Property Line/ROW)		
Main Building		
Side	0' min.	C
Rear		D
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to All Other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Accessory Structure		
Side	0' min.	
Rear		
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to all other Transect Zones	0' min.	
Adjacent to Alley	0' min.	

Accessory Dwelling Unit[5]		See Section 11-31-3: Accessory Dwelling Unit
Miscellaneous		
A building form with a chamfered corner is permitted only if a corner entry is provided.		
D. Building Form		
		
Height		
Main Building	20' min.; 4 stories max.[6]	E
Ground Floor Finish Level		F
Residential BTL/Setback <8'	24" min.	
Residential BTL/Setback ≥8'	18" min.	
Commercial	6" max.	
Ground Floor Ceiling		G
Residential Commercial	10' min. clear[7] 14' min. clear	
Upper Floor(s) Ceiling	9' min. clear	H
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space		I
Residential Commercial	20' min. 15' min.	
Distance Between Entries		

Ground Floor	100' max.	
Miscellaneous		
Upper Floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		
		
Allowed Encroachments		
Front	14' max.[8]	J
Side Street	14' max.[8]	K
Rear	5' max.[8]	L
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types		
F. Private Frontage Types		
Allowed Frontage Types	Porch, Projecting Porch, Engaged Stoop Forecourt Dooryard Shopfront Gallery Arcade	See Chapter 60: Private Frontage Standards for descriptions and regulations
G. Parking		



Required Spaces		
Residential Uses	1/1,000 sf min.[9, 11]	
Retail and Service Uses	2/1,000 sf min.[10, 11, 12]	
Location (Distance from Property Line/ROW)		
Front Setback	5' min.[13]	M
Side Street Setback	0' min. from BTL	N
Side Setback	0' min.	O
Rear Setback		P
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to all other Transect Zones	0' min.	
Adjacent to Alley	0'	
Parking Access Drive		
Width	12' min.[14]	Q
Miscellaneous		
All garages shall be screened from the front and the street by habitable space.		
Footnotes:		
1. Where existing adjacent buildings are in front of the regulated BTL, the building may be set to align with the façade of the front most immediately adjacent property.		
2. The exact location of the BTL, within the range listed above shall be established by the first building along each block frontage to receive Planning Division approval. All subsequent buildings along that block frontage shall match the first building's BTL.		

3. Entire BTL shall be defined by a building or a 24" to 42" high hedge, fence or stucco or masonry wall, except for entry ways, driveways, and walkways.
4. On corner lots, the BTL must be defined by a building for the first 30' from the corner.
5. Only allowed in conjunction with Single-Unit House, Village; Single-Unit, Cottage, and Duplex Building Types.
6. Five (5) stories maximum permitted for buildings with more than 25% affordable or senior housing or for LEED Gold (or equivalent) certified buildings. Within 20' of the rear property line, buildings may not be more than a half-story taller than the allowed height of adjacent buildings.
7. A 14' ground floor ceiling height is required for both residential and commercial uses in Mid-rise and Main Street Mixed Use Building Types.
8. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
9. No parking spaces required for the first 2,000 sf of residential use, for affordable housing units, senior housing units, or Accessory Dwelling Units.
10. No parking spaces required for ground floor, non-residential uses less than 5,000 sf.
11. Shared parking may be used to meet parking requirements through a recorded parking agreement.
12. Off-site parking within 1,200' may be used to meet parking requirements for non-residential uses.
13. Parking must be placed at least five (5) feet behind the building's façade.
14. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

(Ord. No. 5948, § 1, 7-1-25)

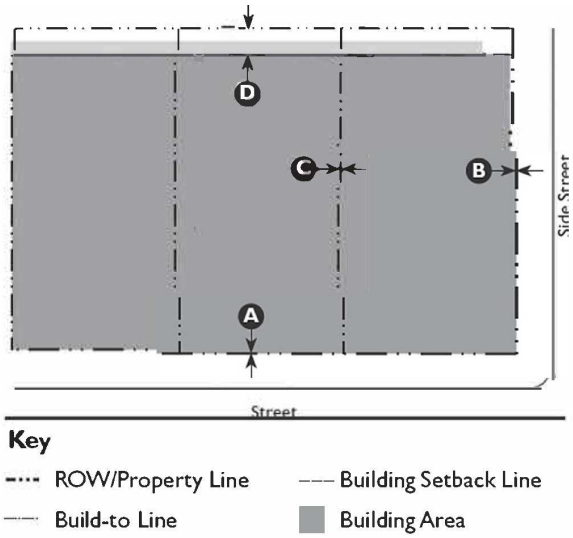
11-58-7: T4 MAIN STREET (T4MS) STANDARDS

A. Zone Intent and Description
To integrate vibrant main-street commercial and retail environments into neighborhoods, providing access to daily amenities within walking distance, creating opportunities for transit stops and serving as a focal point for the neighborhood.

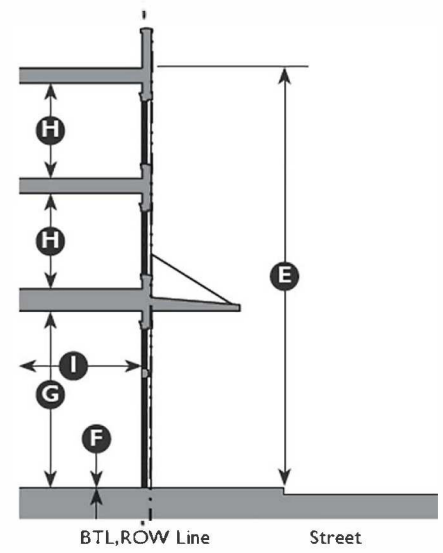


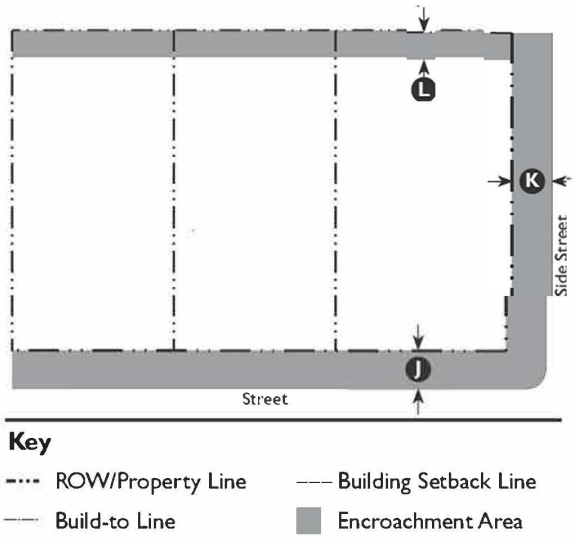
B. Building Types		
Allowed Building Types:	Main Street Mixed Use Mid-Rise	See Chapter 59: Building Type Standards for descriptions and regulations

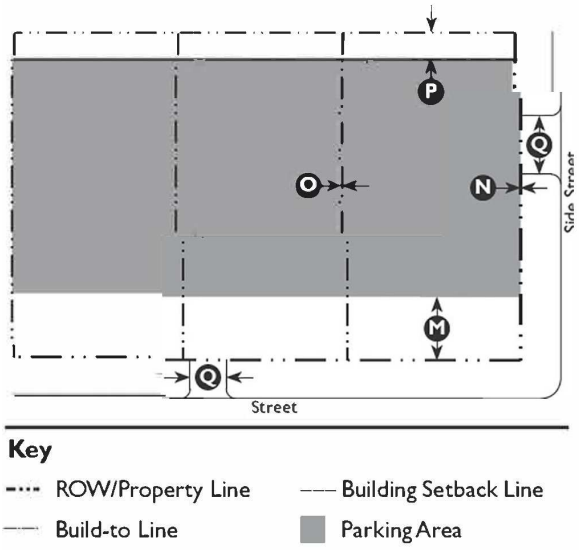
C. Building Placement



Build-to Lines (Distance from Property Line/ROW)		
Front	0' max.	A
Side Street	0' max.	B

Build-to Lines Defined by a Building		
Front, Lots <50' wide	100%	
Front, Lots ≥50' wide	75% min.[1, 2]	
Side Street	50% min.[1, 2]	
Building Façade at Front BTL	100%	
Setbacks (Distance from Property Line/ROW)		
Main Building		
Side	0' min.[3]	Ⓒ
Rear		Ⓓ
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to All Other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Accessory Dwelling Unit[4]		See Section 11-31-3: Accessory Dwelling Unit
Miscellaneous		
A building form with a chamfered corner is permitted only if a corner entry is provided.		
D. Building Form		
		
Height		
Main Building	20' min.; 4 Stories max.[5, 6]	Ⓔ
Ground Floor Finish Level	6" max.	Ⓕ
Ground Floor Ceiling	14' min. clear	Ⓖ

Upper Floor (s) Ceiling	9' min.	H
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space		I
Commercial, Front	50' min.	
Commercial, Side Street	15' min	
Distance Between Entries		
Ground Floor	50' max.	
Miscellaneous		
Upper floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		
		
Allowed Encroachments		
Front	14' max.[7]	J
Side Street	14' max.[7]	K
Rear	5' max.[7]	L
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types.		
F. Private Frontage Types		
Allowed Frontage Types	Forecourt Shopfront Gallery Arcade	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations

G. Parking		
		
Required Spaces		
Residential Uses	1/1,000 sf min.[8, 9]	
Retail and Service Uses	2/1,000 sf min.[9, 10, 11]	
Location (Distance from Property Line/ROW)		
Front Setback		M
Ground Floor	50' min.	
Upper Floors	30' min.	
Side Street Setback	0' min.	N
Side Setback	0' min.	O
Rear Setback		P
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to all other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Parking Access Drive		
Width	12' min.[12]	Q
Miscellaneous		
All garages shall be screened from the front and the street by habitable space.		
Footnotes:		
1. Entire BTL shall be defined by a building or a 24" to 42" high stucco or masonry wall, except for entryways, driveways, and walkways.		

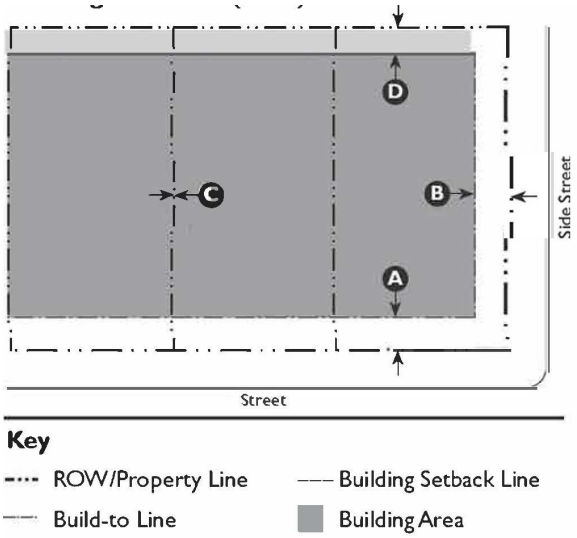
2. On corner lots, the BTL must be defined by a building for the first 30' from the corner.
3. No side setback required along the common property line between townhouse and/or duplex building types or for accessory structures when in conjunction with a townhouse or duplex building type.
4. Only allowed in conjunction with the Duplex Building Type.
5. Six (6) stories maximum permitted for buildings with more than 25% affordable or senior housing or for LEED Gold (or equivalent) certified buildings.
6. Within 20' of the rear property line, buildings may not be more than a half-story taller than the allowed height of adjacent buildings.
7. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
8. No parking spaces required for the first 2,000 sf of residential use, for affordable housing units, senior housing units, or Accessory Dwelling Units.
9. Shared parking may be used to meet parking requirements through a recorded parking agreement.
10. No parking spaces required for ground floor, non-residential uses less than 5,000 sf.
11. Off-site parking within 1,200' may be used to meet parking requirements for non-residential uses.
12. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

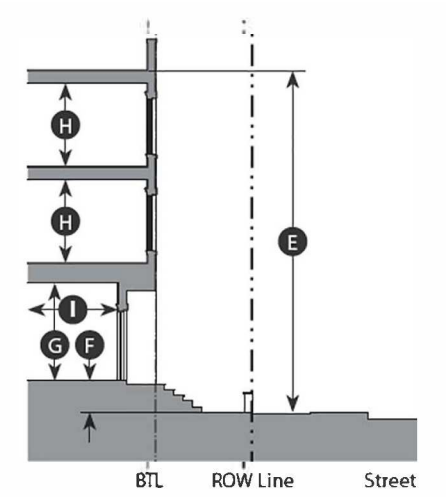
(Ord. No. 5948, § 1, 7-1-25)

11-58-8: T5 NEIGHBORHOOD (T5N) STANDARDS

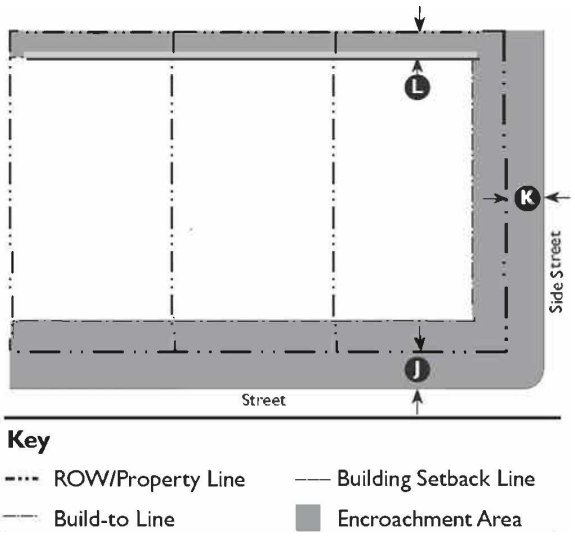
A. Zone Intent and Description
To provide a medium- to high-density residential building types such as apartment houses, courtyard buildings, and mid-rise buildings that transition from lower-density surrounding residential neighborhoods to the higher-density mixed-use neighborhoods.

B. Building Types

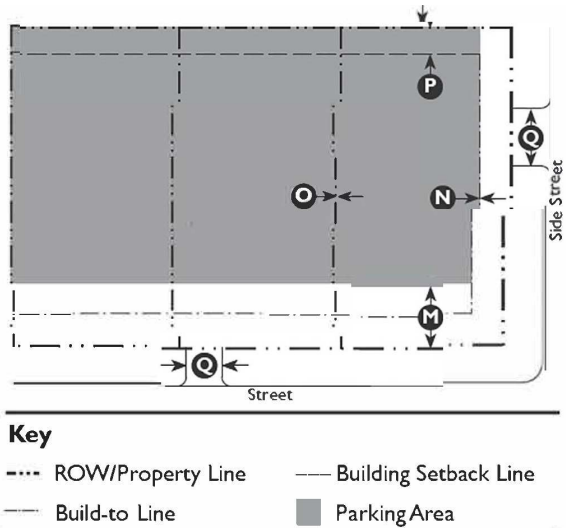
Allowed Building Types	Apartment House Courtyard Building Bungalow Cour Mid-Rise	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		
		
Build-to Lines (Distance from Property Line/ROW)		
Front	0' min.; 15' max.[1, 2]	A
Side Street	0' min.; 15' max.	B
Build-to Lines Defined by a Building		
Front	60% min.[3, 4]	
Side Street	60% min.[3, 4]	
Setbacks (Distance from Property Line/ROW)		
Side	0' min.	C
Rear		D
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to All Other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
D. Building Form		



Height		
Main Building	2 Stories min.; 55' max.[5]	E
Ground Floor Finish Level		F
Residential BTL/Setback <8'	24" min.	
Residential BTL/Setback ≥8'	18" min.	
Ground Floor Ceiling	10' min. clear	G
Upper Floor(s) Ceiling	9' min. clear	H
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space	20' min.	I
Distance between Entries		
Ground Floor	50' max.	
Miscellaneous		
Upper Floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		



Allowed Encroachments		
Front	14' max.[6]	J
Side Street	14' max.[6]	K
Rear	5' max.[6]	L
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types.		
F. Private Frontage Types		
Allowed Frontage Types	Stoop Forecourt Dooryard	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
G. Parking		



Required Spaces		
Residential Uses	No min.; 1/unit max.[7]	
Location (Distance from Property Line/ROW)		
Front Setback	30' min.	M
Side Street Setback	0' min. from BTL	N
Side Setback	0' min.	O
Rear Setback		P
Adjacent to T4N or T3N	5' min.	
Adjacent to all other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Parking Access Drive		
Width	12' min.[8]	Q
% of Frontage along Front	20% max.	Q
Miscellaneous		
All garages shall be screened from the front and the street by habitable space.		
Footnotes:		
1. Where existing adjacent buildings are in front of the regulated BTL, the building may be set to align with the façade of the front most immediately adjacent property.		
2. The exact location of the BTL within the range listed above shall be established by the first building along each block frontage to receive planning department approval. All subsequent buildings along that block frontage shall match the first building's BTL.		

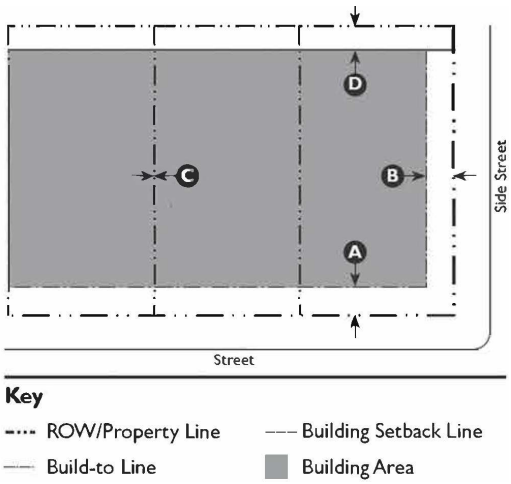
3. Entire BTL shall be defined by a building or a 24" to 42" high fence or stucco or masonry wall, except for entry ways, driveways, and walkways.
4. On corner lots, the BTL must be defined by a building for the first 50' from the corner.
5. Within 20' of the rear property line, buildings may not be more than a half-story taller than the allowed height of adjacent buildings.
6. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
7. Off-site parking within 600' may be used to meet parking requirements for residential uses.
8. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

(Ord. No. 5948, § 1, 7-1-25)

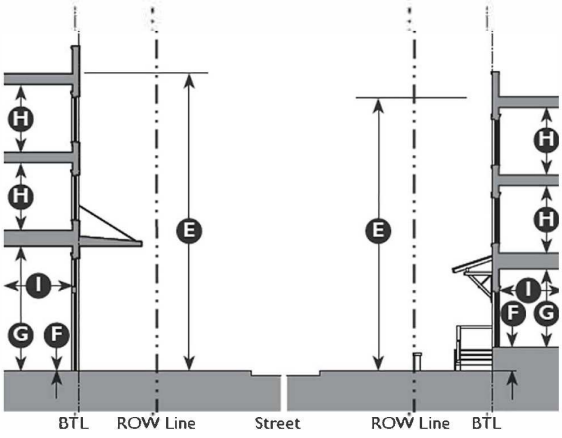
11-58-9: T5 MAIN STREET FLEX (T5MSF) STANDARDS

A. Zone Intent and Description
To provide a flexible area that transitions from the commercial districts to residential districts by allowing for a mixture of ground floor uses, including live/work and ground floor residential that could transition to commercial space when the commercial corridor matures.

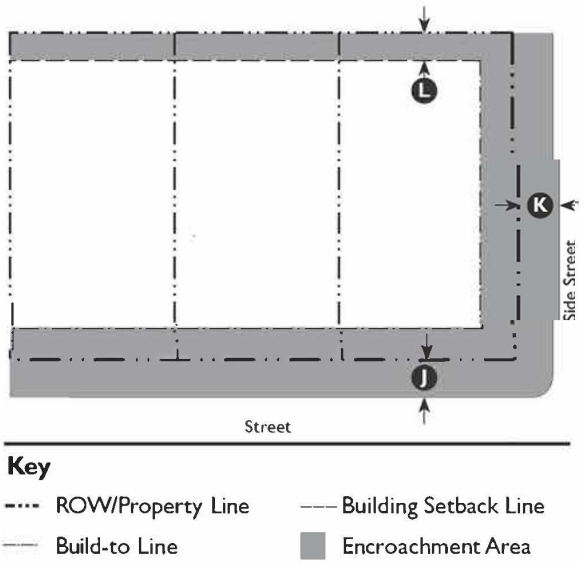

B. Building Types		
Allowed Building Types	Apartment House Courtyard Building Main Street Mixed-Use Mid-Rise	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		



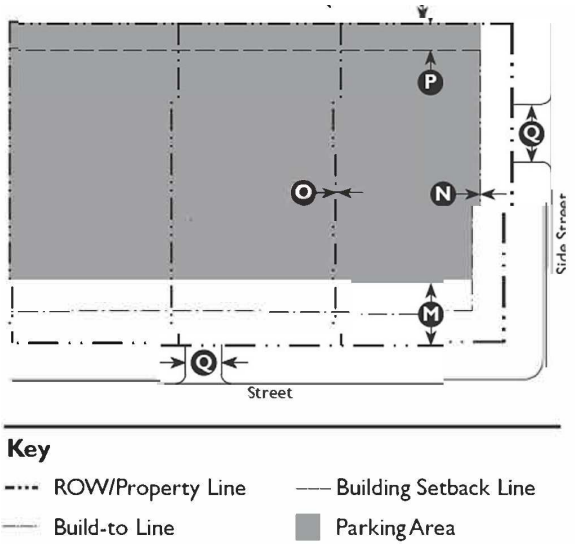
Build-to Lines (Distance from Property Line/ROW)		
Front	0' min.; 10' max.[1,2]	A
Side Street	0' min.; 10' max.	B
Build-to Lines Defined by a Building[3]		
Front, Lots <50' wide	100%	
Front, Lots ≥50' wide	75% min.[4]	
Side Street	60% min.[4]	
Setbacks (Distance from Property Line/ROW)		
Main Building		
Side	0' min.	C
Rear		D
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to All Other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Miscellaneous		
A building form with a chamfered corner is permitted if a corner entry is provided.		
D. Building Form		



Height		
Main Building	2 Stories min.; 75' max.[5, 6]	E
Ground Floor Finish Level		F
Residential BTL/Setback <8'	24" min.	
Residential BTL/Setback ≥8'	18" min.	
Commercial	6" max.	
Ground Floor Ceiling		G
Residential	10' min. clear	
Commercial	14' min. clear	
Upper Floor(s) Ceiling	9' min. clear	H
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space		I
Residential	20' min	
Commercial	15' min.	
Distance Between Entries		
To Ground Floor	50' max.	
To Upper Floor(s)	100' max.	
Miscellaneous		
Upper floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		



Allowed Encroachments		
Front	14' max.[7]	J
Side Street	14' max.[7]	K
Rear	5' max.[7]	L
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types.		
F. Private Frontage Types		
Allowed Frontage Types	Stoop Forecourt Dooryard Shopfront Terrace Gallery Arcade	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
G. Parking.		



Required Spaces		
Residential Uses	No min.; 1/unit max.[8, 9]	
Retail and Service Uses	2/1,000 sf min.[9, 10, 11]	
Location (Distance from Property Line/ROW)		
Front Setback	30' min.	M
Side Street Setback	0' min. (from BTL)	N
Side Setback	0' min.	O
Rear Setback		P
Adjacent to T5N, T4N or T3N	5' min.	
Adjacent to all other Transect Zones	0' min.	
Adjacent to Alley	0' min.	
Parking Access Drive		
Width	12 min.[12]	Q
% of Frontage along Front	20% max.	Q
Miscellaneous		
All garages shall be screened from the front and the street by habitable space.		
Footnotes:		
1. Where existing adjacent buildings are in front of the regulated BTL, the building may be set to align with the façade of the front most immediately adjacent property.		

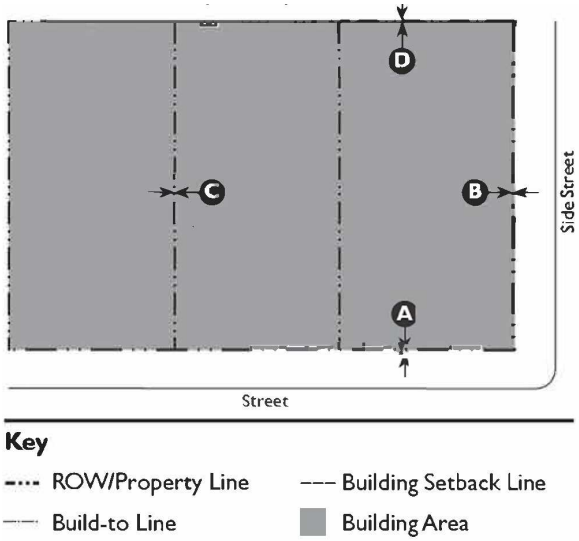
2. The exact location of the BTL within the range listed above shall be established by the first building along each block frontage to receive Planning Division approval. All subsequent buildings along that block frontage shall match the first building's BTL.
3. Entire BTL shall be defined by a building or a 24" to 42" high stucco or masonry wall, except for entry ways, driveways, and walkways.
4. On corner lots, the BTL must be defined by a building for the first 50' from the corner.
5. 85' maximum permitted for buildings with more than 25% affordable or senior housing; 105' maximum for LEED Gold (or equivalent) certified buildings.
6. Within 20' of the rear property line, buildings may not be more than a half-story taller than the allowed height of adjacent buildings.
7. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
8. Off-site parking within 600' may be used to meet parking requirements for residential uses.
9. Shared parking may be used to meet parking requirements through a recorded parking agreement.
10. No parking spaces are required for lodging uses and ground floor uses less than 5,000 sf.
11. Off-site parking within 1,200' may be used to meet parking requirements for non-residential uses.
12. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

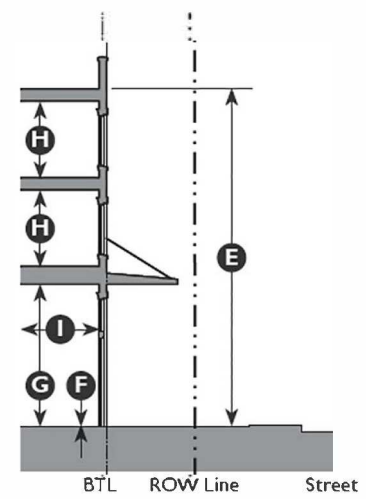
(Ord. No. 5948, § 1, 7-1-25)

11-58-10: T5 MAIN STREET (T5MS) STANDARDS

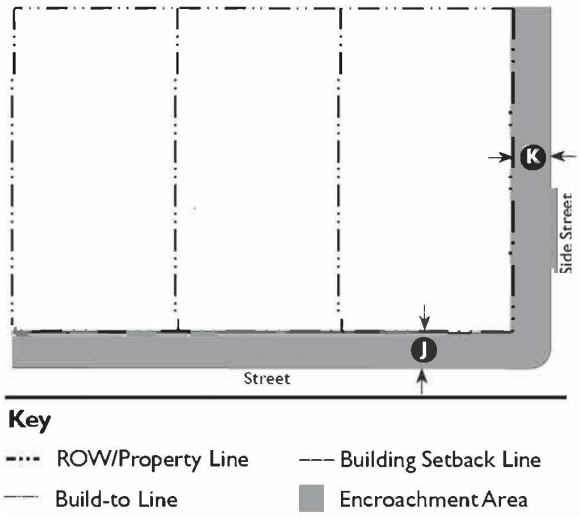
A. Zone Intent and Description
To integrate medium-intensity, vertically mixed-uses that seemlessly transition into adjacent neighborhoods in central Mesa, near transit stops, or other pedestrian-oriented urban area areas.

B. Building Types

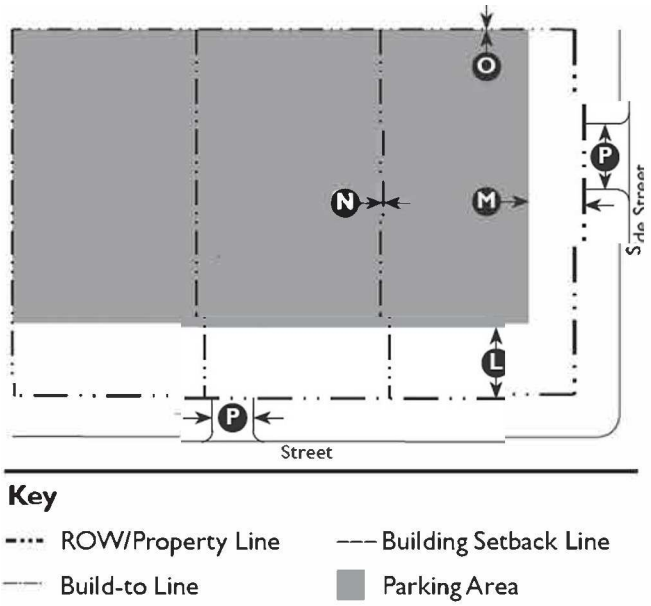
Allowed Building Types	Main Street Mixed-Use Mid-Rise High-Rise	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		
		
Build-to Lines (Distance from Property Line/ROW)		
Front	0' max.	A
Side Street	0' max.	B
Build-to Lines Defined by a Building Front		
Front Side Street	100%[1] 60% min.[1, 2]	
Setbacks (Distance from Property Line/ROW)		
Main Building		
Side	0' min.	C
Rear	0' min.	D
Lot Size		
Width	50' min.[3]	
Miscellaneous		
A building form with a chamfered corner is permitted if a corner entry is provided.		
D. Building Form		



Height		
Main Building	4 Stories min.; 105' max.[3, 4]	E
Ground Floor Finish Level	6" max.	F
Ground Floor Ceiling	14' min. clear	G
Upper Floor (s) Ceiling	9' min. clear	H
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space		I
Front	50' min.	
Side Street	15' min.	
Distance Between Entries		
Ground Floor	50' max.	
Miscellaneous		
Upper Floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades		
E. Encroachments		



Allowed Encroachments		
Front	14' max.[5]	J
Side Street	14' max.[5]	K
Rear	14' max.[5]	
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types.		
F. Private Frontage Types		
Allowed Frontage Types	Stoop Forecourt Dooryard Shopfront Terrace Gallery Arcade	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
G. Parking		



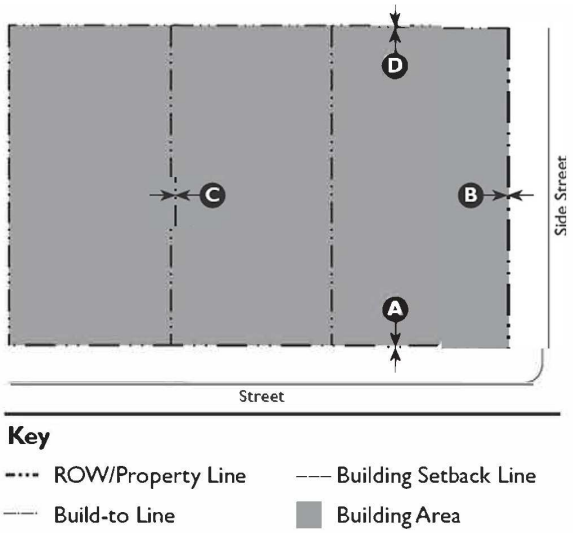
Required Spaces		
Residential Uses	No min.; 1/unit max.[6, 7]	
Retail and Service Uses	2/1,000 sf min.[7, 8, 9]	
Location (Distance from Property Line/ROW)		
Front Setback		L
Ground Floor	50' min.	
Upper Floors	15' min.[10]	
Side Street Setback		M
Ground Floor	15' min.	
Upper Floors	0' min.[10]	
Side Setback	0' min.	N
Rear Setback	0' min.	O
Parking Access Drive		P
Width	12' min.[11]	
% of Frontage along Front	20% max.	P
Miscellaneous		
All garages shall be screened from the front and the street by habitable space.		
Footnotes:		
1. Entire BTL shall be defined by a building or a 24" to 36" high stucco or masonry wall, except for entry ways, driveways, and walkways.		

2. On corner lots, the BTL must be defined by a building for the first 50' from the corner.
3. Two (2) stories minimum permitted in the Historic Downtown Overlay (See Regulating Plan); 135' maximum permitted for buildings with more than 25% affordable or senior housing; 155 maximum for LEED Gold (or equivalent) certified buildings.
4. Within 20' of the rear property line, buildings may not be more than a half-story taller than the allowed height of adjacent buildings.
5. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
6. Off-site parking within 600' may be used to meet parking requirements for residential uses.
7. Shared parking may be used to meet parking requirements through a recorded parking agreement.
8. No parking spaces required for lodging uses and ground floor uses less than 5,000 sf.
9. Off-site parking within 1,200' may be used to meet parking requirements for non-residential uses.
10. Parking located above the ground floor may occupy the entire floor space and is not required to be set back.
11. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

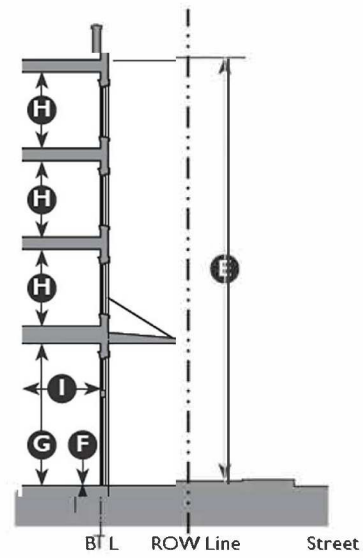
(Ord. No. 5948, § 1, 7-1-25)

11-58-11: T6 MAIN STREET (T6MS) STANDARDS

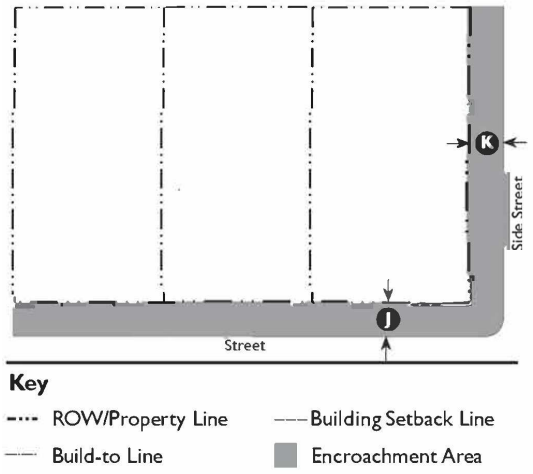
A. Zone Intent and Description		
To enable designated areas within the core of central Mesa to evolve into higher-intensity mixed-use development that can support transit and foster a vibrant urban environment.		
		
B. Building Types		
Allowed Building Types	Main Street Mixed-Use Mid-Rise High-Rise	See Chapter 59: Building Type Standards for descriptions and regulations
C. Building Placement		



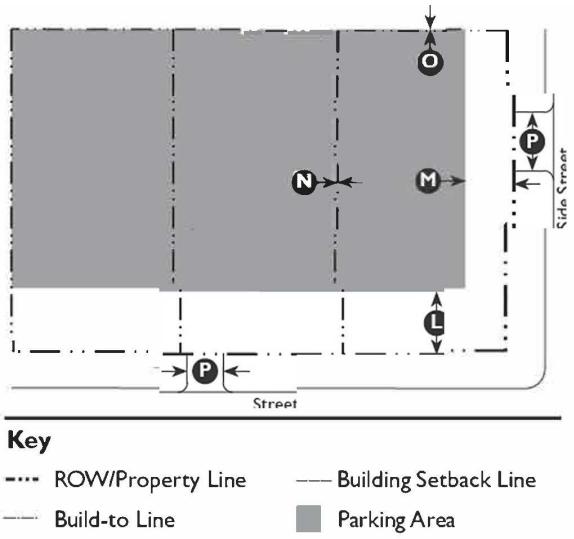
Build-to Lines (Distance from Property Line/ROW)		
Front	0' max.	A
Side Street	0' max.	B
Build-to Lines Defined by a Building		
Front	100%	
Side Street	80% min.[1]	
Setbacks (Distance from Property Line/ROW)		
Side	0' min.	C
Rear	0' min.	D
Lot Size		
Width	50' min.	
D. Building Form		



Height		
Main Building	4 Stories min.; 135' max.[2]	E
Ground Floor Finish Level	6" max.	F
Ground Floor Ceiling	14' min. clear	G
Upper Floor(s) Ceiling	9' min. clear	H
Footprint		
Per Building Type Standards (see Chapter 59).		
Depth, Ground-Floor Space	50' min.	I
Distance Between Entries		
Ground Floor	50' max.	
Miscellaneous		
Upper floors shall have a primary entrance along the front.		
Loading docks, overhead doors, and other service entries may not be located on street-facing façades.		
E. Encroachments		



Allowed Encroachments		
Front	14' max.[3]	J
Side Street	14' max.[3]	K
Rear	0' max.[3]	
Miscellaneous		
See Chapter 60: Private Frontage Standards for additional encroachment standards specific to frontage types.		
F. Private Frontage Types		
Allowed Frontage Types	Shopfront Terrace Gallery Arcade	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
G. Parking.		



Required Spaces		
Residential Uses	No min.; 1/unit max.[4, 5]	
Retail and Service Uses	2/1,000 sf min.[5, 6, 7]	
Location (Distance from Property Line/ROW)		
Front Setback		Ⓛ
Ground Floor	50' min.	
Upper Floors	30' min.	
Side Street Setback		Ⓜ
Ground Floor	30' min.	
Upper Floors	0' min.	
Side Setback	0' min.	Ⓝ
Rear Setback	0' min.	Ⓞ
Parking Access Drive		
Width	12' min.[8]	Ⓟ
% of Frontage along Front	20% max.	Ⓟ

Footnotes:

1. On corner lots, the BTL must be defined by a building for the first 50' from the corner.
2. 155' maximum for buildings with more than 25% affordable or senior housing. No maximum for LEED (or equivalent) certified buildings.
3. Encroachments only allowed within the ROW and public alleys within the Downtown Pedestrian Area. Encroachments must have a minimum 14' clear height and approval of an encroachment permit.
4. Off-site parking within 600' may be used to meet parking requirements for residential uses.
5. Shared parking may be used to meet parking requirements through a recorded parking agreement.
6. Off-site parking within 1,200' may be used to meet parking requirements for non-residential uses.
7. No parking spaces required for ground floor uses less than 5,000 sf.
8. Maximum parking access drive width to be determined by Solid Waste and Fire access requirements.

(Ord. No. 5948, § 1, 7-1-25)

11-58-12: ADDITIONAL STANDARDS FOR ALL TRANSECT ZONES

A. **Open Space Standards for All Transect Zones.** The Civic Space Standards set forth in Chapter 62: Civic Space Standards provide the regulations for civic and open space within the FBC Transect Zones.

B. **Landscape Standards.**

1. See Chapter 33: Landscaping for landscaping standards on private lots within the FBC Transect Zones.

2. Unbuilt areas on private lots, such as front yards and rear yards, should remain pervious and be landscaped in order to encourage soft edges and transitions between the public and private realms, reduce the heat island effect, and aid in compliance with the stormwater quality standards, to the maximum extent possible.

3. Landscape treatments shall be limited to low-water-use plants, including those drought-tolerant plants listed by the Arizona Department of Water Resources for the Phoenix Active Management Area.

C. **Lighting Standards.**

1. All lighting shall comply with the standards found in the Mesa Lighting and Electrical Code, Title 4, Chapter 4 of the Mesa City Code.

2. All lighting shall comply with Section 11-30-5 of this Zoning Code.

3. All Outdoor lighting for sport courts/fields requires a Special Use Permit (SUP).

D. **Parking Requirements.**

1. ***Vehicle Parking.*** On-street parking spaces adjacent to the lot or parcel may be counted toward the minimum required off-street parking, subject to the following conditions:

a. Only legal, parallel or angled head-in parking spaces along the lot frontage may be counted.

b. The space must be located entirely along the frontage of the subject property.

c. Spaces shall not be located within 30 feet of an intersection or 25 feet of a driveway.

d. Spaces must remain public parking spaces and may not be designated for the development.

2. ***Bicycle Parking.***

a. *Required Spaces.* Bicycle parking shall be provided at a minimum ratio of one (1) bicycle space for every 10 vehicular spaces with a maximum requirement of 20 bicycle spaces.

b. *Design and Location.* Required bicycle parking spaces must:

i. Be located in close proximity to entrances and other high activity areas that are highly visible, active, and well-lighted, without interfering with pedestrian movements or located within a building.

ii. Consist of anchored racks or lockers that cannot be easily removed, be of solid construction, and be resistant to rust, corrosion, hammers, and saws.

iii. Be designed so as not to cause damage to the bicycle.

iv. Allow both the bicycle frame and the wheels to be locked using a standard U-lock.

v. Maintain a separation of at least 24 inches from the nearest wall.

c. *Credit.* For every 10 publicly accessible bicycle parking spaces provided, the required commercial parking spaces may be reduced by one (1) space with a maximum reduction of 15% of the required vehicular parking spaces.

E. **Parking Space Design.**

1. All parking spaces must be accessible from a public right-of-way.

2. Except for designated accessible parking spaces, no parking spaces shall be required to be individually accessible.

3. Tandem, stacking, and valet parking may be used to meet parking requirements.

4. Parking spaces may be directly accessed from an accessible alley.

5. On lots adjacent to an alley, all drives shall be accessed only from the alley.

6. On corner lots, all drives shall be accessed only from the alley or side street.

7. Shared drives are encouraged between adjacent lots to minimize curb cuts along the street.

8. Off-street parking spaces do not have to be covered.

9. Vehicles parked off-street may not encroach on a sidewalk.

10. Underground parking may be placed up to the right-of-way or property line.

11. Underground parking shall not be visible to pedestrians from a public way.

12. Parking spaces shall be designed according to the dimensions in Section 11-32-2(H): Size of Parking Spaces and Maneuvering Aisles.

13. If park-lifts or mechanically-ventilated garages are used next to residential uses, the noise and vibration of the mechanical systems shall be mitigated.

14. All surface parking areas along a street or civic space that are not behind buildings shall be screened by a 3'6" tall minimum hedge, fence, or wall in character with the building at the ROW.

15. All exposed structured parking shall be architecturally incorporated into the façade composition.

16. On corner lots less than 100 feet wide, a maximum length of 60 feet of parking podium or garage is allowed along a side street.

17. The minimum number of parking spaces required for buildings within ¼ mile of transit stop or transit station may be reduced by 20%.

18. Temporary parking lots that will be replaced by a permanent building or structure are not subject to the parking location regulations in the Building Form Standards, but shall comply with all landscaping requirements.

19. At least 10% of the area of an off-street parking with more than 30 spaces shall be reserved for landscaping.

19. All off-street parking lots with 10 or more surface parking spaces shall meet the landscaping requirements of Section 11-33-4: Interior Parking Lot Landscaping.

(Ord. No. 5948, § 1, 7-1-25)

CHAPTER 59 BUILDING TYPE STANDARDS

11-59-1: PURPOSE

This Chapter outlines the development standards for Building Types and supplement the regulations for each permitted Transect Zone and the City of Mesa's Quality Development Design Guidelines. The names of the Building Types do not limit uses within a building. For example, a single-unit house may have non-residential uses within it, such as a cafe or an office.
(Ord. No. 5948, § 1, 7-1-25)

11-59-2: APPLICABILITY

The standards within this Chater shall apply to all proposed development within Transect Zones and shall be considered along with the standards for the applicable Transect Zone in Chapter 58: Building Form Standards and Chapter 60: Private Frontage Standards.
(Ord. No. 5948, § 1, 7-1-25)

11-59-3: CARRIAGE HOUSE

A. Description

Carriage House: A secondary structure, typically located at the rear of a lot, which provides habitable or occupiable space for an Accessory Dwelling Unit, detached garage, storage, home office, or small commercial/ service use. Carriage houses play an important role in supporting affordable housing and nurturing small businesses in walkable neighborhoods, contributing to both community livability and economic vitality.



One- and a half-story carriage house connected to main house by a breezeway.



One-and-a-half-story carriage house with an internal stair

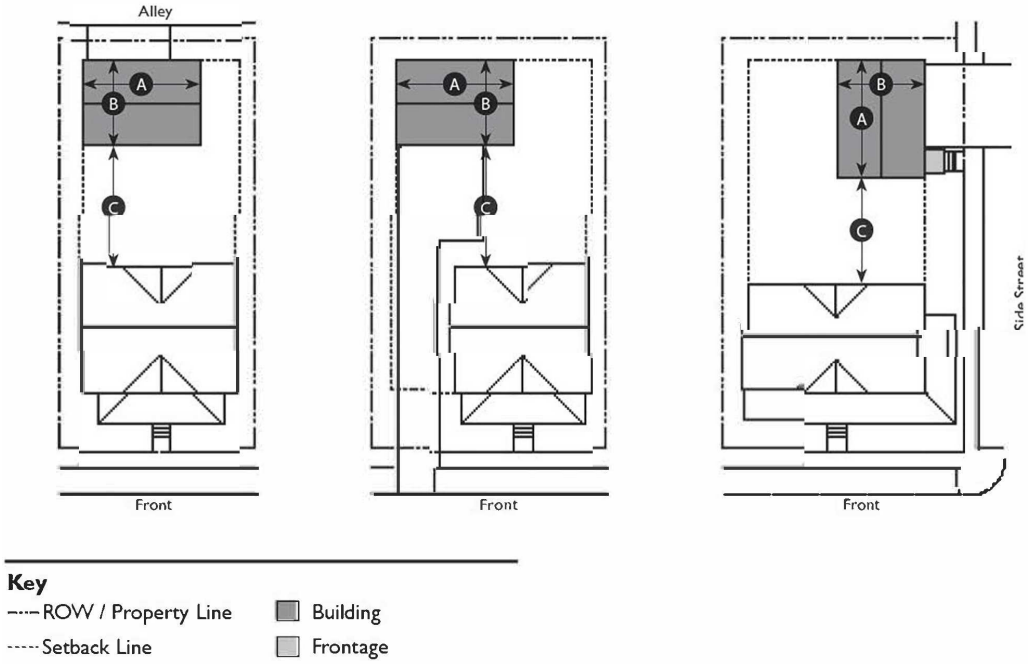
(All photos are illustrative, not regulatory)

B. Permitted Transects.

T1	T2	T3	T4	T5	T6
		N	N	N	MS
			NF	MSF	
			MS	MS	

Key
T# allowed
T# not allowed

C. Lot Requirements.

Allowed on lots when accompanying the following building types: Single-Unit House, Village; Single-Unit House, Cottage; Duplex, Townhouse; and Mansion Apartment		
D. Number of Units.		
Accessory Structure	1 max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
E. Building Size, massing, and height		
		
Main Body		
Height		See Chapter 58: Building Form Standards
Width	36' max.[1, 2]	Ⓐ
Depth	30' max.[1, 2]	Ⓑ
Separation from main building	6' min.[3]	Ⓒ
F. Frontage Requirements.		
Allowed Private Frontages[4]	Stoop	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Side street, alley, or internal to the lot[5]	
G. Vehicle Access and Parking.		
Parking may be accessed from the alley, side street, or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
All parking spaces provided shall be separate from the principal building and may be enclosed, covered, or open.		
H. Private Open Space.		

The private open space requirements shall be determined by the main building on the lot.
No additional private open space is required for a Carriage House.
Footnotes:
1. Carriage Houses shall not have a larger footprint than the main building on the lot.
2. Standards do not apply to Accessory Dwelling Units.
3. Carriage House may be connected to the main building by uninhabitable space such as a breezeway.
4. Carriage Houses are not required to have a Frontage Type.
5. The main entrance may not be through a garage.

(Ord. No. 5948, § 1, 7-1-25)

11-59-4: SINGLE-UNIT HOUSE, VILLAGE

A. Description
Single-Unit House, Village: This Building Type is a medium-sized detached structure on a medium-sized lot that incorporates one (1) unit. It is typically located within a primarily single residence residential neighborhood in a walkable urban setting, potentially near a neighborhood main street.



One-and-a-half-story front-loaded village house



Two-story village house with a wrap around porch



Two-story village house

(All photos are illustrative, not regulatory)

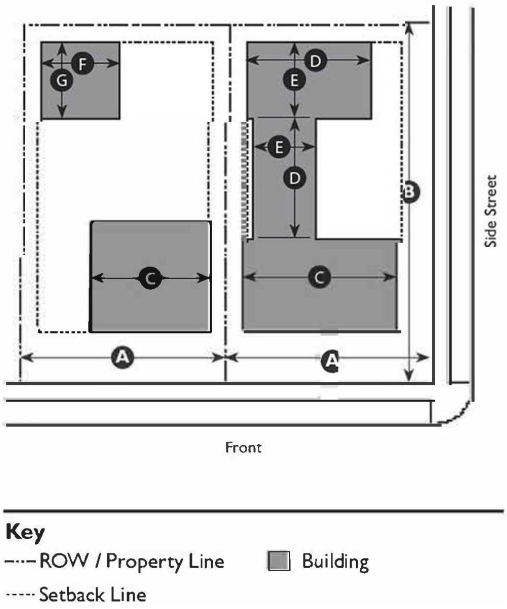
B. Permitted Transects.

T1	T2	T3	T4	T5	T6
		N	N	N	MS
				NF	MSF
				MS	MS

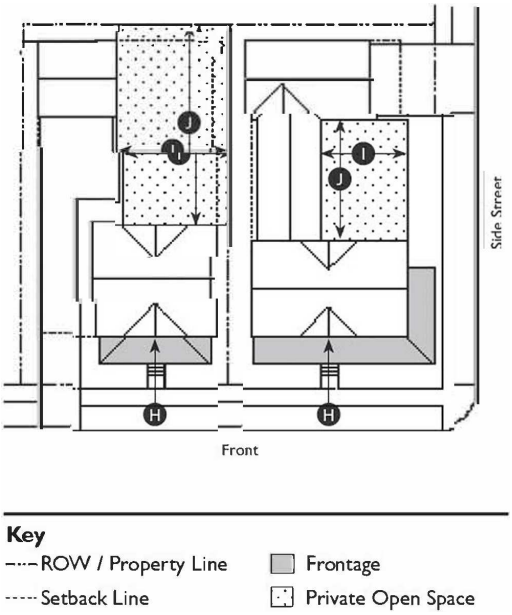
Key
T# allowed
T# not allowed

C. Number of Units.		
Single-Unit House, Village	1 max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit

D. Building Size and Massing



Main Body		
Height		See Chapter 58: Building Form Standards
Width	48' max.[1]	C

Secondary Wing(s)		
Width	30' max.[1]	Ⓓ
Depth	30' max.[1]	Ⓔ
Accessory Structure(s)		
Width	24' max.[1]	Ⓕ
Depth	30' max.[1]	Ⓖ
E. Frontages		
		
Allowed Private Frontages	Porch, Engaged Porch, Projecting	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations.
Entrance Locations	Front	Ⓗ
F. Vehicle Access and Parking.		
Parking may be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be enclosed, covered or open.		
G. Private Open Space		
Width	20' min.	Ⓘ
Depth	20' min.	Ⓙ
Area	500 sf min.[2]	
Footnotes:		

1. Standards do not apply to Accessory Dwelling Units.
2. Required street setbacks and driveways shall not be included in the private open space area calculation.

(Ord. No. 5948, § 1, 7-1-25)

11-59-5: SINGLE-UNIT HOUSE, COTTAGE

A. Description

Single-Unit House, Cottage: This Building Type is a small detached structure on a small lot that incorporates one (1) unit. It is typically located within a primarily single residence neighborhood in a walkable urban setting, potentially near a neighborhood main street. This Building Type enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



Small one story cottage house



One-and-a-half story cottage house with integral porch



Newly constructed two-story cottage houses

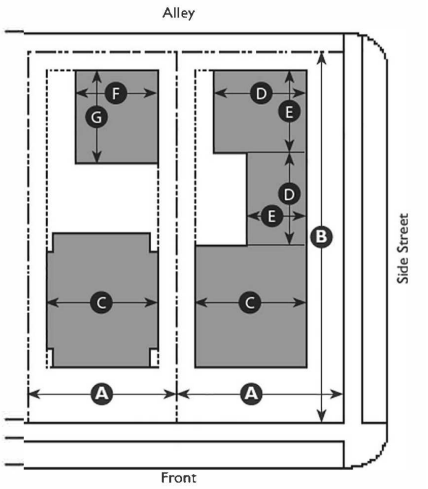
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B. Permitted Transects

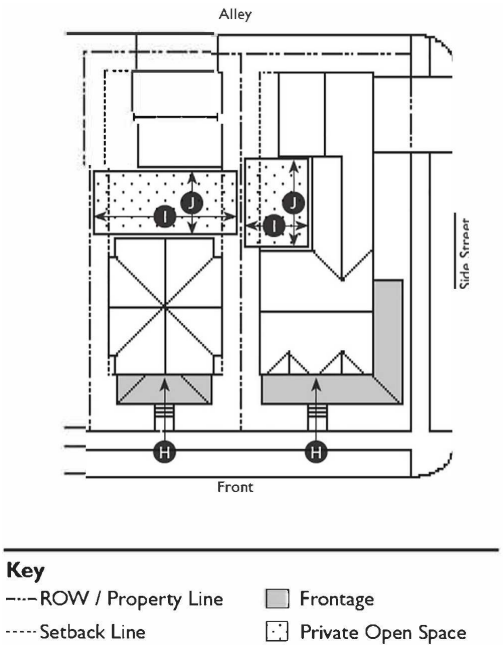
T1	T2	T3	T4	T5	T6
		N	N	N	MS
			NF	MSF	
			MS	MS	

Key
T# allowed
T# not allowed

C. Number of Units		
Single-based Unit House, Cottage	1 max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
Accessory Structure	1 max.	
D. Building Size, Massing, and Height		



Main Body		
Height		See Chapter 58: Building Form Standards
Width	36' max.	Ⓒ
Secondary Wing(s)		
Width	30' max.	Ⓓ
Depth	30' max.	Ⓔ
Accessory Structure		
Width	24' max.[1]	Ⓕ

Depth	30' max.[1]	Ⓖ
E. Frontage Requirements		
		
Allowed Private Frontages	Stoop Porch, Projecting	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations.
Entrance Locations	Front	Ⓗ
F. Vehicle Access and Parking		
Parking shall be accessed from a side street or alley.		
Parking spaces may be enclosed, covered or open.		
G. Private Open Space		
Width	15' min.	Ⓘ
Depth	15' min.	Ⓙ
Area	300 sf min.[2]	
Footnotes:		
1. Standards do not apply to Accessory Dwelling Units.		
2. Required street setbacks and driveways shall not be included in the private open space area calculation.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-6: BUNGALOW COURT

A. Description

Bungalow Court: This Building Type consists of a series of small, detached structures, which provide multiple units arranged to define a shared court that is typically perpendicular to the street and defined on three (3) sides by buildings. The shared court takes the place of a private rear and becomes an important community-enhancing element of this Building Type. A Bungalow Court is appropriately scaled to fit within primarily single residence or medium-density neighborhoods. It enables appropriately scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



Prairie-style bungalow court with raised stoop entries



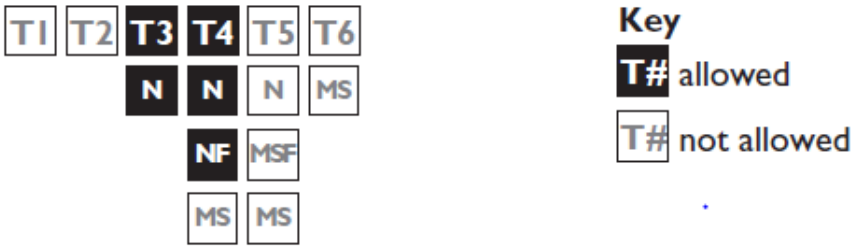
A Bungalow Court with a larger central lawn



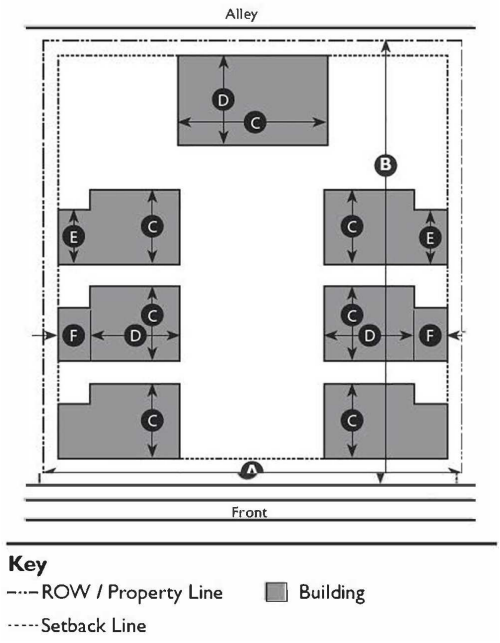
Bungalow court with a heavily landscaped court

(All photos are illustrative, not regulatory)

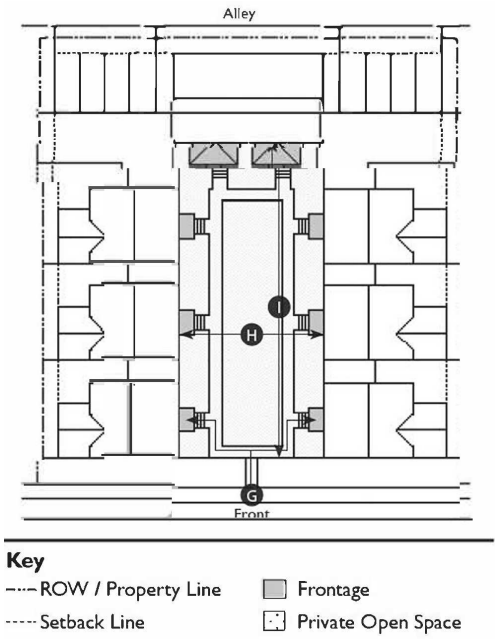
B. Permitted Transects



C. Number of Units		
Units	3 min.; 9 max.	
D. Building Size, Massing, and Height		



Main Body		
Height	1½ stories max.	
Width	32' max.	Ⓒ
Depth	24' max.	Ⓓ
Secondary Wing(s)		
Width	24' max.	Ⓔ
Depth	12' max.	Ⓕ
Accessory Structure		
Width	24' max.[1]	
Depth	24' max.[1]	

E. Frontage Requirements		
		
Allowed Private Frontages	Porch, Projecting Stoop	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Front	G
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking spaces may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be enclosed, covered, or open.		
G. Private Open Space		
Width	20' min.	H
Depth	20' min.	I
Area	400 sf min.[2]	
Footnotes:		
1. Standards do not apply to Accessory Dwelling Units.		
2. Required street setbacks and driveways shall not be included in the private open space area calculation.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-7: DUPLEX

A. Description

Duplex: This Building Type is a small-to-medium-sized structure that consists of two (2) side-by-side or stacked dwelling units, both facing the street, and sharing one (1) common party wall. A Duplex has the appearance of a medium to large single residence home and is appropriately scaled to fit within primarily single residence neighborhoods or medium-density neighborhoods. It enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



A side-by-side duplex with each unit having its own stoop



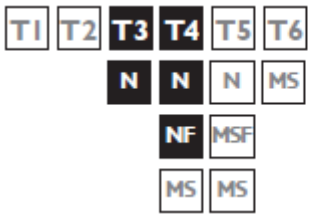
A stacked duplex with a shared porch



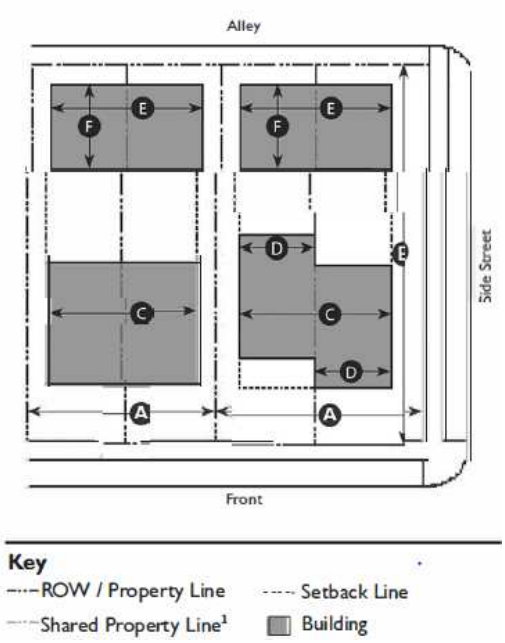
A one and a half-story side-by-side duplex

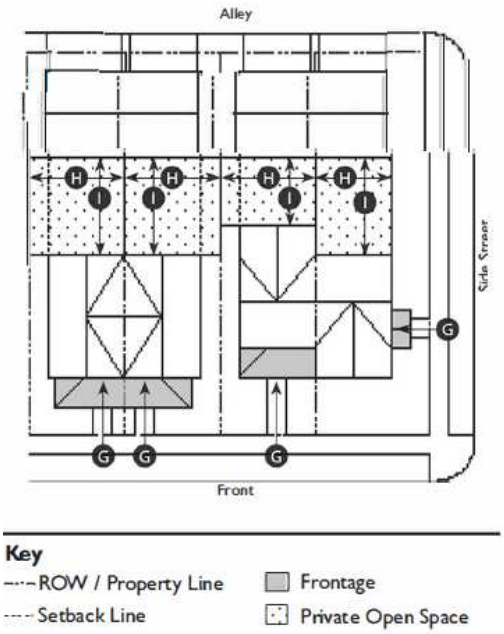
(All photos are illustrative, not regulatory)

B. Permitted Transects





C. Number of Units		
Duplex	2 max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
D. Building Size, Massing, and Height		
		
Main Body		
Height		See Chapter 58: Building Form Standards
Width	48' max.	C
Secondary Wing(s)		
Width	30' max.	D
Accessory Structure(s)		
Width		
Individual unit ownership	24' max.[2]	E
Shared between units	48' max.[2]	E
Depth	30' max.[2]	F
E. Frontage Requirements.		



Allowed Private Frontages	Porch, Engaged Porch, Projecting Stoop	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Front[3, 4]	G
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be enclosed, covered, or open.		
G. Private Open Space		
Width	15' per unit min.	H
Depth	15' per unit min.	I
Area	300 sf min.[5]	
Footnotes:		
1. Total width of lot(s) if there is a shared property line.		
2. Standards do not apply to Accessory Dwelling Units.		
3. On corner lots, each unit shall front a different street.		
4. Each unit shall have an individual entry facing the street on or no more than 10' behind the front façade.		
5. Required street setbacks and driveways shall not be included in the private open space area calculation.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-8: TOWNHOUSE

A. Description

Townhouse: This Building Type is a small-to-medium-sized attached structure that consists of one (1) or three (3) or more dwelling units placed side-by-side. A Townhouse is typically located within medium-density neighborhoods or in a location that transitions from a primarily single residence neighborhood into a neighborhood main street. This type enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability. Syn: **Rowhouse**



Individual stoops and dormers help to break down the overall massing of this row of townhouses.



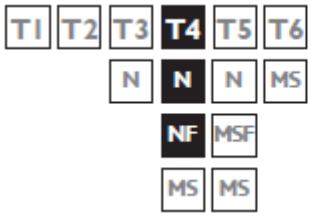
A series townhomes which read as a single large building



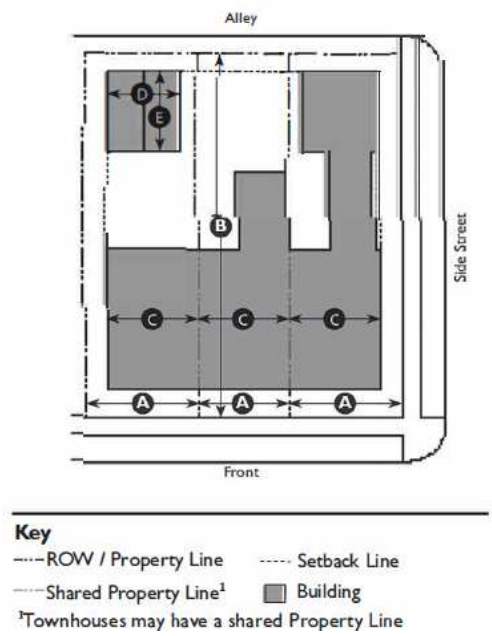
Minor differences in detailing and fenestration articulate the units

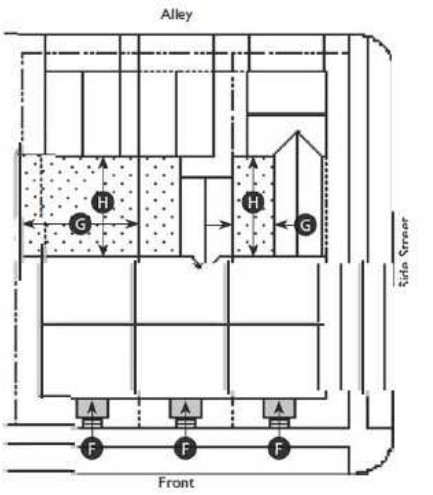
(All photos are illustrative, not regulatory)

B. Permitted Transects





C. Number of Units		
Units	3 min.; 8 max.	
Accessory Dwelling Unit		See Section 11-31-3: Accessory Dwelling Unit
D. Building Size, Massing, and Height		
		
Main Body		
Height		See Chapter 58: Building Form Standards
Width	18' min.; 36' max.	Ⓒ
Secondary Wing(s)		
The footprint area of the secondary wing(s) may not exceed the footprint area of the main body.		
Width	24' max.[1]	Ⓓ
Depth	30' max.[1]	Ⓔ
Miscellaneous		
The footprint area of an accessory structure may not exceed the footprint area of the main body.		
E. Frontage Requirements		



Allowed Private Frontages	Porch Dooryard Stoop	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Front[2]	F
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
When accessed from the front, a single shared drive shall be used.		
Parking spaces may be enclosed, covered, or open.		
G. Private Open Space		
Width	8' min.	G
Depth	8' min.	H
Area	100 sf min.[3]	
Footnotes:		
1. Standards do not apply to Accessory Dwelling Units.		
2. Each unit shall have an individual entry facing a street.		
3. Required street setbacks and driveways shall not be included in the private open space area calculation.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-9: MANSION APARTMENT

A. Description

Mansion Apartment: This Building Type is a medium structure that consists of three (3) to six (6) side-by-side and/or stacked dwelling units, typically with one (1) shared entry or individual entries along the front. A Mansion Apartment has the appearance of a medium-sized single residence home and is appropriately scaled to fit in sparingly within primarily single residence neighborhoods or into medium-density neighborhoods. This Building Type enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



A mansion apartment with the scale and character of the surrounding single-residence houses



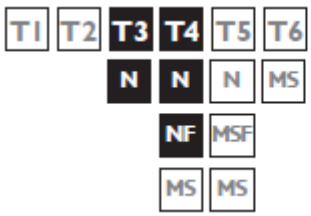
A mansion apartment with a single entry accessing all units



A mansion apartment with multiple entries along the front

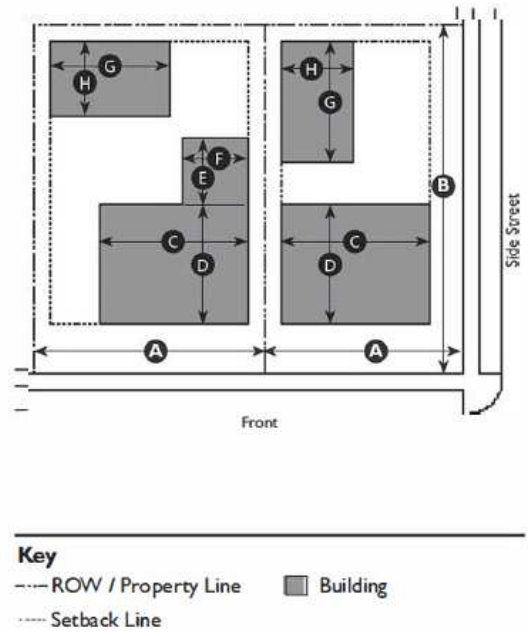
(All photos are illustrative, not regulatory)

B. Permitted Transects

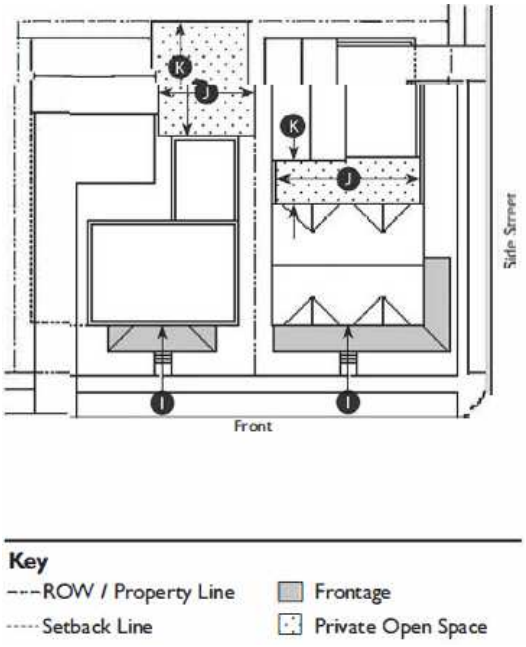


Key
T# allowed
T# not allowed

C. Number of Units		
Units	3 min.; 6 max.	
D. Building Size and Massing		



Main Body		
Height		See Chapter 58: Building Form Standards
Width	48' max.	Ⓒ
Depth	36' max.	Ⓓ
Secondary Wing(s)		
Width	30' max.	Ⓔ
Depth	30' max.	Ⓕ
Accessory Structure(s)		
Width	48' max.[1, 2]	Ⓖ

Depth	30' max.[1, 2]	H
E. Frontage Requirements.		
		
Allowed Private Frontages	Porch, Engaged Porch, Projecting Stoop Dooryard	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Front[3]	I
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be enclosed, covered, or open.		
G. Private Open Space		
Width	8' min.	J
Depth	8' min.	K
Area	100 sf min.[4]	
Footnotes:		
1. Standards do not apply to Accessory Dwelling Units.		
2. The footprint area of an accessory structure may not exceed the footprint area of the main body.		
3. Each unit shall have an individual entry.		
4. Required street setbacks and driveways shall not be included in the private open space area calculation.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-10: APARTMENT HOUSE

A. Description

Apartment House: This Building Type is a medium-to-large-sized structure that consists of seven (7) to 12 side-by-side and/or stacked dwelling units, typically with one (1) shared entry. An Apartment House is appropriately scaled to fit in within medium-density neighborhoods or sparingly within large lot predominantly single residence neighborhoods. This Building Type enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



An apartment house with a recessed stoop



An apartment house with individual entries for ground floor units



A newly constructed apartment house.

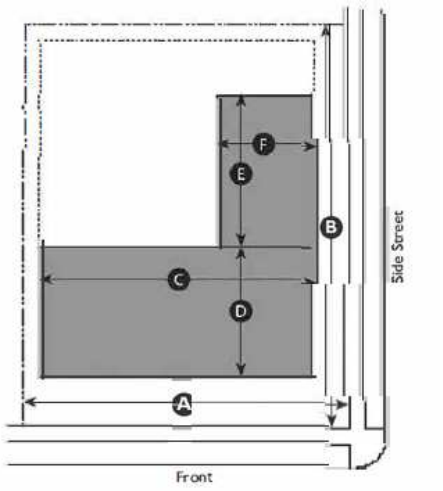
(All photos are illustrative, not regulatory)

B. Permitted Transects

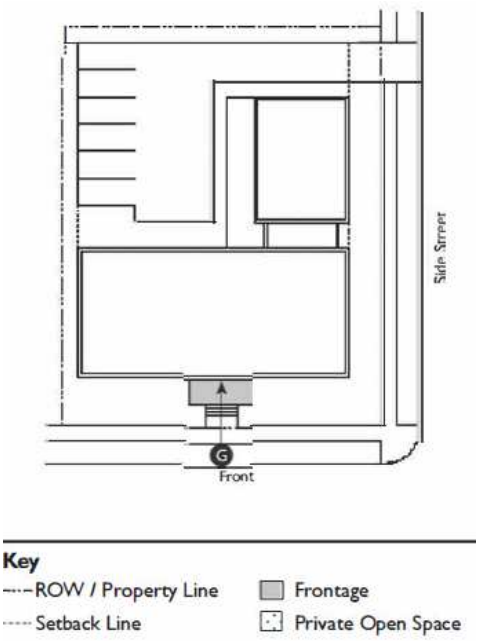
T1	T2	T3	T4	T5	T6
		N	N	N	MS
			NF	MSF	
			MS	MS	

Key
T# allowed
T# not allowed

C. Number of Units		
Units	7 min.; 12 max.	
D. Building Size, Massing, and Height		



Main Body		
Height		See Chapter 58: Building Form Standards
Width	60' max.	Ⓒ
Depth	50' max.	Ⓓ
Secondary Wing(s)		
Width	48' max.	Ⓔ
Depth	36' max.	Ⓕ
Accessory Structure(s)		
Width	48' max.[1, 2]	
Depth	30' max.[1, 2]	
E. Frontage Requirements		



Allowed Private Frontages	Porch, Projecting Forecourt Stoop Dooryard	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations	Front[3, 4]	G
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be enclosed, covered, or open.		
G. Private Open Space		
No private open space requirement.		
Footnotes:		
1. Standards do not apply to Accessory Dwelling Units.		
2. The footprint area of an accessory structure may not exceed the footprint area of the main body.		
3. Units located in the main body shall be accessed by a common entry along the front.		
4. On corner lots, units in a secondary wing may front the side street.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-11: COURTYARD BUILDING

A. Description

Courtyard Building: This Building Type is a grouping of small structures or an individual medium-to-large-sized structure that is oriented around a shared courtyard or series of courtyards. The units consist of multiple side-by-side and/or stacked dwelling units primarily accessed directly from a courtyard. A Courtyard Building is primarily applicable for medium-density neighborhoods but is also appropriately scaled to fit in sparingly within primarily single-residence neighborhoods. It enables appropriately-scaled, well-designed higher densities and is important for providing a broad choice of housing types and promoting walkability.



A courtyard building with all units accessed form a central courtyard which provides communal open space



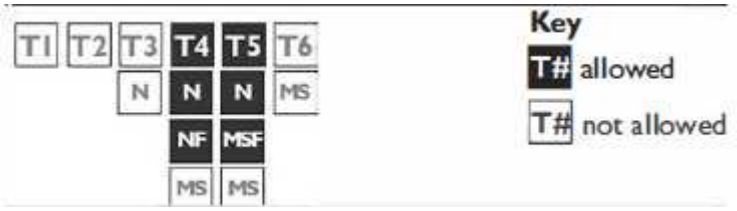
A courtyard defined by two and three story buildings.

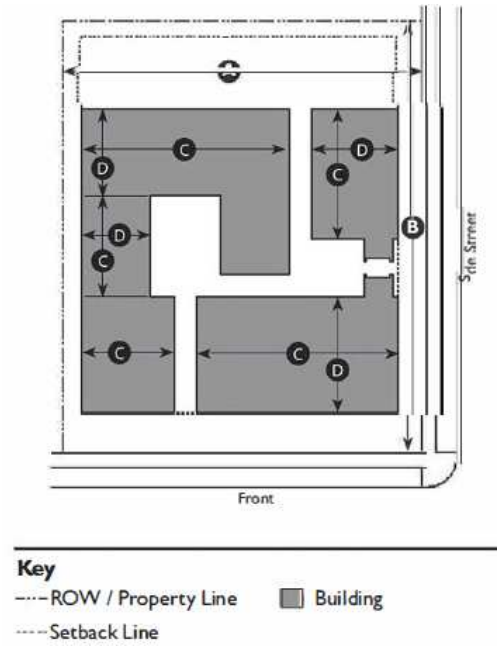


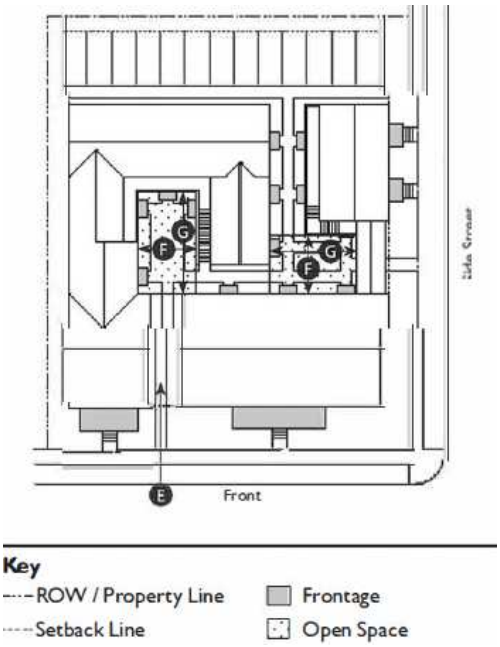
Courtyard with elevated stoops for privacy

(All photos are illustrative, not regulatory)

B. Permitted Transects



C. Number of Units		
Units	4 min.; 24 max.	
D. Building Size and Massing		
		
Main Body/Secondary Wing(s)		
Height	2 stories min.; 4 stories max.[1]	See Chapter 58: Building Form Standards
Width	100' max.	C
Depth	40' max.	D
Accessory Structure(s)		
No accessory structures are allowed.		
E. Frontage Requirements		



Allowed Private Frontages	Porch, Projecting Shopfront Stoop Forecourt Gallery Arcade Dooryard	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations		
Main Entry[2]		
Ground Floor Units	Accessible directly off of a courtyard or a street.	
Upper Floor Units	Stairs accessing upper floors may serve no more than three units.	
Courtyards	Accessible from the front.[3]	E
F. Vehicle Access and Parking		
Parking shall be accessed from the alley, side street or front.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
Parking spaces may be structured, tuck-under, or open.		
Pedestrian connections should link all buildings to the public right-of-way, courtyards, and parking areas.		
G. Private Open Space		
No private open space requirement.		
Courtyard(s)		

Width	20' min.; 50' max.[4]	Ⓕ
Width-to-Height Ratio	1:2 min. to 2:1 max.[4]	
Depth	20' min.; 150' max.[4]	Ⓖ
Depth-to-Height Ratio	1:1 to 3:1[4]	
Area (total)	400 sf min.; 50 sf/unit min.[4]	
Footnotes:		
1. Height must also comply with Building Form Standards.		
2. Each unit may have an individual entry.		
3. Passages through buildings (zaguans) and between buildings should be provided to connect multiple courtyards.		
4. Buildings must define a minimum of two (2) courtyard edges. Courtyard edges not defined by building should be defined by a six (6) foot stucco or masonry wall.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-12: MAIN STREET MIXED-USE

A. Description

Main Street Mixed-Use: This Building Type is a small-to-medium-sized structure, typically attached, intended to provide a vertical mix of uses with ground-floor commercial, service, or retail uses and upper-floor commercial, service, or residential uses. Smaller versions of this Building Type include live/work units. This Building Type makes up the primary component of a neighborhood main street and portions of a downtown main street, therefore being a key component to providing walkability.



Recently constructed main street mixed-use building



Historic main street mixed-use building with a two-story gallery



Recently constructed main street mixed-use building

(All photos are illustrative, not regulatory)

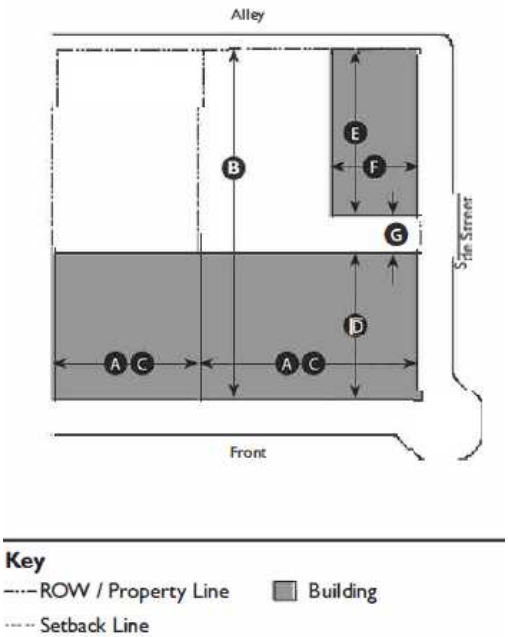
B. Permitted Transects



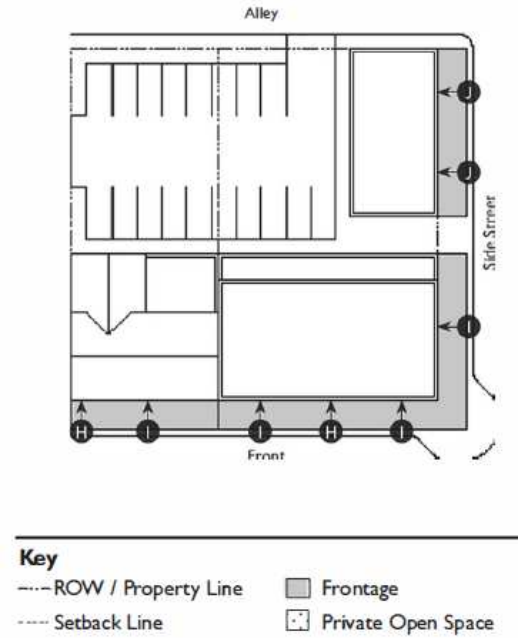
C. Number of Units

Units	2 min.	

D. Building Size and Massing



Main Body

Height	2 stories min.; 4 stories max.[1]	See Chapter 58: Building Form Standards
Width	150' max.	Ⓒ
Depth	65' max.	Ⓓ
Secondary wing(s)/Accessory Structure(s)		
Width	100' max.[2]	Ⓔ
Depth	65' max.[2]	Ⓕ
Separation from main body	10' min.	Ⓖ
E. Frontage Requirements		
		
Allowed Private Fronages	Dooryard Forecourt Gallery Arcade Shopfront Terrace	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations		
Main Body[2]		
Upper Floor Units	Accessed by a common entry along the front.	Ⓗ

Ground Floor Units	May have individual entries along the front or side street.	❶
Secondary Wing/Accessory Structure Units	On corner lots, units may front the side street.	❶
F. Vehicle Access and Parking		
Parking shall be accessed from a side street or alley.		
Parking drives and access may be shared on adjacent lots.		
On-site parking spaces may be enclosed or open.		
Garages may be detached or tuck-ender.		
G. Private Open Space		
No private open space requirement.		
Footnotes:		
1. Height must also comply with Building Form Standards.		
2. A secondary wing/accessory structure shall have a smaller footprint, a narrower width, and a depth than the main body.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-13: MID-RISE

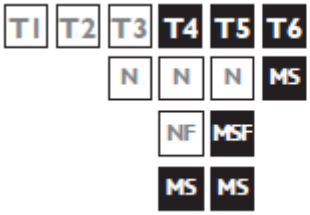
A. Description
Mid-Rise: This Building Type is a medium-to-large-sized structure, four (4) to eight (8) stories tall built on a large lot that incorporates structured parking. This building type can be used to provide a vertical mix of uses with ground-floor commercial, service, or retail uses and upper-floor commercial, service, or residential uses; or may be a single use building, typically service or residential, where ground floor retail is not appropriate. This Building Type is a primary component of an urban downtown providing high-density buildings.






(All photos are illustrative, not regulatory)

B. Permitted Transects





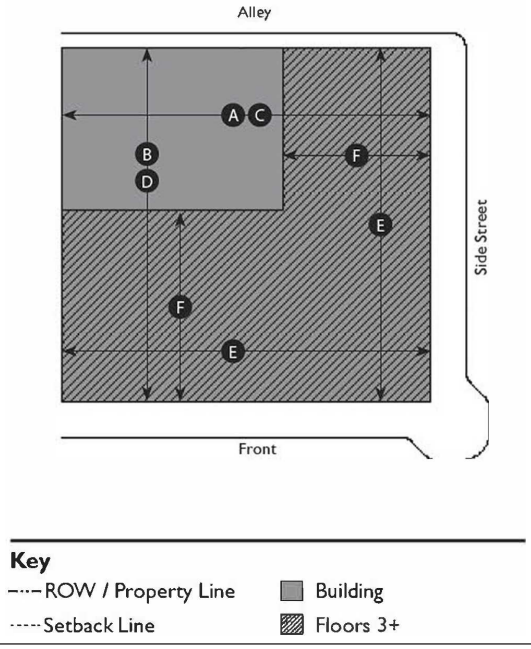
C. Lot Requirements

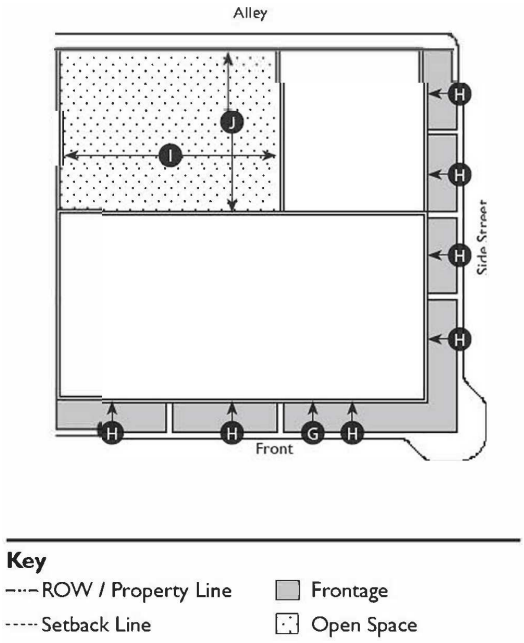
Lot Coverage	100% max.	

D. Number of Units

Unrestricted

E. Building Size, Massing, and Height



Height	4 stories min.; 8 stories max.[1]	See Chapter 58: Building Form Standards
Footprint		
Floors 1—2		
Width	200' max.[2]	C
Depth	150' max.[2]	D
Floors 3+		
Depth	65' max.[2]	E
F. Frontage Requirements		
		
Allowed Private Fronages	Dooryard Shopfront Gallery Arcade Terrace	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations		
Upper Floor Units	Accessed by a common entry along the front.	F
Ground Floor Units	May have individual entries along the front or side street.	G
G. Vehicle Access and Parking		
Parking shall be accessed from the front, alley or side street.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		

On-site parking spaces shall be in a structured garage.[3]		
H. Open Space		
No private open space requirement.		
Building rooftops, including parking structures, should be used to provide open space.		
Courtyard(s)		
Width	20' min.; 50' max.	H
Width-to-Height Ratio	1:2 to 2:1	
Depth	20' min.; 150' max.	I
Depth-to-Height Ratio	1:1 to 3:1	
Footnotes:		
1. Height must also comply with Building Form Standards.		
2. The floorplate of any floor may not be larger than the floor below.		
3. A limited number of surface parking spaces along an alley may be approved by the Planning Director.		

(Ord. No. 5948, § 1, 7-1-25)

11-59-14: HIGH-RISE

A. Description
High-Rise: This Building Type is a large-sized structure, more than eight (8) stories tall built on a large lot that incorporates structured parking. This Building Type is used to provide a vertical mix of uses with ground-floor commercial, service, or retail uses and upper-floor commercial, service, or residential uses. It is a primary component of an urban downtown providing high-density buildings






(All photos are illustrative, not regulatory)

B. Permitted Transects

T1	T2	T3	T4	T5	T6
		N	N	N	MS
			NF	MSF	
			MS	MS	

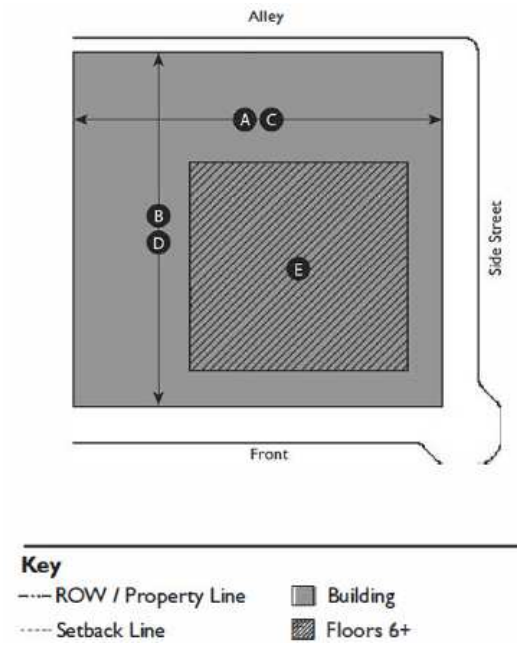
Key
T# allowed
T# not allowed

C. Lot Requirements		
Lot Coverage	100% max.	

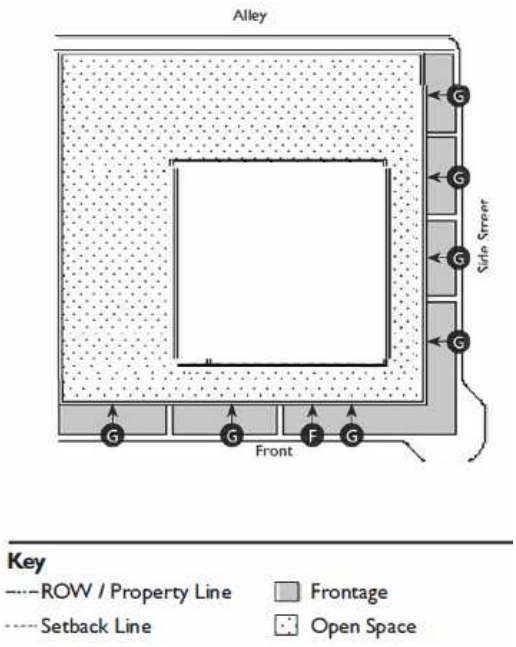
D. Number of Units

Unrestricted

E. Building Size, Massing, and Height



Height	8 stories min.	See Chapter 58: Building Form Standards
Footprint		
Floors 1—5		
Width	300' max.[1]	C
Depth	300' max.[1]	D
Floors 6—8		
Floorplate	80% of lot max.[1]	E
Floors 9+		
Residential Floorplate	15,000 sf max.[1]	E
Commercial Floorplate	30,000 sf max.[1]	
F. Frontage Requirements		

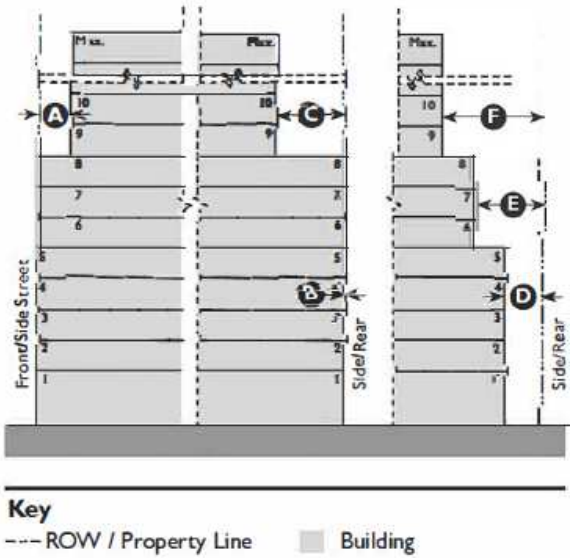


Allowed Private Fronages	Shopfront Dooryard Gallery Terrace	See Chapter 60: Private Frontage Standards for private frontage type descriptions and regulations
Entrance Locations		
Upper Floor Units	Accessed by a common entry along the front.	Ⓕ
Ground Floor Units	May have individual entries along the front or side street.	Ⓖ
G. Vehicle Access and Parking		
Parking may be accessed from the front, alley or side street.		
Parking may be accessed from the front only when there is no adjacent alley or side street.		
On-site parking spaces shall be in a structured garage.[2]		
H. Private Open Space		
No private open space requirement.		
Building rooftops, including parking structures, should be used to provide open space.		
Footnotes:		
1. The floorplate of any floor may not be larger than the floor below.		
3. A limited number of surface parking spaces along an alley may be approved by the Planning Director.		

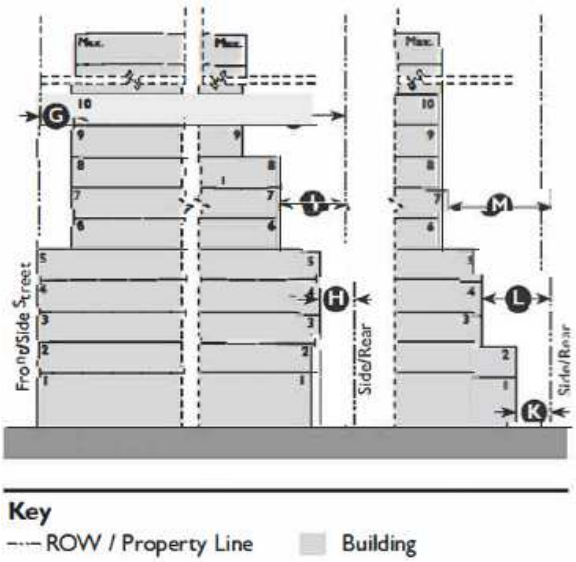
(Ord. No. 5948, § 1, 7-1-25)

11-59-15: ADDITIONAL STANDARDS FOR MID-RISE AND HIGH-RISE BUILDINGS

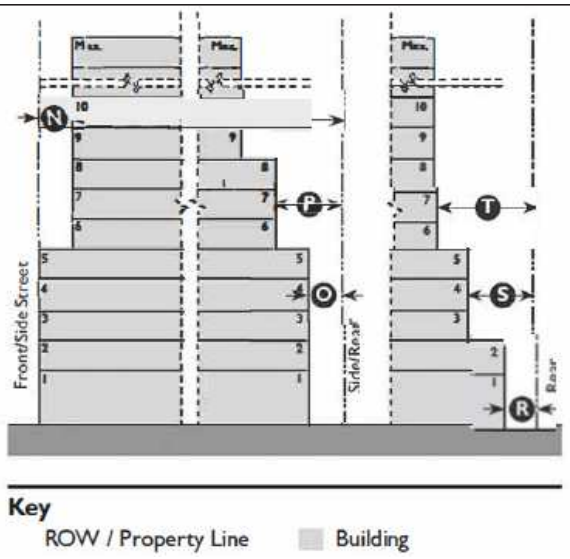
A. High-Rise/Mid-Rise Buildings in T6MS



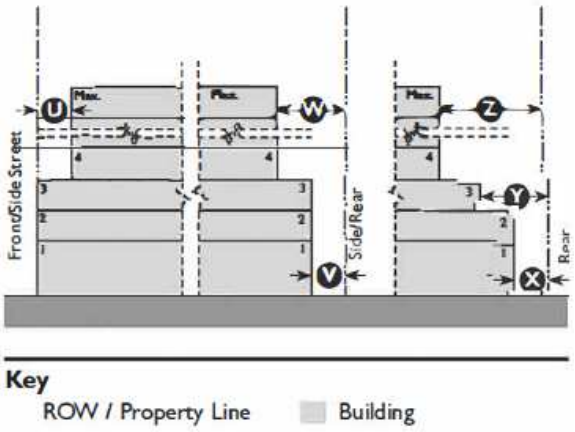
Front/Side Street Setback		
Floors 9+	10' min.	A
Side/Rear Setback		
Abutting T6		
Floors 1—8	0' min.	B
Floors 9+	30' min.	C
Abutting T5		
Floors 1—5	0' min.	D
Floors 6—8	10' min.	E
Floors 9+	30' min.	F
Abutting T4		
Floors 1—5	10' min.	D
Floors 6—8	10' min.	E
Floors 9+	30' min.	F
B. High-Rise/Mid-rise Buildings in T5MS		



Front/Side Street Setback		
Floors 6+	10' min.	G
Side/Rear Setback		
Abutting T6/T5		
Floors 1—5	0' min.	H
Floors 6—8	10' min.	I
Floors 9+	30' min.	J
Abutting T4		
Floors 1—5	10' min	H
Floors 6—8	20' min.	I
Floors 9+	30' min.	J
Abutting T3		
Floors 1—2	10' min.	K
Floors 3—5	20' min.	L
Floors 6+	30' min.	M
C. High-Rise/Mid-Rise Buildings in T5MSF/T5N		



Front/Side Street Setback		
Floors 69+	10' min.	N
Side Setback		
Abutting T6/T5/T4		
Floors 1—5	0' min.	O
Floors 6—8	10' min.	P
Floors 9+	30' min.	Q
Abutting T3		
Floors 1—5	10' min.	O
Floors 6—8	20' min.	P
Floors 9+	30' min.	Q
Rear Setback		
Abutting T6/T5/T4		
Floors 1—5	10' min.	O
Floors 6—8	20' min.	P
Floors 9+	30' min.	Q
Abutting T3		
Floors 1—2	10' min.	R
Floors 3—5	20' min.	S
Floors 6+	30' min.	T
D. Mid-Rise Buildings in T4MS		



Front/Side Street Setback		
Floors 4+	10' min.	U
Side Setback		
Floors 1—3	0' min.	V
Floors 4+	10' min.	W
Rear Setback		
Abutting T6/T5/T4		
Floors 1—3	10' min.	V
Floors 4+	20' min.	W
Abutting T3		
Floors 1—2	10' min.	X
Floor 3	20' min.	Y
Floors 4+	30' min.	Z

(Ord. No. 5948, § 1, 7-1-25)

CHAPTER 60 PRIVATE FRONTAGE STANDARDS

11-60-1: PURPOSE

This Chapter sets forth the standards applicable to the development of private frontages. Private frontages are the components of a building that provide an important transition and interface between the public realm (street and sidewalk) and the private realm (yard or building). These standards supplement the standards for each Transect Zone that the frontage types are allowed within.
(Ord. No. 5948, § 1, 7-1-25)

11-60-2: APPLICABILITY

The standards within this Chapter shall apply to all proposed development within Transect Zones and shall be considered in combination with the standards for the applicable zone in Chapter 58: Building Form Standards and Chapter 59: Building Type Standards.
(Ord. No. 5948, § 1, 7-1-25)

11-60-3: COMMON YARD

A. Description

Common Yard: The building's main façade features a spacious, landscaped setback from the right-of-way, providing a buffer from traffic. The front yard is unfenced, creating a visually seamless connection with adjacent yards and contributing to a cohesive streetscape.



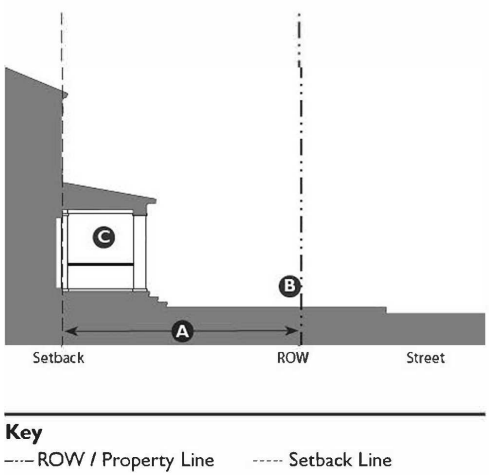
An example of a common yard

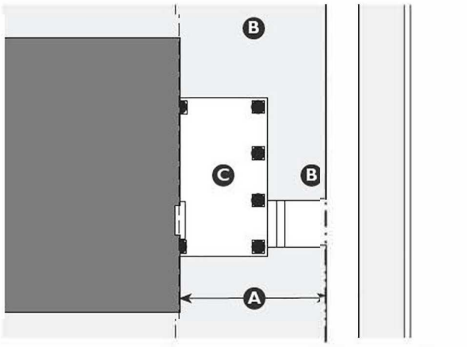


The front yards of these houses form a continuous common yard.

(All photos are illustrative, not regulatory)

B. Size





Depth	20' min.	A

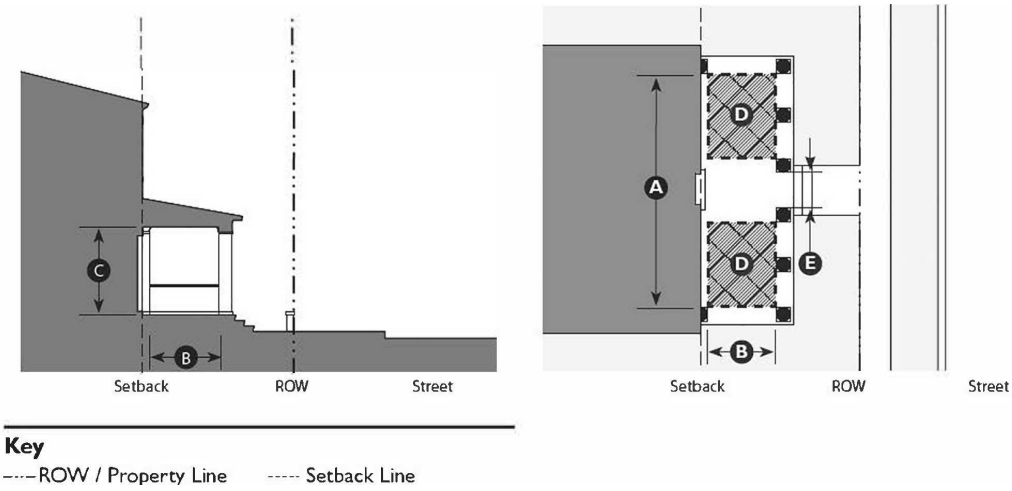
C. Miscellaneous

Fences are not permitted in front yards including fences on side property lines	B

Common Yard Frontages may only be used in conjunction with another allowed private frontage type, such as porch.	C

(Ord. No. 5948, § 1, 7-1-25)

11-60-4: PORCH: PROJECTING

A. Description		
Porch, projecting: The building's main façade features a modest setback from the right-of-way, creating a small front yard that may be defined by a fence or hedge to define the street edge. The projecting porch is open on three (3) sides, with all habitable space located behind the setback line.		
 *A wrap-around projecting porch*	 *Projecting porch integrated into the overall massing*	
(All photos are illustrative, not regulatory)		
B. Size		
		
Width, clear	10' min.[1]	A
Depth, clear	8' min.[1]	B
Height, clear	8' min.	C
Height, top of covering	2 stories max.	

Furniture area, clear	4' × 6' min.	D
Path of travel	3' wide min.	E
Footnotes:		
1. A Projecting Porch must have a roof that covers the entire porch.		

(Ord. No. 5948, § 1, 7-1-25)

11-60-5: PORCH: ENGAGED

A. Description

Porch, engaged: The building's main façade features a modest setback from the right-of-way, creating a small front yard, often defined by a fence or hedge to clearly define the street edge. The engaged porch is attached to the building on two (2) sides, while the remaining two (2) sides are open.



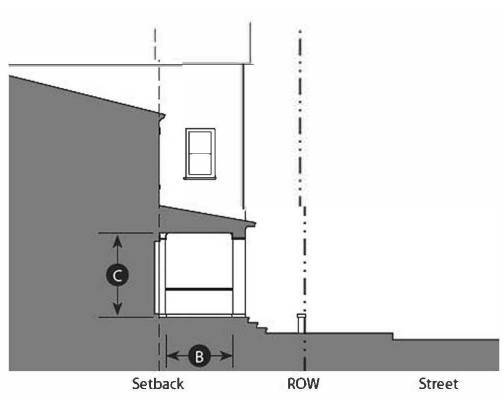
Engaged porch as an attached element.

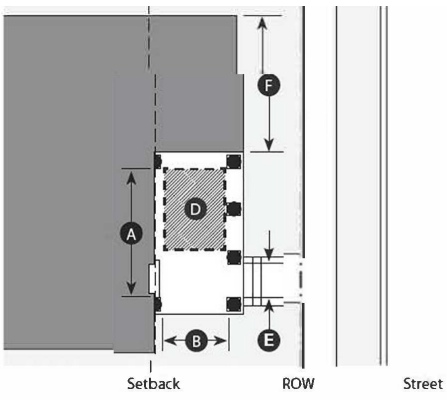


An example of an engaged porch

(All photos are illustrative, not regulatory)

B. Size





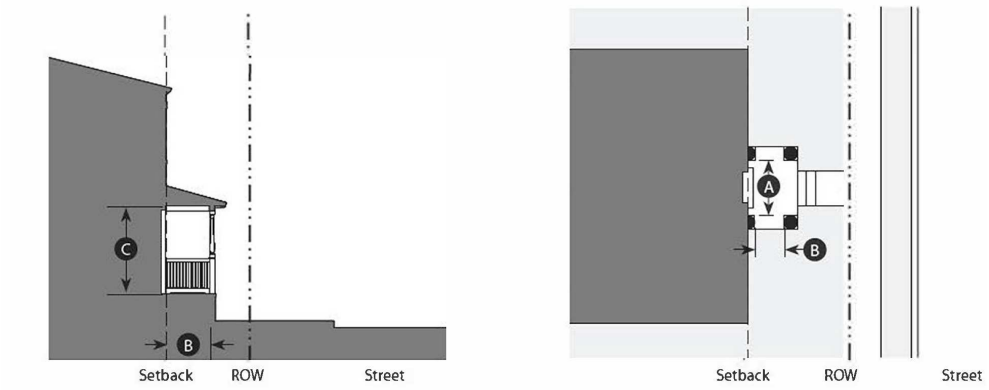
Width, clear	10' min.[1]	A
Depth, clear	8' min.[1]	B

Height, clear	8' min.	Ⓒ
Height, top of covering	2 stories max.	
Furniture area, clear	4' × 6' min.	Ⓓ
Path of travel	3' wide min.	Ⓔ
C. Encroachments		
Up to ⅔ of the building façade may project beyond the setback line into the encroachment area for this frontage type.		
Footnotes:		
1. An Engaged Porch must have a roof that covers the entire porch.		

(Ord. No. 5948, § 1, 7-1-25)

11-60-6: STOOP

A. Description
Stoop: The building's main façade is located near the right-of-way, with an elevated stoop that engages the sidewalk. The stoop is raised above the sidewalk to ensure privacy within the building. Stairs from the stoop may lead directly to the sidewalk or may be perpendicular to the sidewalk. Stoops are appropriate for residential uses with small setbacks.
 *These stoops on townhouses with slightly recessed entries and a minimum setback allow the steps to engage the street.*  *This stoop on single-family dwelling with a medium setback engages the street.*
(All photos are illustrative, not regulatory)
B. Size



Width, clear	5' min.; 8' max.	A
Depth, clear	5' min.; 8' max.	B
Height, clear	8' min.	C
Height, top of covering	1 story max.	
Depth of recessed entries	6' max.	
C. Miscellaneous		
Stairs may be perpendicular or parallel to the building façade.		
Ramps shall be parallel to façade or along the side of the building.		
The entry door shall be covered or recessed to provide shelter from the elements.		
All doors must face the street.		

(Ord. No. 5948, § 1, 7-1-25)

11-60-7: FORECOURT

A. Description
Forecourt: The building's main façade is at or near the right-of-way, with a small portion of the façade set back to create a small courtyard. This area can serve as an entry court, a shared garden space for apartment buildings, or as an additional shopping or restaurant seating area.



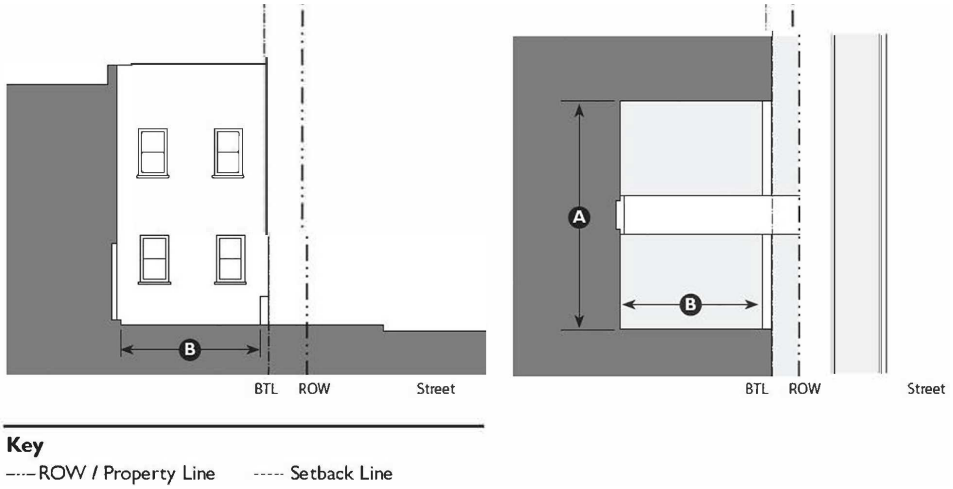
This residential forecourt provides prominent entry yard and breaks down the overall massing along the street.



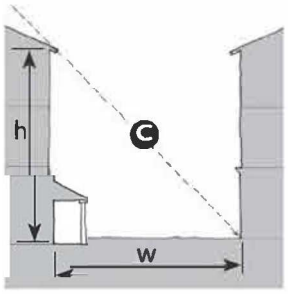
This commercial forecourt provides an outdoor dining area along a vibrant commercial street. The ROW is defined by a low wall as required by this code.

(All photos are illustrative, not regulatory)

B. Size



Width, clear	12' min.	A
Depth, clear	12' min.	B



Ratio, Height to Width	2:1 max.	C

C. Miscellaneous

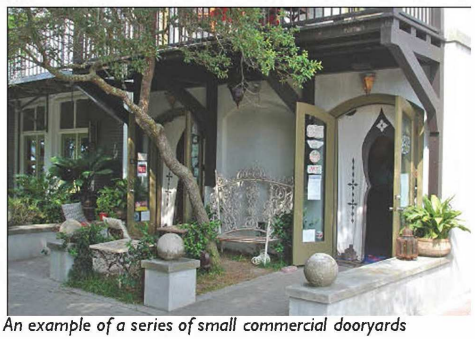
Within Neighborhood and Flex zones, a Forecourt cannot be used on parcels with more than one (1) adjacent parcel using a Forecourt.
Within Main Street zones, a Forecourt cannot be used on a parcel if an adjacent parcel has a Forecourt.
The proportions and orientation of these spaces should be carefully considered for solar orientation and user comfort.

(Ord. No. 5948, § 1, 7-1-25)

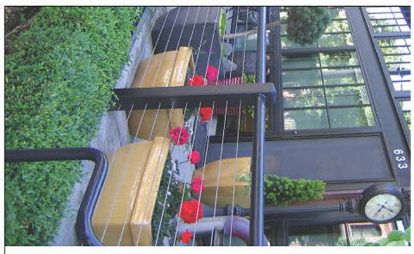
11-60-8: DOORYARD

A. Description

Dooryard: The transition from the public to private realm is defined by a low wall or hedge placed just behind the right-of-way with the main building façade setback a small distance, creating a small dooryard. The dooryard may be raised, sunken, or at grade, and is intended for ground floor residential in flex zones, live/work, and small commercial uses ≤2,500 sf.



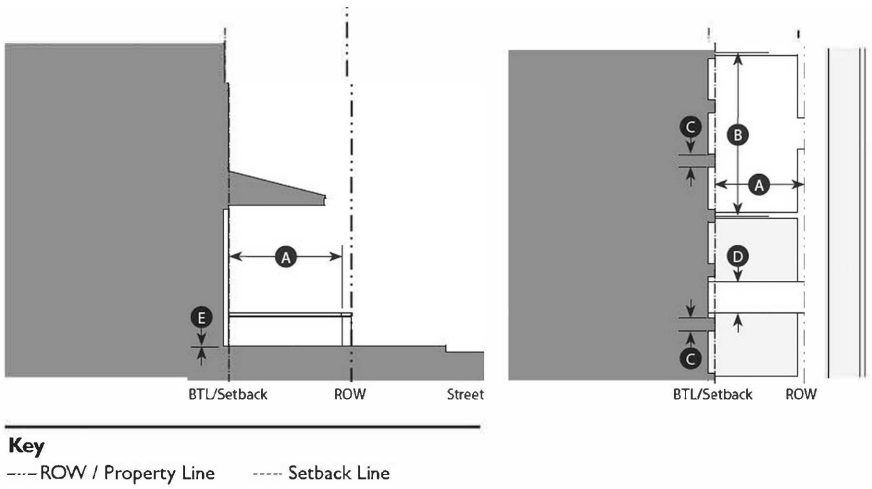
An example of a series of small commercial dooryards



An example of a series of residential dooryards. Each dooryard has its own steps with railings providing separation between the dooryards of adjacent units.

(All photos are illustrative, not regulatory)

B. Size



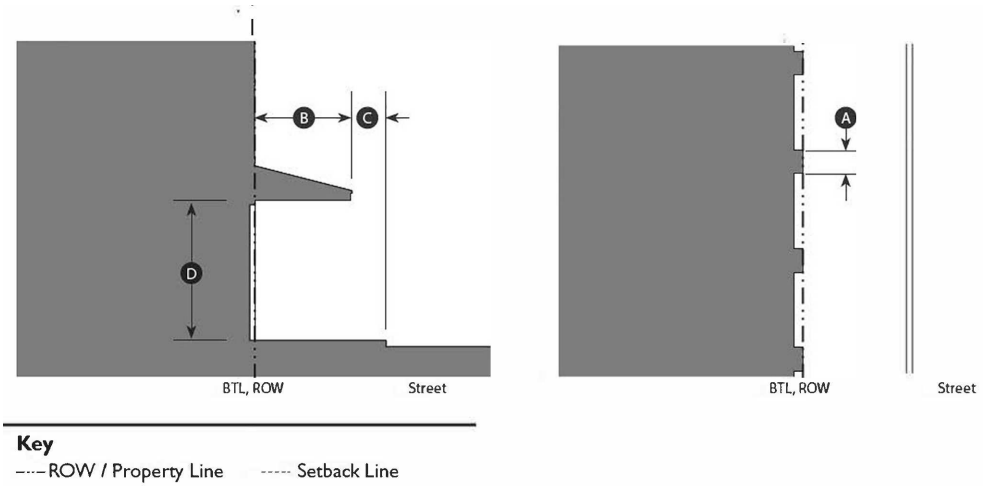
Depth, clear	8' min.	Ⓐ
Length	50' max.	Ⓑ

Distance between glazing	4' max.[1]	Ⓒ
Ground floor transparency	50% min.[2, 3]	
Depth of recessed entries	5' max.	
Path of travel	3' wide min.	Ⓓ
Finish level above sidewalk	3'-6' max.	Ⓔ
Finish level below sidewalk	6' max.	
C. Miscellaneous		
For Live/Work and Commercial Uses, these standards are to be used in conjunction with those for the Shopfront Frontage Type. In case of conflict between them, the Dooryard standards shall prevail.		
Low walls (12"-36") used as seating are encourage.		
Shall not be used for circulation for more than one (1) ground floor entry.		
Footnotes:		
1. May be increased if located outside of the Downtown Pedestrian Area, and superior building design standards are utilized including building wall articulation and changes in materials and colors, as reviewed with the Zoning Clearance.		
2. For live/work and commercial uses only.		
3. Minimum 40% if located outside the Downtown Pedestrian Area and superior, pedestrian-scale building design, with changes in color, material and texture is utilized, as reviewed with the Zoning Clearance.		

(Ord. No. 5948, § 1, 7-1-25)

11-60-9: SHOPFRONT

A. Description
Shopfront: The building's main façade is at or near the right-of-way with an at-grade entrance directly accessible from the public right-of-way. Designed primarily for retail use, it features substantial glazing at the sidewalk level and may include an awning that extends over the sidewalk. Shopfronts may be used in conjunction with other frontage types. Syn: **Retail Frontage, Awning**.
 *An example of a shopfront with a chamfered corner entry*  *An example of a shopfront with a recessed doorway*
(All photos are illustrative, not regulatory)
B. Size



Distance between glazing	2' max.[1]	A
Ground floor transparency	75% min.[2]	
Depth of recessed entries	5' max.	
C. Awning		
Depth	4' min.	B
Setback from curb	2' min.	C
Height, clear	8' min.	D
D. Miscellaneous		
Residential windows shall not be uses.		
Operable awnings are encouraged.		
Open-ended awnings encourage.		
Rounded and hooped awnings are discourage.		
Shopfronts with accordion-style doors/windows or other operable windows that allow the space to open to the street are encouraged.		
Footnotes:		
1. May be increased if located outside of the Downtown Pedestrian Area, and superior building design standards are utilized including building wall articulation and changes in materials and colors, as reviewed with the Zoning Clearance.		
2. May be reduced to 50% if located outside the Downtown Pedestrian Area and results in superior building wall articulation and design, with further reduction to 40% if pedestrian-scale design is utilized, with changes in color, material and texture, as reviewed with the Zoning Clearance.		

(Ord. No. 5948, § 1, 7-1-25)

11-60-10: TERRACE

A. Description

Terrace: The building's main façade is at or near the right-of-way, with an elevated terrace providing public circulation along the façade. This design allows for at-grade access while allowing grade changes. Frequent steps leading up to the terrace are essential to avoid blank walls and ensure accessibility. Terraces may be used in historic industrial areas to mimic historic loading docks.



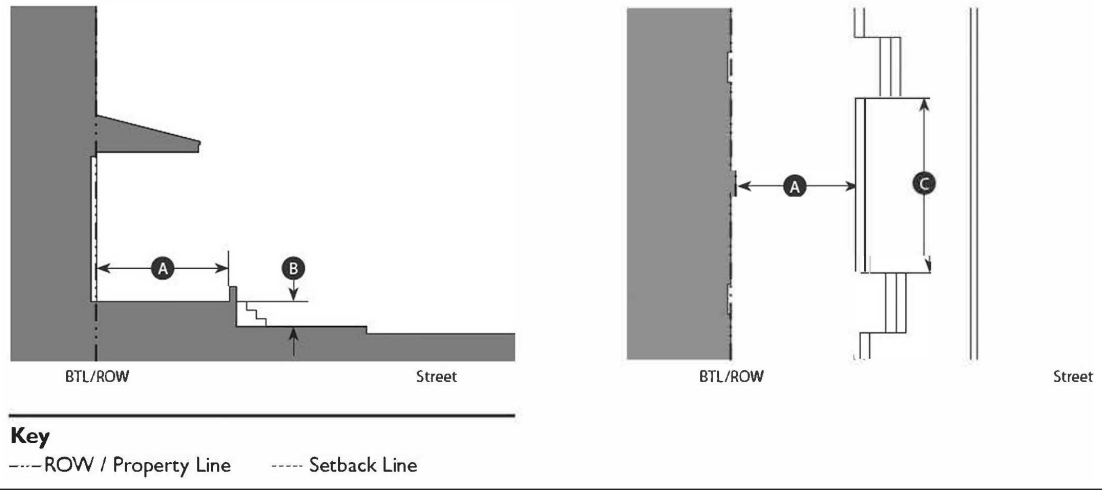
An example of a terrace used to accommodate a change in grade. The low walls are used to provide seating.

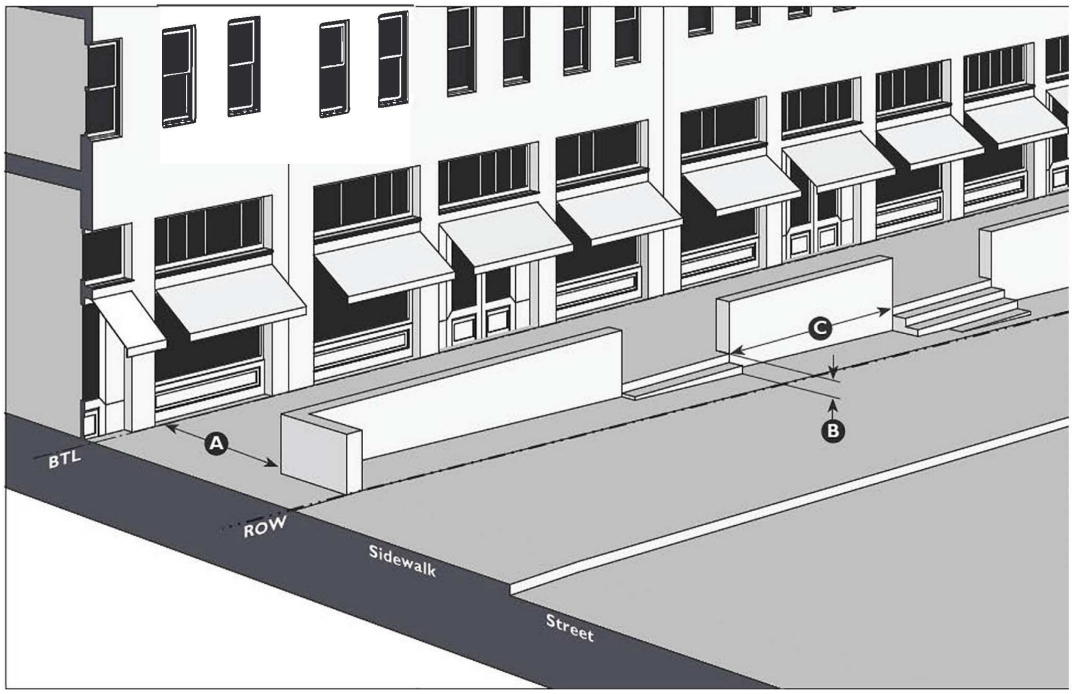


An example of a terrace in a historic industrial district

(All photos are illustrative, not regulatory)

B. Size





A terrace accommodating a grade change along a series of shopfronts

Depth, clear	8' min.	A
Finish level above sidewalk	3'6" max.	B
Length of terrace	150' max.	
Distance between stairs	50' max.	C

C. Miscellaneous
These standards are to be used in conjunction with those for the Shopfront Frontage Type. In case of conflict between them, the Terrace standards shall prevail.
Low walls used as seating are encouraged.

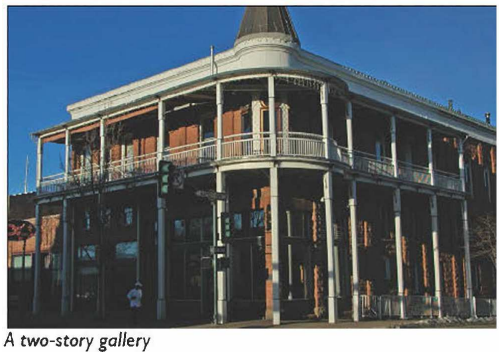
(Ord. No. 5948, § 1, 7-1-25)

11-60-11: GALLERY

A. Description
Gallery: The building's main façade is at the right-of-way, and the gallery element extends over the sidewalk. Designed for buildings with ground-floor commercial uses, the gallery can be one (1) or two (2) stories high. The gallery provides primary circulation along the building frontage, projecting far enough from the building to provide both protection and adequate space for pedestrians.



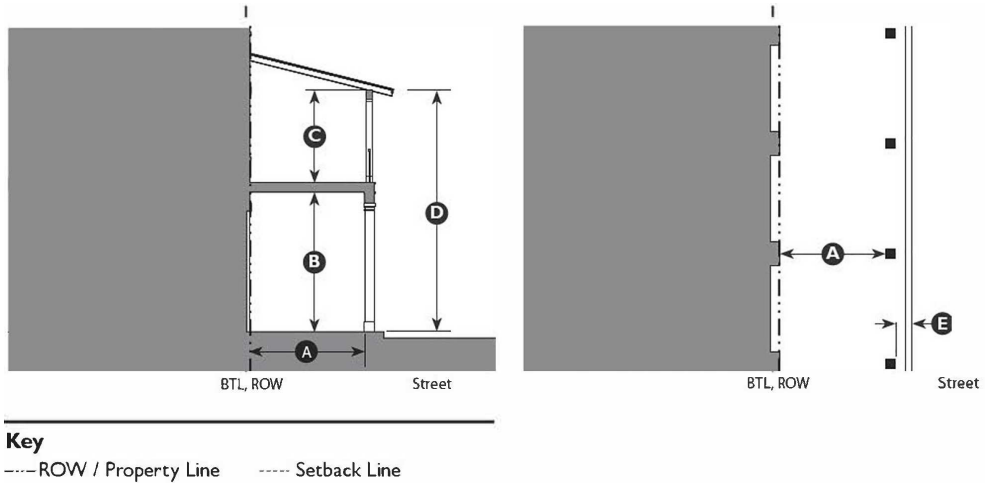
A one-story gallery with second floor access



A two-story gallery

(All photos are illustrative, not regulatory)

B. Size



Depth, clear	8' min.[1]	A
Ground floor height, clear	11' min.	B
Upper floor height, clear	9' min.	C
Height, top of covering	3 stories max.	D
Setback from curb	3' min.[2]	E

C. Miscellaneous

These standards are to be used in conjunction with those for the Shopfront Frontage Type. In case of conflict between them, the Terrace standards shall prevail.

Upper-story galleries facing the street must not be used to meet primary circulation requirements.

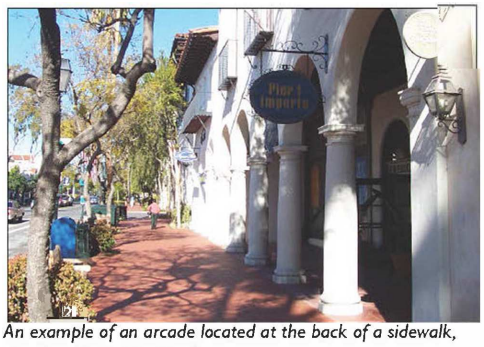
Footnotes:

1. Galleries must have a consistent depth along a frontage.
2. Galleries must project over a sidewalk.

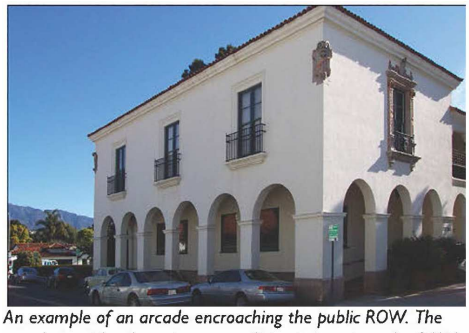
(Ord. No. 5948, § 1, 7-1-25)

11-60-12: ARCADE

A. Description
Arcade: A covered walkway with habitable space above, and often extending over, the right-of-way. The arcade serves as the primary circulation space along the frontage, projecting sufficiently from the building to provide protection and facilitate pedestrian movement. This design is typically used for buildings with ground floor commercial uses and is commonly found along public courtyards and paseos.



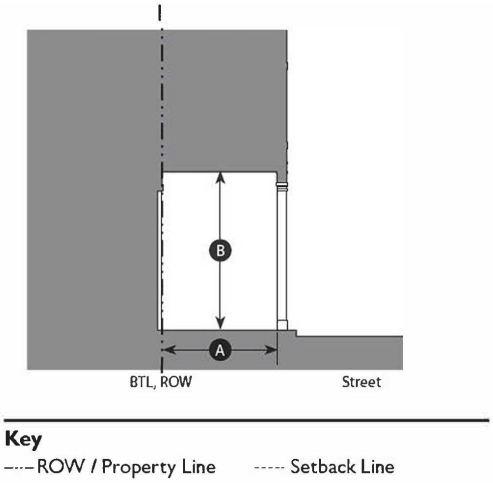
An example of an arcade located at the back of a sidewalk, abutting the public ROW

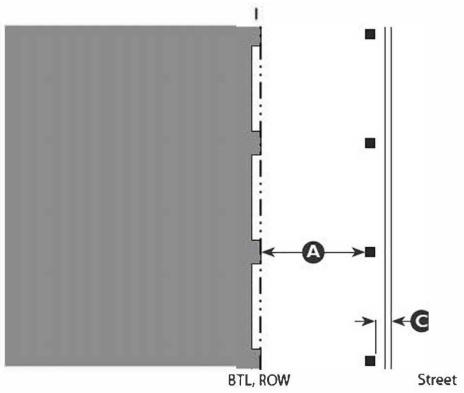


An example of an arcade encroaching the public ROW. The arcade provides the only means of circulation along the ROW.

(All photos are illustrative, not regulatory)

B. Size





Depth, clear	12' min.[1]	A
Ground floor height, clear	14' min. clear	B
Setback from edge of curb	3' min.	C

C. Miscellaneous
These standards are to be used in conjunction with those for the Shopfront Frontage Type. In case of conflict between them, the Terrace standards shall prevail.

Arcades with more than two (2) floors of habitable space above the colonnade may not encroach into the right-of-way and must be located so that it abuts the right-of-way.
Footnote:
1. Arcades must have a consistent depth along a frontage.

(Ord. No. 5948, § 1, 7-1-25)

CHAPTER 61 THOROUGHFARE STANDARDS

11-61-1: PURPOSE

A. The intent of this Chapter is to provide a catalog of pre-approved thoroughfare assemblies and components that are appropriate to use within transect zones. These components can be combined to form thoroughfares that can be used in developments. The standards in this Chapter are intended to help minimize the amount of back-and-forth with the Planning Department, City Traffic Engineer, Fire Department, Solid Waste Management, and City Engineer.

B. Application of thoroughfares will balance the needs of pedestrians with vehicles. To make a more pedestrian-friendly environment, design speeds will generally be lower and traffic congestion will generally be higher when compared to thoroughfares in other parts of the City.

11-61-2: APPLICABILITY

A. This Chapter describes thoroughfare assemblies, formulas, and components and assemblies approved for the development of thoroughfares in transect zones. It supplements the "Engineering Standards." Where these standards conflict with the "Engineering Standards", the standards of this Chapter shall prevail.

B. These thoroughfare standards are applicable for the transformation of existing thoroughfares and the creation of new thoroughfares in any areas within the transect zones.

C. The placement and use of thoroughfare assemblies is subject to review through the development of a Street Regulating Plan per Chapter 63 (Smart Growth Community Plans) Section 11-63-6 (Thoroughfares).

D. Additional thoroughfare assemblies can be integrated into this Chapter as they are approved by the City.

11-61-3: ALLOWED THOROUGHFARES

Allowed throughfares shall follow the process diagram in Table 11-61-3.A (Allowed Thoroughfare Process Diagram) and are allowed by right or with the specified approvals as follows:

A. Predefined thoroughfare assemblies found in Section 11-61-8 (Thoroughfare Assemblies) are allowed by right.

B. Thoroughfares that meet the standards found in Table 11-61-9.A (Thoroughfare Formulas) and use only the predefined components in Tables 11-61-9.B-H are allowed By Right or By Review as follows (Thoroughfares allowed By Review are allowed if approved by the Director and City Traffic Engineer.):

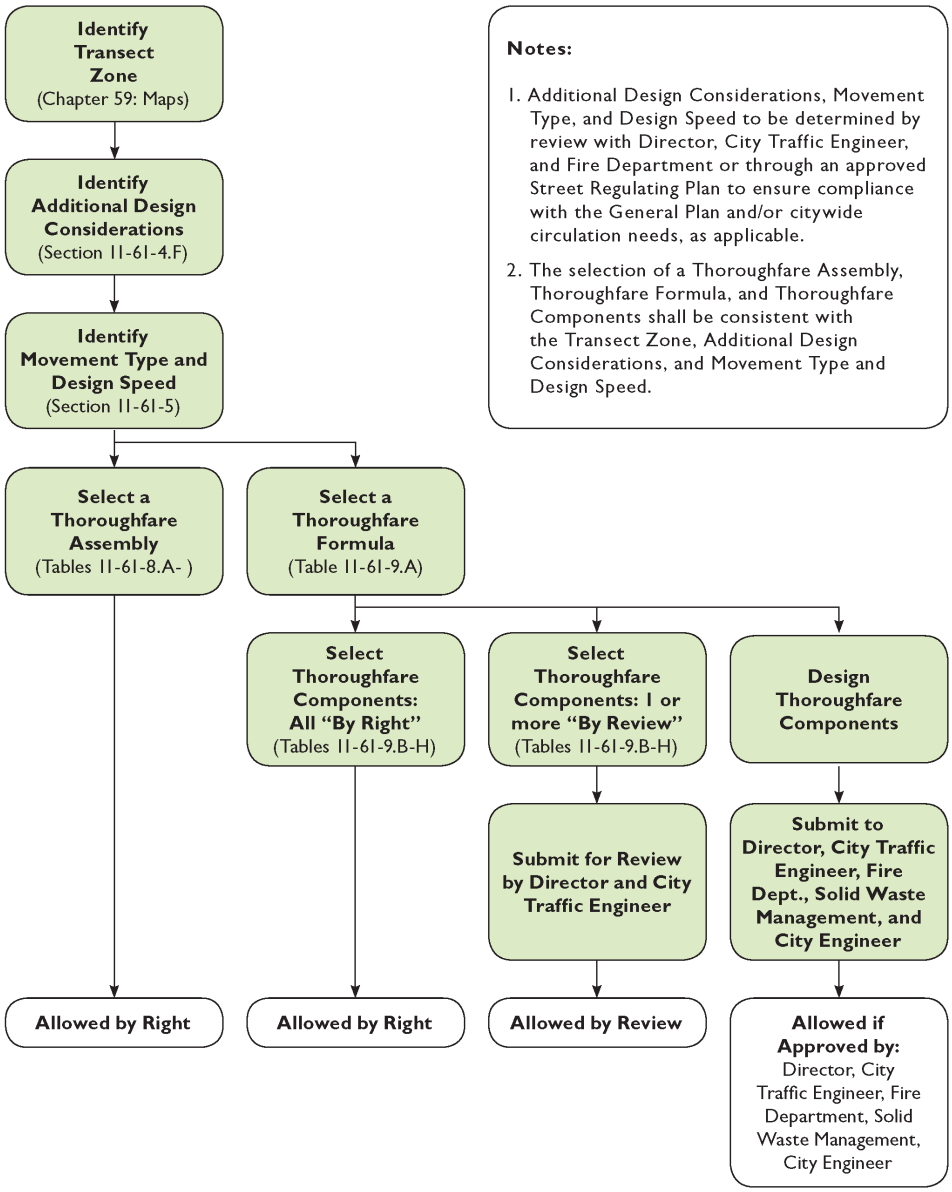
1. If all of the selected predefined components are allowed By Right, the thoroughfare is allowed By Right.

2. If one or more of the selected predefined components is allowed By Review, the thoroughfare is allowed By Review.

C. Thoroughfares that meet the standards found in Table 11-61-9.A (Thoroughfare Formulas) but do not use only the predefined components in Tables 11-61-9.B-H are allowed if approved by the Director, City Traffic Engineer, Fire Department, Solid Waste Management, and City Engineer.

D. Thoroughfares that do not meet the standards in items A-C above are not allowed in any Transect zones.

Table 11-61-3.A: Allowed Thoroughfare Process Diagram



11-61-4: THOROUGHFARE DESIGN

A. Thoroughfares are intended for use by vehicular and pedestrian traffic and to provide access to lots and open spaces.

B. Thoroughfares shall generally consist of vehicular lanes and public frontages.

C. Thoroughfares shall be designed in context with the urban form and general intention of the transect zones through which they pass.

1. Within the more urban transect zones (T3 through T6) pedestrian comfort shall be a primary consideration of the thoroughfare design. Design conflict between vehicular and pedestrian movement generally shall be decided in favor of the pedestrian.

2. Within the most rural transect zones (T1 and T2) pedestrian comfort shall be a secondary consideration of the thoroughfare design. Design conflict between vehicular and pedestrian movement generally shall be decided in favor of the vehicle.

D. The requirements for pedestrian and bicyclist safety, comfort and access shall establish thoroughfare movement type and design speed. The movement type and design speed shall be the primary consideration used to determine the dimensions of each thoroughfare element, such as vehicular lanes and turning (curb) radii.

E. Thoroughfares shall be designed to accommodate the types of vehicles expected to use each thoroughfare on a daily basis. Occasionally, large vehicles are expected on all thoroughfares. All thoroughfares shall allow these vehicles to safely pass without major difficulty. It is expected that large vehicles may encroach on the opposing lane when making turning movements.

F. Additional Design Considerations. Other factors that may need to be considered in the selection of an appropriate thoroughfare type in transect zones include the following:

1. Topography. Thoroughfares that traverse steep slopes may need to incorporate additional design consideration for such elements as drainage facilities, additional width for bicycle lanes on the uphill side of the thoroughfare, etc.

2. Parking. The provision of parking on site or on the thoroughfare may need to be considered in the selection of the appropriate thoroughfare type.

3. Truck Access. Thoroughfares that provide access to high volumes of large trucks may need additional design considerations to mitigate potential negative effects on walkability.

4. Bus Service. Thoroughfares that will serve as public transit or school bus routes may need additional design considerations, including, but not limited to, the location of bus stops.

5. Fire/Emergency Access. Additional design considerations may be needed to accommodate Fire/ Emergency Access, including, but not limited to, the location of rolled curbs and bulb-outs to accommodate fire truck outriggers.

G. All lane dimensions shall be measured to the face of the curb. Where no curb and gutter is provided, the lane dimension shall be to the edge of the pavement. For Yield movement types, lane dimensions assume two-way traffic and are for a single lane accommodating two-way traffic.

H. Shared lanes with sharrow markings on the travel lanes or a bicycle boulevard, a road shared by bicycles and vehicles, are allowed and may be required on streets with a design speed of 25 mph or less. Bike Lanes may also be required to provide continuity between neighborhoods or based on traffic volumes. See Table 11-61-9.B (Bicycle Facilities Standards) for minimum dimensions.

11-61-5: MOVEMENT TYPES AND DESIGN SPEED

Movement types are intended to assist in the selection of the appropriate thoroughfare design for the necessary level of pedestrian and bicyclist safety and comfort at any given location. Design speed is the primary determinant of movement type. A list of approved movement types (along with their assigned lane widths and curb radii) is provided for each transect zone in Tables 11-61-9.A-D.

Following is a list of movement types:

A. Yield. Drivers must proceed slowly, with extreme care, and must yield to approaching traffic when vehicles are parked on both sides of the thoroughfare creating essentially one through lane. A Yield Thoroughfare is the functional equivalent of traffic calming. In addition to Yield movement use on normal thoroughfares, this movement is used for Alleys and Rear Lanes. For these applications, the primary purpose is access to rear loaded driveways/access for residential and commercial property. The 12' travel lane for Rear Lanes can be configured for one-way or two-way operation. When used for two way travel, parking is required on both sides of street in order to facilitate the Yield Movement Type and drivers exiting garages or driveways will have to yield to those vehicles occupying the lane therefore the number of properties connected to the Rear Lane should be considered. Parking in Alleys and Rear Lanes should only occur in driveways or parking structures to allow access for trash collection, service trucks and emergency access. Design speed is less than 20 mph.

B. Slow. Drivers can proceed carefully with an occasional stop to allow a pedestrian to cross or another car to park. The character of the thoroughfare should make drivers uncomfortable exceeding the design speed due to the presence of parked cars, sense of enclosure from buildings and street trees, tight turning radii, and other design elements. Design speed is 20-25 mph.

C. Low. Drivers can generally expect to travel without delay at the appropriate design speed. Thoroughfare design supports safe pedestrian movement at the higher design speed. This movement type is appropriate for thoroughfares designed to traverse longer distances or connect to higher intensity locations. Design speed is 30-35 mph.

D. Suburban. This is a conventional thoroughfare design in which drivers can expect a separation of modes, (i.e., bike lanes, walking paths and roads) allowing automobiles to travel unimpeded by pedestrians or walkability concerns. This movement type is rarely used in T3 through T6 transect zones, but may be needed when a thoroughfare crosses through T1 or T2 transect zones. Design speed may be above 35 mph.

The design criteria for Yield, Slow, and Low Thoroughfares shall be commensurate with local thoroughfares. Design speeds higher than 35 mph shall not be used in areas intended to support moderate or high levels of pedestrian or bicycle activity due to concerns with safety and comfort.

11-61-6: INTERSECTIONS

A. Street design of narrow streets and compact intersections requires designers to pay close attention to the operational needs of transit, fire and rescue, waste collection and delivery trucks. For this reason, early coordination with transit, fire and rescue, waste collection and other stakeholder groups is essential.

B. More regular encroachment of turning vehicles into opposing lanes will occur at compact intersections. Therefore, frequency of access, traffic volumes and the speeds on intersecting streets at those intersections must be considered when designing intersections. For fire and rescue, determination of the importance of that street for community access should be determined, e.g. primary or secondary access.

C. The designer should use turning templates or software to evaluate intersections to ensure adequate operation of vehicles can occur. Location of on street parking around intersections should be evaluated during this analysis to identify potential conflicts between turning vehicles and on street parking. Bike lanes and on-street parking will increase the effective curb return radius, when curb extensions are not employed, by providing more room for the wheel tracking of turning vehicles.

11-61-7: PUBLIC FRONTAGES

A. **General to All Transect Zones**

1. The public frontage contributes to the character of the transect zone, and includes the types of sidewalk, curb, planter, and street trees.

2. Public frontages shall be designed and allocated within transect zones as shown in Tables 11-61-9.E-F

3. Within the public frontages, the prescribed types of public planting and public lighting shall be as shown in Tables 11-61-9.E-H. The spacing of the public planting may be adjusted with the approval of the Director to accommodate specific site conditions.

B. **Specific To Transect Zones T1, T2, T3**

1. The public frontage shall include trees of various species, naturalistically clustered, as well as understory.

2. The introduced landscape shall consist primarily of native species requiring minimal irrigation, fertilization and maintenance. Lawn shall be permitted only with approval by the Director.

C. **Specific To Transect Zones T4, T5, T6**

1. The introduced landscape shall consist primarily of durable species tolerant of soil compaction.

2. Above ground utility facilities shall be placed to minimize the impact on pedestrians.

D. **Specific To Transect Zones T4**

1. The public frontage shall include trees planted in a regularly-spaced allee pattern of single or alternated species with shade canopies of a height that, at maturity, clears at least one Story.

E. **Specific To Transect Zones T5, T6**

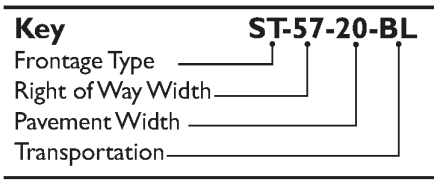
1. The public frontage shall include trees planted in a regularly-spaced allee pattern of single species with shade canopies of a height that, at maturity, clears at least one Story. At retail frontages, the spacing of the trees may be irregular, to avoid visually obscuring the shopfronts.

2. Streets with a Right-of-Way width of 40 feet or less shall be exempt from the tree requirement.

11-61-8: THOROUGHFARE ASSEMBLIES

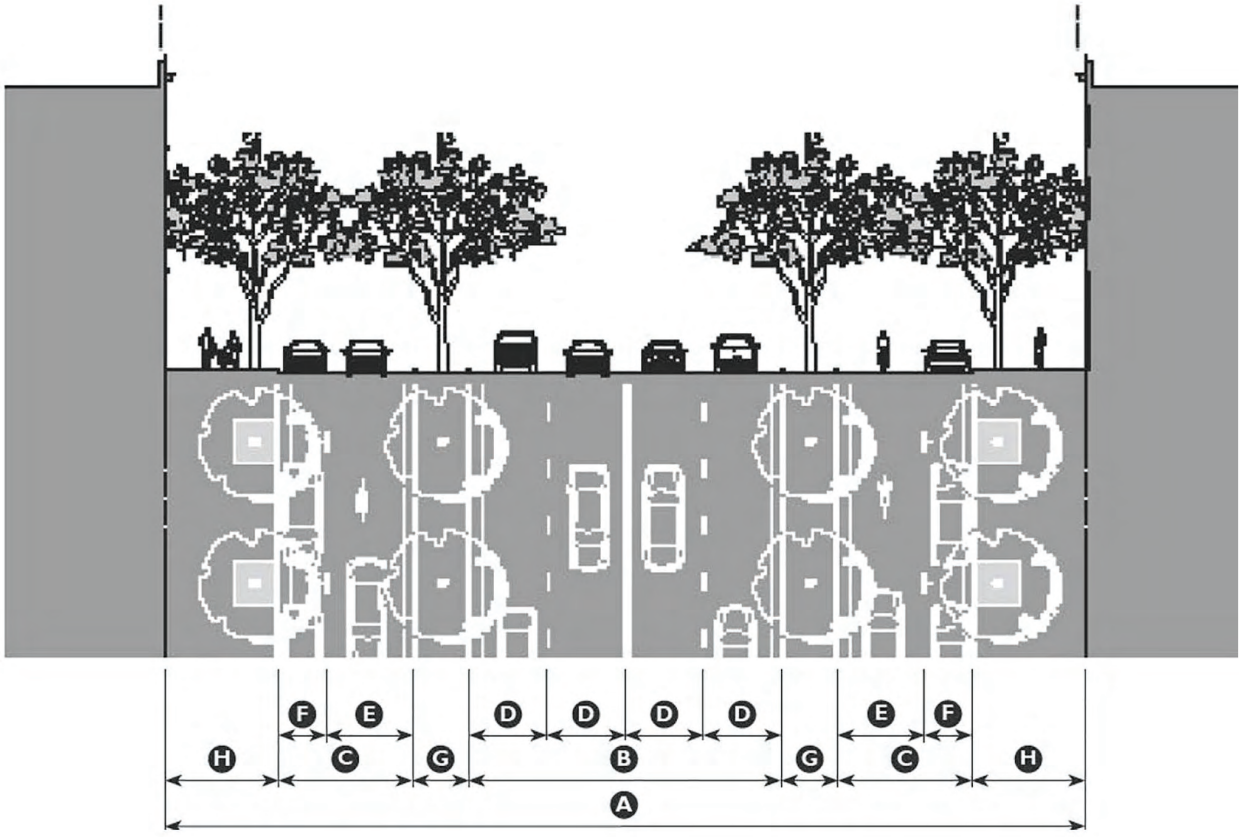
A. This section provides thoroughfare assemblies that have been approved by the City for use in transect zones.

B. The tables in this section are added into the City of Mesa Engineering and Design Standards.



Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Passage:	PS
Transit Route:	TR

Table 11-61-8.A: Thoroughfare Assembly BV-130-84

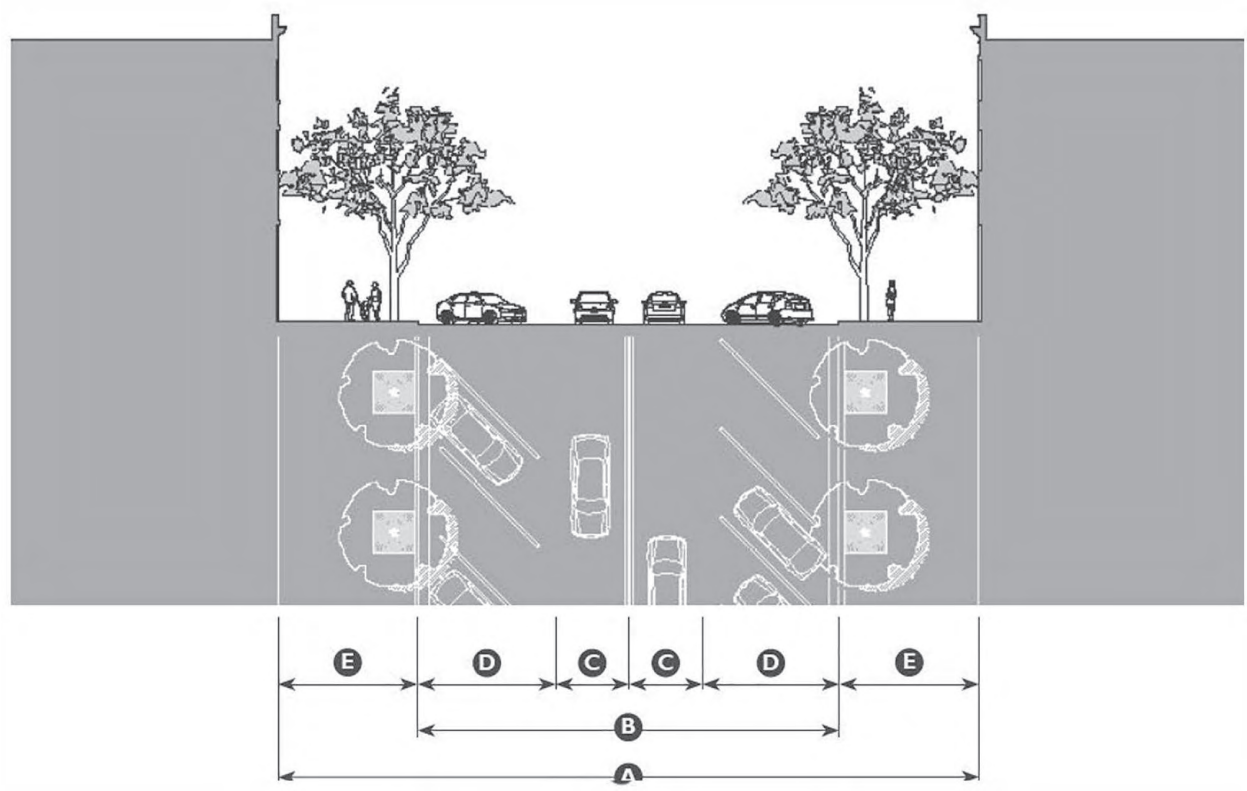


Application		
Transect Zones	T5MSF, T5MS, T6MS	
Movement Type	Low/Slow	
Design Speed		
Through Travel Lanes	35 mph	
Local Travel Lanes	20 mph	
Overall Widths		
Right-of-Way (ROW) Width	130'	A
Pavement Width		
Through Travel Lanes	44'	B
Local Travel	2@20'	C
Lane Assembly		
Traffic Lanes		
Through Travel Lanes	4@11'	D
Local Travel Lanes[1]	2@12'	E
Parking Lanes	2@8', marked	F
Medians	2@8'	G

[1] Local travel lanes shall be shared bicycle lanes.

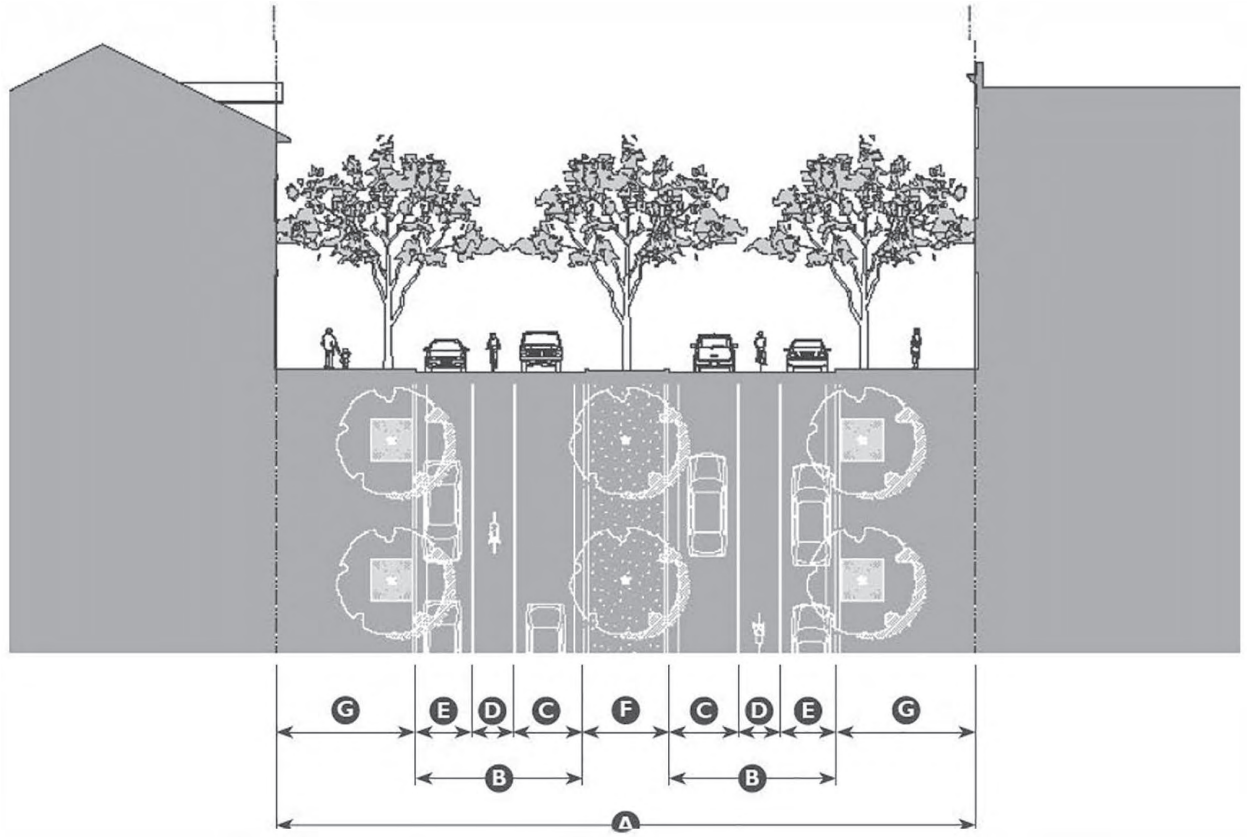
Public Frontage Assembly		
Frontage Type	Boulevard	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' Tree Well	
Landscape Type	Trees at 30' o.c. Avg.	
Lighting Type	Column/Double Column	
Walkway Type	15' Sidewalk	H
Curb Type	Square	

Table 11-61-8.B: Thoroughfare Assembly CS-100-60



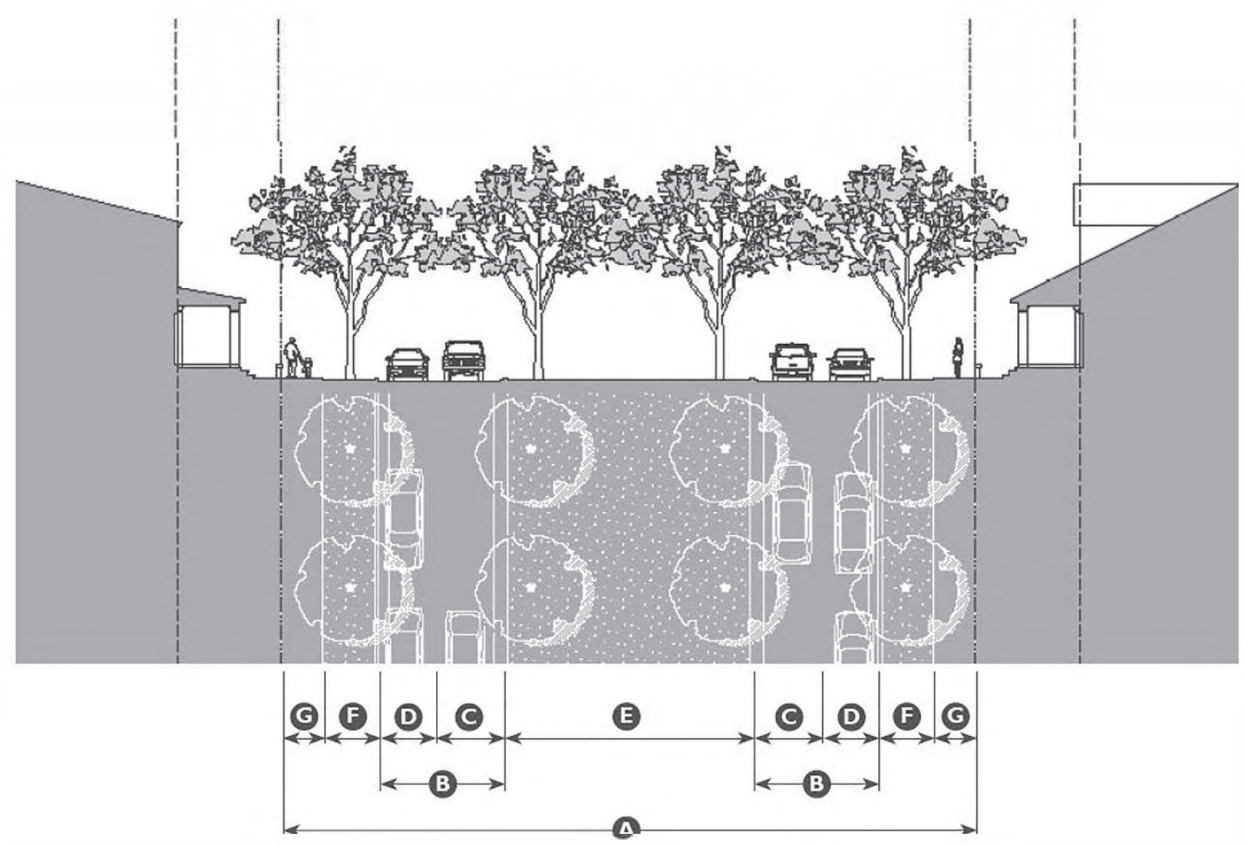
Application		
Transect Zones	T4MS, T5MSF, T5MS	
Movement Type	Slow	
Design Speed	20 mph	
Overall Widths		
Right-of-Way (ROW) Width	100'	A
Pavement Width	60'	B
Lane Assembly		
Traffic Lanes	2@12'	C
Bicycle Lanes	None	
Parking Lanes	2@18', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Commercial Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' Tree Well	
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post, Column, or Double Column	
Walkway Type	20' sidewalk	E
Curb Type	Square	

Table 11-61-8.C: Thoroughfare Assembly CS-100-48-BL



Application		
Transect Zones	T4MS, T5MSF, T5MS	
Movement Type	Low	
Design Speed	30 mph	
Overall Widths		
Right-of-Way (ROW) Width	100'	A
Pavement Width	24'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	2@6'	D
Parking Lanes	2@8', marked	E
Medians	12'	F
Public Frontage Assembly		
Frontage Type	Commercial Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' Tree Well	
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post, Column, or Double Column	
Walkway Type	20' sidewalk	G
Curb Type	Square	

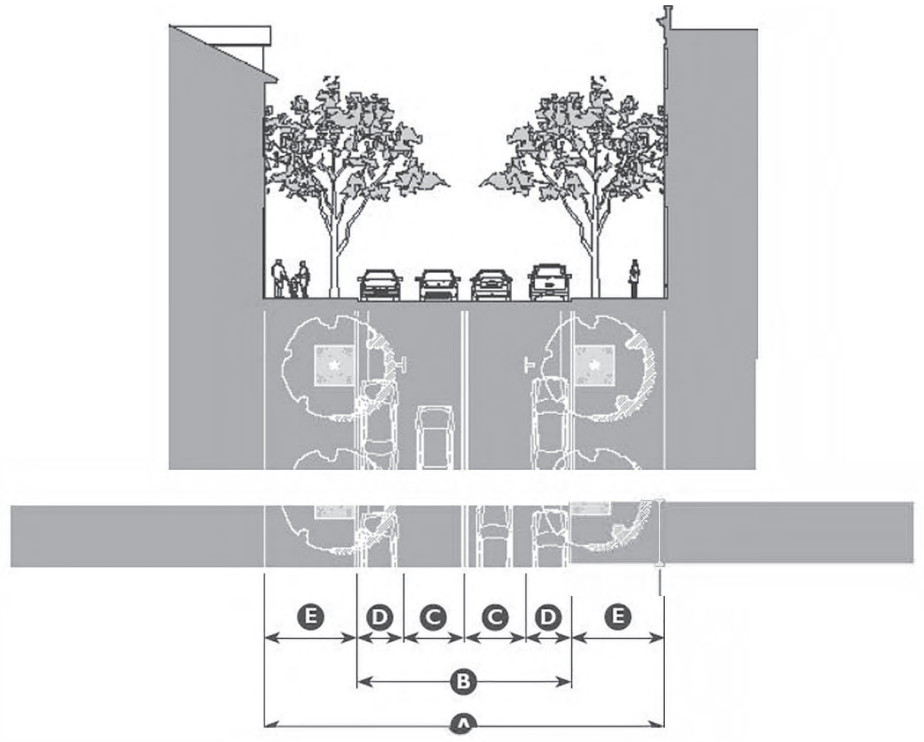
Table 11-61-8.D: Thoroughfare Assembly DR-100-36



Application		
Transect Zones	T3N, T4N, T4NF, T5N	
Movement Type	Low	
Design Speed	30 mph	
Overall Widths		
Right-of-Way (ROW) Width	100'	A
Pavement Width	18'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	None	
Parking Lanes	2@8', marked	D
Medians	36'	E

Public Frontage Assembly		
Frontage Type	Drive	
Drainage Collection Type	Curb and Gutter	
Planter Type	8' continuous planter[1]	F
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post, Pipe, Column, or Double Column	
Walkway Type	6' sidewalk[1]	G
Curb Type		
Along planter	Square	
Along median	Rolled[2]	
[1] 7' Continuous planter and 7' Sidewalk for T5 Application		
[2] Median curbs must be mountable in order to meet requirements for fire/emergency access.		

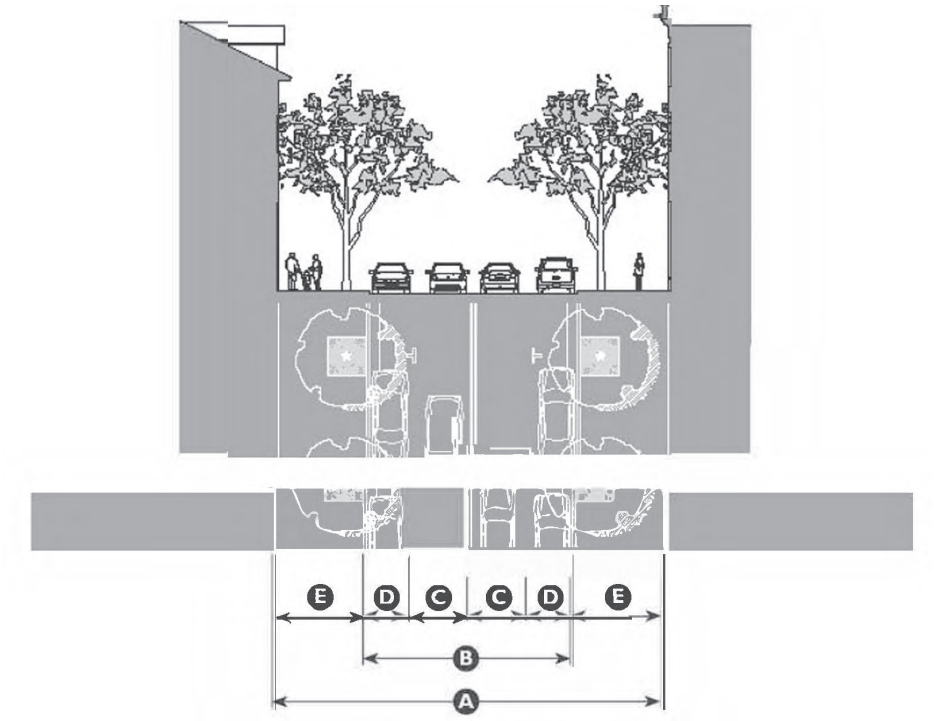
Table 11-61-8.E: Thoroughfare Assembly CS-60-32



Application		
Transect Zones	T4MS, T5MSF, T5MS	
Movement Type	Slow	
Design Speed	20 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	32'	B
Lane Assembly		
Traffic Lanes	2@9'	C
Bicycle Lanes	None	

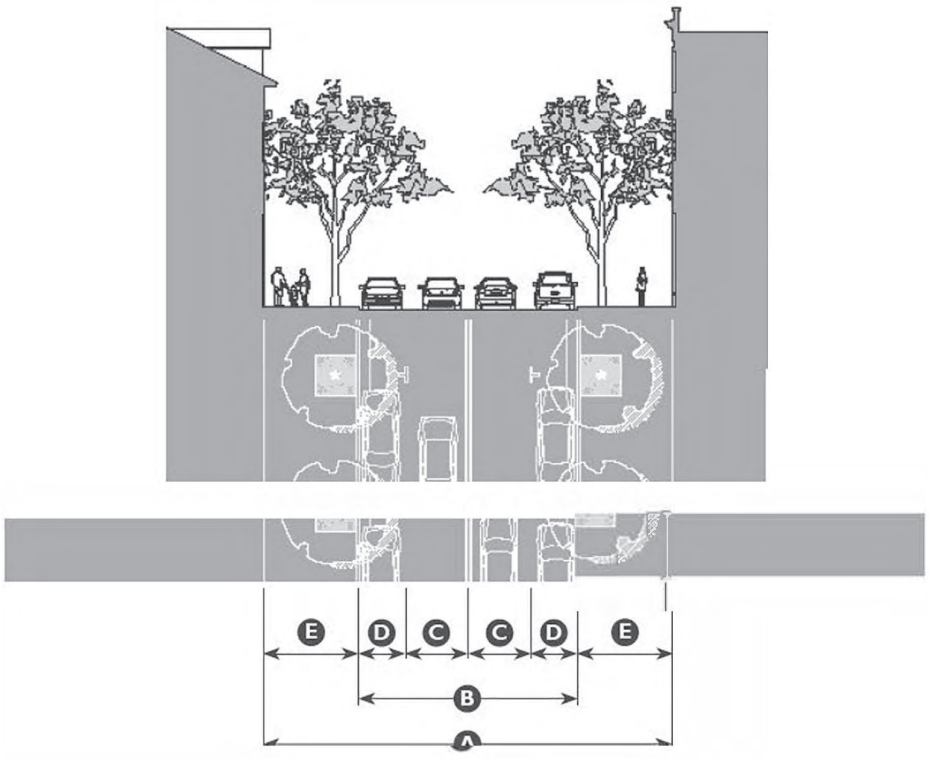
Parking Lanes	2@7', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Commercial Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' tree well	
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post or Column	
Walkway Type	14' sidewalk	E
Curb Type	Square	

Table 11-61-8.F: Thoroughfare Assembly CS-60-34



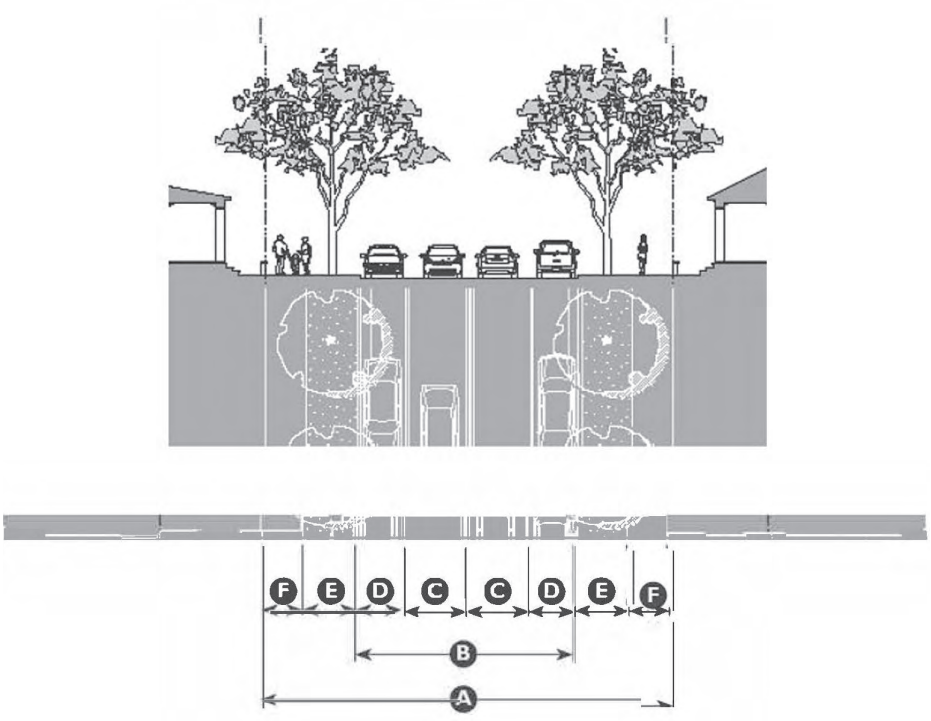
Application		
Transect Zones	T4MS, T5MSF, T5MS	
Movement Type	Slow	
Design Speed	25 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	34'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	None	
Parking Lanes	2@7', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Commercial Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' tree well	
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post or Column	
Walkway Type	13' sidewalk	E
Curb Type	Square	

Table 11-61-8.G: Thoroughfare Assembly CS-60-36



Application		
Transect Zones	T4MS, T5MSF, T5MS	
Movement Type	Low	
Design Speed	30 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	36'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	None	
Parking Lanes	2@8', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Commercial Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	4'×4' tree well	
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Post or Column	
Walkway Type	12' sidewalk	E
Curb Type	Square	

Table 11-61-8.H: Thoroughfare Assembly CS-60-32

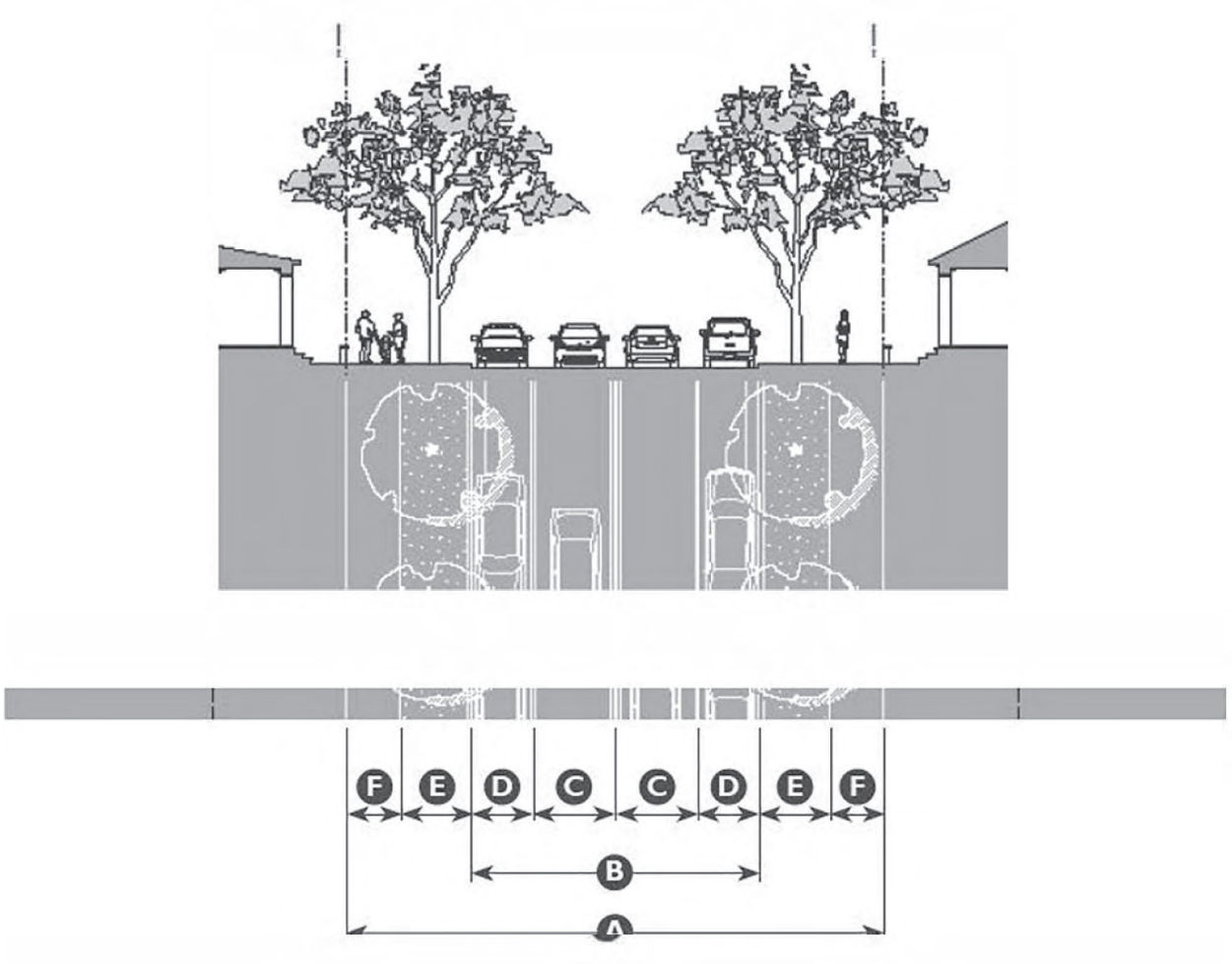


Application		
Transect Zones	T3N, T4N, T4NF, T5N	
Movement Type	Slow	
Design Speed	20 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	32'	B
Lane Assembly		
Traffic Lanes	2@9'	C
Bicycle Lanes	None	
Parking Lanes	2@7', marked	D

Medians	None	
Public Frontage Assembly		
Frontage Type	Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	8' continuous planter[1]	E
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Pipe, Post or Column	
Walkway Type	6' Sidewalk[1]	F
Curb Type	Square	

[1] 7' Continuous planter and 7' Sidewalk for T5 Application

Table 11-61-8.I: Thoroughfare Assembly ST-60-34

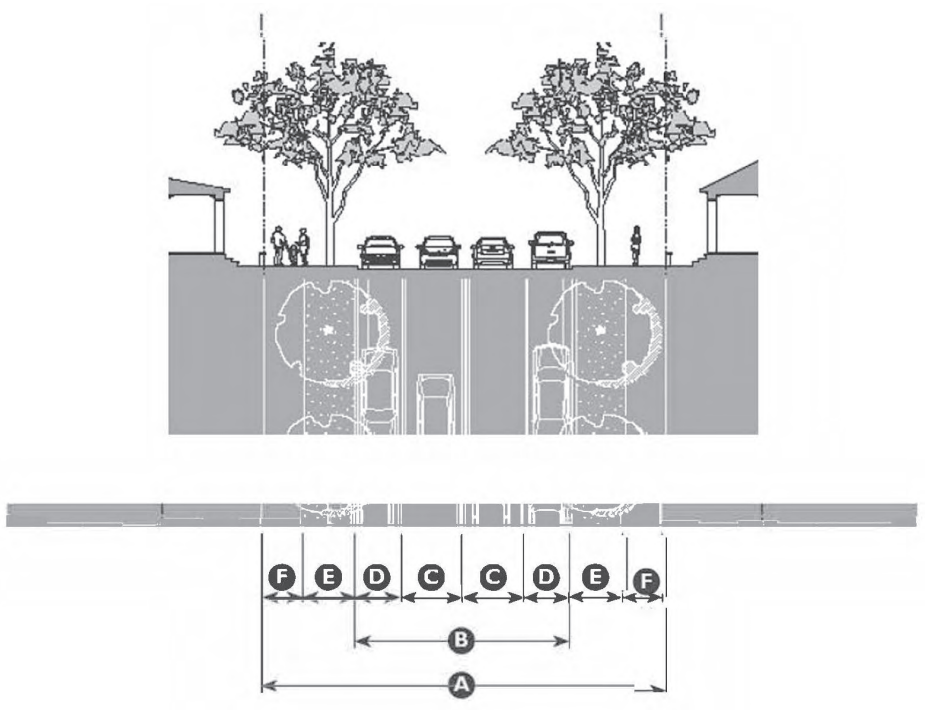


Application		
Transect Zones	T3N, T4N, T4NF, T5N	
Movement Type	Slow	
Design Speed	25 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	34'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	None	
Parking Lanes	2@7', marked	D

Medians	None	
Public Frontage Assembly		
Frontage Type	Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	7' continuous planter[1]	E
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Pipe, Post or Column	
Walkway Type	6' Sidewalk[1]	F
Curb Type	Square	

[1] 6' Continuous planter and 7' Sidewalk for T5 Application

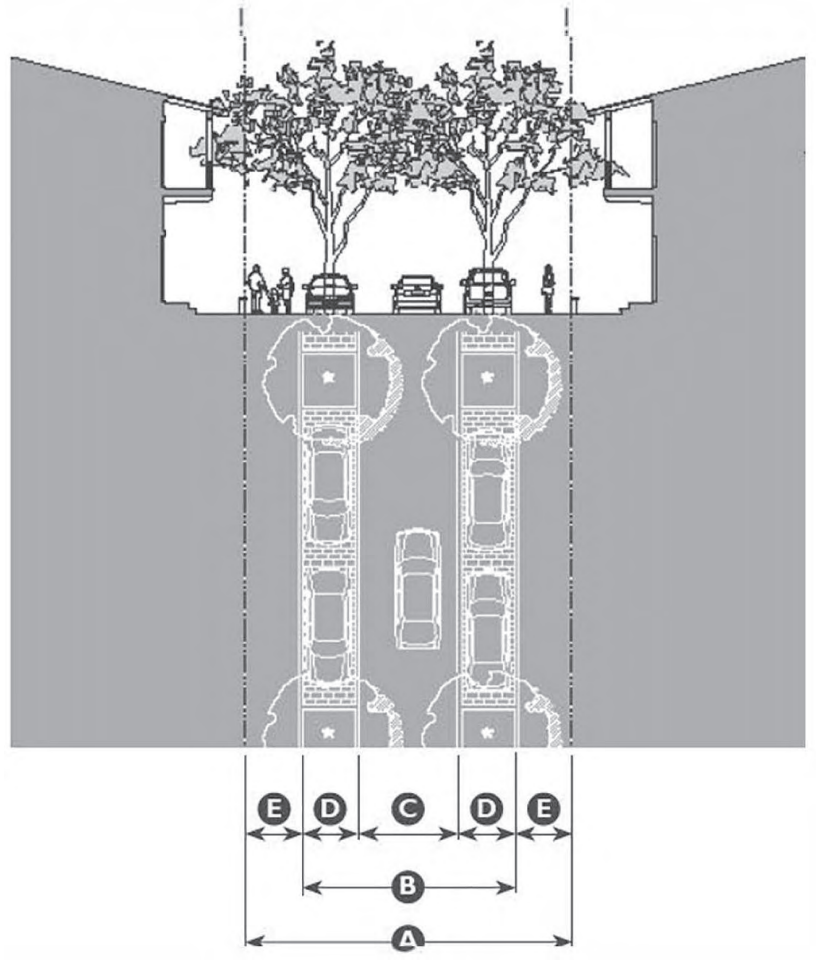
Table 11-61-8.J: Thoroughfare Assembly ST-60-36



Application		
Transect Zones	T3N, T4N, T4NF, T5N	
Movement Type	Low	
Design Speed	30 mph	
Overall Widths		
Right-of-Way (ROW) Width	60'	A
Pavement Width	36'	B
Lane Assembly		
Traffic Lanes	2@10'	C
Bicycle Lanes	None	
Parking Lanes	2@8', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Street	
Drainage Collection Type	Curb and Gutter	
Planter Type	6' continuous planter[1]	E
Landscape Type	Trees at 30' o.c. avg.	
Lighting Type	Pipe, Post or Column	
Walkway Type	6' Sidewalk[1]	F
Curb Type	Square	

[1] 5' Continuous planter and 7' Sidewalk for T5 Application

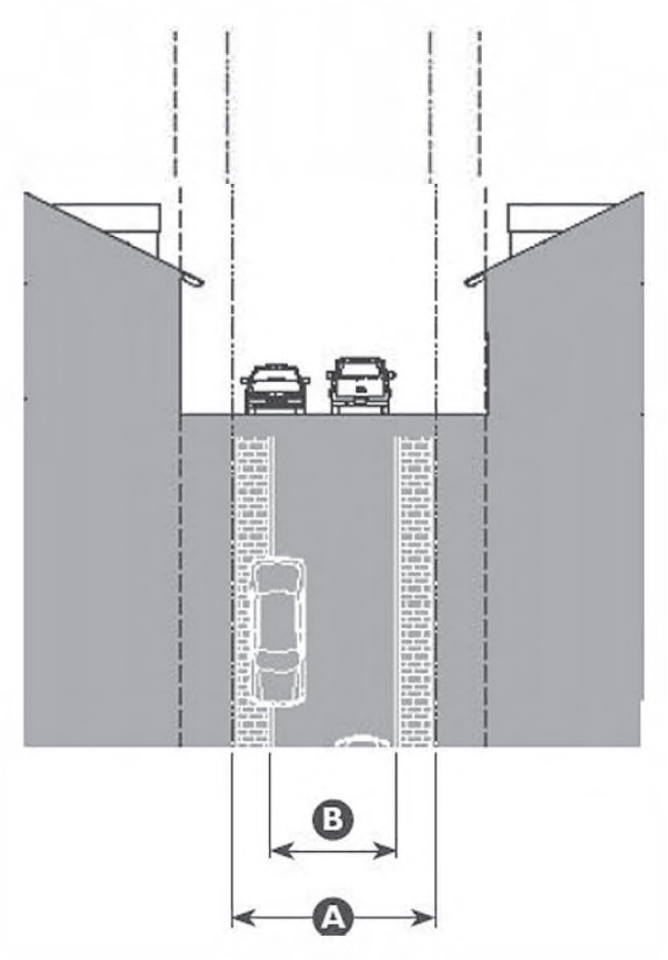
Table 11-61-8.K: Thoroughfare Assembly ST-40-26



Application		
Transect Zones	T3N, T4N, T4NF	
Movement Type	Yield	
Design Speed	<20 mph	
Overall Widths		
Right-of-Way (ROW) Width	40'	A
Pavement Width	26'	B
Lane Assembly		
Traffic Lanes	1@12'	C
Bicycle Lanes	None	

Parking Lanes	2@7', marked	D
Medians	None	
Public Frontage Assembly		
Frontage Type	Street	
Drainage Collection Type	Valley Gutter or Sheet Flow	
Planter Type	6'×6' planter at 50' o.c.	
Landscape Type	Trees at 50' o.c. avg.	
Lighting Type	Post or Column	
Walkway Type	7' Sidewalk	E
Curb Type	Rolled or flush	

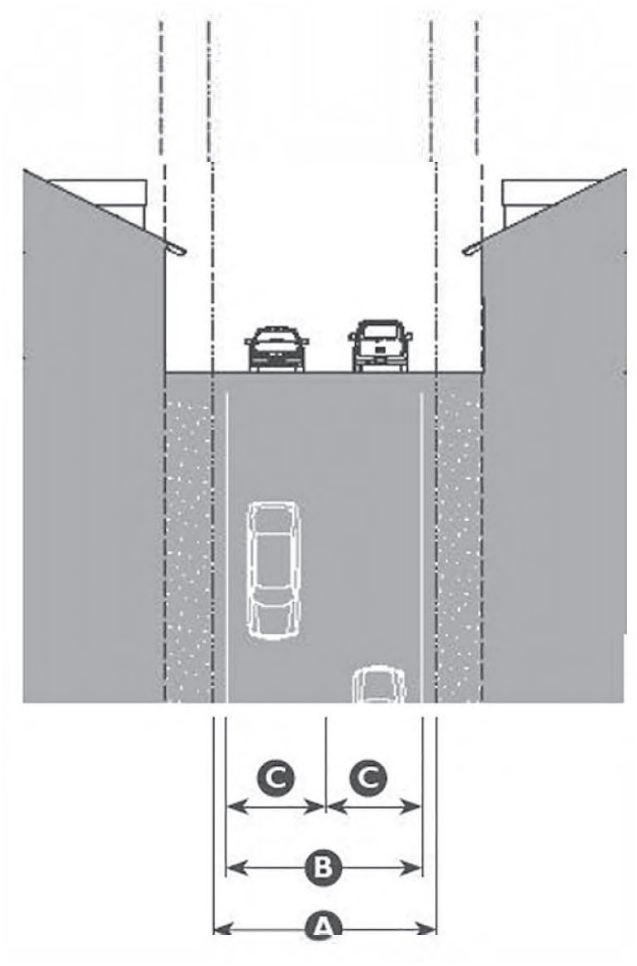
Table 11-61-8.L: Thoroughfare Assembly RL-20-12



Application		
Transect Zones	T3N, T4N, T4NF	
Movement Type	Yield	
Design Speed	<20 mph	
Overall Widths		
Right-of-Way (ROW) Width	40'	A
Pavement Width	12'	B
Lane Assembly		
Traffic Lanes	1@12'	B

Bicycle Lanes	None
Parking Lanes	None
Medians	None
Public Frontage Assembly	
Frontage Type	Rear Lane
Drainage Collection Type	Valley Gutter or Sheet Flow
Planter Type	None
Landscape Type	None
Lighting Type	Pipe or Post (if provided)
Walkway Type	None
Curb Type	Rolled or flush

Table 11-61-8.M: Thoroughfare Assembly RA-24-21



Application		
Transect Zones	T4MS, T5N, T5MSF, T5MS, T6MS	
Movement Type	Slow	
Design Speed	<20 mph	
Overall Widths		
Right-of-Way (ROW) Width	24'	A
Pavement Width	21'	B
Lane Assembly		
Traffic Lanes	2@10'6"	C

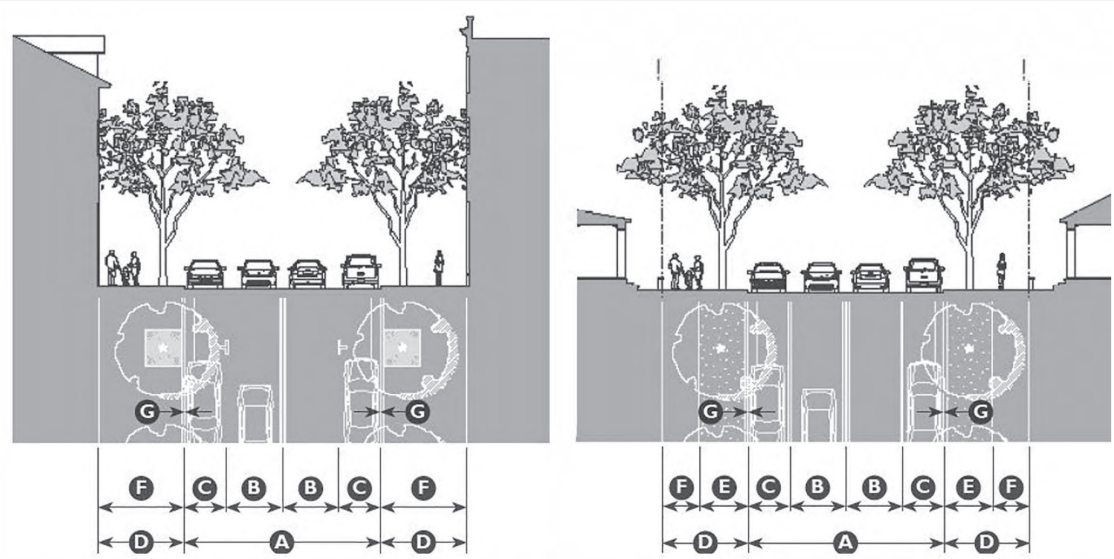
Bicycle Lanes	None
Parking Lanes	None
Medians	None
Public Frontage Assembly	
Frontage Type	Rear Alley
Drainage Collection Type	Valley Gutter or Sheet Flow
Planter Type	None
Landscape Type	None
Lighting Type	Pipe or Post (if provided)
Walkway Type	None
Curb Type	Rolled or flush

11-61-9: THOROUGHFARE FORMULAS AND COMPONENTS

A. This section provides thoroughfare components that have been approved by the Planning Department, City Traffic Engineer, Fire Department, Solid Waste, and City Engineer for use in transect zones.

B. The tables in this section are added into the City of Mesa Engineering and Design Standards.

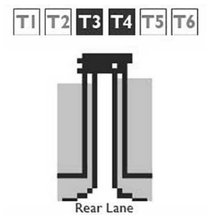
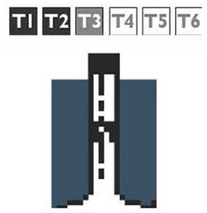
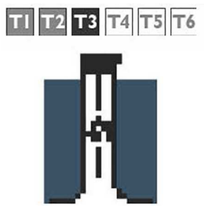
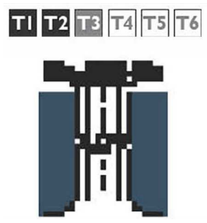
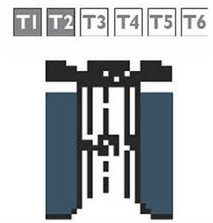
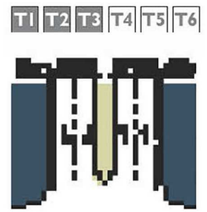
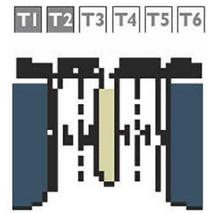
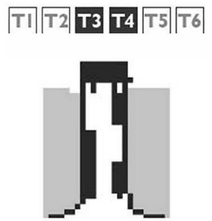
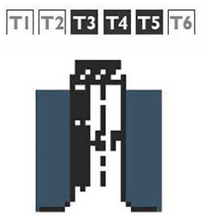
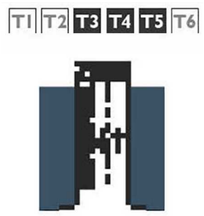
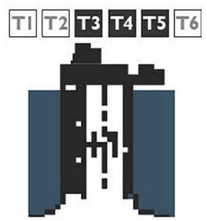
Table 11-61-9.A: Thoroughfare Formulas

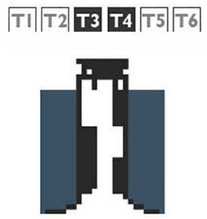
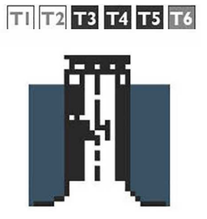
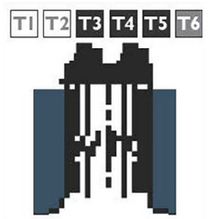
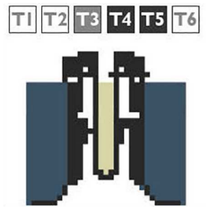
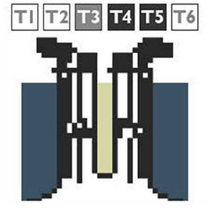
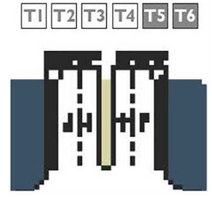


Movement Type	Speed	Lane Assembly A		Public Frontage Assembly D			
		Travel Lanes B	Parking Lanes C	Planting min. E	Walkway min. F	Assembly min. D	Edge Treatment G
T1 and T2 Allowed Movement Types	Speed	Lane Assembly		Public Frontage Assembly			
		Travel Lanes	Parking Lanes	Planting[1] min.	Walkway[1] min.	Assembly min.	Edge Treatment
Slow: 20	20 mph	9'	-	5'	5'	13'	R or C
Slow: 25	25 mph	10'	-	5'	5'	13'	R or C
Low: 30	30 mph	10'	-	5'	5'	13'	R or C
Low: 35	35 mph	11'	-	5'	5'	13'	R or C
T3 Allowed Movement Types	Speed	Lane Assembly		Public Frontage Assembly			
		Travel Lanes	Parking[1] Lanes	Planting min.	Walkway min.	Assembly min.	Edge Treatment
Yield	<20 mph	12'	7'	5'	5'	10'	C
Yield: Rear Lane	10 mph	12'	-	-	-	4'	R, C, or RB
Slow: 20	20 mph	9'	7'	5'	5'	10'	C
Slow: 25	25 mph	10'	7'	5'	5'	10'	C
Low: 30	30 mph	10'[2]	8'	5'	5'	10'	C
T4 Allowed Movement Types	Speed	Lane Assembly		Public Frontage Assembly			
		Travel Lanes	Parking Lanes	Planting[1] min.	Walkway min.	Assembly min.	Edge Treatment
Yield	<20 mph	12'	7'	5'	6'	11'	C
Yield: Rear Lane	10 mph	12'	-	-	-	4'	R, C, or RB
Yield: Alley	10 mph	21'	-	-	-	1.5'	RB
Slow: 20	20 mph	9'	7'	5'	6'	12'	C
Slow: 20 w/45° angle parking	20 mph	12'	16'/18'[3]	5'	6'	12'	C

Slow: 25	25 mph	10'	7'	5'	6'	12'	C
Slow: 25 w/45° angle parking	25 mph	12'/10'[4]	16'/18'[3]	5'	6'	12'	C
Low: 30	30 mph	10'[2]	8'	5'	6'	12'	C
T5 Allowed Movement Types	Speed	Lane Assembly		Public Frontage Assembly			
		Travel Lanes	Parking Lanes	Planting[1] min.	Walkway min.	Assembly min.	Edge Treatment
Yield: Alley	10 mph	21'	-	-	-	1.5'	RB
Slow: 20	20 mph	9'	7'	5'	7'	12'	C
Slow: 20 w/45° angle parking	20 mph	12'	16'/18'[3]	5'	7'	12'	C
Slow: 25	25 mph	10'	7'	5'	7'	12'	C
Slow: 25 w/45° angle parking	25 mph	10'/12'[4]	16'/18'[3]	5'	7'	12'	C
Low: 30	30 mph	10'[2]	8'	5'	7'	12'	C
Low: 35	35 mph	11'	8'	5'	7'	12'	C
T6 Allowed Movement Types	Speed	Lane Assembly		Public Frontage Assembly			
		Travel Lanes	Parking Lanes	Planting[1] min.	Walkway min.	Assembly min.	Edge Treatment
Yield: Alley	10 mph	21'	-	-	-	1.5'	RB
Slow: 20	20 mph	9'	7'	-	12'	12'	C
Slow: 20 w/45° angle parking	20 mph	12'	16'/18'[3]	-	12'	12'	C
Slow: 25	25 mph	10'	7'	-	12'	12'	C
Low: 30	30 mph	10'[2]	8'	-	12'	12'	C
Low: 35	35 mph	11'	8'	-	12'	12'	C
End Notes							
[1] If provided.							
[2] 11' wide travel lanes adjacent to a median for assemblies with a median separating multiple travel lanes in each direction.							
[3] 16' min. for reverse angled parking; 18' min. for head-in angled parking.							
[4] 25 mph design speed requires 2 lanes in each direction with 12' outside travel lanes (adjacent to angled parking) and 10' inside travel lanes							
Key - = Not Allowed R = Rural Edge Treatment C = Curb Edge Treatment RB = Ribbon Curb (18")							

Table 11-61-9.B: Vehicular Lane Assemblies

Movement Type	**Yield**	**Slow**	**Slow**	**Low**	**Low**
Design Speed	**<20 MPH**	**20 MPH**	**25 MPH**	**30 MPH**	**35 MPH**
No Parking					
No Parking					
Limited Parking					
One-Side Parking					

Movement Type	**Yield**	**Slow**	**Slow**	**Low**	**Low**
Design Speed	**<20 MPH**	**20 MPH**	**25 MPH**	**30 MPH**	**35 MPH**
Two-Side Parking					
Angle Parking					
Medians With Parking					
Medians With Parking					
Medians With Parking					

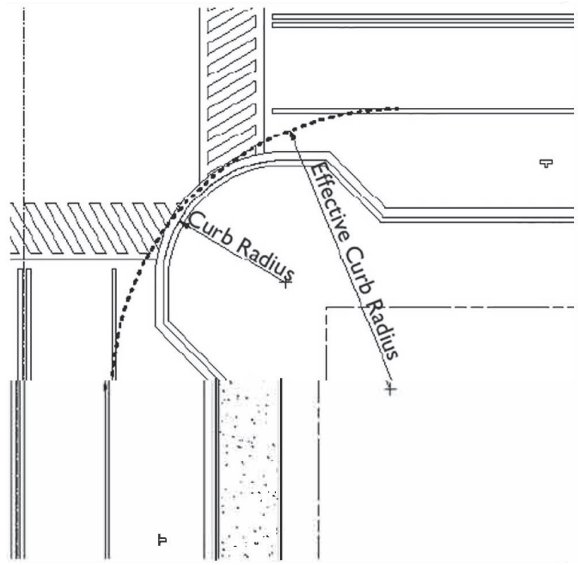
Movement Type	**Yield**	**Slow**	**Slow**	**Low**	**Low**
Design Speed	**<20 MPH**	**20 MPH**	**25 MPH**	**30 MPH**	**35 MPH**
Medians With Angled Parking					

Table 11-61-9.C: Bicycle Facilities Standards	
Class I: Multi-Use Trail	
Transect Zones	T1 T2 T3 T4 T5 T6
Movement Types	Slow, Low
Width	
One-way	10' min.
Two-way	12' min.
Class II: Bicycle Lane	
Transect Zones	T1 T2 T3 T4 T5 T6
Movement Types	Slow, Low[1]
Width Adjacent to:	
Rural Edge	5' min.
Parking	6' min.
Curb and Gutter	5½' to face of curb
Class III: Shared Lanes/Bicycle Boulevard	
Transect Zones	T1 T2 T3 T4 T5 T6
Movement Types	Yield, Slow
Width	no minimum

[1] Bicycle Lanes on Thoroughfares with a design speed >30 mph are allowed By Review only.

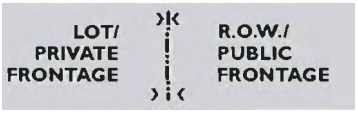
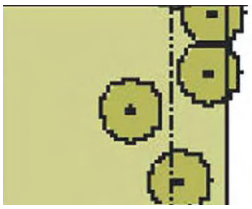
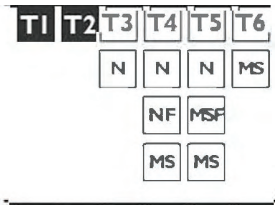
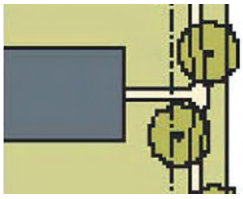
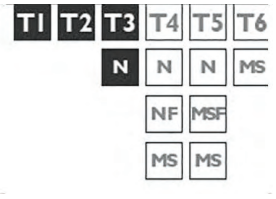
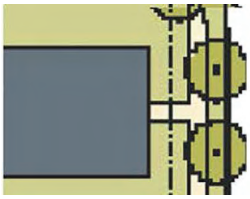
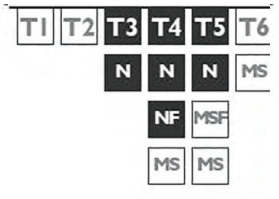
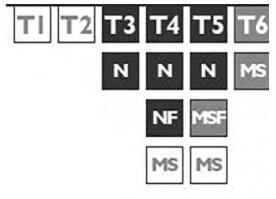
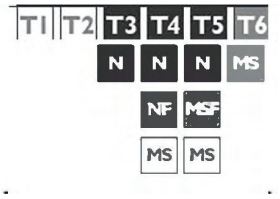
Key T# By Right T# By Review T# Not Allowed

Table 11-61-9.D: Curb Radius



Movement Type	Speed	Curb Radius[1]
Yield	<20 mph	5'—10'
Slow	20—25 mph	10'—15'
Low	30—35 mph	15'—20'

[1] This table provides the allowed curb radius range by movement type and speed. The dimensions above require the provision of an effective curb radius and/or mountable curbs that meet the needs of fire and emergency access. All intersections shall be designed to meet the requirements in 11-61-6 (Intersections)

Table 11-61-9.E: Public Frontage Types		
The public frontage is the area between the curb of the vehicular lanes and the Property Line/ROW. Dimensions are provided in Table F (Public Frontage Standards).		
Public Frontage Type		Transect Zone
(HW) For Highway. The For Highway Frontage has bicycle trails, no parking and open swales. The landscaping consists of the natural condition or multiple species arrayed in naturalistic clusters. Buildings are buffered by distance or berms.		
(RD) For Road. The For Road Frontage has open swales, a walking path or bicycle trail along one or both sides, and yield parking. The landscaping consists of multiple species arrayed in naturalistic clusters.		
(ST) For Street. The For Street Frontage has raised curbs drained by inlets and sidewalks separated from the vehicular lanes by individual or continuous planters. The landscaping consists of street trees of a single or alternating species aligned in a regularly spaced allee.		
(DR) For Drive. The For Drive Frontage has raised curbs drained by inlets and a wide sidewalk or paved path along one side, related to a Civic Space. It is separated from the vehicular lanes by individual or continuous planters. The landscaping consists of street trees of a single or alternating species aligned in a regularly spaced allee.		
(AV) For Avenue. The Avenue Frontage has raised curbs drained by inlets and wide sidewalks separated from the vehicular lanes by a narrow continuous planter with parking on both sides. The landscaping consists of a single tree species aligned in a regularly spaced allee.		

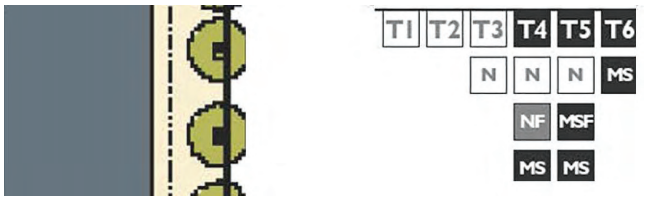
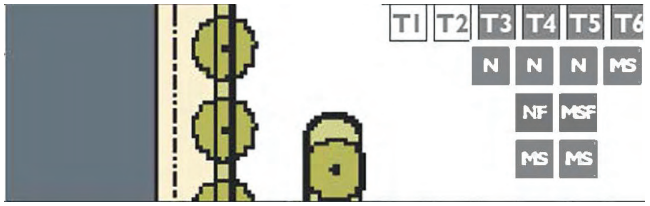
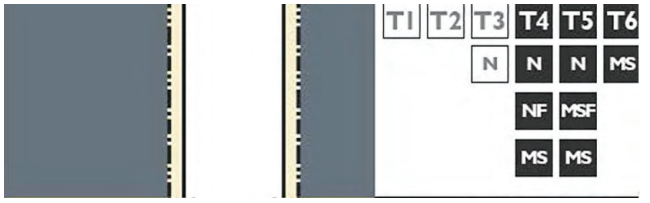
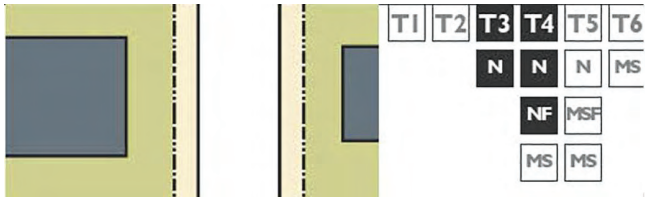
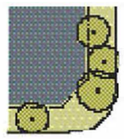
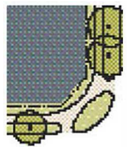
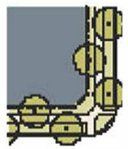
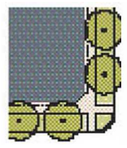
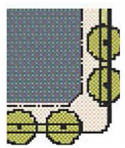
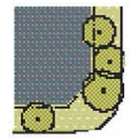
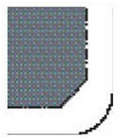
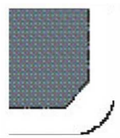
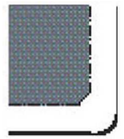
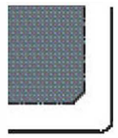
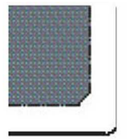
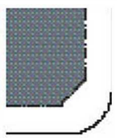
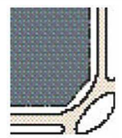
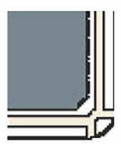
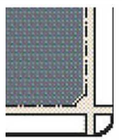
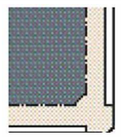
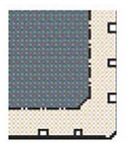
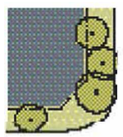
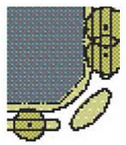
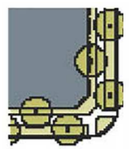
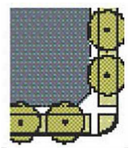
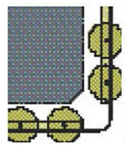
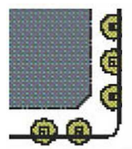
(CS) For Commercial Street or Avenue. The For Commercial Street or Avenue Frontage has raised curbs drained by inlets and very wide sidewalks along both sides separated from the vehicular lanes by separate tree wells with grates. The landscaping consists of a single tree species aligned with regular spacing where possible.	
(BV) For Boulevard. The Boulevard Frontage has slip roads on both sides. It consists of raised curbs drained by inlets and sidewalks along both sides, separated from the vehicular lanes by planters. The landscaping consists of double rows of a single tree species aligned in a regularly spaced allee.	
(RA) For Rear Alley. The Rear Alley Frontage is located to the rear of lots. It consists of a paved surface and ribbon curb at the edges adjacent to property lines or buildings. Alleys are typically not landscaped.	
(RL) For Rear Lane. The Rear Lane Frontage is located to the rear of lots. It consists of a paved surface and compacted gravel or similar material placed on the outer edges. Lanes are typically not landscaped.	
Key T# By Right T# By Review T# Not Allowed	

Table 11-61-9.F Public Frontage Standards

This table assembles prescriptions and dimensions for the public frontage elements - curbs, walkways, and planters - relative to specific frontage types within transect zones. The Assembly row assembles all of the elements for the various frontage types.

Transect Zone	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6
Public Frontage Type	**HW-RD-ST**	**RD-ST**	**ST-DR-AV-BV**	**ST-DR-AV-BV**	**CS-DR-AV-BV**	**CS-DR-AV-BV**
Assembly: The principal variables are the type and dimension of curbs, walkways, planters and landscape.						
Total Width	13' - 22'	13' - 22'	10' - 17'	12' - 16'	12' - 19'	12' - 30'
Curb: The detailing of the edge of the vehicular pavement, incorporating drainage.						
Type	Rural	Raised Curb	Raised Curb	Raised Curb	Raised Curb	Raised Curb
Walkway: The pavement dedicated exclusively to pedestrian activity.						
Type	Path (if provided)	Sidewalk	Sidewalk	Sidewalk	Sidewalk	Sidewalk
Width	6' min.	5' min.	5' min.	6' min.	7' min.	12' min.
Note: the placement of curb ramps shall match the desired path of pedestrian travel. See Mesa Engineering and Design Standards and Standard Details and Specifications for curb ramp design.						
Planter: The layer which accommodates street trees and other landscape						
Arrangement	Clustered	Clustered	Regular	Regular	Regular	Opportunistic
Species	Multiple	Multiple	Multiple	Single/Alternating	Single	Single
Type	Continuous Planter	Continuous Planter	Continuous Planter	Continuous Planter	Continuous Planter	Tree Well
Width	5' min.	5' min.	5' min.	5' min.	5' min.	4' - 6' (tree wells located within Walkway Width)

Key T# By Right T# By Review T# Not Allowed

Table 11-61-9.G Public Planting

This table shows common street tree types and their appropriateness within the transect zones. The "City of Mesa Engineering Design and Construction Standards and Specifications for New Construction" provides detailed specifications for landscaping along thoroughfares.

Standards	Illustration	Recommended Species
T1 T2 T3 T4 T5 T6 Tree Shape: Oval Placement: Spacing 20' - 35' o.c.		Willow Acacia, Shoestring Acacia, Palo Blanco, Floss-Silk Tree, Indian Rosewood, Red-Cap Gum, Coolibah, Afghan Pine, Canary Island Pine, Mexican Ebony, Tipu Tree
T1 T2 T3 T4 T5 T6 Tree Shape: Ball Placement: Spacing 20' - 30' o.c.		Leather-Leaf Acacia, Mulga, Fruitless Olive, ironwood, Chinese Pistache
T1 T2 T3 T4 T5 T6 Tree Shape: Umbrella Placement: Spacing 20' - 30' o.c.		Palo Brea, Honey Mesquite, Chilean Mesquite, Velvet Mesquite, Screwbean Mesquite, Live Oak, Evergreen Elm
T1 T2 T3 T4 T5 T6 Tree Shape: Vase Placement: Spacing 25' - 35' o.c.		Guajillo, Sweet Acacia, Cascalote, Canyon Hacberry, Blue Palo Verde, Hybrid Palo Verde, Desert Willow, Feather Bush
T1 T2 T3 T4 T5 T6 Tree Shape: Palm Placement: Spacing 20' - 30' o.c.		Mexican Blue Palm, Mexican Fan Palm, California Fan Palm, Canary Island Date Palm, Texas Sabal Palm, Queen Palm

Note: All Street trees shall be planted and maintained to avoid conflicts with fire/emergency vehicles and have a minimum canopy clearance of 14' at maturity.

Key T# By Right T# By Review T# Not Allowed

Table 11-61-9.H Public Lighting

Lighting varies in brightness and also in the character of the fixture according to the transect zones. This table shows the types of light poles and fixtures allowed within the transect zones. Within these fixture types, the City Traffic Engineer must be included in the selection of light poles and light fixtures.

Transect Zone	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6
Fixture Type	Cobra Head	Pipe	Post	Column	Double Column
Illustration					

Key T# By Right T# By Review T# Not Allowed

CHAPTER 62 CIVIC SPACE STANDARDS

11-62-1: PURPOSE

The purpose of this Chapter is to provide a set of civic space types and their associated standards to use within the transect zones.

11-62-2: APPLICABILITY

The standards established in this Chapter shall apply to all proposed development within the transect zones, and shall be considered in combination with the standards found within the other Chapters in Article 6 (Form-Based Zoning).

11-62-3: CIVIC SPACES

A. The standards established in this Chapter provide the transect zones with a diverse palette of parks and other publicly accessible civic spaces, publicly or privately owned, that are essential components of walkable urban environments.

B. There are 11 different civic space types defined in Table A (Civic Space Type Standards). Two of the civic space types, Playgrounds and Community Gardens, may be incorporated into any of the other nine types or may stand alone.

C. In Table A (Civic Space Type Standards), the illustration and description of each civic space type are illustrative in nature and not regulatory.

D. The service area, size, frontage and disposition of elements standards of each civic space types are regulatory.

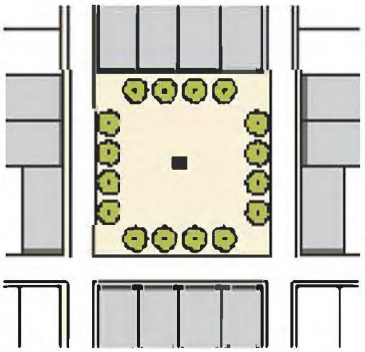
1. ***Service Area.*** Describes how the civic space relates to the City as a whole and the area that will be served by the civic space.

2. ***Size.*** The overall range of allowed sizes of the civic space.

3. ***Frontage.*** The relationship along property lines of a civic space to adjacent buildings or lots.

a. The front of the lots attached to or across a thoroughfare from a civic spaces should face on to the civic space to the maximum extent possible.

b. Building. Lots that are attached to or across a thoroughfare from civic spaces listed as having an "Building" frontage shall have the front of the lot facing on to the civic space for a minimum of three quarters of the civic space perimeter.



Left: Diagram illustrates lot configuration meeting minimum requirements for a civic space with a "Building" frontage. Three quarters of the building lots along the civic space, either attached to or across a thoroughfare from, have the front of the lot facing onto the civic space.

c. Independent. Lots that are attached to or across a thoroughfare from civic spaces listed as having an "Independent" may have the front, side street, or rear of the lot facing on to the civic space.

4. ***Disposition of Elements.*** The placement of objects within the civic space.

a. *Natural.* Civic spaces with natural character are designed in a natural manner with no formal arrangement of elements.

b. *Formal.* Civic spaces with a formal character have a more rigid layout that follows geometric forms and has trees and other elements arranged in formal patterns.

c. *Informal.* Civic spaces with an informal character have a mix of Formal and Natural characteristics.

E. **Typical Facilities.** A list of the typical facilities found within the civic space. This list is not intended to be a complete list of facilities allowed nor is it intended that every civic space would contain each of the facilities listed. Facilities larger than indicated gross square footage (gsf) require review and approval by the Director and Parks Director.

F. The civic spaces specified in Table A (Civic Space Type Standards) are allowed By Right or By Review in the designated transect zones. (Civic Space allowed By Review are allowed if approved by the Director and Parks Director.)

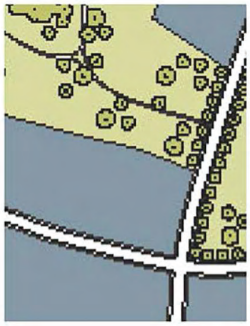
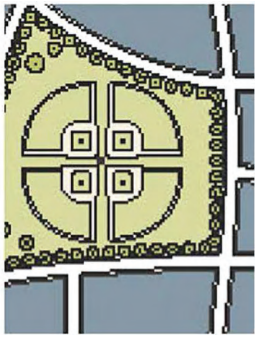
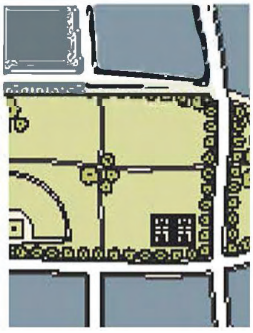
Table 11-62-3.A Civic Space Type Standards			
Transect Zone	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6
Civic Space Type	**Regional Park**	**Sport Complex**	**Community Park**
Illustration			
Description	A natural preserve available for unstructured recreation.	An open space that consolidates heavily programmed athletic fields and associated facilities.	An open space available for unstructured recreation and a limited amount of structured recreation.
Location and Size			
Location			
Service Area	Regional	Regional	Multiple Neighborhoods
Size			
Minimum	200 acres	25 acres	12 acres
Maximum	-	-	-
Character			
Frontage	Independent	Independent	Independent
Disposition of Elements	Natural, Formal or Informal	Formal or Informal	Informal
Typical Facilities			
	Passive and Active Recreation, Accessory Structure, Drinking Fountains, Community Facility <7,500 gsf, Paths and Trails	Passive and Active Recreation, Accessory Structure, Drinking Fountains, Community Facility <7,500 gsf, Paths and Trails	Passive and Active Recreation, Accessory Structure, Drinking Fountains, Community Facility <5,000 gsf, Paths and Trails
Key	T# Allowed	T# By Review	T# Not Allowed

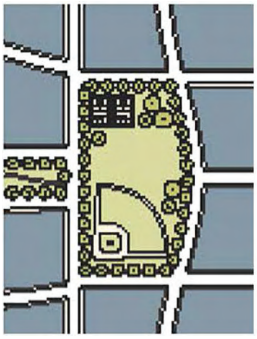
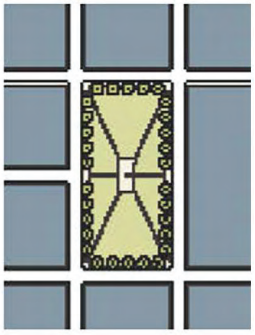
Table 11-62-3.A Civic Space Type Standards (continued)			
Transect Zone	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6
Civic Space Type	**Greenway**	**Neighborhood Green**	**Neighborhood Square**
Illustration			
Description	A linear open space that may follow natural corridors providing unstructured and limited amounts of structured recreation.	An open space available for unstructured and limited amounts of structured recreation.	An open space available for civic purposes, unstructured and limited amounts of structured recreation.
Location and Size			
Location			
Service Area	Multiple Neighborhoods	Neighborhood	Neighborhood
Size			
Minimum	8 acres (60' wide by 1 mile long)	1 acre	½ acre
Maximum	-	15 acres	5 acres
Character			
Frontage	Independent or Building	Building	Building
Disposition of Elements	Natural or Informal	Informal	Formal
Typical Facilities			
	Passive and Active Recreation, Accessory Structure, Drinking Fountains, Community Facility <5,000 gsf, Paths and Trails	Passive and Active (unstructured or structured) Recreation, Accessory Structure, Drinking Fountains, Community Facility <5,000 gsf, Paths and Trails	Passive and Active (unstructured or structured) Recreation, Accessory Structure, Drinking Fountains, Community Facility <5,000 gsf, Paths and Trails
Key	T# Allowed	T# By Review	T# Not Allowed

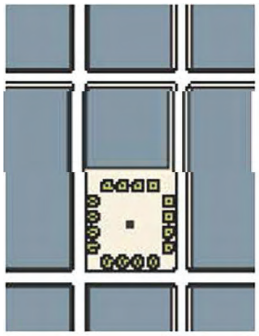
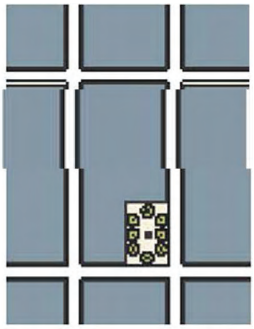
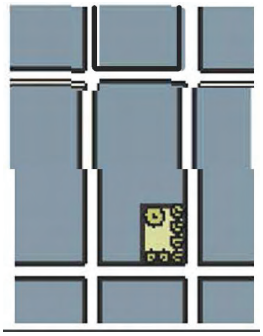
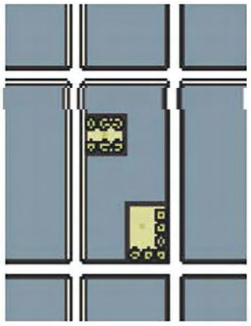
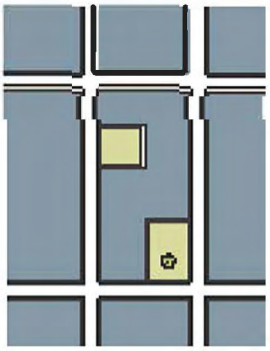
Table 11-62-3.A Civic Space Type Standards (continued)			
Transect Zone	T1 T2 T3 **T4** **T5** **T6**	T1 T2 T3 **T4** **T5** **T6**	T1 T2 **T3** **T4** **T5** T6
Civic Space Type	**Plaza**	**Pocket Plaza**	**Pocket Park**
Illustration			
Description	A formal open space available for civic purposes and commercial activities. Plazas are typically hardscaped. Commercial activities shall be subordinate to Civic use.	A formal open space available for civic purposes and commercial activities. Pocket Plazas are typically hardscaped. Commercial activities shall be subordinate to Civic use.	An open space available for informal activities in close proximity to neighborhood residences.
Location and Size			
Location			
Service Area	Neighborhood	Neighborhood	Neighborhood
Size			
Minimum	½ acre	2,000 sf	2,000 sf
Maximum	2½ acres	½ acre	1 acre
Character			
Frontage	Building	Building	Building
Disposition of Elements	Formal	Formal	Formal or Informal
Typical Facilities			
	Passive Recreation, Accessory Structure, Drinking Fountains, Paths and Trails	Passive Recreation, Accessory Structure, Drinking Fountains, Paths and Trails	Passive Recreation, Accessory Structure, Drinking Fountains, Paths and Trails
Key	T# Allowed	T# By Review	T# Not Allowed

Table 11-62-3.A Civic Space Type Standards (continued)		
Transect Zone	T1 T2 T3 T4 T5 T6	T1 T2 T3 T4 T5 T6
Civic Space Type	**Playground**	**Community Garden[1]**
Illustration		
Description	An open space designed and equipped for the recreation of children. A Playground should be fenced and may include an open shelter. Playgrounds may be included within other civic spaces.	An open space designed as a grouping of garden plots that are available to nearby residents for small-scale cultivation. Community Gardens may be included within other civic spaces.
Location and Size		
Location		
Service Area	Neighborhood	Neighborhood
Size		
Minimum	-	-
Maximum	-	-
Character		
Frontage	Independent or Building	Independent or Building
Disposition of Elements	Formal or Informal	Formal or Informal
Typical Facilities		
	Accessory Structure, Drinking Fountains, Paths and Trails	Accessory Structure, Drinking Fountains, Paths and Trails
		[1] See Section 11-31-10 (Community Gardens) for specific standards.
Key	T# Allowed	T# By Review T# Not Allowed

11-62-4: ADDITIONAL STANDARDS

A. **Accessory Structure Standards.** All accessory structures within parks and open spaces, including, but not limited to, restrooms, open-air pavilions, gazebos, picnic shelters and outdoor theaters, shall not be subject to the physical requirements of the Building Form Standards in Chapter 58 (Building Form Standards). They shall be designed and furnished to be consistent with the character of the transect zone in which they are located. Such consistency may require accessory structures to maintain building setbacks, frontage, massing, disposition and character similar to adjacent development as determined by the Director.

B. **Lighting Standards.**

1. All lighting shall comply with the standards found in the Mesa Lighting and Electrical Code, Title 4, Chapter 4 of the Mesa City Code.

2. All lighting shall comply with § 11-30-5 of this Zoning Code.

3. All athletic field/sport court lighting shall be Dark Sky Compliant and shall require a Special Use Permit (SUP).

CHAPTER 63 SMART GROWTH COMMUNITY PLANS

11-63-1: PURPOSE

The purpose of this Chapter is to provide standards for the application of Form-Based Code standards to reinforce walkable urban neighborhoods or create new walkable urban neighborhoods within the City of Mesa. This application will start with the downtown Main Street area to reinforce the implementation of light rail and to put a proper regulatory framework in place to encourage transit-oriented development (TOD).

Smart Growth Community Plans (SGCP) are intended to create and reinforce walkable urban environments with a mix of housing, civic, retail and service choices within a compact, walkable, and transit-oriented or transit-ready environment.

This Chapter shall be used to achieve the following goals and objectives:

A. Improve the built environment and human habitat.

B. Promote development patterns that support safe, effective, and multi-modal transportation options, including auto, pedestrian, bicycle, and transit, and therefore minimize vehicle traffic by providing for a mixture of land uses, walkability, and compact community form.

C. Provide neighborhoods with a variety of housing types to serve the needs of a diverse population.

D. Remove barriers and provide incentives for walkable urban projects.

E. Promote the greater health benefits of a pedestrian-oriented environment.

F. Reinforce the character and quality of downtown and adjacent neighborhoods.

G. Reduce sprawling, auto-dependent development.

H. Protect and enhance real property values.

I. Reinforce a unique identity for Mesa that builds upon the local context, climate, and history.

11-63-2: APPLICABILITY

A. The owner(s) of a parcel, or abutting parcels, consisting of 10 acres or more of contiguous lots within an area subject to the Smart Growth Overlay may apply to prepare an Infill SGCP. In consultation with the Planning Office, an Infill SGCP must assign transect zones, civic zones, thoroughfares, special districts and/or special requirements as provided in this Chapter, with appropriate transitions to abutting areas.

B. For a site less than 10 acres or any area designated by the City Council for redevelopment, an Infill SGCP may be approved if the Director determines that:

1. The goals and objectives of this Chapter can be achieved with the smaller site; or

2. The project will provide an appropriate and logical extension of an existing transect zone or zones or existing walkable urban environment.

C. The owner of a parcel, or abutting parcels, consisting of 30 acres or more of contiguous lots, whether inside or outside an area subject to the Smart Growth Overlay, may initiate the preparation of a New Smart Growth Community Plan. The plan shall connect and blend with the scale and character of the surrounding urbanism.

D. In the event that any of the standards in this Chapter conflict with other standards in this Code the standards in this Chapter override.

11-63-3: SMART GROWTH COMMUNITY PLAN REQUIREMENTS

Each SGCP shall:

A. Be structured with pedestrian sheds to determine the scale and center. See Section 11-63-4 (Pedestrian Sheds).

B. Allocate Transect Zones as per Section 11-63-5 (Transect Zones) and Table 11-63-5.A.

C. Lay out a thoroughfare network according to standards in Section 11-63-6 (Thoroughfares).

D. Allocate civic spaces and civic buildings according to the standards in Section 11-63-7 (Civic Buildings and Civic Spaces).

E. Provide Neighborhood Centers/Main Streets to meet the standards in Section 11-63-8 (Neighborhood Centers/Main Streets).

F. Provide a mix of building types to meet the standards in Section 11-63-9 (Mix of Building Types).

G. Provide a mix of lot sizes to meet the standards in Section 11-63-10 (Mix of Lot Types) and Table 11-63-10.A.

H. Have all lots facing a vehicular thoroughfare, except that 20% of the lots within each Transect Zone may face a pedestrian passage or a courtyard.

I. Connect and blend with the scale and character of the surrounding walkable urbanism.

J. The SGCP shall be calibrated to suit specific topographical, environmental, site layout, and design constraints unique to the site or its location within the City, yet each SGCP will be consistent in terms of structure and content based on the provisions of this Chapter.

K. In addition to the requirements of this Section, the SGCP should promote the Mesa General Plan, or other applicable plans adopted by the city. This can be measured by the achievement of LEED certification (Leadership in Energy and Environmental Design) by the US Green Building Council, or equivalent, for all residential and mixed-use buildings. Also, LEED-ND certification (Leadership in Energy and Environmental Design for Neighborhood Development) for the SGCP should be pursued.

(Ord. No. 5928, § 24, 2-3-25)

11-63-4: PEDESTRIAN SHEDS

Pedestrian sheds are useful in planning as they provide an understanding of how far a typical pedestrian might be willing to walk. They are based on the understanding that most people are willing to walk up to five minutes before they will choose to drive and up to ten minutes to a major destination or transit stop. SGCPs use pedestrian sheds to define the boundaries and the relationship of development patterns to create walkable environments.

A. Pedestrian Sheds shall be centered on a Neighborhood Center or a Main Street.

B. **Types of Pedestrian Sheds.**

1. ***Standard Pedestrian Shed.*** A pedestrian shed that is based on a one-quarter mile (1320 feet) radius around a node. Standard pedestrian sheds are useful in planning neighborhoods. See diagram on the following page.

2. ***Linear Pedestrian Shed.*** A pedestrian shed that is based on a one-quarter mile (1320 feet) radius around a series of block lengths. Linear pedestrian sheds are useful in planning neighborhood main streets or neighborhoods with multiple nodes. See diagram on the following page.

3. ***Long Pedestrian Shed.*** A pedestrian shed that is based on a one-half mile (2640 feet) radius around a series of block lengths. Long pedestrian sheds are useful in planning major destinations and downtowns. See diagram on the following page.

C. **Maximum Size of Pedestrian Shed.**

1. Individual standard pedestrian sheds shall be no more than 160 acres.

2. Linear pedestrian sheds shall be no more than 200 acres. The site or any plan may be smaller than its associated pedestrian shed.

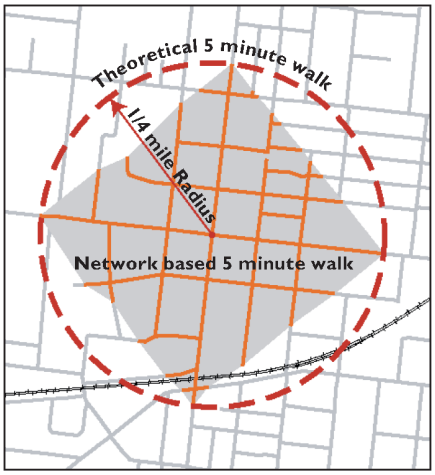
3. Long pedestrian sheds shall be no more than 510 acres.

D. Remnants of the site outside the pedestrian sheds shall meet the following requirements:

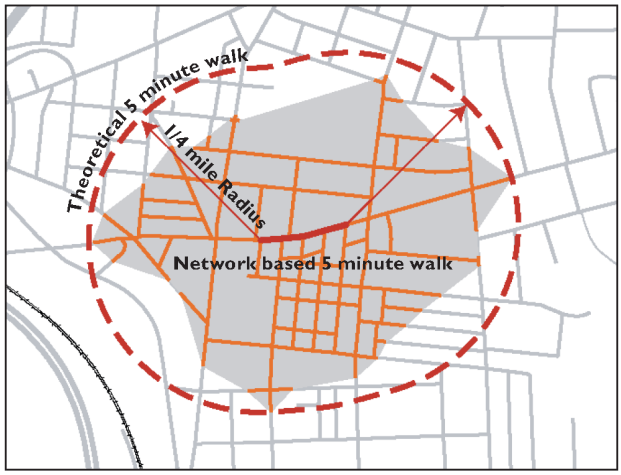
1. Remnant areas outside of a pedestrian shed shall be assigned transect zones, civic spaces, or special districts; and

2. If the remnant areas assigned as T3, T4, and T5 transect zones exceed 35 acres, an additional pedestrian shed shall be created to encompass these remnant areas.

E. The pedestrian shed shall be mapped on the regulating plan.



Standard Pedestrian Shed



Linear Pedestrian Shed



Long Pedestrian Shed

11-63-5: TRANSECT ZONES

A. **General.**

1. Transect Zones established in Chapter 58 (Building Form Standards) shall be used for the regulating plan.

2. **Modifications to Transect Zone Standards After Smart Growth Community Plan Approval.**

a. *Administrative Modifications.* An Applicant may request administrative modifications to the Transect Zone standards in accordance with Section 11-56-3(G) of this Ordinance.

b. *City Council approved modifications.* Any modification to a Transect Zone standard that does not qualify as an administrative modification shall be processed as an amendment to the approved Smart Growth Community Plan and is subject to City Council approval.

B. **Allocation of Transect Zones.**

1. Any portion of a development site within one-quarter mile of a major transit stop may be considered transit-oriented development (TOD). Any sites outside this radius shall be considered a traditional neighborhood development (TND).

2. Community plans for complete new neighborhoods and smaller infill sites over 10 acres shall assign and map transect zones to each pedestrian shed according to the percentages allocated in the table on the following page.

3. For sites 10 acres or less, the Director shall determine the appropriate mix of Transect Zones and the location of the center of the pedestrian shed for the area to determine if a main street is needed on the site based on existing conditions. For these sites, property owners shall submit a letter of intent to apply a regulating plan to their site to the Director, and a Pre-Application Meeting shall be held prior to Preliminary Review. Following this meeting and the further review of the project area, the Director shall make this determination.

a. The criteria for determining the appropriate mix of Transect Zones are as follows:

(1) Proximity to existing or future transit stops;

(2) Scale and uses adjacent to site;

(3) Existing zoning and entitlement of property;

(4) Size of the site;

(5) Site constraints and opportunities;

(6) Ability of site to create a complete walkable neighborhood; and/or

(7) Role of this site in Smart Growth strategy for the larger city based on sector mapping or macro scale analysis.

4. Any TOD frontage along main streets shall have a T4 or T5 Main Street zone designation.

5. The Director may approve a variance for up to 15% for the transect zone allocation within Table 11-63-5.A (Required Allocation Mix of Transect Zones) as long as the proposed regulating plan meets the objectives of this Chapter.

Table 11-63-5.A Required Allocation Mix of Transect Zones

Transect Zone	Percentage of Land Assign to Zone	
	Minimum	Maximum
Traditional Neighborhood Development between 10 - 30 acres		
T3 Neighborhood	no min.	30% max.
T4 Neighborhood (T4N)	25% min.	70% max.

T4 Neighborhood Flex (T4NF)	10% min.	50% max.
T4 Main Street (T4MS)	10% min.	30% max.
T5 Neighborhood (T5N)	no min.	35% max.[1, 2]
T5 Main Street Flex (T5MSF)	no min.	25% max.[1]
T5 Main Street (T5MS)	no min.	15% max.[1]
T6 Main Street (T6MS)	NA	NA
Traditional Neighborhood Development greater than or equal to 30 acres		
T3 Neighborhood	10% min.	30% max.
T4 Neighborhood (T4N)	25% min.	70% max.
T4 Neighborhood Flex (T4NF)	10% min.	50% max.
T4 Main Street (T4MS)	10% min.	30% max.
T5 Neighborhood (T5N)	no min.	30% max.[2]
T5 Main Street Flex (T5MSF)	no min.	30% max.
T5 Main Street (T5MS)	no min.	20% max.
T6 Main Street (T6MS)	NA	NA
Transit Oriented Development		
T3 Neighborhood	NA	NA
T4 Neighborhood (T4N)	no min.	20% max.[3]
T4 Neighborhood Flex (T4NF)	no min.	15% max.
T4 Main Street (T4MS)	no min.	30% max.
T5 Neighborhood (T5N)	no min.	80% max.[4]
T5 Main Street Flex (T5MSF)	10% min.	75% max.
T5 Main Street (T5MS)	10% min.[5]	30% max.[6]
T6 Main Street (T6MS)	NA	NA
End Notes:		
[1] Allocation of Transect Zone requires Director approval		
[2] Allocation of T5N requires the allocation of T5MSF or T5MS		
[3] Should primarily be used to transition TOD into an adjacent single-residence neighborhood if it abuts one.		
[4] With Director approval may be as high as 100% if the site is not along a major corridor and is not adjacent or backing onto single-residence parcels.		
[5] With Director approval may be as low as 0% if the site is not along a major corridor.		
[6] With Director approval may be up to 100% if the site is adjacent to the main street.		

(Ord. No. 5948, § 2, 7-1-25)

11-63-6: THOROUGHFARES

Thoroughfares define the public streets that refine pedestrian sheds into walkable environments. Care should be taken in the layout and sizing of thoroughfares, as wide thoroughfares and a lack of connectivity reduce the pedestrian friendliness of the area.

A. **Design.**

1. Thoroughfares shall be designed per Chapter 61 (Thoroughfare Standards).

2. The thoroughfare network shall be mapped on a Street Regulating Plan that shall:

   a. Indicate the layout of thoroughfares and the block network according to the standards established in Subsections 11-63-6.B (Block Size) and 11-63-6.C (Connectivity); and

   b. Be reviewed and approved by the Director, City Traffic Engineer, and Fire Department.

3. Thoroughfares that pass from one transect zone to another shall adjust their public frontages to match the character of the transect zone. For example a thoroughfare that goes from an urban transect zone with retail shops may change in character from wide sidewalks with trees in tree grates to a narrower sidewalk with a planting strip as the thoroughfare transitions to a less urban transect zone composed of various residential building types.

B. **Block Size.** Individual block faces and the total block perimeter shall follow the standards established in the table below. If a block contains multiple transect zones, the most intense transect zone shall be used to establish the requirements for block size.

Table 11-63-6.A Block Size		
Transect Zone	**Block**	
	Face Length	**Perimeter Length**
T3	900 ft. max.	2,400 ft. max.
T4	600 ft. max.	2,000 ft. max.
T5	600 ft. max.	1,800 ft. max.

C. **Connectivity.**

1. ***Interconnected Thoroughfares.*** Proposed thoroughfares shall be interconnected and shall connect with adjacent thoroughfares external to the site to provide multiple routes for pedestrian and vehicle trips from, to, and within the site.

2. Thoroughfares shall terminate/connect to other thoroughfares. Thoroughfares shall not terminate on alleys and lanes.

3. ***Thoroughfare Extensions and Thoroughfare Stubs.***

   a. Where a plan adjoins non-subdivided land, thoroughfares shall be extended to the adjacent non-subdivided land, as prescribed by the maximum block length requirements to provide access to the non-subdivided land in the event of its future subdivision.

   b. Where a plan adjoins developed or entitled parcels, thoroughfares shall connect to existing or entitled thoroughfare right-of-ways and stubs.

4. ***Dead-End Thoroughfares and Cul-de-Sacs.***

   a. Thoroughfares shall not include dead-end thoroughfares or cul-de-sacs except where through-streets cannot be provided because of an environmental feature requiring protection and/or preservation (e.g., a creek channel).

   b. The length of dead-end thoroughfares shall not exceed 300 feet, as measured from the center of the closest intersection to the center of the cul-de-sac bulb, and these thoroughfares shall provide a suitable turn-around designed to the satisfaction of the Director.

11-63-7: CIVIC BUILDINGS AND CIVIC SPACES

Civic buildings and civic spaces provide important gathering places for communities and access to outdoor activities. The civic buildings and civic spaces should be carefully located within the pedestrian shed and accessible to all. The following standards shall be met for providing and locating civic buildings and civic spaces.

A. **General.**

1. SGCPs shall designate civic spaces and civic buildings on a Regulating Plan.

2. The design of civic spaces shall meet the standards set forth in Chapter 62 (Civic Space Types).

3. Civic buildings and the associated civic spaces shall cover less than 20% of a pedestrian shed. To request that civic buildings and the associated civic spaces cover 20% or more of a pedestrian shed, the applicant may apply for a special exception to create a special district.

B. **Civic Space Allocation.**

1. Projects shall set aside a minimum of five percent of the project area as civic space. This number shall be calculated after street right-of-way are subtracted from the project area. The following are exceptions:

a. For sites less than four acres, no civic spaces beyond the playground requirements of Subsection 3 are required.

b. For sites less than eight acres and within 1,500 feet of an existing public park of at least one acre, no civic spaces beyond the playground requirements of Subsection 3 are required.

2. For sites greater than ten acres, the required amount of civic space shall be distributed throughout the neighborhood as multiple smaller civic spaces.

3. Each residential lot shall be within 1,500 feet of an existing or proposed publicly accessible playground or tot lot.

C. **Civic Building Allocation.**

1. Sites greater than four acres or providing 100 units or more shall provide an indoor public meeting space that is a minimum of 30 feet by 30 feet and a maximum of 10,000 square feet. This may be a freestanding building or integrated within another building. This requirement may be waived for Infill SGPS if an existing public meeting space is located within 1,500 feet of the site.

2. Schools that are integrated into the regulating plan shall be located near the designated center of the pedestrian shed.

3. If a pool and a pool building are integrated into the plan, the space allocated for the pool use (building and grounds) may count for 1.25 times the actual space toward the required civic space.

11-63-8: NEIGHBORHOOD CENTERS/MAIN STREETS WITHIN NEW SMART GROWTH COMMUNITY PLANS

A. **General.**

1. Neighborhood centers/main streets shall be located near the center of each pedestrian shed within a New SGCP.

2. Lots designated as part of a neighborhood centers/main streets within New SGCPs shall have a minimum depth of 130 feet; lots less than 130 feet may be approved by the Director.

3. Main streets shall be located as follows:

a. Along a thoroughfare that will have development consistent with a Main Street Transect Zone on both sides or one side if the other side is a civic space/civic use; and

b. Along a primary through-thoroughfare that connects to other existing or planned main streets or neighborhood centers; or

c. Perpendicular to and directly engaging a primary through-thoroughfare.

4. Neighborhood centers shall include one or more civic spaces that contain one or more civic buildings and/or uses. Limited retail or service uses may also be incorporated within the civic space or buildings.

B. **Allocation.** A main street within a New SGCP shall have a minimum of 400 linear feet of frontage as measured from the edge of lots.

C. **Phasing.** A minimum of one lot designated as part of a main street shall be included and built during the first phase of a project.

11-63-9: MIX OF BUILDING TYPES WITHIN NEW SMART GROWTH COMMUNITY PLANS

A mix of building types introduces variety into the character of SGCPs.

A. In T3 Neighborhood Zones, a minimum of five percent of buildings shall be multi-residence/unit building types.

B. In the T4 Neighborhood Zones, a minimum residential mix of three building types shall be required.

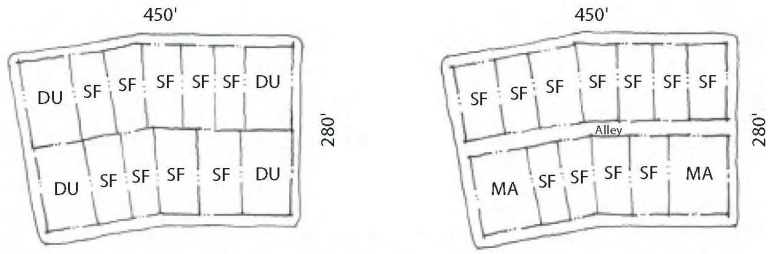
C. No single building type may represent more than 60 percent of the total number of buildings, except in T5.

D. Blocks shall provide a diversity of residential and mixed-use building types in a manner that fulfills the intent of each Transect Zone as they are described in Chapter 2.20 and the following formulas. In the event that blocks are composed of more than one Transect Zone, the minimum mixing requirements of the most intense Transect Zone shall apply across the block.

1. Blocks within the T3N Transect Zone are intended to be primarily composed of single-residence/unit and duplex building types, while accommodating limited multi-residence building types that are compatible with single-residence/unit form.

a. Blocks within the T3N Transect Zone shall provide a minimum of two building types per block.

b. At least 50% of the residential units on block shall be located within single-residence/unit and/or duplex building types.

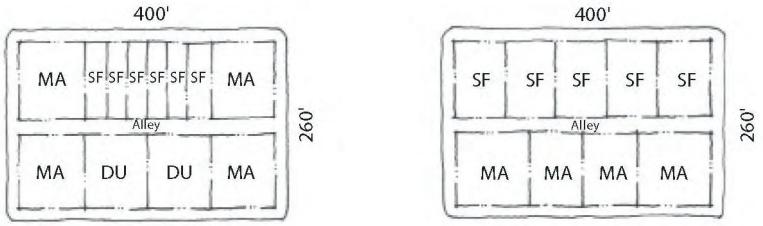


***Above**: Diagrams illustrates two typical building type distributions in the T3N Zone District. Left: Block with nine single-residence building types (SF) and four duplexes (DU), one at each block corner; no alley is required for access. Right: Block with eleven single-residence building types and two mansion apartments (MA) placed at two respective corners; an alley is provided for access. In both cases, at least 50% of the residential units on the block are within single-residence and/or duplex building types.*

2. Blocks within the T4N Transect Zone are intended to provide a mix of single-residence/unit, duplex and multi-residence/unit types.

   a. Blocks within the T4N Transect Zone shall provide a minimum of two building types per block.

   b. No block may be entirely composed of single-residence/unit and/or duplex building types.

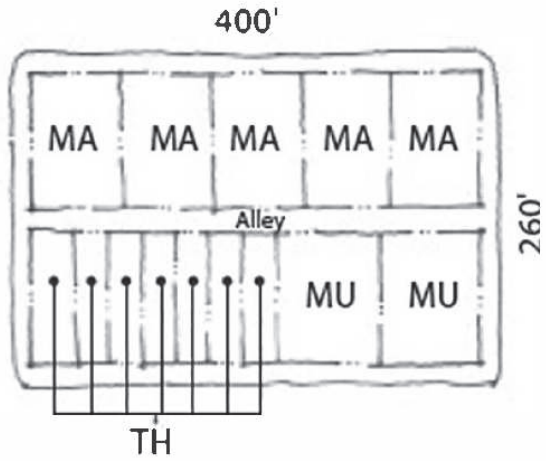


***Above**: Diagrams illustrates two typical building type distributions in the T4N Transect Zone. Left: Block with six small-lot single-residence/unit building types (SF), four mansion apartment buildings (MA) and two duplexes (DU) Right: Block with 5 single-residence/unit building types (SF) and four mansion apartments (MA).*

3. Blocks within the T4NF or T5MSF Transect Zone are intended to provide the greatest diversity of building types.

   a. Blocks within the T4NF or T5MSF Transect Zone shall provide a minimum of three distinct building types per block.

   b. No more than 50% of the residential units on a block shall be located within single-residence/unit or duplex building types.



Above: Diagram illustrates typical building type distributions in the T4NF or T5MSF Transect Zone. Block includes five mansion apartment buildings (MA), seven townhome buildings (TH), and two main street mixed-use buildings (MU)

11-63-10: MIX OF LOT SIZES

A mix of lot sizes introduces variety into the character of Smart Growth Community Plans.

A. A mix of lot sizes shall be provided within pedestrian sheds and blocks as established in the table below.

Table 11-63-10.A Mix of Lot Sizes		
Transect Zone	**Minimum Number of Lot Sizes**	
	Pedestrian Shed	**Block**
T3	3	2
T4	2	2
T5	No minimum	No minimum

B. Lot shall vary by a minimum of 5 feet in width.

11-63-11: INCENTIVES

To encourage the use of the SGCPs Chapter, the City Council shall grant the following incentives, to the extent authorized by State law:

A. With an application for a Infill SGCP, separate review of a conceptual plat is no longer necessary, as it will be combined with the review for the Infill SGCP.

B. An application for a preliminary plat and regulating plan with its associated Form-Based Code may be considered together. This has the advantage of reducing the amount of time required for project review and reduces otherwise applicable fees.

C. A request for rezoning may occur concurrent with the request for a General Plan amendment to the Traditional Neighborhood or Mixed Use land use designation.

D. Following approval of the SGCP, all applications for Development Plan Review shall be reviewed and processed through the Director.

(Ord. No. 5996, § 4, 3-9-26)

11-63-12: SPECIAL REQUIREMENTS

A SGCP may designate any of the following special requirements:

A. A differentiation of the thoroughfares as A-grid and B-grid. The review of Use Permits for buildings along the A-grid shall prioritize uses supportive of pedestrian activity. Buildings along the B-grid may be more readily considered for Use Permits allowing automobile-oriented standards. The frontages assigned to the B-grid shall not exceed 30% of the total length of frontages within a pedestrian shed.

B. Designations for mandatory and/or recommended terminated vista locations, requiring or advising that the building be provided with architectural articulation of a type and character that responds visually to the location, as approved by the Director.

C. A designation for cross block passages, requiring that a minimum 8-foot-wide pedestrian access be reserved between buildings.

D. A designation for Buildings of Value, requiring that such buildings and structures may be altered or demolished only in accordance with Municipal Preservation Standards and Protocols.

E. A designation for coordinated frontage, requiring that the standards in Table 11-61-9.E (Public Frontage Types), Table 11-61-9.F (Public Frontage Standards), and Chapter 11-60 (Private Frontage Standards) be coordinated as a single, coherent landscape and paving design.

F. May designate one of the following mandatory retail frontage types:

1. ***Shopfront.*** Designations for mandatory and/or recommended Shopfront Frontage, requiring or advising that a building provide a Shopfront Frontage at sidewalk level along the entire length of its private frontage. See Section 11-60-10 (Shopfront Frontage) for standards.

2. ***Gallery.*** Designations for mandatory and/or recommended Gallery Frontage, requiring or advising that a building provide a permanent cover over the sidewalk, either cantilevered or supported by columns. See Section 11-60-12 (Gallery Frontage) for standards.

3. ***Arcade.*** Designations for mandatory and/or recommended Arcade Frontage, requiring or advising that a building overlap the sidewalk such that the first floor façade is a colonnade. See Section 11-60-13 (Arcade Frontage) for standards.

G. A designation of required Architectural Styles. The designation of required architectural styles requires the submittal of Architectural Guidelines or Pattern Book as part of a Final Development Plan.

11-63-13: APPLICATIONS AND PROCESSING

A. **Submittal Requirements.** Submittal requirements for each step in the approvals process can be found in the City of Mesa's SGCP submittal requirements handout.

B. **Pre-Submittal Meetings.** Pre-submittal meetings allow potential applicants to review preliminary development proposals with the Director before substantial commitments of time and money have been made. During the pre-submittal phase the Director shall review submitted materials for compliance with the Form-Based Code and make recommendations to the applicant with regards to improvements that can increase compliance with the Code and ensure that future development processes are streamlined. The Director may forward review of relevant items to a Technical Advisory Committee as necessary to provide additional input and recommendations.

C. **Preliminary Development Plans.** Preliminary development plans provide a public process for the evaluation and review of initial land development. These development plans enable detailed master planning for neighborhoods in a manner that assures that compliance with the intent and standards of the Code, while maintaining some degree of flexibility regarding the future build out of these areas. Such development plans will require the organization of streets, development blocks, and publicly accessible open spaces.

1. The following information is required in order to demonstrate preliminary development plan compliance:
    a. A refined building form regulating plan that identifies pedestrian sheds and clarifies the location, size, and disposition of the transect areas;
    b. A refined streets and circulation regulating plan that clarifies the location of all primary streets and the type and location of all secondary streets, alleys, and other publicly accessible right-of-ways;
    c. A refined parks and open space regulating plan that identifies the types, sizes, and locations of all parks and open spaces;
    d. Existing conditions, indicating natural resources, topography, and site constraints.
    e. Utility locations and setbacks.
2. Approval of preliminary development plan is granted by the Planning and Zoning Board. Appeals may be forwarded to the City Council.
3. Modifications to preliminary development plans may be made through the final development plan process, provided that such modifications maintain substantial compliance with this Code and the refined regulating plans, and/or are within the bounds of a Minor Adjustment.
4. Any modifications to existing zoning require approval by City Council.

D. **Final Development Plans.** Final development plans provide a process for detailed administrative review and evaluation of development proposals to ensure compliance with the requirements of this Code. Final development plans may be prepared for all or portions of a preliminary subdivision plan area.

Final development plans shall demonstrate compliance with preliminary development plans. Minor deviations may be characterized as Minor Adjustments. Final development plans that do not demonstrate substantial compliance will require an amendment to an existing preliminary development plan, with additional approvals by the Planning and Zoning Board.

1. The following information, in addition to the information required to demonstrate preliminary plan compliance, is required to demonstrate final development plan compliance:

    a. Neighborhood block development plans, including the following:

        (1) Lot lines and dimensions;

        (2) Individual lot layouts illustrating buildable areas as per transect zones, setbacks, and encroachment;

        (3) Identification of allowed building types;

        (4) Preliminary landscape and lighting plans for all civic spaces and public right-of-ways.

        (5) Preliminary grading plans showing modifications to existing conditions; and

        (6) Detailed utility locations, sizes and setbacks.

    b. Architectural Guidelines or Pattern Book, if required

2. Preliminary and final development plans may be processed simultaneously.

Smart Growth Community Plan:
Process Diagram

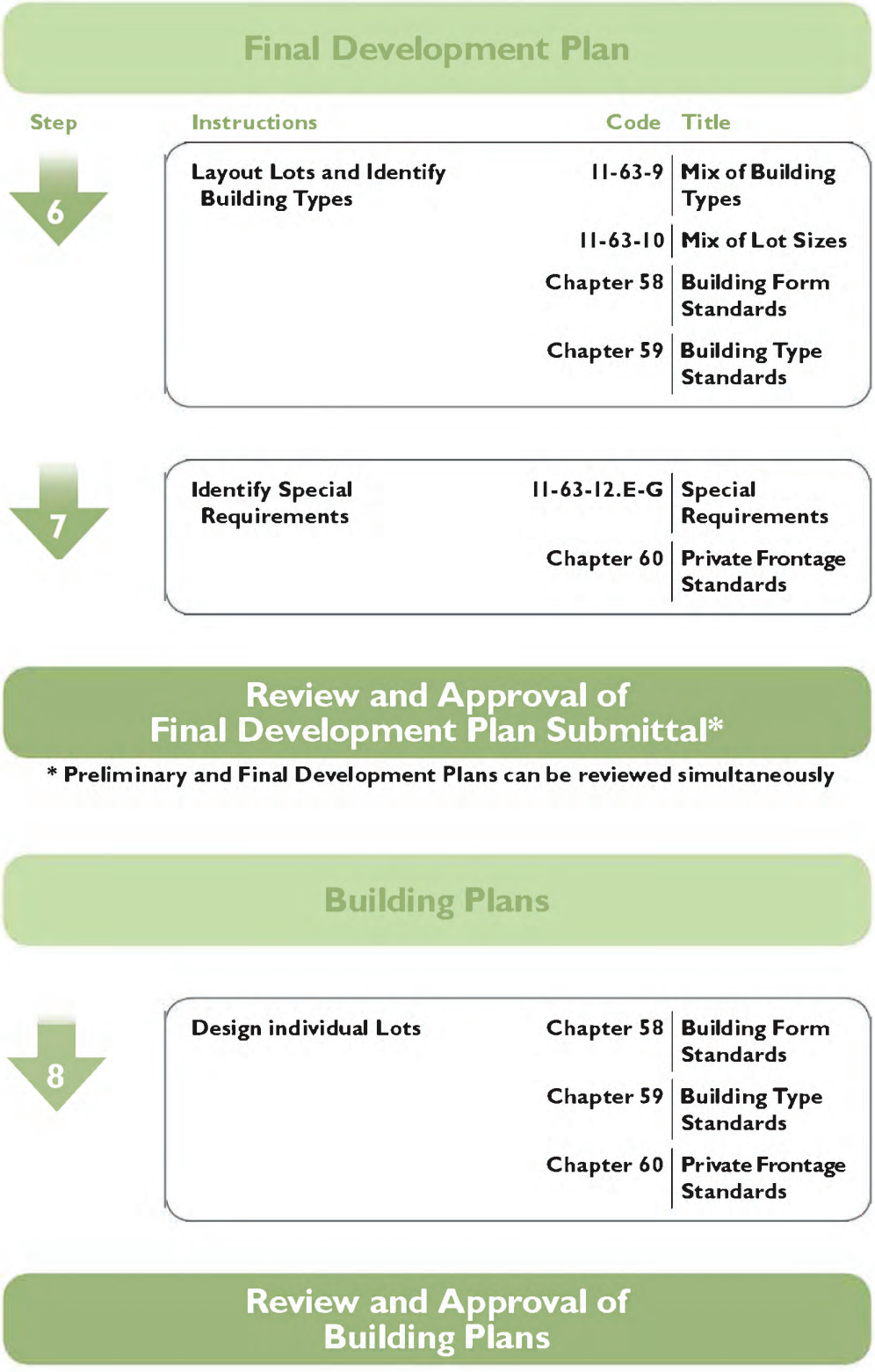
Preliminary Development Plan

Step	Instructions	Code	Title
1	Identify Pedestrian Sheds	11-63-4	Pedestrian Sheds
	New Pedestrian Sheds shall be centered near new neighborhood centers or main streets	11-63-8	Neighborhood Centers/ Main Streets
2	Allocate Transect Zones	11-63-5	Transect Zones
		11-58-3	Overview of Transect Zones & Allowed Uses
3	Layout Thoroughfares	11-63-6	Thoroughfares
		Chapter 61	Thoroughfare Standards
4	Allocate Civic Buildings and Civic Spaces	11-63-7	Civic Buildings & Civic Spaces
		Chapter 62	Civic Space Standards
5	Identify Special Requirements	11-63-12.A-D	Special Requirements

Review and Approval of Preliminary Development Plan Submittal (optional*)

* Preliminary and Final Development Plans can be reviewed simultaneously

Continued


Final Development Plan
Step
Instructions
Code
Title
6
Layout Lots and Identify Building Types
11-63-9
Mix of Building Types
11-63-10
Mix of Lot Sizes
Chapter 58
Building Form Standards
Chapter 59
Building Type Standards
7
Identify Special Requirements
11-63-12.E-G
Special Requirements
Chapter 60
Private Frontage Standards
Review and Approval of Final Development Plan Submittal*
* Preliminary and Final Development Plans can be reviewed simultaneously
Building Plans
8
Design individual Lots
Chapter 58
Building Form Standards
Chapter 59
Building Type Standards
Chapter 60
Private Frontage Standards
Review and Approval of Building Plans

Smart Growth Community Plan:
Submittal Requirements

Preliminary Development Plan Submittal Requirements

1. Regulating plan(s) indicating the location of:
   a. Pedestrian sheds;
   b. Transect zones, assigned to the block level;
   c. Thoroughfares;
   d. Civic Buildings and Civic Spaces;
   e. Any special requirements, including, but not limited to:
      (1) A-grid and B-grid thoroughfare designations;
      (2) Mandatory or recommended terminal vista locations;
      (3) Mandatory or recommended pedestrian passages/pathways; and/or
      (4) Designation of Buildings of Value.
2. For each pedestrian shed, a table indicating the following:
   a. Allocation of transect zones and civic spaces.
3. Environmental and resource mapping of existing conditions, including but not limited to:
   a. Floodplains;
   b. Steep slope areas;
   c. Rock outcrops; and/or
   d. Significant natural and heritage resources within a quarter mile of the site.
4. Description of intended architectural character

Final Development Plan Submittal Requirements

1. Illustrative plan indicating:
   a. Conceptual building footprints; and
   b. Conceptual civic space designs.
2. Regulating plan(s) indicating the location of:
   a. Pedestrian sheds;
   b. Transect zones, assigned to the parcel level;
   c. Thoroughfares;
   d. Civic Buildings and Civic Spaces; and
   e. Any special requirements, including, but not limited to:
      (1) A-grid and B-grid thoroughfare designations;
      (2) Mandatory or recommended terminal vista locations;
      (3) Mandatory or recommended pedestrian passages/pathways;
      (4) Designation of Buildings of Value;
      (5) Designated coordinated frontages;
      (6) Mandatory or recommended retail frontages;
      (7) Mandatory or recommended gallery frontages; and/or
      (8) Mandatory or recommended Architectural Styles.
3. For each pedestrian shed, a table indicating the following:
   a. Allocation of transect zones and civic spaces;
   b. Percentage of non-residential uses; and
   c. Densities found within each transect zone.
4. Environmental and resource mapping of existing conditions and proposed alterations to, including but not limited to:
   a. Floodplains;
   b. Steep slope areas;
   c. Rock outcrops;
   d. Significant natural and heritage resources within a quarter mile of the site; and/or
   e. Single trees or tree clusters that should be preserved.
5. Architectural Guidelines or Pattern Book, if required, including but not limited to:
   a. Building materials and colors;
   b. Details on openings such as doors and windows;
   c. Roof details; and
   d. Fence/Street Screen details.
6. Description of the plan to meet the Environmental Planning and Conservation goals of the Mesa General Plan. This can be measured through the achievement of certification by LEED, or equivalent.

CHAPTER 64 DEFINITIONS

11-64-1: PURPOSE

This Chapter provides the definitions of Land Uses and Specialized Terms and Phrases used in the Form-Based Code.

11-64-2: APPLICABILITY

A. The definitions in this Chapter shall apply to all proposed development within transect zones.

B. In the event of conflict between the definitions found in this Chapter and the definitions found within the Zoning Code outside of Article 6 (Form-Based Development Regulations) these definitions shall prevail for all proposed development within transect zones.

11-64-3: DEFINITIONS OF SPECIALIZED TERMS AND PHRASES

A. **Definitions.**

Accessory Structure. A structure that is physically detached from, secondary and incidental to, and commonly associated with a primary structure and/or use on the same site. The use of the Accessory Structure must not change the character of the use for the site.

This definition includes, but is not limited to, the following detached accessory structures that are associated with a residential use property:

Garages (covered or enclosed) for the storage of automobiles (including incidental personal restoration and repair), personal recreational vehicles and other personal property; guest houses, studios, workshops, greenhouses (noncommercial), enclosed cabanas and pool houses, storage sheds, outdoor saunas, and other similar enclosed structures.

This definition also includes, but is not limited to, the following detached accessory structures normally associated with a nonresidential use property:

Garages (covered or enclosed) for the storage of automobiles and work related vehicles and equipment (including incidental restoration and repair), storage structures, workshops, studios, other similar enclosed or unenclosed structures.

A permitted Accessory Structure is not permitted by right to have an Accessory/Secondary Unit. This use is regulated separately as "Dwelling, Accessory/Secondary Unit."

Accessory Use. A use customarily incidental to, related and clearly subordinate to a principal use established on the same lot or parcel of land, which accessory use does not alter said principal use nor serve property other than the lot or parcel of land on which the principal use is located. "Appurtenant use" means the same as accessory use.

Adjoining. 2 or more lots or parcels of land sharing a common boundary line, or 2 or more objects in contact with each other. Lots or parcels of land which touch at corners only shall not be deemed adjoining. "Abut" or "abutting" and "contiguous" means the same as adjoining.

Administrative Use Permit (AUP). An AUP is a discretionary use permit issued by the Zoning Administrator for uses that are generally permitted within a district and usually are of low impact to the

community and environment. Conditions of approval, mandatory review periods, and expiration periods may be required at the discretion of the Zoning Administrator. In granting conditional approval, the Zoning Administrator may impose requirements and conditions with respect to location, sitting, construction, maintenance, operation, duration, and overall development as deemed reasonable and necessary for the protection of adjacent properties and the public interest. If an Administrative Permit is denied by the Zoning Administrator, it may be appealed in accordance with Chapter 77 of the Zoning Ordinance.

Alcoholic Beverage Sales. The retail sale of beer, wine, and/or spirits for on-site or off-site consumption, either as part of another retail use, or as a primary business activity.

Ancillary Structure/Ancillary Building. See "Accessory Structure."

Apartment House. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

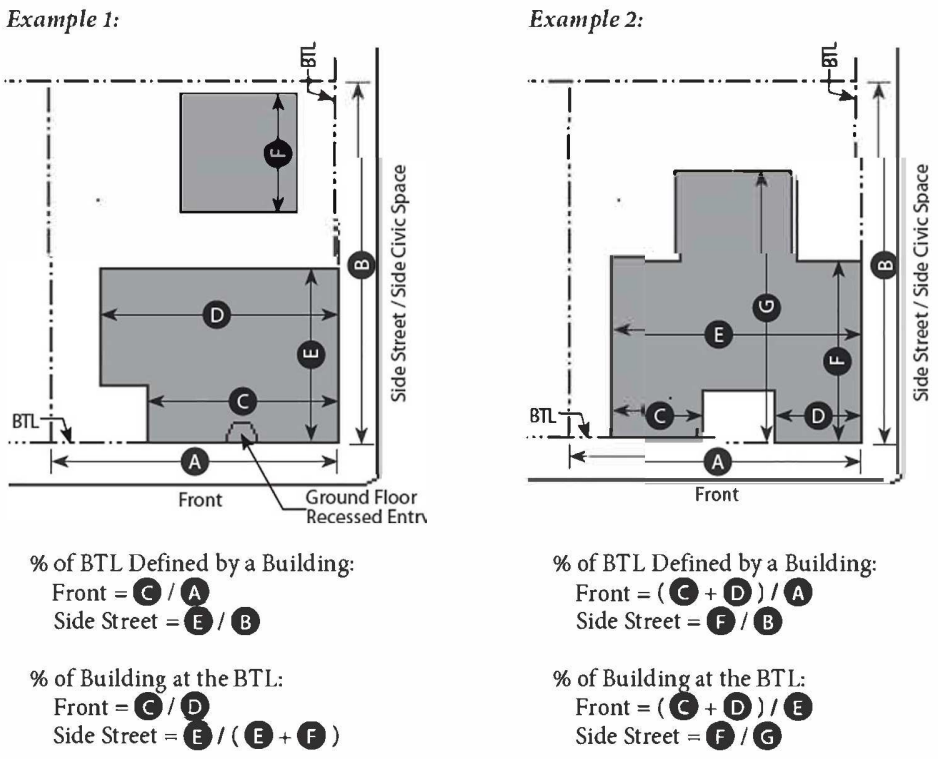
Arcade. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Architectural Features. Exterior building elements intended to provide ornamentation to the building massing, including, but not limited to: eaves, cornices, bay windows, window and door surrounds, light fixtures, canopies, and balconies.

B. **Definitions.**

Building Type. The structure defined by the combination of configuration, disposition, and function. See Chapter 59 (Building Type Standards) for a description of and regulations for allowed building types.

Build-to Line (BTL). A line parallel to a property line or right-of-way where a building façade must be placed. The BTL may appear graphically on the regulating plan or be stated as a maximum setback dimension from the property line or right-of-way. Examples 1 and 2 below depict how to calculate the percent of BTL Defined by a Building and percent of Building at the BTL as may be required in the Building Form Standards. Minor deviations from the BTL are allowed for Architectural Features, recessed entries, and recessed balconies. These minor deviations do not count against the calculations of percent of BTL Defined by a building or percent of Building at the BTL.



Bungalow Court. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

C. **Definitions.**

Carriage House. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Ceiling Height. See Measurements.

Civic. A term defining not-for-profit organizations, dedicated to arts, culture, education, religious activities, recreation, government, transit, and public parking facilities.

Civic Building. A structure operated by governmental or not-for-profit organizations and limited to civic and related uses.

Commercial. A term defining workplace, office and retail uses collectively.

Common Yard. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Common Courtyard. A Private Frontage Type. An entry court, forecourt or courtyard shared by multiple residential units or commercial spaces.

Community Garden. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Community Park. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Corner Element. A prominent architectural element, such as a tower, corner bay window (chamfered or round) or significant façade articulation, designed to accent the corner of a building and typically used to terminate a view or mark an important entrance.

Council Use Permit (CUP). A CUP is a discretionary permit issued by the City Council after review and recommendation by the Planning and Zoning Board. Council Use Permits will be reviewed in accordance with Section 11-70-6 of the Zoning Ordinance.

Courtyard Building. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

D. **Definitions.**

Depth, Ground-floor Commercial Space. See Measurements.

Development. Any man-made change to improved or unimproved real estate, including but not limited to the division of a parcel of land into 2 or more parcels; the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any structure; any mining, excavation, landfill or land disturbance; and any use or extension of the use of land.

Director. The Planning Director of the City of Mesa, or his or her duly appointed representative.

Dooryard. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Duplex. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Dwelling, Dwelling Unit, or Housing Unit. A room or suite of rooms, including permanent provisions for living, sleeping, eating, sanitation, and cooking, and designed or occupied as separate living quarters.

Accessory Dwelling Unit. An attached or detached self-contained living unit that is on the same lot or parcel as a single-family dwelling of greater square footage than the accessory dwelling unit, that includes its own sleeping and sanitation facilities and that may include its own kitchen.

Single-Unit Residence. A primary dwelling unit designed for occupancy by one household, and located on a separate lot from any other unit (except accessory living quarters, where permitted).

Multiple-Unit Residence. Two or more primary dwelling units on a single lot. Types of multiple residence dwellings include, but are not limited to duplexes, garden apartments, and multi-story apartment buildings.

E. **Definitions.**

Encroachment. Any architectural feature, structure or structural element, such as a gallery, fence, door-yard, garden wall, porch, stoop, balcony, bay window, terrace or deck, that breaks the plane of a vertical or horizontal regulatory limit extending into a setback, beyond the build-to-line, into the public frontage, or above a height limit.

F. **Definitions.**

Façade. The vertical surface of a building.

Façade Zone. The area between the minimum and maximum setback lines.

Street Façade. The vertical surface of a building located at the Build-to Line.

Flex Space. Space designed to accommodate an evolution of use over time in response to an evolving market demand. Typically designed to accommodate future commercial uses, while accommodating less intense short term uses such as residential or live/work, until the full commercial demand has been established.

Floor Finish Level. See Measurements.

Forecourt. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Formally Disposed. Composed in a regular, classical, and symmetrical manner.

Front. The primary frontage(s) of a lot, determined as follows:

For lots with frontages along multiple thoroughfares, the frontage along the thoroughfare with the most pedestrian activity, as determined by the Director, will always be treated as a Front. At key gateways, as identified by the Director, corner lots may be required to have multiple frontages along thoroughfares treated as Fronts. All other frontages along thoroughfares may be considered to be Side Street Frontages.

For lots with frontages along a thoroughfare and a civic space, the Front may be the frontage along either the thoroughfare or the civic space, or both frontages may be treated as Fronts, with the following exception: the frontage along certain Civic Spaces may be required to be a Front, as per the Civic Space Standards (see Chapter 62).

For lots with a single frontage along a thoroughfare or a Civic Space, but not both, that frontage is the Front.

Frontages along Alleys, Service Drives, and Parking Drives may never be a Front.

Frontage. The portion of a lot or parcel of land which borders on a thoroughfare or other public right-of-way or civic space.

Frontage, Private. The area between the property line or right-of-way and the building façade, which may be coterminous. See Chapter 60 (Private Frontage Types) for a description of and regulations for allowed Private Frontage Types.

Frontage, Public. The area between the curb of the vehicular lanes and the frontage line. See Table 11-61-9.E (Public Frontage Types) for a description of and regulations for allowed Public Frontage Types.

Frontage Line. The property lines of a lot along a thoroughfare or other public way, or a civic space.

G. **Definitions.**

Gallery. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Greenway. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

H. **Definitions.**

Hardscape. Part of a building's grounds consisting of elements such as plazas, retaining walls and sidewalks, made with materials such as but not limited to, concrete and sidewalk pavers.

Height. See Measurements.

High-Rise. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

I. **Definitions.**

Infill/Redevelopment. The development of vacant land that was bypassed by earlier waves of development and is now largely surrounded by developed land or land that previously developed, then cleared.

J. **Definitions.**

No specialized terms beginning with the letter J are defined at this time.

K. **Definitions.**

No specialized terms beginning with the letter K are defined at this time.

L. **Definitions.**

Landscaping. The planting, configuration and maintenance of trees, ground cover, shrubbery and other plant material, decorative natural and structural features (walls, fences, hedges, trellises, fountains, sculptures), earth patterning and bedding materials, and other similar site improvements that serve an aesthetic or functional purpose.

Landscaped Area. The area within a parcel containing landscaping, excluding building footprints, paved driveways, parking areas, decks, patios, walkways and undisturbed natural areas. Water features are included in the landscaped area.

Liner Building. An occupiable structure specifically designed to mask a parking lot or a parking structure from a frontage.

Live/Work Unit. An integrated housing unit and working space occupied and utilized by a single household in a structure that has been designed or structurally modified to accommodate joint residential occupancy and work activity, and which includes complete kitchen space and sanitary facilities in compliance with the Building Code; and Working space reserved for and regularly used by one or more occupants of the unit.

M. **Definitions.**

Main Street Mixed-Use. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Mansion Apartment. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Measurements.

Depth, Ground-floor Commercial Space. The depth of the ground floor space available to a commercial tenant. Service cores (stairs and elevators), double height lobbies, trash rooms, and other building elements may encroach upon the required depth up to 50% of the required depth for a maximum of 25% of the width of the tenant space.

Ceiling Height. Height from finished floor to finished ceiling of primary rooms, not including secondary rooms such as bathrooms, closets, utility rooms, and storage spaces.

Floor Finish Level. Height difference between public walk adjacent to the front and the floor. Regulations for ground floor finish level for ground floor residential uses do not apply to ground floor lobbies and common areas in multi-unit buildings.

Ground Floor Transparency. The percentage of the area, measured from floor to ceiling, of the ground floor wall along the frontage that is constructed with transparent materials. Includes the transparent glazing of storefronts, windows, transoms, and doors.

Height. A limit to the vertical extent of a building that is measured in number of stories. Where maximum height is measured in feet, the measurement is taken to the eave of a sloped roof or the base of a parapet wall. Height limits do not apply to masts, belfries, clock towers, chimney flues, water tanks, elevator bulkheads, and similar structures that do not occupy greater than ten percent (10%) of the roof, which may be of any height approved by the Planning Director.

Upper Floor Ceiling Height. Height from finished floor to finished ceiling of primary rooms on the upper floors not including secondary rooms such as bathrooms, closets, utility rooms, and storage spaces.

Mid-Rise. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Mixed-use. Multiple functions vertically superimposed within the same building or horizontally superimposed across the same development site or same general area through adjacency.

Mixed-Use Project. A development that combines both commercial and residential uses on the same site.

N. **Definitions.**

Naturally Disposed. A preservation of the existing natural condition or a composition of elements arranged as they would appear in nature, with irregular shapes, patterns, rhythms, and asymmetry.

Neighborhood Green. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Neighborhood Square. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

O. **Definitions.**

Open Space. The area or areas of a lot or parcel intended to provide light and air, and designed for either scenic and/or recreational purposes, excluding buildings, parking, driveways and other vehicular surfaces.

Common Open Space. An open space intended for the shared, common use of the occupants of a development.

Private Open Space. An open space intended for the exclusive use of the occupants of a dwelling unit.

P. **Definitions.**

Parking Access Drive. An accessway within a public right-of-way that provides vehicular access between a street or alley and the on-site parking.

Paseo. A pedestrian alley located and designed to reduce the required walking distance within a neighborhood.

Pedestrian Shed. An area centered on a major destination. Its size is limited by an average distance that may be traversed at an easy walking pace in a given amount of time from its center to its edge. Specific Pedestrian sheds are established through a regulating plan. See Section 11-63-4 (Pedestrian Sheds).

Permitted Use. Any use allowed in a Transect Zone without a requirement for approval of a discretionary use permit, but subject to any restrictions applicable to that transect.

Playground. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Plaza. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Pocket Plaza. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Pocket Park. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Porch, Projecting or Engaged. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Prohibited Uses. Uses not listed in Table 11-58-3.A "Composite Use Table" are specifically prohibited unless an interpretation of the Zoning Administrator determines that a use is consistent pursuant to the Code.

Q. **Definitions.**

No specialized terms beginning with the letter Q are defined at this time.

R. **Definitions.**

Regional Park. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Residential. Enclosed space with a minimum 400 gross square feet used primarily for human habitation.

S. **Definitions.**

Setback. The area between a property line and a building or structure which must be kept clear or open.

Shared Parking. Any parking spaces assigned to more than one use, where persons utilizing the spaces are unlikely to need the spaces at the same time of day.

Shopfront. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Single-Unit House, Cottage or Village. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Special Use Permit (SUP). A SUP is a discretionary permit issued by the Zoning Administrator or Board of Adjustment. Special Use Permits will be reviewed in accordance with Section 11-70-5 of the Zoning Ordinance.

Sport Complex. A Civic Space Type. See Chapter 62 (Civic Space Standards) for a description of and regulations for this Civic Space Type.

Stoop. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Storefront. The portion of a frontage that is composed of the display window and/or entrance and its components including windows, doors, transoms and sill pane that is inserted into various frontage types, such as a shopfront or gallery, to accommodate retail.

Story. A habitable floor level within a building, typically 8' to 14' high from floor to ceiling. The number of stories is measured from the sidewalk of the primary street.

Story, Half. A conditioned space that rests primarily underneath the slope of the roof, usually having dormer windows and occupying about half the area of the floor or floors below.

Structure. Anything constructed or erected, which requires a fixed location on the ground, or is attached to something having a fixed location on the ground. For the purposes of this Code, the term "structure" includes "buildings," and tents, but does not include swimming pools.

Structured Garage. (syn. Structured Parking). A Parking facility in or under a multi-story building.

Substantial Conformance. Substantial conformance shall mean physical improvements to the existing development site which constitute the greatest degree of compliance with this Ordinance that can be attained without causing or creating any of the following conditions:

1. The demolition or reconstruction of existing buildings or other significant structures (except signs); or
2. The cessation of the existing conforming use, or the preclusion of any other lawful, permitted use.
3. The creation of new non-conforming conditions.

T. **Definitions.**

Terrace. A Private Frontage Type. See Chapter 60 (Private Frontage Standards) for a description of and regulations for this private frontage.

Temporary Parking Lots. Parking lots that are not permanent and are only intended to fulfill a short-term need and will ultimately be replaced by a permanent building or structure.

Townhouse. A Building Type. See Chapter 59 (Building Type Standards) for a description of and regulations for this building type.

Transect. A geographical cross-section of a region used to reveal a sequence of environments. For human environments, this cross section can be used to identify a set of habitats that vary by their level and intensity of urban character, a continuum that ranges from rural to urban. Transects form the basis for organizing the components of the built world, including building, lot, land use, street, and all of the other physical elements of the human habitat.

Transect Zone. Transect Zones are administratively similar to the land use zones in conventional codes, except that in addition to the usual building use, density, height, and setback requirements, other elements of the intended habitat are integrated, including those of the private lot and building and the enfronting public streetscape. The elements are determined by their location on the Transect scale.

Transit Station. A lot, or structure used for the purpose of parking, loading, unloading of passengers from light-rail, train, or bus transportation. May include parking facilities and other commercial amenities to service transit.

Transit Stop. Locations designated by the transit authority in which patrons may access or exit from regularly scheduled BRT or bus service.

Transparency, Ground-floor. See Measurements.

U. **Definitions.**

No specialized terms beginning with the letter U are defined at this time.

V. **Definitions.**

No specialized terms beginning with the letter V are defined at this time.

W. **Definitions.**

No specialized terms beginning with the letter W are defined at this time.

X. **Definitions.**

No specialized terms beginning with the letter X are defined at this time.

Y. **Definitions.**

No specialized terms beginning with the letter Y are defined at this time.

Z. **Definitions.**

No specialized terms beginning with the letter Z are defined at this time.

(Ord. No. 5948, §§ 3, 4, 7-1-25)

11-64-4: DEFINITIONS OF LAND USES

A. **Definitions.**

Alcohol Beverage Sales. The retail sale of beer, wine, and/or spirits in sealed containers for on-site or off-site consumption, either as part of another retail use, or as a primary business activity.

Animal Day Care. Facilities in which owners of small animals, principally dogs and cats, may contract with the operator for the keeping of pets for short, temporary periods, usually 1 day or less, but occasionally up to a week or so while the pet owner(s) are unable to care for the animals.

ATM. An automated teller machine (computerized, self-service machine used by banking customers for financial transactions, including deposits, withdrawals and fund transfers, without face-to-face contact with financial institution personnel), located outdoors at a bank, or in another location. Does not include drive-up ATM's.

B. **Definitions.**

Bank, Financial Services. Financial institutions providing retail banking services. This classification includes only those institutions engaged in the on-site circulation of money, including credit unions, but excluding non-chartered financial institutions and check-cashing stores as a primary use. (See also, "ATM")

Boarding House. A residential dwelling for five (5) or more unrelated individuals in which the owner(s) provides lodging for compensation. A boarding house is occupied by individuals where rent is charged separately for the individual rooms or partitioned areas and may or may not be equipped with kitchen facilities and congregate dining facilities. The term includes similar congregate living arrangements but does not include community residences, hotels, motels, residential inns or bed and breakfasts.

Business Support Service. Establishments that primarily provide goods and services to other businesses on a fee or contract basis, including printing and copying, blueprint services, advertising and mailing, equipment rental and leasing, office security, custodial services, photo finishing, and model building.

C. **Definitions.**

Civic Space. See Chapter 11-62 (Civic Space Types).

Commercial Recreation Facility. Provision of participant or spectator recreation to the general public, excluding public park and recreation facilities.

Small Indoor. This classification includes small, indoor facilities less than or equal to 3,000, such as billiard parlors, bowling centers, card rooms, dance halls, poolrooms, amusement arcades, and similar activities as interpreted by the Zoning Administrator. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Medium Indoor. This classification includes small, indoor facilities greater than 3,000 sf but less than 10,000 sf, such as billiard parlors, bowling centers, card rooms, dance halls, amusement arcades, and similar activities as interpreted by the Zoning Administrator. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Large, Indoor. This classification includes large indoor facilities of 10,000 square feet or larger in building area, including ice or roller skating rinks; swimming or wave pools; miniature golf courses; archery or indoor shooting ranges, and similar activities as interpreted by the Zoning Administrator. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Outdoor. This classification includes large generally outdoor facilities such as amusement and theme parks, sports stadiums and arenas, racetracks, amphitheaters, driving ranges, golf courses (daily fee), riding stables, campgrounds, and similar activities as interpreted by the Zoning Administrator. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Community Residence. A community residence is a residential living arrangement for five to ten individuals with disabilities, excluding staff, living as a family in a single dwelling unit who are in need of the mutual support furnished by other residents of the community residence as well as the support services, if any, provided by the staff of the community residence. Residents may be self-governing or supervised by a sponsoring entity or its staff, which provides habilitative or rehabilitative services related to the residents' disabilities. A community residence seeks to emulate a biological family to foster normalization of its residents and integrate them into the surrounding community. Its primary purpose is to provide shelter in a family-like environment. Medical treatment is incidental as in any home. Supportive interrelationships between residents are an essential component. Community residence includes sober living homes and assisted living homes but does not include any other group living arrangement for unrelated individuals who are not disabled nor any shelter, rooming house, boarding house or transient occupancy.

Family Community Residence. A community residence is a relatively permanent living arrangement with no limit on the length of tenancy as determined in practice or by the rules, charter, or other governing documents of the community residence. The minimum length of tenancy is typically a year or longer.

Transitional Community Residence. A community residence that provides a relatively temporary living arrangement with a limit on length of tenancy less than a year that is measured in weeks or months, as determined either in practice or by the rules, charter, or other governing document of the community residence.

D. **Definitions.**

Day Care Centers. Establishments providing non-medical care for persons on a less than 24-hour basis other than Day Care Homes. This classification includes nursery schools, preschools, and day care facilities for children or adults, and any other day care facility licensed by the State of Arizona.

Day Care Home. A facility, the primary use of which is a residence, in which care of individuals is regularly provided for compensation for periods of less than 24 hours per day.

Small Day Care Home. Home day care for 5 or less people full-time or part-time.

Large Day Care Home. Home day care for more than 5 people full-time and part-time but no more than 10 people full-time and part-time.

Dwelling, Dwelling Unit, or Housing Unit. A room or suite of rooms, including permanent provisions for living, sleeping, eating, sanitation, and cooking, and designed or occupied as separate living quarters.

Accessory Dwelling Unit. An attached or detached self-contained living unit that is on the same lot or parcel as a single-family dwelling of greater square footage than the accessory dwelling unit, that includes its own sleeping and sanitation facilities and that may include its own kitchen.

Single-Unit Residence. A primary dwelling unit designed for occupancy by one household, and located on a separate lot from any other unit (except accessory living quarters, where permitted).

Multiple-Unit Residence. Two or more primary dwelling units on a single lot. Types of multiple residence dwellings include duplexes, garden apartments, and multi-story apartment buildings.

E. **Definitions.**

Eating and Drinking Establishments. Businesses primarily engaged in serving prepared food and/or beverages for consumption on or off the premises. Includes, but is not limited to the following sub-categories:

Bars/Clubs/Lounges. Businesses serving beverages for consumption on the premises as a primary use including on-sale service of alcohol including beer, wine, or mixed drinks, and businesses for which food sales are less than 30 percent of gross revenue.

Restaurants, Bar and Grill. Restaurants providing food and beverage services to patrons who order and are served while seated and pay after eating. Takeout service may be provided, food sales are at least 30 percent but less than 40 percent of gross sales revenue.

With Outdoor Seating Areas. Provision of outdoor dining facilities on the same property or in the adjacent public right-of-way.

F. **Definitions.**

Family. An individual or two (2) or more individuals related by blood, marriage or adoption, or a group of no more than four (4) unrelated individuals, living together as a single housekeeping unit. A family includes a couple in a domestic relationship and biological, adopted, and foster children of either partner. The term family includes unrelated persons with developmental disabilities (as defined in A.R.S. § 36-581) living together in compliance with A.R.S. § 36-582.

Farmer's Market. Periodic outdoor sales activities involving the display and sale of fresh produce and locally produced food and beverage items, including baked goods, jams, jellies, and similar food products. The display and sale of hand-crafted artisan items may be considered as an accessory activity, provided the principal activity remains the sale of the food- or produce-related items.

G. **Definitions.**

General Retail. Stores and shops intended to serve the City as convenience shopping or destination retail. The retail sale or rental of merchandise not specifically listed under another use classification. This classification includes grocery stores, neighborhood markets, department stores, clothing stores, furniture stores, pet supply stores, small hardware stores, and businesses retailing the following goods: toys, hobby materials, handcrafted items, jewelry, cameras, photographic supplies and services (including portraiture and retail photo processing), medical supplies and equipment, pharmacies, electronic equipment, records, sporting goods, kitchen utensils, hardware, appliances, antiques, art galleries, art supplies and services, paint and wallpaper, carpeting and floor covering, office supplies, bicycles, video rental, and new automotive parts and accessories (excluding vehicle service and installation). Retail sales may be combined with other services such as office machine, computer, electronics, and similar small-item repairs. This classification includes secondhand and wholesale stores, but does not include pawn shops.

On-Site Production. The assembly, fabrication, and conversion of materials into products for sale as an accessory use to a permitted General Retail activity. Such uses include, but are not limited to: artisan/craft products such as jewelry, pottery and other ceramics, small glass and metal art; tailoring of clothing; small, handmade custom furniture; musical instruments; toys; and other similar uses as interpreted by the Zoning Administrator.

H. **Definitions.**

Health/Fitness Facility. A fitness center, gymnasium, health and athletic club, which may include any of the following:

Exercise machines, weight facilities, group exercise rooms, sauna, spa or hot tub facilities, indoor tennis, handball, racquetball, and other indoor sports activities, indoor or outdoor pools.

Home Occupation. Residential premises used for the transaction of business or the supply of professional services. Home occupation shall be limited to the following: agent, architect, artist, broker, consultant, draftsman, dressmaker, engineer, interior designer, lawyer, notary public, teacher, and other similar occupations, as determined by the Zoning Administrator. The total gross area of the home occupation use shall not exceed 25 percent of the gross square footage of the residential unit. The home occupation use shall not disrupt the generally residential character of the neighborhood.

I. **Definitions.**

No land uses beginning with the letter I are defined at this time.

J. **Definitions.**

No land uses beginning with the letter J are defined at this time.

K. **Definitions**

Kennel. Facilities for keeping, boarding, training, breeding or maintaining for commercial purposes, four (4) or more dogs, cats, or other household pets not owned by the kennel owner or operator. This classification excludes pet shops and animal hospitals that provide 24-hour accommodation of animals receiving medical or grooming services.

L. **Definitions.**

Library, Museum. Public or quasi-public facilities, examples of which include: aquariums, arboretums, art galleries and exhibitions, historic buildings and exhibits, libraries, museums, and planetariums. May also include accessory retail uses such as a gift/book shop, restaurant, etc.

Lodging:

Bed & Breakfast Inn (B&B). Establishments providing not more than 5 guest rooms for lodging on a less than weekly basis typically in a converted single-residence or multi-residence dwelling, with incidental eating and drinking service provided from a single kitchen for lodgers and residents only.

Hostel. A facility for residence of under twenty-nine (29) days that provides simple dormitory or sleeping rooms and common rooms for cooking, meeting, recreational, and educational use; that is chartered or approved by the International Hostel Federation or its national or regional affiliates, or similar organizations; and that is supervised by resident house-parents or managers.

Hotel/Motel. Establishments with guest rooms or suites, with or without kitchen facilities, rented to the general public for transient lodging. These establishments may provide additional accessory services, such as conference and meeting rooms, restaurants, or bars available to guest and general public. Also includes accessory guest facilities such as swimming pools, tennis courts, indoor

athletic facilities, accessory retail uses, etc. This classification includes motels, extended-stay hotels, and tourist courts, but does not include rooming houses, boarding houses, or private residential clubs. The lengths of stays for the majority of guests at these facilities are for 30 days or less.

Inn/Lodge. A building used for temporary accommodation that includes the business of renting out no fewer than have (5) and no greater than twenty (20) guest rooms, where payment for occupancy is on a daily or weekly basis. The Inn/Lodge may include common lobby, indoor recreation, living and dining areas.

M. **Definitions.**

Medical Services:

Hospitals. Institutions providing medical and surgical care to the sick or injured, including operating facilities and beds for patients to stay overnight. These establishments may include nursing facilities, extended care facilities, physical therapy, gift shops, retail pharmacies, employee housing, temporary housing for patient families, cafeterias or restaurants, and related uses operated primarily for the benefit of patients, staff, and visitors.

Medical/Dental Clinic. Facilities with five or more licensed practitioners and/or medical specialist, other than hospitals, where patients are admitted for examinations and treatment on either a "walk-in" or "appointment" basis. Patients are treated on an outpatient basis and are not admitted for overnight treatment or observation. This classification includes emergency medical services offered exclusively on an out-patient basis, such as urgent care centers.

Medical/Dental Office. Offices where medical and dental services are provided by no more than four licensed primary practitioners (e.g. physicians, dentists, chiropractors, optometrists, and similar medical professionals). This classification also includes physical therapy, massage therapy, and counseling services related to medical conditions.

Meeting Facility, Public or Private. A facility for public or private meetings, including: Community centers, civic and private auditoriums, reception centers halls, union halls, meeting halls for clubs and other membership organizations, etc. Also includes functionally related internal facilities such as kitchens, multi-purpose rooms, and storage. Does not include conference and meeting rooms, accessory and incidental to another primary use, and which are typically used only by on-site employees and clients, and occupy less floor area on the site than the offices they support. Cinemas, performing arts theaters, indoor commercial sports assembly or other commercial entertainment and related on-site facilities such as day care centers and schools are separately defined and regulated.

N. **Definitions.**

Non-charted Financial Institution. A business, other than a state or federally chartered bank, credit union, mortgage lender or savings and loan association, that offers check cashing services and loans for payment of a percentage fee. Specifically included are check cashing businesses that charge a percentage fee for cashing a check or negotiable instrument, and payday loan businesses that make loans upon assignment of wages received. Excluded are retail uses in which a minimum of 70 percent of the floor area of the store is devoted to the display or sale of merchandise.

O. **Definitions.**

Office, Professional, administrative. Offices of firms or organizations providing professional, executive, management, administrative or design services, such as accounting, architectural, computer software design, engineering, graphic design, interior design, investment, and legal offices.

P. **Definitions.**

Parking Facility, Public or Commercial. Parking lots or structures operated by the City, or a private entity, providing parking either for free or for a fee. Does not include towing impound and storage facilities.

Pawn Shops. A business in which a principal business activity involves advancing money on the security of pledged goods or purchasing tangible personal property on the condition that it may be redeemed or repurchased by the seller for a fixed or variable price within a fixed or variable period of time.

Personal Services. Provision of recurrently needed services of a personal nature. This classification includes barber and beauty shops, seamstresses, tailors, dry cleaning agents (excluding large-scale bulk cleaning plants), shoe repair shops, self-service laundries, photocopying and photo finishing services, and travel agencies.

Place of Worship. A facility for religious worship and incidental religious education and offices, and may include private schools (Grades: Kindergarten through 12) for primary or secondary education, as defined in this section. This classification includes churches, temples, and other facilities used primarily for religious services or activities.

Public Safety Facility. Facilities providing public-safety and emergency services, including police and fire protection and emergency medical services, with incidental storage, and maintenance facilities.

Q. **Definitions.**

No land uses beginning with the letter Q are defined at this time.

R. **Definitions.**

Recycling - small collection facility. A center, occupying an area of 350 square feet or less, where the public may donate, redeem or sell recyclable materials. Includes reverse vending machines.

S. **Definitions.**

Schools, Public or Private.

K-12. Facilities for primary or secondary education, including public schools, charter schools, and private institutions having curricula of general academic education consistent with the academic requirements of the State of Arizona, including kindergarten, elementary, junior high school, and high school, including accessory facilities traditionally associated with schools, such as athletic stadia, cafeterias and libraries.

Colleges or Universities, Public or Private. A post-secondary institution of higher learning that grants associate and/or bachelor's degrees, and may also have research facilities and/or professional schools that grant master and/or doctoral degrees. This classification includes community colleges that grant associate degrees, and/or certificates of completion in business or technical fields.

Commercial Trade Schools, Public or Private. Schools established to provide teaching of clerical, managerial, or artistic skills, such as accounting, data processing, or computer repair. This classification excludes schools offering training in industrial trades, such as welding or metal fabrication and establishments providing training for activities that are not otherwise allowed in the zoning district.

Does not include pre-schools and child day care facilities (see "Day Care"). See also the definition of "Studio: Art, Dance, Martial Arts, Music, etc." for smaller-scale facilities offering specialized instruction

Skilled Nursing Facility. A health care institution other than a hospital, assisted living facility or nursing and convalescent home which provides resident beds or dwelling units, supervisory care services, personal care service, directed care services or health-related services for persons on a temporary basis. Skilled nursing facilities do not emulate a family and normalization and community integration are not among their core goals. This classification does not include community residences, assisted living homes, assisted living centers, or social service facilities.

Social Service Facility. A facility where the primary purpose is to provide either: 1) On-site food, clothing, shelter, employment or other related services, such as counseling for employment, or other services for individuals with limited ability for self care; or 2) Alcohol, drug, or substance abuse or other treatment or medical programs or services, such as detoxification, where shelter is incidental and of limited duration. The term includes homeless shelters, charity dining facilities, rescue missions, day labor hiring centers, substance abuse and detoxification center, and similar facilities, but does not include care facilities such as community residences, group foster homes, correctional transitional housing facilities, nursing and convalescent homes, or assisted living facilities.

Stealth Wireless Telecommunications Facility. Any commercial wireless communications facility that is designed to blend into the surrounding environment by means of screening, concealment, or camouflage. The antenna and supporting antenna equipment are either not readily visible beyond the property on which they are located, or, if visible, appear to be part of the existing landscape or environment rather than identifiable as a wireless communications facility.

Studio - Art, Dance, Martial Arts, Music, etc. Small-scale facilities, that provide instructional space for groups of students. Examples of these facilities include: Individual and group instruction and training in the arts; production rehearsal; photography, and the processing of photographs produced only by users of the studio facilities; martial arts training studios; gymnastics instruction, and aerobics and gymnastics studios with no other fitness facilities or equipment. Also includes production studios for individual musicians, painters, sculptors, photographers, and other artists.

T. **Definitions.**

Tattoo and Body Piercing Parlors. Establishments whose principal business activity is one (1) or more of the following: 1) using ink or other substances that result in the permanent coloration of the skin through the use of needles or other instruments designed to contact or puncture the skin; or 2) creation of an opening in the body of a person for the purpose of inserting jewelry or other decoration. Exception: Piercing earlobes as an accessory or subordinate activity when done at a shop or store selling jewelry as primary activity.

Theater, Cinema or Performing Arts. An indoor facility for group entertainment, other than sporting events. Examples of these facilities include: Civic theaters, facilities for "live" theater and concerts, and movie theaters.

Temporary Event Parking. Parking areas intended for overflow parking for stadiums, performing arts centers, competitive aquatic facilities, and similar public event facilities and located within 600 feet of the public facility being served.

U. **Definitions.**

No land uses beginning with the letter U are defined at this time.

V. **Definitions.**

Veterinary Services. Medical care for small and large animals on a commercial basis. This classification allows 24-hour accommodation of animals receiving medical or grooming services but does not include kennels. This classification includes animal hospitals and clinics providing services such as medical examinations, diagnosis, and procedures; dispensing of medications for animals; providing surgical procedures, and space for supervised recuperation from medical and surgical procedures.

W. **Definitions.**

No land uses beginning with the letter W are defined at this time.

X. **Definitions.**

No land uses beginning with the letter X are defined at this time.

Y. **Definitions.**

No land uses beginning with the letter Y are defined at this time.

Z. **Definitions.**

No land uses beginning with the letter Z are defined at this time.

(Ord. No. 5632, § 4, 7-8-21; Ord. No. 5948, § 5, 7-1-25)

[The next page is T11:701]

ARTICLE 7
ADMINISTRATION

CHAPTER 66 PLANNING AGENCY*

11-66-1: PURPOSE

This Chapter identifies the bodies, officials, and administrators with designated responsibilities under various parts and chapters of the Zoning Ordinance. Subsequent chapters of this article provide detailed information regarding various procedures, applications, and permits including zoning, and General Plan text and map amendments, fees, and enforcement. When carrying out their assigned duties and responsibilities, all bodies, administrators, and officials shall interpret and apply the provisions of this Ordinance as minimum requirements adopted to implement the policies and achieve the objectives of the General Plan and Zoning Ordinance.

11-66-2: PLANNING AND ZONING BOARD

A. **Establishment and Organization of the Planning and Zoning Board.** The Planning and Zoning Board is established by Section 406 of the Mesa City Charter and Section 2-1-1 of the Mesa City Code. The Board's organization and duties are described in Title 2 - Boards and Commissions, Chapter 1, Planning and Zoning Board, of the Mesa City Code.

1. ***Board Membership.*** The Planning and Zoning Board shall be composed of seven (7) regular members and three (3) alternates appointed by the City Council.

2. ***Qualifications of Members.***

a. *Regular Board Members.* The composition of the regular Board members shall include:

i. Two (2) design professionals (e.g., architect, landscape architect, engineer, urban planner, interior designer or similar design-related profession);

ii. One (1) contractor or developer; and

iii. Four (4) citizens selected at-large from the community.

b. *Alternate Board Members.* At least one (1) alternate to the Planning and Zoning Board shall be a design professional (e.g., architect, landscape architect, engineer, urban planner, interior designer or similar design-related profession).

B. **Meetings.**

1. Meetings of the Board shall be open to the public and the minutes of its proceedings, showing the votes of each member and records of its examinations and other official actions shall be kept and filed in the Planning Division Office as a public record. The Secretary of the Board shall be the Planning Director, or a member of the Planning Division staff as designated by the Planning Director.

2. At least four (4) members shall be present to conduct a meeting. No matter shall be considered unless there are at least four (4) members present who are eligible and qualified to vote on the matter.

***Editor's note—**Previously, Chapter 66 derived from Ord. No. 5472, 11-6-18.

3. The concurring vote of a majority of the Board members present shall be necessary to pass a motion.

4. A chair and vice-chair shall be elected annually from among its regular members.

5. The Chair, or in the Chair's absence the Vice Chair, shall lead the meeting, maintain order, and be the final decision maker for all meeting management questions.

C. **Authority and Duties of the Planning and Zoning Board.** In addition to the powers and duties established in Title 2 - Boards and Commissions, Planning and Zoning Board of the Mesa City Code, the Planning and Zoning Board shall:

1. ***Hear and Make Recommendations.*** The Planning and Zoning Board shall hear and make recommendations to City Council on the following:

a. *Zoning Map, Zoning Ordinance, and General Plan Amendments.* Amendments to the Zoning Map, Zoning Ordinance, or amendments to the General Plan.

b. *Council Use Permits.* Requests for a Council Use Permit.

c. *PC District Matters.* Matters specified in an adopted Planned Community Plan for a PC District for action by City Council or amendments to a Planned Community Plan.

d. *Joint Public/Private Projects.* Joint public/private projects in designated redevelopment areas.

e. *Redevelopment Plans and Adopted Plans.* Proposed redevelopment plans or amendments to adopted plans.

f. *Redevelopment Actions.* Proposed redevelopment actions to the Council which are consistent with adopted plans and stated redevelopment goals.

g. *Design of Buildings, Structures, Landscaping, and Open Space.* Issues concerning exterior design of buildings, structures, landscaping, and open space.

h. *Directed by City Council.* Other matters as directed by the City Council.

2. ***Hear and Take Action On.*** The Planning and Zoning Board shall hear and take action on the following:

a. *Special Use Permits.* Special Use Permits (SUP) when requested in conjunction with another request requiring action or recommendation by the Planning and Zoning Board, as authorized by this Subsection C.

i. Any Planning and Zoning Board approval of an SUP that requires the associated request to be approved by the City Council shall be conditioned upon Council approval of the associated request.

ii. In the event the City Council denies the associated request, the SUP shall also be considered denied.

b. *Development Plan Review.* Development Plan Reviews as specified in Chapter 69: Development Plan Review.

c. *PC District Matters.* Matters specified in an adopted Community Plan for a PC District.

d. *Planning Director Appeals.* Appeals of the Planning Director, or designee's, decision on Development Plan Review requests.

e. *Conditioned Matters.* Matters specified by conditions of approval or stipulations on the property, whether adopted by ordinance, resolution, or otherwise; requiring Planning and Zoning Board approval.

f. *Board Business.* Rules for the conduct of Planning and Zoning Board business.

(Ord. No. 5949, § 4, 7-1-25; Ord. No. 5997, § 2, 1-26-26)

11-66-3: BOARD OF ADJUSTMENT

A. **Establishment and Organization of the Board of Adjustment.** A Board of Adjustment is hereby established pursuant to A.R.S. § 9-462.06 and Section 409 of the City Charter. The Board shall elect a chair and vice-chair, annually, who shall have power to administer oaths and to take evidence.

B. **Meetings.**

1. Meetings of the Board shall be open to the public and the minutes of its proceedings, showing the votes of each member and records of its examinations and other official actions, shall be kept and filed in the Planning Division as a public record. The Secretary of the Board shall be the Zoning Administrator, or a member of the Planning Division staff as designated by the Planning Director.

2. No Variance, Special Use Permit, Substantial Conformance Improvement Permit, Development Incentive Permit, or appeal of an interpretation of the Zoning Ordinance or other provision of the City Code shall be acted upon until a public hearing has been held.

3. Not less than 4 members of the Board shall be present to conduct a hearing. No matter shall be considered unless there are at least 4 members present who are eligible and qualified to vote on the matter.

4. The concurring vote of 4 members of the Board shall be necessary to reverse any order or decision of the Zoning Administrator or to decide in favor of the applicant on any matter upon which it is required to pass or to effect any variation from the terms and conditions of this Zoning Ordinance or of the City Code within the jurisdiction of the Board as authorized by the City Council.

5. The Chair, or in the Chair's absence the Vice Chair, shall lead the meeting, maintain order, and be the final decision maker for all meeting management questions.

C. **Authority and Duties of the Board of Adjustment.**

1. The Board of Adjustment shall:

a. Hear and decide appeals in which it is alleged there is an error in an order, requirement, or decision made by the Zoning Administrator in the enforcement of the provisions of this Ordinance or other sections of the City Code within the jurisdiction of the Zoning Administrator.

b. Hear and decide appeals from the action of the Zoning Administrator, acting in either an administrative role or the Hearing Officer role, in the interpretation of the provisions of this ordinance.

c. Hear and decide appeals from the action of the Zoning Administrator as the Hearing Officer in the granting or denying of variances, the issuance of Special Use Permits, Substantial Conformance Improvement Permits (SCIPs) or Development Incentive Permits (DIPs).

d. Hear and decide the issuance of Special Use Permits (SUPs), Substantial Conformance Improvement Permits (SCIPs) or Development Incentive Permits (DIPs), required by the City Code.

e. Authorize variances from the terms of this zoning ordinance pursuant to the provisions of A.R.S. § 9-462.06.

f. Hear and decide all matters referred to the Board by the Zoning Administrator.

g. Take any and all actions referred to the Board by the City Council, or as specified by A.R.S. § 9-462.06; or Section 409 of the City Charter.

2. The Board shall prescribe in connection with any Special Use Permit, Development Incentive Permit, Substantial Conformance Improvement Permit, interpretation, or variance, such conditions as the Board may deem necessary in order to fully carry out the provisions and intent of this Zoning Ordinance.

3. The Board of Adjustment shall not make any changes in the uses permitted in any zoning classification or zoning district, or make any changes in the terms of the Zoning Ordinance; provided that the restriction in this paragraph shall not affect the authority to grant variances.

4. The Board of Adjustment may adopt rules for the conduct of its business.

11-66-4: HISTORIC PRESERVATION BOARD

A. **Establishment and Organization of the Historic Preservation Board.** Historic Preservation Board is established and organized as established in Title 2 - Boards and Commissions, in the Mesa City Code. The duties of the Historic Preservation Board shall be in conformance with those established in Title 2 - Boards and Commissions, in the Mesa City Code.

B. **Meetings.**

1. Meetings of the Board are open to the public and the minutes of its proceedings are kept and filed in the office of the Historic Preservation Officer as a public record. The Secretary of the Board is the Historic Preservation Officer or his/her designee.

2. At least 4 members of the Board shall be present to conduct a meeting. No matter shall be considered unless there are at least 4 members present who are eligible and qualified to vote on the matter and an affirmative vote of a majority of the quorum present and voting shall be required to pass a motion.

3. The Board shall meet at least 4 times per calendar year.

4. The Chair, or in the Chair's absence the Vice Chair, shall lead the meeting, maintain order, and be the final decision maker for all meeting management questions.

C. **Authority and Duties of the Historic Preservation Board.** The Historic Preservation Board shall have the powers and duties described in Title 2 - Boards and Commissions, in the Mesa City Code.

1. Hear and/or make recommendations on other matters as directed by the City Council.

2. The Board may adopt rules for the conduct of its business.

11-66-5: PLANNING HEARING OFFICER

A. **Establishment of the Planning Hearing Officer.** The Planning Hearing Officer is hereby established in the Mesa Planning Division. The Planning Hearing Officer shall be appointed by the City Manager on the basis of training and experience regarding the conduct of hearings, knowledge of the General Plan and knowledge of the Zoning Ordinance.

B. **Authority and Duties of the Planning Hearing Officer.** When referred by the Planning Director, the Planning Hearing Officer shall:

1. Recommend action to the City Council on requests for amendments to the Zoning Map, on requests for Council Use Permit, Subdivision Plat Approvals, Applications for Development Plan Review and Development Plan Modifications, when such requests are determined by the Planning Director as appropriate to be heard by the Planning Hearing Officer pursuant to the Planning Hearing Officer guidelines.

2. Hear and take action on requests for Development Plan Reviews and Development Plan Modifications when not otherwise conditioned for review and approval by City Council, or the request does not involve the need to amend a condition of approval as stated in the adopting ordinance.

3. Consider and decide preliminary plats as part of the platting procedures and requirements described in the Subdivision Regulations, Title 9, Chapter 6, of the Mesa City Code.

4. Hear, make recommendations and/or decide matters relating to a PC District, as specified in Chapter 11 of this Ordinance, and the applicable Community Plan as adopted by City Council and including all approved amendments to the Community Plan.

5. Hear and make recommendations on other matters as directed by the City Manager or City Council.

(Ord. No. 5996, § 4, 3-9-26)

11-66-6: DESIGN REVIEW BOARD

A. **Establishment and Organization of the Design Review Board.** The Design Review Board is established by Title 2 - Boards and Commissions, Design Review Board of the Mesa City Code.

1. ***Qualification of Members.*** The composition of the Board shall include:

a. Two (2) licensed architects;

b. Two (2) other design professionals (e.g., architect, landscape architect, engineer, urban planner, interior designer or similar design-related profession);

c. One (1) contractor or developer; and

d. Two (2) citizens selected at-large from the community.

2. ***Rules of Conduct.*** The Board shall adopt rules for the conduct of its business. The Board may, in such rules, delegate certain responsibilities and/or tasks to be performed by a subcommittee or subcommittees of the Board.

B. **Meetings.**

1. Meetings of the Board are open to the public and the minutes of its proceedings are kept and filed in the Planning Division office as a public record. The Secretary of the Board is the Planning Director or a member of the Planning Division staff designated by the Planning Director.

2. At least four (4) members of the Board shall be present to conduct a meeting and an affirmative vote of a majority of the quorum present and voting shall be required to pass a motion.

3. The concurring vote of four (4) of the Board members present is necessary to pass a motion to approve an appeal of a decision of the Planning Director.

4. The Chair, or in the Chair's absence the Vice Chair, shall lead the meeting, maintain order, and be the final decision maker for all meeting management questions.

5. The Board shall meet as needed.

C. **Authority and Duties of the Design Review Board.** In addition to the powers and duties established in Title 2 - Boards and Commissions, Design Review Board of the Mesa City Code, the Design Review Board shall:

1. ***Hear and Make Recommendations.*** The Design Review Board shall hear and make recommendations on the following:

a. *Alternative Compliance.* Requests for Alternative Compliance to the Site Planning and Design Standards of Chapters 5, 6, 7, and 8 of this Ordinance.

b. *Municipal Projects.* Municipal projects of the City of Mesa, including all fire stations, libraries, parking lots with over 50 spaces, and any municipal building or project of the City of Mesa that meets the applicability for Development Plan Review in Chapter 69 of this Ordinance.

c. *PC District Matters.* Matters specified in an adopted Planned Community Plan for a PC District.

d. *Planning Director Referral.* Projects referred by the Planning Director.

e. *Directed by City Council.* Other matters as directed by the City Council.

2. ***Hear and Take Action On.*** The Design Review Board shall hear and take action on the following:

a. *Planning Director Appeals.* Appeals of the Planning Director, or designee's, decision on Alternative Compliance requests.

b. *Conditioned Matters.* Matters specified by conditions of approval or stipulations on the property, whether adopted by ordinance, resolution, or otherwise; requiring Design Review Board approval.

(Ord. No. 5997, § 3, 1-26-26)

11-66-7: ZONING ADMINISTRATOR

A. **Establishment of the Office of the Zoning Administrator.** The office of Zoning Administrator is hereby established in the Mesa Development Services Department. The Zoning Administrator shall be designated by the Development Services Department Manager and serves under the direction of the Planning Director.

B. **Authority and Duties of the Zoning Administrator.** The Zoning Administrator is the city official established pursuant to A.R.S. § 9-462.05 and charged with responsibility for enforcement of the Zoning Ordinance. In addition, the Zoning Administrator acts in either an administrative role or as a Hearing Officer and shall have the following duties and authorities:

1. Zoning Administrator in Administrative Role:

   a. Accomplish all administrative actions required by this Ordinance, including the giving of notice, scheduling of hearings, preparation of reports, and receiving and processing appeals.

   b. Interpret the Zoning Ordinance to the public, City Departments and other branches of government, and subject to general and specific policies established by the City Council. The Zoning Administrator may determine which requests for interpretations may be decided through an administrative process or reviewed and decided through a public hearing process as described in Item 2, below.

   c. Undertake preliminary discussions with, and provide advice to, applicants requesting assistance.

   d. Serve as Secretary to the Board of Adjustment, or delegate such duties to qualified parties.

   e. Make recommendations on changes and improvements in Ordinance regulations and procedures.

   f. Determine the location of any district boundary shown on the Zoning Map adopted as part of this ordinance when such location is in dispute.

   g. Review, consider and decide exceptions and alternative plans or alternative standards as authorized by this ordinance, based strictly upon the limitations and criteria specified for that exception, alternative standard or alternative plan.

   h. Review, consider and decide Zoning Permits, Administrative Use Permits, and Temporary Use Permits as authorized by this ordinance, based strictly upon the limitations and criteria specified for Zoning Permits, Administrative Use Permits, and Temporary Use Permits.

   i. Interpret any provisions of this ordinance.

   j. Make decisions on other sections of the City Code which are within the jurisdiction of the Zoning Administrator.

   k. Refer any matter within the Zoning Administrator's authority to the Board of Adjustment.

2. As a Hearing Officer conduct public hearings to:

   a. Interpret any provisions of this Ordinance when the Zoning Administrator, acting in administrative role, refers an interpretation to the Hearing Officer.

b. Hear and decide Special Use Permits, Development Incentive Permits, and Substantial Conformance Improvement Permits as required by the City Code.

c. Authorize variances from the terms of this Zoning Ordinance pursuant to the provisions of A.R.S. § 9-462.06.

d. Prescribe in connection with any Special Use Permit, Development Incentive Permit, Substantial Conformance Improvement Permit, or any Variance such conditions as deemed necessary in order to fully carry out the provisions and intent of this Ordinance.

e. Refer any matter within the Zoning Administrator Hearing Officer's authority to the Board of Adjustment.

C. **Limits to Authority and Duties.** The Zoning Administrator shall not make any changes in the uses permitted in any zoning classification or zoning district, or make any change in the terms of the Zoning Ordinance; provided that the restriction in this paragraph shall not affect the authority to grant variances.

11-66-8: DOWNTOWN DEVELOPMENT COMMITTEE

A. **The Downtown Development Committee.** The Downtown Development Committee has been decommissioned by deletion of Section 2-20-1 of the Mesa City Code pursuant to Ordinance 4960, dated December 7, 2009.

B. **Modifications.** All decided applications for which a condition of approval requires a future revision or modification of that decision to be reviewed by the Downtown Development Committee for either recommendation or decision shall instead be reviewed by the Planning & Zoning Board or Design Review Board, as determined by the Planning Director. The determination shall be based on the type of modification or revision requested.

CHAPTER 67 COMMON PROCEDURES*

11-67-1: PURPOSE

This chapter establishes procedures that are common to the application and processing of all permits and approvals provided for in the Zoning Ordinance, unless superseded by specific requirement of this Ordinance or State law.

11-67-2: APPLICATIONS, SUPPORTING MATERIALS AND FEES

A. **Applicants.** The following persons may file an application:

1. The owner of the subject property; or

2. An agent representing the owner, duly authorized to do so in writing by the owner.

B. **Applications.** Applications required by this ordinance shall be filed with the office of the Planning Division and include all of the following:

1. An application, provided by the City.

***Editor's note**—Previously, Chapter 67 derived from Ord. No. 5472, 11-6-18.

2. The required documents and information in a form acceptable to the Planning Division.

3. Additional materials, as required. The Zoning Administrator may require the submission of supporting materials as part of the application, including but not limited to, statements, photographs, plans, drawings, renderings, models, material samples and other items necessary to describe existing conditions and the proposed project.

4. The required fee.

C. **Pre-application or Pre-submittal Conference Required.**

1. A pre-application or pre-submittal conference is required before filing the following land use applications:

a. Adaptive Reuse Permit;

b. Affidavit of change/correction;

c. Annexation;

d. Council Use Permit;

e. Development Incentive Permit;

f. Development Plan Review;

g. General Plan Amendment;

h. Rezone;

i. Special Use Permit;

j. Substantial Conformance Improvement Permit; or

k. Variance.

2. This preliminary description shall include, at minimum, a site plan and project narrative; both of sufficient scope and detail so as to allow a basic review of location, land area, land use, land use intensity, traffic generation and adjacent streets, stormwater drainage, utility service, and previous case history.

3. The Planning Director or a Planning Division staff member designated by the Planning Director shall return comments to the applicant based on this preliminary review in writing, and orally at a subsequent conference between the applicant, Planning Division staff, and staff members of other city departments submitting comments.

4. The need for the conference and fee may be waived by the Planning Director if it is determined sufficient information already exists regarding the request and case site.

D. **Payment, Waiver and Refund of Application Fees.**

1. ***Schedule of Fees.*** The City shall establish fees for all application types. Payment of the fee is required in order for an application to be complete. No application shall be processed without payment of the applicable fee unless a fee waiver or deferral has been approved by the Development Services Department Director.

2. ***Fee Waiver or Deferral.*** No fee shall be required when the applicant is the City, or if it is waived or deferred by the Development Services Department Director based upon a finding of unique financial hardship or in unique circumstances where it would be unreasonable to impose the normal fee, or to impose such fee at the usual time.

3. ***Refund of Fees.*** Once an application is filed with the Planning Division, no part of any application fee shall be refundable, unless the Development Services Department Director determines such a refund is justified on the basis of unique financial hardship and factual circumstances. No refund shall be made for any application that has been denied.

(Ord. No. 5996, § 4, 3-9-26)

11-67-3: CITIZEN PARTICIPATION

A. **Citizen Participation Plan.** Every application that requires a public hearing in accordance with this Chapter shall be accompanied by a Citizen Participation Plan designed to provide effective, early and continuous public participation that includes at least the following:

1. A contact list or method for notifying adjacent landowners and other potentially affected citizens of the proposed action, that shall include, but is not limited to:

   a. Property owners within the maximum public hearing notice area required for that type of application,

   b. Residents, registered neighborhoods, and homeowners associations that may be impacted as a result of the application, and other neighborhood entities identified by the City,

   c. Interested parties which have requested that they be placed on a contact list for this application, and

   d. Interested parties that have been identified by the City.

2. A general description of how interested persons and those on the contact list may obtain information and updates on the project, such as newsletters, mailings, and meetings.

3. A general description of how interested persons, including those on the contact list, will be provided an opportunity to discuss the proposal with the applicant, such as neighborhood meetings, phone contacts, or door-to-door visits.

4. The applicant's proposed schedule for implementation of the Citizen Participation Plan.

5. How the applicant plans to keep the City informed on the status of the implementation of its Citizen Participation Plan, such as providing staff copies of notices prior to meetings with citizens, and contact lists used to notify interested parties.

B. **Citizen Participation Report.** The requirements in this section apply in addition to any notice provisions required elsewhere in this Zoning Ordinance, or by Arizona Revised Statutes (ARS).

1. Applicants shall provide a written Citizen Participation Report on the results of implementing their Citizen Participation Plan at least 10 City business days prior to the first scheduled public hearing. The Citizen Participation Report shall include the following information:

   a. A summary of neighborhood meetings, if held, including when and where they were held, number in attendance (copies of sign-in sheets), and results achieved at the meeting(s);

b. A summary of citizen concerns, issues and problems expressed during the citizen participation process, and how these have been addressed through changes or stipulations to the project; and

c. Copies of comment letters, petitions, and other pertinent information received from residents and other interested parties.

2. City of Mesa staff may apply the Citizen Participation Guidelines, Resolution 7283 (adopted November 2, 1998) as needed to meet the requirements of this section.

3. Failure to comply with the citizen participation provisions of this section, or a determination that such efforts were insufficient to provide adequate opportunities for citizen participation, may result in postponement, rescheduling or denial of an application.

11-67-4: REVIEW OF APPLICATIONS

A. **Determination of Administratively Complete Applications.** The Planning Director, or a member of the Planning Division staff designated by the Planning Director, shall determine whether an application is administratively complete.

1. ***Administrative Completeness Review.*** Except for residential zoning applications discussed in Section 11-67-(4)(A)(2) below, a determination of completeness will occur as follows:

a. *Administratively Incomplete Application.* If an application is incomplete, notification to the applicant shall be sent listing any additional forms, information, and/or fees that are necessary to complete the application.

b. *Administratively Complete Application.* When an application is determined to be complete, a notation on the application shall make a record of that date. If required, a public hearing shall be scheduled and the applicant shall be notified of the date and time.

2. ***Residential Zoning Application Administrative Completeness Review.*** This section only applies to applications that meet the definition of a residential zoning application in Chapter 87 of the zoning ordinance.

a. *Administrative Completeness Review Time Frame.* For each residential zoning application, the City shall determine if the application is administratively complete within 30 calendar days after receiving the application.

b. *Administratively Incomplete Applications.* If it is determined the application is administratively incomplete:

i. The City shall provide the applicant with a written notice that includes a comprehensive list of the specific deficiencies within 30 calendar days of receiving the application.

ii. Upon issuance of the written notice, the administrative completeness review time frame and overall time frame, as defined in A.R.S. § 41-1072, are suspended from the date the notice is issued until the City receives the resubmitted application.

iii. The City shall have 15 calendar days to determine if the resubmitted application and determine whether every deficiency has been resolved for administrative completeness.

B. **Approval or Denial of Residential Zoning Applications.** After determining a residential zoning application is complete:

1. The decision-making body shall approve or deny the application within 180 calendar days of the application being determined administratively complete.

2. The City may extend the time frame to approve or deny the application beyond 180 calendar days as follows:

a. For extenuating circumstances the planning director may grant a one-time extension of no more than 30 calendar days; or

b. At the request of the applicant the Planning Director may grant extensions in 30 calendar day increments.

C. **Exceptions.** The provisions within this section related to residential zoning applications do not apply to:

1. Land that is designated as a district of historical significance pursuant to A.R.S. 9-462.01(A)(10);

2. An area that is designated as historic on the National Register of Historic Places; or

3. A lot or parcel that is currently zoned with a planned area development (PAD) overlay.

D. **Annexation Procedures.** Annexations shall be considered by City Council in accordance with the procedures specified in Chapter 78.

E. **Additional Fee for Planning Hearing Officer.** When an application is determined by the Planning Director as appropriate to be heard by the Planning Hearing Officer pursuant to the Planning Hearing Officer guidelines, the applicant may elect to have the matter placed before the Planning Hearing Officer by submitting the additional fee as specified in a schedule adopted by resolution by the City Council.

F. **Conditions Requiring Mandatory Supermajority Vote by City Council.** In the event the City Council is asked to decide upon any proposed Rezoning Amendment, Council Use Permit, Development Unit Plan, Development Plan Review or Development Plan Modification, amendments to such proposals, or appeals of any such proposals, and upon evidence that all conditions described in subsections 1. and 2. below, have been satisfied, then the proposal shall become effective only by favorable vote of three-fourths (¾) of all members of the City Council. If any members of the City Council are unable to vote on such a question because of a conflict of interest, then the required number of votes for passage of the question shall be three-fourths (¾) of the remaining membership of the City Council, provided that such required number of votes shall in no event be less than a majority of the full membership of the Council. For the purposes of this section, the required number of votes shall be rounded to the nearest whole number.

1. A written protest, signed by the property owners opposing the proposal is filed by the owners of 20% or more of the area and number of lots, tracts, and condominium units within the zoning area, as defined in A.R.S. § 9-462.04.

2. Signed written protests must be filed in the office of the City Clerk by no later than 12:00 noon the Monday of the week prior to the City Council meeting at which the proposal is scheduled to be considered, unless City offices are closed on that Monday because of a local, State or national holiday, then the protest must be filed by 12:00 noon the next business day.

G. **Inactive and Expired Applications.**

1. ***Inactive Application.*** An application shall be deemed inactive if the City does not receive the required resubmittal within 12 months of review comments being provided to the applicant. the required resubmittal may include any or all of the following:

   a. Written responses to each review comment from the applicant or the applicant's authorized representative;

   b. Revised plans, drawings, reports, or documents; and

   c. Payment of required fees.

2. ***Courtesy Notice of Inactivity.*** If a resubmittal has not been received within nine (9) months of City review comments being issued, the City may send a written notice to the applicant at the last address or email on file stating that the application will be closed if the required action is not taken within three (3) months of the notice date.

3. ***Expired and Withdrawn Application.*** If the required resubmittal is not received within 12 months after the City issues review comments requesting revisions, the application shall be deemed expired and withdrawn, and processing shall cease.

4. ***New Application Required.*** Any further reviews will require a new application, payment of applicable fees, and compliance with all ordinances, standards, and fees in effect at the time of refiling.

(Ord. No. 5405, 8-28-17; Ord. No. 5905, § 1, 12-9-24; Ord. No. 5996, § 4, 3-9-26)

11-67-5: PUBLIC NOTICE

A. **Notice of Public Hearing.**

1. ***City Council, Planning and Zoning Board, and Planning Hearing Officer.*** Any applications to the City Council, Planning and Zoning Board or the Planning Hearing Officer shall:

   a. Provide the same notice of Public Hearing as required by A.R.S. § 9-462.04; and

   b. Post the subject property no less than 15 days prior to the first scheduled hearing; and

   c. Provide additional notice by first class mail a minimum of 15-days prior to the first scheduled hearing date to all owners of property located within 500-feet of the exterior boundary of the property that is the subject of the application, based on the last assessment.

2. ***Board of Adjustment and Zoning Administrator.*** Any applications to the Board of Adjustment or Zoning Administrator acting as the Hearing Officer shall provide:

   a. The same notice of Public Hearing as required by A.R.S. § 9-462.06(F); and

b. Additional notice by first class mail a minimum of 15 days prior to the scheduled hearing date to all owners of property located within the following distances of the exterior boundary of the property that is the subject of the application, based on the last assessment:

i. For any single residence, duplex, or single lot RV or manufactured home: 150 feet.

ii. For any other request: 500 feet.

3. ***Design Review Board.*** Any application to the Design Review Board shall send notice by first class mail a minimum of 15 days prior to the scheduled meeting or work session date to all owners of property located within 500 feet of the exterior boundary of the property that is the subject of the application, based on the last assessment.

B. **Administrative Development Plan.** Each initial development plan or minor development plan modification that is eligible for administrative approval shall:

1. Provide notice by first class mail, to all owners of property located within 500 feet of the exterior boundary of the property that is the subject of the application, based on the last assessment. Notice must be within 15 days after the date the planning division determines the application is complete (i.e., eligible for administrative approval).

2. The public has 10 days from the postmark on the notice to submit comments on the proposed request to the Planning Division.

C. **Contents of Public Notice.** Any public notice shall include the following information:

1. A general description of the proposed project or action and the location of the real property, if any, that is the subject of the application;

2. The date, time, location, and purpose of the public hearing or the date of action when no public hearing is required;

3. The identity of the hearing body or officer;

4. The names of the applicant or the owner of the property that is the subject of the application; and

5. In addition to the items listed above, mailed notice shall include the following:

a. A copy of the proposed plans;

b. A statement that any interested person or authorized agent may appear, and be heard at a public hearing, if a public hearing is required; and

c. A statement describing how to submit written comments.

6. It shall be the responsibility of the applicant to maintain the posting once erected until after the last hearing.

D. Notwithstanding the notice requirements of this section, the failure of any person or entity to receive notice shall not constitute grounds for any court to invalidate the actions of the City of Mesa for which the notice was given.

(Ord. No. 5591, § 1, 12-1-20; Ord. No. 5996, § 3, 3-9-26)

11-67-6: CONDUCT OF PUBLIC HEARINGS

A public hearing held pursuant to this Ordinance shall comply with the following procedures:

A. **Public Hearing Testimony.** Any person may appear at a public hearing and submit oral or written evidence, either individually or as a representative of a person or an organization. Each person who appears at a public hearing shall be identified, state their name and address, and, if appearing on behalf of a person or organization, state the name and mailing address of the person or organization being represented. The presiding officer may establish time limits for individual testimony and may require that individuals with shared concerns select one or more spokespersons to present testimony on behalf of those individuals.

B. **Continuance of Public Hearing.** The body conducting the public hearing may, by motion, continue the public hearing to a fixed date, time and place or may continue the item to an undetermined date and provide notice of the continued hearing as set forth in Section 11-67-5.

C. **Investigations.** The body conducting the hearing may cause such investigations to be made as it deems necessary and in the public interest on any matter to be heard by it. Such investigation may be made by a committee of one or more members of the body conducting the hearing or by members of its staff or its agents or employees. The facts established by such investigation shall be submitted to the body conducting the hearing either in writing, to be filed with the records of the matter, or in testimony before the body, and may be considered by the body in making its decision.

D. **Record of Hearing.** The body conducting the hearing shall cause a written summary of all pertinent testimony heard at such public hearing, together with a record of the names and addresses of all persons testifying, to be prepared and filed with the papers relating to such matter.

11-67-7: RECORDS OF ACTIONS TAKEN

Unless otherwise specified in this Ordinance, the minutes of the meeting where a decision is made shall be the official record of any action taken or decision made to approve, approve with conditions, modify, revoke or deny any discretionary permit or discretionary approval (e.g., Development Plan Review, Certificate of Appropriateness) under this Ordinance.

A. **Date of Action.** The responsible body shall decide to approve, modify, revoke, or deny any discretionary permit or discretionary approval following the close of the public hearing, or if no public hearing is required, at a public meeting within the time period required by this Ordinance. The date of action shall be the date of the meeting where a motion or other action is approved.

B. **Notice of Action.** After the Zoning Administrator or other responsible body takes any action to approve, modify, or deny an application that is subject to appeal under the terms of this Ordinance, Notice of Action shall be sent to the Applicant. The Notice shall describe the action taken, including any applicable conditions, and shall list any required findings that were the basis for the decision. The Notice shall be mailed within seven calendar days from the date of taking the action, to the Applicant at the address (including electronic addresses) stated in the application and to any other person or entity who has filed a written request of such notification.

C. **Findings.** Findings shall be required for any action of the Zoning Administrator acting as a Hearing Officer and for the Board of Adjustment, as required by A.R.S. § 9-462.06 or this Ordinance, and shall be

based upon personal observations, consideration of the application, plans, testimony, reports, and other materials that constitute the administrative record and shall be stated in writing in the resolution by or meeting minutes of the decision-making authority. The findings shall be set forth in the notice that the City issues following an appealable decision by the Zoning Administrator or other responsible body and in the minutes of the meeting or other record where the decision making authority documents its decision.

(Ord. No. 5996, § 3, 3-9-26)

11-67-8: EFFECTIVE DATES

A. **Approvals Subject to Appeal.** A final decision on an application for any discretionary approval subject to appeal (e.g., a use permit, variance, or development plan approval) shall become effective after the expiration of the appeal period following the date of action, unless an appeal is filed. In accordance with paragraph B, below, no building permit or business license shall be issued until the day following the expiration of the appeal period, unless the applicant signs a waiver explaining that they understand and accept the risk of proceeding before the appeal period ends.

B. **Exercising Approval at Risk.** An approved variance or Special Use Permit or an interpretation favorable to the applicant may be exercised at the applicant's sole risk, and a construction permit (if required) may be issued subsequent to the approval by the Zoning Administrator or Board of Adjustment. However, if an appeal of the decision is filed in accordance with the provisions of this Ordinance that reverses in whole or in part or modifies the decision and that causes any construction or use commenced as a result of exercising the decision to be in conflict with the appellate body's decision, then such construction permit may be revoked in accordance with the appellate body's decision and any such construction or use may constitute a violation of this Ordinance and may be subject to removal or cessation by the applicant, property owner, or his agent.

(Ord. No. 5996, § 3, 3-9-26)

11-67-9: EXPIRATIONS AND EXTENSIONS

A. **Expirations.**

1. The Planning and Zoning Board, Planning Director, Hearing Officer, Zoning Administrator acting as a Hearing Officer, Board of Adjustment, or City Council, in the granting of any Conditional Use Permit, (also referred to as discretionary approval), or Conditional Use Permit modification, for which the body has authority, may specify the time within which the proposed use must be undertaken and actively and continuously pursued. The approving authority may impose upon the Conditional Use Permit a term of such period of time as is found to be consistent with the purposes of the use and necessary to safeguard the public safety, health, and welfare. If no time period is otherwise specified, any Conditional Use Permit granted under this Zoning Ordinance may be declared expired and of no further force and effect if it is not exercised or extended within five (5) years of its issuance. The Conditional Use Permit is considered exercised by completion of one (1) of the following:

   a. A valid City business license, if required, has been issued, and the permitted use has commenced on the property.

   b. A building permit for the construction of a building, structure, or sign is issued.

2. Approved Variances may be declared expired and of no further force and effect if it is not exercised or extended within five (5) years of the date of approval. The Variance is considered exercised when a valid city building permit, if required, is issued.

3. An approved Development Plan, Initial Site Plan, Major Site Plan Modification, or Design Review expires and is no longer in effect if it is not exercised or extended within five (5) years of the date of approval. A Minor Development Plan Modification, Minor Site Plan Modification is effective for a period of five (5) years from the date the Initial Development Plan, or Initial Site Plan associated with the Minor Development Plan Modification or Minor Site Plan Modification was approved. An approved Initial Development Plan, Initial Site Plan, Site Plan Modification or Design Review is considered exercised by completion of one (1) of the following:

   a. A valid city business license, if required, has been issued, and the permitted use has commenced on the property.

   b. A valid city building permit, if required, has been issued.

B. **Extensions.** The original approving body may approve a one (1) year extension of any permit or approval granted under this Ordinance, provided that a complete application and the required fee are submitted no later than 90 days after the expiration date.

(Ord. No. 5591, § 2, 12-1-20; Ord. No. 5996, § 3, 3-9-26)

11-67-10: MODIFICATIONS TO APPROVED PLANS

For those sections of this Ordinance that provide a modification or amendment process, such as Chapter 69: Development Plan Review and Chapter 76: Amendments to Zoning Map, this section does not apply. This section only applies if this Ordinance does not provide a modification or amendment process. This section sets forth the criteria for minor and major modifications. It also provides the review and approval process for minor modifications.

A. **Minor Modifications.** A modification is considered minor if it does not materially alter the approved plan or other approval, will not intensify any potentially detrimental effects of the project and is consistent with the original findings and all conditions of approval approved by the Planning Director or designee, the Board of Adjustment, Design Review Board, Planning Hearing Officer, Planning & Zoning Board, or City Council. The Planning Director, in the Planning Director's discretion, determines if a modification is minor. A modification that is not determined minor by the Planning Director is a major modification subject to subsection B. below.

   1. **Review Process for Minor Modifications.** Minor modifications are reviewed administratively by the Planning Director or the Planning Director's designee. The Planning Director or designee may take action on, or impose conditions upon, the modification to protect adjacent properties, preserve neighborhood character, mitigate adverse environmental impacts or other public health and safety reasons. The Planning Director, in the Planning Director's discretion, may require a minor modification go through the public hearing process for review and consideration by the appropriate decision-making body as required by this Ordinance.

B. **Major Modifications.** A modification is considered major if it changes, eliminates or affects a condition of approval (whether adopted by resolution, ordinance or otherwise) such as a change to a discretionary

permit, approved plan, or building plan or materially alters a previous approval or plan. Additionally, any modification not determined minor by the planning director is a major modification. This section does not provide the review and approval process for major modifications. A modification that is determined major will require the submission of a new application to start the process from the beginning and must follow the applicable review and approval process set forth in this Ordinance and have the request approved by the appropriate decision-making body.

(Ord. No. 5591, § 3, 12-1-20; Ord. No. 5996, § 3, 3-9-26)

11-67-11: REVOCATION OF PERMITS APPROVED THROUGH A PUBLIC HEARING PROCESS

Any Council Use Permit (CUP), Special Use Permit (SUP), Development Incentive Permit (DIP), or Substantial Conformance Improvement Permit (SCIP) granted under this Chapter may be revoked if any of the conditions or terms of such permit are violated or if any law or ordinance is violated in connection therewith.

A. **Initiation of Proceeding.**

1. The City Council, by its own action, or following a recommendation from the Planning & Zoning Board or Zoning Administrator, may initiate revocation proceedings regarding Council Use Permits.

2. The Board of Adjustment, following a recommendation from the Zoning Administrator, may initiate revocation proceedings for Special Use Permits, DIPs and SCIPs.

B. **Public Notice.** Notice that the possible revocation of the permit has been scheduled for hearing shall be made pursuant to the requirements of Section 11-67-5, Notice of Public Hearing.

C. **Public Hearing.** The public hearing regarding the revocation of a permit shall be conducted in the same manner as was used for the approval of the use permit, pursuant to Chapter 70.

D. **Required Finding for Revocation.** The City Council, or Board of Adjustment, as applicable, may revoke a permit if it makes any of the following findings:

1. That approval was obtained by means of fraud or misrepresentation of a material fact;

2. That the permittee or holder of the permit has failed to initiate construction or undertake the use in question within a 1 year period following the effective date of the permit or variance;

3. That the use in question has ceased to exist or has been suspended for one year or more;

4. That there is or has been a violation of or failure to observe the terms or conditions of the permit or the use has been conducted in violation of the provisions of this Ordinance, law or regulation; or

5. That the use to which the permit or applies has been conducted in a manner detrimental to the public safety, health and welfare, or so as to be a nuisance.

11-67-12: APPEALS

A final decision is subject to appeal according to the standards in Chapter 77 - Appeals. Table 11-67-12 summarizes the appeal process for each body issuing a final decision.

Table 11-67-12: Appeal Bodies	
Initial Decision-Maker	**Appeal Body**
Historic Preservation Officer	Historic Preservation Board
Zoning Administrator	Board of Adjustment
Zoning Administrator Hearing Officer	Board of Adjustment
Board of Adjustment	Superior Court, per A.R.S. § 9-462.06.K
Planning Director, Development Plan Review	Planning and Zoning Board
Planning Director, Alternative Compliance	Design Review Board
Historic Preservation Board	City Council
Planning and Zoning Board	City Council
Design Review Board	City Council
Planning Hearing Officer	City Council
City Council	Superior Court, where applicable under state law

(Ord. No. 5997, § 4, 1-26-26)

CHAPTER 68 ZONING CLEARANCE

11-68-1: PURPOSE

This Chapter establishes procedures for conducting zoning clearance to ensure that each new or expanded use or structure complies with the applicable requirements of this Ordinance. Having made such determination, the City shall establish a record of the Zoning Clearance that document the initial establishment of a use, or the construction of a structure, which is allowed as a matter of right.

11-68-2: APPLICABILITY

Zoning clearance is required for buildings or structures erected, constructed, altered, repaired or moved, which require a building permit, the use of vacant land, changes in the use of land or building, or for substantial expansions in the use of land or building.

11-68-3: REVIEW AND DECISION

A. **Determination.** The Zoning Administrator shall determine whether the Zoning Ordinance allows the proposed uses or structures by right. A Zoning Certificate shall be issued if the Zoning Administrator determines that the proposed use or building is allowed as a matter of right by the Zoning Ordinance, and conforms to all the applicable development and use standards. An approved Zoning Certificate may include attachments of other written or graphic information, including but not limited to, statements, numeric data, site plans, floor plans and building elevations and sections, as a record of the proposal's conformity with the applicable regulations of this Chapter.

B. **Exceptions.** No Zoning Certificate shall be required for the continuation of lawful uses and structures approved or permitted prior to the adoption of this ordinance, uses and structures that are not subject to any building or zoning regulations, or other uses or buildings already subject to Council Use Permit, Special Use Permit, variances or other discretionary approvals in the district in which they are located.

11-68-4: APPEALS

The applicant or any other aggrieved party may appeal a determination of zoning conformance pursuant to the provisions of Chapter 77, Appeals.

CHAPTER 69 DEVELOPMENT PLAN REVIEW*

11-69-1: PURPOSE

This Chapter establishes objectives, standards, and procedures for reviewing development plans, including but not limited to site plans, building elevations, landscape plans, preliminary grading and drainage plans, materials and color samples, and photometric plans. The specific purpose of the Development Plan Review process is to:

A. Ensure proposed development complies with the provisions of this Ordinance.

B. Eliminate or minimize potential land use conflicts and provide effective transitions between abutting parcels appropriate to site context.

C. Mitigate adverse impacts on surrounding developments or land uses that may result from proposed projects.

D. Ensure high-quality design that contributes to an attractive built environment and incorporates public spaces integral to the project.

E. Promote safe and efficient traffic circulation; provide adequate off-street parking, loading areas, bicycle facilities, and pedestrian amenities; and support a multi-modal transportation system that improves connectivity between residential, commercial, educational, employment, and recreational uses.

F. Implement the goals, objectives, and policies of the General Plan, sub-area plans, and other City Council adopted policies.

(Ord. No. 5996, § 1, 3-9-26)

11-69-2: APPLICABILITY

The following development proposals are subject to Development Plan Review:

A. A project that includes Multiple Residences, three (3) or more attached Single Residences, or more than two (2) dwelling units per lot. Development Plan Review is not required for projects with one (1) detached Single Residence, an Accessory Dwelling Unit, or projects eligible as Middle Housing.

B. Projects that include mixed-use, commercial, or industrial uses with frontage on an arterial or collector street, or that are part of a larger development or center with such frontage.

C. Mixed-use, commercial, or industrial projects that have more than 20,000 square feet of gross floor area.

D. Modifications to existing commercial or industrial development with frontage on an arterial street, or that are part of a larger development or center with arterial frontage.

***Editor's note—**Ord. No. 5996, § 1, adopted March 9, 2026, repealed the former Ch. 69, §§ 11-69-1—11-69-9, and enacted a new Ch. 69 as set out herein. The former Ch. 69 pertained to Site Plan Review. See Code Comparative Table for complete history.

E. Parking garages.

F. Municipal projects, including fire stations, libraries, parking lots with more than 50 spaces, and any other City of Mesa building or project meeting the criteria in this section.

G. Developments establishing project-specific design guidelines and standards.

H. Projects located on property where the ordinance approving the zoning, rezoning, or Council Use Permit is conditioned upon Site Plan Review, Design Review, or Development Plan Review.

I. Any other projects identified in this Ordinance as requiring Development Plan Review.
(Ord. No. 5996, § 1, 3-9-26)

11-69-3: APPLICATION REQUIREMENTS

Applications for Development Plan Review shall be filed with the Planning Division in accordance with Chapter 67, Common Procedures, including applicable citizen participation and public notice requirements.
(Ord. No. 5996, § 1, 3-9-26)

11-69-4: INITIAL DEVELOPMENT PLAN REVIEW

Projects that require Development Plan Review under Section 11-69-2 that are located on property without an approved Development Plan, site plan, and/or design review, or where such approvals have expired, shall obtain approval of an Initial Development Plan. A Development Plan that does not qualify for review as an Initial Development Plan will be reviewed as a Development Plan Modification under Section 11-69-5.

A. ***Administrative Review.*** An Initial Development Plan may be approved administratively if the Planning Director or Planning Director's designee determines it to be eligible based on the criteria of this section.

1. ***Eligibility Criteria.*** An Initial Development Plan is eligible for administrative approval if it meets all of the following:

a. Complies with all applicable requirements of this Ordinance.

b. Does not require a rezone, Planned Area Development Overlay (PAD), Council Use Permit (CUP), Bonus Intensity Overlay Zone (BIZ), or Special Use Permit (SUP).

c. Does not require an Ordinance Condition Modification under Chapter 76.

2. ***Design Review Board Recommendation Required.***

a. Development Plans requesting Alternative Compliance shall be reviewed by and receive a recommendation from the Design Review Board prior to Planning Director action.

b. Applicants may request a Design Review Board work session for review and recommendation prior to Planning Director action.

3. ***Referral of an Administrative Review.*** The Planning Director may refer any application to the Planning and Zoning Board or Design Review Board if, in the Planning Director's judgment, the project meets one (1) or more of the following criteria or otherwise warrants public review:

a. The project has unusual site constraints, infrastructure demands, or design complexities;

b. The project represents a major public or private investment with significant potential community or economic impact; or

c. The project does not comply with applicable Sub-area Plans or Neighborhood Area Plans.

B. **Planning & Zoning Board Action Required.** The Planning and Zoning Board shall hear and take action on the following:

1. Initial Development Plans associated solely with a Special Use Permit; or

2. Initial Development Plans that are eligible for administrative review but referred to the Planning and Zoning Board by the Planning Director.

C. **City Council Action Required.** The following Initial Development Plans require Planning and Zoning Board recommendation and City Council action.

1. Initial Development Plans associated with a Rezone, Planned Area Development Overlay (PAD), Council Use Permit (CUP), or Bonus Intensity Overlay Zone (BIZ).

2. Initial Development Plans that require an Ordinance Condition Modification under Chapter 76.

3. Initial Development Plans that are not eligible for administrative review and not subject to approval by the Planning and Zoning Board.

4. The City Council shall use the review criteria set forth in Section 11-69-5 to evaluate the Initial Development Plan and may take action on, or impose conditions upon, the Initial Development Plan, as set forth in Section 11-69-6.

(Ord. No. 5996, § 1, 3-9-26)

11-69-5: DEVELOPMENT PLAN MODIFICATION

Changes to an approved Development Plan, site plan, or Design Review are classified either as an Administrative or Legislative Development Plan Modification and reviewed by the applicable approving authority as set forth in this section.

A. **Administrative Development Plan Modifications.** Development Plan Modifications that do not meet the criteria for a Legislative Development Modification per Subsection B below, may be administratively approved by the Planning Director or the Planning Director's designee.

B. **Legislative Development Plan Modifications.** A Development Plan Modification is a legislative action that requires City Council approval through the rezoning process if any of the following occur:

1. ***Rezoning or Overlay Request.*** The proposed modification involves:

a. A change to a base zoning district; or

b. A request for or a change to an overlay district.

2. ***Development Plan Condition Modification.*** An Ordinance Condition Modification, as described in Chapter 76, is required for the proposed modification when all of the following criteria are met:

a. A Development Plan Condition is included in the approving ordinance (e.g., compliance with the final site plan, compliance with the final development plan, or compliance with the basic development as shown); and

b. The proposed modification changes the previously approved Development Plan or site plan and results in at least one (1) of the following:

i. Increases or decreases the total gross floor area of all buildings on the site greater than 10%; or

ii. Increases in the residential density above the density approved by the ordinance; or

iii. Includes the addition of a drive-thru lane; or

iv. Increases traffic generation by 15% or more, as determined by a traffic impact study or traffic impact analysis; and

c. The proposed modification includes a Change of Use as defined in Chapter 87.

3. ***Other Ordinance Condition Modifications.*** For proposed modifications that require changes to ordinance conditions, other than a Development Plan Condition, an Ordinance Condition Modification shall be required as determined under Chapter 76.

(Ord. No. 5996, § 1, 3-9-26)

11-69-6: REVIEW CRITERIA

When reviewing a development plan, the reviewing body shall determine whether the project satisfies all of the following:

A. The project is consistent with and conforms to the adopted General Plan (except that no analysis of the use if it is permitted in the zoning district on the property);

B. The project complies with all applicable development standards of this Ordinance;

C. The project complies with all project specific design guidelines or standards adopted and applicable to the site; and

D. The project is consistent with all conditions of approval imposed on the property whether by ordinance, resolution or otherwise.

(Ord. No. 5996, § 1, 3-9-26)

11-69-7: CONDITIONS OF APPROVAL

A. **Approval Authority.** The Planning Director or Planning Director's designee, Planning and Zoning Board, and City Council, as the applicable approval authority, may approve, modify, approve with conditions, or deny an Initial Development Plan or Development Plan Modification. Conditions of approval may include, but are not limited to, any combination of the following:

1. Adjustments to the height, area, or setback of buildings;

2. Changes to building materials, colors, articulation, or architectural detailing;

3. Modifications to landscaping, open space, or amenities;

4. Limitation or modification to vehicular access;

5. Addition or modifications of walls, fences, or screening devices;

6. Noise attenuation measures;

7. Compliance with the final development plan, final site plan, basic development plan; or

8. Any other restriction or requirement necessary to protect adjacent properties, preserve neighborhood character, or mitigate adverse impacts.

(Ord. No. 5996, § 1, 3-9-26)

CHAPTER 70 CONDITIONAL USE PERMITS

11-70-1: PURPOSE

This Chapter describes the process and general requirements applicable to those uses for which a Conditional Use Permit is required. These uses require special consideration to ensure that they can be designed, located, and operated in a manner that will not interfere with the use and enjoyment of surrounding properties. The purpose of the conditional use permit application process is to evaluate possible adverse impacts and to minimize them, where possible, through the imposition of specific conditions of approval. If adverse impacts cannot be appropriately resolved, the use is not appropriate in that location or configuration.

11-70-2: BURDEN OF PROOF

The applicant has the burden of proving that the application meets the Ordinance requirements for granting of any use permit. No structure, facility, or use approved by conditional use permit may be modified, enlarged or expanded, without obtaining an approved modification to the Conditional Use Permit. The application for modification shall be processed as a new conditional use permit application under this Ordinance. The issuance of a Conditional Use Permit may require that the existing development site be brought into substantial conformance with the terms of the Mesa City Code in effect on the date the use permit is approved, including but not limited to: landscaping, screening, parking, and storm water retention.

11-70-3: ADMINISTRATIVE USE PERMIT

A. **Administrative Use Permit (AUP).** An AUP is a discretionary written authorization issued through the Planning Director upon a finding that the activity or use conforms with the intent of this Ordinance and any required findings. An AUP may be limited by a specific period of time.

B. **Uses and Activities Subject to an Administrative Use Permit.** Uses and activities requiring an AUP are identified in this Ordinance, including but not limited to, Article 2, Base Zones, Article 4, Development Regulations, Article 5, Sign Ordinance, and Article 6, Form-Based Code.

C. **Permit Application and Procedures.** The procedures for requesting an AUP are provided in Chapter 67, Common Procedures, except a citizen participation plan and report is not required.

D. **Required Findings.** An AUP shall be granted only if the Planning Director determines that the project, as submitted or modified, conforms to all of the following criteria:

1. The proposed project will advance the goals and objectives of, and is consistent with, the purposes and policies of the General Plan and any other applicable City plan or policies;

2. The location, size, design, and operating characteristics of the proposed project are consistent with the purposes of the district where it is located and conforms with the General Plan and with any other applicable City plans or policies;

3. The proposed project will not be injurious or detrimental to the adjacent or surrounding properties in the area, nor will the proposed project or improvements be injurious or detrimental to the neighborhood or to the general welfare of the City; and

4. Adequate public services, public facilities and public infrastructure are available to serve the proposed project.

(Ord. No. 5631, § 2, 7-8-21)

11-70-4: TEMPORARY USE PERMIT

A temporary use permit is a discretionary authorization for certain uses that are intended to be of limited duration and will not permanently alter the character or physical conditions of the site where they occur. All temporary uses must comply with the requirements in Section 11-31-30 for temporary uses, as applicable, and all the requirements below:

A. **Uses subject to Temporary Use Permits.** Uses requiring a temporary use permit are established in the use tables in Chapters 4 through 15 and Chapter 56. Uses requiring a temporary use permit will also require a Special Event License in accordance with Title 5 of the Mesa City Code.

B. **Permit application and procedures.** In addition to the applicable requirements and procedures provided in Chapter 67, Common Procedures, the following specific procedures apply:

1. A completed application for a Temporary Use Permit must be submitted at least 45 days before the use is intended to begin.

2. The application must include all information required in the official process guide and application packet for temporary use permits made available by the Development Services Department. The Zoning Administrator or designee may require additional information as necessary, based on the nature of the proposed temporary use.

3. Written property owner permission is required for all temporary uses.

4. Each occurrence of a temporary use requires a separate completed application and approval of a temporary use permit.

C. **Required findings.** A Temporary Use Permit shall only be granted if the Zoning Administrator determines that the proposed temporary use, as submitted or modified, conforms to all of the following criteria:

1. The proposed use will not permanently alter the site on which it is located;

2. The proposed use will not unreasonably affect or have a negative impact on adjacent properties, their owners and occupants, or the surrounding neighborhood, and will not in any other way constitute a nuisance or be detrimental to the health, safety, peace, comfort, or general welfare of persons residing or working in the area of such use or the general welfare of the City;

3. The proposed use is consistent with land uses permitted by the Zoning District within which the site is located, and land uses consistent with the general plan land use designation of the site;

4. The proposed use complies with all development standards applicable to the Zoning District in which the use is located unless specifically stated otherwise in Section 11-31-30: Temporary Uses; and

5. The proposed site, if undeveloped, contains sufficient land area to allow the temporary use to occur, including sufficient room for parking, traffic movements, and structures associated with the temporary use.

D. **Permit duration, extensions and revocation.**

1. ***Duration.*** A Temporary Use Permit must not exceed the duration established for the use, and if no duration is established for the use, the duration of the temporary use permit will be limited to 90 days per calendar year.

2. ***Occurrence.*** No more than three (3) temporary uses may occur on one property per calendar year.

3. ***Extensions.*** The Zoning Administrator may extend a temporary use permit as follows:

a. One time for a maximum of 30 additional calendar days per calendar year.

b. Any extension beyond the extension granted by the Zoning Administrator as set forth above must be processed as a Special Use Permit and approved by the Board of Adjustment.

c. When considering an extension of a Temporary Use Permit, the Zoning Administrator, or Board of Adjustment, may impose reasonable conditions deemed necessary to achieve the findings for a Temporary Use Permit listed above. The conditions may include but need not be limited to: regulation of vehicular ingress and egress and traffic circulation; regulation of dust control surfaces; regulation of lighting; regulation of hours of operation; submission of final plans to ensure compliance with conditions of approval, and such other conditions as the Zoning Administrator or Board of Adjustment may deem appropriate.

4. ***Revocation.*** The Zoning Administrator may revoke a Temporary Use Permit at any time, if the use no longer satisfies the criteria required by Section 11-70-4(C) or poses a threat to public health, safety, or welfare.

(Ord. No. 5759, § 10, 12-8-22)

11-70-5: SPECIAL USE PERMIT

A. **Special Use Permit (SUP).** A SUP is a discretionary permit issued by the Zoning Administrator or Board of Adjustment.

B. **Uses Subject to Special Use Permits.** Uses requiring a SUP are established in the use tables in Chapters 4 through 11.

C. **Permit Requirements.** Permit requirements for some uses requiring a SUP are provided in Chapter 31, Standards for Specific Uses and Activities.

D. **Permit Application and Procedures.** The procedures for review and consideration of a SUP are as provided in the Chapter 67, Common Procedures, except a citizen participation plan and report is not required.

E. **Required Findings.** A SUP shall only be granted if the approving body determines that the project as submitted or modified conforms to all of the following criteria. It if is determined that it is not possible to make all of the required findings, the application shall be denied. The specific basis for denial shall be established in the record.

1. Approval of the proposed project will advance the goals and objectives of and is consistent with the policies of the General Plan and any other applicable City plan and/or policies;

2. The location, size, design, and operating characteristics of the proposed project are consistent with the purposes of the district where it is located and conform with the General Plan and with any other applicable City plan or policies;

3. The proposed project will not be injurious or detrimental to the adjacent or surrounding properties in the area, nor will the proposed project or improvements be injurious or detrimental to the neighborhood or to the general welfare of the City; and

4. Adequate public services, public facilities and public infrastructure are available to serve the proposed project.

F. **Revocation of Special Use Permits.** A Special Use Permit granted pursuant to this Chapter may be suspended, revoked, or modified by the Zoning Administrator, after holding a public hearing to determine whether any condition, stipulation, or term of the approval of the Use Permit has been violated. At least 30-days' notice shall be public hearing, and all of the noticing and hearing requirements of Chapter 67 shall apply.

11-70-6: COUNCIL USE PERMITS

A. **Council Use Permits (CUP).** A CUP is a discretionary permit issued by the City Council after review and recommendation by the Planning & Zoning Board.

B. **Uses Subject to Council Use Permits.** Uses requiring a CUP are established in the use tables in Chapters 4 through 11.

C. **Permit Application and Procedures.** The procedures for review and consideration of a CUP are as provided in the Chapter 67, Common Procedures.

D. **Review Criteria.** A CUP shall only be granted if the approving body determines that the project as submitted or modified conforms to all of the following criteria. It if is determined that it is not possible to meet all of the review criteria, the application shall be denied. The specific basis for denial shall be established in the record.

1. Approval of the proposed project will advance the goals and objectives of and is consistent with the policies of the General Plan and any other applicable City plan and/or policies:

2. The location, size, design, and operating characteristics of the proposed project are consistent with the purposes of the district where it is located and conform with the General Plan and with any other applicable City plan or policies;

3. The proposed project will not be injurious or detrimental to the adjacent or surrounding properties in the area of the proposed project or improvements in the neighborhood or to the general welfare of the City; and

4. Adequate public services, public facilities and public infrastructure are available to serve the proposed project.

E. **Revocation of Council Use Permits.** Any CUP granted under this Chapter may be revoked if any of the conditions or terms of such permit are violated or if any law or ordinance is violated in connection therewith.

1. ***Initiation of Proceeding.*** The City Council, by its own action, or following a recommendation from the Planning & Zoning Board or Zoning Administrator, may initiate revocation proceedings.

2. ***Public Notice.*** Notice that the possible revocation of the Council Use Permit has been scheduled for hearing before the City Council shall be made pursuant to the requirements of Section 11-67-5, Notice of Public Hearing.

3. ***Public Hearing.*** The public hearing regarding the revocation of a use permit or variance shall be conducted pursuant to requirements of Section 11-67-6, Conduct of Public Hearings.

4. ***Decision of the City Council.*** The City Council may revoke the Council Use Permit if it makes any of the following findings:

a. That approval was obtained by means of fraud or misrepresentation of a material fact;

b. That the permittee or holder of the permit has failed to initiate construction or undertake the use in question within a 1 year period following the effective date of the permit or variance;

c. That the use in question has ceased to exist or has been suspended for 1 year or more;

d. That there is or has been a violation of or failure to observe the terms or conditions of the permit or variance, or the use has been conducted in violation of the provisions of this Ordinance, law or regulation; or

e. That the use to which the permit or variance applies has been conducted in a manner detrimental to the public safety, health and welfare, or so as to be a nuisance.

11-70-7: APPEALS; EXPIRATION AND EXTENSION; MODIFICATION

Conditional Use Permits are subject to the expiration, extension, modification, and appeal provisions of Chapter 67, Common Procedures and Chapter 77, Appeals.
(Ord. No. 5996, § 3, 3-9-26)

CHAPTER 71 RESERVED*

11-71-1—11-71-8: RESERVED

***Editor's note—**Ord. No. 5996, § 1, adopted March 9, 2026, repealed §§ 11-71-1—11-71-8, which pertained to Design Review. See Code Comparative Table for complete history.

CHAPTER 72 DEVELOPMENT INCENTIVE PERMITS

11-72-1: PURPOSE AND APPLICABILITY

This chapter is intended to provide incentives for the development of smaller tracts of land that would have difficulty meeting current development standards, having been bypassed by previous developments, and where land assembly either is not available, or is available only to a limited extent. Development Incentive Permits (DIPs) may be approved to allow incentives for the development of parcels that meet the following criteria:

A. **Area.**

1. Total area of the parcel does not exceed 2.5 net acres, and the parcel has been in its current configuration for more than 10 years; or

2. Total area of the site does not exceed 5 net acres and was created by the assembly of 2 or more individual, contiguous parcels.

B. **Utilities.** The parcel is served by, or has direct access to, existing utility distribution facilities.

C. **Surrounding Development.** The parcel is surrounded by properties within a 1,200 foot radius in which:

1. The total developable land area is not more than 25 percent vacant; and

2. Greater than 50 percent of the total numbers of lots or parcels have been developed 15 or more years ago.

11-72-2: INCENTIVES

Development incentives that may be granted by the DIP shall be limited to modifications to building setbacks, landscaping design, onsite parking, building height, right of way dedication, and other site development provisions contained in this Ordinance.

11-72-3: REQUIRED FINDINGS

A DIP shall not be granted unless the Zoning Administrator, acting at the Hearing Officer, or Board of Adjustment shall find upon sufficient evidence:

A. The proposed development is consistent with the General Plan, any other applicable Council adopted plans and/policies, and the permitted uses as specified in this Ordinance;

B. The incentives do not allow development that is more intense than the surrounding neighborhood; commensurate with existing development within a 1200 foot radius of the by-passed property; and,

C. The architectural elements, construction and landscape materials, and other site improvements of the proposed development meet the intent of the Design Standards of this Ordinance.

11-72-4: CONDITIONS OF APPROVAL

After the conclusion of the hearing, the Board of Adjustment or Zoning Administrator Hearing Officer may approve, modify, approve with conditions or deny the proposed Development Incentive Permits. The Board or Hearing Officer may condition any approval, and such conditions may include, but are not limited to: review by the Design Review Board; conditions to assure implementation of the submitted plan in accordance with the

Mesa General Plan, and other applicable policies and plans adopted by the City; conditions to achieve the purpose and intent of the requested zoning district; and conditions to achieve reasonable compatibility with the proposed use and adjacent land uses.

11-72-5: APPEALS; EXPIRATION AND EXTENSIONS; MODIFICATIONS

DIPs are subject to the expiration, extension, modification, and appeal provisions of Chapter 67, Common Procedures and Chapter 77, Appeals.
(Ord. No. 5996, § 3, 3-9-26)

CHAPTER 73 SUBSTANTIAL CONFORMANCE IMPROVEMENT PERMITS (SCIP)

11-73-1: PURPOSE AND APPLICABILITY

The purpose of this chapter is to establish a review process by which improvement standards required by this Ordinance can be incrementally installed on non-conforming sites when such sites are enlarged; buildings are replaced, extended or have additions constructed; or other site modification developed. The intent is to recognize existing site constraints, and work proportionately with the degree of improvement being sought by the applicant to also improve the property based upon the development standards adopted by the Ordinance, and therefore bring non-conforming developments into substantial compliance with this Ordinance through approval of a Substantial Conformance Improvement Permit (SCIP).

11-73-2: ALLOWED MODIFICATIONS

The only development requirements that may be modified in a SCIP are building setbacks, landscaping design, on-site parking, building height, right of way dedication, and other site development provisions, contained in this Ordinance.

11-73-3: REQUIRED FINDINGS

A SCIP shall not be granted unless the Zoning Administrator, acting as a Hearing Officer, or Board of Adjustment shall find upon sufficient evidence that:

A. The entire development site will be brought into substantial conformance. Substantial conformance shall mean physical improvements to the existing development site which constitute the greatest degree of compliance with this Ordinance that can be attained without causing or creating any of the following conditions:

   1. The demolition or reconstruction of existing buildings or other significant structures (except signs); or

   2. The cessation of the existing conforming use, or the preclusion of any other lawful, permitted use.

   3. The creation of new non-conforming conditions.

B. The improvements authorized by the SCIP will result in a development that is compatible with, and not detrimental to, adjacent properties or neighborhoods.

11-73-4: CONDITIONS OF APPROVAL

After the conclusion of the hearing, the Board of Adjustment or Zoning Administrator Hearing Officer may approve, modify, approve with conditions or disapprove the proposed Substantial Conformance Improvement Permit. The Board or Hearing Officer may condition any approval, and such conditions may include, but are not limited to: review by the Design Review Board; conditions to assure implementation of the submitted plan in accordance with the Mesa General Plan, and other applicable policies and plans adopted by the City; conditions to achieve the purpose and intent of the requested zoning district; and conditions to achieve reasonable compatibility with the proposed use and adjacent land uses.

11-73-5: APPEALS; EXPIRATION AND EXTENSIONS; MODIFICATIONS

SCIPs are subject to the expiration, extension, modification, and appeal provisions of Chapter 67, Common Procedures and Chapter 77, Appeals.
(Ord. No. 5996, § 3, 3-9-26)

CHAPTER 74 HISTORIC DISTRICT AND HISTORIC LANDMARK PROCEDURES*

11-74-1: PURPOSE

This Chapter establishes uniform procedures for the designation and regulation of Historic Landmarks and historic preservation overlay districts in order to preserve and maintain such landmarks and districts, consistent with the General Plan and State Law.

11-74-2: DESIGNATION OF HISTORIC PRESERVATION DISTRICTS AND HISTORIC LANDMARKS

Upon compliance with the minimum criteria established in Section 11-23-4, Criteria for Historic Districts (HD) and Landmarks (HL), for the establishment of an HD or HL Overlay District, an application for such overlay may be made following the requirements for a zoning amendment as set forth in Chapter 76, Amendments to Zoning Map.

A. **Eligible Applications.** In addition to the requirements of Chapter 76 and the payment of the fee as specified in the fee schedule adopted by the City Council, the application must include the following items:

1. An application for the HD Overlay District must include a petition with signatures of a minimum of 50% plus one (1) of the number of owners within the boundaries of the proposed Historic District, and who also control at least 50% of the property area to be included in the Historic District.

2. An application for the HL Overlay District must include either:

   a. A petition with signatures of a minimum of 50% plus one of the owners within the boundaries of the Historic Landmark, and who also control 50% of the property area to be included in the proposed Historic Landmark; or,

   b. A petition of at least 50 qualified electors residing within the City of Mesa.

***Editor's note**—Previously, Chapter 74 derived from Ord. No. 5472, 11-6-18.

B. **Review of Application.** When an application is deemed complete, the Historic Preservation Officer (HPO) shall proceed with the review process specified in this Ordinance. A hearing shall be scheduled before the Historic Preservation Board (HPB) within 30 days of the application being deemed complete. Following review and recommendation by the Historic Preservation Board the application shall be reviewed by the Planning & Zoning Board at their next available meeting. Following review and recommendation by the Planning & Zoning Board the application will be presented to the City Council at its next available meeting.

C. **Posted Notice.** Notice of the public meeting of the Historic Preservation Board shall be posted on the property in question at least 15 days in advance of the said meeting. A notice of the time and place and purpose of the meeting shall be published at least one (1) time in the local newspaper of the City, not less than 15 days prior to the hearing. It shall not be the responsibility of the City to maintain the posting once erected.

D. **Minutes.** Minutes of the meeting will be kept and findings of the Historic Preservation Board forwarded to the Planning & Zoning Board. Copies of the minutes will be kept with the permanent record of the application.

E. **Council Authority to Remove Property from a Proposed Designation.** The City Council shall not include any property within a proposed Historic District or a proposed Historic Landmark when the owner has objected in writing or at a public hearing to such a designation, and may remove any property from a proposed designation if the owner of record has not responded to a request for comments on the proposed rezoning and designation as a Historic District or Historic Landmark. The City intends that these designations be voluntary and acceptable to affected property owners.

F. **Procedure to Remove Property from Adopted District.** The procedure to remove the Historic Preservation Zoning District or Historic Landmark Zoning District designation shall be the same procedure specified by this Ordinance to establish a Historic District or Historic Landmark overlay.

11-74-3: CERTIFICATES OF APPROPRIATENESS

A. **Certificate of Appropriateness Required.** Activities, such as, but not limited to, changes to or installation of items listed below to be performed on or in connection with any building, structure, site, included in an HD or HL Overlay District shall require a Certificate of Appropriateness.

1. Additions
2. Awnings or canopies
3. Carports; garages
4. Decks
5. Doors, door frames
6. Driveways
7. Exterior walls; fencing
8. Fire escapes, exterior stairs, exterior elevators, and ramps for the handicapped

9. Painting of historically unpainted surfaces including wood, stone, brick, terra cotta, concrete and marble

10. Parapet walls

11. Pool & Pool Cages

12. Porch and balcony railings or decorative detailing

13. Roofs; skylights

14. Screen windows and doors; windows and window frames

15. Siding

16. Signs

B. **Submittal Requirements for a Certificate of Appropriateness.** Alteration, new construction, and rehabilitation, to an existing structure involving items listed in Subsection A of Section 11-74-3 on a site located within a proposed or approved HD or HL Overlay District shall require submittal to the Historic Preservation Officer (HPO) of the following items:

1. An application, on such form(s) and accompanied by such fee(s) as may be adopted. Applications may be obtained in the Office of Historic Preservation.

2. Photographs of the existing property;

3. Drawings, to approximate scale, of the site plan, floor plan(s) and elevations of the proposed work, indicating materials and color scheme;

4. If signage is part of the proposed work, drawings, to approximate scale, showing size and location of proposed signage, type of lettering to be used, and indication of color and type of illumination, if any; and

5. Any other information that the HPO may reasonably deem necessary to review the proposed work.

C. **Review Procedures.** The following procedures will be used for review of applications for Certificate of Appropriateness:

1. Within 10 City Business days of receiving the application for a Certificate of Appropriateness, the Historic Preservation Officer shall determine whether approval may be given for a building or a demolition permit, or shall provide written findings as to why the clearance was not approved. The decision of the Historic Preservation Officer shall be based upon compliance of the request with the United States Secretary of the Interior's "Standards for Rehabilitation" appearing 36 CFR Part 68. Additional guidelines, as proposed by the Historic Preservation Board and approved by the City Council, may also be used by the Historic Preservation Officer, provided the guidelines are not inconsistent with the Secretary's Standards.

2. The Certificate of Appropriateness shall be effective from the time of issuance by the Historic Preservation Officer or the Historic Preservation Board until the expiration of the building permit obtained for the specified improvements. A Certificate of Appropriateness is effective for 2 years unless there is an active building permit.

D. **Ordinary Maintenance and Repair.**

1. Ordinary maintenance and repair of any exterior architectural feature of a designated Historic Landmark or a site within a HD or HL overlay zone shall be permitted, provided the maintenance does not change the material, design, or alter the features that contribute to the distinctive character and general appearance of the landmark or site.

2. A Certificate of Appropriateness shall not be required for ordinary maintenance and repair, in-kind replacement of materials or painting historic materials, which are currently painted (i.e. wood, brick, stone or stucco).

11-74-4: DEMOLITION PERMITS

A. **Proposed Districts or Landmarks.** For a period of 6 months from the date of application for a proposed HD or HL designation, demolition of structures and sites within an area shall not proceed except in conformance with the following:

1. An application for demolition must be submitted to the HPO.

2. The HPO shall consider the request and either approve or deny the request within 20 city business days.

3. If the building or structure is less than 40 years old and meets one (1) of the following circumstances the HPO shall approve the demolition:

a. The building or structure is determined not to contain historic or architectural significance; or,

b. The building or structure is determined not to essentially contribute to the historic features of the area.

4. If the building or structure is 40 years old or greater and/or the HPO finds that the conditions of #3 above are not met, the request for demolition shall be considered following the requirements of Subsection (B) below.

5. If the HD or HL overlay district is not approved by the City Council within 6 months of the application filing date, the HPO shall then approve the request for demolition.

B. **Approved Districts or Landmarks.** On properties with an approved HD or HL overlay district, a request for demolition shall be granted only if either of the following exists:

1. The Building Official, in conjunction with the HPO and the City Manager, determines that the building or structure is currently an imminent hazard to the public safety and repairs and/or renovation would be impractical; or,

2. The HPB determines that both of the following are found:

a. The building or structure is of minimal historic significance because of its location, conditions, modifications, or other factors; and,

b. Demolition of the building or structure would be inconsequential to the preservation of historic properties in the vicinity.

C. **Actions Subsequent to Denial of a Request for Demolition.** In the event a request for a demolition permit is denied for either a proposed or an existing district, issuance of a demolition permit by the Building Official will be delayed 180 from the effective date of the denial by the HPO. During the 180 day period the applicant may appeal the decision of the HPO to the HPB. In addition, the HPO, the HPB, and the applicant shall meet to attempt to negotiate and develop an agreement and/or plan to preserve the building or structure. The agreement and/or plan may include public and private financial assistance, consideration of alternative land uses and/or zoning districts, expansions or additions to the building or structure within its historical context, adaptive reuse of the site, or public or private purchase of the property. If no plan and/or agreement is achieved, a clearance to issue a demolition permit will be forwarded to the Building Official at the applicant's request any time after the prescribed 180 days are passed.

11-74-5: APPEALS

A. **Appeals from the HPO.** Decisions of the HPO with regards to interpretation of Overlay District Design Guidelines, Certificate of Appropriateness, and demolition requests may be appealed to the HPB. Appeals are subject to the appeal provisions of Chapter 77, Appeals and Section 11-67-12.

B. **Appeals from the HPB.** Decisions of the HPB are subject to the appeal provisions of Chapter 77, Appeals, and Section 11-67-12.

CHAPTER 75 AMENDMENTS TO GENERAL PLAN

11-75-1: PURPOSE AND APPLICABILITY

This Chapter establishes procedures for making changes to the General Plan as provided for in State Law when there are compelling reasons to do so as a result of changes in conditions or circumstances unforeseen at the time of adoption or last amendment of the General Plan. These circumstances include, but are not limited to, changes in State or Federal law and problems and opportunities that were unanticipated at the time of adoption or last amendment. This amendment process is not intended to relieve particular hardships nor to confer special privileges or rights upon any person, but only to make adjustments necessary in light of changed conditions or changes in public policy. In addition to the requirements of this Chapter, all General Plan amendments shall conform to the requirements of A.R.S. § 9-461.06 (Adoption and Amendment of General Plan).

11-75-2: INITIATION OF AMENDMENTS

Application for amendment of the Mesa General Plan designation applicable to a piece of property shall be made in the office of the Planning Division on an application form provided by the City. The application shall be accompanied by payment of the applicable fee. Pursuant to A.R.S. § 9-461.06, the City has adopted criteria for determining whether a proposed amendment is a "major amendment", in which case such amendments shall be presented at a public hearing held within twelve months after the proposal is made.
(Ord. No. 5928, § 25, 2-3-25)

11-75-3: PUBLIC NOTICE, HEARING AND REVIEW PROCEDURES

Any notice, public hearings and action regarding any amendment to the Mesa General Plan shall be in conformance with the requirements of A.R.S. § 9-461.06, including:

A. **Public Notice.** In addition to the procedures set forth in Chapter 67, Common Procedures, Public Notice of hearings by the Planning & Zoning Board and the City Council for General Plan amendments shall be given as required in A.R.S. § 9-461.06.

B. **Planning and Zoning Board: Public Hearing and Action.**

1. ***Public Hearing.*** All General Plan amendments shall be subject to two public hearings by the Planning & Zoning Board in conformance with the requirements of A.R.S. § 9-461.06, and which shall be conducted in conformance with the provisions of Chapter 67, Common Procedures.

2. ***Action.*** After the conclusion of the second hearing, the Planning & Zoning Board will forward a recommendation regarding the proposed General Plan amendment to the City Council for its consideration.

C. **City Council: Public Hearing and Action.**

1. ***Hearing.*** The City Council shall conduct a public hearing in conformance with the provisions of A.R.S. § 9-461.06 and Chapter 67, Common Procedures.

2. ***Action.*** After the conclusion of the hearing, the City Council may approve, modify, or disapprove the proposed amendment. Active applications may only be amended in compliance with Council adopted policy.

CHAPTER 76 AMENDMENTS TO ZONING MAP

11-76-1: PURPOSE AND APPLICABILITY

The purpose of this Chapter is to establish procedures, consistent with applicable state requirements, for making changes to the Official Zoning Map or a rezoning.
(Ord. No. 5996, § 1, 3-9-26)

11-76-2: INITIATION OF AMENDMENTS

An application to amend the Mesa Zoning Map or a rezoning shall be filed with the Planning Division on the application form provided by the City and shall be accompanied by the applicable fee.
(Ord. No. 5996, § 1, 3-9-26)

11-76-3: ORDINANCE CONDITION MODIFICATION

A. **Purpose and Applicability.** Because City Council sets land use policies that establish or modify zoning classifications that result in rezonings, amend the Mesa Zoning Map, or modify Council-adopted development plans, any alterations to those decisions, including conditions of approval or stipulations, require a rezoning and City Council approval. This Section:

1. Applies to plans, conditions of approval, and stipulations that were:

a. Adopted or approved by the City Council acting in its legislative capacity in conjunction with a zoning ordinance, rezoning, zoning amendment, or Council-adopted development plan; or

b. Incorporated into an adopted zoning ordinance or rezoning approval by reference.

2. Does not apply to plans, conditions of approval, or stipulations that were approved administratively by City staff or by a reviewing body acting in a non-legislative capacity.

B. **Ordinance Condition Modification.**

1. An Ordinance Condition Modification applies to conditions of approval that City Council adopted as part of an ordinance that established or modified a zoning classification(s), amendment to the Zoning Map, or Council-adopted development plan.

2. An Ordinance Condition Modification includes changes that:

   a. Add a new requirement, restriction, limitation, or obligation;

   b. Remove or modify existing requirement, restriction, limitation, or obligation; or

   c. Remove or modify a condition of approval adopted by ordinance or as part of a legislative act.

3. ***Rezoning Required.***

   a. An Ordinance Condition Modification is a legislative act that requires approval through the rezoning process, and is processed, noticed, heard, and decided through the public hearing procedures set forth in this Chapter.

   b. Development Plan Modifications, except those set forth in Section 11-76-3(B)(4), shall be deemed to comply with a Development Plan Condition.

4. ***Exception for Certain Development Plan Modifications.*** A proposed Development Plan Modification requires an Ordinance Condition Modification as identified in Chapter 11-69-5: Development Plan Modifications.

(Ord. No. 5996, § 1, 3-9-26)

11-76-4: PUBLIC NOTICE, HEARING AND REVIEW PROCEDURES

Public notice of hearings by the Planning and Zoning Board and the City Council for Zoning Map Amendments and zoning ordinance amendments shall be provided as specified in Chapter 67, Common Procedures and shall conform to the requirements of Sections 9-462.03 and 9-462.04 of Arizona Revised Statutes. A Citizen Participation Plan must be submitted, implemented, and documented in the Citizen Participation Report required by Section 11-67-3, Citizen Participation.
(Ord. No. 5996, § 1, 3-9-26)

11-76-5: PUBLIC HEARING

All Zoning Map Amendments and zoning ordinance amendments shall be subject to a minimum of one (1) public hearing by the Planning and Zoning Board and to one (1) public hearing by the City Council prior to adoption.
(Ord. No. 5996, § 1, 3-9-26)

11-76-6: PLANNING AND ZONING BOARD ACTION

A. **Hearing.** The Planning and Zoning Board shall conduct a public hearing in conformance with the provisions of Chapter 67 (Common Procedures).

B. **Action.** After the conclusion of the hearing, the Planning and Zoning Board may recommend approval, approval with conditions, or denial to City Council.

(Ord. No. 5996, § 1, 3-9-26)

11-76-7: CITY COUNCIL ACTION

A. **Hearing.** The City Council shall conduct a public hearing in conformance with the provisions of Chapter 67 (Common Procedures).

B. **Action.** After the conclusion of the hearing, the City Council may approve, modify, approve with conditions, or deny the proposed Zoning Map Amendment or zoning ordinance amendment.

C. **Conditions.** Conditions of approval may include, but are not limited to:

1. Future Development Plan Review;
2. Conditions to ensure implementation of the submitted plan in accordance with the Mesa General Plan, and other applicable policies and plans adopted by the City;
3. Conditions to achieve the purpose and intent of the requested zoning district;
4. Conditions to achieve reasonable compatibility with the proposed use and adjacent land uses;
5. Conditions permitted by Section 11-69-7; and
6. Additional or different approval processes than those normally required by this Ordinance.

(Ord. No. 5996, § 1, 3-9-26)

CHAPTER 77 APPEALS*

11-77-1: PURPOSE AND APPLICABILITY

This Chapter establishes uniform procedures for appeals of final decisions by the Historic Preservation Officer, Planning Director, Zoning Administrator, Zoning Administrator Hearing Officer, Board of Adjustment, Planning and Zoning Board, Planning Hearing Officer, Design Review Board, and the Historic Preservation Board.

***Editor's note**—Previously, Chapter 77 derived from Ord. No. 5472, 11-6-18.

11-77-2: RIGHTS OF APPEAL

Appeals may be filed by the applicant, by the owner of property, or by any other person aggrieved by a decision that may be appealed under the provisions of this Ordinance.

11-77-3: TIME LIMITS

Unless otherwise specified in State or federal law, all appeals except of Board of Adjustment decisions shall be filed in writing within 15 calendar days after the date of the action being appealed. Appeals of Board of Adjustment decisions shall be filed within 30 calendar days of the Board rendering its decision. Calendar days are inclusive of all business days, non-business days, weekends and holidays. In the event the time limit for appeals ends on a non-business day, holiday or weekend, the time limit shall be extended to the close of business of the next business day.

11-77-4: PROCEDURES

A. **Proceedings Stayed by Appeal.** The timely filing of an appeal may stay all City-related proceedings in the matter appealed including, but not limited to, the issuance of demolition permits, building permits, and business licenses. Proceedings in which an appeal has been filed to County, State or Federal Courts or jurisdictions may only be stayed by action from those jurisdictions.

B. **Filing of Appeals.**

1. ***Appeals of Specified Decisions.*** All decisions of the Historic Preservation Officer, Planning Director, Zoning Administrator acting in an administrative or Hearing Officer role, Planning and Zoning Board, Planning Hearing Officer, Design Review Board, and Historic Preservation Board may be appealed to the appropriate body as specified in Chapter 67 by filing a written notice of appeal. The notice of appeal shall set forth, in concise language, the following:

    a. Date of appeal;

    b. Name of person filing the appeal (appellant) and any individual representing appellant;

    c. Address to which notices shall be sent;

    d. Contact information such as telephone number and/or e-mail address of appellant or representative to be contacted regarding the appeal;

    e. Action or decision being appealed and the date of such action or decision;

    f. Description of requested outcome if the appeal is granted;

    g. Grounds for appeal; and,

    h. Address and case number involved.

2. ***Appeals of Board of Adjustment Decisions.*** Any person aggrieved by the decision of the Board of Adjustment, or officer or department of the City of Mesa affected by a decision of the Board may, at any time within 30 days after the Board has rendered its decision, file a complaint of special action in Superior Court to review the Board's decision. Filing the complaint does not stay proceedings on the decision sought to be reviewed, but the court may, on application, grant a stay, and on final hearing, may affirm or reverse, in whole or in part, or modify the decision reviewed.

C. **Public Notice.** Notice of an appeal heard by the City Council, Planning and Zoning Board, Board of Adjustment, or Design Review Board, shall be:

1. Provided in the same manner required in Chapter 67, for the appropriate hearing body, and

2. Provided to all persons who spoke on the matter at any prior hearings on the same matter, if such persons provided their names and addresses at the time they spoke at the prior hearing.

D. **Appeals to the Board of Adjustment.**

1. Appeals to the Board shall be made in conformance with A.R.S. § 9-462.06.

2. ***Board of Adjustment Action.*** The Board of Adjustment shall conduct a public hearing de novo, and shall review all relevant information, including but not limited to the application, plans, related project materials that were the subject of the original decision, any additional materials as may be presented at the appeal hearing, and any written correspondence submitted after the appeal has been filed, information observed by a site visit if made, and may take one of the following actions:

   a. Make a decision; or

   b. Remand the matter to the Zoning Administrator to cure a deficiency in the record or proceedings.

3. ***Board of Adjustment Decision.*** The Board of Adjustment may approve, approve with conditions, or deny an appeal, and may prescribe reasonable conditions in connection with its decision as may be necessary in order to fully carry out the purpose and intent of the provisions of this Zoning Ordinance.

E. **Appeals to the Design Review Board.**

1. ***Design Review Board Action.*** The Design Review Board shall conduct a public meeting and review the appeal, the record, including the application, plans, related project materials that were the subject of the original decision, any additional materials as may be presented at the meeting, and any written correspondence submitted after the appeal has been filed, and may take one of the following actions:

   a. Make a decision; or

   b. Remand the matter to the Planning Director to cure a deficiency in the record or proceedings.

2. ***Design Review Board Decision.*** The Design Review Board may approve, approve with conditions, or deny an appeal, and may prescribe reasonable conditions in connection with its decision as may be necessary in order to fully carry out the purpose and intent of the provisions of this Zoning Ordinance.

F. **Appeals to the Planning and Zoning Board.**

1. ***Planning and Zoning Board Action.*** The Planning and Zoning Board shall conduct a public hearing, and review the appeal, the record, including the application, plans, related project materials that

were the subject of the original decision, any additional materials as may be presented at the appeal hearing, and any written correspondence submitted after the appeal has been filed, and may take one of the following actions:

a. Make a decision; or

b. Remand the matter to the Planning Director to cure a deficiency in the record or proceedings.

2. ***Planning and Zoning Board Decision.*** The Planning and Zoning Board may approve, approve with conditions, or deny an appeal, and may prescribe reasonable conditions in connection with its decision as may be necessary in order to fully carry out the purpose and intent of the provisions of this Zoning Ordinance.

G. **Appeals to the Historic Preservation Board.**

1. ***Historic Preservation Board Action.*** The Historic Preservation Board shall conduct a public meeting and review the appeal, the record, including the application, plans, related project materials that were the subject of the original decision, any additional materials as may be presented at the appeal hearing, and any written correspondence submitted after the appeal has been filed, and may take one of the following actions:

a. Make a decision; or

b. Remand the matter to the Historic Preservation Officer to cure a deficiency in the record or proceedings.

2. ***Historic Preservation Board Decision.*** The Historic Preservation Board may approve, approve with conditions, or deny an appeal, and may prescribe reasonable conditions in connection with its decision as may be necessary in order to fully carry out the purpose and intent of the provisions of this Zoning Ordinance.

H. **Appeals to the City Council.** The City Council shall review the appeal, the record, and any written correspondence submitted after the appeal has been filed, and at the Council's discretion, review any additional materials that may be presented at the meeting. After the review, the Council may take one of the following actions:

1. Conduct a public hearing, after which it may affirm, reverse, or modify the previous decision; or

2. Remand the matter to the Planning and Zoning Board, Planning Hearing Officer, Design Review Board, or Historic Preservation Board (as deemed appropriate) for additional review and consideration, or to cure a deficiency in the record or proceedings.

11-77-5: STANDARDS OF REVIEW

When reviewing any decision on appeal, the same standards and criteria shall apply as were required for the original decision.

CHAPTER 78 ANNEXATIONS

11-78-1: PURPOSE

This Chapter establishes uniform procedures for annexation of property not within the City limits and subsequent zoning of that property.

11-78-2: INITIATION OF ANNEXATIONS

Applications for annexation shall be made in the office of the Planning Division on a form provided by the city and shall be accompanied by the required fee.

11-78-3: PROCEDURES

A. **Process.**

1. Requests for annexation by any owner of property located outside the City limits shall be made in the Planning Division in accordance with Section 11-67-3, Application Forms, Supporting Materials and Fees.

2. Upon compliance with State statutes and City regulations and processes, annexation applications shall be forwarded to the City Council for the public hearing required by A.R.S. § 9-471.A.3 prior to release of the annexation petition.

3. If the City Council accepts the request for annexation, official annexation petitions shall be prepared by staff to be circulated by the requesting property owners following the public hearing for the release of the petition.

4. When all provisions of A.R.S. § 9-471 et seq. have been complied with, the City Council shall hold the required public hearings to consider an ordinance authorizing annexation of the property into the City.

B. **Zoning of Annexed Properties.** Areas under consideration for annexation may be zoned at the time of annexation or within 6 months after the annexation to City zoning districts comparable to, but not greater in intensity than the County zoning applicable to the property immediately preceding annexation. In the event that City zoning is not established with annexation, the area shall be considered to be zoned as shown on the Official Maricopa County Geographic Information Systems (GIS) Portal Zoning Map of the Maricopa County Planning and Zoning Commission until City zoning is applied to the property.

C. **Construction and Building Permits.**

1. Maricopa County Building Permits validly issued pursuant to County requirements not more than 60 days prior to the effective date of annexation, shall be accepted by the Building Official as valid permits for a period of 60 days after the effective date of annexation. If construction has not commenced on or before the 60th day after the effective date of annexation, a City building permit shall be required.

2. For buildings under construction with a valid building permit issued by Maricopa County prior to the effective date of an annexation ordinance, a City building permit shall not be required, but the

Building Official shall require that buildings constructed under such County building permit shall be structurally safe and shall conform to pertinent County zoning regulations in effect at the time the County permit was issued.

11-78-4: EXISTING USES AND STRUCTURES

A. Any use or activity conducted contrary to County zoning regulations at the effective date of annexation and not constituting a legal non-conforming use under the County zoning regulations shall not be considered a legal non-conforming use by the City.

B. Any use or activity conducted in conformance with County zoning regulations at the effective date of annexation and not in conformance with this Ordinance shall be considered a legal non-conforming use by the City.

C. Any use, activity or structure that is existing at the effective date of annexation, under a Maricopa County Use Permit with a time limit imposed, may continue for the remainder of the time limit. Any extension of this time limit requires City approval of a Conditional Use Permit pursuant to Chapter 70, Conditional Use Permits, of this Ordinance. The type of Conditional Use Permit required shall be determined according to the regulations for the City zoning district where the use is located. If, after the expiration of the Maricopa County Use Permit, no Conditional Use Permit is specified or approved for that activity, then the property shall require rezoning to a conforming zoning district permitting the activity, or the activity may continue only as a legal nonconforming use, subject to the requirements of Chapter 36, Nonconforming Uses, Structures, and Lots.

D. Any legal lot or parcel of land duly recorded in the Maricopa County Recorder's Office prior to the effective date of this Ordinance and having an area, width, depth, or street frontage less than that required in the Zoning District regulations in which such lot or parcel is situated, shall be deemed to be a lot and may be used as a building site, provided that all other regulations for the City of Mesa Zoning District shall apply.

E. Building setbacks established by Maricopa County overlay zoning or Special Use Permit, for residential developments including manufactured home parks and subdivisions, shall be enforced. Conventional residential developments without county overlay zoning or Special Use Permit shall have setbacks as specified in this Zoning Ordinance.

CHAPTER 79 ENFORCEMENT

11-79-1: PURPOSE

This Chapter establishes the responsibilities of various departments, officials and public employees of the City to enforce the requirements of this Title and sets forth the procedures the City will use to identify, abate, remove, and enjoin those uses, structures, or buildings that are deemed to be in violation of this Ordinance.

11-79-2: COMMENCEMENT OF AN ACTION

A. The City Manager or designee is authorized to commence an enforcement action under this Ordinance by issuing a citation for civil sanctions under this Chapter. They may also seek the issuance of a complaint by the Mesa City Prosecutor for criminal prosecution of habitual offenders as defined in this Chapter.

B. Nothing in this Section shall preclude City employees from seeking voluntary compliance with the provisions of this Ordinance, or from enforcing this Ordinance through notices of violations, warnings or through other informal devices designed to achieve compliance in the most efficient and effective manner under the circumstances.

C. Violations of this Ordinance are in addition to any other violation established by law, and this Ordinance shall not be interpreted as limiting the penalties, actions, or abatement procedures which may be taken by the City or other persons under other laws, ordinances, or rules.

D. Any owner or occupant who causes, permits, facilitates, aids, or abets any violation of this Ordinance, or who fails to perform any act or duty required pursuant to this Ordinance, is subject to the enforcement provisions of this Ordinance. The owner, occupant, or responsible party may be individually and jointly responsible for the violations, the prescribed civil or criminal sanctions, and for abating the violations and for any associated costs and fees.

11-79-3: CIVIL VIOLATIONS AND CITATION

A. A civil action for violations of this Ordinance may be commenced by issuance of a citation.

B. The citation will be substantially in the form established by the City Manager or Designee. It shall advise the responsible party of the violation(s) committed, either by written description of the violations or by designation of the City Code Section that was violated. The Civil Hearing Officer may permit amendments to the citation if substantial rights of the responsible party are not thereby prejudiced. The citation shall direct the responsible party to pay the civil sanction and all applicable fees as specified in Section 11-79-4 within the time period specified on the citation. The citation shall be served by personal service, or by serving the citation pursuant to A.R.S. § 9-500.21.

C. The responsible party shall, within the time period specified on the citation, either pay the fine or appear in person or through an authorized representative before the Clerk of the Civil Hearing Officer and admit or deny the allegations contained in the citation. If the responsible party timely pays the fine and fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears and admits the allegations, the Civil Hearing Officer shall enter judgment against the responsible party in the amount of the fine assessed. If the responsible party appears and denies the allegations contained in the citation, the Civil Hearing Officer shall set the matter for hearing.

D. The responsible party shall, within 10 days of the issuance of the citation, either pay the civil sanction and the fees, or appear in person or through an attorney before the Civil Hearing Officer and admit or deny the allegations contained in the citation. If the responsible party pays the civil sanction and the fees, either in person or by mailing payment to the City, the allegations in the citation shall be deemed admitted and such person shall be deemed responsible for having committed the offense(s) described in the citation. If the responsible party appears and admits the allegations, the Civil Hearing Officer shall enter judgment

against the responsible party in the amount of the civil sanction, plus any applicable fees designated in Section 11-79-4. If the responsible party appears and denies the allegations contained in the citation, the Civil Hearing Officer shall set the matter for hearing.

E. If a person served with a citation fails to pay the fine and to appear on or before the time directed to appear or at the time set for hearing by the Civil Hearing Officer, the allegations in the complaint shall be deemed admitted and the Civil Hearing Officer shall enter a finding of responsible and a judgment for the City and impose the appropriate sanction.

F. All proceedings before the Civil Hearing Officer shall be informal and without a jury, except that testimony shall be given under oath or affirmation. The technical rules of evidence do not apply, except for statutory provisions relating to privileged communications. If the allegations in the citation are denied, the City is required to prove violations of this Ordinance by a preponderance of the evidence. No pre-hearing discovery shall be permitted except under extraordinary circumstances, as determined by the Civil Hearing Officer. The Civil Hearing Officer is authorized to make such orders as may be necessary or appropriate to fairly and efficiently determine the truth and decide the case at hand.

G. If, after hearing all evidence the Civil Hearing Officer determines the responsible party is responsible for the alleged violation, and after entering a judgment of responsible and setting a civil sanction as specified in section 11-79-4(A), the Civil Hearing Officer may order a compliance hearing and set a date for such hearing. Upon presentation of evidence and testimony by the Code Compliance Officer at the compliance hearing that the violation(s) specified in the complaint has been abated, the Civil Hearing Officer may reduce all or a portion of the civil sanction commensurate with the cost borne by the defendant to achieve compliance or the Civil Hearing Officer may vacate the previous judgment and dismiss the citation(s).

H. An appeal from final judgments of the Civil Hearing Officer may be taken pursuant to the Arizona Rules of Procedure for Special Actions.

I. Any civil fine or judgment for civil sanctions taken pursuant to this Article shall constitute a lien against the real property of the responsible party that may be perfected by recording a copy of the judgment with the Maricopa County Recorder. Any judgment for civil fines or penalties pursuant to this Chapter may be collected as any other civil judgment.

11-79-4: CIVIL PENALTIES

A. Any owner, occupant or responsible party who is found responsible for a civil violation of this Ordinance, whether by admission, default, or after a hearing, shall pay a civil sanction of not less than $150 or more than $1,500, per citation. A second finding of responsibility within 24 months of the commission of a prior violation of this Chapter shall result in a civil sanction of not less than $250 or more than $2,500. A third finding of responsibility within 36 months of the commission of a prior violation of this Chapter shall result in a civil sanction of not less than $500 or more than $2,500. In addition to the civil sanction, the responsible party shall pay the applicable fees and charges set forth in the City's Development and Sustainability Department (Code Compliance) Schedule of Fees and Charges, and may be ordered to pay any other applicable fees and charges.

B. The 36 month provision of subsection (A) of this Section shall be calculated by the dates the violations were committed. The owner, occupant, or responsible party shall receive the enhanced sanction upon a

finding of responsibility for any violation of this Chapter that was committed within 36 months of the commission of another violation for which the owner or responsible party was convicted or was otherwise found responsible, irrespective of the order in which the violations occurred or whether the prior violation was civil or criminal.

C. Each day in which a violation of this Ordinance continues, or the failure to perform any act or duty required by this Ordinance or by the Civil Hearing Officer continues, shall constitute a separate civil offense.

11-79-5: HABITUAL OFFENDER

A. A person who commits a violation of this Ordinance after previously having been found responsible for committing 3 or more civil violations of this Ordinance within a 24 month period — whether by admission, by payment of the fine, by default, or by judgment after hearing — shall be guilty of a class 1 criminal misdemeanor. The Mesa City Prosecutor is authorized to file a criminal class 1 complaint in the Mesa City Court against habitual offenders. For purposes of calculating the 24-month period under this paragraph, the dates of the commission of the offenses are the determining factor.

B. Upon conviction of a violation of this Subsection, the Court may impose a sentence or incarceration not to exceed 6 months in jail; or a fine not to exceed $2,500, exclusive of penalty assessments prescribed by law; or both. The Court shall order a person who has been convicted of a violation of this Section to pay a fine of not less than $500 for each count upon which a conviction has been obtained. A judge shall not grant probation to or suspend any part or all of the imposition or execution of a sentence required by this Subsection except on the condition that the person pay the mandatory minimum fines as provided in this Subsection.

C. Every action or proceeding under this Section shall be commenced and prosecuted in accordance with the laws of the State of Arizona relating to criminal misdemeanors and the Arizona Rules of Criminal Procedure.

11-79-6: FAILURE TO PROVIDE EVIDENCE OF IDENTITY

A person who fails or refuses to provide evidence of his or her identity to a duly authorized agent of the City upon request, when such agent has reasonable cause to believe the person has committed a violation of this Ordinance, is guilty of a misdemeanor. Evidence of identity under this Section shall consist of a person's full name, residence address, and date of birth.

CHAPTER 80 VARIANCES

11-80-1: PURPOSE AND APPLICABILITY

Variances are authorized as set forth in Arizona Revised Statutes A.R.S. § 9-462.06 and as set forth in this Ordinance.

11-80-2: PROCEDURES

Applications for variances shall be submitted, reviewed, and heard in accordance with the procedures described in Chapter 67.

11-80-3: REQUIRED FINDINGS

A variance shall not be granted unless the Zoning Administrator, when acting as a Hearing Officer, or Board of Adjustment shall find upon sufficient evidence make a determination:

A. There are special circumstances applicable to the property, including its size, shape, topography, location, or surroundings, and

B. That such special circumstances are pre-existing, and not created by the property owner or appellant; and

C. The strict application of the zoning ordinance will deprive such property of privileges enjoyed by other property of the same classification in the same zoning district; and

D. Any variance granted will assure that the adjustment authorized shall not constitute a grant of special privileges inconsistent with the limitations upon other properties in the vicinity and zone in which such property is located.

11-80-4: USE VARIANCES PROHIBITED

No variance shall be granted to permit a use not otherwise permitted in the applicable zoning district.

11-80-5: CONDITIONS OF APPROVAL

In approving a variance, the Zoning Administrator, acting as a Hearing Officer, or Board of Adjustment may impose reasonable conditions necessary to insure that the variance shall not constitute a grant of special privilege inconsistent with the limitations upon other properties in the vicinity and the zoning district in which the subject property is located, including but not limited to the following:

A. Ensure that the project conforms in all significant respects with the General Plan and with any other applicable plans or policies adopted by the City;

B. Achieve the general purposes of this Ordinance and the specific purposes of the zoning district in which the site is located;

C. Protect the public health, safety, and general welfare; or

D. Ensure operation and maintenance of the use in a manner compatible with existing and potential uses in the surrounding area.

11-80-6: APPEALS; EXPIRATION AND EXTENSIONS; MODIFICATIONS

Variances are subject to the expiration, extension, modification, and appeal provisions of Chapter 67, Common Procedures and Chapter 77, Appeals.
(Ord. No. 5996, § 3, 3-9-26)

CHAPTER 81 ADAPTIVE REUSE PERMIT

11-81-1: PURPOSE

The purpose of the Adaptive Reuse Permit is to promote and facilitate the development and redevelopment of underutilized or abandoned buildings in accordance with A.R.S. § 9-462.10.

It is in the public interest to maximize efficiency of public services, infrastructure, and facilities as a means to achieve focused growth and provide a cost-effective method of municipal service delivery. The intent of the adaptive reuse permit is to:

A. Provide relief from certain development standards as incentives to stimulate re-investment and reuse of existing buildings.

B. Reduce, simplify, or eliminate the processes otherwise required to modify existing buildings, structures, and sites.

C. Permit flexibility in the use of buildings to expand their economic options.

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-2: APPLICABILITY

A. **Multiple Residence Reuse.**

1. All or part of an existing building located on an existing commercial, office, or mixed-use parcel, as defined in Chapter 87 of this Ordinance, that meets the eligibility requirements in Section 11-81-3 below may receive an adaptive reuse permit for the building to be reused to provide for multiple residence reuse.

2. Allows for the partial or complete demolition or renovation of an existing building.

B. **Adaptive Reuse.**

1. All or a part of an existing building located on an existing commercial, office, or mixed-use parcel, as defined in Chapter 87 of this Ordinance that meets the eligibility requirements in Section 11-81-3 below may receive an Adaptive Reuse Permit for the building to be reused for adaptive reuse.

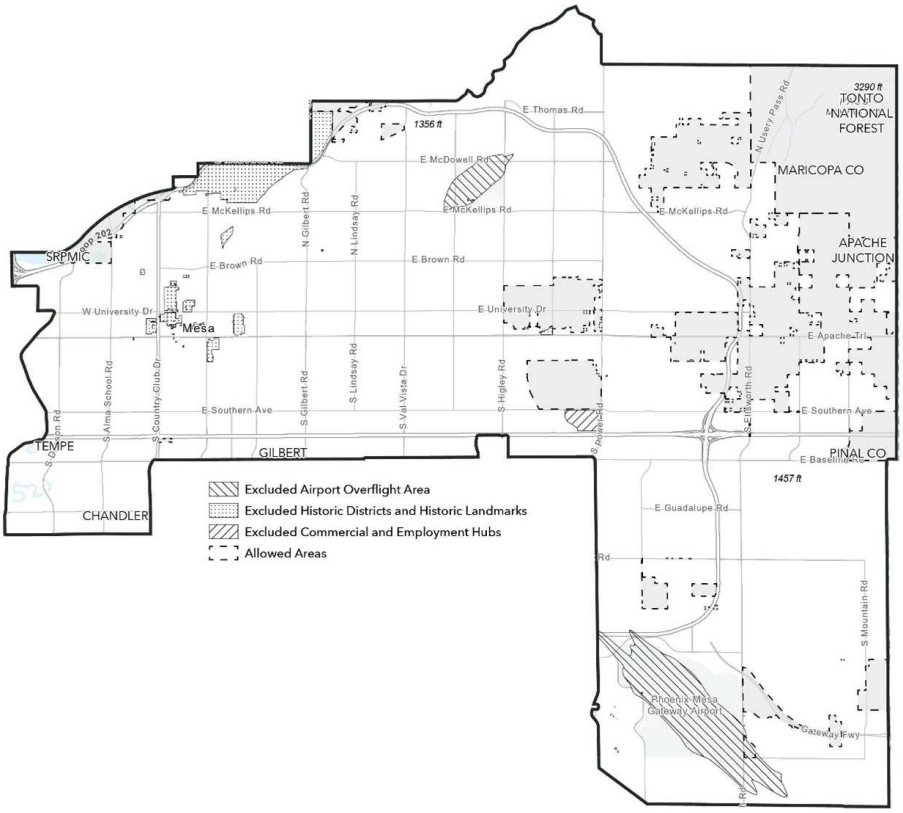
2. Allows for the partial, but not the complete, demolition of an existing building.

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-3: ELIGIBILITY

To qualify for an Adaptive Reuse Permit, a parcel must meet all of the following criteria:

A. **Location.** The parcel must be located within an allowed area identified in Map 11-81-3.A below.



MAP 11-81-3.A

B. **Parcel Size.** The parcel or parcels of land must be at least one (1) acre but no more than 20 acres in size.

C. **Building Condition and Vacancy.** The parcel must contain a building in a state of disrepair or have at least 50% vacancy in the total leasable square footage.

D. **Affordable Housing.** Ten percent (10%) or more of the total dwelling units must be set aside for moderate-income housing, low-income housing, or any combination thereof, for a period of at least 20 years from the issuance of an initial certificate of occupancy for the building. For the purpose of calculating the 10%, the required number of dwelling units will be rounded up to the next whole number.

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-4: APPLICATION CAP, TRACKING, AND REPORTING

A. **Application Cap.** No more than 457 existing commercial, office, or mixed-use parcels may be redeveloped for multiple residence reuse or adaptive reuse through an adaptive reuse permit.

B. **Tracking.** The City shall track the number of parcels redeveloped pursuant to this Chapter and shall stop accepting Adaptive Reuse Permit applications when the total number of the following equals 457 parcels:

1. The number of parcels redeveloped using an Adaptive Reuse Permit; plus

2. The number of parcels with approved Adaptive Reuse Permits that have not yet completed construction; plus

3. The number of parcels with pending Adaptive Reuse Permit applications.

C. **Affordable Housing Requirements and Reporting.**

1. ***Restrictions or Guarantees.*** In order to ensure compliance with A.R.S. § 9-462.10, as a condition of final approval of an Adaptive Reuse Permit, the applicant shall provide to the City a deed restriction, restrictive covenant, or other restriction or guarantee that may be approved by the City, ensuring that 10% of the housing units shall be reserved for moderate-income housing, low-income housing, or any combination thereof for a period of at least 20 years from the issuance of a certificate of occupancy.

2. ***Annual report.*** To ensure continued compliance with A.R.S. § 9-462.10, for a period of twenty years, the property owner of a parcel with an Adaptive Reuse Permit shall annually provide the City with a report demonstrating that 10% of the units are reserved for moderate-income housing, low-income housing, or a combination thereof.

3. ***Redevelopment.*** In the event an Adaptive Reuse Permit building is approved for redevelopment to a different use through the City's normal processes and procedures, the requirements in this Subsection (C) shall no longer be applicable and the City shall, upon request of the property owner, acknowledge release of the restriction or guarantee required in Subsection (C)(1).

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-5: LAND USE REGULATIONS

Multiple residence reuse and adaptive reuse do not have to comply with Section 11-31-31 (Residential Uses in Commercial Districts) and are not subject to any public hearing.
(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-6: DEVELOPMENT STANDARDS FOR AN ADAPTIVE REUSE PERMIT

A. **Multiple Residence Reuse Development Standards.**

1. ***Determining Applicable Development Standards.***

a. Development standards for multiple residence reuses shall be based on the development standards for the zoning district with the greatest density in the City of Mesa within one (1) mile of the parcel being redeveloped that is either a multiple residence base zoning district or a zoning district that allows residential development.

b. If there are no multiple residence base zoning districts or zoning districts that allow residential development in the City of Mesa within one (1) mile of the parcel being redeveloped, the development standards for multiple residence reuses shall be based on the development standards for either the geographically closest zoning district in the City of Mesa with the greatest density that is either a multiple residence base zoning district or allows residential development.

c. A multiple residence reuse project constructed pursuant to this chapter cannot be used to determine the development standards applicable to a subsequent multiple residence reuse.

2. ***Specific Height Restrictions.***

a. Except as allowed by Subsection (C) below, the maximum building height for a multiple residence reuse building shall not exceed five stories; and

b. Portions of multiple residence projects, located within 100 feet of a single residence use or zoning district are limited to two (2) stories in height.

B. **Adaptive Reuse Development Standards.** The development standards for adaptive reuses shall be based on the development standards for the underlying zoning district in accordance with Article 2 and Article 4 of this Ordinance.

C. **Non-Conforming Structures—Multiple Residence Reuse and Adaptive Reuse.**

1. ***Non-conforming Building Height.*** Existing buildings that exceed the maximum building height permitted by the underlying zoning district for multiple residence use and that receive an adaptive reuse permit may remain at their existing height may be expanded to the maximum allowable density for the proposed multiple residential use.

2. ***Non-conforming Yards.*** Existing buildings with a yard setback less than the minimum required yard for the proposed multiple residential use may remain in their current location unless easements are located within the setback areas.

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25)

11-81-7: APPEALS; EXPIRATION AND EXTENSIONS; MODIFICATIONS

A. **Appeals.** Adaptive Reuse Permits are subject to the appeal provisions of Chapter 77, Appeals, in this Ordinance.

B. **Expiration and Extensions.** An Adaptive Reuse Permit is not subject to the expiration and extension requirements of Section 11-67-9 of this Ordinance.

C. **Modifications to an Approved Adaptive Reuse Permit.** Proposed modifications to an approved Adaptive Reuse Permit, including change of use or modifications to approved plans, shall be submitted to the Planning Division for review to ensure conformance with the eligibility criteria in this Chapter and required processes.

(Ord. No. 5904, § 5, 12-9-24; Ord. No. 5946, § 1, 7-1-25; Ord. No. 5996, § 3, 3-9-26)

CHAPTERS 82—85 (RESERVED FOR FUTURE USE)

[The next page is T11:799]

ARTICLE 8
LAND USE CLASSIFICATIONS AND DEFINITIONS

CHAPTER 86 USE TYPES

11-86-1: PURPOSE AND APPLICABILITY

A. Use classifications describe one (1) or more uses of land having similar characteristics, but do not list every use or activity that may appropriately be within the classification.

B. If a proposed use or activity is not explicitly listed in this Chapter, the Zoning Administrator has the authority to:

1. Determine whether the proposed use or activity is within or equivalent to a use specifically listed in this Chapter; or

2. Not within or equivalent to any use specifically listed in this Chapter.

C. When making its determination, the Zoning Administrator may consider among other things whether the characteristics and impact are similar to, and substantially compatible with, a use specifically listed in this Chapter (e.g., scale, function, noise, traffic); any incompatibilities or greater impacts; how the proposed use functions within the building; future reuse or redevelopment of the building; and industry terms or definitions in other Chapters of the Zoning Ordinance.

D. If the Zoning Administrator determines a proposed use or activity is within or equivalent to a use listed in this Chapter the proposed use or activity will be treated in the same manner as the use it is deemed to be within or equivalent to, and the same requirements for the use under the applicable zoning district will apply such as Land Use Regulations, Development Regulations including Standards for Specific Uses and Activities, and Administrative Regulations.

E. If the Zoning Administrator determines that a proposed use is not within or equivalent to a use listed in this Chapter the proposed use is not allowed unless otherwise permitted in an approved plan as set forth in Article 2 or an approved Overlay Zone as set forth in Article 3.

(Ord. No. 5962, § 2, 9-22-25)

11-86-2: RESIDENTIAL USE CLASSIFICATIONS

Assisted Living Center: An Assisted Living Facility that provides resident rooms or dwelling units to 11 or more residents.

Assisted Living Facility: A residential care institution, including adult foster care, that is licensed by the State of Arizona to provide supervisory care services, personal care services or directed care services on a continuing basis.

Assisted Living Home: An Assisted Living Facility that provides resident rooms for five (5) to ten (10) residents.

Boarding House. A residential dwelling for five (5) or more unrelated individuals in which the owner(s) provides lodging for compensation. A boarding house is occupied by individuals where rent is charged separately for the

individual rooms or partitioned areas and may or may not be equipped with kitchen facilities and congregate dining facilities. The term shall include similar congregate living arrangements but does not include community residences, hotels, motels, residential inns or bed and breakfasts.

Community Residence. A community residence is a residential living arrangement for five to ten individuals with disabilities, excluding staff, living as a family in a single dwelling unit who are in need of the mutual support furnished by other residents of the community residence as well as the support services, if any, provided by the staff of the community residence. Residents may be self-governing or supervised by a sponsoring entity or its staff, which provides habilitative or rehabilitative services related to the residents' disabilities. A community residence seeks to emulate a biological family to foster normalization of its residents and integrate them into the surrounding community. Its primary purpose is to provide shelter in a family-like environment. Medical treatment is incidental as in any home. Supportive interrelationships between residents are an essential component. Community residence includes sober living homes and assisted living homes but does not include any other group living arrangement for unrelated individuals who are not disabled nor any shelter, rooming house, boarding house or transient occupancy.

Family Community Residence. A community residence is a relatively permanent living arrangement with no limit on the length of tenancy as determined in practice or by the rules, charter, or other governing documents of the community residence. The minimum length of tenancy is typically a year or longer.

Transitional Community Residence. A community residence that provides a relatively temporary living arrangement with a limit on length of tenancy less than a year that is measured in weeks or months, as determined either in practice or by the rules, charter, or other governing document of the community residence.

Comprehensive Youth Residence. A dwelling or dwellings maintained by an organization for the purpose of caring for ten (10) or more minor children, separated from their parents or legal guardians, through the use of on-site resident staff. Such staff are not related to the minor children by blood, marriage or adoption, and the children are not considered legal wards of the staff. The facility shall be licensed by the State of Arizona.

Correctional Transitional Housing Facility (CTHF). A supervised residential center where individuals who are completing a sentence, reside for a defined period of time for counseling, job placement assistance, and similar services that assist in transitioning from institutional to community living. A CTHF is not exempt from the tax imposed under Mesa City Code § 5-10-445. The term shall include any boarding house, dormitory, or apartment building or other dwelling when developed, promoted, advertised, or operated as a CTHF, but shall not include community residences, or any facility providing counseling or other services to individuals who do not reside on the premises. The maximum number of residents is limited to 30.

Day Care Group Home. A facility, the primary use of which is a residence, in which care of children through the age of 12 years is regularly provided for compensation for periods of less than 24 hours per day.

Small Day Care Group Home. Home daycare for less than 5 children full- or part-time.

Large Day Care Group Home. Home day care for not less than 5 children full-time and part-time but no more than 10 children full-time and part-time.

Group Foster Home. A home licensed by the State of Arizona as a group foster home that is maintained by an individual or individuals having the care or control of five (5) to ten (10) minor children who are not: (1) related to such individuals or to each other by blood, marriage, or adoption; or (2) legal wards of such individuals.

Home Occupations: An ancillary use in any Residence or Mixed-Use district which:

A. Is clearly incidental to a residence use;

B. Is subordinate to the purpose of the residence use;

C. Contributes to the comfort, convenience, or necessity of occupants in the residence use;

D. Is located on the same lot or parcel as the residence use served;

E. Includes swimming lessons, babysitting, and fine arts instruction, each for 5 or fewer persons;

F. Includes door-to-door and telephone solicitation;

G. Includes uses and activities that can be conducted entirely indoors without negatively impacting the residential character of the neighborhood or health, safety, and welfare of neighbors; and

H. Excludes on-site exchange of sold or bartered goods (exceptions made for occasional and infrequent exchanges), on-site vehicle repair as a commercial use, commercial warehousing or storage - indoor or outdoor, non-resident employees working in the home, or manufacturing of products using hazardous materials or equipment not typically found in household settings.

Manufactured Home Park. An approved residential development as shown in the records of the Planning Division in which individual spaces are provided for the placement of a Manufactured Home for dwelling unit purposes, whether or not a charge is made for such accommodation.

Manufactured Home Subdivision. A residential subdivision as shown in the records of the Maricopa County Recorder's Office, designed and approved in accordance with planned area development and subdivision regulations, in which individual ownership of a lot is permitted for the placement of a Manufactured Home for dwelling unit purposes.

Middle Housing: Duplexes, Triplexes, Fourplexes, and Townhouses that are compatible in scale, form and character with single residence dwelling units and that contain two or more attached, detached, stacked or clustered homes.

Multiple Residence. Two or more primary dwelling units on a single lot. Types of Multiple Residence dwellings include duplexes, garden apartments, and multi-story apartment buildings. Each dwelling unit is designed for occupancy by one family.

Recreational Vehicle Park. An approved residential development as shown in the records of the Planning Division in which individual spaces are provided for parking of 1 Recreational Vehicle per space for temporary portable housing purposes, whether or not a charge is made for such accommodation.

Recreational Vehicle Subdivision. A residential subdivision as shown in the records of the Maricopa County Recorder's Office, designed and approved in accordance with planned area development and subdivision regulations, in which individual ownership of a lot is permitted for the placement of a Recreational Vehicle for temporary portable housing purposes.

Single Residence. A dwelling unit designed for occupancy by one family and located on a separate lot or parcel from any other unit (except Accessory Dwelling Units, where permitted). This classification includes individual manufactured housing units and individual Recreational Vehicles when used as residences in RV Parks and Subdivisions. A Single Residence may also be referred to as a "Primary Residence" (see Chapter 87 of this Title).

Detached. A Single Residence dwelling unit that is not attached to any other dwelling unit (except accessory living quarters, where permitted).

Attached. A Single Residence dwelling unit, located singly on a lot or parcel, but attached through common vertical walls to one or more dwellings on abutting lots or parcels.

Accessory Dwelling Unit (ADU). An attached or detached self-contained living unit that is on the same lot or parcel as a Single-Family dwelling of greater square footage than the Accessory Dwelling Unit, that includes its own sleeping and sanitation facilities and kitchen area.

Skilled Nursing Facility. A health care institution other than a Hospital, Assisted Living Facility or Nursing and Convalescent Home which provides resident beds or dwelling units, supervisory care services, personal care service, directed care services or health-related services for persons on a temporary basis. Skilled Nursing Facilities do not emulate a family and normalization and community integration are not among their core goals. This classification does not include Community Residences, Assisted Living Homes, Assisted Living Centers, or Social Service Facilities.
(Ord. No. 5592, § 6, 12-1-20; Ord. No. 5632, § 5, 7-8-21; Ord. No. 5814, § 7, 10-16-23; Res. No. 12269, § 17, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5989, § 6, 12-8-25; Ord. No. 5996, § 4, 3-9-26)

11-86-3: PUBLIC AND SEMI-PUBLIC USE CLASSIFICATIONS

Cemeteries. Land dedicated to burial of the dead, including mausoleums, crypts, and accessory sales, and maintenance facilities, but not including Funeral Parlors, Mortuaries or Crematories.

Clubs and Lodges. Meeting, recreational, or social facilities of a private or nonprofit organization primarily for use by members or guests. This classification includes union halls and social clubs.

Colleges and Trade Schools, Public or Private. Post-secondary educational institutions providing curricula of a general, religious or professional nature, typically granting recognized certification of professional training and/or accredited degrees, including Conference Centers and academic retreats associated with such institutions. This classification includes business and computer schools, management training, technical and Trade Schools, but excludes personal instructional services, such as music lessons. Incidental training or instruction done in conjunction with an on-site business use permitted as a primary activity in the zoning district shall not be considered a business or Trade School.

Colleges or Universities. Public or Private. A post-secondary institution of higher learning that grants associate and/or bachelor's degrees, and may also have research facilities and/or professional schools that grant master and/or doctoral degrees. This classification includes community colleges that grant associate degrees, and/or certificates of completion in business or technical fields.

Commercial Trade Schools. Public or Private. Schools established to provide teaching of clerical, managerial, or artistic skills, such as accounting, data processing, or computer repair. This classification excludes establishments providing training for activities that are not otherwise allowed in the zoning district.

Industrial Trade Schools. Public or Private. Schools offering training in industrial trades, such as welding or metal fabrication.

Community Center. Any noncommercial facility established primarily for the benefit and service of the population of the community in which it is located. Examples include youth centers and senior centers. This classification excludes community facilities operated in conjunction with an approved residential or commercial use that are not generally available to the public.

Community Garden. Area of land managed and maintained by a group of individuals to grow and harvest food crops and/or non-food, ornamental crops, such as flowers, for personal or group use, consumption or donation. The area may be divided into separate plots for cultivation by one or more individuals or may be farmed collectively by members of the group and may include common areas maintained and used by group members.

Cultural Institutions. Public or non-profit institutions engaged primarily in the display or preservation of objects of interest in the arts or sciences that are open to the public on a regular basis. This classification includes performing arts centers for theater, dance, and events; libraries; museums; historical sites; aquariums; art galleries; and zoos and botanical gardens.

Day Care Centers. Establishments providing non-medical care for persons on a less than 24-hour basis other than Day Care Group Homes. This classification includes nursery schools, preschools, and day care facilities for children or adults, and any other day care facility licensed by the State of Arizona.

Government Offices. Administrative, clerical, or public contact offices of a government agency, including postal facilities, together with incidental storage and maintenance of vehicles. This classification excludes equipment service centers and similar facilities that primarily provide maintenance and repair services and storage facilities for vehicles and equipment (See Public Maintenance Facilities).

Hospitals and Clinics. Facilities providing medical, surgical, psychiatric, or emergency medical services to sick or injured persons. This classification includes facilities for inpatient or outpatient treatment, including substance-abuse programs as well as training, research, and administrative services for patients and employees.

Clinics. Facilities other than hospitals where patients are admitted for examinations and treatment by one (1) or more physicians, on either a "walk-in" or "appointment" basis. Patients are treated on an outpatient basis and are not admitted for overnight treatment or observation. This classification includes emergency medical services offered exclusively on an out-patient basis, such as urgent care centers, as well as licensed facilities offering substance abuse treatment, blood banks and plasma centers.

Hospitals. Institutions providing medical and surgical care to the sick or injured, including operating facilities and beds for patients to stay overnight. These establishments may include nursing facilities, extended care facilities, physical therapy, gift shops, retail pharmacies, employee housing, temporary housing for patient families, cafeterias or restaurants, and related uses operated primarily for the benefit of patients, staff, and visitors.

Nursing and Convalescent Homes. Establishment that provide 24-hour medical, convalescent or chronic care to individuals who, by reason of advanced age, chronic illness or infirmity, are unable to care for themselves, and is licensed as a skilled nursing facility by the State of Arizona, including but not limited to, rest homes and convalescent hospitals, but not Residential Care, Hospitals, or Clinics.

Parks and Recreation Facilities, Public. Parks, playgrounds, recreation facilities, trails, wildlife preserves, and related open spaces, all of which are noncommercial. This classification also includes playing fields, courts, gymnasiums, swimming pools, picnic facilities, tennis courts, and golf courses, botanical gardens, as well as related food concessions or community centers within the facilities.

Places of Worship. A facility for religious worship and incidental religious education and offices, and may include private schools (Grades: Kindergarten through 12) for primary or secondary education, as defined in this section. This classification includes churches, temples, and other facilities used primarily for religious services or activities.

Public Safety Facilities. Facilities providing public-safety and emergency services, including police and fire protection and emergency medical services, with incidental storage, and maintenance facilities.

Public Maintenance Facilities. Facilities providing maintenance and repair services for vehicles and equipment and materials storage areas. This classification includes equipment service centers, and similar public facilities.

Schools, Public or Private. Facilities for primary or secondary education, including public schools, charter schools, and private institutions having curricula of general academic education consistent with the academic requirements of the State of Arizona, including kindergarten, elementary, junior high school, and high school, including accessory facilities traditionally associated with schools, such as athletic stadia, cafeterias and libraries.

Social Service Facility. A facility where the primary purpose is to provide either: 1) on-site food, clothing, shelter, employment or other related services, such as counseling for employment, or other services for individuals with limited ability for self care; or 2) alcohol, drug, or substance abuse or other treatment or medical programs or services, such as detoxification, where shelter is incidental and of limited duration. The term includes homeless

shelters, charity dining facilities, rescue missions, day labor hiring centers, substance abuse and detoxification center, and similar facilities, but does not include care facilities such as community residence, group foster home, correctional transitional housing facilities, nursing and convalescent homes, or assisted living facilities.
(Ord. No. 5814, § 8, 10-16-23)

11-86-4: COMMERCIAL USE CLASSIFICATIONS

Animal Sales and Services:

Small Animal Day Care. Facilities in which owners of small animals, principally dogs and cats, may contract with the operator for the keeping of pets for short, temporary periods, usually 1 day or less, but occasionally up to a week or so while the pet owner(s) are unable to care for the animals.

Boarding Stables. Facilities in which equines are kept for sale or hire to the general public. Breeding, boarding, or training of equines may also be conducted.

Kennels. Facilities for keeping, boarding, training, breeding or maintaining for commercial purposes, 4 or more dogs, cats, or other household pets not owned by the kennel owner or operator. This classification excludes pet shops and animal hospitals that provide 24-hour accommodation of animals receiving medical or grooming services.

Pet Stores. Retail sales of animals and/or services, including grooming, for animals on a commercial basis. This classification excludes dog walking and similar pet care services not carried out at a fixed location, and excludes pet supply stores that do not sell animals or provide on-site animal services.

Veterinary Services. Medical care for small and large animals on a commercial basis. This classification allows 24-hour accommodation of animals receiving medical or grooming services but does not include kennels. This classification includes animal hospitals and clinics providing services such as medical examinations, diagnosis, and procedures; dispensing of medications for animals; providing surgical procedures, and space for supervised recuperation from medical and surgical procedures.

Artists' Studios. Work space for artists and artisans, including individuals practicing one of the fine arts or performing arts, or skilled in an applied art or craft. There must be incidental retail sales of items produced on the premises. This category may also include incidental instruction.

Automobile/Vehicle Sales and Services:

Accessory Automobile Rentals. Rental and/or parking of automobiles or light-duty sport utility vehicles as an accessory use to a motel, hotel or resort, or an individual tenant space in a Group C-O-I Development with a limited number of on-site parking spaces available to the rental office. Incidental maintenance of vehicles takes place off site at another facility.

Automobile Rentals. Rental of automobiles, including storage and incidental maintenance.

Automobile/Vehicle Sales and Leasing. Sales or leasing of automobiles, motorcycles, trucks, and motor homes, including storage and incidental maintenance.

Automobile/Vehicle Repair, Major. Repair of automobiles, trucks, motorcycles, motor homes, and recreational vehicles, including the sale, installation, and servicing of related equipment and parts, generally on an overnight basis. This classification includes auto repair shops, body and fender shops, transmission shops, but excludes vehicle dismantling or salvaging and tire re-treading or recapping.

Automobile/Vehicle Service and Repair, Minor. The service and repair of automobiles, light-duty trucks, and motorcycles, including the sale, installation, and servicing of related equipment and parts. This classification includes quick-service oil, tune-up, wheel and brake shops, muffler shops, auto glass services, and tire sales and installation, where repairs are made or service provided in enclosed bays and no vehicles are stored overnight. This classification excludes establishments providing engine repair, body and fender work, vehicle painting, or towing. It also excludes repair of heavy trucks or construction vehicles.

Automobile/Vehicle Washing. Washing, waxing, vacuuming, or cleaning of automobiles or similar light vehicles, including automatic, self-serve and hand washing facilities.

Large Vehicle and Equipment Sales, Service, and Rental. Sales, servicing, rental, fueling, and washing of large trucks, trailers, tractors, and other equipment used for personal, construction, agricultural, or landscape gardening activities. Includes large vehicle operation training facilities. Sales of new or used automobiles or trucks are excluded from this classification.

Service Station. Establishments primarily engaged in retailing automotive fuels or retailing these fuels in combination with activities, such as providing repair services; selling automotive oils, replacement parts, and accessories; and/or providing food services.

Towing and Impound. Establishments primarily engaged in towing light or heavy motor vehicles, both local and long distance. These establishments may provide incidental services, such as vehicle storage and emergency road repair services (For automobile/dismantling, See Salvage and Wrecking).

Banks and Financial Institutions. Financial institutions providing retail banking services. This classification includes only those institutions engaged in the on-site circulation of money, including credit unions and businesses offering check-cashing facilities, but excluding non-chartered financial institutions.

With Drive-Through Facilities. Establishments providing banking services to patrons remaining in automobiles.

Banquet and Conference Centers. Facilities that are rented for short-term events such as weddings, receptions, banquets, and conferences, as a principal business activity (not accessory to another use such as a Place of Worship or Community Center).

Bed and Breakfast Inns. Establishments providing not more than 5 guest rooms for lodging on a less than weekly basis typically in a converted single-residence or multi-residence dwelling, with incidental eating and drinking service provided from a single kitchen for lodgers and residents only.

Boat and recreational vehicle storage: The parking, keeping or placing of boats, recreational vehicles, and associated equipment, such as but not limited to, utility trailers, jet skis, snow mobiles, and all terrain vehicles.

Building Materials and Services. Retailing, wholesaling, or rental of building supplies or equipment. This classification includes lumber yards, tool and equipment sales or rental establishments, and includes establishments devoted principally to taxable retail sales to individuals for their own use. This definition does not include hardware stores less than 10,000 square feet in floor area (See Retail Sales) or Contractors' Yards.

Business Services. Establishments that primarily provide goods and services to other businesses on a fee or contract basis, including printing and copying, blueprint services, advertising and mailing, equipment rental and leasing, office security, custodial services, photo finishing, and model building.

Commercial Entertainment. Provision of spectator entertainment to the general public including live and motion picture theaters and concert halls. This category excludes cabarets, nightclubs, and similar establishments providing entertainment incidental to food or beverage sales.

Commercial Recreation. Provision of participant or spectator recreation to the general public, excluding public park and recreation facilities.

Small-Scale. This classification includes small, generally indoor facilities, that occupy less than 50,000 square feet of building area, such as billiard parlors, bowling centers, card rooms, dance studios, exercise studios, health clubs, yoga studios, dance halls, small tennis club facilities, poolrooms, and amusement arcades. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Large-Scale. This classification includes large, generally outdoor facilities such as amusement and theme parks, sports stadiums and arenas, racetracks, amphitheaters, driving ranges, golf courses (daily fee), as well as indoor facilities with more than 50,000 square feet in building area, including fitness centers, gymnasiums, handball, racquetball, or large tennis club facilities; ice or roller skating rinks; swimming or wave pools; miniature golf courses; archery or indoor shooting ranges; riding stables; campgrounds; stables, etc. This classification may include restaurants, snack bars, and other incidental food and beverage services to patrons.

Drive-Up ATM/Teller Window. Banking and financial institutions that provide a driveway approach for automobiles to serve patrons remaining in an automobile, including stand-alone automated teller machines, automated teller machines attached to a building or structure, and service windows on a building or structure.

Drive-Thru Facilities. Establishments providing goods, food, or beverage through a window to patrons remaining in an automobile, where an order menu board is present, and orders are placed on site via an order menu box or via an employee taking orders from patrons remaining in an automobile.

Eating and Drinking Establishments. Businesses primarily engaged in serving prepared food and/or beverages for consumption on or off the premises.

Bars/Clubs/Lounges. Businesses serving beverages for consumption on the premises as a primary use including on-sale service of alcohol including beer, wine, or mixed drinks, and businesses that do not meet the definition of Full Service or Limited Service Restaurants.

Coffee Shops/Cafes. Establishments that primarily serve nonalcoholic beverages, such as coffee, juices, or sodas for consumption on or near the premises, or a specialty snack, such as ice cream, frozen yogurt, cookies or popcorn.

Restaurants, Bar and Grill. Restaurants providing food and beverage services to patrons who order and are served while seated and pay after eating. Takeout service may be provided, but a minimum of 30 percent of gross sales revenue must be from serving food to be classified as a Bar and Grill Restaurant.

Restaurants, Full Service. Restaurants providing food and beverage services to patrons who order and are served while seated and pay after eating. Takeout service may be provided, but a minimum of 40 percent of gross sales revenue must be from serving food to be classified as a Full Service Restaurant.

Restaurants, Limited Service. Establishments where food and beverages may be consumed on the premises, taken out, or delivered, but where no table service is provided. This classification includes cafeterias,

fast-food restaurants, carryout sandwich shops, limited service pizza parlors and delivery shops, self-service restaurants, snack bars and takeout restaurants. A minimum of 40 percent of gross sales revenue must be from serving food to be classified as a Limited Service Restaurant.

With Outdoor Eating Areas. Provision of outdoor dining facilities on the same property or in the adjacent right-of-way.

Farmer's Markets. Periodic outdoor sales activities involving the display and sale of fresh produce and locally produced food and beverage items, including baked goods, jams, jellies, and similar food products. The display and sale of hand-crafted artisan items may be considered as an accessory activity, provided the principal activity remains the sale of the food- or produce-related items.

Food and Beverage Sales. Retail sales of food and beverages for off-site preparation and consumption. Typical uses include food markets, groceries, and retail bakeries.

Convenience Market. Retail establishments that sell a limited line of groceries, prepackaged food items, tobacco, magazines, and other household goods, primarily for off-premises consumption and typically found in establishments with long or late hours of operation and a relatively small building of less than 5,000 square feet. This classification includes small retail stores located on the same parcel as or operated in conjunction with a service station.

General Market. Retail markets of food and grocery items for offsite preparation and consumption. Typical uses include supermarkets and specialty food stores, such as bakeries, candy, nuts and confectionary stores, meat or produce markets, vitamins and health food stores, cheese stores and delicatessens.

Funeral Parlors and Mortuaries. An establishment primarily engaged in the provision of services involving the care, preparation, or disposition of the human dead and conducting memorial services. Typical uses include a crematory, columbarium, mausoleum, or mortuary.

Hotels and Motels. Establishments offering lodging to transient patrons. These establishments may provide additional accessory services, such as conference and meeting rooms, restaurants, bars, or recreation facilities available to guests and the general public. This classification includes motor lodges, motels, hostels, extended-stay hotels, and tourist courts, but does not include rooming houses, boarding houses, or private residential clubs. The lengths of stays for the majority of guests at these facilities are for 30 days or less.

Laboratories. Establishments providing medical, dental or optical laboratory services or establishments providing photographic, analytical, research and development or testing services.

Large Commercial Development. Commercial buildings over 25,000 square feet or commercial centers with four (4) or more buildings whose combined gross floor area exceeds 25,000 square feet.

Light Fleet-Based Services. Passenger transportation services, local delivery services, medical transport, and other businesses that rely on fleets of 3 or more vehicles with rated capacities less than 10,000 lbs. This classification includes parking, dispatching, and offices for taxicab and limousine operations, ambulance services, non-emergency medical transport, local messenger and document delivery services, home cleaning services, and similar businesses. This classification does not include towing operations (See Automobile/Vehicle Sales and Service, Towing and Impound) or taxi or delivery services with 2 or fewer fleet vehicles on-site (See Business Services).

Live/Work Unit. A commercial or industrial unit with incidental residential accommodations that includes adequate working space reserved for office, commercial or industrial use and regularly used for such purpose by 1 or more persons residing in the unit and a cooking space and sanitary facilities in conformance with applicable building standards. Up to 67 percent of the gross floor area may be reserved for and primarily used as living space.

Maintenance and Repair Services. The on-site maintenance or repair of office machines, household appliances, furniture, and similar items. This classification excludes maintenance and repair of vehicles or boats (See Automotive Sales and Services) and personal apparel (See Personal Services).

Non-chartered Financial Institution. A business, other than a state or federally chartered bank, credit union, mortgage lender or savings and loan association, that offers check cashing services and loans for payment of a percentage fee. Specifically included are check cashing businesses that charge a percentage fee for cashing a check or negotiable instrument, and payday loan businesses that make loans upon assignment of wages received. Excluded are retail uses in which a minimum of 70 percent of the floor area of the store is devoted to the display or sale of merchandise.

Off-Track Betting Establishment. A facility in which simulcasting of horse or dog racing events held away from the facility are shown for the purpose of pari-mutuel wagering. Operated as an accessory use to an Eating and Drinking Establishment as defined by this Chapter, and authorized by issuance of an Off-site Teletrack Wagering Permit in accordance with ARS 5-112, and AAD R19-2-401 and following.

Offices:

> **Business and Professional.** Offices of firms or organizations providing professional, executive, management, administrative or design services, such as accounting, architectural, computer software design, engineering, graphic design, interior design, investment, and legal offices.
>
> **Medical and Dental.** Offices where medical and dental services are provided by physicians, dentists, chiropractors, optometrists, and similar medical professionals. This classification also includes physical therapy, massage therapy, and counseling services related to medical conditions.

Parking, Commercial. Surface lots and structures offering parking to the public for a fee when such use is not incidental to another activity.

Personal Services. Provision of recurrently needed services of a personal nature. This classification includes barber and beauty shops, seamstresses, tailors, dry cleaning agents (excluding large-scale bulk cleaning plants), shoe repair shops, self-service laundries, photocopying and photo finishing services, and travel agencies.

Pick-Up Window Facilities. Establishments providing goods, food, or beverage through a window to patrons remaining in an automobile, where orders are placed by patrons before reaching the establishment, and where no order menu board, order menu box, or employee taking orders from patrons remaining in an automobile are present. An establishment which uses parking spaces designated for pick up orders rather than a window are not included in this definition.

Plant Nurseries and Garden Centers. Establishments primarily engaged in retailing nursery and garden products - such as trees, shrubs, plants, seeds, bulbs, and sod - that are predominantly grown elsewhere. These establishments may sell a limited amount of a product they grow themselves. This classification includes wholesale and retail nurseries offering plants for sale.

Retail Sales:

General. The retail sale or rental of merchandise not specifically listed under another use classification. This classification includes department stores, clothing stores, furniture stores, pet supply stores, small hardware stores (with 25,000 square feet or less of floor area), and businesses retailing the following goods: toys, hobby materials, handcrafted items, jewelry, cameras, photographic supplies and services (including portraiture and retail photo processing), medical supplies and equipment, pharmacies, electronic equipment, records, sporting goods, kitchen utensils, hardware, appliances, antiques, art galleries, art supplies and services, paint and wallpaper, carpeting and floor covering, office supplies, bicycles, video rental, and new automotive parts and accessories (excluding vehicle service and installation). Retail sales may be combined with other services such as office machine, computer, electronics, and similar small-item repairs. This classification includes secondhand and wholesale stores.

Pawn Shops. A business in which a principal business activity involves advancing money on the security of pledged goods or purchasing tangible personal property on the condition that it may be redeemed or repurchased by the seller for a fixed or variable price within a fixed or variable period of time.

Swap Meets and Flea Markets. Occasional or periodic commercial activities held in an open area where: 1) groups of sellers rent space to display, barter or sell goods to the public; and/or 2) one or more sellers bring goods for auction to the public. A swap meet is composed of semi-enclosed or outdoor stalls, stands or spaces, and is distinguished from a farmer's market or craft fair in that the principal items sold, displayed or bartered at a swap meet are not fresh produce items, art items or handicrafts.

Tattoo and Body Piercing Parlors. Establishments whose principal business activity is one (1) or more of the following: 1) using ink or other substances that result in the permanent coloration of the skin through the use of needles or other instruments designed to contact or puncture the skin; or 2) creation of an opening in the body of a person for the purpose of inserting jewelry or other decoration. Exception: Piercing earlobes as an accessory or subordinate activity when done at a shop or store selling jewelry as primary activity.
(Ord. No. 5544, § 17, 12-9-19; Ord. No. 5593, § 12, 12-1-20; Ord. No. 5758, § 3, 12-8-22; Ord. No. 5813, § 3, 10-16-23)

11-86-5: EMPLOYMENT AND INDUSTRIAL USE CLASSIFICATIONS

Airport and Aircraft Facilities:

Aircraft Refueling Stations. Any facility used for storing flammable liquids, combustible liquids, liquefied flammable gas, or flammable gas, and/or the location of equipment used for dispensing such fuels into the tanks of aircraft, or storing transportable equipment that delivers such fuels to be dispensed where the aircraft is parked.

Aircraft Light Maintenance. The replacement of a pre-manufactured part, or repair of any part of an existing aircraft, including incidental painting and body work, conducted entirely within an enclosed building.

Airport Transit Station. A facility designed to facilitate the transfer of passengers to, from or between transit-oriented transportation systems at an Airport.

Airport-related Long Term Parking Lot. Commercial or non-commercial parking lots at Airports intended for the storage of the personal vehicles of Airport passengers or Airport employees for periods of time longer than 24-hours.

Heliports. An area designed for take-off and landing of helicopters, and including support buildings intended to support and facilitate this function.

Battery Energy Storage System (BESS). Electrochemical devices that charge or collect energy from the grid or a generation facility, store that energy, and then discharge that energy at a later time to provide electricity or other grid services. A BESS includes battery cells; thermal, battery, and energy management systems; inverters; and related control and safety components.

Battery Energy Storage System Facility (BESS Facility). The physical site and all associated infrastructure and mechanical equipment necessary for the installation, operation, and maintenance of the BESS, including, but not limited to, enclosures; electrical, power generation, cooling, and ventilating equipment; access roads; substations; interconnection facilities; and supporting structures.

Cement Plants. A facility for the refinement or mixing of Portland cement, asphalt cement and cement-related products, including concrete, asphalt millings, and concrete batch plants.

Data Center. A facility, or portion of a facility, whose principal use is to store and manage computer systems, servers, networking equipment, and components related to digital data operations. This includes related infrastructure, office space, and staff areas necessary to support digital data operations. For purposes of this definition, digital data operations include the storage, processing, and distribution of digital information and may encompass activities related to artificial intelligence, block-chain technology, cryptocurrency mining, computational modeling, weather modeling, genome sequencing, and other computationally intensive applications.

Handicraft/Custom Manufacturing. Manufacture of crafts, art, sculpture, stained glass, jewelry, apparel, furniture, cabinet making, and similar items using hand tools and small mechanical devices.

Hazardous Waste Facility. All contiguous land and structures, other appurtenance, and improvements on the sites used for the treatment, transfer, storage, disposal or recycling of hazardous waste management units, or combinations of these units.

Incineration of Garbage or Organic Matter. Burning to ashes of carbon-based refuse or waste that is derived from materials produced during the life-cycle of plants or animals. Organic matter includes paper, wood, food and plastic, as well as the waste products of these and similar materials.

Light Assembly/Cabinetry. Putting together, fabricating, or making minor modifications to pre-manufactured items or pre-cut lumber as a last step for items intended to be sold as finished products. Includes assembling cabinets, furniture making and welding of pre-made parts, but excludes metal extrusion, sawmills, and manufacturing.

Manufacturing, General. Manufacturing of products from extracted or raw materials or recycled or secondary materials, or bulk storage and handling of such products and materials. This classification includes operations such as biomass energy conversion; food and beverage processing; textile mills; production apparel manufacturing; photographic processing plants; leather and allied product manufacturing; wood product manufacturing; paper manufacturing; chemical manufacturing; plastics and rubber products manufacturing; nonmetallic mineral

product manufacturing; primary metal manufacturing; fabricated metal product manufacturing; recycling materials processing facilities in which post-consumer materials are sorted, condensed, baled, or transformed; and automotive, ship, aircraft, and heavy equipment manufacturing.

Manufacturing, Limited. Establishments engaged in light industrial activities taking place primarily within enclosed buildings and producing minimal impacts on nearby properties. This classification includes operations such as manufacturing finished parts or products primarily from previously prepared materials; commercial laundries and dry cleaning plants; Mobile Home manufacturing; monument works; printing, engraving and publishing; computer and electronic product manufacturing; furniture and related product manufacturing; and industrial services.

Marijuana Cultivation Facility. A building, structure or premises used for the growing or storage of medical marijuana (cannabis spp.) and registered with the Arizona Department of Health Services (DHS) as related to a dispensary.

Marijuana: Dual Licensee Facility. An entity licensed by the Arizona Department of Health Services (ADHS) to operate both a medical marijuana dispensary and a marijuana establishment. The retail of recreational marijuana and medical marijuana must occur at the same location. Recreational marijuana sales may only occur in conjunction with medical marijuana sales regardless of the license held.

Marijuana Establishment. An entity licensed by the Arizona Department of Health Services to operate all of the following:

A. A single retail location at which the licensee may sell marijuana and marijuana products to consumers, cultivate marijuana and manufacture marijuana products.

B. A single off-site cultivation location at which the licensee may cultivate marijuana, process marijuana and manufacture marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

C. A single off-site location at which the licensee may manufacture marijuana products and package and store marijuana and marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

Marijuana Infusion Facility. A facility that incorporates medical marijuana (cannabis spp.) by the means of cooking, blending, or incorporation into consumable, edible or transdermal goods.

Meat Slaughterhouse or Packing Plant. A facility for the slaughtering and processing of animals and the refining of their by-products.

Medical Marijuana Dispensary. An entity registered, certified and authorized by ADHS as a "Nonprofit medical marijuana dispensary" that acquires, possesses, cultivates, manufactures, delivers, transfers, transports, supplies, sells or dispenses marijuana or related supplies and educational materials to cardholders.

Metal Refining, Casting or Extrusion. An industrial facility engaged in the production of metal parts or components by use of dies, casts or other similar methods.

Metal Smelting, Industrial. An industrial facility engaged in the production of metal parts and components from metal ore or molten metal products.

Oil Refinery/Petroleum Distillation. Oil related industrial activities involving the processing or manufacture of substances; such as tar, asphalt, asphalt felt, fuels, lubricating oils and greases, paving blocks made of asphalt, creosoted lumber and wood products, other compositions of tar and asphalt with other materials, and roofing cements and coatings.

Recycling Facility. A center for the collection and/or processing of recyclable materials.

Small Collection Facility. A center where the public may donate, redeem or sell recyclable materials, which may include the following, where allowed by the applicable zoning district:

a. Reverse Vending Machines;

b. Small indoor collection facilities which occupy an area of 1,000 square feet or less;

Large Collection Facility. Large collection facilities that occupy an area of more than 1,000 square feet and/or include permanent structures.

Processing Facility. A structure or enclosed space used for the collection and processing of recyclable materials for shipment, or to an end-user's specifications, by such means as baling, briquetting, cleaning, compacting, crushing, flattening, grinding, mechanical sorting, re-manufacturing and shredding. Processing facilities include the following types:

a. A light Processing Facility occupies an area of under 45,000 square feet of collection, processing and storage area, and averages two outbound truck shipments each day. Light processing facilities are limited to baling, briquetting, compacting, crushing, grinding, shredding and sorting of source separated recyclable materials. A light Processing Facility shall not shred, compact, or bale ferrous metals other than food and beverage containers; and

b. A heavy Processing Facility is any Processing Facility other than a light Processing Facility.

Research and Development. Establishments primarily engaged in scientific research, and the design, development, engineering, and testing of high-technology electronic, industrial or scientific products in advance of product manufacturing. The production of products, plans, or designs may be part of this classification when the primary purpose of such production is research, development, or evaluation, rather than sale. Typical uses include biotechnology firms, electronic research firms, or pharmaceutical research laboratories.

Salvage and Wrecking. Storage and dismantling of vehicles and equipment for sale of parts, as well as their collection, storage, exchange or sale of goods including, but not limited to, used building materials, used containers or steel drums, used tires, and similar or related articles or property.

Tanneries. An industrial activity whose principal business is the conversion of rawhides into leather by use of chemical or other methods.

Warehousing and Storage. Storage and distribution facilities with limited sales to the public on-site or restricted direct public access.

Contractor's Yards. Outdoor storage of construction materials or equipment.

Indoor Warehousing and Storage. Storage within an enclosed building of commercial goods prior to their distribution to wholesale and retail outlets and the storage of industrial equipment, products and

materials including but not limited to automobiles, feed, and lumber. Also includes cold storage, draying or freight, moving and storage, and warehouses. This classification excludes Data Centers, the storage of hazardous chemical, mineral, and explosive materials.

Outdoor Storage. Storage of vehicles or commercial goods (other than construction materials) in open lots.

Mini-Storage. Facilities offering storage for individual use. An on-site residence may be present for use by the site manager and family.

Wholesale. Establishments engaged in the distribution and sale of items for resale by retail stores, or bulk sale of goods to other professional business, industrial, or institutional users. Such activities are characterized through sales of items in large or gross quantities and not as individual items, and such establishments are typically not open to the general public for the purpose of offering items for individual sale or consumption of goods.
(Ord. No. 5633, § 1, 7-8-21; Ord. No. 5957, § 6, 7-8-25; Ord. No. 5976, § 8, 1-12-26)

11-86-6: TRANSPORTATION, COMMUNICATIONS, AND UTILITIES USE CLASSIFICATIONS

Airports. Facilities for the takeoff and landing of airplanes, including runways, aircraft storage buildings, public terminal buildings and parking, and support activities such as Airport operations and air traffic control.

Heliports. Facilities for the takeoff and landing of helicopters, as a primary use. Heliports typically contain one or more helipads and may have limited facilities, such as fuel, lighting, a windsock, or even hangars.

Communication Facilities:

Antenna and Transmission Towers. Broadcasting and other communication services accomplished through electronic or telephonic mechanisms, as well as structures designed to support one (1) or more reception/transmission systems. Examples of Transmission Towers include, but shall not be limited to, radio towers, television towers, telephone exchange/microwave relay towers, and cellular telephone transmission/personal communications systems towers.

Facilities within Buildings. Includes radio, television, or recording studios; telephone switching centers; excludes Antennae and Transmission Towers.

Freight/Truck Terminals and Warehouses. Facilities for local or worldwide freight, courier, local messenger, and postal services by truck or rail.

Solar Farms. A facility in which the principal activity is the production or conversion of energy from sunlight in the form of electricity or heat for distribution to uses, activities or facilities outside of the immediate location or vicinity.

Transportation Passenger Terminals. Facilities for passenger transportation operations. This classification includes rail stations, bus terminals, and scenic and sightseeing facilities, but does not include Airports or Heliports.

Utilities, Major. Generating plants, electric substations, solid waste collection, including transfer stations and materials recovery (recycling processing) facilities, solid waste treatment and disposal, water or wastewater treatment plants, and similar facilities of public agencies or public utilities.

Utilities, Minor. Facilities necessary to support established uses involving only minor structures, such as electrical distribution lines, electric vehicle charging stations, reverse vending machines and underground water and sewer lines.

11-86-7: AGRICULTURAL AND EXTRACTIVE USE CLASSIFICATIONS

Agriculture: Farming, including plowing, tillage, cropping and installation of best management practices, seeding, cultivating, or harvesting for the production of food and fiber products (except commercial logging and timber harvesting).

Crop and Animal Raising. The raising of tree, vine, field, forage, and other plant crops intended to provide food or fibers, as well as keeping, grazing, or feeding of animals for animal products, animal increase, or value increase, and dairying as an accessory use on farms with dairy cattle. The classification excludes wholesale or retail nurseries (See Plant Nurseries and Garden Centers).

Mining and Quarrying. The extraction of nonmetallic minerals, including dredging and sand and gravel pit operations. This classification includes surface mining operations.

11-86-8: MIXED-USE CLASSIFICATIONS

Mixed-Use Development: The development of a parcel(s) of land, building(s) or structure(s) with more than one (1) type of land use, such as residential, office, retail, public, or entertainment, where the different land uses on the parcel or parcels form a cohesive development with shared vehicular and pedestrian access and parking areas between the parcels, different land uses or both.

Horizontal Mixed-Use: A project that includes two (2) or more attached or detached single-story buildings with a combination of land uses (e.g., residential and commercial).

Vertical Mixed-Use: A project that includes one or more attached or detached multiple-story buildings containing both non-residential and residential dwelling units which are functionally integrated by the use of shared vehicular and pedestrian access and parking areas.
(Ord. No. 5593, § 13, 12-1-20)

11-86-9: TEMPORARY USE CLASSIFICATIONS

Temporary Outdoor Entertainment. A temporary use, occurring outside or in a temporary structure that provides entertainment or amusement through performance, attraction, or experiential exhibit, including but not limited to, concerts, haunted houses, corn mazes, circuses, carnivals, or similar uses.

Temporary Outdoor Sales. A temporary use involving the temporary, occasional, or periodic display and sale of goods held outdoors, or in semi-enclosed or outdoor stalls, or in temporary structures, including but not limited to, Flea Markets, Swap Meets, Farmers Markets, parking lot sales, art fairs, pop-up markets, Christmas tree lots, pumpkin lots, and firework stands. Temporary outdoor sales exclude garage and yard sales held at a private residence, sales not held at a stationary location, and mobile food vending.
(Ord. No. 5759, § 11, 12-8-22)

CHAPTER 87 DEFINITIONS

Accessory Building or Structure: A detached subordinate building or structure that is customarily incidental to the primary building and on the same lot or parcel of land with the primary building.

Accessory Structure, Manufactured Home: A subordinate building or structure that is customarily incidental to the main building and on the same lot or parcel of land with the main building for living purposes, garages, carports, ramadas, awnings, patios or similar floor area related definitions.

Accessory Use: A use customarily incidental to, related and clearly subordinate to a principal use established on the same lot or parcel of land, which accessory use does not alter said principal use nor serve property other than the lot or parcel of land on which the principal use is located. "Appurtenant use" means the same as accessory use.

Adaptive Reuse: Conversion of an existing building from the use for which it was constructed to multiple residence use by maintaining some or all of the building elements.

Adaptive Reuse Permit: Permit issued for an existing commercial, office, or mixed-use parcel for an existing building to be redeveloped as a multiple residence reuse or adaptive reuse.

Adjoining: Two or more lots or parcels of land sharing a common boundary line, or 2 or more objects in contact with each other. Lots or parcels of land which touch at corners only shall not be deemed adjoining. "Abut" or "abutting" and "contiguous" means the same as adjoining.

Adult: A person who is 18 years of age or older.

Advertising For Hire Sign: A sign on which display space is made available to a person in exchange for rent, fee, or other consideration; does not include the owner of the sign, operator of the sign or the occupant of a parcel who rents tenant space on the same parcel or group C-O-I development as the sign.

Aggrieved Person: Any person who has concerns with or believes they will be negatively affected by a decision.

AIRPORT-RELATED DEFINITIONS: See Section 11-19-3, Definitions Specific to Airfield Overlay Districts.

Alley: A public right-of-way used to provide secondary vehicular access to properties which abut it.

Alteration: Any addition or modification that changes the exterior architectural appearance or materials of a structure or object. Alteration includes changes in exterior surfaces, changes in materials, additions, remodels, demolitions, and relocation of buildings or structures, but excludes ordinary maintenance and repairs.

ANA Standards. Standardized plant nursery trade definitions of plant size, including container size, trunk caliper, plant height and canopy radius for trees and shrubs as determined by the Arizona Nurseryman's Association.

Apartment, One-Bedroom: A dwelling unit in an apartment house that contains a maximum of 3 habitable rooms, 1 of which shall be a kitchen.

Apartment, Two or More Bedroom: A dwelling unit in an apartment house that contains more than 3 habitable rooms, 1 of which shall be a kitchen.

Apartment House: A building, or a portion of a building, designed or used for occupancy by 3 or more families living independently of each other, and containing 3 or more dwelling units.

Area, Net: A portion of a lot, or parcel of land which is:

1. Not included as a proposed public or private facility such as an alley, highway or street, or other necessary public site within a proposed development project;
2. Subject to an easement where the owner of the underlying land has the right to use the entire surface except that portion where the owner of the easement may place utility poles or minor utility structures.

Arterial Street: See street, arterial.

Assisted Living Center: An assisted living facility that provides resident rooms or dwelling units to 11 or more residents.

Assisted Living Facility: A residential care institution, including adult foster care, that is licensed by the State of Arizona to provide supervisory care services, personal care services or directed care services on a continuing basis.

Assisted Living Home: An assisted living facility that provides resident rooms to 10 or fewer residents.

Automobile Display Space: Any permanently maintained space so located and arranged as to permit the display of a motor vehicle, including passenger vehicles, automobiles, trucks, motorcycles, scooters and self-propelled off-road equipment.

Automobile Parking Space, Compact: Any permanently maintained space, having a width of not less than 8 feet and a length of not less than 16 feet, so located and arranged as to permit direct access to and from the parking space without crossing an adjacent parking space, and the storage of a passenger automobile of compact size.

Automobile Parking Space, Standard: Any permanently maintained space, having a width of not less than 9 feet and a length of not less than 18 feet, so located and arranged as to permit direct access to and from the parking space without crossing an adjacent parking space, and the storage of a passenger automobile of standard size.

Automobile Storage Space: Any permanently maintained space so located and arranged as to permit the storage of a passenger automobile of standard size, without regard to how the parking space is accessed.

BATTERY ENERGY STORAGE SYSTEM (BESS) RELATED DEFINITIONS

Augmentation: The process of adding new components to, modifying existing components, or replacing components of, an existing BESS facility.

Nameplate Capacity: The maximum amount of energy that a BESS or BESS Facility can supply or store under specific conditions. It is also referred to as rated capacity or peak capacity, and is expressed in megawatts (MW) or kilowatts (KW) for power. The associated energy capacity, sometimes referred to as nameplate energy capacity, represents the total amount of energy the system can store or deliver over time, expressed in megawatt-hours (MWH) or kilowatt-hours (KWH).

Bay Door or Bay Entry: Openings into a building wider than 6-feet, and designed for use principally by a vehicle to access a building, typically for vehicle parking, storage, repair or maintenance, or to access a building such as a warehouse or factory.

Bicycle Parking, Long-Term: Bicycle parking, designed to serve employees, students, residents, commuters, and others who generally stay at a site for four hours or longer.

Bicycle Parking, Short-Term: Bicycle parking designed to serve shoppers, customers, messengers, guests, and other visitors to a site who generally stay for a period of less than 4 hours.

Billboard: A permanent off-site sign or a portable off-site sign more than thirty-two (32) square feet or an advertising for hire sign.

Body Piercing: The creation of an opening in the human body for the purpose of inserting jewelry or other decoration, including the piercing of an ear, lip, tongue, nose, or eyebrow. "Body piercing" does not include piercing an ear with a disposable, single-use stud or solid needle that is applied using a mechanical device to force the needle or stud through the ear.

Buffer: To promote separation and compatibility between land uses of different intensities. The term buffer may also be used to describe the methods used to promote compatibility, such as a landscape buffer.

BUILDING RELATED DEFINITIONS:

Building: Any structure having a roof supported by columns or by walls and intended for the shelter, housing or enclosure of persons, animals, or property of any kind.

Building Addition: An extension or increase in floor area, height, or volume of an existing building. To qualify as an addition, the new construction must share a common wall with the existing building, with the point of attachment measuring at least 20% of the length of the common wall to which it is attached.

Building, Enclosed: A building composed of rigid walls on all sides, and a roof.

Building Height: The vertical distance from the natural mean ground elevation of the lot to the top of the parapet of a flat roof or the mean height between the plate line and the ridge of mansard, gable, hip, shed, or similar roof, excluding embellishment.

Building, Pre-Engineered Metal: An enclosed structure with siding consisting of large, modular metal panels, often available in standardized kit form from a manufacturer and assembled on-site.

Build-To Line: The maximum distance a building or other structure may be placed from an adjacent property line or future width right-of-way line.

By-Passed Parcel: Any lot or parcel which meets all of the following:

1. Does not exceed 2.5 net acres, and has been in its current configuration for more than 10 years or does not exceed 5 net acres and was created by the assembly of individual, contiguous parcels, each not more than 2.5 acres in area; and
2. Is served by, or has direct access to, existing utility distribution facilities; and
3. Is surrounded by properties within a 1,200-foot radius in which:
    a. The total developable land area is not more than 25% vacant; and
    b. Greater than 50% of the total number of lots or parcels have been developed 15 or more years ago.

Caretaker: A person residing on the premises of an employer and who is receiving meaningful compensation to assume the primary responsibility for the necessary repair, maintenance, supervision or security of the real or personal property of the employer which is located on the same or contiguous lots or parcels of land.

Carport: An accessory structure that is roofed but permanently open on at least 2 sides and maintained for the storage of motor vehicles.

Centerline: The centerline established by the city engineer for any proposed or dedicated public way.

Change in Use(s) or Change of Use(s): A change from one defined land use to another defined land use in Chapter 86, no matter if they are under the same broader Land Use Classification (such as "Residential Use Classifications" or "Commercial Use Classifications"), or a change from a defined land use to a land use not defined in Chapter 86.

Chapter: A chapter set out in this Ordinance, unless another ordinance or statute is mentioned.

Charitable Organization: Any benevolent, philanthropic, patriotic, not-for-profit, or eleemosynary group, association or corporation, or such organization purporting to be such, which solicits and collects funds for charitable purposes.

Child: A person under 18 years of age.

City Charter: The Mesa City Charter.

Commercial Vehicle: Any vehicle currently registered as such with the state Department of Motor Vehicles or equivalent out-of-state or federal agency and is used primarily in the conduct of a business as opposed to private family or individual use.

Condition of Use: A development standard determined to be necessary to permit harmonious classification of a use as listed in a zone and therefore a prerequisite to place, or for application to place, such use as classified.

Corral Fence: A structure consisting of vertical posts with horizontal connectors, so constructed that 66 percent or more of the vertical surface is open. Corral fences do not include chain link fences.

Cross-Access: A driveway or drive aisle which connects two (2) or more adjacent parcels without using a roadway.

Density: The number of dwelling units per unit of land area.

Density Bonus: A density increase over the otherwise maximum allowable residential density provided in this Ordinance.

Desert Cobble: Refers to a process that re-creates the look of the rugged desert floor by salvaging and redistributing the top four inches of native soil and native "Desert Pavement" cobble. The desert cobble textures allow the establishment of plant communities by providing a protected place to take root.

Desert Uplands Area: Area described by Section 9-6-5(A) of the Mesa City Code, and generally bounded by the West line of the Central Arizona Project (CAP) Canal on the West, Tonto National Forest on the North, Pinal County on the East, and University Drive on the South.

Development: Any manmade change to improved or unimproved real estate, including but not limited to the division of a parcel of land into 2 or more parcels; the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any structure; any mining, excavation, landfill or land disturbance; and any use or extension of the use of land.

Development Plan Condition: An ordinance condition of approval requiring compliance with an approved Development Plan or Site Plan.

Development Plan Review: The process by which the City evaluates proposed site and building development for compliance with the Zoning Ordinance, adopted design guidelines, and other applicable City policies. The Development Plan Review process consolidates and replaces prior processes, including Site Plan Review and Design Review.

Disability. (1) A physical or mental impairment that substantially limits one or more of an individual's major life activities or impairs an individual's ability to live independently; (2) having a record of such an impairment; or (3) being regarded as having such an impairment. A person with a disability does not include an individual who is currently using alcohol or illegal drugs (as defined in Section 102 of the Controlled Substances Act (21 United States Code 802)), or using legal drugs to which they are addicted nor individuals who constitute a direct threat to the health and safety of others. Disability and direct threat will be interpreted consistent with the Americans with Disabilities Act (42 United States Code 12101, et seq.), as amended, and the Federal Fair Housing Act (42 United States Code 3601—3619).

Domestic Animal: An animal which is commonly maintained in residence with man.

Dripline: A vertical line extending from the outermost portion of a tree canopy to the ground. Potential dripline is based on the average tree canopy diameter, as determined by the Arizona Nurseryman's Association.

Driveway: An access way that provides vehicular access between a street or alley and the on-site parking or loading facilities.

Duplex: Two (2) dwelling units on the same lot or parcel that are designed for residential occupancy by not more than two (2) families living independently from each other, each with separate sleeping, cooking, and sanitary facilities. Unless otherwise provided, a Duplex consists of two (2) attached units (side-by-side or stacked). For the purposes of middle housing, the dwelling units may be attached, detached, or semi-detached.

Dwelling Unit: A room or suite of rooms including permanent provisions for living, sleeping, eating, sanitation, and cooking, and designed or occupied as separate living quarters.

Easement: A portion of land created by grant or agreement for specific purpose; an easement is the right, privilege or interest which one party has in the land of another.

Effective Date: The date on which a permit or other approval becomes enforceable or otherwise takes effective, rather than the date it was signed or circulated.

Emergency: A sudden unexpected occurrence demanding immediate action to prevent or mitigate loss or damage to life, health, property or essential public services.

Equipment Cabinet or Enclosure: A cabinet or structure used to house equipment associated with any utility.

Existing Commercial, Office, or Mixed-Use Parcel: A parcel of land that is zoned as a Commercial or Mixed-Use District as of the effective date of this ordinance.

Façade: The exterior elevation of a building extending vertically from the grade to the top of a parapet wall or eave, and horizontally across the entire width of the building elevation.

Factory-Built Building: Any building, including a dwelling unit or habitable room thereof, which is either wholly or in substantial part manufactured at an off-site location to be assembled on site, except that it does not include a manufactured home, recreational vehicle or mobile home. All factory built buildings shall be consistent with all requirements of the Arizona Department of Housing for factory built buildings.

Family. An individual or two (2) or more individuals related by blood, marriage or adoption, or a group of no more than four (4) unrelated individuals, living together as a single housekeeping unit. A family includes a couple in a domestic relationship and biological, adopted, and foster children of either partner. The term family includes unrelated persons with developmental disabilities (as defined in A.R.S. § 36-581) living together in compliance with A.R.S. § 36-582.

Feasible: Capable of being accomplished in a successful manner within a reasonable period of time, taking into account economic, environmental, social and technological factors.

Fence: An artificially-constructed barrier of any material or combination of materials erected to enclose or screen an area of land.

FLOOR AREA RELATED DEFINITIONS:

Floor Area, Gross (GFA): The sum of the gross horizontal area of each floor of a building or structure, measured from the exterior face of an exterior wall of a freestanding structure, or from the center of common walls of attached buildings, including carports, garages, basements, mezzanines, interior balconies, and all upper stories or levels.

Floor Area (Net Floor Area, Habitable Floor Area): Space in a building used for purposes including living, working, sleeping, sanitation, eating, cooking, conditioned storage, recreation, or any combination of the above. Space used only for unconditioned storage or parking is not habitable space.

Floor Area Ratio (FAR): The numerical value obtained through dividing the aboveground gross floor area of a building or buildings located on a lot or parcel of land by the total area of such lot or parcel of land.

Foundation Base: The area adjacent to the exterior walls of a building containing hardscape, (entry plazas, covered walkways, sidewalks), ground cover, or landscaping.

Fourplex: Four (4) dwelling units on the same lot or parcel that are designed for residential occupancy by not more than four (4) families living independently from each other, each with separate sleeping, cooking, and sanitary facilities. Unless otherwise provided, a fourplex consists of four (4) attached units (side-by-side or stacked). For the purposes of middle housing, the dwelling units may be attached, detached, or semi-detached.

Frontage, Building: The exterior building wall of a ground floor business establishment oriented toward a public street, highway or parkway.

Frontage, Street or Highway: That portion of a lot or parcel of land which borders a public street, highway or parkway.

Front Parking Area: The parking area located in front of a building's primary façade. Determined by drawing a line from the front corners of the building to the front property corners.

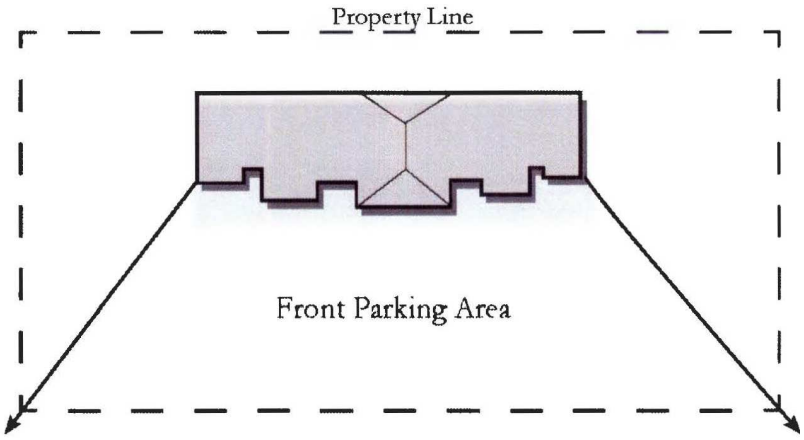


FIGURE 11-87-1.A: FRONT PARKING AREA

Future Width Right-of-Way Line: The planned maximum width of a public freeway, road, or street, determined by the City Traffic Engineer for local, collector and arterial streets, as determined by the applicable Transportation, Freeway or Major Street Plan adopted by the City, Maricopa County, and/or the State of Arizona for arterial streets and freeways.

Garage: A building or portion of a building that is enclosed and roofed and designed for the parking of motor vehicles.

General Development Standards: Design standards, parking requirements and other zoning related Development Standards specified in:

A. A Community Plan and adopted with a particular Planned Community (PC) District, as specified in Chapter 11,

B. An Infill Incentive Plan and adopted with a particular Infill Development (ID) District, as specified in Chapter 12, or

C. An EO development plan and adopted with a particular Economic Opportunity (EO) District, as specified in Chapter 14.

These standards would include the type of standards and requirements specifically associated with land uses listed in Article 2, or generally applicable as found in Article 4, and/or Article 5. The term includes building setbacks, maximum building heights, parking stall sizes, parking ratios, minimum building separation requirements, landscape setbacks, landscape planting ratios attached and detached permanent signs, and other similar requirements. The term does not include permitted land uses, prohibited land uses, and uses requiring a conditional use permit. As a general rule, dimensional General Development Standards include requirements which are characterized by minimum or maximum physical characteristics that can be measured as floor area, width, length, depth or height.

General Plan: The General Plan of the City of Mesa, and all elements thereof.

General Plan Amendment: A modification to the text, maps, goals, policies, or other components of the City's adopted General Plan that changes the community's long-range vision for growth, land use, housing, transportation, public facilities, or other elements required by state law.

Glare: The effect produced by a light source within the visual field that is sufficiently brighter than the level to which the eyes are adapted, such as to cause annoyance, discomfort or loss of visual performance and ability.

Good Neighbor Policy: A written statement submitted by the property owner, applicant, or operator that outlines the measures to be implemented to ensure ongoing compatibility between the proposed use and surrounding properties. The good neighbor policy shall identify procedures for preventing and responding to community concerns, including noise, traffic, lighting, maintenance, and other potential nuisances. It shall also include contact information for a designated on-site representative responsible for addressing complaints, describe methods for communicating with nearby property owners or neighborhood associations, and establish protocols for documenting and resolving issues.

GRADE-RELATED DEFINITIONS:

Grade, Below: Location of any facility or part of a facility located underground or beneath ground level.

Grade, Existing: The elevation of a lot or parcel prior to approved demolition, excavation, fill, construction or modification.

Grade, Finished: The final elevation of the lot or parcel, paved or unpaved, when all construction and landscaping are complete. Grade refers to finished grade unless otherwise stated.

Grade, Finished Floor: The elevation of the ground floor of the building.

Grade, Natural: The elevation of a lot or parcel unaffected by construction techniques such as fill, excavation, landscaping or berming. Mean natural grade refers to the elevation midway between the highest and lowest elevations on the lot or parcel.

Group C-O-I Development: A commercial, office, or industrial master planned development containing three (3) or more businesses which share facilities such as driveways, parking, and pedestrian walkways and which is designed to provide a single area in which the public can obtain varied products and services.

Habitable (Area, Living Area or Space): See "net floor area."

Hardscape: Part of a building's grounds consisting of structures, such as plazas, retaining walls and sidewalks, made with materials such as but not limited to, concrete and sidewalk pavers.

Hazardous Materials: Includes any substance characterized as flammable solids, corrosive liquids, radioactive materials, oxidizing material, highly toxic materials, poisonous gases, reactive materials, unstable materials, hypergolic materials and pyrophoric materials and any substance or mixture of substances which is an irritant, a strong sensitizer or which generates pressure through exposure to heat, decomposition or other means.

Height of Building or Structure: See "building height."

Home Occupations: A business or professional activity conducted on the same lot or parcel as a residential dwelling unit, which is clearly incidental and secondary to the primary function as a residential dwelling unit. The business or professional activity must not negatively impact the residential character of the neighborhood or the health, safety, and welfare of neighbors.

Permitted home occupations may include but are not limited to: Artist studios, personal services, therapy, consulting, law office, real estate, insurance, professional office, professional design services, music and fine arts instruction, swim lessons, and small-scale E-Commerce that service five (5) or fewer individuals at a time.

Home occupations exclude the on-site exchange of sold or bartered goods (exceptions made for occasional and infrequent exchanges), vehicle repair commercial warehousing or storage - indoor or outdoor, or manufacturing of products using hazardous materials or equipment not typically found in household settings.

Illegal Use: Any use of land or building that does not have the currently required permits and/or was originally constructed and/or established without permits required for the use at the time it was brought into existence.

Initial Site Plan: A site plan for a property, or a portion thereof, that does not have a previously approved site plan, or the approved site plan has expired.

Kitchen: Any room or space used, or intended or designed to be used for cooking or the preparation of food.

Kitchen Area: A space within a building or dwelling unit designed or used for the preparation and cleanup of food that includes a sink.

Large Vehicle: Any vehicle with a gross vehicle weight rating (GVWR) exceeding 13,000 pounds and intended to be used primarily for commercial purposes rather than use as for private or personal individual trips.

Lamp: Any source created to produce optical radiation (i.e. "light"), often called a bulb or tube.

Land Use Group (LUG): A category, grouping or association of land uses and activities, arranged as permitted, conditional, and prohibited land uses, when used in association with an EO or PC Ddistrict as a part of an adopted EO Development Plan (for EO Districts) or community plan (for PC Districts). In each case, the permitted and conditional land use activities shall be individually listed and grouped, together into specified categories (LUGS), assigned a name or title, and generally described with purpose and intent statements related to how the category or grouping of land uses relates back to the implementation and administration of the adopted EO Development Plan or community plan, as may be applicable. Further, each LUG may also provide specific standards associated with the land use and development of the assigned parcels. Such groups may be based in whole or in part on existing Mesa base zoning districts or may be new categories.

Landscape Yard: An area intended to provide buffering between land uses of different intensities through the use of setbacks, landscaping, berms, fences, walls or a combination thereof.

Landscaping: The planting, configuration and maintenance of trees, ground cover, shrubbery and other plant material, decorative natural and structural features (walls, fences, hedges, trellises, fountains, sculptures), earth patterning and bedding materials, and other similar site improvements that serve an aesthetic or functional purpose.

Light Shelf: An exterior architectural element that allows reflective daylight to penetrate deep into a building.

Lighting, Exterior: Any equipment or fixture located or used to provide illumination of outdoor areas, objects or activities.

Lighting Fixture: Light fixtures include but are not limited to the lamp, pole, post, ballast, reflector, lens diffuser, shielding, electrical wiring, and other necessary or auxiliary components.

Lighting System: All exterior man-made lighting sources, associated infrastructure and controls on a site.

Light Trespass: Unwanted light that falls on neighboring properties or public rights-of-way. Light trespass also includes glare or distraction for observers away from the area for which the light is intended.

LOT-RELATED DEFINITIONS:

Lot, Corner: A lot or parcel of land situated at the intersection of 2 or more parkways, highways or streets, which parkways, highways or streets have an angle of intersection measured within said lot or parcel of land of not more than 135 degrees.

Lot, Coverage: The area of a lot that is covered with impervious surfaces, such as buildings, patios or decks with roofs, carports, tennis courts, parking lots or any other type of structure. Swimming pools, exclusive of decking, are not considered impervious surfaces for the purposes of calculation.

Lot, Flag: A lot or parcel of land taking access by a strip, owner of which lot or parcel of land has fee-simple title to said strip extending from the main portion of the lot or parcel of land to the adjoining parkway, highway or street.

Lot, Interior: A lot or parcel of land other than a corner or flag lot.

Lot, Key: An interior lot adjoining the rear lot line of a corner lot.

Lot Line: A boundary line of a lot or of a parcel of land.

Lot Line, Front: A line separating the front yard from the parkway, highway or street upon which the yard fronts; or, in the case of a flag lot where the front yard is oriented toward an adjoining lot, the line separating such front yard from the adjoining lot.

Lot Line, Rear: A lot line which is opposite and most distant from the front lot line. For a triangular shaped lot, the rear lot line shall mean a line 10 feet to the length within the lot which is parallel to the front lot line, or parallel to the chord of a curved front lot line, and the maximum distance from the front lot line.

Lot Line, Side: Any lot boundary line which is not a front lot line or a rear lot line.

Lot, Through: A lot having frontage on 2 parallel or approximately parallel parkways, highways and/or streets.

Low-Income Housing: Housing for a person or persons whose household income does not exceed 80% of the area median income.

Maintenance and Repair: The repair or replacement of individual building components or paint, stucco or other exterior finishes that restores the character, scope, size or design of a structure to its previously existing, authorized, and undamaged condition. This definition shall not include replacement of primary structural elements or complete replacement of the building or structure.

MANUFACTURED HOME (MH) RELATED DEFINITIONS:

Accessory Retail Activity: An intermittent or periodic commercial event held at a recreation or social hall and characterized by the sale or barter of merchandise to residents of the Recreational Vehicle Park, Manufactured Home Park, or Recreation Vehicle Subdivision specifically associated with said recreation or social hall.

Accessory Structure, Manufactured Home: A one (1) story habitable room, storage building, garage, carport, ramada, and awning. Patios and similar structures which may include window screens, knee walls, and other partial enclosures as specified in the Mesa Building Code (MBC), Chapter 4-2.

Manufactured Home: A residential dwelling unit certified as a manufactured home pursuant to the Federal Manufactured Housing Construction and Safety Standards Act of 1974 and the Arizona Office of Manufactured Housing Statutes, A.R.S. § 41-4001-4010, and regulations. This term does not include conventionally built dwelling units, factory built dwelling units, Mobile Homes, Recreational Vehicle Park Models, or Recreational Vehicles.

Manufactured Home Lot: A parcel of land within an approved Manufactured Home Subdivision as shown in the records of the Maricopa County Recorder's Office.

Manufactured Home Park: An approved residential development, owned by one (1) entity, in which individual manufactured home spaces are provided whether or not a charge is made for such accommodation.

Manufactured Home Subdivision: An approved residential subdivision, as shown in the records of the Maricopa County Recorder's Office, that is designed in accordance with subdivision regulations, in which individual manufactured home lots are platted.

Manufacturing: The process of creating a finished product by fabrication or from raw materials, especially by means of a larger scale industrial operation.

MARIJUANA RELATED DEFINITIONS

Marijuana. All parts of the plant of the genus cannabis, whether growing or not, as well as the seeds from the plant, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds or resin.

A. Includes cannabis as defined in A.R.S. § 13-3401.

B. Does not include industrial hemp, the fiber produced from the stalks of the plant of the genus cannabis, oil or cake made from the seeds of the plant, sterilized seeds of the plant that are incapable of germination, or the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink or other products.

Marijuana Concentrate. Resin extracted from any part of a plant of the genus cannabis and every compound, manufacture, salt, derivative, mixture or preparation of that resin or tetrahydrocannabinol. Marijuana concentrate does not include industrial hemp or the weight of any other ingredient combined with cannabis to prepare topical or oral administrations, food, drink or other products.

Marijuana Cultivation. To propagate, breed, grow, prepare, and package marijuana.

Marijuana Establishment. An entity licensed by the Arizona Department of Health Services to operate all of the following:

A. A single retail location at which the licensee may sell marijuana and marijuana products to consumers, cultivate marijuana and manufacture marijuana products.

B. A single off-site cultivation location at which the licensee may cultivate marijuana, process marijuana and manufacture marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

C. A single off-site location at which the licensee may manufacture marijuana products and package and store marijuana and marijuana products, but from which marijuana and marijuana products may not be transferred or sold to consumers.

Marijuana Manufacturing. To compound, blend, extract, infuse or otherwise make or prepare a marijuana product.

Marijuana Processing. To harvest, dry, cure, trim or separate parts of the marijuana plant.

Marijuana Products. Marijuana concentrate and products that are composed of marijuana and other ingredients and that are intended for consumption, including edible products, ointments, and tinctures.

Massage and Massage Services: Should include any method of pressure on or friction against, or stroking, kneading, rubbing, tapping, pounding, manipulation, or stimulating the external parts of the body, with or without the aid of any mechanical or electrical apparatus or appliances, with or without supplementary aids such as rubbing alcohol, liniments, antiseptics, oils, powders, creams, lotions, ointments, or other similar preparations.

Massing: The volumetric design or three-dimensional form of a building or structure.

Minerals: Any naturally occurring chemical element or compound, or groups of elements and compounds, formed from inorganic processes and organic substances, including, but not limited to, coal, peat and bituminous rock, but excluding geothermal resources, natural gas and petroleum.

Moderate-Income Housing: Housing for a person or persons whose household income does not exceed 120% of the area median income.

Multiple Residence Reuse: Conversion of an existing building from the use for which it was constructed to a "multi-family residential development" as that term is defined in A.R.S. § 9-462.10(H).

New Application: A "new application" or the phrase "subject to a new application" means the proposed development, modification to an approved permit, plan or approval, or other request or approval sought requires the applicant to start the process from the beginning in accordance with the applicable review and approval processes, and subject to approval by the appropriate decision-making body, as required by this Ordinance. By way of example, a request to modify an approved variance would require an application for a new variance for review and approval by the Board of Adjustment.

Occupancy, Change in: The discontinuance of an existing use and the substitution therefore of a use of a different occupancy category as defined in the International Building Code.

Occupant: The person occupying or having custody of a structure or premises as a lessee or other.

Occupant Load: The total number of persons that may occupy a building or structure, or portion thereof, at any one time as provided by the Building Code.

Occupiable Space: See "habitable (area, living area or space)."

Off-Site Sign: A sign portraying information or directing attention to a business, activity, commodity, service, product, or entertainment which is not conducted, sold, or offered on the premises upon which the sign is located. Does not include portable signs thirty-two (32) square feet or less.

On-Site: Located on the lot that is the subject of discussion.

Open Space: The area or areas of a lot or parcel intended to provide light and air, and is designed for either scenic or recreational purposes, excluding buildings, parking, driveways and other vehicular surfaces.

Open Space, Common: An open space intended for the shared, common use of the occupants of a development.

Open Space, Private: An open space intended for the exclusive use of the occupants of a dwelling unit.

Ordinance: An ordinance of the City of Mesa.

Outdoor Display: The outdoor display or outdoor sale of goods which is conducted not entirely within a structure or enclosed area and is directly related to a business establishment with a permanent structure on the same parcel of property upon which the outdoor display is located. The business establishment with a permanent structure on the same parcel as the outdoor display is referred to as the "primary business".

Outside Storage: The storage of goods, equipment or materials outside of a building for any purpose other than outside display.

Owner: The person indicated on the records of the Maricopa County Assessor, or other official body, as the owner of record of the property in question.

Parcel of Land: A contiguous quantity of land, owned by or recorded as the property of a person.

Parking Lots or Parking Buildings: Readily accessible areas within structures or surface parking areas, inclusive of aisles, driveways, ramps and columns, maintained exclusively for the parking of vehicles, not including areas for the parking or storage of commercial vehicles.

Pedestrian Oriented Use: A land use intended to encourage walking customers and which, generally, does not limit the number of customers by required appointments or otherwise excluding the general public. A pedestrian-oriented use may suggest or require appointments for services when primarily for the convenience of the customer, such as reservations for restaurants, beauticians or opticians to avoid being turned away due to unavailability. Where feasible the pedestrian oriented use shall have external entrances directly accessible from public sidewalk space. At a minimum, the business shall be of those generally considered to be open typical business hours that can range from 4—10 hours a day, and 4—7 days a week.

Permit: Any special use permit, council use permit, temporary use permit, license, certificate, approval, or other entitlement for development and/or use of property as required by any public agency.

Permitted Use: Any use allowed in a zoning district without a requirement for approval of a discretionary use permit, but subject to any restrictions applicable to that zoning district.

Person: Any individual, firm, co-partnership, joint adventure, association, social club, fraternal organization, corporation, estate, trust, business trust, receiver, syndicate, this and any other city, county, municipality, district or other political subdivision, or any other group or combination acting as a unit.

Plan of Operation: A written statement submitted by the property owner, applicant, or operator that describes how a land use or development will function on a day-to-day basis. The plan of operation shall include, as applicable, information regarding hours of operation, staffing levels, number and type of employees, business activities conducted on site, service and delivery schedules, anticipated customer volume, noise and lighting control measures, maintenance procedures, security provisions, and other operational characteristics necessary to evaluate the potential impacts of the proposed use on surrounding properties and public facilities.

Plan Specific: The development standard described, such as a setback, landscaping plant ratio, parking ratio or a maximum building height requirement, is set by description noted graphically by the plans that have been approved/adopted during the entitlement review process required for that project.

Plasma Center: Any facility used in the collection, storage, or distribution of liquid blood plasma.

Porch: Structure or appendage of a building adjacent to a building entrance, typically covered and/or elevated from adjacent grade, and open with no walls on at least one (1) side.

Portable Sign: A freestanding sign not permanently affixed, anchored or secured to a permanent foundation.

Portable Storage Containers (PSC): A device in the shape of a rectangular solid; constructed of metal, consisting of four vertical walls, a floor and a ceiling and in which at least one vertical end is designed as door (typically either as a side-hinged door, or as an overhead bay door). The dimensions of a PSC shall not exceed 102-inches (8-foot, 6-inches) in height and 96-inches (8-feet) in width. Lengths may vary in increments of 10-feet (10-feet, 20-feet . . .) but may not exceed nominal 40-feet in length. PSCs include devices initially designed to facilitate the shipping of containerized cargo and constructed entirely of steel in a manner consistent with ISO 6346, and are being reused to facilitate secure storage, and/or temporary offices or studios, but not habitable space as defined in the Mesa Building Code.

Primary Building: A building in which the main or dominant use of the lot or parcel is conducted.

Primary Residence: A Single Residence as defined in Chapter 86, Section 11-86-2.

Principal Use: A primary or dominant use established, or proposed to be established, on a lot or parcel of land.

Private Street: See "street, private."

Project: Any proposal for a new or changed use or for new construction, alteration, or enlargement of any structure that is subject to the provisions of this Title.

Public Street: See "street, public."

RECREATIONAL VEHICLE (RV) RELATED DEFINITIONS:

Accessory Retail Activity: An intermittent or periodic commercial event, held at a recreation or social hall and characterized by the sale or barter of merchandise to residents of the Recreational Vehicle Park, Manufactured Home Park, or recreation vehicle subdivision specifically associated with said recreation or social hall.

Accessory Structure, Recreational Vehicle: A subordinate building or structure that is customarily incidental to a Recreational Vehicle or Recreational Vehicle Park Model and is located on the same lot or parcel of land as the Recreational Vehicle or Recreational Vehicle Park Model, which is used for living purposes, garages, carports, ramadas, awnings, patios or similar.

Recreational Vehicle (RV): A vehicular portable structure, which can be towed, hauled or driven, primarily designed as temporary living accommodation for recreational, camping, and travel use and not designed for permanent residential or commercial purposes that: (1) contains its own motive power; (2) is drawn by another vehicle; or (3) is mounted on another vehicle. This term does not include conventionally built dwelling units, factory built dwelling units, or manufactured homes.

Recreational Vehicle Lot: A parcel of land within an approved Recreational Vehicle subdivision, as shown in the records of the Maricopa County Recorder's Office.

Recreational Vehicle (RV) Park: An approved residential development, owned by one (1) entity, in which individual recreational vehicle spaces are provided whether or not a charge is made for such accommodation.

Recreational Vehicle (RV), Park Model: A recreational vehicle built on a single chassis, mounted on wheels, which has a gross trailer area not exceeding four hundred (400) square feet in the set-up mode, and is certified by the manufacturer as complying with the ANSI A119.5 standards for recreational park trailer. This term does not include conventionally built dwelling units, factory built dwelling units, or manufactured homes.

Recreational Vehicle Space: A site within an approved recreational vehicle park which is shown in the records of the planning division and which is designed and intended for the accommodation of one (1) recreational vehicle.

Recreational Vehicle (RV) Subdivision: An approved residential subdivision, as shown in the records of the Maricopa County Recorder's Office, that is designed in accordance with subdivision regulations, in which individual recreational lots are platted.

Renovation, Exterior Façade: A resurfacing of an existing building frontage.

Residential Care Institution: A health care institution other than a hospital or a nursing care institution which provides resident beds or dwelling units, supervisory care services, personal care service, directed care services or health-related services for persons who do not need inpatient nursing care.

Residential Zoning Application: A rezoning application to change a property from any zoning district to a residential zoning district or use; or an application that removes or modifies any regulation or condition of approval for a residential zoned property or use previously imposed by ordinance.

Responsible Party: A person who knows or has reason to know of the existence of any violation of this chapter on that person's property or property which that person occupies or controls, in whole or in part, including but not limited to an owner, occupant, lessor, lessee, manager, managing agent, licensee or any person who has legal care or control of the property.

Rezoning (Zoning Map Amendment): An amendment to the Official Zoning Map that changes the base Zoning District of one (1) or more parcels of land, adds or removes an overlay zoning district to one (1) or more parcels, or imposes, removes, or modifies any regulation or condition of approval that requires an Ordinance Condition Modification.

Roof Area: That portion of a lot or parcel covered by the roof structure of all buildings, excluding the eves and overhangs, but including covered porches, patios and carports.

Roof Profile: shape or form of the roof above residential dwelling units, such as gable, gambrel, hip, mansard, parapet, pitched and shed.

Room, Habitable: An enclosing subdivision in a building commonly used for sleeping, living, cooking or dining purposes, excluding closets, pantries, bath or toilet rooms, service rooms, connecting corridors, laundries, unfinished attics, foyers, storage space, cellars, utility rooms, and similar spaces.

Screening: A wall, fence, hedge, informal planting, or berm, provided for the purpose of buffering a building or activity from neighboring areas or from the street.

Section: A section of the ordinance codified in this Title 11, unless some other ordinance or statute is mentioned.

SETBACK-RELATED DEFINITIONS:

Setback: The minimum distance between a property line and the nearest point of a building or structure, measured perpendicular from the property line, unless otherwise specified in this Title, that must be kept unobstructed from the ground to sky except for permitted projections.

Setback, Front: The minimum distance between a front property line and the nearest point of a building or structure, measured perpendicular from the front property line, unless otherwise specified in this Title, that must be kept unobstructed from the ground to sky except for permitted projections.

Setback, Interior Side: The minimum distance between an interior side property line (a side property line that does not abut a street) and the nearest point of a building or structure, measured perpendicular from the interior side property line, unless otherwise specified in this Title, that must be kept unobstructed from the ground to sky except for permitted projections.

Setback, Rear: The minimum distance between a rear property line and the nearest point of a building or structure, measured perpendicular from the rear property line, unless otherwise specified in this Title, that must be kept unobstructed from the ground to sky except for permitted projections.

Setback, Street-Facing: The minimum distance between a street-facing property line (a side property line that abuts a private or public street) and the nearest point of a building or structure, measured perpendicular from the street-facing property line, unless otherwise specified in this Title, that must be kept unobstructed from the ground to sky except for permitted projections.

Sidewalk: A paved, surfaced, or leveled area used as a pedestrian walkway.

Single Housekeeping Unit. A person or group of persons jointly occupying a single dwelling unit that: (1) has access to and the joint use of all common areas such as the kitchen and eating areas of the dwelling unit; (2) shares household activities and responsibilities, such as meals, chores, or expenses; and (3) has no limits on length of tenancy, except for those imposed by a lease or rental agreement.

Site Plan Review: The process in which the City reviews a site plan which includes both an initial site plan and a site plan modification. In certain contexts, the term clearly applies only to initial site plan reviews and in other context only to site plan modifications.

Solid Fill: Any inorganic, noncombustible materials, insoluble in water, such as soil, rock, sand or gravel that can be used for grading land or filling depressions.

Special Event: A temporary activity that is conducted on property that is not specifically zoned, authorized, or otherwise approved for such use and which complies with all the following:

A. The activity is intended for purposes of entertainment, education, commercial promotion, or cultural, religious, ethnic, or political expression.

B. The activity occurs outside or in a temporary structure.

C. Special event includes parades, sporting events, circuses, fairs, carnivals, festivals, religious revivals, political rallies, vehicle shows and displays, and similar recognized temporary activities.

D. Special event does not include wedding and funeral ceremonies, elections, garage or yard sales held at a private residence, or charity car washes.

Special Event, City-Sponsored: A special event produced and funded by the City.

Special event, City-supported: A Special Event initiated by an outside or community group and supported by the City, in the City's sole discretion and based on available City resources.

Stand: A structure for the display and sale of products with no space for customers within the structure itself.

Story: Is that portion of a building included between the upper surface of any floor and the upper surface of the floor next above, except that the topmost story shall be that portion of a building included between the upper surface of the topmost floor and the roof above. "Story" includes a basement, but not a cellar.

Temporary Use Permit (TUP). A TUP is a discretionary permit issued by the Zoning Administrator in accordance with Sections 11-31-30 and 11-70-4 of the Zoning Ordinance for a temporary use that is conducted on property specifically zoned, authorized, or otherwise approved for such use.

STREET-RELATED DEFINITIONS:

Highway: Includes any expressway, freeway, or parkway.

Freeway: A restricted access highway.

Parkway: A road having park-like landscaping features, and may or may not have a central landscaped median, with a right-of-way width of not less than 80 feet.

Right-of-Way: A strip of land intended to be used as a road, railroad, electric transmission line, oil or gas pipeline, water line, sanitary storm sewer or other similar use.

Road: An open way used for the passage of vehicles, and includes alleys, streets and highways.

Street: Any public street, avenue, boulevard, road, lane, parkway, place, viaduct, easement for access, or other way which is an existing state, county, or municipal roadway; or a street or way shown in a plat heretofore approved pursuant to law or approved by official action; or a street or way in a plat duly filed and recorded in the County Recorder's Office. A street includes the land between the right-of-way lines, whether improved or unimproved, and may be comprised of pavement shoulders, curbs, gutter, sidewalks, parking areas, and landscape areas.

Street, Arterial: A general term including section line and major streets and state or county highways providing a system for citywide through traffic movement.

Street, Collector: Provides the traffic movement within neighborhoods of the City, between major streets and local streets, and for direct access to abutting property.

Street, Cul-de-Sac: A short local street permanently terminated in a vehicular turnaround; provides direct access to a limited number of adjacent properties.

Street, Frontage: The linear distance that a lot, parcel, or development site abuts a public or private street, measured along the property line that directly borders the street right-of-way.

Street, Half: Any street improved to a width of less than 34 feet or with concrete curb and sidewalk on only one (1) side of said street.

Street, Local: Provides for direct access to residential, commercial, industrial, or other abutting land; primarily for local traffic movements with connections to collector and/or major streets.

Street, Private: Real property recorded as improved roadway for pedestrian and motor vehicle traffic, constructed and maintained by private parties.

Street, Public: Real property dedicated for, and recorded as, public right-of-way for pedestrian and motor vehicle traffic, having a minimum width of 30 feet. The term shall not include public right-of-way designated for limited access freeways or public alleys.

STRUCTURE RELATED DEFINITIONS:

Structural Alteration: Any change of the supporting members of a building, such as bearing walls, columns, beams or girders, floor joists, ceiling joists, or roof rafters.

Structure: Anything constructed or erected which requires a fixed location on the ground, or is attached to something having a fixed location on the ground.

Structure, Attached: A structure that is connected to another structure and dependent on a division wall(s) or common wall(s) for structural support or enclosure. (SYN: detached building)

Structure, Detached: A structure which is physically separated from and not dependent on another structure for structural support or enclosure. (SYN: detached building)

Structure, Semi-Detached: A structure that is connected to another structure but is not dependent on a division wall(s) or common wall(s) for structural support or enclosure.

Suite, Guest: A combination of 2 or more guest rooms.

Swimming Pool: A contained body of water used for bathing or swimming purposes either above or below ground level with the container being 18 or more inches in depth at any point, and/or wider than 8 feet at any point measured on the long axis.

Tandem Parking. The placement of parking spaces one behind the other, or "end-to-end", such that the second space furthest from the access drive is accessed only by crossing the first space nearest the access drive.

Tattooing: To insert pigment under the surface of the human skin by pricking with a needle or otherwise to produce an indelible mark or figure visible through the skin.

TELECOMMUNICATIONS RELATED DEFINITIONS:

Alternative Tower Structure: Artificial trees, clock towers, bell steeples, light poles and similar alternative-design mounting structures that camouflage or conceal the presence of antennas or towers.

Antenna: Any system of poles, panels, rods, reflecting discs, wires or similar devices used for the transmission or reception of electromagnetic signals, including but not limited to radio waves and microwaves. An antenna does not include the support structure the antenna(s) is mounted upon.

Antenna, Amateur Radio: A ground-, building-, or tower-mounted antenna operated by a federally licensed amateur radio operator as part of the Amateur Radio Service and as designated by the Federal Communications Commission (FCC).

Antenna, Building- or Structure-Mounted: Antenna mounted to the side of a building, or structure that transmits or receives electromagnetic signals.

Antenna, Direct Broadcast Satellite Service (DBS): An antenna, usually a small home receiving dish, designed to receive direct broadcast from a satellite.

Antenna, Ground-Mounted: Any antenna that is not mounted on a pole, a structure, or the roof or wall of a building.

Antenna, Multipoint Distribution Services (MDS): An antenna designed to receive video programming services via multi-point distribution services, including multipoint, multichannel distribution services, instructional television fixed services, and local multipoint distribution services.

Antenna, Roof-Mounted: An antenna directly attached or affixed to the roof of an existing structure.

Antenna, Satellite: Any antenna used to receive and/or transmit radio or television signals from orbiting communications satellites.

Antenna, Satellite Earth Station: An antenna designed to receive and/or transmit radio frequency signals directly to and/or from a satellite.

Antenna, Television Broadcast Service (TVBS): An antenna designed to receive only television broadcast signals.

Antenna Structure: An antenna array and its associated support structure, such as a mast or tower (not including a suspended simple wire antenna), that is used for the purpose of transmitting and/or receiving electromagnetic signals, including but not limited to radio waves and microwaves.

Antenna Structure, Freestanding: An antenna structure or mast that is not attached to any part of a building, fence, or other such structure. Freestanding antenna structures include communications towers, wooden utility poles, and concrete and steel monopoles. If the total height of the structure, including the antenna, is at least 17 feet high, it shall be treated as a monopole.

Antenna Structure, Monopole: An antenna structure, often tubular in shape, usually made of metal, reinforced concrete, or wood and which is at least 17 feet in height. A monopole may also be an alternative tower structure that is designed to replicate a tree or other natural feature.

Communication Equipment Building: A building housing operating electrical and mechanical equipment necessary for the conducting of a public utility communications business, with or without personnel.

Co-location: The location of two or more wireless communications facilities owned or used by more than one public or private entity on a single support structure or otherwise sharing a common location. Co-location shall also include the location of wireless communications facilities with other facilities such as buildings, water tanks, light standards, and other utility facilities and structures.

Distributed Antenna System (DAS): A system of small antennas installed on existing infrastructure such as telephone poles and streetlights throughout an area, which are interconnected by fiber optic cable to a central hub location, and are generally designed to support multiple wireless carriers.

Microcell Facility: A wireless communication facility serving a single carrier and consisting of an antenna no larger than 4 feet in height or, if tubular, no more than 6 feet long and 4 inches in diameter comprised of a networked set of antennas that are connected with each other and to a wireless service source, such that a one (1) or more high-power antennas that serve a given area are replaced by a group of lower-power antennas to serve the same geographic area.

Readily Visible: An object that can be identified as a wireless telecommunications facility when viewed with the naked eye.

Related Equipment: All equipment ancillary to the transmission and reception of voice and data via radio frequencies. Such equipment may include, but is not limited to, cable, conduit, and connectors.

Service Provider: Any authorized provider of wireless communications services.

Stealth Facility: Any commercial wireless communications facility that is designed to blend into the surrounding environment by means of screening, concealment, or camouflage. The antenna and supporting antenna equipment are either not readily visible beyond the property on which they are located, or, if visible, appear to be part of the existing landscape or environment rather than identifiable as a wireless communications facility. Stealth

Technically Feasible: In light of technical feasibility, radio signal transmitting and receiving requirements, aesthetics, electromagnetic fields, costs, landowner permission, facility owner permission, and all necessary approvals under this Chapter.

Tower: Means any structure that is designed or constructed primarily for the purpose of supporting one or more antennas, including self-supporting lattice towers, guyed towers, or monopole towers. The term includes, but is not limited to, radio and television Transmission Towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and the like.

Townhouse: Two (2) or more attached dwelling units constructed in a row (side-by-side), each with separate sleeping, cooking, and sanitary facilities, each sharing at least one (1) common wall with an adjacent unit, and each served by its own exterior entrance. no dwelling unit may be stacked (located above or below another).

Triplex: Three (3) dwelling units on the same lot or parcel that are designed for residential occupancy by not more than three (3) families living independently from each other, each with separate sleeping, cooking, and sanitary facilities. Unless otherwise provided, a triplex consists of three (3) attached units (side-by-side or stacked). For the purposes of middle housing, the dwelling units may be attached, detached, or semi-detached.

Wireless Communications Facility: Personal wireless service facilities as defined by the federal Telecommunications Act of 1996 including, but not limited to, facilities that transmit and/or receive electromagnetic signals for cellular radio telephone service, personal communications services, enhanced specialized mobile services, paging systems, and related technologies. Such facilities include antennas, microwave dishes, parabolic antennas, and all other types of equipment used in the transmission or reception of such signals; telecommunication towers or similar structures supporting said equipment; associated equipment cabinets and/or buildings; and all other accessory development used for the provision of personal wireless services. These facilities do not include radio and television broadcast towers and government-operated public safety networks.

TRANSIT RELATED DEFINITIONS:

Bus-Rapid Transit (BRT): The use of regularly scheduled passenger bus service along a major transportation corridor, typically arterial streets, with limited stops or stations typically occurring at intersecting in proximity to arterial and/or collector streets.

Light-Rail: The use of regularly scheduled passenger service utilizing trains on fixed-rail along a major transportation corridor, typically arterial streets, with limited stops or stations typically occurring at street intersections in proximity to arterial and/or collector streets.

Station: The stopping place in a transportation system designed or intended to be used for the receiving or discharging of passengers and cargo, but shall not provide for the storage of the conveyance vehicle and shall not include any appurtenant facilities other than a shelter and ticketing facilities for passengers. Stations include train stations, bus stations, and similar transit stations.

Stop: Locations designated by the transit authority in which patrons may access or exit from regularly scheduled light rail, BRT or bus service.

Terminal: Means any facility designed or intended to be used for the receiving or discharging of passengers or cargo and providing for the temporary or permanent storage of the conveyance vehicle. Terminals include train terminals, Airports, bus terminals, Freight Terminals, harbor terminals, or any combination of the above commonly referred to as multipurpose terminals.

Theater: An enclosed building used for public assembly and/or entertainment, including sports events, theatrical performances, concerts and recitals, circuses, stock shows and conventions. "Theater" includes auditoriums.

Transparent or Non-Opaque: Any surface, screen, window, wall, or other structural element through which objects can be clearly seen by the human eye.

Use: Includes construction, establishment, maintenance, alteration, moving onto, enlargement and occupation. Wherever this title prohibits the "use" of any premises for any purposes, such premises and any building, structure or improvement on such premises shall not be used, occupied, altered or improved for such purpose, and no building, structure or improvement on such premises shall be erected, constructed, established, maintained, allowed to remain, altered, moved onto or enlarged which is designed, arranged or intended to be occupied or used for such purpose.

Visible: Capable of being seen (whether or not legible) by a person of normal height and visual acuity.

Warehousing: A business in which goods and/or merchandise are stored as a principle activity, including shipping or distribution activities.

Wheel Stop: A physical barrier sufficient in size to prevent the movement of automobiles or other vehicles over or past such barrier.

Wild Animal: Any wild, exotic, dangerous or nondomestic animal, including but not limited to mammals, fowl, fish or reptiles.

YARD-RELATED DEFINITIONS:

Yard: The open space between a property line and the nearest point of the principal building.

Yard, Front: The space between the front property line and the front façade of the building. On corner lots, the Front Yard shall be located across the narrower frontage of the lot.

Yard, Interior Side: The space between the interior side property line and the building.

Yard, Rear: The space between the rear property line and the rear façade of the building.

Yard, Street-Facing Side: The space between the street-facing side setback and the building. On corner lots, the Street-Facing Side Yard shall be located across the wider frontage of the lot.

Zone or Zoning District: A specifically delineated geographic area in the city within which regulations and requirements uniformly govern the use, placement, spacing, and size of land and buildings.

(Ord. No. 5514, § 2, 7-8-19; Ord. No. 5544, § 18, 12-9-19; Ord. No. 5591, § 5, 12-1-20; Ord. No. 5592, § 6, 12-1-20; Ord. No. 5632, § 6, 7-8-21; Ord. No. 5633, § 1, 7-8-21; Ord. No. 5759, § 12, 12-8-22; Ord. No. 5814, § 9, 10-16-23; Ord. No. 5847, § 6, 3-4-24; Ord. No. 5862, § 4, 7-8-24; Res. No. 12269, § 20, 9-23-24; Ord. No. 5883, § 3, 10-7-24; Ord. No. 5904, § 4, 12-9-24; Ord. No. 5905, § 2, 12-9-24; Ord. No. 5943, § 5, 6-2-25; Ord. No. 5946, § 2, 7-1-25; Ord. No. 5949, § 5, 7-1-25; Ord. No. 5950, § 4, 7-8-25; Ord. No. 5989, § 7, 12-8-25; Ord. No. 5976, § 9, 1-12-26; Ord. No. 5996, § 4, 3-9-26)

TITLE 12 TRANSIT

CHAPTER 1 GENERAL REGULATIONS RELATING TO PUBLIC TRANSIT VEHICLES

12-1-1: DEFINITIONS
12-1-2: POWERS AND DUTIES OF ENFORCEMENT AGENTS
12-1-3: SPECIFIED UNLAWFUL ACTIVITIES
12-1-4: USE RESTRICTIONS
12-1-5: CIVIL VIOLATIONS/PROCEDURE
12-1-6: PENALTIES

CHAPTER 1
GENERAL REGULATIONS RELATING TO PUBLIC TRANSIT VEHICLES

12-1-1: DEFINITIONS

For purposes of this section, unless the context otherwise requires:

FARE: Compensation paid for a light rail, bus boarding or other transit vehicle ticket from a vending machine or other source. (4889)

FARE INSPECTOR: A person authorized to enforce this section. (4889)

GUIDEWAY: An area where light rail vehicles will operate and includes the light rail track, overhead catenary system and the entire area extending seven (7) feet out from the track centerline, or within the prolonged curb lines adjoining the light rail tracks. (4889)

IDENTIFICATION: Any government issued document that contains a photograph, date of birth and physical description, including but not limited to, height, weight, eye color, sex, origin and hair color of the person presenting the identification. (4889)

METRO: The light rail transit system operated by Valley Metro Rail, Inc. (4889)

PAID ZONE: The inside of a transit vehicle, light rail station platform or other areas as designated by appropriate signage or markings. (4889)

PASSENGER: Any person occupying, riding or using any transit vehicle, boarding or alighting from such a vehicle, or waiting within a designated paid zone waiting area at a light rail station. (4889)

PROOF OF FARE PAYMENT: A valid METRO pass or transit fare media valid for the time and day of use. (4889)

TRANSIT COMPLAINT: A complaint whereby the passenger is charged with violating this Chapter. (4889)

TRANSIT ENFORCEMENT AIDE: An employee of the police department or an employee of a private entity which has entered into a contract with either the city, police department or a transit provider on behalf of the City. (4889)

TRANSIT VEHICLE: A light rail train, public bus, trolley or shuttle or Valley Metro vehicle used to transport passengers. (4889)

VALLEY METRO: Motor buses and facilities operated by Phoenix Public Transit Department, City of Tempe, City of Mesa or other local jurisdictions that operate bus transit service as part of Valley Metro, private contractors, and the Regional Public Transportation Authority. (4889)

12-1-2: POWERS AND DUTIES OF ENFORCEMENT AGENTS

(A) A police officer or a transit enforcement aide is authorized to enforce the provisions of this Chapter. (4889)

(B) The presentment of any citation to the violator shall be considered sufficient and appropriate service. (4889)

(C) Nothing in this Chapter is intended to limit the authority of the City or its police officers from enforcing concurrently, or in the alternative, other remedies applicable at law, including those related to the crimes of theft of services and/or trespass. (4889)

(D) A person who refuses to provide proof of fare payment when required, or otherwise violates any lawful regulation of this Chapter, may be removed from the transit vehicle by a fare inspector at any transit facility or usual stopping place. (4889)

12-1-3: SPECIFIED UNLAWFUL ACTIVITIES

(A) Fare violations

1. It is unlawful for any person to:

   (a) Occupy or ride in any transit vehicle that requires a fare without payment of the applicable fare;

   (b) Fail to exhibit proof of fare payment upon request of a fare inspector when occupying or disembarking from a transit vehicle;

   (c) Refuse to disembark a transit vehicle or transit facility upon demand of a fare inspector;

   (d) Fail to provide his or her true name and address or identification to a fare inspector when being served with a transit complaint, or;

   (e) Fail to exhibit proof of fare payment upon request of a fare inspector while waiting in a designated paid zone waiting area. (4889)

(B) Conduct violations

1. It is unlawful for any person to:

   (a) Transport any item that blocks the aisle or the areas of the transit vehicle reserved for passengers in wheelchairs or who use mobility aids;

   (b) Possess an open container of or consume an alcoholic beverage in a transit vehicle or on transit property;

   (c) Carry onto or aboard a transit vehicle or transit property any flammable or explosive substance or hazardous materials;

   (d) Hang onto or attach his or her body in any manner to any exterior part of a transit vehicle or touch a moving transit vehicle;

   (e) Walk between coupled light-rail vehicles;

   (f) Enter upon, occupy or remain upon the guideway except as necessary to board or alight a transit vehicle unless authorized by a valid permit;

   (g) Throw an object at or from any transit vehicle or at any person or thing on or in any transit vehicle, or on transit property;

   (h) Travel in any mode, including but not limited to, motor vehicle, pedestrian, bicycle, equestrian, roller skate, rollerblade, upon or across any guideway, or light rail station platform, except within a marked crosswalk at a signalized intersection;

(i) Place any object on any portion of the guideway;

(j) Interfere with the operation of a transit vehicle, transit facility or ticket vending machine;

(k) Interfere with the ingress or egress of any passenger on transit vehicle or transit property;

(l) Use tobacco products, or carry any lighted or smoldering substance, in any form, aboard a transit vehicle or within any space where posted signage prohibits smoking;

(m) Operate a sound-emitting device, unless the only sound produced by such item is emitted by a personal-listening attachment (earphone or headphone) audible only to the person carrying the device producing the sound, except a peace officer, firefighter, transit employee, or emergency response professional, in the course of employment;

(n) Light a flashlight, scope light, laser light or object that projects a flashing light or beams of light while inside a transit vehicle or towards a transit vehicle, except in an emergency;

(o) Place feet on or lie down on the seat of a transit vehicle or place any article on the seat which would leave grease, oil, paint, dirt or any other substance on the seat;

(p) Expectorate, defecate, urinate or litter in or upon a transit vehicle, transit property or transit facility;

(q) Light or detonate sparklers, firecrackers or other types of pyrotechnic devices in or upon a transit vehicle, transit property or transit facility;

(r) Injure, mutilate, deface, alter, change, displace, remove or destroy any sign, notice or advertisement on or in any transit vehicle or transit property;

(s) Disobey the instructions of any traffic signal, security notice, sign or marker unless otherwise directed by a fare inspector, peace officer or authorized transit representative;

(t) Recklessly damage, deface, mutilate or tamper with transit property so as to impair its function or value;

(u) Post signs, notices or drawings or inscribe a message, slogan, sign, mark or symbol on transit property without written permission from the transit company, or;

(v) Remain at a transit station or stop for more than one hour. (4889)

(C) Transport of animals

1. No person shall transport animals in a transit vehicle unless:

(a) The animal is a guide or service animal, including a service animal in training, that has been specially trained to assist persons with disabilities and is on a leash, or;

(b) The animal is in a completely enclosed and secured cage or carrying case that is small enough to fit on the passenger's lap, and the animal does not otherwise endanger or disturb the comfort or health of other passengers. (4889)

(D) Parking and boarding

1. A driver shall not park a vehicle in the area designated for vehicle parking unless the person complies with posted parking regulations. (4889)

2. If intending to pick up or drop off a transit passenger, a driver shall park in the area designated for vehicle parking or briefly stop his or her vehicle in areas designated for passenger loading or unloading, while remaining with the vehicle, and then remove the vehicle from the station without delay after the transit passenger is dropped off or picked up. (4889)

3. No person shall stop or park a vehicle at a transit parking facility in such manner that the vehicle blocks access to a marked pedestrian walkway, designated traffic lane, parking space, fire lane, boarding zone or guideway. (4889)

(E) Use restriction violation

1. A person shall not ride a transit vehicle in violation of a court order or finding that the person is prohibited from riding a transit vehicle. (4889)

12-1-4: USE RESTRICTIONS

(A) Any person adjudicated responsible of violating any provision of this Chapter resulting in a fine is prohibited from riding a Metro transit vehicle until the sanction is fully paid. (4889)

(B) Any person adjudicated responsible for violating any provision of this Chapter more than two (2) times within a 24 month period is prohibited from riding a Metro transit vehicle for ninety (90) calendar days. (4889)

(C) Any person who poses a serious continuing risk to the public or transit property may be immediately removed from a Metro transit vehicle and the person will be prohibited from using Metro transit vehicles for a period not to exceed ninety (90) calendar days. (4889)

(D) Any person guilty of assaulting a fare inspector or employee acting in the scope of his employment will be prohibited from using a Metro transit vehicle for a minimum of one year. (4889)

12-1-5: CIVIL VIOLATIONS/PROCEDURE

(A) Violation of this Chapter shall be a civil offense and shall be adjudicated pursuant to the Civil Traffic Violations. (4889)

12-1-6: PENALTIES

(A) Violations of this Chapter shall be a civil offense. Upon a finding or admission of responsibility, a violator is subject to a sanction of not less than $50 but not more than $500, plus surcharges, costs and fees as set by law. (4889)

(B) In addition to any fines imposed by this Chapter, a City Magistrate or a Civil Hearing Officer may issue an order prohibiting a person from riding a transit vehicle for a specified period of time. (4889)

CODE COMPARATIVE TABLE

LEGISLATION

This is a chronological listing of the ordinances of the City used in this Code. Repealed or superseded laws at the time of the Republication and any omitted materials are not reflected in the table.

Legislation	Date	Section		Section this Code	Supplement
5498	4- 1-19	1	Amended	1-8-1, 1-8-2	Repub.
5507	5-20-19	1		10-4-3	
		2		10-4-4	
		3		10-4-5	
		4		10-4-6	
5514	7- 8-19	1	Added	11-56-4 G.	
				11-58-7 C.—F.	
				11-59-5 B.	
				11-59-5 H.	
				11-59-6 B.	
				11-59-6 H.	
				11-59-7 B.	
				11-59-8 B.	
				11-59-8 F.	
				11-59-8 H.	
				11-59-9 B.	
				11-59-9 H.	
				11-59-10 B.	
				11-59-10 H.	
				11-59-11 B.	
				11-59-12 B.	
				11-59-12 D.	
				11-59-13 B.	
				11-59-13 D.	
				11-59-14	
				11-59-15 B.	
				11-59-15 D.	
				11-59-15 G.	
				11-60-9 B.	
				11-60-10 B.	
		2		Title 11, Ch. 87	
5515	7- 8-19	1	Rpld	4-5-2	
			Rnbd as	4-5-3 4-5-2	
		2(Exh. A)	Added	8-10-1—8-10-11	
5519	8-26-19	1		10-4-5	1
5524	8-26-19	1		8-6-1(C)	
		2		8-6-2	
		3		8-6-3(C)	

Legislation	Date	Section		Section this Code	Supplement
				8-6-3(O)	
				8-6-3(Q)	
			Added	8-6-3(Y)—(AB)	
		4		8-6-4(A)	
		5		8-6-9(A)	
		6	Added	8-6-13(B)(9)	
5533	10- 7-19			10-1-1—10-1-24	1
5536	12- 2-19	1		10-4-5	1
5537	12- 2-19	1		Title 8, Ch. 3, Art. III(title)	1
		2		8-3-28	
		3		8-3-29	
		4		8-3-30	
		5		8-3-35	
5538	12- 2-19	1		4-4-1(C)	
		2		4-4-1(D)	1
		3	Rpld	4-4-1(E)	
		4		9-6-1(C)	
		5		9-6-4(D)10.	
		6		9-6-4(D)11.	
		7		9-6-4(H)4.	
		8		9-6-4(I)7.	
		9		9-6-5(D)1.	
		10		9-6-5(D)2.	
		11		9-6-5(D)8.	
		12		9-8-3(H)8.	
5539	12- 2-19	1		1-19-3	1
		2	Added	1-19-4	
		3	Added	1-19-5	
5540	12- 2-19	1		1-17-1, 1-17-2	1
			Added	1-17-3	
5541	12- 9-19	1	Rpld	11-5-1—11-5-9	1
			Rpld	11-6-1—11-6-6	
			Rpld	11-7-1—11-7-4	
		2	Added	Title 11, Chs. 5—7	
5542	12- 9-19	1	Rpld	9-7-1—9-7-24	1
			Added	9-7-1—9-7-17	
5543	12- 9-19	1		1-33-1	
5544	12- 9-19	1		11-3-1 C.2.	1
		2		11-4-4 A.1.	
		3		11-8-3(table)	
		4		11-22-1	
		5		11-22-5 A.	
		6		11-30-4 A.	
		7		11-30-4 B.2.	

Legislation	Date	Section		Section this Code	Supplement
		8	Added	11-30-4 E.	
		10		11-31-16	
		11		11-31-18 D.	
		12		11-31-32 D.	
		13		11-33-1 B.1.	
		14		11-33-2 E.	
		15		11-33-3 B.	
		16		11-69-5 B.3.d.	
		17		11-86-4	
		18		Title 11, Ch. 87	
5546	12- 9-19	1		6-11(title)	1
		2—4		6-11-1—6-11-8	
			Rpld	6-11-10	
			Rnbd as	6-11-11—6-11-14 6-11-10—6-11-13	
		5		6-11, Art. II(title) 6-11-21	
		6		6-11-22, 6-11-23	
5547	1-27-20	1		11-59-14, 11-59-15	2
5554	2-10-20	2		11-3-1(A)	2
		3	Added	11-15-1—11-15-3	
5555	2-24-20	1		1-31-1	2
			Added	1-31-3—1-31-5	
5559	3-16-20	1	Rpld	3-3-1—3-3-3	2
			Added	3-3-1—3-3-4	
5563	4-20-20	1		10-4-6	3
5572	6- 1-20	1		9-11-3	3
		2		9-11-4	
		3		9-11-5	
5576	6- 1-20	1		Table 11-58-3.A	3
		2		11-58-10 G.	
5577	6-15-20	1	Rpld	1-7-1, 1-7-2	3
			Added	1-7-1—1-7-3	
		2		2-3-1—2-3-10	
5582	8-24-20	1		10-4-3	4
		2		10-4-4	
5591	12- 1-20	1		11-67-5	5
		2		11-67-9(A)(3)	
		3		11-67-10	
		4		11-76-1	
		5		Title 11, Ch. 87	
5592	12- 1-20	1		11-2-3(c)	5
		2		Table 11-5-2	
		3		Table 11-6-2	
		4		Table 11-8-3	

Legislation	Date	Section		Section this Code	Supplement
		5	Added	11-31-28	
		6		11-86-2	
				Title 11, Ch. 87	
5593	12- 1-20	1		11-2-3(J)	5
		2		Table 11-5-2	
		3		11-5-3(A)(3)	
		4		Table 11-5-3.A.2	
		5		Table 11-5-5	
		6		Table 11-6-2	
		7		Table 11-6-3.A	
		8		Table 11-7-2	
		9		11-31-31	
		10		11-33-3(B)(2)a.	
		11		11-50-5	
		12		11-86-4	
		13	Added	11-86-8	
5594	12- 1-20	1	Rpld	11-69-1—11-69-7	5
5601	12- 8-20	1	Added	6-25-1—6-25-10	5
11603(Res. No.)	11-16-20	1	Added	11-69-1—11-69-9	6
5609	3- 1-21	1	Rpld	6-14-1—6-14-4	6
			Added	6-14-1—6-14-8	
5617	4-19-21	1	Rpld	6-10-1—6-10-9	6
			Added	6-10-1—6-10-8	
5620	5- 3-21	1		10-8-1	6
5621	5-17-21	1	Rpld	5-8-1—5-8-16	6
			Added	5-8-1—5-8-9	
5622	5-17-21	1	Rpld	5-1-1—5-1-7	6
			Added	5-1-1—5-1-6	
5623	5-17-21	1	Added	5-4-1—5-4-9	6
5631	7- 8-21	1		11-31-12	7
		2		11-70-3	
5632	7- 8-21	1		Table 11-4-2	7
				Table 11-5-2	
				Table 11-6-2	
				Table 11-8-3	
				Table 11-32-3.A.	
				Table 11-58-3.A.	
				Table 11-58-4.G.	
				Table 11-58-5.G.	
				Table 11-58-6.G.	
				Table 11-58-7.G.	
				Table 11-58-8.G.	
				Table 11-58-9.G.	
				Table 11-58-10.G.	
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